1 Historical Background

The British came to India in 1600 as traders, in the form of East India Company, which had the exclusive right of trading in India under a charter granted by Queen Elizabeth I. In 1765, the Company, which till now had purely trading functions obtained the 'diwani' (i.e., rights over revenue and civil justice) of Bengal, Bihar and Orissa.[1] This started its career as a territorial power. In 1858, in the wake of the 'sepoy mutiny', the British Crown assumed direct responsibility for the governance of India. This rule continued until India was granted independence on August 15, 1947.

With Independence came the need for a Constitution. Hence, a Constituent Assembly was formed for this purpose in 1946 and on January 26, 1950, the Constitution came into being. However, various features of the Indian Constitution and polity have their roots in the British rule. There were certain events in the British rule that laid down the legal framework for the organisation and functioning of government and administration in British India. These events have greatly influenced our constitution and polity. They are explained here in a chronological order under two major headings :

1. The Company Rule (1773 – 1858)
2. The Crown Rule (1858 – 1947)

THE COMPANY RULE (1773–1858)

Regulating Act of 1773

This act was of great constitutional importance as (a) it was the first step taken by the British Government to control and regulate the affairs of the East India Company in India; (b) it recognised, for the first time, the political and administrative functions of the Company; and (c) it laid the foundations of central administration in India.

The features of this Act were as follows:

1. It designated the Governor of Bengal as the 'Governor-General of Bengal' and created an Executive Council of four members to assist him. The first such GovernorGeneral was Lord Warren Hastings.
2. It made the governors of Bombay and Madras presidencies subordinate to the governor-general of Bengal, unlike earlier, when the three presidencies were independent of one another.
3. It provided for the establishment of a Supreme Court at Calcutta (1774) comprising one chief justice and three other judges.
4. It prohibited the servants of the Company from engaging in any private trade or accepting presents or bribes from the 'natives'.
5. It strengthened the control of the British Government over the Company by requiring the Court of Directors (governing body of the Company) to report on its revenue, civil, and military affairs in India.

Amending Act of 1781

In a bid to rectify the defects of the Regulating Act of 1773, the British Parliament passed the Amending Act of 1781, also known as the Act of Settlement.

The features of this Act were as follows:

1. It exempted the Governor-General and the Council from the jurisdiction of the Supreme Court for the acts done by them in their official capacity. Similarly, it also exempted the servants of the company from the jurisdiction of the Supreme Court for their official actions.
2. It excluded the revenue matters and the matters arising in the collection of revenue from the jurisdiction of the Supreme Court.
3. It provided that the Supreme Court was to have jurisdiction over all the inhabitants of Culcutta. It also required the court to administer the personal law of the defendants i.e., Hindus were to be tried according to the Hindu law and Muslims were to be tried according to the Mohammedan law.
4. It laid down that the appeals from the Provincial Courts could be taken to the Governor-General-in-Council and not to the Supreme Court.
5. It empowered the Governor-General-inCouncil to frame regulations for the Provincial Courts and Councils.

Pitt's India Act of 1784

The next important act was the Pitt's India Act[2] of 1784.

The features of this Act were as follows:

1. It distinguished between the commercial and political functions of the Company.
2. It allowed the Court of Directors to manage the commercial affairs, but created a new body called Board of Control to manage the political affairs. Thus, it established a system of double government.
3. It empowered the Board of Control to supervise and direct all operations of the civil and military government or revenues of the British possessions in India.

Thus, the act was significant for two reasons: first, the Company's territories in India were for the first time called the 'British possessions in India'; and second, the British Government was given the supreme control over Company's affairs and its administration in India.

Act of 1786

In 1786, Lord Cornwallis was appointed as the Governor-General of Bengal. He placed two demands to accept that post, viz.,

1. He should be given power to override the decision of his council in special cases.
2. He would also be the Commander-in-Chief.

Accordingly, the Act of 1786 was enacted to make both the provisions.

Charter Act of 1793

The features of this Act were as follows:

1. It extended the overriding power given to Lord Cornwallis over his council, to all future Governor-Generals and Governors of Presidencies.
2. It gave the Governor-General more powers and control over the governments of the subordinate Presidencies of Bombay and Madras.
3. It extended the trade monopoly of the Company in India for another period of twenty years.
4. It provided that the Commander-in-Chief was not to be a member of the Governor-General's council, unless he was so appointed.
5. It laid down that the members of the Board of Control and their staff were, henceforth, to be paid out of the Indian revenues.

Charter Act of 1813

The features of this Act were as follows:

1. It abolished the trade monopoly of the company in India i.e., the Indian trade was thrown open to all British merchants. However, it continued the monopoly of the company over trade in tea and trade with China.
2. It asserted the sovereignty of the British Crown over the Company's territories in India.
3. It allowed the Christian missionaries to come to India for the purpose of enlightening the people.

4. It provided for the spread of western education among the inhabitants of the British territories in India.
5. It authorised the Local Governments in India to impose taxes on persons. They could also punish the persons for not paying taxes.

Charter Act of 1833

This Act was the final step towards centralisation in British India.

The features of this Act were as follows:

1. It made the Governor-General of Bengal as the Governor-General of India and vested in him all civil and military powers. Thus, the act created, for the first time, Government of India having authority over the entire territorial area possessed by the British in India. Lord William Bentick was the first Governor-General of India.
2. It deprived the Governor of Bombay and Madras of their legislative powers. The Governor-General of India was given exclusive legislative powers for the entire British India. The laws made under the previous acts were called as Regulations, while laws made under this act were called as Acts.
3. It ended the activities of the East India Company as a commercial body, which became a purely administrative body. It provided that the Company's territories in India were held by it 'in trust for His Majesty, His heirs and successors'.
4. The Charter Act of 1833 attempted to introduce a system of open competition for selection of civil servants and stated that the Indians should not be debarred from holding any place, office and employment under the Company. However, this provision was negated after opposition from the Court of Directors.

Charter Act of 1853

This was the last of the series of Charter Acts passed by the British Parliament between 1793 and 1853. It was a significant constitutional landmark.

The features of this Act were as follows:

1. It separated, for the first time, the legislative and executive functions of the Governor-General's council. It provided for addition of six new members called legislative councillors to the council. In other words, it established a separate Governor-General's legislative council which came to be known as the Indian (Central) Legislative Council. This legislative wing of the council functioned as a mini-Parliament, adopting the same procedures as the British Parliament. Thus, legislation, for the first time, was treated as a special function of the government, requiring special machinery and special process.
2. It introduced an open competition system of selection and recruitment of civil servants. The covenanted civil service[3] was, thus, thrown open to the Indians also. Accordingly, the Macaulay Committee (the Committee on the Indian Civil Service) was appointed in 1854.
3. It extended the Company's rule and allowed it to retain the possession of Indian territories on trust for the British Crown. But, it did not specify any particular period, unlike the previous Charters. This was a clear indication that the Company's rule could be terminated at any time the Parliament liked.
4. It introduced, for the first time, local representation in the Indian (Central) Legislative Council. Of the six new legislative members of the GovernorGeneral's council, four members were appointed by the local (provincial) governments of Madras, Bombay, Bengal and Agra.

THE CROWN RULE (1858–1947)

Government of India Act of 1858

This significant Act was enacted in the wake of the Revolt of 1857–also known as the First War of Independence or the 'sepoy mutiny'. The act known as the Act for the Good Government of India, abolished the East India Company, and transferred the powers of Government, territories and revenues to the British Crown.

The features of this Act were as follows:

1. It provided that India, henceforth, was to be governed by, and in the name of, Her Majesty. It changed the designation of the Governor-General of India to that of Viceroy of India. He (Viceroy) was the direct representative of the British Crown in India. Lord Canning, thus, became the first Viceroy of India.
2. It ended the system of double Government by abolishing the Board of Control and Court of Directors.
3. It created a new office, Secretary of State for India, vested with complete authority and control over Indian administration. The secretary of state was a member of the British Cabinet and was responsible ultimately to the British Parliament.
4. It established a 15-member council of India to assist the Secretary of State for India. The council was an advisory body. The secretary of state was made the Chairman of the council.
5. It constituted the Secretary of State-inCouncil as a body corporate, capable of suing and being sued in India and in England.

'The Act of 1858 was, however, largely confined to the improvement of the administrative machinery by which the Indian Government was to be supervised and controlled in England. It did not alter in any substantial way the system of Government that prevailed in India[4] .'

Indian Councils Act of 1861

After the great revolt of 1857, the British Government felt the necessity of seeking the cooperation of the Indians in the administration of their country. In pursuance of this policy of association, three acts were enacted by the British Parliament in 1861, 1892 and 1909. The Indian Councils Act of 1861 is an important landmark in the constitutional and political history of India.

The features of this Act were as follows:

1. It made a beginning of the representative institutions by associating Indians with the law-making process. It, thus, provided that the Viceroy should nominate some Indians as non-official members of his expanded council. In 1862, Lord Canning, the then Viceroy, nominated three Indians to his legislative council–the Raja of Benaras, the Maharaja of Patiala and Sir Dinkar Rao.
2. It initiated the process of decentralisation by restoring the legislative powers to the Bombay and Madras Presidencies. It, thus, reversed the centralising tendency that started from the Regulating Act of 1773 and reached its climax under the Charter Act of 1833. This policy of legislative devolution resulted in the grant of almost complete internal autonomy to the provinces in 1937.
3. It also provided for the establishment of new legislative councils for Bengal, North-Western Provinces and Punjab, which were established in 1862, 1886 and 1897, respectively.
4. It empowered the Viceroy to make rules and orders for the more convenient transaction of business in the council. It also gave a recognition to the ‘portfolio’ system, introduced by Lord Canning in 1859. Under this, a member of the Viceroy’s council was made in-charge of one or more departments of the Government and was authorised to issue final orders on behalf of the council on matters of his department(s).
5. It empowered the Viceroy to issue ordinances, without the concurrence of the legislative council, during an emergency.

The life of such an ordinance was six months.

Indian Councils Act of 1892

The features of this Act were as follows:

1. It increased the number of additional (non-official) members in the Central and provincial legislative councils, but maintained the official majority in them.
2. It increased the functions of legislative councils and gave them the power of discussing the budget[5] and addressing questions to the executive.
3. It provided for the nomination of some non-official members of the (a) Central Legislative Council by the viceroy on the recommendation of the provincial legislative councils and the Bengal Chamber of Commerce, and (b) that of the provincial legislative councils by the Governors on the recommendation of the district boards, municipalities, universities, trade associations, zamin-dars and chambers.

'The act made a limited and indirect provision for the use of election in filling up some of the non-official seats both in the Central and provincial legislative councils. The word "election" was, however, not used in the Act. The process was described as nomination made on the recommendation of certain bodies[6] .'

Indian Councils Act of 1909

This Act is also known as Morley-Minto Reforms (Lord Morley was the then Secretary of State for India and Lord Minto was the then Viceroy of India).

The features of this Act were as follows:

1. It considerably increased the size of the legislative councils, both Central and provincial. The number of members in the Central legislative council was raised from 16 to 60. The number of members in the provincial legislative councils was not uniform.
2. It retained official majority in the Central legislative council, but allowed the provincial legislative councils to have non-official majority.

3. It enlarged the deliberative functions of the legislative councils at both the levels. For example, members were allowed to ask supplementary questions, move resolutions on the budget and so on.
4. It provided (for the first time) for the association of Indians with the executive councils of the Viceroy and Governors. Satyendra Prasad Sinha became the first Indian to join the Viceroy's executive council. He was appointed as the Law Member.
5. It introduced a system of communal representation for Muslims by accepting the concept of 'separate electorate'. Under this, the Muslim members were to be elected only by Muslim voters. Thus, the Act 'legalised communalism' and Lord Minto came to be known as the Father of Communal Electorate.
6. It also provided for the separate representation of presidency corporations, chambers of commerce, universities and zamindars.

Government of India Act of 1919

On August 20, 1917, the British Government declared, for the first time, that its objective was the gradual introduction of responsible Government in India[7] .

The Government of India Act of 1919 was thus enacted, which came into force in 1921. This Act is also known as Montagu-Chelmsford Reforms (Montagu was the Secretary of State for India and Lord Chelmsford was the Viceroy of India).

The features of this Act were as follows:

1. It relaxed the central control over the provinces by demarcating and separating the central and provincial subjects. The central and provincial legislatures were authorised to make laws on their respective list of subjects. However, the structure of government continued to be centralised and unitary.
2. It further divided the provincial subjects into two parts– transferred and reserved. The transferred subjects were to be administered by the Governor with the aid of Ministers

responsible to the legislative council. The reserved subjects, on the other hand, were to be administered by the Governor and his executive council without being responsible to the legislative council. This dual scheme of governance was known as 'dyarchy'–a term derived from the Greek word *di-arche* which means double rule. However, this experiment was largely unsuccessful.

3. It introduced, for the first time, bicameralism and direct elections in the country. Thus, the Indian legislative council was replaced by a bicameral legislature consisting of an Upper House (Council of State) and a Lower House (Legislative Assembly). The majority of members of both the Houses were chosen by direct election.
4. It required that the three of the six members of the Viceroy's executive Council (other than the Commander-in-Chief) were to be Indian.
5. It extended the principle of communal representation by providing separate electorates for Sikhs, Indian Christians, Anglo-Indians and Europeans.
6. It granted franchise to a limited number of people on the basis of property, tax or education.
7. It created a new office of the High Commissioner for India in London and transferred to him some of the functions hitherto performed by the Secretary of State for India.
8. It provided for the establishment of a public service commission. Hence, a Central Public Service Commission was set up in 1926 for recruiting civil servants[8] .
9. It separated, for the first time, provincial budgets from the Central budget and authorised the provincial legislatures to enact their budgets.
10. It provided for the appointment of a statutory commission to inquire into and report on its working after ten years of its coming into force.

Simon Commission

In November 1927 itself (i.e., 2 years before the schedule), the British Government announced the appointment a seven-member statutory commission under the chairmanship of Sir John Simon

to report on the condition of India under its new Constitution. All the members of the commission were British and hence, all the parties boycotted the commission. The commission submitted its report in 1930 and recommended the abolition of dyarchy, extension of responsible Government in the provinces, establishment of a federation of British India and princely states, continuation of communal electorate and so on. To consider the proposals of the commission, the British Government convened three round table conferences of the representatives of the British Government, British India and Indian princely states. On the basis of these discussions, a 'White Paper on Consitutional Reforms' was prepared and submitted for the consideration of the Joint Select Committee of the British Parliament. The recommendations of this committee were incorporated (with certain changes) in the next Government of India Act of 1935.

Communal Award

In August 1932, Ramsay MacDonald, the British Prime Minister, announced a scheme of representation of the minorities, which came to be known as the Communal Award. The award not only continued separate electorates for the Muslims, Sikhs, Indian Christians, Anglo-Indians and Europeans but also extended it to the depressed classes (Scheduled Castes). Gandhiji was distressed over this extension of the principle of communal representation to the depressed classes and undertook fast unto death in Yerawada Jail (Poona) to get the award modified. At last, there was an agreement between the leaders of the Congress and the depressed classes. The agreement, known as Poona Pact, retained the Hindu joint electorate and gave reserved seats to the depressed classes.

Government of India Act of 1935

The Act marked a second milestone towards a completely responsible government in India. It was a lengthy and detailed document having 321 Sections and 10 Schedules.

The features of this Act were as follows:

1. It provided for the establishment of an All-India Federation consisting of provinces and princely states as units. The Act divided the powers between the Centre and units in terms of three lists–Federal List (for Centre, with 59 items), Provincial List (for provinces, with 54 items) and the Concurrent List (for both, with 36 items). Residuary powers were given to the Viceroy. However, the federation never came into being as the princely states did not join it.
2. It abolished dyarchy in the provinces and introduced 'provincial autonomy' in its place. The provinces were allowed to act as autonomous units of administration in their defined spheres. Moreover, the Act introduced responsible Governments in provinces, that is, the Governor was required to act with the advice of ministers responsible to the provincial legislature. This came into effect in 1937 and was discontinued in 1939.
3. It provided for the adoption of dyarchy at the Centre. Consequently, the federal subjects were divided into reserved subjects and transferred subjects. However, this provision of the Act did not come into operation at all.
4. It introduced bicameralism in six out of eleven provinces. Thus, the legislatures of Bengal, Bombay, Madras, Bihar, Assam and the United Provinces were made bicameral consisting of a legislative council (upper house) and a legislative assembly (lower house). However, many restrictions were placed on them.
5. It further extended the principle of communal representation by providing separate electorates for depressed classes (Scheduled Castes), women and labour (workers).
6. It abolished the Council of India, established by the Government of India Act of 1858. The secretary of state for India was provided with a team of advisors.
7. It extended franchise. About 10 per cent of the total population got the voting right.
8. It provided for the establishment of a Reserve Bank of India to control the currency and credit of the country.
9. It provided for the establishment of not only a Federal Public Service Commission, but also a Provincial Public Service

Commission and Joint Public Service Commission for two or more provinces.

10. It provided for the establishment of a Federal Court, which was set up in 1937.

Indian Independence Act of 1947

On February 20, 1947, the British Prime Minister Clement Atlee declared that the British rule in India would end by June 30,1948; after which the power would be transferred to responsible Indian hands. This announcement was followed by the agitation by the Muslim League demanding partition of the country. Again on June 3, 1947, the British Government made it clear that any Constitution framed by the Constituent Assembly of India (formed in 1946) cannot apply to those parts of the country which were unwilling to accept it. On the same day (June 3, 1947), Lord Mountbatten, the Viceroy of India, put forth the partition plan, known as the Mountbatten Plan. The plan was accepted by the Congress and the Muslim League. Immediate effect was given to the plan by enacting the Indian Independence Act[9] (1947).

The features of this Act were as follows:

1. It ended the British rule in India and declared India as an independent and sovereign state from August 15, 1947.
2. It provided for the partition of India and creation of two independent dominions of India and Pakistan with the right to secede from the British Commonwealth.
3. It abolished the office of Viceroy and provided, for each dominion, a governorgeneral, who was to be appointed by the British King on the advice of the dominion cabinet. His Majesty's Government in Britain was to have no responsibility with respect to the Government of India or Pakistan.
4. It empowered the Constituent Assemblies of the two dominions to frame and adopt any constitution for their respective nations and to repeal any act of the British Parliament, including the Independence act itself.
5. It empowered the Constituent Assemblies of both the dominions to legislate for their respective territories till the

new constitutions were drafted and enforced. No Act of the British Parliament passed after August 15, 1947 was to extend to either of the new dominions unless it was extended thereto by a law of the legislature of the dominion.

6. It abolished the office of the Secretary of State for India and transferred his functions to the Secretary of State for Commonwealth Affairs.
7. It proclaimed the lapse of British paramountcy over the Indian princely states and treaty relations with tribal areas from August 15, 1947.
8. It granted freedom to the Indian princely states either to join the Dominion of India or Dominion of Pakistan or to remain independent.
9. It provided for the governance of each of the dominions and the provinces by the Government of India Act of 1935, till the new Constitutions were framed. The dominions were however authorised to make modifications in the Act.
10. It deprived the British Monarch of his right to veto bills or ask for reservation of certain bills for his approval. But, this right was reserved for the GovernorGeneral. The Governor-General would have full power to assent to any bill in the name of His Majesty.
11. It designated the Governor-General of India and the provincial governors as constitutional (nominal) heads of the states. They were made to act on the advice of the respective council of ministers in all matters.
12. It dropped the title of Emperor of India from the royal titles of the King of England.
13. It discontinued the appointment to civil services and reservation of posts by the secretary of state for India. The members of the civil services appointed before August 15, 1947 would continue to enjoy all benefits that they were entitled to till that time.

At the stroke of midnight of 14-15 August, 1947, the British rule came to an end and power was transferred to the two new independent Dominions of India and Pakistan[10]. Lord Mountbatten became the first GovernorGeneral of the new Dominion of India. He swore in Jawaharlal Nehru as the first Prime Minister of

independent India. The Constituent Assembly of India formed in 1946 became the Parliament of the Indian Dominion.

Table 1.1 *Interim Government (1946)*

Sl. No.	Members	Portfolios Held
1.	Jawaharlal Nehru	Vice-President of the Council; External Affairs & Commonwealth Relations
2.	Sardar Vallabhbhai Patel	Home, Information & Broadcasting
3.	Dr. Rajendra Prasad	Food & Agriculture
4.	Dr. John Mathai	Industries & Supplies
5.	Jagjivan Ram	Labour
6.	Sardar Baldev Singh	Defence
7.	C.H. Bhabha	Works, Mines & Power
8.	Liaquat Ali Khan	Finance
9.	Abdur Rab Nishtar	Posts & Air
10.	Asaf Ali	Railways & Transport
11.	C. Rajagopalachari	Education & Arts
12.	I.I. Chundrigar	Commerce
13.	Ghaznafar Ali Khan	Health
14.	Joginder Nath Mandal	Law

Note: The members of the interim Government were members of the Viceroy's Executive Council. The Viceroy continued to be the head of the Council. But, Jawaharlal Nehru was designated as the Vice-President of the Council.

Table 1.2 *First Cabinet of Free India (1947)*

Sl.	Members	Portfolios Held

No.		
1.	Jawaharlal Nehru	Prime Minister; External Affairs & Commonwealth Relations; Scientific Research
2.	Sardar Vallabhbhai Patel	Home, Information & Broadcasting; States
3.	Dr. Rajendra Prasad	Food & Agriculture
4.	Maulana Abul Kalam Azad	Education
5.	Dr. John Mathai	Railways & Transport
6.	R.K. Shanmugham Chetty	Finance
7.	Dr. B.R. Ambedkar	Law
8.	Jagjivan Ram	Labour
9.	Sardar Baldev Singh	Defence
10.	Raj Kumari Amrit Kaur	Health
11.	C.H. Bhabha	Commerce
12.	Rafi Ahmed Kidwai	Communication
13.	Dr. Shayama Prasad Mukherji	Industries & Supplies
14.	V.N. Gadgil	Works, Mines & Power

NOTES AND REFERENCES

1. The Mughal Emperor, Shah Alam, granted ‘Diwani’ to the Company after its victory in the Battle of Buxar (1764).
2. It was introduced in the British Parliament by the then Prime Minister, William Pitt.
3. At that time, the Civil Services of the company were classified into covenanted civil services (higher civil services) and uncovenanted civil services (lower civil

services). The former was created by a law of the Company, while the later was created otherwise.

4. Subhash C. Kashyap, *Our Constitution*, National Book Trust, Third Edition, 2001, P. 14.
5. The system of Budget was introduced in British India in 1860.
6. V. N. Shukla, *The Constitution of India*, Eastern Book Company, Tenth Edition, 2001, P. A-10.
7. The declaration thus stated: 'The policy of His Majesty's Government is that of the increasing association of Indians in every branch of the administration, and the gradual development of self-government institutions, with a view to the progressive realisation of responsible government in India as an integral part of the British Empire'.
8. This was done on the recommendation of the Lee Commission on Superior Civil Services in India (1923-24).
9. The Indian Independence Bill was introduced in the British Parliament on July 4, 1947 and received the Royal Assent on July 18, 1947. The act came into force on August 15, 1947.
10. The boundaries between the two Dominions were determined by a Boundary Commission headed by Radcliff. Pakistan included the provinces of West Punjab, Sind, Baluchistan, East Bengal, North-Western Frontier Province and the district of sylhet in Assam. The referendum in the North-Western Frontier Province and Sylhet was in favour of Pakistan.

2 Making of the Constitution

DEMAND FOR A CONSTITUENT ASSEMBLY

It was in 1934 that the idea of a Constituent Assembly for India was put forward for the first time by M.N. Roy, a pioneer of communist movement in India. In 1935, the Indian National Congress (INC), for the first time, officially demanded a Constituent Assembly to frame the Constitution of India. In 1938, Jawaharlal Nehru, on behalf the INC declared that 'the Constitution of free India must be framed, without outside interference, by a Constituent Assembly elected on the basis of adult franchise'.

The demand was finally accepted in principle by the British Government in what is known as the 'August Offer' of 1940. In 1942, Sir Stafford Cripps, a Member of the Cabinet, came to India with a draft proposal of the British Government on the framing of an independent Constitution to be adopted after the World War II. The Cripps Proposals were rejected by the Muslim League, which wanted India to be divided into two autonomous states with two separate Constituent Assemblies. Finally, a Cabinet Mission[1] was sent to India. While it rejected the idea of two Constituent Assemblies, it put forth a scheme for the Constituent Assembly which more or less satisfied the Muslim League.

COMPOSITION OF THE CONSTITUENT ASSEMBLY

The Constituent Assembly was constituted in November 1946 under the scheme formulated by the Cabinet Mission Plan.

The features of the scheme were:

1. The total strength of the Constituent Assembly was to be 389. Of these, 296 seats were to be allotted to British India and 93 seats to the princely states. Out of 296 seats allotted to the British India, 292 members were to be drawn from the eleven governors' provinces[2] and four from the four Chief Commissioners' provinces[3] , one from each.
2. Each province and princely state (or group of states in case of small states) were to be allotted seats in proportion to their respective population. Roughly, one seat was to be allotted for every million population.
3. Seats allocated to each British province were to be divided among the three principal communities–Muslims, Sikhs and General (all except Muslims and Sikhs), in proportion to their population.
4. The representatives of each community were to be elected by members of that community in the provincial legislative assembly and voting was to be by the method of proportional representation by means of single transferable vote.
5. The representatives of the princely states were to be nominated by the heads of the princely states.

It is, thus, clear that the Constituent Assembly was to be a partly elected and partly nominated body. Moreover, the members were to be indirectly elected by the members of the provincial assemblies, who themselves were elected on a limited franchise[4] .

The elections to the Constituent Assembly (for 296 seats allotted to the British Indian Provinces) were held in July-August 1946. The Indian National Congress won 208 seats, the Muslim League 73 seats and the small groups and independents got the remaining 15 seats. However, the 93 seats allotted to the princely states were not filled as they decided to stay away from the Constituent Assembly.

Although the Constituent Assembly was not directly elected by the people of India on the basis of adult franchise, the Assembly comprised representatives of all sections of the Indian society– Hindus, Muslims, Sikhs, Parsis, Anglo-Indians, Indian Christians, SCs, STs including women of all these sections. The Assembly included all important personalities of India at that time, with the exception of Mahatma Gandhi.

WORKING OF THE CONSTITUENT ASSEMBLY

The Constituent Assembly held its first meeting on December 9, 1946. The Muslim League boycotted the meeting and insisted on a separate state of Pakistan. The meeting was, thus, attended by only 211 members. *Dr. Sachchidananda Sinha, the oldest member, was elected as the temporary President of the Assembly, following the French practice*.

Later, Dr. Rajendra Prasad was elected as the President of the Assembly. Similarly, both H.C. Mukherjee and V.T. Krishnamachari were elected as the Vice-Presidents of the Assembly. In other words, the Assembly had two Vice-Presidents.

Objectives Resolution

On December 13, 1946, Jawaharlal Nehru moved the historic 'Objectives Resolution' in the Assembly. It laid down the fundamentals and philosophy of the constitutional structure. It read:

1. "This Constituent Assembly declares its firm and solemn resolve to proclaim India as an Independent Sovereign Republic and to draw up for her future governance a Constitution:
2. Wherein the territories that now comprise British India, the territories that now form the Indian States and such other parts of India as are outside India and the States as well as other territories as are willing to be constituted into the independent sovereign India, shall be a Union of them all; and
3. wherein the said territories, whether with their present boundaries or with such others as may be determined by the Constituent Assembly and thereafter according to the law of the Constitution, shall possess and retain the status of autonomous units together with residuary powers and exercise all powers and functions of Government and administration save and except such powers and functions as are vested in or assigned to the Union or as are inherent or implied in the Union or resulting therefrom; and

4. wherein all power and authority of the sovereign independent India, its constituent parts and organs of Government are derived from the people; and
5. wherein shall be guaranteed and secured to all the people of India justice, social, economic and political; equality of status of opportunity, and before the law; freedom of thought, expression, belief, faith, worship, vocation, association and action, subject to law and public morality; and
6. wherein adequate safeguards shall be provided for minorities, backward and tribal areas, and depressed and other backward classes; and
7. whereby shall be maintained the integrity of the territory of the Republic and its sovereign rights on land, sea and air according to justice and the law of civilized nations; and
8. This ancient land attains its rightful and honoured place in the world and makes its full and willing contribution to the promotion of world peace and the welfare of mankind."

This Resolution was unanimously adopted by the Assembly on January 22, 1947. It influenced the eventual shaping of the constitution through all its subsequent stages. Its modified version forms the Preamble of the present Constitution.

Changes by the Independence Act

The representatives of the princely states, who had stayed away from the Constituent Assembly, gradually joined it. On April 28, 1947, representatives of the six states[5] were part of the Assembly. After the acceptance of the Mountbatten Plan of June 3, 1947, for the partition of the country, the representatives of most of the other princely states took their seats in the Assembly. The members of the Muslim League from the Indian Dominion also entered the Assembly.

The Indian Independence Act of 1947 made the following three changes in the position of the Assembly:

1. The Assembly was made a fully sovereign body, which could frame any Constitution it pleased. The act empowered the Assembly to abrogate or alter any law made by the British Parliament in relation to India.

2. The Assembly also became a legislative body. In other words, two separate functions were assigned to the Assembly, that is, making of the Constitution for free India and enacting of ordinary laws for the country. These two tasks were to be performed on separate days. Thus, the Assembly became the first Parliament of free India (Dominion Legislature). Whenever the Assembly met as the Constituent body it was chaired by Dr. Rajendra Prasad and when it met as the legislative body[6] , it was chaired by G.V. Mavlankar. These two functions continued till November 26, 1949, when the task of making the Constitution was over.
3. The Muslim League members (hailing from the areas[7] included in the Pakistan) withdrew from the Constituent Assembly for India. Consequently, the total strength of the Assembly came down to 299 as against 389 originally fixed in 1946 under the Cabinet Mission Plan. The strength of the Indian provinces (formerly British Provinces) was reduced from 296 to 229 and those of the princely states from 93 to 70. The state-wise membership of the Assembly as on December 31, 1947, is shown in Table 2.4 of this chapter.

Other Functions Performed

In addition to the making of the Constitution and enacting of ordinary laws, the Constituent Assembly also performed the following functions:

1. It ratified the India's membership of the Commonwealth in May 1949.
2. It adopted the national flag on July 22, 1947.
3. It adopted the national anthem on January 24, 1950.
4. It adopted the national song on January 24, 1950.
5. It elected Dr. Rajendra Prasad as the first President of India on January 24, 1950.

In all, the Constituent Assembly had 11 sessions over two years, 11 months and 18 days. The Constitution-makers had gone through the Constitutions of about 60 countries, and the Draft Constitution was considered for 114 days. The total expenditure incurred on making the Constitution amounted to ₹64 lakh.

On January 24, 1950, the Constituent Assembly held its final session. It, however, did not end, and continued as the provisional parliament of India from January 26, 1950, till the formation of new Parliament[8] after the first general elections in 1951–52.

COMMITTEES OF THE CONSTITUENT ASSEMBLY

The Constituent Assembly appointed a number of committees to deal with different tasks of constitution-making. Out of these, eight were major committees and the others were minor committees. The names of these committees and their Chairman are given below:

Major Committees

1. Union Powers Committee - Jawaharlal Nehru
2. Union Constitution Committee -Jawaharlal Nehru
3. Provincial Constitution Committee -Sardar Patel
4. Drafting Committee - Dr. B.R. Ambedkar
5. Advisory Committee on Fundamental Rights, Minorities and Tribal and Excluded Areas - Sardar Patel. This committee had the following five sub-committees:
   (a) Fundamental Rights Sub-Committee - J.B. Kripalani
   (b) Minorities Sub-Committee - H.C. Mukherjee
   (c) North-East Frontier Tribal Areas and Assam Excluded & Partially Excluded Areas Sub-Committee -Gopinath Bardoloi
   (d) Excluded and Partially Excluded Areas (other than those in Assam) Sub-Committee - A.V. Thakkar
   (e) North-West Frontier Tribal Areas Sub-Committee[8a]
6. Rules of Procedure Committee - Dr. Rajendra Prasad
7. States Committee (Committee for Negotiating with States) - Jawaharlal Nehru
8. Steering Committee - Dr. Rajendra Prasad

Minor Committees

1. Finance and Staff Committee - Dr. Rajendra Prasad
2. Credentials Committee - Alladi Krishnaswami Ayyar
3. House Committee - B. Pattabhi Sitaramayya
4. Order of Business Committee - Dr. K.M. Munshi
5. Ad-hoc Committee on the National Flag - Dr. Rajendra Prasad

6. Committee on the Functions of the Constituent Assembly - G.V. Mavalankar
7. Ad-hoc Committee on the Supreme Court - S. Varadachari (Not an Assembly Member)
8. Committee on Chief Commissioners' Provinces - B. Pattabhi Sitaramayya
9. Expert Committee on the Financial Provisions of the Union Constitution -Nalini Ranjan Sarkar (Not an Assembly Member)
10. Linguistic Provinces Commission - S.K. Dar (Not an Assembly Member)
11. Special Committee to Examine the Draft Constitution - Jawaharlal Nehru
12. Press Gallery Committee - Usha Nath Sen
13. Ad-hoc Committee on Citizenship - S. Varadachari (Not an Assembly Member)

Drafting Committee

Among all the committees of the Constituent Assembly, the most important committee was the Drafting Committee set up on August 29, 1947. It was this committee that was entrusted with the task of preparing a draft of the new Constitution. It consisted of seven members. They were:

1. Dr. B.R. Ambedkar (*Chairman*)
2. N. Gopalaswamy Ayyangar
3. Alladi Krishnaswamy Ayyar
4. Dr. K.M. Munshi
5. Syed Mohammad Saadullah
6. N. Madhava Rau (He replaced B.L. Mitter who resigned due to ill-health)
7. T.T. Krishnamachari (He replaced D.P. Khaitan who died in 1948)

The Drafting Committee, after taking into consideration the proposals of the various committees, prepared the first draft of the Constitution of India, which was published in February, 1948. The people of India were given eight months to discuss the draft and propose amendments. In the light of the public comments,

criticisms and suggestions, the Drafting Committee prepared a second draft, which was published in October, 1948.

The Drafting Committee took less than six months to prepare its draft. In all it sat only for 141 days.

ENACTMENT OF THE CONSTITUTION

Dr. B.R. Ambedkar introduced the final draft of the Constitution in the Assembly on November 4, 1948 (first reading). The Assembly had a general discussion on it for five days (till November 9, 1948).

The second reading (clause by clause consideration) started on November 15, 1948, and ended on October 17, 1949. During this stage, as many as 7653 amendments were proposed and 2473 were actually discussed in the Assembly.

The third reading of the draft started on November 14, 1949. Dr. B.R. Ambedkar moved a motion–'the Constitution as settled by the Assembly be passed'. The motion on Draft Constitution was declared as passed on November 26, 1949, and received the signatures of the members and the president. Out of a total 299 members of the Assembly, only 284 were actually present on that day and signed the Constitution. This is also the date mentioned in the Preamble as the date on which the people of India in the Constituent Assembly adopted, enacted and gave to themselves this Constitution.

The Constitution as adopted on November 26, 1949, contained a Preamble, 395 Articles and 8 Schedules. The Preamble was enacted after the entire Constitution was already enacted.

Dr. B.R. Ambedkar, the then Law Minister, piloted the Draft Constitution in the Assembly. He took a very prominent part in the deliberations of the Assembly. He was known for his logical, forceful and persuasive arguments on the floor of the Assembly. He is recognised as the 'Father of the Constitution of India'. This brilliant writer, constitutional expert, undisputed leader of the Scheduled Castes and the 'chief architect of the Constitution of India' is also known as a 'Modern Manu'.

ENFORCEMENT OF THE CONSTITUTION

Some provisions of the Constitution pertaining to citizenship, elections, provisional parliament, temporary and transitional provisions, and short title contained in Articles 5, 6, 7, 8, 9, 60, 324, 366, 367, 379, 380, 388, 391, 392 and 393 came into force on November 26, 1949, itself.

The remaining provisions (the major part) of the Constitution came into force on January 26, 1950. This day is referred to in the Constitution as the ‘date of its commencement’, and celebrated as the Republic Day.

January 26 was specifically chosen as the ‘date of commencement’ of the Constitution because of its historical importance. It was on this day in 1930 that *Purna Swaraj* day was celebrated, following the resolution of the Lahore Session (December 1929) of the INC.

With the commencement of the Constitution, the Indian Independence Act of 1947 and the Government of India Act of 1935, with all enactments amending or supplementing the latter Act, were repealed. The Abolition of Privy Council Jurisdiction Act (1949) was however continued.

EXPERTS COMMITTEE OF THE CONGRESS

While elections to the Constituent Assembly were still in progress, on July 8, 1946, the Congress Party (Indian National Congress) appointed an Experts Committee for the purpose of preparing material for the Constituent Assembly. This committee consisted of the following members[8b] :

1. Jawaharlal Nehru (Chairman)
2. M. Asaf Ali
3. K.M. Munshi
4. N. Gopalaswami Ayyangar
5. K.T. Shah
6. D.R. Gadgil
7. Humayun Kabir
8. K. Santhanam

Later, on the Chairman's proposal, it was resolved that Krishna Kripalani be co-opted as member and convener of the committee.

The committee had two sittings, the first at New Delhi from July 20 to 22, 1946, and the second at Bombay from August 15 to 17, 1946.

Apart from a number of notes prepared by its members, the committee discussed the procedure to be adopted by the Constituent Assembly, the question of the appointment of various committees and the draft of a resolution on the objectives of the constitution to be moved during the first session of the Constituent Assembly[8c] .

On the role played by this committee in the making of the Constitution, Granville Austin, a British constitutional expert, observed: "It was the Congress Experts Committee that set India on the road to her present Constitution. The committee members, working within the framework of the Cabinet Mission Scheme, made general suggestions about autonomous areas, the powers of provincial Governments and the Centre, and about such issues as the princely states and the amending power. They also drafted a resolution, closely resembling the Objectives Resolution".[8d]

CRITICISM OF THE CONSTITUENT ASSEMBLY

The critics have criticised the Constituent Assembly on various grounds. These are as follows:

1. *Not a Representative Body*: The critics have argued that the Constituent Assembly was not a representative body as its members were not directly elected by the people of India on the basis of universal adult franchise.
2. *Not a Sovereign Body*: The critics maintained that the Constituent Assembly was not a sovereign body as it was created by the proposals of the British Government. Further, they said that the Assembly held its sessions with the permission of the British Government.
3. *Time Consuming*: According to the critics, the Constituent Assembly took unduly long time to make the Constitution. They stated that the framers of the American Constitution took only four months to complete their work[8e]. In this context, Naziruddin Ahmed, a member of the Constituent Assembly, coined a new name for the Drafting Committee to show his contempt for it. He called it a "**Drifting Committee**".
4. *Dominated by Congress*: The critics charged that the Constituent Assembly was dominated by the Congress party. Granville Austin, an American Constitutional expert, remarked: 'The Constituent Assembly was a one-party body in an essentially one-party country. The Assembly was the Congress and the Congress was India'[9] .
5. *Lawyer-Politician Domination:* It is also maintained by the critics that the Constituent Assembly was dominated by lawyers and politicians. They pointed out that other sections of the society were not sufficiently represented. This, to them, is the main reason for the bulkiness and complicated language of the Constitution.
6. *Dominated by Hindus*: According to some critics, the Constituent Assembly was a Hindu dominated body. Lord Viscount Simon called it 'a body of Hindus'. Similarly,

Winston Churchill commented that the Constituent Assembly represented ‘only one major community in India’.

IMPORTANT FACTS

1. Elephant was adopted as the symbol (seal) of the Constituent Assembly.
2. Sir B.N. Rau was appointed as the constitutional advisor (Legal advisor) to the Constituent Assembly.
3. H.V.R. Iyengar was the Secretary to the Constituent Assembly.
4. S.N. Mukerjee was the chief draftsman of the constitution in the Constituent Assembly.
5. Prem Behari Narain Raizada was the calligrapher of the Indian Constitution. The original constitution was handwritten by him in a flowing italic style.
6. The original version was beautified and decorated by artists from Shantiniketan including Nand Lal Bose and Beohar Rammanohar Sinha.
7. Beohar Rammanohar Sinha illuminated, beautified and ornamented the original Preamble calligraphed by Prem Behari Narain Raizada.
8. The calligraphy of the Hindi version of the original constitution was done by Vasant Krishan Vaidya and elegantly decorated and illuminated by Nand Lal Bose.

HINDI TEXT OF THE CONSTITUTION

Originally, the Constitution of India did not make any provision with respect to an authoritative text of the Constitution in the Hindi language. Later, a provision in this regard was made by the 58th Constitutional Amendment Act of 1987[8f]. This amendment inserted a new Article 394-A in the last part of the Constitution i.e., Part XXII[8g]. This article contains the following provisions:

1. The President shall cause to be published under his authority:
   (i) The translation of the Constitution in Hindi language. The modifications which are necessary to bring it in conformity with the language, style and terminology adopted in the authoritative texts of the Central Acts in Hindi can be made in it. All the amendments of the Constitution made before such publication should be incorporated in it.
   (ii) The translation in Hindi of every amendment of the constitution made in English.
2. The translation of the Constitution and its every amendment published shall be construed to have the same meaning as the original text in English. If any difficulty arises in this matter, the President shall cause the Hindi text to be revised suitably.
3. The translation of the Constitution and its every amendment published shall be deemed to be, for all purposes, its authoritative text in Hindi.

Table 2.1 *Allocation of seats in the Constituent Assembly of India (1946)*

Sl.No.	Areas	Seats
1.	British Indian Provinces (11)	292
2.	Princely States (Indian States)	93
3.	Chief Commissioners' Provinces (4)	4
	Total	389

Table 2.2 *Results of the Elections to the Constituent Assembly (July–August 1946)*

Sl.No.	Name of the Party	Seats won
1.	Congress	208
2.	Muslim League	73
3.	Unionist Party	1
4.	Unionist Muslims	1
5.	Unionist Scheduled Castes	1
6.	Krishak - Praja Party	1
7.	Scheduled Castes Federation	1
8.	Sikhs (Non-Congress)	1
9.	Communist Party	1
10.	Independents	8
	Total	296

Table 2.3 *Community-wise Representation in the Constituent Assembly (1946)*

Sl.No.	Community	Strength
1.	Hindus	163
2.	Muslims	80
3.	Scheduled Castes	31
4.	Indian Christians	6
5.	Backward Tribes	6
6.	Sikhs	4
7.	Anglo-Indians	3
8.	Parsees	3
	Total	296

Table 2.4 *State-wise Membership of the Constituent Assembly of India as on December 31, 1947*

Sl.No.	Name	No. of Members
A.	**Provinces (Indian Provinces)–229**	
1.	Madras	49
2.	Bombay	21
3.	West Bengal	19
4.	United Provinces	55
5.	East Punjab	12
6.	Bihar	36
7.	C.P. and Berar	17
8.	Assam	8
9.	Orissa	9
10.	Delhi	1
11.	Ajmer-Merwara	1
12.	Coorg	1
B.	Indian States (Princely States)–70	
1.	Alwar	1
2.	Baroda	3
3.	Bhopal	1
4.	Bikaner	1
5.	Cochin	1
6.	Gwalior	4
7.	Indore	1
8.	Jaipur	3
9.	Jodhpur	2
10.	Kolhapur	1
11.	Kotah	1
12.	Mayurbhanj	1

13.	Mysore	7
14.	Patiala	2
15.	Rewa	2
16.	Travancore	6
17.	Udaipur	2
18.	Sikkim and Cooch Behar Group	1
19.	Tripura, Manipur and Khasi States Group	1
20.	U.P. States Group	1
21.	Eastern Rajputana States Group	3
22.	Central India States Group (including Bundelkhand and Malwa)	3
23.	Western India States Group	4
24.	Gujarat States Group	2
25.	Deccan and Madras States Group	2
26.	Punjab States Group	3
27.	Eastern States Group I	4
28.	Eastern States Group II	3
29.	Residuary States Group	4
	Total	299

Table 2.5 *Sessions of the Constituent Assembly at a Glance*

Sessions	Period
First Session	December 9–23, 1946
Second Session	January 20–25, 1947
Third Session	April 28-May 2, 1947
Fourth Session	July 14–31, 1947
Fifth Session	August 14–30, 1947
Sixth Session	January 27, 1948

Seventh Session	November 4, 1948-January 8, 1949
Eighth Session	May 16-June 16, 1949
Ninth Session	July 30-September 18, 1949
Tenth Session	October 6–17, 1949
Eleventh Session	November 14–26, 1949

Note: The Assembly met once again on January 24, 1950, when the members appended their signatures to the Constitution of India.

Table 2.6 *Time Taken by the Framers of Other Constitutions*[8h]

Sl. No.	Country	No. of Articles	Working Period	Time Taken
1	U.S.A.	7	May 25, 1787 to September 17, 1787	Less than 4 months
2	Canada	147	October 10, 1864 to March 1867	About 2 years and 6 months
3	Australia	128	March 1891 to July 9, 1900	About 9 years
4	South Africa	153	October 1908 to September 20, 1909	1 year

Table 2.7 *Articles Related to Short Title, Commencement, Hindi Text and Repeals at a Glance*

Article No.	Subject Matter
393	Short title
394	Commencement
394A	Authoritative text in the hindi language
395	Repeals

NOTES AND REFERENCES

1. The Cabinet Mission consisting of three members (Lord Pethick Lawrence, Sir Stafford Cripps and A.V. Alexander) arrived in India on March 24, 1946. The Cabinet Mission published its plan on May 16, 1946.
2. These include Madras, Bombay, UP, Bihar, Central Provinces, Orissa, Punjab, NWFP, Sindh, Bengal and Assam.
3. These include Delhi, Ajmer-Merwara, Coorg and British Baluchistan.
4. The Government of India Act of 1935 granted limited franchise on the basis of tax, property and education.
5. These include Baroda, Bikaner, Jaipur, Patiala, Rewa and Udaipur.
6. For the first time, the Constituent Assembly met as Dominion Legislature on November 17, 1947 and elected G.V. Mavlankar as its speaker.
7. These are West Punjab, East Bengal, NWFP, Sindh, Baluchistan and Sylhet District of Assam. A separate Constituent Assembly was set up for Pakistan.
8. The Provisional Parliament ceased to exist on April 17, 1952. The first elected Parliament with the two Houses came into being in May 1952.

8a. One of the political consequences of the British Government's statement of June 3, 1947, was that following a referendum, the North-West Frontier Province and Baluchistan became part of the territory of the Dominion of Pakistan and as a result the tribal areas in this region became a concern of that Dominion. The Sub-Committee on the Tribal Areas in the North-West Frontier Province and Baluchistan was not therefore called upon to function on behalf of the Constituent Assembly of India. (B. Shiva Rao, The Framing of India's Constitution : Select Documents, Volume III, P.681.)

The members of this Sub-Committee were : Khan Abdul Ghaffar Khan, Khan Abdul Samad Khan and

Mehr Chand Khanna. The information about the Chairman is not found.

8b. B. Shiva Rao, *The Framing of India's Constitution,* Select Documents, Volume 1, p.326.

8c. *Ibid*.

8d. Granville Austin, *The Indian Constitution - Cornerstone of a Nation,* Oxford, 1966, pp. 32–33.

8e. See Table 2.6 at the end of this chapter.

8f. The 56th Constitutional Amendment Bill of 1987, after being passed by both the Houses of Parliament and assented by the President, finally emerged as the 58th Constitutional Amendment Act of 1987.

8g. Part XXII is entitled as 'Short Title, Commencement, Authoritative Text in Hindi and Repeals'. Originally, this part consisted of three Articles only - Article 393 (short title), Article 394 (commencement) and Article 395 (repeals).

8h. J.R. Siwach, *Dynamics of Indian Government and Politics,* Sterling Publishers Private Limited, Second Edition, 1990, p.10.

9. Granville Austin, *The Indian Constitution–Cornerstone of a Nation*, Oxford, 1966, P. 8.

3 Salient Features of the Constitution

The Indian Constitution is unique in its contents and spirit. Though borrowed from almost every Constitution of the world, the Constitution of India has several salient features that distinguish it from the Constitutions of the other countries.

It should be noted at the outset that a number of original features of the Constitution (as adopted in 1949) have undergone a substantial change, on account of several amendments, particularly 7th, 42nd, 44th, 73rd, 74th, 97th and 101st Amendments. In fact, the 42nd Amendment Act (1976) is known as 'Mini-Constitution' due to the important and large number of changes made by it in various parts of the Constitution. However, in the *Kesavananda Bharati* case[1] (1973), the Supreme Court ruled that the constituent power of Parliament under Article 368 does not enable it to alter the 'basic structure' of the Constitution.

SALIENT FEATURES OF THE CONSTITUTION

The salient features of the Constitution, as it stands today, are as follows:

1. Lengthiest Written Constitution

Constitutions are classified into written, like the American Constitution, or unwritten, like the British Constitution. The Constitution of India is the lengthiest of all the written Constitutions of the world. It is a very comprehensive, elaborate and detailed document.

Originally (1949), the Constitution contained a Preamble, 395 Articles (divided into 22 Parts) and 8 Schedules. Presently (2019), it consists of a Preamble, about 470 Articles (divided into 25 Parts) and 12 Schedules[2]. The various amendments carried out since 1951 have deleted about 20 Articles and one Part (VII) and added about 95 Articles, four Parts (IVA, IXA, IXB and XIVA) and four Schedules (9, 10, 11 and 12). No other Constitution in the world has so many Articles and Schedules[3] .

Four factors have contributed to the elephantine size of our Constitution. They are:

(a) Geographical factors, that is, the vastness of the country and its diversity.
(b) Historical factors, e.g., the influence of the Government of India Act of 1935, which was bulky.
(c) Single Constitution for both the Centre and the states[4] .
(d) Dominance of legal luminaries in the Constituent Assembly.

The Constitution contains not only the fundamental principles of governance, but also detailed administrative provisions. Further, those matters which in other modern democratic countries have been left to the ordinary legislation or established political conventions have also been included in the constitutional document itself in India.

2. Drawn From Various Sources

The Constitution of India has borrowed most of its provisions from the Constitutions of various other countries as well as from the Government of India Act[5] of 1935. Dr. B.R. Ambedkar proudly acclaimed that the Constitution of India has been framed after 'ransacking all the known Constitutions of the World[6] '.

The structural part of the Constitution is, to a large extent, derived from the Government of India Act of 1935. The philosophical part of the Constitution (the Fundamental Rights and the Directive Principles of State Policy) derive their inspiration from the American and Irish Constitutions, respectively. The political part of the Constitution (the principle of Cabinet Government and the relations between the Executive and the Legislature) have been largely drawn from the British Constitution[7] .

The other provisions of the Constitution have been drawn from the Constitutions of Canada, Australia, Germany, USSR (now Russia), France, South Africa, Japan and so on[8] .

The most profound influence and material source of the Constitution is the Government of India Act, 1935. The Federal Scheme, Judiciary, Governors, Emergency Powers, the Public Service Commissions and most of the administrative details are drawn from this Act. More than half of the provisions of Constitution are identical to or bear a close resemblance to the Act of 1935[9] .

3. Blend of Rigidity and Flexibility

Constitutions are also classified into rigid and flexible. A rigid Constitution is one that requires a special procedure for its amendment, as for example, the American Constitution. A flexible constitution, on the other hand, is one that can be amended in the same manner as the ordinary laws are made, as for example, the British Constitution.

The Constitution of India is neither rigid nor flexible, but a synthesis of both. Article 368 provides for two types of amendments:

(a) Some provisions can be amended by a special majority of the Parliament, i.e., a two-third majority of the members of

each House present and voting, and a majority of the total membership of each House.

(b) Some other provisions can be amended by a special majority of the Parliament and with the ratification by half of the total states.

At the same time, some provisions of the Constitution can be amended by a simple majority of the Parliament in the manner of ordinary legislative process. Notably, these amendments do not come under Article 368.

4. Federal System with Unitary Bias

The Constitution of India establishes a federal system of Government. It contains all the usual features of a federation, viz., two Government, division of powers, written Constitution, supremacy of Constitution, rigidity of Constitution, independent judiciary and bicameralism.

However, the Indian Constitution also contains a large number of unitary or non-federal features, viz., a strong Centre, single Constitution, single citizenship, flexibility of Constitution, integrated judiciary, appointment of state governor by the Centre, all-India services, emergency provisions and so on.

Moreover, the term ‘Federation’ has nowhere been used in the Constitution. Article 1, on the other hand, describes India as a ‘Union of States’ which implies two things: one, Indian Federation is not the result of an agreement by the states; and two, no state has the right to secede from the federation.

Hence, the Indian Constitution has been variously described as ‘federal in form but, unitary in spirit’, ‘quasi-federal’ by K.C. Wheare, ‘bargaining federalism’ by Morris Jones, ‘co-operative federalism’ by Granville

Austin, ‘federation with a centralising tendency’ by Ivor Jennings and so on.

5. Parliamentary Form of Government

The Constitution of India has opted for the British Parliamentary System of Government rather than American Presidential System of Government. The parliamentary system is based on the

principle of co-operation and co-ordination between the legislative and executive organs while the presidential system is based on the doctrine of separation of powers between the two organs.

The parliamentary system is also known as the 'Westminster'[10] Model of Government, responsible Government and Cabinet Government. The Constitution establishes the parliamentary system not only at the Centre, but also in the states.

The features of parliamentary government in India are:

(a) Presence of nominal and real executives;
(b) Majority party rule,
(c) Collective responsibility of the executive to the legislature,
(d) Membership of the ministers in the legislature,
(e) Leadership of the Prime Minister or the Chief Minister,
(f) Dissolution of the lower House (Lok Sabha or Assembly).

Even though the Indian parliamentary system is largely based on the British pattern, there are some fundamental differences between the two. For example, the Indian Parliament is not a sovereign body like the British Parliament. Further, the Indian State has an elected head (republic) while the British State has hereditary head (monarchy).

In a parliamentary system whether in India or Britain, the role of the Prime Minister has become so significant and crucial that the political scientists like to call it a 'Prime Ministerial Government'.

6. Synthesis of Parliamentary Sovereignty and Judicial Supremacy

The doctrine of sovereignty of Parliament is associated with the British Parliament, while the principle of judicial supremacy with that of the American Supreme Court.

Just as the Indian parliamentary system differs from the British system, the scope of judicial review power of the Supreme Court in India is narrower than that of what exists in US. This is because the American Constitution provides for 'due process of law' against that of 'procedure established by law' contained in the Indian Constitution (Article 21).

Therefore, the framers of the Indian Constitution have preferred a proper synthesis between the British principle of parliamentary

sovereignty and the American principle of judicial supremacy. The Supreme Court, on the one hand, can declare the parliamentary laws as unconstitutional through its power of judicial review. The Parliament, on the other hand, can amend the major portion of the Constitution through its constituent power.

7. Integrated and Independent Judiciary

The Indian Constitution establishes a judicial system that is integrated as well as independent.

The Supreme Court stands at the top of the integrated judicial system in the country. Below it, there are high courts at the state level. Under a high court, there is a hierarchy of subordinate courts, that is, district courts and other lower courts. This single system of courts enforces both the central laws as well as the state laws, unlike in USA, where the federal laws are enforced by the federal judiciary and the state laws are enforced by the state judiciary.

The Supreme Court is a federal court, the highest court of appeal, the guarantor of the fundamental rights of the citizens and the guardian of the Constitution. Hence, the Constitution has made various provisions to ensure its independence–security of tenure of the judges, fixed service conditions for the judges, all the expenses of the Supreme Court charged on the Consolidated Fund of India, prohibition on discussion on the conduct of judges in the legislatures, ban on practice after retirement, power to punish for its contempt vested in the Supreme Court, separation of the judiciary from the executive, and so on.

8. Fundamental Rights

Part III of the Indian Constitution guarantees six[11] fundamental rights to all the citizens:

(a) Right to Equality (Articles 14–18);
(b) Right to Freedom (Articles 19–22);
(c) Right against Exploitation (Articles 23–24);
(d) Right to Freedom of Religion (Articles 25–28);
(e) Cultural and Educational Rights (Articles 29–30); and
(f) Right to Constitutional Remedies (Article 32).

The Fundamental Rights are meant for promoting the idea of political democracy. They operate as limitations on the tyranny of the executive and arbitrary laws of the legislature. They are justiciable in nature, that is, they are enforceable by the courts for their violation. The aggrieved person can directly go to the Supreme Court which can issue the writs of *habeas corpus, mandamus,* prohibition, *certiorari* and *quo warranto* for the restoration of his rights.

However, the Fundamental Rights are not absolute and subject to reasonable restrictions. Further, they are not sacrosanct and can be curtailed or repealed by the Parliament through a Constitutional Amendment Act. They can also be suspended during the operation of a National Emergency except the rights guaranteed by Articles 20 and 21.

9. Directive Principles of State Policy

According to Dr. B.R. Ambedkar, the Directive Principles of State Policy is a 'novel feature' of the Indian Constitution. They are enumerated in Part IV of the Constitution. They can be classified into three broad cat-egories–socialistic, Gandhian and liberalintellectual.

The Directive Principles are meant for promoting the ideal of social and economic democracy. They seek to establish a 'welfare state' in India. However, unlike the Fundamental Rights, the directives are non-justiciable in nature, that is, they are not enforceable by the courts for their violation. Yet, the Constitution itself declares that 'these principles are fundamental in the governance of the country and it shall be the duty of the state to apply these principles in making laws'. Hence, they impose a moral obligation on the state authorities for their application. But, the real force (sanction) behind them is political, that is, public opinion.

In the *Minerva Mills* case[12] (1980), the Supreme Court held that 'the Indian Constitution is founded on the bedrock of the balance between the Fundamental Rights and the Directive Principles'.

10. Fundamental Duties

The original constitution did not provide for the Fundamental Duties of the citizens. These were added during the operation of internal emergency (1975–77) by the 42nd Constitutional Amendment Act of 1976 on the recommendation of the Swaran Singh Committee. The 86th Constitutional Amendment Act of 2002 added one more fundamental duty.

The Part IV-A of the Constitution (which consists of only one Article 51-A) specifies the eleven Fundamental Duties viz., to respect the Constitution, national flag and national anthem; to protect the sovereignty, unity and integrity of the country; to promote the spirit of common brotherhood amongst all the people; to preserve the rich heritage of our composite culture and so on.

The fundamental duties serve as a reminder to citizens that while enjoying their rights, they have also to be quite conscious of duties they owe to their country, their society and to their fellow-citizens. However, like the Directive Principles, the duties are also non-justiciable in nature.

11. A Secular State

The Constitution of India stands for a Secular State. Hence, it does not uphold any particular religion as the official religion of the Indian State. The following provisions of the Constitution reveal the secular character of the Indian State:

(a) The term ‘secular’ was added to the Preamble of the Indian Constitution by the 42nd Constitutional Amendment Act of 1976.

(b) The Preamble secures to all citizens of India liberty of belief, faith and worship.

(c) The State shall not deny to any person equality before the law or equal protection of the laws (Article 14).

(d) The State shall not discriminate against any citizen on the ground of religion (Article 15).

(e) Equality of opportunity for all citizens in matters of public employment (Article 16).

(f) All persons are equally entitled to freedom of conscience and the right to freely profess, practice and propagate any religion (Article 25).

(g) Every religious denomination or any of its section shall have the right to manage its religious affairs (Article 26).
(h) No person shall be compelled to pay any taxes for the promotion of a particular religion (Article 27).
(i) No religious instruction shall be provided in any educational institution maintained by the State (Article 28).
(j) Any section of the citizens shall have the right to conserve its distinct language, script or culture (Article 29).
(k) All minorities shall have the right to establish and administer educational institutions of their choice (Article 30).
(l) The State shall endeavour to secure for all the citizens a Uniform Civil Code (Article 44).

The Western concept of secularism connotes a complete separation between the religion (the church) and the state (the politics). This negative concept of secularism is inapplicable in the Indian situation where the society is multireligious. Hence, the Indian Constitution embodies the positive concept of secularism, i.e., giving equal respect to all religions or protecting all religions equally.

Moreover, the Constitution has also abolished the old system of communal repre-sentation[13] , that is, reservation of seats in the legislatures on the basis of religion. However, it provides for the temporary reservation of seats for the scheduled castes and scheduled tribes to ensure adequate representation to them.

12. Universal Adult Franchise

The Indian Constitution adopts universal adult franchise as a basis of elections to the Lok Sabha and the state legislative assemblies. Every citizen who is not less than 18 years of age has a right to vote without any discrimination of caste, race, religion, sex, literacy, wealth and so on. The voting age was reduced to 18 years from 21 years in 1989 by the 61st Constitutional Amendment Act of 1988.

The introduction of universal adult franchise by the Constitution-makers was a bold experiment and highly remarkable in view of the vast size of the country, its huge population, high poverty, social inequality and overwhelming illiteracy.[14]

Universal adult franchise makes democracy broad-based, enhances the self-respect and prestige of the common people, upholds the principle of equality, enables minorities to protect their interests and opens up new hopes and vistas for weaker sections.

13. Single Citizenship

Though the Indian Constitution is federal and envisages a dual polity (Centre and states), it provides for only a single citizenship, that is, the Indian citizenship.

In countries like USA, on the other hand, each person is not only a citizen of USA, but also a citizen of the particular state to which he belongs. Thus, he owes allegiance to both and enjoys dual sets of rights–one conferred by the National government and another by the state government.

In India, all citizens irrespective of the state in which they are born or reside enjoy the same political and civil rights of citizenship all over the country and no discrimination is made between them.

Despite the constitutional provision for a single citizenship and uniform rights for all the people, India has been witnessing the communal riots, class conflicts, caste wars, linguistic clashes and ethnic disputes. This means that the cherished goal of the Constitution-makers to build a united and integrated Indian nation has not been fully realised.

14. Independent Bodies

The Indian Constitution not only provides for the legislative, executive and judicial organs of the Government (Central and state) but also establishes certain independent bodies. They are envisaged by the Constitution as the bulkworks of the democratic system of Government in India. These are:

(a) Election Commission to ensure free and fair elections to the Parliament, the state legislatures, the office of President of India and the office of Vice-president of India.

(b) Comptroller and Auditor-General of India to audit the accounts of the Central and state governments. He acts as

the guardian of public purse and comments on the legality and propriety of Government expenditure.

(c) Union Public Service Commission to conduct examinations for recruitment to all-India services[15] and higher Central services and to advise the President on disciplinary matters.

(d) State Public Service Commission in every state to conduct examinations for recruitment to state services and to advice the governor on disciplinary matters.

The Constitution ensures the independence of these bodies through various provisions like security of tenure, fixed service conditions, expenses being charged on the Consolidated Fund of India, and so on.

15. Emergency Provisions

The Indian Constitution contains elaborate emergency provisions to enable the President to meet any extraordinary situation effectively. The rationality behind the incorporation of these provisions is to safeguard the sovereignty, unity, integrity and security of the country, the democratic political system and the Constitution.

The Constitution envisages three types of emergencies, namely:

(a) National emergency on the ground of war or external aggression or armed rebellion[16] (Article 352);

(b) State emergency (President's Rule) on the ground of failure of Constitutional machinery in the states (Article 356) or failure to comply with the directions of the Centre (Article 365); and

(c) Financial emergency on the ground of threat to the financial stability or credit of India (Article 360).

During an emergency, the Central Government becomes all-powerful and the states go into the total control of the centre. It converts the federal structure into a unitary one without a formal amendment of the Constitution. This kind of transformation of the political system from federal (during normal times) to unitary (during emergency) is a unique feature of the Indian Constitution.

16. Three-tier Government

Originally, the Indian Constitution, like any other federal Constitution, provided for a dual polity and contained provisions with regard to the organisation and powers of the Centre and the states. Later, the 73rd and 74th Constitutional Amendment Acts (1992) have added a third-tier of Government (i.e., local) which is not found in any other Constitution of the world.

The 73rd Amendment Act of 1992 gave constitutional recognition to the panchay-ats (rural local governments) by adding a new Part IX[17] and a new Schedule 11 to the Constitution. Similarly, the 74th Amendment Act of 1992 gave constitutional recognition to the municipalities (urban local governments) by adding a new Part IX-A[18] and a new Schedule 12 to the Constitution.

17. Co-operative Societies

The 97th Constitutional Amendment Act of 2011 gave a constitutional status and protection to co-operative societies. In this context, it made the following three changes in the Constitution:

1. It made the right to form co-operative societies a fundamental right (Article 19).
2. It included a new Directive Principle of State Policy on promotion of co-operative societies (Article 43-B).
3. It added a new Part IX-B in the Constitution which is entitled as “The Co-operative Societies” (Articles 243-ZH to 243-ZT).

The new Part IX-B contains various provisions to ensure that the co-operative societies in the country function in a democratic, professional, autonomous and economically sound manner. It empowers the Parliament in respect of multi-state cooperative societies and the state legislatures in respect of other co-operative societies to make the appropriate law.

CRITICISM OF THE CONSTITUTION

The Constitution of India, as framed and adopted by the Constituent Assembly of India, has been criticized on the following grounds:

1. *A Borrowed Constitution*

The critics opined that the Indian Constitution contains nothing new and original. They described it as a 'borrowed Constitution' or a 'bag of borrowings' or a 'hotch-potch Constitution' or a 'patchwork' of several documents of the world constitutions. However, this criticism is unfair and illogical. This is because, the framers of the Constitution made necessary modifications in the features borrowed from other constitutions for their suitability to the Indian conditions, at the same time avoiding their faults.

While answering the above criticism in the Constituent Assembly, Dr. B.R. Ambedkar, the Chairman of the Drafting Committee, said : "One likes to ask whether there can be anything new in a Constitution framed at this hour in the history of the world. More than hundred years have rolled over when the first written Constitution was drafted. It has been followed by many countries reducing their constitutions to writing. What the scope of a Constitution should be has long been settled. Similarly, what are the fundamentals of a Constitution are recognized all over the world. Given these facts, all Constitutions in their main provisions must look similar. The only new things, if there can be any, in a Constitution framed so late in the day are the variations made to remove the faults and to accommodate it to the needs of the country. The charge of producing a blind copy of the Constitutions of other countries is based, I am sure, on an inadequate study of the Constitution".[19]

2. *A Carbon Copy of the 1935 Act*

The critics said that the framers of the Constitution have included a large number of the provisions of the Government of India Act of 1935 into the Constitution of India. Hence, they called the Constitution as a "Carbon Copy of the 1935 Act" or an "Amended Version of the 1935 Act". For example, N. Srinivasan observed

that the Indian Constitution is “both in language and substance a close copy of the Act of 1935”. Similarly, Sir Ivor Jennings, a British Constitutionalist, said that “the Constitution derives directly from the Government of India Act of 1935 from which, in fact, many of its provisions are copied almost textually”.

Further, P.R. Deshmukh, a member of the Constituent Assembly, commented that “the Constitution is essentially the Government of India Act of 1935 with only adult franchise added”.

The same Dr. B.R. Ambedkar answered the above criticism in the Constituent Assembly in the following way : “As to the accusation that the Draft Constitution has reproduced a good part of the provisions of the Government of India Act, 1935, I make no apologies. There is nothing to be ashamed of in borrowing. It involves no plagiarism. Nobody holds any patent rights in the fundamental ideas of a Constitution. What I am sorry about is that the provisions taken from the Government of India Act, 1935, relate mostly to the details of administration”.[20]

3. *Un-Indian or Anti-Indian*

According to the critics, the Indian Constitution is ‘un-Indian’ or ‘anti-Indian’ because it does not reflect the political traditions and the spirit of India. They said that the foreign nature of the Constitution makes it unsuitable to the Indian situation or unworkable in India. In this context, K. Hanumanthaiya, a member of the Constituent Assembly, commented : “We wanted the music of Veena or Sitar, but here we have the music of an English band. That was because our Constitution-makers were educated that way”.[21] Similarly, Lokanath Misra, another member of the Constituent Assembly, criticized the Constitution as a “slavish imitation of the west, much more - a slavish surrender to the west”.[22] Further, Lakshminarayan Sahu, also a member of the Constituent Assembly, observed: “The ideals on which this draft Constitution is framed have no manifest relation to the fundamental spirit of India. This Constitution would not prove suitable and would break down soon after being brought into operation”.[23]

4. *An Un-Gandhian Constitution*

According to the critics, the Indian Constitution is un-Gandhian because it does not contain the philosophy and ideals of Mahatma Gandhi, the father of the Indian Nation. They opined that the Constitution should have been raised and built upon village panchayats and district panchayats. In this context, the same member of the Constituent Assembly, K. Hanumanthaiya, said: "That is exactly the kind of Constitution Mahatma Gandhi did not want and did not envisage".[24] T. Prakasam, another member of the Constituent Assembly, attributed this lapse to Ambedkar's non-participation in the Gandhian movement and the antagonism towards the Gandhian ideas.[25]

5. *Elephantine Size*

The critics stated that the Indian Constitution is too bulky and too detailed and contains some unnecessary elements. Sir Ivor Jennings, a British Constitutionalist, observed that the provisions borrowed were not always well-selected and that the constitution, generally speaking, was too long and complicated.[26]

In this context, H.V. Kamath, a member of the Constituent Assembly, commented : "The emblem and the crest that we have selected for our assembly is an elephant. It is perhaps in consonance with that our constitution too is the bulkiest that the world has produced".[27] He also said: "I am sure, the House does not agree that we should make the Constitution an elephantine one".[28]

6. *Paradise of the Lawyers*

According to the critics, the Indian Constitution is too legalistic and very complicated. They opined that the legal language and phraseology adopted in the constitution makes it a complex document. The same Sir Ivor Jennings called it a "lawyer's paradise".

In this context, H.K. Maheswari, a member of the Constituent Assembly, observed : "The draft tends to make people more litigious, more inclined to go to law courts, less truthful and less likely to follow the methods of truth and non-violence. If I may say so, the draft is really a lawyer's paradise. It opens up vast avenues of litigation and will give our able and ingenious lawyers plenty of work to do".[29]

Similarly, P.R. Deshmukh, another member of the Constituent Assembly, said : “I should, however, like to say that the draft of the articles that have been brought before the House by Dr. Ambedkar seems to my mind to be far too ponderous like the ponderous tomes of a law manual. A document dealing with a constitution hardly uses so much of padding and so much of verbiage. Perhaps it is difficult for them to compose a document which should be, to my mind, not a law manual but a socio-political document, a vibrating, pulsating and life-giving document. But, to our misfortune, that was not to be, and we have been burdened with so much of words, words and words which could have been very easily eliminated.”[30]

Table 3.1 *The Constitution of India at a Glance*

Parts	Subject Matter	Articles Covered
I	The Union and its territory	1 to 4
II	Citizenship	5 to 11
III	Fundamental Rights	12 to 35
IV	Directive Principles of State Policy	36 to 51
IV-A	Fundamental Duties	51-A
V	The Union Government	52 to 151
	Chapter I - The Executive	52 to 78
	Chapter II - Parliament	79 to 122
	Chapter III - Legislative Powers of President	123
	Chapter IV - The Union Judiciary	124 to 147
	Chapter V - Comptroller and Auditor-General of India	148 to 151
VI	The State Governments	152 to 237
	Chapter I - General	152
	Chapter II - The Executive	153 to 167

	Chapter III - The State Legislature	168 to 212
	Chapter IV - Legislative Powers of Governor	213
	Chapter V - The High Courts	214 to 232
	Chapter VI - Subordinate Courts	233 to 237
VII	The States in Part B of the First Schedule (deleted)	238 (deleted)
VIII	The Union Territories	239 to 242
IX	The Panchayats	243 to 243–0
IX-A	The Municipalities	243-P to 243-ZG
IX-B	The Co-operative Societies	243-ZH to 243-ZT
X	The Scheduled and Tribal Areas	244 to 244-A
XI	Relations between the Union and the States	245 to 263
	Chapter I - Legislative Relations	245 to 255
	Chapter II - Administrative Relations	256 to 263
XII	Finance, Property, Contracts and Suits	264 to 300-A
	Chapter I - Finance	264 to 291
	Chapter II - Borrowing	292 to 293
	Chapter III - Property, Contracts, Rights, Liabilities, Obligations and Suits	294 to 300
	Chapter IV - Right to Property	300-A
XIII	Trade, Commerce and Intercourse within the Territory of India	301 to 307
XIV	Services under the Union and the States	308 to 323
	Chapter I - Services	308 to 314

	Chapter II - Public Service Commissions	315 to 323
XIV-A	Tribunals	323-A to 323-B
XV	Elections	324 to 329-A
XVI	Special Provisions relating to Certain Classes	330 to 342-A
XVII	Official Language	343 to 351-A
	Chapter I - Language of the Union	343 to 344
	Chapter II - Regional Languages	345 to 347
	Chapter III–Language of the Supreme Court, High Courts, and so on	348 to 349
	Chapter IV–Special Directives	350 to 351
XVIII	Emergency Provisions	352 to 360
XIX	Miscellaneous	361 to 367
XX	Amendment of the Constitution	368
XXI	Temporary, Transitional and Special Provisions	369 to 392
XXII	Short title, Commencement, Authoritative Text in Hindi and Repeals	393 to 395

Note: Part VII (dealing with Part-B states) was deleted by the 7th Amendment Act (1956). On the other hand, both Part IV-A and Part XIV-A were added by the 42nd Amendment Act (1976), while Part IX-A was added by the 74th Amendment Act (1992), and Part IX-B was added by the 97th Amendment Act (2011).

Table 3.2 *Important Articles of the Constitution at a Glance*

Articles	Deals with
1	Name and territory of the Union
3	Formation of new states and alteration of areas, boundaries or names of existing states

13	Laws inconsistent with or in derogation of the fundamental rights
14	Equality before law
16	Equality of opportunity in matters of public employment
17	Abolition of untouchability
19	Protection of certain rights regarding freedom of speech, etc.
21	Protection of life and personal liberty
21A	Right to elementary education
25	Freedom of conscience and free profession, practice and propagation of religion
30	Right of minorities to establish and administer educational institutions
31C	Saving of laws giving effect to certain directive principles
32	Remedies for enforcement of fundamental rights including writs
38	State to secure a social order for the promotion of welfare of the people
40	Organisation of village panchayats
44	Uniform civil code for the citizens
45	Provision for early childhood care and education to children below the age of 6 years.
46	Promotion of educational and economic interests of scheduled castes, scheduled tribes and other weaker sections
50	Separation of judiciary from executive
51	Promotion of international peace and security
51A	Fundamental duties
72	Power of president to grant pardons, etc., and to suspend, remit or commute sentences in certain

	cases
74	Council of ministers to aid and advise the president
78	Duties of prime minister as respects the furnishing of information to the president, etc.
110	Definition of Money Bills
112	Annual financial statement (Budget)
123	Power of president to promulgate ordinances during recess of Parliament
143	Power of president to consult Supreme Court
155	Appointment of governor
161	Power of governor to grant pardons, etc., and to suspend, remit or commute sentences in certain cases
163	Council of ministers to aid and advise the governor
167	Duties of chief minister with regard to the furnishing of information to governor, etc.
169	Abolition or creation of legislative councils in states
200	Assent to bills by governor (including reservation for President)
213	Power of governor to promulgate ordinances during recess of the state legislature
226	Power of high courts to issue certain writs
239AA	Special provisions with respect to Delhi
249	Power of Parliament to legislate with respect to a matter in the State List in the national interest
262	Adjudication of disputes relating to waters of inter-state rivers or river valleys
263	Provisions with respect to an inter-state council
265	Taxes not to be imposed save by authority of law

275	Grants from the Union to certain states
280	Finance Commission
300	Suits and proceedings
300A	Persons not to be deprived of property save by authority of law (Right to property)
311	Dismissal, removal or reduction in rank of persons employed in civil capacities under the Union or a state.
312	All-India Services
315	Public service commissions for the Union and for the states
320	Functions of Public service commissions
323-A	Administrative tribunals
324	Superintendence, direction and control of elections to be vested in an Election Commission
330	Reservation of seats for scheduled castes and scheduled tribes in the House of the People
335	Claims of scheduled castes and scheduled tribes to services and posts
352	Proclamation of Emergency (National Emergency)
356	Provisions in case of failure of constitutional machinery in states (President's Rule)
360	Provisions as to financial emergency.
365	Effect of failure to comply with, or to give effect to, directions given by the Union (President's Rule)
368	Power of Parliament to amend the Constitution and procedure therefor
370	Temporary provisions with respect to the state of Jammu and Kashmir[31]

Table 3.3 *Schedules of the Constitution at a Glance*

Numbers	Subject Matter	Articles

		Covered
First Schedule	1. Names of the States and their territorial jurisdiction.	1 and 4
	2. Names of the Union Territories and their extent.	
Second Schedule	Provisions relating to the emoluments, allowances, privileges and so on of:	59, 65, 75, 97, 125, 148, 158, 164, 186 and 221
	1. The President of India	
	2. The Governors of States	
	3. The Speaker and the Deputy Speaker of the Lok Sabha	
	4. The Chairman and the Deputy Chairman of the Rajya Sabha	
	5. The Speaker and the Deputy Speaker of the Legislative Assembly in the states	
	6. The Chairman and the Deputy Chairman of the Legislative Council in the states	
	7. The Judges of the Supreme Court	
	8. The Judges of the High Courts	
	9. The Comptroller and Auditor-General of India	
Third Schedule	Forms of Oaths or Affirmations for:	75, 84, 99, 124, 146, 173, 188 and 219
	1. The Union ministers	
	2. The candidates for election to the Parliament	
	3. The members of Parliament	

	4. The judges of the Supreme Court	
	5. The Comptroller and Auditor-General of India	
	6. The state ministers	
	7. The candidates for election to the state legislature	
	8. The members of the state legislature	
	9. The judges of the High Courts	
Fourth Schedule	Allocation of seats in the Rajya Sabha to the states and the union territories.	4 and 80
Fifth Schedule	Provisions relating to the administration and control of scheduled areas and scheduled tribes.	244
Sixth Schedule	Provisions relating to the administration of tribal areas in the states of Assam, Meghalaya, Tripura and Mizoram.	244 and 275
Seventh Schedule	Division of powers between the Union and the States in terms of List I (Union List), List II (State List) and List III (Concurrent List). Presently, the Union List contains 98 subjects (originally 97), the State List contains 59 subjects (originally 66) and the Concurrent List contains 52 subjects (originally 47).	246
Eighth Schedule	Languages recognized by the Constitution. Originally, it had 14 languages but presently there are 22 languages. They are:	344 and 351

	Assamese, Bengali, Bodo, Dogri (Dongri), Gujarati, Hindi, Kannada, Kashmiri, Konkani, Mathili (Maithili), Malayalam, Manipuri, Marathi, Nepali, Odia, Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu and Urdu. Sindhi was added by the 21st Amendment Act of 1967; Konkani, Manipuri and Nepali were added by the 71st Amendment Act of 1992; and Bodo, Dongri, Maithili and Santhali were added by the 92nd Amendment Act of 2003. Oriya was renamed as 'Odia' by the 96th Amendment Act of 2011.	
Ninth Schedule	Acts and Regulations (originally 13 but presently 282)[32] of the state legislatures dealing with land reforms and abolition of the zamindari system and of the Parliament dealing with other matters. This schedule was added by the 1st Amendment (1951) to protect the laws included in it from judicial scrutiny on the ground of violation of fundamental rights. However, in 2007, the Supreme Court ruled that the laws included in this schedule after April 24, 1973, are now open to judicial review.	31-B
Tenth Schedule	Provisions relating to disqualification of the members of Parliament and State Legislatures on the ground of defection. This schedule was added by the 52nd	102 and 191

	Amendment Act of 1985, also known as Anti-defection Law.	
Eleventh Schedule	Specifies the powers, authority and responsibilities of Panchayats. It has 29 matters. This schedule was added by the 73rd Amendment Act of 1992.	243-G
Twelfth Schedule	Specifies the powers, authority and responsibilities of Municipalities. It has 18 matters. This schedule was added by the 74th Amendment Act of 1992.	243-W

Table 3.4 *Sources of the Constitution at a Glance*

	Sources	Features Borrowed
1.	Government of India Act of 1935	Federal Scheme, Office of governor, Judiciary, Public Service Commissions, Emergency provisions and administrative details.
2.	British Constitution	Parliamentary government, Rule of Law, legislative procedure, single citizenship, cabinet system, prerogative writs, parliamentary privileges and bicameralism.
3.	US Constitution	Fundamental rights, independence of judiciary, judicial review, impeachment of the president, removal of Supreme Court and high court judges and post of vice-president.
4.	Irish Constitution	Directive Principles of State Policy, nomination of members to Rajya Sabha and method of election of president.

5.	Canadian Constitution	Federation with a strong Centre, vesting of residuary powers in the Centre, appointment of state governors by the Centre, and advisory jurisdiction of the Supreme Court.
6.	Australian Constitution	Concurrent List, freedom of trade, commerce and inter-course, and joint sitting of the two Houses of Parliament.
7.	Weimar Constitution of Germany	Suspension of Fundamental Rights during Emergency.
8.	Soviet Constitution (USSR, now Russia)	Fundamental duties and the ideal of justice (social, economic and political) in the Preamble.
9.	French Constitution	Republic and the ideals of liberty, equality and fraternity in the Preamble.
10.	South African Constitution	Procedure for amendment of the Constitution and election of members of Rajya Sabha.
11.	Japanese Constitution	Procedure established by Law.

NOTES AND REFERENCES

1. *Kesavananda Bharati* v. *State of Kerala,* (1973)
2. For details on Parts, important Articles and Schedules, see Tables 3.1, 3.2 and 3.3 at the end of this chapter.
3. The American Constitution originally consisted of only 7 Articles, the Australian 128, the Chinese 138, and the Canadian 147.
4. Till 2019, the erstwhile State of Jammu and Kashmir had its own constitution and thus enjoyed a special status by virtue of Article 370 of the Constitution of India. In 2019, this special status was abolished by a

presidential order known as “The Constitution (Application to Jammu and Kashmir) Order, 2019”. This order superseded the earlier order known as “The Constitution (Application to Jammu and Kashmir) Order, 1954”. The 2019 order extended all the provisions of the Constitution of India to Jammu and Kashmir also. However, the inoperative Article 370 continue to remain in the text of the Constitution of India.

Further, the Jammu and Kashmir Reorganisation Act, 2019, bifurcated the erstwhile State of Jammu and Kashmir into two separate Union territories, namely, the Union territory of Jammu & Kashmir and the Union territory of Ladakh.

5. About 250 provisions of the 1935 Act have been included in the Constitution.
6. *Constituent Assembly Debates,* Volume VII, P.35–38.
7. P.M. Bakshi, *The Constitution of India*, Universal, Fifth Edition, 2002, P. 4.
8. See Table 3.4 at the end of this chapter.
9. Brij Kishore Sharma, Introduction to the Constitution of India, Seventh Edition, 2015, PHI Learning Private Limited, P.42.
10. Westminster is a place in London where the British Parliament is located. It is often used as a symbol/synonym of the British Parliament.
11. Originally, the Constitution provided for seven Fundamental Rights. However, the Right to Property (Article 31) was deleted from the list of Fundamental Rights by the 44th Amendment Act of 1978. It is made a legal right under Article 300-A in Part XII of the constitution.
12. *Minerva Mills* v. *Union of India,* (1980).
13. The 1909, 1919, and 1935 Acts provided for communal representation.
14. Even in the western countries, the right to vote was extended only gradually. For example, USA gave franchise to women in 1920, Britain in 1928, USSR

(now Russia) in 1936, France in 1945, Italy in 1948 and Switzerland in 1971.

15. At present, there are three All-India services, namely Indian Administrative Service (IAS), Indian Police Service (IPS) and Indian Forest Service (IFS). In 1947, Indian Civil Service (ICS) was replaced by IAS and the Indian Police (IP) was replaced by IPS and were recognised by the Constitution as AllIndia Services. In 1963, IFS was created and it came into existence in 1966.
16. The 44th Amendment Act (1978) has replaced the original term 'internal disturbance' by the new term 'armed rebellion'.
17. Part IX of the Constitution provides for a three-tier system of panchayati raj in every state, that is, panchayats at the village, intermediate and district levels.
18. Part IX-A of the Constitution provides for three types of municipalities in every state, that is, nagar panchayat for a transitional area, municipal council for a smaller urban area and municipal corporation for a larger urban area.
19. Constituent Assembly Debates, Volume VII, pp.35–38.
20. *Ibid.*
21. Constituent Assembly Debates, Volume XI, P.616.
22. Constituent Assembly Debates, Volume VII, P.242.
23. Constituent Assembly Debates, Volume XI, P.613.
24. Constituent Assembly Debates, Volume XI, P.617.
25. Constituent Assembly Debates, Volume VII, P.387.
26. Ivor Jennings, Some Characteristics of the Indian Constitution, Oxford University Press, Madras, 1953, PP.9–16.
27. Constituent Assembly Debates, Volume VII, P.1042.
28. Constituent Assembly Debates, Volume VIII, P.127.
29. Constituent Assembly Debates, Volume VII, P.293.
30. Constituent Assembly Debates, Volume IX, P.613.
31. Till 2019, the erstwhile State of Jammu and Kashmir had its own constitution and thus enjoyed a special status by virtue of Article 370 of the Constitution of

India. In 2019, this special status was abolished by a presidential order known as “The Constitution (Application to Jammu and Kashmir) Order, 2019”. This order superseded the earlier order known as “The Constitution (Application to Jammu and Kashmir) Order, 1954”. The 2019 order extended all the provisions of the Constitution of India to Jammu and Kashmir also. However, the inoperative Article 370 continue to remain in the text of the Constitution of India.

Further, the Jammu and Kashmir Reorganisation Act, 2019, bifurcated the erstwhile State of Jammu and Kashmir into two separate Union territories, namely, the Union territory of Jammu & Kashmir and the Union territory of Ladakh.

32. Though the last entry is numbered 284, the actual total number is 282. This is because, three entries (87,92 and 130) have been deleted and one entry is numbered as 257-A.

4 Preamble of the Constitution

The American Constitution was the first to begin with a Preamble. Many countries, including India, followed this practice. The term ‘Preamble’ refers to the introduction or preface to the Constitution. It contains the summary or essence of the Constitution. N.A. Palkhivala, an eminent jurist and constitutional expert, called the Preamble as the ‘identity card of the Constitution.’

The Preamble to the Indian Constitution is based on the ‘Objectives Resolution’, drafted and moved by Pandit Nehru, and adopted by the Constituent Assembly[1]. It has been amended by the 42nd Constitutional Amendment Act (1976), which added three new words–Socialist, Secular and Integrity.

TEXT OF THE PREAMBLE

The Preamble in its present form reads:

"We, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN *SOCIALIST SECULAR* DEMOCRATIC REPUBLIC and to secure to all its citizens:

JUSTICE, Social, Economic and Political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity; and to promote among them all; FRATERNITY assuring the dignity of the individual and the unity *and integrity* of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION".

INGREDIENTS OF THE PREAMBLE

The Preamble reveals four ingredients or components:

1. Source of authority of the Constitution: The Preamble states that the Constitution derives its authority from the people of India.
2. Nature of Indian State: It declares India to be of a sovereign, socialist, secular democratic and republican polity.
3. Objectives of the Constitution: It specifies justice, liberty, equality and fraternity as the objectives.
4. Date of adoption of the Constitution: It stipulates November 26, 1949, as the date.

KEY WORDS IN THE PREAMBLE

Certain key words–Sovereign, Socialist, Secular, Democratic, Republic, Justice, Liberty, Equality and Fraternity–are explained as follows:

1. Sovereign

The word 'sovereign' implies that India is neither a dependency nor a dominion of any other nation, but an independent state[2]. There is no authority above it, and it is free to conduct its own affairs (both internal and external).

Though in 1949, India declared the continuation of her full membership of the Commonwealth of Nations and accepted the British Crown as the head of the Commonwealth, this extra-constitutional declaration does not affect India's sovereignty in any manner[3]. Further, India's membership of the United Nations Organisation (UNO) also in no way constitutes a limitation on her sovereignty[4] .

Being a sovereign state, India can either acquire a foreign territory or cede a part of its territory in favour of a foreign state.

2. Socialist

Even before the term was added by the 42nd Amendment in 1976, the Constitution had a socialist content in the form of certain Directive Principles of State Policy. In other words, what was hitherto implicit in the Constitution has now been made explicit. Moreover, the Congress party itself adopted a resolution[5] to establish a 'socialistic pattern of society' in its Avadi session as early as in 1955 and took measures accordingly.

Notably, the Indian brand of socialism is a 'democratic socialism' and not a 'communistic socialism' (also known as 'state socialism') which involves the nationalisation of all means of production and distribution and the abolition of private property. Democratic socialism, on the other hand, holds faith in a 'mixed economy' where both public and private sectors co-exist side by

side[6]. As the Supreme Court says, 'Democratic socialism aims to end poverty, ignorance, disease and inequality of opportunity[7]. Indian socialism is a blend of Marxism and Gandhism, leaning heavily towards the Gandhian socialism'[8] .

The new Economic Policy (1991) of liberalisation, privatisation and globalisation has, however, diluted the socialist credentials of the Indian State.

3. Secular

The term 'secular' too was added by the 42nd Constitutional Amendment Act of 1976. However, as the Supreme Court said in 1974, although the words 'secular state'[9] were not expressedly mentioned in the Constitution, there can be no doubt that Constitutionmakers wanted to establish such a state and accordingly Articles 25 to 28 (guaranteeing the fundamental right to freedom of religion) have been included in the constitution.

The Indian Constitution embodies the positive concept of secularism ie, all religions in our country (irrespective of their strength) have the same status and support from the state[10] .

4. Democratic

A democratic[11] polity, as stipulated in the Preamble, is based on the doctrine of popular sovereignty, that is, possession of supreme power by the people.

Democracy is of two types–direct and indirect. In direct democracy, the people exercise their supreme power directly as is the case in Switzerland. There are four devices of direct democracy, namely, **Referendum, Initiative, Recall** and **Plebiscite**[12]. In indirect democracy, on the other hand, the representatives elected by the people exercise the supreme power and thus carry on the government and make the laws. This type of democracy, also known as representative democracy, is of two kinds–parliamentary and presidential.

The Indian Constitution provides for representative parliamentary democracy under which the executive is responsible to the legislature for all its policies and actions.

Universal adult franchise, periodic elections, rule of law, independence of judiciary, and absence of discrimination on certain grounds are the manifestations of the democratic character of the Indian polity.

The term 'democratic' is used in the Preamble in the broader sense embracing not only political democracy but also social and economic democracy.

This dimension was stressed by Dr. Ambedkar in his concluding speech in the Constituent Assembly on November 25, 1949, in the following way:

"Political democracy cannot last unless there lies at the base of it social democracy. What does social democracy mean ? It means a way of life which recognises liberty, equality and fraternity. The principles of liberty, equality and fraternity are not to be treated as separate items in a trinity. They form a union of trinity in the sense that to divorce one from the other is to defeat the very purpose of democracy. Liberty cannot be divorced from equality, equality cannot be divorced from liberty. Nor can liberty and equality be divorced from fraternity. Without equality, liberty would produce the supremacy of the few over the many. Equality without liberty, would kill individual initiative".[12a]

In the same context, the Supreme Court observed in 1997 that: "The Constitution envisions to establish an egalitarian social order rendering to every citizen social, economic and political justice in a social and economic democracy of the Bharat Republic".

5. Republic

A democratic polity can be classified into two categories– monarchy and republic. In a monarchy, the head of the state (usually king or queen) enjoys a hereditary position, that is, he comes into office through succession, e.g., Britain. In a republic, on the other hand, the head of the state is always elected directly or indirectly for a fixed period, e.g., USA.

Therefore, the term 'republic' in our Preamble indicates that India has an elected head called the president. He is elected indirectly for a fixed period of five years.

A republic also means two more things: one, vesting of political sovereignty in the people and not in a single individual like a king;

second, the absence of any privileged class and hence all public offices being opened to every citizen without any discrimination.

6. Justice

The term ‘justice’ in the Preamble embraces three distinct forms–social, economic and political, secured through various provisions of Fundamental Rights and Directive Principles.

Social justice denotes the equal treatment of all citizens without any social distinction based on caste, colour, race, religion, sex and so on. It means absence of privileges being extended to any particular section of the society, and improvement in the conditions of backward classes (SCs, STs and OBCs) and women.

Economic justice denotes the non-discrimination between people on the basis of economic factors. It involves the elimination of glaring inequalities in wealth, income and property. A combination of social justice and economic justice denotes what is known as ‘distributive justice’.

Political justice implies that all citizens should have equal political rights, equal access to all political offices and equal voice in the government.

The ideal of justice–social, economic and political–has been taken from the Russian Revolution (1917).

7. Liberty

The term ‘liberty’ means the absence of restraints on the activities of individuals, and at the same time, providing opportunities for the development of individual personalities.

The Preamble secures to all citizens of India liberty of thought, expression, belief, faith and worship, through their Fundamental Rights, enforceable in court of law, in case of violation.

Liberty as elaborated in the Preamble is very essential for the successful functioning of the Indian democratic system. However, liberty does not mean ‘license’ to do what one likes, and has to be enjoyed within the limitations mentioned in the Constitution itself. In brief, the liberty conceived by the Preamble or Fundamental Rights is not absolute but qualified.

The ideals of liberty, equality and fraternity in our Preamble have been taken from the French Revolution (1789–1799).

8. Equality

The term ‘equality’ means the absence of special privileges to any section of the society, and the provision of adequate opportunities for all individuals without any discrimination.

The Preamble secures to all citizens of India equality of status and opportunity. This provision embraces three dimensions of equality–civic, political and economic.

The following provisions of the chapter on Fundamental Rights ensure civic equality:

(a) Equality before the law (Article 14).
(b) Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth (Article 15).
(c) Equality of opportunity in matters of public employment (Article 16).
(d) Abolition of untouchability (Article 17).
(e) Abolition of titles (Article 18).

There are two provisions in the Constitution that seek to achieve political equality. One, no person is to be declared ineligible for inclusion in electoral rolls on grounds of religion, race, caste or sex (Article 325). Two, elections to the Lok Sabha and the state assemblies to be on the basis of adult suffrage (Article 326).

The Directive Principles of State Policy (Article 39) secures to men and women equal right to an adequate means of livelihood and equal pay for equal work.

9. Fraternity

Fraternity means a sense of brotherhood. The Constitution promotes this feeling of fraternity by the system of single citizenship. Also, the Fundamental Duties (Article 51-A) say that it shall be the duty of every citizen of India to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic, regional or sectional diversities.

The Preamble declares that fraternity has to assure two things– the dignity of the individual and the unity and integrity of the nation. The word ‘integrity’ has been added to the preamble by the 42nd Constitutional Amendment (1976).

According to K.M. Munshi, a member of the Drafting Committee of the Constituent Assembly, the phrase ‘dignity of the individual’ signifies that the Constitution not only ensures material betterment and maintain a democratic set-up, but that it also recognises that the personality of every individual is sacred. This is highlighted through some of the provisions of the Fundamental Rights and Directive Principles of State Policy, which ensure the dignity of individuals. Further, the Fundamental Duties (Article 51-A) also protect the dignity of women by stating that it shall be the duty of every citizen of India to renounce practices derogatory to the dignity of women, and also makes it the duty of every citizen of India to uphold and protect the sovereignty, unity and integrity of India.

The phrase ‘unity and integrity of the nation’ embraces both the psychological and territorial dimensions of national integration. Article 1 of the Constitution describes India as a ‘Union of States’ to make it clear that the states have no right to secede from the Union, implying the indestructible nature of the Indian Union. It aims at overcoming hindrances to national integration like communalism, regionalism, casteism, linguism, secessionism and so on.

SIGNIFICANCE OF THE PREAMBLE

The Preamble embodies the basic philosophy and fundamental values–political, moral and religious–on which the Constitution is based. It contains the grand and noble vision of the Constituent Assembly, and reflects the dreams and aspirations of the founding fathers of the Constitution. In the words of Sir Alladi Krishnaswami Iyer, a member of the Constituent Assembly who played a significant role in making the Constitution, 'The Preamble to our Constitution expresses what we had thought or dreamt so long'.

According to K.M. Munshi, a member of the Drafting Committee of the Constituent Assembly, the Preamble is the 'horoscope of our sovereign democratic republic'.

Pandit Thakur Das Bhargava, another member of the Constituent Assembly, summed up the importance of the Preamble in the following words: 'The Preamble is the most precious part of the Constitution. It is the soul of the Constitution. It is a key to the Constitution. It is a jewel set in the Constitution. It is a proper yardstick with which one can measure the worth of the Constitution'.

Sir Ernest Barker, a distinguished English political scientist, paid a glowing tribute to the political wisdom of the authors of the Preamble. He described the Preamble as the 'key-note'[13] to the Constitution. He was so moved by the text of the preamble that he quoted[14] it at the opening of his popular book, *Principles of Social and Political Theory* (1951).

M. Hidayatullah, a former Chief Justice of India, observed, 'Preamble resembles the Declaration of Independence of the United States of America, but is more than a declaration. It is the soul of our Constitution, which lays down the pattern of our political society. It contains a solemn resolve, which nothing but a revolution can alter[15] .

PREAMBLE AS PART OF THE CONSTITUTION

One of the controversies about the Preamble is as to whether it is a part of the Constitution or not.

In the *Berubari Union*[16] case (1960), the Supreme Court said that the Preamble shows the general purposes behind the several provisions in the Constitution, and is thus a key to the minds of the makers of the Constitution. Further, where the terms used in any article are ambiguous or capable of more than one meaning, some assistance at interpretation may be taken from the objectives enshrined in the Preamble. Despite this recognition of the significance of the Preamble, the Supreme Court specifically opined that Preamble is *not* a part of the Constitution.

In the *Kesavananda Bharati* case[17] (1973), the Supreme Court rejected the earlier opinion and held that Preamble *is* a part of the Constitution. It observed that the Preamble is of extreme importance and the Constitution should be read and interpreted in the light of the grand and noble vision expressed in the Preamble. In the *LIC of India* case[18] (1995) also, the Supreme Court again held that the Preamble is an integral part of the Constitution.

Like any other part of the Constitution, the Preamble was also enacted by the Constituent Assembly; but, after the rest of the Constitution was already enacted. The reason for inserting the Preamble at the end was to ensure that it was in conformity with the Constitution as adopted by the Constituent Assembly. While forwarding the Preamble for votes, the President of the Constituent Assembly said, 'The question is that Preamble stands part of the Constitution'[19]. The motion was then adopted. Hence, the current opinion held by the Supreme Court that the Preamble is a part of the Constitution, is in consonance with the opinion of the founding fathers of the Constitution.

However, two things should be noted:

1. The Preamble is neither a source of power to legislature nor a prohibition upon the powers of legislature.
2. It is non-justiciable, that is, its provisions are not enforceable in courts of law.

AMENABILITY OF THE PREAMBLE

The question as to whether the Preamble can be amended under Article 368 of the Constitution arose for the first time in the historic *Kesavananda Bharati* case (1973). It was urged that the Preamble cannot be amended as it is not a part of the Constitution. The petitioner contended that the amending power in Article 368 cannot be used to destroy or damage the basic elements or the fundamental features of the Constitution, which are enshrined in the Preamble.

The Supreme Court, however, held that the Preamble is a part of the Constitution. The Court stated that the opinion tendered by it in the *Berubari Union* (1960) in this regard was wrong, and held that the Preamble can be amended, subject to the condition that no amendment is done to the 'basic features'. In other words, the Court held that the basic elements or the fundamental features of the Constitution as contained in the Preamble cannot be altered by an amendment under Article 368[20] .

The Preamble has been amended only once so far, in 1976, by the 42nd Constitutional Amendment Act, which has added three new words–Socialist, Secular and Integrity–to the Preamble. This amendment was held to be valid.

NOTES AND REFERENCES

1. Moved by Nehru on December 13, 1946 and adopted by the Constituent Assembly on January 22, 1947.
2. Till the passage of the Indian Independence Act, 1947, India was a dependency (colony) of the British Empire. From August 15, 1947 to January 26, 1950, India's political status was that of a dominion in the British Commonwealth of Nations. India ceased to be a British dominion on January 26, 1950, by declaring herself a sovereign republic. However, Pakistan continued to be a British Dominion until 1956.
3. To dispel the lurking fears of some members of the Constituent Assembly, Pandit Nehru said in 1949 thus:

'We took pledge long ago to achieve *Purna Swaraj.* We have achieved it. Does a nation lose its independence by an alliance with another country? Alliance normally means commitments. The free association of the sovereign Commonwealth of Nations does not involve such commitments. Its very strength lies in its flexibility and its complete freedom. It is well-known that it is open to any member-nation to go out of the commonwealth if it so chooses'. He further stated, 'It is an agreement by free will, to be terminated by free will'.

4. India became a member of the UNO in 1945.
5. The Resolution said: 'In order to realise the object of Congress and to further the objectives stated in the Preamble and Directive Principles of State Policy of the Constitution of India, planning should take place with a view to the establishment of a socialistic pattern of society, where the principal means of production are under social ownership or control, production is progressively speeded up and there is equitable distribution of the national wealth'.
6. The Prime Minister, Indira Gandhi, said, 'We have always said that we have our own brand of socialism. We will nationalise the sectors where we feel the necessity. Just nationalisation is not our type of socialism'.
7. *G.B. Pant University of Agriculture and Technology v. State of Uttar Pradesh* (2000).
8. *Nakara v. Union of India* (1983).
9. On the basis of the attitude of the state towards religion, three types of states can be conceived of:
   (a) *Atheistic State:* The state is anti-religion and hence, condemns all religions.
   (b) *Theocratic State:* The state is pro-religion and hence, declares one particular religion as the state religion, as for example, Bangladesh, Burma, Sri Lanka, Pakistan, and so on.
   (c) *Secular State:* The state is neutral in the matter of religion and hence, does not uphold any particular

religion as the state religion, as for example, USA and India.

G.S. Pande, *Constitutional Law of India,* Allahabad Law Agency, eighth edition, 2002, P. 222.

10. The then Union Law Minister, H.R. Gokhale defined this concept as: 'There will be freedom, liberty of faith and worship, whatever religion you belong to. The State will not have anything to do, as a state, with any religion excepting to treat every religion equally, but the State will not have any foundation of religion'. Similarly, P.B. Gajendragadkar, a former Chief Justice of India, defined secularism as in the Indian Constitution in the following way: 'The State does not owe loyalty to any particular religion as such: it is not irreligious or anti-religious; it gives equal freedom to all religions'.
11. The term 'democracy' is derived from two Greek words, namely, *Demos* and *Kratia* meaning 'People' and 'rule' respectively.
12. *Referendum* is a procedure whereby a proposed legislation is referred to the electorate for settlement by their direct votes.

    Initiative is a method by means of which the people can propose a bill to the legislature for enactment.

    Recall is a method by means of which the voters can remove a representative or an officer before the expiry of his term, when he fails to discharge his duties properly.

    Plebiscite is a method of obtaining the opinion India's of people on any issue of public importance. It is generally used to solve the territorial disputes.

12a. B. Shiva Rao, *The Framing of India's Constitution: Select Documents*, Volume IV, P. 944.

13. He said that the Preamble of the Indian Constitution states 'in a brief and pithy form the argument of much of the book; and it may accordingly serve as a key-note'.
14. He wrote: 'I am all the more moved to quote it because I am proud that the people of India should begin their independent life by subscribing to the principles of a

political tradition which we in the west call western, but which is now something more than the western'.

15. M Hidayatullah, *Democracy in India and the Judicial Process,* p. 51.
16. Reference by the President of India under Article 143 of the Constitution on the implementation of the Indo-Pakistan agreement relating to Berubari union and exchange of enclaves (1960).
17. *Kesavananda Bharati* v. *State of Kerala* (1973).
18. *LIC of India* v. *Consumer Education and Research Centre* (1995).
19. *'Constituent Assembly Debates',* Volume 10, P. 450–456.
20. The Court observed, 'The edifice of our Constitution is based upon the basic elements mentioned in the Preamble. If any of these elements are removed, the structure will not survive and it will not be the same Constitution or it cannot maintain its identity. An amending power cannot be interpreted so as to confer power on the Parliament to take away any of these fundamental and basic characteristics of the polity'.

5 Union and its Territory

Articles 1 to 4 under Part-I of the Constitution deal with the Union and its territory.

UNION OF STATES

Article 1 describes India, that is, Bharat as a 'Union of States' rather than a 'Federation of States'. This provision deals with two things: one, name of the country; and two, type of polity.

There was no unanimity in the Constituent Assembly with regard to the name of the country. Some members suggested the traditional name (Bharat), while other advocated the modern name (India). Hence, the Constituent Assembly had to adopt a mix of both ('India, that is, Bharat')

Secondly, the country is described as 'Union' although its Constitution is federal in structure. According to Dr. B.R. Ambedkar, the phrase 'Union of States' has been preferred to 'Federation of States' for two reasons: one, the Indian Federation is not the result of an agreement among the states like the American Federation; and two, the states have no right to secede from the federation. The federation is an Union because it is indestructible. The country is an integral whole and divided into different states only for the convenience of administration[1] .

According to Article 1, the territory of India can be classified into three categories:

1. Territories of the states
2. Union territories
3. Territories that may be acquired by the Government of India at any time.

The names of states and union territories and their territorial extent are mentioned in the first schedule of the Constitution. At present, there are 28 states and 9 union territories. The provisions of the Constitution pertaining to the states are applicable to all the states in the same manner[2]. However, the special provisions (under Part XXI) applicable to the States of Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunanchal Pradesh, Goa and Karnataka override the general provisions relating to the states as a class. Further, the Fifth and Sixth Schedules contain separate provisions with

respect to the administration of scheduled areas and tribal areas within the states.

Notably, the ‘Territory of India’ is a wider expression than the ‘Union of India’ because the latter includes only states while the former includes not only the states, but also union territories and territories that may be acquired by the Government of India at any future time. The states are the members of the federal system and share a distribution of powers with the Centre. The union territories and the acquired territories, on the other hand, are directly administered by the Central government.

Being a sovereign state, India can acquire foreign territories according to the modes recognised by international law, i.e., cession (following treaty, purchase, gift, lease or plebiscite), occupation (hitherto unoccupied by a recognised ruler), conquest or subjugation. For example, India acquired several foreign territories such as Dadra and Nagar Haveli; Goa, Daman and Diu; Puducherry; and Sikkim since the commencement of the Constitution. The acquisition of these territories are discussed later in this chapter.

Article 2 empowers the Parliament to ‘admit into the Union of India, or establish, new states on such terms and conditions as it thinks fit’. Thus, Article 2 grants two powers to the Parliament: (a) the power to admit into the Union of India new states; and (b) the power to establish new states. The first refers to the admission of states which are already in existence, while the second refers to the establishment of states which were not in existence before. Notably, Article 2 relates to the admission or establishment of new states that are not part of the Union of India. Article 3, on the other hand, relates to the formation of or changes in the existing states of the Union of India. In other words, Article 3 deals with the internal re-adjustment *inter* se of the territories of the constituent states of the Union of India.

PARLIAMENT'S POWER TO REORGANISE THE STATES

Article 3 authorises the Parliament to:

(a) form a new state by separation of territory from any state or by uniting two or more states or parts of states or by uniting any territory to a part of any state;
(b) increase the area of any state;
(c) diminish the area of any state;
(d) alter the boundaries of any state; and
(e) alter the name of any state.

However, Article 3 lays down two conditions in this regard: one, a bill contemplating the above changes can be introduced in the Parliament only with the prior recommendation of the President; and two, before recommending the bill, the President has to refer the same to the state legislature concerned for expressing its views within a specified period.

Further, the power of Parliament to form new states includes the power to form a new state or union territory by uniting a part of any state or union territory to any other state or union territory[3] .

The President (or Parliament) is not bound by the views of the state legislature and may either accept or reject them, even if the views are received in time. Further, it is not necessary to make a fresh reference to the state legislature every time an amendment to the bill is moved and accepted in Parliament[4]. In case of a union territory, no reference need be made to the concerned legislature to ascertain its views and the Parliament can itself take any action as it deems fit.

It is, thus, clear that the Constitution authorises the Parliament to form new states or alter the areas, boundaries or names of the existing states without their consent. In other words, the Parliament can redraw the political map of India according to its will. Hence, the territorial integrity or continued existence of any state is not guaranteed by the Constitution. Therefore, India is rightly described as 'an indestructible union of destructible states'. The Union Government can destroy the states whereas the state governments cannot destroy the Union. In USA, on the other

hand, the territorial integrity or continued existence of a state is guaranteed by the Constitution. The American Federal Government cannot form new states or alter the borders of existing states without the consent of the states concerned. That is why the USA is described as ‘an indestructible union of indestructible states.’

Moreover, the Constitution (Article 4) itself declares that laws made for admission or establishment of new states (under Article 2) and formation of new states and alteration of areas, boundaries or names of existing states (under Articles 3) are not to be considered as amendments of the Constitution under Article 368. This means that such laws can be passed by a simple majority and by the ordinary legislative process.

Does the power of Parliament to diminish the areas of a state (under Article 3) include also the power to cede Indian territory to a foreign country? This question came up for examination before the Supreme Court in a reference made by the President in 1960. The decision of the Central Government to cede part of a territory known as Berubari Union (West Bengal) to Pakistan led to political agitation and controversy and thereby necessitated the Presidential reference. The Supreme Court held that the power of Parliament to diminish the area of a state (under Article 3) does not cover cession of Indian territory to a foreign country. Hence, Indian territory can be ceded to a foreign state only by amending the Constitution under Article 368. Consequently, the 9th Constitutional Amendment Act (1960) was enacted to transfer the said territory to Pakistan.

On the other hand, the Supreme Court in 1969 ruled that, settlement of a boundary dispute between India and another country does not require a constitutional amendment. It can be done by executive action as it does not involve cession of Indian territory to a foreign country.

EXCHANGE OF TERRITORIES WITH BANGLADESH

The 100th Constitutional Amendment Act (2015) was enacted to give effect to the acquiring of certain territories by India and transfer of certain other territories to Bangladesh in pursuance of the agreement and its protocol entered into between the Governments of India and Bangladesh. Under this deal, India transferred 111 enclaves to Bangladesh, while Bangladesh transferred 51 enclaves to India. In addition, the deal also involved the transfer of adverse possessions and the demarcation of a 6.1 km undemarcated border stretch. For these three purposes, the amendment modified the provisions relating to the territories of four states (Assam, West Bengal, Meghalaya and Tripura) in the First Schedule of the Constitution. The background of this amendment is as follows:

1. India and Bangladesh have a common land boundary of approximately 4096.7 kms. The India-East Pakistan land boundary was determined as per the Radcliffe Award of 1947. Disputes arose out of some provisions in the Radcliffe Award, which were sought to be resolved through the Bagge Award of 1950. Another effort was made to settle these disputes by the Nehru-Noon Agreement of 1958. However, the issue relating to division of Berubari Union was challenged before the Supreme Court. To comply with the opinion rendered by the Supreme Court, the Constitution (9th Amendment) Act, 1960 was passed by the Parliament. Due to the continuous litigation and other political developments at that time, the Constitution (9th Amendment) Act, 1960 could not be notified in respect of territories in former East Pakistan (presently Bangladesh).[4a]
2. On May 16, 1974, the Agreement between India and Bangladesh concerning the demarcation of the land boundary and related matters was signed between both the countries to find a solution to the complex nature of the border demarcation involved. This Agreement was not ratified as it involved, inter alia, transfer of territory which requires a Constitutional Amendment. In this connection, it

was also required to identify the precise area on the ground which would be transferred. Subsequently, the issues relating to demarcation of un-demarcated boundary; the territories in adverse possession; and exchange of enclaves were identified and resolved by signing a Protocol on September 6, 2011, which forms an integral part of the Land Boundary Agreement between India and Bangladesh, 1974. The Protocol was prepared with support and concurrence of the concerned state governments of Assam, Meghalaya, Tripura and West Bengal.[4b]

EVOLUTION OF STATES AND UNION TERRITORIES

Integration of Princely States

At the time of independence, India comprised two categories of political units, namely, the British provinces (under the direct rule of British government) and the princely states (under the rule of native princes but subject to the paramountcy of the British Crown). The Indian Independence Act (1947) created two independent and separate dominions of India and Pakistan and gave three options to the princely states viz., joining India, joining Pakistan or remaining independent. Of the 552 princely states situated within the geographical boundaries of India, 549 joined India and the remaining 3 (Hyderabad, Junagarh and Kashmir) refused to join India. However, in course of time, they were also integrated with India–Hyderabad by means of police action, Junagarh by means of referendum and Kashmir by the Instrument of Accession.

In 1950, the Constitution contained a four-fold classification of the states and territories of the Indian Union–Part A, Part B and Part C states and Part D territories[5]. In all, they numbered 29. Part A states comprised nine erstwhile governor's provinces of British India. Part B states consisted of nine erstwhile princely states with legislatures. Part C states consisted of erstwhile chief commissioner's provinces of British India and some of the erstwhile princely states. These Part C states (in all 10 in number) were centrally administered. The Andaman and Nicobar Islands were kept as the solitary Part D territories.

Dhar Commission and JVP Committee

The integration of princely states with the rest of India has purely an ad hoc arrangement. There has been a demand from different regions, particularly South India, for reorganisation of states on linguistic basis. Accordingly, in June 1948, the Government of India appointed the Linguistic Provinces Commission under the chairmanship of S.K. Dhar to examine the feasibility of this. The

commission submitted its report in December, 1948, and recommended the reorganisation of states on the basis of administrative convenience rather than linguistic factor. This created much resentment and led to the appointment of another Linguistic Provinces Committee by the Congress in December, 1948, itself to examine the whole question afresh. It consisted of Jawaharlal Nehru, Vallahbhai Patel and Pattabhi Sitaramayya and hence, was popularly known as JVP Committee[6]. It submitted its report in April, 1949, and formally rejected language as the basis for reorganisation of states.

Table 5.1 *Territory of India in 1950*

States in Part A	States in Part B	States in Part C	Territories in Part D
1. Assam	1. Hyderabad	1. Ajmer	1. Andaman and Nicobar Islands
2. Bihar	2. Jammu and Kashmir	2. Bhopal	
3. Bombay	3. Madhya Bharat	3. Bilaspur	
4. Madhya Pradesh	4. Mysore	4. Cooch-Behar	
5. Madras	5. Patiala and East Punjab	5. Coorg	
6. Orissa	6. Rajasthan	6. Delhi	
7. Punjab	7. Saurashtra	7. Himachal Pradesh	
8. United Provinces	8. Travancore-Cochin	8. Kutch	
9. West Bengal	9. Vindhya Pradesh	9. Manipur	
		10. Tripura	

Table 5.2 *Original Parts of the Constitution Dealing with States and Territories*

Parts	Original Heading	Articles covered
VI	The States in Part A of the First Schedule	152–237
VII	The States in Part B of the First Schedule	238
VIII	The States in Part C of the First Schedule	239–242
IX	The Territories in Part D of the First Schedule and other Territories not specified in that Schedule	243

However, in October, 1953, the Government of India was forced to create the first linguistic state, known as Andhra state, by separating the Telugu speaking areas from the Madras state. This followed a prolonged popular agitation and the death of Potti Sriramulu, a Congress person of standing, after a 56-day hunger strike for the cause.

Fazl Ali Commission

The creation of Andhra state intensified the demand from other regions for creation of states on linguistic basis. This forced the Government of India to appoint (in December, 1953) a three-member States Reorganisation Commission under the chairmanship of Fazl Ali to re-examine the whole question. Its other two members were K.M. Panikkar and H.N. Kunzru. It submitted its report in September 1955 and broadly accepted language as the basis of reorganisation of states. But, it rejected the theory of 'one language-one state'. Its view was that the unity of India should be regarded as the primary consideration in any redrawing of the country's political units. It identified four major

factors that can be taken into account in any scheme of reorganisation of states:

(a) Preservation and strengthening of the unity and security of the country.
(b) Linguistic and cultural homogeneity.
(c) Financial, economic and administrative considerations.
(d) Planning and promotion of the welfare of the people in each state as well as of the nation as a whole.

Table 5.3 *Territory of India in 1956*

States	Union Territories
1. Andra Pradesh	1. Andaman and Nicobar Islands
2. Assam	2. Delhi
3. Bihar	3. Himachal Pradesh
4. Bombay	4. Laccadive, Minicoy and Amindivi Islands
5. Jammu and Kashmir	5. Manipur
6. Kerala	6. Tripura
7. Madhya Pradesh	
8. Madras	
9. Mysore	
10. Orissa	
11. Punjab	
12. Rajasthan	
13. Uttar Pradesh	
14. West Bengal	

The commission suggested the abolition of the four-fold classification of states and territories under the original Constitution and creation of 16 states and 3 centrally administered territories. The Government of India accepted these recommendations with certain minor modifications. By the States Reorganisation Act (1956) and the 7th Constitutional Amendment

Act (1956), the distinction between Part A and Part B states was done away with and Part C states were abolished. Some of them were merged with adjacent states and some other were designated as union territories. As a result, 14 states and 6 union territories were created on November 1, 1956.[7]

The States Reorganisation Act (1956) established the new state of Kerala by merging the Travancore - Cochin State with the Malabar District of Madras state and Kasargode of South Canara (Dakshina Kannada). It merged the Telugu-speaking areas of Hyderabad state with the Andhra state to create the Andhra Pradesh state. Further, it merged the Madya Bharat state, Vindya Pradesh state and Bhopal state into the Madya Pradesh state. Similarly, it merged the Saurashtra state and Kutch state into that of the Bombay state, the Coorg state into that of Mysore state; the Patiala and East Punjab States Union (Pepsu) into that of Punjab state; and the Ajmer state into that of Rajastan state. Moreover, it created the new union territory of Laccadive, Minicoy and Amindivi Islands from the territory detached from the Madras state.

New States and Union Territories Created After 1956

Even after the large-scale reorganisation of the states in 1956, the political map of India underwent continuous changes due to the pressure of popular agitations and political conditions. The demand for the creation of some more states on the basis of language or cultural homogeneity resulted in the bifurcation of existing states.

Maharashtra and Gujarat

In 1960, the bilingual state of Bombay was divided[8] into two separate states–Maharashtra for Marathispeaking people and Gujarat for Gujaratispeaking people. Gujarat was established as the 15th state of the Indian Union.

Dadra and Nagar Haveli

The Portuguese ruled this territory until its liberation in 1954. Subsequently, the administration was carried on till 1961 by an administrator chosen by the people themselves. It was converted

into a union territory of India by the 10th Constitutional Amendment Act, 1961.

Goa, Daman and Diu

India acquired these three territories from the Portuguese by means of a police action in 1961. They were constituted as a union territory by the 12th Constitutional Amendment Act, 1962. Later, in 1987, Goa was conferred a statehood.[9] Consequently, Daman and Diu was made a separate union territory.

Puducherry

The territory of Puducherry comprises the former French establishments in India known as Puducherry, Karaikal, Mahe and Yanam. The French handed over this territory to India in 1954. Subsequently, it was administered as an 'acquired territory', till 1962 when it was made a union territory by the 14th Constitutional Amendment Act.

Nagaland

In 1963, the State of Nagaland was formed[10] by taking the Naga Hills and Tuensang area out of the state of Assam. This was done to satisfy the movement of the hostile Nagas. However, before giving Nagaland the status of the 16th state of the Indian Union, it was placed under the control of governor of Assam in 1961.

Haryana, Chandigarh and Himachal Pradesh

In 1966, the State of Punjab was bifurcated[11] to create Haryana, the 17th state of the Indian Union, and the union territory of Chandigarh. This followed the demand for a separate 'Sikh Homeland' *(Punjabi Subha)* raised by the Akali Dal under the leadership of Master Tara Singh. On the recommendation of the Shah Commission (1966), the Punjabi-speaking areas were constituted into the unilingual state of Punjab, the Hindi-speaking areas were constituted into the State of Haryana and the hill areas were merged with the adjoining union territory of Himachal Pradesh. In 1971, the union territory of Himachal Pradesh was elevated[12] to the status of a state (18th state of the Indian Union).

Manipur, Tripura and Meghalaya

In 1972, the political map of Northeast India underwent a major change.[13] Thus, the two union territories of Manipur and Tripura and the sub-state of Meghalaya got statehood and the two union territories of Mizoram and Arunachal Pradesh (originally known as North-East Frontier Agency–NEFA) came into being. With this, the number of states of the Indian Union increased to 21 (Manipur 19th, Tripura 20th and Meghalaya 21st). Initially, the 22nd Constitutional Amendment Act (1969) created Meghalaya as an 'autonomous state' or 'sub-state' within the state of Assam with its own legislature and council of ministers. However, this did not satisfy the aspirations of the people of Meghalaya. The union territories of Mizoram and Arunachal Pradesh were also formed out of the territories of Assam.

Sikkim

Till 1947, Sikkim was an Indian princely state ruled by Chogyal. In 1947, after the lapse of British paramountcy, Sikkim became a 'protectorate' of India, whereby the Indian Government assumed responsibility for the defence, external affairs and communications of Sikkim. In 1974, Sikkim expressed its desire for greater association with India. Accordingly, the 35th Constitutional Amendment Act (1974) was enacted by the parliament. This amendment introduced a new class of statehood under the constitution by conferring on Sikkim the status of an 'associate state' of the Indian Union. For this purpose, a new Article 2-A and a new schedule (10th Schedule containing the terms and conditions of association) were inserted in the Constitution. This experiment, however, did not last long as it could not fully satisfy the aspirations of the people of Sikkim. In a referendum held in 1975, they voted for the abolition of the institution of Chogyal and Sikkim becoming an integral part of India. Consequently, the 36th Constitutional Amendment Act (1975) was enacted to make Sikkim a full-fledged state of the Indian Union (the 22nd state). This amendment amended the First and the Fourth Schedules to the Constitution and added a new Article 371-F to provide for certain special provisions with respect to the administration of Sikkim. It also repealed Article 2-A and the 10th Schedule that were added by the 35th Amendment Act of 1974.

Mizoram, Arunachal Pradesh and Goa

In 1987, three new States of Mizoram,14 Arunachal Pradesh15 and Goa16 came into being as the 23rd, 24th and 25th states of the Indian Union respectively. The union territory of Mizoram was conferred the status of a full state as a sequel to the signing of a memorandum of settlement (Mizoram Peace Accord) in 1986 between the Central government and the Mizo National Front, ending the two-decade-old insurgency. Arunachal Pradesh had also been a union territory from 1972. The State of Goa was created by separating the territory of Goa from the Union Territory of Goa, Daman and Diu.

Chhattisgarh, Uttarakhand and Jharkhand

In 2000, three more new States of Chhattisgarh,[17] Uttarakhand[18] and Jharkhand[19] were created out of the territories of Madhya Pradesh, Uttar Pradesh and Bihar, respectively. These became the 26th, 27th and 28th states of the Indian Union, respectively.

Telangana

In 2014, the new state of Telangana came into existence as the 29th state of the Indian Union. It was carved out of the territories of Andhra Pradesh.

The Andhra State Act (1953) formed the first linguistic state of India, known as the state of Andhra, by taking out the Telugu speaking areas from the State of Madras (now Tamil Nadu). Kurnool was the capital of Andhra state and the state high court was established at Guntur.

The States Reorganisation Act (1956) merged the Telugu-speaking areas of Hyderabad state with the Andhra state to create the enlarged Andhra Pradesh state. The capital of the state was shifted to Hyderabad.

Again, the Andhra Pradesh Reorganisation Act (2014) bifurcated the Andhra Pradesh into two separate states, namely, the Andhra Pradesh (residuary) and the Telangana.

Jammu & Kashmir and Ladakh

Till 2019, the erstwhile State of Jammu and Kashmir had its own constitution and thus enjoyed a special status by virtue of Article 370 of the Constitution of India. In 2019, this special status was

abolished by a presidential order known as “The Constitution (Application to Jammu and Kashmir) Order, 2019”. This order superseded the earlier order known as “The Constitution (Application to Jammu and Kashmir) Order, 1954”. The 2019 order extended all the provisions of the Constitution of India to Jammu and Kashmir also. However, the inoperative Article 370 continue to remain in the text of the Constitution of India.

Further, the Jammu and Kashmir Reorganisation Act, 2019, bifurcated the erstwhile State of Jammu and Kashmir into two separate union territories, namely, the union territory of Jammu & Kashmir and the union territory of Ladakh.

The union territory of Jammu and Kashmir comprises all the districts of the erstwhile State of Jammu and Kashmir except the Kargil and Leh districts which have gone to the union territory of Ladakh.

Thus, the number of states and union territories increased from 14 and 6 in 1956 to 28 and 9 in 2019, respectively[20] .

Change of Names

The names of some states and union territories have also been changed. The United Provinces was the first state to have a new name. It was renamed ‘Uttar Pradesh’ in 1950. In 1969, Madras was renamed[21] ‘Tamil Nadu’. Similarly, in 1973, Mysore was renamed[22] ‘Karnataka’. In the same year, Laccadive, Minicoy and Amindivi Islands were renamed[23] ‘Lakshadweep’. In 1992, the Union Territory of Delhi was redesignated as the National Capital Territory of Delhi (without being conferred the status of a full-fledged state) by the 69th Constitutional Amendment Act, 1991.[24] In 2006, Uttaranchal was renamed[25] as ‘Uttarakhand’. In the same year, Pondicherry was renamed[26] as ‘Puducherry’. In 2011, Orissa was renamed[27] as ‘Odisha’.

Table 5.4 *Territory of India in 2019*

States	Union Territories
1. Andhra Pradesh	1. Andaman and Nicobar Islands

2. Arunachal Pradesh	2. Chandigarh
3. Assam	3. Dadra and Nagar Haveli
4. Bihar	4. Daman and Diu
5. Chhattisgarh	5. Delhi (National Capital Territory)
6. Goa	6. Jammu and Kashmir
7. Gujarat	7. Ladakh
8. Haryana	8. Lakshadweep
9. Himachal Pradesh	9. Puducherry
10. Jharkhand	
11. Karnataka	
12. Kerala	
13. Madhya Pradesh	
14. Maharashtra	
15. Manipur	
16. Meghalaya	
17. Mizoram	
18. Nagaland	
19. Odisha	
20. Punjab	
21. Rajasthan	
22. Sikkim	
23. Tamil Nadu	
24. Telangana	
25. Tripura	
26. Uttarakhand	
27. Uttar Pradesh	
28. West Bengal	

Table 5.5 *Laws Made by Parliament Under Article 3 of the Constitution*

Sl. No.	Acts	Provisions
1.	Assam (Alteration of Boundaries) Act, 1951	Altered the boundaries of the State of Assam by ceding a strip of territory comprised in that State to Bhutan.
2.	Andhra State Act, 1953	Formed the first linguistic state, known as the State of Andhra, by taking out the Telugu speaking areas from the State of Madras. Kurnool was the capital of Andhra State and the state high court was established at Guntur.
3.	Himachal Pradesh and Bilaspur (New State) Act, 1954	Formed the new state of Himachal Pradesh by Uniting the existing States of Himachal Pradesh and Bilaspur.
4.	Chandernagore (Merger) Act, 1954	Merged the territory of Chandernagore (a former enclave of French India) into the State of West Bengal.
5	States Reorganisation Act, 1956	Made the extensive changes in the boundaries of various states for the purpose of meeting the linguistic, regional and local demands. It created 14 states and 6 union territories. The States were: Andhra Pradesh, Assam,

Bihar, Bombay, Jammu and Kashmir, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh and West Bengal. The Union Territories were: Andaman and Nicobar Islands, Delhi, Himachal Pradesh, Laccadive, Minicoy and Amindivi Islands, Manipur and Tripura. It established the new state of Kerala by merging the Travancore-Cochin State with the Malabar district of Madras State and the Kasargode of South Canara (Dakshina Kannada). It merged the Teluguspeaking areas of Hyderabad State with the Andhra State to create the Andhra Pradesh State. Further, it merged the Madhya Bharat State, Vindhya Pradesh State and Bhopal State into the Madhya Pradesh State. Similarly, it merged the Saurashtra State and Kutch State into that of the Bombay State; the Coorg State into that of Mysore State; the Patiala and East Punjab States Union (Pepsu) into that of Punjab State; and the Ajmer State into that of Rajasthan State.

		Moreover, it created the new union territory of Laccadive, Minicoy and Amindivi Islands from the territory detached from the Madras State.
6	Bihar and West Bengal (Transfer of Territories) Act, 1956	Provided for the transfer of certain territories from the State of Bihar to the State of West Bengal.
7.	Rajasthan and Madhya Pradesh (Transfer of Territories) Act, 1959	Provided for the transfer of certain territories from the State of Rajasthan to the State of Madhya Pradesh.
8.	Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959	Provided for the alteration of boundaries of the States of Andhra Pradesh and Madras.
9.	Bombay Reorganisation Act, 1960	Formed the new State of Gujarat (15th state) by taking out the Gujarati speaking areas from the state of Bombay and renamed the other part of the Bombay State as Maharashtra State. The city of Ahmedabad was made the capital of Gujarat.
10.	Acquired Territories (Merger) Act, 1960	Provided for the merger into the States of Assam, Punjab and West Bengal of Certain territories acquired from Pakistan under the agreements entered into between the Governments of India and Pakistan, in 1958 and 1959.

11.	State of Nagaland Act, 1962	Formed the new State of Nagaland (16th state) by taking out the Naga Hills - Tuensang Area from the State of Assam. The Naga Hills - Tuensang Area was a tribal area of Assam specified in the Sixth Schedule of the Constitution.
12.	Punjab Reorganisation Act, 1966	Formed the new State of Haryana (17th state) by taking out the Hindi speaking areas from the State of Punjab. It also made Chandigarh a new Union Territory as well as a common capital for both Punjab and Haryana.
13.	Bihar and Uttar Pradesh (Alteration of Boundaries) Act, 1968	Provided for the alteration of boundaries of the States of Bihar and Uttar Pradesh.
14.	Andhra Pradesh and Mysore (Transfer of Territory) Act, 1968	Provided for the transfer of certain territory from the State of Mysore to the State of Andhra Pradesh.
15.	Madras State (Alteration of Name) Act, 1968	Changed the name of the State of Madras to that of State of Tamil Nadu.
16.	Assam Reorganisation (Meghalaya) Act, 1969	Formed an autonomous state (sub-state) known as Meghalaya, within the State of Assam.
17.	State of Himachal Pradesh Act, 1970	Elevated the Union Territory of Himachal Pradesh to the status of a state (18th state).

18.	North-Eastern Areas (Reorganisation) Act, 1971	Elevated the two Union Territories of Manipur and Tripura to the status of states (19th state and 20th state respectively). It also conferred full statehood on Meghalaya (21st state), which was previously a sub-state within the State of Assam. Further, it formed the two Union Territories of Mizoram and Arunachal Pradesh out of the territories of Assam.
19.	Mysore State (Alteration of Name) Act, 1973	Changed the name of the state of Mysore to that of the State of Karnataka.
20.	Laccadive, Minicoy and Amindivi Islands (Alteration of Name) Act, 1973	Changed the name of the Union Territory of the Laccadive, Minicoy and Amindivi Islands to that of the Union Territory of Lakshadweep.
21.	Haryana and Uttar Pradesh (Alteration of Boundaries) Act, 1979	Provided for the alteration of boundaries of the States of Haryana and Uttar Pradesh.
22.	State of Mizoram Act, 1986	Elevated the Union Territory of Mizoram to the status of a state (23rd state).
23.	State of Arunachal Pradesh Act, 1986	Elevated the Union Territory of Arunachal Pradesh to the status of a State (24th state).
24.	Goa, Daman and Diu Reorganisation Act, 1987	Formed the new State of Goa (25th State) by separating the territory of

		Goa from the Union Territory of Goa, Daman and Diu.
25.	Madhya Pradesh Reorganisation Act, 2000	Formed the new state of Chhattisgarh (26th state) out of the territories of the State of Madhya Pradesh.
26.	Uttar Pradesh Reorganisation Act, 2000	Created the new State of Uttaranchal (27th state) by carving out its territory from that of the territories of the state of Uttar Pradesh.
27.	Bihar Reorganisation Act, 2000	Established the new State of Jharkhand (28th state) by separating its territory from the territories of the State of Bihar.
28.	Uttaranchal (Alteration of Name) Act, 2006	Changed the name of the State of Uttaranchal to that of the State of Uttarakhand.
29.	Pondicherry (Alteration of Name) Act, 2006	Renamed the Union Territory of Pondicherry as the Union Territory of Puducherry.
30.	Orissa (Alteration of Name) Act, 2011	Changed the name of the State of Orissa to that of the State of Odisha.
31.	Andhra Pradesh Reorganisation Act, 2014	Formed the new state of Telangana (29th state) by carving out its territory from the territories of the state of Andhra Pradesh.
32.	Jammu and Kashmir Reorganisation Act, 2019	Bifurcated the erstwhile state of Jammu and Kashmir into two separate Union territories, namely,

	the Union territory of Jammu & Kashmir and the Union territory of Ladakh.

Table 5.6 *Articles Related to Union and its Territory at a Glance*

Article No.	Subject-matter
1.	Name and territory of the Union
2.	Admission or establishment of new states
2A.	Sikkim to be associated with the Union– (Repealed)
3.	Formation of new states and alteration of areas, boundaries or names of existing states
4.	Laws made under Articles 2 and 3 to provide for the amendment of the First and the Fourth Schedules and supplemental, incidental and consequential matters.

NOTES AND REFERENCES

1. *Constituent Assembly Debates*, volume 7, P, 43.
2. Till 2019, the erstwhile State of Jammu and Kashmir enjoyed a special position by virtue of Article 370 of the Indian Constitution. It had its own separate State Constitution.
3. Added by the 18th Constitutional Amendment Act of 1966.
4. *Babulal* v. *State of Bombay* (1960).

4a. This information is downloaded from the website of Ministry of Law and Justice (Legislative Department), Government of India.

4b. *Ibid*.

5. See Table 5.1.
6. It had no chairman or convenor.
7. See Table 5.3.
8. By the Bombay Reorganisation Act, 1960.

9. By the Goa, Daman and Diu Reorganisation Act, 1987.
10. By the State of Nagaland Act, 1962, with effect from December 1, 1963.
11. By Punjab Reorganisation Act, 1966.
12. By the State of Himachal Pradesh Act, 1970, with effect from January 25, 1971.
13. By the North-Eastern Areas (Reorganisation) Act, 1971, with effect from January 21, 1972.
14. By the State of Mizoram Act, 1986, with effect from February 20, 1987.
15. By the State of Arunachal Pradesh Act, 1986, with effect from February 20, 1987.
16. By the Goa, Daman and Diu Reorganisation Act, 1987.
17. By the Madhya Pradesh Reorganisation Act, 2000.
18. By the Uttar Pradesh Reorganisation Act, 2000.
19. By the Bihar Reorganisation Act, 2000.
20. See Table 5.4.
21. By the Madras State (Alteration of Name) Act, 1968, with effect from January 14, 1969.
22. By the Mysore State (Alteration of Name) Act, 1973.
23. By the Laccadive, Minicoy and Amindivi Islands (Alteration of Name) Act, 1973.
24. With effect from February 1, 1992.
25. By the Uttaranchal (Alteration of Name) Act, 2006.
26. By the Pondicherry (Alteration of Name) Act, 2006.
27. By the Orissa (Alteration of Name) Act, 2011.

6 Citizenship

MEANING AND SIGNIFICANCE

Like any other modern state, India has two kinds of people–citizens and aliens. Citizens are full members of the Indian State and owe allegiance to it. They enjoy all civil and political rights. Aliens, on the other hand, are the citizens of some other state and hence, do not enjoy all the civil and political rights. They are of two categories–friendly aliens or enemy aliens. Friendly aliens are the subjects of those countries that have cordial relations with India. Enemy aliens, on the other hand, are the subjects of that country that is at war with India. They enjoy lesser rights than the friendly aliens, eg, they do not enjoy protection against arrest and detention (Article 22).

The Constitution confers the following rights and privileges on the citizens of India (and denies the same to aliens):

1. Right against discrimination on grounds of religion, race, caste, sex or place of birth (Article 15).
2. Right to equality of opportunity in the matter of public employment (Article 16).
3. Right to freedom of speech and expression, assembly, association, movement, residence and profession (Article 19).
4. Cultural and educational rights (Articles 29 and 30).
5. Right to vote in elections to the Lok Sabha and state legislative assembly.
6. Right to contest for the membership of the Parliament and the state legislature.
7. Eligibility to hold certain public offices, that is, President of India, Vice-President of India, judges of the Supreme Court and the high courts, Governor of states, Attorney General of India and Advocate General of states.

Along with the above rights, the citizens also owe certain duties towards the Indian State, as for example, paying taxes, respecting the national flag and national anthem, defending the country and so on.

In India both a citizen by birth as well as a naturalised citizen are eligible for the office of President while in USA, only a citizen by birth and not a naturalised citizen is eligible for the office of President.

CONSTITUTIONAL PROVISIONS

The Constitution deals with the citizenship from Articles 5 to 11 under Part II. However, it contains neither any permanent nor any elaborate provisions in this regard. It only identifies the persons who became citizens of India at its commencement (i.e., on January 26, 1950). It does not deal with the problem of acquisition or loss of citizenship subsequent to its commencement. It empowers the Parliament to enact a law to provide for such matters and any other matter relating to citizenship. Accordingly, the Parliament has enacted the Citizenship Act (1955), which has been amended from time to time.

According to the Constitution, the following four categories of persons became the citizens of India at its commencement i.e., on January 26, 1950:

1. A person who had his domicile in India and also fulfilled any one of the three conditions, viz., if he was born in India; or if either of his parents was born in India; or if he has been ordinarily resident in India for five years immediately before the commencement of the Constitution, became a citizen of India.
2. A person who migrated to India from Pakistan became an Indian citizen if he or either of his parents or any of his grandparents was born in undivided India and also fulfilled any one of the two conditions viz., in case he migrated to India before July 19, 1948[1] , he had been ordinarily resident in India since the date of his migration; or in case he migrated to India on or after July 19, 1948, he had been registered as a citizen of India. But, a person could be so registered only if he had been resident in India for six months preceding the date of his application for registration.
3. A person who migrated to Pakistan from India after March 1, 1947, but later returned to India for resettlement could become an Indian citizen. For this, he had to be resident in India for six months preceding the date of his application for registration[2] .
4. A person who, or any of whose parents or grandparents, was born in undivided India but who is ordinarily residing outside India shall become an Indian citizen if he has been registered as a citizen of India by the diplomatic or consular representative of India in the country of his residence, whether before or after the commencement of the Constitution. Thus, this provision covers the overseas Indians who may want to acquire Indian citizenship.

To sum up, these provisions deal with the citizenship of (a) persons domiciled in India; (b) persons migrated from Pakistan; (c) persons

migrated to Pakistan but later returned; and (d) persons of Indian origin residing outside India.

The other constitutional provisions with respect to the citizenship are as follows:

1. No person shall be a citizen of India or be deemed to be a citizen of India, if he has voluntarily acquired the citizenship of any foreign state.
2. Every person who is or is deemed to be a citizen of India shall continue to be such citizen, subject to the provisions of any law made by Parliament.
3. Parliament shall have the power to make any provision with respect to the acquisition and termination of citizenship and all other matters relating to citizenship.

CITIZENSHIP ACT, 1955

The Citizenship Act (1955) provides for acquisition and loss of citizenship after the commencement of the Constitution.

Originally, the Citizenship Act (1955) also provided for the Commonwealth Citizenship. But, this provision was repealed by the Citizenship (Amendment) Act, 2003.

Acquisition of Citizenship

The Citizenship Act of 1955 prescribes five ways of acquiring citizenship, viz, birth, descent, registration, naturalisation and incorporation of territory:

1. By Birth

A person born in India on or after January 26, 1950 but before July 1, 1987 is a citizen of India by birth irrespective of the nationality of his parents.

A person born in India on or after July 1, 1987 is considered as a citizen of India only if either of his parents is a citizen of India at the time of his birth.

Further, those born in India on or after December 3, 2004 are considered citizens of India only if both of their parents are citizens of India or one of whose parents is a citizen of India and the other is not an illegal migrant at the time of their birth.

The children of foreign diplomats posted in India and enemy aliens cannot acquire Indian citizenship by birth.

2. By Descent

A person born outside India on or after January 26, 1950 but before December 10, 1992 is a citizen of India by descent, if his father was a citizen of India at the time of his birth.

A person born outside India on or after December 10, 1992 is considered as a citizen of India if either of his parents is a citizen of India at the time of his birth.

December 3, 2004 onwards, a person born outside India shall not be a citizen of India by descent, unless his birth is registered at an Indian consulate within one year of the date of birth or with the permission of the Central Government, after the expiry of the said period. An application, for registration of the birth of a minor child, to an Indian consulate shall be accompanied by an undertaking in writing from the parents of such minor child that he or she does not hold the passport of another country.

Further, a minor who is a citizen of India by virtue of descent and is also a citizen of any other country shall cease to be a citizen of India if he does not renounce the citizenship or nationality of another country within six months of his attaining full age.

3. By Registration

The Central Government may, on an application, register as a citizen of India any person (not being an illegal migrant) if he belongs to any of the following categories, namely:-

(a) a person of Indian origin who is ordinarily resident in India for seven years before making an application for registration;
(b) a person of Indian origin who is ordinarily resident in any country or place outside undivided India;
(c) a person who is married to a citizen of India and is ordinarily resident in India for seven years before making an application for registration;
(d) minor children of persons who are citizens of India;
(e) a person of full age and capacity whose parents are registered as citizens of India;
(f) a person of full age and capacity who, or either of his parents, was earlier citizen of independent India, and is ordinarily resident in India for twelve months immediately before making an application for registration;
(g) a person of full age and capacity who has been registered as an overseas citizen of India cardholder for five years, and who is ordinarily resident in India for twelve months before making an application for registration.

A person shall be deemed to be of Indian origin if he, or either of his parents, was born in undivided India or in such other territory which became part of India after the August 15, 1947.

All the above categories of persons must take an oath of allegiance before they are registered as citizens of India[2a].

4. By Naturalisation

The Central Government may, on an application, grant a certificate of naturalisation to any person (not being an illegal migrant) if he possesses the following qualifications:

(a) that he is not a subject or citizen of any country where citizens of India are prevented from becoming subjects or citizens of that country by naturalisation;
(b) that, if he is a citizen of any country, he undertakes to renounce the citizenship of that country in the event of his application for Indian citizenship being accepted;

(c) that he has either resided in India or been in the service of a Government in India or partly the one and partly the other, throughout the period of twelve months immediately preceding the date of the application;
(d) that during the fourteen years immediately preceding the said period of twelve months, he has either resided in India or been in the service of a Government in India, or partly the one and partly the other, for periods amounting in the aggregate to not less than eleven years;
(e) that he is of good character;
(f) that he has an adequate knowledge of a language specified in the Eighth Schedule to the Constitution[3] ; and
(g) that in the event of a certificate of naturalisation being granted to him, he intends to reside in India, or to enter into or continue in, service under a Government in India or under an international organisation of which India is a member or under a society, company or body of persons established in India. However, the Government of India may waive all or any of the above conditions for naturalisation in the case of a person who has rendered distinguished service to the science, philosophy, art, literature, world peace or human progress. Every naturalised citizen must take an oath of allegiance to the Constitution of India.

5. By Incorporation of Territory

If any foreign territory becomes a part of India, the Government of India specifies the persons who among the people of the territory shall be the citizens of India. Such persons become the citizens of India from the notified date. For example, when Pondicherry became a part of India, the Government of India issued the Citizenship (Pondicherry) Order (1962), under the Citizenship Act (1955).

6. Special Provisions as to Citizenship of Persons Covered by the Assam Accord

The Citizenship (Amendment) Act, 1985, added the following special provisions as to citizenship of persons covered by the Assam Accord (which related to the foreigners' issue):

(a) All persons of Indian origin who came to Assam before the January 1, 1966 from Bangladesh and who have been ordinarily residents in Assam since the date of their entry into Assam shall be deemed to be citizens of India as from the January 1, 1966.
(b) Every person of Indian origin who came to Assam on or after the January 1, 1966 but before the March 25, 1971 from Bangladesh and who has been ordinarily resident in Assam since the date of his entry

into Assam and who has been detected to be a foreigner shall register himself. Such a registered person shall be deemed to be a citizen of India for all purposes as from the date of expiry of a period of ten years from the date of detection as a foreigner. But, in the intervening period of ten years, he shall have the same rights and obligations as a citizen of India, excepting the right to vote.

Loss of Citizenship

The Citizenship Act (1955) prescribes three ways of losing citizenship whether acquired under the Act or prior to it under the Constitution, viz, renunciation, termination and deprivation:

1. By Renunciation

Any citizen of India of full age and capacity can make a declaration renouncing his Indian citizenship. Upon the registration of that declaration, that person ceases to be a citizen of India. However, if such a declaration is made during a war in which India is engaged, its registration shall be withheld by the Central Government.

Further, when a person renounces his Indian citizenship, every minor child of that person also loses Indian citizenship. However, when such a child attains the age of eighteen, he may resume Indian citizenship.

2. By Termination

When an Indian citizen voluntarily (consciously, knowingly and without duress, undue influence or compulsion) acquires the citizenship of another country, his Indian citizenship automatically terminates. This provision, however, does not apply during a war in which India is engaged.

3. By Deprivation

It is a compulsory termination of Indian citizenship by the Central government, if:

(a) the citizen has obtained the citizenship by fraud:
(b) the citizen has shown disloyalty to the Constitution of India:
(c) the citizen has unlawfully traded or communicated with the enemy during a war;
(d) the citizen has, within five years after registration or naturalisation, been imprisoned in any country for two years; and
(e) the citizen has been ordinarily resident out of India for seven years continuously.[4]

SINGLE CITIZENSHIP

Though the Indian Constitution is federal and envisages a dual polity (Centre and states), it provides for only a single citizenship, that is, the Indian citizenship. The citizens in India owe allegiance only to the Union. There is no separate state citizenship. The other federal states like USA and Switzerland, on the other hand, adopted the system of double citizenship.

In USA, each person is not only a citizen of USA but also of the particular state to which he belongs. Thus, he owes allegiance to both and enjoys dual sets of rights–one set conferred by the national government and another by the state government. This system creates the problem of discrimination, that is, a state may discriminate in favour of its citizens in matters like right to vote, right to hold public offices, right to practice professions and so on. This problem is avoided in the system of single citizenship prevalent in India.

In India, all citizens irrespective of the state in which they are born or reside enjoy the same political and civil rights of citizenship all over the country and no discrimination is made between them. However, this general rule of absence of discrimination is subject to some exceptions, viz,

1. The Parliament (under Article 16) can prescribe residence within a state or union territory as a condition for certain employments or appointments in that state or union territory, or local authority or other authority within that state or union territory. Accordingly, the Parliament enacted the Public Employment (Requirement as to Residence) Act, 1957, and thereby authorised the Government of India to prescribe residential qualification only for appointment to non-Gazetted posts in Andhra Pradesh, Himachal Pradesh, Manipur and Tripura. As this Act expired in 1974, there is no such provision for any state except Andhra Pradesh[5] and Telangana[5a].
2. The Constitution (under Article 15) prohibits discrimination against any citizen on grounds of religion, race, caste, sex or place of birth and not on the ground of residence. This means that the state can provide special benefits or give preference to its residents in matters that do not come within the purview of the rights given by the Constitution to the Indian citizens. For example, a state may offer concession in fees for education to its residents.
3. The freedom of movement and residence (under Article 19) is subjected to the protection of interests of any schedule tribe. In other words, the right of outsiders to enter, reside and settle in tribal areas is restricted. Of course, this is done to protect the distinctive culture,

language, customs and manners of schedule tribes and to safeguard their traditional vocation and property against exploitation.

4. Till 2019, the legislature of the erstwhile state of Jammu and Kashmir was empowered to:
   (a) define the persons who are permanent residents of the state; and
   (b) confer any special rights and privileges on such permanent residents as respects:
      (i) employment under the state government;
      (ii) acquisition of immovable property in the state;
      (iii) settlement in the state; and
      (iv) right to scholarships and such other forms of aid provided by tl government.

The above provision was based on Article 35-A of the Constitution of India. This Article was inserted in the constitution by "The Constitution (Application to Jammu and Kashmir) Order, 1954". This order was issued by the President under Article 370 of the Constitution which had provided a special status to the erstwhile state of Jammu and Kashmir. In 2019, this special status was abolished by a new presidential order known as "The Constitution (Application to Jammu and Kashmir) Order, 2019". This order superseded the earlier 1954 order.

The Constitution of India, like that of Canada, has introduced the system of single citizenship and provided uniform rights (except in few cases) for the people of India to promote the feeling of fraternity and unity among them and to build an integrated Indian nation. Despite this, India has been witnessing the communal riots, class conflicts, caste wars, linguistic clashes and ethnic disputes. Thus, the cherished goal of the founding fathers and the Constitution-makers to build an united and integrated Indian nation has not been fully realised.

OVERSEAS CITIZENSHIP OF INDIA

In September 2000, the Government of India (Ministry of External Affairs) had set-up a High Level Committee on the Indian Diaspora under the Chairmanship of L.M. Singhvi. The mandate of the Committee was to make a comprehensive study of the global Indian Diaspora and to recommend measures for a constructive relationship with them.

The committee submitted its report in January, 2002. It recommended the amendment of the Citizenship Act (1955) to provide for grant of dual citizenship to the Persons of Indian Origin (PIOs) belonging to certain specified countries.

Accordingly, the Citizenship (Amendment) Act, 2003, made provision for acquisition of Overseas Citizenship of India (OCI) by the PIOs of 16 specified countries other than Pakistan and Bangladesh. It also omitted all provisions recognizing, or relating to the Commonwealth Citizenship from the Principal Act.

Later, the Citizenship (Amendment) Act, 2005, expanded the scope of grant of OCI for PIOs of all countries except Pakistan and Bangladesh as long as their home countries all dual citizenship under their local laws. It must be noted here that the OCI is not actually a dual citizenships as the Indian Constitution forbids dual citizenship or dual nationality (Article 9).

Again, the Citizenship (Amendment) Act, 2015, has modified the provisions pertaining to the OCI in the Principal Act. It has introduced a new scheme called “Overseas Citizen of India Cardholder” by merging the PIO card scheme and the OCI card scheme.

The PIO card scheme was introduced on August 19, 2002 and thereafter the OCI card scheme was introduced w.e.f. December 2, 2005. Both the schemes were running in parallel even though the OCI card scheme had become more popular. This was causing unnecessary confusion in the minds of applicants. Keeping in view some problems being faced by applicants and to provide enhanced facilities to them, the Government of India decided to formulate one single scheme after merging the PIO and OCI schemes, containing positive attributes of both. Hence, for achieving this objective, the Citizenship (Amendment)

Act, 2015, was enacted. The PIO scheme was rescinded w.e.f. January 9, 2015 and it was also notified that all existing PIO cardholders shall be deemed to be OCI cardholders w.e.f. January 9, 2015.[7]

The Citizenship (Amendment) Act, 2015, replaced the nomenclature of “Overseas Citizen of India” with that of “Overseas Citizen of India Cardholder” and made the following provisions in the Principal Act :

I. Registration of Overseas Citizen of India Cardholder

(1) The Central Government may, on an application made in this behalf, register as an overseas citizen of India cardholder–

(a) any person of full age and capacity,–

(i) who is a citizen of another country, but was a citizen of Indi time of, or at any time after the commencement of the Constitu

(ii) who is a citizen of another country, but was eligible to be citizen of India at the time of the commencement of the Cons or

(iii) who is a citizen of another country, but belonged to a territ became part of India after the 15th August, 1947; or

(iv) who is a child or a grandchild or a great grandchild of such a or

(b) a person, who is a minor child of a person mentioned in clause (a); or

(c) a person, who is a minor child, and whose both parents are citizens of India or one of the parents is a citizen of India; or

(d) spouse of foreign origin of a citizen of India or spouse of foreign origin of an Overseas Citizen of India Cardholder and whose marriage has been registered and subsisted for a continuous period of not less than two years immediately preceding the presentation of the application.

No person, who or either of whose parents or grandparents or great grandparents is or had been a citizen of Pakistan, Bangladesh or such other country as the Central Government may, specify, shall be eligible for registration as an Overseas Citizen of India Cardholder.

(2) The Central Government may specify the date from which the existing persons of Indian origin cardholders shall be deemed to be overseas citizens of India cardholders.

(3) Notwithstanding anything contained in point (1), the Central Government may, if it is satisfied that special circumstances exist, after recording the circumstances in writing, register a person as an Overseas Citizen of India Cardholder.

II. Conferment of Rights on Overseas Citizen of India Cardholder

(1) An overseas citizen of India cardholder shall be entitled to such rights, as the Central Government may specify in this behalf.

(2) An overseas citizen of India cardholder shall not be entitled to the following rights (which are conferred on a citizen of India)–

(a) He shall not be entitled to the right to equality of opportunity in matters of public employment.
(b) He shall not be eligible for election as President.
(c) He shall not be eligible for election as Vice-President.
(d) He shall not be eligible for appointment as a Judge of the Supreme Court.
(e) He shall not be eligible for appointment as a Judge of the High Court.
(f) He shall not be entitled for registration as a voter.
(g) He shall not be eligible for being a member of the House of the People or of the Council of States.
(h) He shall not be eligible for being a member of the State Legislative Assembly or the State Legislative Council.
(i) He shall not be eligible for appointment to public services and posts in connection with affairs of the Union or of any State except for appointment in such services and posts as the Central Government may specify.

III. Renunciation of Overseas Citizen of India Card

(1) If any overseas citizen of India cardholder makes in prescribed manner a declaration renouncing the card registering him as an overseas citizen of India cardholder, the declaration shall be registered by the Central Government, and upon such registration, that person shall cease to be an overseas citizen of India cardholder.
(2) Where a person ceases to be an overseas citizen of India cardholder, the spouse of foreign origin of that person, who has obtained overseas citizen of India card and every minor child of that person registered as an overseas citizen of India cardholder shall thereupon cease to be an overseas citizen of India cardholder.

IV. Cancellation of Registration as Overseas Citizen of India Cardholder

The Central Government may cancel the registration of a person as an overseas citizen of India cardholder, if it is satisfied that–

(a) the registration as an overseas citizen of India cardholder was obtained by means of fraud, false representation or the concealment of any material fact; or
(b) the overseas citizen of India cardholder has shown disaffection towards the Constitution of India; or
(c) the overseas citizen of India cardholder has, during any war in which India may be engaged, unlawfully traded or communicated with an

enemy; or

(d) the overseas citizen of India cardholder has, within five years after registration, been sentenced to imprisonment for a term of not less than two years; or

(e) it is necessary so to do in the interests of the sovereignty and integrity of India, the security of India, friendly relations of India with any foreign country, or in the interests of the general public; or

(f) the marriage of an overseas citizen of India cardholder–

(i) has been dissolved by a competent court of law or otherwise; or

(ii) has not been dissolved but, during the subsistence of such marria he has solemnised marriage with any other person.

Table 6.1 *Comparing NRI, PIO and OCI Cardholder*[8]

Sl. No.	Elements of Comparison	Non-Resident Indian (NRI)	Person of Indian Origin (PIO)	Overseas Citizen of India (OCI) Cardholder
1.	Who ?	An Indian citizen who is ordinarily residing outside India and holds an Indian Passport	A person who or whose any of ancestors was an Indian national and who is presently holding another country's citizenship / nationality i.e. he/she is holding foreign passport	A person registered as Overseas Citizen of India (OCI) Cardholder under the Citizenship Act, 1955
2.	Who is eligible?	--	--	Following categories of foreign nationals are eligible for registration as Overseas Citizen of India (OCI) Cardholder:-

(1) Who was a citizen of India at the time of, or at any time after the commencement of the Constitution i.e. 26.01.1950; or
(2) who was eligible to become a citizen of India on 26.01.1950; or
(3) who belonged to a territory that became part of India after 15.08.1947; or
(4) who is a child or a grandchild or a great grandchild of such a citizen; or
(5) who is a minor child of such persons mentioned above; or
(6) who is a minor child and whose both parents are citizens of India or one of the parents is a citizen of India; or
(7) spouse of foreign origin of a citizen of India or spouse of foreign origin of an Overseas Citizen of India Cardholder registered under the Citizenship Act, 1955 and whose marriage has been registered and subsisted for a continuous period of not less than two years immediately preceding the

				presentation of the application.
3.	How can one get ?	--	--	Eligible persons to apply online.
4.	Where to apply ?	--	--	Till such time the online payment facility is introduced, the following instructions shall be followed:- (i) The print out of the online application form, completed in all respects, along with enclosures, demand draft and photograph in duplicate should be submitted to the Indian Mission/Post having jurisdiction over the country of which the applicant is a citizen or if he/she is not living in the country of his/her citizenship, to the Indian Mission/ Post having jurisdiction over the country of which the applicant is ordinarily a resident. (ii) If the applicant is residing in India, the print out of the online application form, completed in all respects, along with enclosures, demand draft and photographs in duplicate should be

				submitted to the Foreigners Regional Registration Offices (FRROs) according to their jurisdictional control.
5.	Fees ?	--	--	(a) in case of application submitted in Indian Mission/ Post abroad-US ₹275 or equivalent in local currency. (b) in case of application submitted in India-Rs.15,000/-
6.	Which nationals are ineligible ?	--	--	No person, who or either of whose parents or grandparents or great grandparents is or had been a citizen of Pakistan, Bangladesh or such other country as the Central Government may specify, shall be eligible for registration as an Overseas Citizen of India Cardholder.
7.	What benefits one is entitled to ?	All benefits as available to Indian citizens subject to notifications issued by the Government from time to time	No specific benefits	(i) Multiple entry lifelong visa for visiting India for any purpose (However OCI Cardholders will require a special permission to undertake research work in India for which they may submit the application to the

Indian Mission/ Post/ FRRO concerned).

(ii) Exemption from registration with Foreigners Regional Registration Officer (FRRO) or Foreigners Registration Officer (FRO) for any length of stay in India.

(iii) Parity with Non-Resident Indians (NRIs) in respect of all facilities available to them in economic, financial, and educational fields except in matters relating to the acquisition of agricultural or plantation properties.

(iv) Registered Overseas Citizen of India Cardholder shall be treated at par with Non-Resident Indians in the matter of inter-country adoption of Indian children.

(v) Registered Overseas Citizen of India Cardholder shall be treated at par with resident Indian nationals in the matter of tariffs in air fares in domestic sectors in India.

(vi) Registered Overseas Citizen of India Cardholder shall be charged the same entry fee as domestic Indian visitors to visit national parks and wildlife sanctuaries in India.

(vii) Parity with Non-Resident Indians (NRI) in respect of:-

(A) entry fees to be charged for visiting the national monuments, historical sites and museums in India.

(B) pursuing the following professions in India, in pursuance of the provisions contained in the relevant Acts, namely:-

(a) doctors, dentists, nurses and pharmacists;

(b) advocates;

(c) architects; and

(d) chartered accountants.

(C) to appear for the All India Pre-Medical Test

				or such other tests to make them eligible for admission in pursuance of the provisions contained in the relevant Acts. (viii) State Governments should ensure that the OCI Cardholder registration booklets of OCI Cardholders are treated as their identification for any services rendered to them. In case proof of residence is required, Overseas Citizens of India Cardholder may give an affidavit stating that a particular/ specific address may be treated as their place of residence in India.
8.	Does he/she require visa for visiting India ?	No	Yes	Can visit India without visa for life long.
9.	Is he/she required to register with the local police	No	Yes if the period of stay is for more than 180 days	No

	authorities in India ?			
10.	What activities can be undertaken in India ?	All Activities	Activity as per the type of visa obtained	All activities except research work for which special permission is required from the Indian Mission/Post/ FRRO concerned.
11.	How can one acquire Indian citizenship?	He/she is an Indian citizen	As per the Citizenship Act, 1955, he/she has to be ordinarily resident in India for a period of 7 years before making an application for registration.	As per the Citizenship Act,1955, a person registered as an OCI cardholder for 5 years and who is ordinarily resident in India for twelve months before making an application for registration is eligible for grant of Indian citizenship.

Table 6.2 *Articles Related to Citizenship at a Glance*

Article No.	Subject Matter
5.	Citizenship at the commencement of the Constitution
6.	Rights of citizenship of certain persons who have migrated to India from Pakistan
7.	Rights of citizenship of certain migrants to Pakistan
8.	Rights of citizenship of certain persons of Indian origin residing outside India
9.	Persons voluntarily acquiring citizenship of a foreign State not to be citizens
10.	Continuance of the rights of citizenship
11.	Parliament to regulate the right of citizenship by law

NOTES AND REFERENCES

1. On this date, the permit system for such migration was introduced.
2. This provision refers to migration after 1 March, 1947 but before 26 January, 1950. The question of citizenship of persons who migrated after 26 January, 1950, has to be decided under the provisions of the Citizenship Act, 1955.

2a. The form of the oath is as follows:
I, A/B..... do solemnly affirm (or swear) that I will bear true faith and allegiance to the Constitution of India as by law established, and that I will faithfully observe the laws of India and fulfill my duties as a citizen of India.

3. The 8th Schedule of the Constitution recognises presently 22 (originally 14) languages.
4. This will not apply if he is a student abroad, or is in the service of a government in India or an international organisation of which India is a member, or has registered annually at an Indian consulate his intention to retain his Indian citizenship.
5. By virtue of Article 371-D inserted by the 32nd Constitutional Amendment Act, 1973.

5a. Article 371D has been extended to the State of Telangana by the Andhra Pradesh Reorganisation Act, 2014.

6. Further, the Jammu and Kashmir Reorganisation Act, 2019, bifurcated the erstwhile State of Jammu and Kashmir into two separate Union territories, namely, the Union territory of Jammu & Kashmir and the Union territory of Ladakh.
7. Annual Report 2015–16, Ministry of Home Affairs, Government of India, p. 262.
8. This Table is downloaded from the website of Ministry of Home Affairs, Government of India.

7 Fundamental Rights

The Fundamental Rights are enshrined in Part III of the Constitution from Articles 12 to 35. In this regard, the framers of the Constitution derived inspiration from the Constitution of USA (i.e., Bill of Rights).

Part III of the Constitution is rightly described as the *Magna Carta* of India.[1] It contains a very long and comprehensive list of 'justiciable' Fundamental Rights. In fact, the Fundamental Rights in our Constitution are more elaborate than those found in the Constitution of any other country in the world, including the USA.

The Fundamental Rights are guaranteed by the Constitution to all persons without any discrimination. They uphold the equality of all individuals, the dignity of the individual, the larger public interest and unity of the nation.

The Fundamental Rights are meant for promoting the ideal of political democracy. They prevent the establishment of an authoritarian and despotic rule in the country, and protect the liberties and freedoms of the people against the invasion by the State. They operate as limitations on the tyranny of the executive and arbitrary laws of the legislature. In short, they aim at establishing 'a government of laws and not of men'.

The Fundamental Rights are named so because they are guaranteed and protected by the Constitution, which is the fundamental law of the land. They are 'fundamental' also in the sense that they are most essential for the all-round development (material, intellectual, moral and spiritual) of the individuals.

Originally, the Constitution provided for seven Fundamental Rights viz,

1. Right to equality (Articles 14–18)
2. Right to freedom (Articles 19–22)
3. Right against exploitation (Articles 23–24)
4. Right to freedom of religion (Articles 25–28)
5. Cultural and educational rights (Articles 29–30)
6. Right to property (Article 31)
7. Right to constitutional remedies (Article 32)

However, the right to property was deleted from the list of Fundamental Rights by the 44th Amendment Act, 1978. It is made a legal right under Article 300-A in Part XII of the Constitution. So at present, there are only six Fundamental Rights.

FEATURES OF FUNDAMENTAL RIGHTS

The Fundamental Rights guaranteed by the Constitution are characterised by the following:

1. Some of them are available only to the citizens while others are available to all persons whether citizens, foreigners or legal persons like corporations or companies.
2. They are not absolute but qualified. The state can impose reasonable restrictions on them. However, whether such restrictions are reasonable or not is to be decided by the courts. Thus, they strike a balance between the rights of the individual and those of the society as a whole, between individual liberty and social control.
3. All of them are available against the arbitrary action of the state. However, some of them are also available against the action of private individuals.
4. Some of them are negative in character, that is, place limitations on the authority of the State, while others are positive in nature, conferring certain privileges on the persons.
5. They are justiciable, allowing persons to move the courts for their enforcement, if and when they are violated.
6. They are defended and guaranteed by the Supreme Court. Hence, the aggrieved person can directly go to the Supreme Court, not necessarily by way of appeal against the judgement of the high courts.
7. They are not sacrosanct or permanent. The Parliament can curtail or repeal them but only by a constitutional amendment act and not by an ordinary act. Moreover, this can be done without affecting the 'basic structure' of the Constitution. (The amenability of fundamental rights is explained in detail in Chapter 11).
8. They can be suspended during the operation of a National Emergency except the rights guaranteed by Articles 20 and 21. Further, the six rights guaranteed by Article 19 can be suspended only when emergency is declared on the grounds of war or external aggression (i.e., external emergency) and not on the ground of armed rebellion (i.e., internal emergency). (The suspension of fundamental rights during a national Emergency is explained in detail in Chapter 16).

9. Their scope of operation is limited by Article 31A (saving of laws providing for acquisition of estates, etc.), Article 31B (validation of certain acts and regulations included in the 9th Schedule) and Article 31C (saving of laws giving effect to certain directive principles).
10. Their application to the members of armed forces, para-military forces, police forces, intelligence agencies and analogous services can be restricted or abrogated by the Parliament (Article 33).
11. Their application can be restricted while martial law is in force in any area. Martial law means ‘military rule’ imposed under abnormal circumstances to restore order (Article 34). It is different from the imposition of national emergency.
12. Most of them are directly enforceable (self-executory) while a few of them can be enforced on the basis of a law made for giving effect to them. Such a law can be made only by the Parliament and not by state legislatures so that uniformity throughout the country is maintained (Article 35).

DEFINITION OF STATE

The term ‘State’ has been used in different provisions concerning the fundamental rights. Hence, Article 12 has defined the term for the purposes of Part III. According to it, the State includes the following:

(a) Government and Parliament of India, that is, executive and legislative organs of the Union government.

(b) Government and legislature of states, that is, executive and legislative organs of state government.

(c) All local authorities, that is, municipalities, panchayats, district boards, improvement trusts, etc.

(d) All other authorities, that is, statutory or non-statutory authorities like LIC, ONGC, SAIL, etc.

Thus, State has been defined in a wider sense so as to include all its agencies. It is the actions of these agencies that can be challenged in the courts as violating the Fundamental Rights.

According to the Supreme Court, even a private body or an agency working as an instrument of the State falls within the meaning of the ‘State’ under Article 12.

LAWS INCONSISTENT WITH FUNDAMENTAL RIGHTS

Article 13 declares that all laws that are inconsistent with or in derogation of any of the fundamental rights shall be void. In other words, it expressively provides for the doctrine of judicial review. This power has been conferred on the Supreme Court (Article 32) and the high courts (Article 226) that can declare a law unconstitutional and invalid on the ground of contravention of any of the Fundamental Rights.

The term 'law' in Article 13 has been given a wide connotation so as to include the following:

(a) Permanent laws enacted by the Parliament or the state legislatures;
(b) Temporary laws like ordinances issued by the president or the state governors;
(c) Statutory instruments in the nature of delegated legislation (executive legislation) like order, bye-law, rule, regulation or notification; and
(d) Non-legislative sources of law, that is, custom or usage having the force of law.

Thus, not only a legislation but any of the above can be challenged in the courts as violating a Fundamental Right and hence, can be declared as void.

Further, Article 13 declares that a constitutional amendment is not a law and hence cannot be challenged. However, the Supreme Court held in the *Kesavananda Bharati* case[2] (1973) that a Constitutional amendment can be challenged on the ground that it violates a fundamental right that forms a part of the 'basic structure' of the Constitution and hence, can be declared as void.

Table 7.1 *Fundamental Rights at a Glance*

Category	Consists of
1. Right to equality (Articles 14–18)	(a) Equality before law and equal protection of laws (Article 14). (b) Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth (Article 15).

	(c) Equality of opportunity in matters of public employment (Article 16). (d) Abolition of untouchability and prohibition of its practice (Article 17). (e) Abolition of titles except military and academic (Article 18).
2. Right to freedom (Articles 19–22)	(a) Protection of six rights regarding freedom of: (i) speech and expression, (ii) assembly, (iii) association, (iv) movement, (v) residence, and (vi) profession (Article 19). (b) Protection in respect of conviction for offences (Article 20). (c) Protection of life and personal liberty (Article 21). (d) Right to elementary education (Article 21A). (e) Protection against arrest and detention in certain cases (Article 22).
3. Right against exploitation (Articles 23–24)	(a) Prohibition of traffic in human beings and forced labour (Article 23). (b) Prohibition of employment of children in factories, etc. (Article 24).
4. Right to freedom of religion (Article 25–28)	(a) Freedom of conscience and free profession, practice and propagation of religion (Article 25). (b) Freedom to manage religious affairs (Article 26). (c) Freedom from payment of taxes for promotion of any religion (Article 27). (d) Freedom from attending

	religious instruction or worship in certain educational institutions (Article 28).
5. Cultural and educational rights (Articles 29–30)	(a) Protection of language, script and culture of minorities (Article 29). (b) Right of minorities to establish and administer educational institutions (Article 30).
6. Right to constitutional remedies (Article 32)	Right to move the Supreme Court for the enforcement of fundamental rights including the writs of (i) *habeas corpus*, (ii) *mandamus*, (iii) prohibition, (iv) *certiorari*, and (v) *quo war-rento* (Article 32).

Table 7.2 *Fundamental Rights (FR) of Foreigners*

FR available only to citizens and not to foreigners	FR available to both citizens and foreigners (except enemy aliens)
1. Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth (Article 15).	1. Equality before law and equal protection of laws (Article 14).
2. Equality of opportunity in matters of public employment (Article 16).	2. Protection in respect of conviction for offences (Article 20).
3. Protection of six rights regarding freedom of : (i) speech and expression, (ii) assembly, (iii) association, (iv) movement, (v) residence, and (vi) profession (Article 19).	3. Protection of life and personal liberty (Article 21).
4. Protection of life and personal liberty (Article 21).	4. Right to elementary education (Article 21A).
5. Right of minorities to	5. Protection against arrest and

establish and administer educational institutions (Article 30).		detention in certain cases (Article 22).
		6. Prohibition of traffic in human beings and forced labour (Article 23).
		7. Prohibition of employment of children in factories etc., (Article 24).
		8. Freedom of conscience and free profession, practice and propagation of religion (Article 25).
		9. Freedom to manage religious affairs (Article 26).
		10. Freedom from payment of taxes for promotion of any religion (Article 27).
		11. Freedom from attending religious instruction or worship in certain educational institutions (Article 28).

RIGHT TO EQUALITY

1. Equality before Law and Equal Protection of Laws

Article 14 says that the State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India. This provision confers rights on all persons whether citizens or foreigners. Moreover, the word 'person' includes legal persons, viz, statutory corporations, companies, registered societies or any other type of legal person.

The concept of 'equality before law' is of British origin while the concept of 'equal protection of laws' has been taken from the American Constitution. The first concept connotes: (a) the absence of any special privileges in favour of any person, (b) the equal subjection of all persons to the ordinary law of the land administered by ordinary law courts, and (c) no person (whether rich or poor, high or low, official or non-official) is above the law.

The second concept, on the other hand, connotes: (a) the equality of treatment under equal circumstances, both in the privileges conferred and liabilities imposed by the laws, (b) the similar application of the same laws to all persons who are similarly situated, and (c) the like should be treated alike without any discrimination. Thus, the former is a negative concept while the latter is a positive concept. However, both of them aim at establishing equality of legal status, opportunity and justice.

The Supreme Court held that where equals and unequals are treated differently, Article 14 does not apply. While Article 14 forbids class legislation, it permits reasonable classification of persons, objects and transactions by the law. But the classification should not be arbitrary, artificial or evasive. Rather, it should be based on an intelligible differential and substantial distinction.

Rule of Law The concept of 'equality before law' is an element of the concept of 'Rule of Law', propounded by A.V. Dicey, the British jurist. His concept has the following three elements or aspects:

(i) Absence of arbitrary power, that is, no man can be punished except for a breach of law.

(ii) Equality before the law, that is, equal subjection of all citizens (rich or poor, high or low, official or non-official) to the ordinary law of the land administered by the ordinary law courts[3] .

(iii) The primacy of the rights of the individual, that is, the constitution is the result of the rights of the individual as defined and enforced by the courts of law rather than the constitution being the source of the individual rights.

The first and the second elements are applicable to the Indian System and not the third one. In the Indian System, the constitution is the source of the individual rights.

The Supreme Court held that the 'Rule of Law' as embodied in Article 14 is a 'basic feature' of the constitution. Hence, it cannot be destroyed even by an amendment.

Exceptions to Equality The rule of equality before law is not absolute and there are constitutional and other exceptions to it. These are mentioned below:

1. The President of India and the Governor of States enjoy the following immunities (Article 361):
   (i) The President or the Governor is not answerable to any cour the exercise and performance of the powers and duties of office.
   (ii) No criminal proceedings shall be instituted or continued aga the President or the Governor in any court during his tern office.
   (iii) No process for the arrest or imprisonment of the President or Governor shall be issued from any court during his term of offi
   (iv) No civil proceedings against the President or the Governor s be instituted during his term of office in any court in respect of act done by him in his personal capacity, whether before or a he entered upon his office, until the expiration of two months a after notice has been delivered to him.
2. No person shall be liable to any civil or criminal proceedings in any court in respect of the publication in a newspaper (or by radio or television) of a substantially true report of any proceedings of either House of Parliament or either House of the Legislature of a State (Article 361-A).
3. No member of Parliament shall be liable to any proceedings in any court in respect of anything said or any vote given by him in Parliament or any committee thereof (Article 105).
4. No member of the Legislature of a state shall be liable to any proceedings in any court in respect of anything said or any vote given by him in the Legislature or any committee thereof (Article 194).

5. Article 31-C is an exception to Article 14. It provides that the laws made by the state for implementing the Directive Principles contained in clause (b) or clause (c) of Article 39 cannot be challenged on the ground that they are violative of Article 14. The Supreme Court held that “where Article 31-C comes in, Article 14 goes out”.
6. The foreign sovereigns (rulers), ambassadors and diplomats enjoy immunity from criminal and civil proceedings.
7. The UNO and its agencies enjoy the diplomatic immunity.

2. Prohibition of Discrimination on Certain Grounds

Article 15 provides that the State shall not discriminate against any citizen on grounds only of religion, race, caste, sex or place of birth. The two crucial words in this provision are ‘discrimination’ and ‘only’. The word ‘discrimination’ means ‘to make an adverse distinction with regard to’ or ‘to distinguish unfavourably from others’. The use of the word ‘only’ connotes that discrimination on other grounds is not prohibited.

The second provision of Article 15 says that no citizen shall be subjected to any disability, liability, restriction or condition on grounds only of religion, race, caste, sex, or place of birth with regard to (a) access to shops, public restaurants, hotels and places of public entertainment; or (b) the use of wells, tanks, bathing ghats, road and places of public resort maintained wholly or partly by State funds or dedicated to the use of general public. This provision prohibits discrimination both by the State and private individuals, while the former provision prohibits discrimination only by the State.

There are four exceptions to this general rule of non-discrimination:

(a) The state is permitted to make any special provision for women and children. For example, reservation of seats for women in local bodies or provision of free education for children.
(b) The state is permitted to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the scheduled castes and scheduled tribes[4]. For example, reservation of seats or fee concessions in public educational institutions.
(c) The state is empowered to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the scheduled castes or the scheduled tribes regarding their admission to educational institutions including

private educational institutions, whether aided or unaided by the state, except the minority educational institutions.

(d) The state is empowered to make any special provision for the advancement of any economically weaker sections of citizens. Further, the state is allowed to make a provision for the reservation of upto 10% of seats for such sections in admission to educational institutions including private educational institutions, whether aided or unaided by the state, except the minority educational institutions. This reservation of upto 10% would be in addition to the existing reservations. For this purpose, the economically weaker sections would be notified by the state from time to time on the basis of family income and other indicators of economic disadvantage.

Reservation for OBCs in Educational Institutions

The above exception(c) was added by the 93rd Amendment Act of 2005. In order to give effect to this provision, the Centre enacted the Central Educational Institutions (Reservation in Admission) Act, 2006, providing a quota of 27% for candidates belonging to the Other Backward Classes (OBCs) in all central higher educational institutions including the Indian Institutes of Technology (IITs) and the Indian Institutes of Management (IIMs). In April 2008, the Supreme Court upheld the validity of both, the Amendment Act and the OBC Quota Act. But, the Court directed the central government to exclude the 'creamy layer' (advanced sections) among the OBCs while implementing the law.

The children of the following different categories of people belong to 'creamy layer' among OBCs and thus will not get the quota benefit :

1. Persons holding constitutional posts like President, Vice-President, Judges of SC and HCs, Chairman and Members of UPSC and SPSCs, CEC, CAG and so on.
2. Group 'A' / Class I and Group 'B' / Class II Officers of the All India, Central and State Services; and Employees holding equivalent posts in PSUs, Banks, Insurance Organisations, Universities etc., and also in private employment.
3. Persons who are in the rank of colonel and above in the Army and equivalent posts in the Navy, the Air Force and the Paramilitary Forces.
4. Professionals like doctors, lawyers, engineers, artists, authors, consultants and so on.
5. Persons engaged in trade, business and industry.

6. People holding agricultural land above a certain limit and vacant land or buildings in urban areas.
7. Persons having gross annual income of more than ₹8 lakh or possessing wealth above the exemption limit. In 1993, when the "creamy layer" ceiling was introduced, it was ₹1 lakh. It was subsequently revised to ₹2.5 lakh in 2004, ₹4.5 lakh in 2008, ₹6 lakh in 2013 and ₹8 lakh in 2017.

Reservation for EWSs in Educational Institutions

The above exception (d) was added by the 103rd Amendment Act of 2019. In order to give effect to this provision, the central government issued an order (in 2019) providing 10% reservation to the Economically Weaker Sections (EWSs) in admission to educational institutions. The benefit of this reservation can be availed by the persons belonging to EWSs who are not covered under any of the existing schemes of reservations for SCs, STs and OBCs. The eligibility criteria laid down in this regard is as follows:

1. Persons whose family has gross annual income below ₹8 lakh are to be identified as EWSs for the benefit of reservation. The income would include income from all sources i.e., salary, agriculture, business, profession etc. and it would be income for the financial year prior to the year of application.
2. Persons whose family owns or possesses any one of the following assets are to be excluded from being identified as EWSs, irrespective of the family income:
   (a) 5 acres of Agricultural land and above.
   (b) Residential flat of 1000 sq.ft. and above.
   (c) Residential plot of 100 sq.yards and above in notified municipalities.
   (d) Residential plot of 200 sq.yards and above in areas other than the notified municipalities.
3. The property held by a family in different locations or different places / cities would be clubbed while applying the land or property holding test to determine EWS status.
4. Family for this purpose would include the person who seeks benefit of reservation, his/her parents and siblings below the age of 18 years as also his/ her spouse and children below the age of 18 years.

3. Equality of Opportunity in Public Employment

Article 16 provides for equality of opportunity for all citizens in matters of employment or appointment to any office under the State. No citizen can be discriminated against or be ineligible for any employment or office under the State on grounds of only religion, race, caste, sex, descent, place of birth or residence.

There are four exceptions to this general rule of equality of opportunity in public employment:

(a) Parliament can prescribe residence as a condition for certain employment or appointment in a state or union territory or local authority or other authority. As the Public Employment (Requirement as to Residence) Act of 1957 expired in 1974, there is no such provision for any state except Andhra Pradesh[5] and Telangana[5a].

(b) The State can provide for reservation of appointments or posts in favour of any backward class that is not adequately represented in the state services.

(c) A law can provide that the incumbent of an office related to religious or denominational institution or a member of its governing body should belong to the particular religion or denomination.

(d) The state is permitted to make a provision for the reservation of upto 10% of appointments or posts in favour of any economically weaker sections of citizens. This reservation of upto 10% would be in addition to the existing reservation. For this purpose, the economically weaker sections would be notified by the state from time to time on the basis of family income and other indicators of economic disadvantage.

Mandal Commission and Aftermath

In 1979, the Morarji Desai Government appointed the Second[6] Backward Classes Commission under the chairmanship of B.P. Mandal, a Member of Parliament, in terms of Article 340 of the Constitution to investigate the conditions of the socially and educationally backward classes and suggest measures for their advancement. The commission submitted its report in 1980 and identified as many as 3743 castes as socially and educationally backward classes. They constitute nearly 52% component of the population, excluding the scheduled castes (SCs) and the scheduled tribes (STs). The commission recommended for reservation of 27% government jobs for the Other Backward Classes (OBCs) so that the

total reservation for all ((SCs, STs and OBCs) amounts to 50%.[7] It was after ten years in 1990 that the V.P. Singh Government declared reservation of 27% government jobs for the OBCs. Again in 1991, the Narasimha Rao Government introduced two changes: (a) preference to the poorer sections among the OBCs in the 27% quota, i.e., adoption of the economic criteria in granting reservation, and (b) reservation of another 10% of jobs for poorer (economically backward) sections of higher castes who are not covered by any existing schemes of reservation.

In the famous *Mandal* case[8] (1992), the scope and extent of Article 16(4), which provides for reservation of jobs in favour of backward classes, has been examined thoroughly by the Supreme Court. Though the Court has rejected the additional reservation of 10% for poorer sections of higher castes, it upheld the constitutional validity of 27% reservation for the OBCs with certain conditions, viz,

(a) The advanced sections among the OBCs (the creamy layer) should be excluded from the list of beneficiaries of reservation.
(b) No reservation in promotions; reservation should be confined to initial appointments only. Any *existing reservation* in promotions can continue for five years only (i.e., upto 1997).
(c) The total reserved quota should not exceed 50% except in some extraordinary situations. This rule should be applied every year.
(d) The 'carry forward rule' in case of unfilled (backlog) vacancies is valid. But it should not violate 50% rule.
(e) A permanent statutory body should be established to examine complaints of over-inclusion and under-inclusion in the list of OBCs.

With regard to the above rulings of the Supreme Court, the government has taken the following actions:

(a) Ram Nandan Committee was appointed to identify the creamy layer among the OBCs. It submitted its report in 1993, which was accepted.
(b) National Commission for Backward Classes was established in 1993 by an act of Parliament. Its mandate was to examine the complaints of under-inclusion, over-inclusion or non-inclusion of any class of citizens in the list of backward classes for the purpose of job reservation. Later, the 102nd Amendment Act of 2018 conferred a constitutional status on the commission and also enlarged its functions. For this purpose, the amendment inserted a new Article 338-B in the constitution.

(c) In order to nullify the ruling with regard to reservation in promotions, the 77th Amendment Act was enacted in 1995. It added a new provision in Article 16 that empowers the State to provide for reservation in promotions of any services under the State in favour of the SCs and STs that are not adequately represented in the state services. Again, the 85th Amendment Act of 2001 provides for 'consequential seniority' in the case of promotion by virtue of rule of reservation for the government servants belonging to the SCs and STs with retrospective effect from June 1995.

(d) The ruling with regard to backlog vacancies was nullified by the 81st Amendment Act of 2000. It added another new provision in Article 16 that empowers the State to consider the unfilled reserved vacancies of a year as a separate class of vacancies to be filled up in any succeeding year or years. Such class of vacancies are not to be combined with the vacancies of the year in which they are being filled up to determine the ceiling of 50% reservation on total number of vacancies of that year. In brief, it ends the 50% ceiling on reservation in backlog vacancies.

(e) The 76th Amendment Act of 1994 has placed the Tamil Nadu Reservations Act[9] of 1994 in the Ninth Schedule to protect it from judicial review as it provided for 69 per cent of reservation, far exceeding the 50 per cent ceiling.

Reservation for EWSs in Public Employment

The above exception (d) was added by the 103rd Amendment Act of 2019. In order to give effect to this provision, the central government issued an order (in 2019) providing 10% reservation to the Economically Weaker Sections (EWSs) in civil posts and services in the Government of India. The benefit of this reservation can be availed by the persons belonging to EWSs who are not covered under any of the existing schemes of reservation for SCs, STs and OBCs. The eligibility criteria laid down in this regard has already been explained under Article 15.

Further, the scientific and technical posts which satisfy all the following conditions can be exempted from the purview of this reservation:

(i) The posts should be in grades above the lower grade in Group A of the service concerned.

(ii) They should be classified as "scientific or technical" in terms of

Cabinet Secretariat Order (1961), according to which scientific and technical posts for which qualifications in the natural sciences or exact sciences or applied sciences or in technology are prescribed and the incumbents of which have to use that knowledge in the discharge of their duties.

(iii) The posts should be for conducting research or for organizing, guiding and directing research.

4. Abolition of Untouchability

Article 17 abolishes 'untouchability' and forbids its practice in any form. The enforcement of any disability arising out of untouchability shall be an offence punishable in accordance with law.

In 1976, the Untouchability (Offences) Act, 1955 has been comprehensively amended and renamed as the Protection of Civil Rights Act, 1955 to enlarge the scope and make penal provisions more stringent. The act defines civil right as any right accruing to a person by reason of the abolition of untouchability by Article 17 of the Constitution.

The term 'untouchability' has not been defined either in the Constitution or in the Act. However, the Mysore High Court held that the subject matter of Article 17 is not untouchability in its literal or grammatical sense but the 'practice as it had developed historically in the country'. It refers to the social disabilities imposed on certain classes of persons by reason of their birth in certain castes. Hence, it does not cover social boycott of a few individuals or their exclusion from religious services, etc.

The Supreme Court held that the right under Article 17 is available against private individuals and it is the constitutional obligation of the State to take necessary action to ensure that this right is not violated.

5. Abolition of Titles

Article 18 abolishes titles and makes four provisions in that regard:

(a) It prohibits the state from conferring any title (except a military or academic distinction) on any body, whether a citizen or a foreigner.

(b) It prohibits a citizen of India from accepting any title from any foreign state.

(c) A foreigner holding any office of profit or trust under the state cannot accept any title from any foreign state without the consent

of the president.

(d) No citizen or foreigner holding any office of profit or trust under the State is to accept any present, emolument or office from or under any foreign State without the consent of the president.

From the above, it is clear that the hereditary titles of nobility like Maharaja, Raj Bahadur, Rai Bahadur, Rai Saheb, Dewan Bahadur, etc, which were conferred by colonial States are banned by Article 18 as these are against the principle of equal status of all.

In 1996[10] , the Supreme Court upheld the constitutional validity of the National Awards–Bharat Ratna, Padma Vibhushan, Padma Bhushan and Padma Sri. It ruled that these awards do not amount to 'titles' within the meaning of Article 18 that prohibits only hereditary titles of nobility. Therefore, they are not violative of Article 18 as the theory of equality does not mandate that merit should not be recognised. However, it also ruled that they should not be used as suffixes or prefixes to the names of awardees. Otherwise, they should forfeit the awards.

These National Awards were instituted in 1954. The Janata Party government headed by Morarji Desai discontinued them in 1977. But they were again revived in 1980 by the Indira Gandhi government.

RIGHT TO FREEDOM

1. Protection of Six Rights

Article 19 guarantees to all citizens the six rights. These are:

(i) Right to freedom of speech and expression.
(ii) Right to assemble peaceably and without arms.
(iii) Right to form associations or unions or co-operative societies.[10a]
(iv) Right to move freely throughout the territory of India.
(v) Right to reside and settle in any part of the territory of India.
(vi) Right to practice any profession or to carry on any occupation, trade or business.

Originally, Article 19 contained seven rights. But, the right to acquire, hold and dispose of property was deleted by the 44th Amendment Act of 1978.

These six rights are protected against only state action and not private individuals. Moreover, these rights are available only to the citizens and to shareholders of a company but not to foreigners or legal persons like companies or corporations, etc.

The State can impose 'reasonable' restrictions on the enjoyment of these six rights only on the grounds mentioned in the Article 19 itself and not on any other grounds.

Freedom of Speech and Expression

It implies that every citizen has the right to express his views, opinions, belief and convictions freely by word of mouth, writing, printing, picturing or in any other manner. The Supreme Court held that the freedom of speech and expression includes the following:

(a) Right to propagate one's views as well as views of others.
(b) Freedom of the press.
(c) Freedom of commercial advertisements.
(d) Right against tapping of telephonic conversation.
(e) Right to telecast, that is, government has no monopoly on electronic media.
(f) Right against bundh called by a political party or organisation.
(g) Right to know about government activities.
(h) Freedom of silence.
(i) Right against imposition of pre-censorship on a newspaper.
(j) Right to demonstration or picketing but not right to strike.

The State can impose reasonable restrictions on the exercise of the freedom of speech and expression on the grounds of sovereignty and integrity of India, security of the state, friendly relations with foreign states, public order, decency or morality, contempt of court, defamation, and incitement to an offence.

Freedom of Assembly

Every citizen has the right to assemble peaceably and without arms. It includes the right to hold public meetings, demonstrations and take out processions. This freedom can be exercised only on public land and the assembly must be peaceful and unarmed. This provision does not protect violent, disorderly, riotous assemblies, or one that causes breach of public peace or one that involves arms. This right does not include the right to strike.

The State can impose reasonable restrictions on the exercise of right of assembly on two grounds, namely, sovereignty and integrity of India and public order including the maintenance of traffic in the area concerned.

Under Section 144 of Criminal Procedure Code (1973), a magistrate can restrain an assembly, meeting or procession if there is a risk of obstruction, annoyance or danger to human life, health or safety or a disturbance of the public tranquillity or a riot or any affray.

Under Section 141 of the Indian Penal Code, as assembly of five or more persons becomes unlawful if the object is (a) to resist the execution of any law or legal process; (b) to forcibly occupy the property of some person; (c) to commit any mischief or criminal trespass; (d) to force some person to do an illegal act; and (e) to threaten the government or its officials on exercising lawful powers.

Freedom of Association

All citizens have the right to form associations or unions or co-operative societies[10b]. It includes the right to form political parties, companies, partnership firms, societies, clubs, organisations, trade unions or any body of persons. It not only includes the right to start an association or union but also to continue with the association or union as such. Further, it covers the negative right of not to form or join an association or union.

Reasonable restrictions can be imposed on the exercise of this right by the State on the grounds of sovereignty and integrity of India, public order and morality. Subject to these restrictions, the citizens have complete liberty to form associations or unions for pursuing

lawful objectives and purposes. However, the right to obtain recognition of the association is not a fundamental right.

The Supreme Court held that the trade unions have no guaranteed right to effective bargaining or right to strike or right to declare a lock-out. The right to strike can be controlled by an appropriate industrial law.

Freedom of Movement

This freedom entitles every citizen to move freely throughout the territory of the country. He can move freely from one state to another or from one place to another within a state. This right underline the idea that India is one unit so far as the citizens are concerned. Thus, the purpose is to promote national feeling and not parochialism.

The grounds of imposing reasonable restrictions on this freedom are two, namely, the interests of general public and the protection of interests of any scheduled tribe. The entry of outsiders in tribal areas is restricted to protect the distinctive culture, language, customs and manners of scheduled tribes and to safeguard their traditional vocation and properties against exploitation.

The Supreme Court held that the freedom of movement of prostitutes can be restricted on the ground of public health and in the interest of public morals. The Bombay High Court validated the restrictions on the movement of persons affected by AIDS.

The freedom of movement has two dimensions, viz, internal (right to move inside the country) and external (right to move out of the country and right to come back to the country). Article 19 protects only the first dimension. The second dimension is dealt by Article 21 (right to life and personal liberty).

Freedom of Residence

Every citizen has the right to reside and settle in any part of the territory of the country. This right has two parts: (a) the right to reside in any part of the country, which means to stay at any place temporarily, and (b) the right to settle in any part of the country, which means to set up a home or domicile at any place permanently.

This right is intended to remove internal barriers within the country or between any of its parts. This promotes nationalism and avoids narrow mindedness.

The State can impose reasonable restrictions on the exercise of this right on two grounds, namely, the interest of general public and the protection of interests of any scheduled tribes. The right of

outsiders to reside and settle in tribal areas is restricted to protect the distinctive culture, language, customs and manners of scheduled tribes and to safeguard their traditional vocation and properties against exploitation. In many parts of the country, the tribals have been permitted to regulate their property rights in accordance with their customary rules and laws.

The Supreme Court held that certain areas can be banned for certain kinds of persons like prostitutes and habitual offenders.

From the above, it is clear that the right to residence and the right to movement are overlapping to some extent. Both are complementary to each other.

Freedom of Profession, etc.

All citizens are given the right to practise any profession or to carry on any occupation, trade or business. This right is very wide as it covers all the means of earning one's livelihood.

The State can impose reasonable restrictions on the exercise of this right in the interest of the general public. Further, the State is empowered to:

(a) prescribe professional or technical qualifications necessary for practising any profession or carrying on any occupation, trade or business; and

(b) carry on by itself any trade, business, industry or service whether to the exclusion (complete or partial) of citizens or otherwise.

Thus, no objection can be made when the State carries on a trade, business, industry or service either as a monopoly (complete or partial) to the exclusion of citizens (all or some only) or in competition with any citizen. The State is not required to justify its monopoly.

This right does not include the right to carry on a profession or business or trade or occupation that is immoral (trafficking in women or children) or dangerous (harmful drugs or explosives, etc,). The State can absolutely prohibit these or regulate them through licencing.

2. Protection in Respect of Conviction for Offences

Article 20 grants protection against arbitrary and excessive punishment to an accused person, whether citizen or foreigner or legal person like a company or a corporation. It contains three provisions in that direction:

(a) No *ex-post-facto* law: No person shall be (i) convicted of any offence except for violation of a law in force at the time of the

commission of the act, nor (ii) subjected to a penalty greater than that prescribed by the law in force at the time of the commission of the act.

(b) No double jeopardy: No person shall be prosecuted and punished for the same offence more than once.

(c) No self-incrimination: No person accused of any offence shall be compelled to be a witness against himself.

An *ex-post-facto* law is one that imposes penalties retrospectively (retroactively), that is, upon acts already done or which increases the penalties for such acts. The enactment of such a law is prohibited by the first provision of Article 20. However, this limitation is imposed only on criminal laws and not on civil laws or tax laws. In other words, a civil liability or a tax can be imposed retrospectively. Further, this provision prohibits only conviction or sentence under an *ex-post-facto* criminal law and not the trial thereof. Finally, the protection (immunity) under this provision cannot be claimed in case of preventive detention or demanding security from a person.

The protection against double jeopardy is available only in proceedings before a court of law or a judicial tribunal. In other words, it is not available in proceedings before departmental or administrative authorities as they are not of judicial nature.

The protection against self-incrimination extends to both oral evidence and documentary evidence. However, it does not extend to (i) compulsory production of material objects, (ii) compulsion to give thumb impression, specimen signature, blood specimens, and (iii) compulsory exhibition of the body. Further, it extends only to criminal proceedings and not to civil proceedings or proceedings which are not of criminal nature.

3. Protection of Life and Personal Liberty

Article 21 declares that no person shall be deprived of his life or personal liberty except according to procedure established by law. This right is available to both citizens and non-citizens.

In the famous *Gopalan* case[11] (1950), the Supreme Court has taken a narrow interpretation of the Article 21. It held that the protection under Article 21 is available only against arbitrary executive action and not from arbitrary legislative action. This means that the State can deprive the right to life and personal liberty of a person based on a law. This is because of the expression ‘procedure established by law’ in Article 21, which is different from the expression

‘due process of law’ contained in the American Constitution. Hence, the validity of a law that has prescribed a procedure cannot be questioned on the ground that the law is unreasonable, unfair or unjust. Secondly, the Supreme Court held that the ‘personal liberty’ means only liberty relating to the person or body of the individual. But, in *Menaka* case[12] (1978), the Supreme Court overruled its judgement in the *Gopalan* case by taking a wider interpretation of the Article 21. Therefore, it ruled that the right to life and personal liberty of a person can be deprived by a law provided the procedure prescribed by that law is reasonable, fair and just. In other words, it has introduced the American expression ‘due process of law’. In effect, the protection under Article 21 should be available not only against arbitrary executive action but also against arbitrary legislative action. Further, the court held that the ‘right to life’ as embodied in Article 21 is not merely confined to animal existence or survival but it includes within its ambit the right to live with human dignity and all those aspects of life which go to make a man’s life meaningful, complete and worth living. It also ruled that the expression ‘Personal Liberty’ in Article 21 is of the widest amplitude and it covers a variety of rights that go to constitute the personal liberties of a man.

The Supreme Court has reaffirmed its judgement in the *Menaka* case in the subsequent cases. It has declared the following rights as part of Article 21:

(1) Right to live with human dignity.
(2) Right to decent environment including pollution free water and air and protection against hazardous industries.
(3) Right to livelihood.
(4) Right to privacy.
(5) Right to shelter.
(6) Right to health.
(7) Right to free education up to 14 years of age.
(8) Right to free legal aid.
(9) Right against solitary confinement.
(10) Right to speedy trial.
(11) Right against handcuffing.
(12) Right against inhuman treatment.
(13) Right against delayed execution.
(14) Right to travel abroad.
(15) Right against bonded labour.
(16) Right against custodial harassment.

(17) Right to emergency medical aid.
(18) Right to timely medical treatment in government hospital.
(19) Right not to be driven out of a state.
(20) Right to fair trial.
(21) Right of prisoner to have necessities of life.
(22) Right of women to be treated with decency and dignity.
(23) Right against public hanging.
(24) Right to road in hilly areas.
(25) Right to information.
(26) Right to reputation.
(27) Right of appeal from a judgement of conviction
(28) Right to family pension
(29) Right to social and economic justice and empowerment
(30) Right against bar fetters
(31) Right to appropriate life insurance policy
(32) Right to sleep
(33) Right to freedom from noise pollution
(34) Right to sustainable development
(35) Right to opportunity.

4. Right to Education

Article 21 A declares that the State shall provide free and compulsory education to all children of the age of six to fourteen years in such a manner as the State may determine. Thus, this provision makes only elementary education a Fundamental Right and not higher or professional education.

This provision was added by the 86th Constitutional Amendment Act of 2002. This amendment is a major milestone in the country's aim to achieve 'Education for All'. The government described this step as 'the dawn of the second revolution in the chapter of citizens' rights'.

Even before this amendment, the Constitution contained a provision for free and compulsory education for children under Article 45 in Part IV. However, being a directive principle, it was not enforceable by the courts. Now, there is scope for judicial intervention in this regard.

This amendment changed the subject matter of Article 45 in directive principles. It now reads–'The state shall endeavour to provide early childhood care and education for all children until they complete the age of six years.' It also added a new fundamental duty under Article 51A that reads–'It shall be the duty of every citizen of India to

provide opportunities for education to his child or ward between the age of six and fourteen years'.

In 1993 itself, the Supreme Court recognised a Fundamental Right to primary education in the right to life under Article 21. It held that every child or citizen of this country has a right to free education until he completes the age of 14 years. Thereafter, his right to education is subject to the limits of economic capacity and development of the state. In this judgement, the Court overruled its earlier judgement (1992) which declared that there was a fundamental right to education up to any level including professional education like medicine and engineering.

In pursuance of Article 21A, the Parliament enacted the Right of Children to Free and

Compulsory Education (RTE) Act, 2009. This Act seeks to provide that every child has a right to be provided full time elementary education of satisfactory and equitable quality in a formal school which satisfies certain essential norms and standards. This legislation is anchored in the belief that the values of equality, social justice and democracy and the creation of a just and humane society can be achieved only through provision of inclusive elementary education to all.[12a]

5. Protection Against Arrest and Detention

Article 22 grants protection to persons who are arrested or detained. Detention is of two types, namely, punitive and preventive. Punitive detention is to punish a person for an offence committed by him after trial and conviction in a court. Preventive detention, on the other hand, means detention of a person without trial and conviction by a court. Its purpose is not to punish a person for a past offence but to prevent him from committing an offence in the near future. Thus, preventive detention is only a precautionary measure and based on suspicion.

The Article 22 has two parts–the first part deals with the cases of ordinary law and the second part deals with the cases of preventive detention law.

(a) The first part of Article 22 confers the following rights on a person who is arrested or detained under an ordinary law:
   (i) Right to be informed of the grounds of arrest.
   (ii) Right to consult and be defended by a legal practitioner.
   (iii) Right to be produced before a magistrate within 24 hou including the journey time.

(iv) Right to be released after 24 hours unless the magistra authorises further detention.

These safeguards are not available to an enemy alien or a person arrested or detained under a preventive detention law.

The Supreme Court also ruled that the arrest and detention in the first part of Article 22 do not cover arrest under the orders of a court, civil arrest, arrest on failure to pay the income tax, and deportation of an alien. They apply only to an act of a criminal or quasi-criminal nature or some activity prejudicial to public interest.

(b) The second part of Article 22 grants protection to persons who are arrested or detained under a preventive detention law. This protection is available to both citizens as well as aliens and includes the following:

(i) The detention of a person cannot exceed three months unless advisory board reports sufficient cause for extended detentic The board is to consist of judges of a high court.

(ii) The grounds of detention should be communicated to the deter However, the facts considered to be against the public intere need not be disclosed.

(iii) The detenu should be afforded an opportunity to make representation against the detention order.

Article 22 also authorises the Parliament to prescribe (a) the circumstances and the classes of cases in which a person can be detained for more than three months under a preventive detention law without obtaining the opinion of an advisory board; (b) the maximum period for which a person can be detained in any classes of cases under a preventive detention law; and (c) the procedure to be followed by an advisory board in an inquiry.

The 44th Amendment Act of 1978 has reduced the period of detention without obtaining the opinion of an advisory board from three to two months. However, this provision has not yet been brought into force, hence, the original period of three months still continues.

The Constitution has divided the legislative power with regard to preventive detention between the Parliament and the state legislatures. The Parliament has exclusive authority to make a law of preventive detention for reasons connected with defence, foreign affairs and the security of India. Both the Parliament as well as the state legislatures can concurrently make a law of preventive detention for reasons connected with the security of a state, the maintenance of

public order and the maintenance of supplies and services essential to the community.

The preventive detention laws made by the Parliament are:

(a) Preventive Detention Act, 1950. Expired in 1969.
(b) Maintenance of Internal Security Act (MISA), 1971. Repealed in 1978.
(c) Conservation of Foreign Exchange and Prevention of Smuggling Activities Act (COFEPOSA), 1974.
(d) National Security Act (NASA), 1980.
(e) Prevention of Blackmarketing and Maintenance of Supplies of Essential Commodities Act (PBMSECA), 1980.
(f) Terrorist and Disruptive Activities (Prevention) Act (TADA), 1985. Repealed in 1995.
(g) Prevention of Illicit Traffic in Narcotic Drugs and Psychotropic Substances Act (PITNDPSA), 1988.
(h) Prevention of Terrorism Act (POTA), 2002. Repealed in 2004.
(i) Unlawful Activities (Prevention) Act (UAPA), 1967, as amended in 2004, 2008, 2012 and 2019.

It is unfortunate to know that no democratic country in the world has made preventive detention as an integral part of the Constitution as has been done in India. It is unknown in USA. It was resorted to in Britain only during first and second world war time. In India, preventive detention existed even during the British rule. For example, the Bengal State Prisoners Regulation of 1818 and the Defence of India Act of 1939 provided for preventive detention.

RIGHT AGAINST EXPLOITATION

1. Prohibition of Traffic in Human Beings and Forced Labour

Article 23 prohibits traffic in human beings, *begar* (forced labour) and other similar forms of forced labour. Any contravention of this provision shall be an offence punishable in accordance with law. This right is available to both citizens and non-citizens. It protects the individual not only against the State but also against private persons.

The expression 'traffic in human beings' include (a) selling and buying of men, women and children like goods; (b) immoral traffic in women and children, including prostitution; (c) *devadasis*; and (d) slavery. To punish these acts, the Parliament has made the Immoral Traffic (Prevention) Act[13] , 1956.

The term '*begar* ' means compulsory work without remuneration. It was a peculiar Indian system under which the local zamin-dars sometimes used to force their tenants to render services without any payment. In addition to *begar*, the Article 23 prohibits other 'similar forms of forced labour' like 'bonded labour'. The term 'forced labour' means compelling a person to work against his will. The word 'force' includes not only physical or legal force but also force arising from the compulsion of economic circumstances, that is, working for less than the minimum wage. In this regard, the Bonded Labour System (Abolition) Act, 1976; the Minimum Wages Act, 1948; the Contract Labour Act, 1970 and the Equal Remuneration Act, 1976 were made.

Article 23 also provides for an exception to this provision. It permits the State to impose compulsory service for public purposes, as for example, military service or social service, for which it is not bound to pay. However, in imposing such service, the State is not permitted to make any discrimination on grounds only of religion, race, caste or class.

2. Prohibition of Employment of Children in Factories, etc.

Article 24 prohibits the employment of children below the age of 14 years in any factory, mine or other hazardous activities like construction work or railway. But it does not prohibit their employment in any harmless or innocent work.

The Child Labour (Prohibition and Regulation) Act, 1986, is the most important law in this direction. In addition, the Employment of Children Act, 1938; the Factories Act, 1948; the Mines Act, 1952; the Merchant Shipping Act, 1958; the Plantation Labour Act, 1951; the Motor Transport Workers Act, 1951; Apprentices Act, 1961; the Bidi and Cigar Workers Act, 1966; and other similar acts prohibit the employment of children below certain age.

In 1996, the Supreme Court directed the establishment of Child Labour Rehabilitation Welfare Fund in which the offending employer should deposit a fine of ₹20,000 for each child employed by him. It also issued directions for the improvement of education, health and nutrition of children.

The Commissions for Protection of Child Rights Act, 2005 was enacted to provide for the establishment of a National Commission and State Commissions for Protection of Child Rights and Children's Courts for providing speedy trial of offences against children or of violation of child rights.

In 2006, the government banned the employment of children as domestic servants or workers in business establishments like hotels, dhabas, restaurants, shops, factories, resorts, spas, tea-shops and so on. It warned that anyone employing children below 14 years of age would be liable for prosecution and penal action.

The Child Labour (Prohibition and Regulation) Amendment Act, 2016, amended the Child Labour (Prohibition and Regulation) Act, 1986. It has renamed the Principal Act as the Child and Adolescent Labour (Prohibition and Regulation) Act, 1986.

RIGHT TO FREEDOM OF RELIGION

1. Freedom of Conscience and Free Profession, Practice and Propagation of Religion

Article 25 says that all persons are equally entitled to freedom of conscience and the right to freely profess, practice and propagate religion. The implications of these are:

(a) *Freedom of conscience:* Inner freedom of an individual to mould his relation with God or Creatures in whatever way he desires.

(b) *Right to profess:* Declaration of one's religious beliefs and faith openly and freely.

(c) *Right to practice:* Performance of religious worship, rituals, ceremonies and exhibition of beliefs and ideas.

(d) *Right to propagate:* Transmission and dissemination of one's religious beliefs to others or exposition of the tenets of one's religion. But, it does not include a right to convert another person to one's own religion. Forcible conversions impinge on the 'freedom of conscience' guaranteed to all the persons alike.

From the above, it is clear that Article 25 covers not only religious beliefs (doctrines) but also religious practices (rituals). Moreover, these rights are available to all persons–citizens as well as non-citizens.

However, these rights are subject to public order, morality, health and other provisions relating to fundamental rights. Further, the State is permitted to:

(a) regulate or restrict any economic, financial, political or other secular activity associated with religious practice; and

(b) provide for social welfare and reform or throw open Hindu religious institutions of a public character to all classes and sections of Hindus.

Article 25 also contains two explanations: one, wearing and carrying of *kirpans* is to be included in the profession of the Sikh religion; and two, the Hindus, in this context, include Sikhs, Jains and Buddhists.[14]

2. Freedom to Manage Religious Affairs

According to Article 26, every religious denomination or any of its section shall have the following rights:

(a) Right to establish and maintain institutions for religious and charitable purposes;
(b) Right to manage its own affairs in matters of religion;
(c) Right to own and acquire movable and immovable property; and
(d) Right to administer such property in accordance with law.

Article 25 guarantees rights of individuals, while Article 26 guarantees rights of religious denominations or their sections. In other words, Article 26 protects collective freedom of religion. Like the rights under Article 25, the rights under Article 26 are also subject to public order, morality and health but not subject to other provisions relating to the Fundamental Rights.

The Supreme Court held that a religious denomination must satisfy three conditions:

(a) It should be a collection of individuals who have a system of beliefs (doctrines) which they regard as conducive to their spiritual well-being;
(b) It should have a common organisation; and
(c) It should be designated by a distinctive name.

Under the above criteria, the Supreme Court held that the 'Ramakrishna Mission' and 'Ananda Marga' are religious denominations within the Hindu religion. It also held that Aurobindo Society is not a religious denomination.

3. Freedom from Taxation for Promotion of a Religion

Article 27 lays down that no person shall be compelled to pay any taxes for the promotion or maintenance of any particular religion or religious denomination. In other words, the State should not spend the public money collected by way of tax for the promotion or maintenance of any particular religion. This provision prohibits the State from favouring, patronising and supporting one religion over the other. This means that the taxes can be used for the promotion or maintenance of all religions.

This provision prohibits only levy of a tax and not a fee. This is because the purpose of a fee is to control secular administration of religious institutions and not to promote or maintain religion. Thus, a fee can be levied on pilgrims to provide them some special service or safety measures. Similarly, a fee can be levied on religious endowments for meeting the regulation expenditure.

4. Freedom from Attending Religious Instruction

Under Article 28, no religious instruction shall be provided in any educational institution wholly maintained out of State funds. However, this provision shall not apply to an educational institution administered by the State but established under any endowment or trust, requiring imparting of religious instruction in such institution.

Further, no person attending any educational institution recognised by the State or receiving aid out of State funds shall be required to attend any religious instruction or worship in that institution without his consent. In case of a minor, the consent of his guardian is needed.

Thus, Article 28 distinguishes between four types of educational institutions:

(a) Institutions wholly maintained by the State.
(b) Institutions administered by the State but established under any endowment or trust.
(c) Institutions recognised by the State.
(d) Institutions receiving aid from the State.

In (a), religious instruction is completely prohibited while in (b), religious instruction is permitted. In (c) and (d), religious instruction is permitted on a voluntary basis.

CULTURAL AND EDUCATIONAL RIGHTS

1. Protection of Interests of Minorities

Article 29 provides that any section of the citizens residing in any part of India having a distinct language, script or culture of its own, shall have the right to conserve the same. Further, no citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, or language.

The first provision protects the right of a group while the second provision guarantees the right of a citizen as an individual irrespective of the community to which he belongs.

Article 29 grants protection to both religious minorities as well as linguistic minorities. However, the Supreme Court held that the scope of this article is not necessarily restricted to minorities only, as it is commonly assumed to be. This is because of the use of words 'section of citizens' in the Article that include minorities as well as majority.

The Supreme Court also held that the right to conserve the language includes the right to agitate for the protection of the language. Hence, the political speeches or promises made for the conservation of the language of a section of the citizens does not amount to corrupt practice under the Representation of the People Act, 1951.

2. Right of Minorities to Establish and Administer Educational Institutions

Article 30 grants the following rights to minorities, whether religious or linguistic:

(a) All minorities shall have the right to establish and administer educational institutions of their choice.

(b) The compensation amount fixed by the State for the compulsory acquisition of any property of a minority educational institution shall not restrict or abrogate the right guaranteed to them. This provision was added by the 44th Amendment Act of 1978 to protect the right of minorities in this regard. The Act deleted the right to property as a Fundamental Right (Article 31).

(c) In granting aid, the State shall not discriminate against any educational institution managed by a minority.

Thus, the protection under Article 30 is confined only to minorities (religious or linguistic) and does not extend to any section of citizens (as under Article 29). However, the term 'minority' has not been defined anywhere in the Constitution.

The right under Article 30 also includes the right of a minority to impart education to its children in its own language.

Minority educational institutions are of three types:

(a) institutions that seek recognition as well as aid from the State;
(b) institutions that seek only recognition from the State and not aid; and
(c) institutions that neither seek recognition nor aid from the State.

The institutions of first and second type are subject to the regulatory power of the state with regard to syllabus prescription, academic standards, discipline, sanitation, employment of teaching staff and so on. The institutions of third type are free to administer their affairs but subject to operation of general laws like contract law, labour law, industrial law, tax law, economic regulations, and so on.

In a judgement delivered in the Secretary of Malankara Syrian Catholic College case[14a] (2007), the Supreme Court has summarized the general principles relating to establishment and administration of minority educational institutions in the following way :

1. The right of minorities to establish and administer educational institutions of their choice comprises the following rights :
   (i) To choose its governing body in whom the founders of institution have faith and confidence to conduct and manage affairs of the institution;
   (ii) To appoint teaching staff (teachers/ lecturers and he masters/princi-pals) as also non-teaching staff; and to take ac if there is dereliction of duty on the part of any of its employees
   (iii) To admit eligible students of their choice and to set u reasonable fee structure; and
   (iv) To use its properties and assets for the benefit of the institutior
2. The right conferred on minorities under Article 30 is only to ensure equality with the majority and not intended to place the minorities in a more advantageous position vis-a-vis the majority. There is no reverse discrimination in favour of minorities. The general laws of the land relating to national interest, national security, social welfare, public order, morality, health, sanitation,

taxation etc., applicable to all, will equally apply to minority institutions also.

3. The right to establish and administer educational institutions is not absolute. Nor does it include the right to maladminister. There can be regulatory measures for ensuring educational character and standards and maintaining academic excellence. There can be checks on administration as are necessary to ensure that the administration is efficient and sound, so as to serve the academic needs of the institution. Regulations made by the State concerning generally the welfare of students and teachers, regulations laying down eligibility criteria and qualifications for appointment, as also conditions of service of employees (both teaching and non-teaching), regulations to prevent exploitation or oppression of employees, and regulations prescribing syllabus and curriculum of study fall under this category. Such regulations do not in any manner interfere with the right under Article 30(1).
4. Subject to the eligibility conditions/ qualifications prescribed by the State being met, the unaided minority educational institutions will have the freedom to appoint teachers/lecturers by adopting any rational procedure of selection.
5. Extention of aid by the State, does not alter the nature and character of the minority educational institutions. The conditions can be imposed by the State to ensure proper utilization of the aid, without however diluting or abridging the right under Article 30(1).

RIGHT TO CONSTITUTIONAL REMEDIES

A mere declaration of fundamental rights in the Constitution is meaningless, useless and worthless without providing an effective machinery for their enforcement, if and when they are violated. Hence, Article 32 confers the right to remedies for the enforcement of the fundamental rights of an aggrieved citizen. In other words, the right to get the Fundamental Rights protected is in itself a fundamental right. This makes the fundamental rights real. That is why Dr. Ambedkar called Article 32 as the most important article of the Constitution–'an Article without which this constitution would be a nullity. It is the very soul of the Constitution and the very heart of it'. The Supreme Court has ruled that Article 32 is a basic feature of the Constitution. Hence, it cannot be abridged or taken away even by way of an amendment to the Constitution. It contains the following four provisions:

(a) The right to move the Supreme Court by appropriate proceedings for the enforcement of the Fundamental Rights is guaranteed.

(b) The Supreme Court shall have power to issue directions or orders or writs for the enforcement of any of the fundamental rights. The writs issued may include *habeas corpus, mandamus,* prohibition, *certiorari* and *quo-warranto*.

(c) Parliament can empower any other court to issue directions, orders and writs of all kinds. However, this can be done without prejudice to the above powers conferred on the Supreme Court. Any other court here does not include high courts because Article 226 has already conferred these powers on the high courts.

(d) The right to move the Supreme Court shall not be suspended except as otherwise provided for by the Constitution. Thus the Constitution provides that the President can suspend the right to move any court for the enforcement of the fundamental rights during a national emergency (Article 359).

It is thus clear that the Supreme Court has been constituted as the defender and guarantor of the fundamental rights of the citizens. It has been vested with the 'original' and 'wide' powers for that purpose. Original, because an aggrieved citizen can directly go to the Supreme Court, not necessarily by way of appeal. Wide, because its power is not restricted to issuing of orders or directions but also writs of all kinds.

The purpose of Article 32 is to provide a guaranteed, effective, expeditious, inexpensive and summary remedy for the protection of the fundamental rights. Only the Fundamental Rights guaranteed by the Constitution can be enforced under Article 32 and not any other right like non-fundamental constitutional rights, statutory rights, customary rights and so on. The violation of a fundamental right is the *sine qua non* for the exercise of the right conferred by Article 32. In other words, the Supreme Court, under Article 32, cannot determine a question that does not involve Fundamental Rights. Article 32 cannot be invoked simply to determine the constitutionality of an executive order or a legislation unless it directly infringes any of the fundamental rights.

In case of the enforcement of Fundamental Rights, the jurisdiction of the Supreme Court is original but not exclusive. It is concurrent with the jurisdiction of the high court under Article 226. It vests original powers in the high court to issue directions, orders and writs of all kinds for the enforcement of the Fundamental Rights. It means when the Fundamental Rights of a citizen are violated, the aggrieved party has the option of moving either the high court or the Supreme Court directly.

Since the right guaranteed by Article 32 (ie, the right to move the Supreme Court where a fundamental right is infringed) is in itself a fundamental right, the availability of alternate remedy is no bar to relief under Article 32. However, the Supreme Court has ruled that where relief through high court is available under Article 226, the aggrieved party should first move the high court.

WRITS–TYPES AND SCOPE

The Supreme Court (under Article 32) and the high courts (under Article 226) can issue the writs of *habeas corpus, mandamus,* prohibition, *certiorari* and *quo-warranto*. Further, the Parliament (under Article 32) can empower any other court to issue these writs. Since no such provision has been made so far, only the Supreme Court and the high courts can issue the writs and not any other court. Before 1950, only the High Courts of Calcutta, Bombay and Madras had the power to issue the writs. Article 226 now empowers all the high courts to issue the writs.

These writs are borrowed from English law where they are known as 'prerogative writs'. They are so called in England as they were issued in the exercise of the prerogative of the King who was, and is still, described as the 'fountain of justice'. Later, the high court started issuing these writs as extraordinary remedies to uphold the rights and liberties of the British people.

The writ jurisdiction of the Supreme Court differs from that of a high court in three respects:

1. The Supreme Court can issue writs only for the enforcement of fundamental rights whereas a high court can issue writs not only for the enforcement of Fundamental Rights but also for any other purpose. The expression 'for any other purpose' refers to the enforcement of an ordinary legal right. Thus, the writ jurisdiction of the Supreme Court, in this respect, is narrower than that of high court.
2. The Supreme Court can issue writs against a person or government throughout the territory of India whereas a high court can issue writs against a person residing or against a government or authority located within its territorial jurisdiction only or outside its territorial jurisdiction only if the cause of action arises within its territorial jurisdiction.[15] Thus, the territorial jurisdiction of the Supreme Court for the purpose of issuing writs is wider than that of a high court.
3. A remedy under Article 32 is in itself a Fundamental Right and hence, the Supreme Court may not refuse to exercise its writ jurisdiction. On the other hand, a remedy under Article 226 is discretionary and hence, a high court may refuse to exercise its writ jurisdiction. Article 32 does not merely confer power on the

Supreme Court as Article 226 does on a high court to issue writs for the enforcement of fundamental rights or other rights as part of its general jurisdiction. The Supreme Court is thus constituted as a defender and guarantor of the fundamental rights.

Now, we will proceed to understand the meaning and scope of different kinds of writs mentioned in Articles 32 and 226 of the Constitution:

Habeas Corpus

It is a Latin term which literally means 'to have the body of'. It is an order issued by the court to a person who has detained another person, to produce the body of the latter before it. The court then examines the cause and legality of detention. It would set the detained person free, if the detention is found to be illegal. Thus, this writ is a bulwark of individual liberty against arbitrary detention.

The writ of *habeas corpus* can be issued against both public authorities as well as private individuals. The writ, on the other hand, is not issued where the **(a)** detention is lawful, **(b)** the proceeding is for contempt of a legislature or a court, **(c)** detention is by a competent court, and **(d)** detention is outside the jurisdiction of the court.

Mandamus

It literally means 'we command'. It is a command issued by the court to a public official asking him to perform his official duties that he has failed or refused to perform. It can also be issued against any public body, a corporation, an inferior court, a tribunal or government for the same purpose.

The writ of *mandamus* cannot be issued **(a)** against a private individual or body; **(b)** to enforce departmental instruction that does not possess statutory force; **(c)** when the duty is discretionary and not mandatory; **(d)** to enforce a contractual obligation; **(e)** against the president of India or the state governors; and **(f)** against the chief justice of a high court acting in judicial capacity.

Prohibition

Literally, it means 'to forbid'. It is issued by a higher court to a lower court or tribunal to prevent the latter from exceeding its jurisdiction or usurping a jurisdiction that it does not possess. Thus, unlike *mandamus* that directs activity, the prohibition directs inactivity.

The writ of prohibition can be issued only against judicial and quasi-judicial authorities. It is not available against administrative authorities, legislative bodies, and private individuals or bodies.

Certiorari

In the literal sense, it means ‘to be certified’ or ‘to be informed’. It is issued by a higher court to a lower court or tribunal either to transfer a case pending with the latter to itself or to squash the order of the latter in a case. It is issued on the grounds of excess of jurisdiction or lack of jurisdiction or error of law. Thus, unlike prohibition, which is only preventive, *certiorari* is both preventive as well as curative.

Previously, the writ of *certiorari* could be issued only against judicial and quasi-judicial authorities and not against administrative authorities. However, in 1991, the Supreme Court ruled that the *certiorari* can be issued even against administrative authorities affecting rights of individuals.

Like prohibition, *certiorari* is also not available against legislative bodies and private individuals or bodies.

Quo-Warranto

In the literal sense, it means ‘by what authority or warrant’. It is issued by the court to enquire into the legality of claim of a person to a public office. Hence, it prevents illegal usurpation of public office by a person.

The writ can be issued only in case of a substantive public office of a permanent character created by a statute or by the Constitution. It cannot be issued in cases of ministerial office or private office.

Unlike the other four writs, this can be sought by any interested person and not necessarily by the aggrieved person.

ARMED FORCES AND FUNDAMENTAL RIGHTS

Article 33 empowers the Parliament to restrict or abrogate the fundamental rights of the members of armed forces, para-military forces, police forces, intelligence agencies and analogous forces. The objective of this provision is to ensure the proper discharge of their duties and the maintenance of discipline among them.

The power to make laws under Article 33 is conferred only on Parliament and not on state legislatures. Any such law made by Parliament cannot be challenged in any court on the ground of contravention of any of the fundamental rights.

Accordingly, the Parliament has enacted the Army Act (1950), the Navy Act (1950), the Air Force Act (1950), the Police Forces (Restriction of Rights) Act, 1966, the Border Security Force Act and so on. These impose restrictions on their freedom of speech, right to form associations, right to be members of trade unions or political associations, right to communicate with the press, right to attend public meetings or demonstrations, etc.

Table 7.3 *Martial Law Vs National Emergency*

Martial Law	National Emergency
1. It affects only Fundamental Rights.	1. It affects not only Fundamental Rights but also Centre-state relations, distribution of revenues and legislative powers between centre and states and may extend the tenure of the Parliament.
2. It suspends the government and ordinary law courts.	2. It continues the government and ordinary law courts.
3. It is imposed to restore the breakdown of law and order due to any reason.	3. I t can be imposed only on three grounds–war, external aggression or armed rebellion.
4. It is imposed in some specific area of the country.	4. It is imposed either in the whole country or in any part

	of it.
5. I t has no specific provision in the Constitution. It is implicit.	5. I t has specific and detailed provision in the Constitution. It is explicit.

The expression‘members of the armed forces’ also covers such employees of the armed forces as barbers, carpenters, mechanics, cooks, chowkidars, bootmakers, tailors who are non-combatants.

A parliamentary law enacted under Article 33 can also exclude the court martial (tribunals established under the military law) from the writ jurisdiction of the Supreme Court and the high courts, so far as the enforcement of Fundamental Rights is concerned.

MARTIAL LAW AND FUNDAMENTAL RIGHTS

Article 34 provides for the restrictions on fundamental rights while martial law is in force in any area within the territory of India. It empowers the Parliament to indemnify any government servant or any other person for any act done by him in connection with the maintenance or restoration of order in any area where martial law was in force. The Parliament can also validate any sentence passed, punishment inflicted, forfeiture ordered or other act done under martial law in such area.

The Act of Indemnity made by the Parliament cannot be challenged in any court on the ground of contravention of any of the fundamental rights.

The concept of martial law has been borrowed in India from the English common law. However, the expression 'martial law' has not been defined anywhere in the Constitution. Literally, it means 'military rule'. It refers to a situation where civil administration is run by the military authorities according to their own rules and regulations framed outside the ordinary law. It thus imply the suspension of ordinary law and the government by military tribunals. It is different from the military law that is applicable to the armed forces.

There is also no specific or express provision in the Constitution that authorises the executive to declare martial law. However, it is implicit in Article 34 under which martial law can be declared in any area within the territory of India. The martial law is imposed under the extraordinary circumstances like war, invasion, insurrection, rebellion, riot or any violent resistance to law. Its justification is to repel force by force for maintaining or restoring order in the society.

During the operation of martial law, the military authorities are vested with abnormal powers to take all necessary steps. They impose restrictions and regulations on the rights of the civilians, can punish the civilians and even condemn them to death.

The Supreme Court held that the declaration of martial law does not *ipso facto* result in the suspension of the writ of *habeas corpus*.

The declaration of a martial law under Article 34 is different from the declaration of a national emergency under Article 352. The differences between the two are summarised in Table 7.3.

EFFECTING CERTAIN FUNDAMENTAL RIGHTS

Article 35 lays down that the power to make laws, to give effect to certain specified fundamental rights shall vest only in the Parliament and not in the state legislatures. This provision ensures that there is uniformity throughout India with regard to the nature of those fundamental rights and punishment for their infringement. In this direction, Article 35 contains the following provisions:

1. The Parliament shall have (and the legislature of a state shall not have) power to make laws with respect to the following matters:

(a) Prescribing residence as a condition for certain employments or appointments in a state or union territory or local authority or other authority (Article 16).
(b) Empowering courts other than the Supreme Court and the high courts to issue directions, orders and writs of all kinds for the enforcement of fundamental rights (Article 32).
(c) Restricting or abrogating the application of Fundamental Rights to members of armed forces, police forces, etc. (Article 33).
(d) Indemnifying any government servant or any other person for any act done during the operation of martial law in any area (Article 34).

2. Parliament shall have (and the legislature of a state shall not have) powers to make laws for prescribing punishment for those acts that are declared to be offences under the fundamental rights. These include the following:

(a) Untouchability (Article 17).
(b) Traffic in human beings and forced labour (Article 23).

Further, the Parliament shall, after the commencement of the Constitution, make laws for prescribing punishment for the above acts, thus making it obligatory on the part of the Parliament to enact such laws.

3. Any law in force at the commencement of the Constitution with respect to any of the matters specified above is to continue in force until altered or repealed or amended by the Parliament.

It should be noted that Article 35 extends the competence of the Parliament to make a law on the matters specified above, even though some of those matters may fall within the sphere of the state legislatures (i.e., State List).

PRESENT POSITION OF RIGHT TO PROPERTY

Originally, the right to property was one of the seven fundamental rights under Part III of the Constitution. It was dealt by Article 19(1) (f) and Article 31. Article 19(1)(f) guaranteed to every citizen the right to acquire, hold and dispose of property. Article 31, on the other hand, guaranteed to every person, whether citizen or non-citizen, right against deprivation of his property. It provided that no person shall be deprived of his property except by authority of law. It empowered the State to acquire or requisition the property of a person on two conditions: (a) it should be for public purpose, and (b) it should provide for payment of compensation (amount) to the owner.

Since the commencement of the Constitution, the Fundamental Right to Property has been the most controversial. It has caused confrontations between the Supreme Court and the Parliament. It has led to a number of Constitutional amendments, that is, 1st, 4th, 7th, 25th, 39th, 40th and 42nd Amendments. Through these amendments, Articles 31A, 31B and 31C have been added and modified from time to time to nullify the effect of Supreme Court judgements and to protect certain laws from being challenged on the grounds of contravention of Fundamental Rights. Most of the litigation centred around the obligation of the state to pay compensation for acquisition or requisition of private property.

Therefore, the 44th Amendment Act of 1978 abolished the right to property as a Fundamental Right by repealing Article 19(1) (f) and Article 31 from Part III. Instead, the Act inserted a new Article 300A in Part XII under the heading ‘Right to Property’. It provides that no person shall be deprived of his property except by authority of law. Thus, the right to property still remains a legal right or a constitutional right, though no longer a fundamental right. It is not a part of the basic structure of the Constitution.

The right to property as a legal right (as distinct from the Fundamental Rights) has the following implications:

(a) It can be regulated ie, curtailed, abridged or modified without constitutional amend-ment by an ordinary law of the Parliament.
(b) It protects private property against executive action but not against legislative action.
(c) In case of violation, the aggrieved person cannot directly move the Supreme Court under Article 32 (right to constitutional

remedies including writs) for its enforcement. He can move the High Court under Article 226.

(d) No guaranteed right to compensation in case of acquisition or requisition of the private property by the state.

Though the Fundamental Right to Property under Part III has been abolished, the Part III still carries two provisions which provide for the guaranteed right to compensation in case of acquisition or requisition of the private property by the state. These two cases where compensation has to be paid are:

(a) When the State acquires the property of a minority educational institution (Article 30); and

(b) When the State acquires the land held by a person under his personal cultivation and the land is within the statutory ceiling limits (Article 31 A).

The first provision was added by the 44th Amendment Act (1978), while the second provision was added by the 17th Amendment Act (1964).

Further, Articles 31A, 31B and 31C have been retained as exceptions to the fundamental rights.

EXCEPTIONS TO FUNDAMENTAL RIGHTS

1. Saving of Laws Providing for Acquisition of Estates, etc.

Article 31A[16] saves five categories of laws from being challenged and invalidated on the ground of contravention of the fundamental rights conferred by Article 14 (equality before law and equal protection of laws) and Article 19 (protection of six rights in respect of speech, assembly, movement, etc.). They are related to agricultural land reforms, industry and commerce and include the following:

(a) Acquisition of estates[17] and related rights by the State;
(b) Taking over the management of properties by the State;
(c) Amalgamation of corporations;
(d) Extinguishment or modification of rights of directors or shareholders of corporations; and
(e) Extinguishment or modification of mining leases.

Article 31A does not immunise a state law from judicial review unless it has been reserved for the president's consideration and has received his assent.

This Article also provides for the payment of compensation at market value when the state acquires the land held by a person under his personal cultivation and the land is within the statutory ceiling limit.

2. Validation of Certain Acts and Regulations

Article 31B saves the acts and regulations included in the Ninth Schedule[18] from being challenged and invalidated on the ground of contravention of any of the fundamental rights. Thus, the scope of Article 31B is wider than Article 31A. Article 31B immunises any law included in the Ninth Schedule from all the fundamental rights whether or not the law falls under any of the five categories specified in Article 31A.

However, in a significant judgement delivered in *I.R. Coelho* case[18a] (2007), the Supreme Court ruled that there could not be any blanket immunity from judicial review of laws included in the Ninth Schedule. The court held that judicial review is a 'basic feature' of the constitution and it could not be taken away by putting a law under the Ninth Schedule. It said that the laws placed under the Ninth Schedule

after April 24, 1973, are open to challenge in court if they violated fundamentals rights guaranteed under Articles 14, 15, 19 and 21 or the 'basic structure' of the constitution. It was on April 24, 1973, that the Supreme Court first propounded the doctrine of 'basic structure' or 'basic features' of the constitution in its landmark verdict in the Kesavananda Bharati Case.[19]

Originally (in 1951), the Ninth Schedule contained only 13 acts and regulations but at present (in 2016) their number is 282.[20] Of these, the acts and regulations of the state legislature deal with land reforms and abolition of the zamindari system and that of the Parliament deal with other matters.

3. Saving of Laws Giving Effect to Certain Directive Principles

Article 31C, as inserted by the 25th Amendment Act of 1971, contained the following two provisions:

(a) No law that seeks to implement the socialistic directive principles specified in Article 39(b)[21] or (c)[22] shall be void on the ground of contravention of the fundamental rights conferred by Article 14 (equality before law and equal protection of laws) or Article 19 (protection of six rights in respect of speech, assembly, movement, etc.)

(b) No law containing a declaration that it is for giving effect to such policy shall be questioned in any court on the ground that it does not give effect to such a policy.

In the *Kesavananda Bharati* case[23] (1973), the Supreme Court declared the above second provision of Article 31C as unconstitutional and invalid on the ground that judicial review is a basic feature of the Constitution and hence, cannot be taken away. However, the above first provision of Article 31C was held to be constitutional and valid.

The 42nd Amendment Act (1976) extended the scope of the above first provision of Article 31C by including within its protection any law to implement any of the directive principles specified in Part IV of the Constitution and not merely in Article 39 (b) or (c). However, this extention was declared as unconstitutional and invalid by the Supreme Court in the *Minerva Mills* case[24] (1980).

CRITICISM OF FUNDAMENTAL RIGHTS

The Fundamental Rights enshrined in Part III of the Constitution have met with a wide and varied criticism. The arguments of the critics are:

1. Excessive Limitations

They are subjected to innumerable exceptions, restrictions, qualifications and explanations. Hence, the critics remarked that the Constitution grants Fundamental Rights with one hand and takes them away with the other. Jaspat Roy Kapoor went to the extent of saying that the chapter dealing with the fundamental rights should be renamed as ‘Limitaions on Fundamental Rights’ or ‘Fundamental Rights and Limitations Thereon’.

2. No Social and Economic Rights

The list is not comprehensive as it mainly consists of political rights. It makes no provision for important social and economic rights like right to social security, right to work, right to employment, right to rest and leisure and so on. These rights are made available to the citizens of advanced democratic countries. Also, the socialistic constitutions of erstwhile USSR or China provided for such rights.

3. No Clarity

They are stated in a vague, indefinite and ambiguous manner. The various phrases and words used in the chapter like ‘public order’, ‘minorities’, ‘reasonable restriction’, ‘public interest’ and so on are not clearly defined. The language used to describe them is very complicated and beyond the comprehension of the common man. It is alleged that the Constitution was made by the lawyers for the lawyers. Sir Ivor Jennings called the Constitution of India a ‘paradise for lawyers’.

4. No Permanency

They are not sacrosanct or immutable as the Parliament can curtail or abolish them, as for example, the abolition of the fundamental right to property in 1978. Hence, they can become a play tool in the hands of politicians having majority support in the Parliament. The judicially

innovated ‘doctrine of basic structure’ is the only limitation on the authority of Parliament to curtail or abolish the fundamental right.

5. Suspension During Emergency

The suspension of their enforcement during the operation of National Emergency (except Articles 20 and 21) is another blot on the efficacy of these rights. This provision cuts at the roots of democratic system in the country by placing the rights of the millions of innocent people in continuous jeopardy. According to the critics, the Fundamental Rights should be enjoyable in all situations–Emergency or no Emergency.

6. Expensive Remedy

The judiciary has been made responsible for defending and protecting these rights against the interference of the legislatures and executives. However, the judicial process is too expensive and hinders the common man from getting his rights enforced through the courts. Hence, the critics say that the rights benefit mainly the rich section of the Indian Society.

7. Preventive Detention

The critics assert that the provision for preventive detention (Article 22) takes away the spirit and substance of the chapter on fundamental rights. It confers arbitrary powers on the State and negates individual liberty. It justifies the criticism that the Constitution of India deals more with the rights of the State against the individual than with the rights of the individual against the State. Notably, no democratic country in the world has made preventive detention as an integral part of their Constitutions as has been made in India.

8. No Consistent Philosophy

According to some critics, the chapter on fundamental rights is not the product of any philosophical principle. Sir Ivor Jennings expressed this view when he said that the Fundamental Rights proclaimed by the Indian Constitution are based on no consistent phi-losophy.[25] The critics say that this creates difficulty for the Supreme Court and the high courts in interpreting the fundamental rights.

SIGNIFICANCE OF FUNDAMENTAL RIGHTS

In spite of the above criticism and shortcomings, the Fundamental Rights are significant in the following respects:

1. They constitute the bedrock of democratic system in the country.
2. They provide necessary conditions for the material and moral protection of man.
3. They serve as a formidable bulwark of individual liberty.
4. They facilitate the establishment of rule of law in the country.
5. They protect the interests of minorities and weaker sections of society.
6. They strengthen the secular fabric of the Indian State.
7. They check the absoluteness of the authority of the government.
8. They lay down the foundation stone of social equality and social justice.
9. They ensure the dignity and respect of individuals.
10. They facilitate the participation of people in the political and administrative process.

RIGHTS OUTSIDE PART III

Besides the Fundamental Rights included in Part III, there are certain other rights contained in other parts of the Constitution. These rights are known as constitutional rights or legal rights or non-fundamental rights. They are:

1. No tax shall be levied or collected except by authority of law (Article 265 in Part XII).
2. No person shall be deprived of his property save by authority of law (Article 300-A in Part XII).
3. Trade, commerce and intercourse throughout the territory of India shall be free (Article 301 in Part XIII).

Even though the above rights are also equally justiciable, they are different from the Fundamental Rights. In case of violation of a Fundamental Right, the aggrieved person can directly move the Supreme Court for its enforcement under Article 32, which is in itself a fundamental right. But, in case of violation of the above rights, the aggrieved person cannot avail this constitutional remedy. He can move the High Court by an ordinary suit or under Article 226 (writ jurisdiction of high court).

Table 7.4 *Articles Related to Fundamental Rights at a Glance*

Article No.	Subject Matter
	General
12.	Definition of State
13.	Laws inconsistent with or in derogation of the Fundamental Rights
	Right to Equality
14.	Equality before law
15.	Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth
16.	Equality of opportunity in matters of public employment
17.	Abolition of untouchability
18.	Abolition of titles

Right to Freedom	
19.	Protection of certain rights regarding freedom of speech, etc.
20.	Protection in respect of conviction for offences
21.	Protection of life and personal liberty
21A.	Right to education
22.	Protection against arrest and detention in certain cases
Right against Exploitation	
23.	Prohibition of traffic in human beings and forced labour
24.	Prohibition of employment of children in factories, etc.
Right to Freedom of Religion	
25.	Freedom of conscience and free profession, practice and propagation of religion
26.	Freedom to manage religious affairs
27.	Freedom as to payment of taxes for promotion of any particular religion
28.	Freedom as to attendance at religious instruction or religious worship in certain educational institutions.
Cultural and Educational Rights	
29.	Protection of interests of minorities
30.	Right of minorities to establish and administer educational institutions
Right to Property (Repealed)	
31.	Compulsory acquisition of property–(Repealed)
Saving of Certain Laws	
31A.	Saving of laws providing for acquisition of estates, etc.
31B.	Validation of certain Acts and Regulations
31C.	Saving of laws giving effect to certain directive

	principles
31D.	Saving of laws in respect of anti-national activities– (Repealed)
	Right to Constitutional Remedies
32.	Remedies for enforcement of rights conferred by this part
32A.	Constitutional validity of State laws not to be considered in proceedings under Article 32– (Repealed)
33.	Power of Parliament to modify the rights conferred by this part in their application to forces, etc.
34.	Restriction on rights conferred by this part while martial law is in force in any area
35.	Legislation to give effect to the provisions of this part

NOTES AND REFERENCES

1. 'Magna Carta' is the Charter of Rights issued by King John of England in 1215 under pressure from the barons. This is the first written document relating to the Fundamental Rights of citizens.
2. *Kesavananda Bharati vs. State of Kerala,* (1973).
3. Dicey observe: "No man is above the law, but every man, whatever be his rank or condition, is subject to the ordinary law of the realm and amenable to the jurisdiction of the ordinary tribunals. Every official from the Prime Minister down to a constable or a collector of taxes, is under the same responsibility for every act done without legal justification as any other citizen". (A.V. Dicey, *Introduction to the Study of the Law of the Constitution,* Macmillan, 1931 Edition P. 183–191).
4. This second provision was added by the first Amendment Act of 1951.
5. By virtue of Article 371D inserted by the 32nd Amendment Act of 1973.

5a. Article 371D has been extended to the state of Telangana by the Andhra Pradesh Reorganisation Act, 2014.

6. The first Backward Classes Commission was appointed in 1953 under the chairmanship of Kaka Kalelkar. It submitted its report in 1955.
7. In 1963, the Supreme Court ruled that more than 50% reservation of jobs in a single year would be unconstitutional.
8. *Indra Sawhney v. Union of India,* (1992).
9. The Tamil Nadu Backward Classes, Scheduled Castes and Scheduled Tribes (Reservation of seats in educational institutions and of appointments or posts in the services under the state) Act, 1994.
10. *Balaji Raghavan v. Union of India,* (1996).

10a. The provision for "co-operative societies" was made by the 97th Constitutional Amendment Act of 2011.

10b. *Ibid*.

11. *A K Gopalan v. State of Madras,* (1950).
12. *Menaka Gandhi v. Union of India,* (1978).

12a. The Constitution (Eighty-sixth amendment) Act, 2002 and the Right of Children to Free and Compulsory Education Act, 2009 have come into force w.e.f. 1 April 2010.

13. Originally known as the Suppression of Immoral Traffic in Women and Girls Act, 1956.
14. In this clause, the reference to Hindus shall be construed as including a reference to persons professing the Sikh, Jaina and Buddhist religion and the reference to Hindu religious institutions shall be construed accordingly (Article 25).

14a. *Secretary of the Malankara Syrian Catholic College vs. T. Jose* (2007).

15. The second provision was added by the 15th Constitutional Amendment Act of 1963.
16. Added by the 1st Constitutional Amendment Act of 1951 and amended by the 4th, 17th and 44th Amendments.
17. The expression 'estate' includes any *jagir, inam, muafi* or other similar grant, any *janmam* right in Tamil Nadu and Kerala and any land held for agricultural purposes.
18. Article 31B along with the Ninth Schedule was added by the 1st Constitutional Amendment Act of 1951.

18a. *I.R. Coelho vs. State of Tamil Nadu* (2007).

19. *Kesavananda Bharati v. State of Kerala,* (1973).

20. Though the last entry is numbered 284, the actual total number is 282. This is because, the three entries (87, 92 and 130) have been deleted and one entry is numbered as 257A.
21. Article 39 (b) says–The State shall direct its policy towards securing that the ownership and control of the material resources of the community are so distributed as best to subserve the common good.
22. Article 39 (c) says–The state shall direct its policy towards securing that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment.
23. *Kesavananda Bharati v. State of Kerala*, (1973).
24. *Minerva Mills v. Union of India, (1980)*.
25. *Sir Ivor Jennings wrote: 'A thread of nineteenth century liberalism runs through it; there are consequences of the political problems of Britain in it; there are relics of the bitter experience in opposition to British rule; and there is evidence of a desire to reform some of the social institutions which time and circumstances have developed in India. The result is a series of complex formulae, in twenty-four articles, some of them lengthy, which must become the basis of a vast and complicated case law'*.

8 Directive Principles of State Policy

The Directive Principles of State Policy are enumerated in Part IV of the Constitution from Articles 36 to 51[1]. *The framers of the Constitution borrowed this idea from the Irish Constitution of 1937, which had copied it from the Spanish Constitution*. Dr. B.R. Ambedkar described these principles as 'novel features' of the Indian Constitution. The Directive Principles along with the Fundamental Rights contain the philosophy of the Constitution and is the soul of the Constitution. Granville Austin has described the Directive Principles and the Fundamental Rights as the 'Conscience of the Constitution'[2] .

FEATURES OF THE DIRECTIVE PRINCIPLES

1. The phrase 'Directive Principles of State Policy' denotes the ideals that the State should keep in mind while formulating policies and enacting laws. These are the constitutional instructions or recommendations to the State in legislative, executive and administrative matters. According to Article 36, the term 'State' in Part IV has the same meaning as in Part III dealing with Fundamental Rights. Therefore, it includes the legislative and executive organs of the central and state governments, all local authorities and all other public authorities in the country.
2. The Directive Principles resemble the 'Instrument of Instructions' enumerated in the Government of India Act of 1935. In the words of Dr. B.R. Ambedkar, 'the Directive Principles are like the instrument of instructions, which were issued to the Governor-General and to the Governors of the colonies of India by the British Government under the Government of India Act of 1935. What is called Directive Principles is merely another name for the instrument of instructions. The only difference is that they are instructions to the legislature and the executive'.
3. The Directive Principles constitute a very comprehensive economic, social and political programme for a modern democratic State. They aim at realising the high ideals of justice, liberty, equality and fraternity as outlined in the Preamble to the Constitution. They embody the concept of a 'welfare state' and not that of a 'police state', which existed during the colonial era[3]. In brief, they seek to establish economic and social democracy in the country.
4. The Directive Principles are non-justiciable in nature, that is, they are not legally enforceable by the courts for their violation. Therefore, the government (Central, state and local) cannot be compelled to implement them. Nevertheless, the Constitution (Article 37) itself says that these principles are fundamental in the governance of the

country and it shall be the duty of the State to apply these principles in making laws.

5. The Directive Principles, though non-justiciable in nature, help the courts in examining and determining the constitutional validity of a law. The Supreme Court has ruled many a times that in determining the constitutionality of any law, if a court finds that the law in question seeks to give effect to a Directive Principle, it may consider such law to be ‘reasonable’ in relation to Article 14 (equality before law) or Article 19 (six freedoms) and thus save such law from unconstitutionality.

CLASSIFICATION OF THE DIRECTIVE PRINCIPLES

The Constitution does not contain any classification of Directive Principles. However, on the basis of their content and direction, they can be classified into three broad categories, viz, socialistic, Gandhian and liberal-intellectual.

Socialistic Principles

These principles reflect the ideology of socialism. They lay down the framework of a democratic socialist state, aim at providing social and economic justice, and set the path towards welfare state. They direct the state:

1. To promote the welfare of the people by securing a social order permeated by justice–social, economic and politi-cal–and to minimise inequalities in income, status, facilities and opportuni-ties[4] (Article 38).
2. To secure (a) the right to adequate means of livelihood for all citizens; (b) the equitable distribution of material resources of the community for the common good; (c) prevention of concentration of wealth and means of production; (d) equal pay for equal work for men and women; (e) preservation of the health and strength of workers and children against forcible abuse; and (f) opportunities for healthy development of children[5] (Article 39).
3. To promote equal justice and to provide free legal aid to the poor[6] (Article 39 A).
4. To secure the right to work, to education and to public assistance in cases of unemployment, old age, sickness and disablement (Article 41).
5. To make provision for just and humane conditions of work and maternity relief (Article 42).
6. To secure a living wage[7] , a decent standard of life and social and cultural opportunities for all workers (Article 43).
7. To take steps to secure the participation of workers in the management of indus-tries[8] (Article 43 A).

8. To raise the level of nutrition and the standard of living of people and to improve public health (Article 47).

Gandhian Principles

These principles are based on Gandhian ideology. They represent the programme of reconstruction enunciated by Gandhi during the national movement. In order to fulfil the dreams of Gandhi, some of his ideas were included as Directive Principles. They require the State:

1. To organise village panchayats and endow them with necessary powers and authority to enable them to function as units of self-government (Article 40).
2. To promote cottage industries on an individual or co-operation basis in rural areas (Article 43).
3. To promote voluntary formation, autonomous functioning, democratic control and professional management of cooperative societies[8a] (Article 43B).
4. To promote the educational and economic interests of SCs, STs, and other weaker sections of the society and to protect them from social injustice and exploitation (Article 46).
5. To prohibit the consumption of intoxicating drinks and drugs which are injurious to health (Article 47).
6. To prohibit the slaughter of cows, calves and other milch and draught cattle and to improve their breeds (Article 48).

Liberal-Intellectual Principles

The principles included in this category represent the ideology of liberalism. They direct the state:

1. To secure for all citizens a uniform civil code throughout the country (Article 44).
2. To provide early childhood care and education for all children until they complete the age of six years[9] (Article 45).
3. To organise agriculture and animal husbandry on modern and scientific lines (Article 48).
4. To protect and improve the environment and to safeguard forests and wild life[10] (Article 48 A).

5. To protect monuments, places and objects of artistic or historic interest which are declared to be of national importance (Article 49).
6. To separate the judiciary from the executive in the public services of the State (Article 50).
7. To promote international peace and security and maintain just and honourable relations between nations; to foster respect for international law and treaty obligations, and to encourage settlement of international disputes by arbitration (Article 51).

NEW DIRECTIVE PRINCIPLES

The 42nd Amendment Act of 1976 added four new Directive Principles to the original list. They require the State:

1. To secure opportunities for healthy development of children (Article 39).
2. To promote equal justice and to provide free legal aid to the poor (Article 39 A).
3. To take steps to secure the participation of workers in the management of industries (Article 43 A).
4. To protect and improve the environment and to safeguard forests and wild life (Article 48 A).

The 44th Amendment Act of 1978 added one more Directive Principle, which requires the State to minimise inequalities in income, status, facilities and opportunities (Article 38).

The 86th Amendment Act of 2002 changed the subject-matter of Article 45 and made elementary education a fundamental right under Article 21 A. The amended directive requires the State to provide early childhood care and education for all children until they complete the age of six years.

The 97th Amendment Act of 2011 added a new Directive Principle relating to cooperative societies. It requires the state to promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies (Article 43B).

SANCTION BEHIND DIRECTIVE PRINCIPLES

Sir B.N. Rau, the Constitutional Advisor to the Constituent Assembly, recommended that the rights of an individual should be divided into two categories–justiciable and non-justiciable, which was accepted by the Drafting Committee. Consequently, the Fundamental Rights, which are justiciable in nature, are incorporated in Part III and the Directive Principles, which are non-justiciable in nature, are incorporated in Part IV of the Constitution.

Though the Directive Principles are non-justiciable, the Constitution (Article 37) makes it clear that 'these principles are fundamental in the governance of the country and it shall be the duty of the state to apply these principles in making laws'. Thus, they impose a moral obligation on the state authorities for their application, but the real force behind them is political, that is, public opinion. As observed by Alladi Krishna Swamy Ayyar, 'no ministry responsible to the people can afford light-heartedly to ignore the provisions in Part IV of the Constitution'. Similarly, Dr. B.R. Ambedkar said in the Constituent Assembly that 'a government which rests on popular vote can hardly ignore the Directive Principles while shaping its policy. If any government ignores them, it will certainly have to answer for that before the electorate at the election time'[11] .

The framers of the Constitution made the Directive Principles non-justiciable and legally non-enforceable because:

1. The country did not possess sufficient financial resources to implement them.
2. The presence of vast diversity and backwardness in the country would stand in the way of their implementation.
3. The newly born independent Indian State with its many preoccupations might be crushed under the burden unless it was free to decide the order, the time, the place and the mode of fulfilling them.

'The Constitution makers, therefore, taking a pragmatic view, refrained from giving teeth to these principles. They believed more

in an awakened public opinion rather than in court procedures as the ultimate sanction for the fulfilment of these principles'[12] .

CRITICISM OF THE DIRECTIVE PRINCIPLES

The Directive Principles of State Policy have been criticised by some members of the Constituent Assembly as well as other constitutional and political experts on the following grounds:

1. No Legal Force

The Directives have been criticised mainly because of their non-justiciable character. While K.T. Shah dubbed them as 'pious superfluities' and compared them with 'a cheque on a bank, payable only when the resources of the bank permit'[13] , Nasiruddin contended that these principles are 'no better than the new year's resolutions, which are broken on the second of January'. Even as T.T. Krishnamachari described the Directives as 'a veritable dustbin of sentiments', K C Wheare called them as a 'manifesto of aims and aspirations' and opined that they serve as mere 'moral homily', and Sir Ivor Jennings thought they are only as 'pious aspirations'.

2. Illogically Arranged

Critics opine that the Directives are not arranged in a logical manner based on a consistent philosophy. According to N Srinivasan, 'the Directives are neither properly classified nor logically arranged. The declaration mixes up relatively unimportant issues with the most vital economic and social questions. It combines rather incongruously the modern with the old and provisions suggested by the reason and science with provisions based purely on sentiment and prejudice'[14]. Sir Ivor Jennings too pointed out that these principles have no consistent philosophy.

3. Conservative

According to Sir Ivor Jennings, the Directives are based on the political philosophy of the 19th century England. He remarked: 'The ghosts of Sydney Webb and Beatrice Webb stalk through the pages of the text. Part IV of the Constitution expresses Fabian

Socialism without the socialism'. He opined that the Directives 'are deemed to be suitable in India in the middle of the twentieth century. The question whether they are suitable for the twenty-first century cannot be answered; but it is quite probable that they will be entirely out moded.[15]

4. Constitutional Conflict

K Santhanam has pointed out that the Directives lead to a constitutional conflict (a) between the Centre and the states, (b) between the President and the Prime Minister, and (c) between the governor and the chief minister. According to him, the Centre can give directions to the states with regard to the implementation of these principles, and in case of non-compliance, can dismiss the state government. Similarly, when the Prime Minister gets a bill (which violates the Directive Principles) passed by the Parliament, the president may reject the bill on the ground that these principles are fundamental to the governance of the country and hence, the ministry has no right to ignore them. The same constitutional conflict may occur between the governor and the chief minister at the state level.

UTILITY OF DIRECTIVE PRINCIPLES

In spite of the above criticisms and shortcomings, the Directive Principles are not an unnecessary appendage to the Constitution. The Constitution itself declares that they are fundamental to the governance of the country. According to L.M. Singhvi, an eminent jurist and diplomat, 'the Directives are the life giving provisions of the Constitution. They constitute the stuff of the Constitution and its philosophy of social justice'[16]. M.C. Chagla, former Chief Justice of India, is of the opinion that, 'if all these principles are fully carried out, our country would indeed be a heaven on earth. India would then be not only democracy in the political sense, but also a welfare state looking after the welfare of its citizens'[17]. Dr. B.R. Ambedkar had pointed out that the Directives have great value because they lay down that the goal of Indian polity is 'economic democracy' as distinguished from 'political democracy'. Granville Austin opined that the Directive Principles are 'aimed at furthering the goals of the social revolution or to foster this revolution by establishing the conditions necessary for its achivement'[18]. Sir B.N. Rau, the constitutional advisor to the Constituent Assembly, stated that the Directive Principles are intended as 'moral precepts for the authorities of the state. They have at least an educative value.'

According to M.C. Setalvad, the former Attorney General of India, the Directive Principles, although confer no legal rights and create no legal remedies, are significant and useful in the following ways:

1. They are like an 'Instrument of Instructions' or general recommendations addressed to all authorities in the Indian Union. They remind them of the basic principles of the new social and economic order, which the Constitution aims at building.
2. They have served as useful beacon-lights to the courts. They have helped the courts in exercising their power of judicial review, that is, the power to determine the constitutional validity of a law.

3. They form the dominating background to all State action, legislative or executive and also a guide to the courts in some respects.
4. They amplify the Preamble, which solemnly resolves to secure to all citizens of India justice, liberty, equality and fraternity.

The Directives also play the following roles:

1. They facilitate stability and continuity in domestic and foreign policies in political, economic and social spheres in spite of the changes of the party in power.
2. They are supplementary to the fundamental rights of the citizens. They are intended to fill in the vacuum in Part III by providing for social and economic rights.
3. Their implementation creates a favourable atmosphere for the full and proper enjoyment of the fundamental rights by the citizens. Political democracy, without economic democracy, has no meaning.
4. They enable the opposition to exercise influence and control over the operations of the government. The Opposition can blame the ruling party on the ground that its activities are opposed to the Directives.
5. They serve as a crucial test for the performance of the government. The people can examine the policies and programmes of the government in the light of these constitutional declarations.
6. They serve as common political manifesto. ‘A ruling party, irrespective of its political ideology, has to recognise the fact that these principles are intended to be its guide, philosopher and friend in its legislative and executive acts’[19] .

CONFLICT BETWEEN FUNDAMENTAL RIGHTS AND DIRECTIVE PRINCIPLES

The justiciability of Fundamental Rights and non-justiciability of Directive Principles on the one hand and the moral obligation of State to implement Directive Principles (Article 37) on the other hand have led to a conflict between the two since the commencement of the Constitution. In the *Champakam Dorairajan* case[20] (1951), the Supreme Court ruled that in case of any conflict between the Fundamental Rights and the Directive Principles, the former would prevail. It declared that the Directive Principles have to conform to and run as subsidiary to the Fundamental Rights. But, it also held that the Fundamental Rights could be amended by the Parliament by enacting constitutional amendment acts. As a result, the Parliament made the First Amendment Act (1951), the Fourth Amendment Act (1955) and the Seventeenth Amendment Act (1964) to implement some of the Directives.

The above situation underwent a major change in 1967 following the Supreme Court's judgement in the *Golaknath* case[21] (1967). In that case, the Supreme Court ruled that the Parliament cannot take away or abridge any of the Fundamental Rights, which are 'sacrosanct' in nature. In other words, the Court held that the Fundamental Rights cannot be amended for the implementation of the Directive Principles.

The Parliament reacted to the Supreme Court's judgement in the *Golaknath Case* (1967) by enacting the 24th Amendment Act (1971) and the 25th Amendment Act (1971). The 24th Amendment Act declared that the Parliament has the power to abridge or take away any of the Fundamental Rights by enacting Constitutional Amendment Acts. The 25th Amendment Act inserted a new Article 31C which contained the following two provisions:

1. No law which seeks to implement the socialistic Directive Principles specified in Article 39 (b)[22] and (c)[23] shall be void on the ground of contravention of the Fundamental Rights conferred by Article 14 (equality before law and equal

protection of laws), Article 19 (protection of six rights in respect of speech, assembly, movement, etc) or Article 31 (right to property).

2. No law containing a declaration for giving effect to such policy shall be questioned in any court on the ground that it does not give effect to such a policy.

In the *Kesavananda Bharati* case[24] (1973), the Supreme Court declared the above second provision of Article 31C as unconstitutional and invalid on the ground that judicial review is a basic feature of the Constitution and hence, cannot be taken away. However, the above first provision of Article 31C was held to be constitutional and valid.

Table 8.1 *Distinction Between Fundamental Rights and Directive Principles*

Fundamental Rights	Directive Principles
1. These are negative as they prohibit the State from doing certain things.	1. These are positive as they require the State to do certain things.
2. These are justiciable, that is, they are legally enforceable by the courts in case of their violation.	2. These are non-justiciable, that is, they are not legally enforceable by the courts for their violation.
3. They aim at establishing political democracy in the country.	3. They aim at establishing social and economic democracy in the country.
4. These have legal sanctions.	4. These have moral and political sanctions.
5. They promote the welfare of the individual. Hence, they are personal and individualistic.	5. They promote the welfare of the community. Hence, they are societarian and socialistic.
6. They do not require any legislation for their	6. They require legislation for their implementation. They

implementation. They are automatically enforced.	are not automatically enforced.
7. The courts are bound to declare a law violative of any of the Fundamental Rights as unconstitutional and invalid.	7. The courts cannot declare a law violative of any of the Directive Principles as unconstitutional and invalid. However, they can uphold the validity of a law on the ground that it was enacted to give effect to a directive.

Later, the 42nd Amendment Act (1976) extended the scope of the above first provision of Article 31C by including within its protection any law to implement any of the Directive Principles and not merely those specified in Article 39 (b) and (c). In other words, the 42nd Amendment Act accorded the position of legal primacy and supremacy to the Directive Principles over the Fundamental Rights conferred by Articles 14, 19 and 31. However, this extension was declared as unconstitutional and invalid by the Supreme Court in the *Minerva Mills* case[25] (1980). It means that the Directive Principles were once again made subordinate to the Fundamental Rights. But the Fundamental Rights conferred by Article 14 and Article 19 were accepted as subordinate to the Directive Principles specified in Article 39 (b) and (c). Further, Article 31 (right to property) was abolished by the 44th Amendment Act (1978).

In the *Minerva Mills* case (1980), the Supreme Court also held that 'the Indian Constitution is founded on the bedrock of the balance between the Fundamental Rights and the Directive Principles. They together constitute the core of commitment to social revolution. They are like two wheels of a chariot, one no less than the other. To give absolute primacy to one over the other is to disturb the harmony of the Constitution. This harmony and balance between the two is an essential feature of the basic structure of the Constitution. The goals set out by the Directive Principles have to be achieved without the abrogation of the means provided by the Fundamental Rights'.

Therefore, the present position is that the Fundamental Rights enjoy supremacy over the Directive Principles. Yet, this does not mean that the Directive Principles cannot be implemented. The Parliament can amend the Fundamental Rights for implementing the Directive Principles, so long as the amendment does not damage or destroy the basic structure of the Constitution.

IMPLEMENTATION OF DIRECTIVE PRINCIPLES

Since 1950, the successive governments at the Centre and in the states have made several laws and formulated various programmes for implementing the Directive Principles. These are mentioned below:

1. The Planning Commission was established in 1950 to take up the development of the country in a planned manner. The successive Five Year Plans aimed at securing socio-economic justice and reducing inequalities of income, status and opportunities. In 2015, the Planning Commission was replaced by a new body called NITI Aayog (National Institution for Transforming India).
2. Almost all the states have passed land reform laws to bring changes in the agrarian society and to improve the conditions of the rural masses. These measures include (a) abolition of intermediaries like zamindars, jagirdars, inamdars, etc; (b) tenancy reforms like security of tenure, fair rents, etc; (c) imposition of ceilings on land holdings; (d) distribution of surplus land among the landless labourers; and (e) cooperative farming.
3. The Minimum Wages Act (1948), the Payment of Wages Act (1936), the Payment of Bonus Act (1965), the Contract Labour Regulation and Abolition Act (1970), the Child Labour Prohibition and Regulation Act (1986), the Bonded Labour System Abolition Act (1976), the Trade Unions Act (1926), the Factories Act (1948), the Mines Act (1952), the Industrial Disputes Act (1947), the Workmen's Compensation Act (1923) and so on have been enacted to protect the interests of the labour sections. In 2006, the government banned the child labour. In 2016, the Child Labour Prohibition and Regulation Act (1986) was renamed as the Child and Adolescent Labour Prohibition and Regulation Act, 1986.
4. The Maternity Benefit Act (1961) and the Equal Remuneration Act (1976) have been made to protect the interests of women workers.

5. Various measures have been taken to utilise the financial resources for promoting the common good.These include nationalisation of life insurance (1956), the nationalisation of fourteen leading commercial banks (1969), nationalisation of general insurance (1971), abolition of Privy Purses (1971) and so on.
6. The Legal Services Authorities Act (1987) has established a nation-wide network to provide free and competent legal aid to the poor and to organise lok adalat for promoting equal justice. Lok adalat is a statutory forum for conciliatory settlement of legal disputes. It has been given the status of a civil court. Its awards are enforceable, binding on the parties and final as no appeal lies before any court against them.
7. Khadi and Village Industries Board, Khadi and Village Industries Commission, Small-Scale Industries Board, National Small Industries Corporation, Handloom Board, Handicrafts Board, Coir Board, Silk Board and so on have been set up for the development of cottage industries in rural areas.
8. The Community Development Programme (1952), Hill Area Development Programme (1960), Drought-Prone Area Programme (1973), Minimum Needs Programme (1974), Integrated Rural Development Programme (1978), Jawahar Rozgar Yojana (1989), Swarnajayanti Gram Swarozgar Yojana (1999), Sampoorna Grameena Rozgar Yojana (2001), National Rural Employment Guarantee Programme (2006) and so on have been launched for raising the standard of living of people.
9. The Wildlife (Protection) Act, 1972 and the Forest (Conservation) Act, 1980, have been enacted to safeguard the wildlife and the forests respectively. Further, the Water and Air Acts have provided for the establishment of the Central and State Pollution Control Boards, which are engaged in the protection and improvement of environment. The National Forest Policy (1988) aims at the protection, conservation and development of forests.
10. Agriculture has been modernised by providing improved agricultural inputs, seeds, fertilisers and irrigation facilities.

Various steps have also been taken to organise animal husbandry on modern and scientific lines.

11. Three-tier panchayati raj system (at village, taluka and zila levels) has been introduced to translate into reality Gandhiji's dream of every village being a republic. The 73rd Amendment Act (1992) has been enacted to provide constitutional status and protection to these panchayati raj institutions.
12. Seats are reserved for SCs, STs and other weaker sections in educational institutions, government services and representative bodies. The Untouchability (Offences) Act, 1955, which was renamed as the Protection of Civil Rights Act in 1976 and the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989, have been enacted to protect the SCs and STs from social injustice and exploitation. The 65th Constitutional Amendment Act of 1990 established the National Commission for Scheduled Castes and Scheduled Tribes to protect the interests of SCs and STs. Later, the 89th Constitutional Amendment Act of 2003 bifurcated this combined commission into two separate bodies, namely, National Commission for Schedule Castes and National Commission for Schedule Tribes.

12a. Various national-level commissions have been established to promote and protect the social, educational and economic interests of the weaker sections of the society. These include the National Commission for Backward Classes (1993), the National Commission for Minorities (1993), the National Commission for Women (1992) and the National Commission for Protection of Child Rights (2007). Further, the 102nd Amendment Act of 2018 conferred a constitutional status on the National Commission for Backward Classes and also enlarged its functions.

12b. In 2019, the central government issued orders providing 10% reservation to the Economically Weaker Sections (EWSs) in admission to educational institutions and civil posts and services in the Government of India. The benefit of this reservation can be availed by the persons belonging to EWSs who are not covered under any of the existing

schemes of reservations for SCs, STs and OBCs. This reservation was facilitated by the 103rd Amendment Act of 2019.

13. The Criminal Procedure Code (1973) separated the judiciary from the executive in the public services of the state. Prior to this separation, the district authorities like the collector, the sub-divisional officer, the tehsildar and so on used to exercise judicial powers along with the traditional executive powers. After the separation, the judicial powers were taken away from these executive authorities and vested in the hands of district judicial magistrates who work under the direct control of the state high court.
14. The Ancient and Historical Monument and Archaeological Sites and Remains Act (1951) has been enacted to protect the monuments, places and objects of national importance.
15. Primary health centres and hospitals have been established throughout the country to improve the public health. Also, special programmes have been launched to eradicate widespread diseases like malaria, TB, leprosy, AIDS, cancer, filaria, kala-azar, guineaworm, yaws, Japanese encephalitis and so on.
16. Laws to prohibit the slaughter of cows, calves, and bullocks have been enacted in some states.
17. Some states have initiated the old age pension schemes for people above 65 years.
18. India has been following the policy of non-alignment and panchsheel to promote international peace and security.

In spite of the above steps by the Central and state governments, the Directive Principles have not been implemented fully and effectively due to several reasons like inadequate financial resources, unfavourable socio-economic conditions, population explosion, strained Centre-state relations and so on.

DIRECTIVES OUTSIDE PART IV

Apart from the Directives included in Part IV, there are some other Directives contained in other Parts of the Constitution. They are:

1. *Claims of SCs and STs to Services:* The claims of the members of the Scheduled Castes and the Scheduled Tribes shall be taken into consideration, consistently with the maintenance of efficiency of administration, in the making of appointments to services and posts in connection with the affairs of the Union or a State (Article 335 in Part XVI).
2. *Instruction in mother tongue:* It shall be the endeavour of every state and every local authority within the state to provide adequate facilities for instruction in the mother-tongue at the primary stage of education to children belonging to linguistic minority groups (Article 350-A in Part XVII).
3. *Development of the Hindi Language:* It shall be the duty of the Union to promote the spread of the Hindi language and to develop it so that it may serve as a medium of expression for all the elements of the composite culture of India (Article 351 in Part XVII).

The above Directives are also non-jus-ticiable in nature. However, they are also given equal importance and attention by the judiciary on the ground that all parts of the constitution must be read together.

Table 8.2 *Articles Related to Directive Principles of State Policy at a Glance*

Article No.	Subject Matter
36.	Definition of State
37.	Application of the principles contained in this part
38.	State to secure a social order for the promotion of welfare of the people
39.	Certain principles of policy to be followed by the

	State
39A.	Equal justice and free legal aid
40.	Organisation of village panchayats
41.	Right to work, to education and to public assistance in certain cases
42.	Provision for just and humane conditions of work and maternity relief
43.	Living wage, etc., for workers
43A.	Participation of workers in management of industries
43B.	Promotion of co-operative societies
44.	Uniform civil code for the citizens
45.	Provision for early childhood care and education to children below the age of six years
46.	Promotion of educational and economic interests of Scheduled Castes, Scheduled Tribes and other weaker sections
47.	Duty of the State to raise the level of nutrition and the standard of living and to improve public health
48.	Organisation of agriculture and animal husbandry
48A.	Protection and improvement of environment and safeguarding of forests and wildlife
49.	Protection of monuments and places and objects of national importance
50.	Separation of judiciary from executive
51.	Promotion of international peace and security

NOTES AND REFERENCES

1. Actually, Directive Principles are mentioned in Articles 38 to 51. Article 36 deals with the definition of State while Article 37 deals with the nature and significance of Directive Principles.
2. Granville Austin, *The Indian Constitution–Cornerstone of a Nation*, Oxford, 1966, P. 75.
3. A 'Police State' is mainly concerned with the maintenance of law and order and defence of the country against external aggression. Such a restrictive concept of state is based on the nineteenth century theory of individualism or laissez-faire.
4. This second provision was added by the 44th Constitutional Amendment Act of 1978.
5. The last point (f) was modified by the 42nd Constitutional Amendment Act of 1976.
6. This Directive was added by the 42nd Constitutional Amendment Act of 1976.
7. 'Living wage' is different from 'minimum wage', which includes the bare needs of life like food, shelter and clothing. In addition to these bare needs, a 'living wage' includes education, health , insurance, etc. A 'fair wage' is a mean between 'living wage' and 'minimum wage'.
8. This Directive was added by the 42nd Constitutional Amendment Act of 1976. 8a. This Directive was added by the 97th Constitutional Amendment Act of 2011.
9. This Directive was changed by the 86th Constitutional Amendment Act of 2002. Originally, it made a provision for free and compulsory education for all children until they complete the age of 14 years.
10. This Directive was added by the 42nd Constitutional Amendment Act of 1976.
11. *Constituent Assembly Debates*, volume VII, P. 476.
12. M.P. Jain, *Indian Constitutional Law,* Wadhwa, Third Edition (1978), P. 595.
13. *Constituent Assembly Debates,* volume VII, P. 470.
14. N. Srinivasan, *Democratic Government in India,* P. 182.
15. Sir Ivor Jennings, *Some Characteristics of the Indian Constitution*, 1953, P. 31–33.

16. *Journal of Constitutional and Parliamentary Studies,* June 1975.
17. M.C. Chagla, *An Ambassador Speaks,* P. 35.
18. Granville Austin, *The Indian Constitution–Cornerstone of a Nation*, Oxford, 1966, P. 50–52.
19. P.B. Gajendragadker, *The Constitution of India (Its Philosophy and Postulates),* P. 11.
20. *State of Madras* v. *Champakam Dorairajan,* (1951).
21. *Golak Nath* v. *State of Punjab,* (1967).
22. Article 39 (b) says: The State shall direct its policy towards securing that the ownership and control of the material resources of the community are so distributed as best to subserve the common good.
23. Article 39 (c) says: The state shall direct its policy towards securing that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment.
24. *Kesavananda Bharati* v. *State of Kerala,* (1973).
25. *Minerva Mills* v. *Union of India,* (1980).

9 Fundamental Duties

Though the rights and duties of the citizens are correlative and inseparable, the original constitution contained only the fundamental rights and not the fundamental duties. In other words, the framers of the Constitution did not feel it necessary to incorporate the fundamental duties of the citizens in the Constitution. However, they incorporated the duties of the State in the Constitution in the form of Directive Principles of State Polity. Later in 1976, the fundamental duties of citizens were added in the Constitution. In 2002, one more Fundamental Duty was added.

The Fundamental Duties in the Indian Constitution are inspired by the Constitution of erstwhile USSR. Notably, none of the Constitutions of major democratic countries like USA, Canada, France, Germany, Australia and so on specifically contain a list of duties of citizens. Japanese Constitution is, perhaps, the only democratic Constitution in world which contains a list of duties of citizens. The socialist countries, on the contrary, gave equal importance to the fundamental rights and duties of their citizens. Hence, the Constitution of erstwhile USSR declared that the citizen's exercise of their rights and freedoms was inseparable from the performance of their duties and obligations.

SWARAN SINGH COMMITTEE RECOMMENDATIONS

In 1976, the Congress Party set up the Sardar Swaran Singh Committee to make recommendations about fundamental duties, the need and necessity of which was felt during the operation of the internal emergency (1975–1977). The committee recommended the inclusion of a separate chapter on fundamental duties in the Constitution. It stressed that the citizens should become conscious that in addition to the enjoyment of rights, they also have certain duties to perform as well. The Congress Government at Centre accepted these recommendations and enacted the 42nd Constitutional Amendment Act in 1976. This amendment added a new part, namely, Part IVA to the Constitution. This new part consists of only one Article, that is, Article 51A which for the first time specified a code of ten fundamental duties of the citizens. The ruling Congress party declared the non-inclusion of fundamental duties in the Constitution as a historical mistake and claimed that what the framers of the Constitution failed to do was being done now.

Though the Swaran Singh Committee suggested the incorporation of eight Fundamental Duties in the Constitution, the 42nd Constitutional Amendment Act (1976) included ten Fundamental Duties.

Interestingly, certain recommendations of the Committee were not accepted by the Congress Party and hence, not incorporated in the Constitution. These include:

1. The Parliament may provide for the imposition of such penalty or punishment as may be considered appropriate for any non-compliance with or refusal to observe any of the duties.
2. No law imposing such penalty or punishment shall be called in question in any court on the ground of infringement of any of Fundamental Rights or on the ground of repugnancy to any other provision of the Constitution.
3. Duty to pay taxes should also be a Fundamental Duty of the citizens.

LIST OF FUNDAMENTAL DUTIES

According to Article 51A, it shall be the duty of every citizen of India:

(a) to abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem;
(b) to cherish and follow the noble ideals that inspired the national struggle for freedom;
(c) to uphold and protect the sovereignty, unity and integrity of India;
(d) to defend the country and render national service when called upon to do so;
(e) to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities and to renounce practices derogatory to the dignity of women;
(f) to value and preserve the rich heritage of the country's composite culture;
(g) to protect and improve the natural environment including forests, lakes, rivers and wildlife and to have compassion for living creatures;
(h) to develop scientific temper, humanism and the spirit of inquiry and reform;
(i) to safeguard public property and to abjure violence;
(j) to strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement; and
(k) to provide opportunities for education to his child or ward between the age of six and fourteen years. This duty was added by the 86th Constitutional Amendment Act, 2002.

FEATURES OF THE FUNDAMENTAL DUTIES

Following points can be noted with regard to the characteristics of the Fundamental Duties:

1. Some of them are moral duties while others are civic duties. For instance, cherishing noble ideals of freedom struggle is a moral precept and respecting the Constitution, National Flag and National Anthem is a civic duty.
2. They refer to such values which have been a part of the Indian tradition, mythology, religions and practices. In other words, they essentially contain just a codification of tasks integral to the Indian way of life.
3. Unlike some of the Fundamental Rights which extend to all persons whether citizens or foreigners[1] , the Fundamental Duties are confined to citizens only and do not extend to foreigners.
4. Like the Directive Principles, the fundamental duties are also non-justiciable. The Constitution does not provide for their direct enforcement by the courts. Moreover, there is not legal sanction against their violation. However, the Parliament is free to enforce them by suitable legislation.

CRITICISM OF FUNDAMENTAL DUTIES

The Fundamental Duties mentioned in Part IVA of the Constitution have been criticised on the following grounds:

1. The list of duties is not exhaustive as it does not cover other important duties like casting vote, paying taxes, family planning and so on. In fact, duty to pay taxes was recommended by the Swaran Singh Committee.
2. Some of the duties are vague, ambiguous and difficult to be understood by the common man. For example, different interpretations can be given to the phrases like 'noble ideals', 'composite culture', 'scientific temper' and so on[2] .
3. They have been described by the critics as a code of moral precepts due to their non-justiciable character. Interestingly, the Swaran Singh Committee had suggested for penalty or punishment for the non-performance of Fundamental Duties.
4. Their inclusion in the Constitution was described by the critics as superfluous. This is because the duties included in the Constitution as fundamental would be performed by the people even though they were not incorporated in the Constitution[3] .
5. The critics said that the inclusion of fundamental duties as an appendage to Part IV of the Constitution has reduced their value and significance. They should have been added after Part III so as to keep them on par with Fundamental Rights.

SIGNIFICANCE OF FUNDAMENTAL DUTIES

In spite of criticisms and opposition, the fundamental duties are considered significant from the following viewpoints:

1. They serve as a reminder to the citizens that while enjoying their rights, they should also be conscious of duties they owe to their country, their society and to their fellow citizens.
2. They serve as a warning against the antinational and antisocial activities like burning the national flag, destroying public property and so on.
3. They serve as a source of inspiration for the citizens and promote a sense of discipline and commitment among them. They create a feeling that the citizens are not mere spectators but active participants in the realisation of national goals.
4. They help the courts in examining and determining the constitutional validity of a law. In 1992, the Supreme Court ruled that in determining the constitutionality of any law, if a court finds that the law in question seeks to give effect to a fundamental duty, it may consider such law to be 'reasonable' in relation to Article 14 (equality before law) or Article 19 (six freedoms) and thus save such law from unconstitutionality.
5. They are enforceable by law. Hence, the Parliament can provide for the imposition of appropriate penalty or punishment for failure to fulfil any of them.

H.R. Gokhale, the then Law Minister, gave the following reason for incorporating the fundamental duties in the Constitution after twenty-six years of its inauguration: 'In post-independent India, particularly on the eve of emergency in June 1975, a section of the people showed no anxiety to fulfil their fundamental obligations of respecting the established legal order ..... the provisions of chapter on fundamental duties would have a sobering effect on these restless spirits who have had a host of anti-national subversive and unconstitutional agitations in the past'.

Indira Gandhi, the then Prime Minister, justified the inclusion of fundamental duties in the Constitution and argued that their inclusion would help to strengthen democracy. She said, ‘the moral value of fundamental duties would be not to smoother rights but to establish a democratic balance by making the people conscious of their duties equally as they are conscious of their rights’.

The Opposition in the Parliament strongly opposed the inclusion of fundamental duties in the Constitution by the Congress government. However, the new Janata Government headed by Morarji Desai in the post-emergency period did not annul the Fundamental Duties. Notably, the new government sought to undo many changes introduced in the Constitution by the 42nd Amendment Act (1976) through the 43rd Amendment Act (1977) and the 44th Amendment Act (1978). This shows that there was an eventual consensus on the necessity and desirability of including the Fundamental Duties in the Constitution. This is more clear with the addition of one more Fundamental Duty in 2002 by the 86th Amendment Act.

VERMA COMMITTEE OBSERVATIONS

The Verma Committee on Fundamental Duties of the Citizens (1999) identified the existence of legal provisions for the implementation of some of the Fundamental Duties. They are mentioned below:

1. The Prevention of Insults to National Honour Act (1971) prevents disrespect to the Constitution of India, the National Flag and the National Anthem.
2. The various criminal laws in force provide for punishments for encouraging enmity between different sections of people on grounds of language, race, place of birth, religion and so on.
3. The Protection of Civil Rights Act[4] (1955) provides for punishments for offences related to caste and religion.
4. The Indian Penal Code (IPC) declares the imputations and assertions prejudicial to national integration as punishable offences.
5. The Unlawful Activities (Prevention) Act of 1967 provides for the declaration of a communal organisation as an unlawful association.
6. The Representation of People Act (1951) provides for the disqualification of members of the Parliament or a state legislature for indulging in corrupt practice, that is, soliciting votes on the ground of religion or promoting enmity between different sections of people on grounds of caste, race, language, religion and so on.
7. The Wildlife (Protection) Act of 1972 prohibits trade in rare and endangered species.
8. The Forest (Conservation) Act of 1980 checks indiscriminate deforestation and diversion of forest land for nonforest purposes.

NOTES AND REFERENCES

1. The Fundamental Rights guaranteed by Articles 14, 20, 21, 21A, 22, 23, 24, 25, 26, 27 and 28 are available to

all persons whether citizens or foreigners.

2. D.D. Chawla, the then president of the National Forum of Lawyers and Legal Aid, Delhi, observed: 'The duties may be spelt out in a more concrete form, one is left guessing the noble ideals. To some even the Bhagat Singh cult may be such an ideal as inspired our national struggle. Again what is the rich heritage of our composite culture and what is scientific temper, humanism and the spirit of inquiry and reform? The values are beyond the ken of the general run of the people and carry no meaning to them. Duties should be such and so worded as to catch the imagination of the common man.'
   D.D. Chawla, 'The Concept of Fundamental Duties', *Socialist India* (New Delhi), October 23, 1976, P. 44–45.
3. C.K. Daphtary, former Attorney General of India, while opposing the inclusion of fundamental duties in the Constitution, said that more than 99.9 per cent of the citizens were law-abiding and there was no need to tell them about their duties. He argued that as long as the people are satisfied and contended, they willingly perform their duties. He said, 'To tell them what their duties are implies that they are not content. If that is the case after 26 years, it is not their fault'. A.K. Sen also opposed the inclusion of fundamental duties in the Constitution and remarked, 'A democratic set-up, instead of thriving on the willing cooperation and confidence of people, is reduced to the position of a harsh school master asking the student to stand up on the class room bench because he has not done the home work. To begin with, it were the people of India who created the Sovereign Democratic Republic of India in 1950, but the Republic is now claiming to be the master of the citizens enjoining habitual obedience to its command to do his duty. The state's confidence in the citizens is obviously shaken'.
4. This Act was known as the Untouchability (Offences) Act till 1976.

10 Amendment of the Constitution

Like any other written Constitution, the Constitution of India also provides for its amendment in order to adjust itself to the changing conditions and needs. However, the procedure laid down for its amendment is neither as easy as in Britain nor as difficult as in USA. In other words, the Indian Constitution is neither flexible nor rigid but a synthesis of both.

Article 368 in Part XX of the Constitution deals with the powers of Parliament to amend the Constitution and its procedure. It states that the Parliament may, in exercise of its constituent power, amend by way of addition, variation or repeal any provision of the Constitution in accordance with the procedure laid down for the purpose. However, the Parliament cannot amend those provisions which form the 'basic structure' of the Constitution. This was ruled by the Supreme Court in the *Kesavananda Bharati* case[1] (1973).

PROCEDURE FOR AMENDMENT

The procedure for the amendment of the Constitution as laid down in Article 368 is as follows:

1. An amendment of the Constitution can be initiated only by the introduction of a bill for the purpose in either House of Parliament and not in the state legislatures.
2. The bill can be introduced either by a minister or by a private member and does not require prior permission of the president.
3. The bill must be passed in each House by a special majority, that is, a majority of the total membership of the House and a majority of two-thirds of the members of the House present and voting.
4. Each House must pass the bill separately. In case of a disagreement between the two Houses, there is no provision for holding a joint sitting of the two Houses for the purpose of deliberation and passage of the bill.
5. If the bill seeks to amend the federal provisions of the Constitution, it must also be ratified by the legislatures of half of the states by a simple majority, that is, a majority of the members of the House present and voting.
6. After duly passed by both the Houses of Parliament and ratified by the state legislatures, where necessary, the bill is presented to the president for assent.
7. The president must give his assent to the bill. He can neither withhold his assent to the bill nor return the bill for reconsideration of the Parliament.[2]
8. After the president's assent, the bill becomes an Act (i.e., a constitutional amendment act) and the Constitution stands amended in accordance with the terms of the Act.

TYPES OF AMENDMENTS

Article 368 provides for two types of amendments, that is, by a special majority of Parliament and also through the ratification of half of the states by a simple majority. But, some other articles provide for the amendment of certain provisions of the Constitution by a simple majority of Parliament, that is, a majority of the members of each House present and voting (similar to the ordinary legislative process). Notably, these amendments are not deemed to be amendments of the Constitution for the purposes of Article 368.

Therefore, the Constitution can be amended in three ways:

(a) Amendment by simple majority of the Parliament,
(b) Amendment by special majority of the Parliament, and
(c) Amendment by special majority of the Parliament and the ratification of half of the state legislatures.

By Simple Majority of Parliament

A number of provisions in the Constitution can be amended by a simple majority of the two Houses of Parliament outside the scope of Article 368. These provisions include:

1. Admission or establishment of new states.
2. Formation of new states and alteration of areas, boundaries or names of existing states.
3. Abolition or creation of legislative councils in states.
4. Second Schedule–emoluments, allowances, privileges and so on of the president, the governors, the Speakers, judges, etc.
5. Quorum in Parliament.
6. Salaries and allowances of the members of Parliament.
7. Rules of procedure in Parliament.
8. Privileges of the Parliament, its members and its committees.
9. Use of English language in Parliament.
10. Number of puisne judges in the Supreme Court.
11. Conferment of more jurisdiction on the Supreme Court.
12. Use of official language.

13. Citizenship–acquisition and termination.
14. Elections to Parliament and state legislatures.
15. Delimitation of constituencies.
16. Union territories.
17. Fifth Schedule–administration of scheduled areas and scheduled tribes.
18. Sixth Schedule–administration of tribal areas.

By Special Majority of Parliament

The majority of the provisions in the Constitution need to be amended by a special majority of the Parliament, that is, a majority of the total membership of each House and a majority of two-thirds of the members of each House present and voting. The expression 'total membership' means the total number of members comprising the House irrespective of fact whether there are vacancies or absentees.

'Strictly speaking, the special majority is required only for voting at the third reading stage of the bill but by way of abundant caution the requirement for special majority has been provided for in the rules of the Houses in respect of all the effective stages of the bill'[3] .

The provisions which can be amended by this way includes: (i) Fundamental Rights; (ii) Directive Principles of State Policy; and (iii) All other provisions which are not covered by the first and third categories.

By Special Majority of Parliament and Consent of States

Those provisions of the Constitution which are related to the federal structure of the polity can be amended by a special majority of the Parliament and also with the consent of half of the state legislatures by a simple majority. If one or some or all the remaining states take no action on the bill, it does not matter; the moment half of the states give their consent, the formality is completed. There is no time limit within which the states should give their consent to the bill.

The following provisions can be amended in this way:

1. Election of the President and its manner.
2. Extent of the executive power of the Union and the states.
3. Supreme Court and high courts.
4. Distribution of legislative powers between the Union and the states.
5. Goods and Services Tax Council[3a].
6. Any of the lists in the Seventh Schedule.
7. Representation of states in Parliament.
8. Power of Parliament to amend the Constitution and its procedure (Article 368 itself).

CRITICISM OF THE AMENDMENT PROCEDURE

Critics have criticised the amendment procedure of the Constitution on the following grounds:

1. There is no provision for a special body like Constitutional Convention (as in USA) or Constitutional Assembly for amending the Constitution. The constituent power is vested in the Parliament and only in few cases, in the state legislatures.
2. The power to initiate an amendment to the Constitution lies with the Parliament. Hence, unlike in USA[4] , the state legislatures cannot initiate any bill or proposal for amending the Constitution except in one case, that is, passing a resolution requesting the Parliament for the creation or abolition of legislative councils in the states. Here also, the Parliament can either approve or disapprove such a resolution or may not take any action on it.
3. Major part of the Constitution can be amended by the Parliament alone either by a special majority or by a simple majority. Only in few cases, the consent of the state legislatures is required and that too, only half of them, while in USA, it is three-fourths of the states.
4. The Constitution does not prescribe the time frame within which the state legislatures should ratify or reject an amendment submitted to them. Also, it is silent on the issue whether the states can withdraw their approval after according the same.
5. There is no provision for holding a joint sitting of both the Houses of Parliament if there is a deadlock over the passage of a constitutional amendment bill. On the other hand, a provision for a joint sitting is made in the case of an ordinary bill.
6. The process of amendment is similar to that of a legislative process. Except for the special majority, the constitutional amendment bills are to be passed by the Parliament in the same way as ordinary bills.

7. The provisions relating to the amendment procedure are too sketchy. Hence, they leave a wide scope for taking the matters to the judiciary.

Despite these defects, it cannot be denied that the process has proved to be simple and easy and has succeeded in meeting the changed needs and conditions. The procedure is not so flexible as to allow the ruling parties to change it according to their whims. Nor is it so rigid as to be incapable of adopting itself to the changing needs. It, as rightly said by K.C. Wheare, 'strikes a good balance between flexibility and rigidity'[5]. In this context, Pandit Jawaharlal Nehru said in the Constituent Assembly, 'While we want this Constitution to be as solid and permanent as we can make it, there is no permanence in a Constitution. There should be a certain flexibility. If you make any Constitution rigid and permanent, you stop the nation's growth, the growth of a living, vital, organic people'[6] .

Similarly, Dr. B.R. Ambedkar observed in the Constituent Assembly that, 'The Assembly has not only refrained from putting a seal of finality and infallibility upon this Constitution by denying the people the right to amend the Constitution as in Canada or by making the amendment of the Constitution subject to the fulfilment of extraordinary terms and conditions as in America or Australia, but has provided for a facile procedure for amending the Constitution'[7] .

K.C. Wheare has admired the variety of amendment procedures contained in the Constitution of India. He said, 'this variety in the amending process is wise but rarely found'. According to Granville Austin, 'the amending process has proved itself one of the most ably conceived aspects of the Constitution. Although it appears complicated, it is merely diverse'.[8]

NOTES AND REFERENCES

1. *Kesavananda Bharati* v. *State of Kerala*, (1973).
2. The 24th Constitutional Amendment Act of 1971 made it obligatory for the President to give his assent to a constitutional Amendment Bill.

3. Subhas C. Kashyap, *Our Parliament,* National Book Trust, 1999, P. 168.

3a. This provision was added by the 101st Amendment Act of 2016. This is related to Article 279-A.

4. In USA, an amendment can also be proposed by a constitutional convention called by the Congress (American Legislature) on the petition of two-thirds of the state legislatures.

5. K.C. Wheare, *Modern Constitutions*, 1966, P. 43.

6. *Constituent Assembly Debates,* Vol. VII, P. 322–23.

7. *Constituent Assembly Debates*, Vol. IX, P. 976.

8. Granville Austin, *The Indian Constitution: Cornerstone of a Nation,* Oxford, 1966, P. 25.

11 Basic Structure of the Constitution

EMERGENCE OF THE BASIC STRUCTURE

The question whether Fundamental Rights can be amended by the Parliament under Article 368 came for consideration of the Supreme Court within a year of the Constitution coming into force. In the Shankari Prasad case[1] (1951), the constitutional validity of the First Amendment Act (1951), which curtailed the right to property, was challenged. The Supreme Court ruled that the power of the Parliament to amend the Constitution under Article 368 also includes the power to amend Fundamental Rights. The word 'law' in Article 13 includes only ordinary laws and not the constitutional amendment acts (constituent laws). Therefore, the Parliament can abridge or take away any of the Fundamental Rights by enacting a constitutional amendment act and such a law will not be void under Article 13.

But in the Golak Nath case[2] (1967), the Supreme Court reversed its earlier stand. In that case, the constitutional validity of the Seventeenth Amendment Act (1964), which inserted certain state acts in the Ninth Schedule, was challenged. The Supreme Court ruled that the Fundamental Rights are given a 'transcendental and immutable' position and hence, the Parliament cannot abridge or take away any of these rights. A constitutional amendment act is also a law within the meaning of Article 13 and hence, would be void for violating any of the Fundamental Rights.

The Parliament reacted to the Supreme Court's judgement in the Golak Nath case (1967) by enacting the 24th Amendment Act (1971). This Act amended Articles 13 and 368.

It declared that the Parliament has the power to abridge or take away any of the Fundamental Rights under Article 368 and such an act will not be a law under the meaning of Article 13.

However, in the Kesavananda Bharati case[3] (1973), the Supreme Court overruled its judgement in the Golak Nath case (1967). It upheld the validity of the 24th Amendment Act (1971) and stated that Parliament is empowered to abridge or take away any of the Fundamental Rights. At the same time, it laid down a new doctrine of the 'basic structure' (or 'basic features') of the Constitution. It ruled that the constituent power of Parliament under Article 368 does not enable it to alter the 'basic structure' of the Constitution. This means that the Parliament cannot abridge or take away a Fundamental Right that forms a part of the 'basic structure' of the Constitution.

The doctrine of basic structure of the constitution was reaffirmed and applied by the Supreme Court in the Indira Nehru Gandhi case[3a] (1975). In this case, the Supreme Court invalidated a provision of the 39th Amendment Act (1975) which kept the election disputes involving the Prime Minister and the Speaker of Lok Sabha outside the jurisdiction of all courts. The court said that this provision was beyond the amending power of Parliament as it affected the basic structure of the constitution.

Again, the Parliament reacted to this judicially innovated doctrine of 'basic structure' by enacting the 42nd Amendment Act (1976). This Act amended Article 368 and declared that there is no limitation on the constituent power of Parliament and no amendment can be questioned in any court on any ground including that of the contravention of any of the Fundamental Rights.

However, the Supreme Court in the Minerva Mills case[4] (1980) invalidated this provision as it excluded judicial review which is a 'basic feature' of the Constitution. Applying the doctrine of 'basic structure' with respect to Article 368, the court held that:

"Since the Constitution had conferred a limited amending power on the Parliament, the Parliament cannot under the exercise of that limited power enlarge that very power into an absolute power. Indeed, a limited amending power is one of the basic features of the Constitution and, therefore, the limitations on that power cannot be destroyed. In other words, Parliament cannot, under article 368, expand its amending power so as to acquire for itself the right to repeal or abrogate the Constitution or to destroy its

basic features. The donee of a limited power cannot by the exercise of that power convert the limited power into an unlimited one".

Again in the Waman Rao case[5] (1981), the Supreme Court adhered to the doctrine of the 'basic structure' and further clarified that it would apply to constitutional amendments enacted after April 24, 1973 (i.e., the date of the judgement in the Kesavananda Bharati case).

ELEMENTS OF THE BASIC STRUCTURE

The present position is that the Parliament under Article 368 can amend any part of the Constitution including the Fundamental Rights but without affecting the 'basic structure' of the Constitution. However, the Supreme Court is yet to define or clarify as to what constitutes the 'basic structure' of the Constitution. From the various judgements, the following have emerged as 'basic features' of the Constitution or elements of the 'basic structure' of the constitution:

1. Supremacy of the Constitution
2. Sovereign, democratic and republican nature of the Indian polity
3. Secular character of the Constitution
4. Separation of powers between the legislature, the executive and the judiciary
5. Federal character of the Constitution
6. Unity and integrity of the nation
7. Welfare state (socio-economic justice)
8. Judicial review
9. Freedom and dignity of the individual
10. Parliamentary system
11. Rule of law
12. Harmony and balance between Fundamental Rights and Directive Principles
13. Principle of equality
14. Free and fair elections
15. Independence of Judiciary
16. Limited power of Parliament to amend the Constitution
17. Effective access to justice
18. Principles (or essence) underlying fundamental rights
19. Powers of the Supreme Court under Articles 32, 136, 141 and 142[6]
20. Powers of the High Courts under Articles 226 and 227[7]

Table 11.1 *Evolution of the Basic Structure of the Constitution*

Sl. No.	Name of the Case (Year)	Elements of the Basic Structure (As Declared by the Supreme Court)
1.	Kesavananda Bharati case[3] (1973) (popularly known as the Fundamental Rights Case)	1. Supremacy of the Constitution 2. Separation of powers between the legislature, the executive and the judiciary 3. Republic and democratic form of government 4. Secular character of the constitution 5. Federal character of the constitution 6. Sovereignty and unity of India 7. Freedom and dignity of the individual 8. Mandate to build a welfare state 9. Parliamentary System
2.	Indira Nehru Gandhi case[3a] (1975) (popularly known as the Election Case)	1. India as a sovereign democratic republic 2. Equality of status and opportunity of an individual 3. Secularism and freedom of conscience and religion 4. Government of laws and not of men (i.e., Rule of Law) 5. Judicial review 6. Free and fair elections which is implied in democracy

3.	Minerva Mills case[4] (1980)	1. Limited power of Parliament to amend the constitution 2. Judicial review 3. Harmony and balance between fundamental rights and directive principles
4.	Central Coal Fields Ltd. Case[8] (1980)	Effective access to justice
5.	Bhim Singhji Case[9] (1981)	Welfare State (Socio-economic justice)
6.	S.P. Sampath Kumar Case[10] (1987)	1. Rule of law 2. Judicial review
7.	P. Sambamurthy Case[11] (1987)	1. Rule of law 2. Judicial review
8.	Delhi Judicial Service Association Case[12] (1991)	Powers of the Supreme Court under Articles 32, 136, 141 and 142
9.	Indra Sawhney Case[13] (1992) (popularly known as the Mandal Case)	Rule of law
10.	Kumar Padma Prasad Case[14] (1992)	Independence of judiciary
11.	Kihoto Hollohon Case[15] (1993) (popularly known as Defection case)	1. Free and fair elections 2. Sovereign, democratic, republican structure
12.	Raghunath Rao Case[16] (1993)	1. Principle of equality 2. Unity and integrity of India
13.	S.R. Bommai Case[17] (1994)	1. Federalism 2. Secularism 3. Democracy

		4. Unity and integrity of the nation 5. Social justice 6. Judicial review
14.	L. Chandra Kumar Case[18] (1997)	Powers of the High Courts under Articles 226 and 227
15.	Indra Sawhney II Case[19] (2000)	Principle of equality
16.	All India Judge's Association Case[20] (2002)	Independent judicial system
17.	Kuldip Nayar Case[21] (2006)	1. Democracy 2. Free and fair elections
18.	M. Nagaraj Case[22] (2006)	Principle of equality
19.	I.R. Coelho Case[23] (2007) (popularly known as IX Schedule Case)	1. Rule of law 2. Separation of powers 3. Principles (or essence) underlying fundamental rights 4. Judicial review 5. Principle of equality
20.	Ram Jethmalani Case[24] (2011)	Powers of the Supreme Court under Article 32
21.	Namit Sharma Case[25] (2013)	Freedom and dignity of the individual
22.	Madras Bar Association Case[26] (2014)	1. Judicial review 2. Powers of the High Courts under Articles 226 and 227

NOTES AND REFERENCES

1. Shankari Prasad v. Union of India, (1951)
2. Golak Nath v. State of Punjab, (1967)
3. Kesavananda Bharati v. State of Kerala, (1973)

3a. Indira Nehru Gandhi v. Raj Narain (1975)
4. Minerva Mills v. Union of India, (1980)
5. Waman Rao v. Union of India, (1981)
6. For the subject-matter of these Articles, see Appendix-1.
7. *Ibid*.
8. Central Coal Fields Ltd., v. Jaiswal Coal Co. (1980)
9. Bhim Singhji v. Union of India (1981)
10. S.P. Sampath Kumar v. Union of India (1987)
11. P. Sambamurthy v. State of A.P. (1987)
12. Delhi Judicial Service Association v. State of Gujarat (1991)
13. Indra Sawhney v. Union of India (1992)
14. Kumar Padma Prasad v. Union of India (1992)
15. Kihoto Hollohon v. Zachilhu (1993)
16. Raghunath Rao v. Union of India (1993)
17. S.R. Bommai v. Union of India (1994)
18. L. Chandra Kumar v. Union of India (1997)
19. Indra Sawhney II v. Union of India (2000)
20. All India Judge's Association v. Union of India (2002)
21. Kuldip Nayar v. Union of India (2006)
22. M. Nagaraj v. Union of India (2006)
23. I.R. Coelho v. State of Tamil Nadu (2007)
24. Ram Jethmalani v. Union of India (2011)
25. Namit Sharma v. Union of India (2013)
26. Madras Bar Association v. Union of India (2014)

PART-II
SYSTEM OF GOVERNMENT

12. Parliamentary System
13. Federal System
14. Centre-State Relations
15. Inter-State Relations
16. Emergency Provisions

12 Parliamentary System

The Constitution of India provides for a parliamentary form of government, both at the Centre and in the states. Articles 74 and 75 deal with the parliamentary system at the Centre and Articles 163 and 164 in the states.

Modern democratic governments are classified into parliamentary and presidential on the basis of nature of relations between the executive and the legislative organs of the government. The parliamentary system of government is the one in which the executive is responsible to the legislature for its policies and acts. The presidential system of government, on the other hand, is one in which the executive is not responsible to the legislature for its policies and acts, and is constitutionally independent of the legislature in respect of its term of office.

The parliamentary government is also known as cabinet government or responsible government or Westminster model of government and is prevalent in Britain, Japan, Canada, India among others. The presidential government, on the other hand, is also known as non-responsible or non-parliamentary or fixed executive system of government and is prevalent in USA, Brazil, Russia, Sri Lanka among others.

Ivor Jennings called the parliamentary system as 'cabinet system' because the cabinet is the nucleus of power in a parliamentary system. The parliamentary government is also known as 'responsible government' as the cabinet (the real executive) is accountable to the Parliament and stays in office so long as it enjoys the latter's confidence. It is described as 'Westminster model of government' after the location of the British Parliament, where the parliamentary system originated.

In the past, the British constitutional and political experts described the Prime Minister as '*primus inter pares*' (first among equals) in relation to the cabinet. In the recent period, the Prime Minister's power, influence and position have increased

significantly vis-a-vis the cabinet. He has come to play a ‘dominant’ role in the British politico-administrative system. Hence, the later political analysts, like Cross-man, Mackintosh and others have described the British system of government as ‘prime ministerial government’. The same description holds good in the Indian context too.

FEATURES OF PARLIAMENTARY GOVERNMENT

The features or principles of parliamentary government in India are:

1. Nominal and Real Executives

The President is the nominal executive (*de jure* executive or titular executive) while the Prime Minister is the real executive (*de facto* executive). Thus, the President is head of the State, while the Prime Minister is head of the government. Article 74 provides for a council of ministers headed by the Prime Minister to aid and advise the President in the exercise of his functions. The advice so tendered is binding on the President[1] .

2. Majority Party Rule

The political party which secures majority seats in the Lok Sabha forms the government. The leader of that party is appointed as the Prime Minister by the President; other ministers are appointed by the President on the advice of the prime minister. However, when no single party gets the majority, a coalition of parties may be invited by the President to form the government.

3. Collective Responsibility

This is the bedrock principle of parliamentary government. The ministers are collectively responsible to the Parliament in general and to the Lok Sabha in particular (Article 75). They act as a team, and swim and sink together. The principle of collective responsibility implies that the Lok Sabha can remove the ministry (i.e., council of ministers headed by the prime minister) from office by passing a vote of no confidence.

4. Political Homogeneity

Usually members of the council of ministers belong to the same political party, and hence they share the same political ideology. In case of coalition government, the ministers are bound by consensus.

5. Double Membership

The ministers are members of both the legislature and the executive. This means that a person cannot be a minister without being a member of the Parliament. The Constitution stipulates that a minister who is not a member of the Parliament for a period of six consecutive months ceases to be a minister.

6. Leadership of the Prime Minister

The Prime Minister plays the leadership role in this system of government. He is the leader of council of ministers, leader of the Parliament and leader of the party in power. In these capacities, he plays a significant and highly crucial role in the functioning of the government.

7. Dissolution of the Lower House

The lower house of the Parliament (Lok Sabha) can be dissolved by the President on recommendation of the Prime Minister. In other words, the prime minister can advise the President to dissolve the Lok Sabha before the expiry of its term and hold fresh elections. This means that the executive enjoys the right to get the legislature dissolved in a parliamentary system.

8. Secrecy

The ministers operate on the principle of secrecy of procedure and cannot divulge information about their proceedings, policies and decisions. They take the oath of secrecy before entering their office. The oath of secrecy to the ministers is administered by the President.

FEATURES OF PRESIDENTIAL GOVERNMENT

Unlike the Indian Constitution, the American Constitution provides for the presidential form of government. The features of the American presidential system of government are as follows:

(a) The American President is both the head of the State and the head of government. As the head of State, he occupies a ceremonial position. As the head of government, he leads the executive organ of government.

(b) The President is elected by an electoral college for a fixed tenure of four years. He cannot be removed by the Congress except by impeachment for a grave unconstitutional act.

(c) The President governs with the help of a cabinet or a smaller body called 'Kitchen Cabinet'. It is only an advisory body and consists of non-elected departmental secretaries. They are selected and appointed by him, are responsible only to him, and can be removed by him any time.

(d) The President and his secretaries are not responsible to the Congress for their acts. They neither possess membership in the Congress nor attend its sessions.

(e) The President cannot dissolve the House of Representatives–the lower house of the Congress.

(f) The doctrine of separation of powers is the basis of the American presidential system. The legislative, executive and judicial powers of the government are separated and vested in the three independent organs of the government.

MERITS OF THE PARLIAMENTARY SYSTEM

The parliamentary system of government has the following merits:

1. Harmony Between Legislature and Executive
The greatest advantage of the parliamentary system is that it ensures harmonious relationship and cooperation between the legislative and executive organs of the government. The executive is a part of the legislature and both are interdependent at work. As a result, there is less scope for disputes and conflicts between the two organs.

2. Responsible Government
By its very nature, the parliamentary system establishes a responsible government. The ministers are responsible to the Parliament for all their acts of omission and commission. The Parliament exercises control over the ministers through various devices like question hour, discussions, adjournment motion, no confidence motion, etc.

3. Prevents Despotism
Under this system, the executive authority is vested in a group of individuals (council of ministers) and not in a single person. This dispersal of authority checks the dictatorial tendencies of the executive. Moreover, the executive is responsible to the Parliament and can be removed by a no-confidence motion.

4. Ready Alternative Government
In case the ruling party loses its majority, the Head of the State can invite the opposition party to form the government. This means an alternative government can be formed without fresh elections. Hence, Dr. Jennings says, ‘the leader of the opposition is the alternative prime minister’.

5. Wide Representation
In a parliamentary system, the executive consists of a group of individuals (i.e., ministers who are representatives of the people). Hence, it is possible to provide representation to all sections and

regions in the government. The prime minister while selecting his ministers can take this factor into consideration.

DEMERITS OF THE PARLIAMENTARY SYSTEM

In spite of the above merits, the parliamentary system suffers from the following demerits:

1. Unstable Government

The parliamentary system does not provide a stable government. There is no guarantee that a government can survive its tenure. The ministers depend on the mercy of the majority legislators for their continuity and survival in office. A no-confidence motion or political defection or evils of multiparty coalition can make the government unstable. The Government headed by Morarji Desai, Charan Singh, V.P. Singh, Chandra Sekhar, Deva Gowda and I.K. Gujral are some such examples.

2. No Continuity of Policies

The parliamentary system is not conductive for the formulation and implementation of longterm policies. This is due to the uncertainty of the tenure of the government. A change in the ruling party is usually followed by changes in the policies of the government. For example, the Janata Government headed by Morarji Desai in 1977 reversed a large number of policies of the previous Congress Government. The same was repeated by the Congress government after it came back to power in 1980.

3. Dictatorship of the Cabinet

When the ruling party enjoys absolute majority in the Parliament, the cabinet becomes autocratic and exercises nearly unlimited powers. H.J. Laski says that the parliamentary system gives the executive an opportunity for tyranny. Ramsay Muir, the former British Prime Minister, also complained of the 'dictatorship of the cabinet'[2]. This phenomena was witnessed during the era of Indira Gandhi and Rajiv Gandhi.

4. Against Separation of Powers

In the parliamentary system, the legislature and the executive are together and inseparable. The cabinet acts as the leader of legislature as well as the executive. As Bagehot points out, 'the

cabinet is a hyphen that joins the buckle that binds the executive and legislative departments together.' Hence, the whole system of government goes against the letter and spirit of the theory of separation of powers[3]. In fact, there is a fusion of powers.

5. Government by Amateurs

The parliamentary system is not conducive to administrative efficiency as the ministers are not experts in their fields. The Prime Minister has a limited choice in the selection of ministers; his choice is restricted to the members of Parliament alone and does not extend to external talent. Moreover, the ministers devote most of their time to parliamentary work, cabinet meetings and party activities.

Now, let us compare the parliamentary and presidential systems in terms of their features, merits and demerits.

REASONS FOR ADOPTING PARLIAMENTARY SYSTEM

A plea was made in favour of US presidential system of government in the Constituent Assembly[4]. But, the founding fathers preferred the British parliamentary system due to the following reasons:

Table 12.1 *Comparing Parliamentary and Presidential Systems*

Parliamentary System	Presidential System
Features: 1. Dual executive. 2. Majority party rule 3. Collective responsibility. 4. Political homogeneity 5. Double membership. 6. Leadership of prime minister. 7. Dissolution of Lower House. 8. Fusion of powers.	*Features:* 1. Single executive. 2. President and legislators elected separately for a fixed term. 3. Non-responsibility 4. Political homogeneity may not exist. 5. Single membership 6. Domination of president. 7. No dissolution of Lower House. 8. Separation of powers.
Merits: 1. Harmony between legislature and executive. 2. Responsible government. 3. Prevents despotism. 4. Wide representation.	*Demerits:* 1. Conflict between legislature and executive. 2. Non-responsible government. 3. May lead to autocracy. 4. Narrow representation.
Demerits: 1. Unstable government. 2. No continuity of policies.	*Merits:* 1. Stable government. 2. Definiteness in policies. 3. Based on separation of powers. 4. Government by experts

3. Against separation of powers
4. Government by amateurs.

1. Familiarity with the System

The Constitution-makers were somewhat familiar with the parliamentary system as it had been in operation in India during the British rule. K.M. Munshi argued that, 'For the last thirty or forty years, some kind of responsibility has been introduced in the governance of this country. Our constitutional traditions have become Parliamentary. After this experience, why should we go back and buy a novel experience.'[5]

2. Preference to More Responsibility

Dr. B.R. Ambedkar pointed out in the Constituent Assembly that 'a democratic executive must satisfy two conditions: stability and responsibility. Unfortunately, it has not been possible so far to devise a system which can ensure both in equal degree. The American system gives more stability but less responsibility. The British system, on the other hand, gives more responsibility but less stability. The Draft Constitution in recommending the parliamentary system of Executive has preferred more responsibility to more stability.'[6]

3. Need to Avoid Legislative–Executive Conflicts

The framers of the Constitution wanted to avoid the conflicts between the legislature and the executive which are bound to occur in the presidential system prevalent in USA. They thought that an infant democracy could not afford to take the risk of a perpetual cleavage, feud or conflict or threatened conflict between these two organs of the government. They wanted a form of government that would be conductive to the manifold development of the country.

4. Nature of Indian Society

India is one of the most heterogeneous States and most complex plural societies in the world. Hence, the Constitution-makers adopted the parliamentary system as it offers greater scope for

giving representation to various section, interests and regions in the government. This promotes a national spirit among the people and builds a united India.

Whether the parliamentary system should be continued or should be replaced by the presidential system has been a point of discussion and debate in our country since the 1970s. This matter was considered in detail by the Swaran Singh Committee appointed by the Congress government in 1975. The committee opined that the parliamentary system has been doing well and hence, there is no need to replace it by the presidential system.

DISTINCTION BETWEEN INDIAN AND BRITISH MODELS

The parliamentary system of government in India is largely based on the British parliamentary system. However, it never became a replica of the British system and differs in the following respects:

1. India has a republican system in place of British monarchical system. In other words, the Head of the State in India (that is, President) is elected, while the Head of the State in Britain (that is, King or Queen) enjoys a hereditary position.
2. The British system is based on the doctrine of the sovereignty of Parliament, while the Parliament is not supreme in India and enjoys limited and restricted powers due to a written Constitution, federal system, judicial review and fundamental rights[7] .
3. In Britain, the prime minister should be a member of the Lower House (House of Commons) of the Parliament. In India, the prime minister may be a member of any of the two Houses of Parliament.[8]
4. Usually, the members of Parliament alone are appointed as ministers in Britain. In India, a person who is not a member of Parliament can also be appointed as minister, but for a maximum period of six months.
5. Britain has the system of legal responsibility of the minister while India has no such system. Unlike in Britain, the ministers in India are not required to countersign the official acts of the Head of the State.
6. 'Shadow cabinet' is an unique institution of the British cabinet system. It is formed by the opposition party to balance the ruling cabinet and to prepare its members for future ministerial office. There is no such institution in India.

NOTES AND REFERENCES

1. The 42nd and 44th Amendment Acts of 1976 and 1978 respectively have made the ministerial advice binding

on the president.

2. *How Britain is Governed* is a popular book written by him.
3. This theory was propounded by Montesquieu, a French political thinker, in his book *The Spirit of Laws* (1748) to promote individual liberty. He stated that concentration of powers in one person or a body of persons would result in despotism and negate individual liberty.
4. K.T. Shah favoured the adoption of the presidential system.
5. *Constituent Assembly Debates,* Volume VII, p. 284–5.
6. *Constituent Assembly Debates,* Volume VII, p. 32.
7. For details in this regard, see the section on the 'Sovereignty of Parliament' in Chapter 22.
8. For example, three prime ministers, Indira Gandhi (1966), Deve Gowda (1996), and Manmohan Singh (2004), were members of the Rajya Sabha.

13 Federal System

Political scientists have classified governments into unitary and federal on the basis of the nature of relations between the national government and the regional governments. By definition, a unitary government is one in which all the powers are vested in the national government and the regional governments, if at all exist, derive their authority from the national government. A federal government, on the other hand, is one in which powers are divided between the national government and the regional governments by the Constitution itself and both operate in their respective jurisdictions independently. Britain, France, Japan, China, Italy, Belgium, Norway, Sweden, Spain and so on have the unitary model of government while the US, Switzerland, Australia, Canada, Russia, Brazil, Argentina and so on have the federal model of government. In a federal model, the national government is known as the Federal government or the Central government or the Union government and the regional government is known as the state government or the provincial government.

The specific features of the federal and unitary governments are mentioned below in a comparative manner:

The term 'federation' is drived from a Latin word *foedus* which means 'treaty' or 'agreement'. Thus, a federation is a new state (political system) which is formed through a treaty or an agreement between the various units. The units of a federation are known by various names like states (as in US) or cantons (as in Switzerland) or provinces (as in Canada) or republics (as in Russia).

Table 13.1 *Comparing Features of Federal and Unitary Governments*

Federal Government	Unitary Government

Federal Government	Unitary Government
1. Dual Government (that is, national government and regional government)	1. Single government, that is, the national government which may create regional governments
2. Written Constitution	2. Constitution may be written (France) or unwritten (Britain)
3. Division of powers between the national and regional government	3. No division of powers. All powers are vested in the national government
4. Supremacy of the Constitution	4. Constitution may be supreme (Japan) or may not be supreme (Britain)
5. Rigid Constitution	5. Constitution may be rigid (France) or flexible (Britain)
6. Independent judiciary	6. Judiciary may be independent or may not be independent
7. Bicameral legislature	7. Legislature may be bicameral (Britain) or unicameral (China)

A federation can be formed in two ways, that is, by way of integration or by way of disintegration. In the first case, a number of militarily weak or economically backward states (independent) come together to form a big and a strong union, as for example, the US. In the second case, a big unitary state is converted into a federation by granting autonomy to the provinces to promote regional interest (for example, Canada). The US is the first and the oldest federation in the world. It was formed in 1787 following the American Revolution (1775–83). It comprises 50 states (originally 13 states) and is taken as the model of federation. The Canadian Federation, comprising 10 provinces (originally 4 provinces) is also quite old–formed in 1867.

The Constitution of India provides for a federal system of government in the country. The framers adopted the federal system

due to two main reasons–the large size of the country and its socio-cultural diversity. They realised that the federal system not only ensures the efficient governance of the country but also reconciles national unity with regional autonomy.

However, the term ‘federation’ has no where been used in the Constitution. Instead, Article 1 of the Constitution describes India asa ‘Union of States’. According to Dr. B.R. Ambedkar, the phrase ‘Union of States’ has been preferred to ‘Federation of States’ to indicate two things: (i) the Indian federation is not the result of an agreement among the states like the American federation; and (ii) the states have no right to secede from the federation. The federation is union because it is indestructible.[1]

The Indian federal system is based on the ‘Canadian model’ and not on the ‘American model’. The ‘Canadian model’ differs fundamentally from the ‘American model’ in so far as it establishes a very strong centre. The Indian federation resembles the Candian federation (i) in its formation (i.e., by way of disintegration); (ii) in its preference to the term ‘Union’ (the Canadian federation is also called a ‘Union’); and (iii) in its centralising tendency (i.e., vesting more powers in the centre vis-a-vis the states).

FEDERAL FEATURES OF THE CONSTITUTION

The federal features of the Constitution of India are explained below:

1. Dual Polity

The Constitution establishes a dual polity consisting the Union at the Centre and the states at the periphery. Each is endowed with sovereign powers to be exercised in the field assigned to them respectively by the Constitution. The Union government deals with the matters of national importance like defence, foreign affairs, currency, communication and so on. The state governments, on the other hand, look after the matters of regional and local importance like public order, agriculture, health, local government and so on.

2. Written Constitution

The Constitution is not only a written document but also the lengthiest Constitution of the world. Originally, it contained a Preamble, 395 Articles (divided into 22 Parts) and 8 Schedules.[2] At present (2019), it consists of a Preamble, about 470 Articles (divided into 25 Parts) and 12 Schedules.[3] It specifies the structure, organisation, powers and functions of both the Central and state governments and prescribes the limits within which they must operate. Thus, it avoids the misunderstandings and disagreements between the two.

3. Division of Powers

The Constitution divided the powers between the Centre and the states in terms of the Union List, State List and Concurrent List in the Seventh Schedule. The Union List consists of 98 subjects (originally 97), the State List 59 subjects (originally 66) and the Concurrent List 52 subjects (originally 47). Both the Centre and the states can make laws on the subjects of the concurrent list, but in case of a conflict, the Central law prevails. The residuary subjects (ie, which are not mentioned in any of the three lists) are given to the Centre.

4. Supremacy of the Constitution

The Constitution is the supreme (or the highest) law of the land. The laws enacted by the Centre and the states must conform to its provisions. Otherwise, they can be declared invalid by the Supreme Court or the high courts through their power of judicial review. Thus, the organs of the government (legislative, executive and judicial) at both the levels must operate within the jurisdiction prescribed by the Constitution.

5. Rigid Constitution

The division of powers established by the Constitution as well as the supremacy of the Constitution can be maintained only if the method of its amendment is rigid. Hence, the Constitution is rigid to the extent that those provisions which are concerned with the federal structure (i.e., Centre-state relations and judicial organisation) can be amended only by the joint action of the Central and state governments. Such provisions require for their amendment a special majority[4] of the Parliament and also an approval of half of the state legislatures.

6. Independent Judiciary

The Constitution establishes an independent judiciary headed by the Supreme Court for two purposes: one, to protect the supremacy of the Constitution by exercising the power of judicial review; and two, to settle the disputes between the Centre and the states or between the states. The Constitution contains various measures like security of tenure to judges, fixed service conditions and so on to make the judiciary independent of the government.

7. Bicameralism

The Constitution provides for a bicameral legislature consisting of an Upper House (Rajya Sabha) and a Lower House (Lok Sabha). The Rajya Sabha represents the states of Indian Federation, while the Lok Sabha represents the people of India as a whole. The Rajya Sabha (even though a less powerful chamber) is required to maintain the federal equilibrium by protecting the interests of the states against the undue interference of the Centre.

UNITARY FEATURES OF THE CONSTITUTION

Besides the above federal features, the Indian Constitution also possesses the following unitary or non-federal features:

1. Strong Centre

The division of powers is in favour of the Centre and highly inequitable from the federal angle. Firstly, the Union List contains more subjects than the State List. Secondly, the more important subjects have been included in the Union List. Thirdly, the Centre has overriding authority over the Concurrent List. Finally, the residuary powers have also been left with the Centre, while in the US, they are vested in the states. Thus, the Constitution has made the Centre very strong.

2. States Not Indestructible

Unlike in other federations, the states in India have no right to territorial integrity. The Parliament can by unilateral action change the area, boundaries or name of any state. Moreover, it requires only a simple majority and not a special majority. Hence, the Indian Federation is “an indestructible Union of destructible states”. The American Federation, on the other hand, is described as “an indestructible Union of indestructible states”.

3. Single Constitution

Usually, in a federation, the states have the right to frame their own Constitution separate from that of the Centre. In India, on the contrary, no such power is given to the states. The Constitution of India embodies not only the Constitution of the Centre but also those of the states. Both the Centre and the states must operate within this single-frame. The only exception in this regard was the case of Jammu and Kashmir which had its own (state) Constitution.[5]

4. Flexibility of the Constitution

The process of constitutional amendment is less rigid than what is found in other federations. The bulk of the Constitution can be amended by the unilateral action of the Parliament, either by simple majority or by special majority. Further, the power to initiate an amendment to the Constitution lies only with the Centre. In US, the states can also propose an amendment to the Constitution.

5. No Equality of State Representation

The states are given representation in the Rajya Sabha on the basis of population. Hence, the membership varies from 1 to 31. In US, on the other hand, the principle of equality of representation of states in the Upper House is fully recognised. Thus, the American Senate has 100 members, two from each state. This principle is regarded as a safeguard for smaller states.

6. Emergency Provisions

The Constitution stipulates three types of emergencies–national, state and financial. During an emergency, the Central government becomes all powerful and the states go into the total control of the Centre. It converts the federal structure into a unitary one without a formal amendment of the Constitution. This kind of transformation is not found in any other federation.

7. Single Citizenship

In spite of a dual polity, the Constitution of India, like that of Canada, adopted the system of single citizenship. There is only Indian Citizenship and no separate state citizenship. All citizens irrespective of the state in which they are born or reside enjoy the same rights all over the country. The other federal states like US, Switzerland and Australia have dual citizenship, that is, national citizenship as well as state citizenship.

8. Integrated Judiciary

The Indian Constitution has established an integrated judicial system with the Supreme Court at the top and the state high courts below it. This single system of courts enforces both the Central laws

as well as the state laws. In US, on the other hand, there is a double system of courts whereby the federal laws are enforced by the federal judiciary and the state laws by the state judiciary.

9. All-India Services

In US, the Federal government and the state governments have their separate public services. In India also, the Centre and the states have their separate public services. But, in addition, there are all-India services (IAS, IPS, and IFS) which are common to both the Centre and the states. The members of these services are recruited and trained by the Centre which also possess ultimate control over them. Thus, these services violate the principle of federalism under the Constitution.

10. Integrated Audit Machinery

The Comptroller and Auditor-General of India audits the accounts of not only the Central government but also those of the states. But, his appointment and removal is done by the president without consulting the states. Hence, this office restricts the financial autonomy of the states. The American Comptroller-General, on the contrary, has no role with respect to the accounts of the states.

11. Parliament's Authority Over State List

Even in the limited sphere of authority allotted to them, the states do not have exclusive control. The Parliament is empowered to legislate on any subject of the State List if Rajya Sabha passes a resolution to that effect in the national interest. This means that the legislative competence of the Parliament can be extended without amending the Constitution. Notably, this can be done when there is no emergency of any kind.

12. Appointment of Governor

The governor, who is the head of the state, is appointed by the President. He holds office during the pleasure of the President. He also acts as an agent of the Centre. Through him, the Centre exercises control over the states. The American Constitution, on the

contrary, provided for an elected head in the states. In this respect, India adopted the Canadian system.

13. Integrated Election Machinery

The Election Commission conducts elections not only to the Central legislature but also to the state legislatures. But, this body is constituted by the President and the states have no say in this matter. The position is same with regard to the removal of its members as well. On the other hand, US has separate machineries for the conduct of elections at the federal and state levels.

14. Veto Over State Bills

The governor is empowered to reserve certain types of bills passed by the state legislature for the consideration of the President. The President can withhold his assent to such bills not only in the first instance but also in the second instance. Thus, the President enjoys absolute veto (and not suspensive veto) over state bills. But in US and Australia, the states are autonomous within their fields and there is no provision for any such reservation.

CRITICAL EVALUATION OF THE FEDERAL SYSTEM

From the above, it is clear that the Constitution of India has deviated from the traditional federal systems like US, Switzerland and Australia and incorporated a large number of unitary or non-federal features, tilting the balance of power in favour of the Centre. This has prompted the Constitutional experts to challenge the federal character of the Indian Constitution. Thus, KC Wheare described the Constitution of India as "quasi-federal". He remarked that "Indian Union is a unitary state with subsidiary federal features rather than a federal state with subsidiary unitary features."[6]

According to K Santhanam, the two factors have been responsible for increasing the unitary bias (tendency of centralisation) of the Constitution. These are: (i) the dominance of the Centre in the financial sphere and the dependence of the states upon the Central grants; and (ii) the emergence of a powerful erstwhile planning commission which controlled the developmental process in the states[6a]. He observed: "India has practically functioned as a unitary state though the Union and the states have tried to function formally and legally as a federation."[7]

However, there are other political scientists who do not agree with the above descriptions. Thus, Paul Appleby[8] characterises the Indian system as "extremely federal". Morris Jones[9] termed it as a "bargaining federalism". Ivor Jennings[10] has described it as a "federation with a strong centralising tendency". He observed that "the Indian Constitution is mainly federal with unique safeguards for enforcing national unity and growth". Alexandrowicz[11] stated that "India is a case *sui generis* (i.e., unique in character). Granville Austin[12] called the Indian federalism as a "cooperative federalism". He said that though the Constitution of India has created a strong Central government, it has not made the state governments weak and has not reduced them to the level of administrative agencies for the execution of policies of the Central government. He described the Indian federation as "a new kind of federation to meet India's peculiar needs".

On the nature of Indian Constitution, Dr. B.R. Ambedkar made the following observation in the Constituent Assembly: "The

Constitution is a Federal Constitution in as much as it establishes a dual polity. The Union is not a league of states, united in a loose relationship, nor are the states the agencies of the Union, deriving powers from it. Both the Union and the states are created by the Constitution, both derive their respective authority from the Constitution."[13] He further observed: "Yet the Constitution avoids the tight mould of federalism and could be both unitary as well as federal according to the requirements of time and circum-stances".[14] While replying to the criticism of over-centralisation in the Constitution, he stated: "A serious complaint is made on the ground that there is too much centralisation and the states have been reduced to municipalities. It is clear that this view is not only an exaggeration but is also founded on a misunderstanding of what exactly the Constitution contrives to do. As to the relations between the Centre and the states, it is necessary to bear in mind the fundamental principle on which it rests. The basic principle of federalism is that the legislative and executive authority is partitioned between the Centre and the states not by any law to be made by the Centre but by the Constitution itself. This is what the Constitution does. The states are in no way dependent upon the Centre for their legislative or executive authority. The states and the Centre are coequal in this matter. It is difficult to see how such a Constitution can be called centralism. It is, therefore, wrong to say that the states have been placed under the Centre. The Centre cannot by its own will alter the boundary of this partition. Nor can the judiciary".[15]

In *Bommai* case[16] (1994), the Supreme Court laid down that the Constitution is federal and characterised federalism as its 'basic feature'. It observed: "The fact that under the scheme of our Constitution, greater power is conferred upon the Centre *vis-a-vis* the states does not mean that the states are mere appendages of the Centre. The states have an independent constitutional existence. They are not satellites or agents of the Centre. Within the sphere allotted to them, the states are supreme. The fact that during emergency and in certain other eventualities their powers are overridden or invaded by the Centre is not destructive of the essential federal feature of the Constitution. They are exceptions and the exceptions are not a rule. Let it be said that the federalism in the Indian Constitution is not a matter of administrative

convenience, but one of principle–the outcome of our own process and a recognition of the ground realities".

In fact, the federalism in India represents a compromise between the following two conflicting considerations[17] :

(i) normal division of powers under which states enjoy autonom within their own spheres; and

(ii) need for national integrity and a strong Union government unde exceptional circumstances.

The following trends in the working of Indian political system reflects its federal spirit: **(i)** Territorial disputes between states, for example, between Maharashtra and Karnataka over Belgaum; **(ii)** Disputes between states over sharing of river water, for example, between Karnataka and Tamil Nadu over Cauvery Water; **(iii)** The emergence of regional parties and their coming to power in states like Andhra Pradesh, Tamil Nadu, etc.; **(iv)** The creation of new states to fulfil the regional aspirations, for example, Mizoram or Jharkhand; **(v)** Demand of the states for more financial grants from the Centre to meet their developmental needs; **(vi)** Assertion of autonomy by the states and their resistance to the interference from the Centre; **(vii)** Supreme Court's imposition of several procedural limitations on the use of Article 356 (President's Rule in the States) by the Centre.[18]

NOTES AND REFERENCES

1. *Constituent Assembly Debates*, Volume VII, P. 43.
2. The American Constitution originally consisted only 7 Articles, the Australian 128 and the Canadian 147.
3. The various amendments carried out since 1951 have deleted about 20 Articles and one Part (VII) and added about 95 Articles, four Parts (IVA, IXA, IXB and XIVA) and four Schedules (9,10,11 and 12).
4. A majority of 2/3 of the members of each House present and voting and a majority of the total membership of each House.
5. Till 2019, the erstwhile state of Jammu and Kashmir enjoyed a special status by virtue of Article 370 of the Constitution of India.

6. K.C. Wheare: *Federal Government*, 1951, P. 28.

6a. In 2015, the Planning Commission was replaced by a new body called NITI Aayog (National Institution for Transforming India).

7. K. Santhanam: *Union-State Relations in India,* 1960, PP. 50–70.

8. Paul Appleby: *Public Administration in India*, 1953, P. 51.

9. Morris Jones: *The Government and Politics in India*, 1960, P. 14.

10. Ivor Jennings: *Some Characteristics of the Indian Constitution*, 1953, P. 1.

11. C.H. Alexandrowicz: *Constitutional Development in India*, 1957, PP. 157–70.

12. Granville Austin: *The Indian Constitution–Cornerstone of a Nation*, Oxford, 1966, PP. 186–88.

13. *Constituent Assembly Debates*, Vol. VIII, P. 33.

14. *Ibid,* Vol.VII, PP. 33–34.

15. Dr. B.R. Ambedkar's speech in the Constituent Assembly on 25.11.1949 reproduced in *The Constitution and the Constituent Assembly*; Lok Sabha Secretariat, 1990, P. 176.

16. *S.R. Bommai* v. *Union of India* (1994).

17. Subash C. Kashyap: *Our Parliament*, National Book Trust, 1999 Edition, P. 40.

18. *S.R. Bommai* v. *Union of India* (1994). For the details of the judgement, see "President's Rule" in Chapter 16.

14 Centre-State Relations

The Constitution of India, being federal in structure, divides all powers (legislative, executive and financial) between the Centre and the states. However, there is no division of judicial power as the Constitution has established an integrated judicial system to enforce both the Central laws as well as state laws.

Though the Centre and the states are supreme in their respective fields, the maximum harmony and coordination between them is essential for the effective operation of the federal system. Hence, the Constitution contains elaborate provisions to regulate the various dimensions of the relations between the Centre and the states.

The Centre-state relations can be studied under three heads:

- Legislative relations.
- Administrative relations.
- Financial relations.

LEGISLATIVE RELATIONS

Articles 245 to 255 in Part XI of the Constitution deal with the legislative relations between the Centre and the states. Besides these, there are some other articles dealing with the same subject.

Like any other Federal Constitution, the Indian Constitution also divides the legislative powers between the Centre and the states with respect to both the territory and the subjects of legislation. Further, the Constitution provides for the parliamentary legislation in the state field under five extraordinary situations as well as the centre's control over state legislation in certain cases. Thus, there are four aspects in the Centre-states legislative relations, viz.,

- Territorial extent of Central and state legislation;
- Distribution of legislative subjects;
- Parliamentary legislation in the state field; and
- Centre's control over state legislation.

1. Territorial Extent of Central and State Legislation

The Constitution defines the territorial limits of the legislative powers vested in the Centre and the states in the following way:

(i) The Parliament can make laws for the whole or any part of the territory of India. The territory of India includes the states, the union territories, and any other area for the time being included in the territory of India.

(ii) A state legislature can make laws for the whole or any part of the state. The laws made by a state legislature are not applicable outside the state, except when there is a sufficient nexus between the state and the object.

(iii) The Parliament alone can make 'extraterritorial legislation'. Thus, the laws of the Parliament are also applicable to the Indian citizens and their property in any part of the world.

However, the Constitution places certain restrictions on the plenary territorial jurisdiction of the Parliament. In other words, the laws of Parliament are not applicable in the following areas:

(i) The President can make regulations for the peace, progress and good government of the five Union Territories– the Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli, Daman and Diu and Ladakh. A regulation so made has the same force

and effect as an act of Parliament. It may also repeal or amend any act of Parliament in relation to these union territories.

(ii) The governor is empowered to direct that an act of Parliament does not apply to a scheduled area in the state or apply with specified modifications and exceptions.

(iii) The Governor of Assam may likewise direct that an act of Parliament does not apply to a tribal area (autonomous district) in the state or apply with specified modifications and exceptions. The President enjoys the same power with respect to tribal areas (autonomous districts) in Meghalaya, Tripura and Mizoram.

2. Distribution of Legislative Subjects

The Constitution provides for a three-fold distribution of legislative subjects between the Centre and the states, viz., List-I (the Union List), List-II (the State List) and List-III (the Concurrent List) in the Seventh Schedule:

(i) The Parliament has exclusive powers to make laws with respect to any of the matters enumerated in the Union List. This list has at present 98 subjects (originally 97[1] subjects) like defence, banking, foreign affairs, currency, atomic energy, insurance, communication, inter-state trade and commerce, census, audit and so on.

(ii) The state legislature has “in normal circumstances” exclusive powers to make laws with respect to any of the matters enumerated in the State List. This has at present 59 subjects (originally 66[2] subjects) like public order, police, public health and sanitation, agriculture, prisons, local government, fisheries, markets, theaters, gambling and so on.

(iii) Both, the Parliament and state legislature can make laws with respect to any of the matters enumerated in the Concurrent List. This list has at present 52 subjects (originally 47[3] subjects) like criminal law and procedure, civil procedure, marriage and divorce, population control and family planning, electricity, labour welfare, economic and social planning, drugs, newspapers, books and printing press, and others. The 42nd Amendment Act of 1976 transferred five subjects to Concurrent List from State List, that is, (a) education, (b) forests, (c) weights and measures, (d) protection of wild animals and birds, and (e) administration of justice; constitution and organisation of all courts except the Supreme Court and the high courts.

(iv) Parliament has power to make laws with respect to any matter for any part of the territory of India not included in a state even though that matter is one which is enumerated in the State List. This provision has reference to the Union Territories or the Acquired Territories (if any).

(v) The 101st Amendment Act of 2016 has made a special provision with respect to goods and services tax. Accordingly, the Parliament and the state legislature have power to make laws with respect to goods and services tax imposed by the Union or by the State. Further, the parliament has exclusive power to make laws with respect to goods and services tax where the supply of goods or services or both takes place in the course of inter-state trade or commerce.

(vi) The power to make laws with respect to residuary subjects (i.e., the matters which are not enumerated in any of the three lists) is vested in the Parliament. This residuary power of legislation includes the power to levy residuary taxes.

From the above scheme, it is clear that the matters of national importance and the matters which require uniformity of legislation nationwide are included in the Union List. The matters of regional and local importance and the matters which permit diversity of interest are specified in the State List. The matters on which uniformity of legislation throughout the country is desirable but not essential are enumerated in the concurrent list. Thus, it permits diversity along with uniformity.

In US, only the powers of the Federal Government are enumerated in the Constitution and the residuary powers are left to the states. The Australian Constitution followed the American pattern of single enumeration of powers. In Canada, on the other hand, there is a double enumeration– Federal and Provincial, and the residuary powers are vested in the Centre.

The Government of India Act of 1935 provided for a three-fold enumeration, viz., federal, provincial and concurrent. The present Constitution follows the scheme of this act but with one difference, that is, under this act, the residuary powers were given neither to the federal legislature nor to the provincial legislature but to the governor-general of India. In this respect, India follows the Canadian precedent.

The Constitution expressly secures the predominance of the Union List over the State List and the Concurrent List and that of the Concurrent List over the State List. Thus, in case of overlapping

between the Union List and the State List, the former should prevail. In case of overlapping between the Union List and the Concurrent List, it is again the former which should prevail. Where there is a conflict between the Concurrent List and the State List, it is the former that should prevail.

In case of a conflict between the Central law and the state law on a subject enumerated in the Concurrent List, the Central law prevails over the state law. But, there is an exception. If the state law has been reserved for the consideration of the president and has received his assent, then the state law prevails in that state. But, it would still be competent for the Parliament to override such a law by subsequently making a law on the same matter.

3. Parliamentary Legislation in the State Field

The above scheme of distribution of legislative powers between the Centre and the states is to be maintained in normal times. But, in abnormal times, the scheme of distribution is either modified or suspended. In other words, the Constitution empowers the Parliament to make laws on any matter enumerated in the State List under the following five extraordinary circumstances:

When Rajya Sabha Passes a Resolution

If the Rajya Sabha declares that it is necessary in the national interest that Parliament should make laws with respect to goods and services tax[3a] or a matter in the State List, then the Parliament becomes competent to make laws on that matter. Such a resolution must be supported by two-thirds of the members present and voting. The resolution remains in force for one year; it can be renewed any number of times but not exceeding one year at a time. The laws cease to have effect on the expiration of six months after the resolution has ceased to be in force.

This provision does not restrict the power of a state legislature to make laws on the same matter. But, in case of inconsistency between a state law and a parliamentary law, the latter is to prevail.

During a National Emergency

The Parliament acquires the power to legislate with respect to goods and services tax[3b] or matters in the State List, while a proclamation of national emergency is in operation. The laws become inoperative on

the expiration of six months after the emergency has ceased to operate.

Here also, the power of a state legislature to make laws on the same matter is not restricted. But, in case of repugnancy between a state law and a parliamentary law, the latter is to prevail.

When States Make a Request

When the legislatures of two or more states pass resolutions requesting the Parliament to enact laws on a matter in the State List, then the Parliament can make laws for regulating that matter. A law so enacted applies only to those states which have passed the resolutions. However, any other state may adopt it afterwards by passing a resolution to that effect in its legislature. Such a law can be amended or repealed only by the Parliament and not by the legislatures of the concerned states.

The effect of passing a resolution under the above provision is that the Parliament becomes entitled to legislate with respect to a matter for which it has no power to make a law. On the other hand, the state legislature ceases to have the power to make a law with respect to that matter. The resolution operates as abdication or surrender of the power of the state legislature with respect to that matter and it is placed entirely in the hands of Parliament which alone can then legislate with respect to it.

Some examples of laws passed under the above provision are Prize Competition Act, 1955; Wild Life (Protection) Act, 1972; Water (Prevention and Control of Pollution) Act, 1974; Urban Land (Ceiling and Regulation) Act, 1976; and Transplantation of Human Organs Act, 1994.

To Implement International Agreements

The Parliament can make laws on any matter in the State List for implementing the international treaties, agreements or conventions. This provision enables the Central government to fulfil its international obligations and commitments.

Some examples of laws enacted under the above provision are United Nations (Privileges and Immunities) Act, 1947; Geneva Convention Act, 1960; Anti-Hijacking Act, 1982 and legislations relating to environment and TRIPS.

During President's Rule

When the President's rule is imposed in a state, the Parliament becomes empowered to make laws with respect to any matter in the State List in relation to that state. A law made so by the Parliament continues to be operative even after the president's rule. This means that the period for which such a law remains in force is not coterminous with the duration of the President's rule. But, such a law can be repealed or altered or re-enacted by the state legislature.

4. Centre's Control Over State Legislation

Besides the Parliament's power to legislate directly on the state subjects under the exceptional situations, the Constitution empowers the Centre to exercise control over the state's legislative matters in the following ways:

(i) The governor can reserve certain types of bills passed by the state legislature for the consideration of the President. The president enjoys absolute veto over them.

(ii) Bills on certain matters enumerated in the State List can be introduced in the state legislature only with the previous sanction of the president. (For example, the bills imposing restrictions on the freedom of trade and commerce).

(iii) The Centre can direct the states to reserve money bills and other financial bills passed by the state legislature for the President's consideration during a financial emergency.

From the above, it is clear that the Constitution has assigned a position of superiority to the Centre in the legislative sphere. In this context, the Sarkaria Commission on Centre-State Relations (1983–88) observed: "The rule of federal supremacy is a technique to avoid absurdity, resolve conflict and ensure harmony between the Union and state laws. If this principle of union supremacy is excluded, it is not difficult to imagine its deleterious results. There will be every possibility of our two-tier political system being stultified by interference, strife, legal chaos and confusion caused by a host of conflicting laws, much to the bewilderment of the common citizen. Integrated legislative policy and uniformity on basic issues of common Union-state concern will be stymied. The federal principle of unity in diversity will be very much a casualty. This rule of federal supremacy, therefore, is indispensable for the successful functioning of the federal system".[4]

ADMINISTRATIVE RELATIONS

Articles 256 to 263 in Part XI of the Constitution deal with the administrative relations between the Centre and the states. In addition, there are various other articles pertaining to the same matter.

Distribution of Executive Powers

The executive power has been divided between the Centre and the states on the lines of the distribution of legislative powers, except in few cases. Thus, the executive power of the Centre extends to the whole of India: (i) to the matters on which the Parliament has exclusive power of legislation (i.e., the subjects enumerated in the Union List); and (ii) to the exercise of rights, authority and jurisdiction conferred on it by any treaty or agreement. Similarly, the executive power of a state extends to its territory in respect of matters on which the state legislature has exclusive power of legislation (i.e., the subjects enumerated in the State List).

In respect of matters on which both the Parliament and the state legislatures have power of legislation (i.e., the subjects enumerated in the Concurrent List), the executive power rests with the states except when a Constitutional provision or a parliamentary law specifically confers it on the Centre. Therefore, a law on a concurrent subject, though enacted by the Parliament, is to be executed by the states except when the Constitution or the Parliament has directed otherwise.[5]

Obligation of States and the Centre

The Constitution has placed two restrictions on the executive power of the states in order to give ample scope to the Centre for exercising its executive power in an unrestricted manner. Thus, the executive power of every state is to be exercised in such a way (a) as to ensure compliance with the laws made by the Parliament and any existing law which apply in the state; and (b) as not to impede or prejudice the exercise of executive power of the Centre in the state. While the former lays down a general obligation upon the state, the latter imposes a specific obligation on the state not to hamper the executive power of the Centre.

Table 14.1 *Articles Related to Centre-State Legislative Relations at a Glance*

Article No.	Subject Matter
245.	Extent of laws made by Parliament and by the legislatures of states
246.	Subject-matter of laws made by Parliament and by the legislatures of states
246A.	Special provision with respect to goods and services tax
247.	Power of Parliament to provide for the establishment of certain additional courts
248.	Residuary powers of legislation
249.	Power of Parliament to legislate with respect to a matter in the state list in the national interest
250.	Power of Parliament to legislate with respect to any matter in the state list if a Proclamation of Emergency is in operation
251.	Inconsistency between laws made by Parliament under articles 249 and 250 and laws made by the legislatures of states
252.	Power of Parliament to legislate for two or more states by consent and adoption of such legislation by any other state
253.	Legislation for giving effect to international agreements
254.	Inconsistency between laws made by Parliament and laws made by the legislatures of states
255.	Requirements as to recommendations and previous sanctions to be regarded as matters of procedure only

In both the cases, the executive power of the Centre extends to giving of such directions to the state as are necessary for the purpose. The sanction behind these directions of the Centre is coercive in nature. Thus, Article 365 says that where any state has failed to comply with (or to give effect to) any directions given by the Centre, it will be lawful for the President to hold that a situation has arisen in

which the government of the state cannot be carried on in accordance with the provisions of the Constitution. It means that, in such a situation, the President's rule can be imposed in the state under Article 356.

Centre's Directions to the States

In addition to the above two cases, the Centre is empowered to give directions to the states with regard to the exercise of their executive power in the following matters:

(i) the construction and maintenance of means of communication (declared to be of national or military importance) by the state;
(ii) the measures to be taken for the protection of the railways within the state;
(iii) the provision of adequate facilities for instruction in the mother-tongue at the primary stage of education to children belonging to linguistic minority groups in the state; and
(iv) the drawing up and execution of the specified schemes for the welfare of the Scheduled Tribes in the state.

The coercive sanction behind the Central directions under Article 365 (mentioned above) is also applicable in these cases.

Mutual Delegation of Functions

The distribution of legislative powers between the Centre and the states is rigid. Consequently, the Centre cannot delegate its legislative powers to the states and a single state cannot request the Parliament to make a law on a state subject. The distribution of executive power in general follows the distribution of legislative powers. But, such a rigid division in the executive sphere may lead to occasional conflicts between the two. Hence, the Constitution provides for inter-government delegation of executive functions in order to mitigate rigidity and avoid a situation of deadlock.

Accordingly, the President may, with the consent of the state government, entrust to that government any of the executive functions of the Centre. Conversely, the governor of a state may, with the consent of the Central government, entrust to that government any of the executive functions of the state.[6] This mutual delegation of administrative functions may be conditional or unconditional.

The Constitution also makes a provision for the entrustment of the executive functions of the Centre to a state without the consent of that

state. But, in this case, the delegation is by the Parliament and not by the president. Thus, a law made by the Parliament on a subject of the Union List can confer powers and impose duties on a state, or authorise the conferring of powers and imposition of duties by the Centre upon a state (irrespective of the consent of the state concerned). Notably, the same thing cannot be done by the state legislature.

From the above, it is clear that the mutual delegation of functions between the Centre and the state can take place either under an agreement or by a legislation. While the Centre can use both the methods, a state can use only the first method.

Cooperation Between the Centre and States

The Constitution contains the following provisions to secure cooperation and coordination between the Centre and the states:

(i) The Parliament can provide for the adjudication of any dispute or complaint with respect to the use, distribution and control of waters of any inter-state river and river valley.

(ii) The President can establish (under Article 263) an Inter-State Council to investigate and discuss subject of common interest between the Centre and the states. Such a council was set up in 1990.[7]

(iii) Full faith and credit is to be given throughout the territory of India to public acts, records and judicial proceedings of the Centre and every state.

(iv) The Parliament can appoint an appropriate authority to carry out the purposes of the constitutional provisions relating to the interstate freedom of trade, commerce and intercourse. But, no such authority has been appointed so far.

All-India Services

Like in any other federation, the Centre and the states also have their separate public services called as the Central Services and the State Services respectively. In addition, there are all-India services–IAS, IPS and IFS. The members of these services occupy top positions (or key posts) under both the Centre and the states and serve them by turns. But, they are recruited and trained by the Centre.

These services are controlled jointly by the Centre and the states. The ultimate control lies with the Central government while the

immediate control vests with the state governments.

In 1947, Indian Civil Service (ICS) was replaced by IAS and the Indian Police (IP) was replaced by IPS and were recognised by the Constitution as All-India Services. In 1966, the Indian Forest Service (IFS) was created as the third All-India Service. Article 312 of the Constitution authorises the Parliament to create new All-India Services on the basis of a Rajya Sabha resolution to that effect.

Each of these three all-India services, irrespective of their division among different states, form a single service with common rights and status and uniform scales of pay throughout the country.

Though the all-India services violate the principle of federalism under the Constitution by restricting the autonomy and patronage of the states, they are supported on the ground that (i) they help in maintaining high standard of administration in the Centre as well as in the states; (ii) they help to ensure uniformity of the administrative system throughout the country; and (iii) they facilitate liaison, cooperation, coordination and joint action on the issues of common interest between the Centre and the states.

While justifying the institution of all-India services in the Constituent Assembly, Dr. B.R. Ambedkar observed that: “The dual polity which is inherent in a federal system is followed in all federations by a dual service. In all federations, there is a Federal Civil Service and a State Civil Service. The Indian federation, though a dual polity, will have a dual service, but with one exception. It is recognised that in every country there are certain posts in its administrative set up which might be called strategic from the point of view of maintaining the standard of administration. There can be no doubt that the standard of administration depends upon the calibre of the civil servants who are appointed to the strategic posts. The Constitution provides that without depriving the states of their rights to form their own civil services, there shall be an all-India service, recruited on an allIndia basis with common qualifications, with uniform scale of pay and members of which alone could be appointed to those strategic posts throughout the Union”.[8]

Public Service Commissions

In the field of public service commissions, the Centre-state relations are as follows:

(i) The Chairman and members of a state public service commission, though appointed by the governor of the state, can

be removed only by the President.

(ii) The Parliament can establish a Joint State Public Service Commission (JSPSC) for two or more states on the request of the state legislatures concerned. The chairman and members of the JSPSC are appointed by the president.

(iii) The Union Public Service Commission (UPSC) can serve the needs of a state on the request of the state governor and with the approval of the President.

(iv) The UPSC assists the states (when requested by two or more states) in framing and operating schemes of joint recruitment for any services for which candidates possessing special qualifications are required.

Integrated Judicial System

Though India has a dual polity, there is no dual system of administration of justice. The Constitution, on the other hand, established an integrated judicial system with the Supreme Court at the top and the state high courts below it. This single system of courts enforces both the Central laws as well as the state laws. This is done to eliminate diversities in the remedial procedure.

The judges of a state high court are appointed by the president in consultation with the Chief Justice of India and the governor of the state. They can also be transferred and removed by the president.

The Parliament can establish a common high court for two or more states. For example, Maharashtra and Goa or Punjab and Haryana have a common high court.

Relations During Emergencies

(i) During the operation of a national emergency (under Article 352), the Centre becomes entitled to give executive directions to a state on 'any' matter. Thus, the state governments are brought under the complete control of the Centre, though they are not suspended.

(ii) When the President's Rule is imposed in a state (under Article 356), the President can assume to himself the functions of the state government and powers vested in the Governor or any other executive authority in the state.

(iii) During the operation of a financial emergency (under Article 360), the Centre can direct the states to observe canons of financial

propriety and can give other necessary directions including the reduction of salaries of persons serving in the state.

Other Provisions

The Constitution contains the following other provisions which enable the Centre to exercise control over the state administration:

(i) Article 355 imposes two duties on the Centre: (a) to protect every state against external aggression and internal disturbance; and (b) to ensure that the government of every state is carried on in accordance with the provisions of the Constitution.

(ii) The governor of a state is appointed by the president. He holds office during the pleasure of the President. In addition to the Constitutional head of the state, the governor acts as an agent of the Centre in the state. He submits periodical reports to the Centre about the administrative affairs of the state.

(iii) The state election commissioner, though appointed by the governor of the state, can be removed only by the President.

Extra-Constitutional Devices

In addition to the above-mentioned constitutional devices, there are extra-constitutional devices to promote cooperation and coordination between the Centre and the states. These include a number of advisory bodies and conferences held at the Central level.

The non-constitutional advisory bodies include the NITI Ayog (which succeeded the planning commission),[9] the National Integration Council,[10] the Central Council of Health and Family Welfare, the Central Council of Local Government, the Zonal Councils,[11] the North-Eastern Council, the Central Council of Indian Medicine, the Central Council of Homoeopathy, the Transport Development Council, the University Grants Commission and so on.

The important conferences held either annually or otherwise to facilitate Centrestate consultation on a wide range of matters are as follows: **(i)** The governors' conference (presided over by the President). **(ii)** The chief ministers' conference (presided over by the prime minister). **(iii)** The chief secretaries' conference (presided over by the cabinet secretary). **(iv)** The conference of inspector-general of police. **(v)** The chief justices' conference (presided over by the chief justice of India). **(vi)** The conference of vice-chancellors. **(vii)** The home ministers' conference (presided over by the Central home

minister). **(viii)** The law ministers' conference (presided over by the Central law minister).

FINANCIAL RELATIONS

Articles 268 to 293 in Part XII of the Constitution deal with Centre-state financial relations. Besides these, there are other provisions dealing with the same subject. These together can be studied under the following heads:

Allocation of Taxing Powers

The Constitution divides the taxing powers between the Centre and the states in the following way:

- The Parliament has exclusive power to levy taxes on subjects enumerated in the Union List (which are 13 in number[12]).
- The state legislature has exclusive power to levy taxes on subjects enumerated in the State List (which are 18 in number[13]).
- There are no tax entries in the Concurrent List. In other words, the concurrent jurisdiction is not available with respect to tax legislation. But, the 101st Amendment Act of 2016 has made an exception by making a special provision with respect to goods and services tax. This Amendment has conferred concurrent power upon Parliament and State Legislatures to make laws governing goods and services tax[14] .
- The residuary power of taxation (that is, the power to impose taxes not enumerated in any of the three lists) is vested in the Parliament. Under this provision, the Parliament has imposed gift tax, wealth tax and expenditure tax.

Table 14.2 *Articles Related to Centre-State Administrative Relations at a Glance*

Article No.	Subject Matter
256.	Obligation of states and the Union
257.	Control of the Union over states in certain cases
257A.	Assistance to states by deployment of armed forces or other forces of the Union (Repealed)
258.	Power of the Union to confer powers, etc., on states in certain cases

258A.	Power of the states to entrust functions to the Union
259.	Armed Forces in states in Part B of the First Schedule (Repealed)
260.	Jurisdiction of the Union in relation to territories outside India
261.	Public acts, records and judicial proceedings
262.	Adjudication of disputes relating to waters of inter-state rivers or river valleys
263.	Provisions with respect to an inter-state Council

The Constitution also draws a distinction between the power to levy and collect a tax and the power to appropriate the proceeds of the tax so levied and collected. For example, the income-tax is levied and collected by the Centre but its proceeds are distributed between the Centre and the states.

Further, the Constitution has placed the following restrictions on the taxing powers of the states:

(i) A state legislature can impose taxes on professions, trades, callings and employments. But, the total amount of such taxes payable by any person should not exceed ₹2,500 per annum.[15]

(ii) A state legislature is prohibited from imposing a tax on the supply of goods or services or both in the following two cases : (a) where such supply takes place outside the state; and (b) where such supply takes place in the course of import or export. Further, the Parliament is empowered to formulate the principles for determining when a supply of goods or services or both takes place outside the state, or in the course of import or export[16] .

(iii) A state legislature can impose tax on the consumption or sale of electricity. But, no tax can be imposed on the consumption or sale of electricity which is (a) consumed by the Centre or sold to the Centre; or (b) consumed in the construction, maintenance or operation of any railway by the Centre or by the concerned railway company or sold to the Centre or the railway company for the same purpose.

(iv) A state legislature can impose a tax in respect of any water or electricity stored, generated, consumed, distributed or sold by any authority established by Parliament for regulating or developing any inter-state river or river valley. But, such a law, to be effective,

should be reserved for the president's consideration and receive his assent.

Distribution of Tax Revenues

The 80th Amendment Act of 2000 and the 101st Amendment Act of 2016 have introduced major changes in the scheme of the distribution of tax revenues between the centre and the states.

The 80th Amendment was enacted to give effect to the recommendations of the 10th Finance Commission. The Commission recommended that out of the total income obtained from certain central taxes and duties, 29% should go to the states. This is known as the 'Alternative Scheme of Devolution' and came into effect retrospectively from April 1, 1996. This amendment has brought several central taxes and duties like Corporation Tax and Customs Duties at par with Income Tax (taxes on income other than agricultural income) as far as their constitutionally mandated sharing with the states is concerned.[17]

The 101st Amendment has paved the way for the introduction of a new tax regime (i.e., goods and services tax - GST) in the country. Accordingly, the Amendment conferred concurrent taxing powers upon the Parliament and the State Legislatures to make laws for levying GST on every transaction of supply of goods or services or both. The GST replaced a number of indirect taxes levied by the Union and the State Governments and is intended to remove cascading effect of taxes and provide for a common national market for goods and services. The Amendment provided for subsuming of various central indirect taxes and levies such as (i) Central Excise Duty, (ii) Additional Excise Duties, (iii) Excise Duty levied under the Medicinal and Toilet Preparations (Excise Duties) Act, 1955, (iv) Service Tax, (v) Additional Customs Duty commonly known as Countervailing Duty, (vi) Special Additional Duty of Customs, and (vii) Central Surcharges and Cesses so far as they related to the supply of goods and services. Similarly, the Amendment provided for subsuming of (i) State Value Added Tax / Sales Tax, (ii) Entertainment Tax (other than the tax levied by the local bodies), (iii) Central Sales Tax (levied by the Centre and collected by the States), (iv) Octroi and Entry Tax, (v) Purchase Tax, (vi) Luxury Tax, (vii) Taxes on lottery, betting and gambling, and (viii) State Surcharges and Cesses in so far as they related to the supply of goods and services. Further, the Amendment deleted Article 268-A as

well as Entry 92-C in the Union List, both were dealing with service tax. They were added earlier by the 88th Amendment Act of 2003. The service tax was levied by the Centre but collected and appropriated by both the Centre and the States.

After the above two amendments (i.e., 80th Amendment and 101st Amendment), the present position with respect to the distribution of tax revenues between the centre and the states is as follows:

A. Taxes Levied by the Centre but Collected and Appropriated by the States (Article 268): This category includes the stamp duties on bills of exchange, cheques, promissory notes, policies of insurance, transfer of shares and others.

The proceeds of these duties levied within any state do not form a part of the Consolidated Fund of India, but are assigned to that state.

B. Taxes Levied and Collected by the Centre but Assigned to the States (Article 269): The following taxes fall under this category:

(i) Taxes on the sale or purchase of goods (other than newspapers) in the course of inter-state trade or commerce.

(ii) Taxes on the consignment of goods in the course of inter-state trade or commerce.

The net proceeds of these taxes do not form a part of the Consolidated Fund of India. They are assigned to the concerned states in accordance with the principles laid down by the Parliament.

C. Levy and Collection of Goods and Services Tax in Course of Inter-State Trade or Commerce (Article 269-A): The Goods and Services Tax (GST) on supplies in the course of inter-state trade or commerce are levied and collected by the Centre. But, this tax is divided between the Centre and the States in the manner provided by Parliament on the recommendations of the GST Council. Further, the Parliament is also authorized to formulate the principles for determining the place of supply, and when a supply of goods or services or both takes place in the course of inter-state trade or commerce.

D. Taxes Levied and Collected by the Centre but Distributed between the Centre and the States (Article 270): This category includes all taxes and duties referred to in the Union List except the following:

(i) Duties and taxes referred to in Articles 268, 269 and 269-A (mentioned above);

(ii) Surcharge on taxes and duties referred to in Article 271

(mentioned below); and

(iii) Any cess levied for specific purposes.

The manner of distribution of the net proceeds of these taxes and duties is prescribed by the President on the recommendation of the Finance Commission.

E. Surcharge on Certain Taxes and Duties for Purposes of the Centre (Article 271): The Parliament can at any time levy the surcharges on taxes and duties referred to in Articles 269 and 270 (mentioned above). The proceeds of such surcharges go to the Centre exclusively. In other words, the states have no share in these surcharges.

However, the Goods and Services Tax (GST) is exempted from this surcharge. In other words, this surcharge can not be imposed on the GST.

F. Taxes Levied and Collected and Retained by the States: These are the taxes belonging to the states exclusively. They are enumerated in the state list and are 18 in number. These are[18] : (i) land revenue; (ii) taxes on agricultural income; (iii) duties in respect of succession to agricultural land; (iv) estate duty in respect of agricultural land; (v) taxes on lands and buildings; (vi) taxes on mineral rights; (vii) Duties of excise on alcoholic liquors for human consumption; opium, Indian hemp and other narcotic drugs and narcotics, but not including medicinal and toilet preparations containing alcohol or narcotics; (viii) taxes on the consumption or sale or electricity; (ix) taxes on the sale of petroleum crude, high speed diesel, motor spirit (commonly known as petrol), natural gas, aviation turbine fuel and alcoholic liquor for human consumption, but not including sale in the course of inter-state trade or commerce or sale in the course of international trade or commerce of such goods; (x) taxes on goods and passengers carried by road or inland waterways; (xi) taxes on vehicles; (xii) taxes on animals and boats; (xiii) tolls; (xiv) taxes on professions, trades, callings and employments; (xv) capitation taxes; (xvi) taxes on entertainments and amusements to the extent levied and collected by a Panchayat or a Municipality or a Regional Council or a District Council; (xvii) stamp duty on documents (except those specified in the Union List); and (xviii) fees on the matters enumerated in the State List (except court fees).

Distribution of Non-tax Revenues

A. The Centre

The receipts from the following form the major sources of non-tax revenues of the Centre: (i) posts and telegraphs; (ii) railways; (iii) banking; (iv) broadcasting (v) coinage and currency; (vi) central public sector enterprises; (vii) escheat and lapse;[19] and (viii) others.

B. The States

The receipts from the following form the major sources of non-tax revenues of the states: (i) irrigation; (ii) forests; (iii) fisheries; (iv) state public sector enterprises; (v) escheat and lapse;[20] and (vi) others.

Grants-in-Aid to the States

Besides sharing of taxes between the Centre and the states, the Constitution provides for grants-in-aid to the states from the Central resources. There are two types of grants-in-aid, viz, statutory grants and discretionary grants:

Statutory Grants

Article 275 empowers the Parliament to make grants to the states which are in need of financial assistance and not to every state. Also, different sums may be fixed for different states. These sums are charged on the Consolidated Fund of India every year.

Apart from this general provision, the Constitution also provides for specific grants for promoting the welfare of the scheduled tribes in a state or for raising the level of administration of the scheduled areas in a state including the State of Assam.

The statutory grants under Article 275 (both general and specific) are given to the states on the recommendation of the Finance Commission.

Discretionary Grants

Article 282 empowers both the Centre and the states to make any grants for any public purpose, even if it is not within their respective legislative competence. Under this provision, the Centre makes grants to the states.

“These grants are also known as discretionary grants, the reason being that the Centre is under no obligation to give these grants and the matter lies within its discretion. These grants have a two-fold purpose: to help the state financially to fulfil plan targets; and to give

some leverage to the Centre to influence and coordinate state action to effectuate the national plan."[21]

Other Grants

The Constitution also provided for a third type of grants-in-aid, but for a temporary period. Thus, a provision was made for grants in lieu of export duties on jute and jute products to the States of Assam, Bihar, Orissa and West Bengal. These grants were to be given for a period of ten years from the commencement of the Constitution. These sums were charged on the Consolidated Fund of India and were made to the states on the recommendation of the Finance Commission.

Goods and Services Tax Council

The smooth and efficient administration of the goods and services tax (GST) requires a co-operation and co-ordination between the Centre and the States. In order to facilitate this consultation process, the 101st Amendment Act of 2016 provided for the establishment of a Goods and Services Tax Council or the GST Council.

Article 279-A empowered the President to constitute a GST Council by an order[22]. The Council is a joint forum of the Centre and the States. It is required to make recommendations to the Centre and the States on the following matters:

(a) The taxes, cesses and surcharges levied by the Centre, the States and the local bodies that would get merged in GST.
(b) The goods and services that may be subjected to GST or exempted from GST.
(c) Model GST Laws, principles of levy, apportionment of GST levied on supplies in the course of inter-state trade or commerce and the principles that govern the place of supply.
(d) The threshold limit of turnover below which goods and services may be exempted from GST.
(e) The rates including floor rates with bands of GST.
(f) Any special rate or rates for a specified period to raise additional resources during any natural calamity or disaster.

Finance Commission

Article 280 provides for a Finance Commission as a quasi-judicial body. It is constituted by the President every fifth year or even earlier.

It is required to make recommendations to the President on the following matters:

- The distribution of the net proceeds of taxes to be shared between the Centre and the states, and the allocation between the states, the respective shares of such proceeds.
- The principles which should govern the grants-in-aid to the states by the Centre (i.e., out of the Consolidated Fund of India).
- The measures needed to augment the Consolidated fund of a state to supplement the resources of the panchayats and the municipalities in the state on the basis of the recommendations made by the State Finance Commission.[23]
- Any other matter referred to it by the President in the interests of sound finance.

Till 1960, the Commission also suggested the amounts paid to the States of Assam, Bihar, Orissa and West Bengal in lieu of assignment of any share of the net proceeds in each year of export duty on jute and jute products.

The Constitution envisages the Finance Commission as the balancing wheel of fiscal federalism in India.

Protection of the States' Interest

To protect the interest of states in the financial matters, the Constitution lays down that the following bills can be introduced in the Parliament only on the recommendation of the President:

- A bill which imposes or varies any tax or duty in which states are interested;
- A bill which varies the meaning of the expression 'agricultural income' as defined for the purposes of the enactments relating to Indian income tax;
- A bill which affects the principles on which moneys are or may be distributable to states; and
- A bill which imposes any surcharge on any specified tax or duty for the purpose of the Centre.

The expression "tax or duty in which states are interested" means: (a) a tax or duty the whole or part of the net proceeds whereof are assigned to any state; or (b) a tax or duty by reference to the net proceeds whereof sums are for the time being payable, out of the Consolidated Fund of India to any state.

The phrase 'net proceeds' means the proceeds of a tax or a duty minus the cost of collection. The net proceeds of a tax or a duty in any

area is to be ascertained and certified by the Comptroller and Auditor-General of India. His certificate is final.

Borrowing by the Centre and the States

The Constitution makes the following provisions with regard to the borrowing powers of the Centre and the states:

- The Central government can borrow either within India or outside upon the security of the Consolidated Fund of India or can give guarantees, but both within the limits fixed by the Parliament. So far, no such law has been enacted by the Parliament.
- Similarly, a state government can borrow within India (and not abroad) upon the security of the Consolidated Fund of the State or can give guarantees, but both within the limits fixed by the legislature of that state.
- The Central government can make loans to any state or give guarantees in respect of loans raised by any state. Any sums required for the purpose of making such loans are to be charged on the Consolidated Fund of India.
- A state cannot raise any loan without the consent of the Centre, if there is still outstanding any part of a loan made to the state by the Centre or in respect of which a guarantee has been given by the Centre.

Inter-Governmental Tax Immunities

Like any other federal Constitution, the Indian Constitution also contain the rule of 'immunity from mutual taxation' and makes the following provisions in this regard:

Exemption of Central Property from State Taxation

The property of Centre is exempted from all taxes imposed by a state or any authority within a state like municipalities, district boards, panchayats and so on. But, the Parliament is empowered to remove this ban. The word 'property' includes lands, buildings, chattels, shares, debts, everything that has a money value, and every kind of property–movable or immovable and tangible or intangible. Further, the property may be used for sovereign (like armed forces) or commercial purposes.

The corporations or the companies created by the Central government are not immune from state taxation or local taxation. The

reason is that a corporation or a company is a separate legal entity.

Exemption of State Property or Income from Central Taxation

The property and income of a state is exempted from Central taxation. Such income may be derived from sovereign functions or commercial functions. But the Centre can tax the commercial operations of a state if Parliament so provides. However, the Parliament can declare any particular trade or business as incidental to the ordinary functions of the government and it would then not be taxable.

Notably, the property and income of local authorities situated within a state are not exempted from the Central taxation. Similarly, the property or income of corporations and companies owned by a state can be taxed by the Centre.

The Supreme Court, in an advisory opinion[24] (1963), held that the immunity granted to a state in respect of Central taxation does not extend to the duties of customs or duties of excise. In other words, the Centre can impose customs duty on goods imported or exported by a state, or an excise duty on goods produced or manufactured by a state.

Effects of Emergencies

The Centre-state financial relations in normal times (described above) undergo changes during emergencies. These are as follows:

National Emergency

While the proclamation of national emergency (under Article 352) is in operation, the president can modify the constitutional distribution of revenues between the Centre and the states. This means that the president can either reduce or cancel the transfer of finances (both tax sharing and grants-in-aid) from the Centre to the states. Such modification continues till the end of the financial year in which the emergency ceases to operate.

Financial Emergency

While the proclamation of financial emergency (under Article 360) is in operation, the Centre can give directions to the states: (i) to observe the specified canons of financial propriety; (ii) to reduce the salaries and allowances of all class of persons serving in the state; and (iii) to reserve all money bills and other financial bills for the consideration of the President.

Table 14.3 *Articles Related to Centre-State Financial Relations at a Glance*

Article No.	Subject Matter
Distribution of Revenues between the Union and the States	
268.	Duties levied by the Union but collected and appropriated by the states
268A.	Service tax levied by Union and collected and appropriated by the Union and the states (Repealed)
269.	Taxes levied and collected by the Union but assigned to the states
269A.	Levy and collection of goods and services tax in course of inter-state trade or commerce
270.	Taxes levied and distributed between the Union and the states
271.	Surcharge on certain duties and taxes for purposes of the Union
272.	Taxes which are levied and collected by the Union and may be distributed between the Union and the states (Repealed)
273.	Grants in *lieu* of export duty on jute and jute products
274.	Prior recommendation of President required to bills affecting taxation in which states are interested
275.	Grants from the Union to certain states
276.	Taxes on professions, trades, callings and employments
277.	Savings
278.	Agreement with states in Part B of the First Schedule with regard to certain financial matters (Repealed)
279.	Calculation of “net proceeds”, etc.
279A.	Goods and Services Tax Council
280.	Finance Commission

281.	Recommendations of the Finance Commission
	Miscellaneous Financial Provisions
282.	Expenditure defrayable by the Union or a state out of its revenues
283.	Custody, etc., of Consolidated Funds, Contingency Funds and moneys credited to the public accounts
284.	Custody of suitors' deposits and other moneys received by public servants and courts
285.	Exemption of property of the Union from state taxation
286.	Restrictions as to imposition of tax on the sale or purchase of goods
287.	Exemption from taxes on electricity
288.	Exemption from taxation by states in respect of water or electricity in certain cases
289.	Exemption of property and income of a state from Union taxation
290.	Adjustment in respect of certain expenses and pensions
290A.	Annual payment to certain Devaswom Funds
291.	Privy purse sums of Rulers (Repealed)
	Borrowing
292.	Borrowing by the Government of India
293.	Borrowing by states

TRENDS IN CENTRE-STATE RELATIONS

Till 1967, the centre-state relations by and large were smooth due to one-party rule at the Centre and in most of the states. In 1967 elections, the Congress party was defeated in nine states and its position at the Centre became weak. This changed political scenario heralded a new era in the Centre-state relations. The non-Congress Governments in the states opposed the increasing centralisation and intervention of the Central government. They raised the issue of state autonomy and demanded more powers and financial resources to the states. This caused tensions and conflicts in Centre-state relations.

Tension Areas in Centre-State Relations

The issues which created tensions and conflicts between the Centre and states are: (1) Mode of appointment and dismissal of governor; (2) Discriminatory and partisan role of governors; (3) Imposition of President's Rule for partisan interests; (4) Deployment of Central forces in the states to maintain law and order; (5) Reservation of state bills for the consideration of the President; (6) Discrimination in financial allocations to the states; (7) Role of Planning Commission in approving state projects; (8) Management of All-India Services (IAS, IPS, and IFS); (9) Use of electronic media for political purposes; (10) Appointment of enquiry commissions against the chief ministers; (11) Sharing of finances (between Centre and states); and (12) Encroachment by the Centre on the State List.

The issues in Centre-State relations have been under consideration since the mid 1960s. In this direction, the following developments have taken place:

Administrative Reforms Commission

The Central government appointed a six-member Administrative Reforms Commission (ARC) in 1966 under the chairmanship of Morarji Desai (followed by K Hanumanthayya). Its terms of references included, among others, the examination of Centre-State relations. In order to examine thoroughly the various issues in Centre-state relations, the ARC constituted a study team under M.C. Setalvad. On the basis of the report of this study team, the ARC finalised its own report and submitted it to the Central government in 1969. It made 22

recommendations for improving the Centre-state relations. The important recommendations are:

- Establishment of an Inter-State Council under Article 263 of the Constitution.
- Appointment of persons having long experience in public life and administration and non-partisan attitude as governors.
- Delegation of powers to the maximum extent to the states.
- Transferring of more financial resources to the states to reduce their dependency upon the Centre.
- Deployment of Central armed forces in the states either on their request or otherwise.

No action was taken by the Central government on the recommendations of the ARC.

Rajamannar Committee

In 1969, the Tamil Nadu Government (DMK) appointed a three-member committee under the chairmanship of Dr. P.V. Rajamannar to examine the entire question of Centre-state relations and to suggest amendments to the Constitution so as to secure utmost autonomy to the states.[25] The committee submitted its report to the Tamil Nadu Government in 1971.

The Committee identified the reasons for the prevailing unitary trends (tendencies of centralisation) in the country. They include: (i) certain provisions in the Constitution which confer special powers on the Centre; (ii) one-party rule both at the Centre and in the states; (iii) inadequacy of states' fiscal resources and consequent dependence on the Centre for financial assistance; and (iv) the institution of Central planning and the role of the Planning Commission.

The important recommendations of the committee are as follows: (i) An Inter-State Council should be set up immediately; (ii) Finance Commission should be made a permanent body; (iii) Planning Commission should be disbanded and its place should be taken by a statutory body; (iv) Articles 356, 357 and 365 (dealing with President's Rule) should be totally omitted; (v) The provision that the state ministry holds office during the pleasure of the governor should be omitted; (vi) Certain subjects of the Union List and the Concurrent List should be transferred to the State List; (vii) the residuary powers should be allocated to the states; and (viii) All-India services (IAS, IPS and IFS) should be abolished.

The Central government completely ignored the recommendations of the Rajamannar Committee.

Anandpur Sahib Resolution

In 1973, the Akali Dal adopted a resolution containing both political and religious demands in a meeting held at Anandpur Sahib in Punjab. The resolution, generally known as Anandpur Sahib Resolution, demanded that the Centre's jurisdiction should be restricted only to defence, foreign affairs, communications, and currency and the entire residuary powers should be vested in the states. It stated that the Constitution should be made federal in the real sense and should ensure equal authority and representation to all the states at the Centre.

West Bengal Memorandum

In 1977, the West Bengal Government (led by the Communists) published a memorandum on Centre-state relations and sent to the Central government. The memorandum *inter alia* suggested the following: (i) The word 'union' in the Constitution should be replaced by the word 'federal'; (ii) The jurisdiction of the Centre should be confined to defence, foreign affairs, currency, communications and economic co-ordination; (iii) All other subjects including the residuary should be vested in the states; (iv) Articles 356 and 357 (President's Rule) and 360 (financial emergency) should be repealed; (v) State's consent should be made obligatory for formation of new states or reorganisation of existing states; (vi) Of the total revenue raised by the Centre from all sources, 75 per cent should be allocated to the states; (vii) Rajya Sabha should have equal powers with that of the Lok Sabha; and (viii) There should be only Central and state services and the allIndia services should be abolished.

The Central government did not accept the demands made in the memorandum.

Sarkaria Commission

In 1983, the Central government appointed a three-member Commission on Centrestate relations under the chairmanship of R.S. Sarkaria, a retired judge of the Supreme Court.[26] The commission was asked to examine and review the working of existing

arrangements between the Centre and states in all spheres and recommend appropriate changes and measures. It was initially given one year to complete its work, but its term was extended four times. It submitted it's report in 1988.

The Commission did not favour structural changes and regarded the existing constitutional arrangements and principles relating to the institutions basically sound. But, it emphasised on the need for changes in the functional or operational aspects. It observed that federalism is more a functional arrangement for co-operative action than a static institutional concept. It outrightly rejected the demand for curtailing the powers of the Centre and stated that a strong Centre is essential to safeguard the national unity and integrity which is being threatened by the fissiparious tendencies in the body politic. However, it did not equate strong Centre with centralisation of powers. It observed that over-centralisation leads to blood pressure at the centre and anaemia at the periphery.

The Commission made 247 recommendations to improve Centre-state relations. The important recommendations are mentioned below:

1. A permanent Inter-State Council called the Inter-Governmental Council should be set up under Article 263.
2. Article 356 (President's Rule) should be used very sparingly, in extreme cases as a last resort when all the available alternatives fail.
3. The institution of All-India Services should be further strengthened and some more such services should be created.
4. The residuary powers of taxation should continue to remain with the Parliament, while the other residuary powers should be placed in the Concurrent List.
5. When the president withholds his assent to the state bills, the reasons should be communicated to the state government.
6. The National Development Council (NDC) should be renamed and reconstituted as the National Economic and Development Council (NEDC).
7. The zonal councils should be constituted afresh and reactivated to promote the spirit of federalism.
8. The Centre should have powers to deploy its armed forces, even without the consent of states. However, it is desirable that the states should be consulted.
9. The Centre should consult the states before making a law on a subject of the Concurrent List.

10. The procedure of consulting the chief minister in the appointment of the state governor should be prescribed in the Constitution itself.
11. The net proceeds of the corporation tax may be made permissibly shareable with the states.
12. The governor cannot dismiss the council of ministers so long as it commands a majority in the assembly.
13. The governor's term of five years in a state should not be disturbed except for some extremely compelling reasons.
14. No commission of enquiry should be set up against a state minister unless a demand is made by the Parliament.
15. The surcharge on income tax should not be levied by the Centre except for a specific purpose and for a strictly limited period.
16. The present division of functions between the Finance Commission and the Planning Commission is reasonable and should continue.
17. Steps should be taken to uniformly implement the three language formula in its true spirit.
18. No autonomy for radio and television but decentralisation in their operations.
19. No change in the role of Rajya Sabha and Centre's power to reorganise the states.
20. The commissioner for linguistic minorities should be activated.

The Central government has implemented 180 (out of 247) recommendations of the Sarkaria Commission. The most important is the establishment of the Inter-State Council in 1990.

Punchhi Commission

The Second commission on Centre-State Relations was set-up by the Government of India in April 2007 under the Chairmanship of Madan Mohan Punchhi, former Chief Justice of India.[27] It was required to look into the issues of Centre-State relations keeping in view the sea-changes that have taken place in the polity and economy of India since the Sarkaria Commission had last looked at the issue of Centre-State relations over two decades ago.

The terms of reference of the Commission were as follows:

(i) The Commission was required to examine and review the working of the existing arrangements between the Union and States as per the Constitution of India, the healthy precedents being followed, various pronouncements of the Courts in regard to

powers, functions and responsibilities in all spheres including legislative relations, administrative relations, role of governors, emergency provisions, financial relations, economic and social planning, Panchayati Raj institutions, sharing of resources including inter-state river water and recommend such changes or other measures as may be appropriate keeping in view the practical difficulties.

(ii) In examining and reviewing the working of the existing arrangements between the Union and States and making recommendations as to the changes and measures needed, the Commission was required to keep in view the social and economic developments that have taken place over the years, particularly over the last two decades and have due regard to the scheme and framework of the Constitution. Such recommendations were also needed to address the growing challenges of ensuring good governance for promoting the welfare of the people whilst strengthening the unity and integrity of the country, and of availing emerging opportunities for sustained and rapid economic growth for alleviating poverty and illiteracy in the early decades of the new millennium.

(iii) While examining and making its recommendations on the above, the Commission was required to have particular regard, but not limit its mandate to the following:-

(a) The role, responsibility and jurisdiction of the Centre vis-a-vis States during major and prolonged outbreaks of communal violence, caste violence or any other social conflict leading to prolonged and escalated violence.

(b) The role, responsibility and jurisdiction of the Centre vis-a-vis States in the planning and implementation of the mega projects like the inter-linking of rivers, that would normally take 15–20 years for completion and hinge vitally on the support of the States.

(c) The role, responsibility and jurisdiction of the Centre vis-a-vis States in promoting effective devolution of powers and autonomy to Panchayati Raj Institutions and Local Bodies including the Autonomous Bodies under the sixth Schedule of the Constitution within a specified period of time.

(d) The role, responsibility and jurisdiction of the Centre vis-a-vis States in promoting the concept and practice of independent planning and budgeting at the District level.

(e) The role, responsibility and jurisdiction of the Centre vis-a-vis States in linking Central assistance of various kinds with the performance of the States.

(f) The role, responsibility and jurisdiction of the Centre in adopting approaches and policies based on positive discrimination in favour of backward States.

(g) The impact of the recommendations made by the 8th to 12th Finance Commissions on the fiscal relations between the Centre and the States, especially the greater dependence of the States on devolution of funds from the Centre.

(h) The need and relevance of separate taxes on the production and on the sales of goods and services subsequent to the introduction of Value Added Tax regime.

(i) The need for freeing inter-State trade in order to establish a unified and integrated domestic market as also in the context of the reluctance of State Governments to adopt the relevant Sarkaria Commission's recommendation in chapter XVIII of its report.

(j) The need for setting up a Central Law Enforcement Agency empowered to take up suo moto investigation of crimes having inter-State and/ or international ramifications with serious implications on national security.

(k) The feasibility of a supporting legislation under Article 355 for the purpose of suo moto deployment of Central forces in the States if and when the situation so demands.

The Commission submitted its report to the government in April 2010. In finalising the 1,456 page report, in seven volumes, the Commission took extensive help from the Sarkaria Commission report, the National Commission to Review the Working of the Constitution (NCRWC) report and the Second Administrative Reforms Commission report. However, in a number of areas, the Commission report differed from the Sarkaria Commission recommendations.

After examining at length the issues raised in its Terms of Reference and the related aspects in all their hues and shades, the Commission came to the conclusion that 'cooperative federalism' will be the key for sustaining India's unity, integrity and social and economic development in future. The principles of cooperative federalism thus may have to act as a practical guide for Indian polity and governance.

In all, the Commission made over 310 recommendations, touching upon several significant areas in the working of Centre-state relations. The important recommendations are mentioned below:

1. To facilitate effective implementation of the laws on List III subjects, it is necessary that some broad agreement is reached between the Union and states before introducing legislation in Parliament on matters in the Concurrent List.
2. The Union should be extremely restrained in asserting Parliamentary supremacy in matters assigned to the states. Greater flexibility to states in relation to subjects in the State List and “transferred items” in the Concurrent List is the key for better Centre-state relations.
3. The Union should occupy only that many of subjects in concurrent or overlapping jurisdiction which are absolutely necessary to achieve uniformity of policy in demonstrable national interest.
4. There should be a continuing auditing role for the Inter-state Council in the management of matters in concurrent or overlapping jurisdiction.
5. The period of six months prescribed in Article 201 for State Legislature to act when the bill is returned by the President can be made applicable for the President also to decide on assenting or withholding assent to a state bill reserved for consideration of the President.
6. Parliament should make a law on the subject of Entry 14 of List I (treaty making and implementing it through Parliamentary legislation) to streamline the procedures involved. The exercise of the power obviously cannot be absolute or unchartered in view of the federal structure of legislative and executive powers.
7. Financial obligations and its implications on state finances arising out of treaties and agreements should be a permanent term of reference to the Finance Commissions constituted from time to time.
8. While selecting Governors, the Central Government should adopt the following strict guidelines as recommended in the Sarkaria Commission report and follow its mandate in letter and spirit :
   (i) He should be eminent in some walk of life
   (ii) He should be a person from outside the state
   (iii) He should be a detached figure and not too intimately connec with the local politics of the state

(iv) He should be a person who has not taken too great a pa politics generally and particularly in the recent past

9. Governors should be given a fixed tenure of five years and their removal should not be at the sweet will of the Government at the Centre.
10. The procedure laid down for impeachment of President, *mutatis mutandis* can be made applicable for impeachment of Governors as well.
11. Article 163 does not give the Governor a general discretionary power to act against or without the advice of his Council of Ministers. In fact, the area for the exercise of discretion is limited and even in this limited area, his choice of action should not be arbitrary or fanciful. It must be a choice dictated by reason, activated by good faith and tempered by caution.
12. In respect of bills passed by the Legislative Assembly of a state, the Governor should take the decision within six months whether to grant assent or to reserve it for consideration of the President.
13. On the question of Governor's role in appointment of Chief Minister in the case of an hung assembly, it is necessary to lay down certain clear guidelines to be followed as Constitutional conventions. These guidelines may be as follows:
    (i) The party or combination of parties which commands the wi support in the Legislative Assembly should be called upon to f the Government.
    (ii) If there is a pre-poll alliance or coalition, it should be treate one political party and if such coalition obtains a majority, leader of such coalition shall be called by the Governor to f the Government.
    (iii) In case no party or pre-poll coalition has a clear majority, Governor should select the Chief Minister in the orde preference indicated here.
        (a) The group of parties which had pre-poll alliance commanding the largest number
        (b) The largest single party staking a claim to form the government with the support of others
        (c) A post-electoral coalition with all partners joining the government
        (d) A post-electoral alliance with some parties joining the government and the remaining including independents supporting the government from outside

14. On the question of dismissal of a Chief Minister, the Governor should invariably insist on the Chief Minister proving his majority on the floor of the House for which he should prescribe a time limit.
15. The Governor should have the right to sanction for prosecution of a state minister against the advice of the Council of Ministers, if the Cabinet decision appears to the Governor to be motivated by bias in the face of overwhelming material.
16. The convention of Governors acting as Chancellors of Universities and holding other statutory positions should be done away with. His role should be confined to the Constitutional provisions only.
17. When an external aggression or internal disturbance paralyses the state administration creating a situation of a potential break down of the Constitutional machinery of the state, all alternative courses available to the Union for discharging its paramount responsibility under Article 355 should be exhausted to contain the situation and the exercise of the power under Article 356 should be limited strictly to rectifying a “failure of the Constitutional machinery in the state”.
18. On the question of invoking Article 356 in case of failure of Constitutional machinery in states, suitable amendments are required to incorporate the guidelines set forth in the landmark judgement of the Supreme Court in *S.R. Bommai V. Union of India (1994)*. This would remove possible misgivings in this regard on the part of states and help in smoothening Centre-state relations.
19. Given the strict parameters now set for invoking the emergency provisions under Articles 352 and 356 to be used only as a measure of “last resort”, and the duty of the Union to protect states under Article 355, it is necessary to provide a Constitutional or legal framework to deal with situations which require Central intervention but do not warrant invoking the extreme steps under Articles 352 and 356. Providing the framework for “localised emergency” would ensure that the state government can continue to function and the Assembly would not have to be dissolved while providing a mechanism to let the Central Government respond to the issue specifically and locally. The imposition of local emergency is fully justified under the mandate of Article 355 read with Entry 2A of List I and Entry 1 of List II of the Seventh Schedule.

20. Suitable amendments to Article 263 are required to make the Inter-State Council a credible, powerful and fair mechanism for management of interstate and Centre-state differences.
21. The Zonal Councils should meet at least twice a year with an agenda proposed by states concerned to maximise co-ordination and promote harmonisation of policies and action having inter-state ramification. The Secretariat of a strengthened Inter-State Council can function as the Secretariat of the Zonal Councils as well.
22. The Empowered Committee of Finance Ministers of States proved to be a successful experiment in inter-state coordination on fiscal matters. There is need to institutionalise similar models in other sectors as well. A forum of Chief Ministers, Chaired by one of the Chief Minister by rotation can be similarly thought about particularly to co-ordinate policies of sectors like energy, food, education, environment and health.
23. New all-India services in sectors like health, education, engineering and judiciary should be created.
24. Factors inhibiting the composition and functioning of the Second Chamber as a representative forum of states should be removed or modified even if it requires amendment of the Constitutional provisions. In fact, Rajya Sabha offers immense potential to negotiate acceptable solutions to the friction points which emerge between Centre and states in fiscal, legislative and administrative relations.
25. A balance of power between states *inter se* is desirable and this is possible by equality of representation in the Rajya Sabha. This requires amendment of the relevant provisions to give equality of seats to states in the Rajya Sabha, irrespective of their population size.
26. The scope of devolution of powers to local bodies to act as institutions of self-government should be constitutionally defined through appropriate amendments.
27. All future Central legislations involving states' involvement should provide for cost sharing as in the case of the RTE Act. Existing Central legislations where the states are entrusted with the responsibility of implementation should be suitably amended providing for sharing of costs by the Central Government.
28. The royalty rates on major minerals should be revised at least every three years without any delay. States should be properly

compensated for any delay in the revision of royalty beyond three years.

29. The current ceiling on profession tax should be completely done away with by a Constitutional amendment.
30. The scope for raising more revenue from the taxes mentioned in article 268 should be examined afresh. This issue may be either referred to the next Finance Commission or an expert committee be appointed to look into the matter.
31. To bring greater accountability, all fiscal legislations should provide for an annual assessment by an independent body and the reports of these bodies should be laid in both Houses of Parliament/state legislature.
32. Considerations specified in the Terms of Reference (ToR) of the Finance Commission should be even handed as between the Centre and the states. There should be an effective mechanism to involve the states in the finalisation of the ToR of the Finance Commissions.
33. The Central Government should review all the existing cesses and surcharges with a view to bringing down their share in the gross tax revenue.
34. Because of the close linkages between the plan and non-plan expenditure, an expert committee may be appointed to look into the issue of distinction between the plan and non-plan expenditure.
35. There should be much better coordination between the Finance Commission and the Planning Commission. The synchronisation of the periods covered by the Finance Commission and the Five-Year Plan will considerably improve such coordination.
36. The Finance Commission division in the Ministry of Finance should be converted into a full-fledged department, serving as the permanent secretariat for the Finance Commissions.
37. The Planning Commission has a crucial role in the current situation. But its role should be that of coordination rather that of micro managing sectoral plans of the Central ministries and the states.
38. Steps should be taken for the setting up of an Inter-State Trade and Commerce Commission under Article 307 read with Entry 42 of List-I. This Commission should be vested with both advisory and executive roles with decision making powers. As a Constitutional body, the decisions of the Commission should be final and binding on all states as well as the Union of India. Any

party aggrieved with the decision of the Commission may prefer an appeal to the Supreme Court.

The Report of the Commission was circulated to all stakeholders including State Governments / UT Administrations and Union Ministries / Departments concerned for their considered views on the recommendations of the Commission. The comments received from the Union Ministries / Departments and the State Governments / UT Administrations are under the consideration of the Inter-State Council.[28]

NOTES AND REFERENCES

1. Even now, the last entry is numbered as 97 but the total number of entries is 98. The entries numbered as 2A, 92A and 92B have been added and entries 33, 92 and 92C have been omitted. See Appendix II.
2. Even now, the last entry is numbered as 66 but the total number of entries is 59. The entries numbered as 11, 19, 20, 29, 36, 52 and 55 have been omitted. See Appendix II.
3. Even now, the last entry is numbered as 47 but the total number of entries is 52. The entries numbered as 11A, 17A, 17B, 20A and 33A have been added. See Appendix II.

3a. The provision for goods and services tax was added by the 101st Amendment Act of 2016.

3b. *Ibid*.

4. Report of the Commission on centre-state Relations, Part I (Government of India, 1988) PP. 28–29.
5. For example, under the Essential Commodities Act, made by the Parliament on a concurrent subject, the executive power is vested in the Centre.
6. This provision (the power of the states to entrust functions to the Centre) was added by the 7th Constitutional Amendment Act of 1956. Before that, only the Centre had the power.
7. For details in this regard, see Chapter 15.
8. *Constituent Assembly Debates*, Volume VII, PP. 41–42.
9. For details, see Chapter 54.
10. For details, see Chapter 78.
11. For details, see Chapter 15.

12. Entries–82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92A, 92B and 96. See Appendix II.
13. Entries–45, 46, 47, 48, 49, 50, 51, 53, 54, 56, 57, 58, 59, 60, 61, 62, 63, and 66. See Appendix II.
14. In this regard, the 101st Amendment Act of 2016 inserted Article 246-A in the Constitution.
15. Originally, this limit was only ₹250 per annum. The 60th Amendment Act of 1988 raised it to ₹2,500 per annum.
16. These provisions are contained in Article 286, as amended by the 101st Amendment Act of 2016.
17. This amendment deleted Article 272 (Taxes which are levied and collected by the Centre and may be distributed between the Centre and the states).
18. Entry 52 (taxes on the entry of goods into a local area for consumption, use or sale therein) and entry 55 (taxes on advertisements other than advertisements published in the newspapers and advertisements broadcast by radio or television) were omitted by the 101st Amendment Act of 2016.
19. See 'Property of the Union' in Chapter 67.
20. See 'Property of the States' in Chapter 67.
21. M.P. Jain: *Indian Constitutional Law*, Wadhwa, Fourth Edition, PP. 342–43.
22. Article 279-A(1) says that the President shall, within sixty days from the commencement of the Constitution (One Hundred and First Amendment) Act, 2016, by order, constitute a Council to be called the Goods and Services Tax Council.
23. This function was added by the 73rd and 74th Amendment Acts of 1992 which have granted constitutional status on the panchayats and the municipalities respectively.
24. In Re. Sea Customs Act (1963).
25. The other two members of the committee were Dr. Lakshmanswamy Mudaliar and P.C. Chandra Reddy.
26. B. Sivaraman and S.R. Sen were two other members of the Commission.
27. The other four Members of the Commission were Dhirendra Singh (Former Secretary to the Government of India), Vinod Kumar Duggal (Former Secretary to the Government of India), Prof. N.R. Madhava Menon (Former Director,

National Judicial Academy, Bhopal and National Law School of India, Bangalore) and Dr. Amaresh Bagchi (Emeritus Professor, National Institute of Public Finance and Policy, New Delhi). With the passing away of Dr. Bagchi in February 2008, Vijay Shanker (Former Director, Central Bureau of Investigation, Government of India) was appointed in his place as a Member of the Commission in October 2008.

28. Annual Report 2018–19, Ministry of Home Affairs, Government of India, p.52.

15 Inter-State Relations

The successful functioning of the Indian federal system depends not only on the harmonious relations and close cooperation between the Centre and the states but also between the states *inter se*. Hence, the Constitution makes the following provisions with regard to inter-state comity:

1. Adjudication of inter-state water disputes.
2. Coordination through inter-state councils.
3. Mutual recognition of public acts, records and judicial proceedings.
4. Freedom of inter-state trade, commerce and intercourse.

In addition, the zonal councils have been established by the Parliament to promote inter-state cooperation and coordination.

INTER-STATE WATER DISPUTES

Article 262 of the Constitution provides for the adjudication of inter-state water disputes. It makes two provisions:

(i) Parliament may by law provide for the adjudication of any dispute or complaint with respect to the use, distribution and control of waters of any inter-state river and river valley.

(ii) Parliament may also provide that neither the Supreme Court nor any other court is to exercise jurisdiction in respect of any such dispute or complaint.

Under this provision, the Parliament has enacted two laws [the River Boards Act (1956) and the Inter-State Water Disputes Act (1956)]. The River Boards Act provides for the establishment of river boards for the regulation and development of inter-state river and river valleys. A river board is established by the Central government on the request of the state governments concerned to advise them.

The Inter-State Water Disputes Act empowers the Central government to set up an ad hoc tribunal for the adjudication of a dispute between two or more states in relation to the waters of an inter-state river or river valley. The decision of the tribunal would be final and binding on the parties to the dispute. Neither the Supreme Court nor any other court is to have jurisdiction in respect of any water dispute which may be referred to such a tribunal under this Act.

The need for an extra judicial machinery to settle inter-state water disputes is as follows: “The Supreme Court would indeed have jurisdiction to decide any dispute between states in connection with water supplies, if legal rights or interests are concerned; but the experience of most countries has shown that rules of law based upon the analogy of private proprietary interests in water do not afford a satisfactory basis for settling disputes between the states where the interests of the public at large in the proper use of water supplies are involved.”[1]

So far (2019), the Central government has set up nine inter-state water dispute tribunals. The name of the tribunals, the years in which they were constituted and the states involved in the dispute are mentioned in Table 15.1.

Table 15.1 Inter-State Water Dispute Tribunals Set-up So Far

Sl. No.	Name	Set-up in	States Involved
1.	Krishna Water Disputes Tribunal-I	1969	Maharashtra, Karnataka and Andhra Pradesh
2.	Godavari Water Disputes Tribunal	1969	Maharashtra, Karnataka, Andhra Pradesh, Madhya Pradesh and Odisha
3.	Narmada Water Disputes Tribunal	1969	Rajasthan, Gujarat, Madhya Pradesh and Maharashtra
4.	Ravi and Beas Water Disputes Tribunal	1986	Punjab, Haryana and Rajasthan
5.	Cauvery Water Disputes Tribunal	1990	Karnataka, Kerala, Tamil Nadu and Puducherry
6.	Krishna Water Disputes Tribunal-II	2004	Maharashtra, Karnataka and Andhra Pradesh
7.	Vansadhara Water Disputes Tribunal	2010	Odisha and Andhra Pradesh
8.	Mahadayi Water Disputes Tribunal	2010	Goa, Karnataka and Maharashtra
9.	Mahanadi Water Disputes Tribunal	2018	Odisha and Chhattisgarh

INTER-STATE COUNCILS

Article 263 contemplates the establishment of an Inter-State Council to effect coordination between the states and between Centre and states. Thus, the President can establish such a council if at any time it appears to him that the public interest would be served by its establishment. He can define the nature of duties to be performed by such a council and its organisation and procedure.

Even though the president is empowered to define the duties of an inter-state council, Article 263 specifies the duties that can be assigned to it in the following manner:

(a) enquiring into and advising upon disputes which may arise between states;
(b) investigating and discussing subjects in which the states or the Centre and the states have a common interest; and
(c) making recommendations upon any such subject, and particularly for the better co-ordination of policy and action on it.

"The council's function to enquire and advice upon inter-state disputes is complementary to the Supreme Court's jurisdiction under Article 131 to decide a legal controversy between the governments. The Council can deal with any controversy whether legal or non-legal, but its function is advisory unlike that of the court which gives a binding decision."[2]

Under the above provisions of Article 263, the president has established the following councils to make recommendations for the better coordination of policy and action in the related subjects:

- Central Council of Health and Family Welfare.
- Central Council of Local Government[3]
- Four Regional Councils for Sales Tax for the Northern, Eastern, Western and Southern Zones.[4]

Establishment of Inter-State Council

The Sarkaria Commission on Centre-State Relations (1983–88) made a strong case for the establishment of a permanent Inter-State Council under Article 263 of the Constitution. It recommended that in order to differentiate the Inter-State Council from other bodies established under the same Article 263, it must be called as the Inter-Governmental Council. The Commission recommended that

the Council should be charged with the duties laid down in clauses (b) and (c) of Article 263 (see above).

In pursuance of the above recommendations of the Sarkaria Commission, **the Janata Dal Government headed by V. P. Singh established the Inter-State Council in 1990**.[5] It consists of the following members:

(i) Prime minister as the Chairman
(ii) Chief ministers of all the states
(iii) Chief ministers of union territories having legislative assemblies
(iv) Administrators of union territories not having legislative assemblies
(v) Governors of States under President's rule
(vi) Six Central cabinet ministers, including the home minister, to be nominated by the Prime Minister.

Five Ministers of Cabinet rank / Minister of State (independent charge) nominated by the Chairman of the Council (i.e., Prime Minister) are permanent invitees to the Council.

The council is a recommendatory body on issues relating to inter-state, Centre-state and Centre-union territories relations. It aims at promoting coordination between them by examining, discussing and deliberating on such issues. Its duties, in detail, are as follows:

- investigating and discussing such subjects in which the states or the centre have a common interest;
- making recommendations upon any such subject for the better coordination of policy and action on it; and
- deliberating upon such other matters of general interest to the states as may be referred to it by the chairman.

The Council may meet at least thrice in a year. Its meetings are held in camera and all questions are decided by consensus.

There is also a Standing Committee of the Council. It was set up in 1996 for continuous consultation and processing of matters for the consideration of the Council. It consists of the following members:

(i) Union Home Minister as the Chairman
(ii) Five Union Cabinet Ministers
(iii) Nine Chief Ministers

The Council is assisted by a secretariat called the Inter-State Council Secretariat. This secretariat was set-up in 1991 and is headed by a secretary to the Government of India. Since 2011, it is also functioning as the secretariat of the Zonal Councils.

PUBLIC ACTS, RECORDS AND JUDICIAL PROCEEDINGS

Under the Constitution, the jurisdiction of each state is confined to its own territory. Hence, it is possible that the acts and records of one state may not be recognised in another state. To remove any such difficulty, the Constitution contains the “Full Faith and Credit” clause which lays down the following:

(i) Full faith and credit is to be given throughout the territory of India to public acts, records and judicial proceedings of the Centre and every state. The expression ‘public acts’ includes both legislative and executive acts of the government. The expression ‘public record’ includes any official book, register or record made by a public servant in the discharge of his official duties.

(ii) The manner in which and the conditions under which such acts, records and proceedings are to be proved and their effect determined would be as provided by the laws of Parliament. This means that the general rule mentioned above is subject to the power of Parliament to lay down the mode of proof as well as the effect of such acts, records and proceedings of one state in another state.

(iii) Final judgements and orders of civil courts in any part of India are capable of execution anywhere within India (without the necessity of a fresh suit upon the judgement). The rule applies only to civil judgements and not to criminal judgements. In other words, it does not require the courts of a state to enforce the penal laws of another state.

INTER-STATE TRADE AND COMMERCE

Articles 301 to 307 in Part XIII of the Constitution deal with the trade, commerce and intercourse within the territory of India.

Article 301 declares that trade, commerce and intercourse throughout the territory of India shall be free. The object of this provision is to break down the border barriers between the states and to create one unit with a view to encourage the free flow of trade, commerce and intercourse in the country. The freedom under this provision is not confined to interstate trade, commerce and intercourse but also extends to intra-state trade, commerce and intercourse. Thus, Article 301 will be violated whether restrictions are imposed at the frontier of any state or at any prior or subsequent stage.

The freedom guaranteed by Article 301 is a freedom from all restrictions, except those which are provided for in the other provisions (Articles 302 to 305) of Part XIII of the Constitution itself. These are explained below:

(i) Parliament can impose restrictions on the freedom of trac commerce and intercourse between the states or within a sta in public interest.[6] But, the Parliament cannot give preference one state over another or discriminate between the stat except in the case of scarcity of goods in any part of India.

(ii) The legislature of a state can impose reasonable restrictions the freedom of trade, commerce and intercourse with that sta or within that state in public interest. But, a bill for this purpo can be introduced in the legislature only with the previo sanction of the president. Further, the state legislature canr give preference to one state over another or discrimina between the states.

(iii) The legislature of a state can impose on goods imported fr other states or the union territories any tax to which simi goods manufactured in that state are subject. This provisi prohibits the imposition of discriminatory taxes by the state.

(iv) The freedom (under Article 301) is subject to the nationalisati laws (i.e., laws providing for monopolies in favour of the Cen or the states). Thus, the Parliament or the state legislature c make laws for the carrying on by the respective government

any trade, business, industry or service, whether to t exclusion, complete or partial, of citizens or otherwise.

The Parliament can appoint an appropriate authority for carrying out the purposes of the above provisions relating to the freedom of trade, commerce and intercourse and restrictions on it. The Parliament can also confer on that authority the necessary powers and duties. But, no such authority has been appointed so far.[7]

ZONAL COUNCILS

The Zonal Councils are the statutory (and not the constitutional) bodies. They are established by an Act of the Parliament, that is, States Reorganisation Act of 1956. The act divided the country into five zones (Northern, Central, Eastern, Western and Southern) and provided a zonal council for each zone.

While forming these zones, several factors have been taken into account which include: the natural divisions of the country, the river systems and means of communication, the cultural and linguistic affinity and the requirements of economic development, security and law and order.

Each zonal council consists of the following members: **(a)** home minister of Central government. **(b)** chief ministers of all the States in the zone. **(c)** Two other ministers from each state in the zone. **(d)** Administrator of each union territory in the zone.

Besides, the following persons can be associated with the zonal council as advisors (i.e., without the right to vote in the meetings):

(i) a person nominated by the Planning Commission; **(ii)** chief secretary of the government of each state in the zone; and **(iii)** development commissioner of each state in the zone.

The home minister of Central government is the common chairman of the five zonal councils. Each chief minister acts as a vice-chairman of the council by rotation, holding office for a period of one year at a time.

The zonal councils aim at promoting cooperation and coordination between states, union territories and the Centre. They discuss and make recommendations regarding matters like economic and social planning, linguistic minorities, border disputes, interstate transport, and so on. They are only deliberative and advisory bodies.

The objectives (or the functions) of the zonal councils, in detail, are as follows:

- To achieve an emotional integration of the country.
- To help in arresting the growth of acute state-consciousness, regionalism, lingu-ism and particularistic trends.
- To help in removing the after-effects of separation in some cases so that the process of reorganisation, integration and economic advancement may synchronise.

- To enable the Centre and states to cooperate with each other in social and economic matters and exchange ideas and experience in order to evolve uniform policies.
- To cooperate with each other in the successful and speedy execution of major development projects.
- To secure some kind of political equilibrium between different regions of the country.

North-Eastern Council In addition to the above Zonal Councils, a North-Eastern Council was created by a separate Act of Parliament–the North-Eastern Council Act of 1971.[8] Its members include Assam, Manipur, Mizoram, Arunchal Pradesh, Nagaland, Meghalaya, Tripura and Sikkim.[9] Its functions are similar to those of the zonal councils, but with few additions. It has to formulate a unified and coordinated regional plan covering matters of common importance. It has to review from time to time the measures taken by the member states for the maintenance of security and public order in the region.

Table 15.2 *Zonal Councils at a Glance*

Name	Members	Headquarters
1. Northern Zonal Council	Himachal Pradesh, Haryana, Punjab, Rajasthan, Delhi, Chandigarh, Jammu and Kashmir and Ladakh	New Delhi
2. Central Zonal Council	Uttar Pradesh, Uttarakhand, Chhattisgarh, and Madhya Pradesh	Allahabad
3. Eastern Zonal Council	Bihar, Jharkhand, West Bengal and Odisha	Kolkata
4. Western Zonal Council	Gujarat, Maharastra, Goa, Dadra and Nagar Haveli and Daman and Diu	Mumbai
5. Southern Zonal Council	Andhra Pradesh, Telangana, Karnataka, Tamil Nadu, Kerala and Puducherry	Chennai

Table 15.3 *Articles Related to Inter-State Relations at a Glance*

Article No.	Subject Matter

Mutual Recognition of Public Acts, etc.	
261.	Public acts, records and judicial proceedings
Disputes Relating to Waters	
262.	Adjudication of disputes relating to waters of inter-state rivers or river valleys
Co-ordination between States	
263.	Provisions with respect to an inter-state council
Inter-State Trade and Commerce	
301.	Freedom of trade, commerce and intercourse
302.	Power of Parliament to impose restrictions on trade, commerce and intercourse
303.	Restrictions on the legislative powers of the Union and of the states with regard to trade and commerce
304.	Restrictions on trade, commerce and intercourse among states
305.	Saving of existing laws and laws providing for state monopolies
306.	Power of certain states in Part B of the First Schedule to impose restrictions on trade and commerce (Repealed)
307.	Appointment of authority for carrying out the purposes of Articles 301 to 304

NOTES AND REFERENCES

1. Report of the Joint Parliamentary Committee. Select Committee of the House of Lords appointed to join with a Committee of the House of Commons to consider the future Government of India.
2. M.P. Jain: *Indian Constitutional Law*, Wadhwa, Fourth Edition, P. 382.
3. It was originally known as the Central Council of Local Self-Government (1954).

4. The Central Council of Indian Medicine and the Central Council of Homoeopathy were set up under the Acts of Parliament.
5. The Inter-State Council Order dated May 28, 1990.
6. For example, the Parliament has made the Essential Commodities Act (1955). This Act enables the Central government to control the production, supply and distribution of certain essential commodities like petroleum, coal, iron and steel and so on.
7. In USA such authority is known as the Inter-State Commerce Commission.
8. It came into existence on August 8, 1972.
9. In 2002, Sikkim was added as the eighth member of the North-Eastern Council.

16 Emergency Provisions

The Emergency provisions are contained in Part XVIII of the Constitution, from Articles 352 to 360. These provisions enable the Central government to meet any abnormal situation effectively. The rationality behind the incorporation of these provisions in the Constitution is to safeguard the sovereignty, unity, integrity and security of the country, the democratic political system, and the Constitution.

During an Emergency, the Central government becomes all powerful and the states go into the total control of the Centre. It converts the federal structure into a unitary one without a formal amendment of the Constitution. This kind of transformation of the political system from federal during normal times to unitary during Emergency is a unique feature of the Indian Constitution. In this context, Dr. B.R. Ambedkar observed in the Constituent Assembly that[1] :

> 'All federal systems including American are placed in a tight mould of federalism. No matter what the circumstances, it cannot change its form and shape. It can never be unitary. On the other hand, the Constitution of India can be both unitary as well as federal according to the requirements of time and circumstances. In normal times, it is framed to work as a federal system. But in times of Emergency, it is so designed as to make it work as though it was a unitary system.'

The Constitution stipulates three types of emergencies:

1. An emergency due to war, external aggression or armed rebellion[2] (Article 352). This is popularly known as 'National Emergency'. However, the Constitution employs the expression 'proclamation of emergency' to denote an emergency of this type.
2. An Emergency due to the failure of the constitutional machinery in the states (Article 356). This is popularly known as 'President's Rule'. It is also known by two other

names–‘State Emergency’ or ‘constitutional Emergency’. However, the Constitution does not use the word ‘emergency’ for this situation.

3. Financial Emergency due to a threat to the financial stability or credit of India (Article 360).

NATIONAL EMERGENCY

Grounds of Declaration

Under Article 352, the President can declare a national emergency when the security of India or a part of it is threatened by war or external aggression or armed rebellion. It may be noted that the president can declare a national emergency even before the actual occurrence of war or external aggression or armed rebellion, if he is satisfied that there is an imminent danger.

The President can also issue different proclamations on grounds of war, external aggression, armed rebellion, or imminent danger thereof, whether or not there is a proclamation already issued by him and such proclamation is in operation. This provision was added by the 38th Amendment Act of 1975.

When a national emergency is declared on the ground of 'war' or 'external aggression', it is known as 'External Emergency'. On the other hand, when it is declared on the ground of 'armed rebellion', it is known as 'Internal Emergency'.

A proclamation of national emergency may be applicable to the entire country or only a part of it. The 42nd Amendment Act of 1976 enabled the president to limit the operation of a National Emergency to a specified part of India.

Originally, the Constitution mentioned 'internal disturbance' as the third ground for the proclamation of a National Emergency, but the expression was too vague and had a wider connotation. Hence, the 44th Amendment Act of 1978 substituted the words 'armed rebellion' for 'internal disturbance'. Thus, it is no longer possible to declare a National Emergency on the ground of 'internal disturbance' as was done in 1975 by the Congress government headed by Indira Gandhi.

The President, however, can proclaim a national emergency only after receiving a written recommendation from the cabi-net[3]. This means that the emergency can be declared only on the concurrence of the cabinet and not merely on the advice of the prime minister. In 1975, the then Prime Minister, Indira Gandhi advised the president to proclaim emergency without consulting

her cabinet. The cabinet was informed of the proclamation after it was made, as a *fait accompli.* The 44th Amendment Act of 1978 introduced this safeguard to eliminate any possibility of the prime minister alone taking a decision in this regard.

The 38th Amendment Act of 1975 made the declaration of a National Emergency immune from the judicial review. But, this provision was subsequently deleted by the 44th Amendment Act of 1978. Further, in the *Minerva Mills* case[4] *,* (1980), the Supreme Court held that the proclamation of a national emergency can be challenged in a court on the ground of malafide or that the declaration was based on wholly extraneous and irrelevant facts or is absurd or perverse.

Parliamentary Approval and Duration

The proclamation of Emergency must be approved by both the Houses of Parliament within one month from the date of its issue. Originally, the period allowed for approval by the Parliament was two months, but was reduced by the 44th Amendment Act of 1978. However, if the proclamation of emergency is issued at a time when the Lok Sabha has been dissolved or the dissolution of the Lok Sabha takes place during the period of one month without approving the proclamation, then the proclamation survives until 30 days from the first sitting of the Lok Sabha after its reconstitution, provided the Rajya Sabha has in the meantime approved it.

If approved by both the Houses of Parliament, the emergency continues for six months, and can be extended to an indefinite period with an approval of the Parliament for every six months. This provision for periodical parliamentary approval was also added by the 44th Amendment Act of 1978. Before that, the emergency, once approved by the Parliament, could remain in operation as long as the Executive (cabinet) desired. However, if the dissolution of the Lok Sabha takes place during the period of six months without approving the further continuance of Emergency, then the proclamation survives until 30 days from the first sitting of the Lok Sabha after its reconstitution, provided the Rajya Sabha has in the mean-time approved its continuation.

Every resolution approving the proclamation of emergency or its continuance must be passed by either House of Parliament by a special majority, that is,

(a) a majority of the total membership of that house, and (b) a majority of not less than two-thirds of the members of that house present and voting. This special majority provision was introduced by the 44th Amendment Act of 1978. Previously, such resolution could be passed by a simple majority of the Parliament.

Revocation of Proclamation

A proclamation of emergency may be revoked by the President at any time by a subsequent proclamation. Such a proclamation does not require the parliamentary approval.

Further, the President must revoke a proclamation if the Lok Sabha passes a resolution disapproving its continuation. Again, this safeguard was introduced by the 44th Amendment Act of 1978. Before the amendment, a proclamation could be revoked by the president on his own and the Lok Sabha had no control in this regard.

The 44th Amendment Act of 1978 also provided that, where one-tenth of the total number of members of the Lok Sabha give a written notice to the Speaker (or to the president if the House is not in session), a special sitting of the House should be held within 14 days for the purpose of considering a resolution disapproving the continuation of the proclamation.

A resolution of disapproval is different from a resolution approving the continuation of a proclamation in the following two respects:

1. The first one is required to be passed by the Lok Sabha only, while the second one needs to be passed by the both Houses of Parliament.
2. The first one is to be adopted by a simple majority only, while the second one needs to be adopted by a special majority.

Effects of National Emergency

A proclamation of Emergency has drastic and wide ranging effects on the political system. These consequences can be grouped into three categories:

1. Effect on the Centre-state relations,
2. Effect on the life of the Lok Sabha and State assembly, and
3. Effect on the Fundamental Rights.

Effect on the Centre-State Relations

While a proclamation of Emergency is in force, the normal fabric of the Centre-state relations undergoes a basic change. This can be studied under three heads, namely, executive, legislative and financial.

(a) Executive During a national emergency, the executive power of the Centre extends to directing any state regarding the manner in which its executive power is to be exercised. In normal times, the Centre can give executive directions to a state only on certain specified matters. However, during a national emergency, the Centre becomes entitled to give executive directions to a state on 'any' matter. Thus, the state governments are brought under the complete control of the Centre, though they are not suspended.

(b) Legislative During a national emergency, the Parliament becomes empowered to make laws on any subject mentioned in the State List. Although the legislative power of a state legislature is not suspended, it becomes subject to the overriding power of the Parliament. Thus, the normal distribution of the legislative powers between the Centre and states is suspended, though the state Legislatures are not suspended. In brief, the Constitution becomes unitary rather than federal.

The laws made by Parliament on the state subjects during a National Emergency become inoperative six months after the emergency has ceased to operate.

Notably, while a proclamation of national emergency is in operation, the President can issue ordinances on the state subjects also, if the Parliament is not in session.

Further, the Parliament can confer powers and impose duties upon the Centre or its officers and authorities in respect of matters outside the Union List, in order to carry out the laws made by it

under its extended jurisdiction as a result of the proclamation of a National Emergency.

The 42nd Amendment Act of 1976 provided that the two consequences mentioned above (executive and legislative) extends not only to a state where the Emergency is in operation but also to any other state.

(c) Financial While a proclamation of national emergency is in operation, the President can modify the constitutional distribution of revenues between the centre and the states. This means that the president can either reduce or cancel the transfer of finances from Centre to the states. Such modification continues till the end of the financial year in which the Emergency ceases to operate. Also, every such order of the President has to be laid before both the Houses of Parliament.

Effect on the Life of the Lok Sabha and State Assembly

While a proclamation of National Emergency is in operation, the life of the Lok Sabha may be extended beyond its normal term (five years) by a law of Parliament for one year at a time (for any length of time). However, this extension cannot continue beyond a period of six months after the emergency has ceased to operate. For example, the term of the Fifth Lok Sabha (1971–1977) was extended two times by one year at a time[5] .

Similarly, the Parliament may extend the normal tenure of a state legislative assembly (five years) by one year each time (for any length of time) during a national emergency, subject to a maximum period of six months after the Emergency has ceased to operate.

Effect on the Fundamental Rights

Articles 358 and 359 describe the effect of a National Emergency on the Fundamental Rights. Article 358 deals with the suspension of the Fundamental Rights guaranteed by Article 19, while Article 359 deals with the suspension of other Fundamental Rights (except those guaranteed by Articles 20 and 21). These two provisions are explained below:

(a) Suspension of Fundamental Rights under Article 19

According to Article 358, when a proclamation of national emergency is made, the six Fundamental Rights under Article 19 are automatically suspended. No separate order for their suspension is required.

While a proclamation of national emergency is in operation, the state is freed from the restrictions imposed by Article 19. In other words, the state can make any law or can take any executive action abridging or taking away the six Fundamental Rights guaranteed by Article 19. Any such law or executive action cannot be challenged on the ground that they are inconsistent with the six Fundamental Rights guaranteed by Article 19. When the National Emergency ceases to operate, Article 19 automatically revives and comes into force. Any law made during Emergency, to the extent of inconsistency with Article 19, ceases to have effect. However, no remedy lies for anything done during the Emergency even after the Emergency expires. This means that the legislative and executive actions taken during the emergency cannot be challenged even after the Emergency ceases to operate.

The 44th Amendment Act of 1978 restricted the scope of Article 358 in two ways. Firstly, the six Fundamental Rights under Article 19 can be suspended only when the National Emergency is declared on the ground of war or external aggression and not on the ground of armed rebellion. Secondly, only those laws which are related with the Emergency are protected from being challenged and not other laws. Also, the executive action taken only under such a law is protected.

(b) Suspension of other Fundamental Rights

Article 359 authorises the president to suspend the right to move any court for the enforcement of Fundamental Rights during a National Emergency. This means that under Article 359, the Fundamental Rights as such are not suspended, but only their enforcement. The said rights are theoretically alive but the right to seek remedy is suspended. The suspension of enforcement relates to only those Fundamental Rights that are specified in the Presidential Order. Further, the suspension could be for the period during the operation of emergency or for a shorter period as mentioned in the order, and the suspension order may extend to

the whole or any part of the country. It should be laid before each House of Parliament for approval.

While a Presidential Order is in force, the State can make any law or can take any executive action abridging or taking away the specified Fundamental Rights. Any such law or executive action cannot be challenged on the ground that they are inconsistent with the specified Fundamental Rights. When the Order ceases to operate, any law so made, to the extent of inconsistency with the specified Fundamental Rights, ceases to have effect. But no remedy lies for anything done during the operation of the order even after the order ceases to operate. This means that the legislative and executive actions taken during the operation of the Order cannot be challenged even after the Order expires.

The 44th Amendment Act of 1978 restricted the scope of Article 359 in two ways. Firstly, the President cannot suspend the right to move the Court for the enforcement of fundamental rights guaranteed by Articles 20 to 21. In other words, the right to protection in respect of conviction for offences (Article 20) and the right to life and personal liberty (Article 21) remain enforceable even during emergency. Secondly, only those laws which are related with the emergency are protected from being challenged and not other laws and the executive action taken only under such a law, is protected.

Distinction Between Articles 358 and 359

The differences between Articles 358 and 359 can be summarised as follows:

1. Article 358 is confined to Fundamental Rights under Article 19 only whereas Article 359 extends to all those Fundamental Rights whose enforcement is suspended by the Presidential Order.
2. Article 358 automatically suspends the fundamental rights under Article 19 as soon as the emergency is declared. On the other hand, Article 359 does not automatically suspend any Fundamental Right. It only empowers the president to suspend the enforcement of the specified Fundamental Rights.

3. Article 358 operates only in case of External Emergency (that is, when the emergency is declared on the grounds of war or external aggression) and not in the case of Internal Emergency (ie, when the Emergency is declared on the ground of armed rebellion). Article 359, on the other hand, operates in case of both External Emergency as well as Internal Emergency.
4. Article 358 suspends Fundamental Rights under Article 19 for the entire duration of Emergency while Article 359 suspends the enforcement of Fundamental Rights for a period specified by the president which may either be the entire duration of Emergency or a shorter period.
5. Article 358 extends to the entire country whereas Article 359 may extend to the entire country or a part of it.
6. Article 358 suspends Article 19 completely while Article 359 does not empower the suspension of the enforcement of Articles 20 and 21.
7. Article 358 enables the State to make any law or take any executive action inconsistent with Fundamental Rights under Article 19 while Article 359 enables the State to make any law or take any executive action inconsistent with those Fundamental Rights whose enforcement is suspended by the Presidential Order.

There is also a similarity between Article 358 and Article 359. Both provide immunity from challenge to only those laws which are related with the Emergency and not other laws. Also, the executive action taken only under such a law is protected by both.

Declarations Made So Far

This type of Emergency has been proclaimed three times so far– in 1962, 1971 and 1975.

The first proclamation of National Emergency was issued in October 1962 on account of Chinese aggression in the NEFA (North-East Frontier Agency–now Arunachal Pradesh), and was in force till January 1968. Hence, a fresh proclamation was not needed at the time of war against Pakistan in 1965.

The second proclamation of national emergency was made in December 1971 in the wake of attack by Pakistan. Even when this

Emergency was in operation, a third proclamation of National Emergency was made in June 1975. Both the second and third proclamations were revoked in March 1977.

The first two proclamations (1962 and 1971) were made on the ground of ‘external aggression’, while the third proclamation (1975) was made on the ground of ‘internal disturbance’, that is, certain persons have been inciting the police and the armed forces against the discharge of their duties and their normal functioning.

The Emergency declared in 1975 (internal emergency) proved to be the most controversial. There was widespread criticism of the misuse of Emergency powers. In the elections held to the Lok Sabha in 1977 after the Emergency, the Congress Party led by Indira Gandhi lost and the Janta Party came to power. This government appointed the Shah Commission to investigate the circumstances that warranted the declaration of an Emergency in 1975. The commission did not justify the declaration of the Emergency. Hence, the 44th Amendment Act was enacted in 1978 to introduce a number of safeguards against the misuse of Emergency provisions.

PRESIDENT'S RULE

Grounds of Imposition

Article 355 imposes a duty on the Centre to ensure that the government of every state is carried on in accordance with the provisions of the Constitution. It is this duty in the performance of which the Centre takes over the government of a state under Article 356 in case of failure of constitutional machinery in state. This is popularly known as 'President's Rule'. It is also known as 'State Emergency' or 'Constitutional Emergency'.

The President's Rule can be proclaimed under Article 356 on two grounds–one mentioned in Article 356 itself and another in Article 365:

1. Article 356 empowers the President to issue a proclamation, if he is satisfied that a situation has arisen in which the government of a state cannot be carried on in accordance with the provisions of the Constitution. Notably, the president can act either on a report of the governor of the state or otherwise too (ie, even without the governor's report).
2. Article 365 says that whenever a state fails to comply with or to give effect to any direction from the Centre, it will be lawful for the president to hold that a situation has arisen in which the government of the state cannot be carried on in accordance with the provisions of the Constitution.

Parliamentary Approval and Duration

A proclamation imposing President's Rule must be approved by both the Houses of Parliament within two months from the date of its issue. However, if the proclamation of President's Rule is issued at a time when the Lok Sabha has been dissolved or the dissolution of the Lok Sabha takes place during the period of two months without approving the proclamation, then the proclamation survives until 30 days from the first sitting of the Lok Sabha after its reconstitution, provided the Rajya Sabha approves it in the mean time.

If approved by both the Houses of Parliament, the President's Rule continues for six months[6]. It can be extended for a maximum period of three years[7] with the approval of the Parliament, every six months. However, if the dissolution of the Lok Sabha takes place during the period of six months without approving the further continuation of the President's Rule, then the proclamation survives until 30 days from the first sitting of the Lok Sabha after its reconstitution, provided the Rajya Sabha has in the meantime approved its continuance.

Every resolution approving the proclamation of President's Rule or its continuation can be passed by either House of Parliament only by a simple majority, that is, a majority of the members of that House present and voting.

The 44th Amendment Act of 1978 introduced a new provision to put restraint on the power of Parliament to extend a proclamation of President's Rule beyond one year. Thus, it provided that, beyond one year, the President's Rule can be extended by six months at a time only when the following two conditions are fulfilled:

1. a proclamation of National Emergency should be in operation in the whole of India, or in the whole or any part of the state; and
2. the Election Commission must certify that the general elections to the legislative assembly of the concerned state cannot be held on account of difficulties.

A proclamation of President's Rule may be revoked by the President at any time by a subsequent proclamation. Such a proclamation does not require the parliamentary approval.

Consequences of President's Rule

The President acquires the following extraordinary powers when the President's Rule is imposed in a state:

1. He can take up the functions of the state government and powers vested in the governor or any other executive authority in the state.
2. He can declare that the powers of the state legislature are to be exercised by the Parliament.

3. He can take all other necessary steps including the suspension of the constitutional provisions relating to any body or authority in the state.

Therefore, when the President's Rule is imposed in a state, the President dismisses the state council of ministers headed by the chief minister. The state governor, on behalf of the President, carries on the state administration with the help of the chief secretary of the state or the advisors appointed by the President. This is the reason why a proclamation under Article 356 is popularly known as the imposition of 'President's Rule' in a state. Further, the President either suspends or dissolves the state legislative assembly[8]. The Parliament passes the state legislative bills and the state budget.

When the state legislature is thus suspended or dissolved:

1. the Parliament can delegate the power to make laws for the state to the President or to any other authority specified by him in this regard,
2. the Parliament or in case of delegation, the President or any other specified authority can make laws conferring powers and imposing duties on the Centre or its officers and authorities,
3. the President can authorise, when the Lok Sabha is not in session, expenditure from the state consolidated fund pending its sanction by the Parliament, and
4. the President can promulgate, when the Parliament is not in session, ordinances for the governance of the state.

A law made by the Parliament or president or any other specified authority continues to be operative even after the President's Rule. This means that the period for which such a law remains in force is not coterminous with the duration of the proclamation. But it can be repealed or altered or re-enacted by the state legislature.

It should be noted here that the President cannot assume to himself the powers vested in the concerned state high court or suspend the provisions of the Constitution relating to it. In other words, the constitutional position, status, powers and functions of the concerned state high court remain same even during the President's Rule.

Use of Article 356

Since 1950, the President's Rule has been imposed on more than 125 occasions, that is, on an average twice a year. Further, on a number of occasions, the President's Rule has been imposed in an arbitrary manner for political or personal reasons. Hence, Article 356 has become one of the most controversial and most criticised provision of the Constitution.

Table 16.1 *Comparing National Emergency and President's Rule*

National Emergency (Article 352)	President's Rule (Article 356)
1. It can be proclaimed only when the security of India or a part of it is threatened by war, external aggression or armed rebellion.	1. It can be proclaimed when the government of a state cannot be carried on in accordance with the provisions of the Constitution due to reasons which may not have any connection with war, external aggression or armed rebellion.
2. During its operation, the state executive and legislature continue to function and exercise the powers assigned to them under the Constitution. Its effect is that the Centre gets concurrent powers of administration and legislation in the state.	2. During its operation, the state executive is dismissed and the state legislature is either suspended or dissolved. The president administers the state through the governor and the Parliament makes laws for the state. In brief, the executive and legislative powers of the state are assumed by the Centre.
3. Under this, the Parliament can make laws on the	3. Under this, the Parliament can delegate the power to

subjects enumerated in the State List only by itself, that is, it cannot delegate the same to any other body or authority.	make laws for the state to the President or to any other authority specified by him. So far, the practice has been for the president to make laws for the state in consultation with the members of Parliament from that state. Such laws are known as President's Acts.
4. There is no maximum period prescribed for its operation. It can be continued indefinitely with the approval of Parliament for every six months.	4. There is a maximum period prescribed for its operation, that is, three years. Thereafter, it must come to an end and the normal constitutional machinery must be restored in the state.
5. Under this, the relationship of the Centre with all the states undergoes a modification.	5. Under this, the relationship of only the state under emergency with the Centre undergoes a modification.
6. Every resolution of Parliament approving its proclamation or its continuance must be passed by a special majority.	6. Every resolution of Parliament approving its proclamation or its continuance can be passed only by a simple majority.
7. It affects fundamental rights of the citizens.	7. It has no effect on Fundamental Rights of the citizens.
8. Lok Sabha can pass a resolution for its revocation.	8. There is no such provision. It can be revoked by the President only on his own.

For the first time, the President's Rule was imposed in Punjab in 1951. By now, all most all the states have been brought under the President's Rule, once or twice or more. The details in this regard are given in Table 16.2 at the end of this chapter.

When general elections were held to the Lok Sabha in 1977 after the internal emergency, the ruling Congress Party lost and the Janta Party came to power. The new government headed by Morarji Desai imposed President's Rule in nine states[9] (where the Congress Party was in power) on the ground that the assemblies in those states no longer represented the wishes of the electorate. When the Congress Party returned to power in 1980, it did the same in nine states[10] on the same ground.

In 1992, President's Rule was imposed in three BJP-ruled states (Madhya Pradesh, Himachal Pradesh and Rajasthan) by the Congress Party on the ground that they were not implementing sincerely the ban imposed by the Centre on religious organisations. In a landmark judgement in *Bommai* case[11] (1994), the Supreme Court upheld the validity of this proclamation on the ground that secularism is a 'basic feature' of the Constitution. But, the court did not uphold the validity of the imposition of the President's Rule in Nagaland in 1988, Karnataka in 1989 and Meghalaya in 1991.

Dr. B.R. Ambedkar, while replying to the critics of this provision in the Constituent Assembly, hoped that the drastic power conferred by Article 356 would remain a 'deadletter' and would be used only as a measure of last resort. He observed[12] :

> "The intervention of the Centre must be deemed to be barred, because that would be an invasion on the sovereign authority of the province (state). That is a fundamental proposition which we must accept by reason of the fact that we have a Federal Constitution. That being so, if the Centre is to interfere in the administration of provincial affairs, it must be under some obligation which the Constitution imposes upon the Centre. The proper thing we ought to expect is that such Articles will never be called into operation and that they would remain a dead-letter. If at all they are brought into operation, I hope the President who is endowed with this power will take proper

precautions before actually suspending the administration of the province."

However, the subsequent events show that what was hoped to be a 'dead-letter' of the Constitution has turned to be a 'deadly-weapon' against a number of state governments and legislative assemblies. In this context, H.V. Kamath, a member of the Constituent Assembly commented a decade ago: 'Dr. Ambedkar is dead and the Articles are very much alive'.

Scope of Judicial Review

The 38th Amendment Act of 1975 made the satisfaction of the President in invoking Article 356 final and conclusive which could not be challenged in any court on any ground. But, this provision was subsequently deleted by the 44th Amendment Act of 1978 implying that the satisfaction of the President is not beyond judicial review.

In *Bommai* case (1994), the following propositions have been laid down by the Supreme Court on imposition of President's Rule in a state under Article 356:

1. The presidential proclamation imposing President's Rule is subject to judicial review.
2. The satisfaction of the President must be based on relevant material. The action of the president can be struck down by the court if it is based on irrelevant or extraneous grounds or if it was found to be malafide or perverse.
3. Burden lies on the Centre to prove that relevant material exist to justify the imposition of the President's Rule.
4. The court cannot go into the correctness of the material or its adequacy but it can see whether it is relevant to the action.
5. If the court holds the presidential proclamation to be unconstitutional and invalid, it has power to restore the dismissed state government and revive the state legislative assembly if it was suspended or dissolved.
6. The state legislative assembly should be dissolved only after the Parliament has approved the presidential proclamation. Until such approval is given, the president can only suspend

the assembly. In case the Parliament fails to approve the proclamation, the assembly would get reactivated.

7. Secularism is one of the 'basic features' of the Constitution. Hence, a state government pursuing anti-secular politics is liable to action under Article 356.
8. The question of the state government losing the confidence of the legislative assembly should be decided on the floor of the House and until that is done the ministry should not be unseated.
9. Where a new political party assumes power at the Centre, it will not have the authority to dismiss ministries formed by other parties in the states.
10. The power under Article 356 is an exceptional power and should be used only occassionally to meet the requirements of special situations.

Cases of Proper and Improper Use

Based on the report of the Sarkaria Commission on Centre-state Relations (1988), the Supreme Court in *Bommai* case (1994) enlisted the situations where the exercise of power under Article 356 could be proper or improper[13] .

Imposition of President's Rule in a state would be proper in the following situations:

1. Where after general elections to the assembly, no party secures a majority, that is, 'Hung Assembly'.
2. Where the party having a majority in the assembly declines to form a ministry and the governor cannot find a coalition ministry commanding a majority in the assembly.
3. Where a ministry resigns after its defeat in the assembly and no other party is willing or able to form a ministry commanding a majority in the assembly.
4. Where a constitutional direction of the Central government is disregarded by the state government.
5. Internal subversion where, for example, a government is deliberately acting against the Constitution and the law or is fomenting a violent revolt.
6. Physical breakdown where the government wilfully refuses to discharge its constitutional obligations endangering the

security of the state.

The imposition of President's Rule in a state would be improper under the following situations:

1. Where a ministry resigns or is dismissed on losing majority support in the assembly and the governor recommends imposition of President's Rule without probing the possibility of forming an alternative ministry.
2. Where the governor makes his own assessment of the support of a ministry in the assembly and recommends imposition of President's Rule without allowing the ministry to prove its majority on the floor of the Assembly.
3. Where the ruling party enjoying majority support in the assembly has suffered a massive defeat in the general elections to the Lok Sabha such as in 1977 and 1980.
4. Internal disturbances not amounting to internal subversion or physical breakdown.
5. Maladministration in the state or allegations of corruption against the minis-tryor stringent financial exigencies of the state.
6. Where the state government is not given prior warning to rectify itself except in case of extreme urgency leading to disastrous consequences.
7. Where the power is used to sort out intraparty problems of the ruling party, or for a purpose extraneous or irrelevant to the one for which it has been conferred by the Constitution.

FINANCIAL EMERGENCY

Grounds of Declaration

Article 360 empowers the president to proclaim a Financial Emergency if he is satisfied that a situation has arisen due to which the financial stability or credit of India or any part of its territory is threatened.

The 38th Amendment Act of 1975 made the satisfaction of the president in declaring a Financial Emergency final and conclusive and not questionable in any court on any ground. But, this provision was subsequently deleted by the 44th Amendment Act of 1978 implying that the satisfaction of the president is not beyond judicial review.

Parliamentary Approval and Duration

A proclamation declaring financial emergency must be approved by both the Houses of Parliament within two months from the date of its issue. However, if the proclamation of Financial Emergency is issued at a time when the Lok Sabha has been dissolved or the dissolution of the Lok Sabha takes place during the period of two months without approving the proclamation, then the proclamation survives until 30 days from the first sitting of the Lok Sabha after its reconstitution, provided the Rajya Sabha has in the meantime approved it.

Once approved by both the Houses of Parliament, the Financial Emergency continues indefinitely till it is revoked. This implies two things:

1. there is no maximum period prescribed for its operation; and
2. repeated parliamentary approval is not required for its continuation.

A resolution approving the proclamation of financial emergency can be passed by either House of Parliament only by a simple majority, that is, a majority of the members of that house present and voting.

A proclamation of Financial Emergency may be revoked by the president at anytime by a subsequent proclamation. Such a proclamation does not require the parliamentary approval.

Effects of Financial Emergency

The consequences of the proclamation of a Financial Emergency are as follows:

1. The executive authority of the Centre extends to the giving of (a) directions to any state to observe such canons of financial propriety as may be specified in the directions; and (b) such other directions to any state as the President may deem necessary and adequate for the purpose.
2. Any such direction may include a provision requiring (a) the reduction of salaries and allowances of all or any class of persons serving in the state; and (b) the reservation of all money bills or other financial bills for the consideration of the President after they are passed by the legislature of the state.
3. The President may issue directions for the reduction of salaries and allowances of (a) all or any class of persons serving the Union; and (b) the judges of the Supreme Court and the high court.

Thus, during the operation of a financial emergency, the Centre acquires full control over the states in financial matters. H.N. Kunzru, a member of the Constituent Assembly, stated that the financial emergency provisions pose a serious threat to the financial autonomy of the states. Explaining the reasons for their inclusion in the Constitution, Dr. B.R. Ambedkar observed in the Constituent Assembly[14] :

“This Article more or less follows the pattern of what is called the National Recovery Act of the United States passed in 1933, which gave the president power to make similar provisions in order to remove the difficulties, both economical and financial, that had overtaken the American people, as a result of the Great Depression.”

No Financial Emergency has been declared so far, though there was a financial crisis in 1991.

CRITICISM OF THE EMERGENCY PROVISIONS

Some members of the Constituent Assembly criticised the incorporation of emergency provisions in the Constitution on the following grounds[15] :

1. 'The federal character of the Constitution will be destroyed and the Union will become all powerful.
2. The powers of the State–both the Union and the units–will entirely be concentrated in the hands of the Union executive.
3. The President will become a dictator.
4. The financial autonomy of the state will be nullified.
5. Fundamental rights will become meaningless and, as a result, the democratic foundations of the Constitution will be destroyed.'

Thus, H.V. Kamath observed: 'I fear that by this single chapter we are seeking to lay the foundation of a totalitarian state, a police state, a state completely opposed to all the ideals and principles that we have held aloft during the last few decades, a State where the rights and liberties of millions of innocent men and women will be in continuous jeopardy, a State where if there be peace, it will be the peace of the grave and the void of the desert(. . .) It will be a day of shame and sorrow when the President makes use of these Powers having no parallel in any Constitution of the democratic countries of the world'[16] .

K.T. Shah described them as: 'A chapter of reaction and retrogression. (. . .) I find one cannot but notice two distinct currents of thought underlying and influencing throughout the provisions of this chapter: **(a)** to arm the Centre with special powers against the units and **(b)** to arm the government against the people . . . Looking at all the provisions of this chapter particularly and scrutinising the powers that have been given in almost every article, it seems to me, the name only of liberty or democracy will remain under the Constitution'.

T.T. Krishnamachari feared that 'by means of these provisions the President and the Executive would be exercising a form of constitutional dictatorship'[17] .

H.N. Kunzru opined that 'the emergency financial provisions pose a serious threat to the financial autonomy of the States.'

However, there were also protagonists of the emergency provisions in the Constituent Assembly. Thus, Sir Alladi Krishnaswami Ayyar labelled them as 'the very life-breath of the Constitution'. Mahabir Tyagi opined that they would work as a 'safety-valve' and thereby help in the maintenance of the Constitution[18] .

While defending the emergency provisions in the Constituent Assembly, Dr. B.R. Ambedkar also accepted the possibility of their misuse. He observed, 'I do not altogether deny that there is a possibility of the Articles being abused or employed for political purposes'[19] .

Table 16.2 *Imposition of President's Rule (1951–2019)*

Sl. No.	States/Union Territories	No. of Times Imposed	Years of Imposition
I. States:			
1.	Andhra Pradesh	3	1954[20] , 1973, 2014
2.	Arunachal Pradesh	2	1979, 2016
3.	Assam	4	1979, 1981, 1982, 1990
4.	Bihar	8	1968, 1969, 1972, 1977, 1980, 1995, 1999, 2005
5.	Chhattisgarh	--	--
6.	Goa	5	1966, 1979, 1990, 1999, 2005
7.	Gujarat	5	1971, 1974, 1976, 1980, 1996
8.	Haryana	3	1967, 1977, 1991
9.	Himachal Pradesh	2	1977, 1992

10.	Jharkhand	3		2009, 2010, 2013
11.	Karnataka	6		1971, 1977, 1989, 1990, 2007, 2007
12.	Kerala	5		1956[21] , 1959, 1964, 1970, 1979
13.	Madhya Pradesh[22]	3		1977, 1980, 1992
14.	Maharashtra	2		1980, 2014
15.	Manipur	10		1967, 1967, 1969, 1973, 1977, 1979, 1981, 1992, 1993, 2001
16.	Meghalaya	2		1991, 2009
17.	Mizoram	3		1977, 1978, 1988
18.	Nagaland	4		1975, 1988, 1992, 2008
19.	Odisha	6		1961, 1971, 1973, 1976, 1977, 1980
20.	Punjab[23]	8		1951, 1966, 1968, 1971, 1977, 1980, 1983, 1987
21.	Rajasthan	4		1967, 1977, 1980, 1992
22.	Sikkim	2		1978, 1984
23.	Tamil Nadu	4		1976, 1980, 1988, 1991
24.	Telangana	--		--
25.	Tripura	3		1971, 1977, 1993
26.	Uttarakhand	2		2016, 2016
27.	Uttar Pradesh	9		1968, 1970, 1973, 1975, 1977, 1980, 1992, 1995, 2002
28.	West Bengal	4		1962, 1968, 1970,

			1971
II. Union Territories:			
1.	Delhi	1	2014
2.	Puducherry	6	1968, 1974, 1974, 1978, 1983, 1991
3.	Jammu and Kashmir[24]	1	2019

Table 16.3 *Articles Related to Emergency Provisions at a Glance*

Article No.	Subject-matter
352.	Proclamation of Emergency
353.	Effect of Proclamation of Emergency
354.	Application of provisions relating to distribution of revenues while a Proclamation of Emergency is in operation
355.	Duty of the Union to protect states against external aggression and internal disturbance
356.	Provisions in case of failure of constitutional machinery in states
357.	Exercise of legislative powers under proclamation issued under Article 356
358.	Suspension of provisions of Article 19 during Emergencies
359.	Suspension of the enforcement of the rights conferred by Part III during Emergencies
359A.	Application of this part to the state of Punjab (Repealed)
360.	Provisions as to Financial Emergency

NOTES AND REFERENCES

1. *Constituent Assembly Debates,* Volume VII, p. 34.

2. The phrase ‘armed rebellion’ was inserted by the 44th Amendment Act of 1978, replacing the original phrase ‘internal disturbance’.
3. Article 352 defines the term ‘Cabinet’ as the council consisting of the Prime Minister and other ministers of the Cabinet rank.
4. *Minerva Mills* v. *Union of India,* (1980).
5. The term of the Fifth Lok Sabha which was to expire on 18 March, 1976 was extended by one year upto 18 March, 1977 by the House of the People (Extension of Duration) Act, 1976. It was extend for a further period of one year upto 18 March, 1978 by the House of the People (Extension of Duration) Amendment Act, 1976. However, the House was dissolved on 18 January, 1977, after having been in existence for a period of five years, ten months and six days.
6. The 42nd Amendment Act of 1976 had raised the period of six months to one year. Thus, once approved by both the Houses of Parliament, the proclamation of President’s Rule could continue for one year. But, the 44th Amendment Act of 1978 again reduced the period to six months.
7. The President’s Rule imposed in May, 1987 in Punjab was allowed to continue for five years under the 68th Amendment Act of 1991.
8. In case of dissolution, fresh elections are held for constituting a new legislative assembly in the state.
9. Those nine States include Rajasthan, Uttar Pradesh, Madhya Pradesh, Punjab, Bihar, Himachal Pradesh, Orissa, West Bengal and Haryana.
10. Those nine states include Uttar Pradesh, Bihar, Rajasthan, Madhya Pradesh, Punjab, Orissa, Gujarat, Maharashtra and Tamil Nadu.
11. *S.R. Bommai v. Union of India* (1994).
12. *Constituent Assembly Debates*, Volume IX, p. 133 and 177.
13. *Report of the Commission on Centre- State Relations,* Part I, p. 165–180 (1988).

14. *Constituent Assembly Debates,* Volume X, p. 361–372.
15. Quoted from M.V. Pylee, *India's Constitution*, S Chand, Fifth Edition, 1994, p. 280.
16. *Constituent Assembly Debates*, Volume IX, p. 105.
17. *Ibid,* p. 123.
18. *Ibid,* p. 547.
19. *Ibid,* p. 177.
20. This was imposed in Andhra State.
21. This was imposed in Travancore-Cochin.
22. Vindhya Pradesh had President's Rule from 1949–1952. This state was merged into that of Madhya Pradesh State in 1956.
23. In 1953, the President's Rule was imposed in Patiala and East Punjab States Union (PEPSU) which was merged into that of Punjab State in 1956.
24. The President's Rule was imposed in the erstwhile state of Jammu and Kashmir on 8 times, that is, in 1977, 1986, 1990, 2002, 2015, 2016, 2018.

PART-III
CENTRAL GOVERNMENT

17. President
18. Vice-President
19. Prime Minister
20. Central Council of Ministers
21. Cabinet Committees
22. Parliament
23. Parliamentary Committees
24. Parliamentary Forums
25. Parliamentary Group
26. Supreme Court
27. Judicial Review
28. Judicial Activism
29. Public Interest Litigation

17 President

Articles 52 to 78 in Part V of the Constitution deal with the Union executive.

The Union executive consists of the President, the Vice-President, the Prime Minister, the council of ministers and the attorney general of India.

The President is the head of the Indian State. He is the first citizen of India and acts as the symbol of unity, integrity and solidarity of the nation.

ELECTION OF THE PRESIDENT

The President is elected not directly by the people but by members of electoral college consisting of:

1. the elected members of both the Houses of Parliament;
2. the elected members of the legislative assemblies of the states; and
3. the elected members of the legislative assemblies of the Union Territories of Delhi and Puducherry[1] .

Thus, the nominated members of both of Houses of Parliament, the nominated members of the state legislative assemblies, the members (both elected and nominated) of the state legislative councils (in case of the bicameral legislature) and the nominated members of the Legislative Assemblies of Delhi and Puducherry do not participate in the election of the President. Where an assembly is dissolved, the members cease to be qualified to vote in presidential election, even if fresh elections to the dissolved assembly are not held before the presidential election.

The Constitution provides that there shall be uniformity in the scale of representation of different states as well as parity between the states as a whole and the Union at the election of the President. To achieve this, the number of votes which each elected member of the legislative assembly of each state and the Parliament is entitled to cast at such election shall be determined in the following manner:

1. Every elected member of the legislative assembly of a state shall have as many votes as there are multiples of one thousand in the quotient obtained by dividing the population of the state by the total number of the elected members of the assembly[2]. This can be expressed as:

$$\text{Value of the vote of an MLA} = \frac{\text{Total population of state}}{\text{Total number of elected members in the state legislative assembly}} \times \frac{1}{1000}$$

2. Every elected member of either House of Parliament shall have such number of votes as may be obtained by dividing the total number of votes assigned to members of the legislative assemblies of the states by the total number of the elected

members of both the Houses of Parliament. This can be expressed as:

$$\text{Value of the vote of an MP} = \frac{\text{Total value of votes of all MLAs of all states}}{\text{Total number of elected members of Parliament}}$$

The President's election is held in accordance with the system of proportional representation by means of the single transferable vote and the voting is by secret ballot. This system ensures that the successful candidate is returned by the absolute majority of votes. A candidate, in order to be declared elected to the office of President, must secure a fixed quota of votes. The quota of votes is determined by dividing the total number of valid votes polled by the number of candidates to be elected (here only one candidate is to be elected as President) plus one and adding one to the quotient. The formula can be expressed as:

$$\text{Electoral quota} = \frac{\text{Total number of valid votes polled}}{1+1=(2)} + 1$$

Each member of the electoral college is given only one ballot paper. The voter, while casting his vote, is required to indicate his preferences by marking 1, 2, 3, 4, etc. against the names of candidates. This means that the voter can indicate as many preferences as there are candidates in the fray.

In the first phase, the first preference votes are counted. In case a candidate secures the required quota in this phase, he is declared elected. Otherwise, the process of transfer of votes is set in motion. The ballots of the candidate securing the least number of first preference votes are cancelled and his second preference votes are transferred to the first preference votes of other candidates. This process continues till a candidate secures the required quota.

All doubts and disputes in connection with election of the President are inquired into and decided by the Supreme Court whose decision is final. The election of a person as President cannot be challenged on the ground that the electoral college was incomplete (ie, existence of any vacancy among the members of electoral college). If the election of a person as President is declared void by the Supreme Court, acts done by him before the date of such declaration of the Supreme Court are not invalidated and continue to remain in force.

Some members of the Constituent Assembly criticised the system of indirect election for the President as undemocratic and proposed the idea of direct election. However, the Constitution makers chose the indirect election due to the following reasons[3] :

1. The indirect election of the President is in harmony with the parliamentary system of government envisaged in the Constitution. Under this system, the President is only a nominal executive and the real powers are vested in the council of ministers headed by the prime minister. It would have been anomalous to have the President elected directly by the people and not give him any real power.
2. The direct election of the President would have been very costly and time- and energy-consuming due to the vast size of the electorate. This is unwarranted keeping in view that he is only a symbolic head.

Some members of the Constituent Assembly suggested that the President should be elected by the members of the two Houses of Parliament alone. The makers of the Constitution did not prefer this as the Parliament, dominated by one political party, would have invariably chosen a candidate from that party and such a President could not represent the states of the Indian Union. The present system makes the President a representative of the Union and the states equally.

Further, it was pointed out in the Constituent Assembly that the expression ‘proportional representation’ in the case of presidential election is a misnomer. Proportional representation takes place where two or more seats are to be filled. In case of the President, the vacancy is only one. It could better be called a preferential or alternative vote system. Similarly, the expression ‘single transferable vote’ was also objected on the ground that no voter has a single vote; every voter has plural votes.

QUALIFICATIONS, OATH AND CONDITIONS

Qualifications for Election as President

A person to be eligible for election as President should fulfil the following qualifications:

1. He should be a citizen of India.
2. He should have completed 35 years of age.
3. He should be qualified for election as a member of the Lok Sabha.
4. He should not hold any office of profit under the Union government or any state government or any local authority or any other public authority. A sitting President or VicePresident of the Union, the Governor of any state and a minister of the Union or any state is not deemed to hold any office of profit and hence qualified as a presidential candidate.

Further, the nomination of a candidate for election to the office of President must be subscribed by at least 50 electors as proposers and 50 electors as seconders. Every candidate has to make a security deposit of ₹15,000 in the Reserve Bank of India. The security deposit is liable to be forfeited in case the candidate fails to secure one-sixth of the votes polled. Before 1997, number of proposers and seconders was ten each and the amount of security deposit was ₹2,500. In 1997, they were increased to discourage the non-serious candidates[4] .

Oath or Affirmation by the President

Before entering upon his office, the President has to make and subscribe to an oath or affirmation. In his oath, the President swears:

1. to faithfully execute the office;
2. to preserve, protect and defend the Constitution and the law; and
3. to devote himself to the service and well-being of the people of India.

Table 17.1 *Elections of the Presidents (1952–2017)*

Sl. No.	Election Year	Victorious Candidate	No. of Votes	Main Rival Candidate	No. of Votes

			secured (%)		secured (%)
1.	1952	Dr. Rajendra Prasad	507400 (83.81)	K.T. Shah	92827 (15.3)
2.	1957	Dr. Rajendra Prasad	459698 (99.35)	N.N. Das	2000 (0.4)
3.	1962	Dr. S. Radhakrishnan	553067 (98.24)	Ch.Hari Ram	6341 (1.1)
4.	1967	Dr. Zakir Hussain	471244 (56.23)	K. Subba Rao	363971 (43.4)
5.	1969	V.V. Giri	420077 (50.22)	N. Sanjeeva Reddy	405427 (48.5)
6.	1974	Fakhruddin Ali Ahmed	756587 (80.18)	Tridev Chaudhuri	189186 (19.8)
7.	1977	N. Sanjeeva Reddy	—	Unopposed	—
8.	1982	Giani Zail Singh	754113 (72.73)	H.R. Khanna	282685 (27.6)
9.	1987	R. Venkataraman	740148 (72.29)	V.Krishna Ayyer	281550 (27.1)
10.	1992	Dr. Shankar Dayal Sharma	675564 (65.86)	George Swell	346485 (33.21)
11.	1997	K.R. Narayanan	956290 (94.97)	T.N. Sheshan	50431 (5.07)
12.	2002	Dr. A.P.J. Abdul Kalam	922844 (89.58)	Laxmi Sehgal	107366 (10.42)
13.	2007	Ms. Pratibha Patil	638116 (65.82)	B.S. Shekhawat	331306 (34.17)
14.	2012	Pranab Mukherjee	713763 (68.12)	P.A. Sangma	315987 (30.15)
15.	2017	Ram Nath Kovind	702044 (65.65)	Meira Kumar	367314 (34.35)

The oath of office to the President is administered by the Chief Justice of India and in his absence, the seniormost judge of the Supreme Court available.

Any other person acting as President or discharging the functions of the President also undertakes the similar oath or affirmation.

Conditions of President's Office

The Constitution lays down the following conditions of the President's office:

1. He should not be a member of either House of Parliament or a House of the state legislature. If any such person is elected as President, he is deemed to have vacated his seat in that House on the date on which he enters upon his office as President.
2. He should not hold any other office of profit.
3. He is entitled, without payment of rent, to the use of his official residence (the Rastrapathi Bhavan).
4. He is entitled to such emoluments, allowances and privileges as may be determined by Parliament.
5. His emoluments and allowances cannot be diminished during his term of office.

In 2018, the Parliament increased the salary of the President from ₹1.50 lakh to ₹5 lakh per month[4a]. Earlier in 2008, the pension of the retired President was increased from ₹3 lakh per annum to 50% of his salary per month[5]. In addition, the former Presidents are entitled to furnished residence, phone facilities, car, medical treatment, travel facility, secretarial staff and office expenses upto ₹1,00,000 per annum. The spouse of a deceased President is also entitled to a family pension at the rate of 50% of pension of a retired President, furnished residence, phone facility, car, medical treatment, travel facility, secretarial staff and office expenses upto ₹20,000 per annum.

The President is entitled to a number of privileges and immunities. He enjoys personal immunity from legal liability for his official acts. During his term of office, he is immune from any criminal proceedings, even in respect of his personal acts. He cannot be arrested or imprisoned. However, after giving two months' notice, civil proceedings can be instituted against him during his term of office in respect of his personal acts.

TERM, IMPEACHMENT AND VACANCY

Term of President's Office

The President holds office for a term of five years from the date on which he enters upon his office. However, he can resign from his office at any time by addressing the resignation letter to the Vice-President. Further, he can also be removed from the office before completion of his term by the process of impeachment.

The President can hold office beyond his term of five years until his successor assumes charge. He is also eligible for re-election to that office. He may be elected for any number of terms[6]. However, in USA, a person cannot be elected to the office of the President more than twice.

Impeachment of President

The President can be removed from office by a process of impeachment for 'violation of the Constitution'. However, the Constitution does not define the meaning of the phrase 'violation of the Constitution'.

The impeachment charges can be initiated by either House of Parliament. These charges should be signed by one-fourth members of the House (that framed the charges), and a 14 days' notice should be given to the President. After the impeachment resolution is passed by a majority of two-thirds of the total membership of that House, it is sent to the other House, which should investigate the charges. The President has the right to appear and to be represented at such investigation. If the other House also sustains the charges and passes the impeachment resolution by a majority of two-thirds of the total membership, then the President stands removed from his office from the date on which the resolution is so passed.

Thus, an impeachment is a quasi-judicial procedure in the Parliament. In this context, two things should be noted: (a) the nominated members of either House of Parliament can participate in the impeachment of the President though they do not participate in his election; (b) the elected members of the legislative assemblies of states and the Union Territories of Delhi and Puducherry do not participate in the impeachment of the President though they participate in his election.

No President has so far been impeached.

Vacancy in the President's Office

A vacancy in the President's office can occur in any of the following ways:

1. On the expiry of his tenure of five years.
2. By his resignation.
3. On his removal by the process of impeachment.
4. By his death[7] .
5. Otherwise, for example, when he becomes disqualified to hold office or when his election is declared void.

When the vacancy is going to be caused by the expiration of the term of the sitting President, an election to fill the vacancy must be held before the expiration of the term. In case of any delay in conducting the election of new President by any reason, the outgoing President continues to hold office (beyond his term of five years) until his successor assumes charge. This is provided by the Constitution in order to prevent an 'interregnum'. In this situation, the VicePresident does not get the opportunity to act as President or to discharge the functions of the President.

If the office falls vacant by resignation, removal, death or otherwise, then election to fill the vacancy should be held within six months from the date of the occurrence of such a vacancy. The newly-elected President remains in office for a full term of five years from the date he assumes charge of his office.

When a vacancy occurs in the office of the President due to his resignation, removal, death or otherwise, the Vice-President acts as the President until a new President is elected. Further, when the sitting President is unable to discharge his functions due to absence, illness or any other cause, the Vice-President discharges his functions until the President resumes his office.

In case the office of Vice-President is vacant, the Chief Justice of India (or if his office is also vacant, the seniormost judge of the Supreme Court available) acts as the President or discharges the functions of the President[8] .

When any person, ie, Vice-President, chief justice of India, or the seniormost judge of the Supreme Court is acting as the President or discharging the functions of the President, he enjoys all the powers and immunities of the President and is entitled to such emoluments, allowances and privileges as are determined by the Parliament.

POWERS AND FUNCTIONS OF THE PRESIDENT

The powers enjoyed and the functions performed by the President can be studied under the following heads.

1. Executive powers
2. Legislative powers
3. Financial powers
4. Judicial powers
5. Diplomatic powers
6. Military powers
7. Emergency powers

Executive Powers

The executive powers and functions of the President are:

(a) All executive actions of the Government of India are formally taken in his name.

(b) He can make rules specifying the manner in which the orders and other instruments made and executed in his name shall be authenticated.

(c) He can make rules for more convenient transaction of business of the Union government, and for allocation of the said business among the ministers.

(d) He appoints the prime minister and the other ministers. They hold office during his pleasure.

(e) He appoints the attorney general of India and determines his remuneration. The attorney general holds office during the pleasure of the President.

(f) He appoints the comptroller and auditor general of India, the chief election commissioner and other election commissioners, the chairman and members of the Union Public Service Commission, the governors of states, the chairman and members of finance commission, and so on.

(g) He can seek any information relating to the administration of affairs of the Union, and proposals for legislation from the prime minister.

(h) He can require the Prime Minister to submit, for consideration of the council of ministers, any matter on which a decision has been taken by a minister but, which has not been considered by the council.

(i) He can appoint a commission to investigate into the conditions of SCs, STs and other backward classes.
(j) He can appoint an inter-state council to promote Centre-state and inter-state cooperation.
(k) He directly administers the union territories through administrators appointed by him.
(l) He can declare any area as scheduled area and has powers with respect to the administration of scheduled areas and tribal areas.

Legislative Powers

The President is an integral part of the Parliament of India, and enjoys the following legislative powers.

(a) He can summon or prorogue the Parliament and dissolve the Lok Sabha. He can also summon a joint sitting of both the Houses of Parliament, which is presided over by the Speaker of the Lok Sabha.
(b) He can address the Parliament at the commencement of the first session after each general election and the first session of each year.
(c) He can send messages to the Houses of Parliament, whether with respect to a bill pending in the Parliament or otherwise.
(d) He can appoint any member of the Lok Sabha to preside over its proceedings when the offices of both the Speaker and the Deputy Speaker fall vacant. Similarly, he can also appoint any member of the Rajya Sabha to preside over its proceedings when the offices of both the Chairman and the Deputy Chairman fall vacant.
(e) He nominates 12 members of the Rajya Sabha from amongst persons having special knowledge or practical experience in literature, science, art and social service.
(f) He can nominate two members to the Lok Sabha from the Anglo-Indian Community.
(g) He decides on questions as to disqualifications of members of the Parliament, in consultation with the Election Commission.
(h) His prior recommendation or permission is needed to introduce certain types of bills in the Parliament. For example, a bill involving expenditure from the Consolidated Fund of India, or a bill for the alteration of boundaries of states or creation of a new state.

(i) When a bill is sent to the President after it has been passed by the Parliament, he can:
   (i) give his assent to the bill, or
   (ii) withhold his assent to the bill, or
   (iii) return the bill (if it is not a money bill) for reconsideration of Parliament.

   However, if the bill is passed again by the Parliament, with or without amendments, the President has to give his assent to the bill.

(j) When a bill passed by a state legislature is reserved by the governor for consideration of the President, the President can:
   (i) give his assent to the bill, or
   (ii) withhold his assent to the bill, or
   (iii) direct the governor to return the bill (if it is not a money bill) reconsideration of the state legislature. It should be noted h that it is not obligatory for the President to give his assent eve the bill is again passed by the state legislature and sent agai him for his consideration.

(k) He can promulgate ordinances when the Parliament is not in session. These ordinances must be approved by the Parliament within six weeks from its reassembly. He can also withdraw an ordinance at any time.

(l) He lays the reports of the Comptroller and Auditor General, Union Public Service Commission, Finance Commission, and others, before the Parliament.

(m) He can make regulations for the peace, progress and good government of the Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli, Daman and Diu and Ladakh. In the case of Puducherry also, the President can legislate by making regulations but only when the assembly is suspended or dissolved.

Financial Powers

The financial powers and functions of the President are:

(a) Money bills can be introduced in the Parliament only with his prior recommendation.

(b) He causes to be laid before the Parliament the annual financial statement (ie, the Union Budget).

(c) No demand for a grant can be made except on his recommendation.

(d) He can make advances out of the contingency fund of India to meet any unforeseen expenditure.
(e) He constitutes a finance commission after every five years to recommend the distribution of revenues between the Centre and the states.

Judicial Powers

The judicial powers and functions of the President are:

(a) He appoints the Chief Justice and the judges of Supreme Court and high courts.
(b) He can seek advice from the Supreme Court on any question of law or fact. However, the advice tendered by the Supreme Court is not binding on the President.
(c) He can grant pardon, reprieve, respite and remission of punishment, or suspend, remit or commute the sentence of any person convicted of any offence:
    (i) In all cases where the punishment or sentence is by a c martial;
    (ii) In all cases where the punishment or sentence is for an offe against a Union law; and
    (iii) In all cases where the sentence is a sentence of death.

Diplomatic Powers

The international treaties and agreements are negotiated and concluded on behalf of the President. However, they are subject to the approval of the Parliament. He represents India in international forums and affairs and sends and receives diplomats like ambassadors, high commissioners, and so on.

Military Powers

He is the supreme commander of the defence forces of India. In that capacity, he appoints the chiefs of the Army, the Navy and the Air Force. He can declare war or conclude peace, subject to the approval of the Parliament.

Emergency Powers

In addition to the normal powers mentioned above, the Constitution confers extraordinary powers on the President to deal with the

following three types of emergencies[9] :

(a) National Emergency (Article 352);
(b) President's Rule (Article 356 & 365); and
(c) Financial Emergency (Article 360)

VETO POWER OF THE PRESIDENT

A bill passed by the Parliament can become an act only if it receives the assent of the President. When such a bill is presented to the President for his assent, he has three alternatives (under Article 111 of the Constitution):

1. He may give his assent to the bill, or
2. He may withhold his assent to the bill, or
3. He may return the bill (if it is not a Money bill) for reconsideration of the Parliament. However, if the bill is passed again by the Parliament with or without amendments and again presented to the President, the President must give his assent to the bill.

Thus, the President has the veto power over the bills passed by the Parliament[10] , that is, he can withhold his assent to the bills. The object of conferring this power on the President is two-fold–(a) to prevent hasty and ill-considered legislation by the Parliament; and (b) to prevent a legislation which may be unconstitutional.

The veto power enjoyed by the executive in modern states can be classified into the following four types:

1. Absolute veto, that is, withholding of assent to the bill passed by the legislature.
2. Qualified veto, which can be overridden by the legislature with a higher majority.
3. Suspensive veto, which can be overridden by the legislature with an ordinary majority.
4. Pocket veto, that is, taking no action on the bill passed by the legislature.

Of the above four, the President of India is vested with three–absolute veto, suspensive veto and pocket veto. There is no qualified veto in the case of Indian President; it is possessed by the American President. The three vetos of the President of India are explained below:

Absolute Veto

It refers to the power of the President to withhold his assent to a bill passed by the Parliament. The bill then ends and does not become an act. Usually, this veto is exercised in the following two cases:

(a) With respect to private members' bills (ie, bills introduced by any member of Parliament who is not a minister); and

(b) With respect to the government bills when the cabinet resigns (after the passage of the bills but before the assent by the President) and the new cabinet advises the President not to give his assent to such bills.

In 1954, President Dr. Rajendra Prasad withheld his assent to the PEPSU Appropriation Bill. The bill was passed by the Parliament when the President's Rule was in operation in the state of PEPSU. But, when the bill was presented to the President for his assent, the President's Rule was revoked.

Again in 1991, President R Venkataraman withheld his assent to the Salary, Allowances and Pension of Members of Parliament (Amendment) Bill. The bill was passed by the Parliament (on the last day before dissolution of Lok Sabha) without obtaining the previous recommendation of the President.

Suspensive Veto

The President exercises this veto when he returns a bill for reconsideration of the Parliament. However, if the bill is passed again by the Parliament with or without amendments and again presented to the President, it is obligatory for the President to give his assent to the bill. This means that the presidential veto is overridden by a re-passage of the bill by the same ordinary majority (and not a higher majority as required in USA).

As mentioned earlier, the President does not possess this veto in the case of money bills. The President can either give his assent to a money bill or withhold his assent to a money bill but cannot return it for the reconsideration of the Parliament. Normally, the President gives his assent to money bill as it is introduced in the Parliament with his previous permission.

Pocket Veto

In this case, the President neither ratifies nor rejects nor returns the bill, but simply keeps the bill pending for an indefinite period. This power of the President not to take any action (either positive or negative) on the bill is known as the pocket veto. The President can exercise this veto power as the Constitution does not prescribe any time-limit within which he has to take the decision with respect to a bill presented to him for his assent. In USA, on the other hand, the President has to return the bill for reconsideration within 10 days.

Hence, it is remarked that the pocket of the Indian President is bigger than that of the American President.

In 1986, President Zail Singh exercised the pocket veto with respect to the Indian Post Office (Amendment) Bill. The bill, passed by the Rajiv Gandhi Government, imposed restrictions on the freedom of press and hence, was widely criticised. After three years, in 1989, the next President R Venkataraman sent the bill back for reconsideration, but the new National Front Government decided to drop the bill.

It should be noted here that the President has no veto power in respect of a constitutional amendment bill. The 24th Constitutional Amendment Act of 1971 made it obligatory for the President to give his assent to a constitutional amendment bill.

Presidential Veto over State Legislation

The President has veto power with respect to state legislation also. A bill passed by a state legislature can become an act only if it receives the assent of the governor or the President (in case the bill is reserved for the consideration of the President).

When a bill, passed by a state legislature, is presented to the governor for his assent, he has four alternatives (under Article 200 of the Constitution):

1. He may give his assent to the bill, or
2. He may withhold his assent to the bill, or
3. He may return the bill (if it is not a money bill) for reconsideration of the state legislature, or
4. He may reserve the bill for the consideration of the President.

Table 17.2 *Veto Power of the President At a Glance*

Central Legislation	State Legislation
With Regard to Ordinary Bills	
1. Can be ratified	1. Can be ratified
2. Can be rejected	2. Can be rejected
3. Can be returned	3. Can be returned
With Regard to Money Bills	
1. Can be ratified	1. Can be ratified
2. Can be rejected (but cannot be returned)	2. Can be rejected (but cannot be returned)

With Regard to Constitutional Amendment Bills	
Can only be ratified (that is, cannot be rejected or returned)	Constitutional amendment bills cannot be introduced in the state legislature.

When a bill is reserved by the governor for the consideration of the President, the President has three alternatives (Under Article 201 of the Constitution):

1. He may give his assent to the bill, or
2. He may withhold his assent to the bill, or
3. He may direct the governor to return the bill (if it is not a money bill) for the reconsideration of the state legislature. If the bill is passed again by the state legislature with or without amendments and presented again to the President for his assent, the President is not bound to give his assent to the bill. This means that the state legislature cannot override the veto power of the President. Further, the Constitution has not prescribed any time limit within which the President has to take decision with regard to a bill reserved by the governor for his consideration. Hence, the President can exercise pocket veto in respect of state legislation also.

Table 17.2 summarises the discussion on the veto power of the President with regard to Central as well as state legislation.

ORDINANCE-MAKING POWER OF THE PRESIDENT

Article 123 of the Constitution empowers the President to promulgate ordinances during the recess of Parliament. These ordinances have the same force and effect as an act of Parliament, but are in the nature of temporary laws.

The ordinance-making power is the most important legislative power of the President. It has been vested in him to deal with unforeseen or urgent matters. But, the exercises of this power is subject to the following four limitations:

1. He can promulgate an ordinance only when both the Houses of Parliament are not in session or when either of the two Houses of Parliament is not in session. An ordinance can also be issued when only one House is in session because a law can be passed by both the Houses and not by one House alone. An ordinance made when both the Houses are in session is void. Thus, the power of the President to legislate by ordinance is not a parallel power of legislation.

2. He can make an ordinance only when he is satisfied that the circumstances exist that render it necessary for him to take immediate action. In *Cooper* case[11] , (1970), the Supreme Court held that the President's satisfaction can be questioned in a court on the ground of malafide. This means that the decision of the President to issue an ordinance can be questioned in a court on the ground that the President has prorogued one House or both Houses of Parliament deliberately with a view to promulgate an ordinance on a controversial subject, so as to bypass the parliamentary decision and thereby circumventing the authority of the Parliament. The 38th Constitutional Amendment Act of 1975 made the President's satisfaction final and conclusive and beyond judicial review. But, this provision was deleted by the 44th Constitutional Amendment Act of 1978. Thus, the President's satisfaction is justiciable on the ground of malafide.

3. His ordinance-making power is coextensive as regards all matters except duration, with the law-making powers of the Parliament. This has two implications:

(a) An ordinance can be issued only on those subjects on which the Parliament can make laws.

(b) An ordinance is subject to the same constitutional limitation as an act of Parliament. Hence, an ordinance cannot abridge or take

away any of the fundamental rights[12] .

4. Every ordinance issued by the President during the recess of Parliament must be laid before both the Houses of Parliament when it reassembles. If the ordinance is approved by both the Houses, it becomes an act. If Parliament takes no action at all, the ordinance ceases to operate on the expiry of six weeks from the reassembly of Parliament. The ordinance may also cease to operate even earlier than the prescribed six weeks, if both the Houses of Parliament pass resolutions disapproving it. If the Houses of Parliament are summoned to reassemble on different dates, the period of six weeks is calculated from the later of those dates. This means that the maximum life of an ordinance can be six months and six weeks, in case of non-approval by the Parliament (six months being the maximum gap between the two sessions of Parliament). If an ordinance is allowed to lapse without being placed before Parliament, then the acts done and completed under it, before it ceases to operate, remain fully valid and effective.

The President can also withdraw an ordinance at any time. However, his power of ordinance-making is not a discretionary power, and he can promulgate or withdraw an ordinance only on the advice of the council of ministers headed by the prime minister.

An ordinance like any other legislation, can be retrospective, that is, it may come into force from a back date. It may modify or repeal any act of Parliament or another ordinance. It can alter or amend a tax law also. However, it cannot be issued to amend the Constitution.

The ordinance-making power of the President in India is rather unusual and not found in most of the democratic Constitutions of the world including that of USA, and UK. In justification of the ordinance-making power of the President, Dr. B.R. Ambedkar said in the Constituent Assembly that the mechanism of issuing an ordinance has been devised in order to enable the Executive to deal with a situation that may suddenly and immediately arise when the Parliament is not in session[13]. It must be clarified here that the ordinance-making power of the President has no necessary connection with the national emergency envisaged in Article 352. The President can issue an ordinance even when there is no war or external aggression or armed rebellion.

The rules of Lok Sabha require that whenever a bill seeking to replace an ordinance is introduced in the House, a statement

explaining the circumstances that had necessitated immediate legislation by ordinance should also be placed before the House.

So far, no case has gone to the Supreme Court regarding promulgation of ordinance by the President.

But, the judgement of the Supreme Court in the *D.C. Wadhwa* case[14] (1987) is highly relevant here. In that case, the court pointed out that between 1967–1981 the Governor of Bihar promulgated 256 ordinances and all these were kept in force for periods ranging from one to fourteen years by promulgation from time to time. The court ruled that successive repromulgation of ordinances with the same text without any attempt to get the bills passed by the assembly would amount to violation of the Constitution and the ordinance so repromulgated is liable to be struck down. It held that the exceptional power of law-making through ordinance cannot be used as a substitute for the legislative power of the state legislature.

PARDONING POWER OF THE PRESIDENT

Article 72 of the Constitution empowers the President to grant pardons to persons who have been tried and convicted of any offence in all cases where the:

1. Punishment or sentence is for an offence against a Union Law;
2. Punishment or sentence is by a court martial (military court); and
3. Sentence is a sentence of death.

The pardoning power of the President is independent of the Judiciary; it is an executive power. But, the President while exercising this power, does not sit as a court of appeal. The object of conferring this power on the President is two-fold: (a) to keep the door open for correcting any judicial errors in the operation of law; and, (b) to afford relief from a sentence, which the President regards as unduly harsh.

The pardoning power of the President includes the following:

1. Pardon

It removes both the sentence and the conviction and completely absolves the convict from all sentences, punishments and disqualifications.

2. Commutation

It denotes the substitution of one form of punishment for a lighter form. For example, a death sentence may be commuted to rigorous imprisonment, which in turn may be commuted to a simple imprisonment.

3. Remission

It implies reducing the period of sentence without changing its character. For example, a sentence of rigorous imprisonment for two years may be remitted to rigorous imprisonment for one year.

4. Respite

It denotes awarding a lesser sentence in place of one originally awarded due to some special fact, such as the physical disability of a convict or the pregnancy of a woman offender.

5. Reprieve

It implies a stay of the execution of a sentence (especially that of death) for a temporary period. Its purpose is to enable the convict to

have time to seek pardon or commutation from the President.

Under Article 161 of the Constitution, the governor of a state also possesses the pardoning power. Hence, the governor can also grant pardons, reprieves, respites and remissions of punishment or suspend, remit and commute the sentence of any person convicted of any offence against a state law. But, the pardoning power of the governor differs from that of the President in following two respects:

1. The President can pardon sentences inflicted by court martial (military courts) while the governor cannot.
2. The President can pardon death sentence while governor cannot. Even if a state law prescribes death sentence, the power to grant pardon lies with the President and not the governor. However, the governor can suspend, remit or commute a death sentence. In other words, both the governor and the President have concurrent power in respect of suspension, remission and commutation of death sentence.

The Supreme Court examined the pardoning power of the President under different cases and laid down the following principles:

1. The petitioner for mercy has no right to an oral hearing by the President.
2. The President can examine the evidence afresh and take a view different from the view taken by the court.
3. The power is to be exercised by the President on the advice of the union cabinet.
4. The President is not bound to give reasons for his order.
5. The President can afford relief not only from a sentence that he regards as unduly harsh but also from an evident mistake.
6. There is no need for the Supreme Court to lay down specific guidelines for the exercise of power by the President.
7. The exercise of power by the President is not subject to judicial review except where the presidential decision is arbitrary, irrational, *mala fide* or discriminatory.
8. Where the earlier petition for mercy has been rejected by the President, stay cannot be obtained by filing another petition.

CONSTITUTIONAL POSITION OF THE PRESIDENT

The Constitution of India has provided for a parliamentary form of government. Consequently, the President has been made only a nominal executive; the real executive being the council of ministers headed by the prime minister. In other words, the President has to exercise his powers and functions with the aid and advise of the council of ministers headed by the prime minister.

Dr. B.R. Ambedkar summed up the true position of the President in the following way[15] :

"In the Indian Constitution, there is placed at the head of the Indian Union a functionary who is called the President of the Union. The title of the functionary reminds of the President of the United States. But beyond the identity of names, there is nothing in common between the form of government prevalent in America and the form of government adopted under the Indian Constitution. The American form of government is called the presidential system of government and what the Indian Constitution adopted is the Parliamentary system. Under the presidential system of America, the President is the Chief head of the Executive and administration is vested in him. Under the Indian Constitution, the President occupies the same position as the King under the English Constitution. He is the head of the State but not of the Executive. He represents the nation but does not rule the nation. He is the symbol of the nation. His place in administration is that of a ceremonial device or a seal by which the nation's decisions are made known. He is generally bound by the advice of his ministers. He can do nothing contrary to their advice nor can he do anything without their advice. The President of the United States can dismiss any secretary at any time. The President of the Indian Union has no power to do so, so long as his ministers command a majority in Parliament".

In estimating the constitutional position of the President, particular reference has to be made to the provisions of Articles 53, 74 and 75. These are:

1. The executive power of the Union shall be vested in President and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution (Article 53).
2. There shall be a council of ministers with the Prime Minister at the head to aid and advise the President who 'shall', in the

exercise of his functions, act in accordance with such advice (Article 74).

3. The council of ministers shall be collectively responsible to the Lok Sabha (Article 75). This provision is the foundation of the parliamentary system of government.

The 42nd Constitutional Amendment Act of 1976 (enacted by the Indira Gandhi Government) made the President bound by the advice of the council of ministers headed by the prime minister[16]. The 44th Constitutional Amendment Act of 1978 (enacted by the Janata Party Government headed by Morarji Desai) authorised the President to require the council of ministers to reconsider such advice either generally or otherwise. However, he 'shall' act in accordance with the advice tendered after such reconsideration. In other words, the President may return a matter once for reconsideration of his ministers, but the reconsidered advice shall be binding.

In October 1997, the cabinet recommended President K.R. Narayanan to impose President's Rule (under Article 356) in Uttar Pradesh. The President returned the matter for the reconsideration of the cabinet, which then decided not to move ahead in the matter. Hence, the BJP-led government under Kalyan Singh was saved. Again in September 1998, the President KR Narayanan returned a recommendation of the cabinet that sought the imposition of the President's Rule in Bihar. After a couple of months, the cabinet re-advised the same. It was only then that the President's Rule was imposed in Bihar, in February 1999.

Though the President has no constitutional discretion, he has some situational discretion. In other words, the President can act on his discretion (that is, without the advice of the ministers) under the following situations:

(i) Appointment of Prime Minister when no party has a clear majority in the Lok Sabha or when the Prime Minister in office dies suddenly and there is no obvious successor.

(ii) Dismissal of the council of ministers when it cannot prove the confidence of the Lok Sabha.

(iii) Dissolution of the Lok Sabha if the council of ministers has lost its majority.

Table 17.3 *Articles Related to President at a Glance*

Article No.	Subject-matter

52.	The President of India
53.	Executive power of the Union
54.	Election of President
55.	Manner of election of President
56.	Term of office of President
57.	Eligibility for re-election
58.	Qualifications for election as President
59.	Conditions of President’s office
60.	Oath or affirmation by the President
61.	Procedure for impeachment of the President
62.	Time of holding election to fill vacancy in the office of President
65.	Vice-President to act as President or to discharge his functions
71.	Matters relating to the election of President
72.	Power of President to grant pardons etc., and to suspend, remit or commute sentences in certain cases
74.	Council of ministers to aid and advise the President
75.	Other provisions as to ministers like appointment, term, salaries, etc.
76.	Attorney-General of India
77.	Conduct of business of the Government of India
78.	Duties of Prime Minister in respect to furnishing of information to the President, etc.
85.	Sessions of Parliament, prorogation and dissolution
111.	Assent to bills passed by the Parliament
112.	Union Budget (annual financial statement)
123.	Power of President to promulgate ordinances
143.	Power of President to consult Supreme Court

NOTES AND REFERENCES

1. This provision was added by the 70th Constitutional Amendment Act of 1992 with effect from June 1, 1995.
2. According to the 84th Constitutional Amendment Act of 2001, the expression 'population' means the population as ascertained at the 1971 census, until the relevant figures for the first census taken after 2026 have been published.
3. *Constituent Assembly Debates,* Volume-IV,p. 733–736.
4. The presidential and vice-presidential Elections Act of 1952, as amended in 1997.

4a. Vide the Finance Act, 2018, with effect from 1st January, 2016. This Act amended the President's Emoluments and Pension Act, 1951.

5. The President's Emoluments and Pension Amendment Act of 2008.
6. No person except Dr. Rajendra Prasad has occupied the office for two terms.
7. So far two Presidents, Dr. Zakir Hussain and Fakhruddin Ali Ahmed, have died during their term of office.
8. For example, when President Dr. Zakir Hussain died in May, 1969, the then Vice-President, V.V. Giri was acting as the President. Soon after V.V. Giri resigned to contest the election of the President. Then the Chief Justice of India, M. Hidayatullah worked as the officiating President from 20 July, 1969 to 24 August, 1969.
9. For details in this regard, see Chapter 16.
10. 'Veto' is a Latin word that connotes 'forbid'.
11. Cooper v. Union of India, (1970).
12. The definition of 'law' contained in Article 13 expressly includes ordinances. See, Chapter 7.
13. Constituent Assembly Debates, Volume VIII, p. 213.
14. D.C. Wadhwa v. State of Bihar, (1987).
15. Constituent Assembly Debates, Volume VII, p. 32–34.
16. In the original Constitution, there was no such specific provision in Article 74.

18 Vice-President

The Vice-President occupies the second highest office in the country. He is accorded a rank next to the President in the official warrant of precedence. This office is modelled on the lines of the American Vice-President.

ELECTION

The Vice-President, like the president, is elected not directly by the people but by the method of indirect election. He is elected by the members of an electoral college consisting of the members of both Houses of Parliament.[1] Thus, this electoral college is different from the electoral college for the election of the President in the following two respects:

1. It consists of both elected and nominated members of the Parliament (in the case of president, only elected members).
2. It does not include the members of the state legislative assemblies (in the case of President, the elected members of the state legislative assemblies are included). Explaining the reason for this difference, Dr. B.R. Ambedkar observed:[2]

"The President is the head of the State and his power extends both to the administration by the Centre as well as to the states. Consequently, it is necessary that in his election, not only members of Parliament should play their part, but the members of the state legislatures should have a voice. But, when we come to the Vice-President, his normal functions are to preside over the council of states. It is only on a rare occasion, and that too for a temporary period, that he may be called upon to assume the duties of the president. That being so, it does not seem necessary that the members of the state legislatures should also be invited to take part in the election of the Vice-President".

But, the manner of election is same in both the cases. Thus, the Vice-President's election, like that of the President's election, is held in accordance with the system of proportional representation by means of the single transferable vote and the voting is by secret ballot.[3]

All doubts and disputes in connection with election of the Vice-President are inquired into and decided by the Supreme Court whose decision is final. The election of a person as Vice-President cannot be challenged on the ground that the electoral college was incomplete (i.e., existence of any vacancy among the members of electoral college). If the election of a person as VicePresident is declared void by the Supreme Court, acts done by him before the

date of such declaration of the Supreme Court are not invalidated (i.e., they continue to remain in force).

QUALIFICATIONS, OATH AND CONDITIONS

Qualifications

To be eligible for election as Vice-President, a person should fulfil the following qualifications:

1. He should be a citizen of India.
2. He should have completed 35 years of age.
3. He should be qualified for election as a member of the Rajya Sabha.
4. He should not hold any office of profit under the Union government or any state government or any local authority or any other public authority.

Table 18.1 *Elections of the Vice-Presidents (1952–2017)*

Sl. No.	Election Year	Victorious Candidate	No. of Votes secured	Runner-up Candidate	No. of Votes secured
1.	1952	Dr. S. Radhakrishnan	–	Unopposed	–
2.	1957	Dr. S. Radhakrishnan	–	Unopposed	–
3.	1962	Dr. Zakir Hussain	568	N. Samant Singh	14
4.	1967	V.V. Giri	486	Prof. Habib	192
5.	1969	G.S. Pathak	400	H.V. Kamath	156
6.	1974	B.D. Jatti	521	N.E. Horo	141
7.	1979	M. Hidayatullah	–	unopposed	–
8.	1984	R. Venkataraman	508	B.C. Kambley	207
9.	1987	Dr. Shankar	–	unopposed	–

		Dayal Sharma			
10.	1992	K.R. Narayanan	700	Kaka Joginder Singh	01
11.	1997	Krishna Kant	441	Surjeet Singh Barnala	273
12.	2002	B.S. Shekhawat	454	Shushil Kumar Shinde	305
13.	2007	Mohd. Hamid Ansari	455	Najma Heptullah	222
14.	2012	Mohd. Hamid Ansari	490	Jaswant Singh	238
15.	2017	Venkaiah Naidu	516	Gopal Krishna Gandhi	244

But, a sitting President or Vice-President of the Union, the governor of any state and a minister for the Union or any state is not deemed to hold any office of profit and hence qualified for being a candidate for Vice-President.

Further, the nomination of a candidate for election to the office of Vice-President must be subscribed by at least 20 electors as proposers and 20 electors as seconders. Every candidate has to make a security deposit of ₹15,000 in the Reserve Bank of India.[4]

Oath or Affirmation

Before entering upon his office, the VicePresident has to make and subscribe to an oath or affirmation. In his oath, the VicePresident swears:

1. to bear true faith and allegiance to the Constitution of India; and
2. to faithfully discharge the duties of his office.

The oath of office to the Vice-President is administered by the President or some person appointed in that behalf by him.

Conditions of Office

The Constitution lays down the following two conditions of the Vice-President's office:

1. He should not be a member of either House of Parliament or a House of the state legislature. If any such person is elected Vice-President, he is deemed to have vacated his seat in that House on the date on which he enters upon his office as Vice-President.
2. He should not hold any other office of profit.

TERM AND VACANCY

Term of Office

The Vice-President holds office for a term of five years from the date on which he enters upon his office. However, he can resign from his office at any time by addressing the resignation letter to the President. He can also be removed from the office before completion of his term. A formal impeachment is not required for his removal. He can be removed by a resolution passed by a majority of all the then members of the Rajya Sabha and agreed to by the Lok Sabha. This means that this resolution should be passed in the Rajya Sabha by an effective majority and in the Lok Sabha by a simple majority. It must be noted here that the effective majority in India is only a type of special majority and not a separate one. Further, this resolution can be introduced only in the Rajya Sabha and not in the Lok Sabha. But, no such resolution can be moved unless at least 14 days' advance notice has been given. Notably, no ground has been mentioned in the Constitution for his removal.

The Vice-President can hold office beyond his term of five years until his successor assumes charge. He is also eligible for reelection to that office. He may be elected for any number of terms.[5]

Vacancy in Office

A vacancy in the Vice-President's office can occur in any of the following ways:

1. On the expiry of his tenure of five years.
2. By his resignation.
3. On his removal.
4. By his death.[6]
5. Otherwise, for example, when he becomes disqualified to hold office or when his election is declared void.

When the vacancy is going to be caused by the expiration of the term of the sitting vicepresident, an election to fill the vacancy

must be held before the expiration of the term.

If the office falls vacant by resignation, removal, death or otherwise, then election to fill the vacancy should be held as soon as possible after the occurrence of the vacancy. The newly-elected vice-president remains in office for a full term of five years from the date he assumes charge of his office.

POWERS AND FUNCTIONS

The functions of Vice-President are two-fold:

1. He acts as the *ex-officio* Chairman of Rajya Sabha. In this capacity, his powers and functions are similar to those of the Speaker of Lok Sabha. In this respect, he resembles the American vicepresident who also acts as the Chairman of the Senate–the Upper House of the American legislature.
2. He acts as President when a vacancy occurs in the office of the President due to his resignation, impeachment, death or otherwise.[7] He can act as President only for a maximum period of six months within which a new President has to be elected. Further, when the sitting President is unable to discharge his functions due to absence, illness or any other cause, the Vice-President discharges his functions until the President resumes his office.[8]

While acting as President or discharging the functions of President, the Vice-President does not perform the duties of the office of the chairman of Rajya Sabha. During this period, those duties are performed by the Deputy Chairman of Rajya Sabha.

The Constitution has not fixed any emoluments for the Vice-President in that capacity. He draws his regular salary in his capacity as the *ex-officio* Chairman of the Rajya Sabha. In 2018, the Parliament increased the salary of the Chairman of the Rajya Sabha from ₹1.25 lakh to ₹4 lakh per month[9]. Earlier in 2008, the pension of the retired Vice-President was increased from ₹20,000 per month to 50% of his salary per month[10]. In addition, he is entitled to daily allowance, free furnished residence, medical, travel and other facilities.

During any period when the Vice-President acts as President or discharges the functions of the President, he is not entitled to the salary or allowance payable to the Chairman of Rajya Sabha, but the salary and allowance of the President.

INDIAN AND AMERICAN VICEPRESIDENTS COMPARED

Though the office of the Indian VicePresident is modelled on the lines of the American Vice-President, there is a difference. The American Vice-President succeeds to the presidency when it falls vacant, and remains President for the unexpired term of his predecessor. The Indian Vice-President, on the other hand, does not assume the office of the President when it falls vacant for the unexpired term. He merely serves as an acting President until the new President assumes charge.

From the above it is clear that the Constitution has not assigned any significant function to the Vice-President in that capacity. Hence, some scholars call him 'His Superfluous Highness'. This office was created with a view to maintain the political continuity of the Indian State.

Table 18.2 *Articles Related to Vice-President at a Glance*

Article No.	Subject-matter
63.	The Vice-President of India
64.	The Vice-President to be ex-officio Chairman of the Council of States
65.	The Vice-President to act as President or to discharge his functions during casual vacancies in the office, or during the absence, of President
66.	Election of Vice-President
67.	Term of office of Vice-President
68.	Time of holding election to fill vacancy in the office of Vice-President and the term of office of person elected to fill casual vacancy
69.	Oath or affirmation by the Vice-President
70.	Discharge of President's functions in other contingencies

71.	Matters relating to, or connected with, the election of Vice-President

NOTES AND REFERENCES

1. The original Constitution provided that the Vice-President would be elected by the two Houses of Parliament assembled at a joint meeting. This cumbersome procedure was done away by the 11th Constitutional Amendment Act of 1961.
2. *Constituent Assembly Debates,* Volume VII, p. 1001.
3. This method is discussed in Chapter 17.
4. Presidential and Vice-Presidential Elections Act, 1952 as amended in 1997.
5. Dr. S. Radhakrishnan was elected for a second term.
6. Krishna Kant was the first Vice-President to die in office.
7. When two Presidents, Dr. Zakir Hussain and Fakruddin Ali Ahmed, died in office, the then respective Vice-Presidents, V.V. Giri and B.D. Jatti acted as President.
8. The Vice-President Dr. S. Radhakrishnan discharged the functions of the President in June 1960 when the then President Dr. Rajendra Prasad was on a 15-day tour to the USSR and again in July 1961 when he (Dr. Rajendra Prasad) was very ill.
9. Vide the Finance Act, 2018, with effect from 1st January, 2016. This Act amended the Salaries and Allowances of Officers of Parliament Act, 1953.
10. The Vice-President's Pension (Amendment) Act, 2008.

19 Prime Minister

In the scheme of parliamentary system of government provided by the constitution, the President is the nominal executive authority (*de jure* executive) and Prime Minister is the real executive authority (*de facto* executive). In other words, president is the head of the State while Prime Minister is the head of the government.

APPOINTMENT OF THE PRIME MINISTER

The Constitution does not contain any specific procedure for the selection and appointment of the Prime Minister. Article 75 says only that the Prime Minister shall be appointed by the president. However, this does not imply that the president is free to appoint any one as the Prime Minister. In accordance with the conventions of the parliamentary system of government, the President has to appoint the leader of the majority party in the Lok Sabha as the Prime Minister. But, when no party has a clear majority in the Lok Sabha, then the President may exercise his personal discretion in the selection and appointment of the Prime Minister. In such a situation, the President usually appoints the leader of the largest party or coalition in the Lok Sabha as the Prime Minister and asks him to seek a vote of confidence in the House within a month. This discretion was exercised by the President, for the first time in 1979, when Neelam Sanjiva Reddy (the then President) appointed Charan Singh (the coalition leader) as the Prime Minister after the fall of the Janata Party government headed by Morarji Desai.

There is also one more situation when the president may have to exercise his individual judgement in the selection and appointment of the Prime Minister, that is, when the Prime Minister in office dies suddenly and there is no obvious successor. This is what happened when Indira Gandhi was assassinated in 1984. The then President Zail Singh appointed Rajiv Gandhi as the Prime Minister by ignoring the precedent of appointing a caretaker Prime Minister.[1] Later on, the Congress parliamentary party unanimously elected him as its leader. However, if, on the death of an incumbent Prime Minister, the ruling party elects a new leader, the President has no choice but to appoint him as Prime Minister.

In 1980, the Delhi High Court held that the Constitution does not require that a person must prove his majority in the Lok Sabha before he is appointed as the Prime Minister. The President may first appoint him the Prime Minister and then ask him to prove his majority in the Lok Sabha within a reasonable period. For example, Charan Singh (1979), V.P. Singh (1989), Chandrasekhar

(1990), P.V. Narasimha Rao (1991), A.B. Vajyapee (1996), Deve Gowda (1996), I.K. Gujral (1997) and again A.B. Vajpayee (1998) were appointed as Prime Ministers in this way.

In 1997, the Supreme Court held that a person who is not a member of either House of Parliament can be appointed as Prime Minister for six months, within which, he should become a member of either House of Parliament; otherwise, he ceases to be the Prime Minister.

Constitutionally, the Prime Minister may be a member of any of the two Houses of parliament. For example, three Prime Ministers, Indira Gandhi (1966), Deve Gowda (1996) and Manmohan Singh (2004), were members of the Rajya Sabha. In Britain, on the other hand, the Prime Minister should definitely be a member of the Lower House (House of Commons).

OATH, TERM AND SALARY

Before the Prime Minister enters upon his office, the president administers to him the oaths of office and secrecy.[2] In his oath of office, the Prime Minister swears:

1. to bear true faith and allegiance to the Constitution of India,
2. to uphold the sovereignty and integrity of India,
3. to faithfully and conscientiously discharge the duties of his office, and
4. to do right to all manner of people in accordance with the Constitution and the law, without fear or favour, affection or ill will.

In his oath of secrecy, the Prime Minister swears that he will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his consideration or becomes known to him as a Union Minister except as may be required for the due discharge of his duties as such minister.

The term of the Prime Minister is not fixed and he holds office during the pleasure of the president. However, this does not mean that the president can dismiss the Prime Minister at any time. So long as the Prime Minister enjoys the majority support in the Lok Sabha, he cannot be dismissed by the President. However, if he loses the confidence of the Lok Sabha, he must resign or the President can dismiss him.[3]

The salary and allowances of the Prime Minister are determined by the Parliament from time to time. He gets the salary and allowances that are payable to a member of Parliament. Additionally, he gets a sumptuary allowance, free accommodation, travelling allowance, medical facilities, etc. In 2001, the Parliament increased his sumptuary allowance from ₹1,500 to ₹3,000 per month.

POWERS AND FUNCTIONS OF THE PRIME MINISTER

The powers and functions of Prime Minister can be studied under the following heads:

In Relation to Council of Ministers

The Prime Minister enjoys the following powers as head of the Union council of ministers:

1. He recommends persons who can be appointed as ministers by the president. The President can appoint only those persons as ministers who are recommended by the Prime Minister.
2. He allocates and reshuffles various portfolios among the ministers.
3. He can ask a minister to resign or advise the President to dismiss him in case of difference of opinion.
4. He presides over the meeting of council of ministers and influences its decisions.
5. He guides, directs, controls, and coordinates the activities of all the ministers.
6. He can bring about the collapse of the council of ministers by resigning from office.

Since the Prime Minister stands at the head of the council of ministers, the other ministers cannot function when the Prime Minister resigns or dies. In other words, the resignation or death of an incumbent Prime Minister automatically dissolves the council of ministers and thereby generates a vacuum. The resignation or death of any other minister, on the other hand, merely creates a vacancy which the Prime Minister may or may not like to fill.

In Relation to the President

The Prime Minister enjoys the following powers in relation to the President:

1. He is the principal channel of communication between the President and the council of ministers.[4] It is the duty of the

prime minister:

(a) to communicate to the President all decisions of the council of ministers relating to the administration of the affairs of the Union and proposals for legislation;

(b) to furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for; and

(c) if the President so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

2. He advises the president with regard to the appointment of important officials like attorney general of India, Comptroller and Auditor General of India, chairman and members of the UPSC, election commissioners, chairman and members of the finance commission and so on.

In Relation to Parliament

The Prime Minister is the leader of the Lower House. In this capacity, he enjoys the following powers:

1. He advises the President with regard to summoning and proroguing of the sessions of the Parliament.
2. He can recommend dissolution of the Lok Sabha to President at any time.
3. He announces government policies on the floor of the House.

Other Powers & Functions

In addition to the above-mentioned three major roles, the Prime Minister has various other roles. These are:

1. He is the chairman of the NITI Ayog (which succeded the planning commission), National Integration Council, InterState Council, National Water Resources Council and some other bodies.
2. He plays a significant role in shaping the foreign policy of the country.
3. He is the chief spokesman of the Union government.

4. He is the crisis manager-in-chief at the political level during emergencies.
5. As a leader of the nation, he meets various sections of people in different states and receives memoranda from them regarding their problems, and so on.
6. He is leader of the party in power.
7. He is political head of the services.

Thus, the Prime Minister plays a very significant and highly crucial role in the politico-administrative system of the country. Dr. B.R. Ambedkar stated, ‘If any functionary under our constitution is to be compared with the US president, he is the Prime Minister and not the president of the Union’.

ROLE DESCRIPTIONS

The various comments made by the eminent political scientists and constitutional experts on the role of Prime Minister in Britain holds good in the Indian context also. These are mentioned below:

Lord Morely
He described Prime Minister as 'primus inter pares' (first among equals) and 'key stone of the cabinet arch'. He said, "The head of the cabinet is 'primus inter pares', and occupied a position which so long as it lasts, is one of exceptional and peculiar authority".

Herbert Marrison
"As the head of the Government, he (prime minister) is 'primus inter pares'. But, it is today for too modest an appreciation of the Prime Minister's position".

Sir William Vernor Harcourt
He described Prime Minister as 'inter stellas luna minores' (a moon among lesser stars).

Jennings
"He is, rather, a sun around which planets revolve. He is the key-stone of the constitution. All roads in the constitution lead to the Prime Minister."

H.J. Laski
On the relationship between the Prime Minister and the cabinet, he said that the Prime Minister "is central to its formation, central to its life, and central to its death". He described him as "the pivot around which the entire governmental machinery revolves."

H.R.G. Greaves
"The Government is the master of the country and he (Prime Minister) is the master of the Government."

Munro

He called Prime Minister as “the captain of the ship of the state”.

Ramsay Muir

He described Prime Minister as “the steersman of steering wheel of the ship of the state.”

The role of the Prime Minister in the British parliamentary government is so significant and crucial that observers like to call it a ‘Prime Ministerial government.’ Thus, R.H. Crossman says, ‘The post-war epoch has been the final transformation of cabinet government into Prime Ministerial government.’ Similarly, Humphrey Berkely points out, ‘Parliament is not, in practice, sovereign. The parliamentary democracy has now collapsed at Westminster. The basic defect in the British system of governing is the super-ministerial powers of the Prime Minister.’ The same description holds good to the Indian context too.

RELATIONSHIP WITH THE PRESIDENT

The following provisions of the Constitution deal with the relationship between the President and the Prime Minister:

1. Article 74
There shall be a council of ministers with the Prime Minister at the head to aid and advise the President who shall, in the exercise of his functions, act in accordance with such advice. However, the President may require the council of ministers to reconsider such advice and the President shall act in accordance with the advice tendered after such reconsideration.

2. Article 75
(a) The Prime Minister shall be appointed by the President and the other ministers shall be appointed by the president on the advice of the Prime Minister; (b) The ministers shall hold office during the pleasure of the president; and (c) The council of ministers shall be collectively responsible to the House of the People.

3. Article 78
It shall be the duty of the Prime Minister:

(a) to communicate to the President all decisions of the council of ministers relating to the administration of the affairs of the Union and proposals for legislation;
(b) to furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for; and
(c) if the President so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

CHIEF MINISTERS WHO BECAME PRIME MINISTERS

Six people–Morarji Desai, Charan Singh, V.P. Singh, P.V. Narasimha Rao, H.D. Deve Gowda and Narendra Modi–became Prime Ministers after being Chief Ministers of their respective States. Morarji Desai, Chief Minister of the erstwhile Bombay State during 1952–56, became the first non-Congress Prime Minister in March 1977. Charan Singh, who succeeded him, was the Chief Minister of the undivided Uttar Pradesh in 1967–1968 and again in 1970. V.P. Singh, also from U.P., became Prime Minister in the short lived National Front government (December 1989-November 1990). P.V. Narasimha Rao, the first Prime Minister from South India, who held the post from 1991–1996, was Chief Minister of Andhra Pradesh between 1971–1973. H.D. Deve Gowda was Chief Minister of Karnataka when he was chosen to lead the United Front government in June 1996[5] .

Narendra Modi (BJP) was the Chief Minister of Gujarat when he became the Prime Minister in May 2014. He served as the Chief Minister of Gujarat for four times during 2001 to 2014.

Table 19.1 *Articles Related to Prime Minister at a Glance*

Article No.	Subject-matter
74.	Council of Ministers to aid and advise President
75.	Other provisions as to Ministers
77.	Conduct of business of the Government of India
78.	Duties of Prime Minister as respects the furnishing of information to the President, etc.
88.	Rights of Ministers as respects the Houses.

NOTES AND REFERENCES

1. On the death of Jawaharlal Nehru and Lal Bahadur Shastri when the leadership was contested, the

president made temporary arrangements by appointing the seniormost minister as the Prime Minister, until the formal election of the leader by the party. Both the times, it was Gulzari Lal Nanda who acted as the Prime Minister.

2. The form of oath of office and secrecy for the Prime Minister is similar to that for any Union minister. See Chapter 20.
3. For example, V.P. Singh in 1990 and Deve Gowda in 1997 resigned after defeat in the Lok Sabha.
4. Article 78 specifically deals with this function of the Prime Minister.
5. The Hindu, April 6, 2009.

20 Central Council of Ministers

As the Constitution of India provides for a parliamentary system of government modelled on the British pattern, the council of ministers headed by the prime minister is the real executive authority is our politico-administrative system.

The principles of parliamentary system of government are not detailed in the Constitution, but two Articles (74 and 75) deal with them in a broad, sketchy and general manner. Article 74 deals with the status of the council of ministers while Article 75 deals with the appointment, tenure, responsibility, qualification, oath and salaries and allowances of the ministers.

CONSTITUTIONAL PROVISIONS

Article 74—Council of Ministers to aid and advise President

1. There shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President who shall, in the exercise of his functions, act in accordance with such advice. However, the President may require the Council of Ministers to reconsider such advice and the President shall act in accordance with the advice tendered after such reconsideration.
2. The advice tendered by Ministers to the President shall not be inquired into in any court.

Article 75–Other Provisions as to Ministers

1. The Prime Minister shall be appointed by the President and the other Ministers shall be appointed by the President on the advice of the Prime Minister.
2. The total number of ministers, including the Prime Minister, in the Council of Ministers shall not exceed 15% of the total strength of the Lok Sabha. This provision was added by the 91st Amendment Act of 2003.
3. A member of either house of Parliament belonging to any political party who is disqualified on the ground of defection shall also be disqualified to be appointed as a minister. This provision was also added by the 91st Amendment Act of 2003.
4. The ministers shall hold office during the pleasure of the President.
5. The council of ministers shall be collectively responsible to the Lok Sabha.
6. The President shall administer the oaths of office and secrecy to a minister.
7. A minister who is not a member of the Parliament (either house) for any period of six consecutive months shall cease

to be a minister.
8. The salaries and allowances of ministers shall be determined by the Parliament.

Article 77–Conduct of Business of the Government of India

1. All executive action of the Government of India shall be expressed to be taken in the name of the President.
2. Orders and other instruments made and executed in the name of the President shall be authenticated in such manner as may be specified in rules to be made by the President. Further, the validity of an order or instrument which is so authenticated shall not be called in question on the ground that it is not an order or instrument made or executed by the President.
3. The President shall make rules for the more convenient transaction of the business of the Government of India, and for the allocation among Ministers of the said business.

Article 78–Duties of Prime Minister

It shall be the duty of the Prime Minister

1. To communicate to the President all decisions of the Council of Ministers relating to the administration of the affairs of the Union and proposals for legislation
2. To furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for
3. If the President so requires, to submit for the consideration of the Council of Ministers any matter on which a decision has been taken by a Minister but which has not been considered by the Council

Article 88–Rights of Ministers as Respects the Houses

Every minister shall have the right to speak and take part in the proceedings of either House, any joint sitting of the Houses and

any Committee of Parliament of which he may be named a member. But he shall not be entitled to vote.

NATURE OF ADVICE BY MINISTERS

Article 74 provides for a council of ministers with the Prime Minister at the head to aid and advise the President in the exercise of his functions. The 42nd and 44th Constitutional Amendment Acts have made the advice binding on the President.[1] Further, the nature of advice tendered by ministers to the President cannot be enquired by any court. This provision emphasises the intimate and the confidential relationship between the President and the ministers.

In 1971, the Supreme Court held that ‘even after the dissolution of the Lok Sabha, the council of ministers does not cease to hold office. Article 74 is mandatory and, therefore, the president cannot exercise the executive power without the aid and advise of the council of ministers. Any exercise of executive power without the aid and advice will be unconstitutional as being violative of Article 74’. Again in 1974, the court held that ‘wherever the Constitution requires the satisfaction of the President, the satisfaction is not the personal satisfaction of the President but it is the satisfaction of the council of ministers with whose aid and on whose advice the President exercises his powers and functions’.

APPOINTMENT OF MINISTERS

The Prime Minister is appointed by the President, while the other ministers are appointed by the President on the advice of the Prime Minister. This means that the President can appoint only those persons as ministers who are recommended by the Prime minister.

Usually, the members of Parliament, either Lok Sabha or Rajya Sabha, are appointed as ministers. A person who is not a member of either House of Parliament can also be appointed as a minister. But, within six months, he must become a member (either by election or by nomination) of either House of Parliament, otherwise, he ceases to be a minister.

A minister who is a member of one House of Parliament has the right to speak and to take part in the proceedings of the other House also, but he can vote only in the House of which he is a member.

OATH AND SALARY OF MINISTERS

Before a minister enters upon his office, the president administers to him the oaths of office and secrecy. In his oath of office, the minister swears:

1. to bear true faith and allegiance to the Constitution of India,
2. to uphold the sovereignty and integrity of India,
3. to faithfully and conscientiously discharge the duties of his office, and
4. to do right to all manner of people in accordance with the Constitution and the law, without fear or favour, affection or ill will.

In his oath of secrecy, the minister swears that he will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his consideration or becomes known to him as a Union minister except as may be required for the due discharge of his duties as such minister.

In 1990, the oath by Devi Lal as deputy prime minister was challenged as being unconstitutional as the Constitution provides only for the Prime Minister and ministers. The Supreme Court upheld the oath as valid and stated that describing a person as Deputy Prime Minister is descriptive only and such description does not confer on him any powers of Prime Minister. It ruled that the description of a minister as Deputy Prime Minister or any other type of minister such as minister of state or deputy minister of which there is no mention in the Constitution does not vitiate the oath taken by him so long as the substantive part of the oath is correct.

The salaries and allowances of ministers are determined by Parliament from time to time.[2] A minister gets the salary and allowances that are payable to a member of Parliament. Additionally, he gets a sumptuary allowance (according to his rank), free accommodation, travelling allowance, medical facilities, etc. In 2001, the sumptuary allowance for the prime minister was raised from ₹1,500 to ₹3,000 per month, for a cabinet minister from ₹1,000 to ₹2,000 per month, for a minister of state from ₹500

to ₹1,000 per month and for a deputy minister from ₹300 to ₹600 per month.

RESPONSIBILITY OF MINISTERS

Collective Responsibility

The fundamental principle underlying the working of parliamentary system of government is the principle of collective responsibility. Article 75 clearly states that the council of ministers is collectively responsible to the Lok Sabha. This means that all the ministers own joint responsibility to the Lok Sabha for all their acts of ommission and commission. They work as a team and swim or sink together. When the Lok Sabha passes a no-confidence motion against the council of ministers, all the ministers have to resign including those ministers who are from the Rajya Sabha.[3] Alternatively, the council of ministers can advise the president to dissolve the Lok Sabha on the ground that the House does not represent the views of the electorate faithfully and call for fresh elections. The President may not oblige the council of ministers that has lost the confidence of the Lok Sabha.

The principle of collective responsibility also means that the Cabinet decisions bind all cabinet ministers (and other ministers) even if they differed in the cabinet meeting. It is the duty of every minister to stand by cabinet decisions and support them both within and outside the Parliament. If any minister disagrees with a cabinet decision and is not prepared to defend it, he must resign. Several ministers have resigned in the past owing to their differences with the cabinet. For example, Dr. B.R. Ambedkar resigned because of his differences with his colleagues on the Hindu Code Bill in 1953. C.D. Deshmukh resigned due to his differences on the policy of reorganisation of states. Arif Mohammed resigned due to his opposition to the Muslim Women (Protection of Rights on Divorce) Act, 1986.

Individual Responsibility

Article 75 also contains the principle of individual responsibility. It states that the ministers hold office during the pleasure of the president, which means that the President can remove a minister

even at a time when the council of ministers enjoys the confidence of the Lok Sabha. However, the President removes a minister only on the advice of the Prime Minister. In case of a difference of opinion or dissatisfaction with the performance of a minister, the Prime Minister can ask him to resign or advice the President to dismiss him. By exercising this power, the Prime Minister can ensure the realisation of the rule of collective responsibility. In this context, Dr. B.R. Ambedkar observed:

> "Collective responsibility can be achieved only through the instrumentality of the Prime Minister. Therefore, unless and until we create that office and endow that office with statutory authority to nominate and dismiss ministers, there can be no collective responsibility."[4]

No Legal Responsibility

In Britain, every order of the King for any public act is countersigned by a minister. If the order is in violation of any law, the minister would be held responsible and would be liable in the court. The legally accepted phrase in Britain is, "The king can do no wrong." Hence, he cannot be sued in any court.

In India, on the other hand, there is no provision in the Constitution for the system of legal responsibility of a minister. It is not required that an order of the President for a public act should be countersigned by a minister. Moreover, the courts are barred from enquiring into the nature of advice rendered by the ministers to the president.

COMPOSITION OF THE COUNCIL OF MINISTERS

The council of ministers consists of three categories of ministers, namely, cabinet ministers, ministers of state,[5] and deputy ministers. The difference between them lies in their respective ranks, emoluments, and political importance. At the top of all these ministers stands the Prime Minister–the supreme governing authority of the country.

The cabinet ministers head the important ministries of the Central government like home, defence, finance, external affairs and so forth. They are members of the cabinet, attend its meetings and play an important role in deciding policies. Thus, their responsibilities extend over the entire gamut of Central government.

The ministers of state can either be given independent charge of ministries/ departments or can be attached to cabinet ministers. In case of attachment, they may either be given the charge of departments of the ministries headed by the cabinet ministers or allotted specific items of work related to the ministries headed by cabinet ministers. In both the cases, they work under the supervision and guidance as well as under the overall charge and responsibility of the cabinet ministers. In case of independent charge, they perform the same functions and exercise the same powers in relation to their ministries/departments as cabinet ministers do. However, they are not members of the cabinet and do not attend the cabinet meetings unless specially invited when something related to their ministries/ departments are considered by the cabinet.

Next in rank are the deputy ministers. They are not given independent charge of ministries/departments. They are attached to the cabinet ministers or ministers of state and assist them in their administrative, political, and parliamentary duties. They are not members of the cabinet and do not attend cabinet meetings.

It must also be mentioned here that there is one more category of ministers, called parliamentary secretaries. They are the members of the last category of the council of ministers (which is also known as the ‘ministry’). They have no department under

their control. They are attached to the senior ministers and assist them in the discharge of their parliamentary duties. However, since 1967, no parliamentary secretaries have been appointed except during the first phase of Rajiv Gandhi Government.

At times, the council of ministers may also include a deputy prime minister. The deputy prime ministers are appointed mostly for political reasons.

COUNCIL OF MINISTERS VS CABINET

The words ‘council of ministers’ and ‘cabinet’ are often used interchangeably though there is a definite distinction between them. They differ from each other in respects of composition, functions, and role. These differences are shown in Table 20.1.

ROLE OF CABINET

1. It is the highest decision-making authority in our politico-administrative system.
2. It is the chief policy formulating body of the Central government.
3. It is the supreme executive authority of the Central government.
4. It is chief coordinator of Central administration.
5. It is an advisory body to the president and its advice is binding on him.
6. It is the chief crisis manager and thus deals with all emergency situations.
7. It deals with all major legislative and financial matters.
8. It exercises control over higher appointments like constitutional authorities and senior secretariat administrators.
9. It deals with all foreign policies and foreign affairs.

Table 20.1 *Distinction Between Council of Ministers and Cabinet*

Council of ministers	Cabinet
1. It is a wider body consisting of 60 to 70 ministers.	1. It is a smaller body consisting of 15 to 20 ministers.
2. It includes all the three categories of ministers, that is, cabinet ministers, ministers of state, and deputy ministers.	2. It includes the cabinet ministers only. Thus, it is a part of the council of ministers.
3. It does not meet, as a body, to transact government business. It has no collective functions.	3. It meets, as a body, frequently and usually once in a week to deliberate and take decisions regarding the transaction of government business.

	Thus, it has collective functions.
4. It is vested with all powers but in theory.	4. It exercises, in practice, the powers of the council of ministers and thus, acts for the latter.
5. Its functions are determined by the cabinet.	5. It directs the council of ministers by taking policy decisions which are binding on all ministers.
6. It implements the decisions taken by the cabinet.	6. It supervises the implementation of its decisions by the council of ministers.
7. It is a constitutional body, dealt in detail by the Articles 74 and 75 of the Constitution. Its size and classification are, however, not mentioned in the Constitution. Its size is determined by the prime minister according to the exigencies of the time and requirements of the situation. Its classification into a three-tier body is based on the conventions of parliamentary government as developed in Britain. It has, however, got a legislative sanction. Thus, the Salaries and Allowances Act of 1952 defines a 'minister' as a 'member of the council of ministers, by whatever	7. It was inserted in Article 352 of the Constitution in 1978 by the 44th Constitutional Amendment Act. Thus, it did not find a place in the original text of the Constitution. Now also, Article 352 only defines the cabinet saying that it is 'the council consisting of the prime minister and other ministers of cabinet rank appointed under Article 75' and does not describe its powers and functions. In other words, its role in our politico-administrative system is based on the conventions of parliamentary government as developed in Britain.

name called, and includes a deputy minister’.	
8. It is collectively responsible to the Lower House of the Parliament.	8. It enforces the collective responsibility of the council of ministers to the Lower House of Parliament.

ROLE DESCRIPTIONS

The various comments made by the eminent political scientists and constitutional experts on the role of cabinet in Britain holds good in the Indian context also. These are mentioned below.

Ramsay Muir
"The Cabinet is the steering wheel of the ship of the state."

Lowell
"The Cabinet is the keystone of the political arch".

Sir John Marriott
"The Cabinet is the pivot around which the whole political machinery revolves".

Gladstone
"The Cabinet is the solar orb around which the other bodies revolve".

Barker
"The Cabinet is the magnet of policy".

Bagehot
"The Cabinet is a hyphen that joins, the buckle that binds the executive and legislative departments together".

Sir Ivor Jennings
"The Cabinet is the core of the British Constitutional System. It provides unity to the British system of Government".

L.S. Amery
"The Cabinet is the central directing instrument of Government".

The position of the Cabinet in the British Government has become so strong that Ramsay Muir referred to it as the 'Dictatorship of the Cabinet'. In his book '*How Britain is Governed*', he writes "A body which wields such powers as these may fairly be described as 'omnipotent' in theory, however, incapable it may be of using its omnipotence. Its position,

whenever it commands a majority, is a dictatorship only qualified by publicity. This dictatorship is far more absolute that it was two generations ago". The same description holds good in the Indian context too.

KITCHEN CABINET

The cabinet, a small body consisting of the prime minister as its head and some 15 to 20 most important ministers, is the highest decision-making body in the formal sense. However, a still smaller body called the 'Inner Cabinet' or 'Kitchen Cabinet' has become the real centre of power. This informal body consists of the Prime Minister and two to four influential colleagues in whom he has faith and with whom he can discuss every problem. It advises the prime minister on important political and administrative issues and assists him in making crucial decisions. It is composed of not only cabinet ministers but also outsiders like friends and family members of the prime minister.

Every prime minister in India has had his 'Inner Cabinet'–a circle within a circle. During the era of Indira Gandhi, the 'Inner Cabinet' which came to be called the 'Kitchen Cabinet' was particularly powerful.

The prime ministers have resorted to the device of 'inner cabinet' (extra-constitutional body) due to its merits, namely:

1. It being a small unit, is much more efficient decision-making body than a large cabinet.
2. It can meet more often and deal with business much more expeditiously than the large cabinet.
3. It helps the Prime Minister in maintaining secrecy in making decisions on important political issues.

However, it has many demerits also. Thus,[6]

1. It reduces the authority and status of the cabinet as the highest decision-making body.
2. It circumvents the legal process by allowing outside persons to play an influential role in the government functioning.

The phenomenon of 'kitchen cabinet' (where decisions are cooked and placed before the cabinet for formal approval) is not unique to India. It also exists in USA and Britain and is quite powerful in influencing government decisions there.

Table 20.2 *Articles Related to Central Council of Ministers at a Glance*

Article No.	Subject Matter
74.	Council of Ministers to aid and advise President
75.	Other provisions as to Ministers
77.	Conduct of business of the Government of India
78.	Duties of Prime Minister as respects the furnishing of information to the President, etc.
88.	Rights of Ministers as respects the Houses.

NOTES AND REFERENCES

1. This Article was amended by the 42nd Constitutional Amendment Act of 1976 to the effect that the president shall, in the exercise of his functions, act in accordance with the advice rendered by the council of ministers. The 44th Constitutional Amendment Act of 1978 further added a proviso to this article to the effect that the president may require the council of ministers to reconsider such advice and the president shall act in accordance with the advice tendered after such reconsideration.
2. The Salaries and Allowances of Ministers Act, 1952, has been passed for this purpose.
3. Each minister need not resign separately; the resignation of the prime minister amounts to the resignation of the entire council of ministers.
4. *Constituent Assembly Debates*, Volume VIII, p. 1160
5. In 1952, the minister of state was given the new designation of 'Minister of Cabinet Rank'. But in 1957, the earlier designation was restored.
6. Avasthi and Avasthi, *Indian Administration*, Laksmi Narain Agarwal, First Edition, 1993, p. 79.

21 Cabinet Committees

FEATURES OF CABINET COMMITTEES

The following are the features of Cabinet Committees:

1. They are extra-constitutional in emergence. In other words, they are not mentioned in the Constitution. However, the Rules of Business provide for their establishment.
2. They are of two types–standing and *ad hoc*. The former are of a permanent nature while the latter are of a temporary nature. The *ad hoc* committees are constituted from time to time to deal with special problems. They are disbanded after their task is completed.[1]
3. They are set up by the Prime Minister according to the exigencies of the time and requirements of the situation. Hence, their number, nomenclature, and composition varies from time to time.
4. Their membership varies from three to eight. They usually include only Cabinet Ministers. However, the non-cabinet Ministers are not debarred from their membership.
5. They not only include the Ministers in charge of subjects covered by them but also include other senior Ministers.
6. They are mostly headed by the Prime Minister. Some times other Cabinet Ministers, particularly the Home Minister or the Finance Minister, also acts as their Chairman. But, in case the Prime Minister is a member of a committee, he invariably presides over it.
7. They not only sort out issues and formulate proposals for the consideration of the Cabinet, but also take decisions. However, the Cabinet can review their decisions.
8. They are an organisational device to reduce the enormous workload of the Cabinet. They also facilitate in-depth examination of policy issues and effective coordination. They

are based on the principles of division of labour and effective delegation.

LIST OF CABINET COMMITTEES

In 1994, there were the following 13 Cabinet Committees:

1. Cabinet Committee on Political Affairs
2. Cabinet Committee on Natural Calamities
3. Cabinet Committee on Parliamentary Affairs
4. Appointments Committee of the Cabinet
5. Cabinet Committee on Accommodation
6. Cabinet Committee on Foreign Investment
7. Cabinet Committee on Drug Abuse Control
8. Cabinet Committee on Prices
9. Cabinet Committee on Minority Welfare
10. Cabinet Committee on Economic Affairs
11. Cabinet Committee on Trade and Investment
12. Cabinet Committee on Expenditure
13. Cabinet Committee on Infrastructure

In 2013, the following 10 Cabinet Committees were in existence:

1. Cabinet Committee on Economic Affairs
2. Cabinet Committee on Prices
3. Cabinet Committee on Political Affairs
4. Appointments Committee of the Cabinet
5. Cabinet Committee on Security
6. Cabinet Committee on World Trade Organisation (WTO) Matters
7. Cabinet Committee on Investment
8. Cabinet Committee on Unique Identification Authority of India (UIDAI) related issues
9. Cabinet Committee on Parliamentary Affairs
10. Cabinet Committee on Accommodation

At present (2019), the following 8 Cabinet Committees are functional:

1. Cabinet Committee on Political Affairs
2. Cabinet Committee on Economic Affairs
3. Appointments Committee of the Cabinet
4. Cabinet Committee on Security
5. Cabinet Committee on Parliamentary Affairs
6. Cabinet Committee on Accommodation

7. Cabinet Committee on Investment and Growth
8. Cabinet Committee on Employment and Skill Development

FUNCTIONS OF CABINET COMMITTEES

The following four are the more important cabinet committees:

1. The Political Affairs Committee deals with all policy matters pertaining to domestic and foreign affairs.
2. The Economic Affairs Committee directs and coordinates the governmental activities in the economic sphere.
3. Appointments Committee decides all higher level appointments in the Central Secretariat, Public Enterprises, Banks and Financial Institutions.
4. Parliamentary Affairs Committee looks after the progress of government business in the Parliament.

The first three committees are chaired by the Prime Minister and the last one by the Home Minister. Of all the Cabinet Committees, the most powerful is the Political Affairs Committee, often described as a “Super-Cabinet”.

GROUPS OF MINISTERS

In addition to cabinet committees, several Groups of Ministers (GoMs) are constituted to look into different issues / subjects. Some of these GoMs are empowered to take decisions on behalf of the Cabinet whereas the others make recommendations to the Cabinet.[2]

The institution of GoMs has become a viable and effective instrument of coordination among the ministries. These are *ad hoc* bodies formed to give recommendations to the cabinet on certain emergent issues and critical problem areas. Ministers heading the concerned ministries are inducted into the relevant GoMs and when the advice is crystallised they are disbanded.[3]

The Second Administrative Reforms Commission (2005–2009) made the following observations and recommendations with respect to the working of the GoMs[4] *:*

1. The Commission observed that the constitution of a large number of GoMs has resulted in many GoMs not being able to meet regularly to complete their work thus leading to significant delays on many major issues.
2. The Commission felt that more selective use of the institution of GoMs would perhaps lead to more effective coordination particularly if they are empowered to arrive at a decision on behalf of the Cabinet with time limits that are prescribed for completing the work entrusted to them.
3. The Commission recommended that there is need to ensure that the existing coordination mechanism of GoMs function effectively and helps in early resolution of issues. Selective, but effective use of GoMs with clear mandate and prescribed time limits would be helpful.

NOTES AND REFERENCES

1. For example, the Emergency Committee was set-up in 1962 after the Chinese invasion.

2. Second Administrative Reforms Commission, Government of India, Report on Organizational Structure of Government of India, 2009, P.136. This commission was headed by Veerappa Moily, a senior Congress leader and former Karnataka Chief Minister.
3. Ramesh K. Arora and Rajni Goyal, *Indian Public Administration*, New Age International Publishers, Third Edition, 2013, pp. 238–239.
4. Second Administrative Reforms Commission, Government of India, Report on Organisational Structure of Government of India, 2009, pp. 136–137 and 140.

22 Parliament

The Parliament is the legislative organ of the Union government. It occupies a pre-eminent and central position in the Indian democratic political system due to adoption of the parliamentary form of government, also known as 'Westminster' model of government[1] .

Articles 79 to 122 in Part V of the Constitution deal with the organisation, composition, duration, officers, procedures, privileges, powers and so on of the Parliament.

ORGANISATION OF PARLIAMENT

Under the Constitution, the Parliament of India consists of three parts viz, the President, the Council of States and the House of the People. In 1954, the Hindi names 'Rajya Sabha' and 'Lok Sabha' were adopted by the Council of States and the House of People respectively. The Rajya Sabha is the Upper House (Second Chamber or House of Elders) and the Lok Sabha is the Lower House (First Chamber or Popular House). The former represents the states and union territories of the Indian Union, while the latter represents the people of India as a whole.

Though the President of India is not a member of either House of Parliament and does not sit in the Parliament to attend its meetings, he is an integral part of the Parliament. This is because a bill passed by both the Houses of Parliament cannot become law without the President's assent. He also performs certain functions relating to the proceedings of the Parliament, for example, he summons and pro-rogues both the Houses, dissolves the Lok Sabha, addresses both the Houses, issues ordinances when they are not in session, and so on.

In this respect, the framers of the Indian Constitution relied on the British pattern rather than the American pattern. In Britain, the Parliament consists of the Crown (King or Queen), the House of Lords (Upper House) and the House of Commons (Lower House). By contrast, the American president is not an integral part of the legislature. In USA, the legislature, which is known as Congress, consists of the Senate (Upper House) and the House of Representatives (Lower House).

The parliamentary form of government emphasises on the interdependence between the legislative and executive organs. Hence, we have the 'President-in-Parliament' like the 'Crown-in-Parliament' in Britain. The presidential form of government, on the other hand, lays stress on the separation of legislative and executive organs. Hence, *the American president is not regarded as a constituent part of the Congress*.

COMPOSITION OF THE TWO HOUSES

Composition of Rajya Sabha

The maximum strength of the Rajya Sabha is fixed at 250, out of which, 238 are to be the representatives of the states and union territories (elected indirectly) and 12 are nominated by the president.

At present, the Rajya Sabha has 245 members. Of these, 229 members represent the states, 4 members represent the union territories and 12 members are nominated by the president.

The Fourth Schedule of the Constitution deals with the allocation of seats in the Rajya Sabha to the states and union territories[2] .

1. Representation of States

The representatives of states in the Rajya Sabha are elected by the elected members of state legislative assemblies. The election is held in accordance with the system of proportional representation by means of the single transferable vote. The seats are allotted to the states in the Rajya Sabha on the basis of population. Hence, the number of representatives varies from state to state. For example, Uttar Pradesh has 31 members while Tripura has 1 member only. However, in USA, all states are given equal representation in the Senate irrespective of their population. USA has 50 states and the Senate has 100 members–2 from each state.

2. Representation of Union Territories

The representatives of each union territory in the Rajya Sabha are indirectly elected by members of an electoral college specially constituted for the purpose. This election is also held in accordance with the system of proportional representation by means of the single transferable vote. Out of the nine union territories, only three (Delhi, Puducherry and Jammu & Kashmir) have representation in Rajya Sabha. The populations of other six

union territories are too small to have any representative in the Rajya Sabha.

3. Nominated Members
The president nominates 12 members to the Rajya Sabha from people who have special knowledge or practical experience in art, literature, science and social service. The rationale behind this principle of nomination is to provide eminent persons a place in the Rajya Sabha without going through the process of election. It should be noted here that the American Senate has no nominated members.

Composition of Lok Sabha

The maximum strength of the Lok Sabha is fixed at 552. Out of this, 530 members are to be the representatives of the states, 20 members are to be the representatives of the union territories and 2 members are to be nominated by the president from the Anglo-Indian community[3] .

At present, the Lok Sabha has 545 members. Of these, 530 members represent the states, 13 members represent the union territories and 2 Anglo-Indian members are nominated by the President[4] .

1. Representation of States
The representatives of states in the Lok Sabha are directly elected by the people from the territorial constituencies in the states. The election is based on the principle of universal adult franchise. Every Indian citizen who is above 18 years of age and who is not disqualified under the provisions of the Constitution or any law is eligible to vote at such election. The voting age was reduced from 21 to 18 years by the 61st Constitutional Amendment Act, 1988.

2. Representation of Union Territories
The Constitution has empowered the Parliament to prescribe the manner of choosing the representatives of the union territories in the Lok Sabha. Accordingly, the Parliament has enacted the Union Territories (Direct Election to the House of the People) Act,

1965, by which the members of Lok Sabha from the union territories are also chosen by direct election.

3. Nominated Members

The president can nominate two members from the Anglo-Indian community if the community is not adequately represented in the Lok Sabha. Originally, this provision was to operate till 1960 but has been extended till 2020 by the 95th Amendment Act, 2009.

SYSTEM OF ELECTIONS TO LOK SABHA

The various aspects related to the system of elections to the Lok Sabha are as follows:

Territorial Constituencies

For the purpose of holding direct elections to the Lok Sabha, each state is divided into territorial constituencies. In this respect, the Constitution makes the following two provisions:

1. Each state is allotted a number of seats in the Lok Sabha in such a manner that the ratio between that number and its population is the same for all states. This provision does not apply to a state having a population of less than six millions.
2. Each state is divided into territorial constituencies in such a manner that the ratio between the population of each constituency and the number of seats allotted to it is the same throughout the state.

In brief, the Constitution ensures that there is uniformity of representation in two respects: (a) between the different states, and b) between the different constituencies in the same state.

The expression 'population' means the population as ascertained at the preceding census of which the relevant figures have been published.

Readjustment after each Census

After every census, a readjustment is to be made in (a) allocation of seats in the Lok Sabha to the states, and (b) division of each state into territorial constituencies. Parliament is empowered to determine the authority and the manner in which it is to be made. Accordingly, the Parliament has enacted the Delimitation Commission Acts in 1952, 1962, 1972 and 2002 for this purpose.

The 42nd Amendment Act of 1976 froze the allocation of seats in the Lok Sabha to the states and the division of each state into territorial constituencies till the year 2000 at the 1971 level. This ban on readjustment was extended for another 25 years (ie, upto

year 2026) by the 84th Amendment Act of 2001, with the same objective of encouraging population limiting measures.

The 84th Amendment Act of 2001 also empowered the government to undertake readjustment and rationalisation of territorial constituencies in the states on the basis of the population figures of 1991 census. Later, the 87th Amendment Act of 2003 provided for the delimitation of constituencies on the basis of 2001 census and not 1991 census. However, this can be done without altering the number of seats allotted to each state in the Lok Sabha.

Reservation of Seats for SCs and STs

Though the Constitution has abandoned the system of communal representation, it provides for the reservation of seats for scheduled castes and scheduled tribes in the Lok Sabha on the basis of population ratios[5] .

Originally, this reservation was to operate for ten years (ie, up to 1960), but it has been extended continuously since then by 10 years each time. Now, under the 95th Amendment Act of 2009, this reservation is to last until 2020.

Though seats are reserved for scheduled castes and scheduled tribes, they are elected by all the voters in a constituency, without any separate electorate. A member of scheduled castes and scheduled tribes is also not debarred from contesting a general (non-reserved) seat.

The 84th Amendment Act of 2001 provided for refixing of the reserved seats on the basis of the population figures of 1991 census as applied to rationalisation of the general seats. Later, the 87th Amendment Act of 2003 provided for the refixing of the reserved seats on the basis of 2001 census and not 1991 census.

First-Past-The-Post System

Though the Constitution has adopted the system of proportional representation in the case of Rajya Sabha, it has not preferred the same system in the case of Lok Sabha. Instead, it has adopted the system of territorial representation (First-past-the-post system) for the election of members to the Lok Sabha.

Under territorial representation, every member of the legislature represents a geographical area known as a constituency. From each constituency, only one representative is elected. Hence such a constituency is known as single-member constituency. In this system, a candidate who secures majority of votes is declared elected. This simple majority system of representation does not represent the whole electorate. In other words, it does not secure due representation to minorities (small groups).

The system of proportional representation aims at removing the defects of territorial representation. Under this system, all sections of the people get representation in proportion to their number. Even the smallest section of the population gets its due share of representation in the legislature.

There are two kinds of proportional representation, namely, single transferable vote system and list system. In India, the first kind is adopted for the election of members to the Rajya Sabha and state legislative council and for electing the President and the Vice-President.

Though some members of the Constituent Assembly had advocated the system of proportional representation for the election of members to the Lok Sabha, the Constitution has not adopted the system due to two reasons.

1. Difficulty for the voters to understand the system (which is complicated) due to low literacy scale in the country.
2. Unsuitability to the parliamentary government due to the tendency of the system to multiply political parties leading to instability in government.

Additionally, the system of proportional representation has the following demerits:

1. It is highly expensive.
2. It does not give any scope for organising by-elections.
3. It eliminates intimate contacts between voters and representatives.
4. It promotes minority thinking and group interests.
5. It increases the significance of party system and decreases that of voter.

DURATION OF TWO HOUSES

Duration of Rajya Sabha

The Rajya Sabha (first constituted in 1952) is a continuing chamber, that is, it is a permanent body and not subject to dissolution. However, one-third of its members retire every second year. Their seats are filled up by fresh elections and presidential nominations at the beginning of every third year. The retiring members are eligible for re-election and renomination any number of times.

The Constitution has not fixed the term of office of members of the Rajya Sabha and left it to the Parliament. Accordingly, the Parliament in the Representation of the People Act (1951) provided that the term of office of a member of the Rajya Sabha shall be six years. The act also empowered the president of India to curtail the term of members chosen in the first Rajya Sabha. In the first batch, it was decided by lottery as to who should retire. Further, the act also authorised the President to make provisions to govern the order of retirement of the members of the Rajya Sabha[6] .

Duration of Lok Sabha

Unlike the Rajya Sabha, the Lok Sabha is not a continuing chamber. Its normal term is five years from the date of its first meeting after the general elections, after which it automatically dissolves. However, the President is authorised to dissolve the Lok Sabha at any time even before the completion of five years and this cannot be challenged in a court of law.

Further, the term of the Lok Sabha can be extended during the period of national emergency be a law of Parliament for one year at a time[7] for any length of time. However, this extension cannot continue beyond a period of six months after the emergency has ceased to operate.

MEMBERSHIP OF PARLIAMENT

Qualifications

The Constitution lays down the following qualifications for a person to be chosen a member of the Parliament:

1. He must be a citizen of India.
2. He must make and subscribe to an oath or affirmation before the person authorised by the election commission for this purpose. In his oath or affirmation, he swears
   (a) To bear true faith and allegiance to the Constitution of India
   (b) To uphold the sovereignty and integrity of India
3. He must be not less than 30 years of age in the case of the Rajya Sabha and not less than 25 years of age in the case of the Lok Sabha.
4. He must posses other qualifications prescribed by Parliament.

The Parliament has laid down the following additional qualifications in the Representation of People Act (1951).

1. He must be registered as an elector for a parliamentary constituency. This is same in the case of both, the Rajya Sabha and the Lok Sabha. The requirement that a candidate contesting an election to the Rajya Sabha from a particular state should be an elector in that particular state was dispensed with in 2003. In 2006, the Supreme Court upheld the constitutional validity of this change.
2. He must be a member of a scheduled caste or scheduled tribe in any state or union territory, if he wants to contest a seat reserved for them. However, a member of scheduled castes or scheduled tribes can also contest a seat not reserved for them.

Disqualifications

Under the Constitution, a person shall be disqualified for being elected as a member of Parliament:

1. if he holds any office of profit under the Union or state government (except that of a minister or any other office exempted by Parliament).[8]
2. if he is of unsound mind and stands so declared by a court.
3. if he is an undischarged insolvent.
4. if he is not a citizen of India or has voluntarily acquired the citizenship of a foreign state or is under any acknowledgement of allegiance to a foreign state; and
5. if he is so disqualified under any law made by Parliament.

The Parliament has laid down the following additional disqualifications in the Representation of People Act (1951):

1. He must not have been found guilty of certain election offences or corrupt practices in the elections.
2. He must not have been convicted for any offence resulting in imprisonment for two or more years. But, the detention of a person under a preventive detention law is not a disqualification.
3. He must not have failed to lodge an account of his election expenses within the time.
4. He must not have any interest in government contracts, works or services.
5. He must not be a director or managing agent nor hold an office of profit in a corporation in which the government has at least 25 per cent share.
6. He must not have been dismissed from government service for corruption or disloyalty to the State.
7. He must not have been convicted for promoting enmity between different groups or for the offence of bribery.
8. He must not have been punished for preaching and practising social crimes such as untouchability, dowry and sati.

On the question whether a member is subject to any of the above disqualifications, the president's decision is final. However, he should obtain the opinion of the election commission and act accordingly.

Disqualification on Ground of Defection

The Constitution also lays down that a person shall be disqualified from being a member of Parliament if he is so disqualified on the ground of defection under the provisions of the Tenth Schedule. A member incurs disqualification under the defection law:

1. if he voluntary gives up the membership of the political party on whose ticket he is elected to the House;
2. if he votes or abstains from voting in the House contrary to any direction given by his political party;
3. if any independently elected member joins any political party; and
4. if any nominated member joins any political party after the expiry of six months.

The question of disqualification under the Tenth Schedule is decided by the Chairman in the case of Rajya Sabha and Speaker in the case of Lok Sabha (and not by the president of India). In 1992, the Supreme Court ruled that the decision of the Chairman/ Speaker in this regard is subject to judicial review.

Vacating of Seats

In the following cases, a member of Parliament vacates his seat.

1. Double Membership

A person cannot be a member of both Houses of Parliament at the same time. Thus, the Representation of People Act (1951) provides for the following:

(a) If a person is elected to both the Houses of Parliament, he must intimate within 10 days in which House he desires to serve. In default of such intimation, his seat in the Rajya Sabha becomes vacant.

(b) If a sitting member of one House is also elected to the other House, his seat in the first House becomes vacant.

(c) If a person is elected to two seats in a House, he should exercise his option for one. Otherwise, both seats become vacant.

Similarly, a person cannot be a member of both the Parliament and the state legislature at the same time. If a person is so elected, his seat in Parliament becomes vacant if he does not resign his seat in the state legislature within 14 days[9] .

2. Disqualification
If a member of Parliament becomes subject to any of the disqualifications specified in the Constitution, his seat becomes vacant. Here, the list of disqualifications also include the disqualification on the grounds of defection under the provisions of the Tenth Schedule of the Constitution.

3. Resignation
A member may resign his seat by writing to the Chairman of Rajya Sabha or Speaker of Lok Sabha, as the case may be. The seat falls vacant when the resignation is accepted. However, the Chairman/ Speaker may not accept the resignation if he is satisfied that it is not voluntary or genuine.

4. Absence
A House can declare the seat of a member vacant if he is absent from all its meetings for a period of sixty days without its permission. In computing the period of sixty days, no account shall be taken of any period during which the House is prorogued or adjourned for more than four consecutive days.

5. Other cases
A member has to vacate his seat in the Parliament:

(a) if his election is declared void by the court;
(b) if he is expelled by the House;
(c) if he is elected to the office of President or Vice-President; and
(d) if he is appointed to the office of governor of a state.

If a disqualified person is elected to the Parliament, the Constitution lays down no procedure to declare the election void. This matter is dealt by the Representation of the People Act (1951), which enables the high court to declare an election void if a disqualified candidate is elected. The aggrieved party can appeal to the Supreme Court against the order of the high court in this regard.

Oath or Affirmation

Every member of either House of Parliament, before taking his seat in the House, has to make and subscribe to an oath or affirmation before the President or some person appointed by him for this purpose. In his oath or affirmation, a member of Parliament swears:

1. to bear true faith and allegiance to the Constitution of India;
2. to uphold the sovereignty and integrity of India; and
3. to faithfully discharge the duty upon which he is about to enter.

Unless a member takes the oath, he cannot vote and participate in the proceedings of the House and does not become eligible to parliamentary privileges and immunities.

A person is liable to a penalty of ₹500 for each day he sits or votes as a member in a House in the following conditions:

1. Before taking and subscribing to the prescribed oath or affirmation; or
2. When he knows that he is not qualified or that he is disqualified for its membership; or
3. When he knows that he is prohibited from sitting or voting in the House by virtue of any parliamentary law.

Salaries and Allowances

Members of either House of Parliament are entitled to receive such salaries and allowances as may be determined by Parliament, and there is no provision of pension in the Constitution. However, Parliament has provided pension to the members.

In 1954, the Parliament enacted the Salaries, Allowances and Pension of Members of Parliament Act. In 2018, the salary of members was increased from ₹50,000 to ₹1,00,000 per month, the constituency allowance from ₹45,000 to ₹70,000 per month and the office expenses allowance from ₹45,000 to ₹60,000 per month. Earlier in 2010, the daily allowance was increased from ₹1,000 to ₹2,000 for each day of residence on duty.

From 1976, the members are also entitled to a pension on a graduated scale for each five-year-term as members of either House of Parliament. Besides, they are provided with travelling

facilities, free accommodation, telephone, vehicle advance, medical facilities and so on.

The salaries and allowances of the Speaker and Deputy Speaker of Lok Sabha and the Chairman and Deputy Chairman of Rajya Sabha are also determined by Parliament. They are charged on the Consolidated Fund of India and thus are not subject to the annual vote of Parliament.

In 1953, the Parliament enacted the Salaries and Allowances of Officers of Parliament Act. Under this Act, “Officer of Parliament” means any of the following officers, namely, the Chairman and Deputy Chairman of the Rajya Sabha and the Speaker and the Deputy Speaker of the Lok Sabha. In 2018, the Parliament increased the salary of the Chairman of the Rajya Sabha from ₹1.25 lakh to ₹4 lakh per month[9a]. Similarly, other Officers of Parliament (i.e., the Speaker and the Deputy Speaker of the Lok Sabha and the Deputy Chairman of the Rajya Sabha) are entitled to receive a salary per month at the same rates as are payable to the Members of Parliament.[9b] Further, each Officer of Parliament (other than the Chairman of the Rajya Sabha) is entitled to receive a daily allowance (for each day during the whole of his term) at the same rate as is payable to the Members of Parliament.[9c] Also, each Officer of Parliament (other than the Chairman of the Rajya Sabha) is entitled to receive a constituency allowance at the same rate as is payable to the Members of Parliament.[9d]

According to the same Act, the sumptuary allowance is paid to the Speaker of the Lok Sabha at the same rate as is payable to a Cabinet Minister[9e] (i.e., ₹2,000 per month). Likewise, the sumptuary allowance is paid to the Deputy Speaker of the Lok Sabha and the Deputy Chairman of the Rajya Sabha at the same rate as is payable to a Minister of State[9f] (i.e., ₹1000 per month).

PRESIDING OFFICERS OF PARLIAMENT

Each House of Parliament has its own presiding officer. There is a Speaker and a Deputy Speaker for the Lok Sabha and a Chairman and a Deputy Chairman for the Rajya Sabha. A panel of chairpersons for the Lok Sabha and a panel of vice-chairpersons for the Rajya Sabha is also appointed.

Speaker of Lok Sabha

Election and Tenure

The Speaker is elected by the Lok Sabha from amongst its members (as soon as may be, after its first sitting). Whenever the office of the Speaker falls vacant, the Lok Sabha elects another member to fill the vacancy. The date of election of the Speaker is fixed by the President.

Usually, the Speaker remains in office during the life of the Lok Sabha. However, he has to vacate his office earlier in any of the following three cases:

1. if he ceases to be a member of the Lok Sabha;
2. if he resigns by writing to the Deputy Speaker; and
3. if he is removed by a resolution passed by a majority of all then members of the Lok Sabha. Such a resolution can be moved only after giving 14 days' advance notice.

When a resolution for the removal of the Speaker is under consideration of the House, he cannot preside at the sitting of the House, though he may be present. However, he can speak and take part in the proceedings of the House at such a time and vote in the first instance, though not in the case of an equality of votes.

It should be noted here that, whenever the Lok Sabha is dissolved, the Speaker does not vacate his office and continues till the newly-elected Lok Sabha meets.

Role, Powers and Functions

The Speaker is the head of the Lok Sabha, and its representative. He is the guardian of powers and privileges of the members, the House as a whole and its committees. He is the principal

spokesman of the House, and his decision in all Parliamentary matters is final. He is thus much more than merely the presiding officer of the Lok Sabha. In these capacities, he is vested with vast, varied and vital responsibilities and enjoys great honour, high dignity and supreme authority within the House.

The Speaker of the Lok Sabha derives his powers and duties from three sources, that is, the Constitution of India, the Rules of Procedure and Conduct of Business of Lok Sabha, and Parliamentary Conventions (residuary powers that are unwritten or unspecified in the Rules). Altogether, he has the following powers and duties:

1. He maintains order and decorum in the House for conducting its business and regulating its proceedings. This is his primary responsibility and he has final power in this regard.
2. He is the final interpreter of the provisions of (a) the Constitution of India, (b) the Rules of Procedure and Conduct of Business of Lok Sabha, and (c) the parliamentary precedents, within the House.
3. He adjourns the House or suspends the meeting in absence of a quorum. The quorum to constitute a meeting of the House is one-tenth of the total strength of the House.
4. He does not vote in the first instance. But he can exercise a casting vote in the case of a tie. In other words, only when the House is divided equally on any question, the Speaker is entitled to vote. Such vote is called casting vote, and its purpose is to resolve a deadlock.
5. He presides over a joint setting of the two Houses of Parliament. Such a sitting is summoned by the President to settle a deadlock between the two Houses on a bill.
6. He can allow a ‘secret’ sitting of the House at the request of the Leader of the House. When the House sits in secret, no stranger can be present in the chamber, lobby or galleries except with the permission of the Speaker.
7. He decides whether a bill is a money bill or not and his decision on this question is final. When a money bill is transmitted to the Rajya Sabha for recommendation and

presented to the President for assent, the Speaker endorses on the bill his certificate that it is a money bill.

8. He decides the questions of disqualification of a member of the Lok Sabha, arising on the ground of defection under the provisions of the Tenth Schedule. In 1992, the Supreme Court ruled that the decision of the Speaker in this regard is subject to judicial review[10] .
9. He acts as the *ex-officio* chairman of the Indian Parliamentary Group which is a link between the Parliament of India and the various parliaments of the world. He also acts as the *ex-officio* chairman of the conference of presiding officers of legislative bodies in the country.
10. He appoints the chairman of all the parliamentary committees of the Lok Sabha and supervises their functioning. He himself is the chairman of the Business Advisory Committee, the Rules Committee and the General Purpose Committee.

Independence and Impartiality

As the office of the Speaker is vested with great prestige, position and authority, independence and impartiality becomes its *sine qua non*[11] .

The following provisions ensure the independence and impartiality of the office of the Speaker:

1. He is provided with a security of tenure. He can be removed only by a resolution passed by the Lok Sabha by a special majority (ie, a majority of all the then members of the House) and not by an ordinary majority (ie, a majority of the members present and voting in the House). This motion of removal can be considered and discussed only when it has the support of at least 50 members.
2. His salaries and allowances are fixed by Parliament. They are charged on the Consolidated Fund of India and thus are not subject to the annual vote of Parliament.
3. His work and conduct cannot be discussed and criticised in the Lok Sabha except on a substantive motion.
4. His powers of regulating procedure or conducting business or maintaining order in the House are not subject to the

jurisdiction of any Court.

5. He cannot vote in the first instance. He can only exercise a casting vote in the event of a tie. This makes the position of Speaker impartial.
6. He is given a very high position in the order of precedence. He is placed at seventh rank, along with the Chief Justice of India. This means, he has a higher rank than all cabinet ministers, except the Prime Minister or Deputy Prime Minister.

In Britain, the Speaker is strictly a nonparty man. There is a convention that the Speaker has to resign from his party and remain politically neutral. This healthy convention is not fully established in India where the Speaker does not resign from the membership of his party on his election to the exalted office.

Deputy Speaker of Lok Sabha

Like the Speaker, the Deputy Speaker is also elected by the Lok Sabha itself from amongst its members. He is elected after the election of the Speaker has taken place. The date of election of the Deputy Speaker is fixed by the Speaker. Whenever the office of the Deputy Speaker falls vacant, the Lok Sabha elects another member to fill the vacancy.

Like the Speaker, the Deputy Speaker remains in office usually during the life of the Lok Sabha. However, he may vacate his office earlier in any of the following three cases:

1. if he ceases to be a member of the Lok Sabha;
2. if he resigns by writing to the Speaker; and
3. if he is removed by a resolution passed by a majority of all the then members of the Lok Sabha. Such a resolution can be moved only after giving 14 days' advance notice.

The Deputy Speaker performs the duties of the Speaker's office when it is vacant. He also acts as the Speaker when the latter is absent from the sitting of the House. In both the cases, he assumes all the powers of the Speaker. He also presides over the joint sitting of both the Houses of Parliament, in case the Speaker is absent from such a sitting.

It should be noted here that the Deputy Speaker is not subordinate to the Speaker. He is directly responsible to the

House.

The Deputy Speaker has one special privilege, that is, whenever he is appointed as a member of a parliamentary committee, he automatically becomes its chairman.

Like the Speaker, the Deputy Speaker, while presiding over the House, cannot vote in the first instance; he can only exercise a casting vote in the case of a tie. Further, when a resolution for the removal of the Deputy Speaker is under consideration of the House, he cannot preside at the sitting of the House, though he may be present.

When the Speaker presides over the House, the Deputy Speaker is like any other ordinary member of the House. He can speak in the House, participate in its proceedings and vote on any question before the House.

The Deputy Speaker is entitled to a regular salary and allowance fixed by Parliament, and charged on the Consolidated Fund of India.

Upto the 10th Lok Sabha, both the Speaker and the Deputy Speaker were usually from the ruling party. Since the 11th Lok Sabha, there has been a consensus that the Speaker comes from the ruling party (or ruling alliance) and the post of Deputy Speaker goes to the main opposition party.

The Speaker and the Deputy Speaker, while assuming their offices, do not make and subscribe any separate oath or affirmation.

The institutions of Speaker and Deputy Speaker originated in India in 1921 under the provisions of the Government of India Act of 1919 (Montague-Chelmsford Reforms). At that time, the Speaker and the Deputy Speaker were called the President and Deputy President respectively and the same nomenclature continued till 1947. Before 1921, the Governor-General of India used to preside over the meetings of the Central Legislative Council. In 1921, the Frederick Whyte and Sachidanand Sinha were appointed by the Governor-General of India as the first Speaker and the first Deputy Speaker (respectively) of the central legislative assembly. In 1925, Vithalbhai J. Patel became the first Indian and the first elected Speaker of the central legislative assembly. The Government of India Act of 1935 changed the

nomenclatures of President and Deputy President of the Central Legislative Assembly to the Speaker and Deputy Speaker respectively. However, the old nomenclature continued till 1947 as the federal part of the 1935 Act was not implemented. G.V. Mavalankar and Ananthasayanam Ayyangar had the distinction of being the first Speaker and the first Deputy Speaker (respectively) of the Lok Sabha. G.V. Mavalankar also held the post of Speaker in the Constituent Assembly (Legislative) as well as the provisional Parliament. He held the post of Speaker of Lok Sabha continuously for one decade from 1946 to 1956.

Panel of Chairpersons of Lok Sabha

Under the Rules of Lok Sabha, the Speaker nominates from amongst the members a panel of not more than ten chairpersons. Any of them can preside over the House in the absence of the Speaker or the Deputy Speaker. He has the same powers as the Speaker when so presiding. He holds office until a new panel of chairpersons is nominated. When a member of the panel of chairpersons is also not present, any other person as determined by House acts as the Speaker.

It must be emphasised here that a member of the panel of chairpersons cannot preside over the House, when the office of the Speaker or the Deputy Speaker is vacant. During such time, the Speaker's duties are to be performed by such member of the House as the President may appoint for the purpose. The elections are held, as soon as possible, to fill the vacant posts.

Speaker *Pro Tem*

As provided by the Constitution, the Speaker of the last Lok Sabha vacates his office immediately before the first meeting of the newly-elected Lok Sabha. Therefore, the President appoints a member of the Lok Sabha as the Speaker *Pro Tem*. Usually, the seniormost member is selected for this. The President himself administers oath to the Speaker *Pro Tem*.

The Speaker *Pro Tem* has all the powers of the Speaker. He presides over the first sitting of the newly-elected Lok Sabha. His

main duty is to administer oath to the new members. He also enables the House to elect the new Speaker.

When the new Speaker is elected by the House, the office of the Speaker *Pro Tem* ceases to exist. Hence, this office is a temporary office, existing for a few days[12] .

Chairman of Rajya Sabha

The presiding officer of the Rajya Sabha is known as the Chairman. The vice-president of India is the *ex-officio* Chairman of the Rajya Sabha. During any period when the VicePresident acts as President or discharges the functions of the President, he does not perform the duties of the office of the Chairman of Rajya Sabha.

The Chairman of the Rajya Sabha can be removed from his office only if he is removed from the office of the Vice-President. As a presiding officer, the powers and functions of the Chairman in the Rajya Sabha are similar to those of the Speaker in the Lok Sabha. However, the Speaker has two special powers which are not enjoyed by the Chairman:

1. The Speaker decides whether a bill is a money bill or not and his decision on this question is final.
2. The Speaker presides over a joint sitting of two Houses of Parliament.

Unlike the Speaker (who is a member of the House), the Chairman is not a member of the House. But like the Speaker, the Chairman also cannot vote in the first instance. He too can cast a vote in the case of an equality of votes.

The Vice-President cannot preside over a sitting of the Rajya Sabha as its Chairman when a resolution for his removal is under consideration. However, he can be present and speak in the House and can take part in its proceedings, without voting, even at such a time (while the Speaker can vote in the first instance when a resolution for his removal is under consideration of the Lok Sabha).

As in case of the Speaker, the salaries and allowances of the Chairman are also fixed by the Parliament. They are charged on the Consolidated Fund of India and thus are not subject to the annual vote of Parliament.

During any period when the Vice-President acts as President or discharges the functions of the President, he is not entitled to any salary or allowance payable to the Chairman of the Rajya Sabha. But he is paid the salary and allowance of the President during such a time.

Deputy Chairman of Rajya Sabha

The Deputy Chairman is elected by the Rajya Sabha itself from amongst its members. Whenever the office of the Deputy Chairman falls vacant, the Rajya Sabha elects another member to fill the vacancy.

The Deputy Chairman vacates his office in any of the following three cases:

1. if he ceases to be a member of the Rajya Sabha;
2. if he resigns by writing to the Chairman; and
3. if he is removed by a resolution passed by a majority of all the then members of the Rajya Sabha. Such a resolution can be moved only after giving 14 days' advance notice.

The Deputy Chairman performs the duties of the Chairman's office when it is vacant or when the Vice-President acts as President or discharges the functions of the President. He also acts as the Chairman when the latter is absent from the sitting of the House. In both the cases, he has all the powers of the Chairman.

It should be emphasised here that the Deputy Chairman is not subordinate to the Chairman. He is directly responsible to the Rajya Sabha.

Like the Chairman, the Deputy Chairman, while presiding over the House, cannot vote in the first instance; he can only exercise a casting vote in the case of a tie. Further, when a resolution for the removal of the Deputy Chairman is under consideration of the House, he cannot preside over a sitting of the House, though he may be present.

When the Chairman presides over the House, the Deputy Chairman is like any other ordinary member of the House. He can speak in the House, participate in its proceedings and vote on any question before the House.

Like the Chairman, the Deputy Chairman is also entitled to a regular salary and allowance. They are fixed by Parliament and are charged on the Consolidated Fund of India.

Panel of Vice-Chairpersons of Rajya Sabha

Under the Rules of Rajya Sabha, the Chairman nominates from amongst the members a panel of vice-chairpersons. Any one of them can preside over the House in the absence of the Chairman or the Deputy Chairman. He has the same powers as the Chairman when so presiding. He holds office until a new panel of vice-chairpersons is nominated.

When a member of the panel of vicechairpersons is also not present, any other person as determined by the House acts as the Chairman.

It must be emphasised here that a member of the panel of vice-chairpersons cannot preside over the House, when the office of the Chairman or the Deputy Chairman is vacant. During such time, the Chairman's duties are to be performed by such member of the House as the president may appoint for the purpose. The elections are held, as soon as possible, to fill the vacant posts.

Secretariat of Parliament

Each House of Parliament has separate secretarial staff of its own, though there can be some posts common to both the Houses. Their recruitment and service conditions are regulated by Parliament. The secretariat of each House is headed by a secretary-general. He is a permanent officer and is appointed by the presiding officer of the House.

LEADERS IN PARLIAMENT

Leader of the House

Under the Rules of Lok Sabha, the 'Leader of the House' means the prime minister, if he is a member of the Lok Sabha, or a minister who is a member of the Lok Sabha and is nominated by the prime minister to function as the Leader of the House. There is also a 'Leader of the House' in the Rajya Sabha. He is a minister and a member of the Rajya Sabha and is nominated by the prime minister to function as such. The leader of the house in either House is an important functionary and exercises direct influence on the conduct of business. He can also nominate a deputy leader of the House. The same functionary in USA is known as the 'majority leader'.

Leader of the Opposition

In each House of Parliament, there is the 'Leader of the Opposition'. The leader of the largest Opposition party having not less than one-tenth seats of the total strength of the House is recognised as the leader of the Opposition in that House. In a parliamentary system of government, the leader of the opposition has a significant role to play. His main functions are to provide a constructive criticism of the policies of the government and to provide an alternative government. Therefore, the leader of Opposition in the Lok Sabha and the Rajya Sabha were accorded statutory recognition in 1977. They are also entitled to the salary, allowances and other facilities equivalent to that of a cabinet minister. It was in 1969 that an official leader of the opposition was recognised for the first time. The same functionary in USA is known as the 'minority leader'.

The British political system has an unique institution called the 'Shadow Cabinet'. It is formed by the Opposition party to balance the ruling cabinet and to prepare its members for future ministerial offices. In this shadow cabinet, almost every member in the ruling cabinet is 'shadowed' by a corresponding member in the

opposition cabinet. This shadow cabinet serves as the ‘alternate cabinet’ if there is change of government. That is why Ivor Jennings described the leader of Opposition as the ‘alternative Prime Minister’. He enjoys the status of a minister and is paid by the government.

Whip

Though the offices of the leader of the House and the leader of the Opposition are not mentioned in the Constitution of India, they are mentioned in the Rules of the House and Parliamentary Statute respectively. The office of ‘whip’, on the other hand, is mentioned neither in the Constitution of India nor in the Rules of the House nor in a Parliamentary Statute. It is based on the conventions of the parliamentary government.

Every political party, whether ruling or Opposition has its own whip in the Parliament. He is appointed by the political party to serve as an assistant floor leader. He is charged with the responsibility of ensuring the attendance of his party members in large numbers and securing their support in favour of or against a particular issue. He regulates and monitors their behaviour in the Parliament. The members are supposed to follow the directives given by the whip. Otherwise, disciplinary action can be taken.

SESSIONS OF PARLIAMENT

Summoning

The president from time to time summons each House of Parliament to meet. But, the maximum gap between two sessions of Parliament cannot be more than six months. In other words, the Parliament should meet at least twice ayear. There are usually three sessions in a year, viz,

1. the Budget Session (February to May);
2. the Monsoon Session (July to September); and
3. the Winter Session (November to December).

A 'session' of Parliament is the period spanning between the first sitting of a House and its prorogation (or dissolution in the case of the Lok Sabha). During a session, the House meets everyday to transact business. The period spanning between the prorogation of a House and its reassembly in a new session is called 'recess'.

Adjournment

A session of Parliament consists of many meetings. Each meeting of a day consists of two sittings, that is, a morning sitting from 11 am to 1 pm and post-lunch sitting from 2 pm to 6 pm. A sitting of Parliament can be terminated by adjournment or adjournment *sine die* or prorogation or dissolution (in the case of the Lok Sabha). An adjournment suspends the work in a sitting for a specified time, which may be hours, days or weeks.

Adjournment *Sine Die*

Adjournment *sine die* means terminating a sitting of Parliament for an indefinite period. In other words, when the House is adjourned without naming a day for reassembly, it is called adjournment *sine die.* The power of adjournment as well as adjournment *sine die* lies with the presiding officer of the House. He can also call a sitting of the House before the date or time to which it has been

adjourned or at any time after the House has been adjourned *sine die*.

Prorogation

The presiding officer (Speaker or Chairman) declares the House adjourned *sine die*, when the business of a session is completed. Within the next few days, the President issues a notification for prorogation of the session. However, the President can also prorogue the House while in session.

The specific differences between adjournment and prorogation are summarised in Table 22.1.

Dissolution

Rajya Sabha, being a permanent House, is not subject to dissolution. Only the Lok Sabha is subject to dissolution. Unlike a prorogation, a dissolution ends the very life of the existing House, and a new House is constituted after general elections are held. The dissolution of the Lok Sabha may take place in either of two ways:

1. Automatic dissolution, that is, on the expiry of its tenure of five years or the terms as extended during a national emergency; or
2. Whenever the President decides to dissolve the House, which he is authorised to do. Once the Lok Sabha is dissolved before the completion of its normal tenure, the dissolution is irrevocable.

When the Lok Sabha is dissolved, all business including bills, motions, resolutions, notices, petitions and so on pending before it or its committees lapse. They (to be pursued further) must be reintroduced in the newly-constituted Lok Sabha. However, some pending bills and all pending assurances that are to be examined by the Committee on Government Assurances do not lapse on the dissolution of the Lok Sabha. The position with respect to lapsing of bills is as follows:

1. A bill pending in the Lok Sabha lapses (whether originating in the Lok Sabha or transmitted to it by the Rajya Sabha).

2. A bill passed by the Lok Sabha but pending in the Rajya Sabha lapses.
3. A bill not passed by the two Houses due to disagreement and if the president has notified the holding of a joint sitting before the dissolution of Lok Sabha, does not lapse.
4. A bill pending in the Rajya Sabha but not passed by the Lok Sabha does not lapse.
5. A bill passed by both Houses but pending assent of the president does not lapse.
6. A bill passed by both Houses but returned by the president for reconsideration of Houses does not lapse.

Table 22.1 *Adjournment vs Prorogation*

Adjournment	Prorogation
1. It only terminates a sitting and not a session of the House.	1. It not only terminates a sitting but also a session of the House.
2. It is done by presiding officer of the House.	2. It is done by the president of India.
3. It does not affect the bills or any other business pending before the House and the same can be resumed when the House meets again.	3. It also does not affect the bills or any other business pending before the House.[13] However, all pending notices (other than those for introducing bills) lapse on prorogation and fresh notices have to be given for the next session. In Britain, prorogation brings to an end all bills or any other business pending before the House.

Quorum

Quorum is the minimum number of members required to be present in the House before it can transact any business. It is one-

tenth of the total number of members in each House including the presiding officer. It means that there must be at least 55 members present in the Lok Sabha and 25 members present in the Rajya Sabha, if any business is to be conducted. If there is no quorum during a meeting of the House, it is the duty of the presiding officer either to adjourn the House or to suspend the meeting until there is a quorum.

Voting in House

All matters at any sitting of either House or joint sitting of both the Houses are decided by a majority of votes of the members present and voting, excluding the presiding officer. Only a few matters, which are specifically mentioned in the Constitution like impeachment of the President, amendment of the Constitution, removal of the presiding officers of the Parliament and so on, require special majority, not ordinary majority.

The presiding officer of a House does not vote in the first instance, but exercises a casting vote in the case of an equality of votes. The proceedings of a House are to be valid irrespective of any unauthorised voting or participation or any vacancy in its membership.

The following points can be noted with respect to the voting procedure in the Lok Sabha:

1. On the conclusion of a debate, the Speaker shall put the question and invite those who are in favour of the motion to say 'Aye' and those against the motion to say 'No'.
2. The Speaker shall then say: 'I think the Ayes (or the Noes, as the case may be) have it.' If the opinion of the Speaker as to the decision of a question is not challenged, he shall say twice: The Ayes (or the Noes, as the case may be) have it' and the question before the House shall be determined accordingly.
3. (a) If the opinion of the Speaker as to the decision of a question is challenged, he shall order that the Lobby be cleared.
   (b) After the lapse of three minutes and thirty seconds, he shall put the question a second time and declare whether in his opinion the 'Ayes' or the 'Noes' have it.

(c) If the opinion so declared is again challenged, he shall direct that the votes be recorded either by operating the automatic vote recorder or by using 'Aye' and 'No' Slips in the House or by the Members going into the Lobbies.

4. If in the opinion of the Speaker, the Division is unnecessarily claimed, he may ask the members who are for 'Aye' and those for 'No' respectively to rise in their places and, on a count being taken, he may declare the determination of the House. In such a case, the names of the voters shall not be recorded.

Language in Parliament

The Constitution has declared Hindi and English to be the languages for transacting business in the Parliament. However, the presiding officer can permit a member to address the House in his mother-tongue. In both the Houses, arrangements are made for simultaneous translation. Though English was to be discontinued as a floor language after the expiration of fifteen years from the commencement of the Constitution (that is, in 1965), the Official Languages Act (1963) allowed English to be continued along with Hindi.

Rights of Ministers and Attorney General

In addition to the members of a House, every minister and the attorney general of India have the right to speak and take part in the proceedings of either House, any joint sitting of both the Houses and any committee of Parliament of which he is a member, without being entitled to vote. There are two reasons underlying this constitutional provision:

1. A minister can participate in the proceedings of a House, of which he is not a member. In other words, a minister belonging to the Lok Sabha can participate in the proceedings of the Rajya Sabha and vice-versa.
2. A minister, who is not a member of either House, can participate in the proceedings of both the Houses. It should be noted here that a person can remain a minister for six

months, without being a member of either House of Parliament.

Lame-duck Session

It refers to the last session of the existing Lok Sabha, after a new Lok Sabha has been elected. Those members of the existing Lok Sabha who could not get re-elected to the new Lok Sabha are called lame-ducks.

DEVICES OF PARLIAMENTARY PROCEEDINGS

Question Hour

The first hour of every parliamentary sitting is slotted for this. During this time, the members ask questions and the ministers usually give answers. The questions are of three kinds, namely, starred, unstarred and short notice.

A **starred question** (distinguished by an asterisk) requires an oral answer and hence supplementary questions can follow.

An **unstarred question**, on the other hand, requires a written answer and hence, supplementary questions cannot follow.

A **short notice question** is one that is asked by giving a notice of less than ten days. It is answered orally.

In addition to the ministers, the questions can also be asked to the private members. Thus, a question may be addressed to a private member if the subject matter of the question relates to some Bill, resolution or other matter connected with the business of the House for which that member is responsible. The procedure in regard to such question is the same as that followed in the case of questions addressed to a minister.

The list of starred, unstarred, short notice questions and questions to private members are printed in green, white, light pink and yellow colour, respectively, to distinguish them from one another.

Zero Hour

Unlike the question hour, the zero hour is not mentioned in the Rules of Procedure. Thus it is an informal device available to the members of the Parliament to raise matters without any prior notice. The zero hour starts immediately after the question hour and lasts until the agenda for the day (ie, regular business of the House) is taken up. In other words, the time gap between the question hour and the agenda is known as zero hour. It is an Indian innovation in the field of parliamentary procedures and has been in existence since 1962.

Motions

No discussion on a matter of general public importance can take place except on a motion made with the consent of the presiding officer. The House expresses its decisions or opinions on various issues through the adoption or rejection of motions moved by either ministers or private members.

The motions moved by the members to raise discussions on various matters fall into three principal categories:[14]

1. *Substantive Motion:* It is a self-contained independent proposal dealing with a very important matter like impeachment of the President or removal of Chief Election Commissioner.
2. *Substitute Motion:* It is a motion that is moved in substitution of an original motion and proposes an alternative to it. If adopted by the House, it supersedes the original motion.
3. *Subsidiary Motion:* It is a motion that, by itself, has no meaning and cannot state the decision of the House without reference to the original motion or proceedings of the House. It is divided into three sub-categories:
   (a) *Ancillary Motion:* It is used as the regular way of proceeding with various kinds of business.
   (b) *Superseding Motion:* It is moved in the course of debate on another issue and seeks to supersede that issue.
   (c) *Amendment:* It seeks to modify or substitute only a part of the original motion.

Closure Motion

It is a motion moved by a member to cut short the debate on a matter before the House. If the motion is approved by the House, debate is stopped forthwith and the matter is put to vote. There are four kinds of closure motions[15] :

(a) *Simple Closure:* It is one when a member moves that the 'matter having been sufficiently discussed be now put to vote'.

(b) *Closure by Compartments:* In this case, the clauses of a bill or a lengthy resolution are grouped into parts before the commencement of the debate. The debate covers the part as a whole and the entire part is put to vote.

(c) *Kangaroo Closure:* Under this type, only important clauses are taken up for debate and voting and the intervening clauses are skipped over and taken as passed.
(d) *Guillotine Closure:* It is one when the undiscussed clauses of a bill or a resolution are also put to vote along with the discussed ones due to want of time (as the time allotted for the discussion is over).

Privilege Motion
It is concerned with the breach of parliamentary privileges by a minister. It is moved by a member when he feels that a minister has committed a breach of privilege of the House or one or more of its members by withholding facts of a case or by giving wrong or distorted facts. Its purpose is to censure the concerned minister.

Calling Attention Motion
It is introduced in the Parliament by a member to call the attention of a minister to a matter of urgent public importance, and to seek an authoritative statement from him on that matter. Like the zero hour, it is also an Indian innovation in the parliamentary procedure and has been in existence since 1954. However, unlike the zero hour, it is mentioned in the Rules of Procedure.

Adjournment Motion
It is introduced in the Parliament to draw attention of the House to a definite matter of urgent public importance, and needs the support of 50 members to be admitted. As it interrupts the normal business of the House, it is regarded as an extraordinary device. It involves an element of censure against the government and hence Rajya Sabha is not permitted to make use of this device. The discussion on an adjournment motion should last for not less than two hours and thirty minutes.

The right to move a motion for an adjournment of the business of the House is subject to the following restrictions:

1. It should raise a matter which is definite, factual, urgent and of public importance;
2. It should not cover more than one matter;

3. It should be restricted to a specific matter of recent occurrence and should not be framed in general terms;
4. It should not raise a question of privilege;
5. It should not revive discussion on a matter that has been discussed in the same session;
6. It should not deal with any matter that is under adjudication by court; and
7. It should not raise any question that can be raised on a distinct motion.

No-Confidence Motion

Article 75 of the Constitution says that the council of ministers shall be collectively responsible to the Lok Sabha. It means that the ministry stays in office so long as it enjoys confidence of the majority of the members of the Lok Sabha. In other words, the Lok Sabha can remove the ministry from office by passing a no-confidence motion. The motion needs the support of 50 members to be admitted.

Confidence Motion

The motion of confidence has come up as a new procedural device to cope with the emerging situations of fractured mandates resulting in hung parliament, minority governments and coalition governments. The governments formed with wafer-thin majority have been called upon by the President to prove their majority on the floor of the House. The government of the day, sometimes, on its own, seeks to prove its majority by moving a motion of confidence and winning the confidence of the House. If the confidence motion is negatived, it results in the fall of the government[15a].

Censure Motion

A censure motion is different from a no-confidence motion as shown in Table 22.2.

Motion of Thanks

The first session after each general election and the first session of every fiscal year is addressed by the president. In this address, the president outlines the policies and programmes of the

government in the preceding year and ensuing year. This address of the president, which corresponds to the 'speech from the Throne in Britain', is discussed in both the Houses of Parliament on a motion called the 'Motion of Thanks'. At the end of the discussion, the motion is put to vote. This motion must be passed in the House. Otherwise, it amounts to the defeat of the government. This inaugural speech of the president is an occasion available to the members of Parliament to raise discussions and debates to examine and criticise the government and administration for its lapses and failures.

No-Day-Yet-Named Motion
It is a motion that has been admitted by the Speaker but no date has been fixed for its discussion. The Speaker, after considering the state of business in the House and in consultation with the leader of the House or on the recommendation of the Business Advisory Committee, allots a day or days or part of a day for the discussion of such a motion.

Dilatory Motion
It is a motion for the adjournment of the debate on a bill / motion / resolution etc. or a motion to retard or delay the progress of a business under consideration of the House. It can be moved by a member at any time after a motion has been made. The debate on a dilatory motion must be restricted to the matter contained in such motion. If the Speaker is of the opinion that such a motion is an abuse of the rules of the House, he may either forthwith put the question thereon or decline to propose the question.

Point of Order

A member can raise a point of order when the proceedings of the House do not follow the normal rules of procedure. A point of order should relate to the interpretation or enforcement of the Rules of the House or such articles of the Constitution that regulate the business of the House and should raise a question that is within the cognizance of the Speaker. It is usually raised by an opposition member in order to control the government. It is an

extraordinary device as it suspends the proceedings before the House. No debate is allowed on a point of order.

Table 22.2 *Censure Motion vs No Confidence Motion*

Censure Motion	No-Confidence Motion
1. It should state the reasons for its adoption in the Lok Sabha.	1. It need not state the reasons for its adoption in the Lok Sabha.
2. It can be moved against an individual minister or a group of ministers or the entire council of ministers.	2. It can be moved against the entire council of ministers only.
3. It is moved for censuring the council of ministers for specific policies and actions.	3. It is moved for ascertaining the confidence of Lok Sabha in the council of ministers.
4. If it is passed in the Lok Sabha, the council of ministers need not resign from the office.	4. If it is passed in the Lok Sabha, the council of ministers must resign from office.

Half-an-Hour Discussion

It is meant for discussing a matter of sufficient public importance, which has been subjected to a lot of debate and the answer to which needs elucidation on a matter of fact. The Speaker can allot three days in a week for such discussions. There is no formal motion or voting before the House.

Short Duration Discussion

It is also known as two-hour discussion as the time allotted for such a discussion should not exceed two hours. The members of the Parliament can raise such discussions on a matter of urgent public importance. The Speaker can allot two days in a week for such discussions. There is neither a formal motion before the house nor voting. This device has been in existence since 1953.

Special Mention

A matter which is not a point of order or which cannot be raised during question hour, half-an hour discussion, short duration discussion or under adjournment motion, calling attention notice or under any rule of the House can be raised under the special mention in the Rajya Sabha. Its equivalent procedural device in the Lok Sabha is known as 'Notice (Mention) Under Rule 377'.

Resolutions

The members can move resolutions to draw the attention of the House or the government to matters of general public interest. The discussion on a resolution is strictly relevant to and within the scope of the resolution. A member who has moved a resolution or amendment to a resolution cannot withdraw the same except by leave of the House.

Resolutions are classified into three categories:[16]

1. *Private Member's Resolution:* It is one that is moved by a private member (other than a minister). It is discussed only on alternate Fridays and in the afternoon sitting.
2. *Government Resolution:* It is one that is moved by a minister. It can be taken up any day from Monday to Thursday.
3. *Statutory Resolution:* It can be moved either by a private member or a minister. It is so called because it is always tabled in pursuance of a provision in the Constitution or an Act of Parliament.

Resolutions are different from motions in the following respects: "All resolutions come in the category of substantive motions, that is to say, every resolution is a particular type of motion. All motions need not necessarily be substantive. Further, all motions are not necessarily put to vote of the House, whereas all the resolutions are required to be voted upon."[17]

Youth Parliament

The scheme of Youth Parliament was started on the recommendation of the Fourth All India Whips Conference. Its

objectives are:

1. to acquaint the younger generations with practices and procedures of Parliament;
2. to imbibe the spirit of discipline and tolerance cultivating character in the minds of youth; and
3. to inculcate in the student community the basic values of democracy and to enable them to acquire a proper perspective on the functioning of democratic institutions.

The ministry of parliamentary affairs provides necessary training and encouragement to the states in introducing the scheme.

LEGISLATIVE PROCEDURE IN PARLIAMENT

The legislative procedure is identical in both the Houses of Parliament. Every bill has to pass through the same stages in each House. A bill is a proposal for legislation and it becomes an act or law when duly enacted.

Bills introduced in the Parliament are of two kinds: public bills and private bills (also known as government bills and private members' bills respectively). Though both are governed by the same general procedure and pass through the same stages in the House, they differ in various respects as shown in Table 22.3.

The bills introduced in the Parliament can also be classified into four categories:

1. Ordinary bills, which are concerned with any matter other than financial subjects.
2. Money bills, which are concerned with the financial matters like taxation, public expenditure, etc.
3. Financial bills, which are also concerned with financial matters (but are different from money bills).
4. Constitution amendment bills, which are concerned with the amendment of the provisions of the Constitution.

The Constitution has laid down separate procedures for the enactment of all the four types of bills. The procedures with regard to ordinary bills, money bills and financial bills are explained here. The procedure with regard to Constitution amendment bills is explained in detail in Chapter 10.

Ordinary Bills

Every ordinary bill has to pass through the following five stages in the Parliament before it finds a place on the Statute Book:

1. First Reading

An ordinary bill can be introduced in either House of Parliament. Such a bill can be introduced either by a minister or by any other member. The member who wants to introduce the bill has to ask for the leave of the House. When the House grants leave to introduce the bill, the mover of the bill introduces it by reading its

title and objectives. No discussion on the bill takes place at this stage. Later, the bill is published in the Gazette of India. If a bill is published in the Gazette before its introduction, leave of the House to introduce the bill is not necessary.[18] The introduction of the bill and its publication in the Gazette constitute the first reading of the bill.

Table 22.3 *Public Bill vs Private Bill*

Public Bill	Private Bill
1. It is introduced in the Parliament by a minister.	1. It is introduced by any member of Parliament other than a minister.
2. It reflects of the policies of the government (ruling party).	2. It reflects the stand of opposition party on public matter.
3. It has greater chance to be approved by the Parliament.	3. It has lesser chance to be approved by the Parliament.
4. Its rejection by the House amounts to the expression of want of parliamentary confidence in the government and may lead to its resignation.	4. Its rejection by the House has no implication on the parliamentary confidence in the government or its resignation.
5. Its introduction in the House requires seven days' notice.	5. Its introduction in the House requires one month's notice.
6. It is drafted by the concerned department in consultation with the law department.	6. Its drafting is the responsibility of the member concerned.

2. Second Reading

During this stage, the bill receives not only the general but also the detailed scrutiny and assumes its final shape. Hence, it forms the most important stage in the enactment of a bill. In fact, this

stage involves three more sub-stages, namely, stage of general discussion, committee stage and consideration stage.

(a) Stage of General Discussion

The printed copies of the bill are distributed to all the members. The principles of the bill and its provisions are discussed generally, but the details of the bill are not discussed.

At this stage, the House can take any one of the following four actions:

(i) It may take the bill into consideration immediately or on some other fixed date;

(ii) It may refer the bill to a select committee of the House;

(iii) It may refer the bill to a joint committee of the two Houses; and

(iv) It may circulate the bill to elicit public opinion.

A Select Committee consists of members of the House where the bill has originated and a joint committee consists of members of both the Houses of Parliament.

(b) Committee Stage

The usual practice is to refer the bill to a select committee of the House. This committee examines the bill thoroughly and in detail, clause by clause. It can also amend its provisions, but without altering the principles underlying it. After completing the scrutiny and discussion, the committee reports the bill back to the House.

(c) Consideration Stage

The House, after receiving the bill from the select committee, considers the provisions of the bill clause by clause. Each clause is discussed and voted upon separately. The members can also move amendments and if accepted, they become part of the bill.

3. Third Reading

At this stage, the debate is confined to the acceptance or rejection of the bill as a whole and no amendments are allowed, as the general principles underlying the bill have already been scrutinised during the stage of second reading. If the majority of members present and voting accept the bill, the bill is regarded as passed by the House. Thereafter, the bill is authenticated by the

presiding officer of the House and transmitted to the second House for consideration and approval. A bill is deemed to have been passed by the Parliament only when both the Houses have agreed to it, either with or without amendments.

4. Bill in the Second House

In the second House also, the bill passes through all the three stages, that is, first reading, second reading and third reading. There are four alternatives before this House:

(a) it may pass the bill as sent by the first house (ie, without amendments);
(b) it may pass the bill with amendments and return it to the first House for reconsideration;
(c) it may reject the bill altogether; and
(d) it may not take any action and thus keep the bill pending.

If the second House passes the bill without any amendments or the first House accepts the amendments suggested by the second House, the bill is deemed to have been passed by both the Houses and the same is sent to the president for his assent. On the other hand, if the first House rejects the amendments suggested by the second House or the second House rejects the bill altogether or the second House does not take any action for six months, a deadlock is deemed to have taken place. To resolve such a deadlock, the president can summon a joint sitting of the two Houses. If the majority of members present and voting in the joint sitting approves the bill, the bill is deemed to have been passed by both the Houses.

5. Assent of the President

Every bill after being passed by both Houses of Parliament either singly or at a joint sitting, is presented to the president for his assent. There are three alternatives before the president:

(a) he may give his assent to the bill; or
(b) he may withhold his assent to the bill; or
(c) he may return the bill for reconsideration of the Houses.

If the president gives his assent to the bill, the bill becomes an act and is placed on the Statute Book. If the President withholds his assent to the bill, it ends and does not become an act. If the President returns the bill for reconsideration and if it is passed by

both the Houses again with or without amendments and presented to the President for his assent, the president must give his assent to the bill. Thus, the President enjoys only a "suspensive veto."[19]

Money Bills

Article 110 of the Constitution deals with the definition of money bills. It states that a bill is deemed to be a money bill if it contains 'only' provisions dealing with all or any of the following matters:

1. The imposition, abolition, remission, alteration or regulation of any tax;
2. The regulation of the borrowing of money by the Union government;
3. The custody of the Consolidated Fund of India or the contingency fund of India, the payment of moneys into or the withdrawal of money from any such fund;
4. The appropriation of money out of the Consolidated Fund of India;
5. Declaration of any expenditure charged on the Consolidated Fund of India or increasing the amount of any such expenditure;
6. The receipt of money on account of the Consolidated Fund of India or the public account of India or the custody or issue of such money, or the audit of the accounts of the Union or of a state; or
7. Any matter incidental to any of the matters specified above.

However, a bill is not to be deemed to be a money bill by reason only that it provides for:

1. the imposition of fines or other pecuniary penalties, or
2. the demand or payment of fees for licenses or fees for services rendered; or
3. the imposition, abolition, remission, alteration or regulation of any tax by any local authority or body for local purposes.

If any question arises whether a bill is a money bill or not, the decision of the Speaker of the Lok Sabha is final. His decision in this regard cannot be questioned in any court of law or in the either House of Parliament or even the president. When a money bill is transmitted to the Rajya Sabha for recommendation and

presented to the president for assent, the Speaker endorses it as a money bill.

The Constitution lays down a special procedure for the passing of money bills in the Parliament. A money bill can only be introduced in the Lok Sabha and that too on the recommendation of the president. Every such bill is considered to be a government bill and can be introduced only by a minister.

After a money bill is passed by the Lok Sabha, it is transmitted to the Rajya Sabha for its consideration. The Rajya Sabha has restricted powers with regard to a money bill. It cannot reject or amend a money bill. It can only make the recommendations. It must return the bill to the Lok Sabha within 14 days, whether with or without recommendations. The Lok Sabha can either accept or reject all or any of the recommendations of the Rajya Sabha.

If the Lok Sabha accepts any recommendation, the bill is then deemed to have been passed by both the Houses in the modified form. If the Lok Sabha does not accept any recommendation, the bill is then deemed to have passed by both the Houses in the form originally passed by the Lok Sabha without any change.

If the Rajya Sabha does not return the bill to the Lok Sabha within 14 days, the bill is deemed to have been passed by both the Houses in the form originally passed by the Lok Sabha. Thus, the Lok Sabha has more powers than Rajya Sabha with regard to a money bill. On the other hand, both the Houses have equal powers with regard to an ordinary bill.

Finally, when a money bill is presented to the president, he may either give his assent to the bill or withhold his assent to the bill but cannot return the bill for reconsideration of the Houses. Normally, the president gives his assent to a money bill as it is introduced in the Parliament with his prior permission.

Table 22.4 shows the differences between the procedures for the enactment of ordinary bills and money bills.

Financial Bills

Financial bills are those bills that deal with fiscal matters, that is, revenue or expenditure. However, the Constitution uses the term ‘financial bill’ in a technical sense. Financial bills are of three kinds:

1. Money bills–Article 110
2. Financial bills (I)–Article 117 (1)
3. Financial bills (II)–Article 117 (3)

This classification implies that money bills are simply a species of financial bills. Hence, all money bills are financial bills but all financial bills are not money bills. Only those financial bills are money bills which contain exclusively those matters which are mentioned in Article 110 of the Constitution. These are also certified by the Speaker of Lok Sabha as money bills. The financial bills (I) and (II), on the other hand, have been dealt with in Article 117 of the Constitution.

Table 22.4 *Ordinary Bill vs Money Bill*

Ordinary Bill	Money Bill
1. It can be introduced either in the Lok Sabha or the Rajya Sabha.	1. It can be introduced only in the Lok Sabha and not in the Rajya Sabha.
2. It can be introduced either by a minister or by a private member.	2. It can be introduced only by a minister.
3. It is introduced without the recommendation of the president.	3. It can be introduced only on the recommendation of the President.
4. It can be amended or rejected by the Rajya Sabha.	4. It cannot be amended or rejected by the Rajya Sabha. The Rajya Sabha should return the bill with or without recommendations, which may be accepted or rejected by the Lok Sabha.
5. It can be detained by the Rajya Sabha for a maximum period of six months.	5. It can be detained by the Rajya Sabha for a maximum period of 14 days only.
6. It does not require the certification of the Speaker	6. It requires the certification of the Speaker when

when transmitted to the Rajya Sabha (if it has originated in the Lok Sabha).	transmitted to the Rajya Sabha.
7. It is sent for the President's assent only after being approved by both the Houses. In case of a deadlock due to disagreement between the two Houses, a joint sitting of both the houses can be summoned by the president to resolve the deadlock.	7. It is sent for the President's assent even if it is approved by only Lok Sabha. There is no chance of any disagreement between the two Houses and hence, there is no provision of joint sitting of both the Houses in this regard.
8. Its defeat in the Lok Sabha may lead to the resignation of the government (if it is introduced by a minister).	8. Its defeat in the Lok Sabha leads to the resignation of the government.
9. It can be rejected, approved, or returned for reconsideration by the President.	9. It can be rejected or approved but cannot be returned for reconsideration by the President.

Financial Bills (I)

A financial bill (I) is a bill that contains not only any or all the matters mentioned in Article 110, but also other matters of general legislation. For instance, a bill that contains a borrowing clause, but does not exclusively deal with borrowing. In two respects, a financial bill (I) is similar to a money bill–(a) both of them can be introduced only in the Lok Sabha and not in the Rajya Sabha, and (b) both of them can be introduced only on the recommendation of the president. In all other respects, a financial bill (I) is governed by the same legislative procedure applicable to an ordinary bill. Hence, it can be either rejected or amended by the Rajya Sabha (except that an amendment other than for reduction or abolition of a tax cannot be moved in either House without the recommendation of the president i.e., the recommendation of

president is not required for moving an amendment making provision for the reduction or aboli-sition of a tax). In case of a disagreement between the two Houses over such a bill, the president can summon a joint sitting of the two Houses to resolve the deadlock. When the bill is presented to the President, he can either give his assent to the bill or withhold his assent to the bill or return the bill for reconsideration of the Houses.

Financial Bills (II)

A financial bill (II) contains provisions involving expenditure from the Consolidated Fund of India, but does not include any of the matters mentioned in Article 110. It is treated as an ordinary bill and in all respects, it is governed by the same legislative procedure which is applicable to an ordinary bill. The only special feature of this bill is that it cannot be passed by either House of Parliament unless the President has recommended to that House the consideration of the bill. Hence, financial bill (II) can be introduced in either House of Parliament and recommendation of the President is not necessary for its introduction. In other words, the recommendation of the President is not required at the introduction stage but is required at the consideration stage. It can be either rejected or amended by either House of Parliament. In case of a disagreement between the two Houses over such a bill, the President can summon a joint sitting of the two Houses to resolve the deadlock. When the bill is presented to the President, he can either give his assent to the bill or withhold his assent to the bill or return the bill for reconsideration of the Houses.

JOINT SITTING OF TWO HOUSES

Joint sitting is an extraordinary machinery provided by the Constitution to resolve a deadlock between the two Houses over the passage of a bill. A deadlock is deemed to have taken place under any one of the following three situations after a bill has been passed by one House and transmitted to the other House:

1. if the bill is rejected by the other House;
2. if the Houses have finally disagreed as to the amendments to be made in the bill; or
3. if more than six months have elapsed from the date of the receipt of the bill by the other House without the bill being passed by it.

In the above three situations, the president can summon both the Houses to meet in a joint sitting for the purpose of deliberating and voting on the bill. It must be noted here that the provision of joint sitting is applicable to ordinary bills or financial bills only and not to money bills or Constitutional amendment bills. In the case of a money bill, the Lok Sabha has overriding powers, while a Constitutional amendment bill must be passed by each House separately.

In reckoning the period of six months, no account can be taken of any period during which the other House (to which the bill has been sent) is prorogued or adjourned for more than four consecutive days.

If the bill (under dispute) has already lapsed due to the dissolution of the Lok Sabha, no joint sitting can be summoned. But, the joint sitting can be held if the Lok Sabha is dissolved after the President has notified his intention to summon such a sitting (as the bill does not lapse in this case). After the President notifies his intention to summon a joint sitting of the two Houses, none of the Houses can proceed further with the bill.

The Speaker of Lok Sabha presides over a joint sitting of the two Houses and the Deputy Speaker, in his absence. If the Deputy Speaker is also absent from a joint sitting, the Deputy Chairman of Rajya Sabha presides. If he is also absent, such other person as may be determined by the members present at

the joint sitting, presides over the meeting. It is clear that the Chairman of Rajya Sabha does not preside over a joint sitting as he is not a member of either House of Parliament.

The quorum to constitute a joint sitting is one-tenth of the total number of members of the two Houses. The joint sitting is governed by the Rules of Procedure of Lok Sabha and not of Rajya Sabha.

If the bill in dispute is passed by a majority of the total number of members of both the Houses present and voting in the joint sitting, the bill is deemed to have been passed by both the Houses. Normally, the Lok Sabha with greater number wins the battle in a joint sitting.

The Constitution has specified that at a joint sitting, new amendments to the bill cannot be proposed except in two cases:

1. those amendments that have caused final disagreement between the Houses; and
2. those amendments that might have become necessary due to the delay in the passage of the bill.

Since 1950, the provision regarding the joint sitting of the two Houses has been invoked only thrice. The bills that have been passed at joint sittings are:

1. Dowry Prohibition Bill, 1960.[20]
2. Banking Service Commission (Repeal) Bill, 1977.[21]
3. Prevention of Terrorism Bill, 2002.[22]

BUDGET IN PARLIAMENT

The Constitution refers to the budget as the 'annual financial statement'. In other words, the term 'budget' has nowhere been used in the Constitution. It is the popular name for the 'annual financial statement' that has been dealt with in Article 112 of the Constitution.

The budget is a statement of the estimated receipts and expenditure of the Government of India in a financial year, which begins on 1 April and ends on 31 March of the following year.

In addition to the estimates of receipts and expenditure, the budget contains certain other elements. Overall, the budget contains the following:

1. Estimates of revenue and capital receipts;
2. Ways and means to raise the revenue;
3. Estimates of expenditure;
4. Details of the actual receipts and expenditure of the closing financial year and the reasons for any deficit or surplus in that year; and
5. Economic and financial policy of the coming year, that is, taxation proposals, prospects of revenue, spending programme and introduction of new schemes/projects.

Till 2017, the Government of India had two budgets, namely, the Railway Budget and the General Budget. While the former consisted of the estimates of receipts and expenditures of only the Ministry of Railways, the latter consisted of the estimates of receipts and expenditure of all the ministries of the Government of India (except the railways).

The Railway Budget was separated from the General Budget in 1924 on the recommendations of the Acworth Committee Report (1921). The reasons or objectives of this separation were as follows:

1. To introduce flexibility in railway finance.
2. To facilitate a business approach to the railway policy.
3. To secure stability of the general revenues by providing an assured annual contribution from railway revenues.

4. To enable the railways to keep their profits for their own development (after paying a fixed annual contribution to the general revenues).

In 2017, the Central Government merged the railway budget into the general budget. Hence, there is now only one budget for the Government of India i.e., Union Budget.

Constitutional Provisions

The Constitution of India contains the following provisions with regard to the enactment of budget:

1. The President shall in respect of every financial year cause to be laid before both the Houses of Parliament a statement of estimated receipts and expenditure of the Government of India for that year.
2. No demand for a grant shall be made except on the recommendation of the President.
3. No money shall be withdrawn from the Consolidated Fund of India except under appropriation made by law.
4. No money bill imposing tax shall be introduced in the Parliament except on the recommendation of the President, and such a bill shall not be introduced in the Rajya Sabha.
5. No tax shall be levied or collected except by authority of law.
6. Parliament can reduce or abolish a tax but cannot increase it.
7. The Constitution has also defined the relative roles or position of both the Houses of Parliament with regard to the enactment of the budget in the following way:
   (a) A money bill or finance bill dealing with taxation cannot be introduced in the Rajya Sabha–it must be introduced only in the Lok Sabha.
   (b) The Rajya Sabha has no power to vote on the demand for grants; it is the exclusive privilege of the Lok Sabha.
   (c) The Rajya Sabha should return the Money bill (or Finance bill) to the Lok Sabha within fourteen days. The Lok Sabha can either accept or reject the recommendations made by Rajya Sabha in this regard.
8. The estimates of expenditure embodied in the budget shall show separately the expenditure charged on the

Consolidated Fund of India and the expenditure made from the Consolidated Fund of India.

9. The budget shall distinguish expenditure on revenue account from other expenditure.
10. The expenditure charged on the Consolidated Fund of India shall not be submitted to the vote of Parliament. However, it can be discussed by the Parliament.

Charged Expenditure

The budget consists of two types of expen-diture–the expenditure 'charged' upon the Consolidated Fund of India and the expenditure 'made' from the Consolidated Fund of India. The charged expenditure is non-votable by the Parliament, that is, it can only be discussed by the Parliament, while the other type has to be voted by the Parliament. The list of the charged expenditure is as follows:

1. Emoluments and allowances of the President and other expenditure relating to his office.
2. Salaries and allowances of the Chairman and the Deputy Chairman of the Rajya Sabha and the Speaker and the Deputy Speaker of the Lok Sabha.
3. Salaries, allowances and pensions of the judges of the Supreme Court.
4. Pensions of the judges of high courts.
5. Salary, allowances and pension of the Comptroller and Auditor General of India.
6. Salaries, allowances and pension of the chairman and members of the Union Public Service Commission.
7. Administrative expenses of the Supreme Court, the office of the Comptroller and Auditor General of India and the Union Public Service Commission including the salaries, allowances and pensions of the persons serving in these offices.
8. The debt charges for which the Government of India is liable, including interest, sinking fund charges and redemption charges and other expenditure relating to the raising of loans and the service and redemption of debt.

9. Any sum required to satisfy any judgement, decree or award of any court or arbitral tribunal.
10. Any other expenditure declared by the Parliament to be so charged.

Stages in Enactment

The budget goes through the following six stages in the Parliament:

1. Presentation of budget.
2. General discussion.
3. Scrutiny by departmental committees.
4. Voting on demands for grants.
5. Passing of appropriation bill.
6. Passing of finance bill.

1. Presentation of Budget

Conventionally, the budget is presented to the Lok Sabha by the finance minister on the last working day of February. Since 2017, the presentation of the budget has been advanced to 1st of February.

The Budget can also be presented to the House in two or more parts and when such presentation takes place, each part shall be dealt with as if it were the budget. Further, there shall be no discussion of the budget on the day on which it is presented to the House.

The finance minister presents the budget with a speech known as the 'budget speech'. At the end of the speech in the Lok Sabha, the budget is laid before the Rajya Sabha, which can only discuss it and has no power to vote on the demands for grants.

The budget documents presented to the Parliament comprise of the following :

(i) Budget Speech
(ii) Annual Financial Statement
(iii) Demands for Grants
(iv) Appropriation Bill
(v) Finance Bill
(vi) Statements mandated under the FRBM Act:
    (a) Macro-Economic Framework Statement

(b) Fiscal Policy Strategy Statement
(c) Medium Term Fiscal Policy Statement

(vii) Expenditure Budget
(viii) Receipts Budget
(ix) Expenditure Profile
(x) Memorandum Explaining the Provisions in the Finance Bill
(xi) Budget at a Glance
(xii) Outcome Budget

Earlier, the Economic Survey also used to be presented to the Parliament along with the budget. Now, it is presented one day or a few days before the presentation of the budget. This report is prepared by the finance ministry and indicates the status of the national economy.

2. General Discussion

The general discussion on budget begins a few days after its presentation. It takes place in both the Houses of Parliament and lasts usually for three to four days.

During this stage, the Lok Sabha can discuss the budget as a whole or on any question of principle involved therein but no cut motion can be moved nor can the budget be submitted to the vote of the House. The finance minister has a general right of reply at the end of the discussion.

3. Scrutiny by Departmental Committees

After the general discussion on the budget is over, the Houses are adjourned for about three to four weeks. During this gap period, the 24 departmental standing committees of Parliament examine and discuss in detail the demands for grants of the concerned ministers and prepare reports on them. These reports are submitted to both the Houses of Parliament for consideration.

The standing committee system established in 1993 (and expanded in 2004) makes parliamentary financial control over ministries much more detailed, close, in-depth and comprehensive.

4. Voting on Demands for Grants

In the light of the reports of the departmental standing committees, the Lok Sabha takes up voting of demands for

grants. The demands are presented ministrywise. A demand becomes a grant after it has been duly voted.

Two points should be noted in this context. One, the voting of demands for grants is the exclusive privilege of the Lok Sabha, that is, the Rajya Sabha has no power of voting the demands. Second, the voting is confined to the votable part of the budget– the expenditure charged on the Consolidated Fund of India is not submitted to the vote (it can only be discussed).

Each demand is voted separately by the Lok Sabha. During this stage, the members of Parliament can discuss the details of the budget. They can also move motions to reduce any demand for grant. Such motions are called as 'cut motion', which are of three kinds:

(a) Policy Cut Motion

It represents the disapproval of the policy underlying the demand. It states that the amount of the demand be reduced to Re 1. The members can also advocate an alternative policy.

(b) Economy Cut Motion

It represents the economy that can be affected in the proposed expenditure. It states that the amount of the demand be reduced by a specified amount (which may be either a lumpsum reduction in the demand or ommission or reduction of an item in the demand).

(c) Token Cut Motion

It ventilates a specific grievance that is within the sphere of responsibility of the Government of India. It states that the amount of the demand be reduced by ₹100.

A cut motion, to be admissible, must satisfy the following conditions:

(i) It should relate to one demand only.
(ii) It should be clearly expressed and should not contain arguments or defamatory statements.
(iii) It should be confined to one specific matter.
(iv) It should not make suggestions for the amendment or repeal of existing laws.
(v) It should not refer to a matter that is not primarily the

concern of Union government.

(vi) It should not relate to the expenditure charged on the Consolidated Fund of India.

(vii) It should not relate to a matter that is under adjudication by a court.

(viii) It should not raise a question of privilege.

(ix) It should not revive discussion on a matter on which a decision has been taken in the same session.

(x) It should not relate to a trivial matter.

(xi) It should not reflect on the character or conduct of any person whose conduct can only be challenged on a substantive motion.

(xii) It should not anticipate a matter which has been previously appointed for consideration in the same session.

(xiii) It should not seek to raise a discussion on a matter pending before any statutory tribunal or statutory authority performing judicial or quasi-judicial functions or any commission or court of enquiry.

The significance of a cut motion lies in: (a) facilitating the initiation of concentrated discussion on a specific demand for grant; and (b) upholding the principle of responsible government by probing the activities of the government. However, the cut motion do not have much utility in practice. They are only moved and discussed in the House but not passed as the government enjoys majority support. Their passage by the Lok Sabha amounts to the expressions of want of parliamentary confidence in the government and may lead to its resignation.

On the last day of the days allotted for discussion and voting on the demands for grants, the Speaker puts all the remaining demands to vote and disposes them whether they have been discussed by the members or not. This is known as ‘guillotine’.

5. Passing of Appropriation Bill

The Constitution states that ‘no money shall be withdrawn from the Consolidated Fund of India except under appropriation made by law’. Accordingly, an appropriation bill is introduced to provide for the appropriation, out of the Consolidated Fund of India, all money required to meet:

(a) The grants voted by the Lok Sabha.
(b) The expenditure charged on the Consolidated Fund of India.

No such amendment can be proposed to the appropriation bill in either house of the Parliament that will have the effect of varying the amount or altering the destination of any grant voted, or of varying the amount of any expenditure charged on the Consolidated Fund of India.

The Appropriation Bill becomes the Appropriation Act after it is assented to by the President. This act authorises (or legalises) the payments from the Consolidated Fund of India. This means that the government cannot withdraw money from the Consolidated Fund of India till the enactment of the appropriation bill. This takes time and usually goes on till the end of April. But the government needs money to carry on its normal activities after 31 March (the end of the financial year). To overcome this functional difficulty, the Constitution has authorised the Lok Sabha to make any grant in advance in respect to the estimated expenditure for a part of the financial year, pending the completion of the voting of the demands for grants and the enactment of the appropriation bill. This provision is known as the 'vote on account'. It is passed (or granted) after the general discussion on budget is over. It is generally granted for two months for an amount equivalent to one-sixth of the total estimation.

6. Passing of Finance Bill

The Finance Bill is introduced to give effect to the financial proposals of the Government of India for the following year. It is subjected to all the conditions applicable to a Money Bill. Unlike the Appropriation Bill, the amendments (seeking to reject or reduce a tax) can be moved in the case of finance bill.

According to the Provisional Collection of Taxes Act of 1931, the Finance Bill must be enacted (i.e., passed by the Parliament and assented to by the president) within 75 days.

The Finance Act legalises the income side of the budget and completes the process of the enactment of the budget.

Other Grants

In addition to the budget that contains the ordinary estimates of income and expenditure for one financial year, various other grants are made by the Parliament under extraordinary or special circumstances:

Supplementary Grant
It is granted when the amount authorised by the Parliament through the appropriation act for a particular service for the current financial year is found to be insufficient for that year.

Additional Grant
It is granted when a need has arisen during the current financial year for additional expenditure upon some new service not contemplated in the budget for that year.

Excess Grant
It is granted when money has been spent on any service during a financial year in excess of the amount granted for that service in the budget for that year. It is voted by the Lok Sabha after the financial year. Before the demands for excess grants are submitted to the Lok Sabha for voting, they must be approved by the Public Accounts Committee of Parliament.

Vote of Credit
It is granted for meeting an unexpected demand upon the resources of India, when on account of the magnitude or the indefinite character of the service, the demand cannot be stated with the details ordinarily given in a budget. Hence, it is like a blank cheque given to the Executive by the Lok Sabha.

Exceptional Grant
It is granted for a special purpose and forms no part of the current service of any financial year.

Token Grant
It is granted when funds to meet the proposed expenditure on a new service can be made available by reappropriation. A demand for the grant of a token sum (of Re 1) is submitted to the vote of the Lok Sabha and if assented, funds are made available.

Reappropriation involves transfer of funds from one head to another. It does not involve any additional expenditure.

Supplementary, additional, excess and exceptional grants and vote of credit are regulated by the same procedure which is applicable in the case of a regular budget.

Funds

The Constitution of India provides for the following three kinds of funds for the Central government:

1. Consolidated Fund of India (Article 266)
2. Public Account of India (Article 266)
3. Contingency Fund of India (Article 267)

Consolidated Fund of India

It is a fund to which all receipts are credited and all payments are debited. In other words, (a) all revenues received by the Government of India; (b) all loans raised by the Government by the issue of treasury bills, loans or ways and means of advances; and (c) all money received by the government in repayment of loans forms the Consolidated Fund of India. All the legally authorised payments on behalf of the Government of India are made out of this fund. No money out of this fund can be appropriated (issued or drawn) except in accordance with a parliamentary law.

Public Account of India

All other public money (other than those which are credited to the Consolidated Fund of India) received by or on behalf of the Government of India shall be credited to the Public Account of India. This includes provident fund deposits, judicial deposits, savings bank deposits, departmental deposits, remittances and so on. This account is operated by executive action, that is, the payments from this account can by made without parliamentary appropriation. Such payments are mostly in the nature of banking transactions.

Contingency Fund of India

The Constitution authorised the Parliament to establish a ‘Contingency Fund of India’, into which amounts determined by law are paid from time to time. Accordingly, the Parliament enacted the contingency fund of India Act in 1950. This fund is placed at the disposal of the president, and he can make advances out of it to meet unforeseen expenditure pending its authorisation by the Parliament. The fund is held by the finance secretary on behalf of the president. Like the public account of India, it is also operated by executive action.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

In the 'Indian politico-administrative system', the Parliament occupies a central position and has a multifunctional role. It enjoys extensive powers and performs a variety of functions towards the fulfilment of its constitutionally expected role. Its powers and functions can be classified under the following heads:

1. Legislative Powers and Functions
2. Executive Powers and Functions
3. Financial Powers and Functions
4. Constituent Powers and Functions
5. Judicial Powers and Functions
6. Electoral Powers and Functions
7. Other powers and functions.

1. Legislative Powers and Functions

The primary function of Parliament is to make laws for the governance of the country. It has exclusive power to make laws on the subjects enumerated in the Union List (which at present has 98 subjects, originally 97 subjects) and on the residuary subjects (that is, subjects not enumerated in any of the three lists). With regard to Concurrent List (which has at present 52 subjects, originally 47 subjects), the Parliament has overriding powers, that is, the law of Parliament prevails over the law of the state legislature in case of a conflict between the two.

The Constitution also empowers the Parliament to make laws on the subjects enumerated in the State List (which at present has 59 subjects, originally 66 subjects) under the following five abnormal circumstances:

(a) when Rajya Sabha passes a resolution to that effect.
(b) when a proclamation of National Emergency is in operation.
(c) when two or more states make a joint request to the Parliament.
(d) when necessary to give effect to international agreements, treaties and conventions.
(e) when President's Rule is in operation in the state.

All the ordinances issued by the president (during the recess of the Parliament) must be approved by the Parliament within six weeks after its reassembly. An ordinance becomes inoperative if it is not approved by the parliament within that period.

The Parliament makes laws in a skeleton form and authorises the Executive to make detailed rules and regulations within the framework of the parent law. This is known as *delegated legislation* or executive legislation or subordinate legislation. Such rules and regulations are placed before the Parliament for its examination.

2. Executive Powers and Functions

The Constitution of India established a parliamentary form of government in which the Executive is responsible to the Parliament for its policies and acts. Hence, the Parliament exercises control over the Executive through question-hour, zero hour, half-an-hour discussion, short duration discussion, calling attention motion, adjournment motion, no-confidence motion, censure motion and other discussions. It also supervises the activities of the Executive with the help of its committees like committee on government assurance, committee on subordinate legislation, committee on petitions, etc.

The ministers are collectively responsible to the Parliament in general and to the Lok Sabha in particular. As a part of collective responsibility, there is individual responsibility, that is, each minister is individually responsible for the efficient administration of the ministry under his charge. This means that they continue in office so long as they enjoy the confidence of the majority members in the Lok Sabha. In other words, the council of ministers can be removed from office by the Lok Sabha by passing a noconfidence motion. The Lok Sabha can also express lack of confidence in the government in the following ways:

(a) By not passing a motion of thanks on the President's inaugural address.
(b) By rejecting a money bill.
(c) By passing a censure motion or an adjournment motion.
(d) By defeating the government on a vital issue.
(e) By passing a cut motion.

Therefore, “the first function of Parliament can be said to be to select the group which is to form the government, support and sustain it in power so long as it enjoys its confidence, and to expel it when it ceases to do so, and leave it to the people to decide at the next general election.”[23]

3. Financial Powers and Functions

No tax can be levied or collected and no expenditure can be incurred by the Executive except under the authority and with the approval of Parliament. Hence, the budget is placed before the Parliament for its approval. The enactment of the budget by the Parliament legalises the receipts and expenditure of the government for the ensuing financial year.

The Parliament also scrutinises government spending and financial performance with the help of its financial committees. These include public accounts committee, estimates committee and committee on public undertakings. They bring out the cases of illegal, irregular, unauthorised, improper usage and wastage and extravagance in public expenditure.

Therefore, the parliamentary control over the Executive in financial matters operates in two stages:

(a) budgetary control, that is, control before the appropriation of grants through the enactment of the budget; and

(b) post-budgetary control, that is, control after the appropriation of grants through the three financial committees.

The budget is based on the principle of annuity, that is, the Parliament grants money to the government for one financial year. If the granted money is not spent by the end of the financial year, then the balance expires and returns to the Consolidated Fund of India. This practice is known as the ‘rule of lapse’. It facilitates effective financial control by the Parliament as no reserve funds can be built without its authorisation. However, the observance of this rule leads to heavy rush of expenditure towards the close of the financial year. This is popularly called as ‘March Rush’.

4. Constituent Powers and Functions

The Parliament is vested with the powers to amend the Constitution by way of addition, variation or repeal of any provision. The major part of the Constitution can be amended by the Parliament with special majority, that is, a majority of the total membership of each House and a majority of not less than two-thirds of the members present and voting in each House. Some other provisions of the Constitution can be amended by the Parliament with simple majority, that is, a majority of the members present and voting in each House of Parliament. Only a few provisions of the Constitution can be amended by the Parliament (by special majority) and with the consent of at least half of the state Legislatures (by simple majority). However, the power to initiate the process of the amendment of the Constitution (in all the three cases) lies exclusively in the hands of the Parliament and not the state legislature. There is only one exception, that is, the state legislature can pass a resolution requesting the Parliament for the creation or abolition of the legislative council in the state. Based on the resolution, the Parliament makes an act for amending the Constitution to that effect. To sum up, the Parliament can amend the Constitution in three ways:

(a) By simple majority;
(b) By special majority; and
(c) By special majority but with the consent of half of all the state legislatures.

The constituent power of the Parliament is not unlimited; it is subject to the ‘basic structure’ of the Constitution. In others words, the Parliament can amend any provision of the Constitution except the ‘basic features’ of the Constitution. This was ruled by the Supreme Court in the Kesavananda Bharati case (1973) and reaffirmed in the Minerva Mills case (1980)[24] .

5. Judicial Powers and Functions

The judicial powers and functions of the Parliament include the following:

(a) It can impeach the President for the violation of the Constitution.
(b) It can remove the Vice-President from his office.

(c) It can recommend the removal of judges (including chief justice) of the Supreme Court and the high courts, chief election commissioner, comptroller and auditor general to the president.
(d) It can punish its members or outsiders for the breach of its privileges or its contempt.

6. Electoral Powers and Functions

The Parliament participates in the election of the President (along with the state legislative assemblies) and elects the Vice-President. The Lok Sabha elects its Speaker and Deputy Speaker, while the Rajya Sabha elects its Deputy Chairman.

The Parliament is also authorised to make laws to regulate the elections to the offices of President and Vice-President, to both the Houses of Parliament and to both the Houses of state legislature. Accordingly, Parliament enacted the Presidential and Vice-Presidential Election Act (1952), the Representation of People Act (1950), the Representation of People Act (1951), etc.

7. Other Powers and Functions

The various other powers and functions of the Parliament include:

(a) It serves as the highest deliberative body in the country. It discusses various issues of national and international significance.
(b) It approves all the three types of emergencies (national, state and financial) proclaimed by the President.
(c) It can create or abolish the state legislative councils on the recommendation of the concerned state legislative assemblies.
(d) It can increase or decrease the area, alter the boundaries and change the names of states of the Indian Union.
(e) It can regulate the organisation and jurisdiction of the Supreme Court and high courts and can establish a common high court for two or more states.

INEFFECTIVENESS OF PARLIAMENTARY CONTROL

The parliamentary control over government and administration in India is more theoretical than practical. In reality, the control is not as effective as it ought to be. The following factors are responsible for this:

(a) The Parliament has neither time nor expertise to control the administration which has grown in volume as well as complexity.

(b) Parliament's financial control is hindered by the technical nature of the demands for grants. The parliamentarians being laymen cannot understand them properly and fully.

(c) The legislative leadership lies with the Executive and it plays a significant role in formulating policies.

(d) The very size of the Parliament is too large and unmanagable to be effective.

(e) The majority support enjoyed by the Executive in the Parliament reduces the possibility of effective criticism.

(f) The financial committees like Public Accounts Committee examines the public expenditure after it has been incurred by the Executive. Thus, they do post mortem work.

(g) The increased recourse to 'guillotine' reduced the scope of financial control.

(h) The growth of 'delegated legislation' has reduced the role of Parliament in making detailed laws and has increased the powers of bureaucracy.

(i) The frequent promulgation of ordinances by the president dilutes the Parliament's power of legislation.

(j) The Parliament's control is sporadic, general and mostly political in nature.

(k) Lack of strong and steady opposition in the Parliament, and a setback in the parliamentary behaviour and ethics, have also contributed to the ineffectiveness of legislative control over administration in India.

POSITION OF RAJYA SABHA

The Constitutional position of the Rajya Sabha (as compared with the Lok Sabha) can be studied from three angles:

1. Where Rajya Sabha is equal to Lok Sabha.
2. Where Rajya Sabha is unequal to Lok Sabha.
3. Where Rajya Sabha has special powers that are not at all shared with the Lok Sabha.

Equal Status with Lok Sabha

In the following matters, the powers and status of the Rajya Sabha are equal to that of the Lok Sabha:

1. Introduction and passage of ordinary bills.
2. Introduction and passage of Constitutional amendment bills.
3. Introduction and passage of financial bills involving expenditure from the Consolidated Fund of India.
4. Election and impeachment of the president.
5. Election and removal of the Vice-President. However, Rajya Sabha alone can initiate the removal of the vice-president. He is removed by a resolution passed by the Rajya Sabha by an effective majority (which is a type of special majority) and agreed to by the Lok Sabha by a simple majority.
6. Making recommendation to the President for the removal of Chief Justice and judges of Supreme Court and high courts, chief election commissioner and comptroller and auditor general.
7. Approval of ordinances issued by the President.
8. Approval of proclamation of all three types of emergencies by the President.
9. Selection of ministers including the Prime Minister. Under the Constitution, the ministers including the Prime Minister can be members of either House. However, irrespective of their membership, they are responsible only to the Lok Sabha.
10. Consideration of the reports of the constitutional bodies like Finance Commission, Union Public Service Commission, comptroller and auditor general, etc.

11. Enlargement of the jurisdiction of the Supreme Court and the Union Public Service Commission.

Unequal Status with Lok Sabha

In the following matters, the powers and status of the Rajya Sabha are unequal to that of the Lok Sabha:

1. A Money Bill can be introduced only in the Lok Sabha and not in the Rajya Sabha.
2. Rajya Sabha cannot amend or reject a Money Bill. It should return the bill to the Lok Sabha within 14 days, either with recommendations or without recommendations.
3. The Lok Sabha can either accept or reject all or any of the recommendations of the Rajya Sabha. In both the cases, the money bill is deemed to have been passed by the two Houses.
4. A financial bill, not containing solely the matters of Article 110, also can be introduced only in the Lok Sabha and not in the Rajya Sabha. But, with regard to its passage, both the Houses have equal powers.
5. The final power to decide whether a particular bill is a Money Bill or not is vested in the Speaker of the Lok Sabha.
6. The Speaker of Lok Sabha presides over the joint sitting of both the Houses.
7. The Lok Sabha with greater number wins the battle in a joint sitting except when the combined strength of the ruling party in both the Houses is less than that of the opposition parties.
8. Rajya Sabha can only discuss the budget but cannot vote on the demands for grants (which is the exclusive privilege of the Lok Sabha).
9. A resolution for the discontinuance of the national emergency can be passed only by the Lok Sabha and not by the Rajya Sabha.
10. The Rajya Sabha cannot remove the council of ministers by passing a no-confidence motion. This is because the Council of ministers is collectively responsible only to the Lok Sabha. But, the Rajya Sabha can discuss and criticise the policies and activities of the government.

Special Powers of Rajya Sabha

The Rajya Sabha has been given four exclusive or special powers that are not enjoyed by the Lok Sabha:

1. It can authorise the Parliament to make a law on a subject enumerated in the State List (Article 249).
2. It can authorise the Parliament to create new All-India Services common to both the Centre and states (Article 312).
3. It alone can initiate a move for the removal of the vice-president. In other words, a resolution for the removal of the vice-president can be introduced only in the Rajya Sabha and not in the Lok Sabha (Article 67).
4. If a proclamation is issued by the President for imposing national emergency or president's rule or financial emergency at a time when the Lok Sabha has been dissolved or the dissolution of the Lok Sabha takes place within the period allowed for its approval, then the proclamation can remain effective even if it is approved by the Rajya Sabha alone (Articles 352, 356 and 360).

An analysis of the above points makes it clear that the position of the Rajya Sabha in our constitutional system is not as weak as that of the House of Lords in the British constitutional system nor as strong as that of the Senate in the American constitutional system. Except in financial matters and control over the council of ministers, the powers and status of the Rajya Sabha in all other spheres are broadly equal and coordinate with that of the Lok Sabha.

Even though the Rajya Sabha has been given less powers as compared with the Lok Sabha, its utility is supported on the following grounds:

1. It checks hasty, defective, careless and ill-considered legislation made by the Lok Sabha by making provision of revision and thought.
2. It facilitates giving representation to eminent professionals and experts who cannot face the direct election. The President nominates 12 such persons to the Rajya Sabha.
3. It maintains the federal equilibrium by protecting the interests of the states against the undue interference of the

Centre.

PARLIAMENTARY PRIVILEGES

Meaning

Parliamentary privileges are special rights, immunities and exemptions enjoyed by the two Houses of Parliament, their committees and their members. They are necessary in order to secure the independence and effectiveness of their actions. Without these privileges, the Houses can neither maintain their authority, dignity and honour nor can protect their members from any obstruction in the discharge of their parliamentary responsibilities.

The Constitution has also extended the parliamentary privileges to those persons who are entitled to speak and take part in the proceedings of a House of Parliament or any of its committees. These include the attorney general of India and Union ministers.

It must be clarified here that the parliamentary privileges do not extend to the president who is also an integral part of the Parliament.

Classification

Parliamentary privileges can be classified into two broad categories:

1. those that are enjoyed by each House of Parliament collectively, and
2. those that are enjoyed by the members individually.

Collective Privileges

The privileges belonging to each House of Parliament collectively are:

1. It has the right to publish its reports, debates and proceedings and also the right to prohibit others from publishing the same. The 44th Amendment Act of 1978 restored the freedom of the press to publish true reports of parliamentary proceedings without prior permission of the House. But this is not applicable in the case of a secret sitting of the House.

2. It can exclude strangers from its proceedings and hold secret sittings to discuss some important matters.
3. It can make rules to regulate its own procedure and the conduct of its business and to adjudicate upon such matters.
4. It can punish members as well as outsiders for breach of its privileges or its contempt by reprimand, admonition or imprisonment (also suspension or expulsion, in case of members).[25]
5. It has the right to receive immediate information of the arrest, detention, conviction, imprisonment and release of a member.
6. It can institute inquiries and order the attendance of witnesses and send for relevant papers and records.
7. The courts are prohibited to inquire into the proceedings of a House or its committees.
8. No person (either a member or outsider) can be arrested, and no legal process (civil or criminal) can be served within the precincts of the House without the permission of the presiding officer.

Individual Privileges

The privileges belonging to the members individually are:

1. They cannot be arrested during the session of Parliament and 40 days before the beginning and 40 days after the end of a session. This privilege is available only in civil cases and not in criminal cases or preventive detention cases.
2. They have freedom of speech in Parliament. No member is liable to any proceedings in any court for anything said or any vote given by him in Parliament or its committees. This freedom is subject to the provisions of the Constitution and to the rules and standing orders regulating the procedure of Parliament.[26]
3. They are exempted from jury service. They can refuse to give evidence and appear as a witness in a case pending in a court when Parliament is in session.

Breach of Privilege and Contempt of the House

> "When any individual or authority disregards or attacks any of the privileges, rights and immunities, either of the member individually or of the House in its collective capacity, the offence is termed as breach of privilege and is punishable by the House."[27]

Any act or omission which obstructs a House of Parliament, its member or its officer in the performance of their functions or which has a tendency, directly or indirectly to produce results against the dignity, authority and honour of the House is treated as a contempt of the House.[28]

Though the two phrases, 'breach of privilege' and 'contempt of the House' are used interchangeably, they have different implications. 'Normally, a breach of privilege may amount to contempt of the House. Likewise, contempt of the House may include a breach of privilege also. Contempt of the House, however, has wider implications. There may be a contempt of the House without specifically committing a breach of privilege'.[29] Similarly, 'actions which are not breaches of any specific privilege but are offences against the dignity and authority of the House amount to contempt of the House'.[30] For example, disobedience to a legitimate order of the House is not a breach of privilege, but can be punished as contempt of the House.

Sources of Privileges

Originally, the Constitution (Article 105) expressedly mentioned two privileges, that is, freedom of speech in Parliament and right of publication of its proceedings. With regard to other privileges, it provided that they were to be the same as those of the British House of Commons, its committees and its members on the date of its commencement (ie, 26 January, 1950), until defined by Parliament. The 44th Amendment Act of 1978 provided that the other privileges of each House of Parliament, its committees and its members are to be those which they had on the date of its commencement (ie, 20 June, 1979), until defined by Parliament. This means that the position with regard to other privileges remains same. In other words, the amendment has made only verbal changes by dropping a direct reference to the British House

of Commons, without making any change in the implication of the provision.[31]

It should be noted here that the Parliament, till now, has not made any special law to exhaustively codify all the privileges. They are based on five sources, namely,

1. Constitutional provisions,
2. Various laws made by Parliament,
3. Rules of both the Houses,
4. Parliamentary conventions, and
5. Judicial interpretations.

SOVEREIGNTY OF PARLIAMENT

The doctrine of 'sovereignty of Parliament' is associated with the British Parliament. Sovereignty means the supreme power within the State. That supreme power in Great Britain lies with the Parliament. There are no 'legal' restrictions on its authority and jurisdiction.

Therefore, the sovereignty of Parliament (parliamentary supremacy) is a cardinal feature of the British constitutional system. According to AV Dicey, the British jurist, this principle has three implications:[32]

1. The Parliament can make, amend, substitute or repeal any law. De Lolme, a British political analyst, said, 'The British Parliament can do every thing except make a woman a man and a man a woman'.
2. The Parliament can make constitutional laws by the same procedure as ordinary laws. In other words, there is no legal distinction between the constituent authority and the legislative authority of the British Parliament.
3. The Parliamentary laws cannot be declared invalid by the Judiciary as being unconstitutional. In other words, there is no system of judicial review in Britain.

The Indian Parliament, on the other hand, cannot be regarded as a sovereign body in the similar sense as there are 'legal' restrictions on its authority and jurisdiction. The factors that limit the sovereignty of Indian Parliament are:

1. Written Nature of the Constitution

The Constitution is the fundamental law of the land in our country. It has defined the authority and jurisdiction of all the three organs of the Union government and the nature of interrelationship between them. Hence, the Parliament has to operate within the limits prescribed by the Constitution. There is also a legal distinction between the legislative authority and the constituent authority of the Parliament. Moreover, to effect certain amendments to the Constitution, the ratification of half of the

states is also required. In Britain, on the other hand, the Constitution is neither written nor there is anything like a fundamental law of the land.

2. Federal System of Government

India has a federal system of government with a constitutional division of powers between the Union and the states. Both have to operate within the spheres allotted to them. Hence, the law-making authority of the Parliament gets confined to the subjects enumerated in the Union List and Concurrent List and does not extend to the subjects enumerated in the State List (except in five abnormal circumstances and that too for a short period). Britain, on the other hand, has a unitary system of government and hence, all the powers are vested in the Centre.

3. System of Judicial Review

The adoption of an independent Judiciary with the power of judicial review also restricts the supremacy of our Parliament. Both the Supreme Court and high courts can declare the laws enacted by the Parliament as void and *ultra vires* (unconstitutional), if they contravene any provision of the Constitution. On the other hand, there is no system of judicial review in Britain. The British Courts have to apply the Parliamentary laws to specific cases, without examining their constitutionality, legality or reasonableness.

4. Fundamental Rights

The authority of the Parliament is also restricted by the incorporation of a code of justiciable fundamental rights under Part III of the Constitution. Article 13 prohibits the State from making a law that either takes away totally or abrogates in part a fundamental right. Hence, a Parliamentary law that contravenes the fundamental rights shall be void. In Britain, on the other hand, there is no codification of justiciable fundamental rights in the Constitution. The British Parliament has also not made any law that lays down the fundamental rights of the citizens. However, it

does not mean that the British citizens do not have rights. Though there is no charter guaranteeing rights, there is maximum liberty in Britain due to the existence of the Rule of Law.

Therefore, even though the nomenclature and organisational pattern of our Parliament is similar to that of the British Parliament, there is a substantial difference between the two. The Indian Parliament is not a sovereign body in the sense in which the British Parliament is a sovereign body. Unlike the British Parliament, the authority and jurisdiction of the Indian Parliament are defined, limited and restrained.

In this regard, the Indian Parliament is similar to the American Legislature (known as Congress). In USA also, the sovereignty of Congress is legally restricted by the written character of the Constitution, the federal system of government, the system of judicial review and the Bill of Rights.

Table 22.5 *Allocation of Seats in Parliament for States and Union Territories (2019)*

S.No.	States/UTs	No. of Seats in Rajya Sabha	No. of Seats in Lok Sabha
I. States			
1.	Andhra Pradesh	11	25
2.	Arunachal Pradesh	1	2
3.	Assam	7	14
4.	Bihar	16	40
5.	Chhattisgarh	5	11
6.	Goa	1	2
7.	Gujarat	11	26
8.	Haryana	5	10
9.	Himachal Pradesh	3	4
10.	Jharkhand	6	14

11.	Karnataka	12	28
12.	Kerala	9	20
13.	Madhya Pradesh	11	29
14.	Maharashtra	19	48
15.	Manipur	1	2
16.	Meghalaya	1	2
17.	Mizoram	1	1
18.	Nagaland	1	1
19.	Odisha	10	21
20.	Punjab	7	13
21.	Rajasthan	10	25
22.	Sikkim	1	1
23.	Tamil Nadu	18	39
24.	Telangana	7	17
25.	Tripura	1	2
26.	Uttarakhand	3	5
27.	Uttar Pradesh	31	80
28.	West Bengal	16	42
II. Union Territories			
1.	Andaman and Nicobar Islands	–	1
2.	Chandigarh	–	1
3.	Dadra and Nagar Haveli	–	1
4.	Daman and Diu	–	1
5.	Delhi (The National Capital Territory of Delhi)	3	7
6.	Lakshadweep	–	1
7.	Puducherry	1	1
8.	Jammu and Kashmir	4	5

9	Ladakh	–	1
III. Nominated members		12	2
	Total	**245**	**545**

Table 22.6 *Seats Reserved for SCs and STs in the Lok Sabha (2019)*

Name of the State/Union Territory		Total	Reserved for the Scheduled Castes	Reserved for the Scheduled Tribes
I. STATES:				
1.	Andhra Pradesh	25	4	1
2.	Arunachal Pradesh	2	–	–
3.	Assam	14	1	2
4.	Bihar	40	6	–
5.	Chhattisgarh	11	1	4
6.	Goa	2	–	–
7.	Gujarat	26	2	4
8.	Haryana	10	2	–
9.	Himachal Pradesh	4	1	–
10.	Jharkhand	14	1	5
11.	Karnataka	28	5	2
12.	Kerala	20	2	–
13.	Madhya Pradesh	29	4	6
14.	Maharashtra	48	5	4
15.	Manipur	2	–	1
16.	Meghalaya	2	–	2
17.	Mizoram	1	–	1

18.	Nagaland	1	–	–
19.	Odisha	21	3	5
20.	Punjab	13	4	–
21.	Rajasthan	25	4	3
22.	Sikkim	1	–	–
23.	Tamil Nadu	39	7	–
24.	Telangana	17	3	2
25.	Tripura	2	–	1
26.	Uttarakhand	5	1	–
27.	Uttar Pradesh	80	17	–
28.	West Bengal	42	10	2
II. UNION TERRITORIES:				
1.	Andaman and Nicobar Islands	1	–	–
2.	Chandigarh	1	–	–
3.	Dadra and Nagar Haveli	1	–	1
4.	Daman and Diu	1	–	–
5.	Delhi (The National Capital Territory of Delhi)	7	1	–
6.	Lakshadweep	1	–	1
7.	Puducherry	1	–	–
8.	Jammu and Kashmir	5	–	–
9.	Ladakh	1	–	–
	Total	**543**	**84**	**47**

Table 22.7 *Durations of the Lok Sabha (from First Lok Sabha to Present Lok Sabha)*

Lok Sabha	Duration	Remarks
First	1952–1957	Dissolved 38 days before expiry of its term.
Second	1957–1962	Dissolved 40 days before expiry of its term.
Third	1962–1967	Dissolved 44 days before expiry of its term.
Fourth	1967–1970	Dissolved one year and 79 days before expiry of its term.
Fifth	1971–1977	Term of the Lok Sabha was extended two times by one year at a time. However, the House was dissolved after having been in existence for a period of five years, 10 months and six days.
Sixth	1977–1979	Dissolved after having been in existence for a period of two years, four months and 28 days.
Seventh	1980–1984	Dissolved 20 days before expiry of its term.
Eighth	1985–1989	Dissolved 48 days before expiry of its term.
Ninth	1989–1991	Dissolved after having been in existence for a period of one year, two months and 25 days.
Tenth	1991–1996	–
Eleventh	1996–1997	Dissolved after having been in existence for a period of one year, six months and 13 days.
Twelfth	1998–1999	Dissolved after having been in existence for a period of one year, one month and four days.
Thirteenth	1999–2004	Dissolved 253 days before expiry of its term.

Fourteenth	2004–2009	–
Fifteenth	2009–2014	–
Sixteenth	2014–2019	–
Seventeenth	2019-Continuing	–

Table 22.8 *Speakers of the Lok Sabha (from First Lok Sabha to Present Lok Sabha)*

Lok Sabha	Name	Tenure (Remarks)
First	1. Ganesh Vasudev Mavalanker	1952 to 1956 (Died)
	2. Ananthasayanam Ayyangar	1956 to 1957
Second	Ananthasayanam Ayyangar	1957 to 1962
Third	Hukum Singh	1962 to 1967
Fourth	1. Neelam Sanjiva Reddy	1967 to 1969 (Resigned)
	2. Gurdial Singh Dhillan	1969 to 1971
Fifth	1. Gurdial Singh Dhillan	1971 to 1975 (Resigned)
	2. Bali Ram Bhagat	1976 to 1977
Sixth	1. Neelam Sanjiva Reddy	1977 to 1977 (Resigned)
	2. K.S. Hegde	1977 to 1980
Seventh	Balram Jakhar	1980 to 1985
Eighth	Balram Jakhar	1985 to 1989
Ninth	Rabi Ray	1989 to 1991
Tenth	Shivraj Patil	1991 to 1996
Eleventh	P.A. Sangma	1996 to 1998
Twelfth	G.M.C. Balayogi	1998 to 1999
Thirteenth	1. G.M.C. Balayogi	1999 to 2002 (Died)

	2. Manohar Joshi	2002 to 2004
Fourteenth	Somnath Chatterjee	2004 to 2009
Fifteenth	Ms. Meira Kumar	2009 – 2014
Sixteenth	Ms. Sumitra Mahajan	2014 – 2019
Seventeenth	Om Birla	2019 - till date

Table 22.9 *Articles Related to Parliament at a Glance*

Article No.	Subject Matter
	General
79.	Constitution of Parliament
80.	Composition of the Council of States
81.	Composition of the House of the People
82.	Readjustment after each census
83.	Duration of Houses of Parliament
84.	Qualification for membership of Parliament
85.	Sessions of Parliament, prorogation and dissolution
86.	Right of President to address and send messages to Houses
87.	Special address by the President
88.	Rights of Ministers and Attorney-General as respects Houses
	Officers of Parliament
89.	The Chairman and Deputy Chairman of the Council of States
90.	Vacation and resignation of, and removal from, the office of Deputy Chairman
91.	Power of the Deputy Chairman or other person to perform the duties of the office of, or to act as, Chairman

92.	The Chairman or the Deputy Chairman not to preside while a resolution for his removal from office is under consideration
93.	The Speaker and Deputy Speaker of the House of the People
94.	Vacation and resignation of, and removal from, the offices of Speaker and Deputy Speaker
95.	Power of the Deputy Speaker or other person to perform the duties of the office of, or to act as, Speaker
96.	The Speaker or the Deputy Speaker not to preside while a resolution for his removal from office is under consideration
97.	Salaries and allowances of the Chairman and Deputy Chairman and the Speaker and Deputy Speaker
98.	Secretariat of Parliament
	Conduct of Business
99.	Oath or affirmation by members
100.	Voting in Houses, power of Houses to act notwithstanding vacancies and quorum
	Disqualifications of Members
101.	Vacation of seats
102.	Disqualifications for membership
103.	Decision on questions as to disqualifications of members
104.	Penalty for sitting and voting before making oath or affirmation under Article 99 or when not qualified or when disqualified
	Powers, Privileges and Immunities of Parliament and its Members
105.	Powers, privileges, etc., of the Houses of Parliament and of the members and

	committees thereof
106.	Salaries and allowances of members
	Legislative Procedure
107.	Provisions as to introduction and passing of Bills
108.	Joint sitting of both Houses in certain cases
109.	Special procedure in respect of Money Bills
110.	Definition of “Money Bills”
111.	Assent to Bills
	Procedures in Financial Matters
112.	Annual financial statement
113.	Procedure in Parliament with respect to estimates
114.	Appropriation Bills
115.	Supplementary, additional or excess grants
116.	Votes on account, votes of credit and exceptional grants
117.	Special provisions as to financial Bills
	Procedure Generally
118.	Rules of procedure
119.	Regulation by law of procedure in Parliament in relation to financial business
120.	Language to be used in Parliament
121.	Restriction on discussion in Parliament
122.	Courts not to inquire into proceedings of Parliament
	Legislative Powers of the President
123.	Power of President to promulgate Ordinances during recess of Parliament

NOTES AND REFERENCES

1. Westminster is a place in London where the British Parliament is located. It is often used as a symbol of the British Parliament.
2. See Table 22.5 at the end of this chapter.
3. An Anglo-Indian is a person whose father or any of whose other male progenitors in the male line is or was of European descent but who is domiciled within the territory of India and is or was born within such territory of parents habitually resident therein and not merely established there for temporary purposes.
4. See Table 22.5 at the end of this chapter.
5. This means that the number of Lok Sabha seats reserved in a state or union territory for such castes and tribes is to bear the same proportion to the total number of seats allotted to that state or union territory in the Lok Sabha as the population of such castes and tribes in the concerned state or union territory bears to the total population of state or union territory.
6. Under this, the president has made the Rajya Sabha (Term of Office of Members) Order, 1952.
7. The term of the fifth Lok Sabha that was to expire on 18 March, 1976, was extended by one year upto 18 March, 1977 by the House of the People (Extension of Duration) Act, 1976. It was extended for a further period of one year up to 18 March, 1978 by the House of the People (Extension of Duration) Amendment Act, 1976. However, the House was dissolved on 18 January 1977, after having been in existence for a period of five years, 10 months and six days.
8. A minister in the Union or state government is not considered as holding the office of profit. Also, the Parliament can declare that a particular office of profit will notdisqualify its holder from parliamentary membership.
9. According to the Prohibition of Simultaneous Membership Rules (1950) made by the President.

9a. Section 3 of the Salaries and Allowances of Officers of Parliament Act, 1953 (as amended).
9b. *Ibid*.
9c. *Ibid*.
9d. *Ibid*.
9e. Section 5 of the Salaries and Allowances of Officers of Parliament Act, 1953 (as amended).
9f. *Ibid*.
10. *Kihota Hollohan* Vs. *Zachilhu* (1992).
11. In this context, V.V. Giri observed: "The holder of an office provided with such extensive authority and power must discharge the duties of his office impartially. So impartiality is regarded as an indispensable condition of the office of the Speaker, who is the guardian of the powers and privileges of the House and not of the political party with whose support he might have been elected to the office. It is not possible for him to maintain order in the House unless he enjoys the confidence of the minority parties by safeguarding their rights and privileges". ('Powers of the Presiding Officers in Indian Legislature' in *Journal of Consitutional and Parliamentary Studies*, New Delhi, Vol II, No. 4, Oct-Dec. 1968, p. 22)
12. For example, in the 13th Lok Sabha, Mr. Indrajit Gupta was appointed as Speaker *Pro Tem* on 20 October 1999 and remained in that office till 22 October 1999 when the new Speaker, Mr. G.M.C. Balayogi was elected.
13. Under Article 107 (3) of the Constitution, a bill pending in Parliament shall not lapse by reason of the prorogation of the Houses.
    Under Rule 336 of the Lok Sabha, a motion, resolution or an amendment, which has been moved and is pending in the House, shall not lapse by reason only of the prorogation of the House.
14. Subhash C. Kashyap: *Our Parliament,* National Book Trust, 1999 Edition, P. 135–136.
15. J.C. Johari: *Indian Government and Politics*, Vishal, Volume II, Thirteenth Edition, 2001, P. 360.

15a. T.K. Viswanathan (Editor), The Indian Parliament, Lok Sabha Secretariat, Fourteenth Edition, 2011, p.21.

16. Subhash C. Kashyap: *Our Parliament*, National Book Trust, 1999 Edition, P. 139–141.

17. *Ibid,* P. 139.

18. Under Rule 64 of Lok Sabha, the Speaker may, on request being made to him, order the publication of any bill in the Gazette, although no motion has been made for leave to introduce the bill. In that case, it shall not be necessary to move for leave to introduce the bill and if the bill is afterwards introduced, it shall not be necessary to publish it again.

19. For different kinds of veto, see 'Veto Power of the President' under Chapter 17.

20. The Lok Sabha did not agree to the amendments made by the Rajya Sabha. A joint siting was held on 6 May 1961.

21. The bill was passed by the Lok Sabha but rejected by the Rajya Sabha. A joint sitting was held on 16 May 1978.

22. The bill was passed by the Lok Sabha but rejected by the Rajya Sabha. A joint sitting was held on 26 March 2002. The bill was passed when 425 members voted for it and 296 against.

23. N.N. Mallya: *Indian Parliament*, P. 39.

24. *Kesavananda Bharati* V. *State of Kerala* (1973); *Minerva Mills* V. *Union of India* (1980).

25. In 1977, the sixth Lok Sabha expelled Mrs. Indira Gandhi from its membership and sentenced her to jail for a week for committing a contempt of House while she was Prime Minister. But, the seventh Lok Sabha rescinded the resolution expelling her by describing it as politically motivated. In 1990, a former Minister, K.K. Tiwari, was reprimanded by the Rajya Sabha.

26. Article 121 of the Constitution says that no discussion shall take place in Parliament with respect to the conduct of any judge of the Supreme Court or of a high court in the discharge of his duties except upon a

motion for presenting an address to the president praying for the removal of the judge. Under Rules 349 to 350 of the Lok Sabha, use of unparliamentary language or unparliamentary conduct of a member is prohibited.

27. Kaul and Shakdher: *Practice and Procedure of Parliament*, First Edition, P. 157.
28. Thomas Erskine May: *Parliamentary Practice*, 15th Edition, P. 109.
29. Subhash C. Kashyap: *Our Parliament*, National Book Trust, 1999 Edition, P. 241.
30. Thomas Erskine May: *Parliamentary Practice*, 16th Edition, P. 43.
31. The then law minister gave the following reason for dropping reference to the British House of Commons: “That the original provision–there was no escape from it–had referred to the British House of Commons. Now a proud country like India would like to avoid making any reference to a foreign institution in its own solemn constitutional document. Therefore, this verbal change is being introduced so that there may not be any reference to a foreign institution.”
32. A.V. Dicey: Introduction to the Study of the Law of the Constitution, Macmillan, 1965 Edition, P. 39–40.

23 Parliamentary Committees

MEANING

The Parliament is too unwieldy a body to deliberate effectively the issues that come up before it. The functions of the Parliament are varied, complex and voluminous. Moreover, it has neither the adequate time nor necessary expertise to make a detailed scrutiny of all legislative measures and other matters. Therefore, it is assisted by a number of committees in the discharge of its duties.

The Constitution of India makes a mention of these committees at different places, but without making any specific provisions regarding their composition, tenure, functions, etc. All these matters are dealt by the rules of two Houses. Accordingly, a parliamentary committee means a committee that:

1. Is appointed or elected by the House or nominated by the Speaker / Chairman[1]
2. Works under the direction of the Speaker / Chairman
3. Presents its report to the House or to the Speaker / Chairman
4. Has a secretariat provided by the Lok Sabha / Rajya Sabha

The consultative committees, which also consist of members of Parliament, are not parliamentary committees as they do not fulfill above four conditions.[2]

CLASSIFICATION

Broadly, parliamentary committees are of two kinds–Standing Committees and *Ad Hoc* Committees. The former are permanent (constituted every year or periodically) and work on a continuous basis, while the latter are temporary and cease to exist on completion of the task assigned to them.

Standing Committees

On the basis of the nature of functions performed by them, standing committees can be classified into the following six categories:

1. Financial Committees

(a) Public Accounts Committee
(b) Estimates Committee
(c) Committee on Public Undertakings

2. Departmental Standing Committees (24)

3. Committees to Inquire

(a) Committee on Petitions
(b) Committee of Privileges
(c) Ethics Committee

4. Committees to Scrutinise and Control

(a) Committee on Government Assurances
(b) Committee on Subordinate Legislation
(c) Committee on Papers Laid on the Table
(d) Committee on Welfare of SCs and STs
(e) Committee on Empowerment of Women
(f) Joint Committee[3] on Offices of Profit

5. Committees Relating to the Day-to-Day Business of the House

(a) Business Advisory Committee
(b) Committee on Private Members' Bills and Resolutions

(c) Rules Committee
(d) Committee on Absence of Members from Sittings of the House

6. House-Keeping Committees or Service Committees (i.e., Committees concerned with the Provision of Facilities and Services to Members):

(a) General Purposes Committee
(b) House Committee
(c) Library Committee
(d) Joint Committee on Salaries and Allowances of Members

Ad Hoc Committees

Ad hoc committees can be divided into two categories, that is, Inquiry Committees and Advisory Committees.

1. Inquiry Committees are constituted from time to time, either by the two Houses on a motion adopted in that behalf, or by the Speaker / Chairman, to inquire into and report on specific subjects. For example:
   (a) Committee on the Conduct of Certain Members during President's Address
   (b) Committee on Draft Five-Year Plan
   (c) Railway Convention Committee[4]
   (d) Committee on Members of Parliament Local Area Development Scheme (MPLADS)
   (e) Joint Committee on Bofors Contract
   (f) Joint Committee on Fertilizer Pricing
   (g) Joint Committee to Enquire into Irregularities in Securities and Banking Transactions
   (h) Joint Committee on Stock Market Scam
   (i) Joint Committee on Security in Parliament Complex
   (j) Committee on Provision of Computers to Members of Parliament, Offices of Political Parties and Officers of the Lok Sabha Secretariat
   (k) Committee on Food Management in Parliament House Complex
   (l) Committee on Installation of Portraits / Statues of National Leaders and Parliamentarians in Parliament

House Complex

(m) Joint Committee on Maintenance of Heritage Character and Development of Parliament House Complex

(n) Committee on Violation of Protocol Norms and Contemptuous Behaviour of Government Officers with Members of Lok Sabha

(o) Joint Committee to Examine Matters Relating to Allocation and Pricing of Telecom Licences and Spectrum

2. Advisory Committees include select or joint committees on bills, which are appointed to consider and report on particular bills. These committees are distinguishable from the other *ad hoc* committees in as much as they are concerned with bills and the procedure to be followed by them is laid down in the Rules of Procedure and the Directions by the Speaker / Chairman.

When a Bill comes up before a House for general discussion, it is open to that House to refer it to a Select Committee of the House or a Joint Committee of the two Houses. A motion to this effect has to be moved and adopted in the House in which the Bill comes up for consideration. In case the motion adopted is for reference of the Bill to a Joint Committee, the decision is conveyed to the other House, requesting the members to nominate members of the other House to serve on the Committee.

The Select or Joint Committee considers the Bill clause by clause just as the two Houses do. Amendments to various clauses can be moved by members of the Committee. The Committee can also take evidence of associations, public bodies or experts who are interested in the Bill. After the Bill has thus been considered, the Committee submits its report to the House. Members who do not agree with the majority report may append their minutes of dissent to the report.

FINANCIAL COMMITTEES

Public Accounts Committee

This committee was set up first in 1921 under the provisions of the Government of India Act of 1919 and has since been in existence. At present, it consists of 22 members (15 from the Lok Sabha and 7 from the Rajya Sabha). The members are elected by the Parliament every year from amongst its members according to the principle of proportional representation by means of the single transferable vote. Thus, all parties get due representation in it. The term of office of the members is one year. A minister cannot be elected as a member of the committee. The chairman of the committee is appointed from amongst its members by the Speaker. Until 1966 - '67, the chairman of the committee belonged to the ruling party. However, since 1967 a convention has developed whereby the chairman of the committee is selected invariably from the Opposition.

The function of the committee is to examine the annual audit reports of the Comptroller and Auditor General of India (CAG), which are laid before the Parliament by the President. The CAG submits three audit reports to the President, namely, audit report on appropriation accounts, audit report on finance accounts and audit report on public undertakings.

The committee examines public expenditure not only from legal and formal point of view to discover technical irregularities but also from the point of view of economy, prudence, wisdom and propriety to bring out the cases of waste, loss, corruption, extravagance, inefficiency and nugatory expenses.

In more detail, the functions of the committee are:

1. To examine the appropriation accounts and the finance accounts of the Union government and any other accounts laid before the Lok Sabha. The appropriation accounts compare the actual expenditure with the expenditure sanctioned by the Parliament through the *Appropriation Act*, while the finance accounts shows the annual receipts and disbursements of the Union Government.

2. In scrutinising the appropriation accounts and the audit report of CAG on it, the committee has to satisfy itself that
   (a) The money that has been disbursed was legally available for the applied service or purpose
   (b) The expenditure conforms to the authority that governs it
   (c) Every re-appropriation has been made in accordance with the related rules
3. To examine the accounts of state corporations, trading concerns and manufacturing projects and the audit report of CAG on them (except those public undertakings which are allotted to the Committee on Public Undertakings)
4. To examine the accounts of autonomous and semi-autonomous bodies, the audit of which is conducted by the CAG
5. To consider the report of the CAG relating to the audit of any receipt or to examine the accounts of stores and stocks
6. To examine the money spent on any service during a financial year in excess of the amount granted by the Lok Sabha for that purpose

In the fulfillment of the above functions, the committee is assisted by the CAG. In fact, the CAG acts as a guide, friend and philosopher of the committee.

On the role played by the committee, Ashok Chanda (who himself has been a CAG of India) observed: “Over a period of years, the committee has entirely fulfilled the expectation that it should develop into a powerful force in the control of public expenditure. It may be claimed that the traditions established and conventions developed by the Public Accounts Committee conform to the highest traditions of a parliamentary democracy.”[5]

However, the effectiveness of the role of the committee is limited by the following:

(a) It is not concerned with the questions of policy in broader sense.
(b) It conducts a post-mortem examination of accounts (showing the expenditure already incurred).
(c) It cannot intervene in the matters of day-to-day administration.

(d) Its recommendations are advisory and not binding on the ministries.
(e) It is not vested with the power of disallowance of expenditures by the departments.
(f) It is not an executive body and hence, cannot issue an order. Only the Parliament can take a final decision on its findings.

Estimates Committee

The origin of this committee can be traced to the standing financial committee set up in 1921. The first Estimates Committee in the post-independence era was constituted in 1950 on the recommendation of John Mathai, the then finance minister. Originally, it had 25 members but in 1956 its membership was raised to 30. All the thirty members are from Lok Sabha only. The Rajya Sabha has no representation in this committee. These members are elected by the Lok Sabha every year from amongst its own members, according to the principles of proportional representation by means of a single transferable vote. Thus, all parties get due representation in it. The term of office is one year. A minister cannot be elected as a member of the committee. The chairman of the committee is appointed by the Speaker from amongst its members and he is invariably from the ruling party.

The function of the committee is to examine the estimates included in the budget and suggest 'economies' in public expenditure. Hence, it has been described as a 'continuous economy committee'.

In more detail, the functions of the committee are:

1. To report what economies, improvements in organisation, efficiency and administrative reform consistent with the policy underlying the estimates, can be affected
2. To suggest alternative policies in order to bring about efficiency and economy in administration
3. To examine whether the money is well laid out within the limits of the policy implied in the estimates
4. To suggest the form in which the estimates are to be presented to Parliament

The Committee shall not exercise its functions in relation to such public undertakings as are allotted to the Committee on

Public Undertakings. The Committee may continue the examination of the estimates from time to time, throughout the financial year and report to the House as its examination proceeds. It shall not be incumbent on the Committee to examine the entire estimates of any one year. The demands for grants may be finally voted despite the fact that the Committee has made no report.

However, the effectiveness of the role of the committee is limited by the following:

(a) It examines the budget estimates only after they have been voted by the Parliament, and not before that.
(b) It cannot question the policy laid down by the Parliament.
(c) Its recommendations are advisory and not binding on the ministries.
(d) It examines every year only certain selected ministries and departments. Thus, by rotation, it would cover all of them over a number of years.
(e) It lacks the expert assistance of the CAG which is available to the Public Accounts Committee.
(f) Its work is in the nature of a postmortem.

Committee on Public Undertakings

This committee was created in 1964 on the recommendation of the Krishna Menon Committee. Originally, it had 15 members (10 from the Lok Sabha and 5 from the Rajya Sabha). However, in 1974, its membership was raised to 22 (15 from the Lok Sabha and 7 from the Rajya Sabha). The members of this committee are elected by the Parliament every year from amongst its own members according to the principle of proportional representation by means of a single transferable vote. Thus, all parties get due representation in it. The term of office of the members is one year. A minister cannot be elected as a member of the committee. The chairman of the committee is appointed by the Speaker from amongst its members who are drawn from the Lok Sabha only. Thus, the members of the committee who are from the Rajya Sabha cannot be appointed as the chairman.

The functions of the committee are:

1. To examine the reports and accounts of public undertakings

2. To examine the reports of the Comptroller and Auditor General on public undertakings
3. To examine (in the context of autonomy and efficiency of public undertakings) whether the affairs of the public undertakings are being managed in accordance with sound business principles and prudent commercial practices
4. To exercise such other functions vested in the public accounts committee and the estimates committee in relation to public undertakings which are allotted to it by the Speaker from time to time

The committee is not to examine and investigate any of the following:

(i) Matters of major government policy as distinct from business or commercial functions of the public undertakings
(ii) Matters of day-to-day administration
(iii) Matters for the consideration of which machinery is established by any special statute under which a particular public undertaking is established

Further, the effectiveness of the role of the committee is limited by the following:

(a) It cannot take up the examination of more than ten to twelve public undertakings in a year.
(b) Its work is in the nature of a post-mortem.
(c) It does not look into technical matters as its members are not technical experts.
(d) Its recommendations are advisory and not binding on the ministries.

DEPARTMENTAL STANDING COMMITTEES

On the recommendation of the Rules Committee of the Lok Sabha, 17 Departmentally-Related Standing Committees (DRSCs) were set up in the Parliament in 1993.[6] In 2004, seven more such committees were setup, thus increasing their number from 17 to 24.

The main objective of the standing committees is to secure more accountability of the Executive (i.e., the Council of Ministers) to the Parliament, particularly financial accountability. They also assist the Parliament in debating the budget more effectively.[7]

The 24 standing committees cover under their jurisdiction all the ministries / departments of the Central Government.

Each standing committee consists of 31 members (21 from Lok Sabha and 10 from Rajya Sabha). The members of the Lok Sabha are nominated by the Speaker from amongst its own members, just as the members of the Rajya Sabha are nominated by the Chairman from amongst its members.[8]

A minister is not eligible to be nominated as a member of any of the standing committees. In case a member, after his nomination to any of the standing committees, is appointed a minister, he then ceases to be a member of the committee.

The term of office of each standing committee is one year from the date of its constitution.

Out of the 24 standing committees, 8 work under the Rajya Sabha and 16 under the Lok Sabha.[9]

The 24 standing committees and the ministries / departments placed under their jurisdiction are shown below in Table 23.1.

The functions of each of the standing committees are:

1. To consider the demands for grants of the concerned ministries / departments before they are discussed and voted in the Lok Sabha. Its report should not suggest anything of the nature of cut motions
2. To examine bills pertaining to the concerned ministries / departments
3. To consider annual reports of ministries / departments

4. To consider national basic long-term policy documents presented to the Houses

The following limitations are imposed on the functioning of these standing committees:

(i) They should not consider the matters of day-to-day administration of the concerned ministries / departments.

Table 23.1 *Departmental Standing Committees and their Jurisdiction (2019)*

Sl.No.	Name of the Committees	Ministries / Departments Covered
	I. Committees under Rajya Sabha	
1.	Committee on Commerce	Commerce and Industry
2.	Committee on Home Affairs	(1) Home Affairs (2) Development of North-Eastern Region
3.	Committee on Human Resource Development	(1) Human Resource Development (2) Youth Affairs and Sports (3) Women and Child Development
4.	Committee on Industry	(1) Heavy Industries and Public Enterprises (2) Micro, Small and Medium Enterprises
5.	Committee on Science & Technology, Environment & Forests	(1) Science and Technology (2) Space (3) Earth Sciences (4) Atomic Energy (5) Environment, Forests and Climate Change
6.	Committee on Transport, Tourism and Culture	(1) Civil Aviation

		(2) Road Transport & Highways (3) Shipping (4) Culture (5) Tourism
7.	Committee on Health & Family Welfare	(1) Health and Family Welfare (2) Ayurveda, Yoga and Naturopathy, Unani, Siddha and Homoeopathy (AYUSH)
8.	Committee on Personnel, Public Grievances, Law and Justice	(1) Law and Justice (2) Personnel, Public Grievances and Pensions
	II. Committees under Lok Sabha	
9.	Committee on Agriculture	(1) Agriculture and Farmers' Welfare (2) Fisheries, Animal Husbandry and Dairing (3) Food Processing Industries
10.	Committee on Information Technology	(1) Communication (2) Electronics & Information Technology (3) Information & Broadcasting
11.	Committee on Defence	Defence
12.	Committee on Energy	(1) New and Renewable Energy (2) Power
13.	Committee on External Affairs	External Affairs
14.	Committee on Finance	(1) Finance (2) Corporate Affairs

		(3) Planning (4) Statistics and Programme Implementation
15.	Committee on Food, Consumer Affairs and Public Distribution	Consumer Affairs, Food and Public Distribution
16.	Committee on Labour	(1) Labour & Employment (2) Skill Development & Entrepreneurship (3) Textiles
17.	Committee on Petroleum & Natural Gas	Petroleum and Natural Gas
18.	Committee on Railways	Railways
19.	Committee on Urban Development	Housing and Urban Affairs
20.	Committee on Water Resources	Jal Shakti
21.	Committee on Chemicals and Fertilizers	Chemicals and Fertilizers
22.	Committee on Rural Development	(1) Rural Development (2) Panchayati Raj
23.	Committee on Coal and Steel	(1) Coal (2) Mines (3) Steel
24.	Committee on Social Justice and Empowerment	(1) Social Justice and Empowerment (2) Tribal Affairs (3) Minority Affairs

(ii) They should not generally consider the matters which are considered by other parliamentary committees.

It should be noted here that the recommendations of these committees are advisory in nature and hence not binding on the Parliament.

The following procedure shall be followed by each of the standing committees in their consideration of the demands for grants, and making a report thereon to the Houses.

(a) After general discussion on the budget in the Houses is over, the Houses shall be adjourned for a fixed period.
(b) The committees shall consider the demands for grants of the concerned ministries during the aforesaid period.
(c) The committees shall make their report within the period and shall not ask for more time.
(d) The demands for grants shall be considered by the House in the light of the reports of the committees.
(e) There shall be a separate report on the demands for grants of each ministry.

The following procedure shall be followed by each of the standing committees in examining the bills and making report thereon.

(a) The committee shall consider the general principles and clauses of bills referred to it.
(b) The Committee shall consider only such bills as introduced in either of the Houses and referred to it.
(c) The Committee shall make report on bills in a given time.

The merits of the standing committee system in the Parliament are:

(1) Their proceedings are devoid of any party bias.
(2) The procedure adopted by them is more flexible than in the Lok Sabha.
(3) The system makes parliamentary control over executive much more detailed, close, continuous, in-depth and comprehensive.
(4) The system ensures economy and efficiency in public expenditure as the ministries / departments would now be more careful in formulating their demands.
(5) They facilitate opportunities to all the members of Parliament to participate and understand the functioning of the government and contribute to it.
(6) They can avail of expert opinion or public opinion to make the reports. They are authorised to invite experts and eminent

persons to testify before them and incorporate their opinions in their reports.

(7) The opposition parties and the Rajya Sabha can now play a greater role in exercising financial control over the executive.

COMMITTEES TO INQUIRE

Committee on Petitions

This committee examines petitions on bills and on matters of general public importance. It also entertains representations from individuals and associations on matters pertaining to Union subjects. The Lok Sabha committee consists of 15 members, while the Rajya Sabha committee consists of 10 members.

Committee of Privileges

The functions of this committee are semi-judicial in nature. It examines the cases of breach of privileges of the House and its members and recommends appropriate action. The Lok Sabha committee has 15 members, while the Rajya Sabha committee has 10 members.

Ethics Committee

This committee was constituted in Rajya Sabha in 1997 and in Lok Sabha in 2000. It enforces the code of conduct of members of Parliament. It examines the cases of misconduct and recommends appropriate action. Thus, it is engaged in maintaining discipline and decorum in Parliament.

COMMITTEES TO SCRUTINISE AND CONTROL

Committee on Government Assurances

This committee examines the assurances, promises and undertakings given by ministers from time to time on the floor of the House and reports on the extent to which they have been carried through. In the Lok Sabha, it consists of 15 members and in the Rajya Sabha, it consists of 10 members. It was constituted in 1953.

Committee on Subordinate Legislation

This committee examines and reports to the House whether the powers to make regulations, rules, sub-rules and bye-laws delegated by the Parliament or conferred by the Constitution to the Executive are being properly exercised by it. In both the Houses, the committee consists of 15 members. It was constituted in 1953.

Committee on Papers Laid on the Table

This committee was constituted in 1975. The Lok Sabha Committee has 15 members, while the Rajya Sabha Committee has 10 members. It examines all papers laid on the table of the House by ministers to see whether they comply with provisions of the Constitution, or the related Act or Rule. It does not examine statutory notifications and orders that fall under the jurisdiction of the Committee on Subordinate Legislation.

Committee on Welfare of SCs and STs

This committee consists of 30 members (20 from Lok Sabha and 10 from Rajya Sabha). Its functions are: (i) to consider the reports of the National Commission for the SCs and the National Commission for the STs; (ii) to examine all matters relating to the welfare of SCs and STs, like implementation of constitutional and statutory safeguards, working of welfare programmes, etc.

Committee on Empowerment of Women

This committee was constituted in 1997 and consists of 30 members (20 from Lok Sabha and 10 from Rajya Sabha). It

considers the reports of the National Commission for Women and examines the measures taken by the Union Government to secure status, dignity and equality for women in all fields.

Joint Committee on Offices of Profit

This committee examines the composition and character of committees and other bodies appointed by the Central, state and union territory governments and recommends whether persons holding these offices should be disqualified from being elected as members of Parliament or not. It consists of 15 members (10 from Lok Sabha and 5 from Rajya Sabha).

COMMITTEES RELATING TO THE DAY-TO-DAY BUSINESS OF THE HOUSE

Business Advisory Committee

This committee regulates the programme and time table of the House. It allocates time for the transaction of legislative and other business brought before the House by the government. The Lok Sabha committee consists of 15 members including the Speaker as its chairman. In the Rajya Sabha, it has 11 members including the Chairman as its exofficio chairman.

Committee on Private Members' Bills and Resolutions

This committee classifies bills and allocates time for the discussion on bills and resolutions introduced by private members (other than ministers). This is a special committee of the Lok Sabha and consists of 15 members including the Deputy Speaker as its chairman. The Rajya Sabha does not have any such committee. The same function in the Rajya Sabha is performed by the Business Advisory Committee of that House.

Rules Committee

This committee considers the matters of procedure and conduct of business in the House and recommends necessary amendments or additions to the rules of the House. The Lok Sabha committee consists of 15 members including the Speaker as its ex-officio chairman. In the Rajya Sabha, it consists of 16 members including the Chairman as its exofficio chairman.

Committee on Absence of Members

This committee considers all applications from members for leave of absence from the sittings of the House, and examines the cases of members who have been absent for a period of 60 days or more without permission. It is a special committee of the Lok Sabha and consists of 15 members. There is no such committee in the Rajya Sabha and all such matters are dealt by the House itself.

HOUSE-KEEPING COMMITTEES

General Purposes Committee

This committee considers and advises on matters concerning affairs of the House, which do not fall within the jurisdiction of any other parliamentary committee. In each House, this committee consists of the presiding officer (Speaker / Chairman) as its ex-officio chairman, Deputy Speaker (Deputy Chairman in the case of Rajya Sabha), members of panel of chairpersons (panel of vice-chairpersons in the case of Rajya Sabha), chairpersons of all the departmental standing committees of the House, leaders of recognised parties and groups in the House and such other members as nominated by the presiding officer.

House Committee

This committee deals with residential accommodation of members and other amenities like food, medical aid, etc., accorded to them in their houses and hostels in Delhi. Both the Houses have their respective House Committees. In the Lok Sabha, it consists of 12 members.

Library Committee

This committee considers all matters relating to library of the Parliament and assists the members in utilising the library's services. It consists of nine members (six from Lok Sabha and three from Rajya Sabha).

Joint Committee on Salaries and Allowances of Members

This committee was constituted under the Salary, Allowances and Pension of Members of Parliament Act, 1954. It consists of 15 members (10 from Lok Sabha and 5 from Rajya Sabha). It frames rules for regulating payment of salary, allowances and pension to members of Parliament.

CONSULTATIVE COMMITTEES

Consultative committees are attached to various ministries / departments of the Central Government. They consist of members of both the Houses of Parliament. The Minister / Minister of State in charge of the Ministry concerned acts as the chairman of the consultative committee of that ministry.

These committees provide a forum for informal discussions between the ministers and the members of Parliament on policies and programmes of the government and the manner of their implementation.

These committees are constituted by the Ministry of Parliamentary Affairs. The guidelines regarding the composition, functions and procedures of these committees are formulated by this Ministry. The Ministry also makes arrangements for holding their meetings both during the session and the inter-session period of Parliament.

The membership of these committees is voluntary and is left to the choice of the members and the leaders of their parties. The maximum membership of a committee is 30 and the minimum is 10.

These committees are normally constituted after the new Lok Sabha is constituted, after General Elections for the Lok Sabha. In other words, these committees shall stand dissolved upon dissolution of every Lok Sabha and shall be reconstituted upon constitution of each Lok Sabha.

In addition, separate Informal Consultative Committees of the members of Parliament are also constituted for all the Railway Zones. Members of Parliament belonging to the area falling under a particular Railway Zone are nominated on the Informal Consultative Committee of that Railway Zone.

Unlike the Consultative Committees attached to various ministries / departments, the meetings of the Informal Consultative Committees are to be arranged during the session periods only.

NOTES AND REFERENCES

1. A Minister is not eligible for election or nomination to the Financial Committees, Departmental Standing Committees, and Committees on Empowerment of Women, Government Assurances, Petitions, Subordinate Legislation and Welfare of Scheduled Castes and Scheduled Tribes.
2. Consultative Committees are explained at the end of this Chapter.
3. A joint committee consists of members of both the Houses of Parliament.
4. The Railway Convention Committee, 1949 was the first Committee after independence. This Committee and subsequent Committees confined themselves to determining the Rate of Dividend payable by the Railways to General Revenues. Since 1971, the Railway Convention Committees have been taking up subjects which have a bearing on the working of the Railways and Railway Finances.
5. Ashok Chanda: *Indian Administration*, George Allen & Unwin Ltd, London, 1967, P. 180.
6. In 1989, three Standing Committees were constituted which dealt with Agriculture, Science & Technology and Environment & Forests. In 1993, they were superseded by the Departmentally-Related Standing Committees (DRSCs).
7. While inaugurating the Standing Committee system in the Central Hall of Parliament on 31st March 1993, the then Vice-President of India and the Chairman of Rajya Sabha, K.R. Narayanan observed that the main purpose of these Committees is: “to ensure the accountability of Government to Parliament through more detailed consideration of measures in these Committees. The intention is not to weaken or criticise the administration but to strengthen it by investing it with more meaningful Parliamentary support”.
8. Till 13th Lok Sabha, each Standing Committee consisted of not more than 45 members - 30 to be nominated by the Speaker from amongst the members

of Lok Sabha and 15 to be nominated by the Chairman from amongst the members of Rajya Sabha. However, with restructuring of DRSCs in July 2004, each DRSC consists of 31 members - 21 from Lok Sabha and 10 from Rajya Sabha.

9. The procedure regarding constitution and functioning of DRSCs, serviced by Lok Sabha, has been enumerated in Rules 331C to 331Q of the Rules of Procedure and Conduct of Business in the Lok Sabha. Rules 268 to 277 of the Rules of Procedure and Conduct of Business in the Rajya Sabha govern DRSCs serviced by Rajya Sabha.

24 Parliamentary Forums

ESTABLISHMENT OF THE FORUMS

The first Parliamentary Forum on Water Conservation and Management was constituted in the year 2005.[1] Subsequently, seven more Parliamentary forums were constituted. At present, there are eight Parliamentary forums.[2]

1. Parliamentary Forum on Water Conservation and Management (2005)
2. Parliamentary Forum on Youth (2006)
3. Parliamentary Forum on Children (2006)
4. Parliamentary Forum on Population and Public Health (2006)
5. Parliamentary Forum on Global Warming and Climate Change (2008)
6. Parliamentary Forum on Disaster Management (2011)
7. Parliamentary Forum on Artisans and Crafts-people (2013)
8. Parliamentary Forum on Millennium Development Goals (2013)

OBJECTIVES OF THE FORUMS

The objectives behind the constitution of the Parliamentary forums are:

(i) To provide a platform to the members to have interactions with the ministers concerned, experts and key officials from the nodal ministries with a view to have a focused and meaningful discussion on critical issues with a result-oriented approach for speeding up the implementation process;

(ii) To sensitise members about the key areas of concern and also about the ground level situation and equip them with the latest information, knowledge, technical know-how and valuable inputs from experts both from the country and abroad for enabling them to raise these issues effectively on the Floor of the House and in the meetings of the Departmentally-Related Standing Committees (DRSCs); and

(iii) To prepare a data-base through collection of data on critical issues from ministries concerned, reliable NGOs, newspapers, United Nations, Internet, etc. and circulation thereof to the members so that they can meaningfully participate in the discussions of the forums and seek clarifications from experts or officials from the Ministry present in the meetings.

It has been mandated that the Parliamentary Fora will not interfere with or encroach upon the jurisdiction of the Departmentally-Related Standing Committees of the Ministry/ Department concerned.

COMPOSITION OF THE FORUMS

The Speaker of Lok Sabha is the ex-officio President of all the Forums except the Parliamentary Forum on Population and Public Health wherein the Chairman of Rajya Sabha is the ex-officio President and the Speaker is the ex-officio Co-President. The Deputy Chairman of Rajya Sabha, the Deputy Speaker of Lok Sabha, the concerned Ministers and the Chairman of Departmentally-Related Standing Committees are the ex-officio VicePresidents of the respective Forums.

Each Forum consists of not more than 31 members (excluding the President, Co-President and Vice-Presidents) out of whom not more than 21 are from the Lok Sabha and not more than 10 are from the Rajya Sabha.

Members (other than the President, Co-President and Vice-Presidents) of these forums are nominated by the Speaker/ Chairman from amongst the leaders of various political parties/groups or their nominees, who have special knowledge/keen interest in the subject.[3]

The duration of the office of members of the forum is co-terminus with their membership in the respective Houses. A member may also resign from the forum by writing to the Speaker/Chairman.

The President of the forum appoints a member-convener for each forum to conduct regular, approved programmes/meetings of the forum in consultation with the President. The meetings of the forums are held from time to time, as may be necessary, during Parliament sessions.

FUNCTIONS OF THE FORUMS

Parliamentary Forum on Water Conservation and Management

The functions of the forum are:

1. To identify problems relating to water and make suggestions/recommenda-tions for consideration and appropriate action by Government/organisations concerned
2. To identify the ways of involving members of Parliament in conservation and augmentation of water resources in their respective states/constituencies
3. To organise seminars/workshops to create awareness for conservation and efficient management of water
4. To undertake such other related task as it may deem fit

Parliamentary Forum on Youth

The functions of this forum are:

1. To have focused deliberations on strategies to leverage human capital in the youth for accelerating development initiatives
2. To build greater awareness amongst public leaders and at the grass-roots level of the potential of youth for effecting socio-economic change
3. To interact on a regular basis with youth representatives and leaders, in order to better appreciate their hopes, aspirations, concerns and problems
4. To consider ways for improving Parliament's out-reach to different sections of youth, in order to reinforce their faith and commitment in democratic institutions and encourage their active participation therein
5. To hold consultations with experts, national and international academicians and government agencies concerned on redesigning of public policy in the matter of youth empowerment.[4]

Parliamentary Forum on Children

The functions of the forum are:

1. To further enhance awareness and attention of Parliamentarians towards critical issues affecting children's well being so that they may provide due leadership to ensure their rightful place in the development process
2. To provide a platform to Parliamentarians to exchange ideas, views, experiences, expert practices in relation to children, in a structured manner, through workshops, seminars, orientation programmes, etc.
3. To provide Parliamentarians an interface with civil society for highlighting children's issues, including, *inter-alia*, the voluntary sector, media and corporate sector, and thereby to foster effective strategic partnerships in this regard
4. To enable Parliamentarians to interact, in an institutionalised manner with specialised UN agencies like the UNICEF and other comparable multilateral agencies on expert reports, studies, news and trend-analyses, etc., world-wide, which are germane to developments in the sector
5. To undertake any other tasks, projects, assignments, etc., as the Forum may deem fit.

Parliamentary Forum on Population and Public Health

The functions of the forum are:

1. To have focused deliberations on strategies relating to population stabilisation and matters connected therewith
2. To discuss and prepare strategies on issues concerning public health
3. To build greater awareness in all sections of the society, particularly at the grassroot level, regarding population control and public health
4. To hold comprehensive dialogue and discussion in the matter of population and public health with experts at the national and international levels and to have interactions with multilateral organisations like WHO, United Nations Population Fund, and academicians and government agencies concerned.

Parliamentary Forum on Global Warming and Climate Change

The functions of the forum are:

1. To identify problems relating to global warming and climate change and make suggestions/recommendations for consideration and appropriate action by the government/organisations concerned to reduce the extent of global warming
2. To identify the ways of involving members of Parliament to interact with specialists of national and international bodies working on global warming and climate change with increased effort to develop new technologies to mitigate global warming
3. To organise seminars/workshops to create awareness about the causes and effects of global warming and climate change among the members of Parliament
4. To identify the ways of involving members of Parliament to spread awareness to prevent global warming and climate change
5. To undertake such other related task as it may deem fit

Parliamentary Forum on Disaster Management

The functions of the forum are:

1. To identify problems relating to Disaster Management and make suggestions / recommendations for consideration and appropriate action by the Government / Organizations concerned to reduce the effects of disasters.
2. To identify the ways of involving Members of Parliament to interact with specialists of National and International Bodies working on Disaster Management with increased effort to develop new technologies to mitigate the effect of disasters.
3. To organize seminars / workshops to create awareness about the causes and effects of disasters among the Members of Parliament.
4. To identify the ways of involving Members of Parliament to spread awareness about disaster management.
5. To undertake such other related task as it may deem fit.

Parliamentary Forum on Artisans and Craftspeople

The functions of the forum are:

1. To further enhance awareness and attention to Parliamentarians towards critical issues affecting artisans and craftspeople so as to preserve and promote traditional art and crafts through various mechanisms.
2. To provide a platform to Parliamentarians to exchange ideas, views, experiences, expertise and best practices in relation to artisans and craftspeople, in a structured manner, through Workshops, Seminars, Orientation Programmes, etc.
3. To provide Parliamentarians an interface with civil society for highlighting issues related to craftspeople and artisans, including *inter alia*, the Voluntary Sector, Media and Corporate Sector and thereby to foster effective strategic partnerships in this regard
4. To enable Parliamentarians to interact, in an institutionalized manner with representatives of various Union Ministries, Government Organizations like Khadi and Village Industries Commission (KVIC), Coir Board, The Council for Advancement of People's Action and Rural Technology (CAPART) and other related Organizations/Bodies.
5. To hold comprehensive dialogue and discussion on the matters relating to preservation of art and traditional craft and the promotion of artisans and craftspeople with experts/Organizations at the national and international levels.
6. To undertake any other Tasks, Projects, Assignments, etc. as the Forum may deem fit.

Parliamentary Forum on Millennium Development Goals

The functions of the forum are:

1. To review and enhance awareness and attention of Parliamentarians towards critical issues which have bearing on achievement of goals/targets set under Millennium Development Goals by 2015.

2. To provide a platform to Parliamentarians to exchange ideas, views, experiences, expertise and best practices in relation to implementation of Millennium Development Goals in a structured manner, through Workshops, Seminars, Orientation Programmes, etc.
3. To provide Parliamentarians an interface with civil society for highlighting issues related to Millennium Development Goals, viz. eradication of poverty; hunger; achievement of universal primary education; promotion of gender equality and empowerment of women; reduction of child mortality; improving maternal health; combating HIV/ AIDS; Malaria and other diseases; ensuring environmental sustainability and developing a global partnership for development.
4. To enable parliamentarians to interact, in an institutionalized manner with specialized UN Agencies and other comparable Multilateral Agencies, Expert Report, Studies, News and Trendanalyses, etc. regarding achievement of Millennium Development Goals.
5. To undertake any other Tasks, Projects, Assignments, etc. as the Forum may deem fit.

NOTES AND REFERENCES

1. On 12th May 2005, the then Speaker of Lok Sabha, Somnath Chatterjee informed the House of his decision to constitute a Parliamentary forum on water conservation and management so that the members of Parliament may discuss the critical issue of water in a structured manner and also to raise the issue more effectively on the floor of the House. Accordingly, the forum was constituted on 12th August, 2005.
2. The years mentioned in the brackets indicate the years of their establishment.
3. The Secretary-General of Lok Sabha is the Secretary to the forums.
4. The Speaker also constituted four sub-forums of the Parliamentary Forum on Youth, *viz*. (i) Sub-Forum on Sports and Youth Development (ii) Sub-Forum on

Health (iii) Sub-Forum on Education (iv) Sub-Forum on Employment. Each Sub-Forum has its own convener.

25 Parliamentary Group

RATIONALE OF THE GROUP

M.N. Kaul and S.L. Shakdher have nicely explained the rationale of the Indian Parliamentary Group (IPG) in the following way:

The establishment and development of relations among parliaments constitutes part of the regular activities of national parliaments. Although promotion of inter-parliamentary relations has for many years been a significant part of the work of parliamentarians, recently it has received a new thrust due to the increased inter-dependence of nations in a global environment. It is imperative that parliamentarians will join hands to safeguard democracy and work in synergy to confront the challenges before the world and convert them into opportunities to facilitate peace and prosperity in their countries as well as globally. Parliamentarians from different parts of the world, therefore, have a forum where they can meet to discuss and find out solutions to their common problems. It is here that some sort of cross-fertilisation of ideas can take place not only between the older and the younger parliaments, but also between parliamentarians working under different parliamentary systems. These problems are no doubt discussed in inter-governmental conferences; however, those discussions are not so frank and free as they can be at a conclave of legislators.[1]

Inter-parliamentary relations thus assume great importance today when the whole world is beset with many pressing problems. The problems that are faced by one parliament today may confront another tomorrow. It is, therefore, essential that a link should exist between various parliaments of the world. This link is maintained by India through the exchange of delegations, goodwill missions, correspondence, documents, etc. with foreign parliaments through the machinery of the IPG that acts both as the National Group of the Inter-Parliamentary Union (IPU) and

also as the India Branch of the Commonwealth Parliamentary Association (CPA).[2]

COMPOSITION OF THE GROUP

IPG[3] is an autonomous body. It was formed in the year 1949 in pursuance of a motion adopted by the Constituent Assembly (Legislative).[4]

The membership of IPG is open to all members of Parliament. The former members of Parliament can also become associate members of the Group.[5] But, the associate members are entitled to limited rights only. They are not entitled to representation at meetings and conferences of the IPU and the CPA. They are also not entitled to the travel concessions provided to members by certain branches of the CPA.

The Speaker of the Lok Sabha is the *ex officio* president of the Group. The Deputy Speaker of the Lok Sabha and the Deputy Chairman of the Rajya Sabha are the *ex officio* vice-presidents of the Group. The SecretaryGeneral of the Lok Sabha acts as the *ex officio* Secretary-General of the Group.

OBJECTIVES OF THE GROUP

The aims and objects of the Group are mentioned below:

1. To promote personal contacts between members of the Parliament of India.
2. To study questions of public importance that are likely to come up before the Parliament; arrange seminars, discussions and orientation courses; and bring out publications for the dissemination of information to the members of the Group.
3. To arrange lectures on political, defence, economic, social and educational problems by the members of the Parliament and distinguished persons.
4. To arrange visits to foreign countries with a view to develop contacts with members of other parliaments.

FUNCTIONS OF THE GROUP

The various functions performed and activities undertaken by the Group are as follows:

1. The Group acts as a link between the Parliament of India and the various parliaments of the world. This link is maintained through exchange of delegations, goodwill missions, correspondence, documents, etc. with foreign parliaments.
2. The Group functions as the (a) National Group of the IPU and (b) main branch of the CPA in India.
3. Addresses to the members of the Parliament by visiting Heads of State and Government of foreign countries and talks by eminent persons are arranged under the auspices of the Group.
4. Seminars and symposia on parliamentary subjects of topical interest are organised periodically at national as well as international level.
5. Members of the Group, when visiting abroad, are given letters of introduction to the Secretaries of the National Groups of the IPU and Secretaries of the CPA branches. The Indian Missions in the countries of visit are also suitably informed so as to enable them to get assistance and usual courtesies.
6. Only those members of the Parliament who are members of the Group of at least six months' standing at the time of the composition of the delegation, may be included in the Indian Parliamentary delegations to foreign countries.
7. An uninterrupted flow of information to members regarding the activities of the Group is maintained through the IPG Newsletter brought out every quarter. It is sent regularly to all members of the Group, including associate members.
8. As per decision of the Group, an award of Outstanding Parliamentarian was instituted in the year 1995 to be given annually. A committee of five persons, constituted by the Speaker of the Lok Sabha, invites and finalises the nomination for the award.

9. To encourage bilateral relations, the Group constitutes Parliamentary Friendship Groups with other countries in the Parliament.[6] The aims and objectives of the Friendship Group are to maintain political, social and cultural contacts between the two countries and to assist in exchanges of information and experiences on issues relating to parliamentary activities.

THE GROUP AND IPU[7]

The IPU is an international organisation of the parliaments of sovereign states. At present, the IPU consists of 153 parliaments of sovereign nations. Its aim is to work for peace and cooperation among peoples and for the firm establishment of representative institutions. It fosters contacts, coordination and the exchange of experience among parliaments and parliamentarians of all member countries and contributes to better knowledge of the working of representative institutions. It also expresses its views on all burning questions of international importance for necessary effective implementation of parliamentary actions and suggests avenues for improving the working standard and capacity of international institutions.

The main advantages of membership of the Group, insofar as its functions as the National Group of the IPU are concerned, are as follows:

1. It helps members of Indian Parliamentary delegations to develop contacts with the parliamentarians of the member countries of the IPU.
2. The events provide an opportunity to study and understand contemporary changes/reforms taking place in various countries of the world.
3. It provides facilities to meet parliamentarians in different countries during tours in abroad or in India when visiting Parliamentarians are here.
4. The members of the Group are eligible to visit foreign countries as members of the Indian Parliamentary delegations to Inter-Parliamentary Conferences.

In the recent past, members of the Group have been holding various positions in the IPU bodies, namely, office bearers in different committees of the IPU, Rapporteurs, Chairman of Drafting Committees, etc. and by virtue of the same, the Group has been successful in putting forward effectively the view point of India on various important issues dealt in the IPU meetings.

THE GROUP AND CPA[8]

The CPA is an association of about 17000 Commonwealth Parliamentarians spread over 175 National, State, Provincial and Territorial Parliaments. Its aims are to promote knowledge and understanding of the constitutional, legislative, economic, social and cultural systems within a parliamentary democratic framework with particular reference to the countries of the Commonwealth of Nations and to countries having close historical and parliamentary associations with it. Its mission is to promote the advancement of parliamentary democracy by enhancing knowledge and understanding of democratic governance and by building an informed parliamentary community able to deepen the Commonwealth's democratic commitment and to further co-operation among its parliaments and legislatures.

The main advantages of membership of the Group, insofar as its functions as the main branch of the CPA in India are concerned, are as follows:

1. **Conferences and Seminars:** Membership provides an opportunity for participation in the plenary and regional conferences, seminars, visits and exchanges of delegations.
2. **Publications:** All members of the Group are entitled to receive, free of charge, 'The Parliamentarian' quarterly and the newsletter, 'First Reading', every second month.[9]
3. **Information:** The Parliamentary Information and Reference Centre of the CPA Secretariat provides information to members on parliamentary, constitutional and Commonwealth matters.
4. **Introductions:** The CPA branches readily assist in arranging introductions for members visiting other jurisdictions.
5. **Parliamentary Facilities:** Members visiting other Commonwealth countries are normally accorded parliamentary courtesies, especially access to debates and local members.
6. **Travel Facilities:** Some branches provide for a designated number of their members annually to undertake study tours

of Commonwealth and other countries to compare political and procedural developments. Other branches arrange ad hoc visits.

NOTES AND REFERENCES

1. M.N. Kaul and S.L. Shakdher, *Practice and Procedure of Parliament, Lok Sabha Secretariat*, Sixth Edition, 2009, p. 1160.
2. *Ibid*.
3. Hereafter referred to as 'the Group'.
4. The concerned motion was adopted on August 16, 1948.
5. A member or ex-member of Parliament can become a life member of the Group on payment of a fixed life subscription.
6. Each Friendship Group consists of 22 sitting members of Parliament (15 from the Lok Sabha and 7 from the Rajya Sabha) in proportion to the strength of parties in the Lok Sabha and the Rajya Sabha. The Speaker of the Lok Sabha appoints the President and two Vice-Presidents (one from each House) of the Friendship Group.
7. *Hand Book for Members of Lok Sabha,* Fifteenth Edition, 2009, pp. 207–208.
8. *Ibid,* pp. 208–209.
9. These are published by the CPA Secretariat, London.

26 Supreme Court

Unlike the American Constitution, the Indian Constitution has established an integrated judicial system with the Supreme Court at thetop and the high courts below it. Under a high court (and below the state level), there is a hierarchy of subordinate courts, that is, district courts and other lower courts. This single system of courts, adopted from the Government of India Act of 1935, enforces both Central laws as well as the state laws. In USA, on the other hand, the federal laws are enforced by the federal judiciary and the state laws are enforced by the state judiciary. There is thus a double system of courts in USA–one for the centre and the other for the states. To sum up, India, although a federal country like the USA, has a unified judiciary and one system of fundamental law and justice.

The Supreme Court of India was inaugurated on January 28, 1950. It succeeded the Federal Court of India, established under the Government of India Act of 1935. However, the jurisdiction of the Supreme Court is greater than that of its predecessor. This is because, the Supreme Court has replaced the British Privy Council as the highest court of appeal.[1]

Articles 124 to 147 in Part V of the Constitution deal with the organisation, independence, jurisdiction, powers, procedures and so on of the Supreme Court. The Parliament is also authorised to regulate them.

COMPOSITION AND APPOINTMENT

At present, the Supreme Court consists of thirty-four judges (one chief justice and thirty three other judges). In 2019, the centre notified an increase in the number of Supreme Court judges from thirty-one to thirty-four, including the Chief Justice of India. This followed the enactment of the Supreme Court (Number of Judges) Amendment Act, 2019. Originally, the strength of the Supreme Court was fixed at eight (one chief justice and seven other judges). The Parliament has increased this number of other judges progressively to ten in 1956, to thirteen in 1960, to seventeen in 1977, to twenty-five in 1986, to thirty in 2008 and to thirty-three in 2019.

Appointment of Judges

The judges of the Supreme Court are appointed by the president. The chief justice is appointed by the president after consultation with such judges of the Supreme Court and high courts as he deems necessary. The other judges are appointed by president after consultation with the chief justice and such other judges of the Supreme Court and the high courts as he deems necessary. The consultation with the chief justice is obligatory in the case of appointment of a judge other than Chief justice.

Controversy over Consultation

The Supreme Court has given different interpretation of the word 'consultation' in the above provision. In the *First Judges* case (1982), the Court held that consultation does not mean concurrence and it only implies exchange of views. But, in the *Second Judges* case (1993), the Court reversed its earlier ruling and changed the meaning of the word consultation to concurrence. Hence, it ruled that the advice tendered by the Chief Justice of India is binding on the President in the matters of appointment of the judges of the Supreme Court. But, the Chief Justice would tender his advice on the matter after consulting two of his seniormost colleagues. Similarly, in the *Third Judges* case[2] (1998), the Court opined that the consultation process to be

adopted by the Chief justice of India requires 'consultation of plurality judges'. The sole opinion of the chief justice of India does not constitute the consultation process. He should consult a collegium of four seniormost judges of the Supreme Court and even if two judges give an adverse opinion, he should not send the recommendation to the government. The court held that the recommendation made by the chief justice of India without complying with the norms and requirements of the consultation process are not binding on the government.

The 99th Constitutional Amendment Act of 2014 and the National Judicial Appointments Commission Act of 2014 have replaced the collegium system of appointing judges to the Supreme Court and High Courts with a new body called the National Judicial Appointments Commission (NJAC). However, in 2015, the Supreme Court has declared both the 99th Constitutional Amendment as well as the NJAC Act as unconstitutional and void. Consequently, the earlier collegium system became operative again. This verdict was delivered by the Supreme Court in the Fourth Judges case[2a] (2015). The court opined that the new system (i.e., NJAC) would affect the independence of the judiciary.

Appointment of Chief

Justice From 1950 to 1973, the practice has been to appoint the seniormost judge of the Supreme Court as the chief justice of India. This established convention was violated in 1973 when A.N. Ray was appointed as the Chief Justice of India by superseding three senior judges.[3] Again in 1977, M.U. Beg was appointed as the chief justice of India by superseding the then senior-most judge.[4] This discretion of the government was curtailed by the Supreme Court in the Second Judges Case (1993), in which the Supreme Court ruled that the seniormost judge of the Supreme Court should alone be appointed to the office of the chief justice of India.

QUALIFICATIONS, OATH AND SALARIES

Qualifications of Judges

A person to be appointed as a judge of the Supreme Court should have the following qualifications:

1. He should be a citizen of India.
2. (a) He should have been a judge of a High Court (or high courts in succession) for five years; or (b) He should have been an advocate of a High Court (or High Courts in succession) for ten years; or (c) He should be a distinguished jurist in the opinion of the president.

From the above, it is clear that the Constitution has not prescribed a minimum age for appointment as a judge of the Supreme Court.

Oath or Affirmation

A person appointed as a judge of the Supreme Court, before entering upon his Office, has to make and subscribe an oath or affirmation before the President, or some person appointed by him for this purpose. In his oath, a judge of the Supreme Court swears:

1. to bear true faith and allegiance to the Constitution of India;
2. to uphold the sovereignty and integrity of India;
3. to duly and faithfully and to the best of his ability, knowledge and judgement perform the duties of the Office without fear or favour, affection or ill-will; and
4. to uphold the Constitution and the laws.

Salaries and Allowances

The salaries, allowances, privileges, leave and pension of the judges of the Supreme Court are determined from time to time by the Parliament. They cannot be varied to their disadvantage after their appointment except during a financial emergency. In 2018, the salary of the chief justice was increased from ₹1 lakh to ₹2.80 lakh per month and that of a judge from ₹90,000 to ₹2.50 lakh per month[6]. They are also paid sumptuary allowance and provided

with free accommodation and other facilities like medical, car, telephone, etc.

The retired chief justice and judges are entitled to 50 per cent of their last drawn salary as monthly pension.

TENURE AND REMOVAL

Tenure of Judges

The Constitution has not fixed the tenure of a judge of the Supreme Court. However, it makes the following three provisions in this regard:

1. He holds office until he attains the age of 65 years. Any question regarding his age is to be determined by such authority and in such manner as provided by Parliament.
2. He can resign his office by writing to the president.
3. He can be removed from his office by the President on the recommendation of the Parliament.

Removal of Judges

A judge of the Supreme Court can be removed from his Office by an order of the president. The President can issue the removal order only after an address by Parliament has been presented to him in the same session for such removal.[5] The address must be supported by a special majority of each House of Parliament (ie, a majority of the total membership of that House and a majority of not less than two-thirds of the members of that House present and voting). The grounds of removal are two–proved misbehaviour or incapacity.

The Judges Enquiry Act (1968) regulates the procedure relating to the removal of a judge of the Supreme Court by the process of impeachment:

1. A removal motion signed by 100 members (in the case of Lok Sabha) or 50 members (in the case of Rajya Sabha) is to be given to the Speaker/ Chairman.
2. The Speaker/Chairman may admit the motion or refuse to admit it.
3. If it is admitted, then the Speaker/ Chairman is to constitute a three-member committee to investigate into the charges.
4. The committee should consist of (a) the chief justice or a judge of the Supreme Court, (b) a chief justice of a high court, and (c) a distinguished jurist.

5. If the committee finds the judge to be guilty of misbehaviour or suffering from an incapacity, the House can take up the consideration of the motion.
6. After the motion is passed by each House of Parliament by special majority, an address is presented to the president for removal of the judge.
7. Finally, the president passes an order removing the judge.

It is interesting to know that no judge of the Supreme Court has been impeached so far. The first case of impeachment is that of Justice V. Ramaswami of the Supreme Court (1991–1993). Though the enquiry Committee found him guilty of misbehaviour, he could not be removed as the impeachment motion was defeated in the Lok Sabha. The Congress Party abstained from voting.

ACTING, ADHOC AND RETIRED JUDGES

Acting Chief Justice

The President can appoint a judge of the Supreme Court as an acting Chief Justice of India when:

1. the office of Chief Justice of India is vacant; or
2. the Chief Justice of India is temporarily absent; or
3. the Chief Justice of India is unable to perform the duties of his office.

Ad hoc Judge

When there is a lack of quorum of the permanent judges to hold or continue any session of the Supreme Court, the Chief Justice of India can appoint a judge of a High Court as an ad hoc judge of the Supreme Court for a temporary period. He can do so only after consultation with the chief justice of the High Court concerned and with the previous consent of the president. The judge so appointed should be qualified for appointment as a judge of the Supreme Court. It is the duty of the judge so appointed to attend the sittings of the Supreme Court, in priority to other duties of his office. While so attending, he enjoys all the jurisdiction, powers and privileges (and discharges the duties) of a judge of the Supreme Court.

Retired Judge

At any time, the chief justice of India can request a retired judge of the Supreme Court or a retired judge of a high court (who is duly qualified for appointment as a judge of the Supreme Court) to act as a judge of the Supreme Court for a temporary period. He can do so only with the previous consent of the president and also of the person to be so appointed. Such a judge is entitled to such allowances as the president may determine. He will also enjoy all the jurisdiction, powers and privileges of a judge of Supreme Court. But, he will not otherwise be deemed to be a judge of the Supreme Court.

SEAT AND PROCEDURE

Seat of Supreme Court

The Constitution declares Delhi as the seat of the Supreme Court. But, it also authorises the chief justice of India to appoint other place or places as seat of the Supreme Court. He can take decision in this regard only with the approval of the President. This provision is only optional and not compulsory. This means that no court can give any direction either to the President or to the Chief Justice to appoint any other place as a seat of the Supreme Court.

Procedure of the Court

The Supreme Court can, with the approval of the president, make rules for regulating generally the practice and procedure of the Court. The Constitutional cases or references made by the President under Article 143 are decided by a Bench consisting of at least five judges. All other cases are decided by single judges and division benches. The judgements are delivered by the open court. All judgements are by majority vote but if differing, then judges can give dissenting judgements or opinions.

INDEPENDENCE OF SUPREME COURT

The Supreme Court has been assigned a very significant role in the Indian democratic political system. It is a federal court, the highest court of appeal, the guarantor of the fundamental rights of the citizens and guardian of the Constitution. Therefore, its independence becomes very essential for the effective discharge of the duties assigned to it. It should be free from the encroachments, pressures and interferences of the executive (council of ministers) and the Legislature (Parliament). It should be allowed to do justice without fear or favour.

The Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of the Supreme Court:

1. Mode of Appointment

The judges of the Supreme Court are appointed by the President (which means the cabinet) in consultation with the members of the judiciary itself (ie, judges of the Supreme Court and the high courts). This provision curtails the absolute discretion of the executive as well as ensures that the judicial appointments are not based on any political or practical considerations.

2. Security of Tenure

The judges of the Supreme Court are provided with the Security of Tenure. They can be removed from office by the President only in the manner and on the grounds mentioned in the Constitution. This means that they do not hold their office during the pleasure of the President, though they are appointed by him. This is obvious from the fact that no judge of the Supreme Court has been removed (or impeached) so far.

3. Fixed Service Conditions

The salaries, allowances, privileges, leave and pension of the judges of the Supreme Court are determined from time to time by the Parliament. They cannot be changed to their disadvantage after their appointment except during a financial emergency. Thus,

the conditions of service of the judges of the Supreme Court remain same during their term of Office.

4. Expenses Charged on Consolidated Fund

The salaries, allowances and pensions of the judges and the staff as well as all the administrative expenses of the Supreme Court are charged on the Consolidated Fund of India. Thus, they are non-votable by the Parliament (though they can be discussed by it).

5. Conduct of Judges cannot be Discussed

The Constitution prohibits any discussion in Parliament or in a State Legislature with respect to the conduct of the judges of the Supreme Court in the discharge of their duties, except when an impeachment motion is under consideration of the Parliament.

6. Ban on Practice after Retirement

The retired judges of the Supreme Court are prohibited from pleading or acting in any Court or before any authority within the territory of India. This ensures that they do not favour any one in the hope of future favour.

7. Power to Punish for its Contempt

The Supreme Court can punish any person for its contempt. Thus, its actions and decisions cannot be criticised and opposed by any body. This power is vested in the Supreme Court to maintain its authority, dignity and honour.

8. Freedom to Appoint its Staff

The Chief Justice of India can appoint officers and servants of the Supreme Court without any interference from the executive. He can also prescribe their conditions of service.

9. Its Jurisdiction cannot be Curtailed

The Parliament is not authorised to curtail the jurisdiction and powers of the Supreme Court. The Constitution has guaranteed to the Supreme Court, jurisdiction of various kinds. However, the Parliament can extend the same.

10. Separation from Executive

The Constitution directs the State to take steps to separate the Judiciary from the Executive in the public services. This means that the executive authorities should not possess the judicial powers. Consequently, upon its implementation, the role of executive authorities in judicial administration came to an end.[7]

JURISDICTION AND POWERS OF SUPREME COURT

The Constitution has conferred a very extensive jurisdiction and vast powers on the Supreme Court. It is not only a Federal Court like the American Supreme Court but also a final court of appeal like the British House of Lords (the Upper House of the British Parliament). It is also the final interpreter and guardian of the Constitution and guarantor of the fundamental rights of the citizens. Further, it has advisory and supervisory powers. Therefore, Alladi Krishnaswamy Ayyar, a member of the Drafting Committee of the Constitution, rightly remarked: "The Supreme Court of India has more powers than any other Supreme Court in any part of the world." The jurisdiction and powers of the Supreme Court can be classified into the following:

1. Original Jurisdiction.
2. Writ Jurisdiction.
3. Appellate Jurisdiction.
4. Advisory Jurisdiction.
5. A Court of Record.
6. Power of Judicial Review.
7. Constitutional Interpretation
8. Other Powers.

1. Original Jurisdiction

As a federal court, the Supreme Court decides the disputes between different units of the Indian Federation. More elaborately, any dispute:

(a) Between the Centre and one or more states; or
(b) Between the Centre and any state or states on one side and one or more other states on the other side; or
(c) Between two or more states.

In the above federal disputes, the Supreme Court has exclusive original jurisdiction. Exclusive means, no other court can decide such disputes and original means, the power to hear such disputes in the first instance, not by way of appeal.

With regard to the exclusive original jurisdiction of the Supreme Court, two points should be noted. One, the dispute must involve

a question (whether of law or fact) on which the existence or extent of a legal right depends. Thus, the questions of political nature are excluded from it. Two, any suit brought before the Supreme Court by a private citizen against the Centre or a state cannot be entertained under this.

Further, this jurisdiction of the Supreme Court does not extend to the following:

(a) A dispute arising out of any pre-Constitution treaty, agreement, covenant, engagement, sanad or other similar instrument.[8]
(b) A dispute arising out of any treaty, agreement, etc., which specifically provides that the said jurisdiction does not extent to such a dispute.[9]
(c) Inter-state water disputes.[10]
(d) Matters referred to the Finance Commission.
(e) Adjustment of certain expenses and pensions between the Centre and the states.
(f) Ordinary dispute of Commercial nature between the Centre and the states.
(g) Recovery of damages by a state against the Centre.

In 1961, the first suit, under the original jurisdiction of the Supreme Court, was brought by West Bengal against the Centre. The State Government challenged the Constitutional validity of the Coal Bearing Areas (Acquisition and Development) Act, 1957, passed by the Parliament. However, the Supreme Court dismissed the suit by upholding the validity of the Act.

2. Writ Jurisdiction

The Constitution has constituted the Supreme Court as the guarantor and defender of the fundamental rights of the citizens. The Supreme Court is empowered to issue writs including *habeas corpus*, *mandamus*, prohibition, *quo warranto* and *certiorari* for the enforcement of the fundamental rights of an aggrieved citizen. In this regard, the Supreme Court has original jurisdiction in the sense that an aggrieved citizen can directly go to the Supreme Court, not necessarily by way of appeal. However, the writ jurisdiction of the Supreme Court is not exclusive. The high courts

are also empowered to issue writs for the enforcement of the Fundamental Rights. It means, when the Fundamental Rights of a citizen are violated, the aggrieved party has the option of moving either the high court or the Supreme Court directly.

Therefore, the original jurisdiction of the Supreme Court with regard to federal disputes is different from its original jurisdiction with regard to disputes relating to fundamental rights. In the first case, it is exclusive and in the second case, it is concurrent with high courts jurisdiction. Moreover, the parties involved in the first case are units of the federation (Centre and states) while the dispute in the second case is between a citizen and the Government (Central or state).

There is also a difference between the writ jurisdiction of the Supreme Court and that of the high court. The Supreme Court can issue writs only for the enforcement of the Fundamental Rights and not for other purposes. The high court, on the other hand, can issue writs not only for the enforcement of the fundamental rights but also for other purposes. It means that the writ jurisdiction of the high court is wider than that of the Supreme Court. But, the Parliament can confer on the Supreme Court, the power to issue writs for other purposes also.

3. Appellate Jurisdiction

As mentioned earlier, the Supreme Court has not only succeeded the Federal Court of India but also replaced the British Privy Council as the highest court of appeal. The Supreme Court is primarily a court of appeal and hears appeals against the judgements of the lower courts. It enjoys a wide appellate jurisdiction which can be classified under four heads:

(a) Appeals in constitutional matters.
(b) Appeals in civil matters.
(c) Appeals in criminal matters.
(d) Appeals by special leave.

(a) Constitutional Matters

In the constitutional cases, an appeal can be made to the Supreme Court against the judgement of a high court if the high court certifies that the case involves a substantial question of law

that requires the interpretation of the Constitution. Based on the certificate, the party in the case can appeal to the Supreme Court on the ground that the question has been wrongly decided.

(b) Civil Matters

In civil cases, an appeal lies to the Supreme Court from any judgement of a high court if the high court certifies–

(i) that the case involves a substantial question of law of general importance; and

(ii) that the question needs to be decided by the Supreme Court.

Originally, only those civil cases that involved a sum of ₹20,000 could be appealed before the Supreme Court. But this monetary limit was removed by the 30th Constitutional Amendment Act of 1972.

(c) Criminal Matters

The Supreme Court hears appeals against the judgement in a criminal proceeding of a high court if the high court–

(i) has on appeal reversed an order of acquittal of an accused person and sentenced him to death; or

(ii) has taken before itself any case from any subordinate court and convicted the accused person and sentenced him to death; or

(iii) certifies that the case is a fit one for appeal to the Supreme Court.

In the first two cases, an appeal lies to the Supreme Court as a matter of right (ie, without any certificate of the high court). But if the high court has reversed the order of conviction and has ordered the acquittal of the accused, there is no right to appeal to the Supreme Court.

In 1970, the Parliament had enlarged the Criminal Appellate Jurisdiction of the Supreme Court. Accordingly, an appeal lies to the Supreme Court from the judgement of a high court if the high court:

(i) has on appeal, reversed an order of acquittal of an accused person and sentenced him to imprisonment for life or for ten years; or

(ii) has taken before itself any case from any subordinate court and convicted the accused person and sentenced him to

imprisonment for life or for ten years.

Further, the appellate jurisdiction of the Supreme Court extends to all civil and criminal cases in which the Federal Court of India had jurisdiction to hear appeals from the high court but which are not covered under the civil and criminal appellate jurisdiction of the Supreme Court mentioned above.

(d) Appeal by Special Leave

The Supreme Court is authorised to grant in its discretion special leave to appeal from any judgement in any matter passed by any court or tribunal in the country (except military tribunal and court martial). This provision contains the four aspects as under:

(i) It is a discretionary power and hence, cannot be claimed as a matter of right.

(ii) It can be granted in any judgement whether final or interlocutory.

(iii) It may be related to any matter–constitutional, civil, criminal, income-tax, labour, revenue, advocates, etc.

(iv) It can be granted against any court or tribunal and not necessarily against a high court (of course, except a military court).

Thus, the scope of this provision is very wide and it vests the Supreme Court with a plenary jurisdiction to hear appeals. On the exercise of this power, the Supreme Court itself held that 'being an exceptional and overriding power, it has to be exercised sparingly and with caution and only in special extraordinary situations. Beyond that it is not possible to fetter the exercise of this power by any set formula or rule'.

4. Advisory Jurisdiction

The Constitution (Article 143) authorises the president to seek the opinion of the Supreme Court in the two categories of matters:

(a) On any question of law or fact of public importance which has arisen or which is likely to arise.

(b) On any dispute arising out of any pre-constitution treaty, agreement, covenant, engagement, sanad or other similar instruments.[11]

In the first case, the Supreme Court may tender or may refuse to tender its opinion to the president. But, in the second case, the Supreme Court 'must' tender its opinion to the president. In both the cases, the opinion expressed by the Supreme Court is only advisory and not a judicial pronouncement. Hence, it is not binding on the president; he may follow or may not follow the opinion. However, it facilitates the government to have an authoritative legal opinion on a matter to be decided by it.

So far (2019), the President has made fifteen references to the Supreme Court under its advisory jurisdiction (also known as consultative jurisdiction). These are mentioned below in the chronological order.

1. Delhi Laws Act in 1951
2. Kerala Education Bill in 1958
3. Berubari Union in 1960
4. Sea Customs Act in 1963
5. Keshav Singh's case relating to the privileges of the Legislature in 1964
6. Presidential Election in 1974
7. Special Courts Bill in 1978
8. Jammu and Kashmir Resettlement Act in 1982
9. Cauvery Water Disputes Tribunal in 1992
10. Rama Janma Bhumi case in 1993
11. Consultation process to be adopted by the chief justice of India in 1998
12. Legislative competence of the Centre and States on the subject of natural gas and liquefied natural gas in 2001
13. The constitutional validity of the Election Commission's decision on deferring the Gujarat Assembly Elections in 2002
14. Punjab Termination of Agreements Act in 2004
15. 2G spectrum case verdict and the mandatory auctioning of natural resources across all sectors in 2012

5. A Court of Record

As a Court of Record, the Supreme Court has two powers:

(a) The judgements, proceedings and acts of the Supreme Court are recorded for perpetual memory and testimony. These

records are admitted to be of evidentiary value and cannot be questioned when produced before any court. They are recognised as legal precedents and legal references.

(b) It has power to punish for contempt of court, either with simple imprisonment for a term up to six months or with fine up to ₹2,000 or with both. In 1991, the Supreme Court has ruled that it has power to punish for contempt not only of itself but also of high courts, subordinate courts and tribunals functioning in the entire country.

Contempt of court may be civil or criminal. Civil contempt means wilful disobedience to any judgement, order, writ or other process of a court or wilful breach of an undertaking given to a court. Criminal contempt means the publication of any matter or doing an act which–**(i)** scandalises or lowers the authority of a court; or **(ii)** prejudices or interferes with the due course of a judicial proceeding; or **(iii)** interferes or obstructs the administration of justice in any other manner.

However, innocent publication and distribution of some matter, fair and accurate report of judicial proceedings, fair and reasonable criticism of judicial acts and comment on the administrative side of the judiciary do not amount to contempt of court.

6. Power of Judicial Review

Judicial review is the power of the Supreme Court to examine the constitutionality of legislative enactments and executive orders of both the Central and state governments. On examination, if they are found to be violative of the Constitution (*ultra-vires*), they can be declared as illegal, unconstitutional and invalid (null and void) by the Supreme Court. Consequently, they cannot be enforced by the Government.

7. Constitutional Interpretation

The Supreme Court is the ultimate interpreter of the Constitution. It can give final version to the spirit and content of the provisions of the constitution and the verbiage used in the constitution.

While interpreting the constitution, the Supreme Court is guided by a number of doctrines. In other words, the Supreme Court applies various doctrines in interpreting the constitution. The important doctrines are mentioned below:

1. Doctrine of Severability
2. Doctrine of Waiver
3. Doctrine of Eclipse
4. Doctrine of Territorial Nexus
5. Doctrine of Pith and Substance
6. Doctrine of Colourable Legislation
7. Doctrine of Implied Powers
8. Doctrine of Incidental and Ancillary Powers
9. Doctrine of Precedent
10. Doctrine of Occupied Field
11. Doctrine of Prospective Overruling
12. Doctrine of Harmonious Construction
13. Doctrine of Liberal Interpretation

8. Other Powers

Besides the above, the Supreme Court has numerous other powers:

(a) It decides the disputes regarding the election of the president and the vicepresident. In this regard, it has the original, exclusive and final authority.

(b) It enquires into the conduct and behaviour of the chairman and members of the Union Public Service Commission on a reference made by the president. If it finds them guilty of misbehaviour, it can recommend to the president for their removal. The advice tendered by the Supreme Court in this regard is binding on the President.

(c) It has power to review its own judgement or order. Thus, it is not bound by its previous decision and can depart from it in the interest of justice or community welfare. In brief, the Supreme Court is a self-correcting agency. For example, in the *Kesavananda Bharati* case (1973), the Supreme Court departed from its previous judgement in the *Golak Nath* case (1967).

(d) It is authorised to withdraw the cases pending before the high courts and dispose them by itself. It can also transfer a case or appeal pending before one high court to another high court.

(e) Its law is binding on all courts in India. Its decree or order is enforceable throughout the country. All authorities (civil and judicial) in the country should act in aid of the Supreme Court.

(f) It has power of judicial superintendence and control over all the courts and tribunals functioning in the entire territory of the country.

The Supreme Court's jurisdiction and powers with respect to matters in the Union list can be enlarged by the Parliament. Further, its jurisdiction and powers with respect to other matters can be enlarged by a special agreement of the Centre and the states.

SUPREME COURT ADVOCATES

Three categories of Advocates are entitled to practice law before the Supreme Court. They are:

1. Senior Advocates

These are Advocates who are designated as Senior Advocates by the Supreme Court of India or by any High Court. The Court can designate any Advocate, with his consent, as Senior Advocate if in its opinion by virtue of his ability, standing at the Bar or special knowledge or experience in law the said Advocate is deserving of such distinction. A Senior Advocate is not entitled to appear without an Advocate-on-Record in the Supreme Court or without a junior in any other court or tribunal in India. He is also not entitled to accept instructions to draw pleadings or affidavits, advise on evidence or do any drafting work of an analogous kind in any court or tribunal in India or undertake conveyancing work of any kind whatsoever but this prohibition shall not extend to settling any such matter as aforesaid in consultation with a junior.

2. Advocates-on-Record

Only these advocates are entitled to file any matter or document before the Supreme Court. They can also file an appearance or act for a party in the Supreme Court.

3. Other Advocates

These are advocates whose names are entered on the roll of any State Bar Council maintained under the Advocates Act, 1961 and they can appear and argue any matter on behalf of a party in the Supreme Court but they are not entitled to file any document or matter before the Court.

Table 26.1 *Comparing Indian and American Supreme Courts*

Indian Supreme Court	American Supreme Court
1. Its original jurisdiction is confined to federal cases.	1. Its original jurisdiction covers not only federal cases but also cases relating to naval

	forces, maritime activities, ambassadors, etc.
2. Its appellate jurisdiction covers constitutional, civil and criminal cases.	2. Its appellate jurisdiction is confined to constitutional cases only.
3. It has a very wide discretion to grant special leave to appeal in any matter against the judgement of any court or tribunal (except military).	3. It has no such plenary power.
4. It has advisory jurisdiction.	4. It has no advisory jurisdiction.
5. Its scope of judicial review is limited.	5. Its scope of judicial review is very wide.
6. It defends rights of the citizen according to the 'procedure established by law'.	6. It defends rights of the citizen according to the 'due process of law'.
7. Its jurisdiction and powers can be enlarged by Parliament.	7. Its jurisdiction and powers are limited to that conferred by the Constitution.
8. It has power of judicial superintendence and control over state high courts due to integrated judicial system.	8. It has no such power due to double (or separated) judicial system.

Table 26.2 *Articles Related to Supreme Court at a Glance*

Article No.	Subject Matter
124.	Establishment and Constitution of Supreme Court
124A.	National Judicial Appointments Commission
124B.	Functions of Commission
124C.	Power of Parliament to make law
125.	Salaries, etc., of Judges

126.	Appointment of acting Chief Justice
127.	Appointment of *ad hoc* Judges
128.	Attendance of retired Judges at sittings of the Supreme Court
129.	Supreme Court to be a court of record
130.	Seat of Supreme Court
131.	Original jurisdiction of the Supreme Court
131A.	Exclusive jurisdiction of the Supreme Court in regard to questions as to constitutional validity of Central Laws (Repealed)
132.	Appellate jurisdiction of Supreme Court in appeals from High Courts in certain cases
133.	Appellate jurisdiction of Supreme Court in appeals from High Courts in regard to civil matters
134.	Appellate jurisdiction of Supreme Court in regard to criminal matters
134A.	Certificate for appeal to the Supreme Court
135.	Jurisdiction and powers of the Federal Court under existing law to be exercisable by the Supreme Court
136.	Special leave to appeal by the Supreme Court
137.	Review of judgments or orders by the Supreme Court
138.	Enlargement of the jurisdiction of the Supreme Court
139.	Conferment on the Supreme Court of powers to issue certain writs
139A.	Transfer of certain cases
140.	Ancillary powers of Supreme Court
141.	Law declared by Supreme Court to be binding on all courts

142.	Enforcement of decrees and orders of Supreme Court and orders as to discovery, etc.
143.	Power of President to consult Supreme Court
144.	Civil and judicial authorities to act in aid of the Supreme Court
144A.	Special provisions as to disposal of questions relating to constitutional validity of laws (Repealed)
145.	Rules of court, etc.
146.	Officers and servants and the expenses of the Supreme Court
147.	Interpretation

NOTES AND REFERENCES

1. Before 1950, the British Privy Council had the jurisdiction to hear appeals from India.
2. In Re-Presidential Reference (1998). The president sought the Supreme Court's opinion (under Article 143) on certain doubts over the Consultation process to be adopted by the chief justice of India as stipulated in the 1993 case.

2a. Supreme Court Advocates-on-Record Association and another Vs. Union of India (2015).

3. A.N. Ray was fourth in seniority. The three superseded judges were J.M. Shelat, K.S. Hegde and A.N. Grover. All the three judges resigned from the Supreme Court. They were superseded due to their judgement in *Kesavananda Bharati* case (1973), which was not favourable to the Government.
4. He was H.R. Khanna and he too resigned. His dissenting judgement upholding the right to life even during emergency in the *ADM Jabalpur v Shivkant Shukla* case (1976) was not appreciated by the Government.

5. An impeachment motion for the removal of a judge does not lapse on the dissolution of the Lok Sabha.
6. In 1950, their salaries were fixed at ₹5,000 per month and ₹4,000 per month respectively. In 1986, their salaries were raised to ₹10,000 per month and ₹9,000 per month respectively. In 1998, their salaries were raised to ₹33,000 per month and ₹30,000 per month respectively. In 2009, their salaries were raised to ₹1 lakh per month and ₹90,000 per month respectively.
7. The Criminal Procedure Code (1973) has effected the separation of Judiciary from the Executive (Article 50 under the Directive Principles of State Policy).
8. Pre-Constitution means that, which have been entered into or executed before the commencement of the Constitution and which continues to be in operation after such commencement.
9. This means that the inter-government agreements (i.e., the agreements between states or between Centre and states) can exclude the original jurisdiction of the Supreme Court in so far as the disputes arising out of them are concerned.
10. The Inter-State Water Disputes Act of 1956 has excluded the original jurisdiction of the Supreme Court in disputes between states with respect to the use, distribution or control of the water of inter-state river or river valley.
11. These include treaties, covenants, etc. between the Central Government and the formerly princely states during 1947 to 1950.

27 Judicial Review

The doctrine of judicial review originated and developed in the USA. It was propounded for the first time in the famous case of Marbury *versus* Madison (1803) by John Marshall, the then chief justice of the American Supreme Court.

In India, on the other hand, the Constitution itself confers the power of judicial review on the judiciary (both the Supreme Court as well as High Courts). Further, the Supreme Court has declared the power of judicial review as a basic feature of the Constitution or an element of the basic structure of the Constitution. Hence, the power of judicial review cannot be curtailed or excluded even by a constitutional amendment.

MEANING OF JUDICIAL REVIEW

Judicial review is the power of the judiciary to examine the constitutionality of legislative enactments and executive orders of both the Central and State governments. On examination, if they are found to be violative of the Constitution (*ultra vires*), they can be declared as illegal, unconstitutional and invalid (null and void) by the judiciary. Consequently, they cannot be enforced by the Government.

Justice Syed Shah Mohamed Quadri has classified the judicial review into the following three categories[1] :

1. Judicial review of constitutional amendments.
2. Judicial review of legislation of the Parliament and State Legislatures and subordinate legislations.
3. Judicial review of administrative action of the Union and State and authorities under the state.

The Supreme Court used the power of judicial review in various cases, as for example, the Golaknath case (1967), the Bank Nationalisation case (1970), the Privy Purses Abolition case (1971), the Kesavananda Bharati case (1973), the Minerva Mills case (1980), and so on.

In 2015, the Supreme Court declared both the 99th Constitutional Amendment, 2014 and the National Judicial Appointments Commission (NJAC) Act, 2014 as unconstitutional and null and void.

IMPORTANCE OF JUDICIAL REVIEW

Judicial review is needed for the following reasons:

(a) To uphold the principle of the supremacy of the Constitution.
(b) To maintain federal equilibrium (balance between the Centre and the states).
(c) To protect the Fundamental Rights of the citizens.

In a number of cases, the Supreme Court has pointed out the significance of the power of judicial review in our country. Some of the observations made by it, in this regard, are given below:

"In India it is the Constitution that is supreme and that a statute law to be valid, must be in conformity with the constitutional requirements and it is for the judiciary to decide whether any enactment is constitutional or not".[2]

"Our constitution contains express provisions for judicial review of legislation as to its conformity with the constitution. This is especially true as regards the Fundamental Rights, to which the court has been assigned the role of sentinel on the qui vive".[3]

"As long as some Fundamental Rights exist and are a part of the Constitution, the power of judicial review has also to be exercised with a view to see that the guarantees afforded by these Rights are not contravened".[4]

"The Constitution is supreme lex, the permanent law of the land, and there is no branch of government above it. Every organ of government, be it the executive or the legislature of the judiciary, derives its authority from the Constitution and it has to act within the limits of its authority. No one however highly placed and no authority howsoever lofty, can claim that it shall be the sole judge of the extent of its power under the Constitution or whether its action is within the confines of such power laid down by the constitution. This Court is the ultimate interpreter of the Constitution and to this Court is assigned the delicate task of determining what is the power conferred on each branch of government, whether it is limited, and if so, what are the limits and whether any action of that branch transgresses such limits".[5]

"It is the function of the Judges, may their duty, to pronounce upon the validity of laws. If courts are totally deprived of that

power, the Fundamental Rights conferred on the people will become a mere adornment because rights without remedies are as writ in water. A controlled Constitution will then become uncontrolled".[6]

"The judges of the Supreme Court have been entrusted with the task of upholding the Constitution and to this end, have been conferred the power to interpret it. It is they who have to ensure that the balance of power envisaged by the Constitution is maintained and that the legislature and the executive do not, in the discharge of their functions, transgress constitutional limitations"[7] .

"The founding fathers very wisely, therefore, incorporated in the Constitution itself the provisions of judicial review so as to maintain the balance of federalism, to protect the Fundamental Rights and Fundamental Freedoms guaranteed to the citizens and to afford a useful weapon for availability, availment and enjoyment of equality, liberty and Fundamental Freedoms and to help to create a healthy nationalism. The function of judicial review is a part of the constitutional interpretation itself. It adjusts the Constitution to meet new conditions and needs of the time".[8]

CONSTITUTIONAL PROVISIONS FOR JUDICIAL REVIEW

Though the phrase 'Judicial Review' has nowhere been used in the Constitution, the provisions of several Articles explicitly confer the power of judicial review on the Supreme Court and the High Courts. These provisions are explained below:

1. Article 13 declares that all laws that are inconsistent with or in derogation of the Fundamental Rights shall be null and void.
2. Article 32 guarantees the right to move the Supreme Court for the enforcement of the Fundamental Rights and empowers the Supreme Court to issue directions or orders or writs for that purpose.
3. Article 131 provides for the original jurisdiction of the Supreme Court in centre-state and inter-state disputes.
4. Article 132 provides for the appellate jurisdiction of the Supreme Court in constitutional cases.
5. Article 133 provides for the appellate jurisdiction of the Supreme Court in civil cases.
6. Article 134 provides for the appellate jurisdiction of the Supreme Court in criminal cases.
7. Article 134-A deals with the certificate for appeal to the Supreme Court from the High Courts.[9]
8. Article 135 empowers the Supreme Court to exercise the jurisdiction and powers of the Federal Court under any preconstitution law.
9. Article 136 authorises the Supreme Court to grant special leave to appeal from any court or tribunal (except military tribunal and court martial).
10. Article 143 authorises the President to seek the opinion of the Supreme Court on any question of law or fact and on any pre-constitution legal matters.
11. Article 226 empowers the High Courts to issue directions or orders or writs for the enforcement of the Fundamental Rights and for any other purpose.

12. Article 227 vests in the High Courts the power of superintendence over all courts and tribunals within their respective territorial jurisdictions (except military courts or tribunals).
13. Article 245 deals with the territorial extent of laws made by Parliament and by the Legislatures of States.
14. Article 246 deals with the subject matter of laws made by Parliament and by the Legislatures of States (i.e., Union List, State List and Concurrent List).
15. Articles 251 and 254 provide that in case of a conflict between the central law and state law, the central law prevails over the state law and the state law shall be void.
16. Article 372 deals with the continuance in force of the pre-constitution laws.

SCOPE OF JUDICIAL REVIEW

The constitutional validity of a legislative enactment or an executive order can be challenged in the Supreme Court or in the High Courts on the following three grounds.

(a) it infringes the Fundamental Rights (Part III),
(b) it is outside the competence of the authority which has framed it, and
(c) it is repugnant to the constitutional provisions.

From the above, it is clear that the scope of judicial review in India is narrower than what exists in the USA, though the American Constitution does not explicitly mention the concept of judicial review in any of its provisions. This is because, the American Constitution provides for 'due process of law' against that of 'procedure established by law' which is contained in the Indian Constitution. The difference between the two is: "The due process of law gives wide scope to the Supreme Court to grant protection to the rights of its citizens. It can declare laws violative of these rights void not only on substantive grounds of being unlawful, but also on procedural grounds of being unreasonable. Our Supreme Court, while determining the constitutionality of a law, however examines only the substantive question i.e., whether the law is within the powers of the authority concerned or not. It is not expected to go into the question of its reasonableness, suitability or policy implications".[10]

The exercise of wide power of judicial review by the American Supreme Court in the name of 'due process of law' clause has made the critics to describe it as a 'third chamber' of the Legislature, a super-legislature, the arbiter of social policy and so on. This American principle of judicial supremacy is also recognised in our constitutional system, but to a limited extent. Nor do we fully follow the British Principle of parliamentary supremacy. There are many limitations on the sovereignty of Parliament in our country, like the written character of the Constitution, the federalism with division of powers, the Fundamental Rights and the judicial review. In effect, what exists in India is a synthesis of both, that is, the American principle of

judicial supremacy and the British principle of parliamentary supremacy.

JUDICIAL REVIEW OF THE NINTH SCHEDULE

Article 31B saves the acts and regulations included in the Ninth Schedule from being challenged and invalidated on the ground of contravention of any of the Fundamental Rights. Article 31B along with the Ninth Schedule was added by the 1st Constitutional Amendment Act of 1951.

Originally (in 1951), the Ninth Schedule contained only 13 acts and regulations but at present (in 2016) their number is 282.[11] Of these, the acts and regulations of the state legislature deal with land reforms and abolition of the zamindari system and that of the Parliament deal with other matters.

However, in a significant judgement delivered in I.R. Coelho case (2007)[12] , the Supreme Court ruled that there could not be any blanket immunity from judicial review of laws included in the Ninth Schedule. The court held that judicial review is a 'basic feature' of the constitution and it could not be taken away by putting a law under the Ninth Schedule. It said that the laws placed under the Ninth Schedule after April 24, 1973, are open to challenge in court if they violated Fundamental Rights guaranteed under the Articles 14, 15, 19 and 21 or the 'basic structure' of the Constitution. It was on April 24, 1973, that the Supreme Court first propounded the doctrine of 'basic structure' or 'basic features' of the constitution in its landmark verdict in the Kesavananda Bharati case.[13]

While delivering the above judgement, the Supreme Court made the following conclusions:

1. A law that abrogates or abridges rights guaranteed by Part III of the Constitution may violate the basic structure doctrine, or it may not. If former is the consequence of law, whether by an amendment of any Article of Part III or by an insertion in the Ninth Schedule, such law will have to be invalidated in the exercise of judicial review power of the Court. The constitutional validity of the Ninth Schedule laws on the touchstone of basic structure doctrine can be adjudged by applying the direct impact and effect test, i.e., rights test, which means the form of an amendment is not

the relevant factor, but the consequence thereof would be the determinative factor.

2. The majority judgement in the Kesavanand Bharati Case[14] read with Indira Gandhi case[15] requires the validity of each new constitutional Amendment to be judged on its own merits. The actual effect and impact of the law on the rights guaranteed under Part III has to be taken into account for determining whether or not it destroys basic structure. The impact test would determine the validity of the challenge.
3. All amendments to the Constitution made on or after 24th April, 1973 by which the Ninth Schedule is amended by inclusion of various laws therein shall have to be tested on the touchstone of the basic or essential features of the Constitution as reflected in Article 21 read with Articles 14 and 19 and the principles underlying them. To put it differently, even though an act is put in the Ninth Schedule by a Constitutional Amendment, its provisions would be open to attack on the ground that they destroy or damage the basic structure if the Fundamental Right or rights taken away or abrogated pertains or pertain to the basic structure.
4. Justification for conferring protection, not blanket protection, on the laws included in the Ninth Schedule by Constitutional Amendments shall be a matter of constitutional adjudication by examining the nature and extent of infraction of a Fundamental Right by a statute, sought to be constitutionally protected, and on the touchstone of the basic structure doctrine as reflected in Article 21 read with Articles 14 and 19 by application of the “rights test” and the “essence of the right” test taking the synoptic view of the articles in Part III as held in the Indira Gandhi Case.16 Applying the above test to the Ninth Schedule laws, if the infraction affects the basic structure, then such a law or laws will not get the protection of the Ninth Schedule. When the triangle of Article 21 read with Article 14 and Article 19 is sought to be eliminated not only the “essence of the right” test but also the “rights test” has to apply. There is also a difference between the “rights test” and the “essence of the right” test. Both form part of application of the basic structure doctrine. When in a

controlled constitution conferring limited power of amendment, an entire chapter is made in applicable, the "essence of the right" test as applied in Nagaraj case[17] will have no applicability. In such a situation, to judge the validity of the law, it is the "rights test" which is more appropriate.

5. If the validity of any Ninth Schedule law has already been upheld by this Court, it would not be open to challenge such law again on the principles declared by this judgment. However, if a law held to be violative of any rights in Part III is subsequently incorporated in the Ninth Schedule after 24th April, 1973, such a violation / infraction shall be open to challenge on the ground that it destroys or damages the basic structure as indicated in Article 21 read with Articles 14 and 19 and the principles underlying them.
6. Action taken and transactions finalized as a result of the impugned Acts shall not be open to challenge.

The number of acts and regulations included in the Ninth Schedule before and after April 24, 1973 are mentioned below in Table 27.1.

Table 27.1 *Number of Acts and Regulations Included in the Ninth Schedule*

Serial Number	Amendment Number (Year)	Number of Acts and Regulations Included in the Ninth Schedule
I. Included Before April 24, 1973		
1.	First Amendment (1951)	13 (1 to 13)
2.	Fourth Amendment (1955)	7 (14 to 20)
3.	Seventh Amendment (1964)	44 (21 to 64)
4.	Twenty-Ninth Amendment (1972)	2 (65 to 66)
II. Included After April 24, 1973		
5.	Thirty-Fourth Amendment (1974)	20 (67 to 86)

6.	Thirty-Ninth Amendment (1975)	38 (87 to 124)
7.	Fortieth Amendment (1976)	64 (125 to 188)
8.	Forty-Seventh Amendment (1984)	14 (189 to 202)
9.	Sixty-Sixth Amendment (1990)	55 (203 to 257)
10.	Seventy-Sixth Amendment (1994)	1 (257A)
11.	Seventy-Eighth Amendment (1995)	27 (258 to 284)

Note: Entries 87, 92 and 130 have been omitted by the Forty-Fourth Amendment (1978).

NOTES AND REFERENCES

1. Justice Syed Shah Mohamed Quadri, "*Judicial Review of Administrative Action*", 2001, 6 SCC (J), p. 3.
2. Chief Justice Kania in A.K. Gopalan v. State of Madras (1950).
3. Chief Justice Patanjali Shastri in State of Madras v. V.G. Row (1952).
4. Justice Khanna in Kesavananda Bharati v. State of Kerala (1973).
5. Justice Bhagwati in Rajasthan v. Union of India (1977).
6. Chief Justice Chandrachud in Minerva Mills v. Union of India (1980).
7. Chief Justice Ahmadi in L. Chandra Kumar v. Union of India (1997).
8. Justice Ramaswami in S.S. Bola v. B.D. Sharma (1997).
9. This provision was added by the 44th Constitutional Amendment Act of 1978.
10. Subhash C. Kashyap, *Our Constitution*, National Book Trust, Third Edition, 2001, p. 232.

11. Though the last entry is numbered 284, the actual total number is 282. This is because, the three entries (87, 92 and 130) have been deleted and one entry is numbered as 257A.
12. I.R. Coelho v. State of Tamil Nadu (2007).
13. Kesavananda Bharati v. State of Kerala (1973).
14. *Ibid*.
15. Indira Nehru Gandhi v. Raj Narain (1975).
16. *Ibid*.
17. M. Nagaraj v. Union of India (2006)

28 Judicial Activism

The concept of judicial activism originated and developed in the USA. This term was first coined in 1947 by Arthur Schlesinger Jr., an American historian and educator.[1]

In India, the doctrine of judicial activism was introduced in mid-1970s. Justice V.R. Krishna Iyer, Justice P.N. Bhagwati, Justice O. Chinnappa Reddy and Justice D.A. Desai laid the foundations of judicial activism in the country.

MEANING OF JUDICIAL ACTIVISM

Judicial activism denotes the proactive role played by the judiciary in the protection of the rights of citizens and in the promotion of justice in the society. In other words, it implies the assertive role played by the judiciary to force the other two organs of the government (legislature and executive) to discharge their constitutional duties.

Judicial activism is also known as “judicial dynamism”. It is the antithesis of “judicial restraint”, which means the self-control exercised by the judiciary.

Judicial activism is defined in the following way:

1. “Judicial activism is a way of exercising judicial power that motivates judges to depart from normally practised strict adherence to judicial precedent in favour of progressive and new social policies. It is commonly marked by decision calling for social engineering, and occasionally these decisions represent intrusion in the legislative and executive matters”.[2]
2. “Judicial activism is the practice in the judiciary of protecting or expanding individual rights through decisions that depart from established precedent, or are independent of, or in opposition to supposed constitutional or legislation intent”.[3]
3. “Judicial activism can be defined as the process of law-making by judges. It means an active interpretation of existing legislation by a judge, made with a view to enhance the utility of that legislation for social betterment. Judicial activism is different from judicial pessimism which means interpretation of existing provisions of law, without an attempt to enhance its beneficial aspects”.[3a]
4. “Judicial activism is a philosophy of judicial decision-making whereby judges allow their personal views about public policy, among other factors, to guide their decisions”.[3b]
5. “Judicial activism is a procedure to evolve new principles, concepts, maxims, formulae and relief to do justice or to expand the standing of the litigant and open the door of

courts for needy or to entertain litigation affecting the entire society or a section of it".[3c]

The concept of judicial activism is closely related to the concept of Public Interest Litigation (PIL). It is the judicial activism of the Supreme Court which is the major factor for the rise of PIL. In other words, PIL is an outcome of judicial activism. In fact, PIL is the most popular form (or manifestation) of judicial activism.

JUDICIAL REVIEW AND JUDICIAL ACTIVISM

The concepts of judicial review and judicial activism are closely related to each other. But, there is a difference between them. The following points bring out this difference:

1. Since about the mid-20th century, a version of judicial review has acquired the nick-name of judicial activism, especially in the USA. In India, the participants in the debate mix up judicial activism with judicial review. The former is that form of latter in which judges participate in law-making policies, i.e., not only they uphold or invalidate laws in terms of constitutional provisions, but also exercise their policy preferences in doing so.[3d]
2. The concept of judicial activism is inherent in judicial review, which empowers the court to uphold the constitution and declare the laws and action inconsistent with the constitution as void. Judicial activism is necessary for ensuring proper discharge of duties by other organs.[3e]
3. The term "judicial activism" came into currency some time in the twentieth century to describe the act of judicial legislation i.e., judges making positive law. However, there is no standard definition of the term "judicial activism". As a whole it can be said that judicial activism stresses the importance of judicial review and a powerful judiciary in the protection and promotion of certain core rights.[3f]
4. The expanded concept of locus standi in connection with PIL, by judicial interpretation from time-to-time, has expanded the jurisdictional limits of the courts exercising judicial review. This expanded role has been given the title of "judicial activism" by those who are critical of this expanded role of the judiciary.[3g]
5. Judicial activism, as regards constitutional cases, falls under the rubric of what is commonly called judicial review, and at the broadest level, it is any occasion where a court intervenes and strikes down a piece of duly enacted legislation.[3h]

JUSTIFICATION OF JUDICIAL ACTIVISM

According to Dr. B.L. Wadehra, the reasons for judicial activism are as follows:[4]

(i) There is near collapse of the responsible government, when the Legislature and Executive fail to discharge their respective functions. This results in erosion of the confidence in the Constitution and democracy amongst the citizens.

(ii) The citizens of the country look up to the judiciary for the protection of their rights and freedoms. This leads to tremendous pressure on judiciary to step in aid for the suffering masses.

(iii) Judicial Enthusiasm, that is, the judges like to participate in the social reforms that take place in the changing times. It encourages the Public Interest Litigation and liberalises the principle of 'Locus Standi'.

(iv) Legislative Vacuum, that is, there may be certain areas, which have not been legislated upon. It is therefore, upon court to indulge in judicial legislation and to meet the changing social needs.

(v) The Constitution of India has itself adopted certain provisions, which gives judiciary enough scope to legislate or to play an active role.

Similarly, Subhash Kashyap observes that certain eventualities may be conceived when the judiciary may have to overstep its normal jurisdiction and intervene in areas otherwise falling within the domain of the legislature and the executive:[5]

(i) When the legislature fails to discharge its responsibilities.

(ii) In case of a 'hung' legislature when the government it provides is weak, insecure and busy only in the struggle for survival and, therefore, unable to take any decision which displeases any caste, community, or other group.

(iii) Those in power may be afraid of taking honest and hard decisions for fear of losing power and, for that reason, may have public issues referred to courts as issues of law in order to mark time and delay decisions or to pass on the odium of strong decision-making to the courts.

(iv) Where the legislature and the executive fail to protect the basic rights of citizens, like the right to live a decent life, healthy surroundings, or to provide honest, efficient and just system of laws and administration.

(v) Where the court of law is misused by a strong authoritarian parliamentary party government for ulterior motives, as was sought to be done during the emergency aberration.

(vi) Sometimes, the courts themselves knowingly or unknowingly become victims of human, all too human, weaknesses of craze for populism, publicity, playing to the media and hogging the headlines.

According to Dr. Vandana, the concept of judicial activism can be seen to be reflecting from the following trends, namely:[5a]

(i) Expansion of rights of hearing in the administrative process.

(ii) Excessive delegation without limitation.

(iii) Expansion of judicial control over discretionary powers.

(iv) Expansion of judicial review over the administration.

(v) Promotion of open government.

(vi) Indiscriminate exercise of contempt power.

(vii) Exercise of jurisdiction when non-exist.

(viii) Over extending the standard rules of interpretation in its search to achieve economic, social and educational objectives.

(ix) Passing of orders which are *per se* unworkable.

ACTIVATORS OF JUDICIAL ACTIVISM

Upendra Baxi, an eminent jurist, has delineated the following typology of social / human rights activists who activated judicial activism[6] :

1. **Civil Rights Activists**: These groups primarily focus on civil and political rights issues.
2. **People Rights Activists**: These groups focus on social and economic rights within the contexts of state repression of people's movements.
3. **Consumer Rights Groups**: These formations raise issues of consumer rights within the framework of accountability of the polity and the economy.
4. **Bonded Labour Groups**: These groups ask for judicial activism is nothing short of annihilation of wage slavery in India.
5. **Citizens for Environmental Action**: These groups activate an activist judiciary to combat increasing environmental degradation and pollution.
6. **Citizen Groups against Large Irrigation Projects**: These activist formations ask the Indian judiciary the impossible for any judiciary in the world, namely, cease to and desist from ordering against mega irrigation projects.
7. **Rights of Child Groups**: These groups focus on child labour, the right to literacy, juveniles in custodial institutions and rights of children born to sex workers.
8. **Custodial Rights Groups**: These groups include social action by prisoners' rights groups, women under state 'protective' custody and persons under preventive detention.
9. **Poverty Rights Groups**: These groups litigate issues concerning draught and famine relief and urban impoverished.
10. **Indigenous People's Rights Groups**: These groups agitate for issues of forest dwellers, citizens of the Fifth and Sixth Schedules of the Indian Constitution and identity rights.
11. **Women's Rights Groups**: These groups agitate for issues of gender equality, gender-based violence and harassment,

rape and dowry murders.

12. **Bar-based Groups**: These associations agitate for issues concerning autonomy and accountability of the Indian judiciary.
13. **Media Autonomy Groups**: These groups focus on the autonomy and accountability of the press and instruments of mass media owned by the State.
14. **Assorted Lawyer-Based Groups**: This category includes the critically influential lawyers' groups which agitate for various causes.
15. **Assorted Individual Petitioners**: This category includes freelance activist individuals.

APPREHENSIONS OF JUDICIAL ACTIVISM

The same jurist Upendra Baxi also presented a typology of fears which are generated by judicial activism. He observes: “The facts entail invocation of a wide range of fears. The invocation is designed to bring into a nervous rationality among India’s most conscientious justices”. He described the following types of fears[7] :

1. **Ideological fears**: (Are they usurping powers of the legislature, the executive or of other autonomous institutions in a civil society?)
2. **Epistemic fears**: (Do they have enough knowledge in economic matters of a Manmohan Singh, in scientific matters of the Czars of the atomic energy establishment, the captains of the Council of Scientific and Industrial Research, and so on?)
3. **Management fears**: (Are they doing justice by adding this kind of litigation work load to a situation of staggering growth of arrears?)
4. **Legitimation fears**: (Are not they causing depletion of their symbolic and instrumental authority by passing orders in public interest litigation which the executive may bypass or ignore? Would not the people’s faith in judiciary, a democratic recourse, be thus eroded?)
5. **Democratic fears**: (Is a profusion of public interest litigation nurturing democracy or depleting its potential for the future?)
6. **Biographic fears**: (What would be my place in national affairs after superannuation if I overdo this kind of litigation?)

JUDICIAL ACTIVISM VS. JUDICIAL RESTRAINT

Meaning of Judicial Restraint

Judicial activism and judicial restraint are the two alternative judicial philosophies in the United States. Those who subscribe to judicial restraint contend that the role of judges should be scrupulously limited; their job is merely to say what the law is, leaving the business of lawmaking where it properly belongs, that is, with the legislators and the executives. Under no circumstances, moreover, should judges allow their personal political values and policy agendas to colour their judicial opinions. This view holds that the 'original intent' of the authors of the constitution and its amendments is knowable, and must guide the courts.[8]

Assumptions of Judicial Restraint

In the USA, the doctrine of judicial restraint is based on the following six assumptions[9] :

1. The Court is basically undemocratic because it is non-elective and presumably non-responsive to the popular will. Because of its alleged oligarchic composition the court should defer wherever possible to the 'more' democratic branches of government.
2. The questionable origins of the great power of judicial review, a power not specifically granted by the Constitution.
3. The doctrine of separation of powers.
4. The concept of federalism, dividing powers between the nation and the states requires of the Court deference toward the action of state governments and officials.
5. The non-ideological but pragmatic assumption that since the Court is dependent on the Congress for its jurisdiction and resources, and dependent on public acceptance for its effectiveness, it ought not to overstep its boundaries without consideration of the risks involved.

6. The aristocratic notion that, being a court of law, and inheritor and custodian of the Anglo-American legal tradition, it ought not to go too far to the level of politics–law being the process of reason and judgment and politics being concerned only with power and influence.

From the above, it is clear that all the assumptions (except the second dealing with the judicial review) hold good in the Indian context too.

Supreme Court Observations

While delivering a judgement in December 2007, the Supreme Court of India called for judicial restraint and asked courts not to take over the functions of the legislature or the executive, saying there is a broad separation of powers under the Constitution and each organ of the state must have respect for others and should not encroach on others' domain. In this context, the concerned Bench of the court made the following observations[10] :

1. The Bench said, "We are repeatedly coming across cases where judges are unjustifiably trying to perform executive or legislative functions. This is clearly unconstitutional. In the name of judicial activism, judges cannot cross their limits and try to take over functions which belong to another organ of the state".
2. The Bench said, "Judges must know their limits and must not try to run the government. They must have modesty and humility, and not behave like emperors."
3. Quoting from the book 'The Spirit of Laws' by Montesquieu on the consequences of not maintaining separation of powers among the three organs, the Bench said the French political philosopher's "warning is particularly apt and timely for the Indian judiciary today, since very often it is rightly criticised for 'overreach' and encroachment on the domain of the other two organs."
4. Judicial activism must not become judicial adventurism, the Bench warned the courts Adjudication must be done within the system of historically validated restraints and conscious minimisation of judges' preferences.

5. “The courts must not embarrass administrative authorities and must realise that administrative authorities have expertise in the field of administration while the court does not.”
6. The Bench said, “The justification often given for judicial encroachment on the domain of the executive or the legislature is that the other two organs are not doing their jobs properly. Even assuming this is so, the same allegations can be made against the judiciary too because there are cases pending in courts for half-a-century.”
7. If the legislature or the executive was not functioning properly, it was for the people to correct the defects by exercising their franchise properly in the next elections and voting for candidates who would fulfil their expectations or by other lawful methods, e.g., peaceful demonstrations.
8. “The remedy is not in the judiciary taking over the legislative or the executive functions, because that will not only violate the delicate balance of power enshrined in the Constitution but also (because) the judiciary has neither the expertise nor the resources to perform these functions.”
9. The Bench said: “Judicial restraint is consistent with and complementary to the balance of power among the three independent branches of the state. It accomplishes this in two ways: first, judicial restraint not only recognises the equality of the other two branches with the judiciary, it also fosters that equality by minimising inter-branch interference by the judiciary. Second, judicial restraint tends to protect the independence of the judiciary. When courts encroach on the legislative or administrative fields almost inevitably voters, legislators, and other elected officials will conclude that the activities of judges should be closely monitored.

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29 Public Interest Litigation

The concept of Public Interest Litigation (PIL) originated and developed in the USA in the 1960s. In the USA, it was designed to provide legal representation to previously unrepresented groups and interests. It was undertaken in recognition of the fact that the ordinary marketplace for legal services fails to provide such services to significant segments of the population and to significant interests. Such groups and interests include the poor, environmentalists, consumers, racial and ethnic minorities, and others.[1]

In India, the PIL is a product of the judicial activism role of the Supreme Court. It was introduced in the early 1980s. Justice V.R. Krishna Iyer and Justice P.N. Bhagwati were the pioneers of the concept of PIL.

PIL is also known variously as Social Action Litigation (SAL), Social Interest Litigation (SIL) and Class Action Litigation (CAL).

MEANING OF PIL

The introduction of PIL in India was facilitated by the relaxation of the traditional rule of '*locus standi*'. According to this rule, only that person whose rights are infringed alone can move the court for the remedies, whereas, the PIL is an exception to this traditional rule. Under the PIL, any public-spirited citizen or a social organisation can move the court for the enforcement of the rights of any person or group of persons who because of their poverty or ignorance or socially or economically disadvantaged position are themselves unable to approach the court for the remedies. Thus, in a PIL, any member of the public having 'sufficient interest' can approach the court for enforcing the rights of other persons and redressal of a common grievance.

The Supreme Court has defined the PIL as "a legal action initiated in a court of law for the enforcement of public interest or general interest in which the public or a class of the community have pecuniary interest or some interest by which their legal rights or liabilities are affected."[2]

PIL is absolutely necessary for maintaining the rule of law, furthering the cause of justice and accelerating the pace of realisation of the constitutional objectives. In other words, the real purposes of PIL are:

(i) vindication of the rule of law,
(ii) facilitating effective access to justice to the socially and economically weaker sections of the society, and
(iii) meaningful realisation of the fundamental rights.

FEATURES OF PIL

The various features of the PIL are explained below:

1. PIL is a strategic arm of the legal aid movement and is intended to bring justice within the reach of the poor masses, who constitute the low visibility area of humanity.
2. PIL is a totally different kind of litigation from the ordinary traditional litigation which is essentially of an adversary character where there is a dispute between two litigating parties, one making claims seeking relief against the other and that other opposing such claim or resisting such relief.
3. PIL is brought before the Court not for the purpose of enforcing the right of one individual against another as happens in the case of ordinary litigation, but it is intended to promote and vindicate public interest.
4. PIL demands that violations of constitutional and legal rights of large numbers of people who are poor, ignorant or in a socially or economically disadvantaged position should not go unnoticed and unredressed.
5. PIL is essentially a co-operative effort on the part of the petitioner, the State or Public Authority, and the Court to secure observance of the constitutional or legal rights, benefits and privileges conferred upon the vulnerable sections of the community and to reach social justice to them.
6. In PIL, litigation is undertaken for the purpose of redressing public injury, enforcing public duty, protecting social, collective, diffused rights and interests or vindicating public interest.
7. In PIL, the role held by the Court is more assertive than in traditional actions; it is creative rather than passive and it assumes a more positive attitude in determining acts.
8. Though in PIL court enjoys a degree of flexibility unknown to the trial of traditional private law litigations, whatever the procedure adopted by the court it must be procedure known to judicial tenets and characteristics of a judicial proceeding.

9. In a PIL, unlike traditional dispute resolution mechanism, there is no determination on adjudication of individual rights.

SCOPE OF PIL

In 1998, the Supreme Court formulated a set of guidelines to be followed for entertaining letters or petitions received by it as PIL. These guidelines were modified in 1993 and 2003. According to them, the letters or petitions falling under the following categories alone will ordinarily be entertained as PIL:

1. Bonded labour matters
2. Neglected children
3. Non-payment of minimum wages to workers and exploitation of casual workers and complaints of violation of Labour Laws (except in individual cases)
4. Petitions from jails complaining of harassment, for pre-mature release and seeking release after having completed 14 years in jail, death in jail, transfer, release on personal bond, speedy trial as a fundamental right
5. Petitions against police for refusing to register a case, harassment by police and death in police custody
6. Petitions against atrocities on women, in particular harassment of bride, brideburning, rape, murder, kidnapping, etc.
7. Petitions complaining of harassment or torture of villagers by co-villagers or by police from persons belonging to Scheduled Caste and Scheduled Tribes and economically backward classes
8. Petitions pertaining to environmental pollution, disturbance of ecological balance, drugs, food adulteration, maintenance of heritage and culture, antiques, forest and wild life and other matters of public importance
9. Petitions from riot-victims
10. Family pension

The cases falling under the following categories will not be entertained as PIL:

1. Landlord-tenant matters
2. Service matter and those pertaining to pension and gratuity
3. Complaints against Central/ State Government departments and Local Bodies except those relating to item numbers (1)

to (10) above

4. Admission to medical and other educational institution
5. Petitions for early hearing of cases pending in High Courts and Subordinate Courts

PRINCIPLES OF PIL

The Supreme Court evolved the following principles in regard to PIL[3] :

1. The Court in exercise of powers under Articles 32 and 226 of the Constitution can entertain a petition filed by any interested person in the welfare of the people who are in a disadvantaged position and thus not in a position to knock the doors of the Court. The Court is constitutionally bound to protect the Fundamental Rights of such disadvantaged people and direct the State to fulfil its constitutional promises.
2. When the issues of public importance, enforcement of the fundamental rights of large number of people vis-a-vis the constitutional duties and functions of the State are raised, the court treat a letter or a telegram as a PIL. In such cases, the court relaxes the procedural laws and also the law relating to pleadings.
3. Whenever injustice is meted out to a large number of people, the court will not hesitate to step in to invoke Articles 14 and 21 of the Constitution of India as well as the International Conventions on Human Rights which provide for a reasonable and fair trial.
4. The common rule of *locus standi* is relaxed so as to enable the court to look into the grievances complained on behalf of the poor, deprived, illiterate and the disabled who cannot vindicate the legal wrong or legal injury caused to them for violation of any constitutional or legal right.
5. When the Court is *prima facie* satisfied about violation of any constitutional right of a group of people belonging to the disadvantaged category, it may not allow the State or the Government from raising the question as to the maintainability of the petition.
6. Although procedural laws apply on PIL cases, the question as to whether the principles of res judicata[4] or principles analogous thereto would apply depend on the nature of the petition and also facts and circumstances of the case.

7. The dispute between two warring groups purely in the realm of private law would not be allowed to be agitated as a PIL.
8. However, in an appropriate case, although the petitioner might have moved a Court in his private interest and for redressal of the personal grievances, the Court in furtherance of the public interest may treat it necessary to enquire into the state of affairs of the subject of litigation in the interest of justice.
9. The Court in special situations may appoint Commission or other bodies for the purpose of investigating into the allegations and finding out facts. It may also direct management of a public institution taken over by such Commission.
10. The Court will not ordinarily transgress into a policy. It shall also take utmost care not to transgress its jurisdiction while purporting to protect the rights of the people from being violated.
11. The Court would ordinarily not step out of the known areas of judicial review. The High Court although may pass an order for doing complete justice to the parties, it does not have a power akin to Article 142 of the Constitution of India.
12. Ordinarily the High Court should not entertain a writ petition by way of PIL questioning constitutionality or validity of a statute or a statutory rule.

GUIDELINES FOR ADMITTING PIL

The PIL has now come to occupy an important field in the administration of law. It should not be allowed to become 'Publicity Interest Litigation' or 'Politics Interest Litigation' or 'Private Interest Litigation' or 'Paisa Interest Litigation' or 'Middle-class Interest Litigation' (MIL).

The Supreme Court, in this context, observed: "PIL is not a pill or a panacea for all wrongs. It was essentially meant to protect basic human rights of the weak and the disadvantaged and was a procedure which was innovated where a public-spirited person files a petition in effect on behalf of such persons who on account of poverty, helplessness or economic and social disabilities could not approach the court for relief. There have been, in recent times increasingly instances of abuse of PIL. Therefore, there is a need to re-emphasise the parameters within which PIL can be resorted to by a petitioner and entertained by the court."[5]

Therefore, the Supreme Court laid down the following guidelines for checking the misuse of the PIL[6] :

1. The court must encourage genuine and bona fide PIL and effectively discourage and curb the PIL field for extraneous considerations.
2. Instead of every individual Judge devising his own procedure for dealing with PIL, it would be appropriate for each High Court to properly formulate rules for encouraging the genuine PIL filed and discouraging PIL filed with oblique motives.
3. The Court should *prima facie* verify the credentials of the petitioner before entertaining the PIL.
4. The Court shall be *prima facie* satisfied regarding the correctness of the contents of petition before entertaining the PIL.
5. The Court should be fully satisfied that substantial public interest is involved before entertaining the petition.
6. The Court should ensure that the petition which involves larger public interest, gravity and urgency must be given priority over other petitions.

7. The Court before entertaining the PIL must ensure that the PIL is aimed at redressal of genuine public harm and public injury. The Court should also ensure that there is no personal gain, private motive or oblique motive behind filing PIL.
8. The Court should also ensure that the petition filed by busybodies for extraneous and ulterior motives must be discouraged by imposing exemplary costs or adopting similar novel methods to curb frivolous petitions and the petitions filed for extraneous considerations.

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PART-IV
STATE GOVERNMENT

30. Governor
31. Chief Minister
32. State Council of Ministers
33. State Legislature
34. High Court
35. Tribunals
36. Subordinate Courts
37. Special Provisions for Some States

30 Governor

The Constitution of India envisages the same pattern of government in the states as that for the Centre, that is, a parliamentary system. Part VI of the Constitution deals with the government in the states.

Articles 153 to 167 in Part VI of the Constitution deal with the state executive. The state executive consists of the governor, the chief minister, the council of ministers and the advocate general of the state. Thus, there is no office of vice-governor (in the state) like that of Vice-President at the Centre.

The governor is the chief executive head of the state. But, like the president, he is a nominal executive head (titular or constitutional head). The governor also acts as an agent of the central government. Therefore, the office of governor has a dual role.

Usually, there is a governor for each state, but the 7th Constitutional Amendment Act of 1956 facilitated the appointment of the same person as a governor for two or more states.

APPOINTMENT OF GOVERNOR

The governor is neither directly elected by the people nor indirectly elected by a specially constituted electoral college as is the case with the president. He is appointed by the president by warrant under his hand and seal. In a way, he is a nominee of the Central government. But, as held by the Supreme Court in 1979, the office of governor of a state is not an employment under the Central government. It is an independent constitutional office and is not under the control of or subordinate to the Central government.

The Draft Constitution provided for the direct election of the governor on the basis of universal adult suffrage. But the Constituent Assembly opted for the present system of appointment of governor by the president because of the following reasons[1] :

1. The direct election of the governor is incompatible with the parliamentary system established in the states.
2. The mode of direct election is more likely to create conflicts between the governor and the chief minister.
3. The governor being only a constitutional (nominal) head, there is no point in making elaborate arrangements for his election and spending huge amount of money.
4. The election of a governor would be entirely on personal issues. Hence, it is not in the national interest to involve a large number of voters in such an election.
5. An elected governor would naturally belong to a party and would not be a neutral person and an impartial head.
6. The election of governor would create separatist tendencies and thus affect the political stability and unity of the country.
7. The system of presidential nomination enables the Centre to maintain its control over the states.
8. The direct election of the governor creates a serious problem of leadership at the time of a general election in the state.
9. The chief minister would like his nominee to contest for governorship. Hence, a second rate man of the ruling party is elected as governor.

Therefore, the American model, where the Governor of a state is directly elected, was dropped and the Canadian model, where the governor of a province (state) is appointed by the Governor-General (Centre), was accepted in the Constituent Assembly.

The Constitution lays down only two qualifications for the appointment of a person as a governor. These are:

1. He should be a citizen of India.

2. He should have completed the age of 35 years.

Additionally, two conventions have also developed in this regard over the years. First, he should be an outsider, that is, he should not belong to the state where he is appointed, so that he is free from the local politics. Second, while appointing the governor, the president is required to consult the chief minister of the state concerned, so that the smooth functioning of the constitutional machinery in the state is ensured. However, both the conventions have been violated in some of the cases.

CONDITIONS OF GOVERNOR'S OFFICE

The Constitution lays down the following conditions for the the governor's office:

1. He should not be a member of either House of Parliament or a House of the state legislature. If any such person is appointed as governor, he is deemed to have vacated his seat in that House on the date on which he enters upon his office as the governor.
2. He should not hold any other office of profit.
3. He is entitled without payment of rent to the use of his official residence (the *Raj Bhavan*).
4. He is entitled to such emoluments, allowances and privileges as may be determined by Parliament.
5. When the same person is appointed as the governor of two or more states, the emoluments and allowances payable to him are shared by the states in such proportion as determined by the president.
6. His emoluments and allowances cannot be diminished during his term of office.

In 2018, the Parliament has increased the salary of the governor from ₹1.10 lakh to ₹3.50 lakh per month.[2]

Like the President, the governor is also entitled to a number of privileges and immunities. He enjoys personal immunity from legal liability for his official acts. During his term of office, he is immune from any criminal proceedings, even in respect of his personal acts. He cannot be arrested or imprisoned. However, after giving two months' notice, civil proceedings can be instituted against him during his term of office in respect of his personal acts.

Before entering upon his office, the governor has to make and subscribe to an oath or affirmation. In his oath, the governor swears:

(a) to faithfully execute the office;
(b) to preserve, protect and defend the Constitution and the law; and
(c) to devote himself to the service and well-being of the people of the state.

The oath of office to the governor is administered by the chief justice of the concerned state high court and in his absence, the senior-most judge of that court available.

Every person discharging the functions of the governor also undertakes the similar oath or affirmation.

TERM OF GOVERNOR'S OFFICE

A governor holds office for a term of five years from the date on which he enters upon his office. However, this term of five years is subject to the pleasure of the President. Further, he can resign at any time by addressing a resignation letter to the President.

The Supreme Court held that the pleasure of the President is not justifiable. The governor has no security of tenure and no fixed term of office. He may be removed by the President at any time.[3]

The Constitution does not lay down any grounds upon which a governor may be removed by the President. Hence, the National Front Government headed by V.P. Singh (1989) asked all the governors to resign as they were appointed by the Congress government. Eventually, some of the governors were replaced and some were allowed to continue. The same thing was repeated in 1991, when the Congress Government headed by P.V. Narasimha Rao changed fourteen governors appointed by the V.P. Singh and Chandra Sekhar governments.

The President may transfer a Governor appointed to one state to another state for the rest of the term. Further, a Governor whose term has expired may be reappointed in the same state or any other state.

A governor can hold office beyond his term of five years until his successor assumes charge. The underlying idea is that there must be a governor in the state and there cannot be an interregnum.

The President can make such provision as he thinks fit for the discharge of the functions of the governor in any contingency not provided for in the Constitution, for example, the death of a sitting governor. Thus, the chief justice of the concerned state high court may be appointed temporarily to discharge the functions of the governor of that state.

POWERS AND FUNCTIONS OF GOVERNOR

A governor possesses executive, legislative, financial and judicial powers more or less analogous to the President of India. However, he has no diplomatic, military or emergency powers like the president.

The powers and functions of the governor can be studied under the following heads:

1. Executive powers.
2. Legislative powers.
3. Financial powers.
4. Judicial powers.

Executive Powers

The executive powers and functions of the Governor are:

1. All executive actions of the government of a state are formally taken in his name.
2. He can make rules specifying the manner in which the Orders and other instruments made and executed in his name shall be authenticated.
3. He can make rules for more convenient transaction of the business of a state government and for the allocation among the ministers of the said business.
4. He appoints the chief minister and other ministers. They also hold office during his pleasure. There should be a Tribal Welfare minister in the states of Chattisgarh, Jharkhand, Madhya Pradesh and Odisha appointed by him. The state of Bihar was excluded from this provision by the 94th Amendment Act of 2006.
5. He appoints the advocate general of a state and determines his remuneration. The advocate general holds office during the pleasure of the governor.
6. He appoints the state election commissioner and determines his conditions of service and tenure of office. However, the state election commissioner can be removed only in like manner and on the like grounds as a judge of a high court.
7. He appoints the chairman and members of the state public service commission. However, they can be removed only by the president and not by a governor.
8. He can seek any information relating to the administration of the affairs of the state and proposals for legislation from the chief minister.

9. He can require the chief minister to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.
10. He can recommend the imposition of constitutional emergency in a state to the president. During the period of President's rule in a state, the governor enjoys extensive executive powers as an agent of the President.
11. He acts as the chancellor of universities in the state. He also appoints the vicechancellors of universities in the state.

Legislative Powers

A governor is an integral part of the state legislature. In that capacity, he has the following legislative powers and functions:

1. He can summon or prorogue the state legislature and dissolve the state legislative assembly.
2. He can address the state legislature at the commencement of the first session after each general election and the first session of each year.
3. He can send messages to the house or houses of the state legislature, with respect to a bill pending in the legislature or otherwise.
4. He can appoint any member of the State legislative assembly to preside over its proceedings when the offices of both the Speaker and the Deputy Speaker fall vacant. Similarly, he can appoint any member of the state legislature council to preside over its proceedings when the offices of both Chairman and Deputy Chairman fall vacant.
5. He nominates one-sixth of the members of the state legislative council from amongst persons having special knowledge or practical experience in literature, science, art, cooperative movement and social service.
6. He can nominate one member to the state legislature assembly from the Anglo-Indian Community.
7. He decides on the question of disqualification of members of the state legislature in consultation with the Election Commission.
8. When a bill is sent to the governor after it is passed by state legislature, he can:
   (a) Give his assent to the bill, or
   (b) Withhold his assent to the bill, or
   (c) Return the bill (if it is not a money bill) for reconsideration of the state legislature. However, if the bill is passed again by the state

legislature with or without amendments, the governor has to give his assent to the bill, or

(d) Reserve the bill for the consideration of the president. In one case such reservation is obligatory, that is, where the bill passed by the state legislature endangers the position of the state high court. In addition, the governor can also reserve the bill if it is of the following nature:[4]
   (i) *Ultra-vires,* that is, against the provisions of the Constitution.
   (ii) Opposed to the Directive Principles of State Policy.
   (iii) Against the larger interest of the country.
   (iv) Of grave national importance.
   (v) Dealing with compulsory acquisition of property under Article the Constitution.

9. He can promulgate ordinances when the state legislature is not in session. These ordinances must be approved by the state legislature within six weeks from its reassembly. He can also withdraw an ordinance anytime. This is the most important legislative power of the governor.
10. He lays the reports of the State Finance Commission, the State Public Service Commission and the Comptroller and Auditor-General relating to the accounts of the state, before the state legislature.

Financial Powers

The financial powers and functions of the governor are:

1. He sees that the Annual Financial Statement (state budget) is laid before the state legislature.
2. Money bills can be introduced in the state legislature only with his prior recommendation.
3. No demand for a grant can be made except on his recommendation.
4. He can make advances out of the Contingency Fund of the state to meet any unforeseen expenditure.
5. He constitutes a finance commission after every five years to review the financial position of the panchayats and the municipalities.

Judicial Powers

The judicial powers and functions of the governor are:

1. He can grant pardons, reprives, respites and remissions of punishment or suspend, remit and commute the sentence of any person convicted of any offence against any law relating to a matter to which the executive power of the state extends.[5]

2. He is consulted by the president while appointing the judges of the concerned state high court.
3. He makes appointments, postings and promotions of the district judges in consultation with the state high court.
4. He also appoints persons to the judicial service of the state (other than district judges) in consultation with the state high court and the State Public Service Commission.

Now, we will study in detail the three important powers of the governor (veto power, ordinance-making power and pardoning power) by comparing them with that of the President.

Table 30.1 *Comparing Veto Powers of President and Governor*

President	Governor
With Regard to Ordinary Bills	**With Regard to Ordinary Bills**
Every ordinary bill, after it is passed by both the Houses of the Parliament either singly or at a joint sitting, is presented to the President for his assent. He has three alternatives: 1. He may give his assent to the bill, the bill then becomes an act. 2. He may withhold his assent to the bill, the bill then ends and does not become an act. 3. He may return the bill for reconsideration of the Houses. If the bill is passed by both the Houses again with or without amendments and presented to the President for his assent, the president must give his assent to the bill. Thus the president enjoys only a 'suspensive veto'.	Every ordinary bill, after it is passed by the legislative assembly in case of a unicameral legislature or by both the Houses in case of a bicameral legislature either in the first instance or in the second instance, is presented to the governor for his assent. He has four alternatives: 1. He may give his assent to the bill, the bill then becomes an act. 2. He may withhold his assent to the bill, the bill then ends and does not become an act. 3. He may return the bill for reconsideration of the House or Houses. If the bill is passed by the House or Houses again with or without amendments and presented to the governor for his assent, the governor must give his assent to the bill. Thus, the governor enjoys only a 'suspensive veto'. 4. He may reserve the bill for the consideration of the President.
When a state bill is reserved by the	When the governor reserves a bill

governor for the consideration of the President, the President has three alternatives: (a) He may give his assent to the bill, the bill then becomes an act. (b) He may withhold his assent to the bill, the bill then ends and does not become an Act. (c) He may return the bill for reconsideration of the House or Houses of the state legislature. When a bill is so returned, the House or Houses have to reconsider it within six months. If the bill is passed by the House or Houses again with or without amendments and presented to the president for his assent, the president is not bound to give his assent to the bill. He may give his assent to such a bill or withhold his assent.	for the consideration of the President, he will not have any further role in the enactment of the bill. If the bill is returned by the President for the reconsideration of the House or Houses and is passed again, the bill must be presented again for the presidential assent only. If the President gives his assent to the bill, it becomes an act. This means that the assent of the Governor is no longer required.
Every money bill after it is passed by the Parliament, is presented to the President for his assent. He has two alternatives: 1. He may give his assent to the bill, the bill then becomes an act. 2. He may withhold his assent to the bill, the bill then ends and does not become an act.	Every money bill, after it is passed by the state legislature (unicameral or bicameral), is presented to the governor for his assent. He has three alternatives: 1. He may give his assent to the bill, the bill then becomes an act. 2. He may withhold his assent to the bill, the bill then ends and does not become an act. 3. He may reserve the bill for the consideration of the president.
Thus, the President cannot return a money bill for the reconsideration of the Parliament. Normally, the	Thus, the governor cannot return a money bill for the reconsideration of the state legislature. Normally, the

president gives his assent to a money bill as it is introduced in the Parliament with his previous permission. When a Money Bill is reserved by the Governor for the consideration of the President, the President has two alternatives: (a) He may give his assent to the bill, the bill then becomes an Act. (b) He may withhold his assent to the bill, the bill then ends and does not become an act. Thus, the President cannot return a money bill for the reconsideration of the state legislature (as in the case of the Parliament).	governor gives his assent to a money bill as it is introduced in the state legislature with his previous permission. When the governor reserves a money bill for the consideration of the President, he will not have any further role in the enactment of the bill. If the President gives his assent to the bill, it becomes an Act. This means that the assent of the governor is no longer required.

Table 30.2 *Comparing Ordinance-Making Power of President and Governor*

President	Governor
1. He can promulgate an ordinance only when both the Houses of Parliament are not in session or when either of the two Houses of Parliament is not in session. The second provision implies that an ordinance can also be promulgated by the president when only one House is in session because a law can be passed by both the Houses and not by one House alone.	1. He can promulgate an ordinance only when the legislative assembly (in case of a unicameral legislature) is not in session or (in case of a bi-cameral legislature) when both the Houses of the state legislature are not in session or when either of the two Houses of the state legislature is not in session. The last provision implies that an ordinance can be promulgated by the governor when only one House (in case of a bicameral legislature) is in session because a law can be passed

	by both the Houses and not by one House alone.
2. He can promulgate an ordinance only when he is satisfied that circumstances exist which render it necessary for him to take immediate action.	2. He can promulgate an ordinance only when he is satisfied that circumstances exist which render it necessary for him to take immediate action.
3. His ordinance-making power is co-extensive with the legislative power of the Parliament. This means that he can issue ordinances only on those subjects on which the Parliament can make laws.	3. His ordinance-making power is co-extensive with the legislative power of the state legislature. This means that he can issue ordinances only on those subjects on which the state legislature can make laws.
4. An ordinance issued by him has the same force and effect as an act of the Parliament.	4. An ordinance issued by him has the same force and effect as an act of the state legislature.
5. An ordinance issued by him is subject to the same limitations as an act of Parliament. This means that an ordinance issued by him will be invalid to the extent it makes any provision which the Parliament cannot make.	5. An ordinance issued by him is subject to the same limitations as an act of the state legislature. This means that an ordinance issued by him will be invalid to the extent it makes any provision which the state legislature cannot make.
6. He can withdraw an ordinance at any time.	6. He can withdraw an ordinance at any time.
7. His ordinance-making power is not a discretionary power. This means that he can promulgate or withdraw an ordinance only on the advice of the council of ministers of ministers headed by the prime minister.	7. His ordinance-making power is not a discretionary power. This means that he can promulgate or withdraw an ordinance only on the advice of the council headed by the chief minister.
8. An ordinance issued by him should be laid before both the Houses of Parliament when it reassembles.	8. An ordinance issued by him should be laid before the legislative assembly or both the Houses of the state legislature

	(in case of a bicameral legislature) when it reassembles.
9. An ordinance issued by him ceases to operate on the expiry of six weeks from the reassembly of Parliament. It may cease to operate even earlier than the prescribed six weeks, if both the Houses of Parliament passes resolutions disapproving it.	9. An ordinance issued by him ceases to operate on the expiry of six weeks from the reassembly of the state legislature. It may cease to operate even earlier than the prescribed six weeks, if a resolution disapproving it is passed by the legislative assembly and is agreed to by the legislative council (in case of a bicameral legislature).
10. He needs no instruction for making an ordinance.	10. He cannot make an ordinance without the instructions from the President in three cases: (a) If a bill containing the same provisions would have required the previous sanction of the President for its introduction into the state legislature. (b) If he would have deemed it necessary to reserve a bill containing the same provisions for the consideration of the President. (c) If an act of the state legislature containing the same provisions would have been invalid without receiving the President's assent.

Table 30.3 *Comparing Pardoning Powers of President and Governor*

President	Governor
1. He can pardon, reprive, respite, remit, suspend or commute the	1. He can pardon, reprieve, respite, remit, suspend or

punishment or sentence of any person convicted of any offence against a Central law.	commute the punishment or sentence of any person convicted of any offence against a state law.
2. He can pardon, reprieve, respite, remit, suspend or commute a death sentence. He is the only authority to pardon a death sentence.	2. He cannot pardon a death sentence. Even if a state law prescribes for death sentence, the power to grant pardon lies with the President and not the governor. But, the governor can suspend, remit or commute a death sentence.
3. He can grant pardon, reprieve, respite, suspension, remission or commutation in respect to punishment or sentence by a court-martial (military court).	3. He does not possess any such power.

CONSTITUTIONAL POSITION OF GOVERNOR

The Constitution of India provides for a parliamentary form of government in the states as in the Centre. Consequently, the governor has been made only a nominal executive, the real executive constitutes the council of ministers headed by the chief minister. In other words, the governor has to exercise his powers and functions with the aid and advise of the council of ministers headed by the chief minister, except in matters in which he is required to act in his discretion (i.e., without the advice of ministers).

In estimating the constitutional position of the governor, particular reference has to be made to the provisions of Articles 154, 163 and 164. These are:

(a) The executive power of the state shall be vested in the governor and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution (Article 154).

(b) There shall be a council of ministers with the chief minister as the head to aid and advise the governor in the exercise of his functions, except in so far as he is required to exercise his functions in his discretion (Article 163).

(c) The council of ministers shall be collectively responsible to the legislative assembly of the state (Article 164). This provision is the foundation of the parliamentary system of government in the state.

From the above, it is clear that constitutional position of the governor differs from that of the president in the following two respects:[6]

1. While the Constitution envisages the possibility of the governor acting at times in his discretion, no such possibility has been envisaged for the President.
2. After the 42nd Constitutional Amendment (1976), ministerial advice has been made binding on the President, but no such provision has been made with respect to the governor.

The Constitution makes it clear that if any question arises whether a matter falls within the governor's discretion or not, the decision of the governor is final and the validity of anything done by him cannot be called in question on the ground that he ought or ought not to have acted in his discretion. The governor has constitutional discretion in the following cases:

1. Reservation of a bill for the consideration of the President.
2. Recommendation for the imposition of the President's Rule in the state.
3. While exercising his functions as the administrator of an adjoining union territory (in case of additional charge).

4. Determining the amount payable by the Government of Assam, Meghalaya, Tripura and Mizoram to an autonomous Tribal District Council as royalty accruing from licenses for mineral exploration[7] .
5. Seeking information from the chief minister with regard to the administrative and legislative matters of the state.

In addition to the above constitutional discretion (i.e., the express discretion mentioned in the Constitution), the governor, like the president, also has situational discretion (i.e., the hidden discretion derived from the exigencies of a prevailing political situation) in the following cases:

1. Appointment of chief minister when no party has a clear-cut majority in the state legislative assembly or when the chief minister in office dies suddenly and there is no obvious successor.
2. Dismissal of the council of ministers when it cannot prove the confidence of the state legislative assembly.
3. Dissolution of the state legislative assembly if the council of ministers has lost its majority.

Table 30.4 *Articles Related to Governor at a Glance*

Article No.	Subject Matter
153.	Governors of states
154.	Executive power of state
155.	Appointment of Governor
156.	Term of office of Governor
157.	Qualifications for appointment as Governor
158.	Conditions of Governor's office
159.	Oath or affirmation by the Governor
160.	Discharge of the functions of the Governor in certain contingencies
161.	Power of the Governor to grant pardons and others
162.	Extent of executive power of state
163.	Council of ministers to aid and advise the Governor
164.	Other provisions as to ministers like appointments, term, salaries, and others
165.	Advocate-General for the state
166.	Conduct of business of the government of a state
167.	Duties of the Chief Minister regarding furnishing of information to the Governor, and so on

174.	Sessions of the state legislature, prorogation and dissolution
175.	Right of the Governor to address and send messages to the house or houses of state legislature
176.	Special address by the Governor
200.	Assent to bills (i.e. assent of the Governor to the bills passed by the state legislature)
201.	Bills reserved by the Governor for consideration of the President
213.	Power of Governor to promulgate ordinances
217.	Governor being consulted by the President in the matter of the appointments of the judges of the High Courts
233.	Appointment of district judges by the Governor
234.	Appointments of persons (other than district judges) to the judicial service of the state by the Governor.

Moreover, the governor has certain special responsibilities to discharge according to the directions issued by the President. In this regard, the governor, though has to consult the council of ministers led by the chief minister, acts finally on his discretion. They are as follows:

1. Maharashtra–Establishment of separate development boards for Vidarbha and Marathwada.
2. Gujarat–Establishment of separate development boards for Saurashtra and Kutch.
3. Nagaland–With respect to law and order in the state for so long as the internal disturbance in the Naga Hills-TUensang Area continues.
4. Assam–With respect to the administration of tribal areas.
5. Manipur–Regarding the administration of the hill areas in the state.
6. Sikkim–For peace and for ensuring social and economic advancement of the different sections of the population.
7. Arunachal Pradesh–With respect to law and order in the state.
8. Karnataka - Establishment of a separate development board for Hyderabad-Karnataka region[8] .

Thus, the Constitution has assigned a dual role to the office of a governor in the Indian federal system. He is the constitutional head of the state as well as the representative of the Centre (i.e., President).

NOTES AND REFERENCES

1. *Constituent Assembly Debates,* Volume IV, pp. 588–607.
2. Vide the Finance Act, 2018, with effect from 1st January, 2016. This Act amended the Governor's (Emoluments, Allowances and Privileges) Act, 1982.
3. *Surya Narain* v *Union of India,* (1982).
4. Soli Sorabji, *The Governor: Sage or Saboteur,* Roli Books (New Delhi), 1985, p. 25.
5. For the meanings of these legal terms, see 'Pardoning Power of the President' under Chapter 17.
6. M.P. Jain, *Indian Constitutional Law*, Wadhwa, Fourth Ed, p. 186.
7. Paragraph 9(2) of the Sixth Schedule says: 'If any dispute arises as to the share of such royalties to be made over to a district council, it shall be referred to the governor for determination and the amount determined by the governor in his discretion shall be deemed to be the amount payable to the district council and the decision of the governor shall be final'. The Sixth Schedule contains the provisions as to the administration of tribal areas in the States of Assam, Meghalaya, Tripura and Mizoram.
8. This provision was added by the 98th Constitutional Amendment Act of 2012.

31 Chief Minister

In the scheme of parliamentary system of government provided by the Constitution, the governor is the nominal executive authority (*de jure* executive) and the Chief Minister is the real executive authority (*de facto* executive). In other words, the governor is the head of the state while the Chief Minister is the head of the government. Thus the position of the Chief Minister at the state level is analogous to the position of prime minister at the Centre.

APPOINTMENT OF CHIEF MINISTER

The Constitution does not contain any specific procedure for the selection and appointment of the Chief Minister. Article 164 only says that the Chief Minister shall be appointed by the governor. However, this does not imply that the governor is free to appoint any one as the Chief Minister. In accordance with the conventions of the parliamentary system of government, the governor has to appoint the leader of the majority party in the state legislative assembly as the Chief Minister. But, when no party has a clear majority in the assembly, then the governor may exercise his personal discretion in the selection and appointment of the Chief Minister. In such a situation, the governor usually appoints the leader of the largest party or coalition in the assembly as the Chief Minister and ask him to seek a vote of confidence in the House within a month.[1]

The governor may have to exercise his individual judgement in the selection and appointed of the Chief Minister when the Chief Minister in office dies suddenly and there is no obvious successor. However, on the death of a Chief Minister, the ruling party usually elects a new leader and the governor has no choice but to appoint him as Chief Minister.

The Constitution does not require that a person must prove his majority in the legislative assembly before he is appointed as the Chief Minister. The governor may first appoint him as the Chief Minister and then ask him to prove his majority in the legislative assembly within a reasonable period. This is what has been done in a number of cases[2] .

A person who is not a member of the state legislature can be appointed as Chief Minister for six months, within which time, he should be elected to the state legislature, failing which he ceases to be the Chief Minister.[3]

According to the Constitution, the Chief Minister may be a member of any of the two Houses of a state legislature. Usually Chief Ministers have been selected from the Lower House (legislative assembly), but, on a number of occasions, a member of the Upper House (legislative council) has also been appointed as Chief Minister.[4]

OATH, TERM AND SALARY

Before the Chief Minister enters his office, the governor administers to him the oaths of office and secrecy.[5] In his oath of office, the Chief Minister swears:

1. to bear true faith and allegiance to the Constitution of India,
2. to uphold the sovereignty and integrity of India,
3. to faithfully and conscientiously discharge the duties of his office, and
4. to do right to all manner of people in accordance with the Constitution and the law, without fear or favour, affection or ill-will.

In his oath of secrecy, the Chief Minister swears that he will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his consideration or becomes known to him as a state minister except as may be required for the due discharge of his duties as such minister.

The term of the Chief Minister is not fixed and he holds office during the pleasure of the governor. However, this does not mean that the governor can dismiss him at any time. He cannot be dismissed by the governor as long as he enjoys the majority support in the legislative assembly.[6] But, if he loses the confidence of the assembly, he must resign or the governor can dismiss him.

The salary and allowances of the Chief Minister are determined by the state legislature. In addition to the salary and allowances, which are payable to a member of the state legislature, he gets a sumptuary allowance, free accommodation, travelling allowance, medical facilities, etc.

POWERS AND FUNCTIONS OF CHIEF MINISTER

The powers and functions of the Chief Minister can be studied under the following heads:

In Relation to Council of Ministers

The Chief Minister enjoys the following powers as head of the state council of ministers:

(a) The governor appoints only those persons as ministers who are recommended by the Chief Minister.
(b) He allocates and reshuffles the portfolios among ministers.
(c) He can ask a minister to resign or advise the governor to dismiss him in case of difference of opinion.
(d) He presides over the meetings of the council of ministers and influences its decisions.
(e) He guides, directs, controls and coordinates the activities of all the ministers.
(f) He can bring about the collapse of the council of ministers by resigning from office. Since the Chief Minister is the head of the council of ministers, his resignation or death automatically dissolves the council of ministers. The resignation or death of any other minister, on the other hand, merely creates a vacancy, which the Chief Minister may or may not like to fill.

In Relation to the Governor

The Chief Minister enjoys the following powers in relation to the governor:

(a) He is the principal channel of communication between the governor and the council of ministers.[7] It is the duty of the Chief Minister:
  (i) to communicate to the Governor of the state all decisions of t council of ministers relating to the administration of the affairs the state and proposals for legislation;
  (ii) to furnish such information relating to the administration of t affairs of the state and proposals for legislation as the goverr may call for; and
  (iii) if the governor so requires, to submit for the consideration of t

council of ministers any matter on which a decision has be taken by a minister but which has not been considered by t council.

(b) He advises the governor with regard to the appointment of important officials like advocate general, chairman and members of the state public service commission, state election commissioner, and so on.

In Relation to State Legislature

The Chief Minister enjoys the following powers as the leader of the house:

(a) He advises the governor with regard to the summoning and proroguing of the sessions of the state legislature.
(b) He can recommend the dissolution of the legislative assembly to the governor at any time.
(c) He announces the government policies on the floor of the house.

Other Powers and Functions

In addition, the Chief Minister also performs the following functions:

(a) He is the chairman of the State Planning Board.
(b) He acts as a vice-chairman of the concerned zonal council by rotation, holding office for a period of one year at a time.[8]
(c) He is a member of the Inter-State Council and the Governing Council of NITI Aayog, both headed by the prime minister.
(d) He is the chief spokesman of the state government.
(e) He is the crisis manager-in-chief at the political level during emergencies.
(f) As a leader of the state, he meets various sections of the people and receives memoranda from them regarding their problems, and so on.
(g) He is the political head of the services.

Thus, he plays a very significant and highly crucial role in the state administration. However, the discretionary powers enjoyed by the governor reduces to some extent the power, authority, influence, prestige and role of the Chief Minister in the state administration.

RELATIONSHIP WITH THE GOVERNOR

The following provisions of the Constitution deal with the relationship between the governor and the Chief Minister:

1. *Article 163:* There shall be a council of ministers with the Chief Minister as the head to aid and advise the governor on the exercise of his functions, except in so far as he is required to exercise his functions or any of them in his discretion.
2. *Article 164:*
   (a) The Chief Minister shall be appointed by the governor and other ministers shall be appointed by the governor on the advise of the Chief Minister;
   (b) The ministers shall hold office during the pleasure of the governor; and
   (c) The council of ministers shall be collectively responsible to the legislative assembly of the state.
3. *Article 167:* It shall be the duty of the Chief Minister:
   (a) to communicate to the governor of the state all decisions of the council of ministers relating to the administration of the affairs of the state and proposals for legislation;
   (b) to furnish such information relating to the administration of the affairs of the state and proposals for legislation as the governor may call for; and
   (c) if the governor so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

Table 31.1 *Articles Related to Chief Minister at a Glance*

Article No.	Subject Matter
163.	Council of Ministers to aid and advise Governor
164.	Other provisions as to Ministers
166.	Conduct of business of the Government of a State
167.	Duties of Chief Minister as respects the furnishing of information to Governor, etc.

NOTES AND REFERENCES

1. For example, the governors of Tamil Nadu (1951), Rajasthan (1967), and Haryana (1982) invited the leader of the largest party to form the ministry. The governors of Punjab (1967), West Bengal (1970), and Maharashtra (1978), on the other hand, invited the leader of the coalition to form the ministry.
2. For example, the governor of J & K (Jagmohan) appointed G.M. Shah as the Chief Minister and asked him to prove his majority on the floor of the House within a month. He proved his majority. Similarly, the Governor of Andhra Pradesh (Ram Lal) appointed Bhasker Rao as the Chief Minister and gave him one month to prove his majority on the floor of the House. However, he could not prove his majority.
3. For example, Bansilal and S.B. Chavan were appointed as Chief Ministers of Haryana and Maharashtra respectively, even though they were not members of the state legislature. Subsequently, they were elected to the state legislature.
4. For example, C. Rajagopalachari in Madras (now Tamil Nadu) in 1952, Morarji Desai in Bombay (now Maharashtra) in 1952, C.B. Gupta in UP in 1960 and B.P. Mandal in Bihar in 1968 were appointed as Chief Ministers, while they were members of the state legislative council.
5. The form of oath of office and secrecy for the Chief Minister is similar to that for any state minister. See Chapter 32.
6. This was ruled by the Supreme Court in *S.R. Bommai* v. *Union of India,* (1994). However, there have been many violations of this rule, whereby the governors have dismissed the Chief Ministers without giving them an opportunity to prove their majority in the legislative assembly.

7. Article 167 specifically deals with this function of the Chief Minister.
8. Union home minister is the chairman of all the zonal councils.

32 State Council of Ministers

As the Constitution of India provides for a parliamentary system of government in the states on the Union pattern, the council of ministers headed by the chief minister is the real executive authority in the politico-administrative system of a state. The council of ministers in the states is constituted and function in the same way as the council of ministers at the Centre.

The principles of parliamentary system of government are not detailed in the Constitution; but two Articles (163 and 164) deal with them in a broad, sketchy and general manner. Article 163 deals with the status of the council of ministers while Article 164 deals with the appointment, tenure, responsibility, qualifications, oath and salaries and allowances of the ministers.

CONSTITUTIONAL PROVISIONS

Article 163–Council of Ministers to aid and advise Governor

1. There shall be a Council of Ministers with the Chief Minister as the head to aid and advise the Governor in the exercise of his functions, except in so far as he is required to exercise his functions in his discretion.
2. If any question arises whether a matter falls within the Governor's discretion or not, decision of the Governor shall be final, and the validity of anything done by the Governor shall not be called in question on the ground that he ought or ought not to have acted in his discretion.
3. The advice tendered by Ministers to the Governor shall not be inquired into in any court.

Article 164–Other Provisions as to Ministers

1. The Chief Minister shall be appointed by the Governor and the other Ministers shall be appointed by the Governor on the advice of the Chief Minister. However, in the states of Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha, there shall be a Minister in charge of tribal welfare who may in addition be in charge of the welfare of the scheduled castes and backward classes or any other work. The state of Bihar was excluded from this provision by the 94th Amendment Act of 2006.
2. The total number of ministers, including the chief minister, in the council of ministers in a state shall not exceed 15 per cent of the total strength of the legislative assembly of that state. But, the number of ministers, including the chief minister, in a state shall not be less than 12. This provision was added by the 91st Amendment Act of 2003.
3. A member of either House of state legislature belonging to any political party who is disqualified on the ground of defection shall also be disqualified to be appointed as a

minister. This provision was also added by the 91st Amendment Act of 2003.

4. The ministers shall hold office during the pleasure of the Governor.
5. The council of ministers shall be collectively responsible to the state Legislative Assembly.
6. The Governor shall administer the oaths of office and secrecy to a minister.
7. A minister who is not a member of the state legislature for any period of six consecutive months shall cease to be a minister.
8. The salaries and allowances of ministers shall be determined by the state legislature.

Article 166–Conduct of Business of the Government of a State

1. All executive action of the Government of a State shall be expressed to be taken in the name of the Governor.
2. Orders and other instruments made and executed in the name of the Governor shall be authenticated in such manner as may be specified in rules to be made by the Governor. Further, the validity of an order or instrument which is so authenticated shall not be called in question on the ground that it is not an order or instrument made or executed by the Governor.
3. The Governor shall make rules for the more convenient transaction of the business of the government of the state, and for the allocation among ministers of the said business in so far as it is not business with respect to which the Governor is required to act in his discretion.

Article 167–Duties of Chief Minister

It shall be the duty of the Chief Minister of each state

1. To communicate to the governor of the state all decisions of the council of ministers relating to the administration of the affairs of the state and proposals for legislation

2. To furnish such information relating to the administration of the affairs of the state and proposals for legislation as the governor may call for
3. If the governor so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council

Article 177–Rights of Ministers as Respects the Houses

Every minister shall have the right to speak and take part in the proceedings of the Assembly (and also the Council where it exists) and any Committee of the State Legislature of which he may be named a member. But he shall not be entitled to vote.

NATURE OF ADVICE BY MINISTERS

Article 163 provides for a council of ministers with the chief minister at the head to aid and advise the governor in the exercise of his functions except the discretionary ones. If any question arises whether a matter falls within the governor's discretion or not, the decision of the governor is final and the validity of anything done by him cannot be called in question on the ground that he ought or ought not to have acted in his discretion. Further, the nature of advice tendered by ministers to the governor cannot be enquired by any court. This provision emphasises the intimate and the confidential relationship between the governor and the ministers.

In 1971, the Supreme Court ruled that a council of ministers must always exist to advise the governor, even after the dissolution of the state legislative assembly or resignation of a council of ministers. Hence, the existing ministry may continue in the office until its successor assumes charge. Again in 1974, the Court clarified that except in spheres where the governor is to act in his discretion, the governor has to act on the aid and advice of the council of ministers in the exercise of his powers and functions. He is not required to act personally without the aid and advice of the council of ministers or against the aid and advice of the council of ministers. Wherever the Constitution requires the satisfaction of the governor, the satisfaction is not the personal satisfaction of the governor but it is the satisfaction of the council of ministers.

APPOINTMENT OF MINISTERS

The chief minister is appointed by the governor. The other ministers are appointed by the governor on the advice of the chief minister. This means that the governor can appoint only those persons as ministers who are recommended by the chief minister.

But, there should be a tribal welfare minister in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha[1]. Originally, this provision was applicable to Bihar, Madhya Pradesh and Odisha. The 94th Amendment Act of 2006 freed Bihar from the obligation of having a tribal welfare minister as there are no Scheduled Areas in Bihar now and the fraction of population of the Scheduled Tribes is very small. The same Amendment also extended the above provision to the newly formed states of Chhattisgarh and Jharkhand.

Usually, the members of the state legislature, either the legislative assembly or the legislative council, are appointed as ministers. A person who is not a member of either House of the state legislature can also be appointed as a minister. But, within six months, he must become a member (either by election or by nomination) of either House of the state legislature, otherwise, he ceases to be a minister.

A minister who is a member of one House of the state legislature has the right to speak and to take part in the proceedings of the other House. But, he can vote only in the House of which he is a member.

OATH AND SALARY OF MINISTERS

Before a minister enters upon his office, the governor administers to him the oaths of office and secrecy. In his oath of office, the minister swears:

1. to bear true faith and allegiance to the Constitution of India,
2. to uphold the sovereignty and integrity of India,
3. to faithfully and conscientiously discharge the duties of his office, and
4. to do right to all manner of people in accordance with the Constitution and the law, without fear or favour, affection or ill-will.

In his oath of secrecy, the minister swears that he will not directly or indirectly communicate or reveal to any person(s) any matter that is brought under his consideration or becomes known to him as a state minister except as may be required for the due discharge of his duties as such minister.

The salaries and allowances of ministers are determined by the state legislature from time to time. A minister gets the salary and allowances which are payable to a member of the state legislature. Additionally, he gets a sumptuary allowance (according to his rank), free accommodation, travelling allowance, medical facilities, etc.

RESPONSIBILITY OF MINISTERS

Collective Responsibility

The fundamental principle underlying the working of parliamentary system of government is the principle of collective responsibility. Article 164 clearly states that the council of ministers is collectively responsible to the legislative assembly of the state. This means that all the ministers own joint responsibility to the legislative assembly for all their acts of omission and commission. They work as a team and swim or sink together. When the legislative assembly passes a no-confidence motion against the council of ministers, all the ministers have to resign including those ministers who are from the legislative council[2]. Alternatively, the council of ministers can advice the governor to dissolve the legislative assembly on the ground that the House does not represent the views of the electorate faithfully and call for fresh elections. The governor may not oblige the council of ministers which has lost the confidence of the legislative assembly.

The principle of collective responsibility also mean that the cabinet decisions bind all cabinet ministers (and other ministers) even if they deferred in the cabinet meeting. It is the duty of every minister to stand by the cabinet decisions and support them both within and outside the state legislature. If any minister disagrees with a cabinet decision and is not prepared to defend it, he must resign. Several ministers have resigned in the past owing to their differences with the cabinet.

Individual Responsibility

Article 164 also contains the principle of individual responsibility. It states that the ministers hold office during the pleasure of the governor. This means that the governor can remove a minister at a time when the council of ministers enjoys the confidence of the legislative assembly. But, the governor can remove a minister only on the advice of the chief minister. In case of difference of opinion or dissatisfaction with the performance of a minister, the chief

minister can ask him to resign or advice the governor to dismiss him. By exercising this power, the chief minister can ensure the realisation of the rule of collective responsibility.

No Legal Responsibility

As at the Centre, there is no provision in the Constitution for the system of legal responsibility of the minister in the states. It is not required that an order of the governor for a public act should be countersigned by a minister. Moreover, the courts are barred from enquiring into the nature of advice rendered by the ministers to the governor.

COMPOSITION OF THE COUNCIL OF MINISTERS

The Constitution does not specify the size of the state council of ministers or the ranking of ministers. They are determined by the chief minister according to the exigencies of the time and requirements of the situation.

Like at the Centre, in the states too, the council of ministers consists of three categories of ministers, namely, cabinet ministers, ministers of state, and deputy ministers. The difference between them lies in their respective ranks, emoluments, and political importance. At the top of all these ministers stands the chief minister–supreme governing authority in the state.

The cabinet ministers head the important departments of the state government like home, education, finance, agriculture and so forth[3]. They are members of the cabinet, attend its meetings and play an important role in deciding policies. Thus, their responsibilities extend over the entire gamut of state government.

The ministers of state can either be given independent charge of departments or can be attached to cabinet ministers. However, they are not members of the cabinet and do not attend the cabinet meetings unless specially invited when something related to their departments are considered by the cabinet.

Next in rank are the deputy ministers. They are not given independent charge of departments. They are attached to the cabinet ministers and assist them in their administrative, political and parliamentary duties. They are not members of the cabinet and do not attend cabinet meetings.

At times, the council of ministers may also include a deputy chief minister. The deputy chief ministers are appointed mostly for local political reasons.

CABINET

A smaller body called *cabinet* is the nucleus of the council of ministers. It consists of only the cabinet ministers. It is the real centre of authority in the state government. It performs the following role:

1. It is the highest decisionmaking authority in the politico-administrative system of a state.
2. It is the chief policy formulating body of the state government.
3. It is the supreme executive authority of the state government.
4. It is the chief coordinator of state administration.
5. It is an advisory body to the governor.
6. It is the chief crisis manager and thus deals with all emergency situations.
7. It deals with all major legislative and financial matters.
8. It exercises control over higher appointments like constitutional authorities and senior secretariat administrators.

Cabinet Committees

The cabinet works through various committees called cabinet committees. They are of two types–standing and ad hoc. The former are of a permanent nature while the latter are of a temporary nature.

They are set up by the chief minister according to the exigencies of the time and requirements of the situation. Hence, their number, nomenclature and composition varies from time to time.

They not only sort out issues and formulate proposals for the consideration of the cabinet but also take decisions. However, the cabinet can review their decisions.

Table 32.1 *Articles Related to State Council of Ministers at a Glance*

Article No.	Subject Matter
163.	Council of Ministers to aid and advise Governor
164.	Other provisions as to Ministers
166.	Conduct of business of the Government of a State
167.	Duties of Chief Minister as respects the furnishing of information to Governor, etc.
177.	Rights of Ministers as respects the Houses

NOTES AND REFERENCES

1. They may, in addition, be in charge of the welfare of the SCs and BCs or any other work.
2. Each minister need not resign separately; the resignation of the chief minister amounts to the resignation of the entire council of ministers.
3. The term ‘ministry’ or ‘ministries’ is used only in the centre and not in the states. In other words, the state government is divided into departments and not ministries.

33 State Legislature

The state legislature occupies a preeminent and central position in the political system of a state.

Articles 168 to 212 in Part VI of the Constitution deal with the organisation, composition, duration, officers, procedures, privileges, powers and so on of the state legislature. Though these are similar to that of Parliament, there are some differences as well.

ORGANISATION OF STATE LEGISLATURE

There is no uniformity in the organisation of state legislatures. Most of the states have an unicameral system, while others have a bicameral system. At present (2019), only six states have two Houses (bicameral). These are Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra and Karnataka. The Jammu and Kashmir Legislative Council was abolishes by the Jammu and Kashmir Reorganisation Act, 2019.[1] The Tamil Nadu Legislative Council Act, 2010 has not come into force. The Legislative Council in Andhra Pradesh was revived by the Andhra Pradesh Legislative Council Act, 2005. The 7th Amendment Act of 1956 provided for a Legislative Council in Madhya Pradesh. However, a notification to this effect has to be made by the President. So far, no such notification has been made. Hence, Madhya Pradesh continues to have one House only.

The twenty-two states have unicameral system. Here, the state legislature consists of the governor and the legislative assembly. In the states having bicameral system, the state legislature consists of the governor, the legislative council and the legislative assembly. The legislative council (Vidhan Parishad) is the upper house (second chamber or house of elders), while the legislative assembly (Vidhan Sabha) is the lower house (first chamber or popular house).

The Constitution provides for the abolition or creation of legislative councils in states. Accordingly, the Parliament can abolish a legislative council (where it already exists) or create it (where it does not exist), if the legislative assembly of the concerned state passes a resolution to that effect. Such a specific resolution must be passed by the state assembly by a special majority, that is, a majority of the total membership of the assembly and a majority of not less than two-thirds of the members of the assembly present and voting. This Act of Parliament is not to be deemed as an amendment of the Constitution for the purposes of Article 368 and is passed like an ordinary piece of legislation (ie, by simple majority).

“The idea of having a second chamber in the states was criticised in the Constituent Assembly on the ground that it was not representative of the people, that it delayed legislative process and that it was an expensive institution[2] .” Consequently the provision was made for the abolition or creation of a legislative council to enable a state to have a second chamber or not according to its own

willingness and financial strength. For example, Andhra Pradesh got the legislative council created in 1957 and got the same abolished in 1985. The Legislative Council in Andhra Pradesh was again revived in 2007, after the enactment of the Andhra Pradesh Legislative Council Act, 2005. The legislative council of Tamil Nadu had been abolished in 1986 and that of Punjab and West Bengal in 1969.

In 2010, the Legislative Assembly of Tamil Nadu passed a resolution for the revival of the Legislative Council in the state. Accordingly, the Parliament enacted the Tamil Nadu Legislative Council Act, 2010 which provided for the creation of Legislative Council in the state. However, before this Act was enforced, the Legislative Assembly of Tamil Nadu passed another resolution in 2011 seeking the abolition of the proposed Legislative Council.

COMPOSITION OF TWO HOUSES

Composition of Assembly

Strength

The legislative assembly consists of representatives directly elected by the people on the basis of universal adult franchise. Its maximum strength is fixed at 500 and minimum strength at 60. It means that its strength varies from 60 to 500 depending on the population size of the state[3]. However, in case of Arunachal Pradesh, Sikkim and Goa, the minimum number is fixed at 30 and in case of Mizoram and Nagaland, it is 40 and 46 respectively. Further, some members of the legislative assemblies in Sikkim and Nagaland are also elected indirectly.

Nominated Member

The governor can nominate one member from the Anglo-Indian community, if the community is not adequately represented in the assembly.[4] Originally, this provision was to operate for ten years (ie, upto 1960). But this duration has been extended continuously since then by 10 years each time. Now, under the 95th Amendment Act of 2009, this is to last until 2020.

Territorial Constituencies

For the purpose of holding direct elections to the assembly, each state is divided into territorial constituencies. The demarcation of these constituencies is done in such a manner that the ratio between the population of each constituency and the number of seats allotted to it isthe same throughout the state. In other words, the Constitution ensures that there is uniformity of representation between different constituencies in the state. The expression ‘population’ means, the population as ascertained at the last preceding census of which the relevant figures have been published.

Readjustment after each census

After each census, a readjustment is to be made in the **(a)** total number of seats in the assembly of each state and **(b)** the division of each state into territorial constituencies. The Parliament is empowered to determine the authority and the manner in which it is to be made.

Accordingly, Parliament has enacted the Delimitation Commission Acts in 1952, 1962, 1972 and 2002 for this purpose.

The 42nd Amendment Act of 1976 had frozen total number of seats in the assembly of each state and the division of such state into territorial constituencies till the year 2000 at the 1971 level. This ban on readjustment has been extended for another years (i.e., upto year 2026) by the 84th Amendment Act of 2001 with the same objective of encouraging population limiting measures.

The 84th Amendment Act of 2001 also empowered the government to undertake readjustment and rationalisation of territorial constituencies in a state on the basis of the population figures of 1991 census. Later, the 87th Amendment Act of 2003 provided for the delimitation of constituencies on the basis of 2001 census and not 1991 census. However, this can be done without altering the total number of seats in the assembly of each state.

Reservation of seats for SCs and STs

The Constitution provided for the reservation of seats for scheduled castes and scheduled tribes in the assembly of each state on the basis of population ratios.[5]

Originally, this reservation was to operate for ten years (i.e., up to 1960). But this duration has been extended continuously since then by 10 years each time. Now, under the 95th Amendment Act of 2009, this reservation is to last until 2020.

Composition of Council

Strength

Unlike the members of the legislative assembly, the members of the legislative council are indirectly elected. The maximum strength of the council is fixed at one-third of the total strength of the assembly and the minimum strength is fixed at 40[6]. It means that the size of the council depends on the size of the assembly of the concerned state. This is done to ensure the predominance of the directly elected House (assembly) in the legislative affairs of the state. Though the Constitution has fixed the maximum and the minimum limits, the actual strength of a Council is fixed by Parliament[7] .

Manner of Election

Of the total number of members of a legislative council:

1. 1/3 are elected by the members of local bodies in the state like municipalities, district boards, etc.,
2. 1/12 are elected by graduates of three years standing and residing within the state,
3. 1/12 are elected by teachers of three years standing in the state, not lower in standard than secondary school,
4. 1/3 are elected by the members of the legislative assembly of the state from amongst persons who are not members of the assembly, and
5. the remainder are nominated by the governor from amongst persons who have a special knowledge or practical experience of literature, science, art, cooperative movement and social service.

Thus, 5/6 of the total number of members of a legislative council are indirectly elected and 1/6 are nominated by the governor. The members are elected in accordance with the system of proportional representation by means of a single transferable vote. The bonafide or propriety of the governor's nomination in any case cannot be challenged in the courts.

This scheme of composition of a legislative council as laid down in the Constitution is tentative and not final. The Parliament is authorised to modify or replace the same. However, it has not enacted any such law so far.

DURATION OF TWO HOUSES

Duration of Assembly

Like the Lok Sabha, the legislative assembly is not a continuing chamber. Its normal term is five years from the date of its first meeting after the general elections[8]. The expiration of the period of five years operates as automatic dissolution of the assembly. However, the governor is authorised to dissolve the assembly at any time (i.e., even before the completion of five years) to pave the way for fresh elections.

Further, the term of the assembly can be extended during the period of national emergency by a law of Parliament for one year at a time (for any length of time). However, this extension cannot continue beyond a period of six months after the emergency has ceased to operate. This means that the assembly should be re-elected within six months after the revocation of emergency.

Duration of Council

Like the Rajya Sabha, the legislative council is a continuing chamber, that is, it is a permanent body and is not subject to dissolution. But, one-third of its members retire on the expiration of every second year. So, a member continues as such for six years. The vacant seats are filled up by fresh elections and nominations (by governor) at the beginning of every third year. The retiring members are also eligible for re-election and re-nomination any number of times.

MEMBERSHIP OF STATE LEGISLATURE

1. Qualifications

The Constitution lays down the following qualifications for a person to be chosen a member of the state legislature.

(a) He must be a citizen of India.
(b) He must make and subscribe to an oath or affirmation before the person authorised by the Election Commission for this purpose. In his oath or affirmation, he swears
  (i) To bear true faith and allegiance to the Constitution of India
  (ii) To uphold the sovereignty and integrity of India
(c) He must be not less than 30 years of age in the case of the legislative council and not less than 25 years of age in the case of the legislative assembly.
(d) He must posses other qualifications prescribed by Parliament.

Accordingly, the Parliament has laid down the following additional qualifications in the Representation of People Act (1951):

(a) A person to be elected to the legislative council must be an elector for an assembly constituency in the concerned state and to be qualified for the governor's nomination, he must be a resident in the concerned state.
(b) A person to be elected to the legislative assembly must be an elector for an assembly constituency in the concerned state.
(c) He must be a member of a scheduled caste or scheduled tribe if he wants to contest a seat reserved for them. However, a member of scheduled castes or scheduled tribes can also contest a seat not reserved for them.

2. Disqualifications

Under the Constitution, a person shall be disqualified for being chosen as and for being a member of the legislative assembly or legislative council of a state:

(a) if he holds any office of profit under the Union or state government (except that of a minister or any other office exempted by state legislature[9]),
(b) if he is of unsound mind and stands so declared by a court,
(c) if he is an undischarged insolvent,

(d) if he is not a citizen of India or has voluntarily acquired the citizenship of a foreign state or is under any acknowledgement of allegiance to a foreign state, and
(e) if he is so disqualified under any law made by Parliament.

Accordingly, the Parliament has prescribed a number of additional disqualifications in the Representation of People Act (1951). These are similar to those for Parliament. These are mentioned here:

1. He must not have been found guilty of certain election offences or corrupt practices in the elections.
2. He must not have been convicted for any offence resulting in imprisonment for two or more years. But, the detention of a person under a preventive detention law is not a disqualification.
3. He must not have failed to lodge an account of his election expenses within the time.
4. He must not have any interest in government contracts, works or services.
5. He must not be a director or managing agent nor hold an office of profit in a corporation in which the government has at least 25 per cent share.
6. He must not have been dismissed from government service for corruption or disloyalty to the state.
7. He must not have been convicted for promoting enmity between different groups or for the offence of bribery.
8. He must not have been punished for preaching and practicing social crimes such as untouchability, dowry and *sati*.

On the question whether a member has become subject to any of the above disqualifications, the governor's decision is final. However, he should obtain the opinion of the Election Commission and act accordingly.

Disqualification on Ground of Defection

The Constitution also lays down that a person shall be disqualified for being a member of either House of state legislature if he is so disqualified on the ground of defection under the provisions of the Tenth Schedule.

The question of disqualification under the Tenth Schedule is decided by the Chairman, in the case of legislative council and, Speaker, in the case of legislative assembly (and not by the governor). In 1992, the Supreme Court ruled that the decision of Chairman/Speaker in this regard is subject to judicial review[10] .

3. Oath or Affirmation

Every member of either House of state legislature, before taking his seat in the House, has to make and subscribe an oath or affirmation before the governor or some person appointed by him for this purpose.

In this oath, a member of the state legislature swears:

(a) to bear true faith and allegiance to the Constitution of India;
(b) to uphold the sovereignty and integrity of India; and
(c) to faithfully discharge the duty of his office.

Unless a member takes the oath, he cannot vote and participate in the proceedings of the House and does not become eligible to the privileges and immunities of the state legislature.

A person is liable to a penalty of ₹500 for each day he sits or votes as a member in a House:

(a) before taking and subscribing the prescribed oath or affirmation; or
(b) when he knows that he is not qualified or that he is disqualified for its membership; or
(c) when he knows that he is prohibited from sitting or voting in the House by virtue of any law made by Parliament or the state legislature.

Members of a state legislature are entitled to receive such salaries and allowances as may from time to time be determined by the state legislature.

4. Vacation of Seats

In the following cases, a member of the state legislature vacates his seat:

(a) *Double Membership:* A person cannot be a member of both Houses of state legislature at one and the same time. If a person is elected to both the Houses, his seat in one of the Houses falls vacant as per the provisions of a law made by the state legislature.
(b) *Disqualification:* If a member of the state legislature becomes subject to any of the disqualifications, his seat becomes vacant.
(c) *Resignation:* A member may resign his seat by writing to the Chairman of legislative council or Speaker of legislative assembly, as the case may be. The seat falls vacant when the resignation is accepted[11] .

(d) *Absence:* A House of the state legislature can declare the seat of a member vacant if he absents himself from all its meeting for a period of sixty days without its permission.

(e) *Other Cases:* A member has to vacate his seat in the either House of state legislature,

(i) if his election is declared void by the court,

(ii) if he is expelled by the House,

(iii) if he is elected to the office of president or office of vice-presid and

(iv) if he is appointed to the office of governor of a state.

PRESIDING OFFICERS OF STATE LEGISLATURE

Each House of state legislature has its own presiding officer. There is a Speaker and a Deputy Speaker for the legislative assembly and a Chairman and a Deputy Chairman for the legislative council. A panel of chairman for the assembly and a panel of vice-chairman for the council is also appointed.

Speaker of Assembly

The Speaker is elected by the assembly itself from amongst its members.

Usually, the Speaker remains in office during the life of the assembly. However, he vacates his office earlier in any of the following three cases:

1. if he ceases to be a member of the assembly;
2. if he resigns by writing to the deputy speaker; and
3. if he is removed by a resolution passed by a majority of all the then members of the assembly. Such a resolution can be moved only after giving 14 days advance notice.

The Speaker has the following powers and duties:

1. He maintains order and decorum in the assembly for conducting its business and regulating its proceedings. This is his primary responsibility and he has final power in this regard.
2. He is the final interpreter of the provisions of (a) the Constitution of India, (b) the rules of procedure and conduct of business of assembly, and (c) the legislative precedents, within the assembly.
3. He adjourns the assembly or suspends the meeting in the absence of a quorum.
4. He does not vote in the first instance. But, he can exercise a casting vote in the case of a tie.
5. He can allow a ‘secret’ sitting of the House at the request of the leader of the House.
6. He decides whether a bill is a Money Bill or not and his decision on this question is final.
7. He decides the questions of disqualification of a member of the assembly, arising on the ground of defection under the provisions of the Tenth Schedule.

8. He appoints the chairman of all the committees of the assembly and supervises their functioning. He himself is the chairman of the Business Advisory Committee, the Rules Committee and the General Purpose Committee.

Deputy Speaker of Assembly

Like the Speaker, the Deputy Speaker is also elected by the assembly itself from amongst its members. He is elected after the election of the Speaker has taken place.

Like the Speaker, the Deputy Speaker remains in office usually during the life of the assembly. However, he also vacates his office earlier in any of the following three cases:

1. if he ceases to be a member of the assembly;
2. if he resigns by writing to the speaker; and
3. if he is removed by a resolution passed by a majority of all the then members of the assembly. Such a resolution can be moved only after giving 14 days' advance notice.

The Deputy Speaker performs the duties of the Speaker's office when it is vacant. He also acts as the Speaker when the latter is absent from the sitting of assembly. In both the cases, he has all the powers of the Speaker.

The Speaker nominates from amongst the members a panel of chairman. Any one of them can preside over the assembly in the absence of the Speaker or the Deputy Speaker. He has the same powers as the speaker when so presiding. He holds office until a new panel of chairman is nominated.

Chairman of Council

The Chairman is elected by the council itself from amongst its members.

The Chairman vacates his office in any of the following three cases:

1. if he ceases to be a member of the council;
2. if he resigns by writing to the deputy chairman; and
3. if he is removed by a resolution passed by a majority of all the then members of the council. Such a resolution can be moved only after giving 14 days advance notice.

As a presiding officer, the powers and functions of the Chairman in the council are similar to those of the Speaker in the assembly. However, the Speaker has one special power which is not enjoyed by

the Chairman. The Speaker decides whether a bill is a Money Bill or not and his decision on this question is final.

The salaries and allowances of the Speaker and the Deputy Speaker of the assembly and the Chairman and the Deputy Chairman of the council are fixed by the state legislature. They are charged on the Consolidated Fund of the State and thus are not subject to the annual vote of the state legislature.

Deputy Chairman of Council

Like the Chairman, the Deputy Chairman is also elected by the council itself from amongst its members.

The deputy chairman vacates his office in any of the following three cases:

1. if he ceases to be a member of the council;
2. if he resigns by writing to the Chairman; and
3. if he is removed by a resolution passed by a majority of all the then members of the council. Such a resolution can be moved only after giving 14 days advance notice.

The Deputy Chairman performs the duties of the Chairman's office when it is vacant. He also acts as the Chairman when the latter is absent from the sitting of the council. In both the cases, he has all the powers of the Chairman.

The Chairman nominates from amongst the members a panel of vice-chairman. Any one of them can preside over the council in the absence of the Chairman or the Deputy Chairman. He has the same powers as the chairman when so presiding. He holds office until a new panel of vice-chairman is nominated.

SESSIONS OF STATE LEGISLATURE

Summoning

The governor from time to time summons each House of state legislature to meet. The maximum gap between the two sessions of state legislature cannot be more than six months, ie, the state legislature should meet at least twice a year. A session of the state legislature consists of many sittings.

Adjournment

An adjournment suspends the work in a sitting for a specified time which may be hours, days or weeks.

Adjournment *sine die* means terminating a sitting of the state legislature for an indefinite period. The power of the adjournment as well as adjournment *sine die* lies with the presiding officer of the House.

Prorogation

The presiding officer (Speaker or Chairman) declares the House adjourned *sine die*, when the business of the session is completed. Within the next few days, the governor issues a notification for prorogation of the session.

However, the governor can also prorogue the House which is in session. Unlike an adjournment, a prorogation terminates a session of the House.

Dissolution

The legislative council, being a permanent house, is not subject to dissolution. Only the legislative assembly is subject to dissolution. Unlike a prorogation, a dissolution ends the very life of the existing House, and a new House is constituted after the general elections are held.

The position with respect to lapsing of bills on the dissolution of the assembly is mentioned below:

1. A Bill pending in the assembly lapses (whether originating in the assembly or transmitted to it by the council).

2. A Bill passed by the assembly but pending in the council lapses.
3. A Bill pending in the council but not passed by the assembly does not lapse.
4. A Bill passed by the assembly (in a unicameral state) or passed by both the houses (in a bicameral state) but pending assent of the governor or the President does not lapse.
5. A Bill passed by the assembly (in a unicameral state) or passed by both the Houses (in a bicameral state) but returned by the president for reconsideration of House (s) does not lapse.

Quorum

Quorum is the minimum number of members required to be present in the House before it can transact any business. It is ten members or one-tenth of the total number of members of the House (including the presiding officer), whichever is greater. If there is no quorum during a meeting of the House, it is the duty of the presiding officer either to adjourn the House or to suspend the meeting until there is a quorum.

Voting in House

All matters at any sitting of either House are decided by a majority of votes of the members present and voting excluding the presiding officer. Only a few matters which are specifically mentioned in the Constitution like removal of the speaker of the assembly, removal of the Chairman of the council and so on require special majority, not ordinary majority. The presiding officer (i.e., Speaker in the case of assembly or chairman in the case of council or the person acting as such) does not vote in the first instance, but exercises a casting vote in the case of an equality of votes.

Language in State Legislature

The Constitution has declared the official language(s) of the state or Hindi or English, to be the languages for transacting business in the state legislature. However, the presiding officer can permit a member to address the House in his mother-tongue. The state legislature is authorised to decide whether to continue or discontinue English as a floor language after the completion of fifteen years from the commencement of the Constitution (i.e., from 1965). In case of Himachal Pradesh, Manipur, Meghalaya and Tripura, this time limit is

twenty-five years and that of Arunachal Pradesh, Goa and Mizoram, it is forty years.

Rights of Ministers and Advocate General

In addition to the members of a House, every minister and the advocate general of the state have the right to speak and take part in the proceedings of either House or any of its committees of which he is named a member, without being entitled to vote. There are two reasons underlying this constitutional provision:

1. A minister can participate in the proceedings of a House, of which he is not a member.
2. A minister, who is not a member of either House, can participate in the proceedings of both the Houses[12] .

LEGISLATIVE PROCEDURE IN STATE LEGISLATURE

Ordinary Bills

Bill in the Originating House

An ordinary bill can originate in either House of the state legislature (in case of a bicameral legislature). Such a bill can be introduced either by a minister or by any other member. The bill passes through three stages in the originating House, viz,

1. First reading,
2. Second reading, and
3. Third reading.

After the bill is passed by the originating House, it is transmitted to the second House for consideration and passage. A bill is deemed to have been passed by the state legislature only when both the Houses have agreed to it, either with or without amendments. In case of a unicameral legislature, a bill passed by the legislative assembly is sent directly to the governor for his assent.

Bill in the Second House

In the second House also, the bill passes through all the three stages, that is, first reading, second reading and third reading.

When a bill is passed by the legislative assembly and transmitted to the legislative council, the latter has four alternatives before it:

1. it may pass the bill as sent by the assembly (i.e., without amendments);
2. it may pass the bill with amendments and return it to the assembly for reconsideration;
3. it may reject the bill altogether; and
4. it may not take any action and thus keep the bill pending.

If the council passes the bill without amendments or the assembly accepts the amendments suggested by the council, the bill is deemed to have been passed by both the Houses and the same is sent to the the governor for his assent. On the other hand, if the assembly rejects the amendments suggested by the council or the council rejects the bill altogether or the council does not take any action for three months, then the assembly may pass the bill again and transmit the same to the council. If the council rejects the bill again or passes the bill with amendments not acceptable to the assembly or does not pass the bill

within one month, then the bill is deemed to have been passed by both the Houses in the form in which it was passed by the assembly for the second time.

Therefore, the ultimate power of passing an ordinary bill is vested in the assembly. At the most, the council can detain or delay the bill for a period of four months–three months in the first instance and one month in the second instance. The Constitution does not provide for the mechanism of joint sitting of both the Houses to resolve the disagreement between the two Houses over a bill. On the other hand, there is a provision for joint sitting of the Lok Sabha and the Rajya Sabha to resolve a disagreement between the two over an ordinary bill. Moreover, when a bill, which has originated in the council and was sent to the assembly, is rejected by the assembly, the bill ends and becomes dead.

Thus, the council has been given much lesser significance, position and authority than that of the Rajya Sabha at the Centre.

Assent of the Governor

Every bill, after it is passed by the assembly or by both the Houses in case of a bicameral legislature, is presented to the governor for his assent. There are four alternatives before the governor:

1. he may give his assent to the bill;
2. he may withhold his assent to the bill;
3. he may return the bill for reconsideration of the House or Houses; and
4. he may reserve the bill for the consideration of the President.

If the governor gives his assent to the bill, the bill becomes an Act and is placed on the Statute Book. If the governor withholds his assent to the bill, the bill ends and does not become an Act. If the governor returns the bill for reconsideration and if the bill is passed by the House or both the Houses again, with or without amendments, and presented to the governor for his assent, the governor must give his assent to the bill. Thus, the governor enjoys only a *suspensive veto*. The position is same at the Central level also[13] .

Assent of the President

When a bill is reserved by the governor for the consideration of the President, the President may either give his assent to the bill or withhold his assent to the bill or return the bill for reconsideration of the House or Houses of the state legislature. When a bill is so returned, the House or Houses have to reconsider it within a period of

six months. The bill is presented again to the presidential assent after it is passed by the House or Houses with or without amendments. It is not mentioned in the Constitution whether it is obligatory on the part of the president to give his assent to such a bill or not.

Money Bills

The Constitution lays down a special procedure for the passing of Money Bills in the state legislature. This is as follows:

A Money Bill cannot be introduced in the legislative council. It can be introduced in the legislative assembly only and that too on the recommendation of the governor. Every such bill is considered to be a government bill and can be introduced only by a minister.

After a Money Bill is passed by the legislative assembly, it is transmitted to the legislative council for its consideration. The legislative council has restricted powers with regard to a Money Bill. It cannot reject or amend a Money Bill. It can only make recommendations and must return the bill to the legislative assembly within 14 days. The legislative assembly can either accept or reject all or any of the recommendations of the legislative council.

If the legislative assembly accepts any recommendation, the bill is then deemed to have been passed by both the Houses in the modified form. If the legislative assembly does not accept any recommendation, the bill is then deemed to have been passed by both the Houses in the form originally passed by the legislative assembly without any change.

If the legislative council does not return the bill to the legislative assembly within 14 days, the bill is deemed to have been passed by both Houses at the expiry of the said period in the form originally passed by the legislative assembly. Thus, the legislative assembly has more powers than legislative council with regard to a money bill. At the most, the legislative council can detain or delay a money bill for a period of 14 days.

Finally, when a Money Bill is presented to the governor, he may either give his assent, withhold his assent or reserve the bill for presidential assent but cannot return the bill for reconsideration of the state legislature. Normally, the governor gives his assent to a money bill as it is introduced in the state legislature with his prior permission.

When a money bill is reserved for consideration of the President, the president may either give his assent to the bill or withhold his

assent to the bill but cannot return the bill for reconsideration of the state legislature.

Table 33.1 *Comparing Legislative Procedure in the Parliament and State Legislature*

Parliament	State Legislature
A. With Regard to Ordinary Bills	
1. It can be introduced in either House of the Parliament.	1. It can be introduced in either House of the state legislature.
2. It can be introduced either by a minister or by a private member.	2. I t can be introduced either by a minister or by private member.
3. It passes through first reading, second reading and third reading in the originating House.	3. It passes through first reading, second reading and third reading in the originating House.
4. It is deemed to have been passed by the Parliament only when both the Houses have agreed to it, either with or without amendments.	4. It is deemed to have been passed by the state legislature only when both the Houses have agreed to it, either with or without amendments.
5. A deadlock between the two Houses takes place when the second House, after receiving a bill passed by the first House, rejects the bill or proposes amendments that are not acceptable to the first House or does not pass the bill within six months.	5. A deadlock between the two Houses takes place when the legislative council, after receiving a bill passed by the legislative assembly, rejects the bill or proposes amendments that are not acceptable to the legislative assembly or does not pass the bill within three months.
6. The Constitution provides for the mechanism of joint sitting of two Houses of the Parliament to resolve a	6. The Constitution does not provide for the mechanism of joint sitting of two Houses of the state legislature to resolve a deadlock between

deadlock between them over the passage of a bill.	them over the passage of a bill.
7. The Lok Sabha cannot override the Rajya Sabha by passing the bill for the second time and vice versa. A joint sitting is the only way to resolve a deadlock between the two Houses.	7. The legislative assembly can override the legislative council by passing the bill for the second time and not *vice versa*. When a bill is passed by the assembly for the second time and transmitted to the legislative council, if the legislative council rejects the bill again, or proposes amendments that are not acceptable to the legislative assembly, or does not pass the bill within one month, then the bill is deemed to have been passed by both the Houses in the form in which it was passed by the legislative assembly for the second time.
8. The mechanism of joint sitting for resolving a deadlock applies to a bill whether originating in the Lok Sabha or the Rajya Sabha. If a joint sitting is not summoned by the president, the bill ends and becomes dead.	8. The mechanism of passing the bill for the second time to resolve a deadlock applies to a bill originating in the legislative assembly only. When a bill, which has originated in the legislative council and sent to the legislative assembly, is rejected by the latter, the bill ends and becomes dead.
B. With Regard to Money Bills	
1. It can be introduced only in the Lok Sabha and not in the Rajya Sabha.	1. It can be introduced only in the legislative assembly and not in the legislative council.
2. It can be introduced only on the recommendation of the	2. It can be introduced only on the recommendation of the

president.	governor.
3. I t can be introduced only by a minister and not by a private member.	3. It can be introduced only by a minister and not by a private member.
4. It cannot be rejected or amended by the Rajya Sabha. It should be returned to the Lok Sabha within 14 days, either with or without recommendations.	4. It cannot be rejected or amended by the legislative council. It should be returned to the legislative assembly within 14 days, either with or without amendments.
5. The Lok Sabha can either accept or reject all or any of the recommendations of the Rajya Sabha.	5. The legislative assembly can either accept or reject all or any of the recommendations of the legislative council.
6. If the Lok Sabha accepts any recommendation, the bill is then deemed to have been passed by both the Houses in the modified form.	6. If the legislative assembly accepts any recommendation, the bill is then deemed to have been passed by both the Houses in the modified form.
7. If the Lok Sabha does not accept any recommendation, the bill is then deemed to have been passed by both the Houses in the form originally passed by the Lok Sabha without any change.	7. If the legislative assembly does not accept any recommendation, the bill is then deemed to have been passed by both the Houses in the form originally passed by the legislative assembly without any change.
8. If the Rajya Sabha does not return the bill to the Lok Sabha within 14 days, the bill is deemed to have been passed by both the Houses at the expiration of the said period in the form originally passed by the Lok Sabha.	8. If the legislative council does not return the bill to the legislative assembly within 14 days, the bill is deemed to have been passed by both the Houses at the expiration of the said period in the form originally passed by the legislative assembly.
9. The Constitution does not	9. The Constitution does not

provide for the resolution of any deadlock between the two Houses. This is because, the will of the Lok Sabha is made to prevail over that of the Rajya Sabha, if the latter does not agree to the bill passed by the former.	provide for the resolution of any deadlock between the two Houses. This is because, the will of the legislative assembly is made to prevail over that of legislative council, if the latter does not agree to the bill passed by the former.

POSITION OF LEGISLATIVE COUNCIL

The constitutional position of the council (as compared with the assembly) can be studied from two angles:

A. Spheres where council is equal to assembly.
B. Spheres where council is unequal to assembly.

Equal with Assembly

In the following matters, the powers and status of the council are broadly equal to that of the assembly:

1. Introduction and passage of ordinary bills. However, in case of disagreement between the two Houses, the will of the assembly prevails over that of the council.
2. Approval of ordinances issued by the governor[14] .
3. Selection of ministers including the chief minister. Under the Constitution the, ministers including the chief minister can be members of either House of the state legislature. However, irrespective of their membership, they are responsible only to the assembly.
4. Consideration of the reports of the constitutional bodies like State Finance Commission, state public service commission and Comptroller and Auditor General of India.
5. Enlargement of the jurisdiction of the state public service commission.

Unequal with Assembly

In the following matters, the powers and status of the council are unequal to that of the assembly:

1. A Money Bill can be introduced only in the assembly and not in the council.
2. The council cannot amend or reject a money bill. It should return the bill to the assembly within 14 days, either with recommendations or without recommendations.
3. The assembly can either accept or reject all or any of the recommendation of the council. In both the cases, the money bill is deemed to have been passed by the two Houses.
4. The final power to decide whether a particular bill is a money bill or not is vested in the Speaker of the assembly.

5. The final power of passing an ordinary bill also lies with the assembly. At the most, the council can detain or delay the bill for the period of four months–three months in the first instance and one month in the second instance. In other words, the council is not even a revising body like the Rajya Sabha; it is only a dilatory chamber or an advisory body.
6. The council can only discuss the budget but cannot vote on the demands for grants (which is the exclusive privilege of the assembly).
7. The council cannot remove the council of ministers by passing a no-confidence motion. This is because, the council of ministers is collectively responsible only to the assembly. But, the council can discus and criticise the policies and activities of the Government.
8. When an ordinary bill, which has originated in the council and was sent to the assembly, is rejected by the assembly, the bill ends and becomes dead.
9. The council does not participate in the election of the president of India and representatives of the state in the Rajya Sabha.
10. The council has no effective say in the ratification of a constitutional amendment bill. In this respect also, the will of the assembly prevails over that of the council[15] .
11. Finally, the very existence of the council depends on the will of the assembly. The council can be abolished by the Parliament on the recommendation of the assembly.

From the above, it is clear that the position of the council *vis-a-vis* the assembly is much weaker than the position of the Rajya Sabha *vis-a-vis* the Lok Sabha. The Rajya Sabha has equal powers with the Lok Sabha in all spheres except financial matters and with regard to the control over the Government. On the other hand, the council is subordinate to the assembly in all respects. Thus, the predominance of the assembly over the council is fully established.

Even though both the council and the Rajya Sabha are second chambers, the Constitution has given the council much lesser importance than the Rajya Sabha due to the following reasons:

1. The Rajya Sabha consists of the representatives of the states and thus reflect the federal element of the polity. It maintains the federal equilibrium by protecting the interests of the states against the undue interference of the Centre. Therefore, it has to be an effective revising body and not just an advisory body or

dilatory body like that of the council. Onthe other hand, the issue of federal significance does not arise in the case of a council.

2. The council is heterogeneously constituted. It represents different interests and consists of differently elected members and also include some nominated members. Its very composition makes its position weak and reduces its utility as an effective revising body. On the other hand, the Rajya Sabha is homogeneously constituted. It represents only the states and consists of mainly elected members (only 12 out of 250 are nominated).
3. The position accorded to the council is in accordance with the principles of democracy. The council should yield to the assembly, which is a popular house. This pattern of relationship between the two Houses of the state legislature is adopted from the British model. In Britain, the House of Lords (Upper House) cannot oppose and obstruct the House of Commons (Lower House). The House of Lords is only a dilatory chamber–it can delay an ordinary bill for a maximum period of one year and a money bill for one month.[16]

Keeping in view its weak, powerless and insignificant position and role, the critics have described the council as a ‘secondary chamber’, ‘costly ornamental luxury’, ‘white elephant’, etc. The critics have opined that the council has served as a refuge for those who are defeated in the assembly elections. It enabled the unpopular, rejected and ambitious politicians to occupy the post of a chief minister or a minister or a member of the state legislature.

Even though the council has been given less powers as compared with the assembly, its utility is supported on the following grounds:

1. It checks the hasty, defective, careless and ill-considered legislation made by the assembly by making provision for revision and thought.
2. It facilitates representation of eminent professionals and experts who cannot face direct elections. The governor nominates one-sixth members of the council to provide representation to such people.

PRIVILEGES OF STATE LEGISLATURE

Privileges of a state legislature are a sum of special rights, immunities and exemptions enjoyed by the Houses of state legislature, their committees and their members. They are necessary in order to secure the independence and effectiveness of their actions. Without these privileges, the Houses can neither maintain their authority, dignity and honour nor can protect their members from any obstruction in the discharge of their legislative responsibilities.

The Constitution has also extended the privileges of the state legislature to those persons who are entitled to speak and take part in the proceedings of a House of the state legislature or any of its committees. These include advocate-general of the state and state ministers.

It must be clarified here that the privileges of the state legislature do not extend to the governor who is also an integral part of the state legislature.

The privileges of a state legislature can be classified into two broad categories–those that are enjoyed by each House of the state legislature collectively, and those that are enjoyed by the members individually.

Collective Privileges

The privileges belonging to each House of the state legislature collectively are:

1. It has the right to publish its reports, debates and proceedings and also the right to prohibit others from publishing the same[17] .
2. It can exclude strangers from its proceedings and hold secret sittings to discuss some important matters.
3. It can make rules to regulate its own procedure and the conduct of its business and to adjudicate upon such matters.
4. It can punish members as well as outsiders for breach of its privileges or its contempt by reprimand, admonition or imprisonment (also suspension or expulsion, in case of members).
5. It has the right to receive immediate information of the arrest, detention, conviction, imprisonment and release of a member.
6. It can institute inquiries and order the attendance of witnesses and send for relevant papers and records.

7. The courts are prohibited to inquire into the proceedings of a House or its Committes.
8. No person (either a member or outsider) can be arrested, and no legal process (civil or criminal) can be served within the precincts of the House without the permission of the presiding officer.

Individual Privileges

The privileges belonging to the members individually are:

1. They cannot be arrested during the session of the state legislature and 40 days before the beginning and 40 days after the end of such session. This privilege is available only in civil cases and not in criminal cases or preventive detention cases.
2. They have freedom of speech in the state legislature. No member is liable to any proceedings in any court for anything said or any vote given by him in the state legislature or its committees. This freedom is subject to the provisions of the Constitution and to the rules and standing orders regulating the procedure of the state legislature[18] .
3. They are exempted from jury service. They can refuse to give evidence and appear as a witness in a case pending in a court when the state legislature is in session.

Table 33.2 *Strength of Legislative Assemblies and Legislative Councils (2019)*

S. No.	Name of the State/Union Territory	Number of Seats in Legislative Assembly	Number of Seats in Legislative Council
	I. STATES		
1.	Andhra Pradesh	175	58[18a]
2.	Arunachal Pradesh	60	–
3.	Assam	126	–
4.	Bihar	243	75
5.	Chhattisgarh	90	–
6.	Goa	40	–
7.	Gujarat	182	–

8.	Haryana	90		–
9.	Himachal Pradesh	68		–
10.	Jharkhand	81		–
11.	Karnataka	224		75
12.	Kerala	140		–
13.	Madhya Pradesh	230		–
14.	Maharashtra	288		78
15.	Manipur	60		–
16.	Meghalaya	60		–
17.	Mizoram	40		–
18.	Nagaland	60		–
19.	Odisha	147		–
20.	Punjab	117		–
21.	Rajasthan	200		–
22.	Sikkim	32	–	
23.	Tamil Nadu	234		–
24.	Telangana	119		40
25.	Tripura	60		–
26.	Uttarakhand	70		–
27.	Uttar Pradesh	403		100
28.	West Bengal	294		–
	II. UNION TERRITORIES			
1.	Delhi	70		–
2.	Puducherry	30		–
3.	Jammu and Kashmir	83[19]		–

Table 33.3 *Seats Reserved for SCs and STs in the Legislative Assemblies (2019)*

	Name of the State/ Union Territory	Total	Reserved for the Scheduled Castes	Reserved for the

				Scheduled Tribes
	I. STATES			
1.	Andhra Pradesh	175	29	7
2.	Arunachal Pradesh	60	–	59
3.	Assam	126	8	16
4.	Bihar	243	38	2
5.	Chhattisgarh	90	10	29
6.	Goa	40	1	–
7.	Gujarat	182	13	27
8.	Haryana	90	17	–
9.	Himachal Pradesh	68	17	3
10.	Jharkhand	81	9	28
11.	Karnataka	224	36	15
12.	Kerala	140	14	2
13.	Madhya Pradesh	230	35	47
14.	Maharashtra	288	29	25
15.	Manipur	60	1	19
16.	Meghalaya	60	–	55
17.	Mizoram	40	–	38
18.	Nagaland	60	–	59
19.	Odisha	147	24	33
20.	Punjab	117	34	–
21.	Rajasthan	200	34	25
22.	Sikkim	32	2	12
23.	Tamil Nadu	234	44	2
24.	Telangana	119	19	12
25.	Tripura	60	10	20
26.	Uttarakhand	70	13	2
27.	Uttar Pradesh	403	85	–
28.	West Bengal	294	68	16

II. UNION TERRITORIES				
1.	Delhi	70	12	–
2.	Puducherry	30	5	–
3.	Jammu and Kashmir	83	6	–

Table 33.4 *Articles Related to State Legislature at a Glance*

Article No.	Subject-matter
	General
168.	Constitution of Legislatures in states
169.	Abolition or creation of Legislative Councils in states
170.	Composition of the Legislative Assemblies
171.	Composition of the Legislative Councils
172.	Duration of State Legislatures
173.	Qualification for membership of the State Legislature
174.	Sessions of the State Legislature, prorogation and dissolution
175.	Right of Governor to address and send messages to the House or Houses
176.	Special address by the Governor
177.	Rights of Ministers and Advocate-General as respects the Houses
	Officers of the State Legislature
178.	The Speaker and Deputy Speaker of the Legislative Assembly
179.	Vacation and resignation of, and removal from, the offices of Speaker and Deputy Speaker
180.	Power of the Deputy Speaker or other person to perform the duties of the office of, or to act as, Speaker
181.	The Speaker or the Deputy Speaker not to preside while a resolution for his removal from office is under consideration

182.	The Chairman and Deputy Chairman of the Legislative Council
183.	Vacation and resignation of, and removal from, the offices of Chairman and Deputy Chairman
184.	Power of the Deputy Chairman or other person to perform the duties of the office of, or to act as, Chairman
185.	The Chairman or the Deputy Chairman not to preside while a resolution for his removal from office is under consideration
186.	Salaries and allowances of the Speaker and Deputy Speaker and the Chairman and Deputy Chairman
187.	Secretariat of State Legislature
	Conduct of Business
188.	Oath or affirmation by members
189.	Voting in Houses, power of Houses to act notwithstanding vacancies and quorum
	Disqualifications of Members
190.	Vacation of seats
191.	Disqualifications for membership
192.	Decision on questions as to disqualifications of members
193.	Penalty for sitting and voting before making oath or affirmation under Article 188 or when not qualified or when disqualified
	Powers, Privileges and Immunities of State Legislatures and their Members
194.	Powers, privileges, etc., of the House of Legislatures and of the members and committees thereof
195.	Salaries and allowances of members
	Legislative Procedure
196.	Provisions as to introduction and passing of Bills
197.	Restriction on powers of Legislative Council as to Bills other than Money Bills

198.	Special procedure in respect of Money Bills
199.	Definition of “Money Bills”
200.	Assent to Bills
201.	Bills reserved for consideration
	Procedure in Financial Matters
202.	Annual financial statement
203.	Procedure in Legislature with respect to estimates
204.	Appropriation Bills
205.	Supplementary, additional or excess grants
206.	Votes on account, votes of credit and exceptional grants
207.	Special provisions as to financial Bills
	Procedure Generally
208	Rules of procedure
209.	Regulation by law of procedure in the Legislature of the state in relation to financial business
210.	Language to be used in the Legislature
211.	Restriction on discussion in the Legislature
212.	Courts not to inquire into proceedings of the Legislature
	Legislative Powers of the Governor
213.	Power of Governor to promulgate Ordinances during recess of Legislature

Table 33.5 *Laws made by Parliament under Article 169 of the Constitution*

Sl. No.	Acts	Provisions
1.	West Bengal Legislative Council (Abolition) Act, 1969	Provided for the abolition of the Legislative Council of the State of West Bengal.
2.	Punjab Legislative Council (Abolition) Act, 1969	Provided for the abolition of the Legislative Council of the

		State of Punjab.
3.	Andhra Pradesh Legislative Council (Abolition) Act, 1985	Provided for the abolition of the Legislative Council of the State of Andhra Pradesh.
4.	Tamil Nadu Legislative Council (Abolition) Act, 1986	Provided for the abolition of the Legislative Council of the State of Tamil Nadu.
5.	Andhra Pradesh Legislative Council Act, 2005	Provided for the creation of Legislative Council for the State of Andhra Pradesh.
6.	Tamil Nadu Legislative Council Act, 2010	Provided for the creation of Legislative Council for the State of Tamil Nadu.

NOTES AND REFERENCES

1. The erstwhile state of Jammu and Kashmir had adopted a bicameral legislature by its own state Constitution, which was separate from the Indian Constitution.
2. M.P. Jain, *Indian Constitutional Law,* Wadhwa Fourth edition, P. 159
3. See Table 33.2 at the end of this chapter.
4. An Anglo-Indian means a person whose father or any other male progenitor in the male line is or was of European descent, but who is domiciled within the territory of India and is or was born within such territory of parents habitually resident therein and not established there for temporary purposes only.
5. This means that the number of assembly seats reserved in a state for such castes and tribes is to bear the same proportion to the total number of seats in the assembly as the population of such castes and tribes in the concerned state bears to the total population of the state.
6. The minimum strength fixed at 40 by the Constitution of India was not applicable to the erstwhile state of Jammu and Kashmir. Its council had 36 members under the provisions of its own state Constitution.
7. See Table 33.2 at the end of this chapter.

8. The term of the legislative assembly of the erstwhile state of Jammu and Kashmir was six years under its own state Constitution.
9. A minister in the union or state government is not considered as holding an office of profit. Also, the state legislature can declare that a particular office of profit will not disqualify its holder from its membership.
10. *Kihota Hollohan* v. *Zachilhu,* (1992).
11. However, the Chairman/Speaker need not accept the resignation if he is satisfied that it is not voluntary or genuine.
12. A person can remain a minister for six months, without being a member of either house of the state legislature.
13. For a comparative study of the veto power of the president and the governor, see Chapter 30.
14. For a comparative study of the ordinance-making power of the president and the governor, see Chapter 30.
15. The position, in this regard, is very well analysed by J.C. Johari in the following way: 'The Constitution is not clear on this point whether a bill of constitutional amendment referred to the states for ratification by their legislatures shall include the Vidhan Parishad or not. In practice, it may be understood that the will of the Vidhan Sabha has to prevail. In case the Vidhan Parishad concurs with the view of the Vidhan Sabha, it is all right; in case it differs, the Vidhan Sabha may pass it again and thereby ignore the will of the Vidhan Parishad as it can do in case of a non-money bill'. (*Indian Government and Politics*, Vishal, Thirteenth Edition, 2001, P. 441).
16. The Parliament Act of 1911, and the Amending Act of 1949, have curtailed the powers of the House of Lords and established the supremacy of the House of Commons.
17. The 44th Amendment Act of 1978 restored the freedom of the press to publish true reports of state legislature without its prior permission. But, this is not applicable in the case of a secret sitting of the House.
18. Article 211 of the Constitution says that no discussion shall take place in the legislature of a state with respect to the conduct of any judge of the Supreme Court or of a high court in the discharge of his duties. Under the rules of a House(s) of the state legislature, use of unparliamentary

language or unparliamentary conduct of a member is prohibited.

18a. The Andhra Pradesh Reorganisation (Amendment) Act, 2015, increased the number of seats in the Legislative Council of Andhra Pradesh from 50 to 58.

19. Under the Jammu and Kashmir Reorganisation Act, 2019, the total number of seats fixed for the Legislative Assembly of the Union territory of Jammu and Kashmir is 107. But, 24 seats fall in the Pakistan-occupied-Kashmir (PoK). These seats are vacant and are not to be taken into account for reckoning the total membership of the Assembly. In addition, the Lieutenant Governor of the Union territory of Jammu and Kashmir may nominate two members to the Assembly to give representation to women, if in his opinion, women are not adequately represented in the Assembly.

34 High Court

In the Indian single integrated judicial system, the high court operates below the Supreme Court but above the subordinate courts. The judiciary ina state consists of a high court and a hierarchy of subordinate courts. The high court occupies the top position in the judicial administration of a state.

The institution of high court originated in India in 1862 when the high courts were set up at Calcutta, Bombay and Madras[1]. In 1866, a fourth high court was established at Allahabad. In the course of time, each province in British India came to have its own high court. After 1950, a high court existing in a province became the high court for the corresponding state.

The Constitution of India provides for a high court for each state, but the Seventh Amendment Act of 1956 authorised the Parliament to establish a common high court for two or more states or for two or more states and a union territory. The territorial jurisdiction of a high court is co-terminus with the territory of a state. Similarly, the territorial jurisdiction of a common high court is co-terminus with the territories of the concerned states and union territory.

At present (2019), there are 25 high courts in the country[2]. Out of them, only three high courts have jurisdiction over more than one state. Among the nine union territories, Delhi alone has a separate high court (since 1966). The union territories of Jammu and Kashmir and Ladakh have a common high court. The other union territories fall under the jurisdiction of different state high courts. The Parilament can extend the jurisdiction of a high court to any union territory or exclude the jurisdiction of a high court from any union territory.

The name, year of establishment, territorial jurisdiction and seat (with bench or benches) of all the 25 high courts are mentioned in Table 34.1 at the end of this chapter.

Articles 214 to 231 in Part VI of the Constitution deal with the organisation, independence, jurisdiction, powers, procedures and so on of the high courts.

COMPOSITION AND APPOINTMENT

Every high court (whether exclusive or common) consists of a chief justice and such other judges as the president may from time to time deem necessary to appoint. Thus, the Constitution does not specify the strength of a high court and leaves it to the discretion of the president. Accordingly, the President determines the strength of a high court from time to time depending upon its workload.

Appointment of Judges

The judges of a high court are appointed by the President. The chief justice is appointed by the President after consultation with the chief justice of India and the governor of the state concerned. For appointment of other judges, the chief justice of the concerned high court is also consulted. In case of a common high court for two or more states, the governors of all the states concerned are consulted by the president.

In the *Second Judges* case[3] (1993), the Supreme Court ruled that no appointment of a judge of the high court can be made, unless it is in conformity with the opinion of the chief justice of India. In the *Third Judges* case[4] (1998), the Supreme Court opined that in case of the appointment of high court judges, the chief justice of India should consult a collegium of two senior-most judges of the Supreme Court. Thus, the sole opinion of the chief justice of India alone does not constitute the 'consultation' process.

The 99th Constitutional Amendment Act of 2014 and the National Judicial Appointments Commission Act of 2014 have replaced the Collegium System of appointing judges to the Supreme Court and High Courts with a new body called the National Judicial Appointments Commission (NJAC). However, in 2015, the Supreme Court has declared both the 99th Constitutional Amendment as well as the NJAC Act as unconstitutional and void. Consequently, the earlier collegium system became operative again. This verdict was delivered by the Supreme Court in the Fourth Judges case[4a] (2015). The Court

opined that the new system (i.e., NJAC) would affect the independence of the judiciary.

QUALIFICATIONS, OATH AND SALARIES

Qualifications of Judges

A person to be appointed as a judge of a high court, should have the following qualifications:

1. He should be a citizen of India.
2. (a) He should have held a judicial office in the territory of India for ten years; or
   (b) He should have been an advocate of a high court (or high courts in succession) for ten years.

From the above, it is clear that the Constitution has not prescribed a minimum age for appointment as a judge of a high court. Moreover, unlike in the case of the Supreme Court, the Consitution makes no provision for appointment of a distinguished jurist as a judge of a high court.

Oath or Affirmation

A person appointed as a judge of a high court, before entering upon his office, has to make and subscribe an oath or affirmation before the governor of the state or some person appointed by him for this purpose. In his oath, a judge of a high court swears:

1. to bear true faith and allegiance to the Constitution of India;
2. to uphold the sovereignty and integrity of India;
3. to duly and faithfully and to the best of his ability, knowledge and judgement perform the duties of the office without fear or favour, affection or ill-will; and
4. to uphold the Constitution and the laws.

Salaries and Allowances

The salaries, allowances, privileges, leave and pension of the judges of a high court are determined from time to time by the Parliament. They cannot be varied to their disadvantage after their appointment except during a financial emergency. In 2018, the salary of the chief justice was increased from ₹90,000 to 2.50 lakh per month and that of a judge from ₹80,000 to 2.25 lakh per month[6]. They are also paid sumptuary allowance and provided

with free accommodation and other facilities like medical, car, telephone, etc.

The retired chief justice and judges are entitled to 50% of their last drawn salary as monthly pension.

TENURE, REMOVAL AND TRANSFER

Tenure of Judges

The Constitution has not fixed the tenure of a judge of a high court. However, it makes the following four provisions in this regard:

1. He holds office until he attains the age of 62 years[5]. Any questions regarding his age is to be decided by the president after consultation with the chief justice of India and the decision of the president is final.
2. He can resign his office by writing to the president.
3. He can be removed from his office by the President on the recommendation of the Parliament.
4. He vacates his office when he is appointed as a judge of the Supreme Court or when he is transferred to another high court.

Removal of Judges

A judge of a high court can be removed from his office by an order of the President. The President can issue the removal order only after an address by the Parliament has been presented to him in the same session for such removal. The address must be supported by a special majority of each House of Parliament (i.e., a majority of the total membership of that House and majority of not less than two-thirds of the members of that House present and voting). The grounds of removal are two–proved misbehaviour or incapacity. Thus, a judge of a high court can be removed in the same manner and on the same grounds as a judge of the Supreme Court.

The Judges Enquiry Act (1968) regulates the procedure relating to the removal of a judge of a high court by the process of impeachment:

1. A removal motion signed by 100 members (in the case of Lok Sabha) or 50 members (in the case of Rajya Sabha) is to be given to the Speaker/Chairman.
2. The Speaker/Chairman may admit the motion or refuse to admit it.

3. If it is admitted, then the Speaker/ Chairman is to constitute a three-member committee to investigate into the charges.
4. The committee should consist of (a) the chief justice or a judge of the Supreme Court, (b) a chief justice of a high court, and (c) a distinguished jurist.
5. If the committee finds the judge to be guilty of misbehaviour or suffering from an incapacity, the House can take up the consideration of the motion.
6. After the motion is passed by each House of Parliament by special majority, an address is presented to the president for removal of the judge.
7. Finally, the president passes an order removing the judge.

From the above, it is clear that the procedure for the impeachment of a judge of a high court is the same as that for a judge of the Supreme Court.

It is interesting to know that no judge of a high court has been impeached so far.

Transfer of Judges

The President can transfer a judge from one high court to another after consulting the Chief Justice of India. On transfer, he is entitled to receive in addition to his salary such compensatory allowance as may be determined by Parliament.

In 1977, the Supreme Court ruled that the transfer of high court judges could be resorted to only as an exceptional measure and only in public interest and not by way of punishment. Again in 1994, the Supreme Court held that judicial review is necessary to check arbitrariness in transfer of judges. But, only the judge who is transferred can challenge it.

In the *Third Judges* case (1998), the Supreme Court opined that in case of the transfer of high court judges, the Chief Justice of India should consult, in addition to the collegium of four seniormost judges of the Supreme Court, the chief justice of the two high courts (one from which the judge is being transferred and the other receiving him). Thus, the sole opinion of the chief justice of India does not constitute the ‘consultation’ process.

ACTING, ADDITIONAL AND RETIRED JUDGES

Acting Chief Justice

The President can appoint a judge of a high court as an acting chief justice of the high court when:

1. the office of chief justice of the high court is vacant; or
2. the chief justice of the high court is temporarily absent; or
3. the chief justice of the high court is unable to perform the duties of his office.

Additional and Acting Judges

The President can appoint duly qualified persons as additional judges of a high court for a temporary period not exceeding two years when:

1. there is a temporary increase in the business of the high court; or
2. there are arrears of work in the high court.

The President can also appoint a duly qualified person as an acting judge of a high court when a judge of that high court (other than the chief justice) is:

1. unable to perform the duties of his office due to absence or any other reason; or
2. appointed to act temporarily as chief justice of that high court.

An acting judge holds office until the permanent judge resumes his office. However, both the additional or acting judge cannot hold office after attaining the age of 62 years.

Retired Judges

At any time, the chief justice of a high court of a state can request a retired judge of that high court or any other high court to act as a judge of the high court of that state for a temporary period. He can do so only with the previous consent of the President and also of the person to be so appointed. Such a judge is entitled to such allowances as the President may determine. He will also enjoy all the jurisdiction, powers and privileges of a judge of that high court.

But, he will not otherwise be deemed to be a judge of that high court.

INDEPENDENCE OF HIGH COURT

The independence of a high court is very essential for the effective discharge of the duties assigned to it. It should be free from the encroachments, pressures and interferences of the executive (council of ministers) and the legislature. It should be allowed to do justice without fear or favour.

The Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of a high court.

1. Mode of Appointment

The judges of a high court are appointed by the president (which means the cabinet) in consultation with the members of the judiciary itself (i.e., chief justice of India and the chief justice of the high court). This provision curtails the absolute discretion of the executive as well as ensures that the judicial appointments are not based on any political or practical considerations.

2. Security of Tenure

The judges of a high court are provided with the security of tenure. They can be removed from office by the president only in the manner and on the grounds mentioned in the Constitution. This means that they do not hold their office during the pleasure of the president, though they are appointed by him. This is obvious from the fact that no judge of a high court has been removed (or impeached) so far.

3. Fixed Service Conditions

The salaries, allowances, privileges, leave and pension of the judges of a high court are determined from time to time by the Parliament. But, they cannot be changed to their disadvantage after their appointment except during a financial emergency. Thus, the conditions of service of the judges of a high court remain same during their term of office.

4. Expenses Charged on Consolidated Fund

The salaries and allowances of the judges, the salaries, allowances and pensions of the staff as well as the administrative expenses of a high court are charged on the consolidated fund of the state. Thus, they are non-votable by the state legislature (though they can be discussed by it). It should be noted here that the pension of a high court judge is charged on the Consolidated Fund of India and not the state.

5. Conduct of Judges cannot be Discussed

The Constitution prohibits any discussion in Parliament or in a state legislature with respect to the conduct of the judges of a high court in the discharge of their duties, except when an impeachment motion is under consideration of the Parliament.

6. Ban on Practice after Retirement

The retired permanent judges of a high court are prohibited from pleading or acting in any court or before any authority in India except the Supreme Court and the other high courts. This ensures that they do not favour any one in the hope of future favour.

7. Power to Punish for its Contempt

A high court can punish any person for its contempt. Thus, its actions and decisions cannot be criticised and opposed by anybody. This power is vested in a high court to maintain its authority, dignity and honour.

8. Freedom to Appoint its Staff

The chief justice of a high court can appoint officers and servants of the high court without any interference from the executive. He can also prescribe their conditions of service.

9. Its Jurisdiction cannot be Curtailed

The jurisdiction and powers of a high court in so far as they are specified in the Constitution cannot be curtailed both by the Parliament and the state legislature. But, in other respects, the jurisdiction and powers of a high court can be changed both by the parliament and the state legislature.

10. Separation from Executive

The Constitution directs the state to take steps to separate the judiciary from the executive in public services. This means that the executive authorities should not possess the judicial powers. Consequent upon its implementation, the role of executive authorities in judicial administration came to an end[7] .

JURISDICTION AND POWERS OF HIGH COURT

Like the Supreme Court, the high court has been vested with quite extensive and effective powers. It is the highest court of appeal in the state. It is the protector of the Fundamental Rights of the citizens. It is vested with the power to interpret the Constitution. Besides, it has supervisory and consultative roles.

However, the Constitution does not contain detailed provisions with regard to the jurisdiction and powers of a high court. It only lays down that the jurisdiction and powers of a high court are to be the same as immediately before the commencement of the Constitution. But, there is one addition, that is, the Constitution gives a high court jurisdiction over revenue matters (which it did not enjoy in the pre-con-stitution era). The Constitution also confers (by other provisions) some more additional powers on a high court like writ jurisdiction, power of superintendence, consultative power, etc. Moreover, it empowers the Parliament and the state legislature to change the jurisdiction and powers of a high court.

At present, a high court enjoys the following jurisdiction and powers:

1. Original jurisdiction.
2. Writ jurisdiction.
3. Appellate jurisdiction.
4. Supervisory jurisdiction.
5. Control over subordinate courts.
6. A court of record.
7. Power of judicial review.

The present jurisdiction and powers of a high court are governed by (a) the constitutional provisions, (b) the Letters Patent, (c) the Acts of Parliament, (d) the Acts of State Legislature, (e) Indian Penal Code, 1860, (f) Cirminal Procedure Code, 1973, and (g) Civil Procedure Code, 1908.

1. Original Jurisdiction

It means the power of a high court to hear disputes in the first instance, not by way of appeal. It extends to the following:

(a) Matters of admirality and contempt of court.
(b) Disputes relating to the election of members of Parliament and state legislatures.
(c) Regarding revenue matter or an act ordered or done in revenue collection.
(d) Enforcement of fundamental rights of citizens.
(e) Cases ordered to be transferred from a subordinate court involving the interpretation of the Constitution to its own file.
(f) The four high courts (i.e., Calcutta, Bombay, Madras and Delhi High Courts) have original civil jurisdiction in cases of higher value.

Before 1973, the Calcutta, Bombay and Madras High Courts also had original criminal jurisdiction. This was fully abolished by the Criminal Procedure Code, 1973.

2. Writ Jurisdiction

Article 226 of the Constitution empowers a high court to issue writs including *habeas corpus, mandamus, certiorari*, prohibition and *quo warranto* for the enforcement of the fundamental rights of the citizens and for any other purpose. The phrase 'for any other purpose' refers to the enforcement of an ordinary legal right. The high court can issue writs to any person, authority and government not only within its territorial jurisdiction but also outside its territorial jurisdiction if the cause of action arises within its territorial jurisdiction[8] .

The writ jurisdiction of the high court (under Article 226) is not exclusive but concurrent with the writ jurisdiction of the Supreme Court (under Article 32). It means, when the fundamental rights of a citizen are violated, the aggrieved party has the option of moving either the high court or the Supreme Court directly. However, the writ jurisdiction of the high court is wider than that of the Supreme Court. This is because, the Supreme Court can issue writs only for the enforcement of fundamental rights and not for any other purpose, that is, it does not extend to a case where the breach of an ordinary legal right is alleged.

In the *Chandra Kumar* case[9] (1997), the Supreme Court ruled that the writ jurisdiction of both the high court and the Supreme

Court constitute a part of the basic structure of the Constitution. Hence, it cannot be ousted or excluded even by way of an amendment to the Constitution.

3. Appellate Jurisdiction

A high court is primarily a court of appeal. It hears appeals against the judgements of subordinate courts functioning in its territorial jurisdiction. It has appellate jurisdiction in both civil and criminal matters. Hence, the appellate jurisdiction of a high court is wider than its original jurisdiction.

(a) Civil Matters

The civil appellate jurisdiction of a high court is as follows:

(i) First appeals from the orders and judgements of the district courts, additional district courts and other subordinate courts lie directly to the high court, on both questions of law and fact, if the amount exceeds the stipulated limit.

(ii) Second appeals from the orders and judgements of the district court or other subordinate courts lie to the high court in the cases involving questions of law only (and not questions of fact).

(iii) The Calcutta, Bombay and Madras High Courts have provision for intra-court appeals. When a single judge of the high court has decided a case (either under the original or appellate jurisdiction of the high court), an appeal from such a decision lies to the division bench of the same high court.

(iv) Appeals from the decisions of the administrative and other tribunals lie to the division bench of the state high court. In 1997, the Supreme Court ruled that the tribunals are subject to the writ jurisdiction of the high courts. Consequently, it is not possible for an aggrieved person to approach the Supreme Court directly against the decisions of the tribunals, without first going to the high courts.

(b) Criminal Matters

The criminal appellate jurisdiction of a high court is as follows:

(i) Appeals from the judgements of sessions court and additional sessions court lie to the high court if the sentence is one of

imprisonment for more than seven years. It should also be noted here that a death sentence (popularly known as capital punishment) awarded by a sessions court or an additional sessions court should be confirmed by the high court before it can be executed, whether there is an appeal by the convicted person or not.

(ii) In some cases specified in various provisions of the Criminal Procedure Code (1973), the appeals from the judgements of the assistant sessions judge, metropolitan magistrate or other magistrates (judicial) lie to the high court.

4. Supervisory Jurisdiction

A high court has the power of superintendence over all courts and tribunals functioning in its territorial jurisdiction (except military courts or tribunals). Thus, it may–

(a) call for returns from them;
(b) make and issue, general rules and prescribe forms for regulating the practice and proceedings of them;
(c) prescribe forms in which books, entries and accounts are to be kept by them; and
(d) settle the fees payable to the sheriff, clerks, officers and legal practitioners of them.

This power of superintendence of a high court is very broad because, (i) it extends to all courts and tribunals whether they are subject to the appellate jurisdiction of the high court or not; (ii) it covers not only administrative superintendence but also judicial superintendence; (iii) it is a revisional jurisdiction; and (iv) it can be *suo-motu* (on its own) and not necessarily on the application of a party.

However, this power does not vest the high court with any unlimited authority over the subordinate courts and tribunals. It is an extraordinary power and hence has to be used most sparingly and only in appropriate cases. Usually, it is limited to, (i) excess of jurisdiction, (ii) gross violation of natural justice, (iii) error of law, (iv) disregard to the law of superior courts, (v) perverse findings, and (vi) manifest injustice.

5. Control over Subordinate Courts

In addition to its appellate jurisdiction and supervisory jurisdiction over the subordinate courts as mentioned above, a high court has an administrative control and other powers over them. These include the following:

(a) It is consulted by the governor in the matters of appointment, posting and promotion of district judges and in the appointments of persons to the judicial service of the state (other than district judges).

(b) It deals with the matters of posting, promotion, grant of leave, transfers and discipline of the members of the judicial service of the state (other than district judges).

(c) It can withdraw a case pending in a subordinate court if it involves a substantial question of law that require the interpretation of the Constitution. It can then either dispose of the case itself or determine the question of law and return the case to the subordinate court with its judgement.

(d) Its law is binding on all subordinate courts functioning within its territorial jurisdiction in the same sense as the law declared by the Supreme Court is binding on all courts in India.

6. A Court of Record

As a court of record, a high court has two powers:

(a) The judgements, proceedings and acts of the high courts are recorded for perpetual memory and testimony. These records are admitted to be of evidentiary value and cannot be questioned when produced before any subordinate court. They are recognised as legal precedents and legal references.

(b) It has power to punish for contempt of court, either with simple imprisonment or with fine or with both.

The expression ‘contempt of court’ has not been defined by the Constitution. However, the expression has been defined by the Contempt of Court Act of 1971. Under this, contempt of court may be civil or criminal. Civil contempt means wilful disobedience to any judgement, order, writ or other process of a court or wilful

breach of an undertaking given to a court. Criminal contempt means the publication of any matter or doing an act which–(i) scandalises or lowers the authority of a court; or (ii) prejudices or interferes with the due course of a judicial proceeding; or (iii) interferes or obstructs the administration of justice in any other manner.

However, innocent publication and distribution of some matter, fair and accurate report of judicial proceedings, fair and reasonable criticism of judicial acts and comment on the administrative side of the judiciary do not amount to contempt of court.

As a court of record, a high court also has the power to review and correct its own judgement or order or decision, even though no specific power of review is conferred on it by the Constitution. The Supreme Court, on the other hand, has been specifically conferred with the power of review by the constitution.

7. Power of Judicial Review

Judicial review is the power of a high court to examine the constitutionality of legislative enactments and executive orders of both the Central and state governments. On examination, if they are found to be violative of the Constitution (*ultra-vires*), they can be declared as illegal, unconstitutional and invalid (null and void) by the high court. Consequently, they cannot be enforced by the government.

Though the phrase 'judicial review' has no where been used in the Constitution, the provisions of Articles 13 and 226 explicitly confer the power of judicial review on a high court. The constitutional validity of a legislative enactment or an executive order can be challenged in a high court on the following three grounds:

(a) it infringes the fundamental rights (Part III),
(b) it is outside the competence of the authority which has framed it, and
(c) it is repugnant to the constitutional provisions.

The 42nd Amendment Act of 1976 curtailed the judicial review power of high court. It debarred the high courts from considering

the constitutional validity of any central law. However, the 43rd Amendment Act of 1977 restored the original position.

Table 34.1 *Name and Jurisdiction of High Courts*

	Name	Year of establishment	Territorial Jurisdiction	Seat
1.	Allahabad	1866	Uttar Pradesh	Allahabad (Bench at Lucknow)
2.	Andhra Pradesh	2019	Andhra Pradesh	Amaravati
3.	Bombay[13]	1862	Maharashta, Goa, Dadra and Nagar Haveli and Daman and Diu	Mumbai (Benches at Nagpur, Panaji and Aurangabad)
4.	Calcutta[13]	1862	West Bengal and Andaman and Nicobar Islands	Kolkata (Circuit Bench at Port Blair)
5.	Chhattisgarh	2000	Chhattisgarh	Bilaspur
6.	Delhi	1966	Delhi	Delhi
7.	Guwahati	1948[10]	Assam, Nagaland, Mizoram and Arunachal Pradesh[14]	Guwahati (Benches at Kohima, Aizawl and Itanagar)
8.	Gujarat	1960	Gujarat	Ahmedabad
9.	Himachal Pradesh	1971	Himachal Pradesh	Simla
10.	Jammu and Kashmir	1928	Jammu and Kashmir and Ladakh	Srinagar and Jammu
11.	Jharkhand	2000	Jharkhand	Ranchi

12.	Karnataka	1884[11]	Karnataka	Bengaluru
13.	Kerala	1956	Kerala and Lakshadweep	Ernakulam
14.	Madhya Pradesh	1956	Madhya Pradesh	Jabalpur (Benches at Gwalior and Indore)
15.	Madras[13]	1862	Tamil Nadu and Puducherry	Chennai
16.	Manipur[15]	2013	Manipur	Imphal
17.	Meghalaya[15]	2013	Meghalaya	Shillong
18.	Orissa[16]	1948	Odisha	Cuttack
19.	Patna	1916	Bihar	Patna
20.	Punjab and Haryana	1875[12]	Punjab, Haryana and Chandigarh	Chandigarh
21.	Rajasthan	1949	Rajasthan	Jodhpur (Bench at Jaipur)
22.	Sikkim	1975	Sikkim	Gangtok
23.	Telangana[17]	1954	Telangana	Hyderabad
24.	Tripura[15]	2013	Tripura	Agartala
25.	Uttarakhand	2000	Uttarakhand	Nainital

Table 34.2 *Articles Related to High Courts at a Glance*

Article No.	Subject Matter
214.	High Courts for states
215.	High Courts to be courts of record
216.	Constitution of High Courts
217.	Appointment and conditions of the office of a Judge of a High Court

218.	Application of certain provisions relating to Supreme Court to High Courts
219.	Oath or affirmation by judges of High Courts
220.	Restriction on practice after being a permanent judge
221.	Salaries etc., of judges
222.	Transfer of a judge from one High Court to another
223.	Appointment of acting Chief Justice
224.	Appointment of additional and acting judges
224A.	Appointment of retired judges at sittings of High Courts
225.	Jurisdiction of existing High Courts
226.	Power of High Courts to issue certain writs
226A.	Constitutional validity of Central laws not to be considered in proceedings under Article 226 (Repealed)
227.	Power of superintendence over all courts by the High Court
228.	Transfer of certain cases to High Court
228A.	Special provisions as to disposal of questions relating to constitutional validity of state laws (Repealed)
229.	Officers and servants and the expenses of High Courts
230.	Extension of jurisdiction of High Courts to union territories
231.	Establishment of a common High Court for two or more states
232.	Interpretation (Repealed)

NOTES AND REFERENCES

1. These three high courts were set up under the provisions of the Indian High Courts Act, 1861.
2. With the creation of three more new states in 2000, the number of high courts increased from 18 to 21. Again, with the creation of separate high courts for the three north-eastern states of Manipur, Meghalaya and Tripura in 2013, the number of high courts increased from 21 to 24. Further, with the establishment of a separate high court for the state of Andhra Pradesh in 2019, the number of high courts increased from 24 to 25.
3. *Supreme Court Advocates* v. *Union of India* (1993).
4. *In re* Presidential Reference (1998). The president sought the Supreme Court's opinion (under Article 143) on certain doubts over the consultation process to be adopted by the chief justice of India as stipulated in the 1993 case.

4a. *Supreme Court Advocates-on-Record Association and another vs. Union of India* (2015).

5. The retirement age has been raised from 60 to 62 years by the 15th Amendment Act of 1963.
6. In 1950, their salaries were fixed at ₹4,000 per month and ₹3,500 per month respectively. In 1986, their salaries were raised to ₹9,000 per month and ₹8,000 per month respectively. In 1998, their salaries were raised to ₹30,000 per month and ₹26,000 per month respectively. In 2009, their salaries were raised to ₹90,000 per month and ₹80,000 per month respectively.
7. The Criminal Procedure Code (1973) has effected the separation of judiciary from the executive (Article 50 under the Directive Principles of State Policy).
8. The second provision was added by the 15th Constitutional Amendment Act of 1963.
9. *L. Chandra Kumar* v. *Union of India* (1997).
10. Originally known as Assam High Court and renamed Guwahati High Court in 1971.

11. Originally known as Mysore High Court and renamed Karnataka High Court in 1973.
12. Originally known as Punjab High Court and renamed Punjab and Haryana High Court in 1966.
13. Though the names of Bombay, Calcutta and Madras are changed to Mumbai, Kolkata and Chennai respectively, the names of respective high courts are not changed.
14. In 2013, separate high courts were created for the three north-eastern states of Manipur, Meghalaya and Tripura.
15. Established by the North-Eastern Areas (Reorganisation) and other Related Laws (Amendment) Act, 2012.
16. Though the name of Orissa is changed to Odisha, the name of Orissa High Court is not changed.
17. Originally known as Andhra Pradesh High Court (established in 1954). In 2014, it was renamed as the “High Court of Judicature at Hyderabad” and was made a common high court for the states of Andhra Pradesh and Telangana. Again, with the establishment of a separate high court for the state of Andhra Pradesh in 2019, it became the high court for the state of Telangana.

35 Tribunals

The original Constitution did not contain provisions with respect to tribunals. The 42nd Amendment Act of 1976 added a new Part XIV-A to the Constitution. This part is entitled as ‘Tribunals’ and consists of only two Articles–Article 323 A dealing with administrative tribunals and Article 323 B dealing with tribunals for other matters.

ADMINISTRATIVE TRIBUNALS

Article 323 A empowers the Parliament to provide for the establishment of administrative tribunals for the adjudication of disputes relating to recruitment and conditions of service of persons appointed to public services of the Centre, the states, local bodies, public corporations and other public authorities. In other words, Article 323 A enables the Parliament to take out the adjudication of disputes relating to service matters from the civil courts and the high courts and place it before the administrative tribunals.

In pursuance of Article 323 A, the Parliament has passed the Administrative Tribunals Act in 1985. The act authorises the Central government to establish one Central administrative tribunal and the state administrative tribunals. This act opened a new chapter in the sphere of providing speedy and inexpensive justice to the aggrieved public servants.

Central Administrative Tribunal (CAT)

The Central Administrative Tribunal (CAT) was set up in 1985 with the principal bench at Delhi and additional benches in different states. At present, it has 17 regular benches, 15 of which operate at the principal seats of high courts and the remaining two at Jaipur and Lucknow[1]. These benches also hold circuit sittings at other seats of high courts.

The CAT exercises original jurisdiction in relation to recruitment and all service matters of public servants covered by it. Its jurisdiction extends to the all-India services, the Central civil services, civil posts under the Centre and civilian employees of defence services. However, the members of the defence forces, officers and servants of the Supreme Court and the secretarial staff of the Parliament are not covered by it.

The CAT is a multi-member body consisting of a chairman and members. Originally, the CAT consisted of a Chairman, Vice-Chairman and members. Later, in 2006, the provision for the Vice-Chairman was removed by the Administrative Tribunals

(Amendment) Act, 2006. Hence, there are now no Vice-Chairman in the CAT. At present (2019), the sanctioned strength of the Chairman is one and sanctioned strength of the Members is 65. They are drawn from both judicial and administrative streams and are appointed by the president. They hold office for a term of five years or until they attain the age of 65 years in case of chairman and 62 years in case of members, whichever is earlier.

The appointment of Members in CAT is made on the basis of recommendations of a high powered selection committee chaired by a sitting Judge of Supreme Court who is nominated by the Chief Justice of India. After obtaining the concurrence of Chief Justice of India, appointments are made with the approval of Appointments Committee of the Cabinet (ACC).

The CAT is not bound by the procedure laid down in the Civil Procedure Code of 1908. It is guided by the principles of natural justice. These principles keep the CAT flexible in approach. Only a nominal fee of ₹50 is to be paid by the applicant. The applicant may appear either in person or through a lawyer.

Originally, appeals against the orders of the CAT could be made only in the Supreme Court and not in the high courts. However, in the *Chandra Kumar* case[2] (1997), the Supreme Court declared this restriction on the jurisdiction of the high courts as unconstitutional, holding that judicial review is a part of the basic structure of the Constitution. It laid down that appeals against the orders of the CAT shall lie before the division bench of the concerned high court. Consequently, now it is not possible for an aggrieved public servant to approach the Supreme Court directly against an order of the CAT, without first going to the concerned high court.

State Administrative Tribunals

The Administrative Tribunals Act of 1985 empowers the Central government to establish the State Administrative Tribunals (SATs) on specific request of the concerned state governments. So far (2019), the SATs have been set up in the nine states of Andhra Pradesh, Himachal Pradesh, Odisha, Karnataka, Madhya Pradesh, Maharashtra, Tamil Nadu, West Bengal and Kerala.

However, the Madhya Pradesh, Tamil Nadu and Himachal Pradesh Tribunals have since been abolished.

But subsequently, the Himachal Pradesh reestablished the SAT and the state of Tamil Nadu has also requested now to re-establish the same. Further, the state government of Haryana has requested to establish the SAT for their state. On the other hand, the state government of Odisha has submitted a proposal for abolition of Odisha Administrative Tribunal.

Like the CAT, the SATs exercise original jurisdiction in relation to recruitment and all service matters of state government employees.

The chairman and members of the SATs are appointed by the president after consultation with the governor of the state concerned.

The act also makes a provision for setting up of joint administrative tribunal (JAT) for two or more states. A JAT exercises all the jurisdiction and powers exercisable by the administrative tribunals for such states.

The chairman and members of a JAT are appointed by the president after consultation with the governors of the concerned states.

TRIBUNALS FOR OTHER MATTERS

Under Article 323 B, the Parliament and the state legislatures are authorised to provide for the establishment of tribunals for the adjudication of disputes relating to the following matters:

(a) Taxation
(b) Foreign exchange, import and export
(c) Industrial and labour
(d) Land reforms
(e) Ceiling on urban property
(f) Elections to Parliament and state legislatures
(g) Food stuffs
(h) Rent and tenancy rights[3]

Articles 323 A and 323 B differs in the following three aspects:

1. While Article 323 A contemplates establishment of tribunals for public service matters only, Article 323 B contemplates establishment of tribunals for certain other matters (mentioned above).
2. While tribunals under Article 323 A can be established only by Parliament, tribunals under Article 323 B can be established both by Parliament and state legislatures with respect to matters falling within their legislative competence.
3. Under Article 323 A, only one tribunal for the Centre and one for each state or two or more states may be established. There is no question of hierarchy of tribunals, whereas under Article 323 B a hierarchy of tribunals may be created.

In *Chandra Kumar* case[4] (1997), the Supreme Court declared those provisions of these two articles which excluded the jurisdiction of the high courts and the Supreme Court as unconstitutional. Hence, the judicial remedies are now available against the orders of these tribunals.

Table 35.1 *Name and Jurisdiction of Benches of CAT*

Sl. No.	Bench	Territorial Jurisdiction of the Bench
1.	Principal Bench,	Delhi

	Delhi	
2.	Allahabad Bench	Uttar Pradesh (except the districts covered by Lucknow Bench) and Uttarakhand
3.	Lucknow Bench	Uttar Pradesh (except the districts covered by the Allahabad Bench)
4.	Cuttack Bench	Odisha
5.	Hyderabad Bench	Andhra Pradesh and Telangana
6.	Bangalore Bench	Karnataka
7.	Madras Bench	Tamil Nadu and Puducherry
8.	Ernakulam Bench	Kerala and Lakshadweep
9.	Bombay Bench	Maharashtra, Goa, Dadra and Nagar Haveli, and Daman and Diu
10.	Ahmedabad Bench	Gujarat
11.	Jodhpur Bench	Rajasthan (except the districts covered by the Jaipur Bench)
12.	Jaipur Bench	Rajasthan (except the districts covered by the Jodhpur Bench)
13.	Chandigarh Bench	Haryana, Himachal Pradesh, Punjab, Chandigarh, J&K and Ladakh
14.	Jabalpur Bench	Madhya Pradesh and Chhattisgarh
15.	Patna Bench	Bihar and Jharkhand
16.	Calcutta Bench	West Bengal, Sikkim and Andaman and Nicobar Islands
17.	Guwahati Bench	Assam, Meghalaya, Manipur, Tripura, Nagaland, Mizoram and Arunachal Pradesh

Table 35.2 *Circuit Sittings of Benches of CAT*

Sl. No.	Bench	Circuit Sittings held at

1.	Allahabad Bench	Nainital
2.	Calcutta Bench	Port Blair, Gangtok
3.	Chandigarh Bench	Shimla, Jammu, Srinagar
4.	Madras Bench	Puducherry
5.	Guwahati Bench	Shillong, Itanagar, Kohima, Agartala, Imphal, Aizwal
6.	Jabalpur Bench	Indore, Gwalior, Bilaspur
7.	Bombay Bench	Nagpur, Aurangabad, Panaji
8.	Patna Bench	Ranchi
9.	Ernakulam Bench	Lakshadweep

Table 35.3 *Articles Related to Tribunals at a Glance*

Article No.	Subject-matter
323A.	Administrative tribunals
323B.	Tribunals for other matters

NOTES AND REFERENCES

1. See Table 35.1 at the end of this chapter.
2. *L. Chandra Kumar v. Union of India,* (1997). Clause 2(d) of Article 323 A was declared as unconstitutional.
3. Added by the 75th Amendment Act of 1993.
4. *L. Chandra Kumar v. Union of India,* (1997). Clause 2(d) of Article 323 A and Clause 3(d) of Article 323 B were declared as unconstitutional.

36 Subordinate Courts

The state judiciary consists of a high court and a hierarchy of subordinate courts, also known as lower courts. The subordinate courts are so called because of their subordination to the state high court. They function below and under the high court at district and lower levels.

CONSTITUTIONAL PROVISIONS

Articles 233 to 237 in Part VI of the Constitution make the following provisions to regulate the organization of subordinate courts and to ensure their independence from the executive[1] .

1. Appointment of District Judges

The appointment, posting and promotion of district judges in a state are made by the governor of the state in consultation with the high court.

A person to be appointed as district judge should have the following qualifications:

(a) He should not already be in the service of the Central or the state government.
(b) He should have been an advocate or a pleader for seven years.
(c) He should be recommended by the high court for appointment.

2. Appointment of District Judges

Appointment of persons (other than district judges) to the judicial service of a state are made by the governor of the state after consultation with the State Public Service Commission and the high court[2] .

3. Control over Subordinate Courts

The control over district courts and other subordinate courts including the posting, promotion and leave of persons belonging to the judicial service of a state and holding any post inferior to the post of district judge is vested in the high court.

4. Interpretation

The expression ‘district judge’ includes judge of a city civil court, additional district judge, joint district judge, assistant district judge, chief judge of a small cause court, chief presidency magistrate, additional chief presidency magistrate, sessions judge, additional sessions judge and assistant sessions judge.

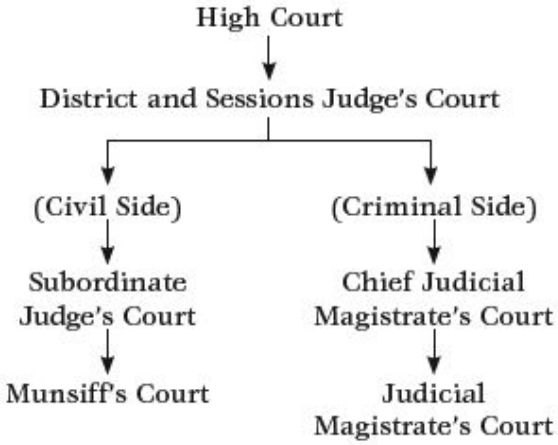
The expression ‘judicial service’ means a service consisting exclusively of persons intended to fill the post of district judge and other civil judicial posts inferior to the post of district judge.

5. Application of the above Provisions to Certain Magistrates

The Governor may direct that the above mentioned provisions relating to persons in the state judicial service would apply to any class or classes of magistrates in the state.

STRUCTURE AND JURISDICTION

The organisational structure, jurisdiction and nomenclature of the subordinate judiciary are laid down by the states. Hence, they differ slightly from state to state. Broadly speaking, there are three tiers of civil and criminal courts below the High Court. This is shown as follows:



The district judge is the highest judicial authority in the district. He possesses original and appellate jurisdiction in both civil as well as criminal matters. In other words, the district judge is also the sessions judge. When he deals with civil cases, he is known as the district judge and when he hears the criminal cases, he is called as the sessions judge. The district judge exercises both judicial and administrative powers. He also has supervisory powers over all the subordinate courts in the district. Appeals against his orders and judgements lie to the High Court. The sessions judge has the power to impose any sentence including life imprisonment and capital punishment (death sentence). However, a capital punishment passed by him is subject to confirmation by the High Court, whether there is an appeal or not.

Below the District and Sessions Court stands the Court of Subordinate Judge on the civil side and the Court of Chief Judicial Magistrate on the criminal side. The subordinate judge exercises unlimited pecuniary jurisdiction over civil suits[3]. The chief judicial magistrate decides criminal cases which are punishable with imprisonment for a term up to seven years.

At the lowest level, on the civil side, is the Court of Munsiff and on the criminal side, is the Court of Judicial Magistrate. The munsiff possesses limited jurisdiction and decides civil cases of small

pecuniary stake[4]. The judicial magistrate tries criminal cases which are punishable with imprisonment for a term up to three years.

In some metropolitan cities, there are city civil courts (chief judges) on the civil side and the courts of metropolitan magistrates on the criminal side.

Some of the States and Presidency towns have established small causes courts[5]. These courts decide the civil cases of small value in a summary manner. Their decisions are final, but the High Court possesses a power of revision.

In some states, Panchayat Courts try petty civil and criminal cases. They are variously known as Nyaya Panchayat, Gram Kutchery, Adalati Panchayat, Panchayat Adalat and so on.

Table 36.1 *Articles Related to Subordinate Courts at a Glance*

Article No.	Subject Matter
233.	Appointment of district judges
233A.	Validation of appointments of, and judgements, etc., delivered by certain district judges
234.	Recruitment of persons other than district judges to the judicial service
235.	Control over subordinate courts
236.	Interpretation
237.	Application of the provisions of this Chapter to certain class or classes of Magistrates

NATIONAL LEGAL SERVICES AUTHORITY[6]

Article 39A of the Constitution of India provides for free legal aid to the poor and weaker sections of the society and ensures justice for all. Articles 14 and 22(1) of the Constitution also make it obligatory for the State to ensure equality before law and a legal system which promotes justice on the basis of equal opportunity to all. In the year 1987, the Legal Services Authorities Act was enacted by the Parliament which came into force on 9th November, 1995 to establish a nationwide uniform network for providing free and competent legal services to the weaker sections of the society on the basis of equal opportunity. The National Legal Services Authority (NALSA) has been constituted under the Legal Services Authorities Act, 1987 to monitor and evaluate implementation of legal aid programmes and to lay down policies and principles for making legal services available under the Act.

In every State, a State Legal Services Authority and in every High Court, a High Court Legal Services Committee have been constituted. The District Legal Services Authorities, Taluk Legal Services Committees have been constituted in the Districts and most of the Taluks to give effect to the policies and directions of the NALSA and to provide free legal services to the people and conduct Lok Adalats in the State.

The Supreme Court Legal Services Committee has been constituted to administer and implement the legal services programme insofar as it relates to the Supreme Court of India.

The NALSA lays down policies, principles, guidelines and frames effective and economical schemes for the State Legal Services Authorities to implement the Legal Services Programmes throughout the country.

Primarily, the State Legal Services Authorities, District Legal Services Authorities, Taluk Legal Services Committees, etc. have been asked to discharge the following main functions on regular basis:

1. To provide free and competent legal services to the eligible persons.
2. To organise Lok Adalats for amicable settlement of disputes.
3. To organise legal awareness camps in the rural areas.

The free legal services include:

(a) Payment of court fee, process fees and all other charges payable or incurred in connection with any legal proceedings.
(b) Providing service of lawyers in legal proceedings.
(c) Obtaining and supply of certified copies of orders and other documents in legal proceedings.
(d) Preparation of appeal, paper book including printing and translation of documents in legal proceedings.

The persons eligible for getting free legal services include:

(i) Women and children
(ii) Members of SC/ST
(iii) Industrial workmen
(iv) Victims of mass disaster, violence, f lood, drought, earthquak industrial disaster
(v) Disabled persons
(vi) Persons in custody
(vii) Persons whose annual income does not exceed ₹1 lakh (in t Supreme Court Legal Services Committee the limit ₹1,25,000/-)
(viii) Victims of trafficking in human beings or begar.

LOK ADALATS

The Lok Adalat is a forum where the cases (or disputes) which are pending in a court or which are at pre-litigation stage (not yet brought before a court) are compromised or settled in an amicable manner.

Meaning

The Supreme Court has explained the meaning of the institution of Lok Adalat in the following way[7] :

The 'Lok Adalat' is an old form of adjudicating system prevailed in ancient India and it's validity has not been taken away even in the modern days too. The word 'Lok Adalat' means 'People's Court'. This system is based on Gandhian principles. It is one of the components of ADR (Alternative Dispute Resolution) system. As the Indian courts are overburdened with the backlog of cases and the regular courts are to decide the cases involving a lengthy, expensive and tedious procedure. The court takes years together to settle even petty cases. The Lok Adalat, therefore, provides alternative resolution or devise for expeditious and inexpensive justice.

In Lok Adalat proceedings, there are no victors and vanquished and, thus, no rancour.

The experiment of 'Lok Adalat' as an alternate mode of dispute settlement has come to be accepted in India, as a viable, economic, efficient and informal one.

The Lok Adalat is another alternative in judicial justice. This is a recent strategy for delivering informal, cheap and expeditious justice to the common man by way of settling disputes, which are pending in courts and also those, which have not yet reached courts by negotiation, conciliation and by adopting persuasive, common sense and human approach to the problems of the disputants, with the assistance of specially trained and experienced members of a team of conciliators.

Statutory Status

The first Lok Adalat camp in the postindependence era was organised in Gujarat in 1982. This initiative proved very successful in the settlement of disputes. Consequently, the institution of Lok Adalat started spreading to other parts of the country. At that time, this

institution was functioning as a voluntary and conciliatory agency without any statutory backing for its decisions. In view of its growing popularity, there arose a demand for providing a statutory backing to this institution and the awards given by Lok Adalats. Hence, the institution of Lok Adalat has been given statutory status under the Legal Services Authorities Act, 1987.

The Act makes the following provisions relating to the organisation and functioning of the Lok Adalats:

1. The State Legal Services Authority or the District Legal Services Authority or the Supreme Court Legal Services Committee or the High Court Legal Services Committee or the Taluk Legal Services Committee may organise Lok Adalats at such intervals and places and for exercising such jurisdiction and for such areas as it thinks fit.
2. Every Lok Adalat organised for an area shall consist of such number of serving or retired judicial officers and other persons of the area as may be specified by the agency organizing such Lok Adalat. Generally, a Lok Adalat consists of a judicial officer as the chairman and a lawyer (advocate) and a social worker as members.
3. A Lok Adalat shall have jurisdiction to determine and to arrive at a compromise or settlement between the parties to a dispute in respect of:
   (i) any case pending before any court; or
   (ii) any matter which is falling within the jurisdiction of any court an not brought before such court.

   Thus, the Lok Adalat can deal with not only the cases pending before a court but also with the disputes at pre-litigation stage.

   The various matters such as Matri-monial/Family Disputes, Criminal (Compoundable Offences) cases, Land Acquisition cases, Labour disputes, Workmen's compensation cases, Bank Recovery cases, Pension cases, Housing Board and Slum Clearance cases, Housing Finance cases, Consumer Grievance cases, Electricity matters, Disputes relating to Telephone Bills, Municipal matters including House Tax cases, Disputes with Cellular Companies etc. are being taken up in the Lok Adalats.[7a]

   But, the Lok Adalat shall have no jurisdiction in respect of any case or matter relating to an offence not compoundable under any law. In other words, the offences which are non-

compoundable under any law fall outside the purview of the Lok Adalat.

4. Any case pending before the court can be referred to the Lok Adalat for settlement if:
   (i) the parties thereof agree to settle the dispute in the Lok Adalat
   (ii) one of the parties thereof makes an application to the court referring the case to the Lok Adalat; or
   (iii) the court is satisfied that the matter is an appropriate one to taken cognizance of by the Lok Adalat.

   In the case of a pre-litigation dispute, the matter can be referred to the Lok Adalat for settlement by the agency organizing the Lok Adalat, on receipt of an application from any one of the parties to the dispute.
5. The Lok Adalat shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure (1908), while trying a suit in respect of the following matters:
   (a) the summoning and enforcing the attendance of any witness examining him on oath;
   (b) the discovery and production of any document;
   (c) the reception of evidence on affidavits;
   (d) the requisitioning of any public record or document from any court or office; and
   (e) such other matters as may be prescribed.

   Further, a Lok Adalat shall have the requisite powers to specify its own procedure for the determination of any dispute coming before it. Also, all proceedings before a Lok Adalat shall be deemed to be judicial proceedings within the meaning of the Indian Penal Code (1860) and every Lok Adalat shall be deemed to be a Civil Court for the purpose of the Code of Criminal Procedure (1973).
6. An award of a Lok Adalat shall be deemed to be a decree of a Civil Court or an order of any other court. Every award made by a Lok Adalat shall be final and binding on all the parties to the dispute. No appeal shall lie to any court against the award of the Lok Adalat.

Benefits

According to the Supreme Court, the benefits under Lok Adalat are as follows[8] :

1. There is no court fee and if court fee is already paid the amount will be refunded if the dispute is settled at Lok Adalat.
2. The basic features of Lok Adalat are the procedural f lexibility and speedy trial of the disputes. There is no strict application of procedural laws like the Civil Procedure Code and the Evidence Act while assessing the claim by Lok Adalat.
3. The parties to the dispute can directly interact with the judge through their counsel which is not possible in regular courts of law.
4. The award by the Lok Adalat is binding on the parties and it has the status of a decree of a civil court and it is non-appealable, which does not cause the delay in the settlement of disputes finally.

In view of above facilities provided by the Act, Lok Adalats are boon to the litigating public as they can get their disputes settled fast and free of cost amicably.

The Law Commission of India summarized the advantages of ADR (Alternative Dispute Resolution) in the following way[9] :

1. It is less expensive.
2. It is less time-consuming.
3. It is free from technicalities vis-a-vis conducting of cases in law courts.
4. Parties are free to discuss their differences of opinion without any fear of disclosure before any law courts.
5. Parties have the feeling that there is no losing or winning side between them but at the same time their grievance is redressed and their relationship is restored.

PERMANENT LOK ADALATS

The Legal Services Authorities Act, 1987 was amended in 2002 to provide for the establishment of the Permanent Lok Adalats to deal with cases pertaining to the public utility services.

Reasons

The reasons for the establishment of Permanent Lok Adalats are as follows:

1. The Legal Services Authorities Act, 1987 was enacted to constitute legal services authorities for providing free and competent legal services to the weaker sections of the society to ensure that opportunities for securing justice were not denied to any citizen by reason of economic or other disabilities and to organise Lok Adalats to ensure that the operation of the legal system promotes justice on a basis of equal opportunity.
2. The system of Lok Adalat, which is an innovative mechanism for alternate dispute resolution, has proved effective for resolving disputes in a spirit of conciliation outside the courts.
3. However, the major drawback in the existing scheme of organization of the Lok Adalats under the said Act is that the system of Lok Adalats is mainly based on compromise or settlement between the parties. If the parties do not arrive at any compromise or settlement, the case is either returned to the court of law or the parties are advised to seek remedy in a court of law. This causes unnecessary delay in the dispensation of justice. If Lok Adalats are given power to decide the cases on merits in case parties fails to arrive at any compromise or settlement, this problem can be tackled to a great extent.
4. Further, the cases which arise in relation to public utility services such as Mahanagar Telephone Nigam Limited, Delhi Vidyut Board, etc., need to be settled urgently so that people get justice without delay even at pre-litigation stage and thus most of the petty cases which ought not to go in the regular courts would be settled at the pre-litigation stage itself which would result in reducing the workload of the regular courts to a great extent.
5. It is, therefore, proposed to amend the Legal Services Authorities Act, 1987 to set up Permanent Lok Adalats for

providing compulsory pre-litigative mechanism for conciliation and settlement of cases relating to public utility services.

Features

The salient features of the new institution of Permanent Lok Adalats are as follows:

1. The Permanent Lok Adalat shall consist of a Chairman who is or has been a district judge or additional district judge or has held judicial office higher in rank than that of the district judge and two other persons having adequate experience in public utility services.
2. The Permanent Lok Adalat shall exercise jurisdiction in respect of one or more public utility services such as transport services of passengers or goods by air, road and water; postal, telegraph or telephone services; supply of power, light or water to the public by any establishment; public conservancy or sanitation; services in hospitals or dispensaries; and insurance services.
3. The pecuniary jurisdiction of the Permanent Lok Adalat shall be up to rupees ten lakhs. However, the Central Government may increase the said pecuniary jurisdiction from time to time.
4. The Permanent Lok Adalat shall have not jurisdiction in respect of any matter relating to an offence not compoundable under any law.
5. Before the dispute is brought before any court, any party to the dispute may make an application to the Permanent Lok Adalat for settlement of the dispute. After an application is made to the Permanent Lok Adalat, no party to that application shall invoke jurisdiction of any court in the same dispute.
6. Where it appears to the Permanent Lok Adalat that there exist elements of a settlement, which may be acceptable to the parties, it shall formulate the terms of a possible settlement and submit them to the parties for their observations and in case the parties reach an agreement, the Permanent Lok Adalat shall pass an award in terms thereof. In case parties to the dispute fail to reach an agreement, the Permanent Lok Adalat shall decide the dispute on merits.
7. Every award made by the Permanent Lok Adalat shall be final and binding on all the parties thereto and shall be by a majority of the persons constituting the Permanent Lok Adalat.

FAMILY COURTS

The Family Courts Act, 1984 was enacted to provide for the establishment of Family Courts with a view to promote conciliation and secure speedy settlement of disputes relating to marriage and family affairs.

Reasons

The reasons for the establishment of separate Family Courts are as follows:

1. Several associations of women, other organizations and individuals have urged, from time to time, that Family Courts, be set up for the settlement of family disputes, where emphasis should be laid on conciliation and achieving socially desirable results and adherence to rigid rules of procedure and evidence should be eliminated.
2. The Law Commission in its 59th report (1974) had also stressed that in dealing with disputes concerning the family the Court ought to adopt an approach radically different from the adopted in ordinary civil proceedings and that it should make reasonable efforts at settlement before the commencement of the trial. The Code of Civil Procedure was amended in 1976 to provide for a special procedure to be adopted in suits or proceedings relating to matters concerning the family.
3. However, not much use has been made by the Courts in adopting this conciliatory procedure and the Courts continue to deal with family disputes in the same manner as other civil matters and the same adversary approach prevails. The need was, therefore, felt, in the public interest, to establish Family Courts for speedy settlement of family disputes.

Therefore, the main objectives and reasons for setting up of Family Courts are:[10]

(i) To create a Specialized Court which will exclusively deal family matters so that such a court may have the neces expertise to deal with these cases expeditiously. Thus expe and expeditious disposal are two main factors for establis such a court;

(ii) To institute a mechanism for conciliation of the disputes relatin family;

(iii) To provide an inexpensive remedy; and
(iv) To have f lexibility and an informal atmosphere in the conduc proceedings.

Features

The salient features of the Family Courts Act, 1984 are as follows:

1. It provides for the establishment of Family Courts by the State Governments in consultation with the High Courts.
2. It makes it obligatory on the State Governments to set up a Family Court in every city or town with a population exceeding one million.
3. It enables the State Governments to set up Family Courts in other areas also, if they deem it necessary.
4. It exclusively provides within the jurisdiction of the Family Courts the matters relating to:
   (i) matrimonial relief, including nullity of marriage, judicial separat divorce, restitution of conjugal rights, or declaration as to validity of marriage or as to the matrimonial status of any perso
   (ii) the property of the spouses or of either of them;
   (iii) declaration as to the legitimacy of any person;
   (iv) guardianship of a person or the custody of any minor; and
   (v) maintenance of wife, children and parents.
5. It makes it obligatory on the part of the Family Court to endeavour, in the first instance to effect a reconciliation or a settlement between the parties to a family dispute. During this stage, the proceedings will be informal and rigid rules of procedure shall not apply.
6. It provides for the association of social welfare agencies, counsellors, etc., during conciliation stage and also to secure the service of medical and welfare experts.
7. It provides that the parties to a dispute before a Family Court shall not be entitled, as of right, to be represented by legal practitioner. However, the Court may, in the interest of justice, seek assistance of a legal expert as *amicus curiae*.
8. It simplifies the rules of evidence and procedure so as to enable a Family Court to deal effectively with a dispute.
9. It provides for only one right of appeal which shall lie to the High Court.

GRAM NYAYALAYAS

The Gram Nyayalayas Act, 2008 has been enacted to provide for the establishment of the Gram Nyayalayas at the grass roots level for the purposes of providing access to justice to the citizens at their doorsteps and to ensure that opportunities for securing justice are not denied to any citizen due to social, economic or other disabilities.

Reasons

The reasons for the establishment of Gram Nyayalayas are as follows:

1. Access to justice by the poor and disadvantaged remains a worldwide problem despite diverse approaches and strategies that have been formulated and implemented to address it. In our country, Article 39A of the Constitution directs the State to secure that the operation of the legal system promotes justice, on a basis of equal opportunity and shall provide free legal aid to ensure that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities.
2. In the recent past, the Government has taken various measures to strengthen judicial system, *inter alia*, by simplifying the procedural laws; incorporating various alternative dispute resolution mechanisms such as arbitration, conciliation and mediation; conducting of Lok Adalats, etc. These measures are required to be strengthened further.
3. The Law Commission of India in its 114th Report on Gram Nyayalaya suggested establishment of Gram Nyayalayas so that speedy, inexpensive and substantial justice could be provided to the common man. The Gram Nyayalayas Act, 2008 is broadly based on the recommendations of the Law Commission.
4. Justice to the poor at their door step is a dream of the poor. Setting up of Gram Nyayalayas in the rural areas would bring to the people of rural areas speedy, affordable and substantial justice.

Features

The salient features of the Gram Nyayalayas Act are as follows[11] :

1. The Gram Nyayalaya shall be court of Judicial Magistrate of the first class and its presiding officer (Nyayadhikari) shall be

appointed by the State Government in consultation with the High Court.

2. The Gram Nyayalaya shall be established for every Panchayat at intermediate level or a group of contiguous Panchayats at intermediate level in a district or where there is no Panchayat at intermediate level in any State, for a group of contiguous Panchayats.
3. The Nyayadhikaris who will preside over these Gram Nyayalayas are strictly judicial officers and will be drawing the same salary, deriving the same powers as First Class Magistrates working under High Courts.
4. The Gram Nyayalaya shall be a mobile court and shall exercise the powers of both Criminal and Civil Courts.
5. The seat of the Gram Nyayalaya will be located at the headquarters of the intermediate Panchayat, they will go to villages, work there and dispose of the cases.
6. The Gram Nyayalaya shall try criminal cases, civil suits, claims or disputes which are specified in the First Schedule and the Second Schedule to the Act.
7. The Central as well as the State Governments have been given power to amend the First Schedule and the Second Schedule of the Act, as per their respective legislative competence.
8. The Gram Nyayalaya shall follow summary procedure in criminal trial.
9. The Gram Nyayalaya shall exercise the powers of a Civil Court with certain modifications and shall follow the special procedure as provided in the Act.
10. The Gram Nyayalaya shall try to settle the disputes as far as possible by bringing about conciliation between the parties and for this purpose, it shall make use of the conciliators to be appointed for this purpose.
11. The judgment and order passed by the Gram Nyayalaya shall be deemed to be a decree and to avoid delay in its execution, the Gram Nyayalaya shall follow summary procedure for its execution.
12. The Gram Nyayalaya shall not be bound by the rules of evidence provided in the Indian Evidence Act, 1872 but shall be guided by the principles of natural justice and subject to any rule made by the High Court.
13. Appeal in criminal cases shall lie to the Court of Session, which shall be heard and disposed of within a period of six months

from the date of filing of such appeal.

14. Appeal in civil cases shall lie to the District Court, which shall be heard and disposed of within a period of six months from the date of filing of the appeal.
15. A person accused of an offence may file an application for plea bargaining.

Establishment

The Central Government has decided to meet the non-recurring expenditure on the establishment of these Gram Nyayalayas subject to a ceiling of ₹18.00 lakhs out of which ₹10.00 lakhs is for construction of the court, ₹5.00 lakhs for vehicle and ₹3.00 lakhs for office equipment.

More than 5000 Gram Nyayalayas are expected to be set up under the Act for which the Central Government would provide about ₹1400 crores by way of assistance to the concerned States/Union Territories.

Under of the Gram Nyayalayas Act, 2008, it is for the State Governments to establish Gram Nyayalayas in consultation with the respective High Courts.

Majority of States have now set up regular courts at Taluka level. Further, reluctance of police officials and other State functionaries to invoke jurisdiction of Gram Nyayalayas, lukewarm response of the Bar, non-availability of notaries and stamp vendors, problem of concurrent jurisdiction of regular courts are other issues indicated by the States which are coming in the way of operationalization of the Gram Nyayalayas.

The issues affecting operationalization of the Gram Nyayalayas were discussed in the Conference of Chief Justices of High Courts and Chief Ministers of the States in April, 2013. It was decided in the Conference that the State Government and High Court should decide the question of establishment of Gram Nyayalayas wherever feasible, taking into account their local problems. The focus is on setting up Gram Nayayalayas in the Talukas where regular courts have not been set up.

NOTES AND REFERENCES

1. The 20th Constitutional Amendment Act of 1966 added a new Article 233-A which retrospectively validated the

appointment of certain district judges as well as the judgements delivered by them.

2. In practice, the State Public Service Commission conducts a competitive examination for recruitment to the judicial service of the state.
3. A subordinate judge is also known as civil judge (senior division), civil judge (class I) and so on. He may also be given the powers of an assistant sessions judge. In such a case, he combines in himself both civil as well as criminal powers like that of a District Judge.
4. A munsiff is also known as civil judge (junior division), civil judge (class-II) and so on.
5. Delhi, Bombay, Calcutta and Madras were formerly called presidency towns.
6. Annual Report 2015–16, Ministry of Law and Justice, Government of India, pp.91–92.
7. *P.T. Thomas v. Thomas Job* (2005).

7a. India 2010 : A Reference Annual, Publications Division, Ministry of Information and Broadcasting, Government of India, p.711.

8. *P.T. Thomas v. Thomas Job* (2005).
9. Law Commission of India, Report No.222 entitled as “Need for Justicedispensation through ADR etc.,” April 2009, pp.22–23.
10. Annual Report 2015–16, Ministry of Law and Justice, Government of India, p.85.
11. Press Information Bureau, Government of India, September 29, 2009.

37 Special Provisions for Some States

Articles 371 to 371-J in Part XXI of the constitution contain special provisions for twelve states[1] viz., Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa and Karnataka. The intention behind them is to meet the aspirations of the people of backward regions of the states or to protect the cultural and economic interests of the tribal people of the states or to deal with the disturbed law and order condition in some parts of the states or to protect the interests of the local people of the states.

Originally, the constitution did not make any special provisions for these states. They have been incorporated by the various subsequent amendments made in the context of reorganisation of the states or conferment of statehood on the Union Territories.

PROVISIONS FOR MAHARASHTRA AND GUJARAT

Under Article 371, the President is authorised to provide that the Governor of Maharashtra and that of Gujarat would have special responsibility for[2] :

1. the establishment of separate development boards for (i) Vidarbha, Marathwada and the rest of Maharashtra, (ii) Saurashtra, Kutch and the rest of Gujarat;
2. making a provision that a report on the working of these boards would be placed every year before the State Legislative Assembly;
3. the equitable allocation of funds for developmental expenditure over the above-mentioned areas; and
4. an equitable arrangement providing adequate facilities for technical education and vocational training, and adequate employment opportunities in the state services in respect of the abovementioned areas.

PROVISIONS FOR NAGALAND

Article 371-A makes the following special provisions for Nagaland[3] :

1. The Acts of Parliament relating to the following matters would not apply to Nagaland unless the State Legislative Assembly so decides:
   (i) religious or social practices of the Nagas;
   (ii) Naga customary law and procedure;
   (iii) administration of civil and criminal justice involving decisi according to Naga customary law; and
   (iv) ownership and transfer of land and its resources.
2. The Governor of Nagaland shall have special responsibility for law and order in the state so long as internal disturbances caused by the hostile Nagas continue. In the discharge of this responsibility, the Governor, after consulting the Council of Ministers, exercises his individual judgement and his decision is final[4]. This special responsibility of the Governor shall cease when the President so directs.
3. The Governor has to ensure that the money provided by the Central Government for any specific purpose is included in the demand for a grant relating to that purpose and not in any other demand moved in the State Legislative Assembly.
4. A regional council consisting of 35 members should be established for the Tuensang district of the state. The Governor should make rules for the composition of the council, manner of choosing its members[5] , their qualifications, term, salaries and allowances; the procedure and conduct of business of the council; the appointment of officers and staff of the council and their service conditions; and any other matter relating to the constitution and proper functioning of the council.
5. For a period of ten years from the formation of Nagaland or for such further period as the Governor may specify on the recommendation of the regional council, the following provisions would be operative for the Tuensang district:
   (i) The administration of the Tuensang district shall be carried or the Governor.
   (ii) The Governor shall in his discretion arrange for equita distribution of money provided by the Centre between Tuens district and the rest of Nagaland.

(iii) Any Act of Nagaland Legislature shall not apply to Tuens district unless the Governor so directs on the recommendatio the regional council.

(iv) The Governor can make Regulations for the peace, progress good government of the Tuensang district. Any such Regula may repeal or amend an Act of Parliament or any other applicable to that district.

(v) There shall be a Minister for Tuensang affairs in the S Council of Ministers. He is to be appointed from amongst members representing Tuensang district in the Nagal Legislative Assembly.

(vi) The final decision on all matters relating to Tuensang district s be made by the Governor in his discretion.

(vii) Members in the Nagaland Legislative Assembly from Tuensang district are not elected directly by the people but by regional council.

PROVISIONS FOR ASSAM AND MANIPUR

Assam

Under Article 371-B[6] , the President is empowered to provide for the creation of a committee of the Assam Legislative Assembly consisting of the members elected from the Tribal Areas of the state and such other members as he may specify[7] .

Manipur

Article 371-C makes the following special provisions for Manipur[8] :

1. The President is authorized to provide for the creation of a committee of the Manipur Legislative Assembly consisting of the members elected from the Hill Areas of the state[9] .
2. The President can also direct that the Governor shall have special responsibility to secure the proper functioning of that committee.
3. The Governor should submit an annual report to the President regarding the administration of the Hill Areas.
4. The Central Government can give directions to the State Government as to the administration of the Hill Areas.

PROVISIONS FOR ANDHRA PRADESH OR TELANGANA

Articles 371-D and 371-E contain the special provisions for Andhra Pradesh[10]. In 2014, Article 371-D has been extended to the state of Telangana by the Andhra Pradesh Re-organisation Act of 2014. Under Article 371-D, the following are mentioned:

1. The President is empowered to provide for equitable opportunities and facilities for the people belonging to different parts of the state in the matter of public employment and education and different provisions can be made for various parts of the state.
2. For the above purpose, the President may require the State Government to organise civil posts in local cadres for different parts of the state and provide for direct recruitment to posts in any local cadre. He may specify parts of the state which shall be regarded as the local area for admission to any educational institution. He may also specify the extent and manner of preference or reservation given in the matter of direct recruitment to posts in any such cadre or admission to any such educational institution.
3. The President may provide for the establishment of an Administrative Tribunal in the state to deal with certain disputes and grievances relating to appointment, allotment or promotion to civil posts in the state[11]. The tribunal is to function outside the purview of the state High Court. No court (other than the Supreme Court) is to exercise any jurisdiction in respect of any matter subject to the jurisdiction of the tribunal. The President may abolish the tribunal when he is satisfied that its continued existence is not necessary.

Article 371-E empowers the Parliament to provide for the establishment of a Central University in the state of Andhra Pradesh.

PROVISIONS FOR SIKKIM

The 36th Constitutional Amendment Act of 1975 made Sikkim a full-fledged state of the Indian Union. It included a new Article 371-F containing special provisions with respect to Sikkim. These are as follows:

1. The Sikkim Legislative Assembly is to consist of not less than 30 members.
2. One seat is allotted to Sikkim in the Lok Sabha and Sikkim forms one Parliamentary constituency.
3. For the purpose of protecting the rights and interests of the different sections of the Sikkim population, the Parliament is empowered to provide for the:
   (i) number of seats in the Sikkim Legislative Assembly which may filled by candidates belonging to such sections; and
   (ii) delimitation of the Assembly constituencies from which candida belonging to such sections alone may stand for election to Assembly.
4. The Governor shall have special responsibility for peace and for an equitable arrangement for ensuring the social and economic advancement of the different sections of the Sikkim population. In the discharge of this responsibility, the Governor shall act in his discretion, subject to the directions issued by the President.
5. The President can extend (with restrictions or modifications) to Sikkim any law which is in force in a state of the Indian Union.

PROVISIONS FOR MIZORAM

Article 371-G specifies the following special provisions for Mizoram[12] :

1. The Acts of Parliament relating to the following matters would not apply to Mizoram unless the State Legislative Assembly so decides:
   (i) religious or social practices of the Mizos;
   (ii) Mizo customary law and procedure;
   (iii) administration of civil and criminal justice involving decisi according to Mizo customary law; and
   (iv) ownership and transfer of land.
2. The Mizoram Legislative Assembly is to consist of not less than 40 members.

PROVISIONS FOR ARUNACHAL PRADESH AND GOA

Arunachal Pradesh

Under Article 371-H, the following special provisions are made for Arunachal Pradesh[13] :

1. The Governor of Arunachal Pradesh shall have special responsibility for law and order in the state. In the discharge of this responsibility, the Governor, after consulting the Council of Ministers, exercises his individual judgement and his decision is final. This special responsibility of the Governor shall cease when the President so directs.
2. The Arunachal Pradesh Legislative Assembly is to consist of not less than 30 members.

Goa

Article 371-I provides that the Goa Legislative Assembly is to consist of not less than 30 members[14] .

PROVISIONS FOR KARNATAKA

Under Article 371-J, the President is empowered to provide that the Governor of Karnataka would have special responsibility for

1. The establishment of a separate development board for Hyderabad-Karnataka region[15]
2. Making a provision that a report on the working of the board would be placed every year before the State Legislative Assembly
3. The equitable allocation of funds for developmental expenditure over the region
4. The reservation of seats in educational and vocational training institutions in the region for students who belong to the region
5. The reservation in state government posts in the region for persons who belong to the region

Article 371-J (which provided for special provisions for the Hyderabad-Karnataka region of the state of Karnataka) was inserted in the Constitution by the *98th Constitutional Amendment Act* of 2012. The special provisions aim to establish an institutional mechanism for equitable allocation of funds to meet the development needs over the region, as well as to enhance human resources and promote employment from the region by providing for local cadres in service and reservation in educational and vocational training institutions.

In 2010, the Legislative Assembly as well as the Legislative Council of Karnataka passed separate resolutions seeking special provisions for the Hyderabad-Karnataka region of the state of Karnataka. The government of Karnataka also endorsed the need for special provisions for the region. The resolutions sought to accelerate development of the most backward region of the state and promote inclusive growth with a view to reducing inter-district and inter-regional disparities in the state.

Table 37.1 *Articles Related to Special Provisions for some States at a Glance*

Article No.	Subject-matter
371.	Special provision with respect to the states of Maharashtra and Gujarat
371A.	Special provision with respect to the state of

	Nagaland
371B.	Special provision with respect to the state of Assam
371C.	Special provision with respect to the state of Manipur
371D.	Special provisions with respect to the state of Andhra Pradesh or the state of Telangana
371E.	Establishment of Central University in Andhra Pradesh
371F.	Special provisions with respect to the state of Sikkim
371G.	Special provision with respect to the state of Mizoram
371H.	Special provision with respect to the state of Arunachal Pradesh
371-I.	Special provision with respect to the state of Goa
371J.	Special provisions with respect to the state of Karnataka

NOTES AND REFERENCES

1. Part XXI is entitled as 'Temporary, Transitional and Special Provisions'.
2. This Article was amended by the 7th Constitutional Amendment Act of 1956 and the Bombay Reorganisation Act of 1960. Andhra Pradesh was taken out of this Article by the 32nd Constitutional Amendment Act of 1973 and provided for separately in two new Articles 371-D and 371-E.
3. This Article was added by the 13th Constitutional Amendment Act of 1962.
4. The validity of anything done by the Governor shall not be called in question on the ground that he ought or ought not to have acted in the exercise of his individual judgement.
5. The Deputy Commissioner of the Tuensang district shall be the ex-officio Chairman of the regional council and the Vice-Chairman shall be elected by the members of the council from amongst themselves.
6. This Article was added by the 22nd Constitutional Amendment Act of 1969.

7. The Tribal Areas of Assam are specified in the Sixth Schedule of the Constitution. They are North Cachar Hills District, Karbi Anglong District and Bodoland Territorial Areas District.
8. This Article was added by the 27th Constitutional Amendment Act of 1971.
9. In this Article, the expression 'Hill Areas' means such areas as the President may, by order, declare to be Hill Areas.
10. Both the Articles were added by the 32nd Constitutional Amendment Act of 1973.
11. The tribunal has been set up by the Andhra Pradesh Administrative Tribunal Order, 1975.
12. This Article was added by the 53rd Constitutional Amendment Act of 1986.
13. This Article was added by the 55th Constitutional Amendment Act of 1986.
14. This Article was added by the 56th Constitutional Amendment Act of 1987.
15. The Hyderabad - Karnataka region includes the six backward districts of Northern Karnataka, viz., Gulbarga, Bidar, Raichur, Koppal, Yadgir and Bellary.

PART-V
LOCAL GOVERNMENT

38. Panchayati Raj
39. Municipalities

38 Panchayati Raj

The term *Panchayati Raj* in India signifies the system of rural local selfgovernment. It has been established in all the states of India by the Acts of the state legislatures to build democracy at the grass root level[1]. It is entrusted with rural development. It was constitutionalised through the 73rd Constitutional Amendment Act of 1992.

EVOLUTION OF PANCHAYATI RAJ

Balwant Rai Mehta Committee

In January 1957, the Government of India appointed a committee to examine the working of the Community Development Programme (1952) and the National Extension Service (1953) and to suggest measures for their better working. The chairman of this committee was Balwant Rai G Mehta. The committee submitted its report in November 1957 and recommended the establishment of the scheme of 'democratic decentralisation', which ultimately came to be known as Panchayati Raj. The specific recommendations made by it are:

1. Establishment of a three-tier panchayati raj system–gram panchayat at the village level, panchayat samiti at the block level and zila parishad at the district level. These tiers should be organically linked through a device of indirect elections.
2. The village panchayat should be constituted with directly elected representatives, whereas the panchayat samiti and zila parishad should be constituted with indirectly elected members.
3. All planning and development activities should be entrusted to these bodies.
4. The panchayat samiti should be the executive body while the zila parishad should be the advisory, coordinating and supervisory body.
5. The district collector should be the chairman of the zila parishad.
6. There should be a genuine transfer of power and responsibility to these democratic bodies.
7. Adequate resources should be transferred to these bodies to enable them to discharge their functions and fulfil their responsibilities.
8. A system should be evolved to effect further devolution of authority in future.

These recommendations of the committee were accepted by the National Development Council in January 1958. The council did not insist on a single rigid pattern and left it to the states to evolve their own patterns suitable to local conditions. But the basic principles and broad fundamentals should be identical throughout the country.

Rajasthan was the first state to establish Panchayati Raj. The scheme was inaugurated by the prime minister on October 2, 1959, in

Nagaur district. Rajasthan was followed by Andhra Pradesh, which also adopted the system in 1959. Thereafter, most of the states adopted the system.

Though most of the states created panchayati raj institutions by mid 1960s, there were differences from one state to another with regard to the number of tiers, relative position of samiti and parishad, their tenure, composition, functions, finances and so on. For example, Rajasthan adopted the three-tier system while Tamil Nadu adopted the two-tier system. West Bengal, on the other hand, adopted the four-tier system. Further, in the Rajasthan-Andhra Pradesh pattern, panchayat samiti was powerful as the block was the unit of planning and development, while in Maharashtra-Gujarat pattern, zila parishad was powerful as the district was the unit of planning and development. Some states also established nyaya panchayats, that is, judicial panchayats to try petty civil and criminal cases.

Study Teams and Committees

Since 1960, many study teams, committees and working groups have been appointed to examine the various aspects of functioning of Panchayati Raj system. They are mentioned below in Table 38.1.

Table 38.1 *Study Teams and Committees on Panchayati Raj*

Sl. No.	Year	Name of the study Team / Committee	Chairman
1.	1960	Committee on Rationalisation of Panchayat Statistics	V.R. Rao
2.	1961	Working Group on Panchayats and Cooperatives	S.D. Mishra
3.	1961	Study Team on Panchayati Raj Administration	V. Iswaran
4.	1962	Study Team on Nyaya Panchayats	G.R. Rajgopal
5.	1963	Study Team on the Position of Gram Sabha in Panchayati Raj Movement	R.R. Diwakar
6.	1963	Study Group on Budgeting and Accounting Procedure of	M. Rama Krishnayya

		Panchayati Raj Institutions	
7.	1963	Study Team on Panchayati Raj Finances	K. Santhanam
8.	1965	Committee on Panchayati Raj Elections	K. Santhanam
9.	1965	Study Team on the Audit and Accounts of Panchayati Raj Bodies	R.K. Khanna
10.	1966	Committee on Panchayati Raj Training Centres	G. Ramachandran
11.	1969	Study Team on Involvement of Community Development Agency and Panchayati Raj Institutions in the Implementation of Basic Land Reform Measures	V. Ramanathan
12.	1972	Working Group for Formulation of Fifth Five Year Plan on Community Development and Panchayati Raj	N. Ramakrishnayya
13.	1976	Committee on Community Development and Panchayati Raj	Smt. Daya Choubey

Ashok Mehta Committee

In December 1977, the Janata Government appointed a committee on panchayati raj institutions under the chairmanship of Ashok Mehta. It submitted its report in August 1978 and made 132 recommendations to revive and strengthen the declining panchayati raj system in the country. Its main recommendations were:

1. The three-tier system of panchayati raj should be replaced by the two-tier system, that is, zila parishad at the district level, and below it, the mandal panchayat consisting of a group of villages with a total population of 15,000 to 20,000.
2. A district should be the first point for decentralisation under popular supervision below the state level.
3. Zila parishad should be the executive body and made responsible for planning at the district level.

4. There should be an official participation of political parties at all levels of panchayat elections.
5. The panchayati raj institutions should have compulsory powers of taxation to mobilise their own financial resources.
6. There should be a regular social audit by a district level agency and by a committee of legislators to check whether the funds allotted for the vulnerable social and economic groups are actually spent on them.
7. The state government should not supersede the panchayati raj institutions. In case of an imperative supersession, elections should be held within six months from the date of supersession.
8. The nyaya panchayats should be kept as separate bodies from that of development panchayats. They should be presided over by a qualified judge.
9. The chief electoral officer of a state in consultation with the chief election commissioner should organise and conduct the panchayati raj elections.
10. Development functions should be transferred to the zila parishad and all development staff should work under its control and supervision.
11. The voluntary agencies should play an important role in mobilising the support of the people for panchayati raj.
12. A minister for panchayati raj should be appointed in the state council of ministers to look after the affairs of the panchayati raj institutions.
13. Seats for SCs and STs should be reserved on the basis of their population.
14. A constitutional recognition should be accorded to the Panchayati Raj institutions. This would give them the requisite status (sanctity and stature) and an assurance of continuous functioning.

Due to the collapse of the Janata Government before the completion of its term, no action could be taken on the recommendations of the Ashok Mehta Committee at the central level. However, the three states of Karnataka, West Bengal and Andhra Pradesh took steps to revitalise the panchayati raj, keeping in view some of the recommendations of the Ashok Mehta Committee.

G.V.K. Rao Committee

The Committee to review the existing Administrative Arrangements for Rural Development and Poverty Alleviation Programmes under the chairmanship of G.V.K. Rao was appointed by the Planning Commission in 1985. The Committee came to conclusion that the developmental process was gradually bureaucratised and divorced from the Panchayati Raj. This phenomena of bureaucratisation of development administration as against the democratisation weakened the Panchayati Raj institutions resulting in what is aptly called as 'grass without roots'. Hence, the Committee made the following recommendations to strengthen and revitalise the Panchayati Raj system:

(i) The district level body, that is, the Zila Parishad should be of pivotal importance in the scheme of democratic decentralisation. It stated that "the district is the proper unit for planning and development and the Zila Parishad should become the principal body for management of all development programmes which can be handled at that level."

(ii) The Panchayati Raj institutions at the district and lower levels should be assigned an important role with respect to planning, implementation and monitoring of rural development programmes.

(iii) Some of the planning functions at the state level should be transferred to the district level planning units for effective decentralized district planning.

(iv) A post of District Development Commissioner should be created. He should act as the chief executive officer of the Zila Parishad and should be in charge of all the development departments at the district level.

(v) Elections to the Panchayati Raj institutions should be held regularly. It found that elections became overdue for one or more tiers in 11 states.

Thus the committee, in its scheme of decentralised system of field administration, assigned a leading role to the Panchayati Raj in local planning and development. It is in this respect that the recommendation of the G.V.K. Rao Committee Report (1986) differed from those of the Dantwala Committee Report on Block-Level Planning (1978) and the Hanumantha Rao Committee Report on District Planning (1984). Both the committees have suggested that the basic decentralised planning function should be done at the district level. The Hanumantha Rao Committee advocated separate district planning bodies under either the District Collector or a minister. In both the models, the Collector should play a significant role in the

decentralised planning though the Committee stated that Panchayati Raj institutions would also be associated with this process (of decentralised planning). The committee recommended that the Collector should be the coordinator, at the district level, of all developmental and planning activities. Thus the, Hanumantha Rao Committee differed in this respect from those of Balwantray Mehta Committee, the Administrative Reforms Commission of India, the Ashok Mehta Committee and finally the G.V.K. Rao Committee which recommended reduction in the developmental role of the District Collector and which assigned a major role to the Panchayati Raj in development administration.

L M Singhvi Committee

In 1986, Rajiv Gandhi government appointed a committee to prepare a concept paper on 'Revitalisation of Panchayati Raj Institutions for Democracy and Development' under the chairmanship of L.M. Singhvi. It made the following recommendations.

(i) The Panchayati Raj institutions should be constitutionally recognised, protected and preserved. For this purpose, a new chapter should be added in the Constitution of India. This will make their identity and integrity reasonably and substantially inviolate. It also suggested constitutional provisions to ensure regular, free and fair elections to the Panchayati Raj bodies.
(ii) Nyaya Panchayats should be established for a cluster of villages.
(iii) The villages should be reorganised to make Gram Panchayats more viable. It also emphasised the importance of the Gram Sabha and called it as the embodiment of direct democracy.
(iv) The Village Panchayats should have more financial resources.
(v) The judicial tribunals should be established in each state to adjudicate controversies about election to the Panchayati Raj institutions, their dissolution and other matters related to their functioning.

Thungon Committee

In 1988, a sub-committee of the Consultative Committee of Parliament was constituted under the chairmanship of P.K. Thungon to examine the political and administrative structure in the district for the purpose of district planning. This committee suggested for the strengthening of the Panchayati Raj system. It made the following recommendations:

1. The Panchayati Raj bodies should be constitutionally recognized.
2. A three-tier system of Panchayati Raj with panchayats at the village, block and district levels.
3. Zilla Parishad should be the pivot of the Panchayati Raj system. It should act as the planning and development agency in the district.
4. The Panchayati Raj bodies should have a fixed tenure of five years.
5. The maximum period of super session of a body should be six months.
6. A planning and co-ordination committee should be set-up at the state level under the chairmanship of the minister for planning. The presidents of Zilla Parishads should be its members.
7. A detailed list of subjects for Panchayati Raj should be prepared and incorporated in the Constitution.
8. Reservation of seats in all the three-tiers should be on the basis of population. There should also be reservation for women.
9. A state finance commission should be set-up in each state. It would lay down the criteria and guidelines for the devolution of finances to the Panchayati Raj institutions.
10. The district collector should be the chief executive officer of the Zilla Parishad.

Gadgil Committee

The Committee on Policy and Programmes was constituted in 1988 by the Congress party under the chairmanship of V.N. Gadgil. This committee was asked to consider the question of “how best Panchayati Raj institutions could be made effective”. In this context, the committee made the following recommendations:

1. A constitutional status should be bestowed on the Panchayati Raj institutions.
2. A three-tier system of Panchayati Raj with panchayats at the village, block and district levels.
3. The term of Panchayati Raj institutions should be fixed at five years.
4. The members of the Panchayats at all the three levels should be directly elected.
5. Reservation for SCs, STs and women.

6. The Panchayati Raj bodies should have the responsibility of preparation and implementation of plans for socioeconomic development. For this purpose, a list of subjects should be specified in the constitution.
7. The Panchayat Raj bodies should be empowered to levy, collect and appropriate taxes and duties.
8. Establishment of a State Finance Commission for the allocation of finances to the Panchayats.
9. Establishment of a State Election Commission for the conduction of elections to the panchayats.

The above recommendations of the Gadgil Committee became the basis for drafting an amendment bill aimed at conferring the constitutional status and protection to the Panchayati Raj institutions.

Constitutionalisation

Rajiv Gandhi Government

The Rajiv Gandhi Government introduced the 64th Constitutional Amendment Bill in the Lok Sabha in July 1989 to constitutionalise panchayati raj institutions and make them more powerful and broad based. Although, the Lok Sabha passed the bill in August 1989, it was not approved by the Rajya Sabha. The bill was vehemently opposed by the Opposition on the ground that it sought to strengthen centralisation in the federal system.

V.P. Singh Government

The National Front Government, soon after assuming office in November 1989 under the Prime Ministership of V.P. Singh, announced that it would take steps to strengthen the panchayati raj institutions. In June 1990, a two-day conference of the state chief ministers under the chairmanship of V.P. Singh was held to discuss the issues relating to the strengthening of the panchayati raj bodies. The conference approved the proposals for the introduction of a fresh constitutional amendment bill. Consequently, a constitutional amendment bill was introduced in the Lok Sabha in September 1990. However, the fall of the government resulted in the lapse of the bill.

Narasimha Rao Government

The Congress Government under the prime ministership of P.V. Narasimha Rao once again considered the matter of the constitutionalisation of panchayati raj bodies. It drastically modified the

proposals in this regard to delete the controversial aspects and introduced a constitutional amendment bill in the Lok Sabha in September, 1991. This bill finally emerged as the 73rd Constitutional Amendment Act, 1992 and came into force on 24 April, 1993[2] .

73RD AMENDMENT ACT OF 1992

Significance of the Act

This act has added a new Part-IX to the Constitution of India. This part is entitled as 'The Panchayats' and consists of provisions from Articles 243 to 243 O. In addition, the act has also added a new Eleventh Schedule to the Constitution. This schedule contains 29 functional items of the panchayats. It deals with Article 243-G.

The act has given a practical shape to Article 40 of the Constitution which says that, "The State shall take steps to organise village panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-government." This article forms a part of the Directive Principles of State Policy.

The act gives a constitutional status to the panchayati raj institutions. It has brought them under the purview of the justiciable part of the Constitution. In other words, the state governments are under constitutional obligation to adopt the new panchayati raj system in accordance with the provisions of the act. Consequently, neither the formation of panchayats nor the holding of elections at regular intervals depend on the will of the state government any more.

The provisions of the act can be grouped into two categories–compulsory and voluntary. The compulsory (mandatory or obligatory) provisions of the act have to be included in the state laws creating the new panchayati raj system. The voluntary provisions, on the other hand, may be included at the discretion of the states. Thus the voluntary provisions of the act ensures the right of the states to take local factors like geographical, politico-administrative and others, into consideration while adopting the new panchayati raj system.

The act is a significant landmark in the evolution of grassroot democratic institutions in the country. It transfers the representative democracy into participatory democracy. It is a revolutionary concept to build democracy at the grassroot level in the country.

Salient Features

The salient features of the act are:

Gram Sabha

The act provides for a Gram Sabha as the foundation of the panchayati raj system. It is a body consisting of persons registered in the electoral rolls of a village comprised within the area of Panchayat at the village level. Thus, it is a village assembly consisting of all the registered voters in the area of a panchayat. It may exercise such powers and perform such functions at the village level as the legislature of a state determines.

Three-Tier System

The act provides for a three-tier system of panchayati raj in every state, that is, panchayats at the village, intermediate, and district levels[3]. Thus, the act brings about uniformity in the structure of panchayati raj throughout the country. However, a state having a population not exceeding 20 lakh may not constitute panchayats at the intermediate level.

Election of Members and Chairpersons

All the members of panchayats at the village, intermediate and district levels shall be elected directly by the people. Further, the chairperson of panchayats at the intermediate and district levels shall be elected indi-rectly–by and from amongst the elected members thereof. However, the chairperson of a panchayat at the village level shall be elected in such manner as the state legislature determines.

The chairperson of a panchayat and other members of a panchayat elected directly or indirectly shall have the right to vote in the meetings of the panchayats.

Reservation of Seats

The act provides for the reservation of seats for scheduled castes and scheduled tribes in every panchayat (i.e., at all the three levels) in proportion of their population to the total population in the panchayat area. Further, the state legislature shall provide for the reservation of offices of chairperson in the panchayat at the village or any other level for the SCs and STs.

The act provides for the reservation of not less than one-third of the total number of seats for women (including the number of seats reserved for women belonging the SCs and STs). Further, not less than one-third of the total number of offices of chairpersons in the panchayats at each level shall be reserved for women.

The act also authorises the legislature of a state to make any provision for reservation of seats in any panchayat or offices of

chairperson in the panchayat at any level in favour of backward classes.

The reservation of seats as well as the reservation of offices of chairpersons in the panchayats for the scheduled castes and scheduled tribes shall cease to have effect after the expiration of the period specified in Article 334 (which is presently seventy years, that is, till 2020).

It must be noted here that the above provision relating to the reservation of seats in panchayats (both members and chairpersons) for the scheduled castes is not applicable to the state of Arunachal Pradesh. This is because the state is inhabited fully by indigenous tribal people and there are no scheduled castes. This provision was added later by the 83rd Constitutional Amendment Act of 2000.

Duration of Panchayats

The act provides for a five-year term of office to the panchayat at every level. However, it can be dissolved before the completion of its term. Further, fresh elections to constitute a panchayat shall be completed (a) before the expiry of its duration of five years; or (b) in case of dissolution, before the expiry of a period of six months from the date of its dissolution.

But, where the remainder of the period (for which the dissolved panchayat would have continued) is less than six months, it shall not be necessary to hold any election for constituting the new panchayat for such period.

Moreover, a panchayat constituted upon the dissolution of a panchayat before the expiration of its duration shall continue only for the remainder of the period for which the dissolved panchayat would have continued had it not been so dissolved. In other words, a panchayat reconstituted after premature dissolution does not enjoy the full period of five years but remains in office only for the remainder of the period.

Disqualifications

A person shall be disqualified for being chosen as or for being a member of panchayat if he is so disqualified, (a) under any law for the time being in force for the purpose of elections to the legislature of the state concerned, or (b) under any law made by the state legislature. However, no person shall be disqualified on the ground that he is less than 25 years of age if he has attained the age of 21 years. Further, all

questions of disqualifications shall be referred to such authority as the state legislature determines.

State Election Commission

The superintendence, direction and control of the preparation of electoral rolls and the conduct of all elections to the panchayats shall be vested in the state election commission. It consists of a state election commissioner to be appointed by the governor. His conditions of service and tenure of office shall also be determined by the governor. He shall not be removed from the office except in the manner and on the grounds prescribed for the removal of a judge of the state high court[4]. His conditions of service shall not be varied to his disadvantage after his appointment.

The state legislature may make provision with respect to all matters relating to elections to the panchayats.

Powers and Functions

The state legislature may endow the Panchayats with such powers and authority as may be necessary to enable them to function as institutions of self-government. Such a scheme may contain provisions for the devolution of powers and responsibilities upon Panchayats at the appropriate level with respect to (a) the preparation of plans for economic development and social justice; (b) the implementation of schemes for economic development and social justice as may be entrusted to them, including those in relation to the 29 matters listed in the Eleventh Schedule.

Finances

The state legislature may (a) authorise a panchayat to levy, collect and appropriate taxes, duties, tolls and fees; (b) assign to a panchayat taxes, duties, tolls and fees levied and collected by the state government; (c) provide for making grants-in-aid to the panchayats from the consolidated fund of the state; and (d) provide for constitution of funds for crediting all moneys of the panchayats.

Finance Commission

The governor of a state shall, after every five years, constitute a finance commission to review the financial position of the panchayats. It shall make the following recommendations to the Governor:

1. The principles that should govern:

(a) The distribution between the state and the panchayats of the net proceeds of the taxes, duties, tolls and fees levied by the state and allocation of shares amongst the panchay-ats at all levels.
(b) The determination of taxes, duties, tolls and fees that may be assigned to the panchayats.
(c) The grants-in-aid to the panchayats from the consolidated fund of the state.

2. The measures needed to improve the financial position of the panchayats.
3. Any other matter referred to it by the governor in the interests of sound finance of the panchayats.

The state legislature may provide for the composition of the commission, the required qualifications of its members and the manner of their selection.

The governor shall place the recommendations of the commission along with the action taken report before the state legislature.

The Central Finance Commission shall also suggest the measures needed to augment the consolidated fund of a state to supplement the resources of the panchayats in the states (on the basis of the recommendations made by the finance commission of the state).

Audit of Accounts

The state legislature may make provisions with respect to the maintenance of accounts by the panchayats and the auditing of such accounts.

Application to Union Territories

The provisions of this Part are applicable to the Union territories. But, the President may direct that they would apply to a Union territory subject to such exceptions and modifications as he may specify.

Exempted States and Areas

The act does not apply to the states of Nagaland, Meghalaya and Mizoram and certain other areas. These areas include, (a) the scheduled areas and the tribal areas in the states[5] ; (b) the hill areas of Manipur for which district councils exist; and (c) Darjeeling district of West Bengal for which Darjeeling Gorkha Hill Council exists.

However, the Parliament may extend the provisions of this Part to the scheduled areas and tribal areas subject to such exceptions and modifications as it may specify. Under this provision, the Parliament

has enacted the “Provisions of the Panchayats (Extension to the Scheduled Areas Act”, 1996, popularly known as the PESA Act or the Extension Act.

Continuance of Existing Laws and Panchayats

All the state laws relating to panchayats shall continue to be in force until the expiry of one year from the commencement of this act. In other words, the states have to adopt the new panchayati raj system based on this act within the maximum period of one year from 24 April, 1993, which was the date of the commencement of this act. However, all the panchayats existing immediately before the commencement of act shall continue till the expiry of their term, unless dissolved by the state legislature sooner.

Consequently, majority of states passed the panchayati raj acts in 1993 and 1994 to adopt the new system in accordance with the 73rd Constitutional Amendment Act of 1992.

Bar to Interference by Courts in Electoral Matters

The act bars the interference by courts in the electoral matters of panchayats. It declares that the validity of any law relating to the delimitation of constituencies or the allotment of seats to such constituencies cannot be questioned in any court. It further lays down that no election to any panchayat is to be questioned except by an election petition presented to such authority and in such manner as provided by the state legislature.

Eleventh Schedule

It contains the following 29 functional items placed within the purview of panchayats:

1. Agriculture, including agricultural extension
2. Land improvement, implementation of land reforms, land consolidation and soil conservation
3. Minor irrigation, water management and watershed development
4. Animal husbandry, dairying and poultry
5. Fisheries
6. Social forestry and farm forestry
7. Minor forest produce
8. Small-scale industries, including food processing industries
9. Khadi, village and cottage industries
10. Rural housing
11. Drinking water

12. Fuel and fodder
13. Roads, culverts, bridges, ferries, waterways and other means of communication
14. Rural electrification, including distribution of electricity
15. Non-conventional energy sources
16. Poverty alleviation programme
17. Education, including primary and secondary schools
18. Technical training and vocational education
19. Adult and non-formal education
20. Libraries
21. Cultural activities
22. Markets and fairs
23. Health and sanitation including hospitals, primary health centres and dispensaries
24. Family welfare
25. Women and child development
26. Social welfare, including welfare of the handicapped and mentally retarded
27. Welfare of the weaker sections, and in particular, of the scheduled castes and the scheduled tribes
28. Public distribution system
29. Maintenance of community assets.

COMPULSORY AND VOLUNTARY PROVISIONS

Now, we will identify separately the compulsory (obligatory or mandatory) and voluntary (discretionary or optional) provisions (features) of the 73rd Constitutional Amendment Act (1992) or the Part IX of the Constitution:

A. Compulsory Provisions

1. Organisation of Gram Sabha in a village or group of villages.
2. Establishment of panchayats at the village, intermediate and district levels.
3. Direct elections to all seats in panchay-ats at the village, intermediate and district levels.
4. Indirect elections to the post of chairperson of panchayats at the intermediate and district levels.
5. Voting rights of the chairperson and other members of a panchayat elected directly or indirectly.
6. 21 years to be the minimum age for contesting elections to panchayats.
7. Reservation of seats (both members and chairpersons) for SCs and STs in panchayats at all the three levels.
8. Reservation of one-third seats (both members and chairpersons) for women in panchayats at all the three levels.
9. Fixing tenure of five years for panchay-ats at all levels and holding fresh elections within six months in the event of supersession of any panchayat.
10. Establishment of a State Election Commission for conducting elections to the panchayats.
11. Constitution of a State Finance Commission after every five years to review the financial position of the panchayats.

B. Voluntary Provisions

1. Endowing the Gram Sabha with powers and functions at the village level.
2. Determining the manner of election of the chairperson of the village panchayat.
3. Giving representation to the chairpersons of the village panchayats in the intermediate panchayats or in the case of a

state not having intermediate panchayats, in the district panchayats.

4. Giving representation to the chairpersons of the intermediate panchayats in the district panchayats.
5. Giving representation to members of the Parliament (both the Houses) and the state legislature (both the Houses) in the panchayats at different levels falling within their constituencies.
6. Providing reservation of seats (both members and chairpersons) for backward classes in panchayats at any level.
7. Granting powers and authority to the panchayats to enable them to function as institutions of self-government (in brief, making them autonomous bodies).
8. Devolution of powers and responsibilities upon panchayats to prepare plans for economic development and social justice; and to perform some or all of the 29 functions listed in the Eleventh Schedule of the Constitution.
9. Granting financial powers to the panchayats, that is, authorizing them to levy, collect and appropriate taxes, duties, tolls and fees.
10. Assigning to a panchayat the taxes, duties, tolls and fees levied and collected by the state government.
11. Making the grants-in-aid to the panchay-ats from the consolidated fund of the state.
12. Providing for constitution of funds for crediting all moneys of the panchayats.

PESA ACT OF 1996 (EXTENSION ACT)

The provisions of Part IX of the constitution relating to the Panchayats are not applicable to the Fifth Schedule areas. However, the Parliament may extend these provisions to such areas, subject to such exceptions and modifications as it may specify. Under this provision, the Parliament has enacted the "Provisions of the Panchayats (Extension to the Scheduled Areas) Act", 1996, popularly known as the PESA Act or the Extension Act.

At present (2019), ten states have Fifth Schedule Areas. These are: Andhra Pradesh, Telangana, Chhatisgarh, Gujarat, Himachal Pradesh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha and Rajasthan. All the ten states have enacted requisite compliance legislations by amending the respective Panchayati Raj Acts.

Objectives of the Act

The objectives of the PESA Act are as follows[6] :

1. To extend the provisions of Part IX of the Constitution relating to the panchayats to the scheduled areas with certain modifications
2. To provide self-rule for the bulk of the tribal population
3. To have village governance with participatory democracy and to make the gram sabha a nucleus of all activities
4. To evolve a suitable administrative framework consistent with traditional practices
5. To safeguard and to preserve the traditions and customs of tribal communities
6. To empower panchayats at the appropriate levels with specific powers conducive to tribal requirements
7. To prevent panchayats at the higher level from assuming the powers and authority of panchayats at the lower level of the gram sabha

Features of the Act

The features (or the provisions) of the PESA Act are as follows:

1. A state legislation on the Panchayats in the Scheduled Areas shall be in consonance with the customary law, social and religious practices and traditional management practices of community resources.

2. A village shall ordinarily consist of a habitation or a group of habitations or a hamlet or a group of hamlets comprising a community and managing its affairs in accordance with traditions and customs.
3. Every village shall have a Gram Sabha consisting of persons whose names are included in the electoral rolls for the Panchayat at the village level.
4. Every Gram Sabha shall be competent to safeguard and preserve the traditions and customs of the people, their cultural identity, community resources and the customary mode of dispute resolution.
5. Every Gram Sabha shall–
   (i) approve of the plans, programmes and projects for social economic development before they are taken up implementation by the Panchayat at the village level; and
   (ii) be responsible for the identification of beneficiaries under poverty alleviation and other programmes.
6. Every Panchayat at the village level shall be required to obtain from the Gram Sabha a certification of utilisation of funds for the above plans, programmes and projects.
7. The reservation of seats in the Scheduled Areas in every Panchayat shall be in proportion to the population of the communities for whom reservation is sought to be given under Part IX of the Constitution. However, the reservation for the Scheduled Tribes shall not be less than one-half of the total number of seats. Further, all seats of Chairpersons of Panchayats at all levels shall be reserved for the Scheduled Tribes.
8. The state government may nominate such Scheduled Tribes which have no representation in the Panchayat at the intermediate level or the Panchayat at the district level. But such nomination shall not exceed one-tenth of the total members to be elected in that Panchayat.
9. The Gram Sabha or the Panchayats at the appropriate level shall be consulted before making the acquisition of land in the Scheduled Areas for development projects and before resettling or rehabilitating persons affected by such projects in the Scheduled Areas. However, the actual planning and implementation of the projects in the Scheduled Areas shall be coordinated at the state level.

10. Planning and management of minor water bodies in the Scheduled Areas shall be entrusted to Panchayats at the appropriate level.
11. The recommendations of the Gram Sabha or the Panchayats at the appropriate level shall be mandatory for grant of prospecting licence or mining lease for minor minerals in the Scheduled Areas.
12. The prior recommendation of the Gram Sabha or the Panchayats at the appropriate level shall be mandatory for grant of concession for the exploitation of minor minerals by auction.
13. While endowing Panchayats in the Scheduled Areas with such powers and authority as may be necessary to enable them to function as institutions of self-government, a State Legislature shall ensure that the Panchayats at the appropriate level and the Gram Sabha are endowed specifically with–
    (i) the power to enforce prohibition or to regulate or restrict the s and consumption of any intoxicant
    (ii) the ownership of minor forest produce
    (iii) the power to prevent alienation of land in the Scheduled Ar and to take appropriate action to restore any unlawfully aliena land of a Scheduled Tribe
    (iv) the power to manage village markets
    (v) the power to exercise control over money lending to Scheduled Tribes
    (vi) the power to exercise control over institutions and functionarie all social sectors
    (vii) the power to control local plans and resources for such pl including tribal sub-plans
14. The State Legislations shall contain safeguards to ensure that Panchayats at the higher level do not assume the powers and authority of any Panchayat at the lower level or of the Gram Sabha.
15. The State Legislature shall endeavour to follow the pattern of the Sixth Schedule to the Constitution while designing the administrative arrangements in the Panchayats at district levels in the Scheduled Areas.
16. Any provision of any law (relating to Panchayats in the Scheduled Areas) which is inconsistent with the provisions of this Act shall cease to be in force at the expiry of one year from the date on which this Act receives the assent of the President[7].

However, all the Panchayats existing immediately before such date shall continue till the expiry of their term, unless dissolved by the State Legislature sooner.

FINANCES OF PANCHAYATI RAJ

The Second Administrative Reforms Commission of India (2005–2009) has summarized the sources of revenue of the Panchayati Raj Institutions (PRIs) and their financial problems in the following way[7a]:

1. A major portion of Part IX of the Constitution deals with structural empowerment of the PRIs but the real strength in terms of both autonomy and efficiency of these institutions is dependent on their financial position (including their capacity to generate own resources). In general, Panchayats in our country receive funds in the following ways:
   (i) Grants from the Union Government based on recommendations of the Central Finance Commission as Article 280 of the Constitution.
   (ii) Devolution from the State Government based on recommendations of the State Finance Commission as per Ar 243-I.
   (iii) Loans / grants from the State Government.
   (iv) Programme-specific allocation under Centrally Sponsc Schemes and Additional Central Assistance.
   (v) Internal Resource Generation (tax and non-tax).
2. Across the country, States have not given adequate attention to fiscal empowerment of the Panchayats. The Panchayats own resources are meager. Kerala, Karnataka and Tamil Nadu are the states which are considered to be progressive in PRIs empowerment but even there, the Panchayats are heavily dependent on government grants. One can draw the following broad conclusions:
   (i) Internal resource generation at the Panchayat level is weak. T is partly due to a thin tax domain and partly due to Pancha own reluctance in collecting revenue.
   (ii) Panchayats are heavily dependent on grants from Union State Governments.
   (iii) A major portion of the grants both from Union as well as the S Governments is scheme specific. Panchayats have lim discretion and flexibility in incurring expenditure.
   (iv) In view of their own tight fiscal position, State Governments not keen to devolve funds to Panchayats.
   (v) In most of the critical Eleventh Schedule matters like prin

education, healthcare, water supply, sanitation and m irrigation even now, it is the State Government which is dire responsible for implementation of these programmes and he expenditure.

(vi) Overall, a situation has been created where Panchayats h responsibility but grossly inadequate resources.

3. Though, in absolute terms, the quantum of funds the Union/State Government transfers to a Panchayat forms the major component of its receipt, the PRI's own resource generation is the soul behind its financial standing. It is not only a question of resources; it is the existence of a local taxation system which ensures people's involvement in the affairs of an elected body. It also makes the institution accountable to its citizens.
4. In terms of own resource collection, the Gram Panchayats are comparatively in a better position because they have a tax domain of their own, while the other two tiers are dependent only on tolls, fees and non-tax revenue for generating internal resources.
5. State Panchayati Raj Acts have given most of the taxation powers to Village Panchayats. The revenue domain of the intermediate and District Panchayats (both tax as well as non-tax) has been kept much smaller and remains confined to secondary areas like ferry services, markets, water and conservancy services, registration of vehicles, cess on stamp duty and a few others.
6. A study of various State Legislations indicates that a number of taxes, duties, tolls and fees come under the jurisdiction of the Village Panchayats. These interalia include octroi, property/house tax, profession tax, land tax/cess, taxes/tolls on vehicles, entertainment tax/fees, license fees, tax on non-agriculture land, fee on registration of cattle, sanitation/drainage/ conservancy tax, water rate/ tax, lighting rate/tax, education cess and tax on fairs and festivals.

REASONS FOR INEFFECTIVE PERFORMANCE

Even after conferring the constitutional status and protection through the 73rd Amendment Act (1992), the performance of the Panchayati Raj Institutions (PRIs) has not been satisfactory and not upto the expected level. The various reasons for this sub-optimal performance are as follows[7b]:

1. **Lack of adequate devolution:** Many States have not taken adequate steps to devolve 3Fs (i.e., functions, funds and functionaries) to the PRIs to enable them to discharge their constitutionally stipulated function. Further, it is imperative that the PRIs have resources to match the responsibilities entrusted to them. While SFCs (state finance commissions) have submitted their recommendations, not many few States have implemented these or taken steps to ensure the fiscal viability of the PRIs.
2. **Excessive control by bureaucracy:** In some States, the Gram Panchayats have been placed in a position of subordination. Hence, the Gram Panchayat Sarpanches have to spend extraordinary amount of time visiting Block Offices for funds and/or technical approval. These interactions with the Block staff office distort the role of Sarpanches as elected representatives.
3. **Tied nature of funds:** This has two implications. The activities stated under a certain scheme are not always appropriate for all parts of the district. This results in unsuitable activities being promoted or an under-spend of the funds.
4. **Overwhelming dependency on government funding:** A review of money received and own source funds shows the overwhelming dependence of Panchayats on government funding. When Panchayats do not raise resources and instead receive funds from outside, people are less likely to request a social audit.
5. **Reluctance to use fiscal powers:** An important power devolved to GP (Gram Panchayat) is the right to levy tax on property, business, markets, fairs and also for services provided, like street lighting or public toilets, etc. Very few Panchayats use their fiscal power to levy and collect taxes. The argument pushed by Panchayat heads is that it is difficult to levy tax on

your own constituency, especially when you live in the community.

6. **Status of the Gram Sabha:** Empowering the Gram Sabhas could have been a powerful weapon for transparency, accountability and for involvement of the marginalized sections. However, a number of the State Acts have not spelt the powers of Gram Sabhas nor have any procedures been laid down for the functioning of these bodies or penalties for the officials.
7. **Creation of Parallel Bodies:** Often, Parallel Bodies (PBs) are created for supposedly speedy implementation and greater accountability. However, there is little evidence to show that such PBs have avoided the evils including that of partisan politics, sharing of spoils, corruption and elite capture. Missions (in particular) often bypassing mainstream programmes, create disconnect, duality, and alienation between the existing and the new structures and functions. PBs usurp the legitimate space of PRIs and demoralize the PRIs by virtue of their superior resource endowments.
8. **Poor Infrastructure:** A large number of Gram Panchayats in the country do not have even full time Secretary. Around 25 percent of the Gram Panchayats do not have basic office buildings. The database for planning, monitoring etc., are lacking in most of the cases.

   A large number of elected representatives of PRIs are semi-literate or literate and know little about their roles & responsibilities, programmes, procedures, systems. Often for want of good, relevant and periodic training, they are not able to perform their functions properly.

   Although all the District and Intermediate Panchayats are connected with computers, only around 20% Gram Panchayats reported to be having computing facility. In some States, Village Panchayats do not have any computing facility.

Table 38.2 *Articles Related to Panchayats at a Glance*

Article No.	Subject-matter
243.	Definitions
243A.	Gram Sabha
243B.	Constitution of panchayats

243C.	Composition of panchayats
243D.	Reservation of seats
243E.	Duration of panchayats, and so on
243F.	Disqualifications for membership
243G.	Powers, authority and responsibilities of panchayats
243H.	Powers to impose taxes by, and funds of, the panchayats
243-I.	Constitution of finance commission to review financial position
243J.	Audit of accounts of panchayats
243K.	Elections to the panchayats
243L.	Application to union territories
243M.	Part not to apply to certain areas
243N.	Continuance of existing laws and panchayats
243-O.	Bar to interference by courts in electoral matters

Table 38.3 *Name of Panchayati Raj Institutions in the States (2019)*[8]

Sl. No.	State	Panchayati Raj Institutions
1.	Andhra Pradesh	1. Gram Panchayats 2. Mandal Parishads 3. Zilla Parishads
2.	Arunachal Pradesh	1. Gram Panchayats 2. Anchal Samities 3. Zilla Parishads
3.	Assam	1. Goan Panchayats 2. Anchalic Panchayats 3. Zilla Parishads
4.	Bihar	1. Village Panchayats 2. Panchayat Samities 3. Zilla Parishads
5.	Chattisgarh	1. Gram Panchayats 2. Janpad Panchayats 3. Zilla Panchayats

6.	Goa	1. Village Panchayats 2. Zilla Panchayats
7.	Gujarat	1. Village Panchayats 2. Taluka Panchayats 3. District Panchayats
8.	Haryana	1. Gram Panchayats 2. Panchayat Samities 3. Zilla Parishads
9.	Himachal Pradesh	1. Gram Panchayats 2. Panchayat Samities 3. Zilla Panchayats
10.	Jharkhand	1. Gram Panchayats 2. Panchayat Samities 3. Zilla Panchayats
11.	Karnataka	1. Gram Panchayats 2. Taluka Panchayats 3. Zilla Panchayats
12.	Kerala	1. Village Panchayats 2. Block Panchayats 3. District Panchayats
13.	Madhya Pradesh	1. Village Panchayats 2. Block Panchayats 3. District Panchayats
14.	Maharashtra	1. Village Panchayats 2. Panchayat Samities 3. Zilla Parishads
15.	Manipur	1. Gram Panchayats 2. Zilla Panchayats
16.	Odisha	1. Gram Panchayats 2. Panchayat Samities 3. Zilla Parishads
17.	Punjab	1. Gram Panchayats 2. Panchayat Samities 3. Zilla Parishads
18.	Rajasthan	1. Gram Panchayats 2. Panchayat Samities 3. Zilla Parishads

19.	Sikkim	1. Gram Panchayats 2. Zilla Panchayats
20.	Tamil Nadu	1. Village Panchayats 2. Panchayat Unions 3. District Panchayats
21.	Telangana	1. Gram Panchayats 2. Mandal Parishads 3. Zilla Parishads
22.	Tripura	1. Gram Panchayats 2. Panchayat Samities 3. Zilla Panchayats
23.	Uttar Pradesh	1. Gram Panchayats 2. Kshetra Panchayats 3. Zilla Panchayats
24.	Uttarakhand	1. Gram Panchayats 2. Intermediate Panchayats 3. District Panchayats
25.	West Bengal	1. Gram Panchayats 2. Panchayat Samities 3. Zilla Parishads

Table 38.4 *Milestones in the Evolution of Panchayati Raj*[9]

I. Towards First Generation Panchayats	
1948–49	Constituent Assembly debates on the role of Panchayati Raj in Indian polity
1950	The Constitution of India comes into force on 26 January; Directive Principles of State Policy mention village panchayats as ‘units of self-government’ (Art 40)
1952	Community Development Programme starts on 2nd October
1957	Balvantrai Mehta Committee, appointed in January, submits its report on 24 November
1958–60	Several state governments enact new Panchayat Acts bringing in three-tier panchayat system
1959	Jawaharlal Nehru inaugurates the first generation panchayat

	at Nagaur in Rajasthan on 2nd October Kerala District Council Bill is introduced in Kerala Assembly; lapses after Assembly is dissolved
1964–77	Decline of first generation Panchayati Raj Institutions
II. Growth and Decline of Second Generation Panchayats	
1978	Panchayat elections are held in West Bengal on party basis on 4th June–marking the beginning of second generation of Panchayati Raj. Ashok Mehta Committee on working of panchayats, appointed on 12 December 1977, submits its report on 21 August
1983	Karnataka government enacts new PR Act
1984	Hanumantha Rao Committee on district level planning, appointed by Planning Commission in September 1982, submits its report in May
1985	Karnataka PR Act receives President's assent in July; comes into force on 14th August
1985	G.V.K. Rao Committee on administrative aspects of rural development, appointed by Planning Commission on 25 March, submits its report in December
1986	Andhra Pradesh follows West Bengal and Karnataka Panchayati Raj Model
1987	Karnataka holds panchayat elections in January
1990–92	Panchayats are dissolved and brought under administrators in Karnataka
III. Constitutionalisation of Panchayati Raj	
1986	L.M. Singhvi Committee submits its report on 27 November; recommends constitutional status for panchayats
1988	Consultative Committee of Parliament appoints a sub-committee under chairpersonship of P.K. Thungon to consider Constitutional Amendment
1989	64th Constitutional Amendment Bill is introduced in Parliament on 15 May; is defeated in Rajya Sabha on 15 October
1990	74th Constitutional Amendment Bill is introduced in Parliament on 7 September; lapses on dissolution of Lok Sabha

1991	72nd (Panchayats) and 73rd (Municipalities) Amendment Bills are introduced in Parliament; referred to the Parliament's Joint Select Committee in September
1992	Lok Sabha passes both the Bills on 22 December; Rajya Sabha passes them on 23 December
1993	73rd Amendment Act, 1992 comes into force on 24 April 74th Amendment Act, 1992 comes into force on 1 June
1993–94	All state governments pass Conformity Acts between 30 May, 1993 and 23 April, 1994
1994	Madhya Pradesh holds panchayat elections under the 73rd Amendment dispensation on 30 May
1996	Provisions of the Panchayats (Extension to the Scheduled Areas) Act, 1996, extending 73rd Amendment Act to Scheduled Areas, comes into force on 24 December. Kerala launches People's Plan Campaign on 16 August
2001	Bihar holds panchayat elections after 23 years (11–30 April)
2001	83rd Constitutional Amendment Act, 2000 amends Art. 243-M to dispense with reservations for Scheduled Castes in Arunachal Pradesh–paving way for panchayat elections in the only state yet to hold them under the new dispensation

Table 38.5 *Committees Related to Panchayati Raj (After Constitutionalisation)*

Sl. No.	Name of the Committee	Chairman	Appointed in	Reported in
1.	Task Force on Devolution of Powers and Functions to Panchayati Raj Institutions	Lalit Mathur	2001	2001
2.	Expert Group on Planning at the Grassroots Level	V. Ramachandran	2005	2006
3.	Task Force for Preparation of a Manual for District Planning	Smt. Rajwant Sandhu	2008	2008

4.	Committee on Restructuring of DRDA (District Rural Development Agency)	V. Ramachandran	2010	2012
5.	Expert Committee on Leveraging Panchayats for Efficient Delivery of Public Goods and Services	Mani Shankar Aiyar	2012	2013

NOTES AND REFERENCES

1. The subject of 'Local Government' is mentioned in the State List under the Seventh Schedule of the Constitution.
2. This bill was passed by the Lok Sabha on 22 December, 1992, and by the Rajya Sabha on 23 December, 1992. Later, it was approved by the 17 state assemblies and received the assent of the president on 20 April, 1993.
3. The Act defines all these terms in the following manner:
   (a) Panchayat means an institution (by whatever name called) of selfgovernment for rural areas.
   (b) Village means a village specified by the governor by public notification to be a village for this purpose, and includes a group of villages so specified.
   (c) Intermediate level means a level between the village and district levels specified by the governor by public notification for this purpose.
   (d) District means a district in a state.
4. A judge of a high court can be removed from his office by the president on the recommendation of the Parliament. This means that a state election commissioner cannot be removed by the governor, though appointed by him.
5. At present (2019), ten states of India have scheduled areas. These are: Andhra Pradesh, Telangana, Jharkhand, Chhatisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha and Rajasthan. Presently (2019), there are a total of ten tribal areas (autonomous districts) in the four states of Assam (3), Meghalaya (3), Tripura (1) and Mizoram (3).

6. S.K. Singh, Panchayats in Scheduled Areas, Kurukshetra, May 2001, p. 26.
7. This Act received the assent of the President on 24 December, 1996.
7a. Second Administrative Reforms Commission, Government of India, Report on Local Governance, 2007, pp. 151–154.
7b. Ministry of Panchayati Raj, Government of India, Roadmap for the Panchayati Raj (2011–16), pp. 11–12, 23 and 7–8.
8. Report of the Thirteenth Finance Commission (2010–2015), Volume II, December 2009, pp. 424–426.
9. Panchayati Raj Update, October, 2002, Institute of Social Sciences, New Delhi.

39 Municipalities

The term ‘Urban Local Government’ in India signifies the governance of an urban area by the people through their elected representatives. The jurisdiction of an urban local government is limited to a specific urban area which is demarcated for this purpose by the state government[1] .

There are eight types of urban local governments in India– municipal corporation, municipality, notified area committee, town area committee, cantonment board, township, port trust and special purpose agency.

The system of urban government was constitutionalised through the 74th Constitutional Amendment Act of 1992. At the Central level, the subject of ‘urban local government’ is dealt with by the following three ministries:

(i) Ministry of Housing and Urban Affairs.
(ii) Ministry of Defence in the case of cantonment boards
(iii) Ministry of Home Affairs in the case of Union Territories

EVOLUTION OF URBAN BODIES

Historical Perspective

The institutions of urban local government originated and developed in modern India during the period of British rule. The major events in this context are as follows:

(i) In 1688, the first municipal corporation in India was set up at Madras.
(ii) In 1726, the municipal corporations were set up in Bombay and Calcutta.
(iii) Lord Mayo's Resolution of 1870 on financial decentralisation visualised the development of local self-government institutions.
(iv) Lord Ripon's Resolution of 1882 has been hailed as the 'Magna Carta' of local self-government. He is called as the father of local-self government in India.
(v) The Royal Commission on decentralisation was appointed in 1907 and it submitted its report in 1909. Its chairman was Hobhouse.
(vi) Under the dyarchical scheme introduced in Provinces by the Government of India Act of 1919, local self-government became a transferred subject under the charge of a responsible Indian minister.
(vii) In 1924, the Cantonments Act was passed by the Central legislature.
(viii) Under the provincial autonomy scheme introduced by the Government of India Act of 1935, local self-government was declared a provincial subject.

Committees and Commissions

The committees and commissions appointed by the Central Government to improve the functioning of urban local governments are mentioned below in Table 39.1.

Constitutionalisation

In August 1989, the Rajiv Gandhi government introduced the 65th Constitutional Amendment Bill (i.e., Nagarpalika Bill) in the Lok Sabha. The bill aimed at strengthening and revamping the municipal bodies

by conferring a constitutional status on them. Although the bill was passed in the Lok Sabha, it was defeated in the Rajya Sabha in October 1989 and hence, lapsed.

Table 39.1 *Committees and Commissions on Urban Local Governments*

Sl. No.	Year	Name of the Committee / Commission	Chairman
1.	1949–51	Local Finance Enquiry Committee	P.K. Wattal
2.	1953–54	Taxation Enquiry Commission	John Matthai
3.	1963–65	Committee on the Training of Municipal Employees	Nur-Ud-din Ahmed
4.	1963–66	Rural-Urban Relationship Committee	A.P. Jain
5.	1963	Committee of Ministers on Augmentation of Financial Resources of Urban Local Bodies	Rafiq Zakaria
6.	1965–68	Committee on Service Conditions of Municipal Employees	–
7.	1974	Committee on Budgetary Reform in Municipal Administration	Girijapati Mukharji
8.	1982	Study Group on Constitution, Powers and Laws of Urban Local Bodies and Municipal Corporations	K.N. Sahaya
9.	1985–88	National Commission on Urbanisation	C.M. Correa

The National Front Government under V P Singh introduced the revised Nagarpalika Bill in the Lok Sabha again in September 1990.

However, the bill was not passed and finally lapsed due to the dissolution of the Lok Sabha.

P V Narasimha Rao's Government also introduced the modified Municipalities Bill inthe Lok Sabha in September 1991. It finally emerged as the 74th Constitutional Amendment Act of 1992 and came into force on 1 June 1993[2] .

74TH AMENDMENT ACT OF 1992

This Act has added a new Part IX-A to the Constitution of India. This part is entitled as 'The Municipalities' and consists of provisions from Articles 243-P to 243-ZG. In addition, the act has also added a new Twelfth Schedule to the Constitution. This schedule contains eighteen functional items of municipalities. It deals with Article 243-W.

The act gave constitutional status to the municipalities. It has brought them under the purview of justiciable part of the Constitution. In other words, state governments are under constitutional obligation to adopt the new system of municipalities in accordance with the provisions of the act.

The act aims at revitalising and strengthening the urban governments so that they function effectively as units of local government.

Salient Features

The salient features of the act are:

Three Types of Municipalities

The act provides for the constitution of the following three types of municipalities in every state.

1. A *nagar panchayat* (by whatever name called) for a transitional area[3] .
2. A *municipal council* for a smaller urban area.
3. A *municipal corporation* for a larger urban area.

But, there is one exception. If there is an urban area where municipal services are being provided by an industrial establishment, then the governor may specify that area to be an industrial township. In such a case, a municipality may not be constituted.

The governor has to specify a transitional area, a smaller urban area or a larger urban area, keeping in view the following factors:

(a) Population of the area.
(b) Density of the population therein.
(c) Revenue generated for local administration.
(d) Percentage of employment in non-agricultural activities.
(e) Economic importance.
(f) Such other factors as he may deem fit.

Composition

All the members of a municipality shall be elected directly by the people of the municipal area. For this purpose, each municipal area shall be divided into territorial constituencies to be known as wards. The state legislature may provide the manner of election of the chairperson of a municipality. It may also provide for the representation of the following persons in a municipality.

1. Persons having special knowledge or experience in municipal administration without the right to vote in the meetings of municipality.
2. The members of the Lok Sabha and the state legislative assembly representing constituencies that comprise wholly or partly the municipal area.
3. The members of the Rajya Sabha and the state legislative council registered as electors within the municipal area.
4. The chairpersons of committees (other than wards committees).

Wards Committees

There shall be constituted a wards committee, consisting of one or more wards, within the territorial area of a municipality having population of three lakh or more. The state legislature may make provision with respect to the composition and the territorial area of a wards committee and the manner in which the seats in a wards committee shall be filled.

Other Committees

In addition to the wards committees, the state legislature is also allowed to make any provision for the constitution of other committees. The chairpersons of such committees may be made members of the municipality.

Reservation of Seats

The act provides for the reservation of seats for the scheduled castes and the scheduled tribes in every municipality in proportion of their population to the total population in the municipal area. Further, it provides for the reservation of not less than one-third of the total number of seats for women (including the number of seats reserved for woman belonging to the SCs and the STs).

The state legislature may provide for the manner of reservation of offices of chairpersons in the municipalities for SCs, STs and women. It may also make any provision for the reservation of seats in any

municipality or offices of chairpersons in municipalities in favour of backward classes.

The reservation of seats as well as the reservation of offices of chairpersons in the municipalities for the scheduled castes and scheduled tribes shall cease to have effect after the expiration of the period specified in Article 334 (which is presently seventy years, that is, till 2020).

Duration of Municipalities

The act provides for a five-year term of office for every municipality. However, it can be dissolved before the completion of its term. Further, the fresh elections to constitute a municipality shall be completed (a) before the expiry of its duration of five years; or (b) in case of dissolution, before the expiry of a period of six months from the date of its dissolution.

But, where the remainder of the period (for which the dissolved municipality would have continued) is less than six months, it shall not be necessary to hold any election for constituting the new municipality for such period.

Moreover, a municipality constituted upon the dissolution of a municipality before the expiration of its duration shall continue only for the remainder of the period for which the dissolved municipality would have continued had it not been so dissolved. In other words, a municipality reconstituted after premature dissolution does not enjoy the full period of five years but remains in office only for the remainder of the period.

The act also makes two more provisions with respect to dissolution: (a) a municipality must be given a reasonable opportunity of being heard before its dissolution; and (b) no amendment of any law for the time being in force shall cause dissolution of a municipality before the expiry of the five years term.

Disqualifications

A person shall be disqualified for being chosen as or for being a member of a municipality if he is so disqualified (a) under any law for the time being in force for the purposes of elections to the legislature of the state concerned; or (b) under any law made by the state legislature. However, no person shall be disqualified on the ground that he is less than 25 years of age if he has attained the age of 21 years. Further, all questions of disqualifications shall be referred to such authority as the state legislature determines.

State Election Commission

The superintendence, direction and control of the preparation of electoral rolls and the conduct of all elections to the municipalities shall be vested in the state election commission.

The state legislature may make provision with respect to all matters relating to elections to the municipalities.

Powers and Functions

The state legislature may endow the municipalities with such powers and authority as may be necessary to enable them to function as institutions of self-government. Such a scheme may contain provisions for the devolution of powers and responsibilities upon municipalities at the appropriate level with respect to (a) the preparation of plans for economic development and social justice; (b) the implementation of schemes for economic development and social justice as may be entrusted to them, including those in relation to the eighteen matters listed in the Twelfth Schedule.

Finances

The state legislature may (a) authorise a municipality to levy, collect and appropriate taxes, duties, tolls and fees; (b) assign to a municipality taxes, duties, tolls and fees levied and collected by state government; (c) provide for making grants-in-aid to the municipalities from the consolidated fund of the state; and (d) provide for constitution of funds for crediting all moneys of the municipalities.

Finance Commission

The finance commission (which is constituted for the panchayats) shall also, for every five years, review the financial position of municipalities and make recommendation to the governor as to:

1. The principles that should govern:
   (a) The distribution between the state and the municipalities of the net proceeds of the taxes, duties, tolls and fees levied by the state and allocation of shares amongst the municipalities at all levels.
   (b) The determination of the taxes, duties, tolls and fees that may be assigned to the municipalities.
   (c) The grants-in-aid to the municipalities from the consolidated fund of the state.
2. The measures needed to improve the financial position of the municipalities.

3. Any other matter referred to it by the governor in the interests of sound finance of municipalities.

The governor shall place the recommendations of the commission along with the action taken report before the state legislature.

The central finance commission shall also suggest the measures needed to augment the consolidated fund of a state to supplement the resources of the municipalities in the state (on the basis of the recommendations made by the finance commission of the state).

Audit of Accounts

The state legislature may make provisions with respect to the maintenance of accounts by municipalities and the auditing of such accounts.

Application to Union Territories

The provisions of this part are applicable to the Union territories. But, the President may direct that they would apply to a Union territory subject to such exceptions and modifications as he may specify.

Exempted Areas

The act does not apply to the scheduled areas and tribal areas in the states[4]. It shall also not affect the functions and powers of the Darjeeling Gorkha Hill Council of the West Bengal.

However, the Parliament may extend the provisions of this part to the scheduled areas and tribal areas subject to such exceptions and modifications as it may specify.

District Planning Committee

Every state shall constitute at the district level, a district planning committee to consolidate the plans prepared by panchayats and municipalities in the district, and to prepare a draft development plan for the district as a whole. The state legislature may make provisions with respect to the following:

1. The composition of such committees;
2. The manner of election of members of such committees;
3. The functions of such committees in relation to district planning; and
4. The manner of the election of the chairpersons of such committees.

The act lays down that four-fifths of the members of a district planning committee should be elected by the elected members of the

district panchayat and municipalities in the district from amongst themselves. The representation of these members in the committee should be in proportion to the ratio between the rural and urban populations in the district.

The chairperson of such committee shall forward the development plan to the state government.

In preparing the draft development plan, a district planning committee shall

(a) Have regard to–
   (i) matters of common interest between the Panchayats and Municipalities including spatial planning, sharing of water other physical and natural resources, the integrated developn of infrastructure and environmental conservation;
   (ii) the extent and type of available resources whether financia otherwise; and
(b) Consult such institutions and organisations as the Governor may specify.

Metropolitan Planning Committee

Every metropolitan area shall have a metropolitan planning committee to prepare a draft development plan[5]. The state legislature may make provisions with respect to the following:

1. The composition of such committees;
2. The manner of election of members of such committees;
3. The representation in such committes of the Central government, state government and other organisations;
4. The functions of such committees in relation to planning and coordination for the metropolitan area; and
5. The manner of election of chairpersons of such committees.

The act lays down that two-thirds of the members of a metropolitan planning committee should be elected by the elected members of the municipalities and chairpersons of the panchayats in the metropolitan area from amongst themselves. The representation of these members in the committee should be in proportion to the ratio between the population of the municipalities and the panchayats in that metropolitan area.

The chairpersons of such committees shall forward the development plan to the state government.

In preparing the draft development plan, a metropolitan planning committee shall

(a) Have regard to–

(i) the plans prepared by the Municipalities and the Panchayats the Metropolitan area;
(ii) matters of common interest between the Municipalities and t Pan-chayats, including co-ordinated spatial planning of the are sharing of water and other physical and natural resources, t integrated development of infrastructure and environmen conservation;
(iii) the overall objectives and priorities set by the Government India and the government of the state;
(iv) the extent and nature of investments likely to be made in t Metropolitan area by agencies of the Government of India and the Government of the State and other available resourc whether financial or otherwise; and

(b) consult such institutions and organisations as the Governor may specify.

Continuance of Existing Laws and Municipalities

All the state laws relating to municipalities shall continue to be in force until the expiry of one year from the commencement of this act. In other words, the states have to adopt the new system of municipalities based on this act within the maximum period of one year from 1 June, 1993, which is the date of commencement of this act. However, all municipalities existing immediately before the commencement of this act shall continue till the expiry of their term, unless dissolved by the state legislature sooner.

Bar to Interference by Courts in Electoral Matters

The act bars the interference by courts in the electoral matters of municipalities. It declares that the validity of any law relating to the delimitation of constituencies or the allotment of seats to such constituencies cannot be questioned in any court. It further lays down that no election to any municipality is to be questioned except by an election petition presented to such authority and in such manner as provided by the state legislature.

Twelfth Schedule

It contains the following 18 functional items placed within the purview of municipalities:

1. Urban planning including town planning;
2. Regulation of land use and construction of buildings;
3. Planning for economic and social development;

4. Roads and bridges;
5. Water supply for domestic, industrial and commercial purposes;
6. Public health, sanitation, conservancy and solid waste management;
7. Fire services;
8. Urban forestry, protection of the environment and promotion of ecological aspects;
9. Safeguarding the interests of weaker sections of society, including the handicapped and mentally retarded;
10. Slum improvement and upgradation;
11. Urban poverty alleviation;
12. Provision of urban amenities and facilities such as parks, gardens, playgrounds;
13. Promotion of cultural, educational and aesthetic aspects;
14. Burials and burial grounds, cremations and cremation grounds and electric crematoriums;
15. Cattle ponds, prevention of cruelty to animals;
16. Vital statistics including registration of births and deaths;
17. Public amenities including street lighting, parking lots, bus stops and public conveniences; and
18. Regulation of slaughter houses and tanneries.

TYPES OF URBAN GOVERNMENTS

The following eight types of urban local bodies are created in India for the administration of urban areas:

- Municipal Corporation
- Municipality
- Notified Area Committee
- Town Area Committee
- Cantonment Board
- Township
- Port Trust
- Special Purpose Agency

1. Municipal Corporation

Municipal corporations are created for the administration of big cities like Delhi, Mumbai, Kolkata, Hyderabad, Bangalore and others. They are established in the states by the acts of the concerned state legislatures, and in the union territories by the acts of the Parliament of India. There may be one common act for all the municipal corporations in a state or a separate act for each municipal corporation.

A municipal corporation has three authorities, namely, the council, the standing committees and the commissioner.

The Council is the deliberative and legislative wing of the corporation. It consists of the Councillors directly elected by the people, as well as a few nominated persons having knowledge or experience of municipal administration. In brief, the composition of the Council including the reservation of seats for SCs, STs and women is governed by the 74th Constitutional Amendment Act.

The Council is headed by a Mayor. He is assisted by a Deputy Mayor. He is elected in a majority of the states for a one-year renewable term. He is basically an ornamental figure and a formal head of the corporation. His main function is to preside over the meetings of the Council.

The standing committees are created to facilitate the working of the council, which is too large in size. They deal with public works, education, health, taxation, finance and so on. They take decisions in their fields.

The municipal commissioner is responsible for the implementation of the decisions taken by the council and its standing committees. Thus, he is the chief executive authority of the corporation. He is appointed by the state government and is generally a member of the IAS.

2. Municipality

The municipalities are established for the administration of towns and smaller cities. Like the corporations, they are also set up in the states by the acts of the concerned state legislatures and in the union territory by the acts of the Parliament of India. They are also known by various other names like municipal council, municipal committee, municipal board, borough municipality, city municipality and others.

Like a municipal corporation, a municipality also has three authorities, namely, the council, the standing committees and the chief executive officer.

The council is the deliberative and legislative wing of the municipality. It consists of the councillors directly elected by the people.

The council is headed by a president/chair-man. He is assisted by a vice-president/vice-chairman. He presides over the meetings of the council. Unlike the Mayor of a municipal corporation, he plays a significant role and is the pivot of the municipal administration. Apart from presiding over the meetings of the Council, he enjoys executive powers.

The standing committees are created to facilitate the working of the council. They deal with public works, taxation, health, finance and so on.

The chief executive officer/chief municipal officer is responsible for day-to-day general administration of the municipality. He is appointed by the state government.

3. Notified Area Committee

A notified area committee is created for the administration of two types of areas–a fast developing town due to industrialisation, and a town which does not yet fulfil all the conditions necessary for the constitution of a municipality, but which otherwise is considered important by the state government. Since it is established by a notification in the government gazette, it is called as notified area

committee. Though it functions within the framework of the State Municipal Act, only those provisions of the act apply to it which are notified in the government gazette by which it is created. It may also be entrusted to exercise powers under any other act. Its powers are almost equivalent to those of a municipality. But unlike the municipality, it is an entirely nominated body, that is, all the members of a notified area committee including the chairman are nominated by the state government. Thus, it is neither an elected body nor a statutory body.

4. Town Area Committee

A town area committee is set up for the administration of a small town. It is a semimunicipal authority and is entrusted with a limited number of civic functions like drainage, roads, street lighting, and conservancy. It is created by a separate act of a state legislature. Its composition, functions and other matters are governed by the act. It may be wholly elected or wholly nominated by the state government or partly elected and partly nominated[6] .

5. Cantonment Board

A cantonment board is established for municipal administration for civilian population in the cantonment area[7]. It is set up under the provisions of the Cantonments Act of 2006–a legislation enacted by the Central government. It works under the administrative control of the defence ministry of the Central government. Thus, unlike the above four types of urban local bodies, which are created and administered by the state government, a cantonment board is created as well as administered by the Central government.

The Cantonments Act of 2006 was enacted to consolidate and amend the law relating to the administration of cantonments with a view to impart greater democratisation, improvement of their financial base to make provisions for developmental activities and for matters connected with them. This Act has repealed the Cantonments Act of 1924.

At present (2019), there are 62 cantonment boards in the country. They are grouped into four categories on the basis of the civil population. This is shown below in Table 39.2.

Table 39.2 *Classification of Cantonment Boards*

Category	Civil Population
I	above 50,000
II	10,000 to 50,000
III	2,500 to 10,000
IV	Below 2,500

A cantonment board consists of partly elected and partly nominated members. The elected members hold office for a term of five years while the nominated members (i.e., ex-officio members) continue so long as they hold the office in that station. The military officer commanding the station is the ex-officio president of the board and presides over its meetings. The vice-president of the board is elected by the elected members from amongst themselves for a term of five years.

The Category I cantonment board consists of the following members:

(i) A military officer commanding the station
(ii) An executive engineer in the cantonment
(iii) A health officer in the cantonment
(iv) A first class magistrate nominated by the district magistrate
(v) Three military officers nominated by the officer commanding the station
(vi) Eight members elected by the people of the cantonment area
(vii) Chief Executive Officer of the cantonment board

The functions performed by a cantonment board are similar to those of a municipality. These are statutorily categorised into obligatory functions and discretionary functions. The sources of income includes both, tax revenue and non-tax revenue.

The executive officer of the cantonment board is appointed by the president of India. He implements all the resolutions and decisions of the board and its committees. He belongs to the central cadre established for the purpose.

6. Township

This type of urban government is established by the large public enterprises to provide civic amenities to its staff and workers who live in the housing colonies built near the plant. The enterprise appoints a town administrator to look after the administration of the township. He

is assisted by some engineers and other technical and non-technical staff. Thus, the township form of urban government has no elected members. In fact, it is an extension of the bureaucratic structure of the enterprises.

7. Port Trust

The port trusts are established in the port areas like Mumbai, Kolkata, Chennai and so on for two purposes: (a) to manage and protect the ports; and (b) to provide civic amenities. Aport trust is created by an Act of Parliament. It consists of both elected and nominated members. Its chairman is an official. Its civic functions are more or less similar to those of a municipality.

8. Special Purpose Agency

In addition to these seven area-based urban bodies (or multipurpose agencies), the states have set up certain agencies to undertake designated activities or specific functions that 'legitimately' belong to the domain of municipal corporations or municipalities or other local urban governments. In other words, these are function-based and not areabased. They are known as 'single purpose', 'uni-purpose' or 'special purpose' agencies or 'functional local bodies'. Some such bodies are:

1. Town improvement trusts.
2. Urban development authorities.
3. Water supply and sewerage boards.
4. Housing boards.
5. Pollution control boards.
6. Electricity supply boards.
7. City transport boards.

These functional local bodies are established as statutory bodies by an act of state legislature or as departments by an executive resolution. They function as autonomous bodies and deal with the functions allotted to them independently of the local urban governments, that is, municipal corporations or municipalities and so forth. Thus, they are not subordinate agencies of the local municipal bodies.

MUNICIPAL PERSONNEL

There are three types of municipal personnel systems in India. The personnel working in the urban governments may belong to any one or all the three types. These are

1. Separate Personnel System: Under this system, each local body appoints, administers, and controls its own personnel. They are not transferable to other local bodies. It is the most widely prevalent system. This system upholds the principle of local autonomy and promotes undivided loyalty.

2. Unified Personnel System: In this system, the state government appoints, administers, and controls the municipal personnel. In other words, state-wide services (cadres) are created for all the urban bodies in the state. They are transferable between the local bodies in the state. This system is prevalent in Andhra Pradesh, Tamil Nadu, Uttar Pradesh, Rajasthan, Madhya Pradesh and so on.

3. Integrated Personnel System: Under this system, the personnel of the state government and those of the local bodies form part of the same service. In other words, the municipal personnel are the members of the state services. They are transferable not only between the local bodies in the state but also between local bodies and departments of state government. Thus, there is no distinction between local civil service and state civil service. This system is prevalent in Odisha, Bihar, Karnataka, Punjab, Haryana and others.

The various national level institutions providing training to the municipal personnel are

1. All-India Institute of Local SelfGovernment (Mumbai) constituted in 1927; it is a private registered society
2. Centre for Urban and Environmental Studies (New Delhi) set up in 1967 on the recommendation of Nur-uddin Ahmed Committee on Training of Municipal Employees (1963–1965)
3. Regional Centres for Urban and Environmental Studies (Kolkata, Lucknow, Hyderabad and Mumbai) set up in 1968 on the recommendation of Nur-ud-din Ahmed Committee on Training of Municipal Employees (1963–1965)
4. National Institute of Urban Affairs, established in 1976
5. Human Settlement Management Institute, established in 1985

MUNICIPAL REVENUE

There are five sources of income of the urban local bodies. These are as follows:

1. **Tax Revenue:** The revenue from the local taxes include property tax, entertainment tax, taxes on advertisements, professional tax, water tax, tax on animals, lighting tax, pilgrim tax, market tax, toll on new bridges, octroi and so on. In addition, the municipal bodies imposes various cesses like library cess, education cess, beggary cess and so on. Octroi (i.e., taxes on the entry of goods into a local area for consumption, use or sale therein) has been abolished in most of the states. Property tax is the most important tax revenue.
2. **Non-Tax Revenue:** This source include rent on municipal properties, fees and fines, royalty, profits and dividends, interest, user charges and miscellaneous receipts. The user charges (i.e., payment for public utilities) include water charges, sanitation charges, sewerage charges and so on.
3. **Grants:** These include the various grants given to municipal bodies by the Central and State Governments for several development programmes, infrastructure schemes, urban reform initiatives and so on.
4. **Devolution:** This consists of the transfer of funds to the urban local bodies from the state government. This devolution is made on the basis of the recommendations of the state finance commission.
5. **Loans:** The urban local bodies raise loans from the state government as well as financial institutions to meet their capital expenditure. They can borrow from the financial institutions or other bodies only with the approval of the state government.

CENTRAL COUNCIL OF LOCAL GOVERNMENT

The Central Council of Local Government was set up in 1954. It was constituted under Article 263 of the Constitution of India by an order of the President of India. Originally, it was known as the Central Council of Local Self-Government. However, the term 'selfgovernment' was found to be superfluous and hence was replaced by the term 'government' in the 1980s. Till 1958, it dealt with both urban as well as rural local governments, but after 1958 it has been dealing with matters of urban local government only.

The Council is an advisory body. It consists of the Minister for Urban Development in the Government of India and the ministers for local self government in states. The Union minister acts as the Chairman of the Council.

The Council performs the following functions with regard to local government:

(i) Considering and recommending the policy matters
(ii) Making proposals for legislation
(iii) Examining the possibility of cooperation between the Centre and the states
(iv) Drawing up a common programme of action
(v) Recommending Central financial assistance
(vi) Reviewing the work done by the local bodies with the Central financial assistance

Table 39.3 *Articles Related to Municipalities at a Glance*

Article No.	Subject-matter
243P	Definitions
243Q	Constitution of municipalities
243R	Composition of municipalities
243S	Constitution and composition of wards committees, and so on
243T	Reservation of seats
243U	Duration of municipalities, and so on
243V	Disqualifications for membership
243W	Powers, authority and responsibilities of

	municipalities, and so on
243X	Powers to impose taxes by, and funds of, the municipalities
243Y	Finance commission
243Z	Audit of accounts of municipalities
243ZA	Elections to the municipalities
243ZB	Application to union territories
243ZC	Part not to apply to certain areas
243ZD	Committee for district planning
243ZE	Committee for metropolitan planning
243ZF	Continuance of existing laws and municipalities
243ZG	Bar to interference by courts in electoral matters

Table 39.4 *Name of Urban Local Bodies in the States (2019)*[8]

Sl. No.	State	Urban Local Bodies
1.	Andhra Pradesh	1. Municipal Corporations 2. Municipalities 3. Nagar Panchayats
2.	Arunachal Pradesh	(ULBs do not exist)
3.	Assam	1. Municipal Corporations 2. Municipalities 3. Town Panchayats
4.	Bihar	1. Municipal Corporations 2. Municipal Councils 3. Nagar Panchayats
5.	Chattisgarh	1. Municipal Corporations 2. Municipalities 3. Town Panchayats
6.	Goa	1. Municipal Corporations 2. Municipal Councils
7.	Gujarat	1. Municipal Corporations 2. Municipalities 3. Notified Area Councils

8.	Haryana	1. Municipal Corporations 2. Municipal Councils 3. Municipal Committees
9.	Himachal Pradesh	1. Municipal Corporations 2. Municipal Councils 3. Nagar Panchayats
10.	Jharkhand	1. Municipal Corporations 2. Municipalities / Municipal Councils 3. Town Panchayats / Notified Area Councils
11.	Karnataka	1. Municipal / City Corporations 2. Municipal / City Councils 3. Town Panchayats
12.	Kerala	1. Municipal Corporations 2. Municipalities
13.	Madhya Pradesh	1. Municipal Corporations 2. Municipalities 3. Nagar Panchayats
14.	Maharashtra	1. Municipal Corporations 2. Municipal Councils 3. Nagar Panchayats
15.	Manipur	1. Municipal Councils 2. Nagar Panchayats
16.	Meghalaya	1. Municipalities
17.	Mizoram	1. Municipalities
18.	Nagaland	1. Municipal Councils 2. Town Councils
19.	Odisha	1. Municipal Corporations 2. Municipalities 3. Notified Area Councils
20.	Punjab	1. Municipal Corporations 2. Municipalities 3. Nagar Panchayats
21.	Rajasthan	1. Municipal Corporations 2. Municipal Councils

		3. Municipal Boards
22.	Sikkim	1. Municipal Corporations 2. Municipal Councils 3. Nagar Panchayats
23.	Tamil Nadu	1. Municipal Corporations 2. Municipalities 3. Town Panchayats
24.	Telangana	1. Municipal Corporations 2. Municipalities 3. Nagar Panchayats
25.	Tripura	1. Municipal Councils 2. Nagar Panchayats
26.	Uttar Pradesh	1. Nagar Nigam 2. Nagar Palika Parishads 3. Nagar Panchayats
27.	Uttarakhand	1. Nagar Nigam 2. Nagar Palika Parishads 3. Nagar Panchayats
28.	West Bengal	1. Municipal Corporations 2. Municipalities 3. Notified Area Authorities

NOTES AND REFERENCES

1. 'Local Government' is a subject mentioned in the State List under the 7th Schedule of the Constitution.
2. The bill was passed in both the Lok Sabha and the Rajya Sabha in December 1992. After that, the bill was approved by the required number of state legislatures. It was assented by the president in April 1993.
3. A transitional area means an area which is in transition from a rural area to an urban area.
4. At present (2019), ten states of India have scheduled areas. These are: Andhra Pradesh, Telangana, Jharkhand, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Orissa and Rajasthan. Presently (2019), there are a total of ten tribal areas (autonomous districts) in the

four states of Assam (3), Meghalaya (3), Tripura (1) and Mizoram (3).

5. Metropolitan area means an area having a population of 10 lakh or more, in one or more districts and consisting of two or more municipalities or panchayats or other contiguous areas.
6. The Rural-Urban Relationship Committee (1963–66) headed by A.P. Jain recommended that small town area committees should be merged with the panchayati raj institutions to avoid multiplicity in the pattern of local bodies.
7. A cantonment area is a delimited area where the military forces and troops are permanently stationed.
8. Report of the Thirteenth Finance Commission (2010–2015), Volume II, December 2009, P. 424–426.

PART-VI
UNION TERRITORIES AND SPECIAL AREAS

40. Union Territories
41. Scheduled and Tribal

40 Union Territories

Under Article 1 of the Constitution, the territory of India comprises three categories of territories: (a) territories of the states; (b) union territories; and (c) territories that may be acquired by the Government of India at any time. At present, there are twenty-nine states, seven union territories and no acquired territories.

The states are the members of the federal system in India and share a distribution of power with the Centre. The union territories, on the other hand, are those areas which are under the direct control and administration of the Central government. Hence, they are also known as 'centrally administered territories'. 'In this way, existence of these territories constitutes a conspicuous departure from federalism in India; the Government of India is plainly unitary in so far as the relationship between New Delhi and these Central enclaves is concerned'[1] .

CREATION OF UNION TERRITORIES

During the British Rule, certain areas were constituted as 'scheduled districts' in 1874. Later, they came to be known as 'chief commissioners provinces'. After independence, they were placed in the category of Part 'C' States and Part 'D' Territories[2]. In 1956, they were constituted as the 'union territories' by the 7th Constitutional Amendment Act (1956) and the States Reorganisation Act (1956). Gradually, some of these union territories have been elevated to statehood. Thus, Himachal Pradesh, Manipur, Tripura, Mizoram, Arunachal Pradesh and Goa, which are states today were formerly union territories. On the other hand, the territories that were acquired from the Portuguese (Goa, Daman and Diu, and Dadra and Nagar Haveli) and the French (Puducherry) were constituted as the union territories.

At present, there are nine Union Territories. They are (along with the year of creation): (1) Andaman and Nicobar Islands–1956, (2) Delhi–1956, (3) Lakshadweep–1956, (4) Dadra and Nagar Haveli–1961, (5) Daman and Diu–1962, (6) Puducherry–1962, (7) Chandigarh–1966, (8) Jammu and Kashmir–2019 and (9) Ladakh–2019. Till 1973, Lakshadweep was known by the name of Laccadive, Minicoy and Amindivi Islands. In 1992, Delhi was redesignated as the National Capital Territory of Delhi. Till 2006, Puducherry was known as Pondicherry.

The union territories have been created for a variety of reasons. These are mentioned below[3] :

1. Political and administrative consider-ation–Delhi and Chandigarh.
2. Cultural distinctiveness–Puducherry, Dadra and Nagar Haveli, and Daman and Diu.
3. Strategic importance–Andaman and Nicobar Islands and Lakshadweep.
4. Special treatment and care of the backward and tribal people–Mizoram, Manipur, Tripura and Arunachal Pradesh which later became states.

In 2019, the erstwhile state of Jammu and Kashmir was bifurcated into two separate union territories, namely, the Union

territory of Jammu and Kashmir, and the Union territory of Ladakh. While introducing the Jammu and Kashmir Reorganisation Bill, 2019, in the Parliament, the central government gave the following reasons for the creation of these two new union territories:

1. The Ladakh division of the state of Jammu and Kashmir has a large area but is sparsely populated with a very difficult terrain. There has been a long pending demand of people of Ladakh, to give it the status of a Union territory to enable them to realize their aspirations. The Union territory of Ladakh will be without a legislature.
2. Further, keeping in view the prevailing internal security situation, fuelled by cross border terrorism in the existing state of Jammu and Kashmir, a separate Union territory for Jammu and Kashmir is being created. The Union territory of Jammu and Kashmir will be with a legislature.

ADMINISTRATION OF UNION TERRITORIES

Articles 239 to 241 in Part VIII of the Constitution deal with the union territories. Even though all the union territories belong to one category, there is no uniformity in their administrative system.

Every union territory is administered by the President acting through an administrator appointed by him. An administrator of a union territory is an agent of the President and not head of state like a governor. The President can specify the designation of an administrator; it may be Lieutenant Governor or Chief Commissioner or Administrator. At present, it is Lieutenant Governor in the case of Delhi, Puducherry, Andaman and Nicobar Islands, Jammu and Kashmir and Ladakh and Administrator in the case of Chandigarh, Dadra and Nagar Haveli, Daman and Diu and Lakshadweep. The President can also appoint the governor of a state as the administrator of an adjoining union territory. In that capacity, the governor is to act independently of his council of ministers.

The Union Territories of Puducherry (in 1963), Delhi (in 1992) and Jammu and Kashmir (in 2019) are provided with a legislative assembly[4] and a council of ministers headed by a chief minister. The remaining six union territories do not have such popular political institutions. But, the establishment of such institutions in the union territories does not diminish the supreme control of the president and Parliament over them.

The Parliament can make laws on any subject of the three lists (including the State List) for the union territories. This power of Parliament also extends to Puducherry, Delhi and Jammu and Kashmir, which have their own local legislatures. This means that, the legislative power of Parliament for the union territories on subjects of the State List remain unaffected even after establishing a local legislature for them. But, the legislative assembly of Puducherry can also make laws on any subject of the State List and the Concurrent List. Similarly, the legislative assembly of Delhi can make laws on any subject of the State List (except public order, police and land) and the Concurrent List. Likewise, the legislative assembly of Jammu and Kashmir can

make laws on any subject of the State List (except public order and police) and the Concurrent List.

The President can make regulations for the peace, progress and good government of the Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli, Daman and Diu and Ladakh. In the case of Puducherry also, the President can legislate by making regulations but only when the assembly is suspended or dissolved. A regulation made by the President has the same force and effect as an act of Parliament and can also repeal or amend any act of Parliament in relation to these union territories.

The Parliament can establish a high court for a union territory or put it under the jurisdiction of the high court of adjacent state. Delhi is the only union territory that has a high court of its own (since 1966). The Bombay High Court has got jurisdiction over two union territo-ries–Dadra and Nagar Haveli, and Daman and Diu. Andaman and Nocobar Islands, Chandigarh, Lakshadweep and Puducherry are placed under the Calcutta, Punjab and Haryana, Kerala, and Madras High Courts respectively. The Jammu and Kashmir High Court is the common high court for the two union territories of Jammu and Kashmir, and Ladakh.

The Constitution does not contain any separate provisions for the administration of acquired territories. But, the constitutional provisions for the administration of union territories also apply to the acquired territories.

SPECIAL PROVISIONS FOR DELHI

The 69th Constitutional Amendment Act of 1991[5] provided a special status to the Union Territory of Delhi, and redesignated it the National Capital Territory of Delhi and designated the administrator of Delhi as the lieutenant (lt.) governor. It created a legislative assembly and a council of ministers for Delhi. Previously, Delhi had a metropolitan council and an executive council.

The strength of the assembly is fixed at 70 members, directly elected by the people. The elections are conducted by the election commission of India. The assembly can make laws on all the matters of the State List and the Concurrent List except the three matters of the State List, that is, public order, police and land. But, the laws of Parliament prevail over those made by the Assembly.

The strength of the council of ministers is fixed at ten per cent of the total strength of the assembly, that is, seven–one chief minister and six other ministers. The chief minister is appointed by the President (not by the lt. governor). The other ministers are appointed by the president on the advice of the chief minister. The ministers hold office during the pleasure of the president. The council of ministers is collectively responsible to the assembly.

The council of ministers headed by the chief minister aid and advise the lt. governor in the exercise of his functions except in so far as he is required to act in his discretion. In the case of difference of opinion between the lt. governor and his ministers, the lt. governor is to refer the matter to the president for decision and act accordingly.

When a situation arises in which the administration of the territory cannot be carried on in accordance with the above provisions, the president can suspend their (above provisions) operation and make the necessary incidental or consequential provisions for administering the territory. In brief, in case of failure of constitutional machinery, the president can impose his rule in the territory. This can be done on the report of the lt. governor or otherwise. This provision resembles Article 356 which deals with the imposition of President’s Rule in the states.

The lt. governor is empowered to promulgate ordinances during recess of the assembly. An ordinance has the same force as an act of the assembly. Every such ordinance must be approved by the assembly within six weeks from its reassembly. He can also withdraw an ordinance at any time. But, he cannot promulgate an ordinance when the assembly is dissolved or suspended. Further, no such ordinance can be promulgated or withdrawn without the prior permission of the President.

ADVISORY COMMITTEES OF UNION TERRITORIES

Under the Government of India (Allocation of Business) Rules 1961, Ministry of Home Affairs is the nodal ministry for all matters of Union Territories relating to legislation, finance and budget, services and appointment of Lt. Governors and Administrators.

All the six UTs without legislature (Andaman and Nicobar Islands, Chandigarh, Daman and Diu, Dadra and Nagar Haveli, Lakshadweep and Ladakh) have the forum of Home Minister's Advisory Committee (HMAC)/Administrator's Advisory Committee (AAC). While HMAC is chaired by the Union Home Minister, AAC is chaired by the Administrator of the concerned UTs. The Member of Parliament and elected members from the local bodies e.g. District Panchayats and Municipal Council of the respective UTs are members of these committees among others. The Committee discusses the general issues relating to social and economic development of the UTs.[6]

Table 40.1 *Administrative System of Union Territories at a Glance*

	Union Territories	Executive	Legislature	Judiciary
1.	Andaman and Nicobar Islands	Lt. Governor	–	Under Calcutta High Court
2.	Chandigarh	Administrator	–	Under Punjab and Haryana High Court
3.	Dadra and Nagar Haveli	Administrator	–	Under Bombay High Court
4.	Daman and Diu	Administrator	–	Under Bombay High Court
5.	Delhi	(a) Lt. Governor (b) Chief minister	Legislative Assembly	Separate High Court

		(c) Council of ministers		
6.	Lakshadweep	Administrator	–	Under Kerala High Court
7.	Puducherry	(a) Lt. Governor (b) Chief minister (c) Council of ministers	Legislative Assembly	Under Madras High Court
8.	Jammu and Kashmir	(a) Lt. Governor (b) Chief Minister (c) Council of Ministers	Legislative Assembly	Under Jammu and Kashmir High Court
9.	Ladakh	Lt. Governor	–	Under Jammu and Kashmir High Court

Note: The Governor of Punjab is concurrently the Administrator of Chandigarh. The Administrator of Dadra and Nagar Haveli is concurrently the Administrator of Daman and Diu. Lakshadweep has a separate Administrator[7] .

Table 40.2 *Comparing States and Union Territories*

States	Union Territories
1. Their relationship with Centre is federal.	1. Their relationship with Centre is unitary.
2. They share a distribution of power with the Centre.	2. They are under the direct control and administration of the Centre.
3. They have autonomy.	3. They do not have any autonomy.
4. There is uniformity in their	4. There is no uniformity in

administrative set-up.	their administrative set-up.
5. Their executive head is known as governor.	5. Their executive head is known by various designations–administrator or lieutenant governor or chief commissioner.
6. A governor is a constitutional head of the state.	6. An administrator is an agent of the president.
7. Parliament cannot make laws on the subjects of the state list in relation to the states except under extraordinary circumstances.	7. Parliament can make laws on any subject of the three lists the state list in relation to the states except under in relation to the union territories.

Table 40.3 *Articles Related to Union Territories at a Glance*

Article No.	Subject-matter
239.	Administration of Union territories
239A.	Creation of local Legislatures or Council of Ministers or both for certain Union territories
239AA.	Special provisions with respect to Delhi
239AB.	Provision in case of failure of constitutional machinery
239B.	Power of administrator to promulgate Ordinances during recess of Legislature
240.	Power of President to make regulations for certain Union territories
241.	High Courts for Union territories
242.	Coorg (Repealed)

NOTES AND REFERENCES

1. S.R. Maheshwari, *State Governments in India*, Macmillan, 2000 Edition, p. 131.
2. In 1950, the constitution contained a four-fold classification of the states and territories of the Indian Union - Part A, Part B and Part C states and Part D territories.
3. J.C. Johari : *Indian Government and Politics*, Vishal, volume II, 13th Edition, 2001, p. 499.
4. The Assembly of Puducherry consists of 30 members while that of Delhi 70 members and that of Jammu and Kashmir 83 members.
5. With effect from 1 February 1992.
6. Annual Report 2018–19, Ministry of Home Affairs, Government of India, p. 70.
7. India 2019: A Reference Annual, Publications Division, Government of India, p. 47.

41 Scheduled and Tribal Areas

Article 244 in Part X of the Constitution envisages a special system of administration for certain areas designated as ‘scheduled areas’ and ‘tribal areas’. The Fifth Schedule of the Constitution deals with the administration and control of scheduled areas and scheduled tribes in any state except the four states of Assam, Meghalaya, Tripura and Mizoram[1]. The Sixth Schedule of the Constitution, on the other hand, deals with the administration of the tribal areas in the four northeastern states of Assam, Meghalaya, Tripura and Mizoram.

ADMINISTRATION OF SCHEDULED AREAS

'The scheduled areas are treated differently from the other areas in the country because they are inhabited by 'aboriginals' who are socially and economically rather backward, and special efforts need to be made to improve their condition. Therefore, the whole of the normal administrative machinery operating in a state is not extended to the scheduled areas and the Central government has somewhat greater responsibility for these areas'[2] .

The various features of administration contained in the Fifth Schedule are as follows:

1. ***Declaration of Scheduled Areas:*** The president is empowered to declare an area to be a scheduled area. He can also increase or decrease its area, alter its boundary lines, rescind such designation or make fresh orders for such redesignation on an area in consultation with the governor of the state concerned.
2. ***Executive Power of State and Centre:*** The executive power of a state extends to the scheduled areas therein. But the governor has a special responsibility regarding such areas. He has to submit a report to the president regarding the administration of such areas, annually or whenever so required by the president. The executive power of the Centre extends to giving directions to the states regarding the administration of such areas.
3. ***Tribes Advisory Council:*** Each state having scheduled areas has to establish a tribes advisory council to advise on welfare and advancement of the scheduled tribes. It is to consist of 20 members, three-fourths of whom are to be the representatives of the scheduled tribes in the state legislative assembly. A similar council can also be established in a state having scheduled tribes but not scheduled areas therein, if the president so directs.
4. ***Law applicable to Scheduled Areas:*** The governor is empowered to direct that any particular act of Parliament or the state legislature does not apply to a scheduled area or apply with specified modifications and exceptions. He can

also make regulations for the peace and good government of a scheduled area after consulting the tribes advisory council. Such regulations may prohibit or restrict the transfer of land by or among members of the scheduled tribes, regulate the allotment of land to members of the scheduled tribes and regulate the business of money-lending in relation to the scheduled tribes. Also, a regulation may repeal or amend any act of Parliament or the state legislature, which is applicable to a scheduled area. But, all such regulations require the assent of the president.

The Constitution requires the president to appoint a commission to report on the administration of the scheduled areas and the welfare of the scheduled tribes in the states. He can appoint such a commission at any time but compulsorily after ten years of the commencement of the Constitution. Hence, a commission was appointed in 1960. It was headed by U.N. Dhebar and submitted its report in 1961. After four decades, the second commission was appointed in 2002 under the chairmanship of Dilip Singh Bhuria. It submitted its report in 2004.

ADMINISTRATION OF TRIBAL AREAS

The Constitution, under Sixth Schedule, contains special provisions for the administration of tribal areas in the four north-eastern states of Assam, Meghalaya, Tripura and Mizoram. The rationality behind the special arrangements in respect of only these four states lies in the following:

> "The tribes in Assam, Meghalaya, Tripura and Mizoram have not assimilated much the life and ways of the other people in these states. These areas have hitherto been anthropological specimens. The tribal people in other parts of India have more or less adopted the culture of the majority of the people in whose midst they live. The tribes in Assam, Meghalaya, Tripura and Mizoram, on the other hand, still have their roots in their own culture, customs and civilization. These areas are, therefore, treated differently by the Constitution and sizeable amount of autonomy has been given to these people for self-government.[3] "

The various features of administration contained in the Sixth Schedule are as follows:

1. The tribal areas in the four states of Assam, Meghalaya, Tripura and Mizoram have been constituted as autonomous districts[4]. But, they do not fall outside the executive authority of the state concerned.
2. The governor is empowered to organise and re-organise the autonomous districts. Thus, he can increase or decrease their areas or change their names or define their boundaries and so on.
3. If there are different tribes in an autonomous district, the governor can divide the district into several autonomous regions.
4. Each autonomous district has a district council consisting of 30 members, of whom four are nominated by the governor and the remaining 26 are elected on the basis of adult franchise. The elected members hold office for a term of five years (unless the council is dissolved earlier) and nominated members hold office during the pleasure of the governor.

Each autonomous region also has a separate regional council.

5. The district and regional councils administer the areas under their jurisdiction. They can make laws on certain specified matters like land, forests, canal water, shifting cultivation, village administration, inheritance of property, marriage and divorce, social customs and so on. But all such laws require the assent of the governor.
6. The district and regional councils within their territorial jurisdictions can constitute village councils or courts for trial of suits and cases between the tribes. They hear appeals from them. The jurisdiction of high court over these suits and cases is specified by the governor.
7. The district council can establish, construct or manage primary schools, dispensaries, markets, ferries, fisheries, roads and so on in the district. It can also make regulations for the control of money lending and trading by nontribals. But, such regulations require the assent of the governor.
8. The district and regional councils are empowered to assess and collect land revenue and to impose certain specified taxes.
9. The acts of Parliament or the state legislature do not apply to autonomous districts and autonomous regions or apply with specified modifications and exceptions[5] .
10. The governor can appoint a commission to examine and report on any matter relating to the administration of the autonomous districts or regions. He may dissolve a district or regional council on the recommendation of the commission.

Table 41.1 *Tribal Areas at a Glance (2019)*

	States		Tribal Areas
1.	Assam	1.	The North Cachar Hills District.
		2.	The Karbi Anglong District.
		3.	The Bodoland Territorial Areas District.

2.	Meghalaya	1.	Khasi Hills District.
		2.	Jaintia Hills District.
		3.	The Garo Hills District.
3.	Tripura		Tripura Tribal Areas District.
4.	Mizoram	1.	The Chakma District.
		2.	The Mara District.
		3.	The Lai District.

Table 41.2 *Articles Related to Scheduled and Tribal Areas at a Glance*

Article No.	Subject-matter
244.	Administration of Scheduled Areas and Tribal Areas
244A.	Formation of an autonomous state comprising certain tribal areas in Assam and creation of local legislature or Council of Ministers or both therefore
339.	Control of the Union over the administration of Scheduled Areas and the welfare of Scheduled Tribes

Table 41.3 *Parliamentary Laws Related to the Fifth and Sixth Schedules of the Constitution*

Sl. No.	Acts	Provisions
1.	Lushai Hills District (Change of Name) Act, 1954	Renamed the Lushai Hills District as the Mizo District. The Lushai Hills District was one of the six autonomous districts in the tribal areas of Assam specified in the Sixth Schedule of the Constitution.
2.	Government of Union Territories	Amended the Sixth Schedule of the constitution to include certain provisions with respect to the

	(Amendment) Act, 1971	autonomous districts and autonomous regions of the Union Territory of Mizoram.
3.	Repealing and Amending Act, 1974	Repealed certain enactments and amended certain other enactments. It also substituted the words “cattle pounds” for “cattle ponds” in the Sixth Schedule of the Constitution.
4.	Fifth Schedule to the Constitution (Amendment) Act, 1976	Empowered the President of India: (i) to increase the area of any Scheduled Area in a State after consultation with the Governor of that state; and (ii) to rescind any order made for the designation of an area in any state to be a Scheduled Area, or in consultation with the Governor of the State concerned, make fresh order redefining the area which is to be a Scheduled Area.
5.	Sixth Schedule to the Constitution (Amendment) Act, 1988	Included certain modifications in the Sixth Schedule of the Constitution in its application to the States of Tripura and Mizoram. These (i) provided that the Governors shall act in their discretion in the discharge of some of their functions; (ii) made provisions relating to the application of Acts of Parliament and the State Legislatures to autonomous districts and autonomous regions; and (iii) provided for a time-limit in making over the share of royalties to the District Councils.
6.	Sixth Schedule to the Constitution	Included certain modifications in the Sixth Schedule of the Constitution

	(Amendment) Act, 1995	in its application to the State of Assam. These (i) provided that the District Council constituted for the North Cachar Hills District shall be called as the North Cachar Hills Autonomous Council and the District Council constituted for the Karbi-Anglong District shall be called as the Karbi-Anglong Autonomous Council; (ii) made provisions for the additional powers of the North Cachar Hills Autonomous Council and the Karbi-Anglong Autonomous Council to make laws; and (iii) made it mandatory for the Governor to consult the North Cachar Hills Autonomous Council or the Karbi-Anglong Autonomous Council, as the case may be, in the exercise of his discretionary powers.
7.	Sixth Schedule to the Constitution (Amendment) Act, 2003	Included certain modifications in the Sixth Schedule of the Constitution in its application to the State of Assam. This was done to meet the aspirations of the Bodos in Assam and in pursuance of the Memorandum of Settlement signed between the Central Government, the Government of Assam and Bodo Liberation Tigers (BLT) on 10–02-2003 for a durable solution to the Bodo issues. In this context, the Act made the following provisions : (i) specified the Bodoland Territorial Areas District in the list of the tribal areas of the State of Assam; (ii) created an

	autonomous selfgoverning body known as the Bodoland Territorial Council (BTC) within the state of Assam; (iii) vested the council with legislative, administrative and financial powers in respect of specified subjects; and (iv) provided for adequate safeguards for the non-tribals in the BTC area.

NOTES AND REFERENCES

1. At present (2019), ten states of India have scheduled areas. These are: Andhra Pradesh, Telangana, Jharkhand, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha and Rajasthan.
2. M.P. Jain, *Indian Constitutional Law*, Wadhwa, Fourth Edition, 1987, p. 236.
3. *Ibid,* p. 237.
4. Presently (2019), there are a total of ten tribal areas. See Table 41.1.
5. The power of direction, in this regard, lies either with the president or governor. Thus, in the case of Assam, it lies with the Governor, both in respect of acts of Parliament or state legislature. In the case of Meghalaya, Tripura and Mizoram, it lies with the president in respect of acts of Parliament and governor in respect of acts of state legislature.

PART-VII
CONSTITUTIONAL BODIES

42. Election Commission
43. Union Public Service Commission
44. State Public Service Commission
45. Finance Commission
46. Goods and Services Tax Council
47. National Commission for SCs
48. National Commission for STs
49. National Commission for BCs
50. Special Officer for Linguistic Minorities
51. Comptroller and Auditor General of India
52. Attorney General of India
53. Advocate General of the State

42 Election Commission

The Election Commission is a permanent and an independent body established by the Constitution of India directly to ensure free and fair elections in the country. Article 324 of the Constitution provides that the power of superintendence, direction and control of elections to parliament, state legislatures, the office of president of India and the office of vice-president of India shall be vested in the election commission. Thus, the Election Commission is an all-India body in the sense that it is common to both the Central government and the state governments.

It must be noted here that the election commission is not concerned with the elections to panchayats and municipalities in the states. For this, the Constitution of India provides for a separate State Election Commission[1] .

COMPOSITION

Article 324 of the Constitution has made the following provisions with regard to the composition of election commission:

1. The Election Commission shall consist of the chief election commissioner and such number of other election commissioners, if any, as the president may from time to time fix.
2. The appointment of the chief election commissioner and other election commissioners shall be made by the president.
3. When any other election commissioner is so appointed, the chief election commissioner shall act as the chairman of the election commission.
4. The president may also appoint after consultation with the election commission such regional commissioners as he may consider necessary to assist the election commission.
5. The conditions of service and tenure of office of the election commissioners and the regional commissioners shall be determined by the president.

Since its inception in 1950 and till 15 October 1989, the election commission functioned as a single member body consisting of the Chief Election Commissioner. On 16 October 1989, the president appointed two more election commissioners to cope with the increased work of the election commission on account of lowering of the voting age from 21 to 18 years.[2] Thereafter, the Election Commission functioned as a multimember body consisting of three election commissioners. However, the two posts of election commissioners were abolished in January 1990 and the Election Commission was reverted to the earlier position. Again in October 1993, the president appointed two more election commissioners. Since then and till today, the Election Commission has been functioning as a multi-member body consisting of three election commissioners.

The chief election commissioner and the two other election commissioners have equal powers and receive equal salary, allowances and other perquisites, which are similar to those of a

judge of the Supreme Court.[3] In case of difference of opinion amongst the Chief Election Commissioner and/or two other election commissioners, the matter is decided by the Commission by majority.

They hold office for a term of six years or until they attain the age of 65 years, whichever is earlier. They can resign at any time or can also be removed before the expiry of their term.

INDEPENDENCE

Article 324 of the Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of the Election Commission:

1. The chief election commissioner is provided with the security of tenure. He cannot be removed from his office except in same manner and on the same grounds as a judge of the Supreme Court. In other words, he can be removed by the president on the basis of a resolution passed to that effect by both the Houses of Parliament with special majority, either on the ground of proved misbehaviour or incapacity. Thus, he does not hold his office till the pleasure of the president, though he is appointed by him.
2. The service conditions of the chief election commissioner cannot be varied to his disadvantage after his appointment.
3. Any other election commissioner or a regional commissioner cannot be removed from office except on the recommendation of the chief election commissioner.

Though the constitution has sought to safeguard and ensure the independence and impartiality of the Election Commission, some flaws can be noted, viz.,

1. The Constitution has not prescribed the qualifications (legal, educational, administrative or judicial) of the members of the Election Commission.
2. The Constitution has not specified the term of the members of the Election Commission.
3. The Constitution has not debarred the retiring election commissioners from any further appointment by the government.

POWERS AND FUNCTIONS

The powers and functions of the Election Commission with regard to elections to the Parliament, state legislatures and offices of President and Vice-President can be classified into three categories, viz,

1. Administrative
2. Advisory
3. Quasi-Judicial

In detail, these powers and functions are:

1. To determine the territorial areas of the electoral constituencies throughout the country on the basis of the Delimitation Commission Act of Parliament.[4]
2. To prepare and periodically revise electoral rolls and to register all eligible voters.
3. To notify the dates and schedules of elections and to scrutinise nomination papers.
4. To grant recognition to political parties and allot election symbols to them.
5. To act as a court for settling disputes related to granting of recognition to political parties and allotment of election symbols to them.
6. To appoint officers for inquiring into disputes relating to electoral arrangements.
7. To determine the code of conduct to be observed by the parties and the candidates at the time of elections.
8. To prepare a roster for publicity of the policies of the political parties on radio and TV in times of elections.
9. To advise the president on matters relating to the disqualifications of the members of Parliament.
10. To advise the governor on matters relating to the disqualifications of the members of state legislature.
11. To cancel polls in the event of rigging, booth capturing, violence and other irregularities.
12. To request the president or the governor for requisitioning the staff necessary for conducting elections.

13. To supervise the machinery of elections throughout the country to ensure free and fair elections.
14. To advise the president whether elections can be held in a state under president's rule in order to extend the period of emergency after one year.
15. To register political parties for the purpose of elections and grant them the status of national or state parties on the basis of their poll performance[5] .

The Election Commission is assisted by deputy election commissioners. They are drawn from the civil service and appointed by the commission with tenure system. They are assisted, in turn, by the secretaries, joint secretaries, deputy secretaries and under secretaries posted in the secretariat of the commission.

At the state level, the Election Commission is assisted by the chief electoral officer who is appointed by the chief election commissioner in consultation with the state government. Below this, at the district level, the collector acts as the district returning officer. He appoints a returning officer for every constituency in the district and presiding officer for every polling booth in the constituency.

VISION, MISSION AND PRINCIPLES[6]

Vision

The Election Commission of India strives to be an Institution of Excellence by enhancing active engagement, participation; and deepening and strengthening electoral democracy in India and globally.

Mission

The Election Commission of India maintains independence, integrity and autonomy; ensures accessibility, inclusiveness, and ethical participation of stakeholders; and, adopts highest standards of professionalism for delivering free, fair, and transparent elections to strengthen the trust in electoral democracy and governance.

Guiding Principles

The Commission has laid down for itself guiding principles of good governance:

1. To uphold the values enshrined in the Constitution viz, equality, equity, impartiality, independence; and rule of law in superintendence, direction and control over the electoral governance;
2. To conduct elections with highest standard of credibility, freeness, fairness, transparency, integrity, accountability, autonomy and professionalism;
3. To ensure participation of all eligible citizens in the electoral process in an inclusive voter centric and voterfriendly environment;
4. To engage with political parties and all stakeholders in the interest of electoral process;
5. To promote awareness about the electoral process and electoral governance amongst stakeholders namely, voters, political parties, election functionaries, candidates and people at large; and to enhance and strengthen confidence and trust in the electoral system of this country;

6. To develop the human resource for effective and professional delivery of electoral services;
7. To build quality infrastructure for smooth conduct of electoral process;
8. To adopt technology for improvement in all areas of electoral process;
9. To strive for adoption of innovative practices for achieving excellence and overall realization of the vision and mission;
10. To contribute towards the reinforcement of democratic values by maintaining and reinforcing confidence and trust of the people in the electoral system of the country.

NOTES AND REFERENCES

1. Vide 73rd and 74th Constitutional Amendment Acts of 1992.
2. By the 61st Constitutional Amendment Act of 1988, which came into force in 1989.
3. In 2018, the salary of a judge of the Supreme Court had been fixed at ₹2.50 lakh per month.
4. The Parliament has made the Delimitation Commission Acts in 1952, 1962, 1972 and 2002.
5. For details in this regard, see Chapter 69 (Political Parties).
6. Strategic Plan 2016–2025, Election Commission of India, pp. 8–9.

43 Union Public Service Commission

The Union Public Service Commission (UPSC) is the central recruiting agency in India. It is an independent constitutional body in the sense that it has been directly created by the Constitution. Articles 315 to 323 in Part XIV of the Constitution contain elaborate provisions regarding the composition, appointment and removal of members along with the independence, powers and functions of the UPSC.

COMPOSITION

The UPSC consists of a chairman and other members appointed by the president of India. The Constitution, without specifying the strength of the Commission has left the matter to the discretion of the president, who determines its composition. Usually, the Commission consists of nine to eleven members including the chairman. Further, no qualifications are prescribed for the Commission's membership except that one-half of the members of the Commission should be such persons who have held office for at least ten years either under the Government of India or under the government of a state. The Constitution also authorises the president to determine the conditions of service of the chairman and other members of the Commission.

The chairman and members of the Commission hold office for a term of six years or until they attain the age of 65 years, whichever is earlier. However, they can relinquish their offices at any time by addressing their resignation to the president. They can also be removed before the expiry of their term by the president in the manner as provided in the Constitution.

The President can appoint one of the members of the UPSC as an acting chairman in the following two circumstances[1] :

(a) When the office of the chairman falls vacant; or
(b) When the chairman is unable to perform his functions due to absence or some other reason.

The acting chairman functions till a person appointed as chairman enters on the duties of the office or till the chairman is able to resume his duties.

REMOVAL

The President can remove the chairman or any other member of UPSC from the office under the following circumstances:

(a) If he is adjudged an insolvent (that is, has gone bankrupt);
(b) If he engages, during his term of office, in any paid employment outside the duties of his office; or
(c) If he is, in the opinion of the president, unfit to continue in office by reason of infirmity of mind or body.

In addition to these, the president can also remove the chairman or any other member of UPSC for misbehaviour. However, in this case, the president has to refer the matter to the Supreme Court for an enquiry. If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, the president can remove the chairman or a member. Under the provisions of the Constitution, the advise tendered by the Supreme Court in this regard is binding on the president. During the course of enquiry by the Supreme Court, the president can suspend the chairman or the member of UPSC.

Defining the term 'misbehaviour' in this context, the Constitution states that the chairman or any other member of the UPSC is deemed to be guilty of misbehaviour if he (a) is concerned or interested in any contract or agreement made by the Government of India or the government of a state, or (b) participates in any way in the profit of such contract or agreement or in any benefit therefrom otherwise than as a member and in common with other members of an incorporated company.

INDEPENDENCE

The Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of the UPSC:

(a) The chairman or a member of the UPSC can be removed from office by the president only in the manner and on the grounds mentioned in the Constitution. Therefore, they enjoy security of tenure.

(b) The conditions of service of the chairman or a member, though determined by the president, cannot be varied to his disadvantage after his appointment.

(c) The entire expenses including the salaries, allowances and pensions of the chairman and members of the UPSC are charged on the Consolidated Fund of India. Thus, they are not subject to vote of Parliament.

(d) The chairman of UPSC (on ceasing to hold office) is not eligible for further employment in the Government of India or a state[2] .

(e) A member of UPSC (on ceasing to hold office) is eligible for appointment as the chairman of UPSC or a State Public Service Commission (SPSC), but not for any other employment in the Government of India or a state[3] .

(f) The chairman or a member of UPSC is (after having completed his first term) not eligible for reappointment to that office (i.e., not eligible for second term).

FUNCTIONS

The UPSC performs the following functions:

(a) It conducts examinations for appointments to the all-India services, Central services and public services of the centrally administered territories.

(b) It assists the states (if requested by two or more states to do so) in framing and operating schemes of joint recruitment for any services for which candidates possessing special qualifications are required.

(c) It serves all or any of the needs of a state on the request of the state governor and with the approval of the president of India.

(d) It is consulted on the following matters related to personnel management:

(i) All matters relating to methods of recruitment to civil servic and for civil posts.

(ii) The principles to be followed in making appointments to c services and posts and in making promotions and transfers fro one service to another.

(iii) The suitability of candidates for appointments to civil servic and posts; for promotions and transfers from one service another; and appointments by transfer or deputation. T concerned departments make recommendations for promotio and request the UPSC to ratify them.

(iv) All disciplinary matters affecting a person serving under t Government of India in a civil capacity including memorials petitions relating to such matters. These include:

- Censure (Severe disapproval)
- Withholding of increments
- Withholding of promotions
- Recovery of pecuniary loss
- Reduction to lower service or rank (Demotion)
- Compulsory retirement
- Removal from service
- Dismissal from service[4]

(v) Any claim for reimbursement of legal expenses incurred by civil servant in defending legal proceedings instituted agair him in respect of acts done in the execution of his offic duties.

(vi) Any claim for the award of a pension in respect of injuri sustained by a person while serving under the Government India and any question as to the amount of any such award.

(vii) Matters of temporary appointments for period exceeding o year and on regularisation of appointments.

(viii) Matters related to grant of extension of service and r employment of certain retired civil servants.

(ix) Any other matter related to personnel management.

The Supreme Court has held that if the government fails to consult UPSC in the matters (mentioned above), the aggrieved public servant has no remedy in a court. In other words, the court held that any irregularity in consultation with the UPSC or acting without consultation does not invalidate the decision of the government. Thus, the provision is directory and not mandatory. Similarly, the court held that a selection by the UPSC does not confer any right to the post upon the candidate. However, the government is to act fairly and without arbitrariness or mala fides.

The additional functions relating to the services of the Union can be conferred on UPSC by the Parliament. It can also place the personnel system of any authority, corporate body or public institution within the jurisdiction of the UPSC. Hence the jurisdiction of UPSC can be extended by an act made by the Parliament.

The UPSC presents, annually, to the president a report on its performance. The President places this report before both the Houses of Parliament, along with a memorandum explaining the cases where the advice of the Commission was not accepted and the reasons for such non-acceptance. All such cases of non-acceptance must be approved by the Appointments Committee of the Union cabinet. An individual ministry or department has no power to reject the advice of the UPSC.

LIMITATIONS

The following matters are kept outside the functional jurisdiction of the UPSC. In other words, the UPSC is not consulted on the following matters:

(a) While making reservations of appointments or posts in favour of any backward class of citizens.
(b) While taking into consideration the claims of scheduled castes and scheduled tribes in making appointments to services and posts.
(c) With regard to the selections for chairmanship or membership of commissions or tribunals, posts of the highest diplomatic nature and a bulk of group C and group D services.
(d) With regard to the selection for temporary or officiating appointment to a post if the person appointed is not likely to hold the post for more than a year.

The president can exclude posts, services and matters from the purview of the UPSC. The Constitution states that the president, in respect to the all-India services and Central services and posts may make regulations specifying the matters in which, it shall not be necessary for UPSC to be consulted. But all such regulations made by the president shall be laid before each House of Parliament for at least 14 days. The Parliament can amend or repeal them.

ROLE

The Constitution visualises the UPSC to be the 'watch-dog of merit system' in India. It is concerned with the recruitment to the all-India services and Central services–group A and group B and advises the government, when consulted, on promotion and disciplinary matters. It is not concerned with the classification of services, pay and service conditions, cadre management, training, and so on. These matters are handled by the Department of Personnel and Training–one of the three departments of the Ministry of Personnel, Public Grievances and Pensions[5]. Therefore, UPSC is only a central recruiting agency while the Department of Personnel and Training is the central personnel agency in India.

The role of UPSC is not only limited, but also recommendations made by it are only of advisory nature and hence, not binding on the government. It is upto the Union government to accept or reject that advise. The only safeguard is the answerability of the government to the Parliament for departing from the recommendation of the Commission. Further, the government can also make rules which regulate the scope of the advisory functions of UPSC[6] .

The emergence of Central Vigilance Commission (CVC) in 1964 affected the role of UPSC in disciplinary matters. This is because both are consulted by the government while taking disciplinary action against a civil servant. The problem arises when the two bodies tender conflicting advise. However, the UPSC, being an independent constitutional body, has an edge over the CVC, which is created by an executive resolution of the Government of India and conferred a statutory status in October 2003.

Table 43.1 *Articles Related to UPSC at a Glance*

Article No.	Subject-matter
315	Public Service Commissions for the Union and for the states
316	Appointment and term of office of members
317	Removal and suspension of a member of a Public Service Commission

318	Power to make regulations as to conditions of service of members and staff of the Commission
319	Prohibition as to the holding of office by members of commission on ceasing to be such members
320	Functions of Public Service Commissions
321	Power to extend functions of Public Service Commissions
322	Expenses of Public Service Commissions
323	Reports of Public Service Commissions

NOTES AND REFERENCES

1. Added by the 15th Amendment Act of 1963.
2. In 1979, the Supreme Court upheld the validity of appointment of A.R. Kidwai, a former Chairman of UPSC, as the governor of Bihar. It ruled that the office of the governor is a 'constitutional office' and not an employment under the government.
3. When a member of UPSC is appointed as its chairman, he holds the new office for six years or until the age of superannuation, whichever is earlier.
4. The difference between removal and dismissal is that the former does not disqualify for future employment under the government while the latter disqualifies for future employment under the government.
5. In 1985, a new full-fledged Ministry of Personnel, Public Grievances and Pensions was created with three separate departments. These are Department of Personnel and Training, Department of Administrative Reforms and Public Grievances, and Department of Pensions and Pensioners' Welfare.
6. Such Rules are known as the UPSC (Exemption From Consultation) Regulations.

44 State Public Service Commission

Parallel to the Union Public Service Commission (UPSC) at the Centre, there is a State Public Service Commission (SPSC) in a state. The same set of Articles (i.e., 315 to 323 in Part XIV) of the Constitution also deal with the composition, appointment and removal of members, power and functions and independence of a SPSC.

COMPOSITION

A State Public Service Commission consists of a chairman and other members appointed by the governor of the state. The Constitution does not specify the strength of the Commission but has left the matter to the discretion of the Governor. Further, no qualifications are prescribed for the commission's membership except that one-half of the members of the commission should be such persons who have held office for at least ten years either under the government of India or under the Government of a state. The Constitution also authorises the governor to determine the conditions of service of the chairman and members of the Commission.

The chairman and members of the Commission hold office for a term of six years or until they attain the age of 62 years[1] , whichever is earlier (in the case of UPSC, the age limit is 65 years). However, they can relinquish their offices at any time by addressing their resignation to the governor.

The governor can appoint one of the members of the SPSC as an acting chairman in the following two circumstances[2] :

(a) When the office of the chairman falls vacant; or
(b) When the chairman is unable to perform his functions due to absence or some other reason.

The acting chairman functions till the person appointed as chairman enters on the duties of the office or till the chairman is able to resume his duties.

REMOVAL

Although the chairman and members of a SPSC are appointed by the governor, they can be removed only by the president (and not by the governor). The president can remove them on the same grounds and in the same manner as he can remove a chairman or a member of the UPSC. Thus, he can remove him under the following circumstances:

(a) If he is adjudged an insolvent (i.e., has gone bankrupt); or
(b) If he engages, during his term of office, in any paid employment outside the duties of his office; or
(c) If he is, in the opinion of the president, unfit to continue in office by reason of infirmity of mind or body[3] .

In addition to these, the president can also remove the chairman or any other member of SPSC for misbehaviour. However, in this case, the president has to refer the matter to the Supreme Court for an enquiry. If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, the president can remove the chairman or a member. Under the provisions of the Constitution, the advise tendered by the Supreme Court in this regard is binding on the president. However, during the course of enquiry by the Supreme Court, the governor can suspend the concerned chairman or member, pending the final removal order of the president on receipt of the report of the Supreme Court.

Further, the Constitution has also defined the term ‘misbehaviour’ in this context. The Constitution states that the chairman or any other member of a SPSC is deemed to be guilty of misbehaviour, if he (a) is concerned or interested in any contract or agreement made by the Government of India or the government of a state, or (b) participates in any way in the profit of such contract or agreement or in any benefit therefrom otherwise than as a member and in common with other members of an incorporated company.

INDEPENDENCE

As in the case of UPSC, the Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of a SPSC:

(a) The chairman or a member of a SPSC can be removed from office by the president only in the manner and on the grounds mentioned in the Constitution. Therefore, they enjoy the security of tenure.

(b) The conditions of service of the chairman or a member, though determined by the governor, cannot be varied to his disadvantage after his appointment.

(c) The entire expense including the salaries, allowances and pensions of the chairman and members of a SPSC are charged on the consolidated fund of the state. Thus, they are not subject to vote of the state legislature.

(d) The chairman of a SPSC (on ceasing to hold office) is eligible for appointment as the chairman or a member of the UPSC or as the chairman of any other SPSC, but not for any other employment under the Government of India or a state.

(e) A member of a SPSC (on ceasing to hold office) is eligible for appointment as the chairman or a member of the UPSC, or as the chairman of that SPSC or any other SPSC, but not for any other employment under the Government of India or a state.

(f) The chairman or a member of a SPSC is (after having completed his first term) not eligible for reappointment to that office (that is, not eligible for second term).

FUNCTIONS

A SPSC performs all those functions in respect of the state services as the UPSC does in relation to the Central services:

(a) It conducts examinations for appointments to the services of the state.

(b) It is consulted on the following matters related to personnel management:

(i) All matters relating to methods of recruitment to civil servic and for civil posts.

(ii) The principles to be followed in making appointments to c services and posts and in making promotions and transfers fro one service to another.

(iii) The suitability of candidates for appointments to civil servic and posts; for promotions and transfers from one service another; and appointments by transfer or deputation. T concerned departments make recommendations for promotio and request the SPSC to ratify them.

(iv) All disciplinary matters affecting a person serving under t government of the state in a civil capacity including memorials petitions relating to such matters. These include:

- Censure (severe disapproval)
- Withholding of increments
- Withholding of promotions
- Recovery of pecuniary loss
- Reduction to lower service or rank (demotion)
- Compulsory retirement
- Removal from service
- Dismissal from service[4]

(v) Any claim for reimbursement of legal expenses incurred by civil servant in defending legal proceedings instituted agair him in respect of acts done in the execution of his official dutie

(vi) Any claim for the award of a pension in respect of injuri sustained by a person while serving under the government the state and any question as to the amount of any such awar

(vii) Any other matter related to the personnel management.

The Supreme Court has held that if the government fails to consult the SPSC in these matters, the aggrieved public servant has no remedy in a court. In other words, the court held that any

irregularity in consultation with the SPSC or acting without consultation does not invalidate the decision of the government. Thus, the provision is directory and not mandatory. Similarly, the court held that a selection by the SPSC does not confer any right to the post upon the candidate. However, the government is to act fairly and without arbitrariness or malafides.

The additional functions relating to the services of the state can be conferred on SPSC by the state legislature. It can also place the personnel system of any local authority, corporate body or public institution within the jurisdiction of the SPSC. Hence the jurisdiction of SPSC can be extended by an Act made by the state legislature.

The SPSC presents, annually, to the governor a report on its performance. The governor places this report before both the Houses of the state legislature, along with a memorandum explaining the cases where the advice of the Commission was not accepted and the reasons for such non-acceptance.

LIMITATIONS

The following matters are kept outside the functional jurisdiction of the SPSC. In other words, the SPSC is not consulted on the following matters:

(a) While making reservations of appointments or posts in favour of any backward class of citizens.

(b) While taking into consideration the claims of scheduled castes and scheduled tribes in making appointments to services and posts.

The governor can exclude posts, services and matters from the purview of the SPSC. The Constitution states that the governor, in respect to the state services and posts may make regulations specifying the matters in which, it shall not be necessary for SPSC to be consulted. But all such regulations made by the governor shall be laid before each House of the state legislature for at least 14 days. The state legislature can amend or repeal them.

ROLE

The Constitution visualises the SPSC to be the ‘watchdog of merit system’ in the state. It is concerned with the recruitment to the state services and advises the government, when consulted, on promotion and disciplinary matters. It is not concerned with the classification of services, pay and service conditions, cadre management, training and so on. These matters are handled by the Department of Personnel or the General Administration Department. Therefore, the SPSC is only a central recruiting agency in the state while the Department of Personnel or the General Administration Department is the central personnel agency in the state.

The role of SPSC is not only limited, but also recommendations made by it are only of advisory nature and hence, not binding on the government. It is up to the state government to accept or reject that advice. The only safeguard is the answerability of the government to the state legislature for departing from the recommendation of the Commission. Further, the government can also make rules which regulate the scope of the advisory functions of SPSC[5] .

Also, the emergence of State Vigilance Commission (SVC) in 1964 affected the role of SPSC in disciplinary matters. This is because both are consulted by the government while taking disciplinary action against a civil servant. The problem arises when the two bodies tender conflicting advice. However, the SPSC, being an independent constitutional body, has an edge over the SVC.

Finally, the SPSC is consulted by the governor while framing rules for appointment to judicial service of the state other than the posts of district judges. In this regard, the concerned state high court is also consulted.

JOINT STATE PUBLIC SERVICE COMMISSION

The Constitution makes a provision for the establishment of a Joint State Public Service Commission (JSPSC) for two or more states. While the UPSC and the SPSC are created directly by the Constitution, a JSPSC can be created by an act of Parliament on the request of the state legislatures concerned. Thus, a JSPSC is a statutory and not a constitutional body. The two states of Punjab and Haryana had a JSPSC for a short period, after the creation of Haryana out of Punjab in 1966.

The chairman and members of a JSPSC are appointed by the president. They hold office for a term of six years or until they attain the age of 62 years, whichever is earlier. They can be suspended or removed by the president. They can also resign from their offices at any time by submitting their resignation letters to the president.

The number of members of a JSPSC and their conditions of service are determined by the president.

A JSPSC presents its annual performance report to each of the concerned state governors. Each governor places the report before the state legislature.

The UPSC can also serve the needs of a state on the request of the state governor and with the approval of the president.

As provided by the Government of India Act of 1919, a Central Public Service Commission was set up in 1926 and entrusted with the task of recruiting civil servants. The Government of India Act of 1935 provided for the establishment of not only a Federal Public Service Commission but also a Provincial Public Service Commission and Joint Public Service Commission for two or more provinces.

Table 44.1 *Articles Related to SPSC at a Glance*

Article No.	Subject-matter
315	Public Service Commissions for the Union and for the states
316	Appointment and term of office of member
317	Removal and suspension of a member of a Public Service Commission

318	Power to make regulations as to conditions of service of members and staff of the Commission
319	Prohibition as to the holding of office by members of commission on ceasing to be such members
320	Functions of Public Service Commissions
321	Power to extend functions of Public Service Commissions
322	Expenses of Public Service Commissions
323	Reports of Public Service Commissions

NOTES AND REFERENCES

1. Originally, it was 60 years. The 41st Amendment Act of 1976 raised it to 62 years.
2. Added by the 15th Amendment Act of 1963.
3. In 1993, the Supreme Court ruled that appointment of a university professor (known to be blind) as a member of a SPSC cannot be set aside on the ground of infirmity of body or mind.
4. The difference between removal and dismissal is that the former does not disqualify for future employment under the government while the latter disqualifies for future employment under the government.
5. Such Rules are known as the SPSC (Exemption from consultation) Regulations.

45 Finance Commission

Article 280 of the Constitution of India provides for a Finance Commission as a quasi judicial body. It is constituted by the president of India every fifth year or at such earlier time as he considers necessary.

COMPOSITION

The Finance Commission consists of a chairman and four other members to be appointed by the president. They hold office for such period as specified by the president in his order. They are eligible for reappointment.

The Constitution authorises the Parliament to determine the qualifications of members of the commission and the manner in which they should be selected. Accordingly, the Parliament has specified the qualifications of the chairman and members of the com-mission[1]. The chairman should be a person having experience in public affairs and the four other members should be selected from amongst the following:

1. A judge of high court or one qualified to be appointed as one.
2. A person who has specialised knowledge of finance and accounts of the government.
3. A person who has wide experience in financial matters and in administration.
4. A person who has special knowledge of economics.

FUNCTIONS

The Finance Commission is required to make recommendations to the president of India on the following matters:

1. The distribution of the net proceeds of taxes to be shared between the Centre and the states, and the allocation between the states of the respective shares of such proceeds.
2. The principles that should govern the grants-in-aid to the states by the Centre (i.e., out of the consolidated fund of India).
3. The measures needed to augment the consolidated fund of a state to supplement the resources of the panchayats and the municipalities in the state on the basis of the recommendations made by the state finance commission[2] .
4. Any other matter referred to it by the president in the interests of sound finance.

Till 1960, the commission also suggested the grants given to the States of Assam, Bihar, Odisha and West Bengal in lieu of assignment of any share of the net proceeds in each year of export duty on jute and jute products. These grants were to be given for a temporary period of ten years from the commencement of the Constitution.

The commission submits its report to the president. He lays it before both the Houses of Parliament along with an explanatory memorandum as to the action taken on its recommendations.

ADVISORY ROLE

It must be clarified here that the recommendations made by the Finance Commission are only of advisory nature and hence, not binding on the government. It is up to the Union government to implement its recommendations on granting money to the states.

To put it in other words, 'It is nowhere laid down in the Constitution that the recommendations of the commission shall be binding upon the Government of India or that it would give rise to a legal right in favour of the beneficiary states to receive the money recommended to be offered to them by the Commission'[3] .

As rightly observed by Dr. P.V. Rajamannar, the Chairman of the Fourth Finance Commission, "Since the Finance Commission is a constitutional body expected to be quasijudicial, its recommendations should not be turned down by the Government of India unless there are very compelling reasons".

The Constitution of India envisages the Finance commission as the balancing wheel of fiscal federalism in India. However, till 2014, its role in the Centre-state fiscal relations was undermined by the erstwhile Planning Commission, a non-constitutional and a non-statutory body. Dr. P.V. Rajamannar, the Chairman of the Fourth Finance commission, highlighted the overlapping of functions and responsibilities between the Finance Commission and the erstwhile Planning Commission in federal fiscal trans-fers.[4] In 2015, the Planning Commission was replaced by a new body called NITI Aayog (National Institution for Transforming India).

Table 45.1 *Finance Commissions Appointed so far*

Finance Commission	Chairman	Appointed in	Submitted Report in	Period of implementation of Report
First	K.C. Neogy	1951	1952	1952–57
Second	K. Santhanam	1956	1957	1957–62
Third	A.K. Chanda	1960	1961	1962–66
Fourth	Dr. P.V. Rajamannar	1964	1965	1966–69
Fifth	Mahavir Tyagi	1968	1969	1969–74

Sixth	Brahamananda Reddy	1972	1973	1974–79
Seventh	J.M. Shelat	1977	1978	1979–84
Eighth	Y.B. Chavan	1982	1984	1984–89
Ninth	N.K.P. Salve	1987	1989	1989–95
Tenth	K.C. Pant	1992	1994	1995–2000
Eleventh	A.M. Khusro	1998	2000	2000–2005
Twelfth	Dr. C. Rangarajan	2002	2004	2005–2010
Thirteenth	Dr. Vijay Kelkar	2007	2009	2010–2015
Fourteenth	Y.V. Reddy	2013	2014	2015–2020
Fifteenth	N.K. Singh	2017	2020 (expected)	2020–2026

Table 45.2 *Articles Related to Finance Commission at a Glance*

Article No.	Subject-matter
280.	Finance Commission
281.	Recommendations of the Finance Commission

NOTES AND REFERENCES

1. Vide the Finance Commission Act, 1951.
2. This function was added by the 73rd and 74th Constitutional Amendment Acts of 1992, which have granted constitutional status and protection on the panchayats and the municipalities respectively.
3. D.D. Basu, *Introduction to the Constitution of India*, Wadhwa 19th Edition, 2001, p. 331.
4. Report of the Fourth Finance Commission, New Delhi, Government of India, 1965, p. 88–90.

46 Goods and Services Tax Council

ESTABLISHMENT OF THE COUNCIL

The 101st Amendment Act of 2016 paved the way for the introduction of a new tax regime (i.e. goods and services tax - GST) in the country. The smooth and efficient administration of this tax requires co-operation and coordination between the centre and the states. In order to facilitate this consultation process, the amendment provided for the establishment of a Goods and Services Tax Council or the GST Council.

The amendment inserted a new Article 279-A in the Constitution. This Article empowered the President to constitute a GST Council by an order[1]. Accordingly, the President issued the order in 2016 and constituted the Council[2] .

The Secretariat of the Council is located at New Delhi. The Union Revenue Secretary[3] acts as the ex-officio Secretary to the Council.

VISION AND MISSION OF THE COUNCIL

While discharging its functions, the Council is to be guided by the need for a harmonised structure of GST and the development of a harmonised national market for goods and services. Further, the Council has to determine the procedure in the performance of its functions.

The vision and mission of the Council are as follows:

Vision: To establish the highest standards of co-operative federation in the functioning of the Council, which is the first constitutional federal body vested with powers to take all major decisions relating to GST.

Mission: Evolving by a process of wider consultation, a GST structure, which is information technology driven and user friendly.

COMPOSITION OF THE COUNCIL

The Council is a joint forum of the centre and the states and consists of the following members:

(a) The Union Finance Minister as the Chairperson
(b) The Union Minister of State in-charge of Revenue or Finance
(c) The Minister in-charge of Finance or Taxation or any other Minister nominated by each state government

The members of the Council from the states have to choose one amongst themselves to be the Vice-Chairperson of the Council. They can also decide his term.

The Union Cabinet also decided to include the Chairperson of the Central Board of Excise and Customs (CBEC) as a permanent invitee (non-voting) to all proceedings of the Council.

WORKING OF THE COUNCIL

The decisions of the Council are taken at its meetings. One-half of the total number of members of the Council is the quorum for conducting a meeting. Every decision of the Council is to be taken by a majority of not less than three-fourths of the weighted votes of the members present and voting at the meeting. The decision is taken in accordance with the following principles:

(i) The vote of the central government shall have a weightage one-third of the total votes cast in that meeting.

(ii) The votes of all the state governments combined shall have weightage of two-thirds of the total votes cast in that meeting.

Any act or proceedings of the Council will not become invalid on the following grounds:

(i) any vacancy or defect in the constitution of the Council; or

(ii) any defect in the appointment of a person as a member of the Council; or

(iii) any procedural irregularity of the Council not affecting the merits of the case.

FUNCTIONS OF THE COUNCIL

The Council is required to make recommendations to the centre and the states on the following matters:

(a) The taxes, cesses and surcharges levied by the centre, the states and the local bodies that would get merged in GST.
(b) The goods and services that may be subjected to GST or exempted from GST.
(c) Model GST Laws, principles of levy, apportionment of GST levied on supplies in the course of inter-state trade or commerce and the principles that govern the place of supply.
(d) The threshold limit of turnover below which goods and services may be exempted from GST.
(e) The rates including floor rates with bands of GST.
(f) Any special rate or rates for a specified period to raise additional resources during any natural calamity or disaster.
(g) Special provision with respect to the states of Arunachal Pradesh, Assam, Jammu and Kashmir[4] , Manipur, Meghalaya, Mizoram, Nagaland, Sikkim, Tripura, Himachal Pradesh and Uttarakhand.
(h) Any other matter relating to GST, as the Council may decide.

OTHER FUNCTIONS OF THE COUNCIL

In addition to the above, the Council has the following other functions:

1. The Council shall recommend the date on which the GST may be levied on petroleum crude, high speed diesel, motor spirit (petrol), natural gas and aviation turbine fuel.
2. When there is a dispute with respect to its recommendations or their implementation, the Council shall establish a mechanism to adjudicate upon the dispute:
   (a) between the centre and one or more states; or
   (b) between the centre and any state or states on one side and one or more other states on the other side; or
   (c) between two or more states.
3. The Council has to recommend the compensation to the states for loss of revenue arising on account of introduction of GST for a period of five years. Based on this recommendation, the Parliament determines the compensation. Accordingly, the Parliament enacted the law in 2017[5] .

NOTES AND REFERENCES

1. Article 279-A(1) says that the President shall, within sixty days from the commencement of the Constitution (One Hundred and First Amendment) Act, 2016, by order, constitute a Council to be called the Goods and Services Tax Council.
2. The Presidential order was issued on 15 September 2016.
3. Department of Revenue, the Ministry of Finance, Government of India.
4. The Jammu and Kashmir Reorganisation Act, 2019, bifurcated the erstwhile state of Jammu and Kashmir into two separate Union territories, namely, the Union territory of Jammu and Kashmir and the Union territory of Ladakh.
5. The Goods and Services Tax (Compensation to States) Act, 2017.

47 National Commission for SCs

The National Commission for Scheduled Castes (SCs) is a constitutional body in the sense that it is directly established by Article 338 of the Constitu-tion[1]. On the other hand, the other national commissions like the National Commission for Women (1992), the National Commission for Minorities (1993), the National Human Rights Commission (1993) and the National Commission for Protection of Child Rights (2007) are statutory bodies in the sense that they are established by acts of the Parliament[2] .

EVOLUTION OF THE COMMISSION

Originally, Article 338 of the Constitution provided for the appointment of a Special Officer for Scheduled Castes (SCs) and Scheduled Tribes (STs) to investigate all matters relating to the constitutional safeguards for the SCs and STs and to report to the President on their working[3]. He was designated as the Commissioner for SCs and STs and assigned the said duty.

In 1978, the Government (through a Resolution) set up a non-statutory multimember Commission for SCs and STs; the Office of Commissioner for SCs and STs also continued to exist.

In 1987, the Government (through another Resolution) modified the functions of the Commission and renamed it as the National Commission for SCs and STs[4] .

Later, the 65th Constitutional Amendment Act of 1990[5] provided for the establishment of a high level multi-member National Commission for SCs and STs in the place of a single Special Officer for SCs and STs. This constitutional body replaced the Commissioner for SCs and STs as well as the Commission set up under the Resolution of 1987.

Again, the 89th Constitutional Amendment Act of 2003[6] bifurcated the combined National Commission for SCs and STs into two separate bodies, namely, National Commission for Scheduled Castes (under Article 338) and National Commission for Scheduled Tribes (under Article 338-A).

The separate National Commission for SCs came into existence in 2004. It consists of a chairperson, a vice-chairperson and three other members. They are appointed by the President by warrant under his hand and seal. Their conditions of service and tenure of office are also determined by the President[7] .

FUNCTIONS OF THE COMMISSION

The functions of the Commission are:

(a) To investigate and monitor all matters relating to the constitutional and other legal safeguards for the SCs and to evaluate their working;

(b) To inquire into specific complaints with respect to the deprivation of rights and safeguards of the SCs;

(c) To participate and advise on the planning process of socio-economic development of the SCs and to evaluate the progress of their development under the Union or a state;

(d) To present to the President, annually and at such other times as it may deem fit, reports upon the working of those safeguards;

(e) To make recommendations as to the measures that should be taken by the Union or a state for the effective implementation of those safeguards and other measures for the protection, welfare and socio-economic development of the SCs; and

(f) To discharge such other functions in relation to the protection, welfare and development and advancement of the SCs as the president may specify.

REPORT OF THE COMMISSION

The commission presents an annual report to the president. It can also submit a report as and when it thinks necessary.

The President places all such reports before the Parliament, along with a memorandum explaining the action taken on the recommendations made by the Commission. The memorandum should also contain the reasons for the non-acceptance of any of such recommendations.

The President also forwards any report of the Commission pertaining to a state government to the state governor. The governor places it before the state legislature, along with a memorandum explaining the action taken on the recommendations of the Commission. The memorandum should also contain the reasons for the non-acceptance of any of such recommendations.

POWERS OF THE COMMISSION

The Commission is vested with the power to regulate its own procedure.

The Commission, while investigating any matter or inquiring into any complaint, has all the powers of a civil court trying a suit and in particular in respect of the following matters:

(a) summoning and enforcing the attendance of any person from any part of India and examining him on oath;
(b) requiring the discovery and production of any document;
(c) receiving evidence on affidavits;
(d) requisitioning any public record from any court or office;
(e) issuing summons for the examination of witnesses and documents; and
(f) any other matter which the President may determine.

The Central government and the state governments are required to consult the Commission on all major policy matters affecting the SCs.

The Commission is also required to discharge similar functions with regard to the Anglo-Indian Community as it does with respect to the SCs. In other words, the Commission has to investigate all matters relating to the constitutional and other legal safeguards for the Anglo-Indian Community and report to the President upon their working[8] .

Till 2018, the commission was also required to discharge similar functions with regard to the other backward classes (OBCs). It was relieved from this responsibility by the 102nd Amendment Act of 2018.

NOTES AND REFERENCES

1. Article 338 is contained in Part XVI entitled as 'Special Provisions Relating to Certain Classes'.
2. The years in the bracket indicate the years of their establishment.
3. The constitutional safeguards for the SCs and STs are explained in Chapter 68.

4. It was made as a National Level Advisory Body to advise the Government on broad policy issues and levels of development of SCs and STs.
5. The Act came into force on 12–03-1992.
6. The Act came into force on 19–02-2004.
7. Under the Rules, they hold office for a term of three years.
8. Clause 10 of Article 338 reads as follows: “In this article, references to the Scheduled Castes shall be construed as including references to the Anglo-Indian Community”.

48 National Commission for STs

Like the National Commission for Schedules Castes (SCs), the National Commission for Scheduled Tribes (STs) is also a constitutional body in the sense that it is directly established by Article 338-A of the Constitution[1] .

SEPARATE COMMISSION FOR STs

The National Commission for SCs and STs came into being consequent upon passing of the 65th Constitutional Amendment Act of 1990[2]. The Commission was established under Article 338 of the Constitution with the objective of monitoring all the safeguards provided for the SCs and STs under the Constitution or other laws[3] .

Geographically and culturally, the STs are different from the SCs and their problems are also different from those of SCs. In 1999, a new Ministry of Tribal Affairs was created to provide a sharp focus to the welfare and development of the STs. It was felt necessary that the Ministry of Tribal Affairs should coordinate all activities relating to the STs as it would not be administratively feasible for the Ministry of Social Justice and Empowerment to perform this role[4] .

Hence, in order to safeguard the interests of the STs more effectively, it was proposed to set up a separate National Commission for STs by bifurcating the existing combined National Commission for SCs and STs. This was done by passing the 89th Constitutional Amendment Act of 2003[5]. This Act further amended Article 338 and inserted a new Article 338-A in the Constitution.

The separate National Commission for STs came into existence in 2004. It consists of a chairperson, a vice-chairperson and three other members. They are appointed by the President by warrant under his hand and seal. Their conditions of service and tenure of office are also determined by the President[6] .

FUNCTIONS OF THE COMMISSION

The functions of the Commission are:

(a) To investigate and monitor all matters relating to the constitutional and other legal safeguards for the STs and to evaluate their working;

(b) To inquire into specific complaints with respect to the deprivation of rights and safeguards of the STs;

(c) To participate and advise on the planning process of socio-economic development of the STs and to evaluate the progress of their development under the Union or a state;

(d) To present to the President, annually and at such other times as it may deem fit, reports upon the working of those safeguards;

(e) To make recommendations as to the measures that should be taken by the Union or a state for the effective implementation of those safeguards and other measures for the protection, welfare and socio-economic development of the STs; and

(f) To discharge such other functions in relation to the protection, welfare and development and advancement of the STs as the President may specify.

OTHER FUNCTIONS OF THE COMMISSION

In 2005, the President specified the following other functions of the Commission in relation to the protection, welfare and development and advancement of the STs[7] :

(i) Measures to be taken over conferring ownership rights in respect of minor forest produce to STs living in forest areas

(ii) Measures to be taken to safeguard rights of the tribal communities over mineral resources, water resources etc., as per law

(iii) Measures to be taken for the development of tribals and to work for more viable livelihood strategies

(iv) Measures to be taken to improve the efficacy of relief and rehabilitation measures for tribal groups displaced by development projects

(v) Measures to be taken to prevent alienation of tribal people from land and to effectively rehabilitate such people in whose case alienation has already taken place

(vi) Measures to be taken to elicit maximum cooperation and involvement of tribal communities for protecting forests and undertaking social afforestation

(vii) Measures to be taken to ensure full implementation of the Provisions of Panchayats (Extension to the Scheduled Areas) Act, 1996

(viii) Measures to be taken to reduce and ultimately eliminate the practice of shifting cultivation by tribals that lead to their continuous disempowerment and degradation of land and the environment

REPORT OF THE COMMISSION

The Commission presents an annual report to the President. It can also submit a report as and when it thinks necessary.

The President places all such reports before the Parliament, along with a memorandum explaining the action taken on the recommendations made by the Commission. The memorandum should also contain the reasons for the non-acceptance of any of such recommendations.

The President also forwards any report of the Commission pertaining to a state government to the state governor. The governor places it before the state legislature, along with a memorandum explaining the action taken on the recommendations of the Commission. The memorandum should also contain the reasons for the non-acceptance of any of such recommendations.

POWERS OF THE COMMISSION

The Commission is vested with the power to regulate its own procedure.

The Commission, while investigating any matter or inquiring into any complaint, has all the powers of a civil court trying a suit and in particular in respect of the following matters:

(a) summoning and enforcing the attendance of any person from any part of India and examining him on oath;
(b) requiring the discovery and production of any document;
(c) receiving evidence on affidavits;
(d) requisitioning any public record from any court or office;
(e) issuing summons for the examination of witnesses and documents; and
(f) any other matter which the President may determine.

The Central government and the state governments are required to consult the Commission on all major policy matters affecting the STs.

NOTES AND REFERENCES

1. Article 338-A is contained in Part XVI entitled as 'Special Provisions Relating to Certain Classes'. This Article was inserted by the 89th Constitutional Amendment Act of 2003.
2. The Act came into force on 12–03-1992.
3. The constitutional safeguards for the SCs and STs are explained in Chapter 68.
4. The Ministry of Social Justice and Empowerment co-ordinates all activities relating to the SCs.
5. The Act came into force on 19–02-2004.
6. Under the Rules, they hold office for a term of three years.
7. The National Commission for the Scheduled Tribes (Specification of Other Functions) Rules, 2005.

49 National Commission for BCs

ESTABLISHMENT OF THE COMMISSION

In the Mandal case[1] judgement (1992), the Supreme Court directed the central government to constitute a permanent statutory body to examine the complaints of underinclusion, over-inclusion or non-inclusion of any class of citizens in the list of backward classes. Accordingly, the National Commission for Backward Classes (NCBC) was set up in 1993[2] .

Later, the 102nd Amendment Act of 2018 conferred a constitutional status on the Commission. For this purpose, the amendment inserted a new Article 338-B in the constitution. Hence, the Commission ceased to be a statutory body and became a constitutional body[3] .

Further, the scope of functions assigned to the Commission is also enlarged under the new dispensation. This was done in order to safeguard the interests of the socially and educationally backward classes more effec-tively[4]. In other words, the constitutional status of the new Commission is at par with the National Commission for Scheduled Castes (NCSC) and the National Commission for Scheduled Tribes (NCST).

The Commission consists of a chairperson, a vice-chairperson and three other members. They are appointed by the President by warrant under his hand and seal. Their conditions of service and tenure of office are also determined by the President[5] .

FUNCTIONS OF THE COMMISSION

The functions of the Commission are the following:

(a) To investigate and monitor all matters relating to the constitutional and other legal safeguards for the socially and educationally backward classes and to evaluate their working.

(b) To inquire into specific complaints with respect to the deprivation of rights and safeguards of the socially and educationally backward classes.

(c) To participate and advise on the socioeconomic development of the socially and educationally backward classes and to evaluate the progress of their development under the Union or a state.

(d) To present to the President, annually and at such other times as it may deem fit, reports upon the working of those safeguards.

(e) To make recommendations as to the measures that should be taken by the Union or a state for the effective implementation of those safeguards and other measures for the protection, welfare and socio-economic development of the socially and educationally backward classes.

(f) To discharge such other functions in relation to the protection, welfare, development and advancement of the socially and educationally backward classes as the President may specify.

REPORT OF THE COMMISSION

The Commission presents an annual report to the President. It can also submit a report as and when it thinks necessary.

The President places all such reports before the Parliament, along with a memorandum explaining the action taken on the recommendations made by the Commission. The memorandum should also contain the reasons for the non-acceptance of any of such recommendations.

The President also forwards any report of the Commission pertaining to a state government to the state government. The government places it before the state legislature, along with a memorandum explaining the action taken on the recommendations of the Commission. The memorandum should also contain the reasons for the non-acceptance of any of such recommendations.

POWERS OF THE COMMISSION

The Commission is vested with the power to regulate its own procedure.

The Commission, while investigating any matter or enquiring into any complaint, has all the powers of a civil court trying a suit and in particular in respect of the following matters:

(a) Summoning and enforcing the attendance of any person from any part of India and examining him on oath
(b) Requiring the discovery and production of any document
(c) Receiving evidence on affidavits
(d) Requisitioning any public record from any court or office
(e) Issuing summons for the examination of witnesses and documents
(f) Any other matter which the President may determine

The central government and the state governments are required to consult the Commission on all major policy matters affecting the socially and educationally backward classes.

NOTES AND REFERENCES

1. Indra Sawhney Vs. Union of India (1992).
2. Vide the National Commission for Backward Classes Act, 1993.
3. The National Commission for Backward Classes (Repeal) Act, 2018, repealed the National Commission for Backward Classes Act, 1993.
4. The 102nd Amendment Act of 2018 inserted a new Article 342-A enabling the President to specify the socially and educationally backward classes.
5. Under the Rules, they hold office for a term of three years.

50 Special Officer for Linguistic Minorities

CONSTITUTIONAL PROVISIONS

Originally, the Constitution of India did not make any provision with respect to the Special Officer for Linguistic Minorities[1]. Later, the States Reorganisation Commission (1953–55) made a recommendation in this regard. Accordingly, the Seventh Constitutional Amendment Act of 1956 inserted a new Article 350-B in Part XVII of the Consti-tution[2]. This article contains the following provisions:

1. There should be a Special Officer for Linguistic Minorities. He is to be appointed by the President of India.
2. It would be the duty of the Special Officer to investigate all matters relating to the safeguards provided for linguistic minorities under the Constitution[3]. He would report to the President upon those matters at such intervals as the President may direct. The President should place all such reports before each House of Parliament and send to the governments of the states concerned.

It must be noted here that the Constitution does not specify the qualifications, tenure, salaries and allowances, service conditions and procedure for removal of the Special Officer for Linguistic Minorities.

COMMISSIONER FOR LINGUISTIC MINORITIES

In pursuance of the provision of Article 350-B of the Constitution, the office of the Special Officer for Linguistic Minorities was created in 1957. He is designated as the Commissioner for Linguistic Minorities.

The Commissioner has his headquarters at Allahabad (Uttar Pradesh). He has three regional offices at Belgaum (Karnataka), Chennai (Tamil Nadu) and Kolkata (West Bengal). Each is headed by an Assistant Commissioner.

The Commissioner is assisted at headquarters by Deputy Commissioner and an Assistant Commissioner. He maintains liaison with the State Governments and Union Territories through nodal officers appointed by them.

At the Central level, the Commissioner falls under the Ministry of Minority Affairs. Hence, he submits the annual reports or other reports to the President through the Union Minority Affairs Minister[4] .

ROLE OF THE COMMISSIONER

The Commissioner takes up all the matters pertaining to the grievances arising out of the non-implementation of the Constitutional and Nationally Agreed Scheme of Safeguards provided to linguistic minorities that come to its notice or are brought to its knowledge by the linguistic minority individuals, groups, associations or organisations at the highest political and administrative levels of the state governments and UT administrations and recommends remedial actions to be taken[5] .

To promote and preserve linguistic minority groups, the Ministry of Minority Affairs has requested the State Governments / Union Territories to give wide publicity to the constitutional safeguards provided to linguistic minorities and to take necessary administrative measures. The state governments and UT Administrations were urged to accord priority to the implementation of the scheme of safeguards for linguistic minorities. The Commissioner launched a 10 point programme to lend fresh impetus to Governmental efforts towards the preservation of the language and culture of linguistic minorities[6] .

VISION AND MISSION

The vision and mission of the Commissioner are mentioned here.[7]

Vision

Streamlining and strengthening implementation machinery and mechanism for effective implementation of the Constitutional safeguards for the Linguistic Minorities, thereby ensuring protection of the rights of speakers of the minority languages so as to provide them equal opportunities for inclusive and integrated development.

Mission

To ensure that all the states / U.T.s effectively implement the Constitutional safeguards and the nationally agreed scheme of safeguards for the linguistic minorities for providing them equal opportunities for inclusive development.

FUNCTIONS AND OBJECTIVES

In more detail, the functions and objectives of the Commissioner are as follows[8] :

Functions

1. To investigate all matters related to safeguards provided to the linguistic minorities
2. To submit to the President of India, the reports on the status of implementation of the Constitutional and the nationally agreed safeguards for the linguistic minorities
3. To monitor the implementation of safeguards through questionnaires, visits, conferences, seminars, meetings, review mechanism, etc

Objectives

1. To provide equal opportunities to the linguistic minorities for inclusive development and national integration
2. To spread awareness amongst the linguistic minorities about the safeguards available to them
3. To ensure effective implementation of the safeguards provided for the linguistic minorities in the Constitution and other safeguards, which are agreed to by the states / U.T.s
4. To handle the representations for redress of grievances related to the safeguards for linguistic minorities

NOTES AND REFERENCES

1. A linguistic minority is a group of people whose mother tongue is different from that of the majority in the state or part of a state. Thus, the linguistic minorities are determined on a state-wise basis.
2. Part XVII is entitled as ‘Official Language’ and consists of four chapters. Article 350-B is contained in the fourth chapter entitled as ‘Special Directives’.

3. The constitutional safeguards for linguistic minorities are explained in Chapter 65.
4. So far, 52 reports have been presented.
5. India 2013, Publications Division, Government of India, p. 1012.
6. Annual Report 2011–2012, Ministry of Minority Affairs, Government of India, p. 38.
7. 47th Report of the Commissioner for Linguistic Minorities, July 2008 to June 2010, p. 222.
8. *Ibid*.

51 Comptroller and Auditor General of India

The Constitution of India (Article 148) provides for an independent office of the Comptroller and Auditor General of India (CAG). He is the head of the Indian Audit and Accounts Department[1]. He is the guardian of the public purse and controls the entire financial system of the country at both the levels–the Centre and the state. His duty is to uphold the Constitution of India and laws of Parliament in the field of financial administration. This is the reason why Dr. B.R. Ambedkar said that the CAG shall be the most important Officer under the Constitution of India[2]. He is one of the bulwarks of the democratic system of government in India; the others being the Supreme Court, the Election Commission and the Union Public Service Commission.

APPOINTMENT AND TERM

The CAG is appointed by the president of India by a warrant under his hand and seal. The CAG, before taking over his office, makes and subscribes before the president an oath or affirmation:

1. to bear true faith and allegiance to the Constitution of India;
2. to uphold the sovereignty and integrity of India;
3. to duly and faithfully and to the best of his ability, knowledge and judgement perform the duties of his office without fear or favour, affection or ill-will; and
4. to uphold the Constitution and the laws.

He holds office for a period of six years or upto the age of 65 years, whichever is earlier. He can resign any time from his office by addressing the resignation letter to the president. He can also be removed by the president on same grounds and in the same manner as a judge of the Supreme Court. In other words, he can be removed by the president on the basis of a resolution passed to that effect by both the Houses of Parliament with special majority, either on the ground of proved misbehaviour or incapacity.

INDEPENDENCE

The Constitution has made the following provisions to safeguard and ensure the independence of CAG:

1. He is provided with the security of tenure. He can be removed by the president only in accordance with the procedure mentioned in the Constitution. Thus, he does not hold his office till the pleasure of the president, though he is appointed by him.
2. He is not eligible for further office, either under the Government of India or of any state, after he ceases to hold his office.
3. His salary and other service conditions are determined by the Parliament. His salary is equal to that of a judge of the Supreme Court[3] .
4. Neither his salary nor his rights in respect of leave of absence, pension or age of retirement can be altered to his disadvantage after his appointment.
5. The conditions of service of persons serving in the Indian Audit and Accounts Department and the administrative powers of the CAG are prescribed by the president after consultation with the CAG.
6. The administrative expenses of the office of the CAG, including all salaries, allowances and pensions of persons serving in that office are charged upon the Consolidated Fund of India. Thus, they are not subject to the vote of Parliament.

Further, no minister can represent the CAG in Parliament (both Houses) and no minister can be called upon to take any responsibility for any actions done by him.

DUTIES AND POWERS

The Constitution (Article 149) authorises the Parliament to prescribe the duties and powers of the CAG in relation to the accounts of the Union and of the states and of any other authority or body. Accordingly, the Parliament enacted the CAG's (Duties, Powers and Conditions of Service) act, 1971. This Act was amended in 1976 to separate accounts from audit in the Central government.

The duties and functions of the CAG as laid down by the Parliament and the Constitution are:

1. He audits the accounts related to all expenditure from the Consolidated Fund of India, consolidated fund of each state and consolidated fund of each union territory having a Legislative Assembly.
2. He audits all expenditure from the Contingency Fund of India and the Public Account of India as well as the contingency fund of each state and the public account of each state.
3. He audits all trading, manufacturing, profit and loss accounts, balance sheets and other subsidiary accounts kept by any department of the Central Government and state governments.
4. He audits the receipts and expenditure of the Centre and each state to satisfy himself that the rules and procedures in that behalf are designed to secure an effective check on the assessment, collection and proper allocation of revenue.
5. He audits the receipts and expenditure of the following:
   (a) All bodies and authorities substantially financed from the Central or state revenues;
   (b) Government companies; and
   (c) Other corporations and bodies, when so required by related laws.
6. He audits all transactions of the Central and state governments related to debt, sinking funds, deposits, advances, suspense accounts and remittance business. He also audits receipts, stock accounts and others, with

approval of the President, or when required by the President.

7. He audits the accounts of any other authority when requested by the President or Governor. For example, the audit of local bodies.
8. He advises the President with regard to prescription of the form in which the accounts of the Centre and the states shall be kept (Article 150).
9. He submits his audit reports relating to the accounts of the Centre to President, who shall, in turn, place them before both the Houses of Parliament (Article 151).
10. He submits his audit reports relating to the accounts of a state to governor, who shall, in turn, place them before the state legislature (Article 151).
11. He ascertains and certifies the net proceeds of any tax or duty (Article 279). His certificate is final. The 'net proceeds' means the proceeds of a tax or a duty minus the cost of collection.
12. He acts as a guide, friend and philosopher of the Public Accounts Committee of the Parliament.
13. He compiles and maintains the accounts of state governments. In 1976, he was relieved of his responsibilities with regard to the compilation and maintenance of accounts of the Central Government due to the separation of accounts from audit, that is, departmentalisation of accounts.

The CAG submits three audit reports to the President–audit report on appropriation accounts, audit report on finance accounts, and audit report on public undertakings. The President lays these reports before both the Houses of Parliament. After this, the Public Accounts Committee examines them and reports its findings to the Parliament.

The appropriation accounts compare the actual expenditure with the expenditure sanctioned by the Parliament through the Appropriation Act, while the finance accounts show the annual receipts and disbursements of the Union government.

ROLE

The role of CAG is to uphold the Constitution of India and the laws of Parliament in the field of financial administration. The accountability of the executive (i.e., council of ministers) to the Parliament in the sphere of financial administration is secured through audit reports of the CAG. The CAG is an agent of the Parliament and conducts audit of expenditure on behalf of the Parliament. Therefore, he is responsible only to the Parliament.

The CAG has more freedom with regard to audit of expenditure than with regard to audit of receipts, stores and stock. “Whereas in relation to expenditure he decides the scope of audit and frames his own audit codes and manuals, he has to proceed with the approval of the executive government in relation to rules for the conduct of the other audits.”[3a]

The CAG has ‘to ascertain whether money shown in the accounts as having been disbursed was legally available for and applicable to the service or the purpose to which they have been applied or charged and whether the expenditure conforms to the authority that governs it’. In addition to this legal and regulatory audit, the CAG can also conduct the propriety audit, that is, he can look into the ‘wisdom, faithfulness and economy’ of government expenditure and comment on the wastefulness and extravagance of such expenditure. However, unlike the legal and regulatory audit, which is obligatory on the part of the CAG, the propriety audit is discretionary.

The secret service expenditure is a limitation on the auditing role of the CAG. In this regard, the CAG cannot call for particulars of expenditure incurred by the executive agencies, but has to accept a certificate from the competent administrative authority that the expenditure has been so incurred under his authority.

The Constitution of India visualises the CAG to be Comptroller as well as Auditor General. However, in practice, the CAG is fulfilling the role of an Auditor-General only and not that of a Comptroller. In other words, ‘the CAG has no control over the issue of money from the consolidated fund and many departments are authorised to draw money by issuing cheques without specific

authority from the CAG, who is concerned only at the audit stage when the expenditure has already taken place'[4]. In this respect, the CAG of India differs totally from the CAG of Britain who has powers of both Comptroller as well as Auditor General. In other words, in Britain, the executive can draw money from the public exchequer only with the approval of the CAG.

CAG AND CORPORATIONS

The role of CAG in the auditing of public corporations is limited. Broadly speaking, his relationship with the public corporations falls into the following three categories:

(i) Some corporations are audited totally and directly by the CAG, for example, Damodar Valley Corporation, Oil and Natural Gas Commission, Air India, Indian Airlines Corporation, and others.

(ii) Some other corporations are audited by private professional auditors who are appointed by the Central Government in consultation with the CAG. If necessary, the CAG can conduct supplementary audit. The examples are, Central Warehousing Corporation, Industrial Finance Corporation, and others.

(iii) Some other corporations are totally subjected to private audit. In other words, their audit is done exclusively by private professional auditors and the CAG does not come into the picture at all. They submit their annual reports and accounts directly to the Parliament. Examples of such corporations are Life Insurance Corporation of India, Reserve Bank of India, State Bank of India, Food Corporation of India, and others.

The role of the CAG in the auditing of Government companies is also limited. They are audited by private auditors who are appointed by the Government on the advise of the CAG. The CAG can also undertake supplementary audit or test audit of such companies.

In 1968, an Audit Board was established as a part of the office of CAG to associate outside specialists and experts to handle the technical aspects of audit of specialised enterprises like engineering, iron and steel, chemicals and so on. This board was established on the recommendations of the Administrative Reforms Commission of India. It consists of a Chairman and two members appointed by the CAG.

APPLEBY'S CRITICISM

Paul H Appleby, in his two reports on Indian Administration, was very critical of the role of CAG and attacked the significance of his work[5]. He also suggested that the CAG should be relieved of the responsibility of audit. In other words, he recommended the abolition of the office of CAG. His points of criticism of Indian audit are as follows:

1. The function of the CAG in India, is in a large measure, an inheritance from the colonial rule.
2. The CAG is today a primary cause of widespread and paralysing unwillingness to decide and to act. Auditing has a repressive and negative influence.
3. The Parliament has a greatly exaggerated notion of the importance of auditing to Parliamentary responsibility, and so has failed to define the functions of the CAG as the Constitution contemplated it would do.
4. The CAG's function is not really a very important one. Auditors do not know and cannot be expected to know very much about good administration; their prestige is highest with others who do not know much about administration.
5. Auditors know what is auditing, which is not administration; it is a necessary, but a highly pedestrian function with a narrow perspective and a very limited usefulness.
6. A deputy secretary in the department knows more about the problems in his department than the CAG and his entire staff.

Table 51.1 *Articles Related to Comptroller and Auditor-General of India at a Glance*

Article No.	Subject-matter
148.	Comptroller and Auditor-General of India
149.	Duties and powers of the Comptroller and Auditor-General
150.	Form of accounts of the Union and of the States

NOTES AND REFERENCES

1. The Indian Audit and Accounts Department was created during the British rule in 1753.
2. *Constituent Assembly Debates*, Volume VIII, p. 405.
3. In 2018, the salary of a judge of the Supreme Court had been fixed at ₹2.50 lakh per month.

3a. Wattal, P.K., Parliamentary Financial Control in India, Second Edition. Bombay: Minerva Book Shop, 1962, p. 235.

4. D.D. Basu, *Introduction to the Constitution of India,* Wadhwa, 19th Edition, 2001, p. 198.
5. The two reports are: Public Administration in India (1953) and Re-examination of India's Administrative System, 1956.

52 Attorney General of India

The Constitution (Article 76) has provided for the office of the Attorney General for India[1]. He is the highest law officer in the country.

APPOINTMENT AND TERM

The Attorney General (AG) is appointed by the president. He must be a person who is qualified to be appointed a judge of the Supreme Court. In other words, he must be a citizen of India and he must have been a judge of some high court for five years or an advocate of some high court for ten years or an eminent jurist, in the opinion of the president.

The term of office of the AG is not fixed by the Constitution. Further, the Constitution does not contain the procedure and grounds for his removal. He holds office during the pleasure of the president. This means that he may be removed by the president at any time. He may also quit his office by submitting his resignation to the president. Conventionally, he resigns when the government (council of ministers) resigns or is replaced, as he is appointed on its advice.

The remuneration of the AG is not fixed by the Constitution. He receives such remuneration as the president may determine.

DUTIES AND FUNCTIONS

As the chief law officer of the Government of India, the duties of the AG include the following:

1. To give advice to the Government of India upon such legal matters, which are referred to him by the president.
2. To perform such other duties of a legal character that are assigned to him by the president.
3. To discharge the functions conferred on him by the Constitution or any other law.

The president has assigned the following duties to the AG[2] :

1. To appear on behalf of the Government of India in all cases in the Supreme Court in which the Government of India is concerned.
2. To represent the Government of India in any reference made by the president to the Supreme Court under Article 143 of the Constitution.
3. To appear (when required by the Government of India) in any high court in any case in which the Government of India is concerned.

RIGHTS AND LIMITATIONS

In the performance of his official duties, the Attorney General has the right of audience in all courts in the territory of India. Further, he has the right to speak and to take part in the proceedings of both the Houses of Parliament or their joint sitting and any committee of the Parliament of which he may be named a member, but without a right to vote. He enjoys all the privileges and immunities that are available to a member of Parliament.

Following limitations are placed on the Attorney General in order to avoid any complication and conflict of duty:

1. He should not advise or hold a brief against the Government of India.
2. He should not advise or hold a brief in cases in which he is called upon to advise or appear for the Government of India.
3. He should not defend accused persons in criminal prosecutions without the permission of the Government of India.
4. He should not accept appointment as a director in any company or corporation without the permission of the Government of India.
5. He should not advise any ministry or department of Government of India or any statutory organization or any public sector undertaking unless the proposal or a reference in this regard is received through the Ministry of Law and Justice, Department of Legal Affairs[2a].

However, the Attorney General is not a fulltime counsel for the Government. He does not fall in the category of government servants. Further, he is not debarred from private legal practice.

SOLICITOR GENERAL OF INDIA

In addition to the AG, there are other law officers of the Government of India. They are the solicitor general of India and additional solicitor general of India. They assist the AG in the fulfilment of his official responsibilities. It should be noted here that only the office of the AG is created by the Constitution. In other words, Article 76 does not mention about the solicitor general and additional solicitor general.

The AG is not a member of the Central cabinet. There is a separate law minister in the Central cabinet to look after legal matters at the government level[3] .

Table 52.1 *Articles Related to Attorney-General of India at a Glance*

Article No.	Subject-matter
76.	Attorney-General of India
88.	Rights of Attorney-General as respects the Houses of Parliament and its Committee
105.	Powers, privileges and immunities of Attorney-General

NOTES AND REFERENCES

1. Article 76 of Chapter 1 (The Executive) in Part V (The Union) of the Constitution deals with the office of the Attorney General of India. This is the only Article dealing with this office.
2. Notification No. F. 43–50C, 26 January 1950, *Gazette of India*, Extraordinary, Volume VII, p. 33–34.

2a. Inserted vide G.S.R..... (E) dated 25th February, 2005.

3. During the prime ministership of Jawaharlal Nehru, a proposal was put forward by the Central government that the office of the Attorney General be merged with the office of the law minister. It did not materialise.

53 Advocate General of the State

The Constitution (Article 165) has provided for the office of the advocate general for the states.[1] He is the highest law officer in the state. Thus he corresponds to the Attorney General of India.

APPOINTMENT AND TERM

The advocate general is appointed by the governor. He must be a person who is qualified to be appointed a judge of a high court. In other words, he must be a citizen of India and must have held a judicial office[2] for ten years or been an advocate of a high court for ten years[3] .

The term of office of the advocate general is not fixed by the Constitution. Further, the Constitution does not contain the procedure and grounds for his removal. He holds office during the pleasure of the governor. This means that he may be removed by the governor at any time. He may also quit his office by submitting his resignation to the governor. Conventionally, he resigns when the government (council of ministers) resigns or is replaced, as he is appointed on its advice.

The remuneration of the advocate general is not fixed by the Constitution. He receives such remuneration as the governor may determine.

DUTIES AND FUNCTIONS

As the chief law officer of the government in the state, the duties of the advocate general include the following:

1. To give advice to the government of the state upon such legal matters which are referred to him by the governor.
2. To perform such other duties of a legal character that are assigned to him by the governor.
3. To discharge the functions conferred on him by the Constitution or any other law.

In the performance of his official duties, the advocate general is entitled to appear before any court of law within the state. Further, he has the right to speak and to take part in the proceedings of both the Houses of the state legislature or any committee of the state legislature of which he may be named a member, but without a right to vote. He enjoys all the privileges and immunities that are available to a member of the state legislature.

Table 53.1 *Articles Related to Advocate-General of the state at a Glance*

Article No.	Subject-matter
165.	Advocate-General of the State
177.	Rights of Advocate-General as respects the Houses of State Legislature and its Committee
194.	Powers, privileges and immunities of Advocate-General

Table 53.2 *Articles Related to Constitutional Bodies at a Glance*

Article No.	Constitutional Bodies
76.	Attorney-General of India
148.	Comptroller and Auditor-General of India
165.	Advocate-General of the State
243-I.	State Finance Commission

243-K.	State Election Commission
243ZD.	District Planning Committee
243ZE.	Metropolitan Planning Committee
263.	Inter-State Council
279A.	Goods and Services Tax Council
280.	Finance Commission
307.	Inter-State Trade and Commerce Commission
315.	Union Public Service Commission and State Public Service Commission
324.	Election Commission
338.	National Commission for Scheduled Castes
338A.	National Commission for Scheduled Tribes
338B.	National Commission for Backward Classes
339.	Scheduled Areas and Scheduled Tribes Commission
340.	Backward Classes Commission
344.	Official Language Commission and Official Language Committee of Parliament
350B.	Special Officer for Linguistic Minorities

NOTES AND REFERENCES

1. Article 165 of Chapter 2 (The Executive) in Part VI (The States) of the Constitution deals with the office of the advocate general of the state. This is the only article dealing with this office.
2. Judicial office means an office within the judicial service of the state.
3. Unlike the Supreme Court, the Constitution makes no provision for appointment of an eminent jurist as a judge of high court.

PART-VIII
NON-CONSTITUTIONAL BODIES

54. NITI Aayog
55. National Human Rights Commission
56. State Human Rights Commission
57. Central Information Commission
58. State Information Commission
59. Central Vigilance Commission
60. Central Bureau of Investigation
61. Lokpal and Lokayuktas
62. National Investigation Agency
63. National Disaster Management Authority

54 NITI Aayog

ESTABLISHMENT

On the 13th of August, 2014, the Modi Government scrapped the 65-year-old Planning Commission and announced that it would be replaced by a new body. Accordingly, on January 1, 2015, the NITI Aayog (National Institution for Transforming India) was established as the successor to the planning commission.

However, it must be noted here that the NITI Aayog, like that of the Planning Commission, was also created by an executive resolution[1] of the Government of India (i.e., Union Cabinet). Hence, it is also neither a constitutional body nor a statutory body. In other words, it is a non-constitutional or extra-constitutional body (i.e., not created by the Constitution) and a non-statutory body (not created by an Act of the Parliament).

NITI Aayog is the premier policy 'Think Tank' of the Government of India, providing both directional and policy inputs. While designing strategic and long-term policies and programmes for the Government of India, NITI Aayog also provides relevant technical advice to the Centre and States.

The centre-to-state one-way flow of policy, that was the hallmark of the Planning Commission era, is now sought to be replaced by a genuine and continuing partnership of states.

In a paradigmatic shift from the command and control approach of the past, NITI Aayog accommodates diverse points of view in a collaborative, rather than confrontationist, setting. In the spirit of federalism, NITI's own policy thinking too is shaped by a 'bottom-up' approach rather than a 'top-down' model.

RATIONALE

While explaining the reason for replacing the Planning Commission with the NITI Aayog, the Union Government made the following observation: “India has undergone a paradigm shift over the past six decades–politically, economically, socially, technologically as well as demographically. The role of Government in national development has seen a parallel evolution. Keeping with these changing times, the Government of India has decided to set up NITI Aayog (National Institution for Transforming India), in place of the erstwhile Planning Commission, as a means to better serve the needs and aspirations of the people of India.”[2]

The new institution will be a catalyst to the developmental process; nurturing an overall enabling environment, through a holistic approach to development going beyond the limited sphere of the Public Sector and Government of India. This will be built on the foundations of:[3]

1. An empowered role of States as equal partners in national development; operationalising the principle of Cooperative Federalism.
2. A knowledge hub of internal as well as external resources; serving as a repository of good governance best practices, and a Think Tank offering domain knowledge as well as strategic expertise to all levels of government.
3. A collaborative platform facilitating implementation; by monitoring progress, plugging gaps and bringing together the various ministries at the Centre and in States, in the joint pursuit of developmental goals.

In the same context, the then Union Finance Minister Arun Jaitley said: “The 65-year-old Planning Commission had become a redundant organisation. It was relevant in a command economy structure, but not any longer. India is a diversified country and its states are in various phases of economic development along with their own strengths and weaknesses. In this context, a ‘one-size-fits-all’ approach to economic planning is obsolete. It cannot make India competitive in today’s global economy.”[4]

The Resolution observed: “Perhaps most importantly, the institution must adhere to the tenet that while incorporating positive

influences from the world, no single model can be transplanted from outside into the Indian scenario. We need to find our own strategy for growth. The new institution has to zero in on what will work in and for India. It will be a Bharatiya approach to development.”

COMPOSITION

The composition of the NITI Aayog is as follows:

(a) Chairperson: The Prime Minister of India

(b) Governing Council: It comprises the Chief Ministers of all the States, Chief Ministers of Union Territories with Legislatures (i.e., Delhi, Puducherry and Jammu and Kashmir) and Lt. Governors of other Union Territories.

(c) Regional Councils: These are formed to address specific issues and contingencies impacting more than one state or a region. These are formed for a specified tenure. These are convened by the Prime Minister and comprises of the Chief Ministers of States and Lt. Governors of Union Territories in the region. These are chaired by the Chairperson of the NITI Aayog or his nominee.

(d) Special Invitees: Experts, specialists and practitioners with relevant domain knowledge as special invitees nominated by the Prime Minister.

(e) Full-time Organisational Framework: It comprises, in addition to the Prime Minister as the Chairperson:

(i) Vice-Chairperson: He is appointed by the Prime Minister. H enjoys the rank of a Cabinet Minister.

(ii) Members: Full-time. They enjoy the rank of a Minister of State.

(iii) Part-time Members: Maximum of 2, from leading universitie research organisations and other relevant institutions in an e officio capacity. Part-time members would be on a rotation.

(iv) Ex-Officio Members: Maximum of 4 members of the Uni Council of Ministers to be nominated by the Prime Minister.

(v) Chief Executive Officer: He is appointed by the Prime Minist for a fixed tenure, in the rank of Secretary to the Government India.

(vi) Secretariat: As deemed necessary.

SPECIALISED WINGS

NITI Aayog houses a number of specialised wings, including[5] :

1. *Research Wing:* It develops in-house sectoral expertise as a dedicated think tank of top notch domain experts, specialists and scholars.
2. *Consultancy Wing:* It provides a marketplace of whetted panels of expertise and funding, for the Central and State Governments to tap into matching their requirements with solution providers, public and private, national and international. By playing match-maker instead of providing the entire service itself, NITI Aayog is able to focus its resources on priority matters, providing guidance and an overall quality check to the rest.
3. *Team India Wing:* It comprises of the representatives from every State and Ministry and serves as a permanent platform for national collaboration. Each representative:
   (a) Ensures that every State/Ministry has a continuous voice and stake in the NITI Aayog.
   (b) Establishes a direct communication channel between the State/Ministry and NITI Aayog for all development related matters, as the dedicated liaison interface.

NITI Aayog functions in close cooperation, consultation and coordination with the Ministries of the Central Government, and State Governments. While it makes recommendations to the Central and State Governments, the responsibility for taking and implementing decisions rests with them.

OBJECTIVES

The objectives of the NITI Aayog are mentioned below:

1. To evolve a shared vision of national development priorities, sectors and strategies with the active involvement of States.
2. To foster cooperative federalism through structured support initiatives and mechanisms with the States on a continuous basis, recognising that strong States make a strong nation.
3. To develop mechanisms to formulate credible plans at the village level and aggregate these progressively at higher levels of government.
4. To ensure, on areas that are specifically referred to it, that the interests of national security are incorporated in economic strategy and policy.
5. To pay special attention to the sections of our society that may be at risk of not benefitting adequately from economic progress.
6. To design strategic and long-term policy and programme frameworks and initiatives, and monitor their progress and their efficacy. The lessons learnt through monitoring and feedback will be used for making innovative improvements, including necessary midcourse corrections.
7. To provide advice and encourage partnerships between key stakeholders and national and international like-minded think tanks, as well as educational and policy research institutions.
8. To create a knowledge, innovation and entrepreneurial support system through a collaborative community of national and international experts, practitioners and other partners.
9. To offer a platform for resolution of inter-sectoral and inter-departmental issues in order to accelerate the implementation of the development agenda.
10. To maintain a state-of-the-art Resource Centre, be a repository of research on good governance and best practices in sustainable and equitable development as well as help their dissemination to stake-holders.
11. To actively monitor and evaluate the implementation of programmes and initiatives, including the identification of the needed resources so as to strengthen the probability of success and scope of delivery.

12. To focus on technology upgradation and capacity building for implementation of programmes and initiatives.
13. To undertake other activities as may be necessary in order to further the execution of the national development agenda, and the objectives mentioned above.

Through the above, the NITI Aayog aims to accomplish the following objectives and opportunities:[6]

1. An administration paradigm in which the Government is an "enabler" rather than a "provider of first and last resort."
2. Progress from "food security" to focus on a mix of agricultural production, as well as actual returns that farmers get from their produce.
3. Ensure that India is an active player in the debates and deliberations on the global commons.
4. Ensure that the economically vibrant middle-class remains engaged, and its potential is fully realised.
5. Leverage India's pool of entrepreneurial, scientific and intellectual human capital.
6. Incorporate the significant geo-economic and geo-political strength of the Non-Resident Indian Community.
7. Use urbanisation as an opportunity to create a wholesome and secure habitat through the use of modern technology.
8. Use technology to reduce opacity and potential for misadventures in governance.

The NITI Aayog aims to enable India to better face complex challenges, through the following:[7]

1. Leveraging of India's demographic dividend, and realisation of the potential of youth, men and women, through education, skill development, elimination of gender bias, and employment
2. Elimination of poverty, and the chance for every Indian to live a life of dignity and self-respect
3. Redressal of inequalities based on gender bias, caste and economic disparities
4. Integrate villages institutionally into the development process
5. Policy support to more than 50 million small businesses, which are a major source of employment creation
6. Safeguarding our environmental and ecological assets

FUNCTIONS

The various functions performed by the NITI Aayog can be divided into four main heads:

1. Design policy and programme framework.
2. Foster co-operative federalism.
3. Monitoring and evaluation.
4. Think-tank, and Knowledge and Innovation Hub.

The NITI Aayog is functionally divided into various Verticals which are responsible for examining and looking into sectoral issues and priorities for national development and economic growth.

By dividing the entire gamut of activities in the NITI Aayog, the Team India and Knowledge and Innovation Hubs were constituted, and accordingly Verticals and Core Divisions were created. The two hubs are at the core of NITI's efficient functioning. The Team India Hub carries out the mandate of fostering 'Cooperative Federalism' and 'Designing Policy and Programme Frameworks'. It provides requisite coordination and support framework to NITI Aayog in its engagement with the States. On the other hand, the Knowledge & Innovation Hub ensures fulfilling the mandate of maintaining a State-of-the-Art Resource Centre; to be a repository of research of good governance and best practices and their dissemination to stakeholders; and to provide advice and encourage partnerships across key areas.

The NITI Aayog uniquely focus thematic policy interventions which encourages convergence across central ministries, state governments, development partners, sector experts and professionals. This convergence approach to governance is applied to achieve the objectives of NITI Aayog.

The different Verticals of NITI Aayog provide the requisite co-ordination and support framework for NITI Aayog to carry out its mandate. The list of Verticals is as follows:

1. Agriculture
2. Data Management & Analysis
3. Energy
4. Financial Resources
5. Governance & Research
6. Governing Council Secretariat
7. Health

8. Human Resource Development
9. Industry
10. Infrastructure Connectivity
11. Land & Water Resources
12. Managing Urbanisation
13. Natural Resources & Environment
14. NGO Darpan
15. Project Appraisal & Management Division (PAMD)
16. Public-Private Partnerships
17. Rural Development
18. Science & Technology
19. Skill Development & Employment
20. Social Justice & Empowerment
21. State Coordination and Decentralized Planning
22. Sustainable Development Goals
23. Voluntary Action Cell
24. Women & Child Development

GUIDING PRINCIPLES

In carrying out the above functions, the NITI Aayog is guided by the following principles[8] :

1. *Antyodaya:* Prioritise service and uplift of the poor, marginalised and downtrodden, as enunciated in Pandit Deendayal Upadhyay's idea of 'Antyodaya'.
2. *Inclusion:* Empower vulnerable and marginalised sections, redressing identitybased inequalities of all kinds–gender, region, religion, caste or class.
3. *Village:* Integrate our villages into the development process, to draw on the vitality and energy of the bedrock of our ethos, culture and sustenance.
4. *Demographic dividend:* Harness our greatest asset, the people of India; by focussing on their development, through education and skilling, and their empowerment, through productive livelihood opportunities.
5. *People's Participation:* Transform the developmental process into a people-driven one, making an awakened and participative citizenry–the driver of good governance.
6. *Governance:* Nurture an open, transparent, accountable, pro-active and purposeful style of governance, transitioning focus from Outlay to Output to Outcome.
7. *Sustainability:* Maintain sustainability at the core of our planning and developmental process, building on our ancient tradition of respect for the environment.

Therefore, the NITI Aayog is based on the following seven pillars of effective governance:

(i) Pro-people agenda that fulfils the aspirations of the society as well as individuals.
(ii) Pro-active in anticipating and responding to citizen needs.
(iii) Participative, by involvement of citizens.
(iv) Empowering women in all aspects.
(v) Inclusion of all groups with special attention to the SCs, STs, OBCs and minorities.
(vi) Equality of opportunity for the youth.
(vii) Transparency through the use of technology to make government visible and responsive.

Through its commitment to a cooperative federalism, promotion of citizen engagement, egalitarian access to opportunity, participative and adaptive governance and increasing use of technology, the NITI Aayog seeks to provide a critical directional and strategic input into the development process. This, along with being the incubator of ideas for development, is the core mission of NITI Aayog.

COOPERATIVE FEDERALISM

The NITI Aayog has been constituted to actualize the important goal of cooperative federalism and to enable good governance in India, to build strong states that will make a strong nation. In a truly federal state, several objectives that ought to be achieved may carry political ramifications throughout the country. It is impossible for any federal government to achieve the national objectives without active cooperation from state governments. It is, therefore, crucial that the Centre and State governments work together as equals[8a].

The two key features or aspects of Cooperative Federalism are:

(i) Joint focus on the National Development Agenda by the Centr and the States; and

(ii) Advocacy of State perspectives with Central Ministries[8b].

In keeping with this, the NITI Aayog has been mandated the task of evolving a shared vision of national development priorities, sectors and strategies with the active involvement of States. These priorities ought to reflect the national objectives and foster cooperative federalism through structured support to States on a continuous basis. The NITI Aayog ought also to help states develop mechanisms to formulate credible plans at the village level and aggregate these progressively at higher levels of government. The aim is to progress from a stage when the Centre decided development policies to a truly federal government wherein States are equal stakeholders in the planning process[8c].

The policy of the Government to involve State governments is reflected in changes in the interaction processes of the NITI Aayog. Consistent with its mandate, the NITI Aayog has undertaken several crucial initiatives to ensure that States are equal partners in the policy making and implementing process[8d].

At the meetings of the Governing Council of NITI Aayog, the Prime Minister highlighted the importance of NITI Aayog as a platform to inspite cooperative federalism, stressing on the need for effective center-state cooperation to advance development outcomes and achieve double-digit and inclusive growth for India.

It is the constant endeavor of NITI Aayog to evolve a shared vision of national priorities, sectors, and strategies with the active involvement of States, wherein States are equal stakeholders in the

planning process as well. In keeping with this, the Vice-Chairman of NITI Aayog committed himself to visit all States, to develop and offer a platform for resolution of inter-sectoral and inter-departmental issues in order to accelerate the implementation of the development agenda.

The NITI Aayog has also established models and programmes for development of infrastructure and to reignite and establish Private-Public Partnership, such as the Centre-State partnership model: Development Support Services to States (DSSS); and the Sustainable Action For Transforming Human Capital (SATH) programme which is designed to help States improve their social sector indicators by providing them technical support.

Further, with the aim of correcting regional development imbalance, the NITI Aayog has taken special steps for regions needing special attention and support, like the North Eastern States, Island States and hilly Himayalan States by constituting special forums to identify their specific constraints, formulating special policies to ensure sustainable development takes place in these regions while also protecting their abundant natural resources.

From the above discussion, we can summarise the various manifestions of Cooperative Federalism in the working of the NITI Aayog:

1. Meetings of Governing Council
2. Sub-groups of Chief Ministers on different subjects
3. Task Forces on specific subjects
4. NITI Forum for North East
5. Sustainable Development in the Indian Himayalan Region
6. Development Support Services to States
7. Sustainable Action For Transforming Human Capital (SATH)

CRITICISM

Hitting out at the government for its decision to restructure the Planning Commission and rechristen it as “NITI Aayog”, the Opposition said the move is just a “fluff” and mere “gimmickry”. They also expressed their apprehension that the new body will pave the way for discrimination, as “corporates will call the shots” in policy-making in the country.

CPI(M) leader Sitaram Yechury termed the renaming of the Planning Commission as *aniti aur durniti* (no policy and bad policy).

Mr. Yechury said, “just a change of nomenclature and gimmickry does not serve any purpose. Let us see what the government plans to do with it”.

“If the government wants to greet people with fluff and not substance on the first day of 2015, then there is nothing more that can be said... If the North Block or the Finance Ministry has a very short-term view of both fiscal and monetary objective and is going to be the final arbiter between the states and the Centre... it being the stakeholder in the process... I am afraid, is going to discriminate against the states,” Congress leader Manish Tewari said.

“After all, what was the Planning Commission doing? It used to plan policy. So by changing the nomenclature from Planning Commission to NITI Aayog what is the message this government is trying to send,” Mr. Tewari said, adding that Congress’ opposition to restructuring of the Planning Commission was based on “principles”.

“It’s not a question of fighting a war, it’s a matter of principle. The Opposition Bharatiya Janata Party used to go extra lengths talking about federalism and how the sanctity and sacrosanct of federalism has to be maintained. And now they are going exactly the reverse,” the Congress leader said.

Veteran CPI leader Gurudas Dasgupta said that dismantling of the Planning Commission and bringing in a new body in its place will lead to an unregulated economy. “It is not a change of name. The Planning Commission is being abolished because they (government) don’t believe in planning,” he said.

“The government would like to have a fullmarket economy (which is) totally unregulated,” Mr. Dasgupta said adding. “If this becomes the policy of the government to not help advance the country, control

inflation and create job opportunities, it will not be good for the country".[9]

"Mere change of name from Yojana Aayog to NITI is not objectionable if it is coupled with real reform. Otherwise, it will be purely cosmetic like earlier naming ceremonies," Congress spokesperson Abhishek Manu Singhvi said. He said the Congress would have supported constructive reform of the Planning Commission. But the "alteration of identity and basic structure", he said, "is being done because of anti-Nehruvianism and anti-Congression."[10]

CPI(M) central committee member Md Selim, MP, said no meaningful purpose would be served by just renaming the Planning Commission. Alleging that the BJP government had decided to dissolve the planning commission "to dilute the planning process", he said the government should have given more teeth to the National Development Council instead.[11]

ATTACHED OFFICES

There are two offices attached to the NITI Aayog. They are explained below:

1. National Institute of Labour Economics Research and Development

The National Institute of Labour Economics Research and Development (NILERD) was formerly known as the Institute of Applied Manpower Research (IAMR). It is a central autonomous organization attached to the NITI Aayog. Its primary objectives are research, data collection, education and training in all aspects of human capital planning, human resource development, and monitoring and evaluation.

The IAMR was established in 1962 under the Societies Registration Act of 1860 as an institution that would function as a clearinghouse of ideas and undertake policy research on human capital development to inform perspective planning and promote policy integration. The main object of the Institute is to advance knowledge about the nature, characteristics and utilisation of human resources through research, education and training, consultancy, etc.

The IAMR has been renamed as NILERD in 2014. The NILERD is mainly funded by grants-in-aid from the NITI Aayog (formerly Planning Commission), and supplemented by its own revenue from contracted research projects, and education and training activities. The prime objective of NILERD has been to develop an institutional framework capable of sustaining and steering a systematic applied human resource planning research process.

Since its inception, the Institute has carved out its own trajectory to achieve academic heights, and in the process, developed a range of academic activities not only in the field of human resource planning and development, but also in monitoring and evaluation of public policies and programmes. During the past few years, the Institute has exhibited remarkable dynamism in addressing the issues of national priorities. The Institute has emerged as a pioneering institute in providing academic training on human resource planning and development for both international and national participants.

The Institute moved to its own campus at Narela in 2002. Narela is a developing urban and institutional hub declared as a special economic zone for knowledge in the National Capital Region.

2. Development Monitoring and Evaluation Office:

The need for an efficient and independent evaluation mechanism in India was recognized by the planners and policy-makers right from the introduction of planning process in the country and resultantly, the Programme Evaluation Organization was established by the Government in 1952 to carry out independent and objective impact evaluation of the Central Government funded programmes.

The Development Monitoring and Evaluation Office (DMEO) was established by the Government in 2015 as an attached office of the NITI Aayog by merging the erstwhile Programme Evaluation Organization and the Independent Evaluation Office. The DMEO is headed by the Director General who is equivalent to an Additional Secretary to the Government of India. To ensure that DMEO is able to function independently and effectively, it has been provided with separate budgetary allocations and manpower in addition to complete functional autonomy.

The DMEO has been mandated to actively monitor and evaluate the implementation of the programmes and initiatives of the Government of India, including the identification of the needed resources so as to strengthen the probability of the success and scope of delivery.

The functions of DMEO are:

1. Monitor the implementation of Government programmes
2. Help Ministries in designing TORs for evaluation studies
3. Monitor the implementation and progress of SDGs
4. Promote the spirit of Cooperative Federalism
5. Conduct evaluation of the Government programmes

At the NITI Aayog level, the programme evaluation work is being looked after under the overall guidance of the Vice-Chairman, NITI Aayog. In addition to the Director General, the DMEO has been provided with 4 Deputy Director Generals (SAG level) to look after the functional mandate in addition to the Joint Secretary (Adm. & Fin.) who is to provide administrative and logistics support. The Headquarter of DMEO is in NITI Aayog, New Delhi.

The DMEO had 15 Regional Offices known as Regional Development Monitoring and Evaluation Offices (RDMEOs). Each

RDMEO was headed by a Director level officer. The RDMEOs conducted field surveys and data/ information collection work for evaluation studies, and they also played an important role in promoting cooperative federalism by their interaction with the States and UT administrations. However, keeping in view the changed functional requirements, they were closed in 2017 and the staff were transferred to DMEO Hqrs in New Delhi.

ERSTWHILE PLANNING COMMISSION

The erstwhile Planning Commission was established in March 1950 by an executive resolution of the Government of India, (i.e., the Union Cabinet) on the recommendation of the Advisory Planning Board constituted in

1946, under the chairmanship of K.C. Neogi. Thus, the erstwhile Planning Commission was neither a constitutional body nor a statutory body. In India, it was the supreme organ of planning for social and economic development.

Functions

The functions of the erstwhile Planning Commission included the following:

1. To make an assessment of material, capital and human resources of the country, and investigate the possibilities of augmenting them.
2. To formulate a plan for the most effective and balanced utilisation of the country's resources.
3. To determine priorities and to define the stages in which the plan should be carried out.
4. To indicate the factors that retard economic development.
5. To determine the nature of the machinery required for successful implementation of the plan in each stage.
6. To appraise, from time to time, the progress achieved in execution of the plan and to recommend necessary adjustments.
7. To make appropriate recommendations for facilitating the discharge of its duties, or on a matter referred to it for advice by Central or state governments.

The Allocation of Business Rules had assigned the following matters (in addition to the above) to the erstwhile Planning Commission:

1. Public Co-operation in National Development
2. Specific programmes for area development notified from time to time
3. Perspective Planning
4. Institute of Applied Manpower Research
5. Unique Identification Authority of India (UIDAI)

6. All matters relating to National Rainfed Area Authority (NRAA)

Earlier, the National Informatics Centre was also under the erstwhile Planning Commission. Later, it was brought under the Ministry of Information Technology.

It should be noted that the erstwhile Planning Commission was only a staff agency–an advisory body and had no executive responsibility. It was not responsible for taking and implementing decisions. This responsibility rested with the Central and State Governments.

Composition

The following points can be noted in context of the composition (membership) of the erstwhile Planning Commission:

1. The Prime Minister of India was the chairman of the commission. He presided over the meetings of the commission.
2. The commission had a deputy chairman. He was the de facto executive head (i.e., full-time functional head) of the commission. He was responsible for the formulation and submission of the draft of Five-Year Plan to the Central cabinet. He was appointed by the Central cabinet for a fixed tenure and enjoyed the rank of a Cabinet Minister. Though he was not a member of cabinet, he was invited to attend all its meetings (without a right to vote).
3. Some Central Ministers were appointed as part-time members of the commission. In any case, the finance minister and planning minister were the exofficio (by virtue of) members of the commission.
4. The commission had four to seven fulltime expert members. They enjoyed the rank of a minister of state.
5. The commission had a member-secretary. He was usually a senior member of IAS. The state governments were not represented in the commission in any way. Thus, the erstwhile Planning Commission was wholly a Centre-constituted body.

Critical Evaluation

The erstwhile Planning Commission was originally established as a staff agency with advisory role but in the course of time it had emerged as a powerful and directive authority whereby its recommendations were considered both by the Union and states. The critics had described it as a ‘Super Cabinet’, an ‘Economic

Cabinet', a 'Parallel Cabinet', the 'Fifth Wheel of the Coach' and so on.

The following observations were made on the domineering role played by the erstwhile Planning Commission.

1. Administrative Reforms Commission (ARC) of India: The ARC observed: 'Under the Constitution, the ministers, whether in the Centre or the states, are in effect, the ultimate executive authorities. Unfortunately, the Planning Commission has, in some measures, earned the reputation of being a Parallel Cabinet and sometimes, a Super Cabinet'.[12]
2. K. Santhanam This eminent constitutional expert stated that, 'Planning has superseded the federation and our country is functioning like a unitary system in many respects.[13]
3. P.V. Rajamannar Rajamannar, the Chairman of the Fourth Finance Commission, highlighted the overlapping of functions and responsibilities between the erstwhile Planning Commission and Finance Commission in federal fiscal transfers.[14]

NATIONAL DEVELOPMENT COUNCIL

On the 1st of January, 2016, it was reported[15] that the Modi government is also going to abolish the National Development Council (NDC) and transfer its powers to the Governing Council of the NITI Aayog. However, till now (October 2019), such a resolution has not been passed.

It must also be noted here that the last meeting (57th) of the NDC was held on the 27th of December, 2012 to approve the 12th Plan (2012–2017).

The National Development Council (NDC) was established in August 1952 by an executive resolution of the Government of India on the recommendation of the First Five Year Plan (draft outline). Like the erstwhile Planning Commission, it is neither a constitutional body nor a statutory body.[16]

Composition

The NDC is composed of the following members.

1. The Prime Minister of India (as its chairman/head).
2. All Union Cabinet Ministers (since 1967).[17]
3. The Chief Ministers of all the states.
4. The Chief Ministers/administrators of all union territories.
5. Members of the Planning Commission (now NITI Aayog).

The secretary of the Planning Commission (now NITI Aayog) acts as the secretary to the NDC. It (NDC) is also provided with administrative and other assistance for its work by the Planning Commission (now NITI Aayog).

Objectives

The NDC was established with the following objectives.

1. To secure cooperation of states in the execution of the Plan.
2. To strengthen and mobilise the efforts and resources of the nation in support of the Plan.
3. To promote common economic policies in all vital spheres.
4. To ensure balanced and rapid development of all parts of the country.

Functions

To realise the above objectives, the NDC is assigned with the following functions:

1. To prescribe guidelines for preparation of the national Plan.
2. To consider the national Plan as prepared by the Planning Commission (now NITI Aayog).
3. To make an assessment of the resources required for implementing the Plan and to suggest measures for augmenting them.
4. To consider important questions of social and economic policy affecting national development.
5. To review the working of the national Plan from time to time.
6. To recommend measures for achievement of the aims and targets set out in the national Plan.

The Draft Five-Year Plan prepared by the Planning Commission (now NITI Aayog) is first submitted to the Union Cabinet. After its approval, it is placed before the NDC, for its acceptance. Then, the Plan is presented to the Parliament. With its approval, it emerges as the official Plan and published in the official gazette.

Therefore, the NDC is the highest body, below the Parliament, responsible for policy matters with regard to planning for social and economic development. However, it is listed as an advisory body to the Planning Commission (now NITI Aayog) and its recommendations are not binding. It makes its recommendations to the Central and state governments and should meet at least twice every year.

Critical Evaluation The first and foremost function of NDC is to act as a bridge and link between the Central Government, the State Governments and the Planning Commission (now NITI Aayog) especially in the field of planning, to bring about coordination of policies and programmes of plans. It has been, to a large extent successful in this regard. Besides, it has also served as a forum for Centre-State deliberations on matters of national importance, and also as a device for sharing responsibility between them in the federal political system.

However, two diametrically opposite views have been expressed on its working. On one hand, it has been described as a ‘Super Cabinet’ due to its wide and powerful composition, though its recommendations are only advisory and not binding, and can hardly be ignored as they are backed by a national mandate. On the other hand, it has been described as a mere ‘rubber stamp’ of the policy

decisions already taken by the Union government. This is mainly due to the Congress Party rule both at the Centre and states for a long period. However, due to the emergence of regional parties in various states, the NDC is steadily acquiring its federal character and thus providing a greater say to the states in the preparation of national plans.

NOTES AND REFERENCES

1. Resolution of the Cabinet Secretariat vide No. 511/2/1/2015-Cab., dated the 1st of January, 2015, published in the Gazette of India, Extraordinary, Part I, Section 1, dated the 7th of January, 2015.
2. Government of India document on NITI Aayog entitled as "*From Planning to NITI–Transforming India's Development Agenda*", dated February 8, 2015.
3. *Ibid*.
4. "We will use every provision in the Constitution to push reforms", OPEN Magazine, January 9, 2015.
5. See Reference 2 above.
6. Press Information Bureau release on NITI Aayog, dated January 1, 2015.
7. *Ibid*.
8. See Reference 2 above.

8a. Annual Report 2017–2018, NITI Aayog, Government of India, p.14.

8b. *Ibid*.

8c. *Ibid*.

8d. *Ibid*.

9. "Opposition attacks government over plan panel new avatar", *The Asian Age*, page No.2, dated January 2, 2015.
10. "Renaming of Plan Panel due to 'anti-Nehruvianism': Congress", *The Indian Express*, page No.9, dated January 2, 2015.
11. "Left parties slam Centre for renaming plan panel", *The Statesman*, dated January 2, 2015.
12. Interim Report on the Machinery for Planning, 1967, Para 15.

13. K. Santhanam, Union-State Relations in India, Asia Publishing House, 1960, p. 70.
14. Report of the Fourth Finance Commission, New Delhi, Government of India, 1965, pp. 88–90.
15. “NDC to be scrapped, NITI Aayog council likely to get its powers”, *The Hindu*, dated January 1, 2016.
16. The Sarkaria Commission on Centre-State Relations (1983–1987) recommended that the NDC should be given a constitutional status under Article 263 of the Constitution and should be renamed as National Economic and Development Council.
17. Before 1967, only selected cabinet ministers like Home, Finance, Defence, External Affairs, and so on were members of the NDC.

55 National Human Rights Commission

ESTABLISHMENT OF THE COMMISSION

The National Human Rights Commission is a statutory (and not a constitutional) body. It was established in 1993 under a legislation enacted by the Parliament, namely, the Protection of Human Rights Act, 1993[1] .

The commission is the watchdog of human rights in the country, that is, the rights relating to life, liberty, equality and dignity of the individual guaranteed by the Constitution or embodied in the international covenants[2] and enforceable by courts in India.

The specific objectives of the establishment of the commission are[3] :

(a) To strengthen the institutional arrangements through which human rights issues could be addressed in their entirety in a more focussed manner;

(b) To look into allegations of excesses, independently of the government, in a manner that would underline the government's commitment to protect human rights; and

(c) To complement and strengthen the efforts that have already been made in this direction.

COMPOSITION OF THE COMMISSION

The commission is a multi-member body consisting of a chairperson and five members. The chairperson should be a retired chief justice of India or a judge of the Supreme Court and members should be a serving or retired judge of the Supreme Court, a serving or retired chief justice of a high court and three persons (out of which atleast one should be a woman) having knowledge or practical experience with respect to human rights. In addition to these full-time members, the commission also has seven ex-officio members–the chairpersons of the National Commission for Minorities, the National Commission for SCs, the National Commission for STs, the National Commission for Women, the National Commission for BCs and the National Commission for Protection of Child Rights and the Chief Commissioner for Persons with Disabilities.

The chairperson and members are appointed by the president on the recommendations of a six-member committee consisting of the prime minister as its head, the Speaker of the Lok Sabha, the Deputy Chairman of the Rajya Sabha, leaders of the Opposition in both the Houses of Parliament and the Central home minister. Further, a sitting judge of the Supreme Court or a sitting chief justice of a high court can be appointed only after consultation with the chief justice of India.

The chairperson and members hold office for a term of three years or until they attain the age of 70 years, whichever is earlier. They are elligible for re-appointment. After their tenure, the chairperson and members are not eligible for further employment under the Central or a state government.

The president can remove the chairperson or any member from the office under the following circumstances:

(a) If he is adjudged an insolvent; or
(b) If he engages, during his term of office, in any paid employment outside the duties of his office; or
(c) If he is unfit to continue in office by reason of infirmity of mind or body; or

(d) If he is of unsound mind and stand so declared by a competent court; or
(e) If he is convicted and sentenced to imprisonment for an offence.

In addition to these, the president can also remove the chairperson or any member on the ground of proved misbehaviour or incapacity. However, in these cases, the president has to refer the matter to the Supreme Court for an inquiry. If the Supreme Court, after the inquiry, upholds the cause of removal and advises so, then the president can remove the chairperson or a member.

The salaries, allowances and other conditions of service of the chairperson or a member are determined by the Central government. But, they cannot be varied to his disadvantage after his appointment.

All the above provisions are aimed at securing autonomy, independence and impartiality in the functioning of the Commission.

FUNCTIONS OF THE COMMISSION

The functions of the Commission are:

(a) To inquire into any violation of human rights or negligence in the prevention of such violation by a public servant, either *suo motu* or on a petition presented to it or on an order of a court.

(b) To intervene in any proceeding involving allegation of violation of human rights pending before a court.

(c) To visit jails and detention places to study the living conditions of inmates and make recommendation thereon.

(d) To review the constitutional and other legal safeguards for the protection of human rights and recommend measures for their effective implementation.

(e) To review the factors including acts of terrorism that inhibit the enjoyment of human rights and recommend remedial measures.

(f) To study treaties and other international instruments on human rights and make recommendations for their effective implementation.

(g) To undertake and promote research in the field of human rights.

(h) To spread human rights literacy among the people and promote awareness of the safeguards available for the protection of these rights.

(i) To encourage the efforts of nongovernmental organisations (NGOs) working in the field of human rights.

(j) To undertake such other functions as it may consider necessary for the promotion of human rights.

WORKING OF THE COMMISSION

The commission's headquarters is at Delhi and it can also establish offices at other places in India. It is vested with the power to regulate its own procedure. It has all the powers of a civil court and its proceedings have a judicial character. It may call for information or report from the Central and state governments or any other authority subordinate thereto.

The commission has its own nucleus of investigating staff for investigation into complaints of human rights violations. Besides, it is empowered to utilise the services of any officer or investigation agency of the Central government or any state government for the purpose. It has also established effective cooperation with the NGOs with first-hand information about human rights violations.

The commission is not empowered to inquire into any matter after the expiry of one year from the date on which the act constituting violation of human rights is alleged to have been committed. In other words, it can look into a matter within one year of its occurrence[4] .

The commission may take any of the following steps during or upon the completion of an inquiry:

(a) it may recommend to the concerned government or authority to make payment of compensation or damages to the victim;
(b) it may recommend to the concerned government or authority the initiation of proceedings for prosecution or any other action against the guilty public servant;
(c) it may recommend to the concerned government or authority for the grant of immediate interim relief to the victim;
(d) it may approach the Supreme Court or the high court concerned for the necessary directions, orders or writs.

ROLE OF THE COMMISSION

From the above, it is clear that the functions of the commission are mainly recommendatory in nature. It has no power to punish the violators of human rights, nor to award any relief including monetary relief to the victim. Notably, its recommendations are not binding on the concerned government or authority. But, it should be informed about the action taken on its recommendations within one month. In this context, a former member of the Commission observed[5] : 'The government cannot wash away the recommendations made by the Commission. The commission's role may be recommendatory, advisory, yet the Government considers the cases forwarded by it. It is, therefore, improper to say that the commission is powerless. It enjoys great material authority and no government can ignore its recommendation'.

Moreover, the commission has limited role, powers and jurisdiction with respect to the violation of human rights by the members of the armed forces[6]. In this sphere, the commission may seek a report from the Central government and make its recommendations. The Central government should inform the Commission of the action taken on the recommendations within three months.

The commission submits its annual or special reports to the Central government and to the state government concerned. These reports are laid before the respective legislatures, along with a memorandum of action taken on the recommendations of the commission and the reasons for non-acceptance of any of such recommendations.

PERFORMANCE OF THE COMMISSION

The various human rights issues taken up by the Commission are as follows:

1. Abolition of Bonded Labour
2. Functioning of the Mental Hospitals at Ranchi, Agra and Gwalior
3. Functioning of the Government Protective Home (Women), Agra
4. Issues Concerning Right to Food
5. Review of the Child Marriage Restraint Act, 1929
6. Protocols to the Convention on the Rights of the Child
7. Preventing Employment of Children by Government Servants: Amendment of Service Rules
8. Abolition of Child Labour
9. Guidebook for the Media on Sexual Violence against Children
10. Trafficking in Women and Children: Manual for the Judiciary for Gender Sensitisation
11. Sensitisation Programme on Prevention of Sex Tourism and Trafficking
12. Maternal Anemia and Human Rights
13. Rehabilitation of Destitute Women in Vrindavan
14. Combating Sexual Harassment of Women at the Work Place
15. Harassment of Women Passengers in Trains
16. Abolition of Manual Scavenging
17. Dalits Issues including Atrocities Perpetrated on them
18. Problems Faced by Denotified and Nomadic Tribes
19. Rights of the Disabled Persons
20. Issues Related to Right to Health
21. Rights of Persons Affected by HIV / AIDS
22. Relief Work for the Victims of 1999 Orissa Cyclone
23. Monitoring of Relief Measures undertaken after Gujarat Earthquake (2001)
24. District Complaints Authority
25. Population Policy - Development and Human Rights

26. Review of Statutes, including Terrorist & Disruptive Activities Act, and (Draft) Prevention of Terrorism Bill, 2000
27. Protection of Human Rights in Areas of Insurgency and Terrorism
28. Guidelines to Check Misuse of the Power of Arrest by the Police
29. Setting up of Human Rights Cells in the State / City Police Headquarters
30. Steps to Check Custodial Deaths, Rape and Torture
31. Accession to the Convention against Torture, Additional Protocols to the Geneva Conventions.
32. Discussion on Adoption of a Refugee Law for the Country
33. Systemic Reforms of Police, Prisons and other Centers of Detention
34. Review of Laws, Implementation of Treaties, and the International Instruments on Human Rights
35. Promotion of Human Rights Literacy and Awareness in the Educational System
36. Human Rights Training for the Armed Forces and Police, Public Authorities and Civil Society
37. Action Research on Trafficking.
38. Research through well-known academic institutions and NGOs on various issues relating to human rights.
39. Constitution with NGOs and experts / specialists on human rights issues.

NOTES AND REFERENCES

1. The president promulgated the Protection of Human Rights Ordinance on September 28, 1993. Subsequently, the Protection of Human Rights Bill, 1993, was passed by both the Houses of Parliament and received the assent of the President on January 8, 1994. The act came into force with retrospective effect from September 28, 1993.
2. 'International covenants' means the International Covenant on Civil and Political Rights and the International Covenant on Economic, Social and

Cultural Rights adopted by the General Assembly of the United Nations on December 16, 1966 and such other Covenant or Convention adopted by the General Assembly of the UN as the Central Government may specify. The Indian government acceded to these two International Covenants on April 10 1979.

3. T.K. Thommen, 'Human Rights Commission', Cochin University Law Review, Vol. XVII, nos. 1 and 2, March-June 1993, p. 67–68.
4. A.M. Ahmadi Committee set up by the Commission recommended that the Commission should be empowered to inquire into any matter after the expiry of one year, if there is sufficient reason for not filing the complaint within the said period.
5. Justice V.S. Malimath, 'Role of Human Rights Commission', Human Rights in India: Problems and Perspectives, B.P. Singh Sehgal (ed.), Deep Publications, 1995, p. 17–20.
6. Under the Act, 'armed forces' means the naval, military and air forces and includes any other armed forces of the Union. A.M. Ahmadi Committee set up by the commission recommended that the definition of the 'armed forces' should be changed in a way that it includes only navy, army and air force, not para-military forces.

56 State Human Rights Commission

The Protection of Human Rights Act of 1993 provides for the creation of not only the National Human Rights Commission but also a State Human Rights Commission at the state level[1]. Accordingly, twenty six states have constituted the State Human Rights Commissions through Official Gazette Notifications[2] .

A State Human Rights Commission can inquire into violation of human rights only in respect of subjects mentioned in the State List (List-II) and the Concurrent List (List-III) of the Seventh Schedule of the Constitution. However, if any such case is already being inquired into by the National Human Rights Commission or any other Statutory Commission, then the State Human Rights Commission does not inquire into that case.

The central government may confer upon the State Human Rights Commissions the functions relating to human rights being discharged by the union territories, except the union territory of Delhi. The functions relating to human rights in case of union territory of Delhi are to be dealt with by the National Human Rights Commission.

COMPOSITION OF THE COMMISSION

The State Human Rights Commission is a multi-member body consisting of a chairperson and two members[3]. The chairperson should be a retired Chief Justice or a Judge of a High Court and members should be a serving or retired judge of a High Court or a District Judge in the state with a minimum of seven years experience as District Judge and a person having knowledge or practical experience with respect to human rights.

The chairperson and members are appointed by the Governor on the recommendations of a committee consisting of the chief minister as its head, the speaker of the Legislative Assembly, the state home minister and the leader of the opposition in the Legislative Assembly. In the case of a state having Legislative Council, the chairman of the Council and the leader of the opposition in the Council would also be the members of the committee. Further, a sitting judge of a High Court or a sitting District Judge can be appointed only after consultation with the Chief Justice of the High Court of the concerned state.

The chairperson and members hold office for a term of three years or until they attain the age of 70 years, whichever is earlier. They are elligible for re-appointment. After their tenure, the chairperson and members are not eligible for further employment under a state government or the Central government.

Although the chairperson and members of a State Human Rights Commission are appointed by the governor, they can be removed only by the President (and not by the governor). The President can remove them on the same grounds and in the same manner as he can remove the chairperson or a member of the National Human Rights Commission. Thus, he can remove the chairperson or a member under the following circumstances:

(a) If he is adjudged an insolvent; or
(b) If he engages, during his term of office, in any paid employment outside the duties of his office; or
(c) If he is unfit to continue in office by reason of infirmity of mind or body; or

(d) If he is of unsound mind and stands so declared by a competent court; or
(e) If he is convicted and sentenced to imprisonment for an offence.

In addition to these, the president can also remove the chairperson or a member on the ground of proved misbehaviour or incapacity. However, in these cases, the President has to refer the matter to the Supreme Court for an inquiry. If the Supreme Court, after the inquiry, upholds the cause of removal and advises so, then the President can remove the chairperson or a member.

The salaries, allowances and other conditions of service of the chairperson or a member are determined by the state government. But, they cannot be varied to his disadvantage after his appointment.

All the above provisions are aimed at securing autonomy, independence and impartiality in the functioning of the Commission.

FUNCTIONS OF THE COMMISSION

The functions of the Commission are:

(a) To inquire into any violation of human rights or negligence in the prevention of such violation by a public servant, either *suo motu* or on a petition presented to it or on an order of a court.

(b) To intervene in any proceeding involving allegation of violation of human rights pending before a court.

(c) To visit jails and detention places to study the living conditions of inmates and make recommendation thereon.

(d) To review the constitutional and other legal safeguards for the protection of human rights and recommend measures for their effective implementation.

(e) To review the factors including acts of terrorism that inhibit the enjoyment of human rights and recommend remedial measures.

(f) To undertake and promote research in the field of human rights.

(g) To spread human rights literacy among the people and promote awareness of the safeguards available for the protection of these rights.

(h) To encourage the efforts of non-governmental organizations (NGOs) working in the field of human rights.

(i) To undertake such other functions as it may consider necessary for the promotion of human rights.

WORKING OF THE COMMISSION

The Commission is vested with the power to regulate its own procedure. It has all the powers of a civil court and its proceedings have a judicial character. It may call for information or report from the state government or any other authority subordinate thereto.

The Commission is not empowered to inquire into any matter after the expiry of one year from the date on which the act constituting violation of human rights is alleged to have been committed. In other words, it can look into a matter within one year of its occurrence.

The Commission may take any of the following steps during or upon the completion of an inquiry:

(a) it may recommend to the state government or authority to make payment of compensation or damages to the victim;
(b) it may recommend to the state government or authority the initiation of proceedings for prosecution or any other action against the guilty public servant;
(c) it may recommend to the state government or authority for the grant of immediate interim relief to the victim;
(d) it may approach the Supreme Court or the state high court for the necessary directions, orders or writs.

From the above, it is clear that the functions of the commission are mainly recommendatory in nature. It has no power to punish the violators of human rights, nor to award any relief including monetary relief to the victim. Notably, its recommendations are not binding on the state government or authority. But, it should be informed about the action taken on its recommendations within one month.

The Commission submits its annual or special reports to the state government. These reports are laid before the state legislature, along with a memorandum of action taken on the recommendations of the Commission and the reasons for non-acceptance of any of such recommendations[4] .

HUMAN RIGHTS COURTS

The Protection of Human Rights Act (1993) also provides for the establishment of Human Rights Court in every district for the speedy trial of violation of human rights.

These courts can be set up by the state government only with the concurrence of the Chief Justice of the High Court of that state.

For every Human Rights Court, the state government specifies a public prosecutor or appoints an advocate (who has practiced for seven years) as a special public prosecutor.

2019 AMENDMENT ACT

The various provisions or features of the Protection of Human Rights (Amendment) Act, 2019, are as follows:

1. It provided that a person who has been a judge of the Supreme Court is also made eligible to be appointed as Chairperson of the National Human Rights Commission (in addition to the person who has been the Chief Justice of India).
2. It increased the number of members of the National Human Rights Commission (who are to be appointed from amongst persons having knowledge or practical experience with respect to human rights) from two to three out of which at least one has to be a woman.
3. It made the chairpersons of the National Commission for BCs and the National Commission for Protection of Child Rights as well as the Chief Commissioner for Persons with Disabilities as the exofficio members of the National Human Rights Commission.
4. It reduced the term of the chairperson of members of the National Human Rights Commission as well as the State Human Rights Commission from five to three years. It also made them eligible for re-appointment.
5. It provided that a person who has been a judge of a High Court is also made eligible to be appointed as Chairperson of the State Human Rights Commission (in addition to the person who has been the Chief Justice of a High Court).
6. It provided that the central government may confer upon the State Human Rights Commissions the functions relating to human rights being discharged by the union territories, except the union territory of Delhi. The functions relating to human rights in case of union territory of Delhi are to be dealt with by the National Human Rights Commission.
7. It provided that the Secretary-General of the National Human Rights Commission shall exercise all administrative and financial powers (except judicial functions and the power to make regulations), subject to control of the chairperson.

8. It provided that the Secretary of the State Human Rights Commission shall exercise all administrative and financial powers of the Commission, subject to control of the chairperson.

NOTES AND REFERENCES

1. The Headquarters of the State Human Rights Commission shall be at such place as the state government may, by notification, specify.
2. These are (in 2019): Assam, Andhra Pradesh, Telangana (combined Commission for Andhra Pradesh and Telangana), Bihar, Chhattisgarh, Gujarat, Goa, Himachal Pradesh, Jammu and Kashmir, Kerala, Karnataka, Madhya Pradesh, Maharashtra, Manipur, Odisha, Punjab, Rajasthan, Tamil Nadu, Uttar Pradesh, West Bengal, Jharkhand, Sikkim, Uttarakhand, Haryana, Tripura and Meghalaya.
3. The 2006 Amendment reduced the number of members of State Human Rights Commission from five to three and also changed the eligibility condition for appointment of member of the Commission.
4. Before each House of State Legislature where it consists of two Houses, or where such Lagislature consist of one House, before that House.

57 Central Information Commission

The Central Information Commission was established by the Central Government in 2005. It was constituted through an Official Gazette Notification under the provisions of the Right to Information Act (2005). Hence, it is not a constitutional body. The Central Information Commission is a high-powered independent body which inter alia looks into the complaints made to it and decide the appeals. It entertains complaints and appeals pertaining to offices, financial institutions, public sector undertakings, etc., under the Central Government and the Union Territories.

COMPOSITION

The Commission consists of a Chief Information Commissioner and not more than ten Information Commissioners. The Commission, when constituted initially, had five commissioners including the Chief Information Commissioner. At present (2019), the Commission has six Information Commissioners apart from the Chief Information Commissioner[1]. They are appointed by the President on the recommendation of a committee consisting of the Prime Minister as Chairperson, the Leader of Opposition in the Lok Sabha and a Union Cabinet Minister nominated by the Prime Minister[2]. They should be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance. They should not be a Member of Parliament or Member of the Legislature of any State or Union Territory. They should not hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession.

TENURE AND SERVICE CONDITIONS

The Chief Information Commissioner and an Information Commissioner shall hold office for such term as prescribed by the Central Government or until they attain the age of 65 years, whichever is earlier. They are not eligible for reappointment[3] .

The President can remove the Chief Information Commissioner or any Information Commissioner from the office under the following circumstances:

(a) if he is adjudged an insolvent; or
(b) if he has been convicted of an offence which (in the opinion of the President) involves a moral turpitude; or
(c) if he engages during his term of office in any paid employment outside the duties of his office; or
(d) if he is (in the opinion of the President) unfit to continue in office due to infirmity of mind or body; or
(e) if he has acquired such financial or other interest as is likely to affect prejudicially his official functions.

In addition to these, the President can also remove the Chief Information Commissioner or any Information Commissioner on the ground of proved misbehaviour or incapac-ity[4]. However, in these cases, the President has to refer the matter to the Supreme Court for an enquiry. If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, then the President can remove him.

The salary, allowances and other service conditions of the Chief Information Commissioner and an Information Commissioner shall be such as prescribed by the Central Government. But, they cannot be varied to his disadvantage during service.

POWERS AND FUNCTIONS

The powers and functions of the Central Information Commission are:

1. It is the duty of the Commission to receive and inquire into a complaint from any person:
   (a) who has not been able to submit an information request because of non-appointment of a Public Information Officer;
   (b) who has been refused information that was requested;
   (c) who has not received response to his information request within the specified time limits;
   (d) who thinks the fees charged are unreasonable;
   (e) who thinks information given is incomplete, misleading or false; and
   (f) any other matter relating to obtaining information.
2. The Commission can order inquiry into any matter if there are reasonable grounds (suo-moto power).
3. While inquiring, the Commission has the powers of a civil court in respect of the following matters:
   (a) summoning and enforcing attendance of persons and compelling them to give oral or written evidence on oath and to produce documents or things;
   (b) requiring the discovery and inspection of documents;
   (c) receiving evidence on affidavit;
   (d) requisitioning any public record from any court or office;
   (e) issuing summons for examination of witnesses or documents; and
   (f) any other matter which may be prescribed.
4. During the inquiry of a complaint, the Commission may examine any record which is under the control of the public authority and no such record may be withheld from it on any grounds. In other words, all public records must be given to the Commission during inquiry for examination.
5. The Commission has the power to secure compliance of its decisions from the public authority. This includes:
   (a) providing access to information in a particular form;

(b) directing the public authority to appoint a Public Information Officer where none exists;
(c) publishing information or categories of information;
(d) making necessary changes to the practices relating to management, maintenance and destruction of records;
(e) enhancing training provision for officials on the right to information;

(f) seeking an annual report from the public authority on compliance with this Act;

(g) requiring the public authority to compensate for any loss or other detriment suffered by the applicant;
(h) imposing penalties under this Act[5] ; and
(i) rejecting the application.

6. The Commission submits an annual report to the Central Government on the implementation of the provisions of this Act. The Central Government places this report before each House of Parliament.
7. When a public authority does not conform to the provisions of this Act, the Commission may recommend (to the authority) steps which ought to be taken for promoting such conformity.

Table 57.1 *National Commissions / Central Bodies and the Related Ministries*

Sl. No.	Commission / Body	Falls Under
1.	Central Information Commission	Ministry of Personnel
2.	Finance Commission	Ministry of Finance
3.	Union Public Service Commission	Ministry of Personnel
4.	Inter-State Council	Ministry of Home Affairs
5.	Staff Selection Commission	Ministry of Personnel
6.	National Commission for SCs	Ministry of Social Justice & Empowerment

7.	National Commission for STs	Ministry of Tribal Affairs
8.	Central Vigilance Commission	Ministry of Personnel
9.	Zonal Councils	Ministry of Home Affairs
10.	Central Bureau of Investigation	Ministry of Personnel
11.	National Investigation Agency	Ministry of Home Affairs
12.	Commissioner for Linguistic Minorities	Ministry of Minority Affairs
13.	National Commission for Protection of Child Rights	Ministry of Women and Child Development
14.	National Commission for Backward Classes	Ministry of Social Justice & Empowerment
15.	Central Commissioner for Disabled Persons	Ministry of Social Justice & Empowerment
16.	Central Social Welfare Board	Ministry of Women and Child Development
17.	North Eastern Council	Ministry of Development of the North Eastern Region
18.	Central Administrative Tribunal	Ministry of Personnel
19.	National Commission for Minorities	Ministry of Minority Affairs
20.	National Human Rights Commission	Ministry of Home Affairs
21.	National Commission for Women	Ministry of Women and Child Development
22.	Good and Services Tax Council	Ministry of Finance
23.	Lokpal	Ministry of Personnel
24.	National Investigation	Ministry of Home Affairs

	Agency	
25.	National Disaster Management Authority	Ministry of Home Affairs
26.	Attorney General of India	Ministry of Law and Justice
27.	Solicitor General of India	Ministry of Law and Justice
28.	Law Commission of India	Ministry of Law and Justice
29.	Election Commission of India	Ministry of Law and Justice
30.	Delimitation Commission of India	Ministry of Law and Justice

NOTES AND REFERENCES

1. Annual Report 2018–2019, Ministry of Personnel, Government of India, p. 144.
2. Where the Leader of Opposition in the Lok Sabha has not been recognized as such, the Leader of the single largest group in opposition of the Government in the Lok Sabha shall be deemed to be the Leader of the Opposition.
3. The Information Commissioner is eligible for appointment as Chief Information Commissioner but cannot hold office for more than a total of five years including his term as Information Commissioner.
4. He is deemed to be guilty of misbehaviour, if he is concerned or interested in any contract or agreement made by the Central Government or participates in any way in the profit of such contract or agreement or in any benefit or emolument arising there from otherwise than as a member and in common with the other members of an incorporated company.
5. The Commission can impose a penalty on the Public Information Officer at the rate of ₹250 per day upto a maximum of ₹25,000. It can also recommend for disciplinary action against the errant official.

58 State Information Commission

The Right to Information Act of 2005 provides for the creation of not only the Central Information Commission but also a State Information Commission at the state level. Accordingly, all the states have constituted the State Information Commissions through Official Gazette Notifications.

The State Information Commission is a high-powered independent body which interalia looks into the complaints made to it and decide the appeals. It entertains complaints and appeals pertaining to offices, financial institutions, public sector undertakings, etc., under the concerned state government.

COMPOSITION

The Commission consists of a State Chief Information Commissioner and not more than ten State Information Commissioners[1]. They are appointed by the Governor on the recommendation of a committee consisting of the Chief Minister as Chairperson, the Leader of Opposition in the Legislative Assembly and a State Cabinet Minister nominated by the Chief Minister[2]. They should be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance. They should not be a Member of Parliament or Member of the Legislature of any State or Union Territory. They should not hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession.

TENURE AND SERVICE CONDITIONS

The State Chief Information Commissioner and a State Information Commissioner shall hold office for such term as prescribed by the Central Government or until they attain the age of 65 years, whichever is earlier. They are not eligible for reappointment[3] .

The Governor can remove the State Chief Information Commissioner or any State Information Commissioner from the office under the following circumstances:

(a) if he is adjudged an insolvent; or
(b) if he has been convicted of an offence which (in the opinion of the Governor) involves a moral turpitude; or
(c) if he engages during his term of office in any paid employment outside the duties of his office; or
(d) if he is (in the opinion of the Governor) unfit to continue in office due to infirmity of mind or body; or
(e) if he has acquired such financial or other interest as is likely to affect prejudicially his official functions.

In addition to these, the Governor can also remove the State Chief Information Commissioner or any State Information Commissioner on the ground of proved misbehaviour or incapacity[4]. However, in these cases, the Governor has to refer the matter to the Supreme Court for an enquiry. If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, then the Governor can remove him.

The salary, allowances and other service conditions of the State Chief Information

Commissioner and a State Information Commissioner shall be such as prescribed by the Central Government. But, they cannot be varied to his disadvantage during service.

POWERS AND FUNCTIONS

The powers and functions of the State Information Commission are:

1. It is the duty of the Commission to receive and inquire into a complaint from any person:
   (a) who has not been able to submit an information request because of non-appointment of a Public Information Officer;
   (b) who has been refused information that was requested;
   (c) who has not received response to his information request within the specified time limits;
   (d) who thinks the fees charged are unreasonable;
   (e) who thinks information given is incomplete, misleading or false; and
   (f) any other matter relating to obtaining information.
2. The Commission can order inquiry into any matter if there are reasonable grounds (suo-moto power).
3. While inquiring, the Commission has the powers of a civil court in respect of the following matters:
   (a) summoning and enforcing attendance of persons and compelling them to give oral or written evidence on oath and to produce documents or things;
   (b) requiring the discovery and inspection of documents;
   (c) receiving evidence on affidavit;
   (d) requisitioning any public record from any court or office;
   (e) issuing summons for examination of witnesses or documents; and
   (f) any other matter which may be prescribed.
4. During the inquiry of a complaint, the Commission may examine any record which is under the control of the public authority and no such record may be withheld from it on any grounds. In other words, all public records must be given to the Commission during inquiry for examination.
5. The Commission has the power to secure compliance of its decisions from the public authority. This includes:
   (a) providing access to information in a particular form;

(b) directing the public authority to appoint a Public Information Officer where none exists;
(c) publishing information or categories of information;
(d) making necessary changes to the practices relating to management, maintenance and destruction of records;
(e) enhancing training provision for officials on the right to information;
(f) seeking an annual report from the public authority on compliance with this Act;
(g) requiring the public authority to compensate for any loss or other detriment suffered by the applicant;
(h) imposing penalties under this Act[5] ; and
(i) rejecting the application.

6. The Commission submits an annual report to the State Government on the implementation of the provisions of this Act. The State Government places this report before the State Legislature.
7. When a public authority does not conform to the provisions of this Act, the Commission may recommend (to the authority) steps which ought to be taken for promoting such conformity.

RTI AMENDMENT ACT, 2019

The various features or provisions of the Right to Information (Amendment) Act, 2019 are as follows:

1. It provided that the Chief Information Commissioner and an Information Commissioner shall hold office for such term as prescribed by the Central Government. Before this amendment, their term was fixed for 5 years.
2. It provided that the salary, allowances and other service conditions of the Chief Information Commissioner and an Information Commissioner shall be such as prescribed by the Central Government. Before this amendment, the salary, allowances and other service conditions of the Chief Information Commissioner were similar to those of the Chief Election Commissioner and that of an Information Commissioner were similar to those of an Election Commissioner.
3. It provided that the State Chief Information Commissioner and a State Information Commissioner shall hold office for such term as prescribed by the Central government. Before this amendment, their term was fixed for 5 years.
4. It provided that the salary, allowances and other service conditions of the State Chief Information Commissioner and a State Information Commissioner shall be such as prescribed by the Central Government. Before this amendment, the salary, allowances and other service conditions of the State Chief Information Commissioner were similar to those of an Election Commissioner and that of a State Information Commissioner were similar to those of the Chief Secretary of the state government.
5. It removed the provisions regarding deductions in salary of the Chief Information Commissioner, an Information Commissioner, the State Chief Information Commissioner and a State Information Commissioner due to pension or any other retirement benefits received by them for their previous government service.

NOTES AND REFERENCES

1. The number of State Information Commissioners varies from one state to another state.
2. Where the Leader of Opposition in the Legislative Assembly has not been recognized as such, the Leader of the single largest group in opposition of the Government in the Legislative Assembly shall be deemed to be the Leader of the Opposition.
3. The State Information Commissioner is eligible for appointment as State Chief Information Commissioner but cannot hold office for more than a total of five years including his term as State Information Commissioner.
4. He is deemed to be guilty of misbehaviour, if he is concerned or interested in any contract or agreement made by the State Government or participates in any way in the profit of such contract or agreement or in any benefit or emolument arising there from otherwise than as a member and in common with the other members of an incorporated company.
5. The Commission can impose a penalty on the Public Information Officer at the rate of ₹250 per day up to a maximum of ₹25,000. It can also recommend for disciplinary action against the errant official.

59 Central Vigilance Commission

ESTABLISHMENT

The Central Vigilance Commission (CVC) is the main agency for preventing corruption in the Central government. It was established in 1964 by an executive resolution of the Central government. Its establishment was recommended by the Santhanam Committee on Prevention of Corruption[1] (1962–64).

Thus, originally the CVC was neither a constitutional body nor a statutory body. Later, in 2003, the Parliament enacted a law conferring statutory status on the CVC[2] .

In 2004, the CVC has been designated as the agency to receive and act on complaints or disclosure on any allegation of corruption or misuse of office from whistle blowers under the "Public Interest Disclosure and Protection of Informers' Resolution" (PIDPI), which is popularly known as "Whistle Blowers" Resolution. The Commission is also empowered as the only designated agency to take action against complainants making motivated or vexatious complaints.[2a]

The CVC is conceived to be the apex vigilance institution, free of control from any executive authority, monitoring all vigilance activity under the Central Government and advising various authorities in Central Government organisations in planning, executing, reviewing and reforming their vigilance work.

COMPOSITION

The CVC is a multi-member body consisting of a Central Vigilance Commissioner (chairperson) and not more than two vigilance commissioners. They are appointed by the president by warrant under his hand and seal on the recommendation of a three-member committee consisting of the prime minister as its head, the Union minister of home affairs and the Leader of the Opposition in the Lok Sabha. They hold office for a term of four years or until they attain the age of sixty five years, whichever is earlier. After their tenure, they are not eligible for further employment under the Central or a state government.

The president can remove the Central Vigilance Commissioner or any vigilance commissioner from the office under the following circumstances:

(a) If he is adjudged an insolvent; or
(b) If he has been convicted of an offence which (in the opinion of the Central government) involves a moral turpitude; or
(c) If he engages, during his term of office, in any paid employment outside the duties of his office; or
(d) If he is (in the opinion of the president), unfit to continue in office by reason of infirmity of mind or body; or
(e) If he has acquired such financial or other interest as is likely to affect prejudicially his official functions.

In addition to these, the president can also remove the Central Vigilance Commissioner or any vigilance commissioner on the ground of proved misbehaviour or incapacity. However, in these cases, the president has to refer the matter to the Supreme Court for an enquiry. If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, then the president can remove him. He is deemed to be guilty of misbehaviour, if he (a) is concerned or interested in any contract or agreement made by the Central government, or (b) participates in any way in the profit of such contract or agreement or in any benefit or emolument arising therefrom otherwise than as a member and in common with the other members of an incorporated company.

The salary, allowances and other conditions of service of the Central Vigilance Commissioner are similar to those of the Chairman of UPSC and that of the vigilance commissioner are similar to those of a member of UPSC. But they cannot be varied to his disadvantage after his appointment.

ORGANISATION

The CVC has its own Secretariat, Chief Technical Examiners' Wing (CTE) and a wing of Commissioners for Departmental Inquiries (CDIs).

Secretariat: The Secretariat consists of a Secretary, Joint Secretaries, Deputy Secretaries, Under Secretaries and office staff.

Chief Technical Examiners' Wing: The Chief Technical Examiners' Organisation constitutes the technical wing of the CVC. It consists of Chief Engineers (designated as Chief Technical Examiners) and supporting engineering staff. The main functions assigned to this organisation are as follows:

(i) Technical audit of construction works of Government organisations from a vigilance angle
(ii) Investigation of specific cases of complaints relating to construction works
(iii) Extension of assistance to CBI in their investigations involving technical matters and for evaluation of properties in Delhi
(iv) Tendering of advice / assistance to the CVC and Chief Vigilance Officers in vigilance cases involving technical matters

Commissioners for Departmental Inquiries: The CDIs function as Inquiry Officers to conduct oral inquiries in departmental proceedings initiated against public servants.

FUNCTIONS

The functions of the CVC are:

1. To inquire or cause an inquiry or investigation to be conducted on a reference made by the Central government wherein it is alleged that a public servant being an employee of the Central government or its authorities[3] , has committed an offence under the Prevention of Corruption Act, 1988.
2. To inquire or cause an inquiry or investigation to be conducted into any complaint against any official belonging to the below mentioned category of officials wherein it is alleged that he has committed an offence under the Prevention of Corruption Act, 1988:
   (a) Members of all-India services[4] serving in the Union and Group 'A' officers of the Central government; and
   (b) Specified level of officers of the authorities of the Central government.
3. To exercise superintendence over the functioning of the Delhi Special Police Establishment (CBI) insofar as it relates to the investigation of offences under the Prevention of Corruption Act, 1988.
4. To give directions to the Delhi Special Police Establishment (CBI) for superintendence insofar as it relates to the investigation of offences under the Prevention of Corruption Act, 1988.
5. To review the progress of investigations conducted by the Delhi Special Police Establishment into offences alleged to have been committed under the prevention of Corruption Act, 1988.
6. To review the progress of applications pending with the competent authorities for sanction of prosecution under the Prevention of Corruption Act, 1988.
7. To tender advise to the Central government and its authorities on such matters as are referred to it by them.
8. To exercise superintendence over the vigilance administration in the ministries of the Central government or its authorities.

9. To undertake or cause an inquiry into complaints received under the Public Interest Disclosure and Protection of Informers' Resolution and recommend appropriate action.
10. The Central Government is required to consult the CVC in making rules and regulations governing the vigilance and disciplinary matters relating to the members of Central Services and AllIndia Services.
11. The Central Vigilance Commissioner (CVC) is the Chairperson and the two Vigilance Commissioners along with Secretaries of M/o Home Affairs, D/o Personnel and Training and the D/o Revenue in M/o Finance are the Members of the Selection Committees, on whose recommendation the Central Government appoints the Director of Enforcement. Further, this Committee, in consultation with the Director of Enforcement, recommends officers for appointments to the posts above the level of Deputy Director of Enforcement.
12. The Central Vigilance Commission has been notified as a specific authority to receive information relating to suspicious transactions under the Prevention of Money Laundering Act, 2002.

The Lokpal and Lokayuktas Act (2013) amended both the CVC Act (2003) and the Delhi Special Police Establishment Act (1946) and made the following changes with respect to the functions of the CVC.[4a]

13. The Director of Prosecution under the Directorate of Prosecution in CBI shall be appointed by the Central Government on the recommendation of the Central Vigilance Commission.
14. The Central Vigilance Commissioner (CVC) is the Chairperson and the two Vigilance Commissioners alongwith Secretaries of M/o Home Affairs and D/o Personnel and Training are the Members of the Selection Committees, on whose recommendation the Central Government appoints officers to the posts of the level of SP and above in the CBI except Director of CBI.
15. The Commission has been empowered to conduct preliminary inquiry into complaints referred by Lokpal in

respect of officers and officials of Groups A, B, C & D, for which a Directorate of Inquiry for making preliminary inquiry is to be set up in the Commission. The preliminary inquiry reports in such matters referred by Lokpal in respect of Group A and B officers are required to be sent to the Lokpal by the Commission. Further, as per mandate, the Commission is to cause further investigation into such Lokpal references in respect of Group C and D officials and decide on further course of action against them.

JURISDICTION

The jurisdiction of the CVC extends to the following:

1. Members of All India Services serving in connection with the affairs of the Union and Group A officers of the Central Government.
2. Officers of the rank of Scale V and above in the Public Sector Banks.
3. Officers in Grade D and above in Reserve Bank of India, NABARD and SIDBI.
4. Chief Executives and Executives on the Board and other officers of E-8 and above in Schedule ‘A’ and ‘B’ Public Sector Undertakings.
5. Chief Executives and Executives on the Board and other officers of E-7 and above in Schedule ‘C’ and ‘D’ Public Sector Undertakings.
6. Managers and above in General Insurance Companies.
7. Senior Divisional Managers and above in Life Insurance Corporation.
8. Officers drawing salary of ₹8700/- per month (pre-revised) and above on Central Government D.A. pattern, as may be revised from time to time, in societies and local authorities owned or controlled by the Central Government.

WORKING

The CVC conducts its proceedings at its headquarters (New Delhi). It is vested with the power to regulate its own procedure. It has all the powers of a civil court and its proceedings have a judicial character. It may call for information or report from the Central government or its authorities so as to enable it to exercise general supervision over the vigilance and anti-corruption work in them.

The CVC, on receipt of the report of the inquiry undertaken by any agency on a reference made by it, advises the Central government or its authorities as to the further course of action. The Central government or its authorities shall consider the advice of the CVC and take appropriate action. However, where the Central government or any of its authorities does not agree with the advice of the CVC, it shall communicate the reasons (to be recorded in writing) to the CVC.

The CVC has to present annually to the President a report on its performance. The President places this report before each House of Parliament.

VIGILANCE UNITS IN THE MINISTRIES

All ministries/departments in the Union Government have a Chief Vigilance Officer (CVO) who heads the Vigilance Division of the organisation concerned, assisting and advising the Secretary or Head of Office in all matters pertaining to vigilance. He also provides a link between his organisation and the Central Vigilance Commission on the one hand and his organisation and the Central Bureau of Investigation on the other. Vigilance functions performed by the CVO include

(i) Collecting intelligence about corrupt practices of the employees of his organisation
(ii) Investigating verifiable allegations reported to him
(iii) Processing investigation reports for further consideration of the disciplinary authority concerned
(iv) Referring matters to the Central Vigilance Commission for advice wherever necessary[5]

WHISTLE BLOWERS PROTECTION ACT (2014)

The salient features of the Whistle Blowers Protection Act (2014)[6] are as follows[7] :

1. The Act provides a mechanism for protecting the identity of whistle blowers (a term given to people who expose corruption). People who expose corruption in Government or irregularities by public functionaries can now be free of any fear of victimization.
2. The Act also provides for a system to encourage people to disclose information about corruption or the wilful misuse of power by public servants, including ministers.
3. As per the Act, a person can make a public interest disclosure on corruption before a competent authority - which is at present the Central Vigilance Commission (CVC). The government, by notification, can appoint any other body also for receiving such complaints about corruption.
4. The Act, however, lays down punishment of up to two years in prison and a fine of up to ₹30,000 for false or frivolous complaints.
5. The Act says that every disclosure shall be made in good faith and the person making the disclosure shall provide a personal declaration stating that he reasonably believes that the information disclosed by him and the allegation contained therein is substantially true.
6. Disclosures can be made in writing or by email message in accordance with the procedure as may be prescribed and contain full particulars and be accompanied by supporting documents, or other material.
7. However, no action shall be taken on a disclosure if it does not indicate the identity of the complainant or public servant or if “the identity of the complainant or public servant is found to be incorrect.”
8. The Act is not applicable to the Special Protection Group.

NOTES AND REFERENCES

1. The Committee on Prevention of Corruption with parliamentarian K. Santhanam as the Chairman, four other MPs and two senior officers as members, was appointed by the Government of India in 1962.
2. The Central Vigilance Commission Bill having been passed by both the Houses of Parliament received the assent of the president on 11 September 2003. It came on the statute Book as the Central Vigilance Commission Act, 2003.

2a. Annual Report 2015–16, Ministry of Personnel, Government of India, p. 101.

3. The authorities of the Central government include a corporation established by or under any Central act and government company, society and any local authority owned or controlled by the Central government.
4. The All-India Services include Indian Administrative Service (IAS), Indian Police Service (IPS) and Indian Forest Service (IFS).

4a. Annual Report 2015, Central Vigilance Commission, pp. 2–4.

5. Report on Ethics in Governance, January 2007, Second Administrative Reforms Commission, Government of India, p. 106.
6. Originally, the year of the Act was 2011. Later, it was changed to 2014.
7. *The Indian Express*, "Whistleblowers Protection Act gets President's nod", May 13, 2014.

60 Central Bureau of Investigation

ESTABLISHMENT OF CBI

The Central Bureau of Investigation (CBI) was set up in 1963 by a resolution of the Ministry of Home Affairs. Later, it was transferred to the Ministry of Personnel and now it enjoys the status of an attached office[1]. The Special Police Establishment (which looked into vigilance cases) setup in 1941 was also merged with the CBI.

The establishment of the CBI was recommended by the Santhanam Committee on Prevention of Corruption (1962–1964). The CBI is not a statutory body. It derives its powers from the Delhi Special Police Establishment Act, 1946.

The CBI is the main investigating agency of the Central Government. It plays an important role in the prevention of corruption and maintaining integrity in administration. It also provides assistance to the Central Vigilance Commission and Lokpal.

There is a difference between the nature of cases investigated by the National Investigation Agency (NIA) and the CBI. The NIA has been constituted after the Mumbai terror attack in 2008 mainly for investigation of incidents of terrorist attacks, funding of terrorism and other terror related crime, whereas the CBI investigates crime of corruption, economic offences and serious and organized crime other than terrorism.

MOTTO, MISSION AND VISION OF CBI

Motto: Industry, Impartiality and Integrity Mission: To uphold the Constitution of India and law of the land through in-depth investigation and successful prosecution of offences; to provide leadership and direction to police forces and to act as the nodal agency for enhancing inter-state and international cooperation in law enforcement

Vision: *Based on its motto, mission and the need to develop professionalism, transparency, adaptability to change and use of science and technology in its working, the CBI will focus on*

1. Combating corruption in public life, curbing economic and violent crimes through meticulous investigation and prosecution
2. Evolving effective systems and procedures for successful investigation and prosecution of cases in various law courts
3. Helping fight cyber and high technology crime
4. Creating a healthy work environment that encourages team-building, free communication and mutual trust
5. Supporting state police organisations and law enforcement agencies in national and international cooperation, particularly relating to enquiries and investigation of cases
6. Playing a lead role in the war against national and transnational organised crime
7. Upholding human rights, protecting the environment, arts, antiques and heritage of our civilisation
8. Developing a scientific temper, humanism and the spirit of inquiry and reform
9. Striving for excellence and professionalism in all spheres of functioning so that the organisation rises to high levels of endeavor and achievement.

ORGANISATION OF CBI

Originally (1963), the CBI was set up with the following six divisions:

(i) Investigation and Anti-Corruption Division (Delhi Special Police Establishment)
(ii) Technical Division
(iii) Crime Records and Statistics Division
(iv) Research Division
(v) Legal and General Division
(vi) Administration Division

At present (2019), the CBI has the following seven divisions:

1. Anti-Corruption Division
2. Economic Offences Division
3. Special Crimes Division
4. Policy and Coordination Division
5. Administration Division
6. Directorate of Prosecution
7. Central Forensic Science Laboratory

COMPOSITION OF CBI

The CBI is headed by a Director. He is assisted by a special director or an additional director. Additionally, it has a number of joint directors, deputy inspector generals, superintendents of police and all other usual ranks of police personnel. In total, it has about 5000 staff members, about 125 forensic scientists and about 250 law officers.

The Director of CBI as Inspector-General of Police, Delhi Special Police Establishment, is responsible for the administration of the organisation. With the enactment of CVC Act, 2003, the superintendence of Delhi Special Police Establishment vests with the Central Government save investigations of offences under the Prevention of Corruption Act, 1988, in which, the superintendence vests with the Central Vigilance Commission. The Director of CBI has been provided security of two-year tenure in office by the CVC Act, 2003.

The Lokpal and Lokayuktas Act (2013) amended the Delhi Special Police Establishment Act (1946) and made the following changes with respect to the composition of the CBI:

1. The Central Government shall appoint the Director of CBI on the recommendation of a three-member committee consisting of the Prime Minister as Chairperson, the Leader of Opposition in the Lok Sabha and the Chief Justice of India or Judge of the Supreme Court nominated by him.
2. There shall be a Directorate of prosecution headed by a Director for conducting the prosecution of cases under the Lokpal and Lokayuktas Act, 2013. The Director of Prosecution shall be an officer not below the rank of Joint Secretary to the Government of India. He shall function under the overall supervision and control of the Director of CBI. He shall be appointed by the Central Government on the recommendation of the Central Vigilance Commission. He shall hold office for a period of two years.
3. The Central Government shall appoint officers of the rank of SP and above in the CBI on the recommendation of a committee consisting of the Central Vigilance Commissioner

as Chairperson, the Vigilance Commissioners, the Secretary of the Home Ministry and the Secretary of the Department of Personnel.

Later, the Delhi Special Police Establishment (Amendment) Act, 2014 made a change in the composition of the committee related to the appointment of the Director of C.B.I. It states that where there is no recognized leader of opposition in the Lok Sabha, then the leader of the single largest opposition party in the Lok Sabha would be a member of that committee.

FUNCTIONS OF CBI

The functions of CBI are:

(i) Investigating cases of corruption, bribery and misconduct of Central government employees.

(ii) Investigating cases relating to infringement of fiscal and economic laws, that is, breach of laws concerning export and import control, customs and central excise, income tax, foreign exchange regulations and so on. However, such cases are taken up either in consultation with or at the request of the department concerned.

(iii) Investigating serious crimes, having national and international ramifications, committed by organised gangs of professional criminals.

(iv) Coordinating the activities of the anticorruption agencies and the various state police forces

(v) Taking up, on the request of a state government, any case of public importance for investigation.

(vi) Maintaining crime statistics and disseminating criminal information.

The CBI is a multidisciplinary investigation agency of the Government of India and undertakes investigation of corruption-related cases, economic offences and cases of conventional crime. It normally confines its activities in the anti-corruption field to offences committed by the employees of the Central Government and Union Territories and their public sector undertakings. It takes up investigation of conventional crimes like murder, kidnapping, rape etc., on reference from the state governments or when directed by the Supreme Court/High Courts.

The CBI acts as the “National Central Bureau” of Interpol in India. The Interpol Wing of the CBI coordinates requests for investigation-related activities originating from Indian law enforcement agencies and the member countries of the Interpol.

PROVISION OF PRIOR PERMISSION

The CBI is required to obtain the prior approval of the Central Government before conducting any inquiry or investigation into an offence committed by officers of the rank of joint secretary and above in the Central Government and its authorities.

However, on May 6, 2014, the Supreme Court held as invalid the legal provision that makes prior sanction mandatory for the Central Bureau of Investigation to conduct a probe against senior bureaucrats in corruption cases under the Prevention of Corruption Act.[2]

A Constitution Bench held that Section 6A of the Delhi Special Police Establishment Act, which granted protection to joint secretary and above officers from facing even a preliminary inquiry by the CBI in corruption cases, was violative of Article 14.

Welcoming the court order, CBI Director said: “It is a landmark judgment that will empower the agency in the investigations into several cases pending due to the provision that has now been struck down by the Constitution Bench. We had for long been of the view that inquiry against senior officials need not require any prior permission.”

Writing the judgment, the CJI said, “Corruption is an enemy of [the] nation and tracking down a corrupt public servant, howsoever high he may be, and punishing such person is a necessary mandate under the PC Act, 1988. The status or position of a public servant does not qualify the person from exemption from equal treatment. The decision-making power does not segregate corrupt officers into two classes as they are common crime doers and have to be tracked down by the same process of inquiry and investigation.”

The Bench said, “Section 6A of the DSPE Act [granting protection to one set of officers] is directly destructive and runs counter to the object and reason of the PC Act, 1988. It also undermines the object of detecting and punishing high-level corruption. How can two public servants against whom there are allegations of corruption or graft or bribe taking or criminal misconduct under the PC Act, 1988, be made to be treated

differently because one happens to be a junior officer and the other a senior decision maker?"

"The provision in Section 6A impedes tracking down the corrupt senior bureaucrats as without previous approval of the Central Government, the CBI cannot even hold preliminary inquiry much less an investigation into the allegations. The protection under Section 6A has propensity of shielding the corrupt," the Bench added.

Observing that there could not be any protection to corrupt public servants, the Bench said, "The aim and object of investigation is ultimately to search for truth and any law that impedes that object may not stand the test of Article 14. Breach of rule of law, in our opinion, amounts to negation of equality under Article 14. Section 6-A fails in the context of these facets of Article 14."

CBI *VS.* STATE POLICE

The role of the Special Police Establishment (a division of CBI) is supplementary to that of the state police forces. Along with state police forces, the Special Police Establishment (SPE) enjoys the concurrent powers of investigation and prosecution for offences under the Delhi Police Establishment Act, 1946. However, to avoid duplication and overlapping of cases between these two agencies, the following administrative arrangements have been made:

(i) The SPE shall take up such cases which are essentially and substantially concerned with the Central Government's affairs or employees, even if they also involve certain state government employees.

(ii) The state police force shall take up such cases which are substantially concerned with the state government's affairs or employees, even if they also involve certain Central Government employees.

(iii) The SPE shall also take up cases against employees of public undertakings or statutory bodies established and financed by the Central Government.

CBI ACADEMY

The CBI Academy is located at Ghaziabad, Uttar Pradesh and started functioning in 1996. Earlier, training programmes were being conducted at the CBI Training Centre, New Delhi.

The vision of the CBI Academy is "Excellence in Training in the Fields of Crime Investigation, Prosecution and Vigilance Functioning" and its mission is to train the human resources of CBI, state police and the vigilance organisations to become professional, industrious, impartial, upright and dedicated to the service of the nation.

The academy is the focal point of training activities within the organisation and is responsible for identification of suitable training programmes, regulation of nominations of trainees and preparation of the annual training calendar.

Beside the CBI Academy at Ghaziabad, there are three regional training centres imparting training at regional levels at Kolkata, Mumbai and Chennai.

There are two kinds of training courses which are being conducted in the CBI Academy:

(i) **Short Term In-service Courses:** For officers of the CBI, state police, central para-military forces and central government undertakings

(ii) **Long Term Basic Courses:** For directly recruited deputy superintendents of police, sub-inspectors and constables of CBI.[3]

NOTES AND REFERENCES

1. The CBI comes under the administrative control of the Department of Personnel and Training (DoPT) of the Ministry of Personnel.
2. *The Hindu*, "No sanction needed for CBI to probe bureaucrats: SC," May 7, 2014.
3. Annual Report 2012, Central Bureau of Investigation, Government of India, pp. 92–93.

61 Lokpal and Lokayuktas

GLOBAL SCENARIO

Modern democratic states are characterised by a welfare orientation. Hence, the government has come to play an important role in the socio-economic development of a nation. This has resulted in the expansion of bureaucracy and the multiplication of administrative process, which in turn increased the administrative power and discretion enjoyed by the civil servants at different levels of the government. The abuse of this power and discretion by civil servants opens up scope for harassment, malpractices, maladministration and corruption. Such a situation gives rise to citizens' grievances against administration[1] .

The success of democracy and the realisation of socio-economic development depends on the extent to which the citizens' grievances are redressed. Therefore, the following institutional devices have been created in different parts of the world to deal with the redressal of these grievances:

1. The Ombudsman System
2. The Administrative Courts System
3. The Procurator System

The earliest democratic institution created in the world for the redressal of citizens' grievance is the Scandinavian institution of Ombudsman. Donald C. Rowat, an international authority on the Ombudsman, calls it a "uniquely appropriate institution for dealing with the average citizens' complaints about unfair administrative actions."

The institution of Ombudsman was first created in Sweden in 1809. 'Ombud' is a Swedish term and refers to a person who acts as the representative or spokesman of another person. According to Donald C. Rowat, Ombudsman refers to "an officer appointed by the legislature to handle complaints against administrative and judicial action."

The Swedish Ombudsman deals with the citizens' grievances in the following matters:

(i) Abuse of administrative discretion, that is, misuse of official power and authority
(ii) Maladministration, that is, inefficiency in achieving the targets
(iii) Administrative corruption, that is, demanding bribery for doing things
(iv) Nepotism, that is supporting one's own kith and kin in matters like providing employment
(v) Discourtesy, that is, misbehaviour of various kinds, for instance, use of abusive language.

The Swedish Ombudsman is appointed by the Parliament for a term of four years. He can be removed only by the Parliament on ground of its loss of confidence in him. He submits his annual report to the Parliament and hence, is also known as 'Parliamentary Ombudsman.' But he is independent of the Parliament (legislature) as well as the executive and judiciary.

The Ombudsman is a constitutional authority and enjoys the powers to supervise the compliance of laws and regulations by the public officials, and see that they discharge their duties properly. In other words, he keeps a watch over all public officials–civil, judicial and military–so that they function impartially, objectively and legally, that is, in accordance with the law. However, he has no power to reverse or quash a decision and has no direct control over administration or the courts.

The Ombudsman can act either on the basis of a complaint received from the citizen against unfair administrative action or *suo moto* (i.e. on his own initiative). He can prosecute any erring official including the judges. However, he himself cannot inflict any punishment. He only reports the matter to the higher authorities for taking the necessary corrective action.

In sum, the characteristics of the Swedish institution of Ombudsman are as follows:

(i) Independence of action from the executive
(ii) Impartial and objective investigation of complaints
(iii) *Suo moto* power to start investigations
(iv) Uninterrupted access to all the files of administration
(v) Right to report to the Parliament as opposed to the executive; the institution of ombudsman is based on the doctrine of administrative accountability to legislature.
(vi) Wide publicity given to its working in press and other media
(vii) Direct, simple, informal, cheap and speedy method of handling

complaints

From Sweden, the institution of Ombudsman spread to other Scandinavian countries– Finland (1919), Denmark (1955) and Norway (1962). New Zealand is the first Commonwealth country in the world to have adopted the Ombudsman system in the form of a Parliamentary Commissioner for Investigation in 1962. The United Kingdom adopted Ombudsman-like institution called Parliamentary Commissioner for Administration in 1967. Since then, more than 40 counties of the world have adopted Ombudsman-like institutions with different nomenclature and functions. The Ombudsman in India is called Lokpal/Lokayukta. Donald. C. Rowat says that the institution of Ombudsman is a “bulkwork of democratic government against the tyranny of officialdom.” While Gerald E. Caiden described the Ombudsman as “institutionalised public conscience.”

Another unique institutional device created for the redressal of citizens’ grievances against administrative authorities, is the French system of Administrative Courts. Due to its success in France, the system has gradually spread to many other European and African countries like Belgium, Greece and Turkey.

The socialist countries like the former USSR (now Russia), China, Poland, Hungary, Czechoslovakia and Romania have created their own institutional device for the redressal of citizens’ grievances. It is called ‘Procurator System’ in these countries. It should be noted here that the office of the Procurator-General is still functioning in Russia. He is appointed for a tenure of seven years.

POSITION IN INDIA

The existing legal and institutional framework to check corruption and redress citizens' grievances in India consists of the following:

1. Public Servants (Enquiries) Act, 1850
2. Indian Penal Code, 1860
3. Special Police Establishment, 1941
4. Delhi Police Establishment Act, 1946
5. Prevention of Corruption Act, 1988
6. Commissions of Inquiry Act, 1952 (against political leaders and eminent public men)
7. All-India Services (Conduct) Rules, 1968
8. Central Civil Services (Conduct) Rules, 1964
9. Railway Services (Conduct) Rules, 1966
10. Vigilance organisations in ministries / departments, attached and subordinate offices and public undertakings
11. Central Bureau of Investigation, 1963
12. Central Vigilance Commission, 1964
13. State Vigilance Commissions, 1964
14. Anti corruption bureaus in states
15. Lokpal (Ombudsman) at the Centre
16. Lokayukta (Ombudsman) in states
17. Divisional Vigilance Board
18. District Vigilance Officer
19. National Consumer Disputes Redressal Commission
20. National Commission for SCs
21. National Commission for STs
22. Supreme Court and High Courts in states
23. Administrative Tribunals (quasi-judicial bodies)
24. Directorate of Public Grievances in the Cabinet Secretariat, 1988
25. Parliament and its committees
26. 'File to Field' programme in some states like Kerala. In this innovative scheme, the administrator goes to the village/area and hears public grievances and takes immediate action wherever possible.

LOKPAL

The Administrative Reforms Commission (ARC) of India (1966–1970) recommended the setting up of two special authorities designated as 'Lokpal' and 'lokayukta' for the redressal of citizens' grievances[2]. These institutions were to be set up on the pattern of the institution of Ombudsman in Scandinavian countries and the parliamentary commissioner for investigation in New Zealand. The Lokpal would deal with complaints against ministers and secretaries at Central and state levels, and the lokayukta (one at the Centre and one in every state) would deal with complaints against other specified higher officials. The ARC kept the judiciary outside the purview of Lokpal and lokayukta as in New Zealand. But, in Sweden the judiciary is within the purview of Ombudsman.

According to the ARC, the Lokpal would be appointed by the president after consultation with the chief justice of India, the Speaker of Lok Sabha and the Chairman of the Rajya Sabha.

The ARC also recommended that the institutions of Lokpal and lokayukta should have the following features:

1. They should be demonstratively independent and impartial.
2. Their investigations and proceedings should be conducted in private and should be informal in character.
3. Their appointment should be, as far as possible, non-political.
4. Their status should compare with the highest judicial functionaries in the country.
5. They should deal with matters in the discretionary field involving acts of injustice, corruption or favouritism.
6. Their proceedings should not be subject to judicial interference.
7. They should have the maximum latitude and powers in obtaining information relevant to their duties.
8. They should not look forward to any benefit or pecuniary advantage from the executive government.

The Government of India accepted the recommendations of ARC in this regard. So far, ten official attempts have been made to bring about legislation on this subject. Bills were introduced in the Parliament in the following years:

1. In May 1968, by the Congress Government headed by Indira Gandhi.

2. In April 1971, again by the Congress Government headed by Indira Gandhi.
3. In July 1977, by the Janata Government headed by Morarji Desai.
4. In August 1985, by the Congress Government headed by Rajiv Gandhi.
5. In December 1989, by the National Front Government headed by V.P. Singh.
6. In September 1996, by the United Front Government headed by Deve Gowda.
7. In August 1998, by the BJP-led coalition Government headed by A.B. Vajpayee.
8. In August 2001, by the NDA government headed by A.B. Vajpayee.
9. In August 2011, by the UPA government headed by Manmohan Singh.
10. In December 2011, by the UPA government headed by Manmohan Singh.

The first four bills lapsed due to the dissolution of Lok Sabha, while the fifth one was withdrawn by the government. The sixth and seventh bills also lapsed due to the dissolution of the 11th and 12th Lok Sabha. Again, the eighth bill (2001) lapsed due to the dissolution of the 13th Lok Sabha in 2004. The ninth bill (2011) was withdrawn by the government.

LOKPAL AND LOKAYUKTAS ACT (2013)

Features

The salient features of the Lokpal and Lokayuktas Act (2013) are as follows.[3]

1. It seeks to establish the institution of the Lokpal at the Centre and the Lokayukta at the level of the State and thus seeks to provide a uniform vigilance and anti-corruption road map for the nation both at the Centre and at the States. The jurisdiction of Lokpal includes the Prime Minister, Ministers, Members of Parliament and Groups A, B, C and D officers and officials of the Central Government.
2. The Lokpal to consist of a Chairperson with a maximum of 8 members of which 50% shall be judicial members.
3. 50% of the members of the Lokpal shall come from amongst the SCs, the STs, the OBCs, minorities and women.
4. The selection of the Chairperson and the members of Lokpal shall be through a Selection Committee consisting of the Prime Minister, the Speaker of the Lok Sabha, the Leader of the Opposition in the Lok Sabha, the Chief Justice of India or a sitting Supreme Court Judge nominated by the Chief Justice of India and an eminent jurist to be nominated by the President of India on the basis of recommendations of the first four members of the selection committee.
5. A Search Committee will assist the Selection Committee in the process of selection. 50% of the members of the Search Committee shall also be from amongst the SCs, the STs, the OBCs, minorities and women.
6. The Prime Minister has been brought under the purview of the Lokpal with subject matter exclusions and specific process for handling complaints against the Prime Minister.
7. Lokpal's jurisdiction will cover all categories of public servants, including Group A, Group B, Group C, and Group D officers and employees of Government. On complaints referred to the CVC by the Lokpal, the CVC will send its report of preliminary enquiry in respect of Group A and Group B Officers back to the Lokpal for further decision. With respect to categories of employees from Group C and Group D, the CVC will proceed

further in exercise of its own powers under the CVC Act subject to reporting and review by the Lokpal.

8. The Lokpal will have the power of superintendence and direction over any investigating agency, including the CBI, for cases referred to them by the Lokpal.
9. A High-Powered Committee chaired by the Prime Minister will recommend the selection of the Director of CBI.
10. It incorporates provisions for attachment and confiscation of property of public servants acquired by corrupt means, even while the prosecution is pending.
11. It lays down clear timelines. For preliminary enquiry, it is three months extendable by three months. For investigation, it is six months which may be extended by six months at a time. For trial, it is one year extendable by one year and to achieve this, special courts to be set up.
12. It enhances maximum punishment under the Prevention of Corruption Act from seven years to ten years. The minimum punishment under sections 7, 8, 9 and 12 of the Prevention of Corruption Act will now be three years, and the minimum punishment under section 15 (punishment for attempt) will now be two years.
13. Institutions which are financed fully or partly by Government are under the jurisdiction of Lokpal, but institutions aided by Government are excluded.
14. It provides adequate protection for honest and upright public servants.
15. Lokpal conferred with power to grant sanction for prosecution of public servants in place of the Government or competent authority.
16. It contains a number of provisions aimed at strengthening the CBI such as:
    (i) setting up of a Directorate of Prosecution headed by a Director Prosecution under the overall control of the Director of CBI;
    (ii) appointment of the Director of Prosecution on t recommendation of the CVC;
    (iii) maintenance of a panel of advocates by CBI other th Government advocates with the consent of the Lokpal handling Lokpal-referred cases;
    (iv) transfer of officers of CBI investigating cases referred by Lok with the approval of Lokpal;

(v) provision of adequate funds to CBI for investigating cas referred by Lokpal.

17. All entities receiving donations from foreign source in the context of the Foreign Contribution Regulation Act (FCRA) in excess of ₹10 lakhs per year are brought under the jurisdiction of Lokpal.
18. It contains a mandate for setting up of the institution of Lokayukta through enactment of a law by the State Legislature within a period of 365 days from the date of commencement of this Act. Thus, the Act provides freedom to the states to decide upon the contours of the Lokayukta mechanism in their respective states.

Drawbacks

The following are the drawbacks (shortcomings) of the Lokpal and Lokayuktas Act, 2013[3a]:

1. Lokpal cannot suo motu proceed against any public servant.
2. Emphasis on form of complaint rather than substance.
3. Heavy punishment for false and frivolous complaints against public servants may deter complaints being filed to Lokpal.
4. Anonymous complaints not allowed -Can't just make a complaint on plain paper and drop it in a box with supporting documents.
5. Legal assistance to public servant against whom complaint is filed.
6. Limitation period of 7 years to file complaints.
7. Very non-transparent procedure for dealing with complaints against the PM.

LOKAYUKTAS

Even much before the enactment of the Lokpal and Lokayuktas Act (2013) itself, many states had already set up the institution of Lokayuktas.

It must be noted here that the institution of lokayukta was established first in Maharashtra in 1971. Although Odisha had passed the Act in this regard in 1970, it came into force only in 1983.

Till 2013, 21 states and 1 Union Territory (Delhi) have established the institution of Lokyuktas. The details in this regard are mentioned below in Table 61.1.

Table 61.1 *Establishment of Lokayukta in States (Chronological Order)*

Sl. No.	States/UTs	Created in (enacted in)
1.	Odisha	1970
2.	Maharashtra	1971
3.	Rajasthan	1973
4.	Bihar	1974
5.	Uttar Pradesh	1975
6.	Madhya Pradesh	1981
7.	Andhra Pradesh	1983
8.	Himachal Pradesh	1983
9.	Karnataka	1985
10.	Assam	1985
11.	Gujarat	1986
12.	Punjab	1995
13.	Delhi	1995
14.	Kerala	1999
15.	Jharkhand	2001
16.	Chattisgarh	2002

17.	Haryana	2002
18.	Uttarakhand	2002
19.	Jammu and Kashmir[3b]	2002
20.	West Bengal	2003
21.	Tripura	2008
22.	Goa	2011

The various aspects of the institution of lokayukta are:

Structural Variations

The structure of the lokayukta is not same in all the states. Some States like Rajasthan, Karnataka, Andhra Pradesh and Maharashtra have created the lokayukta as well as upalo-kayukta, while some others like Bihar, Uttar Pradesh and Himachal Pradesh have created only the lokayukta. There are still other states like Punjab and Orissa that have designated officials as Lokpal. This pattern was not suggested by the ARC in the states.

Appointment

The lokayukta and upalokayukta are appointed by the governor of the state. While appointing, the governor in most of the states consults (a) the chief justice of the state high court, and (b) the leader of Opposition in the state legislative assembly[4] .

Qualifications

Judicial qualifications are prescribed for the lokayukta in the States of Uttar Pradesh, Himachal Pradesh, Andhra Pradesh, Gujarat, Orissa, Karnataka and Assam. But no specific qualifications are prescribed in the states of Bihar, Maharashtra and Rajasthan.

Tenure

In most of the states, the term of office fixed for lokayukta is of 5 years duration or 65 years of age, whichever is earlier. He is not eligible for reappointment for a second term.

Jurisdiction

There is no uniformity regarding the jurisdiction of lokayukta in all the states. The following points can be noted in this regard:

(a) The chief minister is included within the jurisdiction of lokayukta in the states of Himachal Pradesh, Andhra Pradesh, Madhya Pradesh and Gujarat, while he is excluded from the purview of loka-yukta in the states of Maharashtra, Uttar Pradesh, Rajasthan, Bihar and Orissa.

(b) Ministers and higher civil servants are included in the purview of lokayukta in almost all the states. Maharashtra has also included former ministers and civil servants.

(c) Members of state legislatures are included in the purview of lokayukta in the States of Andhra Pradesh, Himachal Pradesh, Gujarat, Uttar Pradesh and Assam.

(d) The authorities of the local bodies, corporations, companies and societies are included in the jurisdiction of the lokayukta in most of the states.

Investigations

In most of the states, the lokayukta can initiate investigations either on the basis of a complaint received from the citizen against unfair administrative action or *suo moto*. But he does not enjoy the power to start investigations on his own initiative (*suo moto*) in the States of Uttar Pradesh, Himachal Pradesh and Assam.

Scope of Cases Covered

The lokayukta can consider the cases of ‘grievances’ as well as ‘allegations’ in the States of Maharashtra, Uttar Pradesh, Assam, Bihar and Karnataka. But, in Himachal Pradesh, Andhra Pradesh, Rajasthan and Gujarat, the job of lokayuktas is confined to investigating allegations (corruption) and not grievances (maladministration).

Other Features

1. The lokayukta presents, annually, to the governor of the state a consolidated report on his performance. The governor places this report along with an explanatory memorandum before the

state legislature. The lokayukta is responsible to the state legislature.

2. He takes the help of the state investigating agencies for conducting inquiries.
3. He can call for relevant files and documents from the state government departments.
4. The recommendations made by the loka-yukta are only advisory and not binding on the state government.

NOTES AND REFERENCES

1. According to the Chambers Dictionary, grievance means 'a ground of complaint; a condition felt to be oppressive or wrongful'.
2. The ARC headed by Morarji Desai submitted a special interim report on the 'Problems of Redressal of Citizens' Grievances' in 1966.
3. Press Information Bureau, Government of India, December 23, 2013.

3a. Tixmann's Guide to Lokpal and Lokayuktas Act 2013, pp.I-9 to I-11.

3b. In Jammu and Kashmir, the institution is known as State Accountability Commission (SAC).

4. But, in Andhra Pradesh, the leader of the Opposition in the state legislative assembly is not required to be consulted in this regard. In Karnataka, on the other hand, the Chairman of the state legislative council, the Speaker of the state legislative assembly and the leader of Opposition in the state legislative council are also required to be consulted on this matter.

62 National Investigation Agency

ESTABLISHMENT OF THE NIA

The National Investigation Agency (NIA) was constituted in 2009 under the provisions of the National Investigation Agency Act, 2008 (NIA Act). It is the central counter-terrorism law enforcement agency in the country.

The NIA was established in the backdrop of the 2008 Mumbai terror attacks, popularly known as the 26/11 incident. This national horror led to the realisation of the need for a separate federal agency to deal with terror-related crimes in the country.

The headquarters of the NIA is at New Delhi. The branch offices of the NIA are located at Hyderabad, Guwahati, Mumbai, Lucknow, Kochi, Kolkata, Jammu and Raipur. In addition, the NIA has a separate specialised cell known as TFFC Cell dealing with the subjects of fake currency notes and terror funding.

The NIA is headed by a Director-General. He is appointed by the central government. His powers are similar to the powers exercisable by a Director-General of Police in respect of the police force in a state.

The NIA works under the administrative control of the Ministry of Home Affairs, Government of India. The state government extends all assistance and co-operation to the NIA for investigation of the offences specified under the NIA Act.

RATIONALE OF THE NIA

While introducing the NIA Bill in the Parliament, the Government of India gave the following reasons for creating the NIA[1] :

1. Over the past several years, India has been the victim of large-scale terrorism sponsored from across the borders. There have been innumerable incidents of terrorist attacks, not only in the militancy and insurgency affected areas and areas affected by left-wing extremism, but also in the form of terrorist attacks and bomb blasts, etc., in various parts of the hinterland and major cities, etc.
2. A large number of such incidents are found to have complex inter-state and international linkages, and possible connection with other activities like the smuggling of arms and drugs, pushing in and circulation of fake Indian currency, infiltration from across the borders, etc.
3. Keeping all these in view, it was felt that there was a need for setting up of an agency at the central level for the investigation of offences related to terrorism and certain other Acts, which have national ramifications.
4. Several expert committees and the Second Administrative Reforms Commission[2] have also made recommendations for establishing such an agency.
5. The Government, after due consideration and examination of the issues involved, proposed to enact a legislation to make provisions for establishment of an NIA in a concurrent jurisdiction framework, with provisions for taking up specific cases under specific Acts for investigation. These provisions are proposed to be incorporated in the National Investigation Agency Bill, 2008.

FUNCTIONS OF THE NIA

The NIA is mandated to investigate and prosecute offences under the various Acts mentioned in the Schedule of the NIA Act. In pursuance of its mandate, the NIA collects, collates and analyses counter-terrorism investigation. It also shares inputs with its sister intelligence agencies and law enforcement units both at central and state governments level.

In more detail, the functions assigned to the NIA are as follows[3]:

(a) To investigate and prosecute offences in respect of the Acts specified in the Schedule of the NIA Act.

(b) To provide assistance to, and seek assistance from, other intelligence and investigation agencies of the central government and state governments.

(c) To take other such measures which may be necessary for speedy and effective implementation of the provisions of the NIA Act.

VISION OF THE NIA

The following points highlight the vision of the NIA:

1. The NIA aims to be a thoroughly professional investigative agency matching the best international standards.
2. The NIA aims to set the standards of excellence in counter-terrorism and other national security-related investigations at the national level by developing into a highly trained, partnership-oriented workforce.
3. The NIA aims at creating deterrence for existing and potential terrorist groups/ individuals.
4. The NIA aims to develop as a storehouse of all terrorist-related information.

MISSION OF THE NIA

The mission of the NIA is as follows:

1. In-depth professional investigation of scheduled offences using the latest scientific methods of investigation and setting up such standards as to ensure that all cases entrusted to the NIA are detected.
2. Ensuring effective and speedy trial.
3. Developing into a thoroughly professional, result-oriented organisation, upholding the Constitution of India and laws of the land, giving prime importance to the protection of human rights and dignity of the individual.
4. Developing a professional workforce through regular training and exposure to the best practices and procedures.
5. Displaying scientific temper and progressive spirit while discharging the duties assigned.
6. Inducting modern methods and latest technology in every sphere of activities of the agency.
7. Maintaining professional and cordial relations with the governments of states and union territories and other law enforcement agencies in compliance with the legal provisions of the NIA Act.
8. Assisting all states and other investigating agencies in investigation of terrorist cases.
9. Building a database on all terrorist-related information and sharing the available database with the states and other agencies.
10. Studying and analysing laws relating to terrorism in other countries and regularly evaluating the adequacy of existing laws in India and proposing changes as and when necessary.
11. Winning the confidence of the citizens of India through selfless and fearless endeavours.

JURISDICTION OF THE NIA

The NIA has concurrent jurisdiction to investigate and prosecute the offences affecting the sovereignty, security and integrity of India, security of state, friendly relations with foreign states and offences under various Acts enacted to implement international treaties, agreements, conventions and resolutions of the UNO, its agencies and other international organisations.

The NIA is empowered to probe terror attacks including bomb blasts, hijacking of aircrafts and ships, attacks on nuclear installations and use of weapons of mass destruction.

In 2019, the jurisdiction of the NIA was extended[4]. Consequently, the NIA is also empowered to probe the offences relating to human trafficking, counterfeit currency or bank notes, manufacture or sale of prohibited arms, cyber-terrorism and explosive substances.

NIA (AMENDMENT) ACT, 2019

The various features or provisions of the amendment are as follows[5] :

1. It applied the provisions of the NIA Act also to persons who commit a scheduled offence beyond India against Indian citizens or affecting the interest of India.
2. It provided that the officers of the NIA shall have the similar powers, duties, privies and liabilities being exercised by the police officers in connection with the investigation of offences, not only in India but also outside India.
3. It empowered the central government, with respect to a scheduled offence committed outside India, to direct the NIA to register the case and take up investigation as if such offence has taken place in India.
4. It provided that the central government and the state governments may designate Sessions Courts as Special Courts for conducting the trial of offences under the NIA Act.
5. It inserted certain new offences in the Schedule of the NIA Act[6] .

NOTES AND REFERENCES

1. Based on the statement of objects and reasons appended to the NIA Bill, 2008.
2. The second Administrative Reforms Commission (Chairman: Veerappa Moily), 2005–09, in its report entitled ‘Combating Terrorism’ (2008).
3. The National Investigation Agency (Manner of Constitution) Rules, 2008.
4. Vide the NIA (Amendment) Act, 2019.
5. Based on the Statement of Objects and Reasons appended to the NIA (Amendment) Bill, 2019.
6. See the last paragraph under the above heading (Jurisdiction of the NIA).

63 National Disaster Management Authority

ESTABLISHMENT OF THE NDMA

The Government of India, recognising the importance of disaster management as a national priority, had set up a High Powered Committee in 1999 and a National Committee in 2001 after the Gujarat earthquake, to make recommendations on the preparation of disaster management plans and suggest effective mitigation mechanisms. However, after the Indian Ocean tsunami of 2004, the Government of India took a defining step in the legislative history of the country by enacting the Disaster Management Act, 2005[1] .

The Act provided for the creation of the National Disaster Management Authority (NDMA) to spearhead and implement a holistic and integrated approach to disaster management in the country. Initially, the NDMA was constituted in 2005 by an Executive Order of the Government of India. Subsequently, the NDMA was notified in 2006 under the provisions of the Act[2] .

The NDMA consists of a chairperson and other members, not exceeding nine. The Prime Minister is the ex-officio chairperson of the NDMA. The other members are nominated by the chairperson of the NDMA. The chairperson of the NDMA designates one of the members as the vice-chairperson of the NDMA. The vice-chairperson has the status of a Cabinet Minister while the other members have the status of a Minister of State.

The NDMA is the apex body for disaster management in the country. It works under the administrative control of the Union Ministry of Home Affairs.

The NDMA was established with this vision: ‘To build a safer and disaster resilient India by a holistic, pro-active, technology driven and sustainable development strategy that involves all

stakeholders and fosters a culture of prevention, preparedness and mitigation’.

OBJECTIVES OF THE NDMA

The objectives of the NDMA are as follows:

1. To promote a culture of prevention, preparedness and resilience at all levels through knowledge, innovation and education.
2. To encourage mitigation measures based on technology, traditional wisdom and environmental sustainability.
3. To mainstream disaster management into the developmental planning process.
4. To establish institutional and techno-legal frameworks to create an enabling regulatory environment and a compliance regime.
5. To ensure efficient mechanism for identification, assessment and monitoring of disaster risks.
6. To develop contemporary forecasting and early warning systems backed by responsive and failsafe communication with information technology support.
7. To ensure efficient response and relief with a caring approach towards the needs of the vulnerable sections of the society.
8. To undertake reconstruction as an opportunity to build disaster resilient structures and habitat for ensuring safer living.
9. To promote a productive and proactive partnership with the media for disaster management.

FUNCTIONS OF THE NDMA

The NDMA has the responsibility for laying down the policies, plans and guidelines for disaster management for ensuring timely and effective response to disaster.

The functions of the NDMA are as follows:

1. To lay down policies on disaster management.
2. To approve the National Plan.
3. To approve plans prepared by the Ministries or Departments of the Government of India in accordance with the National Plan.
4. To lay down guidelines to be followed by the State Disaster Management Authorities (SDMAs)[3] in drawing up the State Plan.
5. To lay down guidelines to be followed by the different Ministries or Departments of the Government of India for the purpose of integrating the measures for prevention of disaster or the mitigation of its effects in their development plans and projects.
6. To coordinate the enforcement and implementation of the policy and plan for disaster management.
7. To recommend provision of funds for the purpose of mitigation.
8. To provide such support to other countries affected by major disasters as may be determined by the central government.
9. To take other such measures for the prevention of disaster, or the mitigation, or preparedness and capacity building for dealing with the threatening disaster situation or disaster as it may consider necessary.
10. To lay down broad policies and guidelines for the functioning of the National Institute of Disaster Management[4] .

ADDITIONAL FUNCTIONS OF THE NDMA

In addition to the above, the NDMA also performs the following functions:

1. It recommends guidelines for the minimum standards of relief to be provided to persons affected by disaster.
2. It recommends, in cases of disasters of severe magnitude, relief in repayment of loans or grant of fresh loans on concessional terms to the persons affected by such disasters.
3. It exercises the general superintendence, direction and control of the National Disaster Response Force (NDRF). This force has been constituted for the purpose of specialist response to a threatening disaster situation or disaster.
4. It authorises the concerned department or authority to make the emergency procurement of provisions or materials for rescue or relief in any threatening disaster situation or disaster. In such case, the standard procedure requiring inviting of tenders is deemed to be waived.
5. It prepares an annual report on its activities and submits it to the central government. The central government causes it to be laid before both Houses of Parliament[5] .

STATE DISASTER MANAGEMENT AUTHORITY

Composition

Every state government should establish a State Disaster Management Authority (SDMA) for the state. An SDMA consists of a chairperson and other members, not exceeding nine. The Chief Minister of the state is the ex-officio chairperson of the SDMA. The chairperson of the State Executive Committee is the ex-officio member of the SDMA. The other members, not exceeding eight, are nominated by the chairperson of the SDMA. The chairperson of the SDMA designates one of the members as the vice-chairperson of the SDMA. The chairperson of the State Executive Committee acts as the ex-officio chief executive officer of the SDMA.

Functions

An SDMA has the responsibility for laying down policies and plans for disaster management in the state. Its functions include the following:

1. To lay down the state disaster management policy.
2. To approve the State Plan in accordance with the guidelines laid down by the NDMA.
3. To approve the disaster management plans prepared by the departments of the government of the state.
4. To lay down guidelines to be followed by the departments of the government of the state for the purposes of integration of measures for prevention of disasters and mitigation in their development plans and projects and provide necessary technical assistance thereof.
5. To coordinate the implementation of the State Plan.
6. To recommend provision of funds for mitigation and preparedness measures.
7. To review the development plans of the different departments of the state and ensure that prevention and mitigation measures are integrated therein.

8. To review the measures being taken for mitigation, capacity building and preparedness by the departments of the government of the state and issue such guidelines as may be necessary.

DISTRICT DISASTER MANAGEMENT AUTHORITY

Composition

Every state government should establish a District Disaster Management Authority (DDMA) for every district in the state. A DDMA consists of a chairperson and other members, not exceeding seven. The Collector (or District Magistrate or Deputy Commissioner) of the district is the ex-officio chairperson of the DDMA. The elected representative of the local authority is the ex-officio co-chairperson of the DDMA. But, in case of Tribal Areas (as referred to in the Sixth Schedule to the Constitution of India), the chief executive member of the district council of autonomous district is the ex-officio co-chairperson of the DDMA. The chief executive officer of the DDMA, the superintendent of police and the chief medical officer of the district are the ex-officio members of the DDMA. Not more than two other district level officers are appointed by the state government as the members of the DDMA. In case of a district where Zilla Parishad exists, the chairperson of that Zilla Parishad is the co-chairperson of the DDMA. The chief executive officer of the DDMA is appointed by the state government.

Functions

The DDMA acts as the district planning, coordinating and implementing body for disaster management and takes all measures for the purposes of disaster management in the district in accordance with the guidelines laid down by the NDMA and the SDMA. Its functions are as follows:

1. To prepare a disaster management plan including district response plan for the district.
2. To coordinate and monitor the implementation of the National Policy, State Policy, National Plan, State Plan and District Plan.
3. To ensure that the areas in the district vulnerable to disasters are identified and measures for the prevention of

disasters and the mitigation of its effects are undertaken by the departments of the government at the district level as well as by the local authorities.

4. To ensure that the guidelines for prevention of disasters, mitigation of its effects, preparedness and response measures as laid down by the NDMA and the SDMA are followed by all departments of the government at the district level and the local authorities in the district.
5. To organise and coordinate specialised training programmes for different levels of officers, employees and voluntary rescue workers in the district.
6. To facilitate community training and awareness programmes for prevention of disaster or mitigation with the support of local authorities, governmental and non-governmental organisations.
7. To set up, maintain, review and upgrade the mechanism for early warnings and dissemination of proper information to the public.
8. To advise, assist and coordinate the activities of the departments of the government at the district level, statutory bodies and other governmental and nongovernmental organisations in the district engaged in disaster management.
9. To identify buildings and places which could, in the event of any threatening disaster situation or disaster, be used as relief centres or camps and make arrangements for water supply and sanitation in such buildings or places.
10. To perform such other functions as the state government or SDMA may assign to it or as it deems necessary for disaster management in the District.

NOTES AND REFERENCES

1. Annual Report 2016–17, National Disaster Management Authority, Government of India, p. 2.
2. *Ibid*.
3. The Act also provided for the establishment of the State Disaster Management Authorities and the District

Disaster Management Authorities.

4. The National Institute of Disaster Management is located at New Delhi.
5. The Disaster Management (Annual Report of National Authority) Rules, 2006.

PART-IX
OTHER CONSTITUTIONAL DIMENSIONS

64. Co-operative Societies
65. Official Language
66. Public Services
67. Rights and Liabilities of the Government
68. Special Provisions Relating to Certain Classes

64 Co-operative Societies

The *97th Constitutional Amendment Act* of 2011 gave a constitutional status and protection to co-operative societies. In this context, it made the following three changes in the constitution:

1. It made the right to form co-operative societies a fundamental right (Article 19[1]).
2. It included a new Directive Principle of State Policy on promotion of co-operative societies (Article 43-B[2]).
3. It added a new Part IX-B in the Constitution which is entitled "The Co-operative Societies" (Articles 243-ZH to 243-ZT).

CONSTITUTIONAL PROVISIONS

Part IX-B of the constitution contains the following provisions with respect to the cooperative societies:

Incorporation of Co-operative Societies: The state legislature may make provisions for the incorporation, regulation and winding-up of co-operative societies based on the principles of voluntary formation, democratic membercontrol, member-economic participation and autonomous functioning.

Number and Term of Members of Board and its Office Bearers: The board shall consist of such number of directors as may be provided by the state legislature.[3] But, the maximum number of directors of a co-operative society shall not exceed twenty-one.

The state legislature shall provide for the reservation of one seat for the Scheduled Castes or the Scheduled Tribes and two seats for women on the board of every co-operative society having members from such a category of persons.

The term of office of elected members of the board and its office bearers shall be five years from the date of election.[4]

The state legislature shall make provisions for co-option of persons having experience in the field of banking, management, finance or specialisation in any other related field, as members of the board. But, the number of such co-opted members shall not exceed two (in addition to twenty-one directors). Further, the co-opted members shall not have the right to vote in any election of the co-operative society or be eligible to be elected as office bearers of the board.

The functional directors of a co-operative society shall also be the members of the board and such members shall be excluded for the purpose of counting the total number of directors (that is, twenty-one).

Election of Members of Board: The election of a board shall be conducted before the expiry of the term of the board so as to ensure that the newly elected members assume office

immediately on the expiry of the term of the office of members of the outgoing board.

The superintendence, direction and control of the preparation of electoral rolls and the conduct of elections to a co-operative society shall vest in such body, as may be provided by the state legislature.

Supersession and Suspension of Board and Interim Management: No board shall be superseded or kept under suspension for a period exceeding six months.[5] The board may be superseded or kept under suspension in case

(i) Of its persistent default
(ii) Of negligence in the performance of its duties
(iii) Of committing any act prejudicial to the interests of the co-operative society or its members
(iv) Of there being a stalement in the constitution or functions of the board
(v) Of the election body having failed to conduct elections in accordance with the provisions of the State Act.

However, the board of any such co-operative society shall not be superseded or kept under suspension where there is no Government shareholding or loan or financial assistance or any guarantee by the Government.

In case of supersession of a board, the administrator appointed to manage the affairs of such a co-operative society shall arrange for conduct of elections within the period of six months and hand-over the management to the elected board.

Audit of Accounts of Co-operative Societies: The state legislature may make provisions for the maintenance of accounts by the co-operative societies and the auditing of such accounts at least once in each financial year. It shall lay down the minimum qualifications and experience of auditors and auditing firms that shall be eligible for auditing the accounts of the co-operative societies.

Every co-operative society shall be audited by an auditor or auditing firm, appointed by the general body of the co-operative society. But, such an auditor or auditing firm shall be appointed

from a panel approved by the State Government or a body authorised by the State Government on this behalf.

The accounts of every co-operative society shall be audited within six months of the close of the financial year.

The audit report of the accounts of an apex co-operative society shall be laid before the state legislature.

Convening of General Body Meetings: The state legislature may provide that the annual general body meeting of every co-operative society shall be convened within a period of six months of the close of the financial year. *Right of a Member to Get Information:* The state legislature may provide for access to every member of a co-operative society to the books, information and accounts of the co-operative society. It may also make provisions to ensure the participation of members in the management of the co-operative society. Further, it may provide for co-operative education and training for its members.

Returns: Every co-operative society shall file returns, within six months of the close of every financial year, to the authority designated by the State Government. These returns shall include the following matters:

(a) Annual report of its activities
(b) Its audited statement of accounts
(c) Plan for surplus disposal as approved by the general body of the co-operative society
(d) List of amendments to the by-laws of the co-operative society
(e) Declaration regarding date of holding of its general body meeting and conduct of elections when due
(f) Any other information required by the Registrar in pursuance of any of the provisions of the State Act.[6]

Offences and Penalties: The state legislature may make provisions for the offences relating to the co-operative societies and penalties for such offences. Such a law shall include the commission or omission of the following acts as offences:

(a) A co-operative society wilfully makes a false return or furnishes false information

(b) Any person wilfully disobeys any summon, requisition or order issued under the State Act
(c) Any employer who, without sufficient cause, fails to pay to a co-operative society the amount deducted from its employee within a period of fourteen days
(d) Any officer who wilfully fails to handover custody of books, accounts, documents, records, cash, security and other property belonging to a co-operative society to an authorised person
(e) Any person who adopts corrupt practices before, during or after the election of members of the board or office bearers.

Application to Multi-state Co-operative Societies: The provisions of this part shall apply to the multi-state co-operative societies subject to the modification that any reference to the "State Legislature", "State Act" or "State Government" shall be construed as a reference to "Parliament", "Central Act" or "Central Government" respectively.

Application to Union Territories: The provisions of this part shall apply to the Union territories. But, the President may direct that the provisions of this part shall not apply to any Union territory or part thereof as he may specify in the notification.

Continuance of Existing Laws: Any provision of any law relating to co-operative societies in force in a state immediately before the commencement of the Constitution (Ninetyseventh Amendment) Act, 2011, which is inconsistent with the provisions of this part, shall continue to be in force until amended or repealed or until the expiration of one year from such commencement, whichever is less.[7]

REASONS FOR THE 97TH AMENDMENT

The reasons for adding the above provisions in the Constitution by the 97th Constitutional Amendment Act of 2011 are as follows:

1. The co-operative sector, over the years, has made significant contribution to various sectors of national economy and has achieved voluminous growth. However, it has shown weaknesses in safeguarding the interests of the members and fulfilment of objects for which these institutions were organised. There have been instances where elections have been postponed indefinitely and nominated office bearers or administrators have remained in-charge of these institutions for a long time. This reduces the accountability in the management of co-operative societies to their members. Inadequate professionalism in management in many of the co-operative institutions has led to poor services and low productivity. Co-operatives need to run on well established democratic principles and elections held on time and in a free and fair manner. Therefore, there was a need to initiate fundamental reforms to revitalise these institutions in order to ensure their contribution in the economic development of the country and to serve the interests of members and public at large and also to ensure their autonomy, democratic functioning and professional management.
2. The “co-operative societies” is a subject enumerated in Entry 32 of the state list of the Seventh Schedule of the Constitution and the state legislatures have accordingly enacted legislations on co-operative societies. Within the framework of State Acts, growth of co-operatives on large scale was envisaged as part of the efforts for securing social and economic justice and equitable distribution of the fruits of development. It has, however, been experienced that in spite of considerable expansion of co-operatives, their performance in qualitative terms has not been up to the desired level. Considering the need for reforms in the *Co-operative Societies Acts* of the States, consultations with the

State Governments have been held at several occasions and in the conferences of state co-operative ministers. A strong need has been felt for amending the Constitution so as to keep the co-operatives free from unnecessary outside interferences and also to ensure their autonomous organisational set up and their democratic functioning.

3. The Central Government was committed to ensure that the co-operative societies in the country function in a democratic, professional, autonomous and economically sound manner. With a view to bring the necessary reforms, it was proposed to incorporate a new part in the Constitution so as to provide for certain provisions covering the vital aspects of working of co-operative societies like democratic, autonomous and professional functioning. It was expected that these provisions will not only ensure the autonomous and democratic functioning of co-operatives, but also ensure the accountability of management to the members and other stakeholders and shall provide for deterrence for violation of the provisions of the law.

Table 64.1 *Articles Related to Co-operative Societies at a Glance*

Article No.	Subject-matter
243ZH	Definitions
243ZI	Incorporation of Co-operative Societies
243ZJ	Number and Term of Members of Board and its Office Bearers
243ZK	Election of Members of Board
243ZL	Supersession and Suspension of Board and Interim Management
243ZM	Audit of Accounts of Co-operative Societies
243ZN	Convening of General Body Meetings
243ZO	Right of a Member to Get Information
243ZP	Returns
243ZQ	Offences and Penalties

243ZR	Application to Multi-state Co-operative Societies
243ZS	Application to Union Territories
243ZT	Continuance of Existing Laws

NOTES AND REFERENCES

1. In Part III of the Constitution, in Article 19, in clause (1), in sub-clause (c), the words “co-operative societies” were inserted.
2. In Part IV of the Constitution, a new Article 43-B was inserted, which says: “The state shall endeavour to promote voluntary formation, autonomous functioning, democratic control and professional management of cooperative societies”.
3. The “board” means the board of directors or the governing body of a cooperative society, by whatever name called, to which the direction and control of the management of the affairs of a society is entrusted to.
4. An “office bearer” means a president, vice-president, chairperson, vicechairperson, secretary or treasurer of a co-operative society and includes any other person to be elected by the board of any co-operative society.
5. In case of cooperative banks, other than multi-state cooperative banks, this period cannot exceed one year.
6. The “Registrar” means the Central Registrar appointed by the Central Government in relation to the multi-state co-operative societies and the Registrar for co-operative societies appointed by the state government under the law made by the legislature of a state in relation to co-operative societies.
7. February 15, 2012, is the date of commencement of the Constitution (Ninety-seventh Amendment) Act, 2011. The Centre has asked state governments to amend their respective *State Cooperative Society Act* in tune with the Constitution (97th Amendment) Act, 2011 before February 14, 2013.

65 Official Language

Part XVII of the Constitution deals with the official language in Articles 343 to 351. Its provisions are divided into four heads–Language of the Union, Regional languages, Language of the judiciary and texts of laws and Special directives.

LANGUAGE OF THE UNION

The Constitution contains the following provisions in respect of the official language of the Union.

1. Hindi written in *Devanagari* script is to be the official language of the Union. But, the form of numerals to be used for the official purposes of the Union has to be the international form of Indian numerals and not the *Devanagari* form of numerals.
2. However, for a period of fifteen years from the commencement of the Constitution (i.e., from 1950 to 1965), the English language would continue to be used for all the official purposes of the Union for which it was being used before 1950.
3. Even after fifteen years, the Parliament may provide for the continued use of English language for the specified purposes.
4. At the end of five years, and again at the end of ten years, from the commencement of the Constitution, the president should appoint a commission to make recommendations with regard to the progressive use of the Hindi language, restrictions on the use of the English language and other related issues[1] .
5. A committee of Parliament is to be constituted to examine the recommendations of the commission and to report its views on them to the president[2] .

Accordingly, in 1955, the president appointed an Official Language Commission under the chairmanship of B.G. Kher. The commission submitted its report to the President in 1956. The report was examined by a committee of Parliament constituted in 1957 under the chairmanship of Gobind Ballabh Pant. However, another Official Language Commission (as envisaged by the Constitution) was not appointed in 1960.

Subsequently, the Parliament enacted the Official Languages Act in 1963. The act provides for the continued use of English (even after 1965), in addition to Hindi, for all official purposes of the Union and also for the transaction of business in Parliament.

Notably, this act enables the use of English indefinitely (without any time-limit). Further, this act was amended in 1967 to make the use of English, in addition to Hindi, compulsory in certain cases[3] .

REGIONAL LANGUAGES

The Constitution does not specify the official language of different states. In this regard, it makes the following provisions:

1. The legislature of a state may adopt any one or more of the languages in use in the state or Hindi as the official language of that state. Until that is done, English is to continue as official language of that state.

   Under this provision, most of the states have adopted the major regional language as their official language. For example, Andhra Pradesh has adopted Telugu, Kerala–Malayalam, Assam–Assamese, West Bengal–Bengali, Odisha–Odia. The nine northern states of Himachal Pradesh, Uttar Pradesh, Uttarakhand, Madhya Pradesh, Chhattisgarh, Bihar, Jharkhand, Haryana and Rajasthan have adopted Hindi. Gujarat has adopted Hindi in addition to Gujarati. Similarly, Goa has adopted Marathi in addition to Konkani. Jammu and Kashmir has adopted Urdu (and not Kashmiri). On the other hand, certain north-eastern States like Meghalaya, Arunachal Pradesh and Nagaland have adopted English. Notably, the choice of the state is not limited to the languages enumerated in the Eighth Schedule of the Constitution.
2. For the time being, the official language of the Union (i.e., English) would remain the link language for communications between the Union and the states or between various states. But, two or more states are free to agree to use Hindi (instead of English) for communication between themselves. Rajasthan, Uttar Pradesh, Madhya Pradesh and Bihar are some of the states that have entered into such agreements.

   The Official Languages Act (1963) lays down that English should be used for purposes of communication between the Union and the non-Hindi states (that is, the states that have not adopted Hindi as their official language). Further, where Hindi is used for communication between a Hindi and a non-Hindi state, such communication in Hindi should be accompanied by an English translation.

3. When the President (on a demand being made) is satisfied that a substantial proportion of the population of a state desire the use of any language spoken by them to be recognised by that state, then he may direct that such language shall also be officially recognised in that state. This provision aims at protecting the linguistic interests of minorities in the states.

LANGUAGE OF THE JUDICIARY AND TEXTS OF LAWS

The constitutional provisions dealing with the language of the courts and legislation are as follows:

1. Until Parliament provides otherwise, the following are to be in the English language only:
   (a) All proceedings in the Supreme Court and in every high court.
   (b) The authoritative texts of all bills, acts, ordinances, orders, rules, regulations and bye-laws at the Central and state levels[4] .
2. However, the governor of a state, with the previous consent of the president, can authorise the use of Hindi or any other official language of the state, in the proceedings in the high court of the state, but not with respect to the judgements, decrees and orders passed by it. In other words, the judgements, decrees and orders of the high court must continue to be in English only (until Parliament otherwise provides).
3. Similarly, a state legislature can prescribe the use of any language (other than English) with respect to bills, acts, ordinances, orders, rules, regulations or bye-laws, but a translation of the same in the English language is to be published. The Official Languages Act of 1963 lays down that Hindi translation of acts, ordinances, orders, regulations and bye-laws published under the authority of the president are deemed to be authoritative texts. Further, every bill introduced in the Parliament is to be accompanied by a Hindi translation. Similarly, there is to be a Hindi translation of state acts or ordinances in certain cases.

The act also enables the governor of a state, with the previous consent of the president, to authorise the use of Hindi or any other official language of the state for judgements, decrees and orders passed by the high court of the state but they should be accompanied by an English translation. For example, Hindi is

used in Uttar Pradesh, Madhya Pradesh, Bihar and Rajasthan for this purpose.

However, the Parliament has not made any provision for the use of Hindi in the Supreme Court. Hence, the Supreme Court hears only those who petition or appeal in English. In 1971, a petitioner insisted on arguing in Hindi a *habeas corpus* petition in the Supreme Court. But, the Court cancelled his petition on the ground that the language of the Court was English and allowing Hindi would be unconstitutional.

The Authorised Translations (Central Laws) Act of 1973 lays down that a Translation in any regional language specified in the Eight Schedule to the Constitution (other than Hindi) of any central act, ordinance, order, rule, regulation and bye-law published under the authority of the President in the Official Gazette is deemed to be the authoritative texts thereof in such language.

SPECIAL DIRECTIVES

The Constitution contains certain special directives to protect the interests of linguistic minorities and to promote the development of Hindi language. There are:

Protection of Linguistic Minorities

In this regard, the Constitution makes the following provisions:

1. Every aggrieved person has the right to submit a representation for the redress of any grievance to any officer or authority of the Union or a state in any of the languages used in the Union or in the state, as the case may be. This means that a representation cannot be rejected on the ground that it is not in the official language.
2. Every state and a local authority in the state should provide adequate facilities for instruction in the mother-tongue at the primary stage of education to children belonging to linguistic minority groups. The president can issue necessary directions for this purpose[5] .
3. The president should appoint a special officer for linguistic minorities to investigate all matters relating to the constitutional safeguards for linguistic minorities and to report to him. The president should place all such reports before the Parliament and send to the state government concerned[6] .

Development of Hindi Language

The Constitution imposes a duty upon the Centre to promote the spread and development of the Hindi language so that it may become the *lingua franca* of the composite culture of India[7] .

Further, the Centre is directed to secure the enrichment of Hindi by assimilating the forms, style and expressions used in hindustani and in other languages specified in the Eighth Schedule and by drawing its vocabulary, primarily on sanskrit and secondarily on other languages.

At present (2019), the Eighth Schedule of the Constitution specifies 22 languages (originally 14 languages). These are Assamese, Bengali, Bodo, Dogri (Dongri), Gujarati, Hindi, Kannada, Kashmiri, Konkani, Mathili (Maithili), Malayalam, Manipuri, Marathi, Nepali, Odia[8] , Punjabi, Sanskrit, Santhali, Sindhi, Tamil, Telugu and Urdu. Sindhi was added by the 21st Amendment Act of 1967; Konkani, Manipuri and Nepali were added by the 71st Amendment Act of 1992; and Bodo, Dongri, Maithili and Santhali were added by the 92nd Amendment Act of 2003.

In terms of the Constitution provisions, there are two objectives behind the specification of the above regional languages in the Eighth Schedule:

(a) the members of these languages are to be given representation in the Official Language Commission; and
(b) the forms, style and expression of these languages are to be used for the enrichment of the Hindi language.

COMMITTEE OF PARLIAMENT ON OFFICIAL LANGUAGE[9]

The Official Languages Act (1963) provided for the setting up of a Committee of Parliament on Official Language to review the progress made in the use of Hindi for the official purpose of the Union. Under the Act, this Committee was to be constituted after ten years of the promulgation of the Act (i.e., 26th January, 1965). Accordingly, this Committee was set up in 1976. This Committee comprises of 30 members of Parliament, 20 from Lok Sabha and 10 from Rajya Sabha.

The Act contains the following provisions relating to the composition and functions of the committee:

1. After the expiration of ten years from the date on which the Act comes into force, there shall be constituted a Committee on Official Language, on a resolution to that effect being moved in either House of Parliament with the previous sanction of the President and passed by both Houses.
2. The Committee shall consist of thirty members, of whom twenty shall be members of the House of the People and ten shall be members of the Council of States to be elected respectively by the members of the House of the People and the members of the Council of States in accordance with the system of proportional representation by means of the single transferable vote.
3. It shall be the duty of the Committee to review the progress made in the use of Hindi for the official purposes of the Union and submit a report to the President making recommendations thereon and the President shall cause the report to be laid before each House of Parliament and sent it to all the State Governments.
4. The President may, after consideration of the report, and the views, expressed by the State Governments thereon, issue directions in accordance with the whole or any part of the report.

The Chairman of the Committee is elected by the members of the Committee. As a convention, the Union Home Minister has

been elected as Chairman of the Committee from time to time.

The Committee is required to submit its report alongwith its recommendations to the President after reviewing the position regarding the use of Hindi in Central Government Offices on the basis of its observations. Apart from adopting other methods for assessing the factual position, the Committee decided to inspect certain Central Government offices representing various fields of activities to motivate the Central Government offices to adopt maximum usage of Hindi so that the objectives of the Constitution and Official Languages Act provisions could be achieved. With this end in view, the Committee set up three sub-Committees and for the purpose of inspection by the three sub-Committees, the various Ministries/Departments etc. were divided into three different groups.

Further, in order to assess the use of Official Language for various purposes and other matters connected therewith, it was also decided to invite eminent persons from various fields such as from education, judiciary, voluntary organizations and the Secretaries of the Ministries/Departments etc., for oral evidence.

The progressive use of Hindi in the Central Government offices is being reviewed by the Committee in the background of the provisions relating to Official Language as provided by the Constitution; the Official Languages Act, 1963 and the Rules framed thereunder. The Committee also takes note of the circulars/ instructions etc. issued by the Government in this regard from time to time. The terms of reference of the Committee being comprehensive, it has also been examining other relevant aspects like the medium of instructions in schools, colleges and the universities; mode of recruitment to Central Government services and medium of departmental examination etc. Taking into consideration the magnitude of various aspects of the Official Language policy and keeping in view the present circumstances, the Committee in its meeting held in June, 1985 and August, 1986 decided to present its report to the President in parts; each part relating to a particular aspect of the Official Language policy.

The Secretariat of the Committee is headed by the Secretary of the Committee. The Secretary is assisted by the officers of the level of Under Secretary and other officials. They extend all

required assistance in performing the various activities of the Committee. For administrative purposes, this office is subordinate office of Department of Official Language, Ministry of Home Affairs.

CLASSICAL LANGUAGE STATUS

In 2004, the Government of India decided to create new category of languages called as “classical languages”. In 2006, it laid down the criteria for conferring the classical language status.

So far (2019), the six languages are granted the classical language status. This is shown below in Table 65.1.

Benefits

Once a language is declared classical, it gets financial assistance for setting up a centre of excellence for the study of that language and also opens up an avenue for two major awards for scholars of eminence. Besides, the University Grants Commission can be requested to create - to begin with at least in Central Universities - a certain number of professional chairs for classical languages for scholars of eminence in the language.[10]

Table 65.1 *Languages conferred with Classical Language Status*

Sl. No.	Languages	Year of Declaration
1.	Tamil	2004
2.	Sanskrit	2005
3.	Telugu	2008
4.	Kannada	2008
5.	Malayalam	2013
6.	Odia	2014

Table 65.2 *Articles Related to Official Language at a Glance*

Article No.	Subject-matter
	Language of the Union
343.	Official language of the Union
344.	Commission and Committee of Parliament on official language

Regional Languages	
345.	Official language or languages of a state
346.	Official language for communication between one state and another or between a state and the Union
347.	Special provision relating to language spoken by a section of the population of a state
Language of the Supreme Court, High Courts, etc.	
348.	Language to be used in the Supreme Court and in the High Courts and for Acts, Bills, etc.
349.	Special procedure for enactment of certain laws relating to language
Special Directives	
350.	Language to be used in representation for redress of grievances
350A.	Facilities for instruction in mother-tongue at primary stage
350B.	Special Officer for linguistic minorities
351.	Directive for development of the Hindi language

Criteria

The criteria for declaring a language as classical mandates high antiquity of its early texts/recorded history over a period of 1,500–2,000 years, a body of ancient lit-erature/texts which is considered a valuable heritage by generations of speakers and a literary tradition that is original and not borrowed from another speech community. Also since the classical language and literature is distinct from the modern, there can also be a discontinuity between the classical language and its later forms or its offshoots.[11]

NOTES AND REFERENCES

1. The Commission was to consist of a chairman and other members representing the different languages specified in the Eighth Schedule of the Constitution.
2. The Committee was to consist of 30 members (20 from Lok Sabha and 10 from Rajya Sabha), to be elected in accordance with the system of proportional representation by means of the single transferable vote.
3. These include: (a) resolutions, general orders, rules, notifications, administrative or other reports or press communications issued by the Central government; (b) administrative and other reports and official papers laid before Parliament; and (c) contracts and agreements executed, licences, permits, notices, etc, issued by the Central government or by a corporation or a company owned by the Central government.
4. For language in Parliament and a state legislature, see the respective Chapters (i.e., 22 and 33).
5. This provision was added by the 7th Amendment Act of 1956 on the recommendation of the States Reorganisation Commission.
6. *Ibid*.
7. In 1976, the Supreme Court declared Tamil Nadu's pension scheme to anti-Hindi agitators as unconstitutional.
8. The 96th Amendment Act of 2011 substituted "Odia" for "Oriya".
9. This information is down loaded from the website of the Committee of Parliament on Official Language, Ministry of Home Affairs, Government of India.
10. *The Hindu*, "Odia gets classical language status", February 20, 2014.
11. *Ibid*.

66 Public Services

CLASSIFICATION OF SERVICES

The public services (civil services or government services) in India are classified into three categories–all-India services, Central services and state services. Their meaning and composition are explained below:

All-India Services

All-India services are those services which are common to both Central and state governments. The members of these services occupy top positions (or key posts) under both the Centre and the states and serve them by turns.

At present, there are three all-India services. They are:

1. Indian Administrative Service (IAS)
2. Indian Police Service (IPS)
3. Indian Forest Service (IFS)

In 1947, the Indian Civil Service (ICS) was replaced by IAS, and the Indian Police (IP) was replaced by IPS and were recognised by the Constitution as all-India services. In 1966, the Indian Forest Service was established as the third all-India service[1] .

The All-India Services Act of 1951 authorised the Central government to make rules in consultation with the state governments for the regulation of recruitment and service conditions of the members of all-India services. The members of these services are recruited and trained by the Central government but are assigned to different states for work. They belong to different state cadres; the Centre having no cadre of its own in this regard. They serve the Central government on deputation and after completing their fixed tenure they go back to their respective states. The Central government obtains the

services of these officers on deputation under the well-known tenure system. It must be noted here that irrespective of their division among different states, each of these all-India services form a single service with common rights and status and uniform scales of pay throughout the country. Their salaries and pensions are met by the states.

The all-India services are controlled jointly by the Central and state governments. The ultimate control lies with the Central government while the immediate control is vested in the state governments. Any disciplinary action (imposition of penalties) against these officers can only be taken by the Central government.

Sardar Vallabhbhai Patel was the chief protagonist of all-India services in the Constituent Assembly. Hence, he came to be regarded as the 'Father of all-India Services'.

Central Services

The personnel of Central services work under the exclusive jurisdiction of the Central government. They hold specialised (functional and technical) positions in various departments of the Central government.

Before Independence, the Central services were classified into class-I, class-II, subordinate and inferior services. After Independence, the nomenclature of subordinate and inferior services was replaced by class-III and class-IV services. Again in 1974, the classification of Central services into class-I, class-II, class-III and class-IV was changed to group A, group B, group C and group D, respectively[2] .

At present, there are 62 group A Central services. Some of them are:

1. Central Engineering Service.
2. Central Health Service.
3. Central Information Service.
4. Central Legal Service.
5. Central Secretariat Service.
6. Indian Audit and Accounts Service.
7. Indian Defence Accounts Service.
8. Indian Economic Service.

9. Indian Foreign Service.
10. Indian Meteorological Service.
11. Indian Postal Service.
12. Indian Revenue Service (Customs, Excise and Income Tax)
13. Indian Statistical Service.
14. Overseas Communication Service.
15. Railway Personnel Service.

Most of the above cadres of group A Central services have also corresponding group B services. The group C Central services consists of clerical personnel while group D consists of manual personnel. Thus group A and group B comprises of gazetted officers while group C and group D are non-gazetted.

Among all, the Indian Foreign Service (IFS) is the highest central service in terms of prestige, status, pay and emoluments. In fact, it (though a central service) competes with the all-India services in position, status and pay scales. It comes next to the IAS in ranking and its pay scale is higher than the IPS.

State Services

The personnel of state services work under the exclusive jurisdiction of the state government. They hold different positions (general, functional and technical) in the departments of the state government. However, they occupy lower positions (in the administrative hierarchy of the state) than those held by the members of the all-India services (IAS, IPS and IFS).

The number of services in a state differ from state to state. The services that are common to all the states are:

1. Civil Service.
2. Police Service.
3. Forest Service.
4. Agricultural Service.
5. Medical Service.
6. Veterinary Service.
7. Fisheries Service.
8. Judicial Service.
9. Public Health Service.
10. Educational Service.
11. Co-operative Service.

12. Registration Service.
13. Sales Tax Service.
14. Jail Service.
15. Service of Engineers.

Each of these services is named after the state, that is, name of the state is added as a prefix. For example, in Andhra Pradesh (AP), they are known as AP Civil Service, AP Police Service, AP Forest Service, AP Agricultural Service, AP Medical Service, AP Veterinary Service, AP Fisheries Service, AP Judicial Service, and so on. Among all the state services, the civil service (also known as the administrative service) is the most prestigious.

Like the Central services, the state services are also classified into four categories: class I (group I or group A), class II (group II or group B), class III (group III or group C) and class IV (group IV or group D).

Further, the state services are also classified into gazetted class and non-gazetted class. Usually, Class I (Group-A) and Class-II (Group-B) Services are gazetted classes while Class-III (Group-C) and Class-IV (Group-D) services are non-gazetted classes. The names of the members of gazetted class are published in the Government Gazette for appointment, transfer, promotion and retirement, while those of the non-gazetted are not published. Further, the members of the gazetted class enjoy some privileges which are denied to the members of non-gazetted class. Also, the members of the gazetted class are called ‘officers’ while those of non-gazetted are called ‘employees’.

The All-India Services Act of 1951 specifies that senior posts not exceeding thirty-three and one third per cent in the Indian Administrative Service (IAS), Indian Police Service (IPS) and Indian Forest Service (IFS) are required to be filled in by promotion of officers employed in the state services. Such promotions are made on the recommendation of selection committee constituted for this purpose in each state. Such a committee is presided over by the Chairman or a member of UPSC.

CONSTITUTIONAL PROVISIONS

Articles 308 to 314 in part XIV of the Constitution contain provisions with regard to all-India services, Central services and state services.

1. Recruitment and Service Conditions

Article 309 empowers the Parliament and the state legislatures to regulate the recruitment and the conditions of service of the persons appointed to public services and posts under the Centre and the states, respectively. Until such laws are made, the president or the governor can make rules to regulate these matters.

Recruitment includes any method provided for inducting a person in public service like appointment, selection, deputation, promotion and appointment by transfer.

The conditions of service of a public servant includes pay, allowances, periodical increments, leave, promotion, tenure or termination of service, transfer, deputation, various types of rights, disciplinary action, holidays, hours of work and retirement benefits like pension, provident fund, gratuity and so on.

Under this provision, the Parliament or the state legislature can impose ‘reasonable’ restrictions on the Fundamental Rights of public servants in the interests of integrity, honesty, efficiency, discipline, impartiality, secrecy, neutrality, anonymity, devotion to duty and so on. Such restrictions are mentioned in the conduct rules like Central Services (Conduct) Rules, Railway Services (Conduct) Rules and so on.

2. Tenure of Office

According to Article 310, members of the defence services, the civil services of the Centre and the all-India services or persons holding military posts or civil posts[3] under the Centre, hold office during the pleasure of the president. Similarly, members of the civil services of a state or persons holding civil posts under a state, hold office during the pleasure of the governor of the state.

However, there is an exception to this general rule of dismissal at pleasure. The president or the governor may (in order to secure the services of a person having special qualifications) provide for the payment of compensation to him in two cases: (i) if the post is abolished before the expiration of the contractual period, or (ii) if he is required to vacate that post for reasons not connected with misconduct on his part. Notably, such a contract can be made only with a new entrant, that is, a person who is not already a member of a defence service, a civil service of the Centre, an all-India service or a civil service of a state.

3. Safeguards to Civil Servants

Article 311 places two restrictions on the above 'doctrine of pleasure'. In other words, it provides two safeguards to civil servants against any arbitrary dismissal from their posts:

(a) A civil servant cannot be dismissed or removed[4] by an authority subordinate to that by which he was appointed.
(b) A civil servant cannot be dismissed or removed or reduced in rank[5] except after an inquiry in which he has been informed of the charges against him and given a reasonable opportunity of being heard in respect of those charges.

The above two safeguards are available only to the members of the civil services of the Centre, the all-India services, the civil services of a state or to persons holding civil posts under the Centre or a state and not to the members of defence services or persons holding military posts.

However, the second safeguard (holding inquiry) is not available in the following three cases:

(a) Where a civil servant is dismissed or removed or reduced in rank on the ground of conduct which has led to his conviction on a criminal charge; or
(b) Where the authority empowered to dismiss or remove a civil servant or to reduce him in rank is satisfied that for some reason (to be recorded in writing), it is not reasonably practicable to hold such inquiry; or
(c) Where the president or the governor is satisfied that in the interest of the security of the state, it is not expedient to hold

such inquiry.

Originally, the opportunity of being heard was given to a civil servant at two stages–at the inquiry stage, and at the punishment stage. But, the 42nd Amendment Act of 1976 abolished the provision for second opportunity (that is, the right of a civil servant to make representation against the punishment proposed as a result of the findings of the inquiry). Hence, the present position is that where it is proposed (after inquiry) to impose upon a civil servant the punishment of dismissal, removal or reduction in rank, it may be imposed on the basis of the evidence adduced at the inquiry without giving him any opportunity of making representation on the penalty proposed.

The Supreme Court held that the expression 'reasonable opportunity of being heard' envisaged to a civil servant (in the second safeguard mentioned above) includes:

(a) an opportunity to deny his guilt and establish his innocence which he can only do if he is told what the charges levelled against him are and the allegations on which such charges are based;
(b) an opportunity to defend himself by cross-examining the witnesses produced against him and by examining himself or any other witnesses in support of his defence; and
(c) the disciplinary authority must supply a copy of the inquiry officer's report to the delinquent civil servant for observations and comments before the disciplinary authority considers the report.

4. All-India Services

Article 312 makes the following provisions in respect of all-India services:

(a) The Parliament can create new allIndia services (including an all-India judicial service), if the Rajya Sabha passes a resolution declaring that it is necessary or expedient in the national interest to do so. Such a resolution in the Rajya Sabha should be supported by two-thirds of the members present and voting. This power of recommendation is given to the Rajya Sabha to protect the interests of states in the Indian federal system.

(b) Parliament can regulate the recruitment and conditions of service of persons appointed to all-India services. Accordingly, the Parliament has enacted the All-India Services Act, 1951 for the purpose.

(c) The services known at the commencement of the Constitution (that is, January 26, 1950) as the Indian Administrative Service and the Indian Police Service are deemed to be services created by Parliament under this provision.

(d) The all-India judicial service should not include any post inferior to that of a district judge[6]. A law providing for the creation of this service is not to be deemed as an amendment of the Constitution for the purposes of Article 368.

Though the 42nd Amendment Act of 1976 made the provision for the creation of allIndia judicial service, no such law has been made so far.

5. Other Provisions

Article 312 A (inserted by the 28th Amendment Act of 1972) confers powers on the Parliament to vary or revoke the conditions of service of persons who were appointed to a civil service of the Crown in India before 1950. Article 313 deals with transitional provisions and says that until otherwise provided, all the laws in force before 1950 and applicable to any public service would continue. Article 314 which made provision for protection of existing officers of certain services was repealed by the 28th Amendment Act of 1972.

Table 66.1 *Articles Related to Public Services at a Glance*

Article No.	Subject-matter
308.	Interpretation
309.	Recruitment and conditions of service of persons serving the Union or a state
310.	Tenure of office of persons serving the Union or a state

311.	Dismissal, removal or reduction in rank of persons employed in civil capacities under the Union or a state
312.	All-India Services
312A.	Power of Parliament to vary or revoke conditions of service of officers of certain services
313.	Transitional provisions
314.	Provision for protection of existing officers of certain services (Repealed)

NOTES AND REFERENCES

1. In 1963, a provision was made for the creation of three more all-India services. They were Indian Forest Service, Indian Medical and Health Service and Indian Service of Engineers. However, out of these three, only the Indian Forest Service came into existence in 1966.
2. This was done on the recommendation of the Third Pay Commission (1970–1973) while the earlier change was done on the recommendation of the First Pay Commission (1946–1947).
3. A 'civil post' means an appointment or office or employment on the civil side of the administration as distinguished from the military side.
4. The difference between dismissal and removal is that the former disqualifies for future employment under the government while the latter does not disqualify for future employment under the government.
5. 'Reduction in rank' means reduction from a higher to a lower rank or post. It is a penalty imposed on a civil servant.
6. The expression 'district judge' includes judge of a city civil court, additional district judge, joint district judge, assistant district judge, chief judge of a small cause court, chief presidency magistrate, additional chief

presidency magistrate, sessions judge, additional sessions judge and assistant sessions judge.

67 Rights and Liabilities of the Government

Articles 294 to 300 in Part XII of the Constitution deal with the property, contracts, rights, liabilities, obligations and suits of the Union and the states. In this regard, the Constitution makes the Union or the states as juristic (legal) persons.

PROPERTY OF THE UNION AND THE STATES

1. Succession

All property and assets that were vested in the Dominion of India or a province or an Indian princely state, before the commencement of the present Constitution, became vested in the Union or the corresponding state.

Similarly, all rights, liabilities and obligations of the government of the dominion of India or a province or an Indian state would now be the rights, liabilities and obligations of the Government of India or the corresponding state.

2. Escheat, Lapse and *Bona Vacantia*

Any property in India that would have accrued to King of England or ruler of Indian state (princely) by escheat (death of a person inte-state without any heir), lapse (termination of rights through disuse or failure to follow appropriate procedures) or *bona vacantia* (property found without any owner) for want of a rightful owner, would now vest in the state if the property is situated there, and in the Union, in any other case. In all these three cases, the property accrues to the government as there is no rightful owner (claimant).

3. Sea-Wealth

All lands, minerals and other things of value under the waters of the ocean within the territorial waters of India, the continental shelf of India and the exclusive economic zone of India vests in the Union. Hence, a state near the ocean cannot claim jurisdiction over these things.

India's territorial waters extend to a distance of 12 nautical miles from the appropriate base line. Similarly, India's exclusive economic zone extends upto 200 nautical miles[1] .

4. Compulsory Acquisition by Law

The Parliament as well as the state legislatures are empowered to make laws for the compulsory acquisition and requisitioning of private property by the governments. Further, the 44th Amendment Act (1978) has also abolished the constitutional obligation to pay compensation in this regard except in two cases: (a) when the government acquires the property of a minority educational institution; and (b) when the government acquires the land held by a person under his personal cultivation and the land is within the statutory ceiling limits[2] .

5. Acquisition under Executive Power

The Union or a state can acquire, hold and dispose property under the exercise of its executive power.

Further, the executive power of the Union or a state extends to the carrying on any trade or business within and in other states also.

SUITS BY OR AGAINST THE GOVERNMENT

Article 300 of the Constitution deals with the suits by or against the Government in India. It lays down that the Government of India may sue or be sued by the name of the Union of India and government of a state may sue or be sued by the name of that state, eg, State of Andhra Pradesh or State of Uttar Pradesh and so on. Thus, the Union of India and states are legal entities (juristic personalities) for purposes of suits and proceedings, not the Government of the Union or government of states.

Regarding the extent of the governmental liability, the Constitution (Article 300) declares that the Union of India or states can sue or be sued in relation to their respective affairs in the like cases as the dominion of India and the corresponding provinces or Indian states might have sued or been sued before the Constitution. This provision is subject to any law made by Parliament or a state legislature. But, no such law has been enacted so far. Hence, at present, the position in this respect remains the same as it existed before the Constitution. In the pre-Constitution period (i.e., from the days of the East India Company up to the commencement of the Constitution in 1950), the government was suable for contracts but not for torts (wrongs committed by its servants) in respect of its sovereign functions. This is explained in detail as follows:

1. Liability for Contracts

Under the exercise of its executive power, the Union or a state can enter into contracts for the acquisition, holding and disposal of property, or to carry on any trade or business, or for any other purpose. But, the Constitution lays down three conditions which must be fulfilled by such contracts:

(a) They must be expressed to be made by the president or governor, as the case may be;
(b) They must be executed on behalf of the president or governor, as the case may be; and
(c) They must be executed by such person or in such manner as the president or governor may direct or authorise.

These conditions are mandatory and not merely directory in nature. Failure to comply with them nullifies the contracts and renders them void and unenforceable in the courts.

Further, the president or the governor is not personally liable in respect of any contract executed in his name. Similarly, the officer executing the contract is also not personally liable. This immunity is purely personal and does not immunize the government from a contractual liability, making the government suable in contracts. This means that the contractual liability of the Union government and the state governments is the same as that of an individual under the ordinary law of contract, which has been the position in India since the days of the East India Company.

2. Liability for Torts

In the beginning, the East India Company was only a trading body. Gradually, it acquired territories in India and became a sovereign authority. The Company was suable for its functions as a trader but not as a sovereign. This immunity of the Company in respect of its sovereign functions was based on the English Common Law maxim that the 'King can do no wrong', which means that the King was not liable for wrongs of his servants. This traditional immunity of the State (i.e., Crown) in Britain from any legal liability for any action has been done away by the Crown Proceedings Act (1947). However, the position in India still remains the same.

Therefore, the government (Union or states) in India can be sued for torts (civil wrongs) committed by its officials only in the exercise of its non-sovereign functions but not in the sovereign functions like administering justice, constructing a military road, commandeering goods during war, etc. This distinction between the sovereign and nonsovereign functions of the Government in India and the immunity of the government in respect of its sovereign functions was established in the famous *P and O Steam Navigation Company* case[3] (1861). This was reaffirmed by the Supreme Court in the post-independence era in the *Kasturilal* case[4] (1965). However, after this case, the Supreme Court started giving a restrictive interpretation to sovereign functions of the

government and awarded compensation to victims in a large number of cases.

In Nagendra Rao Case[4a] (1994), the Supreme Court criticised the doctrine of sovereign immunity of the State and adopted a liberal approach with respect to the tortuous liability of the State. It ruled that when a citizen suffers any damage due to the negligent act of the servants of the State, the State would be liable to pay compensation for it and the State cannot avoid this liability on the ground of sovereign immunity. It held that in the modern sense, the distinction between sovereign and non-sovereign functions does not exist. It laid down the proposition that barring a few functions, the State cannot claim any immunity. Its observations, in this case, are as follows:

1. No civilised system can permit an executive to play with the people of its country and claim that it is entitled to act in any manner as it is sovereign. The concept of public interest has changed with structural change in the society. No legal or political system today can place the State above law as it is unjust and unfair for a citizen to be deprived of his property illegally by negligent act of officers of the State without any remedy.
2. The modern social thinking of progressive societies and the judicial approach is to do away with archaic State protection and place the State or the Government at par with any other juristic legal entity. Any water-tight compartmen-talisation of the functions of the State as “sovereign” and “non-sovereign” or “governmental” and “non-governmental” is not sound. It is contrary to modern jurisprudential thinking.
3. The need of the State, duty of its officials and right of the citizens are required to be reconciled so that the rule of law in a welfare State is not shaken. In a welfare State, the functions of the State are not only the defence of the country or administration of justice or maintaining law and order but it extends to regulating and controlling the activities of the people in almost every sphere–educational, commercial, social, economic, political and even marital.
4. The demarcating line between sovereign and non-sovereign powers for which no rational basis survives has largely

disappeared. Therefore, barring functions such as administration of justice, maintenance of law and order and repression of crime etc., which are among the primary and inalienable functions of a constitutional Government, the State cannot claim any immunity.

In the above case, the Supreme Court did not overrule its judgement in the Kasturilal case (1965). However, it said that it is applicable to rare and limited cases.

In Common Cause Case[4b] (1999), the Supreme Court again examined the whole doctrine and rejected the sovereign immunity rule. The Court held that the rule of State liability as laid down in P. & O. Steam Navigation Company case is very outmoded. It said that in modern times when the State activities have been considerably increased it is very difficult to draw a line between its sovereign and non-sovereign functions. The increased activities of the State have made a deep impression on all facets of citizens' life, and therefore, the liability of the State must be made co-extensive with the modern concept of a welfare State. The State must be liable for all tortuous acts of its employees, whether done in exercise of sovereign or non-sovereign powers[4c]. Finally, the court observed that the efficacy of Kasturilal case as a binding precedent has been eroded.

In the Prisoner's Murder case[4d] (2000), the Supreme Court ruled that in the process of judicial advancement Kasturilal case has paled into insignificance and is no longer of any binding value.

SUITS AGAINST PUBLIC OFFICIALS

1. President and Governor

The Constitution confers certain immunities to the president of India and governor of states with regard to their official acts and personal acts. These are:

(a) Official Acts

The president and the governors cannot be sued during the term of their office or thereafter, for any act done by them in the exercise and performance of their official powers and duties. However, the official conduct of the president can be reviewed by a court, tribunal or any other body authorised by either House of Parliament to investigate charges for impeachment. Further, the aggrieved person can bring appropriate proceedings against the Union of India instead of the president and the state instead of the Governor of that state.

(b) Personal Acts

No criminal proceedings can be started against the president and the governors in respect of their personal acts nor can they be arrested or imprisoned. This immunity is limited to the period of the term of their office only and does not extend beyond that. However, civil proceedings can be started against them during their term of office in respect of their personal acts after giving two months' advance notice.

2. Ministers

The Constitution does not grant any immunity to the ministers for their official acts. But, since they are not required to countersign (as in Britain) the official acts of the president and the governors, they are not liable in the courts for those acts[5]. Moreover, they are not liable for the official acts done by the president and the governors on their advice as the courts are debarred from inquiring into such advice. However, the ministers do not enjoy

any immunity for their personal acts, and can be sued for crimes as well as torts in the ordinary courts like common citizens.

3. Judicial Officers

The judicial officers enjoy immunity from any liability in respect of their official acts and hence, cannot be sued. The Judicial Officers Protection Act (1850) lays down that, 'no judge, magistrate, justice of peace, collector or other person acting judicially shall be liable to be sued in any civil court for any act done by him in the discharge of his official duty'.

4. Civil Servants

Under the Constitution, the civil servants are conferred personal immunity from legal liability for official contracts. This means that the civil servant who made a contract in his official capacity is not personally liable in respect of that contract but it is the government (Central or state) that is liable for the contract. But, if the contract is made without complying the conditions specified in the Constitution, then the civil servant who made the contract is personally liable. Further, the civil servants also enjoy immunity from legal liability for their tortious acts in respect of the sovereign functions of the government. In other cases, the liability of the civil servants for torts or illegal acts is the same as of any ordinary citizen. Civil proceedings can be instituted against them for anything done in their official capacity after giving a two months' advance notice. But, no such notice is required when the action is to be brought against them for the acts done outside the scope of their official duties. Criminal proceedings can be instituted against them for acts done in their official capacity, with the prior permission of the president or the governor, where necessary[6] .

Table 67.1 *Articles Related to Rights and Liabilities of the Government at a Glance*

Article No.	Subject-matter
294.	Succession to property, assets, rights, liabilities and obligations in certain cases

295.	Succession to property, assets, rights, liabilities and obligations in other cases
296.	Property accruing by escheat or lapse or as *bona vacantia*
297.	Things of value within territorial waters or continental shelf and resources of the exclusive economic zone to vest in the Union
298.	Power to carry on trade, etc.
299.	Contracts
300.	Suits and proceedings
361.	Protection (immunities) of President and Governors

NOTES AND REFERENCES

1. Under the Territorial Waters, Continental Shelf, Exclusive Economic Zone and other Maritime Zones Act, 1976, passed by the Parliament after the 40th Constitutional Amendment Act, 1976.
2. The first provision was added by the 44th Amendment Act (1978). This amendment abolished the Fundamental Right to property and made it a legal right. The second provision was added by the 17th Amendment Act (1964).
3. *Peninsular and Oriental Steam Navigation Company* v. *Secretary of State for India,* (1861).
4. *Kasturilal* v. *State of UP*, (1965).

4a. *N. Nagendra Rao & Co.* v. *State of Andhra Pradesh* (1994).

4b. *Common Cause, Registered Society* v. *Union of India* (1999).

4c. J.N. Pandey, *The Constitutional Law of India*, 49th Edition, Central Law Agency, p. 682.

4d. *State of A.P.* v. *Challa Ramkrishna Reddy* (2000).

5. In Britain, the ministers are required to countersign the official acts of the crown and are held liable in the courts for those acts.
6. Criminal Procedure Code says–where a public servant who is not removable from his office save by or with the sanction of the Central or state government is accused of an offence, committed by him while acting or purporting to act in the discharge of his official duty, no court can take cognizance of such offence without the previous sanction of the Central government or the state government, as the case may be.

68 Special Provisions Relating to Certain Classes

RATIONALE OF SPECIAL PROVISIONS

In order to realise the objectives of equality and justice as laid down in the Preamble, the Constitution makes special provisions for the scheduled castes (SCs), the scheduled tribes (STs), the backward classes (BCs) and the Anglo-Indians. These special provisions are contained in Part XVI of the Constitution from Articles 330 to 342A. *They are related to the following:*

1. Reservation in Legislatures
2. Special Representation in Legislatures
3. Reservation in Services and Posts
4. Educational Grants
5. Appointment of National Commissions
6. Appointment of Commissions of Investigation

These special provisions can be classified into the following broad categories:

(a) Permanent and Temporary – Some of them are a permanent feature of the Constitution, while some others continue to operate only for a specified period.

(b) Protective and Developmental – Some of them aim at protecting these classes from all forms of injustice and exploitation, while some others aim at promoting their socio-economic interests.

SPECIFICATION OF CLASSES

The Constitution does not specify the castes or tribes which are to be called the SCs or the STs. It leaves to the President the power to specify as to what castes or tribes in each state and union territory are to be treated as the SCs and STs. Thus, the lists of the SCs or STs vary from state to state and union territory to union territory. In case of the states, the President issues the notification after consulting the governor of the state concerned. But, any inclusion or exclusion of any caste or tribe from Presidential notification can be done only by the Parliament and not by a subsequent Presidential notification. Presidents have issued several orders specifying the SCs and STs in different states and union territories and these have also been amended by the Parliament.[1]

Similarly, the constitution has not specified the classes of citizens who are to be called the socially and educationally backward classes, also known as Other Backward Classes (OBCs). The 102nd Amendment Act of 2018 empowered the President to specify the socially and educationally backward classes in relation to a state or union territory. In case of a state, the President issues the notification after consultation with the governor of the state concerned. But, any inclusion in or exclusion from the Central List of socially and educationally backward classes specified in a Presidential notification can be done only by the Parliament and not by a subsequent Presidential notification[2] .

Unlike in the case of SCs, STs and OBCs, the Constitution has defined the persons who belong to the Anglo-Indian community. Accordingly, ‘an Anglo-Indian means a person whose father or any of whose other male progenitors in the male line is or was of European descent but who is domiciled within the territory of India and is or was born within such territory of parents habitually resident therein and not established there for temporary purposes only’.

COMPONENTS OF SPECIAL PROVISIONS

1. ***Reservation for SCs and STs and Special Representation for Anglo-Indians in Legislatures:*** Seats are to be reserved for the SCs and STs in the Lok Sabha and the state legislative assemblies on the basis of population ratios.

   The President can nominate two members of the Anglo-Indian community to the Lok Sabha, if the community is not adequately represented. Similarly, the governor of a state can nominate one member of the Anglo-Indian community to the state legislative assembly, if the community is not adequately represented.

   Originally, these two provisions of reservation and special representation were to operate for ten years (i.e., up to 1960) only. But this duration has been extended continuously since then by ten years each time. Now, under the *95th Amendment Act* of 2009, these two provisions of reservation and special representation are to last until 2020.[3]

   The reasons for the extension of the above two provisions of reservation and special representation by the 95th Amendment Act of 2009 are as follows[3a]:

   (i) Article 334 of the Constitution lays down that the provisions of the Constitution relating to the reservation of seats for the Scheduled Castes and the Scheduled Tribes and the representation of the Anglo-Indian community by nomination in the House of the People and the Legislative Assemblies of the States shall cease to have effect on the expiration of the period of sixty years from the commencement of the Constitution. In other words, these provisions will cease to have effect on the 25th January, 2010, if not extended further.

   (ii) Although the Scheduled Castes and the Scheduled Tribes have made considerable progress in the last sixty years, the reasons which weighed with the Constituent Assembly in making provisions with regard to the aforesaid reservation of seats and nomination of

members have not ceased to exist. It is, therefore, proposed to continue the reservation for the Scheduled Castes and the Scheduled Tribes and the representation of the Anglo-Indian community by nomination for a further period of ten years.

The reason for this special representation to the Anglo-Indians is as follows: “Anglo-Indians constitute a religious, social, as well as a linguistic minority. These provisions were necessary, for, otherwise, being numerically an extremely small community, and being interspersed all over India, the Anglo-Indians could not hope to get any seat in any legislature through election”.[4]

2. ***Claims of SCs and STs to Services and Posts:*** The claims of the SCs and STs are to be taken into consideration while making appointments to the public services of the Centre and the states, without sacrificing the efficiency of administration. However, the *82nd Amendment Act* of 2000 provides for making of any provision in favour of the SCs and STs for relaxation in qualifying marks in any examination or lowering the standards of evaluation, for reservation in matters of promotion to the public services of the Centre and the states.
3. ***Special Provision in Services and Educational Grants for Anglo-Indians:*** Before independence, certain posts were reserved for the Anglo-Indians in the railway, customs, postal and telegraph services of the Union. Similarly, the Anglo-Indian educational institutions were given certain special grants by the Centre and the states. Both the benefits were allowed to continue under the Constitution on a progressive diminution basis and finally came to an end in 1960.
4. ***National Commissions for SCs and STs:*** The President should set up a National Commission for the SCs to investigate all matters relating to the constitutional safeguards for the SCs and to report to him (Article 338). Similarly, the President should also set up a National Commission for the STs to investigate all matters relating to the Constitutional safeguards for the STs and to report to

him (Article 338-A). The President should place all such reports before the Parliament, along with the action taken memorandum. Previously, the Constitution provided for a combined National Commission for SCs and STs. The *89th Amendment Act* of 2003 bifurcated the combined commission into two separate bodies.[5]

The National Commission for SCs is also required to discharge similar functions with regard to the Anglo-Indian Community as it does with respect to the SCs. In other words, the commission has to investigate all matters relating to the Constitutional and other legal safeguards for the Anglo-Indian community and report to the President upon their working.[6]

5. ***National Commission for BCs:*** The National Commission for BCs was set-up in 1993 by an Act of Parliament. Later, the 102nd Amendment Act of 2018 conferred a constitutional status on the commission. For this purpose, the amendment inserted a new Article 338-B in the constitution. Accordingly, the President should set-up a National Commission for the socially and educationally BCs to investigate all matters relating to the constitutional safeguards for the socially and educationally BCs and to report to him. The President should place all such reports before the Parliament, along with the action taken memorandum.
6. ***Control of the Union over the Administration of Scheduled Areas and the Welfare of STs:*** The President is required to appoint a commission to report on the administration of the scheduled areas and the welfare of the STs in the states. He can appoint such a commission at any time but compulsorily after ten years of the commencement of the Constitution. Hence, a commission was appointed in the year 1960. It was headed by U.N. Dhebar and submitted its report in 1961. After four decades, the second commission was appointed in 2002 under the chairmanship of Dilip Singh Bhuria. It submitted its report in 2004.

Further, the executive power of the Centre extends to the giving of directions to a state with respect to the drawing up

and execution of schemes for the welfare of the STs in the state.

7. ***Appointment of a Commission to Investigate the Conditions of BCs:*** The President may appoint a commission to investigate the conditions of socially and educationally backward classes and to recommend the steps to improve their condition. The report of the commission is to be placed before the Parliament, along with action taken memorandum. Under the above provision, the President has appointed two commissions so far. The first backward classes commission was appointed in 1953 under the chairmanship of Kaka Kalelkar. It submitted its report in 1955. But, no action was taken on it as the recommendations were considered to be too vague and impractical and also there was a sharp division among the members on the criterion of backwardness.

   The second Backward Classes Commission was appointed in 1979 with B.P. Mandal as chairman. It submitted its report in 1980. Its recommendations were also lying unattended till 1990 when the V.P. Singh Government declared reservation of 27 percent government jobs for the OBCs.[7]

Table 68.1 *Articles Related to Special Provisions for Certain Classes at a Glance*

Article No.	Subject-matter
330	Reservation of seats for scheduled castes and scheduled tribes in the House of the people
331	Representation of the Anglo-Indian community in the House of the people
332	Reservation of seats for scheduled castes and scheduled tribes in the legislative assemblies of the states
333	Representation of the Anglo-Indian community in the legislative assemblies of the states
334	Reservation of seats and special representation to

	cease after seventy years
335	Claims of scheduled castes and scheduled tribes to services and posts
336	Special provision for Anglo-Indian community in certain services
337	Special provision with respect to educational grants for the benefit of Anglo-Indian community.
338	National Commission for scheduled castes
338A	National Commission for scheduled tribes
338B	National Commission for backward classes
339	Control of the Union over the administration of scheduled areas and the welfare of scheduled tribes
340	Appointment of a commission to investigate the conditions of backward classes
341	Scheduled castes
342	Scheduled tribes
342A	Socially and educationally backward classes

NOTES AND REFERENCES

1. These are the Constitution (Scheduled Castes) Order, 1950; the Constitution (Scheduled Castes) (Union Territories) Order, 1951; the Constitution (Scheduled Tribes) Order, 1950; the Constitution (Scheduled Tribes) (Union Territories) Order, 1951 and so on. The Parliament modified the Presidential orders by enacting the Scheduled Castes and Scheduled Tribes Orders (Amendment) Act in 1956, in 1976 and in the subsequent years.
2. The 102nd Amendment Act of 2018 inserted a new Article 342A in the constitution.
3. The 8th *Amendment Act* of 1959 extended the period of ten years to twenty years, the 23rd *Amendment Act* of

1969 to thirty years, the 45th *Amendment Act* of 1980 to forty years, the 62nd *Amendment Act* of 1989 to fifty years, the 79th *Amendment Act* of 1999 to sixty years and the 95th *Amendment Act* of 2009 to seventy years, that is, until the year 2020.

3a. This information is downloaded from the website of the Ministry of Law and Justice (Legislative Department).

4. M.P. Jain, Indian Constitutional Law, Wadhwa, Fourth Edition, p. 756.

5. For complete details in this regard, see Chapters 47 and 48.

6. Clause 10 of Article 338 reads as follows: “In this article, reference to the Scheduled Castes shall be construed as including references to the Anglo-Indian community”.

7. For complete details in this regard, see ‘Mandal Commission and Aftermath’ in Chapter 7.

PART-X
POLITICAL DYNAMICS

69. Political Parties
70. Role of Regional Parties
71. Elections
72. Election Laws
73. Electoral Reforms
74. Voting Behaviour
75. Coalition Government
76. Anti-Defection Law
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69 Political Parties

MEANING AND TYPES

Political parties are voluntary associations or organised groups of individuals who share the same political views and who try to gain political power through constitutional means and who desire to work for promoting the national interest. There are four types of political parties in the modern democratic states, viz., (i) reactionary parties which cling to the old socio-economic and political institutions; (ii) conservative parties which believe in the status-quo; (iii) liberal parties which aim at reforming the existing institutions; and (iv) radical parties which aim at establishing a new order by overthrowing the existing institutions. In their classification of political parties on the basis of ideologies, the political scientists have placed the radical parties on the left and the liberal parties in the centre and reactionary and conservative parties on the right. In other words, they are described as the leftist parties, centrist parties and the rightist parties. In India, the CPI and CPM are the examples of leftist parties, the Congress of centrist parties and the BJP is an example of rightist parties.

There are three kinds of party systems in the world, viz., (i) one party system in which only one ruling party exists and no opposition is permitted, as for example, in the former communist countries like the USSR and other East European countries; (ii) two-party system in which two major parties exists, as for example, in USA and Britain[1] ; and (iii) multi-party system in which there are a number of political parties leading to the formation of coalition governments, as for example, in France, Switzerland and Italy.

PARTY SYSTEM IN INDIA

The Indian party system has the following characteristic features:

Multi-Party System

The continental size of the country, the diversified character of Indian society, the adoption of universal adult franchise, the peculiar type of political process, and other factors have given rise to a large number of political parties. In fact, India has the largest number of political parties in the world. On the eve of seventeenth Lok Sabha general elections (2019), there were 7 national parties, 52 state parties and 2354 registered - unrecognised parties in the country[2]. Further, India has all categories of parties–left parties, centrist parties, right parties, communal parties, non-communal parties and so on. Consequently, the hung Parliaments, hung assemblies and coalition governments have become a common phenomena.

One-Dominant Party System

In spite of the multiparty system, the political scene in India was dominated for a long period by the Congress. Hence, Rajni Kothari, an eminent political analyst, preferred to call the Indian party system as 'one party dominance system' or the 'Congress system'[3]. The dominant position enjoyed by the Congress has been declining since 1967 with the rise of regional parties and other national parties like Janata (1977), Janata Dal (1989) and the BJP (1991) leading to the development of a competitive multi-party system.

Lack of Clear Ideology

Except the BJP and the two communist parties (CPI and CPM), all other parties do not have a clear-cut ideology. They (i.e., all other parties) are ideologically closer to each other. They have a close resemblance in their policies and programmes. Almost every party advocates democracy, secularism, socialism and Gandhism. More

than this, every party, including the so-called ideological parties, is guided by only one consideration–power capture. Thus, politics has become issuebased rather than the ideology and pragmatism has replaced the commitment to the principles.

Personality Cult

Quite often, the parties are organised around an eminent leader who becomes more important than the party and its ideology. Parties are known by their leaders rather than by their manifesto. It is a fact that the popularity of the Congress was mainly due to the leadership of Nehru, Indira Gandhi and Rajiv Gandhi. Similarly, the AIADMK in Tamil Nadu and TDP in Andhra Pradesh got identified with MG Ramachandran and NT Rama Rao respectively. Interestingly, several parties bear the name of their leader like Biju Janata Dal, Lok Dal (A), Congress (I) and so on. Hence, it is said that “there are political personalities rather than political parties in India”.

Based on Traditional Factors

In the western countries, the political parties are formed on the basis of socio-economic and political programme. On the other hand, a large number of parties in India are formed on the basis of religion, caste, language, culture, race and so on. For example, Shiv Sena, Muslim League, Hindu Maha Sabha, Akali Dal, Muslim Majlis, Bahujan Samaj Party, Republican Party of India, Gorkha League and so on. These parties work for the promotion of communal and sectional interests and thereby undermine the general public interest.

Emergence of Regional Parties

Another significant feature of the Indian party system is the emergence of a large number of regional parties and their growing role. They have become the ruling parties in various states like BJD in Orissa, DMK or AIADMK in Tamil Nadu, Akali Dal in Punjab, AGP in Assam, National Conference in J&K, JD(U) in Bihar and so on. In the beginning, they were confined to the

regional politics only. But, of late, they have come to play a significant role in the national politics due to coalition governments at the Centre. In the 1984 elections, the TDP emerged as the largest opposition party in the Lok Sabha.

Factions and Defections

Factionalism, defections, splits, mergers, fragmentation, polarisation and so on have been an important aspect of the functioning of political parties in India. Lust for power and material considerations have made the politicians to leave their party and join another party or start a new party. The practice of defections gained greater currency after the fourth general elections (1967). This phenomenon caused political instability both at the Centre and in the states and led to disintegration of the parties. Thus, there are two Janata Dals, two TDPs, two DMKs, two Communist Parties, two Congress, three Akali Dals, three Muslim Leagues and so on.

Lack of Effective Opposition

An effective Opposition is very essential for the successful operation of the parliamentary democracy prevalent in India. It checks the autocratic tendencies of the ruling party and provides an alternative government. However, in the last 50 years, an effective, strong, organised and viable national Opposition could never emerge except in flashes. The Opposition parties have no unity and very often adopt mutually conflicting positions with respect to the ruling party. They have failed to play a constructive role in the functioning of the body politic and in the process of nation building.

RECOGNITION OF NATIONAL AND STATE PARTIES

The Election Commission registers political parties for the purpose of elections and grants them recognition as national or state parties on the basis of their poll performance. The other parties are simply declared as *registered-unrecognised* parties.

The recognition granted by the Commission to the parties determines their right to certain privileges like allocation of the party symbols, provision of time for political broadcasts on the state-owned television and radio stations and access to electoral rolls.

Further, the recognized parties need only one proposer for filing the nomination. Also, these parties are allowed to have forty “star campaigners” during the time of elections and the registered-unrecognized parties are allowed to have twenty “star campaigners”. The travel expenses of these star campaigners are not included in the election expenditure of the candidates of their parties.

Every national party is allotted a symbol exclusively reserved for its use throughout the country. Similarly, every state party is allotted a symbol exclusively reserved for its use in the state or states in which it is so recognised. A registered-unrecognised party, on the other hand, can select a symbol from a list of free symbols. In other words, the Commission specifies certain symbols as ‘reserved symbols’ which are meant for the candidates set up by the recognised parties and others as ‘free symbols’ which are meant for other candidates.

Conditions for Recognition as a National Party

At present (2019), a party is recognised as a national party if any of the following conditions is fulfilled[4] :

1. If it secures six per cent of valid votes polled in any four or more states at a general election to the Lok Sabha or to the legislative assembly; and, in addition, it wins four seats in the Lok Sabha from any state or states; or

2. If it wins two per cent of seats in the Lok Sabha at a general election; and these candidates are elected from three states; or
3. If it is recognised as a state party in four states.

Conditions for Recognition as a State Party

At present (2019), a party is recognised as a state party in a state if any of the following conditions is fulfilled[5] :

1. If it secures six per cent of the valid votes polled in the state at a general election to the legislative assembly of the state concerned; and, in addition, it wins 2 seats in the assembly of the state concerned; or
2. If it secures six per cent of the valid votes polled in the state at a general election to the Lok Sabha from the state concerned; and, in addition, it wins 1 seat in the Lok Sabha from the state concerned; or
3. If it wins three per cent of seats in the legislative assembly at a general election to the legislative assembly of the state concerned or 3 seats in the assembly, whichever is more; or
4. If it wins 1 seat in the Lok Sabha for every 25 seats or any fraction thereof allotted to the state at a general election to the Lok Sabha from the state concerned; or
5. If it secures eight per cent of the total valid votes polled in the state at a General Election to the Lok Sabha from the state or to the legislative assembly of the state. This condition was added in 2011.

The number of recognised parties keeps on changing on the basis of their performance in the general elections. On the eve of the seventeenth Lok Sabha general elections (2019), there were 7 national parties, 52 state parties and 2354 registered-unrecognised parties in the country[6]. The national parties and state parties are also known as all-India parties and regional parties respectively.

Table 69.1 *Recognised National Parties and State Parties (First to Seventeenth General Elections)*

General Elections	Number of	Number of State

(Year)	National Parties	Parties
First (1952)	14	39
Second (1957)	4	11
Third (1962)	6	11
Fourth (1967)	7	14
Fifth (1971)	8	17
Sixth (1977)	5	15
Seventh (1980)	6	19
Eighth (1984)	7	19
Ninth (1989)	8	20
Tenth (1991)	9	28
Eleventh (1996)	8	30
Twelfth (1998)	7	30
Thirteenth (1999)	7	40
Fourteenth (2004)	6	36
Fifteenth (2009)	7	40
Sixteenth (2014)	6	47
Seventeenth (2019)	7	52

Table 69.2 *Recognised National Parties and their Symbols (2019)*

Sl. No.	Name of the Party (Abbreviation)	Symbol Reserved
1.	Bahujan Samaj Party (BSP)	Elephant*
2.	Bharatiya Janata Party (BJP)	Lotus
3.	Communist Party of India (CPI)	Ears of Corn and Sickle
4.	Communist Party of India (Marxist) (CPM)	Hammer, Sickle and Star
5.	Indian National Congress (INC)	Hand
6.	Nationalist Congress Party (NCP)	Clock

7.	All India Trinamool Congress (AITC)	Flowers and Grass
8.	National People's Party (NPP)	Book

*In all States/U.T.s except in Assam, where its candidates will have to choose a symbol out of the list of free symbols specified by the Election Commission.

Table 69.3 *Recognised State Parties and their Symbols (2019)*

Sl. No.	Name of the State / Union Territory	Name of the State Party (Abbreviation)	Symbol Reserved
1.	Andhra Pradesh	1. Telangana Rashtra Samithi (TRS[7])	Car
		2. Telugu Desam (TDP)	Bicycle
		3. Yuvajana Sramika Rythu Congress Party (YSRCP)	Ceiling Fan
2.	Arunachal Pradesh	1. People's Party of Arunachal (PPA)	Maize
		2. Janata Dal (United) (JD(U))	Arrow
		3. Janata Dal (Secular) (JD(S))	A Lady farmer carrying Paddy on her head
3.	Assam	1. All India United Democratic Front (AUDF)	Lock & Key
		2. Asom Gana Parishad (AGP)	Elephant
		3. Bodoland People's Front (BPF)	Nangol
4.	Bihar	1. Janata Dal (United)	Arrow

		(JD(U))	
		2. Lok Jan Shakti Party (LJSP)	Bungalow
		3. Rashtriya Janata Dal (RJD)	Hurricane Lamp
		4. Rashtriya Lok Samta Party (RLSP)	Ceiling Fan
5.	Chhattisgarh	Janata Congress Chhattisgarh (JCC)	Farmer Ploughing (within square)
6.	Goa	1. Maharashtrawadi Gomantak (MAG)	Lion
		2. Goa Forward Party (GFP)	Coconut
7.	Haryana	Indian National Lok Dal (INLD)	Spectacles
8.	Jammu & Kashmir	1. Jammu & Kashmir National Conference (JKNC)	Plough
		2. Jammu & Kashmir National Panthers Party (JKNPP)	Bicycle
		3. Jammu and Kashmir People's Democratic Party (JKPDP)	Ink Pot & Pen
9.	Jharkhand	1. All Jharkhand Students Union (AJSU)	Banana
		2. Jharkhand Mukti Morcha (JMM)	Bow & Arrow
		3. Jharkhand Vikas Morcha (Prajatantrik) (JVM(P))	Comb
		4. Rashtriya Janata Dal	Hurricane Lamp

		(RJD)	
10.	Karnataka	Janata Dal (Secular) (JD(S))	A Lady Farmer carrying Paddy on her head
11.	Kerala	1. Janata Dal (Secular) (JD(S))	A Lady Farmer carrying Paddy on her head
		2. Kerala Congress (M) (KEC(M))	Two Leaves
		3. Indian Union Muslim League (IUML)	Ladder
		4. Revolutionary Socialist Party (RSP)	Spade & Stoker
12.	Maharashtra	1. Maharashtra Navnirman Sena (MNS)	Railway Engine
		2. Shiv Sena (SHS)	Bow and Arrow
13.	Manipur	1. Naga People's Front (NPF)	Cock
		2. People's Democratic Alliance (PDA)	Crown
14.	Meghalaya	1. United Democratic Party (UDP)	Drum
		2. Hill State People's Democratic Party (HSPDP)	Lion
		3. People's Democratic Front (PDF)	Candles
15.	Mizoram	1. Mizo National Front (MNF)	Star
		2. Mizoram People's Conference (MPC)	Electric Bulb

		3. Zoram Nationalist Party (ZNP)	Sun (without rays)
16.	Nagaland	1. Naga People's Front (NPF)	Cock
		2. Nationalist Democratic Progressive Party (NDPP)	Globe
17.	N.C.T. of Delhi	Aam Aadmi Party (AAP)	Broom
18.	Odisha	Biju Janata Dal (BJD)	Conch
19.	Puducherry	1. All India Anna Dravida Munnetra Kazhagam (ADMK) or (AIADMK)	Two Leaves
		2. All India N.R. Congress (AINRC)	Jug
		3. Dravida Munnetra Kazhagam (DMK)	Rising Sun
		4. Pattali Makkal Katchi (PMK)	Mango
20.	Punjab	1. Shiromani Akali Dal (SAD)	Scales
		2. Aam Aadmi Party (AAP)	Broom
21.	Rajasthan	Rashtriya Loktantrik Party (RLP)	Bottle
22.	Sikkim	1. Sikkim Democratic Front (SDF)	Umbrella
		2. Sikkim Krantikari Morcha (SKM)	Table Lamp
23.	Tamil Nadu	1. All India Anna Dravida Munnetra	Two leaves

		Kazhagam (ADMK) or (AIADMK)	
		2. Dravida Munnetra Kazhagam (DMK)	Rising Sun
		3. Desiya Murpokku Dravida Kazhagam (DMDK)	Nagara
24.	Telangana	1. All India Majlis-E-Ittehadul Muslimeen (AIMIM)	Kite
		2. Telangana Rashtra Samithi (TRS)	Car
		3. Telugu Desam (TDP)	Bicycle
		4. Yuvajana Sramika Rythu Congress Party (YSRCP)[8]	Ceiling Fan
25.	Tripura	Indigenous People's Front of Tripura (IPFT)	Dao
26.	Uttar Pradesh	1. Rashtriya Lok Dal (RLD)	Hand Pump
		2. Samajwadi Party (SP)	Bicycle
27.	West Bengal	1. All India Forward Bloc (AIFB)	Lion
		2. Revolutionary Socialist Party (RSP)	Spade & Stoker

Table 69.4 *Formation of Political Parties (Chronological Order)*

Sl. No.	Name of the Party (Abbreviation)	Year of Formation
1.	Indian National Congress (INC)	1885

2.	Shiromani Akali Dal (SAD)	1920
3.	Communist Party of India (CPI)	1925
4.	Jammu & Kashmir National Conference (JKNC)	1939
5.	All India Forward Bloc (AIFB)	1939
6.	Revolutionary Socialist Party (RSP)	1940
7.	Indian Union Muslim League (IUML)	1948
8.	Dravida Munnetra Kazhagam (DMK)	1949
9.	Mizo National Front (MNF)	1961
10.	Maharashtrawadi Gomantak Party (MAG)	1963
11.	Communist Party of India (Marxist) (CPM)	1964
12.	Shiv Sena (SHS)	1966
13.	Mizoram People's Conference (MPC)	1972
14.	Jharkhand Mukti Morcha (JMM)	1972
15.	All India Anna Dravida Munnetra Kazhagam (AIADMK)	1972
16.	Kerala Congress (M) (KEC (M))	1979
17.	Bharatiya Janata Party (BJP)	1980
18.	Telugu Desam Party (TDP)	1982
19.	Bahujan Samaj Party (BSP)	1984
20.	Asom Gana Parishad (AGP)	1985
21.	People's Party of Arunachal (PPA)	1987
22.	Samajwadi Party (SP)	1992
23.	Sikkim Democratic Front (SDF)	1993

24.	Rashtriya Lok Dal (RLD)	1996
25.	Zoram Nationalist Party (ZNP)	1997
26.	Rashtriya Janata Dal (RJD)	1997
27.	Biju Janata Dal (BJD)	1997
28.	All India Trinamool Congress (AITC)	1998
29.	Indian National Lok Dal (INLD)	1998
30.	Jammu and Kashmir People's Democratic Party (PDP)	1999
31.	Janata Dal (United) (JD (U))	1999
32.	Janata Dal (Secular) (JD(S))	1999
33.	Nationalist Congress Party (NCP)	1999
34.	Lok Jan Shakti Party (LJSP)	2000
35.	Telangana Rashtra Samithi (TRS)	2001
36.	Naga People's Front (NPF)	2002
37.	All India United Democratic Front (AUDF)	2004
38.	Desiya Murpokku Dravidar Kazhagam (DMDK)	2005
39.	Maharashtra Navnirman Sena (MNS)	2006
40.	Jharkhand Vikas Morcha (Prajatantrik) (JVM - P)	2006
41.	Indigenous People's Front of Tripura (IPFT)	2009
42.	Yuvajana Sramika Rythu Congress Party (YSRCP)	2011
43.	All India N.R. Congress (AINRC)	2011
44.	Aam Aadmi Party (AAP)	2012
45.	National People's Party (NPP)	2013
46.	Rashtriya Lok Samta Party	2013

	(RLSP)	
47.	Sikkim Krantikari Morcha (SKM)	2013
48.	Goa Forward Party (GFP)	2016
49.	Janata Congress Chhattisgarh (JCC)	2016
50.	People's Democratic Front (PDF)	2017
51.	National Democratic Progressive Party (NDPP)	2018
52.	Rashtriya Loktantrik Party (RLP)	2018

NOTES AND REFERENCES

1. The two parties in the US are Democratic and Republican, and in Britain are Conservative and Labour.
2. As per the Notifications issued by the Election Commission of India dated 15th March, 2019 and 1st April, 2019.
3. Rajni Kothari: Congress System in India, Asian Survey, Volume 4, No. 12 (December, 1964), pp. 1–18.
4. The Election Symbols (Reservation and Allotment) Order, 1968, as amended from time to time. The latest amendment to this order was made in 2011.
5. *Ibid*.
6. See Reference 2 above.
7. As per the Notification issued by the Election Commission of India dated 15th March, 2019.
8. *Ibid*.

70 Role of Regional Parties

The presence of a large number of regional parties is an important feature of the Indian Political System. They have come to play a vital role in Indian politics at all levels, i.e. local, state and national. This is more so in the context of the new era of coalition politics.

FEATURES OF REGIONAL PARTIES

Following are the features of a regional party:

1. It generally operates within a particular state or specific region. Its electoral base is limited to a single region.
2. It articulates regional interests and identifies itself with a particular cultural, religious, linguistic or ethnic group.
3. It is primarily concerned with exploiting the local resources of discontent or preserving a variety of primordial demands based on language, caste or community or region[1] .
4. It focuses on local or regional issues and aims to capture political power at the state level. It has no inclination to expand and control the central government.
5. It has a political desire for greater regional autonomy of states in the Indian Union[2] .

CLASSIFICATION OF REGIONAL PARTIES

The various regional parties in India can be classified into the following four categories:

1. Those regional parties which are based on the regional culture or ethnicity. These include Shiromani Akali Dal, National Conference, DMK, AIADMK, Telugu Desam, Shiv Sena, Asom Gana Parishad, Mizo National Front, Jharkhand Mukti Morcha and so on.
2. Those regional parties which have an all-India outlook but lack a national electoral base. The examples are Indian National Lok Dal, All-India Forward Bloc, Revolutionary Socialist Party, Samajwadi Party, Nationalist Congress Party and so on.
3. Those regional parties which have been formed by a split in national parties. For example, Bangla Congress, Bharatiya Kranti Dal, Utkal Congress, Kerala Congress, Telangana Praja Samithi, Biju Janata Dal, Rashtriya Janata Dal, Janata Party, Samajwadi Janata Party, Samata Party, Trinamool Congress, YSR Congress and so on.
4. Those regional parties which have been formed by individual leaders on the basis of their charismatic personality. These are called as personalised parties and they are short-lived. The examples are Lok Janshakti Party, Haryana Vikas Party, Himachal Vikas Congress, Congress (J) and so on.

RISE OF REGIONAL PARTIES

There are multiple reasons for the emergence of regional parties in India. These are as follows:

1. Cultural and ethnic pluralism of the Indian society.
2. Economic disparities and regional imbalances in the development.
3. Desire of certain sections or areas to maintain separate identity due to historical factors.
4. Self-interest of the deposed Maharajas and dispossessed Zamindars.
5. Failure of national politics to meet the regional aspirations.
6. Reorganisation of states on the basis of language.
7. Charismatic personality of the regional leaders.
8. Factional fights within the larger parties.
9. Centralising tendencies of the congress party.
10. Absence of a strong opposition party at the central level.
11. Role of caste and religion in the political process.
12. Alienation and discontentment among the tribal groups.

ROLE OF REGIONAL PARTIES

The following points highlight the role played by the regional parties in Indian politics:

1. They have provided better governance and a stable government at the regional level.
2. They have posed a challenge to the one-party dominant system in the country and led to a decline in the domination of the Congress party[3] .
3. They have made a strong impact on the nature and course of centre-state relations. The tension areas in centre-state relations and the demand for grant of greater autonomy made the central leadership more responsive to the needs of the regional actors[4] .
4. They have made politics more competitive and popular participation in the political process more extensive at the grass roots[5] .
5. They have widened the choice for voters in both the parliamentary and assembly elections. The voters can vote for that party which aims to promote the interest of their state/region.
6. They have increased the political consciousness of the people and also their interest in politics. They bring into focus the local or regional issues which immediately attract the attention of the masses.
7. They provided a check against the dictatorial tendencies of the central government. They opposed the ruling congress party at the centre on certain issues and forced the dominant party to be more reasonable in its approach to the process of conflict resolution[6] .
8. They have made a significant contribution for the successful functioning of parliamentary democracy. In a parliamentary democracy, the minority must have its say, the majority must have its way, and the regional parties have played this role successfully by being ruling parties in some states and opposition parties at the centre[7] .

9. The have succeeded in exposing the partisan role of the Governors in the appointment and dismissal of the Chief Minister, in issuing of ordinances and reservation of bills for the consideration of the President[8] .
10. After the dawn of the era of coalition politics, the regional parties have assumed an important role in national politics. The have joined the coalition governments formed at the centre and shared power with the national parties[9] .

DYSFUNCTIONS OF REGIONAL PARTIES

However, there are also negative points in the role of regional parties. These are as follows:

1. They have given more importance to regional interests rather than national interests. They have neglected the implications and consequences of their narrow approach to the resolution of national issues.
2. They have encouraged regionalism, cas-teism, linguism, communalism and tribalism which have become hurdles to national integration.
3. They are responsible for the unresolution of the inter-state water disputes, inter-state border disputes and other inter-state issues.
4. They have also indulged in corruption, nepotism, favouritism and other forms of misutilisation of power in order to promote their self-interest.
5. They have focused more on the populist schemes and measures to expand and strengthen their electoral base. This has adversely affected the state economy and development.
6. They bring in regional factor in the decision-making and the policy-making by the coalition government at the centre. They force the central leadership to yield to their demands[10] .

NOTES AND REFERENCES

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2. Brass, P.R., *The Politics of India Since Independence*, Second Edition, Cambridge University Press, Cambridge, UK, 1993, p. 89.
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Political Parties in India, ESS Publications, Delhi, 1988, pp. 1–16.
4. *Ibid*.
5. *Ibid*.
6. Siwach, J.R., *Dynamics of Indian Government and Politics*, Second Edition, Sterling Publishers Private Limited, New Delhi, 1990, p. 865.
7. *Ibid*.
8. *Ibid*.
9. For more details in this regard, see Chapter 75.
10. *Ibid*.

71 Elections

ELECTORAL SYSTEM

Articles 324 to 329 in Part XV of the Constitution make the following provisions with regard to the electoral system in our country:

1. The Constitution (Article 324) provides for an independent Election Commission in order to ensure free and fair elections in the country. The power of superintendence, direction and conduct of elections to the Parliament, the state legislatures, the office of the President and the office of the VicePresident is vested in the Commission[1]. At present, the commission consists of a chief election commissioner and two election commissioners[2] .
2. There is to be only one general electoral roll for every territorial constituency for election to the Parliament and the state legislatures. Thus, the Constitution has abolished the system of communal representation and separate electorates which led to the partition of the country.
3. No person is to be ineligible for inclusion in the electoral roll on grounds only of religion, race, caste, sex or any of them. Further, no person can claim to be included in any special electoral roll for any constituency on grounds only of religion, race, caste or sex or any of them. Thus, the Constitution has accorded equality to every citizen in the matter of electoral franchise.
4. The elections to the Lok Sabha and the state assemblies are to be on the basis of adult franchise. Thus, every person who is a citizen of India and who is 18[3] years of age, is entitled to vote at the election provided he is not disqualified under the provisions of the Constitution or any law made by the appropriate legislature (Parliament or state legislature)

on the ground of non-residence, unsound mind, crime or corrupt or illegal practice[4] .

5. Parliament may make provision with respect to all matters relating to elections to the Parliament and the state legislatures including the preparation of electoral rolls, the delimitation of constituencies and all other matters necessary for securing their due constitution.
6. The state legislatures can also make provision with respect to all matters relating to elections to the state legislatures including the preparation of electoral rolls and all other matters necessary for securing their due constitution. But, they can make provision for only those matters which are not covered by the Parliament. In other words, they can only supplement the parliamentary law and cannot override it.
7. The Constitution declares that the validity of any law relating to the delimitation of constituencies or the allotment of seats to such constituencies cannot be questioned in any court. Consequently, the orders issued by the Delimitation Commission become final and cannot be challenged in any court.
8. The Constitution lays down that no election to the Parliament or the state legislature is to be questioned except by an election petition presented to such authority and in such manner as provided by the appropriate legislature. Since 1966, the election petitions are triable by high courts alone. But, the appellate jurisdiction lies with the Supreme Court alone.

Article 323B empowers the appropriate legislature (Parliament or state legislature) to establish a tribunal for the adjudication of election disputes. It also provides for the exclusion of the jurisdiction of all courts (except the special leave appeal jurisdiction of the Supreme Court) in such disputes. So far, no such tribunal has been established. It must be noted here that in *Chandra Kumar* case[5] (1997), the Supreme Court declared this provision as unconstitutional. Consequently, if at any time an election tribunal is established, an appeal from its decision lies to the high court.

ELECTION MACHINERY

Election Commission of India (ECI)
Under Article 324 of the Constitution of India, the Election Commission of India is vested with the power of superintendence, direction and control of conducting the elections to the Lok Sabha and State Legislative Assemblies. The Election Commission of India is a three-member body, with one Chief Election Commissioner and two Election Commissioners. The President of India appoints the Chief Election Commissioner and the Election Commissioners.

Chief Electoral Officer (CEO)
The Chief Electoral Officer of a state/ Union Territory is authorised to supervise the election work in the state/Union Territory subject to the overall superintendence, direction and control of the Election Commission. The Election Commission of India nominates or designates an Officer of the Government of the state / Union Territory as the Chief Electoral Officer in consultation with that State Government / Union Territory Administration.

District Election Officer (DEO)
Subject to the superintendence, direction and control of the Chief Electoral Officer, the District Election Officer supervises the election work of a district. The Election Commission of India nominates or designates an officer of the state Government as the District Election Officer in consultation with the state government.

Returning Officer (RO)
The Returning Officer of a Parliamentary or assembly constituency is responsible for the conduct of elections in the Parliamentary or assembly constituency concerned. The Election Commission of India nominates or designates an officer of the Government or a local authority as the Returning Officer for each of the assembly and parliamentary constituencies in consultation with the State Government / Union Territory Administration. In addition, the Election Commission of India also appoints one or

more Assistant Returning Officers for each of the assembly and Parliamentary constituencies to assist the Returning Officer in the performance of his functions in connection with the conduct of elections.

Electoral Registration Officer (ERO)

The Electoral Registration Officer is responsible for the preparation of electoral rolls for a Parliamentary / assembly constituency. The Election Commission of India, in consultation with the state / UT government, appoints an officer of the government or the local authorities as the Electoral Registration Officer. In addition, the Election Commission of India also appoints one or more Assistant Electoral Registration Officers to assist the Electoral Registration Officer in the performance of his functions in the matter of preparation / revision of electoral rolls.

Presiding Officer

The Presiding Officer with the assistance of polling officers conducts the poll at a polling station. The District Election Officer appoints the Presiding Officers and the Polling Officers. In the case of Union Territories, such appointments are made by the Returning Officers.

Observers

The Election Commission of India nominates officers of Government as Observers for Parliamentary and Assembly Constituencies. These observers are of various kinds[6] :

1. **General Observers:** The Commission deploys General Observers in adequate number to ensure smooth conduct of elections. These Observers are asked to keep a close watch on every stage of the electoral process to ensure free and fair elections.
2. **Expenditure Observers:** Expenditure Observers from Central Government Services are appointed to keep a close watch on election expenditure of the candidates and to ensure that no inducement is offered to the electors during the entire election process for exercise of their franchise.
3. **Police Observers:** The Commission deploys IPS officers as Police Observers at State and District levels, depending

upon the sensitivity of the Constituency, wherever required. They monitors all activities relating to force deployment, law and order situation and co-ordinate between the Civil and Police administration to ensure free and fair election.

4. **Awareness Observers:** For the first time in the 16th Lok Sabha Elections (2014), the Commission deployed Central Awareness Observers to oversee the efficient and effective management of the electoral process at the field level, mainly in respect of voter awareness and facilitation. Awareness Observers are deployed to observe the interventions undertaken by the election machinery to bridge the gap in people's participation in the electoral process particularly in regard to voters' turnout. They also monitors the various media related aspects of RP Act 1951 and observe the mechanism directed by the Commission at District levels on checking the problem of 'Paid News'.
5. **Micro Observers:** In addition to General Observers, the Commission also deploys Micro Observers to observe the poll proceedings on the poll day in selected critical polling stations. They are chosen from Central Government / Central PSUs officials. Micro-Observers verify the BMF at the Polling stations and certify the same before start of polling. They observe the proceedings at the Polling Stations on the poll day right from the mock poll to the completion of poll and the process of sealing of EVMs and other documents to ensure that all instructions of the Commission are complied with by the Polling Parties and the Polling Agents. They also report to the General Observers directly about vitiation of the poll proceedings, if any, in their allotted Polling Stations.
6. **Assistant Expenditure Observers:** In addition to Expenditure Observers, Assistant Expenditure Observers are appointed for each Assembly segment to ensure that all major election campaign events are videographed and complaints of electoral malpractices are promptly attended.

ELECTION PROCESS[7]

Time of Elections

Elections for the Lok Sabha and every state Legislative Assembly have to take place every five years, unless called earlier. The President can dissolve Lok Sabha and call a General Election before five years is up, if the Government can no longer command the confidence of the Lok Sabha, and if there is no alternative government available to take over.

Schedule of Elections

When the five-year limit is up, or the legislature has been dissolved and new elections have been called, the Election Commission puts into effect the machinery for holding an election. The Constitution states that there can be no longer than six months between the last session of the dissolved Lok Sabha and the recalling of the new House, so elections have to be concluded before then.

The Commission normally announces the schedule of elections in a major press conference a few weeks before the formal process is set in motion. The Model Code of Conduct for guidance of candidates and political parties comes immediately into effect after such announcement.

The formal process for the elections starts with the Notification or Notifications calling upon the electorate to elect Members of a House. As soon as Notifications are issued, candidates can start filing their nominations in the constituencies from where they wish to contest. These are scrutinised by the Returning Officer of the constituency concerned after the last date for the same is over after about a week. The validly nominated candidates can withdraw from the contest within two days from the date of scrutiny. Contesting candidates get at least two weeks for political campaign before the actual date of poll.

On account of the vast magnitude of operations and the massive size of the electorate, polling is held on a number of days for the national elections. A separate date for counting is fixed and

the results declared for each constituency by the concerned Returning Officer.

The Commission compiles the complete list of members elected and issues an appropriate Notification for the due constitution of the House. With this, the process of elections is complete and the President, in case of the Lok Sabha, and the Governors of the concerned states, in case of State Assemblies, can then convene their respective Houses to hold their sessions.

Oath or Affirmation

It is necessary for a candidate to make and subscribe an oath or affirmation before an officer authorised by the Election Commission. For any particular election, the authorised persons are, principally, the Returning Officer and the Assistant Returning Officer for the constituency. In the case of a candidate confined in a prison or under preventive detention, the superintendent of the prison or commandant of the detention camp in which he is so confined or is under such detention is authorised to administer the oath. And in the case of a candidate confined to bed in a hospital or elsewhere owing to illness or any other cause, the medical superintendent in charge of the hospital or the medical practitioner attending on him is similarly authorised. If a candidate is outside India, the Indian Ambassador or High Commissioner or diplomatic consular authorised by him can also administer oath/affirmation. The candidate, in person, is required to make the oath or affirmation immediately after presenting his nomination papers and in any case not later than the day previous to the date of the scrutiny[8] .

Election Campaign

The campaign is the period when the political parties put forward their candidates and arguments with which they hope to persuade people to vote for their candidates and parties. Candidates are given a week to put forward their nominations. These are scrutinised by the Returning Officers and if not found to be in order can be rejected after a summary hearing. Validly nominated candidates can withdraw within two days after nominations have been scrutinised. The official campaign lasts at least two weeks

from the drawing up of the list of nominated candidates, and officially ends 48 hours before polling closes.

During the election campaign, the political parties and contesting candidates are expected to abide by a Model Code of Conduct evolved by the Election Commission on the basis of a consensus among political parties. The model code lays down broad guidelines as to how the political parties and candidates should conduct themselves during the election campaign. It is intended to maintain the election campaign on healthy lines, avoid clashes and conflicts between political parties or their supporters and to ensure peace and order during the campaign period and thereafter, until the results are declared. The model code also prescribes guidelines for the ruling party either at the Centre or in the state to ensure that a level field is maintained and that no cause is given for any complaint that the ruling party has used its official position for the purposes of its election campaign[9] .

Once an election has been called, parties issue manifestos detailing the programmes they wish to implement if elected to government, the strengths of their leaders, and the failures of opposing parties and their leaders. Slogans are used to popularise and identify parties and issues, and pamphlets and posters distributed to the electorate. Rallies and meetings where the candidates try to persuade, cajole and enthuse supporters, and denigrate opponents, are held throughout the constituencies. Personal appeals and promises of reform are made, with candidates travelling the length and breadth of the constituency to try to influence as many potential supporters as possible.

Polling Days

Polling is normally held on a number of different days in different constituencies, to enable the security forces and those monitoring the election to keep law and order and ensure that voting during the election is fair.

Ballot Papers and Symbols

After nomination of candidates is complete, a list of competing candidates is prepared by the Returning Officer, and ballot papers are printed. Ballot papers are printed with the names of the candidates (in languages set by the Election Commission) and the

symbols allotted to each of the candidates. Candidates of recognised parties are allotted their party symbols.

Voting Procedure

Voting is by secret ballot. Polling stations are usually set up in public institutions, such as schools and community halls. To enable as many electors as possible to vote, the officials of the Election Commission try to ensure that there is a polling station within two kilometres of every voter, and that no polling stations should have to deal with more than 1500 voters. Each polling station is open for at least eight hours on the day of the election.

On entering the polling station, the elector is checked against the electoral roll[10] , and allocated a ballot paper. The elector votes by marking the ballot paper with a rubber stamp on or near the symbol of the candidate of his choice, inside a screened compartment in the polling station. The voter then folds the ballot paper and inserts it in a common ballot box which is kept in full view of the Presiding Officer and polling agents of the candidates. This marking system eliminates the possibility of ballot papers being surreptitiously taken out of the polling station or not being put in the ballot box.

Since 1998, the Commission has increasingly used Electronic Voting Machines (EMVs) instead of ballot boxes. In 2003, all state elections and by elections were held using EVMs. Encouraged by this, the Commission took a historic decision to use only EVMs for the Lok Sabha election in 2004. More than 1 million EVMs were used in this election.

Electronic Voting Machine

An Electronic Voting Machine (EVM) is a simple electronic device used to record votes in place of ballot papers and boxes which were used earlier in conventional voting system. The advantages of the EVM over the traditional ballot paper / ballot box system are given here:

(i) It eliminates the possibility of invalid and doubtful votes which, in many cases, are the root causes of controversies and election petitions.

(ii) It makes the process of counting of votes much faster than the conventional system.

(iii) It reduces to a great extent the quantity of paper used thus saving a large number of trees making the process eco-friendly.
(iv) It reduces cost of printing (almost nil) as only one sheet of ballot paper is required for each Polling Station[11] .

Supervising Elections

The Election Commission appoints a large number of Observers to ensure that the campaign is conducted fairly, and that people are free to vote as they choose. Election expenditure Observers keeps a check on the amount that each candidate and party spends on the election.

Counting of Votes

After the polling has finished, the votes are counted under the supervision of Returning Officers and Observers appointed by the Election Commission. After the counting of votes is over, the Returning Officer declares the name of the candidate, to whom the largest number of votes have been given, as the winner and as having been returned by the constituency to the concerned House.

Elections to the Lok Sabha are carried out using a first-past-the-post electoral system. The country is split up into separate geographical areas, known as constituencies, and the electors can cast one vote each for a candidate, the winner being the candidate who gets the maximum votes.

Elections to the State Assemblies are carried out in the same manner as for the Lok Sabha election, with the states and union territories divided into single-member constituencies, and the first-past-the-post electoral system used.

Media Coverage

In order to bring as much transparency as possible to the electoral process, the media are encouraged and provided with facilities to cover the election, although subject to maintaining the secrecy of the vote. Media persons are given special passes to enter polling stations to cover the poll process and the counting halls during the actual counting of votes.

Election Petitions

Any elector or candidate can file an election petition if he or she thinks there has been malpractice during the election. An election petition is not an ordinary civil suit, but treated as a contest in which the whole constituency is involved. Election petitions are tried by the High Court of the state involved, and if upheld can even lead to the restaging of the election in that constituency.

Table 71.1 *Results of Lok Sabha Elections*

General Elections (Year)	Elective Seats	Seats won by Parties (Major)
First (1952)	489	Congress 364, Communist 16, Socialist 12, KMPP 9, Jana Sangh 3.
Second (1957)	494	Congress 371, Communist 27, Praja Socialist 19, Jana Sangh 4.
Third (1962)	494	Congress 361, Communist 29, Swatantra 18, Jana Sangh 14, Praja Socialist 12, Socialists 6.
Fourth (1967)	520	Congress 283, Swatantra 44, Jana Sangh 35, CPI 23, CPM 19, Sanyukta Socialist 23, Praja Socialist 13.
Fifth (1971)	518	Congress 352, CPM 25, CPI 24, DMK 23, Jana Sangh 21, Swatantra 7, Socialist 5.
Sixth (1977)	542	Janata 298, Congress 154, CPM 22, CPI 7, AIADMK 18.
Seventh (1980)	542	Congress 353, Janata (Secular) 41, Janata 31, CPM 36, CPI 11, DMK 16.
Eight (1984)	542	Congress 415, TDP 28, CPM 22, CPI 6, Janata 10, AIADMK

		12, BJP 2.
Ninth (1989)	543	Congress 197, Janata Dal 141, BJP 86, CPM 32, CPI 12, AIADMK 11, TDP 2.
Tenth (1991)	543	Congress 232, BJP 119, Janata Dal 59, CPM 35, CPI 13, TDP 13, AIADMK 11.
Eleventh (1996)	543	BJP 161, Congress 140, Janata Dal 46, CPM 32, TMCM 20, DMK 17, SP 17, TDP 16, SS 15, CPI 12, BSP 11.
Twelfth (1998)	543	BJP 182, Congress 141, CPM 32, AIADMK 18, TDP 12, SP 20, Samata 12, RJD 17.
Thirteenth (1999)	543	BJP 182, Congress 114, CPM 33, TDP 29, SP 26, JD (U) 20, SS 15, BSP 14, DMK 12, BJD 10, AIADMK 10.
Fourteenth (2004)	543	Congress 145, BJP 138, CPM 43, SP 36, RJD 24, BSP 19, DMK 16, Shiv Sena 12, BJD 11, CPI 10.
Fifteenth (2009)	543	Congress 206, BJP 116, SP 23, BSP 21, JD(U) 20, Trinamool 19, DMK 18, CPM 16, BJD 14, Shiv Sena 11, NCP 9, AIADMK 9, TDP 6, RLD 5, CPI 4, RJD 4, SAD 4.
Sixteenth (2014)	543	BJP 282, Congress 44, AIADMK 37, Trinamool 34, BJD 20, Shiv Sena 18, TDP 16, TRS 11, CPM 9, YSR Congress 9, NCP 6, LJP 6, SP 5, AAP 4, RJD 4, SAD 4.
Seventeenth	543	BJP 303, Congress 52, DMK

(2019)		23, Trinamool 22, YSR Congress 22, Shiv Sena 18, JD (U) 16, BJD 12, BSP 10, TRS 9, LJP 6, NCP 5, SP 5.

Table 71.2 *Prime Ministers after each Lok Sabha General Election*

General Elections (Year)	National Parties	Prime Minister
First (1952*)	BJS, BPI, CPI, FBL (MG), FBL (RG), HMS, INC, KLP, KMPP, RCPI, RRP, RSP, SCF, SP	Jawaharlal Nehru (15th August, 1947 to 27, May, 1964)
Second (1957)	BJS, CPI, INC, PSP	-do-
Third (1962)	CPI, INC, BJS, PSP, SSP, SWA	-do-
		Gulzari Lal Nanda (27th May 1964 to 9th June, 1964)
		Lal Bahadur Shastri (9th June, 1964 to 11th January 1966)
		Gulzari Lal Nanda (11th January 1966 to 24th January, 1966)
Fourth (1967)	BJS, CPI, CPM, INC, PSP, SSP, SWA	Mrs. Indira Gandhi (24th January 1966 to 24th March 1977)
Fifth (1971)	BJS, CPI, CPM, INC, NCO, PSP, SSP, SWA	-do-
Sixth (1977)	BLD, CPI, CPM, INC, NCO	Morarji Desai (24th March, 1977 to 28th July,

		1979)
		Charan Singh (28th July 1979 to 14th January 1980)
Seventh (1980)	CPI, CPM, INC (I), INC (U), JNP, JNP (S)	Mrs. Indira Gandhi (14th January 1980 to 31st October, 1984)
Eighth (1984)	BJP, CPI, CPM, ICS, INC, JNP, LKD	Rajiv Gandhi (31st October, 1984 to 2nd December, 1989)
Ninth (1989)	BJP, CPI, CPM, ICS (SCS), INC, JD, JNP (JP), LKD (B)	Vishwanath Pratap Singh (2nd December, 1989 to 10th November, 1990)
		Chandra Shekhar (10th November, 1990 to 21st June, 1991)
Tenth (1991)	BJP, CPI, CPM, ICS (SCS), INC, JD, JD(S), JP, LKD	P.V. Narasimha Rao (21st June 1991 to 16th May 1996)
Eleventh (1996)	AIIC (T), BJP, CPI, CPM, INC, JD, JP, SAP	Atal Bihari Vajpayee (16th May 1996 to 1st June, 1996)
		H.D. Deve Gowda (1st June, 1996 to 21st April 1997)
		Inder Kumar Gujral (21st April, 1997 to 19th March, 1998)
Twelfth (1998)	BJP, BSP, CPI, CPM, INC, JD, SAP	Atal Bihari Vajpayee (19th March, 1998 to 22nd May, 2004)
Thirteenth (1999)	BJP, BSP, CPI, CPM, INC, JD(S), JD(U)	-do-
Fourteenth	BJP, BSP, CPI, CPM,	Dr. Man Mohan Singh

(2004)	INC, NCP	(22nd May 2004 to 22nd May 2009)
Fifteenth (2009)	BJP, BSP, CPI, CPM, INC, NCP, RJD	Dr. Man Mohan Singh (22nd May 2009 to 26th May 2014)
Sixteenth (2014)	BJP, BSP, CPI, CPM, INC, NCP	Narendra Modi (26th May 2014 to 30th May 2019)
Seventeenth (2019)	BSP, BJP, CPI, CPM, INC, NCP, AITC	Narendra Modi (30th May 2019 to till date)

* There were 14 recognised parties on all-India basis during 1952 elections. After the first general election, 4 parties were recognized as national parties (Indian National Congress, Praja Socialist Party, Communist Party of India and All India Bhartiya Jan Sangh) in 1953.
Source: Electoral Statistics - Pocket Book (2015), Election Commission of India, pp. 118–120.

Table 71.3 *Participation in Lok Sabha Elections*

General Elections (Year)	Number of Candidates	Electorate (Million)	Voter Turn-out (Percentage)	Number of Polling Stations
First (1952)	1,874	173.21	45.7	1,96,084
Second (1957)	1,519	193.65	45.74	2,20,478
Third (1962)	1,985	217.68	55.42	2,38,244
Fourth (1967)	2,369	274.60	61.33	2,67,255
Fifth (1971)	2,784	274.09	55.29	3,42,944
Sixth (1977)	2,439	321.17	60.49	3,58,208
Seventh (1980)	4,462	363.94	56.92	4,34,442
Eighth	5,493	400.10	64.1	5,05,751

(1984)				
Ninth (1989)	6,160	499.00	62.0	5,89,449
Tenth (1991)	8,699	514.00	61.0	5,94,797
Eleventh (1996)	13,952	592.57	57.94	7,66,462
Twelfth (1998)	4,750	605.58	61.97	7,73,494
Thirteenth (1999)	4,648	605.88	59.99	7,75,000
Fourteenth (2004)	5,435	671.00	57.86	6,87,402
Fifteenth (2009)	8,070	713.77	58.4	8,34,944
Sixteenth (2014)	8,251	834.08	66.44	9,27,553
Seventeenth (2019)	8,026	910.51	67.4	10,36,295

Table 71.4 *Women in Lok Sabha Elections*

General Elections (Year)	Contested	Elected
First (1952)	–	22
Second (1957)	45	27
Third (1962)	70	34
Fourth (1967)	67	31
Fifth (1971)	86	22
Sixth (1977)	70	19
Seventh (1980)	142	28
Eighth (1984)	164	44
Ninth (1989)	198	27
Tenth (1991)	325	39
Eleventh (1996)	599	40

Twelfth (1998)	274	43
Thirteenth (1999)	284	49
Fourteenth (2004)	355	45
Fifteenth (2009)	556	59
Sixteenth (2014)	668	62
Seventeenth (2019)	724	78

Table 71.5 *Cost of Lok Sabha Elections*

General Elections (Year)	Cost Borne by Election Commission (₹ In Crores)
First (1952)	10.45
Second (1957)	5.90
Third (1962)	7.81
Fourth (1967)	10.95
Fifth (1971)	14.43
Sixth (1977)	29.81
Seventh (1980)	37.07
Eighth (1984)	85.51
Ninth (1989)	154.22
Tenth (1991)	359.10
Eleventh (1996)	597.34
Twelfth (1998)	626.40
Thirteenth (1999)	900.00
Fourteenth (2004)	1100.00
Fifteenth (2009)	1483.00
Sixteenth (2014)	3426.00
Seventeenth (2019)	N.A.

Table 71.6 *Largest and Smallest (Area-wise) Lok Sabha Constituencies in Fourteenth General Elections (2004)*

Sl. No.	Constituency	State/UT	Area (sq. km)
	I. Largest Constituencies		
1.	Ladakh	Jammu & Kashmir	173266.37
2.	Barmer	Rajasthan	71601.24
3.	Kutch	Gujarat	41644.55
4.	Arunachal West	Arunachal Pradesh	40572.29
5.	Arunachal East	Arunachal Pradesh	39749.64
	II. Smallest Constituencies		
1.	Chandni Chowk	NCT of Delhi	10.59
2.	Kolkata North West	West Bengal	13.23
3.	Mumbai South	Maharashtra	13.73
4.	Mumbai South Central	Maharashtra	18.31
5.	Delhi Sadar	NCT of Delhi	28.09

Table 71.7 *Largest and Smallest (Electors-wise) Lok Sabha Constituencies in Sixteenth General Elections (2014)*

Sl. No.	Constituency	State / UT	Total No. of Electors
	I. Largest Constituencies		
1.	Malkajgiri	Telangana	29,53,915
2.	Ghaziabad	Uttar Pradesh	22,63,961
3.	Bangalore North	Karnataka	22,29,063
4.	Unnao	Uttar Pradesh	21,10,388
5.	North West Delhi	NCT of Delhi	20,93,922

	II. Smallest Constituencies		
1.	Lakshadweep	Lakshadweep	47,972
2.	Daman & Diu	Daman & Diu	1,02,260
3.	Ladakh	Jammu & Kashmir	1,59,949
4.	Dadra & Nagar Haveli	Dadra & Nagar Haveli	1,88,783
5.	Andaman & Nicobar Islands	Andaman & Nicobar Islands	2,57,856

Table 71.8 *Articles Related to Elections at a Glance*

Article No.	Subject-matter
324.	Superintendence, direction and control of elections to be vested in an Election Commission
325.	No person to be ineligible for inclusion in, or to claim to be included in a special, electoral roll on grounds of religion, race, caste or sex
326.	Elections to the House of the People and to the Legislative Assemblies of states to be on the basis of adult suffrage
327.	Power of Parliament to make provision with respect to elections to Legislatures
328.	Power of Legislature of a state to make provision with respect to elections to such Legislature
329.	Bar to interference by courts in electoral matters
329A.	Special provision as to elections to Parliament in the case of Prime Minister and Speaker (Repealed)

NOTES AND REFERENCES

1. There is a separate state election commission to deal with elections to the panchayats and municipalities in the state.
2. For complete details regarding Election Commission, see Chapter 42.
3. The 61st Amendment Act of 1988 has reduced the voting age from 21 to 18 years. This came into force on March 28, 1989.
4. For more details in this regard, see 'universal adult franchise' in Chapter 3.
5. *L. Chandra Kumar v. Union of India* (1997). Clause 3(d) of Article 323 B was declared as unconstitutional.
6. Handbook for Media - General Elections to the 16th Lok Sabha (2014), Election Commission of India, pp. 111–113.
7. This information is downloaded from the website of the Election Commission of India.
8. General Elections 2009: Reference Handbook, Press Information Bureau, Government of India, p. 189.
9. The Model Code of Conduct was agreed to by all the political parties in 1968. The Election Commission first effectively put to use the Model Code of Conduct in the year 1991 to ensure fair elections and a level playing field.
10. The electoral roll is a list of all people in the constituency who are registered to vote in Indian elections. Only those people with their names on the electoral roll are allowed to vote. The electoral roll is normally revised every year to add the names of those who are to turn 18 on the 1st January of that year or have moved into a constituency and to remove the names of those who have died or moved out of a constituency.
11. General Elections 2009: Reference Handbook, Press Information Bureau, Government of India, p. 181.

72 Election Laws

REPRESENTATION OF THE PEOPLE ACT, 1950

Articles 81 and 170 of the Constitution of India lay down the maximum number of seats in Parliament and in Legislative Assemblies of States and also certain principles to be followed in allocating seats in the House of People among the States and in the State Legislative Assemblies, but have left the actual allocation of such seats to be provided by the law.

Similarly, Article 171 of the Constitution of India lays down the maximum and minimum number of seats in the Legislative Council of a State, and also specify the various methods in which the seats shall be filled, but the actual number of seats to be filled by each such method has been left to be provided by law.

Therefore, the Representation of the People Act, 1950, was enacted to provide for the allocation of seats in the House of the People and in the Legislative Assemblies and Legislative Councils of States.

The Act also sought to confer on the President the powers to delimit, after consultation with the Election Commission, the various constituencies for the purpose of elections to fill seats in the House of the People and in the Legislative Assemblies and Legislative Councils of States.

The Act further provided for the registration of electors for Parliamentary Constituencies and for the Assembly and Council Constituencies, and the qualifications and disqualifications for such registration.

To sum-up, the Act makes the following provisions relating to the elections:

1. Allocation of seats in the House of the People, the State Legislative Assemblies and the State Legislative Councils.
2. Delimitation of Parliamentary, Assembly and Council Constituencies.

3. Election officers like chief electoral officers, district election officers, electoral registration officers and so on.
4. Electoral rolls for Parliamentary, Assembly and Council constituencies.
5. Manner of filling seats in the Council of States to be filled by representatives of union territories.
6. Local authorities for purposes of elections to the State Legislative Councils.
7. Barring the jurisdiction of civil courts.

REPRESENTATION OF THE PEOPLE ACT, 1951

The Representation of the People Act, 1950 did not contain all the provisions relating to elections but merely provided for the allocation of seats in and the delimitation of constituencies for the purpose of elections to the House of People and Legislatures of States, the qualifications of voter at such election and the preparations of electoral rolls.

The provisions for the actual conduct of elections to the Houses of Parliament and to the House or Houses of the Legislature of each State, the qualifications and disqualifications for the membership of these Houses, the corrupt practices and other election offences, and the decision of election disputes were all left to be made in a subsequent measure. In order to provide for these provisions, the Representation of the People Act, 1951 was enacted.

Broadly speaking, this Act contains provisions relating to the following electoral matters:

1. Qualifications and disqualifications for membership of Parliament and State Legislatures
2. Notification of general elections
3. Administrative machinery for the conduct of elections
4. Registration of political parties
5. Conduct of elections
6. Free supply of certain material to candidates of recognised political parties
7. Disputes regarding elections
8. Corrupt practices and electoral offences
9. Powers of Election Commission in connection with inquiries as to disqualifications of members.
10. Bye-elections and time limit for filling vacancies.
11. Miscellaneous provisions relating to elections.
12. Barring the jurisdiction of civil courts.

The conduct of elections include the following matters:

(a) Nomination of candidates
(b) Candidates and their agents
(c) General procedure at elections

(d) The poll
(e) Counting of votes
(f) Multiple elections
(g) Publication of election results and nominations
(h) Declaration of assets and liabilities
(i) Election expenses

The provisions of the Act with respect to disputes regarding elections are related to the following matters:

(i) Presentation of election petitions to High Court
(ii) Trial of election petitions
(iii) Withdrawal and abatement of election petitions
(iv) Appeals to Supreme Court
(v) Costs and security for costs

DELIMITATION ACT, 2002

Articles 82 and 170 of the Constitution of India provide for readjustment and the division of each State into territorial constituencies (Parliamentary constituencies and Assembly constituencies) on the basis of the 2001 census by such authority and in such manner as Parliament may, by law, determine.

Further, Articles 330 and 332 of the Constitution of India provide for re-fixing the number of seats reserved for the Scheduled Castes and the Scheduled Tribes in the House of the People and Legislative Assemblies of the States on the basis of the 2001 census.

The present delimitation of Parliamentary and Assembly constituencies is based on the 1971 census. The uneven growth of population in different constituencies in different parts of the country as well as within the same State as also continuous migration of people / electorate from one place to other especially from rural areas to urban areas have resulted in strikingly differing sizes of electoral constituencies even within the same State.

Therefore, the Delimitation Act, 2002[1] , was enacted to set up a Delimitation Commission for the purpose of effecting delimitation on the basis of the 2001 census so as to correct the aforesaid distortion in the sizes of electoral constituencies. The proposed Delimitation Commission would also re-fix the number of seats for the Scheduled Castes and the Scheduled Tribes on the basis of the 2001 census, without affecting total number of seats based on the 1971 census.

The Act sought to lay down certain guidelines as to the manner in which such delimitation would be undertaken. In the Act, the new Delimitation Commission was given the task of carrying out delimitation of Parliamentary and Assembly constituencies. It had been specifically provided that the Delimitation Commission shall endeavour to complete the work within a period not later than July 31, 2008.[2]

The proposed delimitation would apply to every general election to the House of the People or to a State Legislative Assembly held after the final orders of the Commission are

published and to every bye-election arising from such general election[3] .

OTHER ACTS RELATING TO ELECTIONS

1. Parliament (Prevention of Disqualification) Act, 1959[4] declares that certain offices of profit under the Government shall not disqualify the holders thereof for being chosen as (or for being) members of Parliament.
2. Scheduled Castes and Scheduled Tribes Orders (Amendment) Act, 1976 provides for the inclusion in, and the exclusion from, the lists of Scheduled Castes and Scheduled Tribes, of certain castes and tribes, for the readjustment of representation of parliamentary and assembly constituencies.
3. Government of Union Territories Act, 1963.
4. Government of National Capital Territory of Delhi Act, 1991.
5. Presidential and Vice-Presidential Elections Act, 1952[5] regulates certain matters relating to or connected with elections to the offices of the President and Vice-President of India.

RULES RELATING TO ELECTIONS

1. Registration of electors Rules, 1960[6] provide for the preparation and publication of electoral rolls.
2. Conduct of Elections Rules, 1961[7] facilitates conduct of fair and free elections to the Parliament and State Legislatures.
3. Prohibition of Simultaneous Membership Rules, 1950.
4. Members of Lok Sabha (Disqualification on Ground of Defection) Rules, 1985.
5. Members of Rajya Sabha (Disqualification on Ground of Defection) Rules, 1985.
6. Presidential and Vice-Presidential Elections Rules, 1974.[8]
7. Members of Lok Sabha (Declaration of Assets and Liabilities) Rules, 2004.
8. Members of Rajya Sabha (Declaration of Assets and Liabilities) Rules, 2004.

ORDERS RELATING TO ELECTIONS

1. Election Symbols (Reservation and Allotment) Order, 1968 provides for the specification, reservation, choice and allotment of symbols at elections in parliamentary and assembly constituencies, for the recognition of political parties in relation thereto.
2. Registration of Political Parties (Furnishing of Additional Particulars) Order, 1992 provides for furnishing of additional particulars by associations or bodies of individual citizens of India seeking registration as a political party with the Election Commission of India.

NOTES AND REFERENCES

1. The Delimitation Act (2002) was amended in 2003, 2008 and 2016.
2. Originally, the Act provided for a period of two years.
3. Earlier, the Delimitation Acts were enacted in 1952, 1962 and 1972.
4. This Act repealed the three earlier Acts, namely, the Parliament (Prevention of Disqualification) Act, 1950; the Parliament (Prevention of Disqualification Act, 1951; and the Prevention of Disqualification (Parliament and Part C States Legislatures) Act, 1953.
5. This Act was amended in 1974, 1977 and 1997.
6. Earlier, the Rules in this regard were made in 1950 and 1956. Both the earlier Rules were known by the same nomenclature i.e., the Representation of the People (Preparation of Electoral Rolls) Rules.
7. Earlier, the Rules in this regard were made in 1951 and 1956. Both the earlier Rules were known by the same nomenclature i.e., the Representation of the People (Conduct of Elections and Election Petitions) Rules.
8. These Rules repealed the earlier Presidential and Vice-Presidential Elections Rules, 1952.

73 Electoral Reforms

COMMITTEES RELATED TO ELECTORAL REFORMS

The various committees and commissions which have examined our electoral system, election machinery as well as election process and suggested reforms are mentioned here.

1. Joint Parliamentary Committee on Amendments to Election Laws (1971–72).
2. Tarkunde Committee was appointed in 1974 by Jaya Prakash Narayan (JP) during his "Total Revolution" movement. This unofficial committee submitted its report in 1975.
3. Dinesh Goswami Committee on Electoral Reforms (1990)[1]
4. Vohra Committee on the Nexus between Crime and Politics (1993)
5. Election Commission of India Recommendations on Electoral Reforms (1998).
6. Indrajit Gupta Committee on State Funding of Elections (1998)[2]
7. Law Commission of India 170th Report on Reform of the Electoral Laws (1999)
8. National Commission to Review the Working of the Constitution (2000–2002)[3]. It was headed by M.N. Venkatachaliah.
9. Election Commission of India Report on Proposed Electoral Reforms (2004).
10. Second Administrative Reforms Commission of India Report on Ethics in Governance (2007). It was headed by Veerappa Moily.
11. Tankha Committee (Core Committee) was appointed in 2010 to look into the whole gamut of the election laws and electoral reforms.

12. J.S. Verma Committee Report on Amendments to Criminal Law (2013).
13. Law Commission of India 244th Report on Electoral Disqualifications (2014).
14. Law Commission of India 255th Report on Electoral Reforms (2015).

Based on the recommendations made by the above Committees and Commissions, various reforms have been introduced in our electoral system, election machinery and election process. These can be studied under the following four heads.

- Electoral reforms before 1996
- Electoral reforms of 1996
- Electoral reforms after 1996
- Electoral reforms since 2010

ELECTORAL REFORMS BEFORE 1996

Lowering of Voting Age

The 61st Constitutional Amendment Act of 1988[4] reduced the voting age from 21 years to 18 years for the Lok Sabha as well as the assembly elections. This was done in order to provide to the unrepresented youth of the country an opportunity to express their feelings and help them become a part of political process.

Deputation to Election Commission

In 1988[5] , a provision was made that the officers and the staff engaged in preparation, revision and correction of electoral rolls for elections are deemed to be on deputation to the Election Commission for the period of such employment. These personnel, during that period, would be under the control, superintendence and discipline of the Election Commission.

Increase in Number of Proposers

In 1988[6] , the number of electors who are required to sign as proposers in nomination papers for elections to the Rajya Sabha and state legislative council has been increased to 10 per cent of the electors of the constituency or ten such electors, whichever is less. This was done in order to prevent non-serious candidates from contesting frivolously.

Electronic Voting Machines

In 1989[7] , a provision was made to facilitate the use of Electronic Voting Machines (EVMs) in elections. The EVMs were used for the first time in 1998 on experimental basis in selected constituencies in the elections to the Assemblies of Rajasthan, Madhya Pradesh and Delhi. The EVMs were used for the first time in the general elections (entire state) to the Assembly of Goa in 1999.

Booth Capturing

In 1989[8] , a provision was made for adjournment of poll or countermanding of elections in case of booth capturing. Booth

capturing includes: (i) seizure of a polling station and making polling authorities surrender ballot papers or voting machines (ii) taking possession of polling station and allowing only one's own supporters to exercise their franchise (iii) threatening and preventing any elector from going to polling station and (iv) seizure of the place being used for counting of votes.

Elector's Photo Identity Card (EPIC)

The use of electors' photo identity cards by the Election Commission is surely making the electoral process simple, smoother and quicker. A decision was taken by the Election Commission in 1993 to issue photo identity cards to electors throughout the country to check bogus voting and impersonation of electors at elections. The electoral roll is the basis for issue of EPICs to the registered electors. The electoral rolls are normally revised every year with 1st January of the year as the qualifying date. Every Indian citizen who attain the age of 18 years or above as on that date is eligible for inclusion in the electoral roll and can apply for the same. Once he is registered in the roll, he would be eligible for getting an EPIC. The scheme of issuing the EPICs is, therefore, a continuous and ongoing process for the completion of which no time limit can be fixed as the registration of electors is a continuous and ongoing process (excepting for a brief period between the last date for filing nomination and completion of electoral process) on account of more number of persons becoming eligible for the right of franchise on attaining the age of 18. It is the continuous effort of the Election Commission to provide the EPICs to the electors who have been left out in the previous campaigns as well as the new electors.[8a]

ELECTORAL REFORMS OF 1996

In 1990, the National Front Government headed by V.P. Singh appointed a committee on electoral reforms under the chairmanship of Dinesh Goswami, the then Law Minister. The Committee was asked to study the electoral system in detail and suggest measures for remedying the drawbacks within it. The Committee, in its report submitted in 1990 itself, made a number of proposals on electoral reforms. Some of these recommendations were implemented in 1996[9]. These are explained here.

Listing of Names of Candidates

The candidates contesting elections are to be classified into three categories for the purpose of listing of their names. They are

(i) Candidates of recognised political parties
(ii) Candidates of registered-unrecognised political parties
(iii) Other (independent) candidates

Their names in the list of contesting candidates and in the ballot papers has to appear separately in the above order and in each category these have to be arranged in the alphabetical order.

Disqualification for Insulting the National Honour Act

A person who is convicted for the following offences under the *Prevention of Insults to National Honour Act* of 1971 is disqualified to contest in the elections to the Parliament and state legislature for 6 years.

(i) Offence of insulting the National Flag
(ii) Offence of insulting the Constitution of India
(iii) Offence of preventing the singing of National Anthem

Prohibition on the Sale of Liquor

No liquor or other intoxicants are to be sold or given or distributed at any shop, eating place, hotel or any other place whether public or private within a polling area during the period of 48 hours ending with the hour fixed for the conclusion of poll. Any person who violates this rule is to be punished with imprisonment up to 6 months or with fine up to ₹2,000 or with both.

Number of Proposers

The nomination of a candidate in a Parliamentary or assembly constituency should be subscribed by 10 registered electors of the constituency as proposers, if the candidate is not sponsored by a recognised political party. In the case of a candidate sponsored by a recognised political party, only one proposer is required. This was done in order to discourage non-serious people from contesting the elections.

Death of a Candidate

Earlier, in case of death of a contesting candidate before the actual polling, the election used to be countermanded. Consequently, the election process had to start all over again in the concerned constituency. But now, the election would not be countermanded on the death of a contesting candidate before the actual polling. However, if the deceased candidate belonged to a recognised political party, the party concerned would be given an option to propose another candidate within seven days.

Time Limit for By-Elections

Now, by-elections are to be held within six months of occurrence of the vacancy in any House of Parliament or a state legislature. But, this condition is not applicable in two cases:

(i) Where the remainder of the term of the member whose vacancy is to be filled is less than one year; or

(ii) When the Election Commission in consultation with the Central Government, certifies that it is difficult to hold the by-elections within the said period.

Holiday to Employees on the Polling Day

The registered voters employed in any trade, business, industry or any other establishment are entitled to a paid holiday on the polling day. This rule applies even to the daily wagers. Any employer who violates this rule is to be punished with a fine up to ₹500. However, this rule is not applicable in the case of a voter whose absence may cause danger or substantial loss in respect of the employment in which he is engaged.

Contestants Restricted to Two Constituencies

A candidate would not be eligible to contest from more than two Parliamentary or assembly constituencies at a general election or at the by-elections which are held simultaneously. Similar restrictions are imposed for biennial elections and by-elections to the Rajya Sabha and the state legislative councils.

Prohibition of Arms

Entering into the neighbourhood of a polling station with any kind of arms[10] is to be considered a cognizable offence. Such an act is punishable with imprisonment of up to two years or with fine or with both. Further, the arms found in possession of the offender are to be confiscated and the related licence is to be cancelled. But, these provisions are not applicable to the returning officer, presiding officer, any police officer or any other person appointed to maintain peace and order at the polling station.

Effective Campaigning Period Reduced

The minimum gap between the last date for withdrawal of candidature and the polling date has been reduced from 20 to 14 days.

ELECTORAL REFORMS AFTER 1996

Presidential and Vice Presidential Elections

In 1997[11] , the number of electors as proposers and seconders for contesting election to the office of the President was increased from 10 to 50 and to the office of the Vice President from 5 to 20. Further, the amount of security deposit was increased from ₹2,500 to ₹15,000 for contesting election to both the offices of President and Vice-President to discourage frivolous candidates.

Requisitioning of Staff for Election Duty

In 1998[12] , a provision was made whereby the employees of local authorities, nationalised banks, universities, LIC, government undertakings and other government-aided institutions can be requisitioned for deployment on election duty.

Voting through Postal Ballot

In 1999[13] , a provision was made for voting by certain classes of persons through postal ballot. Thus, any class of persons can be notified by the Election Commission, in consultation with the government, and the persons belonging to such notified class can give their votes by postal ballot, and not in any other manner, at elections in their constituency or constituencies.

Facility to Opt to Vote Through Proxy

In 2003[14] , the facility to opt to vote through proxy was provided to the service voters belonging to the Armed Forces and members belonging to a Force to which provisions of the Army Act apply. Such service voters who opt to vote through proxy have to appoint a proxy in a prescribed format and intimate the Returning Officer of the constituency.

Declaration of Criminal Antecedents, Assets, etc., by Candidates

In 2003, the election Commission issued an order[15] directing every candidate seeking election to the Parliament or a State

Legislature to furnish on his nomination paper the information on the following matters.

(i) Whether the candidate has been convicted or acquitted or discharged in any criminal offence in the past? Whether he/she was imprisoned or fined?
(ii) Prior to six months of filing nomination, whether the candidate is accused in any pending case, of any offence punishable with imprisonment for two years or more, and in which charges were framed or cognizance was taken by a court; if so, the details thereof
(iii) The assets (immovable, movable, bank balances, etc.) of a candidate and his/ her spouse and that of dependents
(iv) Liabilities, if any, particularly whether there are any dues of any public financial institution or government dues
(v) The educational qualifications of the candidate

Furnishing of any false information in the affidavit is now an electoral offence punishable with imprisonment upto six months or fine or both.

Changes in Rajya Sabha Elections:

In 2003, the following two changes were introduced with respect to elections to the Rajya Sabha[16] :

(i) Domicile or residency requirement of a candidate contesting an election to the Rajya Sabha was removed. Prior to this, a candidate had to be an elector in the state from where he was to be elected. Now, it would be sufficient if he is an elector in any parliamentary constituency in the country.
(ii) Introducing open ballot system, instead of secret ballot system, for elections to the Rajya Sabha. This was done to curb cross-voting and to wipe out the role of money power during Rajya Sabha elections. Under the new system, an elector belonging to a political party has to show the ballot paper after marking his vote to a nominated agent of that political party.

Exemption of Travelling Expenditure

As per a provision of 2003[17] , the traveling expenditure incurred by the campaigning leaders of a political party shall be exempted

from being included in the election expenses of the candidate.

Free Supply of Electoral Rolls, etc.

According to a 2003 provision[18] , the Government should supply, free of cost, the copies of the electoral rolls and other prescribed material to the candidates of recognised political parties for the Lok Sabha and Assembly elections. Further, the Election Commission should supply specified items to the voters in the constituencies concerned or to the candidates set up by the recognised political parties.

Parties Entitled to Accept Contribution

In 2003[19] , the political parties were entitled to accept any amount of contribution from any person or company other than a government company. They have to report any contribution in excess of ₹20,000 to the Election Commission for making any claim to any income tax relief. Besides, the companies would get income tax exemption on the amount contributed.

Allocation of Time on Electronic Media

Under a 2003 provision[20] , the Election Commission should allocate equitable sharing of time on the cable television network and other electronic media during elections to display or propagate any matter or to address public. This allocation would be decided on the basis of the past performance of a recognised political party.

Introduction of Braille Signage Features in EVMs

The Commission received representations from the various associations of visually impaired persons for introduction of Braille signage features in the EVMs to facilitate the visually impaired voters to cast their votes without the help of attendant. The Commission considered the proposal in detail and tried the Braille signage feature in the EVMs during the bye-election to the Asifnagar Assembly Constituency of Andhra Pradesh held in 2004. In 2005, it was tried in one of the constituency during the Assembly elections of Bihar, Jharkhand and Haryana. In 2006, it was tried in one of the constituency of the States of Assam, West Bengal, Tamil Nadu, Puducherry and Kerala during Assembly

elections. In 2008, it was tried in all the assembly constituencies of NCT of Delhi during Assembly elections.

The Commission introduced similar Braille signage features on the Electronic Voting Machines during the General Elections to the Fifteenth Lok Sabha (2009) and simultaneous Assembly elections in some States.[20a]

ELECTORAL REFORMS SINCE 2010

Restrictions Imposed on Exit Polls

According to a 2009 provision[21] , conducting exit polls and publishing results of exist polls would be prohibited during the election to Lok Sabha and State Legislative Assemblies. Thus, no person shall conduct any exit poll and publish or publicise by means of the print or electronic media or disseminate in any other manner, the result of any exit poll during the period notified by the Election Commission in this regard. Further, any person who contravenes this provision shall be punishable with imprisonment of upto two years or with fine or with both.

"Exit-poll" is an opinion survey regarding how electors have voted at an election or how all the electors have performed with regard to the identification of a political party or candidate in an election.

Time-Limit for Submitting a Case for Disqualification

In 2009[22] , a provision was made for the simplification of the procedure for disqualification of a person found guilty of corrupt practices. It provided for a three-month time-limit within which the specified authority will have to submit the case of a person found guilty of corrupt practice to the President for determination of the question of disqualification.

All Officials Included in Corrupt Practice

In 2009[23] , a provision was made for the inclusion of all officials, whether in the government service or not, appointed or deputed by the Election Commission in connection with the conduct of elections, within the scope of corrupt practice of obtaining any assistance by a candidate for the furtherance of the prospects of his election.

Increase in Security Deposit

In 2009[24] , the amount of security deposit to be paid by the candidates contesting elections to the Lok Sabha was increased from ₹10,000 to ₹25,000 for the general candidates and from

₹5,000 to ₹12,500 for SC and ST candidates. Similarly, the security deposit in the case of elections to the state legislative assembly was increased from ₹5,000 to ₹10,000 for the general candidates and from ₹2,500 to ₹5,000 for the SC and ST candidates. This was done in order to check the multiplicity of non-serious candidates.

Appellate Authority within the District

In 2009[25] , a provision was made for appointment of an appellate authority within the district against the orders of the Electoral Registration Officers, instead of the Chief Electoral Officer of the state. Thus, an appeal against any order of the Electoral Registration Officer of a constituency (during continuous updation of the electoral roll) will now lie before the District Magistrate or Additional District Magistrate or Executive Magistrate or District Collector or an officer of equivalent rank. A further appeal against any order of the District Magistrate or Additional District Magistrate will now lie before the Chief Electoral Officer of the state.

Voting Rights to Citizens of India Living Abroad

In 2010[26] , a provision was made to confer voting rights to the citizens of India residing outside India due to various reasons. Accordingly, every citizen of India - (a) whose name is not included in the electoral roll (b) who has not acquired the citizenship of any other country (c) who is absent from his place of ordinary residence in India owing to his employment, education or otherwise outside India (whether temporarily or not) - shall be entitled to have his name registered in the electoral roll in the Parliamentary / Assembly constituency in which his place of residence in India as mentioned in his passport is located.

Online Enrolment in the Electoral Roll

In 2013, a provision was made for online filing of applications for enrolment in the electoral roll. For this purpose, the Central Government, after consulting the Election Commission, made the rules known as the Registration of the Electors (Amendment) Rules, 2013.[27] These rules made certain amendments in the Registration of Electors Rules, 1960.

Introduction of NOTA Option

According to the directions of Supreme Court, the Election Commission made provision in the ballot papers / EVMs for None of the Above (NOTA) option so that the voters who come to the polling booth and decide not to vote for any of the candidates in the fray, are able to exercise their right not to vote for such candidates while maintaining the secrecy of their ballot. The provision for NOTA has been made since General Election to State Legislative Assemblies of Chhattisgarh, Madhya Pradesh, Mizoram, NCT of Delhi and Rajasthan in 2013 and continued in the General Election to State Legislative Assemblies of Andhra Pradesh, Arunachal Pradesh, Odisha and Sikkim in 2014 along with the General Elections to the Sixteenth Lok Sabha (2014).[28]

The voters polled against the NOTA option are not taken into account for calculating the total valid voters polled by the contesting candidates for the purpose of return of security deposits to candidates. Even if the number of electors opting for NOTA options is more than the number of votes polled by any of the candidates, the candidate who secures the largest number of votes has to be declared elected.[29]

In 2001, the ECI had sent a proposal to the Government to amend the law so as to provide for a neutral vote provision for the electors who did not wish to vote for any of the candidates. In 2004, PUCL (People's Union for Civil Liberties) filed a petition seeking a direction to provide the necessary provision in ballot papers and EVMs for protection of the right to not vote for any candidate, secretly. The Supreme Court in 2013 held that the ECI may provide for the None of the Above (NOTA) option on EVMs and ballot papers.[30]

Introduction of VVPAT

The Voter Verifiable Paper Audit Trail is an independent system attached with the EVMs that allows the voters to verify that their votes are cast as intended. When a vote is cast, a slip is printed and remains exposed through a transparent window for seven seconds, showing the serial number, name and symbol of the candidate. Thereafter, the receipt automatically gets cut and falls into the sealed dropbox of the VVPAT. The system allows a voter

to challenge his/her vote on the basis of the paper receipt. As per rules, the Presiding Officer of the polling booth will have to record the dissent of the voter, which would have to be taken into account at the time of counting, if the challenge is found to be false.[31]

The law for using VVPATs was amended in 2013. In 2013, the Supreme Court of India had permitted the ECI to introduce VVPAT in a phased manner, calling it 'an indispensable requirement of free and fair elections'. The Court had felt that introducing VVPAT would ensure the accuracy of the voting system and also help in manual counting of votes in case of dispute. VVPATs were first used in byeelection to the Noksen Assembly Constituency of Nagaland held in 2013. Thereafter, VVPATs have been used in selected constituencies during every General Election to State Legislative Assemblies. VVPATs were used in eight selected Parliamentary Constituencies in the country in the 2014 Lok Sabha Election. EVMs with VVPAT ensure the accuracy and transparency of the voting system.[32]

Persons in Jail or Police Custody Can Contest Elections

In 2013,[33] the Supreme Court upheld an order of the Patna High Court declaring that a person who has no right to vote by reason of being in jail or in police custody, is not an elector and is, therefore, not qualified to contest the elections to the Parliament or the State Legislature. In order to negate this order of the Supreme Court, the following two new provisions[34] have been included in the Representation of the People Act, 1951:

(i) The first provision expressly provides that by reason of the prohibition to vote (either due to in jail or in police custody), a person whose name has been entered in the electoral roll shall not cease to be an elector.

(ii) The second provision expressly provides that a Member of Parliament or the State Legislature shall be disqualified only if he is so disqualified under the provisions contained in the Act and on no other ground.

Consequently, the persons in jail or in police custody are allowed to contest the elections.

Immediate Disqualification of Convicted MPs and MLAs

In 2013,[35] the Supreme Court held that chargesheeted Members of Parliament and MLAs, on conviction for offences, will be immediately disqualified from holding membership of the House without being given three months' time for appeal, as was the case before.

The concerned Bench of the Court struck down as unconstitutional Section 8 (4) of the Representation of the People Act (1951) that allows convicted lawmakers a three-month period for filing appeal to the higher court and to get a stay of the conviction and sentence. The Bench, however, made it clear that the ruling will be prospective and those who had already filed appeals in various High Courts or the Supreme Court against their convictions would be exempt from it.

The Bench said: "A reading of the two provisions in Articles 102 and 191 of the Constitution would make it abundantly clear that Parliament is to make one law for a person to be disqualified for being chosen as, and for being, a Member of either House of Parliament or Legislative Assembly or Legislative Council of the State. Parliament thus does not have the power under Articles 102 and 191 of the Constitution to make different laws for a person to be disqualified for being chosen as a member and for a person to be disqualified for continuing as a Member of Parliament or the State Legislature."

The Bench said: "Section 8 (4) of the Act which carves out a saving in the case of sitting members of Parliament or State Legislature from the disqualifications under the Act or which defers the date on which the disqualification will take effect in the case of a sitting member of Parliament or a State Legislature is beyond the powers conferred on Parliament by the Constitution."

The Bench held: "Looking at the affirmative terms of Articles 102 and 191 of the Constitution, we hold that Parliament has been vested with the powers to make law laying down the same disqualifications for person to be chosen as a member of Parliament or a State Legislature and for a sitting member of a House of Parliament or a House of a State Legislature. We also hold that the provisions of Article 101 and 190 of the Constitution expressly prohibit Parliament to defer the date from which the

disqualification will come into effect in case of a sitting member of Parliament or a State Legislature. Parliament, therefore, has exceeded its powers conferred by the Constitution in enacting sub-section (4) of Section 8 of the Act and accordingly sub-section (4) of Section 8 of the Act is ultra vires the Constitution[36] ."

In order to nullify the above ruling of the Supreme Court, the Representation of the People (Second Amendment and Validation) Bill, 2013 was introduced in the Parliament. However, the Bill was later withdrawn by the Government.

Ceiling on Election Expenditure

Increased In 2014[37] , the Central Government raised the maximum ceiling on election expenditure by candidates for a Lok Sabha seat in bigger states to ₹70 lakhs (from earlier ₹40 lakhs). In other states and union territories, it is ₹54 lakhs (from earlier ₹16–40 lakhs).

Similarly, the limit for an Assembly seat in the bigger states was increased to ₹28 lakhs (from earlier ₹16 lakhs). In other states and union territories, it is 20 lakhs (from earlier ₹8–16 lakhs).

The State-wise limits are mentioned in Table 73.1 at the end of this chapter.

Photos of Candidates on EVMs and Ballot Papers

According to an Election Commission order, in any election being held after May 1, 2015, the ballot papers and EVMs will carry the picture of the candidate with his or her name and party symbol to avoid confusion among the electorates in constituencies where namesakes are contesting.

The June 2015 by polls to six seats in five states were the first elections where photographs of candidates were used on ballot papers.

The Commission has noted that there are many cases where candidates with same or similar names contest from the same constituency. Although appropriate suffixes are added to the names of candidates in the event of two or more candidates having same name, the Commission considers that additional measures are required for removing confusion in the minds of electors at the time of voting.

The photograph will appear between the name of the candidate and his or her election symbol.

The Commission explained that if a candidate fails to provide the photograph, it “shall not be a ground for the rejection of the nomination of the candidate”.

The candidates will now be required to submit their recent photograph, either black and white or coloured, to the election authorities at the time of filing nomination. No uniforms would be allowed and caps and dark glasses have to be avoided.[38]

Ceiling on Cash Donations Lowered:

In 2017 budget, the limit for anonymous cash donations by any individual to a political party has been lowered from ₹20,000 to ₹2,000. This means that now the political parties cannot receive more than ₹2,000 as cash donations. However, they are not required to inform the Election Commission of India the details of persons who donate under ₹2,000. They must keep records of persons making above ₹2,000 donations.

Cap on Corporate Contributions Lifted:

In 2017 budget, the limit on corporate contributions from 7.5 per cent of the net profit of a company’s past three financial years has been removed. This means that now a company can donate any amount of money to any political party. Further, the obligation of the company to report such donations in its profit and loss account has also been lifted.

Introduction of Electoral Bonds:

In 2018, the central government notified the Electoral Bond Scheme. This scheme was announced in the 2017 budget. It is touted as an alternative to cash donations made to the political parties. It is aimed at bringing clean money and substantial transparency into the system of political funding. The salient features of the scheme are:

(i) The electoral bond means a bond issued in the nature of promissory note which is a bearer banking instrument and does not carry the name of the buyer or payee.

(ii) The electoral bonds may be purchased by a citizen of India or entities incorporated or established in India.

(iii) The electoral bonds can be used for making donations to only those registered political parties which have secured not less than one per cent of the votes polled in the last general election to the Lok Sabha or the State legislative Assembly.
(iv) The electoral bonds can be encashed by an eligible political party only through a bank account with the authorized bank.
(v) The electoral bonds are issued in the denomination of ₹1,000, ₹10,000, ₹1,00,000, ₹10,00,000 and ₹1,00,00,000.
(vi) The information furnished by the buyer is treated confidential by the authorized bank and is not to be disclosed to any authority for any purposes, except when demanded by a competent court or upon registration of criminal case by any law enforcement agency.

Foreign Funding Allowed:
In 2018 budget, the receiving of foreign funds by the political parties has been allowed. In other words, the political parties can now receive funds from the foreign companies. Accordingly, the Foreign Contribution (Regulation) Act, 2010, has been amended. Under this amendment, the definition of a foreign company has been modified.

Table 73.1 *Limit on Election Expenditure (As declared in 2014)*

Sl. No.	Name of State or Union territory	Maximum limit of election expenses in any one	
		Parliamentary constituency	Assembly constituency
	I. STATES	₹	₹
1	Andhra Pradesh	70,00,000	28,00,000
2	Arunachal Pradesh	54,00,000	20,00,000
3	Assam	70,00,000	28,00,000
4	Bihar	70,00,000	28,00,000
5	Goa	54,00,000	20,00,000

6	Gujarat	70,00,000	28,00,000
7	Haryana	70,00,000	28,00,000
8	Himachal Pradesh	70,00,000	28,00,000
9	Jammu and Kashmir	70,00,000	–
10	Karnataka	70,00,000	28,00,000
11	Kerala	70,00,000	28,00,000
12	Madhya Pradesh	70,00,000	28,00,000
13	Maharashtra	70,00,000	28,00,000
14	Manipur	70,00,000	20,00,000
15	Meghalaya	70,00,000	20,00,000
16	Mizoram	70,00,000	20,00,000
17	Nagaland	70,00,000	20,00,000
18	Odisha	70,00,000	28,00,000
19	Punjab	70,00,000	28,00,000
20	Rajasthan	70,00,000	28,00,000
21	Sikkim	54,00,000	20,00,000
22	Tamil Nadu	70,00,000	28,00,000
23	Tripura	70,00,000	20,00,000
24	Uttar Pradesh	70,00,000	28,00,000
25	West Bengal	70,00,000	28,00,000
26	Chhattisgarh	70,00,000	28,00,000
27	Uttarakhand	70,00,000	28,00,000
28	Jharkhand	70,00,000	28,00,000
29	Telangana	70,00,000	28,00,000
	II. UNION TERRITORIES		
1	Andaman and	54,00,000	–

	Nicobar Islands		
2	Chandigarh	54,00,000	–
3	Dadra and Nagar Haveli	54,00,000	–
4	Daman and Diu	54,00,000	–
5	Delhi	70,00,000	28,00,000
6	Lakshadweep	54,00,000	–
7	Puducherry	54,00,000	20,00,000

NOTES AND REFERENCES

1. See “Electoral Reforms of 1996”, discussed later in this chapter.
2. In 1998, the BJP-led Government appointed an eight-member committee on state funding of elections under the chairmanship of Indrajit Gupta, a former Home Minister. The committee submitted its report in 1999. It upheld the argument for introduction of state funding of elections. It stated that state funding of elections is constitutionally and legally justified and is in public interest.
3. For recommendations of the commission in this regard, see Chapter 80.
4. This came into force on March 28, 1989. Consequently, amendments were also made in the *Representation of the People Act* of 1950 and 1951.
5. *Representation of the People (Amendment) Act* of 1988.
6. *Ibid*.
7. Amendment to the *Representation of the People Act* of 1951 with effect from March 15, 1989.
8. Section 58-A has been inserted in the *Representation of the People Act* of 1951 by Act 1 of 1989.

8a. Annual Report 2013–14, Ministry of Law and Justice, Government of India, p.67.

9. *Representation of the People (Amendment) Act*, 1996, with effect from August 1, 1996.
10. As defined in *Arms Act*, 1959.
11. *Presidential and Vice-Presidential Elections (Amendment) Act*, 1997.
12. *Representation of the People (Amendment) Act*, 1998.
13. *Representation of the People (Amendment) Act*, 1999.
14. *Election Laws (Amendment) Act*, 2003 and Conduct of Elections (Amendment) Rules, 2003.
15. Order dated March 27, 2003.
16. *Representation of the People (Amendment) Act*, 2003.
17. *Election and Other Related Laws (Amendment) Act*, 2003.
18. *Ibid*.
19. *Ibid*.
20. *Ibid*.

20a. Election Commission of India circular dated 12th February, 2009.

21. *Representation of the People (Amendment) Act*, 2009, with effect from February 1, 2010.
22. *Ibid*.
23. *Ibid*.
24. *Ibid*.
25. *Ibid*.
26. *Representation of the People (Amendment) Act*, 2010, with effect from February 10, 2011.
27. The amendment was notified vide S.O. 3242 (E) dated 24th October, 2013.
28. Electoral Statistics : Pocket Book 2015, Election Commission of India, p.96.
29. *Ibid*.
30. India Votes : The General Elections 2014, Election Commission of India, p.18.
31. *Ibid*.
32. *Ibid*.
33. *Chief Election Commissioner vs. Jan Chaukidar* (2013).
34. Vide the Representation of the People (Amendment and Validation) Act, 2013.

35. *Lily Thomas vs. Union of India* and *Lok Prahari vs. Union of India* (2013).
36. *The Hindu*, “MPs, MLAs to be disqualified on date of criminal conviction”, July 10, 2013.
37. Conduct of Election Rules, 1961 as amended in 2014, with effect from February 28, 2014.
38. *The Economic Times*, “Electronic Voting Machines to carry photos of candidates : CEC”, September 9, 2015.

74 Voting Behaviour

MEANING OF VOTING BEHAVIOUR

Voting behaviour is also known as electoral behaviour. It is a form of political behaviour. It implies the behaviour of voters in the context of elections in a democratic political system.

Voting behaviour (or the study of voting behaviour) is defined in the following way:

Plano and Riggs: "Voting behaviour is a field of study concerned with the ways in which people tend to vote in public elections and the reasons why they vote as they do."

Gordon Marshall: "The study of voting behaviour invariably focuses on the determinants of why people vote as they do and how they arrive at the decisions they make".[1]

Oinam Kulabidhu: "Voting behaviour may be defined as the behaviour that explicitly reflects voter's choices, preferences, alternatives, ideologies, concerns, agreements, and programmes in respect of various issues, questions pertaining to the society and nation".[2]

Stephen Wasby: "The study of voting behaviour involves an analysis of individual psychological make-up and their relation to political action as well as institutional patterns, such as the communication process and their impact on elections".[3]

SIGNIFICANCE OF VOTING BEHAVIOUR

Psephology, a branch of political science, deals with the scientific study of voting behaviour. This is a new term popularised by the American political scientists and political sociologists.

The recorded history of voting goes back, at least, to the Greek Polis. The modern world for the study of voting behaviour, psephology, derives from the classical Greek 'Psephos', the piece of pottery on which certain votes, mainly about the banishment of those seen as dangerous to the state, were inscribed.[4]

The study of voting behaviour is significant for the following reasons:[5]

1. It helps in comprehending the process of political socialisation.
2. It helps in examining the internalisation of democracy as a value among the elite as well as masses.
3. It emphasises the real impact of revolutionary ballot box.
4. It enables to throw light as to how far the electoral politics continue or break with the past.
5. It helps to measure whether it is modern or primordial in the context of political development.

According to N.G.S. Kini, voting behaviour can be regarded as:

1. A mode of legitimising democratic rule;
2. Instancing "participation" in the political process involving integration into the political community;
3. Instancing an act of decision-making;
4. A role-action involving definite political orientation imbedded in a particular type of political culture; or
5. A direct relation of the individual citizens to the formal government.

DETERMINANTS OF VOTING BEHAVIOUR

Indian society is highly diversified in nature and composition. Hence, voting behaviour in India is determined or influenced by multiple factors. These several factors can be divided, into two broad categories, namely, socioeconomic factors and political factors. These are explained below:

1. **Caste**: Caste is an important factor influencing the behaviour of voters. Politicisation of caste and casteism in politics has been a remarkable feature of Indian politics. Rajni Kothari said "Indian politics is casteist, and caste is politi-cised".[6] While formulating their election strategies, the political parties always take into account the factor of caste.

   Paul Brass has very-well explained the role of caste factor in the Indian voting behaviour in the following way: "At the local level, in the country side, by far the most important factor in voting behaviour remains caste solidarity. Large and important castes in a constituency tend to back either a respected member of their caste or a political party with whom their caste members identify. However, local factions and local-state factional alignments that involve intercaste coalitions, are also important factors in influencing voting behaviour".[7]
2. **Religion**: Religion is another significant factor which influences the electoral behaviour. Political parties indulge in communal propaganda and exploit the religious sentiments of the voters. The existence of various communal parties has further added to the politicisation of religion. Despite India being a secular nation, no political party ignores the influence of religion in electoral politics.
3. **Language**: Linguistic considerations of the people influence their voting behaviour. During elections, the political parties arouse the linguistic feelings of the people and try to influence their decision-making. The re-organisation of states (in 1956 and later) on language basis clearly reflects the significance of language factor in Indian politics. The rise of some political parties like DMK in Tamil Nadu and TDP in Andhra Pradesh can be attributed to the linguism.[8]
4. **Region**: Regionalism and sub-regionalism play an important role in voting behaviour. These parochial feelings of

subnationalism led to the emergence and perpetuation of regional parties in various states. These regional parties appeal to the electorate on the ground of regional identities and regional sentiments. Sometimes, the secessionist parties call for the boycott of elections.

5. **Personality**: The charismatic[9] personality of the party leader plays an important role in electoral behaviour. Thus, the towering image of Jawaharlal Nehru, Indira Gandhi, Rajiv Gandhi, Jay Prakash Narayan, Atal Bihari Vajpayee and Narendra Modi has significantly influenced the electorate to vote in favour of their parties. Similarly, at the state level also, the charismatic personality of the regional party leader has been a significant factor of popular support in the elections.
6. **Money**: The role of money factor cannot be overlooked in explaining the voting behaviour. Despite the limitations on the election expenditures, crores of rupees are spent on elections. The voters seek money or liquor or goods in return for their votes. In other words, 'votes' are freely exchanged for 'notes'. However, money can influence the decisions of the voters only in the normal circumstances and not in a wave election.

   Paul Brass has very-well explained the meaning of a wave election in the following way: "A wave election is one in which a clear tendency begins to develop among the electorate in a single direction and in favour of a national party or its leader. It is based upon an issue or set of issues that transcend local calculations and coalition and draws the bulk of the uncommitted and wavering voters in the same direction as the word spreads from village to village and tea stall to tea stall".[10]
7. **Performance of the Ruling Party**: On the eve of elections, every political party releases its election manifesto containing the promises made by it to the electorate. The performance of the ruling party is judged by the electorate on the basis of its election manifesto. The defeat of Congress Party in 1977 elections and that of Janata Party in 1980 elections illustrates that the performance of the ruling party influences the voting behaviour. Thus, the anti-incumbency factor (which means dissatisfaction with the performance of the ruling party) is a determinant of electoral behaviour.
8. **Party Identification**: Personal and emotional association with political parties plays a role in determining voting behaviour.

People who identify themselves with a particular party will always vote for that party irrespective of its omissions and commissions. Party identification was especially strong in the 1950s and 1960s. However, since the 1970s, there has been a decline in the number of strong party identifiers.

9. **Ideology**: The political ideology professed by a political party has a bearing on the decision-making of the voters. Some people in the society are committed to certain ideologies like communism, capitalism, democracy, secularism, patriotism, decentralisation and so on. Such people generally support the candidates put up by the parties professing those ideologies. However, it must be printed out here that the number of such people is low.
10. **Other Factors**: In addition to the aboveexplained factors, there are also various other factors which determine the voting behaviour of the Indian electorate. These are mentioned below:
    (i) Political events preceding an election like war, murder of leader, corruption scandals, etc.
    (ii) Economic conditions at the time of election like inflation, fo shortage, unemployment, etc.
    (iii) Factionalism - a feature of Indian politics from bottom to t levels
    (iv) Age - old or young
    (v) Sex - men or women
    (vi) Education - educated or uneducated
    (vii) Habitation - rural or urban (viii) Class (income) - rich or poor
    (ix) Family and kinship
    (x) Candidate orientation
    (xi) Election campaign
    (xii) Political family background
    (xiii) Role of media

ROLE OF MEDIA IN ELECTIONS AND VOTING BEHAVIOUR

The following points explain the role of media in elections and voting behaviour:[11]

1. Information Dissemination

Information dissemination in relation to elections, particularly during the process of elections is extremely important for all stakeholders. Starting from the announcement of elections to nomination, scrutiny, campaign, security arrangements, polling, counting, declaration of results, etc., all of these require widest circulation. The voter comes to know about the basics like: what, when, where and how of elections generally through the media. Even last minute changes of polling arrangements, violation of Model Code of Conduct (MCC), and violation of expenditure instructions, any untoward incidents or disturbances promptly come to the notice not only of the people but also of the Election Commission through the media.

Newspapers and news channels have very enthusiastically made use of the information relating to educational, financial and criminal antecedents of candidates, contained in the affidavit filed by them along with their nomination paper, which is immediately uploaded on the Election Commission's website. This has contributed to further honesty and transparency in the election system.

2. Enforcement of MCC and other Laws

In today's democratic and political landscape, the watch-dog role of the media is quite vital. Media can highlight incidents of use of muscle and money power by political parties or candidates and educate the electors on ethical and inducement-free voting practices. It can also expose violations of the MCC such as divisive or hate speeches or unverified allegations in campaigns aimed at influencing electors. Violations reported by media are followed up by the Election Commission as in dealing with formal complaints.

The media can sensitise the political functionaries and the electorate about the MCC and relevant laws and instructions governing the conduct of elections.

3. Compliance to Election Laws

The Election Commission does not regulate media. It has however, the responsibility to enforce the provisions of law or Court directions, which might have linkages with media or certain aspects of media functioning. During elections, media is present and active at all stages which would also mean that they too conform to various laws governing the elections. These laws are mentioned below:

(i) ***Section 126 of the Representation of the People Act, 1951:*** It prohibits displaying any election matter by mean of cinematograph, television or other similar apparatus, during the period of 48 hours ending with the hour fixed for conclusion of poll.

(ii) ***Section 126A of the Representation of the People Act, 1951:*** It prohibits conduct of exit poll and dissemination of their results during the period mentioned therein, i.e., the hour fixed for commencement of polls in the first phase and half hour after the time fixed for close of poll for the last phase in all the States and Union Territories.

(iii) ***Section 127A of the Representation of the People Act, 1951:*** The printing and publication of election pamphlets, posters, etc. is governed by its provisions, which make it mandatory to bear on its face the names and addresses of the printer and the publisher.

(iv) ***Section 171H of the Indian Penal Code:*** It prohibits incurring of expenditure on, *inter alia*, advertisement without the authority of the contesting candidate.

4. Voter Education and Participation

There is scope for a much larger and committed partnership from media in the crucial area of voter awareness and participation. This is one of the most promising areas of the Election Commission-media relationship.

There is a gap between what the voters ‘should know’ and what they ‘actually know’ in important areas like registration, EPIC/ identity proofs, Polling Station location, use of EVMs, timings of the poll, use of money/ muscle power by candidates etc. The elector should be well-informed when he/she goes to exercise his/ her franchise on the day of the polls.

Voter education helps build an environment where values of democracy are understood and acted upon by the population. Media and civil society have an important role to play in fostering such an environment. To improve participation of all sections of the electorate, awareness levels need to be enhanced, especially amongst the freshly eligible youth, uneducated, residents of far-flung, inaccessible and remote areas, and socially and economically weaker sections of the society. Such segments need to be reached through the Media, apart from civil society and field based organisations. The Election Commission has in place a framework of engagement for collaboration between the Commission and Media Houses/ Organisations in this important area of voter participation. The Election Commission expects that the Media should volunteer to take up this task of informing, motivating and facilitating citizens to take part in the democratic elections.

5. Responsibility of Government Media

In broadcast of election related news or analysis, Public Service Broadcasters are expected to lead by example in terms of neutrality and objectivity, and adhere to various guidelines including their own.

The Election Commission has a fruitful arrangement with Prasar Bharati in providing free broadcast time on All India Radio and Doordarshan to recognised National and State parties so as to ensure a level playing field in elections. The political parties in this manner can reach out to every corner of the country, even in the remotest parts. In addition to this, Prasar Bharati's contribution in spreading voter awareness and educating the public about their voting rights and responsibilities is of great consequence to the inclusion of all in the electoral process. The contribution of Prasar Bharati has come in good measure in this arena.

The Election Commission also urges PIB, DAVP, National Film Development Corporation, Directorate of Field Publicity, Song and Drama Division and many other Central and State Information Directorates/ Departments to come forward and shoulder the same responsibility.

NOTES AND REFERENCES

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2. Oinam Kulabidhu, *Electoral Politics in Manipur*, 1980–1995 (Unpublished Ph.D. Thesis submitted to the Manipur University, 1998).
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4. David Robertson, *The Penguin Dictionary of Politics*, Second Edition, 1993, p.485.
5. K.R. Acharya (Ed.), *Perspectives on Indian Government and Politics*, Second Edition, 1991, S. Chand & Company Ltd., p.403.
6. *Caste in Indian Politics* and *Politics in India* are the two major contributions of Rajni Kothari to the study of Indian politics.
7. Paul R. Brass, *The Politics of India Since Independence*, Second Edition, Cambridge University Press, pp. 97–98.
8. Linguism means love for one's language and hatred towards other languagespeaking people.
9. 'Charisma' means exceptional and attractive qualities of a leader.
10. Paul R. Brass, *The 1984 Parliamentary Elections in Uttar Pradesh*, Asian Survey, June, 1986.
11. *Handbook for Media-2014,* Election Commission of India, pp.14–17.

75 Coalition Government

MEANING OF COALITION GOVERNMENT

The term ‘coalition’ is derived from the Latin word ‘coalitio’ which means ‘to grow together’. Thus, technically, coalition means the act of uniting parts into one body or whole. Politically, coalition means an alliance of distinct political parties.

Coalition politics or coalition government has been defined in the following way:

When several political parties join hands to form a government and exercise political power on the basis of a common agreed programme/agenda, we can describe the system as coalition politics or coalition government[1] .

Coalitions usually occur in modern parliaments when no single political party can muster a majority of votes. Two or more parties, who have enough elected members between them to form a majority, may then be able to agree on a common programme that does not require too many drastic compromises with their individual policies, and can proceed to form a government[2] .

Coalition denotes a co-operative arrangement under which distinct political parties, or at all events members of such parties, unite to form a government or ministry[3] .

Coalition is a direct descendant of the exigencies of multi-party system in a democratic set-up. It is a phenomenon of a multi-party government where a number of minority parties join hands for the purpose of running the government. A coalition is formed when many splinter groups in a House agree to join hands on a common platform by sinking their broad differences and form a majority in the House[4] .

FEATURES OF COALITION GOVERNMENT

The features or implications of coalition politics or coalition government are very well summarised by J.C. Johari in the following way[5] :

1. Coalitions are formed for the sake of some reward, material or psychic.
2. A coalition implies the existence of at least two partners.
3. The underlying principle of a coalition system stands on the simple fact of temporary conjunction of specific interest.
4. Coalition politics is not a static but a dynamic affair as coalition players and groups dissolve and form new ones.
5. The keynote of coalition politics is compromise, and rigid dogma has no place in it.
6. A coalition government works on the basis of a minimum programme, which may not be ideal for each partner of the coalition.
7. Pragmatism and not ideology is the hallmark of coalition politics. In making political adjustments, principles may have to be set aside.
8. The purpose of a coalition adjustment is to seize power.

In our country, we have seen coalitions coming up either before the elections or after the elections. The pre-poll coalition is considerably advantageous because it provides a common platform to the parties in order to woo the electorate on the basis of a joint manifesto. The post-election union is intended to enable constituents to share political power and run the government[6] .

FORMATION OF COALITION GOVERNMENTS

In the first four Lok Sabha elections (1952, 1957, 1962 and 1967), the Congress party secured the required majority to form the government at the Centre. Even though there was a split in the Congress party in 1969, the minority government of Indira Gandhi managed to continue with the outside support of the CPI, the DMK and other parties. Again, the Congress party won the 1971 elections and formed a single-party government.

However, the dominant Congress party was badly defeated in the 1977 elections. Since then, there have been a number of coalition governments at the Centre. The details are mentioned in Table 75.1.

Table 75.1 *Formation of Coalition Governments at the Centre*

Sl. No.	Period	Coalition	Prime Minister (Party)	Partners
1.	1977–1979	Janata Party	Morarji Desai (Congress (O))	Congress (O), Bharatiya Jana Sangh, Bharatiya Lok Dal, Socialist Party, Congress for Democracy, Chandra Shekhar Group (former congressmen) and others.
2.	1979–1980	Janata Party (Secular)	Charan Singh (Janata(S))	Janata (S) and Congress (U). Congress (I) supported from outside.
3.	1989–1990	National Front	V.P. Singh (Janata Dal)	Janata Dal, TDP, DMK, AGP and

				Congress (Socialist) BJP and Left parties supported from outside.
4.	1990–1991	Janata Dal (Socialist) or Samajwadi Janata Party	Chandra Shekhar (Janata Dal (S) or Samajwadi Janata Party)	Janata Dal (S) and Janata Party. Congress (I) supported from outside.
5.	1996–1997	United Front	H.D. Deve Gowda (Janata Dal)	Janata Dal, CPI, Congress (T), DMK, TDP, TMC, AGP, SP and others. Congress and CPM supported from outside.
6.	1997–1998	United Front	I.K. Gujral (Janata Dal)	Janata Dal, CPI, TMC, SP, DMK, AGP, TDP and others. Congress supported from outside.
7.	1998–1999	BJP-led Coalition	A.B. Vajpayee (BJP)	BJP, AIADMK, BJD, Shiv Sena, Lok Shakti, Arunachal Congress, Samata, Akali Dal, PMK, TRC and others. TDP and Trinamool Congress supported from outside.
8.	1999–	National	A.B. Vajpayee	BJP, JD (U),

	2004	Democratic Alliance (NDA)	(BJP)	Trinamool Congress, Shiv Sena, BJD, LJP, DMK, PMK, INLD, MDMK, National Conference, Akali Dal, RLD, AGP and others.
9.	2004–2009	United Progressive Alliance (UPA)	Manmohan Singh (Congress)	Congress, NCP, DMK, RJD, LJP, PMK and others. CPI and CPM supported from outside.
10.	2009–2014	United Progressive Alliance-II (UPA-II)	Manmohan Singh (Congress)	Congress, NCP, DMK, Trinamool Congress, National Conference and others.
11.	2014–2019	National Democratic Alliance (NDA)	Narendra Modi (BJP)	BJP, LJP, TDP, Shiv Sena, Akali Dal, Rashtriya Lok Samata Party, Apna Dal (S) and others. TDP left NDA in 2018.
12.	2019- till date	National Democratic Alliance (NDA)	Narendra Modi (BJP)	BJP, Akali Dal, LJP, Shiv Sena and others. Shiv Sena left NDA in November 2019.

MERITS OF COALITION GOVERNMENT

The various advantages or strengths of the coalition governments are as follows:

1. There is an accommodation of diverse interests in the functioning of the government. A coalition government acts as a channel to meet the expectations and redress the grievances of different groups.
2. India is a highly diversified country. There are different cultures, languages, castes, religions and ethnic groups, and all these get represented in the coalition governments. This means that a coalition government is more representative in nature and it better reflects the popular opinion of the electorate. In other words, it represents a much more broader spectrum of public opinion than the single-party government.
3. A coalition government comprises different political parties having their own ideologies or agendas. But, the governmental policy requires the concurrence of all the coalition partners. Therefore, a coalition government leads to consensus-based politics. In other words, there is consensual decision-making in the coalition governments.
4. Coalition politics strengthens the federal fabric of the Indian political system. This is because a coalition government is more sensitive and responsive to the regional demands and concerns than the single-party government.
5. A coalition government reduces the tyranny of government (despotic rule). This is due to the reduced domination of a single political party in the functioning of the government. All the members of the coalition participate in the political decision-making. In short, the decisions made are more balanced.

DEMERITS OF COALITION GOVERNMENT

The various disadvantages or weaknesses of the coalition governments are as follows:

1. They are unstable or prone to instability. The difference of opinion among the coalition partners on policy issues leads to the collapse of the government.
2. Leadership of the Prime Minister is a principle of parliamentary form of government. This principle is curtailed in a coalition government as the Prime Minister is required to consult the coalition partners before taking any major decision. The critics have called them as ‘Super Prime Ministers’ or ‘Ultra Prime Ministers’.
3. The Steering Committee or the Co-ordination Committee of the coalition partners acts as the ‘Super-Cabinet’, and thereby it undermines the role and position of the cabinet in the functioning of the governmental machinery.
4. There is a possibility of the smaller constituents of the coalition government playing the role of a ‘King-maker’. They demand more than their strength in the Parliament.
5. The leaders of regional parties bring in the regional factors in the national decision-making. They pressurise the central executive to act on their lines; otherwise, they would threaten to withdraw from the coalition.
6. The size of the Council of Ministers in a coalition government is generally quite large. This is because the ministry has to reflect all the constituents of the coalition. For example, the A.B. Vajpayee ministry of 1999 had 70-plus ministers and it was called as ‘Jumbo Ministry’. This creates the problem of distribution of portfolios as well as the proper coordination among the members.
7. The members of coalition governments do not assume responsibility for the administrative failures and lapses. They play blame games and thereby escape from both collective responsibility as well as individual responsibility.

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76 Anti-Defection Law

The 52nd Amendment Act of 1985 provided for the disqualification of the members of Parliament and the state legislatures on the ground of defection from one political party to another. For this purpose, it made changes in four Articles[1] of the Constitution and added a new Schedule (the Tenth Schedule) to the Constitution. This act is often referred to as the 'anti-defection law'.

Later, the 91st Amendment Act of 2003 made one change in the provisions of the Tenth Schedule. It omitted an exception provision i.e., disqualification on ground of defection not to apply in case of split.

PROVISIONS OF THE ACT

The Tenth Schedule contains the following provisions with respect to the disqualification of members of Parliament and the state legislatures on the ground of defection:

1. Disqualification

Members of Political Parties: A member of a House belonging to any political party becomes disqualified for being a member of the House, (a) if he voluntarily gives up his membership of such political party; or (b) if he votes or abstains from voting in such House contrary to any direction issued by his political party without obtaining prior permission of such party and such act has not been condoned by the party within 15 days.

From the above provision it is clear that a member elected on a party ticket should continue in the party and obey the party directions.

Independent Members: An independent member of a House (elected without being set up as a candidate by any political party) becomes disqualified to remain a member of the House if he joins any political party after such election.

Nominated Members: A nominated member of a House becomes disqualified for being a member of the House if he joins any political party after the expiry of six months from the date on which he takes his seat in the House. This means that he may join any political party within six months of taking his seat in the House without inviting this disqualification.

2. Exceptions

The above disqualification on the ground of defection does not apply in the following two cases:

(a) If a member goes out of his party as a result of a merger of the party with another party. A merger takes place when two-thirds of the members of the party have agreed to such merger.

(b) If a member, after being elected as the presiding officer of the House, voluntarily gives up the membership of his party or rejoins it after he ceases to hold that office. This exemption has been provided in view of the dignity and impartiality of this office.

It must be noted here that the provision of the Tenth Schedule pertaining to exemption from disqualification in case of split by one-third members of legislature party has been deleted by the 91st Amendment Act of 2003. It means that the defectors have no more protection on grounds of splits.

3. Deciding Authority

Any question regarding disqualification arising out of defection is to be decided by the presiding officer of the House. Originally, the act provided that the decision of the presiding officer is final and cannot be questioned in any court. However, in *Kihoto Hollohan* case[2] (1993), the Supreme Court declared this provision as unconstitutional on the ground that it seeks to take away the jurisdiction of the Supreme Court and the high courts. It held that the presiding officer, while deciding a question under the Tenth Schedule, function as a tribunal. Hence, his decision like that of any other tribunal, is subject to judicial review on the grounds of *mala fides*, perversity, etc. But, the court rejected the contention that the vesting of adjudicatory powers in the presiding officer is by itself invalid on the ground of political bias[3] .

4. Rule-Making Power

The presiding officer of a House is empowered to make rules to give effect to the provisions of the Tenth Schedule. All such rules must be placed before the House for 30 days. The House may approve or modify or disapprove them. Further, he may direct that any willful contravention by any member of such rules may be dealt with in the same manner as a breach of privilege of the House.

According to the rules made so, the presiding officer can take up a defection case only when he receives a complaint from a member of the House. Before taking the final decision, he must

give the member (against whom the complaint has been made) a chance to submit his explanation. He may also refer the matter to the committee of privileges for inquiry. Hence, defection has no immediate and automatic effect.

EVALUATION OF THE ACT

The Tenth Schedule of the Constitution (which embodies the anti-defection law) is designed to prevent the evil or mischief of political defections motivated by the lure of office or material benefits or other similar considerations. It is intended to strengthen the fabric of Indian parliamentary democracy by curbing unprincipled and unethical political defections. Rajiv Gandhi, the then Prime Minister, described it as the 'first step towards cleaning-up public life'. The then Central law minister stated that the passing of the 52nd Amendment Bill (anti-defection bill) by a unanimous vote by both the Houses of Parliament was 'a proof, if any, of the maturity and stability of Indian democracy'.

Advantages

The following can be cited as the advantages of the anti-defection law:

(a) It provides for greater stability in the body politic by checking the propensity of legislators to change parties.
(b) It facilitates democratic realignment of parties in the legislature by way of merger of parties.
(c) It reduces corruption at the political level as well as non-developmental expenditure incurred on irregular elections.
(d) It gives, for the first time, a clear-cut constitutional recognition to the existence of political parties.

Criticism

Though the anti-defection law been hailed as a bold step towards cleansing our political life and started as new epoch in the political life of the country, it has revealed may lacunae in its operation and failed to prevent defections in toto. It came to be criticised on the following grounds:

1. It does not make a differentiation between dissent and defection. It curbs the legislator's right to dissent and freedom of conscience. Thus, 'it clearly puts party bossism

on a pedestal and sanctions tyranny of the party in the name of the party discipline'[4] .

2. Its distinction between individual defection and group defection is irrational. In other words, 'it banned only retail defections and legalised wholesale defections'[5] .
3. It does not provide for the expulsion of a legislator from his party for his activities outside the legislature.
4. Its discrimination between an independent member and a nominated member is illogical. If the former joins a party, he is disqualified while the latter is allowed to do the same.
5. Its vesting of decision-making authority in the presiding officer is criticised on two grounds. Firstly, he may not exercise this authority in an impartial and objective manner due to political exigencies. Secondly, he lacks the legal knowledge and experience to adjudicate upon the cases. In fact, two Speakers of the Lok Sabha (Rabi Ray–1991 and Shivraj Patil–1993) have themselves expressed doubts on their suitability to adjudicate upon the cases related to defections[6] .

91ST AMENDMENT ACT (2003)

Reasons

The reasons for enacting the 91st Amendment Act (2003) are as follows:

1. Demands have been made from time to time in certain quarters for strengthening and amending the Anti-defection Law as contained in the Tenth Schedule, on the ground that these provisions have not been able to achieve the desired goal of checking defections. The Tenth Schedule has also been criticised on the ground that it allows bulk defections while declaring individual defections as illegal. The provision for exemption from disqualification in case of splits as provided in the Tenth Schedule has, in particular, come under severe criticism on account of its destabilising effect on the Government.
2. The Committee on Electoral Reforms (Dinesh Goswami Committee) in its report of 1990, the Law Commission of India in its 170th Report on "Reform of Electoral Laws" (1999) and the National Commission to Review the Working of the Constitution (NCRWC) in its report of 2002 have, *inter alia*, recommended omission of the provision of the Tenth Schedule pertaining to exemption from disqualification in case of splits.
3. The NCRWC was also of the view that a defector should be penalised for his action by debarring him from holding any public office as a minister or any other remunerative political post for at least the duration of the remaining term of the existing Legislature or until, the next fresh elections whichever is earlier.
4. The NCRWC has also observed that abnormally large Councils of Ministers were being constituted by various Governments at Centre and states and this practice had to be prohibited by law and that a ceiling on the number of ministers in a state or the Union Government be fixed at the

maximum of 10% of the total strength of the popular House of the Legislature.

Provisions

The 91st Amendment Act of 2003 has made the following provisions to limit the size of Council of Ministers, to debar defectors from holding public offices, and to strengthen the anti-defection law:

1. The total number of ministers, including the Prime Minister, in the Central Council of Ministers shall not exceed 15 per cent of the total strength of the Lok Sabha.
2. A member of either House of Parliament belonging to any political party who is disqualified on the ground of defection shall also be disqualified to be appointed as a minister.
3. The total number of ministers, including the Chief Minister, in the Council of Ministers in a state shall not exceed 15 per cent of the total strength of the Legislative Assembly of that state. But, the number of ministers, including the Chief Minister, in a state shall not be less than 12.
4. A member of either House of a state legislature belonging to any political party who is disqualified on the ground of defection shall also be disqualified to be appointed as a minister.
5. A member of either House of Parliament or either House of a State Legislature belonging to any political party who is disqualified on the ground of defection shall also be disqualified to hold any remunerative political post. The expression “remunerative political post” means (i) any office under the Central Government or a state government where the salary or remuneration for such office is paid out of the public revenue of the concerned government; or (ii) any office under a body, whether incorporated or not, which is wholly or partially owned by the Central Government or a state government and the salary or remuneration for such office is paid by such body, except where such salary or remuneration paid is compensatory in nature.
6. The provision of the Tenth Schedule (anti-defection law) pertaining to exemption from disqualification in case of split

by one-third members of legislature party has been deleted. It means that the defectors have no more protection on grounds of splits.

NOTES AND REFERENCES

1. These are Articles 101, 102, 190 and 191 which relate to the vacation of seats and disqualification from membership of Parliament and the state legislatures.
2. *Kihoto Hollohan v. Zachilhu*, (1993).
3. The court observed: 'The Chairman or Speakers hold a pivotal position in the scheme of parliamentary democracy and are guardians of the rights and privileges of the House. They are expected to and do take far-reaching decisions in the functioning of parliamentary democracy. Vestiture of power to adjudicate questions under the Tenth Schedule in such constitutional functionaries should not be considered unexceptionable'.
4. Soli J. Sorabjee, 'The Remedy should not be worse than the Disease', *The Times of India (Sunday Review),* February 1, 1985, p. 1.
5. Madhu Limaye, *Contemporary Indian Politics*, 1989, p. 190.
6. Speaker Shivraj Patil stated: 'The advantages in giving these cases to the judiciary are many. The Speaker or the Chairman may or may not be endowed with legal acumen and proficiency in law. It is more apt to have the cases decided by the Supreme Court or high court judges'.

77 Pressure Groups

MEANING AND TECHNIQUES

The term ‘pressure group’ originated in the USA. A pressure group is a group of people who are organised actively for promoting and defending their common interest. It is so called as it attempts to bring a change in the public policy by exerting pressure on the government. It acts as a liaison between the government and its members.

The pressure groups are also called *interest groups* or vested groups. They are different from the political parties in that they neither contest elections nor try to capture political power. They are concerned with specific programmes and issues and their activities are confined to the protection and promotion of the interests of their members by influencing the government.

The pressure groups influence the policymaking and policy-implementation in the government through legal and legitimate methods like lobbying, correspondence, publicity, propagandising, petitioning, public debating, maintaining contacts with their legislators and so forth. However, some times they resort to illegitimate and illegal methods like strikes, violent activities and corruption which damages public interest and administrative integrity.

According to Odegard, pressure groups resort to three different techniques in securing their purposes. First, they can try to place in public office persons who are favourably disposed towards the interests they seeks to promote. This technique may be labelled *electioneering*. Second, they can try to persuade public officers, whether they are initially favourably disposed toward them or not, to adopt and enforce the policies that they think will prove most beneficial to their interests. This technique may be labelled *lobbying.* Third, they can try to influence public opinion and thereby gain an indirect influence over government, since the

government in a democracy is substantially affected by public opinion. This technique may be labelled *propagandizing*[1] .

PRESSURE GROUPS IN INDIA

A large number of pressure groups exist in India. But, they are not developed to the same extent as in the US or the western countries like Britain, France, Germany and so on. The pressure groups in India can be broadly classified into the following categories:

1. Business Groups

The business groups include a large number of industrial and commercial bodies. They are the most sophisticated, the most powerful and the largest of all pressure groups in India. They include:

(i) Federation of Indian Chamber of Commerce and Industry (FICCI); major constituents are the Indian Merchants Chamber of Bombay, Indian Merchants Chamber of Calcutta and South Indian Chamber of Commerce of Madras. It broadly represents major industrial and trading interests.

(ii) Associated Chamber of Commerce and Industry of India (ASSOCHAM); major constituents are the Bengal Chamber of Commerce of Calcutta and Central Commercial Organisation of Delhi. ASSOCHAM represents foreign British capital.

(iii) Federation of All India Foodgrain Dealers Association (FAIFDA). FAIFDA is the sole representative of the grain dealers.

(iv) All-India Manufacturers Organisation (AIMO). AIMO raises the concerns of the medium-sized industry.

2. Trade Unions

The trade unions voice the demands of the industrial workers. They are also known as *labour groups*. A peculiar feature of trade unions in India is that they are associated either directly or indirectly with different political parties. They include:

(i) All-India Trade Union Congress (AITUC)–affiliated to CPI

(ii) Indian National Trade Union Congress (INTUC)–affiliated to the Congress

(iii) Hind Mazdoor Sabha (HMS)–affiliated to the Socialists
(iv) Centre of Indian Trade Unions (CITU)– affiliated to the CPM
(v) Bharatiya Mazdoor Sangh (BMS)– affiliated to the BJP

First Trade Union in India: All India Trade Union Congress (AITUC) was founded in 1920 with Lala Lajpat Rai as its first president. Upto 1945, Congressmen, Socialists and Communists worked in the AITUC which was the central trade union organisation of workers of India. Subsequently, the trade union movement got split on political lines.

3. Agrarian Groups

The agrarian groups represent the farmers and the agricultural labour class. They include:

(i) Bhartiya Kisan Union (in the wheat belt of North India)
(ii) All India Kisan Sabha (the oldest and the largest agrarian group)
(iii) Revolutionary Peasants Convention (organised by the CPM in 1967 which gave birth to the Naxalbari Movement)
(iv) Bhartiya Kisan Sangh (Gujarat)
(v) R.V. Sangham (Tamil Nadu)
(vi) Shetkhari Sanghatana (Maharashtra)
(vii) Hind Kisan Panchayat (controlled by the Socialists)
(viii) All-India Kisan Sammelan
(ix) United Kisan Sabha (controlled by the CPM)

4. Professional Associations

These are associations that raise the concerns and demands of doctors, lawyers, journalists and teachers. Despite various restrictions, these associations pressurise the government by various methods including agitations for the improvement of their service conditions. They include:

(i) Indian Medical Association (IMA)
(ii) Bar Council of India (BCI)
(iii) Indian Federation of Working Journalists (IFWJ)
(iv) All India Federation of University and College Teachers (AIFUCT)

5. Student Organisations

Various unions have been formed to represent the student community. However, these unions, like the trade unions, are also affiliated to various political parties. These are:

(i) Akhil Bharatiya Vidyarthi Parishad (ABVP) (affiliated to BJP)
(ii) All India Students Federation (AISF) (affiliated to CPI)
(iii) National Students Union of India (NSUI) (affiliated to Congress)
(iv) Student Federation of India (SFI) (affiliated to CPM)

6. Religious Organisations

The organisations based on religion have come to play an important role in Indian politics. They represent the narrow communal interest. They include:

(i) Rashtriya Swayam Sevak Sangh (RSS)
(ii) Vishwa Hindu Parishad (VHP)
(iii) Jamaat-e-Islami
(iv) Ittehad-ul-Mussalmeen
(v) Anglo-Indian Association
(vi) Associations of the Roman Catholics
(vii) All-India Conference of Indian Christians (viii) Parsi Central Association
(ix) Shiromani Akali Dal

"The Shiromani Akali Dal should be regarded as more of a religious pressure group rather than a political party in view of the fact that it has been concerned more with the mission of saving the sikh community from being absorbed into the ocean of hindu society than with fighting for the cause of a sikh homeland"[2] .

7. Caste Groups

Like religion, caste has been an important factor in Indian politics. The competitive politics in many states of the Indian Union is in fact the politics of caste rivalries: Brahmin versus Non-Brahmin in Tamil Nadu and Maharashtra, Rajput versus Jat in Rajasthan, Kamma versus Reddy in Andhra, Ahir versus Jat in Haryana, Baniya Brahmin versus Patidar in Gujarat. Kayastha versus

Rajput in Bihar, Nair versus Ezhava in Kerala and Lingayat versus Okkaliga in Karnataka[3]. Some of the caste-based organisations are:

(i) Nadar Caste Association in Tamil Nadu
(ii) Marwari Association
(iii) Harijan Sevak Sangh
(iv) Kshatriya Maha Sabha in Gujarat
(v) Vanniyakul Kshatriya Sangam
(vi) Kayastha Sabha

8. Tribal Organisations

The tribal organisations are active in MP, Chattisgarh, Bihar, Jharkhand, West Bengal and the North Eastern States of Assam, Manipur, Nagaland and so on. Their demands range from reforms to that of secession from India and some of them are involved in insurgency activities. The tribal organisations include:

(i) National Socialist Council of Nagaland (NSCN)
(ii) Tribal National Volunteers (TNU) in Tripura
(iii) People's Liberation Army in Manipur
(iv) All-India Jharkhand
(v) Tribal Sangh of Assam
(vi) United Mizo Federal Organisation

9. Linguistic Groups

Language has been so important factor in Indian politics that it became the main basis for the reorganisation of states. The language along with caste, religion and tribe have been responsible for the emergence of political parties as well as pressure groups. Some of the linguistic groups are:

(i) Tamil Sangh
(ii) Anjuman Tarraki-i-Urdu
(iii) Andhra Maha Sabha
(iv) Hindi Sahitya Sammelan
(v) Nagari Pracharani Sabha
(vi) Dakshina Bharat Hindi Prachar Sabha

10. Ideology Based Groups

In more recent times, the pressure groups are formed to pursue a particular ideology, i.e., a cause, a principle or a programme. These groups include:

(i) Environmental protection groups like Narmada Bachao Andolan, and Chipko Movement
(ii) Democratic rights organisations
(iii) Civil liberties associations
(iv) Gandhi Peace Foundation
(v) Woman rights organisations

11. Anomic Groups

Almond and Powell observed: "By anomic pressure groups we mean more or less a spontaneous breakthrough into the political system from the society such as riots, demonstrations, assassinations and the like. The Indian Government and bureaucratic elite, overwhelmed by the problem of economic development and scarcity of resources available to them, inevitably acquires a technocratic and anti-political frame of mind, particularistic demands of whatever kinds are denied legitimacy. As a consequence interest groups are alienated from the political system"[4]. Some of the anomic pressure groups are:

(i) All-India Sikh Student's Federation.
(ii) Nava Nirman Samithi of Gujarat.
(iii) Naxalite Groups.
(iv) Jammu and Kashmir Liberation Front (JKLF).
(v) All Assam Student's Union.
(vi) United Liberation Front of Assam (ULFA).
(vii) Dal Khalsa.

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3. Paul Kolenda: Caste in India since Independence (in *Social and Economic Development in India* by Basu and

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78 National Integration

India is a land of widespread diversities in terms of religion, language, caste, tribe, race, region and so on. Hence, the achievement of national integration becomes very essential for the all-around development and prosperity of the country.

MEANING OF NATIONAL INTEGRATION

Definitions and statements on national integration:

"National integration implies avoidance of divisive movements that would balkanise the nation and presence of attitudes throughout the society that give preference to national and public interest as distinct from parochial interests"[1] *Myron Weiner*.

"National integration is a socio-psychological and educational process through which a feeling of unity, solidarity and cohesion develops in the hearts of the people and a sense of common citizenship or feeling of loyalty to the nation is fostered among them"[2] *HA Gani*.

"National integration is not a house which could be built by mortar and bricks. It is not an industrial plan too which could be discussed and implemented by experts. Integration, on the contrary, is a thought which must go into the heads of the people. It is the consciousness which must awaken the people at large" *Dr. S. Radhakrishna*.

"National integrations means, and ought to mean, cohesion not fusion, unity but not uniformity, reconciliation but not merger, agglomeration but not assimilation of the discrete segments of the people constituting a political community or state"[3] *Rasheeduddin Khan*.

To sum-up, the concept of national integration involves political, economic, social, cultural and psychological dimensions and the inter-relations between them.

OBSTACLES TO NATIONAL INTEGRATION

Among the major obstacles to national integration include:

1. Regionalism

Regionalism refers to sub-nationalism and sub-territorial loyalty. It implies the love for a particular region or state in preference to the country as a whole. There is also subregionalism, that is, love for a particular region in preference to the state of which the region forms a part.

Regionalism is "a subsidiary process of political integration in India. It is a manifestation of those residual elements which do not find expression in the national polity and national culture, and being excluded from the centrality of the new polity, express themselves in political discontent and political exclusionism"[4] .

Regionalism is a country-wide phenomenon which manifests itself in the following six forms:

(i) Demand of the people of certain states for secession from the Indian Union (like Khalistan, Dravid Nad, Mizos, Nagas and so on).

(ii) Demand of the people of certain areas for separate statehood (like Telengana, Bodoland, Uttarkhand, Vidharbha, Gorkhaland and so on).

(iii) Demand of people of certain Union Territories for full-fledged statehood (like Manipur, Tripura, Puducherry, Delhi, Goa, Daman and Diu and so on).

(iv) Inter-state boundary disputes (like Chandigarh and Belgaum) and riverwater disputes (like Cauvery, Krishna, Ravi-Beas and so on).

(v) Formation of organisations with regional motives which advocates a militant approach in pursuing its policies and goals (like Shiv Sena, Tamil Sena, Hindi Sena, Sardar Sena, Lachit Sena and so on).

(vi) 'Sons of the soil theory' which advocates preference to local people in government jobs, private jobs, permits and so on.

Their slogan will be Assam for Assamese, Maharashtra for Maharashtrians and so on.

2. Communalism

Communalism means love for one's religious community in preference to the nation and a tendency to promote the communal interest at the cost of the interest of other religious communities. It has its roots in the British rule where the 1909, 1919 and 1935 Acts had introduced communal representation for the Muslims, Sikhs and others.

The communalism got accentuated with the politicisation of religion. Its various manifestations are:

(i) Formation of political parties based on religion (like Akali Dal, Muslim League, Ram Rajya Parishad, Hindu Mahasabha, Shiv Sena and so on).

(ii) Emergence of pressure groups (nonpolitical entities) based on religion (like RSS, Vishwa Hindu Parishad, Jamaat-e-Islami, Anglo-Indian Christians Association and so on).

(iii) Communal riots (between Hindus and Muslims, Hindus and Sikhs, Hindus and Christians and so on–Benaras, Lucknow, Mathura, Hyderabad, Allahabad, Aligarh, Amritsar, Moradabad and some other places are affected by communal violence).

(iv) Dispute over religious structures like temples, mosques and others (The dispute over Ram Janma Bhoomi in Ayodhya where the *kar sevaks* had demolished a disputed structure on December 6, 1992).

The reasons for the persistence of com-munalism include religious orthodoxy of muslims, role of Pakistan, hindu chauvinism, government's inertia, role of political parties and other groups, electoral compulsions, communal media, socio-economic factors and so on.

3. Casteism

Casteism implies love for one's own caste-group in preference to the general national interest. It is mainly an outcome of the politicisation of caste. Its various manifestations include:

(i) Formation of political parties on the basis of caste (like Justice Party in Madras, DMK, Kerala Congress, Republican Party, Bahujan Samaj Party and so on).
(ii) Emergence of pressure groups (nonpolitical entities) based on caste (like Nadar Association, Harijan Sevak Sangh, Kshatriya Mahasabha and so on).
(iii) Allotment of party tickets during elections and the formation of council of ministers in the states on caste lines.
(iv) Caste conflicts between higher and lower castes or between dominant castes in various states like Bihar, Uttar Pradesh, Madhya Pradesh and so on.
(v) Violent disputes and agitations over the reservation policy.

B.K. Nehru observed: "The communal electorates (of the British days) in a vestigal form still remain in the shape of reservations for the Scheduled Castes and Scheduled Tribes. They serve to emphasise caste origin and make people conscious of the caste in which they were born. This is not conducive to national integration"[5] .

At the state level, the politics is basically a fight between the major caste groups like Kamma versus Reddy in Andhra Pradesh, Lingayat versus Vokaligga in Karnataka, Nayar versus Ezhava in Kerala, Bania versus Patidar in Gujarat, Bhumiar versus Rajput in Bihar, Jat versus Ahir in Haryana, Jat versus Rajput in Uttar Pradesh, Kalita versus Ahom in Assam and so on.

4. Linguism

Linguism means love for one's language and hatred towards other language-speaking people. The phenomena of linguism, like that of regionalism, communalism or casteism, is also a consequence of political process. It has two dimensions: (a) the reorganisation of states on the basis of language; and (b) the determination of the official language of the Union.

The creation of the first linguistic state of Andhra out of the then Madras state in 1953 led to the countrywide demand for the reorganisation of states on the basis of language. Consequently, the states were reorganised on a large-scale in 1956 on the basis of the recommendations made by the States Reorganisation

Commission[6] (1953–1955). Even after this, the political map of India underwent a continuous change due to the pressure of popular agitations and the political conditions, which resulted in the bifurcation of existing states like Bombay, Punjab, Assam, and so on. By the end of 2000, the number of states and union territories had reached 28 and 7 from that of 14 and 6 in 1956 respectively[7] .

The enactment of the Official Language Act (1963) making Hindi as the Official Language of the Union led to the rise of anti-Hindi agitation in South India and West Bengal. Then, the Central government assured that English would continue as an 'associate' official language so long as the non-Hindi speaking states desire it. Moreover, the three-language formula (English, Hindi and a regional language) for school system is still not being implemented in Tamil Nadu[8]. Consequently, Hindi could not emerge as the *lingua franca* of the composite culture of India as desired by the framers of the Constitution.

The problem of linguism got accentuated with the rise of some regional parties in recent times like the TDP, AGP, Shiv Sena and so on.

NATIONAL INTEGRATION COUNCIL

The National Integration Council (NIC) was constituted in 1961, following a decision taken at a national conference on 'unity in diversity', convened by the Central government, at New Delhi. It consisted of the prime minister as chairman, central home minister, chief ministers of states, seven leaders of political parties, the chairman of the UGC, two educationists, the commissioner for SCs and STs and seven other persons nominated by the prime minister. The council was directed to examine the problem of national integration in all its aspects and make necessary recommendations to deal with it. The council made various recommendations for national integration. However, these recommendations remained only on paper and no effort was made either by the Centre or by the states to implement them.

In 1968, the Central government revived the National Integration Council. Its size was increased from 39 to 55 members. The representatives of industry, business and trade unions were also included in it. The council met at Srinagar and adopted a resolution condemning all tendencies that struck at the root of national solidarity. It appealed to the political parties, organisations and the press to mobilise the constructive forces of society in the cause of national unity and solidarity. It also set up three committes to report on regionalism, communalism and linguism respectively. However, nothing tangible was achieved.

In 1980, the Central government again revived the National Integration Council which had become defunct. Its membership was made more broad-based. It had three items on the agenda for discussion viz., the problem of communal harmony, unrest in the north-eastern region and need for a new education system. The council set up a standing committee to keep a constant watch on the activities of communal and other divisive forces posing a threat to the national unity.

In 1986, the NIC was reconstituted and its membership was further increased. It recognised terrorism in Punjab as an attack on the unity, integrity and secular ideals of the country.

Accordingly, it passed a resolution to fight terrorism in Punjab. The council also set up a 21-member committee to function on a continuing basis. The committee was asked to formulate both short-term as well as long-term proposals for maintaining communal harmony and preserving national integrity.

In 1990, the National Front Government headed by V.P. Singh reconstituted the National Integration Council. Its strength was increased to 101. It included prime minister as chairman, some Central ministers, state chief ministers, leaders of national and regional parties, representatives of women, trade and industry, academicians, journalists and public figures. It had various items on the agenda for discussion, viz., Punjab problem, Kashmir problem, violence by secessionists, communal harmony and Ram Janmabhomi-Babri Masjid problem at Ayodhya. But, there was no concrete result.

In 2005, the United Progressive Alliance (UPA) Government reconstituted the National Integration Council under the chairmanship of the Prime Minister, Manmohan Singh. The 103-member NIC was constituted after a gap of 12 years having held its meeting in 1992. Besides some central ministers, state and UT chief ministers and leaders of national and regional parties, the NIC included chairpersons of National Commissions, eminent public figures and representatives from business, media, labour and women. The NIC was to function as a forum for effective initiative and interaction on issues of national concern, review issues relating to national integration and make recommendations.

The 14th meeting of the NIC was held in 2008 in the backdrop of communal violence in various states like Orissa, Karnataka, Maharashtra, Jammu and Kashmir and Assam and so on. Promotion of education among minorities, scheduled castes and scheduled tribes; elements contributing to national integration; removal of regional imbalances, caste and identity divisions; prevention of extremism; promotion of communal harmony and security among minorities; and equitable development were some of the important items on the agenda of the meeting.

In April 2010, the United Progressive Alliance (UPA) Government again reconstituted the National Integration Council

(NIC) under the chairmanship of the Prime Minister, Manmohan Singh. The NIC has 147 members, including Union Ministers, Leaders of the Opposition in the Lok Sabha and the Rajya Sabha, the Chief Ministers of all states and union territories with Legislatures. It also includes leaders of national and regional political parties, chairpersons of national commissions, eminent journalists, public figures, and representatives of business and women's organisations. It is chiefly aimed at suggesting means and ways to combat the menace of communalism, casteism and regionalism.

In October 2010, the Government also constituted a Standing Committee of the NIC. It consists of Union Home Minister as Chairman, four Union Ministers, nine Chief Ministers of various states and five co-opted members from NIC. It would finalise the agenda items for NIC meetings.

The 15th meeting of the NIC was held in September, 2011. The agenda for the meeting included measures to curb communalism and communal violence; approach to the Communal Violence Bill; measures to promote communal harmony; measures to eliminate discrimination, especially against minorities and scheduled tribes; how the state and the police should handle civil disturbances; and how to curb radicalisation of youth in the name of religion and caste.

The 16th meeting of the NIC was held on 23–09-2013. A Resolution was passed in the meeting to condemn violence, take all measures to strengthen harmonious relationship between all communities, to resolve differences and disputes among the people within the framework of law, to condemn atrocities on Scheduled Castes and Scheduled Tribes, to condemn sexual abuse and to ensure that all women enjoy the fruits of freedom to pursue their social and economic development with equal opportunities, and to safeguard their right of movement in the public space at any time of the day or night.

Table 78.1 *Meetings of the National Integration*

Meeting Number	Held on
First Meeting	2nd and 3rd June, 1962

Second Meeting	20th to 22nd June, 1968
Third Meeting	12th November, 1980
Fourth Meeting	21st January, 1984
Fifth Meeting	7th April, 1986
Sixth Meeting	12th September, 1986
Seventh Meeting	11th April, 990
Eighth Meeting	22nd September, 1990
Ninth Meeting	2nd November, 1991
Tenth Meeting	31st December, 1991
Eleventh Meeting	18th July, 1992
Twelfth Meeting	23rd November, 1992
Thirteenth Meeting	31st August, 2005
Fourteenth Meeting	13th October, 2008
Fifteenth Meeting	10th September, 2011
Sixteenth Meeting	23rd September, 2013

NATIONAL FOUNDATION FOR COMMUNAL HARMONY

The National Foundation for Communal Harmony (NFCH) was set up in 1992. It is an autonomous body under the administrative control of the Union Home Ministry. It promotes communal harmony, fraternity and national integration.

The vision and mission of the NFCH are as follows:

Vision: India free from communal and all other forms of violence where all citizens especially children and youth live together in peace and harmony.

Mission: Promoting communal harmony, strengthening national integration and fostering unity in diversity through collaborative social action, awareness programs, reaching out to the victims of violence especially children, encouraging interfaith dialogue for India's shared security, peace and prosperity.

The activities undertaken by the NFCH are mentioned below:

1. To provide financial assistance to the child victims of societal violence for their care, education and training, aimed at their effective rehabilitation
2. To promote communal harmony and national integration by organising variety of activities either independently or in association with educational institutions, NGOs & other organisations
3. To conduct studies and grant scholarships to institutions / scholars for conducting studies
4. To confer awards for outstanding contribution to communal harmony and national integration
5. To involve Central / state governments / UT Administrations, industrial / commercial organisations, NGOs and others in promoting the objectives of the Foundation
6. To provide information services, publish monographs and books, etc. on the subject

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2. H.A. Gani: *Muslim Political Issues and National Integration*, P. 3.
3. Rasheeduddin Khan: National Integration and Communal Harmony (in *National Integration of India*, Volume II, Edited by Sinha).
4. Kousar J. Azam: *Political Aspects of National Integration*, P. 82.
5. B.K. Nehru: The Indira Gandhi Memorial Lectures delivered at the University of Kerala in January, 1988.
6. It was a three-member commission headed by Fazl Ali. Its other two members were K.M. Panikkar and H.N. Kunzru.
7. In 2000, three more new states of Chhattisgarh, Uttarakhand and Jharkhand were created out the territories of Madhya Pradesh, Uttar Pradesh and Bihar respectively.
8. Tamil Nadu Government opposed the three language formula and continued to teach only two languages, that is, English and Tamil in the educational institutions of the state.

79 Foreign Policy

The foreign policy of India regulates India's relations with other states of the world in promoting its national interests. It is determined by a number of factors, viz., geography, history and tradition, social structure, political organisation, international milieu[1] , economic position, military strength, public opinion and leadership.

PRINCIPLES OF INDIAN FOREIGN POLICY

1. Promotion of World Peace

India's foreign policy aims at the promotion of international peace and security. Article 51 of the Constitution (Directive Principles of State Policy) directs the Indian State to promote international peace and security, maintain just and honourable relations between nations, foster respect for international law and treaty obligations, and encourage settlement of international disputes by arbitration. Besides peace is necessary to promote the economic development of nations. Jawaharlal Nehru said: "Peace to us is not just a fervent hope; it is emergent necessity".

2. Anti-Colonialism

The foreign policy of India opposes colonialism and imperialism. India views that the colonialism and imperialism leads to exploitation of the weaker nations by the imperialist powers and affects the promotion of international peace. India advocated the liquidation of colonialism in all forms and supported the liberation movement in Afro-Asian countries like Indonesia, Malaya, Tunisia, Algeria, Ghana, Namibia and so on. Thus, India expressed her solidarity with the people of Afro-Asian nations in their struggle against colonial and imperialist forces like Britain, France, Holland, Portugal and so on. The present neo-colonialism and neo-imperialism is also opposed by India.

3. Anti-Racialism

Opposition to racialism in all its forms is an important aspect of Indian foreign policy. According to India, racialism (i.e., discrimination between people on the basis of race), like colonialism and imperialism, leads to exploitation of the blacks by the whites, social inequity and hinders the promotion of world peace. India strongly criticised the policy of apartheid (racial discrimination) being followed by the white minority racist regime of South Africa. It even snapped diplomatic relations with South

Africa in 1954 as a protest against the policy of apartheid[2]. Similarly, India played an important role in the liberation of Zimbabwe (earlier Rhodesia) and Namibia from the white domination.

4. Non-Alignment

When India became independent in 1947, the world was divided into two blocs on ideological basis, namely, the capitalist bloc headed by USA and the communist bloc headed by the former USSR. In such a situation of 'cold war', India refused to join any of these two blocs and adopted a policy of non-alignment. In this context, Jawaharlal Nehru observed: "We propose to keep away from the power politics of groups, aligned against one another, which have led in the past to world wars and which may again lead to disasters on an even vaster scale. I feel that India can play a big part, and perhaps an effective part, in helping to avoid war. Therefore, it becomes all the more necessary that India should not be lined up with any group of power which for various reasons are full of fear of war and prepare for war".

"When we say that India follows a policy of non-alignment, it means (i) that India has no military alliances with countries of either bloc or indeed with any nation; (ii) India has an independent approach to foreign policy; and (iii) India attempts to maintain friendly relations with all countries"[3] .

5. Panchsheel

Panchsheel implies the five principles of conduct in international relations. It was embodied in the Preamble of the Indo-China Treaty on Tibet, signed in 1954 by Jawaharlal Nehru and Chou-En-Lai, the Chinese Premier. The five principles were:

(i) mutual respect for each other's territorial integrity and sovereignty;
(ii) non-aggression;
(iii) non-interference in each other's internal affairs;
(iv) equality and mutual benefit; and
(v) peaceful co-existence.

"India perceived the 'Panchsheel' as productive of peaceful cooperation of sovereign nations instead of the balance of terror and the degrading cold war tensions, being brought about by the rival great power pacts and alliances. India explained it as based on the concept of universalism as against the concept of the balance of power"[4] .

Panchsheel became very popular and many countries of the world like Burma, Yugoslavia, Indonesia and so on adopted it. Panchsheel and non-alignment are the greatest contributions of India to the theory and practice of international relations.

6. Afro-Asian Bias

Even though the foreign policy of India stands for maintaining friendly relations with all the countries of the world, it has always exhibited a special bias towards the Afro-Asian nations. It aims at promoting unity among them and tries to secure for them a voice and an influence in the international bodies. India has been seeking international assistance for the economic development of these countries. In 1947, India called the first Asian Relations Conference in New Delhi. In 1949, India brought together the Asian countries on the burning issue of Indonesian freedom. India played an active role in the Afro-Asian Conference at Bandung (Indonesia) in 1955. India also played an important role in the formation of Group of 77 (1964), Group of 15 (1990), Indian Ocean Rim Association for Regional Cooperation (1995), BIST Economic Cooperation (1997), and SAARC (1985). India earned the name of 'Big Brother' from many of the neighbouring countries.

7. Links with Commonwealth

In 1949 itself, India declared the continuation of her full membership of the Commonwealth of the Nations and the acceptance of the British Crown as the head of the Commonwealth. But, this extra-constitutional declaration does not affect India's sovereignty in any manner as the Commonwealth is a voluntary association of independent nations. It also does not affect India's republican character as India neither pays final

allegiance to the British Crown nor the latter has any functions to discharge in relation to India.

India remained a member of the Commonwealth because of pragmatic reasons. It thought that the membership in the Commonwealth would be beneficial to her in the economic, political, cultural and other spheres. It has been playing an important role at the CHOGM (Commonwealth Heads of Governments Meet). India hosted the 24th Commonwealth Summit at New Delhi in 1983.

8. Support to the UNO

India became a member of the UNO in 1945 itself. Since then, it has been supporting the activities and programmes of UNO. It has expressed full faith in the objectives and principles of UNO. Some of the facets of India's role in UNO are:

(i) It is through the UNO that India embarked on the policy of fighting against the colonialism, imperialism and racialism, and now neo-colonialism and neo-imperialism.

(ii) In 1953, Vijay Lakshmi Pandit of India was elected as the President of the UN General Assembly.

(iii) India actively participated in the UN Peace-keeping missions in Korea, Congo, El Salvador, Combodia, Angola, Somalia, Mozambique, Sierra Leone, Yugoslavia and so on.

(iv) India continued to participate actively in the open ended working groups of the UNO. India was the Co-chairman of the working group on the strengthening of the UN which submitted its report in 1997.

(v) Several times, India has been a nonpermanent member of the UN Security Council. Now, India is demanding a permanent seat in the Security Council.

9. Disarmament

The foreign policy of India is opposed to arms race and advocates disarmament, both conventional and nuclear. This is aimed at promoting world peace and security by reducing or ending tensions between power blocs and to accelerate economic development of the country by preventing the unproductive

expenditure on the manufacture of arms. India has been using the UNO platform to check the arms race and to achieve disarmament. India took the initiative of holding a six-nation summit at New Delhi in 1985 and made concrete proposals for nuclear disarmament.

By not signing the Nuclear Nonproliferation Treaty (NPT) of 1968 and the Comprehensive Test Ban Treaty (CTBT) of 1996, India has kept its nuclear options open. India opposes NPT and CTBT due to their discriminatory and hegemonistic nature. They perpetuate an international system in which only five nations (USA, Russia, China, UK and France) can legitimately posses nuclear weapons.

OBJECTIVES OF INDIAN FOREIGN POLICY

India's foreign policy is directed towards the realisation of the following objectives[5] :

1. To protect India's core national interests and concerns in a rapidly changing international environment by fostering support and understanding in the international community.
2. To preserve the autonomy of the decision making process and to play a pioneering role in the establishment of a stable, prosperous and secure global order.
3. To strengthen the international campaign against terrorism which is a global threat.
4. To build an international environment which is supportive of India's rapid economic growth including higher investments, trade, access to technology and strengthening India's energy security.
5. To work closely with P-5 countries and to build strategic ties with the major powers such as the USA, the EU, Japan, Russia, and China.
6. To intensify and strengthen ties with neighbours through mutually beneficial cooperation and by acknowledgement of each other's legitimate concerns.
7. To work for the realisation of SAARC as an economically integrated region at peace with itself and engaged with the world.
8. To ensure that cross-border terrorism is brought to an end and the entire infrastructure of terrorism operating from Pakistan is dismantled.
9. To further the gains from India's 'Act East' Policy (erstwhile 'Look East' Policy) and aspire for substantive progress in several areas of common interest to India and ASEAN.
10. To strengthen our ties with the countries of the Gulf region that has become home to over 4 million Indians and is a major source of supply of oil and gas.
11. To leverage economic growth through support to the activities of regional organisations like the Bay of Bengal Initiative for Multi-Sectoral Technical and Economic

Cooperation (BIMSTEC), Mekong-Ganga Cooperation and trans-regional groupings like the India, Brazil and South Africa (IBSA) Initiative and Indian Ocean Rim Association for Regional Cooperation (IOR-ARC).

12. To continue to work closely with regional groupings like the EU and G-20 for furthering India's interests in the international arena.
13. To reform and restructure the UN Security Council and espouse multi-polarity in a world order that respects the principles of sovereignty and non-intervention.
14. To promote a more equitable equation between the developed and the developing world in the political, economic and technological domains.
15. To work towards the goal of global nuclear disarmament within a timebound framework.
16. To closely interact with the Indian diaspora on a continuing basis in order to strengthen their bonds with India and to recognise their pivotal role in India's international relations.

GUJRAL DOCTRINE OF INDIA

The Gujral Doctrine is a milestone in India's foreign policy. It was propounded and initiated in 1996 by I.K. Gujral, the then Foreign Minister in the Deve Gowda Government.

The doctrine advocates that India, being the biggest country in South Asia, should extend unilateral concessions to the smaller neighbours. In other words, the doctrine is formulated on India's accommodating approach towards its smaller neighbours on the basis of the principle of non-reciprocity. It recognises the supreme importance of friendly and cordial relations with India's neighbours.

The doctrine is a five-point roadmap to guide the conduct of India's foreign relations with its immediate neighbours. These five principles are as follows:

1. With the neighbours like Bangladesh, Bhutan, Maldives, Nepal and Sri Lanka, India should not ask for reciprocity, but give to them what it can in good faith.
2. No South Asian country should allow its territory to be used against the interest of another country of the region.
3. No country should interfere in the internal affairs of another country.
4. All South Asian countries should respect each other's territorial integrity and sovereignty.
5. All South Asian countries should settle all their disputes through peaceful bilateral negotiations.

Gujral himself explained: "The logic behind the Gujral Doctrine was that since we had to face two hostile neighbours in the north and the west, we had to be at 'total peace' with all other immediate neighbours in order to contain Pakistan's and China's influence in the region."

NUCLEAR DOCTRINE OF INDIA

India adopted its nuclear doctrine in 2003. The salient features of this doctrine are as follows:

1. Building and maintaining a credible minimum deterrent.
2. A posture of “No First Use” - nuclear weapons will only be used in retaliation against a nuclear attack on Indian territory or on Indian forces anywhere.
3. Nuclear retaliation to a first strike will be massive and designed to inflict unacceptable damage.
4. Nuclear retaliatory attacks can only be authorised by the civilian political leadership through the Nuclear Command Authority.
5. Non-use of nuclear weapons against nonnuclear weapon states.
6. However, in the event of a major attack against India, or Indian forces anywhere, by biological or chemical weapons, India will retain the option of retaliating with nuclear weapons.
7. A continuance of strict controls on export of nuclear and missile related materials and technologies, participation in the Fissile Material Cutoff Treaty negotiations, and continued observance of the moratorium on nuclear tests.
8. Continued commitment to the goal of a nuclear-weapon-free world, through global, verifiable and non-discriminatory nuclear disarmament.

The Nuclear Command Authority comprises a Political Council and an Executive Council. The Political Council is chaired by the Prime Minister. It is the sole body which can authorise the use of nuclear weapons.

The Executive Council is chaired by the National Security Advisor. It provides inputs for decision making by the Nuclear Command Authority and executes the directives given to it by the Political Council.

The Cabinet Committee on Security (CCS) reviewed the progress in the operationalising of India’s nuclear doctrine. The CCS reviewed the existing command and control structures, the

state of readiness, the targeting strategy for a retaliatory attack, and operating procedures for various stages of alert and launch. The CCS expressed satisfaction with the overall preparedness.

The CCS approved the appointment of a Commander-in-Chief, Strategic Forces Command, to manage and administer all Strategic Forces. The CCS also reviewed and approved the arrangements for alternate chains of command for retaliatory nuclear strikes in all eventualities.

CONNECT CENTRAL ASIA POLICY OF INDIA

India launched the “Connect Central Asia” Policy in 2012. This policy is aimed at strengthening and expanding of India’s relations with the Central Asian countries. These countries include Kazakhstan, Kyrgyzstan, Tajikistan, Turkmenistan and Uzbekistan.

India’s “Connect Central Asia” policy is a broad-based approach including political, security, economic and cultural connections. Its features (or elements) are as follows[6] :

1. India will continue to build on its strong political relations through the exchange of high level visits. India’s leaders will continue to interact closely both in bilateral and multilateral fora.
2. India will strengthen its strategic and security cooperation. India already has strategic partnerships with some Central Asian countries. The focus will be on military training, joint research, counter-terrorism coordination and close consultations on Afghanistan.
3. India will step up multilateral engagement with Central Asian partners using the synergy of joint efforts through existing fora like the SCO, Eurasian Economic Community (EEC) and the Custom Union. India has already proposed a Comprehensive Economic Cooperation Agreement to integrate its markets with the unifying Eurasian space.
4. India looks to Central Asia as a longterm partner in energy, and natural resources. Central Asia possesses large cultivable tracts of land and there is potential for India to cooperate in production of profitable crops with value addition.
5. The medical field is another area that offers huge potential for cooperation. India is ready to extend cooperation by setting up civil hospitals/clinics in Central Asia.
6. India’s higher education system delivers at a fraction of the fees charged by Western universities. Keeping this in mind, India would like to assist in the setting up of a Central Asian University in Bishkek that could come up as a centre of

excellence to impart world class education in areas like IT, management, philosophy and languages.

7. India is working on setting up a Central Asian e-network with its hub in India, to deliver, tele-education and tele-medicine connectivity, linking all the five Central Asian States.
8. Indian companies can showcase India's capability in the construction sector and build world class structures at competitive rates. Central Asian countries, especially Kazakhstan, have almost limitless reserves of iron ore and coal, as well as abundant cheap electricity. India can help set up several medium size steel rolling mills, producing its requirement of specific products.
9. As for land connectivity, India has reactivated the International North-South Transport Corridor (INSTC). There is a need to discuss ways to bridge the missing links in the Corridor at the earliest and also work on other connecting spurs along the route.
10. Absence of a viable banking infrastructure in the region is a major barrier to trade and investment. Indian banks can expand their presence if they see a favourable policy environment.
11. India and Central Asian nations will jointly work to improve air connectivity between them. India is one of the biggest markets for outbound travelers estimated at USD 21 billion in 2011. Many countries have opened tourist offices in India to woo Indian tourists. Central Asian countries could emerge as attractive holiday destinations for tourists and even for the Indian film industry which likes to depict exotic foreign locales in its films.
12. Connections between the people are the most vital linkages to sustain the deep engagement. There is particularly need to emphasise exchanges between youth and the future leaders of India and Central Asia. There is already a robust exchange of students. India and Central Asian nations will encourage regular exchanges of scholars, academics, civil society and youth delegations to gain deeper insights into each other's cultures.

India’s “Connect Central Asia” policy is consonant with its overall policy of deepening engagement in Eurasia, its policy of strengthening relations with China, with Pakistan, and building on its traditional relationship with Russia. India hopes that its membership in numerous regional forums including at the SCO, would bolster India’s renewed linkages with the region.

ACT EAST POLICY OF INDIA

In 2014, the Modi Government upgraded India's "Look East Policy" and re-named it as the "Act East Policy". The "Look East Policy" was first initiated in 1992 by the then Prime Minister P.V. Narasimha Rao.

While addressing the India-ASEAN Summit (2014), the Prime Minister Narendra Modi said : "A new era of economic development, industrialization and trade has begun in India. Externally, India's 'Look East Policy' has become 'Act East Policy'". Similarly, the External Affairs Minister Sushma Swaraj, during her visit to Vietnam in 2014, told Indian envoys to 'Act East' and not just 'Look East'.

The features (or elements) of India's "Act East Policy" are as follows[7] :

1. India's Act East Policy focusses on the extended neighbourhood in the Asia-Pacific region. The policy which was originally conceived as an economic initiative, has gained political, strategic and cultural dimensions including establishment of institutional mechanisms for dialogue and cooperation.
2. India has upgraded its relations to strategic partnership with Indonesia, Vietnam, Malaysia, Japan, Republic of Korea, Australia, Singapore and Association of Southeast Asian Nations (ASEAN) and forged close ties with all countries in the Asia-Pacific region.
3. Further, apart from ASEAN, ASEAN Regional Forum (ARF) and East Asia Summit (EAS), India has also been actively engaged in regional fora such as Bay of Bengal Initiative for Multi-Sectoral Technical and Economic Cooperation (BIMSTEC), Asia Cooperation Dialogue (ACD), Mekong Ganga Cooperation (MGC) and Indian Ocean Rim Association (IORA).
4. Act East Policy has placed emphasis on India-ASEAN cooperation in our domestic agenda on infrastructure, manufacturing, trade, skills, urban renewal, smart cities, Make in India and other initiatives. Connectivity projects,

cooperation in space, S&T and people-to-people exchanges could become a springboard for regional integration and prosperity.

5. The objective of ‘’Act East Policy” is to promote economic cooperation, cultural ties and develop strategic relationship with countries in the Asia-Pacific region through continuous engagement at bilateral, regional and multilateral levels thereby providing enhanced connectivity to the States of North Eastern Region including Arunanchal Pradesh with other countries in our neighbourhood.
6. The North East of India has been a priority in our Act East Policy. The policy provides an interface between North East India including the state of Arunachal Pradesh and the ASEAN region.
7. Various plans at bilateral and regional levels include steady efforts to develop and strengthen connectivity of Northeast with the ASEAN region through trade, culture, people-to-people contacts and physical infrastructure (road, airport, telecommunication, power, etc.).
8. On the Civilizational front, Buddhist and Hindu links are being energized to develop new contacts and connectivity between people.
9. On Connectivity, special efforts are being made to develop a coherent strategy, particularly for linking ASEAN with North East India. Measures, including building transport infrastructure, encouraging airlines to enhance connectivity in the region, contacts between academic and cultural institutions are underway.
10. India’s economic engagement with ASEAN has been stepped up - regional integration and implementation of projects are priorities. The ASEAN-India Agreement on Trade in Service and Investments has entered into force for India and seven ASEAN countries from 1 July 2015.
11. On strategic issues, India has increased convergence on security interests with key partners both in bilateral and multilateral format. Closer cooperation in combating terrorism, collaborating for peace and stability in the region

and promotion of maritime security based on international norms and laws are being pursued.

NOTES AND REFERENCES

1. It includes world political climate, world public opinion and world organisations.
2. India again re-established full diplomatic relations with South Africa in 1994 when the policy of racial discrimination was finally given up and democratic government under Nelson Mandela came into existence.
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6. Based on Keynote address delivered by Minister of State for External Affairs, E. Ahamed, at the first India-Central Asia Dialogue, June 12, 2012 at Bishkek, Kyrgyzstan.
7. Press Information Bureau, Government of India, December 23, 2015.

PART-XI
WORKING OF THE CONSTITUTION

80. National Commission to Review the Working of the Constitution

80 National Commission to Review the Working of the Constitution

The National Commission to Review the Working of the Constitution (NCRWC) was set up by a resolution of the Government of India in 2000[1]. The 11-member Commission was headed by M.N. Venkatachaliah, the former Chief Justice of India[2]. It submitted its report in 2002[3] .

I. TERMS OF REFERENCE OF THE COMMISSION

According to the terms of reference, the commission was required to examine, in the light of the experience of the past fifty years, as to how far the existing provisions of the Constitution are capable of responding to the needs of efficient, smooth and effective system of governance and socioeconomic development of modern India and to recommend changes, if any. The terms of reference clearly specified that the commission should recommend changes that are required to be made in the Constitution within the framework of parliamentary democracy and without interfering with the 'basic structure' or 'basic features' of the Constitution.

The commission clarified that its task was to review the working of the Constitution and not to rewrite it and its function was only recommendatory and advisory in nature. It was left to the Parliament to accept or reject any of the recommendations.

The commission had no agenda before it. On its own, it identified the eleven areas of study and proposed to examine them. They included the following[4] :

1. Strengthening of the institutions of parliamentary democracy (working of the Legislature, the Executive and the Judiciary; their accountability; problems of administrative, social and economic cost of political instability; exploring the possibilities of stability within the discipline of parliamentary democracy).
2. Electoral reforms; standards in political life.
3. Pace of socio-economic change and development under the Constitution (assurance of social and economic rights: how fair? how fast? how equal?).
4. Promoting literacy; generating employment; ensuring social security; alleviation of poverty.
5. Union-State relations.
6. Decentralization and devolution; empowerment and strengthening of Panchayati Raj Institutions.
7. Enlargement of Fundamental Rights.
8. Effectuation of Fundamental Duties.

9. Effectuation of Directive Principles and achievement of the Preambular objectives of the Constitution.
10. Legal control of fiscal and monetary policies; public audit mechanism.
11. Administrative system and standards in public life.

II. FIFTY YEARS OF WORKING OF THE CONSTITUTION

The observations made by the Commission on the working of the Constitution from 1950 to 2000 are as follows[5] :

What are our achievements and failures over the 50 years since Independence? How have each of the three organs of the State–the Legislature, the Executive and the Judiciary– redeemed the constitutional pledge of ushering in a social revolution? Has the dream of the founding fathers for a life of dignity to the vast millions through the process of socioeconomic transformation been realized ? What then is the Balance Sheet?

1. Political Accomplishments

1. India's democratic base has stabilized as a working federal polity. With the 73rd and 74th Constitutional amendments, the base of democratic debate has widened. There is greater push towards noncentralisation. General Elections have been held with regularity; and transfers of power consequent upon the results of elections have been orderly, peaceful and democratic.
2. The educational qualifications of the Members of Parliament and State Legislatures have shown marked improvements. The Parliament and State Legislatures are increasingly more representative of the composition of society. More and more members of the hitherto backward classes are moving up in the political ladder.

2. Economic Infrastructure–Impressive Performance

1. There has been marked expansion and diversification of production. New technologies and modern management techniques are increasingly employed. There are marked advances in Science, Technology, Medicine, Engineering and Information Technology.
2. Between 1950–2000, the index of agricultural production increased from 46.2 to 176.8.

3. Between 1960–2000, wheat production went up from 11 million tonnes to 75.6 million tonnes.
4. Between 1960–2000, rice production went up from 35 million tonnes to 89.5 million tonnes.
5. Impressive expansion of industrial and service sectors has taken place.
6. Index of industrial production went up from 7.9 in 1950–51 to 154.7 in 1999–2000.
7. Electricity generation has increased from 5.1 billion KWH in 1950–51 to 480.7 billion KWH in 1999–2000.
8. 6 to 8 per cent annual growth of GNP between 1994–2000 (except in 1997–98) was achieved.
9. Revenues from Information Technology industry have grown from $ 150 million in 1990 to $ 4 billion in 1999.
10. India's per capita Net National Product (NNP) in 1999–2000 was more than 2.75 times than what it was in 1951.

3. Social Infrastructure– Achievements

1. Between 1950 to 1998, infant mortality rate have halved to 72 births per 1000 births–down from 146.
2. Life expectancy at birth has grown up from 32 years in 1950–51 to 63 years in 2000.
3. A child born in Kerala today can expect to live longer than a child born in Washington.
4. Life expectancy of women in Kerala is now 75 years.
5. India has put in place an extensive system of Public Health Services and medical network. In 1951, the country had only 725 primary health centers. By 1995, this has increased to more than 1,50,000.
6. The number of primary schools has increased significantly between 1951 and 1995 from 2,10,000 to 5,90,000.
7. Nearly 95 per cent of the villages have a primary school within a walking distance of one kilometer.

4. Political Failures

1. The main cause and source of politicaldecay is the ineptness of the electoral process which has not been able

to keep out criminal, anti-social and undesirable elements from participating in and even dominating the political scene and polluting the electoral and parliamentary processes.

2. Though democratic traditions are stabilizing, however, democracy cannot be said to be an inclusive representative democracy. The pluralism and diversity of India is not reflected in and captured by its democratic institutions; likewise, participation of women in public affairs and decision-making processes is nowhere near proportionate to their numbers.
3. The enormity of the costs of elections and electoral corruption have been having a grievous deleterious effect on national progress and has led to the degradation of political processes to detriment of common good.
4. Political parties, which have a fair share of the criminal elements, handle enormous funds collected ostensibly for meeting party and electoral expenditure. Money-power and criminal elements have contributed to pervasive degeneration of standards in public life and have criminalized politics. This is reflected in the quality of governments and of the governing processes.
5. There are no legal instrumentalities or set of law regulating the conduct of the political parties, legitimacy of fundraising, audit and account requirements and inner-party democracy.
6. National political parties are more divided on the definition of ‘common national purpose’ than ever before; the noble purposes of public life have degenerated than ever before into opportunistic and self-seeking politics of competitive personal gain.
7. ‘Fraternity’, the noble ideal of brotherhood of man, enshrined in the Preamble of the Constitution has remained unrealized. The people of India are more divided amongst themselves than at the time of the country’s independence.
8. There is increasing criminalization and exploitation of the political climate and processes and an increasing criminals-politicians-bureaucratic nexus.
9. There is crisis of confidence. There is crisis of leadership. Political leaders, owing to narrow partisan and sectarian

interests and desire for short-time political gains, are unable even to agree upon broad common national purposes.

5. Economic Failures

1. The richest top quintile of population has 85 per cent of the income. The poorest quintile has only 1.5 per cent of the country's income. The second, the third and the fourth quintile from top have respectively 8 per cent, 3.5 per cent and 2 per cent of the income.
2. 260 million people live below the poverty line.

6. Social Failures

1. India's maternal mortality rate in 1998 was 407 per 100,000 live births. These levels are more than 100 times the levels found in the West.
2. Some 53 per cent children (almost 60 million) under five remain malnour-ished–nearly twice the levels reported in many parts of sub-Saharan Africa.
3. The proportion of low birth weight babies born in India is 33 per cent. It is only 9 per cent in China and South Korea, 6 per cent in Thailand and 8 per cent in Indonesia.
4. India was a signatory to the Alma Ata Declaration in 1978 that assured 'health for all' by the year 2000. Only 42 per cent of the children between 12–23 months are fully immunized - 37 per cent in rural areas and 61 per cent in urban areas. The coverage is shockingly low in Bihar - 11 per cent and in Rajasthan - 17 per cent.
5. While per capita daily consumption of cereals has improved only marginally from 400 gms in 1950 to about 440 gms in 2000, the per capita pulses (protein intake) have over the 50 years decreased.
6. The promise of social revolution has remained unredeemed. There are 270 million Scheduled Castes and Scheduled Tribes and the measures for their welfare and uplift have not been implemented with sincerity.
7. There are 380 million children below the age of 14. Almost 100 million of them are Dalit children. No effective steps are

taken to bring them to the level of the “core-mainstream”.

8. Population control measures in the northern States have not succeeded. Fertility rates in Uttar Pradesh indicate that the State is almost a century behind Kerala.

7. Administrative Failures

1. Corruption, insensitivity and inefficiency of administration have resulted in extralegal systems and parallel economies and even parallel governments. Bureaucratic corruption, which cause frustration in people in their daily lives, has pushed more and more people into extralegal systems. The mal-administration has resulted in a lack of faith in and disenchantment with institutions of democracy.
2. There is an increasing non-accountability. Corruption has been pervasive. Public interest has suffered.
3. Constitutional protection for the Services under Article 311 has largely been exploited by dishonest officials to protect themselves from the consequences of their wrong-doings.

8. Gender Justice and Equality– Failures

1. The regional disparities in life expectancy is indicated by the fact that a woman born in Kerala can expect to live 18 years longer than one born in Madhya Pradesh.
2. In most countries life expectancy among women exceeds that of men by about 5 years. In all but a few countries of the world, there are typically 1005 women for every 1000 men. Men outnumber women only in societies where women are specifically and systematically discriminated. In India, there are only 933 women for every 1000 men. This is the phenomenon about ‘missing’ women.
3. Overall representation of women in public services is just 4.9 per cent.
4. Political participation of women indicates that in 1952 there were only 22 women in Lok Sabha against 499 seats (4.41 per cent). In 1991, this increased to 49 seats as against 544 seats (9.02 per cent).

5. Between 1995–2000, out of 503 judges of the High Court, only 15 were women.

9. Judicial System–Failures

1. Judicial system has not been able to meet even the modest expectations of the society. Its delays and costs are frustrating, its processes slow and uncertain.
2. People are pushed to seek recourse to extra-legal methods for relief.
3. Trial system both on the civil and criminal side has utterly broken down.

On an overall assessment, there are more failures than success stories, making the inference inescapable that the fifty years of the working of the Constitution is substantially a saga of missed opportunities.

III. AREAS OF CONCERN: COMMISSION'S PERCEPTION

The following are the important areas of concern according to the perception of the Commission[6] :

1. There is a fundamental breach of the constitutional faith on the part of Governments and their method of governance lies in the neglect of the people who are the ultimate source of all political authority. Public servants and institutions are not alive to the basic imperative that they are servants of the people meant to serve them. The dignity of the individual enshrined in the Constitution has remained an unredeemed pledge. There is, thus, a loss of faith in the Governments and governance. Citizens see their Governments besieged by uncontrollable events and are losing faith in institutions. Society is unable to cope up with current events.
2. The foremost area of concern is the present nature of the Indian State and its inability to anticipate and provide for the great global forces of change ushered in by the pace of scientific and technological developments.
3. The next and equally important dimension is the increasing cost of government and fiscal deficits which are alarming. In 1947, there was a deficit of ₹2 crores in the revenue budget; in 1997–98, it became ₹88,937 crores; in 2001–02, it is about ₹1,16,000 crores (4.8 per cent of GDP). India is on its way to a debt-trap.
4. There is pervasive impurity of the political climate and of political activity. Criminalisation of politics, politicalcorruption and the politician-criminal-bureaucratic nexus have reached unprecedented levels needing strong systemic changes.
5. Issues of national integrity and security have not received adequate and thoughtful attention. Mechanisms for the assessment of early warning symptoms of social unrest are absent. Mechanisms for adequate and immediate state responses to emergencies and disaster management are wholly inadequate. Administration, as a system for anticipating coming events and planning responses in

advance, has failed. It has become un-coordinated and directionless amalgam of different departments often with over-lapping and even mutually conflicting jurisdictions, powers and responsibilities which merely acts as a reaction to problems. There are no clear-cut standards or basis for fixing responsibilities.

6. Though India's overall record and experience as a working democracy (despite many centrifugal forces) are worthy to mention and though the bases of democratic debate have widened with the 73rd and 74th Constitutional amendments, the working of the institutions of parliamentary democracy, however, have thrown-up serious fault-lines, which might, if unattended, prove destructive of the basic democratic values.
7. There is pervasive misuse of the electoral process and the electoral system is unable to prevent the entry of persons with criminal record into the portal of law-making institutions.
8. The Parliament and the State Legislatures, owing to the inherent weakness of the electoral system, have failed to acquire adequate representative character. The 13th Lok Sabha represents only 27.9 per cent of the total electorate and the Legislature of U.P. represents only 22.2 per cent of electorate respectively.
9. The increasing instability of the elected governments is attributable to opportunistic politics and unprincipled defections. The economic and administrative costs of political instability are unaf-fordably high and their impact on the polity is not clearly comprehended and realized. Though just four Prime Ministers ruled the country for 40 years out of the 54 years of independence and one political party alone was in power for 45 years, however, 1989 onwards the country saw five General Elections to the Lok Sabha. Costs of this political instability are simply colossal.
10. The state of the Indian economy is disturbing. The economy is gradually sinking into a debt-trap. Economic, fiscal and monetary policies, coupled with administrative inefficiency, corruption and wasteful expenditure are increasingly pushing the society into extra-legal systems, crime-syndicates, mob-

rule and hoodlum out-fits. Black-money, parallel economy and even parallel governments are the overarching economic and social realities. Legitimate governments will, in due course, find it increasingly difficult to confront them. In course of time these illegal criminal out-fits will dictate terms to the legitimate governments.

11. Rural de-population, urbanization, urban-congestion and social unrest need immediate attention and solutions. Increasing unemployment will prove a serious threat to orderly government.
12. Future of society is increasingly knowledge-based and knowledge-driven. The quality of education and the higher research need urgent repair. The country is engaged in a unilateral and unthinking educational disarmament.
13. System of administration of justice in the country is another area of concern.
14. Criminal justice system is on the verge of collapse. The quality of investigations and prosecutions requires a strong second look. Law's delay and costs of litigation have become proverbial. Victimology, victim-protection and protection of witnesses in sensitive criminal-trials need institutional arrangements. Recruitment, training, refresher and continuing legal education for lawyers, judges and judicial administrators need immediate attention. The increasing utilization of alternative dispute resolution mechanisms such as mediation, conciliation and arbitration as well as mechanisms of auxiliary adjudicative services need to be stressed.
15. Communal and other inter-group riots in a country like India with its religious, social and cultural diversity cannot be treated as merely law and order problem. They are manifestations of collective behavioural disorders. Legal and administrative measures are required to be taken to remove the insecurity felt by the minorities and for bringing them into the mainstream of the national fabric.
16. The state of social infrastructure is disturbing. There are 380 million children below the age of 14. The arrangements for their education, health and well-being are wholly inadequate

both qualitatively and quantitatively. 96.4 per cent of the primary education budget goes for salaries alone.

17. Rates of infant mortality, blindness, maternal mortality, maternal-anemia, child malnutrition and child-immunization, despite significant progress achieved, yet remain at high and disconcerting levels.
18. Public health and hygiene have not received adequate attention. There is alarming increase of infectious diseases such as Tuberculosis, Malaria, Hepatitis, HIV etc.

IV. RECOMMENDATIONS OF THE COMMISSION

In all, the commission made 249 recommendations. Of them, 58 recommendations involve amendments to the Constitution, 86 involve legislative measures and the remaining 105 recommendations could be accomplished through executive action.

The various recommendations of the commission are mentioned below in an area-wise manner[7] :

1. On Fundamental Rights

1. The scope of prohibition against discrimination (under Articles 15 and 16) should be extended to include 'ethnic or social origin, political or other opinion, property or birth'.
2. The freedom of speech and expression (under Article 19) should be expanded to include explicitly 'the freedom of the press and other media, the freedom to hold opinions and to seek, receive and impart information and ideas'.
3. The following should be added as new Fundamental Rights:
   (a) Right against torture, cruelty and inhuman treatment or punishment.
   (b) Right to compensation if a person is illegally deprived of his right to life or liberty.
   (c) Right to leave and to return to India.
   (d) Right to privacy and family life.
   (e) Right to rural wage employment for a minimum of 80 days in a year.
   (f) Right to access to courts and tribunals and speedy justice.
   (g) Right to equal justice and free legal aid[8] .
   (h) Right to care and assistance and protection (in case of children).
   (i) Right to safe drinking water, prevention of pollution, conservation of ecology and sustainable development.
4. The right to education (under Article 21-A) should be enlarged to read as: 'Every child shall have the right to free education until he completes the age of fourteen years; and

in the case of girls and members of the SCs and STs until they complete the age of eighteen years'.

5. Two changes should be made with respect to preventive detention (under Article 22), namely, (i) the maximum period of preventive detention should be six months; and (ii) the advisory board should consist of a chairman and two other members and they should be serving judges of any high court.
6. Sikhism, Jainism and Buddhism should be treated as religions separate from Hinduism and the provisions grouping them together (under Article 25) should be deleted. At present, the word 'Hindu' is defined to include these religions also.
7. The protection from judicial review afforded by Article 31-B to the Acts and Regulations specified in the Ninth Schedule should be restricted to only those which relate to (i) agrarian reforms, (ii) reservations, and (iii) the implementation of Directive Principles specified in clause (b) or (c) of Article 39.
8. No suspension of the enforcement of the Fundamental Rights under Articles 17, 23, 24, 25 and 32 in addition to those under Articles 20 and 21 during the operation of a national emergency (under Article 352).

2. On Right to Property

Article 300-A should be recast as follows:

1. Deprivation or acquisition of property shall be by authority of law and only for a public purpose.
2. There shall be no arbitrary deprivation or acquisition of property.
3. No deprivation or acquisition of agricultural, forest and non-urban homestead land belonging to or customarily used by the SCs and STs shall take place except by authority of law which provides for suitable rehabilitation scheme before taking possession of such land. In brief, a right to 'suitable rehabilitation' for the SCs and STs if their land is to be acquired.

3. On Directive Principles

1. The heading of Part-IV of the Constitution should be amended to read as 'Directive Principles of State Policy and Action'.
2. A new Directive Principle on control of population should be added.
3. An independent National Education Commission should be set-up every five years.
4. An Inter-Faith Commission should be established to promote inter-religious harmony and social solidarity.
5. There must be a body of high status to review the level of implementation of the Directive Principles.
6. A strategic Plan of Action should be initiated to create a large number of employment opportunities in five years.
7. Implementation of the recommendations contained in the Report of the National Statistical Commission (2001).

4. On Fundamental Duties

1. Consideration should be given to the ways and means by which Fundamental Duties could be popularized and made effective.
2. The recommendations of the Justice Verma Committee on operationalisation of Fundamental Duties should be implemented at the earliest[9] .
3. The following new fundamental duties should be included in Article 51-A:
   (a) Duty to vote at elections, actively participate in the democratic process of governance and to pay taxes.
   (b) To foster a spirit of family values and responsible parenthood in the matter of education, physical and moral well-being of children.
   (c) Duty of industrial organizations to provide education to children of their employees.

5. On Parliament and State Legislatures

1. The privileges of legislators should be defined and delimited for the free and independent functioning of Parliament and

state legislatures.

2. Article 105 may be amended to clarify that the immunity enjoyed by members under parliamentary privileges does not cover corrupt acts committed by them in connection with their duties in the House or otherwise. Further, no court would take cognizance of any offence arising out of a member's action in the House without prior sanction of the Speaker / Chairman. Article 194 may also be similarly amended in relation to the members of state legislatures.
3. The domiciliary requirement for eligibility to contest elections to Rajya Sabha from the concerned state should be maintained. This is essential to ensure the federal character of the Rajya Sabha.
4. The MP local area development scheme should be discontinued.
5. The Election Commission should be empowered to identify and declare the various offices under the central and state governments to be 'offices of profit' for the purposes of being chosen, and for being, a member of the appropriate legislature.
6. Immediate steps be taken to set up a Nodal Standing Committee on National Economy.
7. A Standing Constitution Committee of the two Houses of Parliament for a priori scrutiny of constitutional amendment proposals should be set up.
8. A new Legislation Committee of Parliament to oversee and coordinate legislative planning should be constituted.
9. The existing Parliamentary Committees on Estimates, Public Undertakings and Subordinate Legislation may not be continued.
10. The Parliamentarians must voluntarily place themselves open to public scrutiny through a parliamentary ombudsman.
11. The State Legislatures with less than 70 members should meet for at least 50 days in a year and other State Legislatures for at least 90 days. Similarly, the minimum number of days for sittings of Rajya Sabha and Lok Sabha should be fixed at 100 and 120 days respectively.

12. A Study Group outside Parliament for study of procedural reforms should be set up.

6. On Executive and Administration

1. In case of hung Parliament, the Lok Sabha may elect the leader of the House. He may then be appointed as the prime minister by the president. The same procedure could be followed at the state level also.
2. A motion of no-confidence against a prime minister must be accompanied by a proposal of alternative leader to be voted simultaneously. This is called as the ‘system of constructive vote of no confidence’.
3. For a motion of no-confidence to be brought out against the government, at least 20 per cent of the total number of members of the House should give notice.
4. The practice of having oversized Council of Ministers should be prohibited by law. A ceiling on the number of Ministers in any State or the Union government be fixed at the maximum of 10 per cent of the total strength of the popular house of the legislature.
5. The practice of creating a number of political offices with the position, perks and privileges of a minister should be discouraged. Their number should be limited to 2 per cent of the total strength of the lower house.
6. The Constitution should provide for appointment of Lokpal keeping the prime minister outside its purview and the institution of lokayuktas in the states.
7. Lateral entry into government jobs above joint secretary level should be allowed.
8. Article 311 should be amended to ensure not only protection to the honest public servants but penalisation to dishonest ones.
9. The questions of personnel policy including placements, promotions, transfers and fast-track advancements should be managed by autonomous Civil Service Boards constituted under statutory provisions.
10. Officials, before starting their career, in addition to the taking of an oath of loyalty to the Constitution, should swear to

abide by the principles of good governance.

11. Right to information should be guaranteed and the traditional insistence on secrecy should be discarded. In fact, there should be an oath of transparency in place of an oath of secrecy.
12. Public Interest Disclosure Acts (which are popularly called the Whistle-blower Acts) may be enacted to fight corruption and mal-administration.
13. A law should be enacted to provide for forfeiture of benami property of corrupt public servants as well as non-public servants.

7. On Centre-State and Inter-State Relations

1. The Inter-State Council Order of 1990 may clearly specify the matters that should form the parts of consultations.
2. Management of disasters and emergencies (both natural and manmade) should be included in the List III (Concurrent List) of the Seventh Schedule.
3. A statutory body called the Inter-State Trade and Commerce Commission should be established.
4. The president should appoint the governor of a state only after consultation with the chief minister of that state.
5. Article 356 should not be deleted, but it must be used sparingly and only as a remedy of the last resort.
6. The question whether the ministry in a state has lost the confidence of the assembly or not should be tested only on the floor of the House. The Governor should not be allowed to dismiss the ministry, so long as it enjoys the confidence of the House.
7. Even without the state being under a proclamation of emergency, President's Rule may be continued if elections cannot be held. Article 356 should be amended to this effect.
8. The State Assembly should not be dissolved before the proclamation issued under Article 356 has been laid before Parliament. Article 356 should be amended to ensure this.
9. River water disputes between States and / or the Centre should be heard and disposed by a bench of not less than

three judges and if necessary, a bench of five judges of the Supreme Court for the final disposal of the suit.

10. Parliament should replace the River Boards Act of 1956 with another comprehensive enactment after consultation with all the states.
11. When the state bill is reserved for consideration of the President, there should be a time-limit (say of three months) within which the President should take a decision whether to give his assent or to return the bill.

8. On Judiciary

1. A National Judicial Commission under the Constitution should be established to recommend the appointment of judges of the Supreme Court. It should comprise the chief justice of India (as chairman), two senior most Judges of the Supreme Court, the Union law minister and one person nominated by the president.
2. A committee of the National Judicial Commission should examine complaints of deviant behaviour of the Supreme Court and high court judges.
3. The retirement age of the judges of high courts and Supreme Court should be increased to 65 and 68 respectively.
4. No court other than the Supreme Court and the High Courts should have the power to punish for contempt of itself.
5. Except the Supreme Court and the High Courts, no other court should have the power to declare the Acts of Parliament and State Legislatures as being unconstitutional or beyond legislative competence and so ultra-vires.
6. A National Judicial Council and Judicial Councils in States should be set up for the preparation of plans and annual budget proposals.
7. In the Supreme Court and the High Courts, judgements should ordinarily be delivered within 90 days from the conclusion of the case.
8. An award of exemplary costs should be given in appropriate cases of abuse of process of law.

9. Each High Court should prepare a strategic plan for time-bound clearance of arrears in courts within its jurisdiction. No case to remain pending for more than one year.
10. The system of plea-bargaining should be introduced as part of the process of decriminalization.
11. The hierarchy of the subordinate courts in the country should be brought down to a two-tier of subordinate judiciary under the High Court.

9. On Pace of Socio-Economic Change and Development

1. A way could and should be found to bring a reasonable number of SCs, STs and BCs on to the benches of the Supreme Court and high courts.
2. Social policy should aim at enabling the SCs, STs and BCs and with particular attention to the girls to compete on equal terms with the general category.
3. Appropriate new institutions should be established to ensure that the resources earmarked for the weaker sections are optimally used.
4. The Citizens' Charters be prepared by every service providing department / agency to enumerate the entitlements of the citizens specifically those of the SCs, STs and other deprived classes.
5. Reservation for SCs, STs and BCs should be brought under a statute covering all aspects of reservation including setting up of Arakshan Nyaya Adalats to adjudicate upon all disputes pertaining to reservation.
6. Residential schools for SCs, STs and BCs should be established in every district in the country.
7. All tribal areas governed by the Fifth Schedule of the Constitution should be transferred to the Sixth Schedule. Other tribal areas should also be brought under the Sixth Schedule.
8. Special courts exclusively to try offences under the SCs and STs (Prevention of Atrocities) Act, 1989, should be established.

9. Prevention of untouchability requires, inter alia, effective punitive action under the Protection of Civil Rights Act, 1955.
10. The Employment of Manual Scavengers and Construction of Dry Latrines (Prohibition) Act, 1993, should be strictly enforced.
11. Steps should be taken for improvement of educational standards as well as for increasing the political representation of the minority communities.
12. A fully empowered National Authority for the Liberation and Rehabilitation of bonded labour should be set up. Similar authorities should also be established at the state level.
13. As regards women, action covering reservation, development, empowerment, health and protection against violence should be taken.

10. On Decentralisation (Panchayats and Municipalities)

1. The Eleventh and Twelfth Schedules of the Constitution should be restructured in a manner that creates a separate fiscal domain for panchayats and municipalities.
2. State panchayat council should be established under the chairmanship of the chief minister.
3. Panchayats and Municipalities should be categorically declared to be 'institutions of self-government' and exclusive functions be assigned to them. For this purpose, Articles 243-G and 243-W should be suitably amended.
4. The Election Commission of India should have the power to issue directions to the State Election Commission for the discharge of its functions. The State Election Commission should submit its annual or special reports to the Election Commission of India and to the Governor. This requires the amendment of Articles 243-K and 243-ZA.
5. Article 243-E should be amended to the effect that a reasonable opportunity of being heard shall be given to a Panchayat before it is dissolved.
6. To ensure uniformity in the practice relating to audit of accounts, the CAG of India should be empowered to

conduct the audit or lay down accounting standards for Panchayats.

7. Whenever a Municipality is superseded, a report stating the grounds for such dissolution should be placed before the State Legislature.
8. All provisions regarding qualifications and disqualifications for elections to local authorities should be consolidated in a single law.
9. The functions of delimitation, reservation and rotation of seats should be vested in a Delimitation Commission and not in the State Election Commission.
10. The concept of a distinct and separate tax domain for municipalities should be recognized.

11. On Institutions in North East India

1. Efforts are to be made to give all the States in this region the opportunities provided under the 73rd and 74th Constitutional Amendments. However, this should be done with due regard to the unique political traditions of the region.
2. The subjects given under the Sixth Schedule and those mentioned in the Eleventh Schedule could be entrusted to the Autonomous District Councils (ADCs).
3. Traditional forms of governance should be associated with self-governance because of the present dissatisfaction.
4. A National Immigration Council should be set up to examine a range of issues including review of the Citizenship Act, the Illegal Migrants Determination by Tribunal Act, the Foreigners Act and so on.
5. As regards Nagaland, the Naga Councils should be replaced by elected representatives of various Naga society groups with an intermediary tier at the district level.
6. As regards Assam, the Sixth Schedule should be extended to the Bodoland Autonomous Council and other Autonomous Councils be upgraded to Autonomous Development Councils.
7. As regards Meghalaya, a tier of village governance should be created for a village or a group of villages in the Autonomous District Councils.

8. As regards Tripura, the changes which may be made in respect of other Autonomous Councils should also apply in respect of the Autonomous District Councils.
9. As regards Mizoram, an intermediary elected tier should be developed at the district level in areas not covered by the Sixth Schedule.
10. As regards Manipur, the provisions of the Sixth Schedule should be extended to hill districts of the State.

12. On Electoral Processes

1. Any person charged with any offence punishable with imprisonment for a maximum term of five years or more, should be disqualified for being chosen as or for being a member of Parliament or Legislature of a State.
2. Any person convicted for any heinous crime like murder, rape, smuggling, dacoity, etc., should be permanently debarred from contesting for any political office.
3. Criminal cases against politicians pending before Courts either for trial or in appeal must be disposed of speedily, if necessary, by appointing Special Courts.
4. The election petitions should also be decided by special courts. In the alternative, special election benches may be constituted in the High Courts and earmarked exclusively for the disposal of election petitions and election disputes.
5. Any system of State funding of elections bears a close nexus to the regulation of working of political parties by law and to the creation of a foolproof mechanism under law with a view to implementing the financial limits strictly. Therefore, proposals for State funding should be deferred till these regulatory mechanisms are firmly in position.
6. Candidates should not be allowed to contest election simultaneously for the same office from more than one constituency.
7. The election code of conduct should be given the sanctity of law and its violation should attract penal action.
8. The Commission while recognizing the beneficial potential of the system of run off contest electing the representative winning on the basis of 50 per cent plus one vote polled, as

against the present first-past-the-post system, for a more representative democracy, recommends that the Government and the Election Commission of India should examine this issue of prescribing a minimum of 50 per cent plus one vote for election in all its aspects.

9. An independent candidate who loses election three times consecutively should be permanently debarred from contesting election to the same office.
10. The minimum number of valid votes polled should be increased to 25 per cent from the current 16.67 per cent as a condition for the deposit not being forfeited.
11. The issue of eligibility of non-Indian born citizens or those whose parents or grandparents were citizens of India to hold high offices in the realm such as President, Vice-President, Prime Minister and Chief Justice of India should be examined in depth through a political process after a national dialogue[10] .
12. The Chief Election Commissioner and the other Election Commissioners should be appointed on the recommendation of a body consisting of the Prime Minister, Leader of the Opposition in the Lok Sabha, Leader of the Opposition in the Rajya Sabha, the Speaker of the Lok Sabha and the Deputy Chairman of the Rajya Sabha. Similar procedure should be adopted in the case of appointment of State Election Commissioners.

13. On Political Parties

1. A comprehensive law regulating the registration and functioning of political parties or alliances of parties should be made. The proposed law should-
   (a) provide that political party or alliance should keep its doors open to all citizens irrespective of any distinctions of caste, community or the like.
   (b) make it compulsory for the parties to maintain accounts of the receipt of funds and expenditure in a systematic and regular way.
   (c) make it compulsory for the political parties requiring their candidates to declare their assets and liabilities at the

time of filing their nomination.

(d) provide that no political party should provide ticket to a candidate if he was convicted by any court for any criminal offence or if the courts have framed criminal charges against him.

(e) specifically provide that if any party violates the above provision , the candidate involved should be liable to be disqualified and the party deregistered and derecognized.

2. The Election Commission should progressively increase the threshold criterion for eligibility for recognition so that the proliferation of smaller political parties is discouraged.
3. A comprehensive legislation providing for regulation of contributions to the political parties and towards election expenses should be enacted by consolidating such laws. This new law should:
   (a) aim at bringing transparency into political funding;
   (b) permit corporate donations within higher prescribed limits;
   (c) make donations up to a specified limit tax exempt;
   (d) make both donors and donees of political funds accountable;
   (e) provide that audited political party accounts should be published yearly; and
   (f) provide for de-recognition of the party and enforcement of penalties for filing false election returns.

14. On Anti-Defection Law

The provisions of the Tenth Schedule of the Constitution should be amended to provide the following:

1. All persons defecting (whether individually or in groups) from the party or the alliance of parties, on whose ticket they had been elected, must resign from their parliamentary or assembly seats and must contest fresh elections.
2. The defectors should be debarred to hold any public office of a minister or any other remunerative political post for at least the duration of the remaining term of the existing legislature or until the next elections whichever is earlier.

3. The vote cast by a defector to topple a government should be treated as invalid.
4. The power to decide questions regarding disqualification on ground of defection should vest in the Election Commission instead of in the Speaker / Chairman of the House concerned.

V. EARLIER EFFORTS TO REVIEW THE CONSTITUTION

Even before the appointment of this Commission in 2000, certain attempts were already made to review the working of the Constitution. The Commission itself has summarized those attempts in the following way[11] :

1. There was nothing entirely new in the effort at reviewing the working of our Constitution. The debate had continued right from the first decade of the life of the Constitution. Also, every amendment had been an occasion for review. But, in the half-a-century and more since the Constitution came into force, whereas as many as eighty-five amendments have been instituted, there has been (till the setting up of the National Commission to Review the Working of the Constitution) no comprehensive and transparent official exercise to review the working of the Constitution in its entirety with a view to evaluating its achievements and failures in fulfilling the objectives of the Constitution in the context of experience gained, and for future requirements perceived.
2. After the Constitution came into force, within two years, it was required to be amended. In the course of his speech on the Constitution (First Amendment) Bill, 1951, on 2 June 1951 Nehru once again repeated his views as to the need for the Constitution to be amenable to amendment. On this occasion, his words were trenchant and unsparing. He said:

   > “A Constitution which is unchanging and static, it does not matter how good it is, but as a Constitution it is past its use. It is in its old age already and gradually approaching its death. A Constitution to be living must be growing; must be adaptable; must be flexible; must be changeable... Therefore, it is a desirable and a good thing for people to realize that this very fine Constitution that we have fashioned after years of labour, is good in so far as it goes, but as society changes as conditions change, we amend it in the proper way”.

3. Four years later, as an experienced Prime Minister with prolonged firsthand knowledge of the efficacy of the fundamental law of the land, he held the same view. Speaking on the Constitution (Fourth Amendment) Bill, 1955 Nehru said:

   > "After all, the Constitution is meant to facilitate the working of the Government and the administrative and other structures of this country. It is meant to be not something that is static and which has a static form in a changing world, but something which has something dynamic in it, which takes cognizance of the dynamic nature of modern conditions, modern society."

4. In the years that followed the Fourth Amendment, the Constitution has been amended 81 times. The Union and the State Governments and Parliament faced the Supreme Court over fundamental rights issues: freedom of expression visa-vis national integrity; personal liberty visa-vis political stability; special treatment for some segments of society visa-vis abstract equality for all; property rights vis-a-vis social revolution needs etc. Questions also arose whether the power of constitutional amendment was complete, unrestrained and unlimited and whether there were limits to the power of judicial review of constitutional amendments.
5. In the period 1950 to 1967, Parliament and most State Assemblies had preponderant Congress majorities. General Elections in 1967 were followed by the formation of non-Congress coalitions in a number of States in the northern region of the country. Certain issues pertaining to Union-State relations arose during this period directly from the functioning of mechanisms and processes under the Constitution. An Administrative Reforms Commission was constituted by the Government of India to examine administrative aspects of Union-State relations.
6. In the period following the fourth General Election, the phenomenon of unprincipled defections for money or ministerships etc. came to the fore: legislators changing their party allegiance again and again in utter disregard of all moral and political proprieties, constituency choice and

public opinion. Wide-spread concern about the problem was mirrored in Parliament, and led to a unanimous resolution in the Lok Sabha on 8 December 1967. The resolution read:

> "This House is of opinion that a high-level Committee consisting of representatives of political parties and constitutional experts be set up immediately by Government to consider the problem of legislators changing their allegiance from one party to another and their frequent crossing of the floor in all its aspects, and make recommendations in this regard."

7. Known subsequently as the Y.B. Chavan Committee, after the then Union Home Minister who was the Chairman of the Committee, this body produced a valuable report which addressed a variety of issues germane to the handling of the problem of defections which had basic implications with reference to the working of constitutional machinery and connected statutory and procedural instrumentalities.
8. The 25th anniversary of the coming into force of the Constitution of the world's largest democratic republic occurred, ironically, in the year in which the Emergency was clamped on the nation in an atmosphere of burgeoning national unrest. It was in this context that the first concerted initiative towards a review and revision of the Constitution was undertaken in 1975. At the AICC Session in December, 1975 - the 'Kamagata Maru Session' -a resolution on the political situation stated:

   > "If the misery of the poor and vulnerable sections of our society is to be alleviated, vast and far-reaching changes have to be effected in our socio-economic structure... The Congress urges that our Constitution be thoroughly examined in order to ascertain if the time has not come to make adequate alterations to it so that it may continue as a living document."

9. A document titled 'A Fresh Look at Our Constitution - Some Suggestions' surfaced at this time and was circulated but, after the recommendations contained in it had drawn stringent criticism from diverse quarters, it was not pursued. Amidst tenacious advocacy about the need for constitutional

change, particularly after the Kamagata Maru Session of the Indian National Congress, the then Congress President, D.K. Borooah appointed, on 26 February 1976, a Committee "to study the question of amendment of the Constitution.. in the light of experience." The twelve-member Committee, headed by Sardar Swaran Singh, submitted "tentative proposals" to the Congress President in April 1976 and these were then circulated among a select few. The then Chairman of the Law Commission of India, Justice P.B. Gajendragadkar wrote to the Prime Minister that while amendment to the Constitution was necessary to expedite the socio-economic revolution, "ad-hocism is undesirable and adoption of extremist doctrinaire positions is irrelevant and inadvisable". He advised the Prime Minister "to appoint a high powered committee to research and discuss the problem in depth for a dedicated and comprehensive effort."

10. The Swaran Singh Committee Report stated that its recommendations had been made with the background of the tentative proposals circulated earlier to Congress Chief Ministers and Pradesh Congress Committees, the views of Bar Associations of the Supreme Court and all the High Courts, comments in the Press and in public and memoranda and opinions received from individuals, professional bodies etc. It said:

    ".....the Committee has kept before it certain important objectives. Our Constitution has functioned without any serious impediment during the past 26 years or so. While this is so, difficulties have been thrown up from time to time in the interpretation of some of its provisions, more particularly when they concern the right of Parliament to be the most authentic and effective instrument to give expression and content to the sovereign will of the people".

    The Committee also declared that:

    "The Parliamentary system is best suited to our country, and it is unnecessary to abandon it in favour of the Presidential or any other system. In a vast country like India, with the kind of regional diversity as we have, the

Parliamentary system preserves best the unity and integrity of the country and ensures greater responsiveness to the voice of the people."

11. The Committee made a series of recommendations on a wide range of issues including the Preamble; the Directive Principles; the constituent power of Parliament to amend the Constitution; the power of judicial review; article 276; service matters; industrial and labour disputes; matters relating to revenue, land reform, procurement and distribution of food grains and other essential commodities; Election matters; Article 227; disqualification for membership of a house of Parliament or either house of the State Legislature; article 352 and Union State Coordination. The Committee also undertook to make separate proposals for the deletion of some provisions of the Constitution which, it observed, had become "obsolete or redundant."
12. Reacting to the Swaran Singh Committee and its report as published, Justice P.B. Gajendragadkar, then still the Chairman of the Law Commission, in a letter to Smt. Indira Gandhi, reiterated his view that the amendment to the fundamental law of the land should not have been left to a party committee and that the modality could, advisedly, have been a committee of experts to hear all parties and persons. He said, further, that the Committee appointed by Congress President Borooah had "worked in a hurry, discussed issues in a casual manner and based its recommendations mainly on political considerations."
13. When the Forty-Second Amendment Bill was prepared, the Statement of Objects and Reasons echoed some of Jawaharlal Nehru's words. "A Constitution to be living must be growing", it declared. "If the impediments to the growth of the Constitution are not removed, the Constitution will suffer virtual atrophy." The Prime Minister, in her speech in the Lok Sabha on 27 October 1976, said that the purpose of the Bill was "to remedy the anomalies that have long been noticed and to overcome obstacles put up by economic and political vested interests," and that the Bill was "responsive to the

aspirations of the people, and reflects the realities of the present time and the future".

14. After the change of Government, following general elections in 1977, the then Prime Minister, Morarji Desai appointed a Committee of Members of Parliament as a forum for considering substantive changes in the amendments brought about during the Emergency. Subsequently, the Prime Minister set up a Sub-Committee of the Cabinet for the same purpose. Issues germane to the 42nd Amendment were subject matter of voluminous expression of opinion by jurists, parliamentarians, editors and professional bodies. But, essentially, the effort focused on the correction of the imbalance in the Constitution caused by some provisions of the Forty Second Amendment.

15. The need was felt for a comprehensive review of Union-State relations following the experience gained in the period after the General Elections of 1977 which had resulted in non Congress governments at the Centre and in several major States in the north, but governments formed by the Congress in the southern States. In 1983, a Commission was constituted under the chairmanship of Justice R.S. Sarkaria with fairly wide-ranging terms of reference. These included:

"(i) The Commission will examine and review the working of the existing arrangements between the Union and the States in regard to powers, functions and responsibilities in all spheres and recommend such changes or other measures as may be appropriate;

(ii) In examining and reviewing the working of existing arrangements between the Union and States and making recommendations as to changes and measures needed, the Commission will keep in view the social and economic developments that have taken place over the years and have due regard to the scheme and framework of the Constitution which the founding fathers have so sedulously designed to protect the independence and ensure the unity and integrity of the

country which is of paramount importance for promoting the welfare of the people."

16. There were also some other especially note-worthy studies of particular problems in the political system. Deep concern had been voiced relative to flaws in the electoral process. This had occasioned a Joint Parliamentary Committee on Amendments to Election Law, which submitted its report in 1972. The Committee for Democracy set up by Loknayak Jaya Prakash Narayan had also studied the subject. Various aspects of electoral reforms were reviewed by a Cabinet Sub Committee appointed in 1977 and another in 1982. In 1990, the Government of India constituted a Committee under the Chairmanship of the then Union Law Minister Dinesh Goswami with Members drawn from different political parties. The Report of the Committee contained a series of recommendations, most of which were accepted for implementation.
17. A Committee to examine issues related to State Funding of Elections was constituted in May 1998, known as the Indrajit Gupta Committee after that outstanding Parliamentarian and leader who was its Chairman. Although the Committee had a relatively limited compass of study, its observations are noteworthy and comprise valuable supplementary material pertaining to the process of elections.
18. Various Reports of the Law Commission of India provide a wealth of insights into the working of the machinery of the Constitution. The 170th Report of the Law Commission, on Reform of Election Laws, presented in May 1999, considers radical approaches seeking to improve the system of elections - the very sheet anchor of Parliamentary Democracy under the Constitution.
19. The most significant of the non-political civil society efforts was the seminar organised by 15 national institutions in 1992 and the committee appointed by the India International Centre to review the working of the Constitution. The committee which had the senior Congress leader and former cabinet minister, Dr. Karan Singh as the Chairman and included among its members two of the members of this

Commission, presented its report to the President and others. Concluding recommendation of the committee was that of a Review Commission being appointed.

20. The National Agenda for Governance issued by the National Democratic Alliance as the NDA Election Manifesto before the last general elections contained a pledge that a Commission would be appointed to review the Constitution in the light of its working for fifty years. The Pledge was affirmed in the President's address to Parliament and was followed by the appointment of this Commission in February 2000.

NOTES AND REFERENCES

1. The Ministry of Law and Justice (Department of Legal Affairs), vide its Resolution, dated the 22 February, 2000.
2. The other members of the Commission were: B.P. Jeevan Reddy (Chairman of the Law Commission), R.S. Sarkaria (former judge of the Supreme Court), K. Punnayya (former judge of the Andhra Pradesh High Court), Soli Sorabjee (Attorney-General of India), K. Parasaran (former Attorney-General of India), Subhash Kashyap (former Secretary-General of Lok Sabha), C.R. Irani (Chief Editor and MD of the Statesman), Abid Hussain (former Ambassador of India to the USA), Smt. Sumitra Kulkarni (former MP) and P.A. Sangma (former Speaker of the Lok Sabha). P.A. Sangma resigned three months before the submission of the report by the Commission.
3. The Commission was asked to complete its work and make recommendations within one year. After three extensions, the Commission submitted its report on March 31, 2002. This report is a bulky one, containing 1,979 pages in two-volumes. Volume I contains its recommendations while Volume II (divided in Books 1, 2 and 3) consists of detailed consultation papers,

background papers, details of deliberations and the report of its drafting and editorial committee.

4. Report of the Commission, Volume I, Chapter 1.
5. Report of the Commission, Volume I, Chapter 2.
6. *Ibid*.
7. Chapters 3 to 10 in Volume I of the Report of the Commission contains the detailed area-wise recommendations. The summary of recommendations is given in Chapter 11 of the Report.
8. At present, it is a Directive Principle under Article 39-A.
9. The Government of India appointed the committee "to operationalise the suggestions to teach Fundamental Duties to the citizens of India" in the year 1998 under the chairmanship of Justice J.S. Verma. The Committee submitted its report in October 1999.
10. The Commission was deeply divided on this issue and because of this, P.A. Sangma left the Commission.
11. Report of the Commission, Volume I, Chapter 1.

APPENDICES

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Appendix I (1–395) Articles of the Constitution

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8. Rights of citizenship of certain persons of Indian origin residing outside India
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16. Equality of opportunity in matters of public employment
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22. Protection against arrest and detention in certain cases
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24. Prohibition of employment of children in factories, etc.
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28. Freedom as to attendance at religious instruction or religious worship in certain educational institutions
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243H. Powers to impose taxes by, and funds of, the panchayats
243I. Constitution of finance commission to review financial position
243J. Audit of accounts of panchayats 243K. Elections to the panchayats 243L. Application to union territories 243M. Part not to apply to certain areas 243N. Continuance of existing laws and panchayats
243O. Bar to interference by courts in electoral matters

MUNICIPALITIES

243P. Definitions
243Q. Constitution of municipalities
243R. Composition of municipalities
243S. Constitution and composition of wards committees, etc.
243T. Reservation of seats
243U. Duration of municipalities, etc.
243V. Disqualifications for membership
243W. Powers, authority and responsibilities of municipalities, etc.
243X. Power to impose taxes by, and funds of, the municipalities
243Y. Finance commission
243Z. Audit of accounts of municipalities 243ZA. Elections to the municipalities 243ZB. Application to union territories
243ZG. Bar to interference by courts in electoral matters

CO-OPERATIVE SOCIETIES

243ZH. Definitions
243ZI. Incorporation of co-operative societies 243ZJ. Number and term of members of Board and its office bearers
243ZK. Election of members of Board 243ZL. Supersession and suspension of Board and interim management
243ZM. Audit of accounts of co-operative societies
243ZN. Convening of general body meetings 243ZO. Right of a member to get information 243ZP. Returns
243ZQ. Offences and penalties
243ZR. Application to multi-State co-operative societies
243ZS. Application to Union territories
243ZT. Continuance of existing laws

SCHEDULED AND TRIBAL AREAS

244. Administration of scheduled areas and tribal areas
244A. Formation of an autonomous state comprising certain tribal areas in Assam and creation of local legislature or council of ministers or both therefor

CENTRE-STATE LEGISLATIVE RELATIONS

245. Extent of laws made by Parliament and by the legislatures of states
246. Subject-matter of laws made by Parliament and by the legislatures of states
248. Residuary powers of legislation
249. Power of Parliament to legislate with respect to a matter in the State List in the national interest
250. Power of Parliament to legislate with respect to any matter in the State List if a proclamation of emergency is in operation
251. Inconsistency between laws made by Parliament under articles 249 and 250 and laws made by the legislatures of states
252. Power of Parliament to legislate for two or more states by consent and adoption of such legislation by any other state.
253. Legislation for giving effect to international agreements
254. Inconsistency between laws made by Parliament and laws made by the legislatures of states
255. Requirements as to recommendations and previous sanctions to be regarded as matters of procedure only

CENTRE-STATE ADMINISTRATIVE RELATIONS

256. Obligation of states and the Union
257. Control of the Union over states in certain cases
257A. Assistance to States by deployment of armed forces or other forces of the Union (Repealed)
258. Power of the Union to confer powers, etc., on states in certain cases
258A. Power of the states to entrust functions to the union
259. Armed Forces in States in Part B of the First Schedule (Repealed)
260. Jurisdiction of the Union in relation to territories outside India
261. Public acts, records and judicial proceedings

CENTRE-STATE FINANCIAL RELATIONS

264. Interpretation
265. Taxes not to be imposed save by authority of law
266. Consolidated Funds and public accounts of India and of the states
267. Contingency Fund
268. Duties levied by the Union but collected and appropriated by the states
268A. Service tax levied by Union and collected and appropriated by the Union and the states (Repealed)
269. Taxes levied and collected by the Union but assigned to the states
269A. Levy and collection of goods and services tax in course of inter-state trade or commerce
270. Taxes levied and distributed between the Union and the states
271. Surcharge on certain duties and taxes for purposes of the Union
272. Taxes which are levied and collected by the Union and may be distributed between the Union and the States (Repealed)
273. Grants in lieu of export duty on jute and jute products
274. Prior recommendation of president required to bills affecting taxation in which states are interested
275. Grants from the Union to certain states
276. Taxes on professions, trades, callings and employments
277. Savings
278. Agreement with States in Part B of the First Schedule with regard to certain financial matters (Repealed)
279. Calculation of net proceeds, etc.
299. Contracts
300. Suits and proceedings
282. Expenditure defrayable by the Union or a state out of its revenues

283. Custody, etc., of consolidated funds, contingency funds and moneys credited to the public accounts
284. Custody of suitors" deposits and other moneys received by public servants and courts
285. Exemption of property of the Union from state taxation
286. Restrictions as to imposition of tax on the sale or purchase of goods
287. Exemption from taxes on electricity
288. Exemption from taxation by states in respect of water or electricity in certain cases
289. Exemption of property and income of a state from Union taxation
290. Adjustment in respect of certain expenses and pensions
290A. Annual payment to certain devaswom funds
291. Privy purse sums of Rulers (Repealed)
292. Borrowing by the Government of India
293. Borrowing by states

RIGHT TO PROPERTY

300A. Persons not to be deprived of property save by authority of law

TRADE, COMMERCE AND INTERCOURSE

301. Freedom of trade, commerce and intercourse
302. Power of Parliament to impose restrictions on trade, commerce and intercourse
303. Restrictions on the legislative powers of the Union and of the states with regard to trade and commerce
304. Restrictions on trade, commerce and intercourse among states
305. Saving of existing laws and laws providing for state monopolies
306. Power of certain States in Part B of the First Schedule to impose restrictions on trade and commerce (Repealed)
307. Appointment of authority for carrying out the purposes of Articles 301 to 304

RIGHTS AND LIABILITIES OF THE GOVERNMENT

294. Succession to property, assets, rights, liabilities and obligations in certain cases
295. Succession to property, assets, rights, liabilities and obligations in other cases
296. Property accruing by escheat or lapse or bona vacantia
297. Things of value within territorial waters or continental shelf and resources of the exclusive economic zone to vest in the Union
298. Power to carry on trade, etc.

PUBLIC SERVICES

308. Interpretation
309. Recruitment and conditions of service of persons serving the Union or a state
310. Tenure of office of persons serving the union or a state
311. Dismissal, removal or reduction in rank of persons employed in civil capacities under the Union or a state
312. All-India services
312A. Power of Parliament to vary or revoke conditions of service of officers of certain services
313. Transitional provisions
314. Provision for protection of existing officers of certain services (Repealed)

PUBLIC SERVICE COMMISSIONS

315. Public Service Commissions for the Union and for the states
316. Appointment and term of office of members
317. Removal and suspension of a member of a Public Service Commission
318. Power to make regulations as to conditions of service of members and staff of the commission
319. Prohibition as to the holding of offices by members of the commission on ceasing to be such members
320. Functions of Public Service Commissions
321. Power to extend functions of Public Service Commissions
322. Expenses of Public Service Commissions
323. Reports of Public Service Commissions

TRIBUNALS

323A. Administrative tribunals
323B. Tribunals for other matters

ELECTIONS

324. Superintendence, direction and control of elections to be vested in an Election Commission
325. No person to be ineligible for inclusion in, or to claim to be included in a special, electoral roll on grounds of religion, race, caste or sex
326. Elections to the House of the people and to the legislative assemblies of states to be on the basis of adult suffrage
327. Power of Parliament to make provision with respect to elections to legislatures
328. Power of legislature of a state to make provision with respect to elections to such legislature
329. Bar to interference by courts in electoral matters

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

330. Reservation of seats for scheduled castes and scheduled tribes in the House of the people
331. Representation of the anglo-Indian community in the House of the people
332. Reservation of seats for scheduled castes and scheduled tribes in the legislative assemblies of the states
333. Representation of the anglo-Indian community in the legislative assemblies of the states
334. Reservation of seats and special representation to cease after seventy years
335. Claims of scheduled castes and scheduled tribes to services and posts
336. Special provision for anglo-Indian community in certain services
337. Special provision with respect to educational grants for the benefit of anglo-Indian community
338. National Commission for scheduled castes
338A. National tribes Commission for scheduled
338B. National Classes Commission for Backward
339. Control of the Union over the administration of scheduled areas and the welfare of scheduled tribes
340. Appointment of a commission to investigate the conditions of backward classes
341. Scheduled castes
342. Scheduled tribes
342A. Socially and educationally backward classes

OFFICIAL LANGUAGE

343. Official language of the Union
344. Commission and committee of Parliament on official language
347. Special provision relating to language spoken by a section of the population of a state
348. Language to be used in the Supreme Court and in the high courts and for acts, bills, etc.
349. Special procedure for enactment of certain laws relating to language
350. Language to be used in representations for redress of grievances
350A. Facilities for instruction in mothertongue at primary stage
350B. Special officer for linguistic minorities
351. Directive for development of the hindi language

EMERGENCY PROVISIONS

352. Proclamation of emergency (national emergency)
353. Effect of proclamation of emergency
354. Application of provisions relating to distribution of revenues while a proclamation of emergency is in operation
355. Duty of the Union to protect states against external aggression and internal disturbance
356. Provisions in case of failure of constitutional machinery in states (president's rule)
357. Exercise of legislative powers under proclamation issued under article 356
358. Suspension of provisions of Article 19 during emergencies
359. Suspension of the enforcement of fundamental rights during emergencies 359A. Application of this part to the State of Punjab (Repealed)
360. Provisions as to financial emergency

MISCELLANEOUS PROVISIONS

361. Protection of president and governors and rajpramukhs
362. Rights and privileges of rulers of Indian States (Repealed)
363. Bar to interference by courts in disputes arising out of certain treaties, agreements, etc.
363A. Recognition granted to rulers of Indian states to cease and privy purses to be abolished
364. Special provisions as to major ports and aerodromes
365. Effect of failure to comply with, or to give effect to directions given by the Union (president's rule)
366. Definitions
367. Interpretation

AMENDMENT OF THE CONSTITUTION

368. Power of Parliament to amend the Constitution and procedure therefor

TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS

369. Temporary power to Parliament to make laws with respect to certain matters in the State List as if they were matters in the Concurrent List
370. Temporary provisions with respect to the State of Jammu and Kashmir
371. Special provision with respect to the States of Maharashtra and Gujarat 371A. Special provision with respect to the State of Nagaland
371B. Special provision with respect to the State of Assam
371C. Special provision with respect to the State of Manipur
371D. Special provisions with respect to the State of Andhra Pradesh or the state of Telangana
371E. Establishment of central university in Andhra Pradesh
371H. Special provision with respect to the State of Arunachal Pradesh
371I. Special provision with respect to the State of Goa
371J. Special provision with respect to the State of Karnataka
372. Continuance in force of existing laws and their adaptation
372A. Power of the president to adapt laws
373. Power of president to make order in respect of persons under preventive detention in certain cases
374. Provisions as to judges of the federal court and proceedings pending in the federal court or before His Majesty in council
375. Courts, authorities and officers to continue to function subject to the provisions of the Constitution
376. Provisions as to judges of high courts
377. Provisions as to Comptroller and Auditor General of India
378. Provisions as to Public Service Commissions
378A. Special provisions as to duration of Andhra Pradesh Legislative Assembly

379. Provisions as to provisional Parliament and the Speaker and Deputy Speaker thereof (Repealed)
380. Provisions as to President (Repealed)
381. Council of Ministers of the President (Repealed)
382. Provisions as to provisional Legislatures for States in Part A of the First Schedule (Repealed)
385. Provisions as to provisional Legislatures in States in Part B of the First Schedule (Repealed)
386. Council of Ministers for States in Part B of the First Schedule (Repealed)
387. Special provision as to determination of population for the purposes of certain elections (Repealed)
388. Provisions as to the filling of casual vacancies in the provisional Parliament and provisional Legislatures of the States (Repealed)
389. Provisions as to Bills pending in the Dominion Legislature and in the Legislatures of Provinces and Indian States (Repealed)
390. Moneys received or raised or expenditure incurred between the commencement of the Constitution and the 31st day of March, 1950 (Repealed)
391. Power of the President to amend the First and Fourth Schedules in certain contingencies (Repealed)
392. Power of the President to remove difficulties

SHORT TITLE, COMMENCEMENT, ETC.

393. Short title
394. Commencement
394A. Authoritative text in the hindi language
395. Repeals

Appendix II Subjects of Union, State and Concurrent Lists

UNION LIST (LIST-I)

1. Defence of India
2. Naval, military and air forces; any other armed forces of the Union

2A. Deployment of any armed force of the Union in any state in aid of the civil power

3. Cantonment areas and local self-government in such areas
4. Naval, military and air force works
5. Arms, firearms, ammunition, and explosives
6. Atomic energy and mineral resources necessary for its production
7. Defence industries
8. Central Bureau of Intelligence and investigation
9. Preventive detention for reasons connected with defence, foreign affairs, or the security of India
10. Foreign affairs
11. Diplomatic, consular and trade representation
12. United Nations Organisation
13. International conferences, associations and other bodies
14. Treaties, agreements and conventions with foreign countries
15. War and peace
16. Foreign jurisdiction
17. Citizenship, naturalisation and aliens
18. Extradition
19. Passports and visas
20. Pilgrimages to places outside India
21. Piracies and crimes committed on the high seas or in the air and offences against the law of nations.
22. Railways
23. National highways
24. Shipping and navigation on national waterways
25. Maritime shipping and navigation

26. Lighthouses for the safety of shipping and aircraft
27. Major ports
28. Port quarantine, seaman and marine hospitals
29. Airways; aircraft and air navigation; provision of aerodromes
30. Carriage of passengers and goods by railway, sea, air or national waterways
31. Posts and telegraphs; telephones, wireless, broadcasting and other like forms of communication
32. Property of the Union
33. (Omitted)
34. Courts of wards for the estates of rulers of Indian states
35. Public debt of the Union
36. Currency, coinage and legal tender; foreign exchange
37. Foreign loans
38. Reserve Bank of India
39. Post office savings bank
40. Lotteries organised by the Union or state
41. Trade and commerce with foreign countries
42. Inter-state trade and commerce
43. Trading corporations, including banking, insurance and financial corporations but not including co-operative societies
44. Corporations, whether trading or not, with objects not confined to one state
45. Banking
49. Patents, inventions and designs; copyright; trade-marks and merchandise marks
50. Establishment of standards of weight and measure
51. Establishment of standards of quality for goods to be exported out of India or transported from one state to another
52. Industries, the control of which by the Union is in the public interest
53. Oil fields and mineral oil resources; petroleum and petroleum products; other liquids and substances which are inflammable

54. Regulation of mines and mineral development in the public interest
55. Regulation of labour and safety in mines and oil fields
56. Regulation and development of interstate rivers and river valleys
57. Fishing and fisheries beyond territorial waters
58. Manufacture, supply and distribution of salt by Union and other agencies
59. Cultivation and manufacture of opium and its export
60. Sanctioning of cinematograph films for exhibition
61. Industrial disputes concerning Union employees
62. National Library, the Indian Museum, the Imperial War Museum, the Victoria Memorial and the Indian War Memorial, and any other like institution of national importance
63. Benaras Hindu University, the Aligarh Muslim University and the Delhi University; any other institution of national importance
64. Scientific or technical education institutions of national importance
65. Union agencies and institutions for training, research or detection of crime
66. Standards in institutions for higher education or research and scientific and technical institutions
68. The Survey of India, the Geological, Botanical, Zoological and Anthropological Surveys of India; Meteorological organisations
69. Census
70. Union Public Services; All-India Services; Union Public Service Commission
71. Union pensions
72. Elections to Parliament, the legislatures of states and the offices of President and Vice-President; the Election Commission
73. Salaries and allowances of members and presiding officers of Parliament
74. Powers, privileges and immunities of each House of Parliament and of the members and the committees of

each House

75. Emoluments and service conditions of the president, governors, the ministers for the Union and the Comptroller and Auditor General
76. Audit of the accounts of the Union and of the states
77. Organisation, jurisdiction and powers of the Supreme Court
78. Organisation of the high courts
79. Extension of the jurisdiction of a high court to any union territory
80. Extension of the powers and jurisdiction of members of a police force belonging to any state to any area outside that state
81. Inter-state migration; inter-state quarantine
82. Taxes on income other than agricultural income
83. Duties of customs including export duties
84. Duties of excise on the following goods manufactured or produced in India, namely:-
    (a) petroleum crude
    (b) high speed diesel
    (c) motor spirit (commonly known as petrol)
    (d) natural gas
    (e) aviation turbine fuel; and
    (f) tobacco and tobacco products
87. Estate duty in respect of property other than agricultural land
88. Duties in respect of succession to property other than agricultural land
89. Terminal taxes on goods or passengers, carried by railway, sea or air; taxes on railway fares and freights
90. Taxes other than stamp duties on transactions in stock exchanges and futures markets
91. Rates of stamp duty in respect of bills of exchange, cheques, promissory notes, bills of lading, letters of credit, policies of insurance, transfer of shares, debentures, proxies and receipts
92. (Omitted)

92A. Taxes on the sale or purchase of goods other than newspapers, where such sale or purchase takes place in the course of inter-state trade or commerce

92B. Taxes on the consignment of goods in the course of inter-state trade or commerce

92C. (Omitted)

93. Offences against laws with respect to any of the matters in this list

94. Inquiries, surveys and statistics for the purpose of any of the matters in this list

95. Jurisdiction and powers of all courts (except the Supreme Court) with respect to any of the matters in this list; admiralty jurisdiction

96. Fees in respect of any of the matters in this list, but not including fees taken in any court

97. Any other matter not enumerated in List II or List III including any tax not mentioned in either of those lists

STATE LIST (LIST-II)

1. Public order
2. Police
3. Officers and servants of the high court
7. Pilgrimages, other than pilgrimages to places outside India
8. Intoxicating liquors
9. Relief of the disabled and unemployable
10. Burials and burial grounds
11. (Omitted)
12. Libraries, museums and other similar institutions; ancient and historical monuments and records other than those of national importance
13. Communications, that is, roads, bridges, ferries and other means of communication not specified in List I
14. Agriculture, including agricultural education and research
15. Preservation of stock and prevention of animal diseases
16. Pounds and the prevention of cattle trespass
17. Water, that is, water supplies, irrigation and canals, drainage and embankments, water storage and water power
18. Land, that is, right in or over land, land tenures and the collection of rents
19. (Omitted)
20. (Omitted)
21. Fisheries
22. Courts of wards
23. Regulation of mines and mineral development
24. Industries
25. Gas and gas-works
26. Trade and commerce within the state
27. Production, supply and distribution of goods
28. Markets and fairs
29. (Omitted)

30. Money-lending and money-lenders; relief of agricultural indebtedness
31. Inns and inn-keepers
32. Corporation, other than those specified in List I, and universities; unincorporated trading, literacy, scientific, religious and other societies and associations; co-operative societies
36. (Omitted)
37. Elections to the legislature of the state
38. Salaries and allowances of members and presiding officers of the legislature of the state
39. Powers, privileges and immunities of the legislature of the state and of the members and the committees thereof
40. Salaries and allowances of ministers for the state
41. States public services; State Public Service Commission
42. State pensions
43. Public debt of the state
44. Treasure trove
45. Land revenue, including maintenance of land records
46. Taxes on agricultural income
47. Duties in respect of succession to agricultural land
48. Estate duty in respect of agricultural land
49. Taxes on lands and buildings
50. Taxes on mineral rights
51. Duties of excise on alcoholic liquors for human consumption; opium, Indian hemp and other narcotic drugs and narcotics, but not including medicinal and toilet preparations containing alcohol
52. (Omitted)
53. Taxes on the consumption or sale of electricity
54. Taxes on the sale of petroleum crude, high speed diesel, motor spirit (commonly known as petrol), natural gas, aviation turbine fuel and alcoholic liquor for human consumption, but not including sale in the course of inter-state trade or commerce or sale in the course of international trade or commerce of such goods

55. (Omitted)
60. Taxes on professions, trades, callings and employments
61. Capitation taxes
62. Taxes on entertainments and amusements to the extent levied and collected by a Panchayat or a Municipality or a Regional Council or a District Council
63. Rates of stamp duty in respect of documents other than those specified in List I
64. Offences against laws with respect to any of the matters in this list
65. Jurisdiction and powers of all courts, except the Supreme Court, with respect to any of the matters in this list
66. Fees in respect of any of the matters in this list, but not including fees taken in any court

CQNCURRENT LIST (LIST-M)

1. Criminal Law, including all matters included in the Indian Penal Code
2. Criminal procedure, including all matters included in the Code of Criminal Procedure
3. Preventive detention for reasons connected with the security of a state, the maintenance of public order, or the maintenance of supplies and services essential to the community
4. Removal from one state to another state of prisoners and accused persons
5. Marriage and divorce; infants and minors; adoption; wills, intestacy and succession; joint family and partition
6. Transfer of property other than agricultural land; registration of deeds and documents
7. Contracts
8. Actionable wrongs
9. Bankruptcy and insolvency
10. Trust and Trustees
11. Administrators-general and official trustees

11A. Administration of justice; constitution and organisation of all courts, except the Supreme Court and the high courts

12. Evidence and oaths; recognition of laws, public acts and records, and judicial proceedings
13. Civil procedure, including all matters included in the Code of Civil Procedure
14. Contempt of court, but not including contempt of the Supreme Court
15. Vagrancy; nomadic and migratory tribes
16. Lunacy and mental deficiency
17. Prevention of cruelty to animals

17A. Forests

17B. Protection of wild animals and birds

18. Adulteration of foodstuffs and other goods
19. Drugs and poisons

20. Economic and social planning
20A. Population control and family planning
21. Commercial and industrial monopolies, combines and trusts
22. Trade unions; industrial and labour disputes
23. Social security and social insurance; employment and unemployment
24. Welfare of labour including conditions of work, provident funds, employers" liability, workmen's compensation, invalidity and old age pensions and maternity benefits
25. Education, including technical education, medical education and universities
26. Legal, medical and other professions
27. Relief and rehabilitation of persons
28. Charitable institutions, religious endowments and religious institutions
29. Infectious or contagious diseases or pests affecting men, animals or plants
30. Vital statistics including registration of births and deaths
31. Ports other than major ports
32. Shipping and navigation on inland waterways
33. Trade and commerce in, and the production, supply and distribution of, foodstuffs, including edible oilseeds and oils; cattle fodder; raw cotton, and cotton seeds; and raw jute
33A. Weights and measures except establishment of standards
34. Price control
35. Mechanically propelled vehicles including the principles on which taxes on such vehicles are to be levied
36. Factories
37. Boilers
38. Electricity
39. Newspapers, books and printing presses
40. Archaeological sites and remains other than those of national importance
41. Evacuee property (including agricultural land)

42. Acquisition and requisitioning of property
43. Recovery in a state of claims in respect of taxes and other public demands
44. Stamp duties other than duties or fees collected by means of judicial stamps, but not including rates of stamp duty
45. Inquiries and statistics for the purposes of any of the matters specified in List II or List III
46. Jurisdiction and powers of all courts, except the Supreme Court, with respect to any of the matters in this list
47. Fees in respect of any of the matters in this list, but not including fees taken in any court

Appendix III Table of Precedence

The Table of Precedence is related to the rank and order of the officials of the Union and State Governments. But, the order in this Table is meant for state and ceremonial occassions and has no application in the day-to-day business of Government. The present notification on this subject was issued on 26 July, 1979. This notification superseded all the previous notifications and was also amended many times. The updated version of the Table, containing all the amendments made therein so far (2019), is given below:

1. President
2. Vice-President
3. Prime Minister
4. Governors of states within their respective states
5. Former presidents

5A. Deputy Prime Minister

6. Chief Justice of India Speaker of Lok Sabha
7. Cabinet Ministers of the Union
   Chief Ministers of States within their respective States
   Vice-Chairperson, NITI Aayog Former Prime Ministers
   Leaders of Opposition in Rajya Sabha and Lok Sabha

7A. Holders of Bharat Ratna decoration

8. Ambassadors Extraordinary and Plenipotentiary and High Commissioners of Commonwealth countries accredited to India
   Chief Ministers of States outside their respective States
   Governors of States outside their respective States
9. Judges of Supreme Court

9A. Chairperson, Union Public Service Commission
   Chief Election Commissioner
   Comptroller & Auditor General of India

10. Deputy Chairman, Rajya Sabha
    Deputy Chief Ministers of States Deputy Speaker, Lok Sabha
    Members of the NITI Aayog

Ministers of State of the Union (and any other Minister in the Ministry of Defence for defence matters)

11. Attorney General of India
    Cabinet Secretary
    Lieutenant Governors within their respective Union Territories
12. Chiefs of Staff holding the rank of full General or equivalent rank
13. Envoys Extraordinary and Ministers Plenipotentiary accredited to India
14. Chairmen and Speakers of State Legislatures within their respective States
    Chief Justices of High Courts within their respective jurisdictions
15. Cabinet Ministers in States within their respective States
    Chief Ministers of Union Territories and Chief Executive Councillor, Delhi within their respective Union Territories
    Deputy Ministers of the Union
16. Officiating Chiefs of Staff holding the rank of Lieutenant General or equivalent rank
17. Chairman, Central Administrative Tribunal
    Chairman, Minorities Commission
    Chairperson, National Commission for Scheduled Castes
    Chairperson, National Commission for Scheduled Tribes
    Chief Justices of High Courts outside their respective jurisdictions
    Puisne Judges of High Courts within their respective jurisdictions
18. Cabinet Ministers in States outside their respective States
    Chairmen and Speakers of State Legislatures outside their respective States
    Chairman, Monopolies and Restrictive Trade Practices Commission
    Deputy Chairmen and Deputy Speakers of State

Legislatures within their respective States
Ministers of State in States within their respective States
Ministers of Union Territories and Executive Councilors, Delhi, within their respective Union Territories
Speakers of Legislative Assemblies in Union Territories and Chairman of Delhi Metropolitan Council within their respective Union Territories

19. Chief Commissioners of Union Territories not having Councils of Ministers, within their respective Union Territories
Deputy Ministers in States within their respective States
Deputy Speakers of Legislative Assemblies in Union Territories and Deputy Chairman of Metropolitan Council, Delhi, within their respective Union Territories
20. Deputy Chairmen and Deputy Speakers of State Legislatures, outside their respective States
Ministers of State in States outside their respective States
Puisne Judges of High Courts outside their respective jurisdictions
21. Members of Parliament
22. Deputy Ministers in States outside their respective States
23. Army Commanders / Vice-Chief of the Army Staff or equivalent in other services Chief Secretaries to State Governments within their respective States Commissioner for Linguistic Minorities Commissioner for Scheduled Castes and Scheduled Tribes Members, Minorities Commission Members, National Commission for Scheduled Castes
Members, National Commission for Scheduled Tribes
Officers of the rank of full General or equivalent rank
Secretaries to the Government of India (including officers holding this office ex-officio)
Secretary, Minorities Commission Secretary, Scheduled Castes Commission Secretary, Scheduled Tribes Commission Secretary to the President Secretary to the

Prime Minister Secretary, Rajya Sabha/Lok Sabha Solicitor General

Vice-Chairman, Central Administrative Tribunal

24. Officers of the rank of Lieutenant General or equivalent rank
25. Additional Secretaries to the Government of India

Additional Solicitor General Advocate Generals of States Chairman, Tariff Commission Charge d" Affairs and Acting High Commissioners a pied and ad interim Chief Ministers of Union Territories and Chief Executive Councillor, Delhi, outside their respective Union Territories Chief Secretaries of State Governments outside their respective States

Deputy Comptroller and Auditor General Deputy Speakers of Legislative Assemblies in Union Territories and Deputy Chairman, Delhi Metropolitan Council, outside their respective Union Territories Director, Central Bureau of Investigation Director General, Border Security Force Director General, Central Reserve Police

Director, Intelligence Bureau

Lieutenant Governors outside their respective Union Territories

Members, Central Administrative Tribunal

Members, Monopolies and Restrictive Trade Practices Commission Members, Union Public Service Commission

Ministers of Union Territories and Executive Councillors, Delhi, outside their respective Union Territories

Principal Staff Officers of the Armed Forces of the rank of Major General or equivalent rank

Speakers of Legislative Assemblies in Union Territories and Chairman of Delhi Metropolitan Council, outside their respective Union Territories

26. Joint Secretaries to the Government of India and officers of equivalent rank.

Officers of the rank of Major-General or equivalent rank

Appendix IV Constitutional Amendments at a Glance

Amendment Number and Year	Amended Provisions of the Constitution
First Amendment Act, 1951	1. Empowered the state to make special provisions for the advancement of socially and economically backward classes. 2. Provided for the saving of laws providing for acquisition of estates, etc. 3. Added Ninth Schedule to protect the land reform and other laws included in it from the judicial review. 4. Added three more grounds of restrictions on freedom of speech and expression, viz., public order, friendly relations with foreign states and incitement to an offence. Also, made the restrictions “reasonable” and thus, justiciable in nature. 5. Provided that state trading and nationalisation of any trade or business by the state is not to be invalid on the ground of violation of the right to trade or business.
Second Amendment Act, 1952	Readjusted the scale of representation in the Lok Sabha by providing that one member could represent even more than 7,50,000 persons.

Amendment Number and Year	Amended Provisions of the Constitution
Third Amendment Act, 1954	Empowered the Parliament to control the production, supply and distribution of the foodstuffs, cattle fodder, raw cotton, cotton seed and raw jute in the public interest.
Fourth Amendment Act, 1955	1. Made the scale of compensation given in lieu of compulsory acquisition of private property beyond the scrutiny of courts. 2. Authorised the state to nationalise any trade. 3. Included some more Acts in the Ninth Schedule. 4. Extended the scope of Article 31 A (savings of laws).
Fifth Amendment Act, 1955	Empowered the president to fix the time-limit for the state legislatures to express their views on the proposed Central legislation affecting the areas, boundaries and names of the states.
Sixth Amendment Act, 1956	Included a new subject in the Union list i.e., taxes on the sale and purchase of goods in the course of inter-state trade and commerce and restricted the state's power in this regard.

Amendment Number and Year	Amended Provisions of the Constitution
Seventh Amendment Act, 1956	1. Abolished the existing classification of states into four categories i.e., Part A, Part B, Part C and Part D states, and reorganised them into 14 states and 6 union territories. 2. Extended the jurisdiction of high courts to union territories. 3. Provided for the establishment of a common high court for two or more states. 4. Provided for the appointment of additional and acting judges of the high court.
Eighth Amendment Act, 1960	Extended the reservation of seats for the SCs and STs, and special representation for the Anglo-Indians in the Lok Sabha and the state legislative assemblies for a period of ten years (i.e., up to 1970).
Ninth Amendment Act, 1960	Facilitated the cession of Indian territory of Berubari Union (located in West Bengal) to Pakistan as provided in the Indo-Pakistan Agreement (1958).
Tenth Amendment Act, 1961	Incorporated Dadra and Nagar Haveli in the Indian Union.

Amendment Number and Year	Amended Provisions of the Constitution
Eleventh Amendment Act, 1961	1. Changed the procedure of election of the vice-president by providing for an electoral college instead of a joint meeting of the two Houses of Parliament. 2. Provided that the election of the president or vice-president cannot be challenged on the ground of any vacancy in the appropriate electoral college.
Twelfth Amendment Act, 1962	Incorporated Goa, Daman and Diu in the Indian Union.
Thirteenth Amendment Act, 1962	Gave the status of a state to Nagaland and made special provisions for it.
Fourteenth Amendment Act, 1962	1. Incorporated Puducherry in the Indian Union. 2. Provided for the creation of legislatures and council of ministers for the Union Territories of Himachal Pradesh, Manipur, Tripura, Goa, Daman and Diu, and Puducherry.

Amendment Number and Year	Amended Provisions of the Constitution
Fifteenth Amendment Act, 1963	1. Enabled the high courts to issue writs to any person or authority even outside its territorial jurisdiction if the cause of action arise within its territorial limits. 2. Increased the retirement age of high court judges from 60 to 62 years. 3. Provided for appointment of retired judges of the high courts as acting judges of the same court. 4. Provided for compensatory allowance to judges who are transferred from one high court to another. 5. Enabled the retired judge of a high court to act as adhoc judge of the Supreme Court. 6. Provided for the procedure for determining the age of the Supreme Court and high court judges.
Sixteenth Amendment Act, 1963	1. Empowered the state to impose further restriction on the rights to freedom of speech and expression, to assemble peaceably and to form associations in the interests of sovereignty and integrity of India. 2. Included sovereignty and integrity in the forms of oaths or affirmations to be subscribed by contestants to the legislatures, members of the legislatures, ministers, judges and CAG of India.

Amendment Number and Year	Amended Provisions of the Constitution
Seventeenth Amendment Act, 1964	1. Prohibited the acquisition of land under personal cultivation unless the market value of the land is paid as compensation. 2. Included 44 more Acts in the Ninth Schedule.
Eighteenth Amendment Act, 1966	Made it clear that the power of Parliament to form a new state also includes a power to form a new state or union territory by uniting a part of a state or a union territory to another state or union territory.
Nineteenth Amendment Act, 1966	Abolished the system of Election Tribunals and vested the power to hear election petitions in the High Courts.
Twentieth Amendment Act, 1966	Validated certain appointments of district judges in the UP which were declared void by the Supreme Court.
Twenty-First Amendment Act, 1967	Included sindhi as the 15th language in the Eight Schedule.
Twenty-Second Amendment Act, 1969	Facilitated the creation of a new autonomous State of Meghalaya within the State of Assam.
Twenty-Third Amendment Act, 1969	Extended the reservation of seats for the SCs and STs, and special representation for the Anglo-Indians in the Lok Sabha and the state legislative assemblies for a further period of ten years (i.e., up to 1980).

Amendment Number and Year	Amended Provisions of the Constitution
Twenty-Fourth Amendment Act, 1971	1. Affirmed the power of Parliament to amend any part of the Constitution including fundamental rights. 2. Made it compulsory for the president to give his assent to a Constitutional Amendment Bill.
Twenty-Fifth Amendment Act, 1971	1. Curtailed the fundamental right to property. 2. Provided that any law made to give effect to the Directive Principles contained in Article 39 (b) or (c) cannot be challenged on the ground of violation of the rights guaranteed by Articles 14, 19 and 31.
Twenty-Sixth Amendment Act, 1971	Abolished the privy purses and privileges of the former rulers of princely states.
Twenty-Seventh Amendment, 1971	1. Empowered the administrators of certain union territories to promulgate ordinances. 2. Made certain special provisions for new Union Territories of Arunachal Pradesh and Mizoram. 3. Authorised the Parliament to create the legislative assembly and the council of ministers for the new state of Manipur.
Twenty-Eighth Amendment Act, 1972	Abolished the special privileges of ICS officers and empowered the Parliament to determine their service conditions.

Amendment Number and Year	Amended Provisions of the Constitution
Twenty-Ninth Amendment Act, 1972	Included two Kerala Acts on land reforms in the Ninth Schedule.
Thirtieth Amendment Act, 1972	Did away with the provision which allowed appeal to the Supreme Court in civil cases involving an amount of ‘20,000, and provided instead that an appeal can be filed in the Supreme Court only if the case involves a substantial question of law.
Thirty-First Amendment Act, 1972	Increased the number of Lok Sabha seats from 525 to 545.
Thirty-Second Amendment Act, 1973	Made special provisions to satisfy the aspirations of the people of the Telengana region in Andhra Pradesh.
Thirty-Third Amendment Act, 1974	Provided that the resignation of the members of Parliament and the state legislatures may be accepted by the Speaker/Chairman only if he is satisfied that the resignation is voluntary or genuine.
Thirty-Fourth Amendment Act, 1974	Included twenty more land tenure and land reforms acts of various states in the Ninth Schedule.
Thirty-Fifth Amendment Act, 1974	Terminated the protectorate status of Sikkim and conferred on it the status of an associate state of the Indian Union. The Tenth Schedule was added laying down the terms and conditions of association of Sikkim with the Indian Union.

Amendment Number and Year	Amended Provisions of the Constitution
Thirty-Sixth Amendment Act, 1975	Made Sikkim a full-fledged State of the Indian Union and omitted the Tenth Schedule.
Thirty-Seventh Amendment Act, 1975	Provided legislative assembly and council of ministers for the Union Territory of Arunachal Pradesh.
Thirty-Eighth Amendment Act, 1975	1. Made the declaration of emergency by the president non-justiciable. 2. Made the promulgation of ordinances by the president, governors and administrators of union territories non-justiciable. 3. Empowered the president to declare different proclamations of national emergency on different grounds simultaneously.
Thirty-Ninth Amendment Act, 1975	1. Placed the disputes relating to the president, vice-president, prime minister and Speaker beyond the scope of the judiciary. They are to be decided by such authority as may be determined by the Parliament. 2. Included certain Central acts in the Ninth Schedule.

Amendment Number and Year	Amended Provisions of the Constitution
Fortieth Amendment Act, 1976	1. Empowered the Parliament to specify from time to time the limits of the territorial waters, the continental shelf, the exclusive economic zone (EEZ) and the maritime zones of India. 2. Included 64 more Central and state laws, mostly relating to land reforms, in the Ninth Schedule.
Forty-First Amendment Act, 1976	Raised the retirement age of members of State Public Service Commission and Joint Public Service Commission from 60 to 62.
Forty-Second Amendment Act, 1976 (The most comprehensive amendment made so far to the Constitution; it is known as "Mini-Constitution'; it gave effect to the recommendations of *Swaran Singh Committee*.)	1. Added three new words (i.e., socialist, secular and integrity) in the Preamble. 2. Added Fundamental Duties by the citizens (new Part IV A). 3. Made the president bound by the advise of the cabinet. 4. Provided for administrative tribunals and tribunals for other matters (Added Part XIV A). 5. Froze the seats in the Lok Sabha and state legislative assemblies on the basis of 1971 census till 2001. 6. Made the constitutional amendments beyond judicial scrutiny. 7. Curtailed the power of judicial review and writ jurisdiction of the Supreme Court and high courts.

Amendment Number and Year	Amended Provisions of the Constitution
	8. Raised the tenure of Lok Sabha and state legislative assemblies from 5 to 6 years. 9. Provided that the laws made for the implementation of Directive Principles cannot be declared invalid by the courts on the ground of violation of some Fundamental Rights. 10. Empowered the Parliament to make laws to deal with anti-national activities and such laws are to take precedence over Fundamental Rights. 11. Added three new Directive Principles viz., equal justice and free-legal aid, participation of workers in the management of industries and protection of environment, forests and wild life. 12. Facilitated the proclamation of national emergency in a part of territory of India. 13. Extended the one-time duration of the President's rule in a state from 6 months to one year. 14. Empowered the Centre to deploy its armed forces in any state to deal with a grave situation of law and order. 15. Shifted five subjects from the state list to the concurrent list, viz, education, forests, protection of wild animals and birds, weights and

Amendment Number and Year	Amended Provisions of the Constitution
	measures and administration of justice, constitution and organisation of all courts except the Supreme Court and the high courts. 16. Did away with the requirement of quorum in the Parliament and the state legislatures. 17. Empowered the Parliament to decide from time to time the rights and privileges of its members and committees. 18. Provided for the creation of the All-India Judicial Service. 19. Shortened the procedure for disciplinary action by taking away the right of a civil servant to make representation at the second stage after the inquiry (i.e., on the penalty proposed).
Forty-Third Amendment Act, 1977 *(Enacted by the Janata Government to nullify some of the distortions introduced by the 42nd Amendment Act of 1976)*	1. Restored the jurisdiction of the Supreme Court and the high courts in respect of judicial review and issue of writs. 2. Deprived the Parliament of its special powers to make laws to deal with anti-national activities.
Forty-Fourth Amendment Act, 1978 (*Enacted by the Janata*	1. Restored the original term of the Lok Sabha and the state legislative assemblies (i.e., 5 years)."

Government mainly to nullify some of the other distortions introduced by the 42nd Amendment Act, 1976)

Amended Provisions of the Constitution

2. Restored the provisions with regard to quorum in the Parliament and state legislatures.
3. Omitted the reference to the British House of Commons in the provisions pertaining to the parliamentary privileges.
4. Gave constitutional protection to publication in newspaper of true reports of the proceedings of the Parliament and the state legislatures.
5. Empowered the president to send back once the advice of cabinet for reconsideration. But, the reconsidered advice is to be binding on the president.
6. Deleted the provision which made the satisfaction of the president, governor and administrators final in issuing ordinances.
7. Restored some of the powers of the Supreme Court and high courts.
8. Replaced the term “internal disturbance” by “armed rebellion” in respect of national emergency.
9. Made the President to declare a national emergency only on the written recommendation of the cabinet.
10. Made certain procedural safeguards with respect to national emergency and President’s rule.

Amendment Number and Year	Amended Provisions of the Constitution
	11. Deleted the right to property from the list of Fundamental Rights and made it only a legal right. 12. Provided that the fundamental rights guaranteed by Articles 20 and 21 cannot be suspended during a national emergency. 13. Omitted the provisions which took away the power of the court to decide the election disputes of the president, the vice-president, the prime minister and the Speaker of the Lok Sabha.
Forty-Fifth Amendment Act, 1980	Extended the reservation of seats for the SCs and STs and special representation for the Anglo-Indians in the Lok Sabha and the state legislative assemblies for a further period of ten years (i.e., up to 1990).
Forty-Sixth Amendment Act, 1982	1. Enabled the states to plug loopholes in the laws and realise sales tax dues. 2. Brought about some uniformity in tax rates on certain items.
Forty-Seventh Amendment Act, 1984	Included 14 land reforms Acts of various states in the Ninth Schedule.
Forty-Eighth Amendment Act, 1984	Facilitated the extension of President's rule in Punjab beyond one year without meeting the two special conditions for such extension.

Amendment Number and Year	Amended Provisions of the Constitution
Forty-Ninth Amendment Act, 1984	Gave a constitutional sanctity to the Autonomous District Council in Tripura.
Fiftieth Amendment Act, 1984	Empowered the Parliament to restrict the Fundamental Rights of persons employed in intelligence organisations and telecommunication systems set up for the armed forces or intelligence organisations.
Fifty-First Amendment Act, 1984	Provided for reservation of seats in the Lok Sabha for STs in Meghalaya, Arunachal Pradesh, Nagaland and Mizoram as well as in the Legislative Assemblies of Meghalaya and Nagaland.
Fifty-Second Amendment Act, 1985 (*popularly known as Anti-Defection Law)*	Provided for disqualification of members of Parliament and state legislatures on the ground of defection and added a new Tenth Schedule containing the details in this regard.
Fifty-Third Amendment Act, 1986	Made special provisions in respect of Mizoram and fixed the strength of its Assembly at a minimum of 40 members.
Fifty-Fourth Amendment Act, 1986	Increased the salaries of the Supreme Court and high court judges and enabled the Parliament to change them in future by an ordinary law.
Fifty-Fifth Amendment Act, 1986	Made special provisions in respect of Arunachal Pradesh and fixed the strength of its Assembly at a minimum of 30 members.

Amendment Number and Year	Amended Provisions of the Constitution
Fifty-Sixth Amendment Act, 1987	Fixed the strength of the Goa Legislative Assembly at a minimum of 30 members.
Fifty-Seventh Amendment Act, 1987	Reserved seats for the STs in the legislative assemblies of the states of Arunachal Pradesh, Meghalaya, Mizoram and Nagaland.
Fifty-Eighth Amendment Act, 1987	Provided for an authoritative text of the Constitution in hindi language and gave the same legal sanctity to the Hindi version of the Constitution.
Fifty-Ninth Amendment Act, 1988	1. Facilitated the extension of President's Rule in Punjab up to three years. 2. Provided for the declaration of national emergency in Punjab on the ground of internal disturbance.
Sixtieth Amendment Act, 1988	Increased the ceiling of taxes on professions, trades, callings and employments from ‘250 per annum to ‘2,500 per annum.
Sixty-First Amendment Act, 1989	Reduced the voting age from 21 years to 18 years for the Lok Sabha and state legislative assembly elections.
Sixty-Second Amendment Act, 1989	Extended the reservation of seats for the SCs and STs and special representation for the Anglo-Indians in the Lok Sabha and the state legislative assemblies for the further period of ten years (i.e., up to 2000).

Amendment Number and Year	Amended Provisions of the Constitution
Sixty-Third Amendment Act, 1989	Repealed the changes introduced by the 59th Amendment Act of 1988 in relation to Punjab. In other words, Punjab was brought at par with the other states in respect of emergency provisions.
Sixty-Fourth Amendment Act, 1990	Facilitated the extension of the President's rule in Punjab upto a total period of three years and six months.
Sixty-Fifth Amendment Act, 1990	Provided for the establishment of a multi-member National Commission for SCs and STs in the place of a Special Officer for SCs and STs.
Sixty-Sixth Amendment Act, 1990	Included 55 more land reforms Acts of various states in the Ninth Schedule.
Sixty-Seventh Amendment Act, 1990	Facilitated the extension of the President's rule in Punjab up to a total period of four years.
Sixty-Eighth Amendment Act, 1991	Facilitated the extension of the President's rule in Punjab up to a total period of five years.
Sixty-Ninth Amendment Act, 1991	Accorded a special status to the Union Territory of Delhi by designing it as the National Capital Territory of Delhi. The amendment also provided for the creation of a 70-member legislative assembly and a 7-member council of ministers for Delhi.

Amendment Number and Year	Amended Provisions of the Constitution
Seventieth Amendment Act, 1992	Provided for the inclusion of the members of the Legislative Assemblies of National Capital Territory of Delhi and the Union Territory of Puducherry in the electoral college for the election of the president.
Seventy-First Amendment Act, 1992	Included konkani, manipuri and nepali languages in the Eight Schedule. With this, the total number of scheduled languages increased to 18.
Seventy-Second Amendment Act, 1992	Provided for reservation of seats for the STs in the Legislative Assembly of Tripura.
Seventy-Third Amendment Act, 1992	Granted constitutional status and protection to the panchayati raj institutions. For this purpose, the Amendment has added a new Part-IX entitled as “the panchayats” and a new Eleventh Schedule containing 29 functional items of the panchayats.
Seventy-Fourth Amendment Act, 1992	Granted constitutional status and protection to the urban local bodies. For this purpose, the Amendment has added a new Part IX-A entitled as “the municipalities” and a new Twelfth Schedule containing 18 functional items of the municipalities.
Seventy-Fifth Amendment Act, 1994	Provided for the establishment of rent tribunals for the adjudication of disputes with respect to rent, its regulation and control and tenancy issues including the rights, title and interest of landlords and tenants.

Amendment Number and Year	Amended Provisions of the Constitution
Seventy-Sixth Amendment Act, 1994	Included the Tamil Nadu Reservation Act of 1994 (which provides for 69 per cent reservation of seats in educational institutions and posts in state services) in the Ninth Schedule to protect it from judicial review. In 1992, the Supreme Court ruled that the total reservation should not exceed 50 per cent.
Seventy-Seventh Amendment Act, 1995	Provided for reservation in promotions in government jobs for SCs and STs. This amendment nullified the Supreme Court ruling with regard to reservation in promotions.
Seventy-Eighth Amendment Act, 1995	Included 27 more land reforms Acts of various states in the Ninth Schedule. With this, the total number of Acts in the Schedule increased to 282. But, the last entry is numbered 284.
Seventy-Ninth Amendment Act, 1999	Extended the reservation of seats for the SCs and STs and special representation for the Anglo-Indians in the Lok Sabha and the state legislative assemblies for a further period of ten years (i.e., up to 2010).
Eightieth Amendment Act, 2000	Provided for an “alternative scheme of devolution” of revenue between the Centre and states. This was enacted on the basis of the recommendations of the Tenth Finance Commission which has recommended that out of the total income obtained from Central taxes and duties, twenty-nine per cent should be distributed among the states.

Amendment Number and Year	Amended Provisions of the Constitution
Eighty-First Amendment Act, 2000	Empowered the state to consider the unfilled reserved vacancies of a year as a separate class of vacancies to be filled up in any succeeding year or years. Such class of vacancies are not to be combined with the vacancies of the year in which they are being filled up to determine the ceiling of 50 per cent reservation on total number of vacancies of that year. In brief, this amendment ended the 50 per cent ceiling on reservation in backlog vacancies.
Eighty-Second Amendment Act, 2000	Provided for making of any provision in favour of the SCs and STs for relaxation in qualifying marks in any examination or lowering the standards of evaluation, for reservation in matters of promotion to the public services of the Centre and the states.
Eighty-Third Amendment Act, 2000	Provided that no reservation in panchayats need be made for SCs in Arunachal Pradesh. The total population of the state is tribal and there are no SCs.

Amendment Number and Year	Amended Provisions of the Constitution
Eighty-Fourth Amendment Act, 2001	Extended the ban on readjustment of seats in the Lok Sabha and the state legislative assemblies for another 25 years (i.e., up to 2026) with the same objective of encouraging population limiting measures. In other words, the number of seats in the Lok Sabha and the assemblies are to remain same till 2026. It also provided for the readjustment and rationalisation of territorial constituencies in the states on the basis of the population figures of 1991 census.
Eighty-Fifth Amendment Act, 2001	Provided for “consequential seniority” in the case of promotion by virtue of rule of reservation for the government servants belonging to the SCs and STs with retrospective effect from June 1995.

Amendment Number and Year	Amended Provisions of the Constitution
Eighty-Sixth Amendment Act, 2002	1. Made elementary education a fundamental right. The newly-added Article 21-A declares that “the State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may determine”. 2. Changed the subject matter of Article 45 in Directive Principles. It now reads—“The State shall endeavour to provide early childhood care and education for all children until they complete the age of six years”. 3. Added a new fundamental duty under Article 51-A which reads—“It shall be the duty of every citizen of India who is a parent or guardian to provide opportunities for education to his child or ward between the age of six and fourteen years”.
Eighty-Seventh Amendment Act, 2003	Provided for the readjustment and rationalisation of territorial constituencies in the states on the basis of the population figures of 2001 census and not 1991 census as provided earlier by the 84th Amendment Act of 2001.
Eighty-Eighth Amendment Act, 2003	Made a provision for service tax. Taxes on services are levied by the Centre. But, their proceeds are collected as well as appropriated by both the Centre and the states in accordance with the principles formulated by parliament.

Amendment Number and Year	Amended Provisions of the Constitution
Eighty-Ninth Amendment Act, 2003	Bifurcated the erstwhile combined National Commission for Scheduled Castes and Scheduled Tribes into two separate bodies, namely, National Commission for Scheduled Castes and National Commission for Scheduled Tribes. Both the Commissions consist of a Chairperson, a ViceChairperson and three other members. They are appointed by the President.
Ninetieth Amendment Act, 2003	Provided for maintaining the erstwhile representation of the Scheduled Tribes and nonScheduled Tribes in the Assam legislative assembly from the Bodoland Territorial Areas District.
Ninety-First Amendment Act, 2003	Made the following provisions to limit the size of Council of Ministers, to debar defectors from holding public offices, and to strengthen the anti-defection law: 1. The total number of ministers, including the Prime Minister, in the Central Council of Ministers shall not exceed 15% of the total strength of the Lok Sabha. 2. A member of either house of Parliament belonging to any political party who is disqualified on the ground of defection shall also be disqualified to be appointed as a minister. 3. The total number of ministers, including the Chief Minister, in the Council of Ministers in a state shall

Amendment Number and Year	Amended Provisions of the Constitution
	not exceed 15% of the total strength of the legislative Assembly of that state. But, the number of ministers, including the Chief Minister, in a state shall not be less than 12. 4. A member of either House of a state legislature belonging to any political party who is disqualified on the ground of defection shall also be disqualified to be appointed as a minister. 5. A member of either House of Parliament or either House of a State Legislature belonging to any political party who is disqualified on the ground of defection shall also be disqualified to hold any remunerative political post. The expression “remunerative political post” means (i) any office under the central government or a state government where the salary or remuneration for such office is paid out of the public revenue of the concerned government; or (ii) any office under a body, whether incorporated or not, which is wholly or partially owned by the central government or a state government and the salary or remuneration for such office is paid by such body, except where such salary or remuneration paid is compensatory in nature.

Amendment Number and Year	Amended Provisions of the Constitution
	6. The provision of the Tenth Schedule (anti-defection law) pertaining to exemption from disqualification in case of split by one-third members of legislature party has been deleted. It means that the defectors have no more protection on grounds of splits.
Ninety-Second Amendment Act, 2003	Included four more languages in the Eighth Schedule. They are Bodo, Dogri (Dongri), Mathilli (Maithili) and Santhali. With this, the total number of constitutionally recognised languages increased to 22.
Ninety-Third Amendment Act, 2005	Empowered the state to make special provisions for the socially and educationally backward classes or the Scheduled Castes or the Scheduled Tribes in educational institutions including private educational institutions (whether aided or unaided by the state), except the minority educational institutions.
Ninety-Fourth Amendment Act, 2006	Freed Bihar from the obligation of having a tribal welfare minister and extended the same provision to Jharkhand and Chhattisgarh. This provision will now be applicable to the two newly formed states and Madhya Pradesh and Odisha, where it has already been in force.

Amendment Number and Year	Amended Provisions of the Constitution
Ninety-Fifth Amendment Act, 2009	Extended the reservation of seats for the SCs and STs and special representation for the Anglo-Indians in the Lok Sabha and the state legislative assemblies for a further period of ten years i.e., upto 2020.
Ninety-Sixth Amendment Act, 2011	Substituted “Odia” for “Oriya”. Consequently, the “Oriya” language in the Eighth Schedule shall be pronounced as “Odia”.
Ninety-Seventh Amendment Act, 2011	Gave a constitutional status and protection to co-operative societies. In this context, it made the following three changes in the constitution: 1. It made the right to form co-operative societies a fundamental right. 2. It included a new Directive Principle of State Policy on promotion of co-operative societies. 3. It added a new Part IX-B in the constitution which is entitled as “The Co-operative Societies”.
Ninety-Eighth Amendment Act, 2012	Provided for special provisions for the Hyderabad- Karnataka region of the State of Karnataka. The special provisions aim to establish an institutional mechanism for equitable allocation of funds to meet the development needs over the region, as well as to enhance human resources and promote employment from the region by providing for local cadres in service and reservation in educational and vocational training institutions.

Amendment Number and Year	Amended Provisions of the Constitution
Ninety-Ninth Amendment Act, 2014	Replaced the collegium system of appointing judges to the Supreme Court and High Courts with a new body called the National Judicial Appointments Commission (NJAC). However, in 2015, the Supreme Court has declared this amendment act as unconstitutional and void. Consequently, the earlier collegium system became operative again.
One Hundredth Amendment Act, 2015	Gave effect to the acquiring of certain territories by India and transfer of certain other territories to Bangladesh (through exchange of enclaves and retention of adverse possessions) in pursuance of the Land Boundary Agreement of 1974 and its Protocol of 2011. For this purpose, this amendment act amended the provisions relating to the territories of four states (Assam, West Bengal, Meghalaya and Tripura) in the First Schedule of the Constitution.
One Hundred and First Amendment Act, 2016	Paved the way for the introduction of the goods and services tax (GST) regime in the country. The GST shall replace a number of indirect taxes being levied by the Union and the State Government. It is intented to remove cascading effect of taxes and provide for a common national market for goods and services. The proposed Central and State GST will be levied on all transactions involving supply of goods and services, except those which are kept out of the purview of the

Amendment Number and Year	Amended Provisions of the Constitution
	GST. Accordingly, the amendment made the following provisions: 1. Conferred concurrent taxing powers upon the Parliament and the State Legislatures to makes laws for levying GST on every transaction of supply of goods or services or both. 2. Dispensed the concept of “declared goods of special importance” under the constitution. 3. Provided for the levy of Integrated GST on inter-state transactions of goods and services. 4. Provided for the establishment of a Goods and Services Tax Council by a presidential order. 5. Made the provision of compensation to the states for loss of revenue arising on account of introduction of GST for a period of five years. 6. Substituted and ommitted certain entries in the Union and State Lists of the Seventh Schedule.

Amendment Number and Year	Amended Provisions of the Constitution
One Hundred and Second Amendment Act, 2018	1. Conferred a constitutional status on the National Commission for Backward Classes which was set-up in 1993 by an Act of the Parliament. 2. Relieved the National Commission for Scheduled Castes from its functions with regard to the backward classes. 3. Empowered the President to specify the socially and educationally backward classes in relation to a state or union territory.
One Hundred and Third Amendment Act, 2019	1. Empowered the state to make any special provision for the advancement of any economically weaker sections of citizens. 2. Allowed the state to make a provision for the reservation of upto 10% of seats for such sections in admission to educational institutions including private educational institutions, whether aided or unaided by the state, expect the minority educational institutions. This reservation of upto 10% would be in addition to the existing reservations. 3. Permitted the state to make a provision for the reservation of upto 10% of appointments or posts in favour of such sections. This reservation of upto 10 % would be in addition to the existing reservation.

Appendix V Presidents, Vice-Presidents, Prime Ministers, etc.

A. PRESIDENTS OF INDIA

	Name	Tenure
1.	Dr. Rajendra Prasad	1950 - 1962
2.	Dr. Sarvepalli Radhakrishnan	1962 - 1967
3.	Dr. Zakir Husain	1967 - 1969 (Died)
4.	Varahagiri Venkatagiri	1969 - 1969 (Acting)
5.	Justice Mohammad Hidayatullah	1969 - 1969 (Acting)
6.	Varahagiri Venkatagiri	1969 - 1974
7.	Fakhruddin Ali Ahmed	1974 - 1977 (Died)
8.	B.D. Jatti	1977 - 1977 (Acting)
9.	Neelam Sanjiva Reddy	1977 - 1982
10.	Giani Zail Singh	1982 - 1987
11.	R. Venkataraman	1987 - 1992
12.	Dr. Shanker Dayal Sharma	1992 - 1997
13.	K.R. Narayanan	1997 - 2002
14.	Dr. A.P.J. Abdul Kalam	2002 - 2007
15.	Smt. Pratibha Patil	2007 - 2012
16.	Pranab Mukherjee	2012 - 2017
17.	Ram Nath Kovind	2017 - till date

B. VICE-PRESIDENTS OF INDIA

	Name	Tenure
1.	Dr. Sarvepalli Radhakrishnan	1952 - 1962
2.	Dr. Zakir Husain	1962 - 1967
3.	Varahagiri Venkatagiri	1967 - 1969
4.	Gopal Swarup Pathak	1969 - 1974
5.	B.D. Jatti	1974 - 1979
6.	Justice Mohammad Hidayatullah	1979 - 1984
7.	R. Venkataraman	1984 - 1987
8.	Dr. Shanker Dayal Sharma	1987 - 1992
9.	K.R. Narayanan	1992 - 1997
10.	Krishan Kant	1997 - 2002 (Died)
11.	Bhairon Singh Shekhawat	2002 - 2007
12.	Mohammed Hamid Ansari	2007 - 2012
13.	Mohammed Hamid Ansari	2012 - 2017
14.	Venkaiah Naidu	2017 - till date

C. PRIME MINISTERS OF INDIA

	Name	Tenure
1.	Jawaharlal Nehru	1947 - 1964 (Died)
2.	Gulzari Lal Nanda	1964 - 1964 (Acting)
3.	Lal Bahadur Shastri	1964 - 1966 (Died)
4.	Gulzari Lal Nanda	1966 - 1966 (Acting)
5.	Indira Gandhi	1966 - 1977
6.	Morarji Desai	1977 - 1979
7.	Charan Singh	1979 - 1980

	Name	Tenure
8.	Indira Gandhi	1980 - 1984 (Died)
9.	Rajiv Gandhi	1984 - 1989
10.	Vishwanath Pratap Singh	1989 - 1990
11.	Chandra Shekhar	1990 - 1991
12.	P.V. Narasimha Rao	1991 - 1996
13.	Atal Bihari Vajpayee	1996 - 1996 (For 16 Days)
14.	H.D. Deve Gowda	1996 - 1997
15.	I.K. Gujral	1997 - 1998
16.	Atal Bihari Vajpayee	1998 - 1999
17.	Atal Bihari Vajpayee	1999 - 2004
18.	Dr. Manmohan Singh	2004 - 2009
19.	Dr. Manmohan Singh	2009 - 2014
20.	Narendra Modi	2014 - 2019
21.	Narendra Modi	2019 - till date

D. DEPUTY PRIME MINISTERS

	Name	Tenure
1.	Sardar Vallabhbhai Patel	1947 - 1950
2.	Morarji Desai	1967 - 1969
3.	Charan Singh and Jagjivan Ram (jointly)	1977 - 1979
4.	Y.B. Chavan	1979 - 1980
5.	Devi Lal	1989 - 1990
6.	Devi Lal	1990 - 1991
7.	L.K. Advani	2002 - 2004

E. SPEAKERS OF THE LOK SABHA

	Name	Tenure
1.	Ganesh Vasudev Mavalankar	1952 - 1956 *(Died)*
2.	M. Ananthasayanam Ayyangar	1956 - 1962
3.	Hukam Singh	1962 - 1967
4.	Neelam Sanjiva Reddy	1967 - 1969 (Resigned)
5.	Gurdial Singh Dhillon	1969 - 1975 (Resigned)
6.	Bali Ram Bhagat	1976 - 1977
7.	Neelam Sanjiva Reddy	1977 - 1977 (Resigned)
8.	K.S. Hegde	1977 - 1980
9.	Bal Ram Jakhar	1980 - 1989
10.	Rabi Ray	1989 - 1991
11.	Shivraj V. Patil	1991 - 1996
12.	P.A. Sangma	1996 - 1998
13.	G.M.C. Balayogi	1998 - 2002 (Died)
14.	Manohar Gajanan Joshi	2002 - 2004
15.	Somnath Chatterjee	2004 - 2009
16.	Ms. Meira Kumar	2009 - 2014
17.	Ms. Sumitra Mahajan	2014 - 2019
18.	Om Birla	2019 - till date

F. CHIEF JUSTICES OF INDIA

	Name	Tenure
1.	Harilal J. Kania	1950 - 1951
2.	M. Patanjali Sastri	1951 - 1954

	Name	Tenure
3.	M.C. Mahajan	1954 - 1954
4.	B.K. Mukherjea	1954 - 1956
5.	S.R. Das	1956 - 1959
6.	B.P. Sinha	1959 - 1964
7.	P.B. Gajendragadkar	1964 - 1966
8.	A.K. Sarkar	1966 - 1966
9.	K. Subba Rao	1966 - 1967
10.	K.N. Wanchoo	1967 - 1968
11.	M. Hidayatullah	1968 - 1970
12.	J.C. Shah	1970 - 1971
13.	S.M. Sikri	1971 - 1973
14.	A.N. Ray	1973 - 1977
15.	M.H. Beg	1977 - 1978
16.	Y.V. Chandrachud	1978 - 1985
17.	P.N. Bhagwati	1985 - 1986
18.	R.S. Pathak	1986 - 1989
19.	E.S. Venkataramaiah	1989 - 1989
20.	S. Mukherjee	1989 - 1990
21.	Ranganath Mishra	1990 - 1991
22.	K.N. Singh	1991 - 1991
23.	M.H. Kania	1991 - 1992
24.	L.M. Sharma	1992 - 1993
25.	M.N. Venkatachalaiah	1993 - 1994
26.	A.M. Ahmadi	1994 - 1997
27.	J.S. Verma	1997 - 1998

	Name	Tenure
28.	M.M. Punchhi	1998 - 1998
29.	A.S. Anand	1998 - 2001
30.	S.P. Bharucha	2001 - 2002
31.	B.N. Kirpal	2002 - 2002
32.	G.B. Pattanaik	2002 - 2002
33.	V.N. Khare	2002 - 2004
34.	S. Rajendra Babu	2004 - 2004
35.	R.C. Lahoti	2004 - 2005
36.	Y.K. Sabharwal	2005 - 2007
37.	K.G. Balakrishnan	2007 - 2010
38.	S.H. Kapadia	2010 - 2012
39.	Altamas Kabir	2012 - 2013
40.	P. Sathasivam	2013 - 2014
41.	R.M. Lodha	2014 - 2014
42.	H.L. Dattu	2014 - 2015
43.	T.S. Thakur	2015 - 2017
44.	J.S. Khehar	2017 - 2017
45.	Dipak Misra	2017 - 2018
46.	Ranjan Gogoi	2018 - 2019
47.	S.A. Bobde	2019 - till date

G. CHIEF ELECTION COMMISSIONERS OF INDIA

	Name	Tenure
1.	Sukumar Sen	1950 - 1958
2.	K.V.K. Sundaram	1958 - 1967

	Name	Tenure
3.	S.P. Sen Verma	1967 - 1972
4.	Dr. Nagendra Singh	1972 - 1973
5.	T. Swaminathan	1973 - 1977
6.	S.L. Shakdhar	1977 - 1982
7.	R.K. Trivedi	1982 - 1985
8.	R.V.S. Peri Sastri	1986 - 1990
9.	Smt. V.S. Rama Devi	1990 - 1990
10.	T.N. Seshan	1990 - 1996
11.	M.S. Gill	1996 - 2001
12.	J.M. Lyngdoh	2001 - 2004
13.	T.S. Krishna Murthy	2004 - 2005
14.	B.B. Tandon	2005 - 2006
15.	N. Gopalaswamy	2006 - 2009
16.	Naveen Chawla	2009 - 2010
17.	S.Y. Quraishi	2010 - 2012
18.	V.S. Sampath	2012 - 2015
19.	H.S. Brahma	2015 - 2015
20.	Nasim Zaidi	2015 - 2017
21.	A.K. Jyoti	2017 - 2018
22.	Om Prakash Rawat	2018 - 2018
23.	Sunil Arora	2018 - till date

H. CHAIRMEN OF THE UPSC

	Name	Tenure
1.	Sir Ross Barker	1926 - 1932

	Name	Tenure
2.	Sir David Petrie	1932 - 1936
3.	Sir Eyre Gorden	1937 - 1942
4.	Sir F.W. Robertson	1942 - 1947
5.	H.K. Kripalani	1947 - 1949
6.	R.N. Banerjee	1949 - 1955
7.	N. Govindarajan	1955 - 1955
8.	V.S. Hejmadi	1955 - 1961
9.	B.N. Jha	1961 - 1967
10.	K.R. Damle	1967 - 1971
11.	R.C.S. Sarkar	1971 - 1973
12.	Dr. A.R. Kidwai	1973 - 1979
13.	Dr. M.L. Shahare	1979 - 1985
14.	H.K.L. Capoor	1985 - 1990
15.	J.P. Gupta	1990 - 1992
16.	Smt. R.M. Bathew (Kharbuli)	1992 - 1996
17.	S.J.S. Chhatwal	1996 - 1996
18.	J.M. Qureshi	1996 - 1998
19.	Lt. Gen. (Retd.) Surinder Nath	1998 - 2002
20.	P.C. Hota	2002 - 2003
21.	Mata Prasad	2003 - 2005
22.	Dr. S.R. Hashim	2005 - 2006
23.	Gurbachan Jagat	2006 - 2007
24.	Subir Dutta	2007 - 2008
25.	D.P. Agrawal	2008 - 2014
26.	Smt. Rajni Razdan	2014 - 2014

	Name	Tenure
27.	Deepak Gupta	2014 - 2016
28.	Alka Sirohi	2016 - 2017
29.	David Syiemlieh	2017 - 2018
30.	Vinay Mittal	2018 - 2018
31.	Arvind Saxena	2018 - till date

I. COMPTROLLER AND AUDITORGENERALS OF INDIA

	Name	Tenure
1.	V. Narhari Rao	1948 - 1954
2.	A.K. Chanda	1954 - 1960
3.	SH. A.K. Roy	1960 - 1966
4.	S. Ranganathan	1966 - 1972
5.	A. Baksi	1972 - 1978
6.	Gian Prakash	1978 - 1984
7.	T.N. Chaturvedi	1984 - 1990
8.	C.G. Somiah	1990 - 1996
9.	V.K. Shunglu	1996 - 2002
10.	V.N. Kaul	2002 - 2008
11.	Vinod Rai	2008 - 2013
12.	Shashi Kant Sharma	2013 - 2017
13.	Rajiv Mehrishi	2017 - till date

J. ATTORNEY - GENERALS OF INDIA

	Name	Tenure
1.	M.C. Setalvad	1950 - 1963

	Name	Tenure
2.	C.K. Daphtary	1963 - 1963
3.	Niren De	1968 - 1977
4.	S.V. Gupte	1977 - 1979
5.	L.N. Sinha	1979 - 1983
6.	K. Parasaran	1983 - 1989
7.	Soli J. Sorabjee	1989 - 1990
8.	G. Ramaswamy	1990 - 1992
9.	Milon K. Banerjee	1992 - 1996
10.	Ashok K. Desai	1996 - 1998
11.	Soli J. Sorabjee	1998 - 2004
12.	Milon K. Banerjee	2004 - 2009
13.	Goolam E. Vahanvati	2009 - 2014
14.	Mukul Rohatgi	2014 - 2017
15.	K.K. Venugopal	2017 - till date

Appendix VI Chairpersons of the National Commissions

A. NATIONAI HUMAN RIGHTS COMMISSION

Serial Number	Name	Tenure
1.	Justice Ranganath Misra	1993 - 1996
2.	Justice M.N. Venkatachaliah	1996 - 1999
3.	Justice J.S. Verma	1999 - 2003
4.	Justice A.S. Anand	2003 - 2006
5.	Justice Shivaraj V. Patil	2006 - 2007
6.	Justice S. Rajendra Babu	2007 - 2009
7.	Justice Govind Prasad Mathur	2009 - 2010
8.	Justice K.G. Balakrishnan	2010 - 2015
9.	Justice Cyrial Joseph	2015 - 2016
10.	Justice H.L. Datt	2016 - till date

B. NATIONAI COMMISSION FOR WOMEN

Serial Number	Name	Tenure
1.	Jayanti Patnaik	1992 - 1995
2.	Dr. V. Mohini Giri	1995 - 1998
3.	Vibha Parthasarathi	1999 - 2002
4.	Dr. Poornima Advani	2002 - 2005
5.	Dr. Girija Vyas	2005 - 2008
6.	Dr. Girija Vyas	2008 - 2011
7.	Mamta Sharma	2011 - 2014
8.	Lalitha Kumaramangalam	2014 - 2017
9.	Rekha Sharma	2018 - till date

C. NATIONAI COMMISSION FOR PROTECTION OF CHILD RIGHTS

Serial Number	Name	Tenure
1.	Dr. Shantha Sinha	2007 - 2010
2.	Dr. Shantha Sinha	2010 - 2013
3.	Kushal Singh	2013 - 2014
4.	Stuti Narain Kacker	2015 - 2018
5.	Priyank Kanoongo	2018 - till date

D. NATIONAI COMMISSION FOR BACKWARD CLASSES

Serial Number	Name	Tenure
1.	Justice R.N. Prasad	1993 - 1996
2.	Justice Shyam Sunder	1997 - 2000
3.	Justice B.L. Yadav	2000 - 2002
4.	Justice Ram Surat Singh	2002 - 2005
5.	Justice S. Ratnavel Pandian	2006 - 2009
6.	Justice M.N. Rao	2010 - 2013
7.	Justice V. Eswaraiah	2013 - 2016
8.	Dr. Bhagwan Lal Sahni	2016 - till date

E. NATIONAI COMMISSION FOR MINORITIES

Serial Number	Name	Tenure
1.	Justice Mohammad Sardar Ali Khan	1993 - 1996
2.	Prof. Tahir Mohammad	1996 - 1999
3.	Justice Mohammed Shamim	2000 - 2003
4.	Tarlochan Singh	2003 - 2006
5.	Mohammad Hamid Ansari	2006 - 2007
6.	Mohammad Shafi Qureshi	2007 - 2010
7.	Wajahat Habibullah	2011 - 2014
8.	Naseem Ahmad	2014 - 2017
9.	Syed Ghayorul Hasan Rizvi	2017 - till date

F. ERSTWHILE NATIONAL COMMISSION FOR SCS AND STS (COMBINED)

Serial Number	Name	Tenure
1.	S.H. Ramdhan	1992 - 1995
2.	H. Hanumanthappa	1995 - 1998
3.	Dileep Singh Bhuria	1998 - 2002
4.	Vijay Sonkar Shastri	2002 - 2004

G. NATIONAI COMMISSION FOR SCs

Serial Number	Name	Tenure
1.	Suraj Bhan	2004 - 2006
2.	Buta Singh	2007 - 2010
3.	P.L. Punia	2010 - 2013
4.	P.L. Punia	2013 - 2016
5.	Ram Shankar Katheria	2017 - till date

H. NATIONAI COMMISSION FOR STs

Serial Number	Name	Tenure
1.	Kunwar Singh	2004 - 2007
2.	Urmila Singh	2007 - 2010
3.	Rameshwar Oraon	2010 - 2013
4.	Rameshwar Oraon	2013 - 2016
5.	Nand Kumar Sai	2017 - till date

Appendix VII UPSC Questions on Indian Polity (General Studies— Prelims 2010–2019)

2010 TEST PAPER

1. With reference to the Constitution of India, consider the following:
   1. Fundamental Rights
   2. Fundamental Duties
   3. Directive Principles of State Policy

   Which of the above provisions of the Constitution of India is/are fulfilled by the National Social Assistance Programme launched by the Government of India?
   (a) 1 only
   (b) 3 only
   (c) 1 and 3 only
   (d) 1, 2 and 3
2. Consider the following statements:
   The Supreme Court of India tenders advice to the President of India on matters of law or fact
   1. on its own initiative (on any matter of larger public interest).
   2. if he seeks such an advice.
   3. only if the matters relate to the Fundamental Rights of the citizens.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 only
   (c) 3 only
   (d) 1 and 2
3. With reference to Lok Adalats, which of the following statements is correct?
   (a) Lok Adalats have the jurisdiction to settle the matters at pre-litigative stage and not those matters pending before any court
   (b) Lok Adalats can deal with matters which are civil and not criminal in nature
   (c) Every Lok Adalat consists of either serving or retired judicial officers only and not any other person

(d) None of the statements given above is correct

4. The “Instrument of Instructions” contained in the Government of India Act 1935 have been incorporated in the Constitution of India in the year 1950 as
   (a) Fundamental Rights
   (b) Directive Principles of State Policy
   (c) Extent of executive power of State
   (d) Conduct of business of the Government of India
5. Who of the following shall cause every recommendation made by the Finance Commission to be laid before each House of Parliament?
   (a) The President of India
   (b) The Speaker of Lok Sabha
   (c) The Prime Minister of India
   (d) The Union Finance Minister
6. Which one of the following is responsible for the preparation and presentation of Union Budget to the Parliament?
   (a) Department of Revenue
   (b) Department of Economic Affairs
   (c) Department of Financial Services
   (d) Department of Expenditure
7. With reference to the National Rehabilitation and Resettlement Policy, 2007, consider the following statements:
   1. This policy is applicable only to the persons affected by the acquisition of land for projects and not to the involuntary displacement due to any other reason.
   2. This policy has been formulated by the Ministry of Social Justice and Empowerment.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
8. With reference to the Consumer Disputes Redressal at district level in India, which one of the following statements is not correct?
   (a) A State Government can establish more than one District Forum in a district if it deems fit

(b) One of the members of the District Forum shall be a woman.
(c) The District Forum entertains the complaints where the value of goods or services does not exceed rupees fifty lakhs
(d) A complaint in relation to any goods sold or any service provided may be filed with a District Forum by the State Government as a representative of the interests of the consumers in general

9. Which one of the following authorities makes recommendation to the Governor of a State as to the principles for determining the taxes and duties which may be appropriated by the Panchayats in that particular State?
(a) District Planning Committees
(b) State Finance Commission
(c) Finance Ministry of that State
(d) Panchayati Raj Ministry of that State

10. Consider the following statements:
In India, taxes on transactions in Stock Exchanges and Futures Markets are
1. levied by the Union
2. collected by the States
Which of the statements given above is/ are correct?
(a) 1 only
(b) 2 only
(c) Both 1 and 2
(d) Neither 1 nor 2

2011 TEST PAPER

1. The Constitution (Seventy-Third Amendment) Act, 1992, which aims at promoting the Panchayati Raj Institutions in the country, provides for which of the following?
   1. Constitution of District Planning Committees.
   2. State Election Commissions to conduct all panchayat elections.
   3. Establishment of State Finance Commissions.

   Select the correct answer using the codes given below:
   (a) 1 only
   (b) 1 and 2 only
   (c) 2 and 3 only
   (d) 1, 2 and 3
2. In India, if a religious sect/community is given the status of a national minority, what special advantages it is entitled to?
   1. It can establish and administer exclusive educational institutions.
   2. The President of India automatically nominates a representative of the community to Lok Sabha.
   3. It can derive benefits from the Prime Minister's 15-Point Programme.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 and 3 only
   (c) 1 and 3 only
   (d) 1, 2 and 3
3. India is home to lakhs of persons with disabilities. What are the benefits available to them under the law?
   1. Free schooling till the age of 18 years in government-run schools.
   2. Preferential allotment of land for setting up business.
   3. Ramps in public buildings.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 and 3 only
   (c) 1 and 3 only

(d) 1, 2 and 3

4. The authorization for the withdrawal of funds from the Consolidated Fund of India must come from
   (a) The President of India
   (b) The Parliament of India
   (c) The Prime Minister of India
   (d) The Union Finance Minister
5. All revenues received by the Union Government by way of taxes and other receipts for the conduct of Government business are credited to the
   (a) Contingency Fund of India
   (b) Public Account
   (c) Consolidated Fund of India
   (d) Deposits and Advances Fund
6. With reference to “Look East Policy” of India, consider the following statements:
   1. India wants to establish itself as an important regional player in the East Asian affairs.
   2. India wants to plug the vacuum created by the termination of Cold War.
   3. India wants to restore the historical and cultural ties with its neighbours in Southeast and East Asia.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 1 and 3 only
   (c) 3 only
   (d) 1, 2 and 3
7. When the annual Union Budget is not passed by the Lok Sabha,
   (a) the Budget is modified and presented again
   (b) the Budget is referred to the Rajya Sabha for suggestions
   (c) the Union Finance Minister is asked to resign
   (d) the Prime Minister submits the resignation of Council of Ministers
8. Under the Constitution of India, which one of the following is not a fundamental duty?
   (a) To vote in public elections
   (b) To develop the scientific temper

(c) To safeguard public property
(d) To abide the Constitution and respect its ideals

9. With reference to the Finance Commission of India, which of the following statements is correct?
   (a) It encourages the inflow of foreign capital for infrastructure development
   (b) It facilitates the proper distribution of finances among the Public Sector Undertakings
   (c) It ensures transparency in financial administration
   (d) None of the statements (a), (b) and (c) given above is correct in this context
10. Consider the following:
    1. Right to education.
    2. Right to equal access to public service.
    3. Right to food.

    Which of the above is/are Human Right/Human Rights under "Universal Declaration of Human Rights"?
    (a) 1 only
    (b) 1 and 2 only
    (c) 3 only
    (d) 1, 2 and 3
11. Consider the following statements: In India, a Metropolitan Planning Committee
    1. is constituted under the provisions of the Constitution of India.
    2. prepares the draft development plans for metropolitan area.
    3. has the sole responsibility for implementing Government sponsored schemes in the metropolitan area.

    Which of the statements given above is/ are correct?
    (a) 1 and 2 only
    (b) 2 only
    (c) 1 and 3 only
    (d) 1, 2 and 3
12. What is the difference between "vote-on-account" and "interim budget"?
    1. The provision of a "vote-on-account" is used by a regular Government, while an "interim budget" is a provision used

by a caretaker Government.

2. A “vote-on-account” only deals with the expenditure in Government’s budget, while an “interim budget” includes both expenditure and receipts.

Which of the statements given above is/ are correct?

(a) 1 only
(b) 2 only
(c) Both 1 and 2
(d) Neither 1 nor 2

2012 TEST PAPER

1. The distribution of powers between the Centre and the States in the Indian Constitution is based on the scheme provided in the
   (a) Morley-Minto Reforms, 1909
   (b) Montagu-Chelmsford Act, 1919
   (c) Government of India Act, 1935
   (d) Indian Independence Act, 1947
2. In the areas covered under the Panchayat (Extension to the Scheduled Areas) Act, 1996, what is the role/power of Gram Sabha?
   1. Gram Sabha has the power to prevent alienation of land in the Scheduled Areas.
   2. Gram Sabha has the ownership of minor forest produce.
   3. Recommendation of Gram Sabha is required for granting prospecting licence or mining lease for any mineral in the Scheduled Areas.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 1 and 2 only
   (c) 2 and 3 only
   (d) 1, 2 and 3
3. In the Parliament of India, the purpose of an adjournment motion is
   (a) to allow a discussion on a definite matter of urgent public importance
   (b) to let opposition members collect information from the ministers
   (c) to allow a reduction of specific amount in demand for grant
   (d) to postpone the proceedings to check the inappropriate or violent behaviour on the part of some members
4. The National Green Tribunal Act, 2010 was enacted in consonance with which of the following provisions of the Constitution of India?

1. Right to healthy environment, construed as a part of Right to life under Article 21
2. Provision of grants for raising the level of administration in the Scheduled Areas for the welfare of Scheduled Tribes under Article 275(1)
3. Powers and functions of Gram Sabha as mentioned under Article 243(A)

5. Consider the following provisions under the Directive Principles of State Policy as enshrined in the Constitution of India:
   1. Securing for citizens of India a uniform civil code
   2. Organizing village Panchayats
   3. Promoting cottage industries in rural areas
   4. Securing for all the workers reasonable leisure and cultural opportunities

   Which of the above are the Gandhian Principles that are reflected in the Directive Principles of State Policy?
   (a) 1, 2 and 4 only
   (b) 2 and 3 only
   (c) 1, 3 and 4 only
   (d) 1, 2, 3 and 4
6. Consider the following statements:
   1. Union Territories are not represented in the Rajya Sabha.
   2. It is within the purview of the Chief Election Commissioner to adjudicate the election disputes.
   3. According to the Constitution of India, the Parliament consists of the Lok Sabha and the Rajya Sabha only.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 and 3
   (c) 1 and 3
   (d) None
7. With reference to consumers" rights / privileges under the provisions of law in India, which of the following statements is/are correct?
   1. Consumers are empowered to take samples for food testing.

2. When a consumer files a complaint in any consumer forum, no fee is required to be paid.
3. In case of death of a consumer, his/ her legal heir can file a complaint in the consumer forum on his/her behalf.

Select the correct answer using the codes given below:

(a) 1 only
(b) 2 and 3 only
(c) 1 and 3 only
(d) 1, 2 and 3

8. Regarding the office of the Lok Sabha Speaker, consider the following statements:
   1. He/She holds the office during the pleasure of the President.
   2. He/She need not be a member of the House at the time of his/her election but has to become a member of the House within six months from the date of his/her election.
   3. If he/she intends to resign, the letter of his/her resignation has to be addressed to the Deputy Speaker.

   Which of the statements given above is/ are correct?

   (a) 1 and 2 only
   (b) 3 only
   (c) 1, 2 and 3
   (d) None
9. Which of the following are included in the original jurisdiction of the Supreme Court?
   1. A dispute between the Government of India and one or more States
   2. A dispute regarding elections to either House of the Parliament or that of Legislature of a State
   3. A dispute between the Government of India and a Union Territory
   4. A dispute between two or more States

   Select the correct answer using the codes given below:

   (a) 1 and 2
   (b) 2 and 3
   (c) 1 and 4
   (d) 3 and 4

10. Which of the following is/are the principal feature(s) of the Government of India Act, 1919?
    1. Introduction of diarchy in the executive government of the provinces
    2. Introduction of separate communal electorates for Muslims
    3. Devolution of legislative authority by the centre to the provinces

    Select the correct answer using the codes given below:
    (a) 1 only
    (b) 2 and 3 only
    (c) 1 and 3 only
    (d) 1, 2 and 3
11. Which of the following special powers have been conferred on the Rajya Sabha by the Constitution of India?
    (a) To change the existing territory of a State and to change the name of a State
    (b) To pass a resolution empowering the Parliament to make laws in the State List and to create one or more All India Services
    (c) To amend the election procedure of the President and to determine the pension of the President after his/ her retirement
    (d) To determine the functions of the Election Commission and to determine the number of Election Commissioners
12. Which of the following are the methods of Parliamentary control over public finance in India?
    1. Placing Annual Financial Statement before the Parliament
    2. Withdrawal of moneys from Consolidated Fund of India only after passing the Appropriation Bill
    3. Provisions of supplementary grants and vote-on-account
    4. A periodic or at least a mid-year review of programme of the Government against macroeconomic forecasts and expenditure by a Parliamentary Budget Office
    5. Introducing Finance Bill in the Parliament

    Select the correct answer using the codes given below:
    (a) 1, 2, 3 and 5 only
    (b) 1, 2 and 4 only

(c) 3, 4 and 5 only
(d) 1, 2, 3, 4 and 5

13. Which of the following provisions of the Constitution of India have a bearing on Education?
    1. Directive Principles of State Policy
    2. Rural and Urban Local Bodies
    3. Fifth Schedule
    4. Sixth Schedule
    5. Seventh Schedule

    Select the correct answer using the codes given below:
    (a) 1 and 2 only
    (b) 3, 4 and 5 only
    (c) 1, 2 and 5 only
    (d) 1, 2, 3, 4 and 5
14. In India, other than ensuring that public funds are used efficiently and for intended purpose, what is the importance of the office of the Comptroller and Auditor General (CAG)?
    1. CAG exercises exchequer control on behalf of the Parliament when the President of India declares national emergency / financial emergency
    2. CAG reports on the execution of projects or programmes by the ministries are discussed by the Public Accounts Committee.
    3. Information from CAG reports can be used by investigating agencies to press charges against those who have violated the law while managing public finances.
    4. While dealing with the audit and accounting of government companies, CAG has certain judicial powers for prosecuting those who violate the law.

    Which of the statements given above is/ are correct?
    (a) 1, 3 and 4 only
    (b) 2 only
    (c) 2 and 3 only
    (d) 1, 2, 3 and 4
15. The Prime Minister of India, at the time of his/her appointment

(a) need not necessarily be a member of one of the Houses of the Parliament but must become a member of one of the Houses within six months
(b) need not necessarily be a member of one of the Houses of the Parliament but must become a member of the Lok Sabha within six months
(c) must be a member of one of the Houses of the Parliament
(d) must be a member of the Lok Sabha

16. With reference to the Delimitation Commission, consider the following statements:
    1. The orders of the Delimitation Commission cannot be challenged in a Court of Law.
    2. When the orders of the Delimitation Commission are laid before the Lok Sabha or State Legislative Assembly, they cannot effect any modifications in the orders.

    Which of the statements given above is/ are correct?
    (a) 1 only
    (b) 2 only
    (c) Both 1 and 2
    (d) Neither 1 nor 2
17. According to the Constitution of India, it is the duty of the President of India to cause to be laid before the Parliament which of the following?
    1. The Recommendations of the Union Finance Commission
    2. The Report of the Public Accounts Committee
    3. The Report of the Comptroller and Auditor General
    4. The Report of the National Commission for Scheduled Castes

    Select the correct answer using the codes given below:
    (a) 1 only
    (b) 2 and 4 only
    (c) 1, 3 and 4 only
    (d) 1, 2, 3 and 4
18. A deadlock between the Lok Sabha and the Rajya Sabha calls for a joint sitting of the Parliament during the passage of
    1. Ordinary Legislation
    2. Money Bill

3. Constitution Amendment Bill

Select the correct answer using the codes given below:

(a) 1 only
(b) 2 and 3 only
(c) 1 and 3 only
(d) 1, 2 and 3

19. Which of the following is/are among the Fundamental Duties of citizens laid down in the Indian Constitution?
    1. To preserve the rich heritage of our composite culture
    2. To protect the weaker sections from social injustice
    3. To develop the scientific temper and spirit of inquiry
    4. To strive towards excellence in all spheres of individual and collective activity

    Select the correct answer using the codes given below:

    (a) 1 and 2only
    (b) 2 only
    (c) 1, 3 and 4 only
    (d) 1, 2, 3 and 4

20. What is the provision to safeguard the autonomy of the Supreme Court of India?
    1. While appointing the Supreme Court Judges, the President of India has to consult the Chief Justice of India.
    2. The Supreme Court Judges can be removed by the Chief Justice of India only.
    3. The salaries of the Judges are charged on the Consolidated Fund of India to which the legislature does not have to vote.
    4. All appointments of officers and staff of the Supreme Court of India are made by the Government only after consulting the Chief Justice of India.

    Which of the statements given above is/ are correct?

    (a) 1 and 3 only
    (b) 3 and 4 only
    (c) 4 only
    (d) 1, 2, 3 and 4

2013 TEST PAPER

1. Who among the following constitute the National Development Council?
   1. The Prime Minister
   2. The Chairman, Finance Commission
   3. Ministers of the Union Cabinet
   4. Chief Ministers of the States

   Select the correct answer using the codes given below:
   (a) 1, 2 and 3 only
   (b) 1, 3 and 4 only
   (c) 2 and 4 only
   (d) 1, 2, 3 and 4
2. Consider the following statements:
   The Parliamentary Committee on Public Accounts
   1. consists of not more than 25 Members of the Lok Sabha
   2. scrutinizes appropriation and finance accounts of the Government
   3. examines the report of the Comptroller and Auditor General of India

   Which of the statements given above is/are correct?
   (a) 1 only
   (b) 2 and 3 only
   (c) 3 only
   (d) 1, 2 and 3
3. In the context of India, which of the following principles is/are implied institutionally in the parliamentary government?
   1. Members of the Cabinet are Members of the Parliament.
   2. Ministers hold the office till they enjoy confidence in the Parliament.
   3. Cabinet is headed by the Head of the State.

   Select the correct answer using the codes given below.
   (a) 1 and 2 only
   (b) 3 only
   (c) 2 and 3 only
   (d) 1, 2 and 3
4. Consider the following statements:

1. The Council of Ministers in the Centre shall be collectively responsible to the Parliament.
2. The Union Ministers shall hold the office during the pleasure of the President of India.
3. The Prime Minister shall communicate to the President about the proposals for legislation.

Which of the statements given above is/ are correct?

(a) 1 only
(b) 2 and 3 only
(c) 1 and 3 only
(d) 1, 2 and 3

5. Consider the following statements:
   1. National Development Council is an organ of the Planning Commission.
   2. The Economic and Social Planning is kept in the Concurrent List in the Constitution of India.
   3. The Constitution of India prescribes that Panchayats should be assigned the task of preparation of plans for economic development and social justice.

   Which of the statements given above is/ are correct?

   (a) 1 only
   (b) 2 and 3 only
   (c) 1 and 3 only
   (d) 1, 2 and 3
6. Consider the following statements:
   1. The Chairman and the Deputy Chairman of the Rajya Sabha are not the members of that House.
   2. While the nominated members of the two Houses of the Parliament have no voting right in the presidential election, they have the right to vote in the election of the Vice President.

   Which of the statements given above is/ are correct?

   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
7. With reference to National Legal Services Authority, consider the following statements:

1. Its objective is to provide free and competent legal services to the weaker sections of the society on the basis of equal opportunity.
2. It issues guidelines for the State Legal Services Authorities to implement the legal programmes and schemes throughout the country.

Which of the statements given above is/ are correct?

(a) 1 only
(b) 2 only
(c) Both 1 and 2
(d) Neither 1 nor 2

8. Under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, who shall be the authority to initiate the process for determining the nature and extent of individual or community forest rights or both?
   (a) State Forest Department
   (b) District Collector / Deputy Commissioner
   (c) Tahsildar / Block Development Officer / Mandal Revenue Officer
   (d) Gram Sabha
9. “Economic Justice” as one of the objectives of the Indian Constitution has been provided in
   (a) the Preamble and the Fundamental Rights
   (b) the Preamble and the Directive Principles of State Policy
   (c) the Fundamental Rights and the Directive Principles of State Policy
   (d) None of the above
   (c) Directive Principles of State Policy
   (d) Fundamental Rights and Fundamental Duties
11. What will follow if a Money Bill is substantially amended by the Rajya Sabha?
   (a) The Lok Sabha may still proceed with the Bill, accepting or not accepting the recommendations of the Rajya Sabha
   (b) The Lok Sabha cannot consider the Bill further
   (c) The Lok Sabha may send the Bill to the Rajya Sabha for reconsideration

(d) The President may call a joint sitting for passing the Bill

12. Which one of the following statements is correct?
    (a) In India, the same person cannot be appointed as Governor for two or more States at the same time
    (b) The Judges of the High Court of the States in India are appointed by the Governor of the State just as the Judges of the Supreme Court are appointed by the President
    (c) No procedure has been laid down in the Constitution of India for the removal of a Governor from his/her post
    (d) In the case of a Union Territory having a legislative setup, the Chief Minister is appointed by the Lt. Governor on the basis of majority support
13. With reference to Indian History, the Members of the Constituent Assembly from the Provinces were
    (a) directly elected by the people of those Provinces
    (b) nominated by the Indian National Congress and the Muslim League
    (c) elected by the Provincial Legislative Assemblies
    (d) selected by the Government for their expertise in constitutional matters
14. Consider the following statements:
    1. An amendment to the Constitution of India can be initiated by an introduction of a bill in the Lok Sabha only.
    2. If such an amendment seeks to make changes in the federal character of the Constitution, the amendment also requires to be ratified by the legislature of all the States of India.

    Which of the statements given above is/ are correct?
    (a) 1 only
    (b) 2 only
    (c) Both 1 and 2
    (d) Neither 1 nor 2
15. Consider the following statements: Attorney General of India can
    1. take part in the proceedings of the Lok Sabha
    2. be a member of a committee of the Lok Sabha
    3. speak in the Lok Sabha

4. vote in the Lok Sabha

Which of the statements given above is/ are correct?

(a) 1 only
(b) 2 and 4 only
(c) 1, 2 and 3
(d) 1 and 3 only

16. Which of the following bodies does not/ do not find mention in the Constitution?
    1. National Development Council
    2. Planning Commission
    3. Zonal Councils

    Select the correct answer using the codes given below.

    (a) 1 and 2 only
    (b) 2 only
    (c) 1 and 3 only
    (d) 1, 2 and 3
17. The Parliament can make any law for whole or any part of India for implementing international treaties
    (a) with the consent of all the States
    (b) with the consent of the majority of States
    (c) with the consent of the States concerned
    (d) without the consent of any State
18. The Government enacted the Panchayat Extension to Scheduled Areas (PESA) Act in 1996. Which one of the following is not identified as its objective?
    (a) To provide self-governance
    (b) To recognize traditional rights
    (c) To create autonomous regions in tribal areas
    (d) To free tribal people from exploitation

2014 TEST PAPER

1. Consider the following languages:
   1. Gujarati
   2. Kannada
   3. Telugu

   Which of the above has/have been declared as "Classical Language/Languages" by the Government?
   (a) 1 and 2 only
   (b) 3 only
   (c) 2 and 3 only
   (d) 1, 2 and 3
2. Which one of the following is the largest Committee of the Parliament?
   (a) The Committee on Public Accounts
   (b) The Committee on Estimates
   (c) The Committee on Public Undertakings
   (d) The Committee on Petitions
3. The sales tax you pay while purchasing a toothpaste is a
   (a) tax imposed by the Central Government
   (b) tax imposed by the Central Government but collected by the State Government
   (c) tax imposed by the State Government but collected by the Central Government
   (d) tax imposed and collected by the State Government
4. Which one of the following Schedules of the Constitution of India contains provisions regarding anti-defection?
   (a) Second Schedule
   (b) Fifth Schedule
   (c) Eighth Schedule
   (d) Tenth Schedule
5. In the Constitution of India, promotion of international peace and security is included in the
   (a) Preamble to the Constitution
   (b) Directive Principles of State Policy
   (c) Fundamental Duties
   (d) Ninth Schedule

6. Which of the following are associated with ‘Planning’ in India?
   1. The Finance Commission
   2. The National Development Council.
   3. The Union Ministry of Rural Development
   4. The Union Ministry of Urban Development
   5. The Parliament

   Select the correct answer using the code given below.
   (a) 1, 2 and 5 only
   (b) 1, 3 and 4 only
   (c) 2 and 5 only
   (d) 1, 2, 3, 4 and 5
7. Which of the following is/are the function/functions of the Cabinet Secretariat?
   1. Preparation of agenda for Cabinet Meetings
   2. Secretarial assistance to Cabinet Committees
   3. Allocation of financial resources to the Ministries

   Select the correct answer using the code given below.
   (a) 1 only
   (b) 2 and 3 only
   (c) 1 and 2 only
   (d) 1, 2 and 3
8. Consider the following statements:
   A Constitutional Government is one which
   1. places effective restrictions on individual liberty in the interest of State Authority
   2. places effective restrictions on the Authority of the State in the interest of individual liberty

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
9. Which of the following are the discretionary powers given to the Governor of a State?
   1. Sending a report to the President of India for imposing the President’s rule
   2. Appointing the Ministers

3. Reserving certain bills passed by the State Legislature for consideration of the President of India
4. Making the rules to conduct the business of the State Government

Select the correct answer using the code given below.

(a) 1 and 2 only
(b) 1 and 3 only
(c) 2, 3 and 4 only
(d) 1, 2, 3 and 4

10. Consider the following statements:
    1. The President shall make rules for the more convenient transaction of the business of the Government of India, and for the allocation among Ministers of the said business.
    2. All executive actions of the Government of India shall be expressed to be taken in the name of the Prime Minister.

    Which of the statements given above is/ are correct?

    (a) 1 only
    (b) 2 only
    (c) Both 1 and 2
    (d) Neither 1 nor 2

11. Consider the following statements regarding a No-Confidence Motion in India:
    1. There is no mention of a NoConfidence Motion in the Constitution of India.
    2. A Motion of No-Confidence can be introduced in the Lok Sabha only.

    Which of the statements given above is/ are correct?

    (a) 1 only
    (b) 2 only
    (c) Both 1 and 2
    (d) Neither 1 nor 2

12. The power of the Supreme Court of India to decide disputes between the Centre and the States falls under its

    (a) advisory jurisdiction
    (b) appellate jurisdiction
    (c) original jurisdiction
    (d) writ jurisdiction

13. The power to increase the number of judges in the Supreme Court of India is vested in
    (a) the President of India
    (b) the Parliament
    (c) the Chief Justice of India
    (d) the Law Commission

2015 TEST PAPER

1. Consider the following statements regarding the Directive Principles of State Policy:
   1. The Principles spell out the socioeconomic democracy in the country.
   2. The provisions contained in these Principles are not enforceable by any court.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
2. Consider the following statements:
   1. The Rajya Sabha has no power either to reject or to amend a Money Bill.
   2. The Rajya Sabha cannot vote on the Demands for Grants.
   3. The Rajya Sabha cannot discuss the Annual Financial Statement.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (c) 2 and 3 only
3. The Government clearly defined
   (b) 1 and 2 only
   (d) 1, 2 and 3 of India Act of 1919
   (a) the separation of power between the judiciary and the legislature
   (b) the jurisdiction of the central and provincial governments
   (c) the powers of the Secretary of State for India and the Viceroy
   (d) None of the above
4. When a bill is referred to a joint sitting of both the Houses of the Parliament, it has to be passed by
   (a) a simple majority of members present and voting
   (b) three-fourths majority of members present and voting
   (c) two-thirds majority of the Houses

(d) absolute majority of the Houses

5. The Government of India has established NITI Aayog to replace the
   (a) Human Rights Commission
   (b) Finance Commission
   (c) Law Commission
   (d) Planning Commission
6. Consider the following statements:
   1. The Executive Power of the Union of India is vested in the Prime Minister.
   2. The Prime Minister is the ex officio Chairman of the Civil Services Board.

   Which of the statements given above is/are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
7. The provisions in Fifth Schedule and Sixth Schedule in the Constitution of India are made in order to
   (a) protect the interests of Scheduled Tribes
   (b) determine the boundaries between States
   (c) determine the powers, authority and responsibilities of Panchayats
   (d) protect the interests of all the border States
8. With reference to the Union Government, consider the following statements:
   1. The Department of Revenue is responsible for the preparation of Union Budget that is presented to the Parliament.
   2. No amount can be withdrawn from the Consolidated Fund of India without the authorization from the Parliament of India.
   3. All the disbursements made from Public Account also need the authorization from the Parliament of India.

   Which of the statements given above is/ are correct?
   (a) 1 and 2 only
   (b) 2 and 3 only
   (c) 2 only

(d) 1, 2 and 3

9. Who/Which of the following is the custodian of the Constitution of India?
   (a) The President of India
   (b) The Prime Minister of India
   (c) The Lok Sabha Secretariat
   (d) The Supreme Court of India
10. Which one of the following was given classical language status recently?
   (a) Odia
   (b) Konkani
   (c) Bhojpuri
   (d) Assamese
11. Consider the following statements:
   1. The Legislative Council of a State in India can be larger in size that half of the Legislative Assembly of that particular State.
   2. The Governor of State nominates the Chairman of Legislative Council of that particular State.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
12. “To uphold and protect the Sovereignty, Unity and Integrity of India” is a provision made in the
   (a) Preamble of the Constitution
   (b) Directive Principles of State Policy
   (c) Fundamental Rights
   (d) Fundamental Duries
13. The fundamental object of Panchayati Raj system is to ensure which among the following
   1. People’s participation in development
   2. Political accountability
   3. Democratic decentralization
   4. Financial mobilization

   Select the correct answer using the code given below.
   (a) 1, 2 and 3 only

(b) 2 and 4 only
(c) 1 and 3 only
(d) 1, 2, 3 and 4

14. The ideal of “Welfare State” in the Indian Constitution is enshrined in its
    (a) Preamble
    (b) Directive Principles of State Policy
    (c) Fundamental Rights
    (d) Seventh Schedule
15. There is a Parliamentary System of Government in India because the
    (a) Lok Sabha is elected directly by the people
    (b) Parliament can amend the Constitution
    (c) Rajya Sabha cannot be dissolved
    (d) Council of Ministers is responsible to the Lok Sabha

2016 TEST PAPER

1. Which of the following statements is/are correct?
   1. A Bill pending in the Lok Sabha lapses on its prorogation.
   2. A Bill pending in the Rajya Sabha, which has not been passed by the Lok Sabha, shall not lapse on dissolution of the Lok Sabha.

   Select the correct answer using the code given below.
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
2. Consider the following statements:
   1. The Chief Secretary in a State is appointed by the Governor of that State.
   2. The Chief Secretary in a State has a fixed tenure.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
3. With reference to the “Gram Nyayalaya Act’, which of the following statements is/are correct?
   1. As per the Act, Gram Nyayalayas can hear only civil cases and not criminal cases.
   2. The Act allows local social activists as mediators/reconciliators.

   Select the correct answer using the code given below.
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
4. The Parliament of India acquires the power to legislate on any item in the State List in the national interest if a resolution to that effect is passed by the
   (a) Lok Sabha by a simple majority of its total membership

(b) Lok Sabha by a majority of not less than two-thirds of its total membership
(c) Rajya Sabha by a simple majority of its total membership
(d) Rajya Sabha by a majority of not less than two-thirds of its members present and voting

5. Consider the following statements:
   1. The minimum age prescribed for any person to be a member of Panchayat is 25 years.
   2. A Panchayat reconstituted after premature dissolution continues only for the remainder period.

   Which of the statements given above is/are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
6. The Montague-Chelmsford Proposals were related to
   (a) Social reforms
   (b) educational reforms
   (c) reforms in police administration
   (d) constitutional reforms

2017 TEST PAPER

1. Which one of the following objectives is not embodied in the Preamble to the Constitution of India?
   (a) Liberty of thought
   (b) Economic liberty
   (c) Liberty of expression
   (d) Liberty of belief
2. The mind of the makers of the Constitution of India is reflected in which of the following?
   (a) The Preamble
   (b) The Fundamental Rights
   (c) The Directive Principles of State Policy
   (d) The Fundamental Duties
3. Which of the following are envisaged by the Right against Exploitation in the Constitution of India?
   1. Prohibition of traffic in human beings and forced labour
   2. Abolition of untouchability
   3. Protection of the interests of minorities
   4. Prohibition of employment of children in factories and mines

   Select the correct answer using the code given below:
   (a) 1, 2 and 4 only
   (b) 2, 3 and 4 only
   (c) 1 and 4 only
   (d) 1, 2, 3 and 4
4. Which one of the following statements is correct?
   (a) Rights are claims of the State against the citizens.
   (b) Rights are privileges which are incorporated in the Constitution of a State.
   (c) Rights are claims of the citizens against the State.
   (d) Rights are privileges of a few citizens against the many.
5. Which of the following statements is/ are true of the Fundamental Duties of an Indian citizen?
   1. A legislative process has been provided to enforce these duties.
   2. They are correlative to legal duties.

Select the correct answer using the code given below:
(a) 1 only
(b) 2 only
(c) Both 1 and 2
(d) Neither 1 nor 2

6. In the context of India, which one of the following is the correct relationship between Rights and Duties?
   (a) Rights are correlative with Duties.
   (b) Rights are personal and hence independent of society and Duties.
   (c) Rights, not Duties, are important for the advancement of the personality of the citizen.
   (d) Duties, not Rights, are important for the stability of the State.
7. Which principle among the following was added to the Directive Principles of State Policy by the 42nd Amendment to the Constitution?
   (a) Equal pay for equal work for both men and women
   (b) Participation of workers in the management of industries
   (c) Right to work, education and public assistance
   (d) Securing living wage and human conditions of work to workers
8. Consider the following statements:
   With reference to the Constitution of India, the Directive Principles of State Policy constitute limitations upon
   1. Legislative function.
   2. Executive function.

   Which of the above statements is/are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
9. For election to the Lok Sabha, a nomination paper can be filed by
   (a) Anyone residing in India.
   (b) A resident of the constituency from which the election is to be contested.

(c) Any citizen of India whose name appears in the electoral roll of a constituency.
(d) Any citizen of India.

10. Consider the following statements:
    1. In the election for Lok Sabha or State Assembly, the winning candidate must get at least 50 percent of the votes polled, to be declared elected.
    2. According to the provisions laid down in the Constitution of India, in Lok Sabha, the Speaker's post goes to the majority party and the Deputy Speaker's to the Opposition.

    Which of the statements given above is/ are correct?
    (a) 1 only
    (b) 2 only
    (c) Both 1 and 2
    (d) Neither 1 nor 2
11. Right to vote and to be elected in India is a
    (a) Fundamental Right
    (b) Natural Right
    (c) Constitutional Right
    (d) Legal Right
12. Consider the following statements:
    1. The Election Commission of India is a five-member body.
    2. Union Ministry of Home Affairs decides the election schedule for the conduct of both general elections and by-elections.
    3. Election Commission resolves the disputes relating to splits/mergers of recognized political parties.

    Which of the statements given above is/ are correct?
    (a) 1 and 2 only
    (b) 2 only
    (c) 2 and 3 only
    (d) 3 only
13. Which of the following are not necessarily the consequences of the proclamation of the President's rule in a State?
    1. Dissolution of the State Legislative Assembly
    2. Removal of the Council of Ministers in the State
    3. Dissolution of the local bodies

Select the correct answer using the code given below:

(a) 1 and 2 only
(b) 1 and 3 only
(c) 2 and 3 only
(d) 1, 2 and 3

14. Which one of the following is not a feature of Indian federalism?
    (a) There is an independent judiciary in India.
    (b) Powers have been clearly divided between the Centre and the States.
    (c) The federating units have been given unequal representation in the Rajya Sabha.
    (d) It is the result of an agreement among the federating units.
15. Local self-government can be best explained as an exercise in
    (a) Federalism
    (b) Democratic decentralization
    (c) Administrative delegation
    (d) Direct democracy
16. The Parliament of India exercises control over the functions of the Council of Ministers through
    1. Adjournment motion
    2. Question hour
    3. Supplementary questions

    Select the correct answer using the code given below:

    (a) 1 only
    (b) 2 and 3 only
    (c) 1 and 3 only
    (d) 1, 2 and 3
17. With reference to the Parliament of India, consider the following statements:
    1. A private member's bill is a bill presented by a Member of Parliament who is not elected but only nominated by the President of India.
    2. Recently, a private member's bill has been passed in the Parliament of India for the first time in its history.

    Which of the statements given above is/ are correct?

(a) 1 only
(b) 2 only
(c) Both 1 and 2
(d) Neither 1 nor 2

18. The main advantage of the parliamentary form of government is that
    (a) The executive and legislature work independently.
    (b) It provides continuity of policy and is more efficient.
    (c) The executive remains responsible to the legislature.
    (d) The head of the government cannot be changed without election.
19. Out of the following statements, choose the one that brings out the principle underlying the Cabinet form of Government:
    (a) An arrangement for minimizing the criticism against the Government whose responsibilities are complex and hard to carry out to the satisfaction of all.
    (b) A mechanism for speeding up the activities of the Government whose responsibilities are increasing day by day.
    (c) A mechanism of parliamentary democracy for ensuring collective responsibility of the Government to the people.
    (d) A device for strengthening the hands of the head of the Government whose hold over the people is in a state of decline.
20. In India, Judicial Review implies
    (a) The power of the Judiciary to pronounce upon the constitutionality of laws and executive orders.
    (b) The power of the Judiciary to question the wisdom of the laws enacted by the Legislatures.
    (c) The power of the Judiciary to review all the legislative enactments before they are assented to by the President.
    (d) The power of the Judiciary to review its own judgements given earlier in similar or different cases.
21. Democracy's superior virtue lies in the fact that it calls into activity
    (a) The intelligence and character of ordinary men and women.
    (b) The methods for strengthening executive leadership.

(c) A superior individual with dynamism and vision.
(d) A band of dedicated party workers.

22. One of the implications of equality in society is the absence of
(a) Privileges
(b) Restraints
(c) Competition
(d) Ideology

2018 TEST PAPER

1. In the federation established by the Government on India Act of 1935, Residuary Power were given to the
   (a) Federal Legislature
   (b) Governor General
   (c) Provincial Legislature
   (d) Provincial Governors
2. Consider the following statements :
   1. Aadhaar card can be used as a proof of citizenship or domicile.
   2. Once issued, Aadhaar number cannot be deactivated or omitted by the Issuing Authority.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
3. Right to Privacy is protected as an intrinsic part of Right to Life and Personal Liberty. Which of the following in the Constitution of India correctly and appropriately imply the above statement?
   (a) Article 14 and the provisions under the 42nd Amendment to the Constitution
   (b) Article 17 and the Directive Principles of State Policy in Part IV
   (c) Article 21 and the freedoms guaranteed in Part. III
   (d) Article 24 and the provisions under the 44th Amendment to the Constitution
4. With reference to the election of the President of India, consider the following statements:
   1. The value of the vote of each MLA varies from State to State.
   2. The value of the vote of MPs of the Lok Sabha is more than the value of the vote of MPs of the Rajya Sabha.

   Which of the statements given above is/ are Correct?
   (a) 1 only

(b) 2 only
(c) Both 1 and 2
(d) Neither 1 or 2

5. Consider the following statements:
   1. No criminal proceedings shall be instituted against the Governor of a State any court during his term of office.
   2. The emoluments and allowances of the Governor of a State shall not be diminished during his term of office.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
6. With reference to the Parliament of India, which of the following Parliamentary Committees scrutinizes and reports to the House whether the powers to make regulations, rules, sub-rules, by-laws, etc. conferred by the Constitution or delegated by the Parliament are being properly exercised by the Executive within the scope of such delegation?
   (a) Committee on Government Assurances
   (b) Committee on Subordinate Legislation
   (c) Rules Committee
   (d) Business Advisory Committee
7. Consider the following statements:
   1. The Speaker of the Legislative Assembly shall vacate his/her office if he/she ceases to be a member of the Assembly.
   2. Whenever the Legislative Assembly is dissolved, the Speaker shall vacate his/her office immediately.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
8. If the President of India exercises his power as provided under Article 356 of the Constitution in respect of a particular State, then
   (a) the Assembly of the State is automatically dissolved.

(b) the powers of the Legislature of that State shall be exercisable by or under the authority of the Parliament.
(c) Article 19 is suspended in that State.
(d) the President can make laws relating to that State.

9. Consider the following statements :
   1. The Parliament of India can place a particular law in the Ninth Schedule of the Constitution of India.
   2. The validity of a law placed in the Ninth Schedule cannot be examined by any court and no judgement can be made on it.

   Which of the statements given above is/ are correct ?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
10. Consider the following statements:
   1. In the first Lok Sabha, the single largest party in the opposition was the Swatantra Party.
   2. In the Lok Sabha, a “Leader of the Opposition” was recognized for the first time in1969.
   3. In the Lok Sabha, if a party does not have a minimum of 75 members, its leader cannot be recognized as the Leader of the Opposition.

   Which of the statements given above is/ are correct?
   (a) 1 and 3 only
   (b) 2 only
   (c) 2 and 3 only
   (d) 1, 2 and 3
11. Which one of the following reflects the nicest, appropriate relationship between law and liberty?
   (a) if there are more laws, there is less liberty.
   (b) If there are no laws, there is no liberty.
   (c) If there is liberty, laws have to be made by the people.
   (d) If laws are changed too often, liberty is in danger.
12. Which of the following are regarded as the main features of the “Rule of Law”?
   1. Limitation of powers
   2. Equality before law

3. People's responsibility to the Government
4. Liberty and civil rights

Select the correct answer using the code given below:

(a) 1 and 3 only
(b) 2 and 4 only
(c) 1, 2 and 4 only
(d) 1, 2, 3 and 4

13. Consider the following statements:
    1. As per the Right to Education (RTE) Act, to be eligible for appointment as a teacher in a State, a person would be required to possess the minimum qualification laid down by the concerned State Council of Teacher Education.
    2. As per the RTE Act, for teaching primary classes, a candidate is required to pass a Teacher Eligibility Test conducted in accordance with the National Council of Teacher Education guidelines.
    3. In India, more than 90% of teacher education institutions are directly under the State Governments.

    Which of the statements given above is/ are correct?

    (a) 1 and 2
    (b) 2 only
    (c) 1 and 3
    (d) 3 only

14. How is the National Green Tribunal (NGT) different from the Central Pollution Control Board (CPCB)?
    1. The NGT has been established by an Act whereas the CPCB has been created by an executive order of the Government.
    2. The NGT provides environmental justice and helps reduce the burden of litigation in the higher courts whereas the CPCB promotes cleanliness of streams and wells, and aims to improve the quality of air in the country.

    Which of the statements given above is/ are correct?

    (a) 1 only
    (b) 2 only
    (c) Both 1 and 2
    (d) Neither 1 nor 2

15. Regarding Money Bill, which of the following statement is not correct?
    (a) A bill shall be deemed to be a Money Bill if it contains only provisions relating to imposition, abolition, remission, alteration or regulation of any tax.
    (b) A Money Bill has provisions for the custody of the Consolidated Fund of India or the Contingency Fund of India.
    (c) A Money bill is concerned with the appropriation of moneys out of the Contingency Fund of India.
    (d) A Money Bill deals with the regulation of borrowing of money or giving of any guarantee by the Government of India.

2019 TEST PAPER

1. Which Article of the Constitution of India safeguards one's right to marry the person of one's choice?
   (a) Article 19
   (b) Article 21
   (c) Article 25
   (d) Article 29
2. Under which schedule of the Constitution of India can the transfer of tribal land to private parties for mining be declared null and void?
   (a) Third Schedule
   (b) Fifth Schedule
   (c) Ninth Schedule
   (d) Twelfth Schedule
3. Consider the following statements:
   1. As per recent amendment to the India Forest Act, 1927, forest dwellers have the right to fell the bamboos grown on the forest areas.
   2. As per the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, bamboo is a minor forest produce.
   3. The Scheduled Tribes and other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 allows ownership of minor forest produce to forest dwellers.

   Which of the following statements given above is/are correct?
   (a) 1 and 2 only
   (b) 2 and 3 only
   (c) 3 only
   (d) 1, 2 and 3
4. Consider the following statements :
   1. The 44th Amendment to the Constitution of India introduced an Article placing the election of the Prime Minister beyond judicial review.
   2. The Supreme Court of India struck down the 99th Amendment to the Constitution of India as being violative of the independence of judiciary.

Which of the statements given above is/ are correct?

(a) 1 only
(b) 2 only
(c) Both 1 and 2
(b) Neither 1 nor 2

5. The Ninth Schedule was introduced in the Constitution of India during the prime ministership of
   (a) Jawaharlal Nehru
   (b) Lal Bahadur Shastri
   (c) Indira Gandhi
   (d) Morarji Desai
6. With reference to the Constitution of India, consider the following statements :
   1. No High Court shall have the jurisdiction to declare any central law to be constitutionally invalid.
   2. An amendment to the Constitution of India cannot be called into question by the Supreme Court of India.

   Which of the statements given above is/ are correct?
   (a) 1 only
   (b) 2 only
   (c) Both 1 and 2
   (d) Neither 1 nor 2
7. With reference to the constitution of India, prohibition or limitations or provisions contained in ordinary laws cannot act as prohibitions or limitations on the constitutional powers under Article 142. It could mean which one of the following?
   (a) The decisions taken by the Election Commission of India while discharging its duties can not be challenged in any court of law.
   (b) The Supreme Court of India is not constrained in the exercise of its powers by laws made by the parliament.
   (c) In the event of grave financial crises in the country, the President of India can declare Financial Emergency without the counsel from the cabinet.
   (d) State Legislatures can not make laws on certain matters without the concurrence of the Union legislature.
8. Consider the following statements :

1. The motion to impeach a judge of the Supreme Court of India cannot be rejected by the Speaker of the Lok Sabha as per the Judges (Inquiry) Act, 1968.
2. The constitution of India defines and gives details of what constitutes “incapacity and proved misbehaviour” of the judges of the Supreme Court of India.
3. The details of the process of the impeachment of the judges of the Supreme Court of India are given in the judges (Inquiry) Act, 1968.
4. If the motion of the impeachment of a judge is taken up for voting, the law requires the motion to be backed by each house of the parliament and supported by a majority of total membership of that house and by not less than two-thirds of total members of that House present and voting.

Which of the statements given above is/ are correct?

(a) 1 and 2
(b) 3 only
(c) 3 and 4 only
(d) 1,3 and 4

9. Which one of the following suggested that the Governor should be an eminent person from outside the State and should be a detached figure without intense political links or should not have taken part in politics in the recent past?
   (a) First Administrative Reforms Commission (1966)
   (b) Rajamannar Committee (1969)
   (c) Sarkaria Commission (1983)
   (d) National Commission to Review the Working of the Constitution (2000)
10. Consider the following statements:
    1. The Parliament (Prevention of Disqualification) Act, 1959 exempts several posts from disqualification on the grounds of ‘Office of Profit’.
    2. The above-mentioned Act was amended five times.
    3. The term “Office of Profit” is well-defined in the Constitution of India.

    Which of the following statements given above is/are correct?

    (a) 1 and 2 only

(b) 3 only
(c) 2 and 3 only
(d) 1, 2 and 3

11. With reference to the Legislative Assembly of a State in India, consider the following statements:
    1. The Governor makes a customary address to members of the house at the commencement of the first session of the year.
    2. When a State Legislature does not have a rule on the particular matter, it follows the Lok Sabha rule on that matter.

    Which of the following statements given above is/are correct?
    (a) 1 only
    (b) 2 only
    (c) Both 1 and 2
    (d) Neither 1 nor 2
12. In the context of polity, which one of the following would you accept as the most appropriate definition of liberty?
    (a) Protection against the tyranny of political rulers
    (b) Absence of restraint
    (c) Opportunity to do whatever one likes
    (d) Opportunity to develop oneself fully.
13. Consider the following statements about “the Charter Act of 1813’:
    1. It ended the trade monopoly of the East India Company in India except for trade in tea and trade with China.
    2. It asserted the sovereignty of the British Crown over the Indian territories held by the Company.
    3. The revenues of India were now controlled by the British Parliament.

    Which of the statements given above are correct?
    (a) 1 and 2 only
    (b) 2 and 3 only
    (c) 1 and 3 only
    (d) 1, 2 and 3
14. In India, which of the following review the independent regulators in sectors like telecommunications, insurance, electricity, etc.?

1. Ad Hoc Committees set up by the Parliament
2. Parliamentary Department Related Standing Committees
3. Finance Commission
4. Financial Sector Legislative Reforms Commission
5. NITI Aayog

Select the correct answer using the code given below.

(a) 1 and 2
(b) 1, 3 and 4
(c) 3, 4 and 5
(d) 2 and 5

15. Consider the following statements:
    1. Petroleum and Natural Gas Regulatory Board (PNGRB) is the first regulatory body set up by the Government of India.
    2. One of the tasks of PNGRB is to ensure competitive markets for gas.
    3. Appeals against the decisions of PNGRB go before the Appellate Tribunals for Electricity.

    Which of the statements given above are correct?

    (a) 1 and 2 only
    (b) 2 and 3 only
    (c) 1 and 3 only
    (d) 1, 2 and 3

Answers

2010 TEST PAPER

1. **b**
2. **b**
3. **d**
4. **b**
5. **a**
6. **b**
7. **d**
8. **c**
9. **b**
10. **a**

2011 TEST PAPER

1. **c**
2. **c**
3. **d**
4. **b**
5. **c**
6. **b**
7. **d**
8. **a**
9. **d**
10. **d**
11. **a**
12. **b**

2012 TEST PAPER

1. **c**
2. **d**
3. **a**
4. **a**
5. **b**
6. **d**
7. **c**
8. **b**
9. **c**
10. **c**
11. **b**
12. **a**
13. **c**
14. **c**
15. **a**
16. **c**
17. **c**
18. **a**
19. **c**
20. **a**

2013 TEST PAPER

1. **b**
2. **b**
3. **a**
4. **b**
5. **b**
6. **b**
7. **c**
8. **d**
9. **b**
10. **c**
11. **a**
12. **c**
13. **c**
14. **d**
15. **c**
16. **d**
17. **d**
18. **c**

2014 TEST PAPER

1. **c**
2. **b**
3. **d**
4. **d**
5. **b**
6. **c**
7. **c**
8. **b**
9. **b**
10. **a**
11. **c**
12. **c**
13. **b**

2015 TEST PAPER

1. **c**
2. **b**
3. **b**

4. **a**
5. **d**
6. **d**
7. **a**
8. **c**
9. **d**
10. **a**
11. **d**
12. **d**
13. **c**
14. **b**
15. **d**

2016 TEST PAPER

1. **b**
2. **d**
3. **b**
4. **d**
5. **b**
6. **d**

2017 TEST PAPER

1. **b**
2. **a**
3. **c**
4. **c**
5. **d**
6. **a**
7. **b**
8. **d**
9. **c**
10. **d**
11. **d**
12. **d**
13. **b**
14. **d**
15. **b**
16. **d**

17. **d**
18. **c**
19. **c**
20. **a**
21. **a**
22. **a**

2018 TEST PAPER

1. **b**
2. **d**
3. **c**
4. **a**
5. **c**
6. **b**
7. **a**
8. **b**
9. **a**
10. **b**
11. **b**
12. **c**
13. **b**
14. **b**
15. **c**

2019 TEST PAPER

1. **b**
2. **b**
3. **b**
4. **b**
5. **a**
6. **d**
7. **b**
8. **c**
9. **c**
10. **a**
11. **a**
12. **d**
13. **a**

14. **a**
15. **b**

Appendix VIII Practice Questions on Indian Polity (General Studies—Prelims)

1. The Chairman of which of the following parliamentary committees is invariably from the members of ruling party?
   (a) Committee on Public Undertakings
   (b) Public Accounts Committee
   (c) Estimates Committee
   (d) Committee on Delegated Legislation
2. Which of the following is not a formally prescribed device available to the members of Parliament?
   (a) Question Hour
   (b) Zero Hour
   (c) Half-an-hour discussion
   (d) Short duration discussion
3. Which of the following is exclusively a committee of the Lower House:
   (a) Committee on Assurances
   (b) Committee on Delegated Legislation
   (c) Committee on Public Undertakings
   (d) Estimates Committee
4. Which one of the following devices calls the attention of minister towards a matter of public importance?
   (a) Half-an-hour discussion
   (b) Calling attention notice
   (c) Short duration discussion
   (d) Adjournment motion
5. Central Vigilance Commission was set up on the recommendation of:
   (a) Administrative Reforms Commission of India
   (b) Gorwala Report
   (c) Kripalani Committee
   (d) Santhanam Committee
6. The institution of Lokayukta was created for the first time by the state of:
   (a) Orissa
   b. Bihar
   (c) Punjab
   d. Maharashtra
7. The correct statements about zero hour includes:
   1. It is the first hour of every sitting in both the houses of Parliament.
   2. It is mentioned in the Rules of Business of the houses of Parliament.
   3. During this time, matters are raised without any prior notice.
   4. It is the time immediately following the Question Hour in both the houses of Parliament.
   5. It is an Indian innovation in parliamentary procedure since 1964.
   (a) 2, 3 and 4

(b) 3 and 4
(c) 1, 2 and 5
(d) 2, 3 and 5

8. The correct statements about calling attention notice are:
   1. It is a device of calling the attention of a minister to a matter of urgent public importance.
   2. Its main purpose is to seek an authoritative statement from the minister.
   3. It does not involve any censure against government.
   4. It is an Indian innovation in the parliamentary procedure since 1952.
   5. It is not mentioned in the Rules of Business and Procedure.
      (a) 1, 2, 3 and 4
      (b) 4 and 5
      (c) 1, 2, 3 and 5
      (d) 1, 2 and 3
9. Which of the following statements are true of Adjournment Motion?
   1. It is an extraordinary procedure which sets aside the normal business of the House.
   2. Its main object is to draw the attention of the House to a recent matter of urgent public importance.
   3. The Rajya Sabha can make use of this procedure.
   4. It must be supported by not less than 50 members for introduction.
   5. It involves an element of censure against government.
      (a) 1, 2, 4 and 5
      (b) 2, 3 and 5
      (c) 2, 3 and 4
      (d) 1, 2 and 4
10. Which of the following statements are incorrect about the difference between the writ jurisdiction of the Supreme Court and high courts in India?
    1. The Supreme Court can issue writs not only for the purpose of enforcement of Fundamental Rights but also for any other purpose, whereas high courts can issue writs only for the purpose of enforcement of Fundamental Rights.
    2. High courts can issue the writ of Injunction, whereas the Supreme Court cannot issue the writ of Injunction.
    3. The Supreme Court can issue writs only in the case of appeal, whereas high courts can issue writs only when the party directly approaches it.
    4. High courts can issue writs not only for the purpose of enforcement of Fundamental Rights but also for any other purpose, whereas the Supreme Court can issue writs only for the purpose of enforcement of Fundamental Rights.
       (a) 1 and 2
       (b) 1, 2 and 3
       (c) 2 and 3
       (d) 4 only
11. No-confidence Motion, to be admitted in the Lok Sabha, needs the support of:

(a) 80 Members
(b) 140 Members
(c) 160 Members
(d) 50 Members

12. Which of the following statements are incorrect about unstarred question?
    1. It is distinguished by an asterisk mark.
    2. Answer to such a question is given orally.
    3. Answer to such a question is not followed by supplementary questions.
    4. It does not carry an asterisk mark.
    5. Answer to such a question is given in a written form.
    (a) 2 and 3
    (b) 3, 4 and 5
    (c) 1 and 2
    (d) 2, 3 and 4

Assertion (A) and Reason (R) Pattern

Answer the following questions by using the codes given below.
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

13. Assertion: The writ jurisdiction of the Supreme Court and high courts in India is same. Reason: Both, the Supreme Court and the High Court can issue the writs of Habeas Corpus, Mandamus, Prohibition, Certiorari and Quo warranto.
14. Assertion: In democracy, the ultimate responsibility of administration is to the people.
    Reason: The democratic government is based on the principle of popular sovereignty.

Matching Pattern

Match List-I with List-II and select correct answer by using the codes given below the lists.

15.

List-I (Writs)	List-II (Literal meanings)
A. Mandamus	1. "By what warrant or authority'
B. Habeas Corpus	2. "We command'
C. Quo warranto	3. "To be certified'
D. Certiorari	4. "You may have the body" or "To have the body of'

Codes:	A	B	C	D
(a)	2	3	4	1
(b)	2	4	3	1
(c)	1	4	2	3
(d)	2	4	1	3

16.

List-I (Provisions)	List-II (Contained in)
A. Writ jurisdiction of the Supreme Court	1. Article 13
B. Suits against government	2. Article 226
C. Writ jurisdiction of the High Court	3. Article 300
D. Source of the power of judicial review	4. Article 32
	5. Article 166

Codes:	A	B	C	D
(a)	4	3	5	1
(b)	3	4	2	5
(c)	4	3	2	1
(d)	5	4	3	2

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17. The final work of UPSC in recruitment process is:
    (a) Selection
    (b) Appointment
    (c) Certification
    (d) Placement
18. The conditions of service of members of All-India Services are determined by:
    (a) President of India
    (b) Constitution of India
    (c) Parliament of India
    (d) Union Public Service Commission

Assertion (A) and Reason (R) Pattern

Answer the following questions by using the following codes.
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

19. Assertion: India has imposed severe restrictions on the political activities of civil servants.
    Reason: The civil servants in India enjoy the right to vote.
20. Assertion: A member of All-India Service can appeal against the order of a State Government to the President of India.
    Reason: Article 311 of the Constitution says that a civil servant cannot be removed or dismissed by any authority which is subordinate to the authority by which he was appointed.
21. The Vote on Account is passed:
    (a) After the voting of demands
    (b) Before the general discussion
    (c) After the general discussion
    (d) Either after the voting of the demands or after the general discussion.

22. Arrange the following stages in the enactment of budget in proper order:
    1. General discussion
    2. Appropriation Bill
    3. Finance Bill
    4. Voting of the demands for grant
    5. Presentation to legislature
        (a) 1, 2, 3, 4, 5
        (b) 5, 1, 4, 2, 3
        (c) 5, 1, 4, 3, 2
        (d) 5, 1, 3, 4, 2
23. Which of the following documents are presented to the legislature along with the budget?
    1. An explanatory memorandum on the budget
    2. A summary of demands for grants
    3. An Appropriation Bill
    4. A Finance Bill
    5. The economic survey
        (a) 1, 3 and 5
        (b) 1, 2 and 3
        (c) 2, 3 and 5
        (d) 1, 2, 3 and 4
24. Which of the following is not a condition of admissibility of cut motions in the Parliament?
    (a) It should not make suggestions for the amendment of existing laws.
    (b) It should not relate to expenditure charged on the Consolidated Fund of India.
    (c) It should relate to more than one demand.
    (d) It should not raise a question of privilege.
25. The ultimate responsibility of taking due action on the comments of the C & AG vests with:
    (a) President of India
    (b) Supreme Court
    (c) Parliament
    (d) National Development Council
26. The word “Budget” is mentioned in which of the following Articles of the Constitution of India:
    (a) Art. 266
    (b) Art. 112
    (c) Art. 265
    (d) None
27. Which of the following statements are incorrect?
    1. Rajya Sabha can reject a Money Bill.
    2. Rajya Sabha can make recommendations on a Money Bill.
    3. Rajya Sabha cannot reject a Money Bill.
    4. Rajya Sabha should return the Money Bill to the Lok Sabha within 14 days.

5. Rajya Sabha can amend a Money Bill.
   (a) 2, 3 and 4
   (b) 1, 2 and 5
   (c) 1 and 5
   (d) only 1

28. Which of the following expenditures are charged upon the Consolidated Fund of India?
   1. Allowances of the Chairman of Lok Sabha.
   2. Expenditure relating to the raising of loans and the service and redemption of debt.
   3. Pensions of the judges of High Courts.
   4. Any sum required to satisfy the award of any arbitration tribunal.
   5. Administrative expenses of the office of the Comptroller and AuditorGeneral

   (a) 2 and 5
   (b) 1, 2 and 5
   (c) 2, 3 and 4
   (d) 1, 2, 3, 4 and 5

29. The correct statements about Public Account of India are:
   1. The public account is the fund to which all public moneys received by or on behalf of the government are credited.
   2. No legislative appropriation is required for payments from the Public Account of India.
   3. Legislative appropriation is required for payments from the Public Account of India.
   4. All public moneys, other than those credited to the Consolidated Fund of India, which are received by or on behalf of the government are credited to the Public Account of India.
   5. It is operated by executive action.
      (a) 1, 2 and 5
      (b) 1, 3 and 5
      (c) 2, 4 and 5
      (d) 2 and 4

30. Which of the following statements are incorrect?
   1. Appropriation Bill cannot be amended while the Finance Bill can be amended.
   2. Finance Bill cannot be amended while Appropriation Bill can be amended.
   3. Same procedure governs both the Appropriation Bill and the Finance Bill.
   4. Appropriation Bill and the Finance Bill are governed by different procedures.
   5. Appropriation Bill cannot be rejected by the Rajya Sabha while Finance Bill can be rejected by it.
      (a) 2 and 4
      (b) 2, 4 and 5

(c) 1 and 3
(d) 1, 3 and 5

Matching Pattern

Match List-I with List-II and select the correct answer by using the codes given below the lists.

31.

List-I	List-II
A. Token Cut Motion	1. "That the amount of the demand be reduced by a specified amount."
B. Economy Cut Motion	2. "That the amount of the demand be reduced by '1."
C. Policy Cut Motion	3. "That the amount of the demand be reduced by '100."
	4. "That the amount of the demand be reduced to '1."
	5. "That the amount of the demand be reduced to '100."

Codes:	A	B	C
(a)	5	1	2
(b)	5	3	1
(c)	3	1	4
(d)	3	5	2

32.

List-I (Terms)	List-II (Defined by)
A. Consolidated Fund of India	1. Article 110
B. Money Bill	2. Article 267
C. Annual Financial Statement	3. Article 266
D. Contingency Fund of India	4. Article 265
	5. Article 112

Codes:	A	B	C	D
(a)	4	1	5	3
(b)	2	1	5	4
(c)	4	1	5	2
(d)	3	1	5	2

Assertion (A) and Reason (R) Pattern

Answer the following questions by using the codes given below.
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

33. Assertion: The budget makes a distinction between the expenditure "charged" on the Consolidated Fund of India and the expenditure "made"

from the Consolidated Fund of India.
Reason: The expenditure “charged” on the Consolidated Fund of India is not subject to the vote of Parliament.

34. Assertion: No expenditure can be incurred without the approval of the Parliament. Reason: Our democratic government, like that of Britain, is based on the concept of sovereignty of the parliament.
35. Assertion: The Rajya Sabha has less powers in financial matters.
Reason: The Lok Sabha alone votes the demands for grants.
36. Assertion: The expenditure “charged” on the Consolidated Fund of India is not subject to the vote of Parliament. Reason: It is in the nature of obligatory payment.
37. The Finance Commission does not recommend on:
    (a) The distribution of net proceeds of taxes between the union and the states.
    (b) The principles to be followed by the centre while giving grants-in-aid to the states out of the consolidated Fund of India.
    (c) The amount of money to be allocated to the states from Public Account of India.
    (d) Any other matter referred to the Commission by President in the interest of sound finance.
38. Which of the following statements about President’s ordinance-making power is not correct?
    (a) It is co-extensive with legislative power of Parliament.
    (b) Laid down in Article 123.
    (c) Shall cease to operate on expiry of six weeks from the reassembly of the Parliament.
    (d) Cannot be withdrawn at any time by the President.
39. The salient features of the Government of India Act, 1935 are:
    1. All India Federation
    2. Provincial Autonomy
    3. Dyarchy at the Centre
    4. Abolition of Dyarchy in the states
        (a) 1 and 2
        (b) 1, 2 and 3
        (c) 2, 3 and 4
        (d) 1, 2, 3 and 4
40. The accounts of the Union and of the States shall be kept in such form as prescribed by:
    (a) Finance Minister of India in consultation with CAG of India.
    (b) CAG of India with the approval of Planning Commission.
    (c) CAG of India with the approval of the President.
    (d) President of India in consultation with CAG of India
41. Which of the following acts introduced the principle of election in India?
    (a) Indian Councils Act of 1861
    (b) Indian Councils Act of 1892
    (c) Indian Councils Act of 1909

(d) Indian Councils Act of 1919

42. The features of Indian federal system are:
    1. Division of powers
    2. Separation of powers
    3. Independent judiciary
    4. Leadership of the Prime Minister
    5. A written Constitution
    (a) 2, 3 and 5
    (b) 1, 4 and 5
    (c) 1, 2 and 5
    (d) 1, 3 and 5
43. Which of the following is not correct about Finance Commission?
    (a) Constituted at the expiration of every fifth year.
    (b) Recommends the distribution of proceeds of taxes between Centre and states.
    (c) Consists of a Chairman and four other members.
    (d) Its advice is binding on the Government.
44. Which of the following is correctly matched?
    (a) 1909 Act – Principle of election
    (b) 1919 Act – Provincial autonomy
    (c) 1935 Act – Dyarchy in states
    (d) 1947 Act – Responsible government
45. The CAG of India can be removed from the office only in like manner and on like grounds as:
    (a) Chairman of the UPSC
    (b) Supreme Court Judge
    (c) Attorney General of India
    (d) Speaker of Lok Sabha
46. Statutory recognition to the portfolio system was accorded by:
    (a) Indian Councils Act of 1892
    (b) Indian Councils Act of 1871
    (c) Indian Councils Act of 1861
    (d) Indian Councils Act of 1882
47. Dyarchy was introduced by:
    (a) Indian Councils Act of 1909
    (b) Government of India Act of 1919
    (c) Government of India Act of 1935
    (d) Independence Act of 1947
48. Which of the following is not a feature of Government of India Act of 1935?
    (a) Dyarchy at the Centre
    (b) All-India Federation
    (c) Provincial autonomy
    (d) Dyarchy in the provinces
49. Which one of the following amendments to the Constitutions, for the first time, made it obligatory for the President to act on the advice of the council of ministers?

(a) 24th amendment
(b) 42nd amendment
(c) 44th amendment
(d) 54th amendment

50. The Indian federation is based on the pattern of:
(a) Switzerland
(b) USA
(c) Russia
(d) Canada

51. Who said the “Indian Constitution established a unitary state with subsidiary federal features rather than federal state with subsidiary unitary features?”
(a) Granville Austin
(b) Ivor Jennings
(c) B.R. Ambedkar
(d) K.C. Wheare

52. Which of the following are not correct about CAG of India?
1. He is appointed by the President for a period of five years.
2. His salary and conditions of service are determined by President.
3. He shall vacate office on attaining the age of 60 years.
4. He can be removed by the President on his own.
5. He is responsible for maintaining the accounts of Central and state governments.
(a) 1, 4 and 5
(b) 2, 3 and 4
(c) 1, 2, 3, 4 and 5
(d) 3, 4 and 5

53. Which of the following are correct about Vice Chairperson of NITI Aayog?
1. He is appointed by the President.
2. He enjoys the status of a Cabinet-rank minister.
3. He is a member of the Union cabinet.
4. He attends Cabinet meetings as a special invitee.
5. He is the de facto executive head of the Aayog.
(a) 1, 2, 4 and 5
(b) 2, 3, 4 and 5
(c) 2, 4 and 5
(d) 1, 2, 3 and 5

53. The correct statements about the Directive Principles of State Policy are:
1. They are borrowed from the Irish Constitution.
2. They are incorporated in Part V of the Constitution.
3. They seek to provide social and economic base to democracy.
4. The state must compulsorily implement them.
5. All of them are Gandhian in nature.
(a) 1, 2, 3 and 5
(b) 1, 3 and 5
(c) 1, 3, 4 and 5
(d) 1 and 3

55. The Governor-General of Bengal became the Governor-General of India by:
    (a) Government of India Act of 1858
    (b) Indian Councils Act of 1861
    (c) Pitts India Act of 1784
    (d) Charter Act of 1833
56. Which is incorrectly matched?
    (a) Prohibition of Discrimination— Article 15
    (b) Right to Association—Article 19.
    (c) Right to Protection of Life—Article 20.
    (d) Right to Constitutional Remedies— Article 32.
57. Who characterises Indian Union as "a federation with a centralising tendency?"
    (a) B.R. Ambedkar
    (b) K.C. Wheare
    (c) Ivor Jennings
    (d) Granville Austin
58. Which act provided for direct control of Indian affairs by the British Government?
    (a) Charter Act of 1858
    (b) Regulating Act of 1773
    (c) Pitts India Act of 1784
    (d) Charter Act of 1833
59. The correct statements about Fundamental Rights are:
    1. They are enforceable in the court of law.
    2. These rights are absolute.
    3. They can be suspended during national emergency, except some.
    4. They are available only to Indian citizens.
    5. They are contained in Part IV of the Constitution.
        (a) 1, 3, 4 and 5
        (b) 1, 2, 3 and 5
        (c) 1 and 3
        (d) 1, 3 and 5
60. The words 'socialist' and 'secular' were added to the Preamble by:
    (a) 41st amendment
    (b) 44th amendment
    (c) 46th amendment
    (d) 42nd amendment
61. No demand for a grant is to be made except on the recommendation of:
    (a) Prime Minister
    (b) President
    (c) Finance Minister
    (d) Comptroller and Auditor-General
62. The features of Government of India Act of 1858 includes:
    1. Replacement of Company rule by the Crown rule.
    2. Establishment of a Board of Control over the Court of Directors.

3. Reaffirmation of the system of open competition.
4. Separating the legislative and executive functions of the Governor-General.
5. Creation of a new office of the Secretary of State for India.
   (a) 1, 3 and 4
   (b) 1, 2 and 4
   (c) 1 and 5
   (d) 1, 3 and 5

63. Which of the following are not the federal features of Indian Constitution?
   1. Supremacy of Constitution
   2. All-India services
   3. Single citizenship
   4. Independent judiciary
   5. Bicameral legislature
   6. Integrated judiciary
      (a) 1, 4 and 5
      (b) 1, 5 and 6
      (c) 2, 3 and 6
      (d) 2, 3 and 4

64. The features of Indian parliamentary system are:
   1. Independent judiciary.
   2. Collective responsibility of the executive to the legislature.
   3. A written Constitution.
   4. Presence of de jure and de facto executives.
   5. Individual responsibility of the executive to the legislature.
      (a) 2, 3 and 4
      (b) 1, 2 and 4
      (c) 2, 4 and 5
      (d) 1, 2, 4 and 5

65. The President of India is elected by an electoral college consisting of:
   (a) Members of Parliament and state legislatures
   (b) Elected members of Parliament and state legislatures
   (c) Elected members of Parliament and state legislative assemblies
   (d) Elected members of Lok Sabha and members of Rajya Sabha and state Legislative Assemblies

66. Which of the following acts laid the foundation of Central administration?
   (a) Charter Act of 1833
   (b) Regulating Act of 1773
   (c) Charter Act of 1853
   (d) Pitts India Act of 1784

Matching Pattern

Match List I with List II and select the correct answers by using codes given below the lists.

67. List-I List-II

A. Bicameral system
B. Legislative devolution
C. Separate electorate
D. Provincial autonomy

1. Government of India Act of 1935
2. Indian Councils Act of 1861
3. Montagu-Chelmsford Reforms
4. Indian Councils Act of 1892
5. Minto-Morely Reforms.

Codes:	A	B	C	D
(a)	5	2	3	1
(b)	3	4	5	1
(c)	3	2	5	1
(d)	5	4	3	1

68.

List-I	List-II
A. Equality in Public employment	1. Article 29
B. Minorities rights	2. Article 21
C. Right to personal liberty	3. Article 23
D. Right against exploitation	4. Article 16
	5. Article 25

Codes:	A	B	C	D
(a)	5	2	3	1
(b)	3	4	5	1
(c)	3	2	5	1
(d)	5	4	3	1

69.

List-I	List-II
A. Withholding of assent	1. Qualified veto
B. Overridden by an ordinary majority	2. Pocket veto
C. Taking no action on the bill	3. Absolute veto
D. Overriden by a higher majority	4. Suspensive veto
	5. Majority veto

Codes:	A	B	C	D
(a)	3	4	2	1
(b)	4	3	2	5
(c)	5	3	1	2
(d)	3	4	2	1

70.

List-I	List-II
A. Third Schedule	1. Allocation of seats in Upper House
B. Ninth Schedule	2. Disqualification on Grounds of defection
C. Fourth Schedule	3. Validation of certain acts
D. Tenth Schedule	4. Languages
	5. Forms of affirmations

Codes:	A	B	C	D
(a)	5	2	3	1

(b) 3 4 5 1
(c) 3 2 5 1
(d) 5 4 3 1

Assertion (A) and Reason (R) Pattern

Answer the following questions by using the codes given below.
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

71. Assertion: India has adopted the parliamentary form of government.
Reason: The President is the titular head of the state while the council of ministers headed by the Prime Minister is the real executive authority.
72. Assertion: A person who holds, or who has held, office as President shall not be eligible for re-election to that office. Reason: No person shall be eligible for election as a President unless he is qualified for election as a member of the House of People.
73. Assertion: All doubts and disputes arising out of or in connection with the election of a President or Vice-President shall be inquired into and decided by the Supreme Court whose decision shall be final. Reason: Parliament may, by law, regulate any matter relating to or connected with the election of a President or a VicePresident.
75. The Central Administrative Tribunal deals with:
    (a) Recruitment matters
    (b) Promotion matters
    (c) Disciplinary matters
    (d) Recruitment and all service matters
76. Which of the following can provide for the appointment of a Joint Public Service Commission?
    (a) President of India
    (b) Parliament of India
    (c) UPSC
    (d) State Governors
77. The origins of UPSC can be traced to:
    (a) 1909 Act
    (b) 1919 Act
    (c) 1930 Act
    (d) 1947 Act
78. The functions of the UPSC can be extended by:
    (a) President
    (b) Prime Minister
    (c) Ministry of Personnel
    (d) Parliament

79. The personnel system of any local authority, corporate body or public institution can be placed within the jurisdiction of the UPSC by:
    (a) President of India
    (b) Central Ministry of Personnel
    (c) Parliament
    (d) Supreme Court
80. The Chairman and members of the UPSC hold office for a term of:
    (a) Three years
    (b) Four years
    (c) Five years
    (d) Six years
81. Who is regarded as the “Father of All-India Services?”
    (a) Lord Macaulay
    (b) Lord Cornwallis
    (c) B.R. Ambedkar
    (d) Sardar Patel
82. A Joint Public Service Commission can be created by:
    (a) An order of the President
    (b) A resolution of the Rajya Sabha
    (c) An act of Parliament
    (d) A resolution of the concerned state legislatures
82. Which of the following statements are correct?
    1. The Constitution does not fix the number of members of the UPSC.
    2. One-half of the members of the UPSC should be persons who have held office under the Government of India or of a state at least for five years.
    3. The Chairman and members of the UPSC hold office for a term of five years or until they attain the age of 60 years.
    4. The salaries and allowances of the members of the UPSC are determined by the Parliament.
    5. The entire expanses of UPSC are charged on the Consolidated Fund of India.
        (a) 2, 4 and 5
        (b) 1 and 5
        (c) 2, 3 and 4
        (d) 1, 4 and 5
84. Which of the following statements related to the Central Administrative Tribunal are correct?
    1. It is a statutory body.
    2. Its members are drawn from administrative background only.
    3. It is not bound by the procedure prescribed in the code of civil procedure.
    4. Its jurisdiction covers the members of All India Services as well as Central Services and Central Government posts.
    5. It was setup in 1985.
        (a) 2, 3 and 5

(b) 1 and 4
(c) 1, 3, 4 and 5
(d) 2 and 3

Assertion (A) and Reason (R) Pattern

Answer the following questions by using the codes given below
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not the correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

85. Assertion: All-India Services are instruments of national integration.
Reason: Its members are appointed by President of India.
86. Assertion: Chairman and members of the UPSC are appointed by President. Reason: The UPSC is a constitutional body.
87. Assertion: The salaries of the members of the UPSC cannot be changed to their disadvantage during their tenure. Reason: The independence of the Public Service Commission has to be maintained.
88. Assertion: The Constitution has not fixed the number of members of the UPSC.
Reason: The Chairman and members of the UPSC are appointed by President.
89. Which of the following statements are true about the Governor of a state?
    1. The executive power of the state is vested in him.
    2. He must have attained 35 years of age.
    3. He holds office during the pleasure of the President.
    4. The grounds for his removal are laid down in the Constitution.
        (a) 1, 2, and 4
        (b) 1, 2 and 3
        (c) 1, 3 and 4
        (d) 1, 2, 3 and 4
90. The recommendations of the Ashok Mehta Committee on Panchayati Raj are:
    1. Creation of a two-tier system
    2. Reservation of seats for SCs and STs
    3. Compulsory powers of taxation to Panchayati Raj institutions
    4. Open participation of political parties in Panchayati Raj affairs
    5. If superceded, elections must be held within one year
        (a) 1, 3 and 4
        (b) 1, 2, 4 and 5
        (c) 1, 2, 3 and 4
        (d) 1, 3, 4 and 5
91. District Judges are appointed by:
    (a) The Chief Justice of High Court
    (b) The State Public Service Commission
    (c) The Chief Minister of state

(d) The Governor of state

92. Money bill can be introduced in the state legislature only on the recommendation of:
    (a) Speaker
    (b) Finance Minister
    (c) Chief Minister
    (d) Governor
93. According to the Balwantray Mehta Committee, the District Collector should be:
    (a) Kept out of the Zila Parishad
    (b) A non-voting member of the Zila Parishad
    (c) A member of the Zila Parishad with the right to vote
    (d) The Chairman of the Zila Parishad
94. The Balwantray Mehta Committee was a committee on:
    (a) Democratic-decentralisation
    (b) Panchayati Raj institutions
    (c) Administrative arrangements for rural development
    (d) Community development programme
95. Panchayati Raj form of rural local government was adopted first by (in the order):
    (a) Rajasthan and Madhya Pradesh
    (b) Andhra Pradesh and West Bengal
    (c) Rajashtan and Andhra Pradesh
    (d) Andhra Pradesh and Rajasthan
96. The District and sessions Judge works directly under the control of:
    (a) District Collector
    (b) Governor of the state
    (c) Law Minister of the state
    (d) High Court of the state
97. Which of the following is a committee on Panchayati Raj institutions?
    (a) Balwantray Mehta Committee
    (b) G.V.K. Rao Committee
    (c) L.M. Singhvi Committee
    (d) Ashok Mehta Committee
98. “The state shall take steps to organise village Panchayats and endow them with such powers as may be necessary to enable them to function as units of self-government.” This provision is mentioned in:
    (a) Part I of the Constitution
    (b) Part IV-A of the Constitution
    (c) Part III of the Constitution
    (d) Part IV of the Constitution
99. A President’s rule can be imposed in a state under the provisions of:
    1. Article 356 2. Article 360
    3. Article 352
    4. Article 365
        (a) only 1

(b) 1 and 3
(c) 1 and 4
(d) 1 and 2

100. Which of the following Constitutional Amendment act provided for the appointment of the same person as Governor for two or more states?
(a) 4th Amendment
(b) 7th Amendment
(c) 11th Amendment
(d) 24th Amendment

101. Article 154 states that the Governor can exercise his executive authority either directly or through officers subordinate to him. The word subordinates includes:
(a) All the ministers and the Chief Minister
(b) All the ministers except the Chief Minister
(c) Only the Chief Minister and the Deputy Chief Minister
(d) Only the Cabinet Ministers

102. In the event of declaration of constitutional emergency in the state, the President can:
1. Assume to himself all the functions of the state government including the High Court.
2. Declare that the powers of the state legislature shall be exercisable under the authority of the Governor.
3. Assume to himself all the functions of the state government except the High Court.
4. Declare that the powers of the state legislature shall be exercisable under the authority of the parliament.

Of the above, the correct statements are:
(a) 1 and 2
(b) 2 and 3
(c) 3 and 4
(d) 1 and 4

103. The correct statements about ordinance making power of the Governor are:
1. It is laid down in Article 213.
2. It can be issued by him after the advice of the President or state council of ministers.
3. It is co-extensive with the legislative power of the state legislature.
4. It can be issued only during the recess of State Legislative Assembly and not the Legislative Council.
5. It can not be withdrawn by him anytime.

(a) 2, 3 and 4
(b) 1, 3 and 5
(c) 1, 2 and 3
(d) 2, 4 and 5

104. Panchayati Raj is a system of:
(a) Local government
(b) Local administration

(c) Local self-government
(d) Rural local self-government

105. Which of the following are the features of 74th Amendment Act on municipalities?
1. Reservation of seats for SCs and STs in proportion of their population (to the total population) in municipal Area.
2. Mandatory periodic elections every 5 years.
3. The procedure for maintenance of accounts and audit would be decided by the State Governor.
4. Constitution of Nagar Panchayats for smaller urban area.
5. One-third of the seats shall be reserved for women, excluding the number of seats reserved for SC and ST women.

(a) 1, 2 and 4
(b) 2, 3 and 5
(c) 3, 4 and 5
(d) 1 and 2

Assertion (A) and Reason (R) Pattern

Answer the following questions by using the codes given below:
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

106. Assertion: Under the Constitution, the Chief Minister holds office till the pleasure of the Governor.
Reason: The Chief Minister is appointed by the Governor.

107. Assertion: Lord Ripon's Resolution of 1882 was hailed as the 'Magna Carta' of local government.
Reason: Lord Ripon is regarded as the 'father of local self-government in India.'

108. Assertion: The 73rd amendment to the Constitution gives a constitutional status to the Gram Sabha.
Reason: The Balvantray Mehta Committee report made a formal mention of the Gram Sabha.

110. Assertion: The Governor shall hold office during the pleasure of the President. Reason: The Governor of a state shall be appointed by the President India.

Matching Pattern

Match List-I with List-II and select the correct answer by using the codes given below the lists.

111.

List-I	List-II
A. Deliberative organisation	1. Commissioner
B. Formal head	2. Standing Committee

C. Management
D. Executive body

3. Mayor
4. Council

Codes:

	A	B	C	D
(a)	4	2	3	1
(b)	3	2	1	4
(c)	2	3	1	4
(d)	4	3	2	1

112.

List-I (States)	List-II (Governor's special responsibilities)
A. Madhya Pradesh	1. Law and order
B. Gujarat	2. Administration of tribal areas
C. Nagaland	3. Development of backward areas
D. Assam	4. Minister for Tribal Welfare
	5. Hill Areas Committee working

Codes:

	A	B	C	D
(a)	3	4	2	5
(b)	2	1	4	3
(c)	4	3	1	2
(d)	5	3	2	4

113.

List-I (Committees)	List-II (Setup on)
A. G.V.K. Rao Committee	1. Panchayati Raj institutions
B. Balvantray Mehta Committee	2. Revitalisation of PRIs for democracy and development
C. L.M. Singhvi Committee	3. Existing administrative arrangements for Rural Development and Poverty Alleviation Programmes.
D. Ashok Mehta Committee	4. Community Development Programme and National Extension Service.
	5. Panchayati Raj elections

Codes: A B C D

(a) 4 3 1 2
(b) 4 3 2 1
(c) 3 4 2 1
(d) 3 4 1 2

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114. The Governor of a state:
1. Possesses executive, legislative and judicial powers analogous to the President.
2. Has to act with the aid and advice of the council of ministers always.
3. Has the power to appoint and remove the members of State Public Service Commission.

4. Has the power to allocate business of the government among the various ministers.

Of the above, the correct statements are:

(a) 1 and 2
(b) 2, 3 and 4
(c) 1 and 4
(d) 1, 3 and 4

115. The Constitution says that the state council of ministers hold office during the pleasure of the Governor. The words “during the pleasure of the Governor” in reality means:
(a) Pleasure of the President
(b) Pleasure of the Prime Minister
(c) Pleasure of the Chief Minister
(d) Pleasure of the Legislative Assembly

116. The term “Cabinet” is mentioned in which of the following articles of the Constitution?
(a) Article 74
(b) Article 75
(c) Article 352
(d) Not mentioned in the Constitution

117. Which of the following statements with regard to the CAG are correct?
1. He is responsible only to the Parliament.
2. He certifies the net proceeds of any tax.
3. He compiles and maintains the accounts of state governments.
4. He has control over the issue of money from the Consolidated Fund of India.

(a) 2 and 4
(b) 1, 3 and 4
(c) 1, 2 and 3
(d) 2, 3 and 4

118. Which of the following statements are correct about the difference between a censure motion and a no-confidence motion?
1. A censure motion should state the reasons for its adoption whereas a no-confidence motion need not state the reasons for its adoption.
2. A no-confidence motion can be moved only against the council of ministers, whereas a censure motion can be moved against the council of ministers or an individual minister or a group of ministers.
3. The Government must resign if a noconfidence motion is passed, whereas the Government need not resign if a censure motion is passed.
4. A censure motion can be moved in both, the Lok Sabha and the Rajya Sabha, whereas no-confidence motion can be moved only in the Lok Sabha.

(a) 1, 3 and 4
(b) 2, 3 and 4
(c) 2, 3 and 4
(d) 1, 2 and 3

119. The first Lokpal Bill was introduced in the Parliament in:
    (a) 1971
    (b) 1967
    (c) 1968
    (d) 1972
120. The Central Vigilance Commission was set up by:
    (a) Constitutional provision
    (b) Act of the Parliament
    (c) Resolution of the Santhanam Committee
    (d) Executive resolution
121. The functions of Estimates Committee include:
    1. To suggest alternative policies in order to bring out efficiency and economy in administration.
    2. To see that the expenditure conforms to the authority which governs it.
    3. To examine whether the money is well laid out within the limits of the policy implied in the estimates.
    4. To suggest the form in which estimates shall be presented to the Parliament.

    Of the above, the correct statements are:
    (a) 1 and 2
    (b) 1, 3 and 4
    (c) 1, 2 and 4
    (d) 1, 2, 3 and 4
122. The recommendations of Balwantray Mehta Committee includes:
    1. Open participation of political parties in Panchayati Raj affairs.
    2. Genuine transfer of power and responsibility to the Panchayati Raj institutions.
    3. Constitutional protection for Panchayati Raj.
    4. District Collector should be the Chairman of the Zila Parishad.
    5. Panchayat Samiti to be the executive body.
    (a) 1, 2 and 5
    (b) 2, 4 and 5
    (c) 2, 3 and 4
    (d) 1, 3 and 4
123. Which of the following statements is incorrect?
    (a) Adjournment means an interruption in normal business of the Assembly.
    (b) Prorogation means the end of the Assembly.
    (c) Dissolution means the end of the Assembly.
    (d) Proroagation means end of a session of the Assembly.
124. Which of the following are the compulsory provisions of the 73rd Amendment Act on Panchayati Raj?
    1. Indirect elections of the chairpersons of Panchayats at the intermediate and district levels.
    2. Fresh elections within six months in case of dissolution.
    3. Provision for reservation of seats for backward classes.
    4. Giving representation to MPs and MLAs in Panchayats.

(a) 1, 3 and 4
(b) 2 and 4
(c) 1 and 2
(d) 2, 3 and 4

125. Consider the following statements about municipal corporations:
1. They are established in the states by the acts of the concerned state legislatures.
2. They are established in the union territories by an order of the Chief Administrator.
3. They work under direct control and supervision of state governments.
4. Their deliberative functions are separated from the executive functions.

Of the above, the correct statements are:
(a) 1 and 3
(b) 1, 3 and 4
(c) 1, 2 and 3
(d) 1, 2, 3 and 4

126. Which of the following is not correct about a cantonment board?
(a) It is created by an executive resolution.
(b) It works under the administrative control of the Union Defence Ministry.
(c) It is established for municipal administration for civilian population in the cantonment area.
(d) It is a statutory body.

127. Under which of the following conditions, the UPSC can serve the needs of a state?
1. When requested by the President
2. When requested by the Governor
3. With the approval of Parliament
4. With the approval of President
5. With the approval of the concerned sate legislature.

(a) 1 and 3
(b) 2 and 5
(c) 2 and 4
(d) 1 and 5

Assertion (A) and Reason (R) Pattern

Answer the following questions by using the codes given below:
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

128. Assertion: A minister at the Central level can be dismissed by the Prime Minister.
Reason: A minister is appointed by President only on the advice of Prime Minister.

129. Assertion: The Finance Commission facilitates the maintenance of financial balance between the Union and the states in the Indian federal system.
Reason: The Constitution of India has given more financial powers to the Union Government.

131. Assertion: The Governor is dejure head of state administration.
Reason: The Chief Minister is de-facto head of state administration.

132. Assertion: The Rajya Sabha has no power to vote on the demands-for-grants.
Reason: A money bill or finance bill dealing with taxation cannot be introduced in the Rajya Sabha.

Matching Pattern

Match List-I with List-II and select the correct answer by using the codes given below.

133.

List-I (Meaning of writs)	List-II (Name of writs)
A. It is a command issued by the court to a public official asking him to perform his official duties.	1. Injunction
B. It is issued by a higher court to a lower court when the latter exceeds its jurisdiction.	2. Mandamus
C. It is issued by the courts to enquire into the legality of claim of a person to a public office.	3. Certiorari
D. It is issued by the court asking a person do a thing or refrain from doing a thing	4. Prohibition
	5. Quo-warranto

Codes:

	A	B	C	D
(a)	3	4	5	1
(b)	5	3	4	2
(c)	2	4	5	1
(d)	4	5	2	3

134.

List-I (Committees)	List-II (Function)
A. Public Accounts Committee	1. Examines whether the promises made by the ministers on the floor of the house have been fulfilled.
B. Committee on Subordinate Legislation	2. Examines the CAG's report on the appropriation accounts and ascertains whether the funds voted by Parliament are spent within the scope of the demand.
C. Committee on Public Undertakings	3. Examines whether the powers to make rules and regulations delegated by the Parliament are properly exercised by the executive.
D. Committee on	4. Examines the reports and accounts of the

Government Assurances.	public undertakings and finds out whether their affairs are being managed in accordance with sound business principles and prudent commercial practices.

Codes:	A	B	C	D
(a)	4	3	1	2
(b)	2	3	4	1
(c)	1	4	3	2
(d)	2	4	1	3

135.

List-I	List-II
A. Token grant	1. It is granted for meeting an unexpected demand whose details cannot be stated.
B. Exceptional grant	2. It is voted by the Lok Sabha before the end of the financial year.
C. Vote of credit	3. It is voted by the Lok Sabha after the end of the financial year.
D. Excess grant	4. It forms no part of the current service of any financial year.
	5. It is granted when funds to meet proposed expenditure on a new service can be made available by reappropriation.

Codes:	A	B	C	D
(a)	4	3	5	2
(b)	5	4	1	3
(c)	3	4	2	1
(d)	5	3	1	4

136.

List-I (Schedules in the Constitution)	List-II (Provisions)
A. Sixth Schedule	1. Administration and control of scheduled areas and scheduled tribes.
B. Second Schedule	2. Administration of tribal areas in states of Assam, Meghalya, Tripura and Mizoram.
C. Twelfth Schedule	3. Provisions as to the Speaker and Deputy Speaker of state Legislative Assemblies.
D. Fifth Schedule	4. Powers, authority and responsibilities of municipalities.
	5. Powers, authority and responsibilities of Panchayats.

Codes:	A	B	C	D
(a)	1	3	4	2
(b)	1	2	5	3

(c) 2 3 4 1
(d) 2 3 5 1

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137. The most important Legislative power of the Governor is:
   (a) Nominating members to the state legislature.
   (b) Issuing ordinances
   (c) Assenting bills passed by the state legislature
   (d) Dissolving the state legislative Assembly
138. Assertion: The Chief Minister is the channel of communication between the Governor and the council of ministers. Reason: The Chief Minister is the head of the state council of ministers.
   Select the correct code:
   (a) Both A and R are true and R is the correct explanation of A.
   (b) Both A and R are true but R is not a correct explanation of A.
   (c) A is true but R is false.
   (d) A is false but R is true.
139. Which of the following are the voluntary provisions of the 73rd Amendment Act on Panchayati Raj?
   1. Making provision for reservation to the backward classes.
   2. Authorising the Panchayats to prepare plans for economic development.
   3. Organisation of Gram Sabhas.
   4. Conferring financial powers on Pan-chayats with regard to taxes, fees and so on.
   5. Setting up of a State Election Commission to conduct elections to the Panchayats.
      (a) 1, 2, 3 and 4
      (b) 1, 2 and 5
      (c) 1, 2 and 4
      (d) 1, 2, 4 and 5
140. Assertion: The UPSC's function is not to decide but to advise.
   Reason: UPSC is a constitutional body Select the correct code:
   (a) Both A and R are true and R is the correct explanation of A.
   (b) Both A and R are true but R is not a correct explanation of A.
   (c) A is true but R is false.
   (d) A is false but R is true.
141. Which of the following are true of the Central Administrative Tribunal?
   1. It was established under the provisions of Article 312-A of the Constitution.
   2. It was set up by an order of the President of India.
   3. It was set up in 1985
   4. It was set up by an Act of Parliament.
      (a) 1, 2 and 3
      (b) 1, 3 and 4
      (c) 3 and 4
      (d) 2, 3 and 4

142. If any question arises as to the age of a judge of a High Court, the question shall be decided by the President after consultation with:
(a) The Chief Justice of the concerned High Court
(b) The Governor of the concerned state
(c) The Attorney-General of India
(d) The Chief Justice of India

143. The need for a separate parliamentary committee on public undertakings was first visualised by:
(a) Ashok Mehta
(b) G.V. Mavalankar
(c) Lanka Sundaram
(d) Krishna Menon Committee

144. Assertion: Parliamentary control over public expenditure is diminished by the creation of the Contingency Fund of India. Reason: The Contingency Fund of India is operated by the President of India. Select the correct code:
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

145. Which of the following pairs are incorrectly matched?

1. Vote on account	—	To allow enough time for legislative scrutiny and discussion of the budget.
2. Charged items	—	Not submitted to the Parliament.
3. Vote of credit	—	Blanck cheque given to the executive.
4. Excess grant	—	Submitted directly to the Lok Sabha for its approval

(a) 1 and 3
(b) 1, 2 and 4
(c) 2 and 4
(d) 3 and 4

146. Which of the following expenditures are charged on the Consolidated Fund of India?
1. Salaries of the Supreme Court judges
2. Pensions of the Chairman of UPSC
3. Debt charges for which the Government of India is liable
4. Emoluments and allowances of the Prime Minister
(a) 1, 2 and 3
(b) 1, 2, 3 and 4
(c) 1, 3 and 4
(d) 1, 2 and 4

147. Which of the following are the functions of the Public Accounts Committee of Parliament?

1. To examine, in the light of CAG's report, the accounts showing the appropriation of sums granted by the Parliament.
2. To examine, in the light of CAG's report, the statement of accounts of state corporations, trading and manufacturing projects except of those as are allotted to the committee on public undertakings.
3. To examine the statement of accounts of autonomous and semi-autonomous bodies, the audit of which is conducted by the CAG.
4. To examine if any money has been spent on any service during a financial year in excess of the amount granted by house of people for that purpose.

(a) 1, 2 and 4
(b) 1, 2, 3 and 4
(c) 1, 2 and 3
(d) 1, 3 and 4

148. Assertion: The device of Adjournment Motion is not used by the Rajya Sabha. Reason: An Adjournment Motion does not result in removing the Government from office.
Select the correct code:
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not the correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

149. Which of the following are true of Central Vigilance Commission?
1. It was set up in 1964.
2. It is a statutory body.
3. Its functions are advisory in the same sense as those of UPSC.
4. Its mode of receiving complaints is similar to that of the Parliamentary Commissioner for Administration in UK.

(a) 1, 2, 3 and 4
(b) 1, 3 and 4
(c) 1, 2 and 3
(d) 1 and 3

150. Which of the following statements related to UPSC are correct?
1. It derives its functions only from the Constitution.
2. It is not consulted on matters related to the reservation of posts for the BCs, SCs and STs.
3. The President can exclude posts, services and matters from the purview of consultation with UPSC.
4. The President can place the personnel system of any local authority, corporate body or public institution within the jurisdiction of UPSC.

(a) 2 and 3
(b) 1, 2 and 3
(c) 2, 3 and 4
(d) 1, 2 and 4

151. The executive officer of the cantonment board is appointed by the:
(a) President of the board

(b) Defence Secretary
(c) Chief Secretary of the state
(d) President of India

152. The correct statements about municipalities include:
1. They are known by various other names in different states.
2. They are controlled by the state governments.
3. Vesting of the executive authority in the Chairman.
4. They are statutory bodies.
(a) 1, 2 and 4
(b) 1, 2, 3 and 4
(c) 1 and 2
(d) 1, 2 and 3

153. Who/which of the following can abolish a State Legislative Council.
(a) Parliament
(b) President
(c) Governor
(d) State Assembly

154. In which of the following recommendations, the Ashok Mehta Committee differed from Balwantray Mehta Committee?
1. Two-tier system of Panchayati Raj.
2. Official participation of politicalparties at all levels of Panchayat elections.
3. Zila Parishad as the executive body.
4. Entrusting development functions to the Zila Parishad.
(a) 1, 2 and 4
(b) 1, 2 and 3
(c) 1 and 2
(d) 1, 3 and 4

155. Under which of the following circumstances, the Governor can reserve a state bill for the consideration of the President?
1. If it is ultra vires.
2. If it is opposed to the Directive Principles of State Policy.
3. If it endangers the position of the state High Court.
4. If it is dealing with the compulsory acquisition of property under Article 31A.
(a) 1, 2 and 3
(b) 1, 2, 3 and 4
(c) 2, 3 and 4
(d) 1, 3 and 4

156. Which of the following expenditures are “charged” on the Consolidated Fund of India?
1. Salaries and allowances of Chairman of Council of States.
2. Salaries and allowances of Comptroller and Auditor-General.
3. Any sum required to satisfy any judgement of any arbitral tribunal.
4. Salaries and allowances of Deputy Speaker.
(a) 2 and 3

(b) 1, 2 and 3
(c) 1, 2, 3 and 4
(d) 2 and 4

157. Which of the following must be approved by the Public Accounts Committee before being submitted to the Lok Sabha for voting?
(a) Additional grant
(b) Exceptional grant
(c) Token grant
(d) Excess grant

158. Which of the following is not involved in the preparation of budget?
(a) Finance Ministry
(b) NITI Aayog
(c) Comptroller and Auditor-General
(d) Finance Commission

159. Which of the following categories of bills require prior consent of the President before their introduction?
1. Bills to reorganise states.
2. Bills affecting taxes in which the states are interested.
3. State bills imposing restrictions on freedom of trade.
4. Bills involving expenditure from the Consolidated Fund of India.
(a) 1, 2 and 4
(b) 1, 2, 3 and 4
(c) 2, 3, and 4
(d) 1, 2, 3

160. The Inter-State Council consists of
1. Prime Minister
2. Chief Ministers of all states
3. Chief Ministers of union territories with legislatures
4. Eight Union Cabinet Ministers
5. Administrators of union territories with legislatures
(a) 1, 2, 3, 4 and 5
(b) 1, 2, 3 and 4
(c) 1, 2 and 3
(d) 1, 2, 3 and 5

161. Which of the following Cabinet Committees is not chaired by the Prime Minister?
(a) Political Affairs Committee
(b) Appointments Committee
(c) Committee on Parliamentary Affairs
(d) Economic Affairs Committee

162. On which of the following items, the Finance Commission makes recommendations to the President?
1. The distribution between the Union and the states of the net proceeds of taxes and the allocation between the states of the respective shares of such proceeds.

2. The principles which should govern the grants-in-aid of the revenues of the states out of the Consolidated Fund of India.
3. The measures needed to augment the Consolidated Fund of a state to supplement the resources of the municipalities in the state on the basis of the recommendations made by the Finance Commission of the state.
4. Any other matter referred to it by the President in the interests of sound finance.

(a) 1, 2 and 4
(b) 1, 2, 3 and 4
(c) 1 and 2
(d) 1, 2 and 3

163. Fundamental Duties were incorporated in the Constitution on the recommendation of:

(a) Shah Commission
(b) Administrative Reforms Commission
(c) Santhanam Committee
(d) Swaran Singh Committee

Assertion (A) and Reason (R) Pattern

Answer the following questions by using the codes given below.

(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true

164. Assertion: The President of India can be impeached for the violation of the Constitution.
Reason: The Constitution lays down the procedure for impeachment of the President.

165. Assertion: The 73rd Amendment Act is a significant landmark in the evolution of grassroots democratic institutions in the country.
Reason: The Act has brought the Pan-chayati Raj institutions under the purview of justiciable part of the the Constitution.

166. Consider the following statements about the Governor:
1. He submits his resignation letter to the Chief Justice of the state.
2. He should have completed 35 years of age.
3. His emoluments, allowances and privileges are determined by the President.
4. No criminal proceedings can be instituted against him.

Of the above, the incorrect statements are:

(a) 1 and 3
(b) 2, 3 and 4
(c) 1, 3 and 4
(d) 2 and 4

167. How many members are nominated to the State Legislative Council by the Governor?

(a) One-third
(b) One-twelfth
(c) One-eighth
(d) One-sixth

168. Assertion: A minister at the state level continues in office till he enjoys the confidence of the Chief Minister.
Reason: The Chief Minister can ask him to resign or advise the Governor to dismiss him in case of difference of opinion. Select the correct code:
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

169. Which of the following are true of the recommendations of Ashok Mehta Committee on Panchayati Raj?
1. Creation of Mandal Panchayat covering a population of 10,000 to 15,000.
2. The state legislature to have a committee on Panchayati Raj to look after the needs of weaker sections.
3. If Panchayati Raj institutions are superseded, elections must be held within one year.
4. Nyaya Panchayats should be presided over by the village development officer.
(a) 1, 2 and 4
(b) 2 and 4
(c) 1, 2 and 3
(d) only 2

170. Which of the following are true of the provisions of the 74th Amendment Act on municipalities?
1. Wards Committees, for wards with population of two lakhs.
2. The state Governor may authorise them to levy, collect and appropriate taxes.
3. A Municipal council for smaller Urban area.
4. The Twelfth Schedule contains 20 functional items for the municipalities.
(a) 1, 3 and 4
(b) 1, 2 and 4
(c) 3 only
(d) 3 and 4

171. Assertion: The number of members of UPSC is determined by the President. Reason: The members of the UPSC are appointed by the President.
Select the correct code:
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true and R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

172. Assertion: The members of All-India Services work in the Central Government, state governments and union territories.
Reason: They are selected and recruited on the basis of all-India competitive examinations conducted by the UPSC.
Select the correct code:
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

173. Assertion: The principle of the rule of lapse leads to “rush of expenditure” towards the end of a financial year.
Reason: The unspent voted expenditure would lapse by the end of the financial year.
Select the correct code:
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

174. Match the following:

List-I (Parliamentary committees)	List-II (Created in)
A. Committee on Government Assurances	1. 1923
B. Committee on Public Undertakings	2. 1953
C. Committee on Subordinate Legislation	3. 1921
D. Public Accounts Committee	4. 1953
	5. 1964

Codes:	A	B	C	D
(a)	4	5	1	3
(b)	2	5	4	1
(c)	4	5	2	1
(d)	2	5	4	3

175. Which of the following are true of Central Vigilance Commission?
1. It was set up on the recommendation of Santhanam Committee.
2. It does not exercise superintendence over the functioning of CBI.
3. It is set up by an executive resolution of the Government of India.
4. It consists of a chairman and three members.
(a) 1, 2 and 4
(b) 1, 3 and 4
(c) 1 and 3
(d) 1 and 4

176. Which of the following will be the consequences of declaration of national emergency by the President?
1. The President can issue directives to the state executives.
2. The President can extend the normal tenure of the Lok Sabha.
3. The President can suspend all the Fundamental Rights of citizens.

4. The President can modify the distribution pattern of financial resources between Centre and states.
   (a) 1, 3 and 4
   (b) 1and 4
   (c) 1, 2, 3 and 4
   (d) 1, 2 and 3

177. Which one of the following pairs is correctly matched?
   (a) 1919 Act - Dyarchy at the Centre
   (b) 1861 Act - Portfolio system
   (c) 1935 Act - Bicameralism
   (d) 1853 Act - Governor-General of India

178. Which of the following are true of the President's ordinance making power?
   1. It is laid down in Article 123.
   2. Its ambit is coextensive with the legislative power of Parliament.
   3. He can promulgate an ordinance only when the Lok Sabha is not in session.
   4. It is a discretionary power of the President.
      (a) 1, 2, 3 and 4
      (b) 1, 2 and 4
      (c) 1 and 2
      (d) 1, 2, and 3

179. Which of the following are the limitations on the sovereignty of Indian Parliament?
   1. Fundamental Rights
   2. Judicial Review
   3. Federalism
   4. Written Constitution
      (a) 1, 3 and 4
      (b) 1, 2 and 3
      (c) 1 and 2
      (d) 1, 2, 3 and 4

180. Assertion: Under the Government of India Act of 1935, the Residuary powers were vested in the Central Legislature. Reason: The Government of India Act of 1935 divided the subjects into three lists viz. the federal, provincial and concurrent. Select the correct code:
   (a) Both A and R are true and R is the correct explanation of A.
   (b) Both A and R are true but R is not a correct explanation of A.
   (c) A is true but R is false.
   (d) A is false but R is true.

181. Which of the following are the federal features of the Indian Constitution?
   1. Rigid Constitution
   2. Bicameral legislature
   3. Office of the CAG
   4. Collective responsibility
   5. Office of the Governor
      (a) 1, 2 and 3

(b) 1, 2 and 5
(c) 1, 2, 3 and 4
(d) 1 and 2

182. Assertion: The President of India determines the qualifications of the Chairman and members of the Finance Commisson. Reason: The Chairman and members of the Finance Commission are appointed by the President of India.
Select the correct code:
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

183. The correct statements about Finance Commission are:
1. It is to act as the balancing wheel of Indian fiscal federalism
2. It consists of a chairman and three other members.
3. Qualifications of the members of the Commission are determined by the President.
4. It is constituted under the provisions of Article 280.
(a) 2, 3 and 4
(b) 2 and 3
(c) 1 and 4
(d) 1, 2 and 3

184. The Indian President's veto power is a combination of:
1. Pocket veto
2. Absolute veto
3. Suspensive veto
4. Qualified veto
(a) 2 and 3
(b) 1, 3 and 4
(c) 2, 3 and 4
(d) 1, 2 and 3

185. The present relationship between the President and the council of ministers is governed by the provisions of:
(a) 42nd Amendment Act
(b) 48th Amendment Act
(c) 54th Amendment Act
(d) 44th Amendment Act

186. The Zonal Councils have been established by:
(a) Article 263 of the Constitution
(b) States reorganisation Act
(c) Zonal Councils Act
(d) An order of the President of India

187. Which of the following statements are correct?
1. Parliament can increase a tax.
2. Parliament cannot reduce a tax.
3. Parliament can abolish a tax.

4. Parliament cannot increase a tax.
5. Parliament can reduce a tax.
   (a) 1, 3 and 5
   (b) 3, 4 and 5
   (c) 2, 3 and 4
   (d) 3 and 4

188. Which of the following statements are correct with regard to the expenditure charged upon the Consolidated Fund of India?
1. It is subject to the vote of Parliament.
2. It is subject to the discussion in Parliament.
3. It is subject to the vote of Lok Sabha only.
4. It is not subject to the vote of Parliament.
   (a) 1 and 2
   (b) 2 and 3
   (c) 2 and 4
   (d) 1 and 4

189. The correct statements regarding the difference between the pardoning powers of President and Governor are:
1. The Governor can pardon sentences inflicted by court martial while the President cannot.
2. The President can pardon death sentence while Governor cannot.
3. The Governor can pardon death sentence while the President cannot.
4. The President can pardon sentences inflicted by court martial while the Governor cannot.
   (a) 1 and 2
   (b) 2 and 4
   (c) 1 and 3
   (d) 3 and 4

190. Which of the following statements are correct regarding the powers of a Governor to reserve a bill for the consideration of the President?
1. It is laid down in Article 200.
2. It is not a discretionary power of the Governor.
3. It is compulsory, if the bill endangers the position of High Court.
4. He can reserve any bill passed by the state legislature.
   (a) 1, 2 and 3
   (b) 3 and 4
   (c) 1 and 3
   (d) 2, 3 and 4

191. The incorrect statements about Central Vigilance Commission are:
1. It was set up on the recommendations of Administrative Reforms Commission.
2. It is headed by the Central Vigilance Commissioner appointed by the Prime Minister.
3. Its functions, in certain cases, overlap with the functions of the UPSC.
4. It is certainly a substitute for an Ombudsman.
5. It receives complaints directly from aggrieved persons.

(a) 1, 4 and 5
(b) 1, 2 and 4
(c) 3 and 4
(d) 3, 4 and 5

192. Which of the following civil services find mention in the Constitution?
1. Indian Administrative Service
2. Indian Forest Service
3. Indian Police Service
4. All-India Judicial Service
5. Indian Foreign Service

(a) 1 and 3
(b) 1, 2 and 3
(c) 1, 3 and 5
(d) 1, 3 and 4

193. In which of the following circumstances the President can remove a member of the UPSC without referring the matter to the Supreme Court?
1. If he engages, during his term of office, in any paid employment outside the duties of his office.
2. If he is adjudged an insolvent.
3. If he is unfit to continue in office by reason of infirmity of mind or body.
4. If he becomes, in any way, concerned or interested in any contract or agreement made by or on behalf of the Government of India or the government of a state.

(a) 2 and 3
(b) 4 only
(c) 1 only
(d) 1, 2 and 3

194. Which of the following are not the concerns of the UPSC?
1. Classification of services
2. Promotion
3. Training
4. Disciplinary matters
5. Talent hunting

(a) 2, 4 and 5
(b) 1, 3 and 4
(c) 1 and 3
(d) 1 and 4

Matching Pattern

Match List-I with List-II and select the correct answer by using the codes given below the respective lists.

195.

List-I (Acts)	List-II (Provisions)
A. Indian Councils Act of 1861.	1. Introduced Dyarchy 2. Placed Indian affairs under the direct control of the British Government.

B. Government of India Act of 1919
C. Indian Councils Act of 1892
D. Pitts India Act of 1784

3. Introduced representative institutions.
4. Introduced provincial autonomy.
5. Introduced the principle of election.

Codes:	A	B	C	D
(a)	4	3	1	2
(b)	4	3	2	1
(c)	3	4	2	1
(d)	3	4	1	2

Assertion (A) and Reason (R) Pattern

Answer the following questions by using the codes given below:
(a) Both A and R are true and R is the correct explanation of A.
(b) Both A and R are true but R is not a correct explanation of A.
(c) A is true but R is false.
(d) A is false but R is true.

196. Assertion: NITI Aayog is neither a statutory body nor a constitutional body.
Reason: It is established by an executive resolution of the Union Cabinet.

197. Assertion: The Constitution of India in quasi-federal.
Reason: It has given more powers to the Central Government than to the state governments.

198. Assertion: The Chief Minister can dismiss a minister of state government.
Reason: The Chief Minister is the head of the state council of ministers.

199. Which of the following are correct with regard to the functions of the UPSC?
1. To conduct examinations for appointments to the services of the Union.
2. To assist states, if requested, in framing and operating schemes of joint recruitment for any services for which candidates possessing special qualifications are required.
3. To advise the Union and state governments on all matters relating to methods of recruitment to civil services and for civil posts.
4. To present, annually, to the President a report as to the work done by it.
(a) 1, 2 and 3
(b) 1, 3 and 4
(c) 1, 2 and 4
(d) 1, 2, 3 and 4

200. Which of the following writs is not specifically provided in the Constitution of India?
(a) Prohibition
(b) Mandamus
(c) Quowarranto
(d) Injunction

Answers

1.	c	2.	b	3.	d	4.	b	5.	d	6.	d	7.	b	8.	d	9.	a	10.	b
11.	d	12.	c	13.	d	14.	a	15.	d	16.	c	17.	c	18.	c	19.	b	20.	a
21.	c	22.	b	23.	d	24.	c	25.	c	26.	d	27.	c	28.	d	29.	c	30.	b
31.	c	32.	d	33.	a	34.	c	35.	a	36.	a	37.	c	38.	d	39.	d	40.	d
41.	b	42.	d	43.	d	44.	d	45.	b	46.	c	47.	b	48.	d	49.	b	50.	d
51.	d	52.	c	53.	c	54.	d	55.	d	56.	c	57.	c	58.	c	59.	c	60.	d
61.	b	62.	d	63.	c	64.	c	65.	c	66.	b	67.	c	68.	d	69.	d	70.	b
71.	a	72.	d	73.	b	74.	b	75.	d	76.	b	77.	b	78.	d	79.	c	80.	d
81.	d	82.	c	83.	b	84.	c	85.	a	86.	a	87.	a	88.	b	89.	b	90.	c
91.	d	92.	d	93.	d	94.	d	95.	c	96.	d	97.	d	98.	d	99.	c	100.	b
101.	a	102.	c	103.	c	104.	d	105.	d	106.	a	107.	b	108.	c	109.	a	110.	a
111.	d	112.	c	113.	c	114.	c	115.	d	116.	c	117.	c	118.	d	119.	c	120.	d
121.	b	122.	b	123.	b	124.	c	125.	b	126.	a	127.	c	128.	d	129.	a	130.	b
131.	a	132.	b	133.	c	134.	b	135.	b	136.	c	137.	b	138.	a	139.	c	140.	b
141.	c	142.	d	143.	c	144.	d	145.	c	146.	a	147.	b	148.	b	149.	c	150.	a
151.	d	152.	b	153.	a	154.	b	155.	b	156.	a	157.	d	158.	d	159.	b	160.	c
161.	c	162.	b	163.	d	164.	b	165.	a	166.	a	167.	d	168.	a	169.	d	170.	c
171.	b	172.	b	173.	a	174.	d	175.	c	176.	b	177.	b	178.	c	179.	d	180.	d
181.	d	182.	d	183.	c	184.	d	185.	d	186.	b	187.	b	188.	c	189.	b	190.	c
191.	b	192.	d	193.	d	194.	c	195.	d	196.	a	197.	a	198.	d	199.	c	200.	d

Appendix IX UPSC Questions on Indian Polity (General Studies— Mains 2010–2019)

2010 TEST PAPER

1. Answer the following (in about 250 words): 20
   (a) "Disputes between the riparian states on sharing of river waters in postIndependence India are becoming increasingly complex." Objectively analyse the major disputes in this connection, with special reference to the Southern States.
2. Answer the following (in about 150 words): 12
   (a) With respect to Cooperative Societies what are the salient features of the 106th and 111th Constitutional Amendment Bills as at present?
3. Answer the following (in about 150 words): 12
   (a) What are the grounds of disqualification of a Member of Parliament from either House? Quote relevant provisions in your answer.
4. Write brief but precise note on the following. Your answer should not exceed 50 words. 5
   (a) Legislative powers assigned to the Rajya Sabha under Art. 249 and Art. 312 of the Constitution.
5. Answer the following (in about 150 words): 12
   (a) Bring out the powers and responsibilities attached to the office of the Speaker of the Lok Sabha.
6. Answer the following, briefly but precisely. Answer should be less than 50 words. 5
   (a) How is disagreement between the Legislative Council and the Legislative Assembly of a State in passing of an ordinary Bill, resolved?

2011 TEST PAPER

1. Answer the following (in about 250 words each): **20 × 3 = 60**
   (a) "Essentially all that is contained in Part IV - A of the Constitution is just a codification of tasks integral to the Indian way of life'. Critically examine this statement.
   (b) "The exercise of executive clemency is not a privilege but is based on several principles, and discretion has to be exercised in public considerations." Analyse this statement in the context of the judicial powers of the President of India.
   (c) Bring out the salient features of the PCPNDT Act, 1994, and the implications of its amendment in 2003.
2. Comment on the following (in about 150 words each): **12 × 3 = 36**
   (a) Deendayal Disabled Rehabilitation Scheme (DDRS).
   (b) Evolution of "Green Benches" in our higher judiciary.
   (c) Distinction between "Department Related Parliamentary Standing Committees" and "Parliamentary Forums'.
3. Comment on the following in NOT more than 50 words each: **5 × 2 = 10**
   (b) The Bihar Special Courts Act, 2009 and why it has been in the news recently?
4. Comment on the following in not more than 50 words: 5
   (a) E-governance initiatives by the Union Public Service Commission (UPSC).

2012 TEST PAPER

1. Answer the following (in about 150 words each): **15 × 2 = 30**
   (a) The Union Cabinet recently cleared the proposal to rename and amend the Child Labour (Prohibition and Regulation) Act, 1986. What are the salient features of the proposed amendments?
   (b) What are the salient features of the Consumer Protection (Amendment) Bill, 2011 introduced in the Lok Sabha in December 2011?
2. Answer the following (in about 50 words each): **5 × 3 = 15**
   (a) What is the "Parivarik Mahila Lok Adalat'?
   (b) What are the Rights within the ambit of Article 21 of the Indian Constitution?
   (c) Comment on the significance of the Preamble contained in the Right to Information Act.
3. Comment on the following (in about 20 words): 2
   (a) Determining the "value" assigned to the vote of a Member of a State Legislative Assembly and of a Member of Parliament in the Indian Presidential elections.

2013 TEST PAPER

1. The role of individual MPs (Members of Parliament) has diminished over the years and as a result healthy constructive
2. Discuss Section 66A of IT Act, with reference to its alleged violation of Article 19 of the Constitution. [200 words] 10
3. Recent directives from Ministry of Petroleum and Natural Gas are perceived by the 'Nagas' as a threat to override the exceptional status enjoyed by the State. Discuss in light of Article 371A of the Indian Constitution.

   [200 words] 10
4. "The Supreme Court of India keeps a check on arbitrary power of the Parliament in amending the Constitution." Discuss critically.

   [200 words] 10
5. Many State Governments further bifurcate geographical administrative areas like Districts and Talukas for better governance. In light of the above, can it also be justified that more number of smaller States would bring in effective governance at State level? Discuss.

   [200 words] 10
6. Constitutional mechanisms to resolve the inter-state water disputes have failed to address and solve the problems. Is the failure due to structural or process inadequacy or both? Discuss.

   [200 words] 10
7. Discuss the recommendations of the 13th Finance Commission which have been a departure from the previous commissions for strengthening the local government finances.

   [200 words] 10
8. Pressure group politics is sometimes seen as the informal face of politics. With regards to the above, assess the

structure and functioning of pressure groups in India.

[200 words] 10

9. “A national Lokpal, however strong it may be, cannot resolve the problems of immorality in public affairs.” Discuss.

[200 words] 10

10. What is meant by Gujral doctrine? Does it have any relevance today? Discuss.

[200 words] 10

2014 TEST PAPER

1. Starting from inventing the “basic structure” doctrine, the judiciary has played a highly proactive role in ensuring that India develops into a thriving democracy. In light of the statement, evaluate the role played by judicial activism in achieving the ideals of democracy.

[200 words] ***12Vz***

2. Though the federal principle is dominant in our Constitution and that principle is one of its basic features, but it is equally true that federalism under the Indian Constitution leans in favour of a strong Centre, a feature that militates against the concept of strong federalism. Discuss.

[200 words] ***12Vz***

3. The “Powers, Privileges and Immunities of Parliament and its Members” as envisaged in Article 105 of the Constitution leave room for a large number of un-codified and un-enumerated privileges to continue. Assess the reasons for the absence of legal codification of the “parliamentary privileges’. How can this problem be addressed?

[200 words] ***12V2***

4. What do you understand by the concept “freedom of speech and expression’? Does it cover hate speech also? Why do the films in India stand on a slightly different plane from other forms of expression? Discuss.

[200 words] ***12V2***

5. Instances of President’s delay in commuting death sentences has come under public debate as denial of justice. Should there be a time limit specified for the President to accept/reject such petitions? Analyse.

[200 words] ***12V2***

6. The size of the cabinet should be as big as governmental work justifies and as big as the Prime Minister can manage

as a team. How far is the efficacy of a government then inversely related to the size of the cabinet? Discuss.

[200 words] ***12V2***

7. National Human Rights Commission (NHRC) in India can be most effective when its tasks are adequately supported by other mechanisms that ensure the accountability of a government. In light of the above observation assess the role of NHRC as an effective complement to the judiciary and other institutions in promoting and protecting humans rights standards.

[200 words] ***12V2***

2015 TEST PAPER

1. Discuss the possible factors that inhibit India from enacting for its citizens a uniform civil code as provided for in the Directive Principles of State Policy.

[200 words] ***12V2***

2. The concept of cooperative federalism has been increasingly emphasized in recent years. Highlight the drawbacks in the existing structure and the extent to which cooperative federalism would answer the shortcomings.

[200 words] ***12V2***

3. In absence of a well-educated and organized local level government-system, 'Panchayats' and 'Samitis' have remained mainly political institutions and not effective instruments of governance. Critically discuss.

[200 words] ***12V2***

4. Khap Panchayats have been in the news for functioning as extra-constitutional authorities, often delivering pronouncements amounting to human rights violations. Discuss critically the actions taken by the legislative, executive and the judiciary to set the things right in this regard.

[200 words] ***12V2***

5. Resorting to ordinances has always raised concern on violation of the spirit of separation of powers doctrine. While noting the rationales justifying the power to promulgate ordinances, analyze whether the decisions of the Supreme Court on the issue have further facilitated resorting to this power. Should the power to promulgate ordinances be repealed?

[200 words] ***12V2***

6. What are the major changes brought in the Arbitration and Conciliation Act,

7. Does the right to clean environment entail legal regulations on burning crackers during Diwali? Discuss in the light of Article 21 of the Indian Constitution and Judgement(s) of the Apex Court in this regard.

[200 words] **12½**

8. "If amendment bill to the Whistleblowers Act, 2011 tabled in the Parliament is passed, there may be no one left to protect." Critically evaluate.

[200 words] **12½**

2016 TEST PAPER

1. Discuss the essentials of the 69th Constitutional Amendment Act and anomalies, if any, that have led to recent reported conflicts between the elected representatives and the institution of the Lieutenant Governor in the administration of Delhi. Do you think that this will give rise to a new trend in the functioning of the Indian federal politics?

   [200 words] **12½**

2. To what extent is Article 370 of the Indian Constitution, bearing marginal note "temporary provision with respect to the State of Jammu and Kashmir", temporary? Discuss the future prospects of this provision in the context of Indian polity.

   [200 words] **12½**

3. "The Indian party system is passing through a phase of transition which looks to be full of contradictions and paradoxes." Discuss.

   [200 words] **12½**

4. Exercise of CAG's powers in relation to the accounts of the Union and the States is derived from Article 149 of the Indian Constitution. Discuss whether audit of the Government's policy implementation could amount to overstepping its own (CAG) jurisdiction.

   [200 words] **12½**

5. Discuss each adjective attached to the word "Republic" in the "Preamble'. Are they defendable in the present circumstances?

   [200 words] **12½**

6. What was held in the Coelho case? In this context, can you say that judicial review is of key importance amongst the basic features of the Constitution?

   [200 words] **12½**

7. Did the Government of India Act, 1935 lay down a federal constitution? Discuss.

[200 words] **12½**

8. What is quasi-judicial body? Explain with the help of concrete examples.

[200 words] **12½**

9. Evaluate the economic the strategic dimensions of India's Look East policy in the context of the post Cold War international scenario.

[200 words] **12½**

2017 TEST PAPER

1. “The local self-government system in India has not proved to be effective instrument of governance”. Critically examine the statement and give your views to improve the situation.

[150 words] 10

2. Critically examine the Supreme Court’s judgement on “National Judicial Appointments Commission Act, 2014” with reference to appointment of judges of higher judiciary in India.

[150 words] 10

3. “Simultaneous election to the Lok Sabha and the State Assemblies will limit the amount of time and money spent in electioneering but it will reduce the government’s accountability to the people” Discuss.

[150 words] 10

4. How do pressure groups influence Indian political process? Do you agree with this view that informal pressure groups have emerged as powerful than formal pressure groups in recent years?

[150 words] 10

5. Discuss the role of Public Accounts Committee in establishing accountability of the government to the people.

[150 words] 10

6. Explain the salient features of the Constitution (One Hundred and First Amendment) Act, 2016. Do you think it is efficacious enough “to remove cascading effect of taxes and provide for

[250 words] 15

8. The Indian Constitution has provisions for holding joint session of the two houses of the Parliament. Enumerate the occasions when this would normally happen and also the occasions when it cannot, with reasons thereof.

[250 words] 15

9. To enhance the quality of democracy in India the Election Commission of India has proposed electoral reforms in 2016. What are the suggested reforms and how far are they significant to make democracy successful?

[250 words] 15

2018 TEST PAPER

1. In the light of recent controversy regarding the use of Electronic Voting Machines (EVM), what are the challenges before the Election Commission of India to ensure the trustworthiness of elections in India?

[150 words] 10

2. Whether National Commission for Scheduled Castes (NCSCJ) can enforce the implementation of constitutional reservation for the Scheduled Castes in the religious minority institutions? Examine.

[150 words] 10

3. Under what circumstances can the Financial Emergency be proclaimed by the President of India? What consequences follow when such a declaration remains in force?

[150 words] 10

4. Why do you think the committees are considered to be useful for parliamentary work? Discuss, in this context, the role or the Estimates Committee.

[150 words] 10

5. "The Comptroller and Auditor General (CAG) has a very vital role to play." Explain how this is reflected in the method and terms of his appointment as well as the range of powers he can exercise.

[150 words] 10

6. Whether the Supreme Court Judgement (July 2018) can settle the political tussle between the Lt. Governor and elected government of Delhi? Examine.

[250 words] 15

7. How far do you agree with the view that tribunals curtail the jurisdiction of ordinary courts? In view of the above, discuss the constitutional validity and competency of the tribunals in India.

[250 words] 15

8. How is the Finance Commission of India constituted? What do you about the terms of reference of the recently constituted Finance Commission? Discuss.

[250 words] 15

9. Assess the importance of Panchayat system in India as a part of local government. Apart from government grants, what sources the Panchayats can look out for financing developmental projects.

[250 words] 15

10. India and USA are two large democracies. Examine the basic tenets on which the two political systems are based.

[250 words] 15

2019 TEST PAPER

1. Do you think that constitution of India does not accept principle of strict separation of powers rather it is based on the principle of “checks and balance’? Explain.

[150 words] 10

2. “The Central Administration Tribunal which was established for redressal of grievances and complaints by or against central government employees, nowadays is exercising its powers as an independent judicial authority.” Explain.

[150 words] 10

3. What are the methods used by the Farmers organizations to influence the policymakers in India and how effective are these methods?

[150 words] 10

4. From the resolution of contentious issues regarding distribution of legislative powers by the courts, “Principle of Federal Supremacy” and “Harmonious Construction” have emerged. Explain.

[150 words] 10

5. What can France learn from the Indian Constitution’s approach to secularism?

[150 words] 10

6. On what grounds a people’s representative can be disqualified under the Representation of People Act, 1951? Also mention the remedies available to such person against his disqualification.

[250 words] 15

7. “Parliament’s power to amend the Constitution is a limited power and it cannot be enlarged into absolute power.” In the
8. “The reservation of seats for women in the institutions of local self- government has had a limited impact on the patriarchal character of the Indian Political Process.” Comment.

[250 words] 15

9. “The Attorney-General is the chief legal adviser and lawyer of the Government of India.” Discuss.

[250 words] 15

10. Individual Parliamentarian’s role as the national lawmaker is on a decline, which in turn, has adversely impacted the quality of debates and their outcome. Discuss.

[250 words] 15

Appendix X Practice Questions on Indian Polity (General Studies—Mains)

I. LONG ANSWER QUESTIONS

Instructions: Answer the following questions. Answer to each question should be in about 250 words. Each question carries 30 Marks.

1. How does the parliament exercise control over the Union Executive? How can it be made more effective?
2. Explain the ways of acquiring and losing Indian Citizenship.
3. Explain the right to freedom of religion as envisaged in the Indian Constitution.
4. Evaluate the position of the President of India.
5. Discuss the features of the party system in India.
6. Describe the procedure for the amendment of the Indian Constitution. What are the criticisms levelled against it?
7. Critically examine the extent to which the Directive Principles of State Policy have been implemented. What measures do you suggest for their better implementation?
8. Explain the principles of Indian foreign policy.
9. Critically examine the emergency powers of the Indian President.
10. Describe the relative roles of the Rajya Sabha and the Lok Sabha in the Indian Political System.
11. Explain the jurisdiction and powers of the Supreme Court.
12. Explain the role played by the NITI Aayog in promoting the Cooperative Federalism in India.
13. “The Indian Constitution is federal in form but unitary in spirit”. Discuss.
14. What is the need for promoting National Integration in India? What measures do you suggest in this regard?
15. Describe the various constitutional provisions for the protection and development of women and children in India.
16. What has been the controversy regarding the amenability of Fundamental Rights? What constitutes the “basic structure” of the Constitution?
17. What are the changes introduced in the constitutional provisions with respect to the centre-state financial relations by the 101st Amendment Act? Explain.

18. Describe the various changes made in the Constitution by the 42nd and 44th Amendment Acts.
19. What are the anti-defection provisions under the Constitution? What are the recommendations of the National Commission to Review the Working of the Constitution in this regard?
20. What is a coalition government? What has been its experience in India at the central level?

II. SHORT ANSWER QUESTIONS

Instructions: Answer the following questions. Answer to each question should be in about 150 words. Each question carries 15 Marks.

1. Describe the composition of the Constituent Assembly of India.
3. How does the writ jurisdiction of the Supreme Court differ from that of a High Court?
4. How the Directive Principles differ from the Fundamental Rights?
5. Explain the role of regional parties in Indian Politics.
6. Describe the composition and functions of a State Public Service Commission.
7. Explain the ideals contained in the Preamble of the Indian Constitution.
8. Examine the functioning of Judicial Review in the Indian Political System.
9. “India is a secular state”. Explain.
10. Explain the six freedoms guaranteed under Article 19 of the Constitution.
11. What is meant by President’s Rule? Explain.
12. Critically examine the discretionary powers of a State Governor.
13. Describe the composition and functions of the National Commission for Women.
14. What are the unitary features of the Indian Constitution?
15. Explain the procedure for the impeachment of the President.
16. What are the functions of the VicePresident of India? How does he differ from the American Vice-President?
17. What are the special powers enjoyed by the Rajya Saba? What is its utility?
18. Describe the powers and functions of the Speaker of Lok Sabha.
19. What is a “cut motion’? What are its different kinds? What is its significance?

20. How is the State Legislative Assembly supreme over the State Legislative Council?
21. What is the composition of the Finance Commission? What are its functions?
22. Describe the features of the new Panchayati Raj System as introduced by the 73rd Amendment Act.
23. What is voting behaviour? Explain the determinants of voting behaviour in India.
25. What are the circumstances under which the Parliament can legislate on the State List subjects?
26. What is “Sovereignty of Parliament’? Is Indian Parliament a sovereign body?
27. What are the constitutional provisions with respect to the joint sitting of the two Houses of Parliament?
28. Describe the ordinance-making power of the President of India.
29. Who are linguistic minorities? What are the constitutional safeguards for them?
30. Describe the composition and functions of the National Commission for Protection of Child Rights.

III. VERY SHORT ANSWER QUESTIONS

Instructions: Answer the following questions. Answer to each question should be in about 20 words. Each question carries 2 Marks.

1. What is meant by “Gujral Doctrine’?
2. Distinguish between “Judicial Review” and “Judicial Activism’.
3. What is the significance of Article 355 of the Constitution of India?
4. What is the purpose of the Lok Adalats?
5. What is meant by “Dilatory Motion’?
6. What is meant by the “Doctrine of Pith and Substance’?
7. Why Rajya Sabha is known as a Permanent House?
8. What is meant by “Non-Alignment’?
9. Is the Constitution of India flexible or rigid?
10. What is the present position of the Right to Property?
11. Write the Directive Principles that were added by the Forty-Second Constitutional Amendment Act.
12. Who do not participate in the election of the President of India?
13. How is the Vice-President of India elected?
16. What are the changes made in the constitution by the 42nd and 44th Amendment Acts with respect to the powers of the President in relation to the Central Council of Ministers?
17. What is the meaning of “Guillotine’?
18. Distinguish between Public Bill and Private Bill.
19. What are the qualifications of the judges of State High Courts?
20. What is meant by “Residuary Powers’?
25. What are the functions of the AttorneyGeneral of India?
26. What is meant by “Point of Order’?
27. What are the functions of the Zonal Councils?
28. What is first-past-the-post system?
29. What is meant by “Money Bill’?
30. What is meant by the Doctrine of “Colourable Legislation’?